REPUBLICATION
July 2026

LEXINGTON-FAYETTE URBAN COUNTY, KENTUCKY

CODE of ORDINANCES

Looseleaf Supplement

This copy of the Lexington-Fayette Urban County Code of Ordinances is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ordinance No. 048-2025, adopted June 26, 2025. See the Code Comparative Table for further information.

This copy replaces all existing copies of the Code as published. Future supplements will commence with "Supplement No. 1."

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Lexington-Fayette Urban County, Kentucky

Code of Ordinances

Republished in 2026 by Order of the Urban County Council

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OFFICIALS
of the
URBAN COUNTY OF
LEXINGTON-FAYETTE, KENTUCKY
AT THE TIME OF THIS REPUBLICATION

_____

Pamela G. Miller

Mayor

_____

1st District - George A. Brown

2nd District - Robert R. Jefferson

3rd District - Dick DeCamp

4th District - Linda Gorton

5th District - Bill Farmer, Jr.

6th District - Albert S. Mitchell

7th District - Willy Fogle

8th District - Fred V. Brown

9th District - Jennifer Mossotti

10th District - Sandy Shafer

11th District - Richard P. Moloney

12th District - Gloria Martin

Council Members by District

_____

Isabel Yates (Vice-Mayor)

Scott A. Crosble

David B. Stevens

Council Members at Large

_____

Liz Damrell

Council Clerk

_____

Mary Ann Delaney

Commissioner of Law

Preface

This volume, containing the Charter and Code of Ordinances of the Lexington-Fayette Urban County Government, is a revision, codification and republication of all ordinances of a general and permanent nature passed in final form by the Urban County Government that were deemed advisable to be retained. Special ordinances or purely administrative ordinances such as ordinances levying special assessments, providing for bond issues, paving, vacating, opening, etc., of streets and public ways, appropriating funds and the like, have been omitted from this Code.

As will be noted, all ordinances have been classified according to subject matter; and the various subjects have been entitled by chapter, article, division and section; and the sections within the chapters have been arranged in a logical and orderly fashion. The ordinances, as so compiled, have been arbitrarily numbered to facilitate usage. In a number of places, in the course of republication, sections have been deleted by the urban county government as being obsolete. These sections have been reserved without explanation.

Chapter and Section Numbering System

The numbering system used is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the first section of chapter 1 is numbered 1-1 and the fourteenth section of chapter 10 is 10-14. Under this system, each section is identified with its chapter; and at the same time new sections can be inserted in their proper places, simply by using the decimal system of amendments. By way of illustration: If new material consisting of three sections, that would logically come between sections 4-4 and 4-5, is desired to be added, such new sections would be numbered 4-4.1 and 4-4.3, respectively. New chapters may be included by the addition of a capital letter after the chapter number, i.e., if the new material is to be included between chapters 12 and 13, it will be designated as chapter 12A. New articles and new divisions may be included in the same way, or in the case of articles, may be placed at the end of the chapter embracing the subject, and in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are parts of this volume, and their corresponding prefixes:

Title	Code
CHARTER	CHT:1
CHARTER COMPARATIVE TABLE	CHTCT:1

Title	Code
CODE	CD1:1
CODE APPENDIX	CDA:1
CODE COMPARATIVE TABLE	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CHARTER INDEX	CHTi:1
CODE INDEX	CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Ordinance Adopting Code

ORDINANCE NO. 3958

An Ordinance Adopting, Enacting, Establishing and Designating the Code of Ordinances Codified and Published by the Municipal Code Corporation, Tallahassee, Florida, for the City of Lexington, Kentucky, as the Official City Code; Repealing Certain Ordinances Not Included Therein and Providing for the Manner of Amending Such Code of Ordinances.

Be It Ordained by the Board of Commissioners of the City of Lexington, Kentucky, as follows:

Section 1. Adoption of Code. That the Code of Ordinances prepared and published for the City of Lexington, Kentucky, by the Municipal Code Corporation of Tallahassee, Florida, pursuant to Resolution duly adopted September 11, 1958, and the Contract attached thereto, is hereby adopted, enacted and established as the Code of Ordinances of the City of Lexington, Kentucky, and upon the effective date of this Ordinance the provisions of said Code shall be considered as substituted in a continuing way for the provisions of all ordinances enacted prior to the third day of July, 1959.

Section 2. How Code Designated and Cited. Said Code of Ordinances shall be admitted in evidence without further proof and shall be prima facie evidence in all courts of the existence and legality of the enactments of the particular ordinance and of said Code. The ordinances embraced in said Code shall constitute and be designated "The Code of Ordinances, City of Lexington, Kentucky," and may be so cited.

Section 3. Repeal of Prior Ordinances.

(a) All ordinances or parts of ordinances enacted prior to the third day of July, 1959, and not contained in said Code, or recognized or continued in force by reference in said Code or in this Ordinance, are hereby repealed. Provided, however, that no ordinance adopted after the second day of July, 1959, and no Resolution of the City is repealed elsewhere herein.

(b) The repeal of any ordinance, or any portion thereof, by the preceding section shall not affect or impair any act done or right vested or accrued, or any proceeding, suit or prosecution had or commenced in any cause before such repeal shall take effect; but every such act done, or right vested or accrued, or proceeding, suit or prosecution had or commenced shall remain in full force and effect to all intents and purposes as if said ordinance or part thereof so repealed had remained in force. No offense committed and no liability, penalty, or forfeiture, either civilly or criminally incurred prior to the time when such ordinance or part thereof shall be repealed or altered by this ordinance shall be discharged or affected by such repeal or alteration; but prosecutions and suits for such offenses, liabilities, penalties or forfeitures, shall be instituted and proceeded with in all respects as if such prior ordinance or part thereof, had not been repealed or altered.

(c) No general or special ordinance or resolution heretofore enacted validating or legalizing the acts or omissions of any officer or validating any ordinance, act or proceeding whatever shall be affected by the repealing clause of this ordinance; but all validating or legalizing ordinances whatsoever now in force are hereby continued in force.

(d) No ordinance relating to the public debt, public credit, the issuance of bonds or any annexation of territory shall be affected by the repealing clause of this ordinance.

(e) No ordinance relating to a contract to which the City is a party, or any contract made for its benefit, shall be affected by the repealing clause of this ordinance.

(f) All ordinances and resolutions making special appropriation of public funds are continued in force.

(g) Nothing in the repealing clause of this ordinance shall be construed as releasing any person, firm or corporation from any duty involved in the limitation or condition imposed by any ordinance that may be repealed by said repealing clause.

(h) Nothing herein shall be construed as a repeal or modification of any ordinance levying a special benefit assessment or creating a lien and debt against the owner of any property improved by the opening, widening, extensions, or paving of any street or public thoroughfare within the City of Lexington.

(i) Nothing herein shall be construed as a repeal of any franchise, license or right granted by the City of Lexington to any person, firm or corporation which license, grant, power or franchise was legally in force and effect on the effective date of this ordinance. Every such license, grant, power or franchise shall expire as originally provided by ordinance.

(j) The repeal provided for herein shall not affect the administrative ordinances or resolutions of the City, which are not in conflict or inconsistent with the provisions of the Code of Ordinances; nor shall such repeal affect any ordinance dedicating, naming, establishing, locating, re-locating, opening, paving, dividing, vacating, etc., any street or public way, park, playground or public square in the city; nor shall such repeal affect the annual budget and/or appropriation ordinances; nor shall such repeal affect any ordinance levying or imposing taxes; nor shall such repeal affect any amendment to the zoning map on file in the office of the City Clerk; nor shall such repeal be construed so as to revive any ordinance, or part thereof, that has been repealed by a subsequent ordinance which is repealed by this ordinance.

Section 4. Definitions. In the construction of the Code of Ordinances, and of all ordinances, the following terms and words are hereby defined, unless such definition would be inconsistent with the manifest intent of the ordinance, the legislative intent, or unless the context clearly indicates otherwise, as follows:

(a) **Board of Commissioners** shall mean the Legislative body of the City of Lexington, Kentucky.

(b) The word "**City**", "**this City**", or "**the City**" shall be construed as if the words "of Lexington" followed it, and shall extend to and include its several officers, agents and employees.

(c) **City Clerk** shall mean the City Clerk of the City of Lexington.

(d) **City Manager** shall mean the City Manager of the City of Lexington.

(e) **Code** shall mean the Code of Ordinances of the City of Lexington.

(f) **Legislative Body** shall mean the Board of Commissioners of the City of Lexington.

(g) The words "**the County**" or "**County**" shall mean the County of Fayette.

(h) The word "**oath**" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "**swear**" and "**sworn**" shall be equivalent to the words "**affirm**" and "**affirmed**."

(i) "**Or**" may read "**and**", and "**and**" may be read "**or**", if the sense requires it.

(j) The word "**owner**" applied to real property shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety of the whole or of a part of such building or land.

(k) The word "**person**" shall include and be applied to associations, clubs, societies, firms, partnerships and bodies politic and corporations as well as to individuals.

(l) **Personal property** includes every species of property except real property.

(m) **Real property** includes every species of property except personal property.

(n) The words "**the state**" shall be construed to mean the Commonwealth of Kentucky.

Section 5. Rules of Construction. In the construction of said Code, and of all ordinances, the following rules shall be observed unless such construction would be inconsistent with the manifest intent of the ordinance, the legislative intent or unless the context clearly indicates otherwise:

(a) **General Rule.** All words and phrases shall be construed and understood according to the common and approved usage of the language; but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in the law, shall be construed and understood according to such peculiar and appropriate meaning.

(b) **Gender, Single and Plural.** Every word in an ordinance importing the masculine gender shall extend to and be applied to females as well as males; and every word importing the single number only shall extend to and be applied to several persons or things as well as to one person or thing; and every word importing the plural number only shall extend to and be applied to only one person or thing as well as several persons or things.

(c) **Person.** The word "person" shall extend to and be applied to firms, corporations or associations as well as to individuals unless plainly inapplicable.

(d) **Tenses.** The use of any verb in the present tense shall include the future when applicable.

(e) **Shall Have Been.** The words "shall have been" shall include the past and future cases.

(f) **Heretofore and Hereafter.** Whenever the word "heretofore" occurs in any ordinance it shall be construed to mean any time previous to the day when such ordinance shall take effect; and whenever the word "hereafter" occurs it shall be construed to mean the time after the ordinance containing such word shall take effect.

(g) **Joint Authority.** All words purporting to give a joint authority to three (3) or more City Officials or other persons shall be construed as giving such authority to a majority of officers or such persons, unless it shall be otherwise expressly declared in the law granting the authority.

(h) **Acts by Agents.** When an ordinance requires an act to be done which may by law as well as be done by an agent as by the principal, such requirement shall be construed to include all such acts when done by an authorized agent.

(i) **Reasonable Time.** In all cases where any ordinance shall require any act to be done in a reasonable time, or reasonable notice to be given, such reasonable time or notice shall be deemed to mean such time only as may be necessary for the prompt performance of such duty, or compliance with such notice.

(j) **Time, How Computed.** Whenever a notice is required to be given, or an act to be done, the Kentucky Rules of civil procedure shall apply in the computation of time. [1] Note—Computation of time, Rule 6.01, Kentucky Revised Statutes 1959.

(k) **Week.** The word "week" shall be construed to mean seven days; but publication in a newspaper of any notice or other matter indicated to be for a stated number of weeks shall be construed to mean one insertion in each week, unless specifically stated to be for each day of the week or for more than one day in each week; and all publications heretofore made in accordance with the terms of this subsection are hereby validated.

(l) **Reference to Sections.**

(1) Whenever in the Code of Ordinances a reference is made to several sections and the section numbers given in the ordinances are connected by the word "to", the reference includes both sections whose numbers are given and all intervening sections.

(2) Whenever in said Code a reference is made to a section without stating the section of which the subsection referred to is a part, the reference is to the subsection of the section in which the reference is made.

(3) Whenever in said Code a reference is made to a paragraph without stating the section and subsection of which the paragraph referred to is a part, the reference is to the paragraph of the subsection in which the reference is made.

Section 6. Catchlines, Titles, Headings and Notes. The catchlines, titles, headings, chapter heads, section and subsection heads or titles, and explanatory notes and cross references, contained in the Code of Ordinances, shall not constitute any part of the law, and are intended as mere catchwords to indicate the contents of a section.

Section 7. Severability. It is hereby declared to be the intention of the Legislative Body, in enacting any ordinance, that if any part of the ordinance be held invalid, the remaining part or parts shall remain in force, unless the ordinance provides otherwise, or unless the remaining parts are so inseparably connected with and dependent upon the invalid part, that it is apparent that the Legislative Body would not have enacted the remaining parts without the invalid parts, or unless the remaining parts standing alone, are incomplete and incapable of being executed in accordance with the intent of the Legislative Body.

Section 8. Invalidity of Adoption of Code. If this ordinance adopting the Code of Ordinances shall, for any reason, be held invalid, then it shall be invalid for all purposes and the repeal of former ordinances by this ordinance shall be null and void and the ordinances repealed by this ordinance shall continue to be in full force and effect.

Section 9. Amendments to Code. All ordinances enacted subsequent to the second day of July, 1959, which amend, repeal or in any way affect the Code of Ordinances, shall become a part thereof when passed in such form as to indicate the intention of the Board of Commissioners to make the same a part thereof, and such ordinances shall be deemed to be incorporated in such Code so that reference to the Code of Ordinances of the City of Lexington shall be understood and intended to include such additions and amendments. Such subsequent ordinances shall be numbered in accordance with the numbering system of said Code and printed for inclusion therein, or in the case of repealed chapters, sections and subsections, or any part thereof, by subsequent ordinances, such repealed portions may be excluded from said Code by omission from reprinted pages affected thereby and said subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that the Code of Ordinances and subsequent ordinances numbered or omitted are readopted as a new Code of Ordinances by the Board of Commissioners.

Section 10. Altering Code. It shall be unlawful for any unauthorized person, firm or corporation to change or amend by additions or deletions any part or parts of the Code of Ordinances or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Lexington to be misrepresented thereby.

Section 11. Code To Speak for Itself; Conflicts and Ambiguities. The Code of Ordinances is intended to speak for itself and all ordinance shall be considered to speak as of the same date, except that in cases of conflict between two or more sections, or of a latent or patent ambiguity in a section, reference may be had to the prior ordinances from which the sections are indicated to have been derived, for the purpose of applying the rules of construction relating to repeal by implication, or for the purpose of resolving the ambiguity.

Section 12. A Copy of Said Code of Ordinances Shall Be Kept on File. A copy of such Code shall be kept on file in the office of the City Clerk, preserved in looseleaf form, or in such other form as the City Clerk may consider most expedient. It shall be the express duty of the City Clerk, or someone authorized by him, to insert in their designated places all amendments or ordinances which indicate the intention of the Board of Commissioners to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which may be from time to time repealed by the Board of Commissioners. Said copy of such Code shall be available for all persons desiring to examine same and shall be considered the official Code of Ordinances of the City of Lexington.

Section 13. Repeal. All ordinances, or parts of ordinances in conflict herewith are, to the extent of such conflict, hereby repealed.

Section 14. Effective Date. This ordinance shall take effect and be in full force on the thirtieth day after its final passage, approval and publication as required by law.

Given first reading on this 15th day of October, 1959.

Given second reading and passed on this 22nd day of October, 1959.

/s/ Shelby C. Kinkead

Mayor ATTEST:

SEAL

/s/ Mary M. Moore

Acting City Clerk

PUBLISHED: October 24, 1959-lt

Ordinance Adopting Republication

ORDINANCE NO. 205-81

An Ordinance Adopting and Enacting a Republication and Recodification of the Code of Ordinances of the Lexington-Fayette Urban County Government; Repealing the Previous Code of Ordinances, Except for Chapter 8 and Sections 6-1 Through 6-46.2 of Chapter 6; Providing That All Other Ordinances Not Contained in the Prior Code of Ordinances Shall Not Be Repealed or Affected by this Ordinance; Providing for the Manner of Amending the Code of Ordinances; and Providing a Penalty for the Violation Thereof.

WHEREAS, the Mayor did appoint a Committee to revise the Code of Ordinances, consisting of Eleanor Leonard, Kathryn W. Johnson, Richard V. Murphy, and John R. Cook, Jr., to review the existing Code of Ordinances and to determine which portions needed to be changed in light of merger and in light of other changes which have occurred through the years; and

WHEREAS, this Committee did revise the Code of Ordinances, and this Council did authorize the revised draft to be published in advance form; and

WHEREAS, the advance copies have been received by this Council, and this Council deems that they are ready for adopting and republication.

Now, Therefore, Be It Ordained by the Council of the Lexington-Fayette Urban County Government:

Section 1. The Code of Ordinances, attached hereto and incorporated by reference herein, consisting of Chapters 1 through 21, each inclusive, is hereby adopted and enacted as the "Code of Ordinances, Lexington-Fayette Urban County Government," except that Chapter 8 and Sections 6-1 through 6-46.2 of the prior Code of Ordinances are not published in said attached Code of Ordinances but shall remain in full force and effect until they are amended or readopted by this Council.

Section 2. The prior Code of Ordinances of the Lexington-Fayette Urban County Government, in effect prior to April 16, 1981, is hereby repealed, except that Chapter 8 and Sections 6-1 through 6-46.2 of Chapter 6 of said Code shall remain in effect as mentioned in Section 1 above.

Section 3. As the Code of Ordinances being adopted today is currently printed as of April 16, 1981, all ordinances amendatory of the Code passed after April 16, 1981, shall remain in full force and effect, and shall be deemed to be incorporated in such Code.

Section 4. The repeal of the prior Code of Ordinances, as provided for in Section 2 above, shall affect only ordinances which were incorporated into and printed as part of the prior Code of Ordinances. No other ordinance or resolution passed on or prior to the effective date of this ordinance shall be repealed or shall be affected in any way by the adoption of this Code of Ordinances. In amplification thereof, the repeal provided for in Section 2 hereof shall not affect:

(a) Any offense or act committed or done on [or] any penalty or forfeiture incurred or any contract or right established of [or] accruing before the effective date of this ordinance.

(b) Any ordinance promising or guaranteeing the payment of money for the urban county government, or authorizing the issuance of any bonds of the urban county government, or any evidence of the urban county government's indebtedness, or any contract or obligation assumed by the urban county government.

(c) Any right or franchise granted by the urban county government to any person, firm or corporation.

(d) Any ordinance dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way in the urban county.

(e) Any appropriation ordinance or any ordinance levying any tax.

(f) Any ordinance establishing and prescribing street or sidewalk grades.

(g) Any ordinance providing for local improvements or assessing taxes or fees therefor.

(h) Any ordinance establishing subdivision regulations or dedicating or accepting any plat, subdivision, public way or public improvement in the urban county.

(i) Any zoning ordinance or any ordinance amending the zoning map or zoning or rezoning any specific property.

(j) Ordinances prescribing traffic or parking regulations for specific locations, not inconsistent with such Code.

(k) Any ordinance relating to officers or employees not embodied in such Code.

(l) Any ordinance authorizing the execution of agreements with other governments or agencies.

(m) Any ordinance dealing with the electric, water, sewer or sewage disposal utilities of the urban county or fixing rates and charges for use of such facilities.

(n) Ordinances adopting or amending the Comprehensive Plan of the Lexington-Fayette Urban County Government.

(o) Any ordinance amendatory of the Code of Ordinances enacted after April 16, 1981.

(p) Any other ordinance or resolution which was not incorporated into or published as a part of the Code of Ordinances.

Section 5. The repeal of the prior Code of Ordinances shall not be construed to revive any ordinance or part of an ordinance which is repealed by this ordinance.

Section 6. The advance copy of the Code of Ordinances attached hereto and incorporated by reference shall become a part of the permanent records of the Lexington-Fayette Urban County Government. The Clerk of the

Urban County Council is hereby authorized to direct a final printing of all the provisions contained in the advance copy, and to prepare or have prepared a table of contents, preface, index, comparative tables, and any other provisions or documents which may be useful and helpful to be published with the Code of Ordinances.

Section 7. That whenever in such Code an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in such Code the doing of any act is required or the failure to do any act is declared to be unlawful, and no specific penalty is provided therefor, the violation of any such provision of such Code shall be punished by a fine of five dollars ($5.00) as provided in Section 1-8 of the Code.

Section 8. That any and all additions and amendments to such Code, when passed in such form as to indicate the intention of the urban county government to make the same a part thereof, shall be deemed to be incorporated in such Code so that reference to the "Code of Ordinances, Lexington-Fayette Urban County Government," shall be understood and intended to include such additions and amendments.

Section 9. That in case of the amendment of any section of such Code for which a penalty is not provided, the general penalty as provided in Section 4 [7] of this ordinance, and Section 1-8 of such Code shall apply to the section as amended; or, in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty, is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Section 10. That upon final printing of the Code, three copies of such Code shall be kept on file in the Office of the Council Clerk preserved in looseleaf form, or in such other form as the Council Clerk may consider most expedient. It shall be the express duty of the Council Clerk, or someone authorized by such officer, to insert in such copies, and in their designated places, all amendments or ordinances which indicate the intention of the Urban County Government to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such copies all provisions which may be from time to time repealed by the Urban County Government. Such copies shall be available for all persons desiring to examine the same during normal business hours.

Section 11. That it shall be unlawful for any person to change or alter, by additions or deletions, any part or portion of such Code, or to insert or delete pages or portions thereof, or alter or tamper with such Code in any manner whatsoever which will cause the law of the Urban County Government to be misrepresented thereby. Any person violating this section shall be punished as provided in Section 1-8 of such Code, and in Section 4 [7] of this ordinance.

Section 12. This ordinance shall become effective on the date of its passage.

PASSED URBAN COUNTY COUNCIL: November 12, 1981.

/s/ James G. Amato

Mayor ATTEST:

/s/ Kathryn W. Johnson

Clerk of Urban County Council

PUBLISHED: November 18, 1981-lt

Ordinance Adopting Republication of 1999

ORDINANCE NO. 63-2000

An Ordinance Adopting and Enacting a New Code of Ordinances for the Lexington-Fayette Urban County Government; Providing for the Repeal of Certain Ordinances Not Included Therein; Providing a Penalty for the Violation Thereof; Providing for the Manner of Amending Such Code; and Providing When Such Code and This Ordinance Shall Become Effective.

Be it Ordained by the Council of the Lexington-Fayette Urban County Government:

Section 1. That the Code entitled "Code of Ordinances, Lexington-Fayette Urban County Government," published by Municipal Code Corporation, consisting of Chapters 1 through 25, each inclusive, which is attached hereto and incorporated herein by reference, is adopted.

Section 2. That all codified ordinances of a general and permanent nature enacted on or before April 22, 1999, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in Section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this Ordinance.

Section 4. That unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance of the Urban County Government shall be punished by a fine of five dollars ($5.00). Each act of violation and each day upon which any such violation shall occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the Urban County Government may pursue other remedies including, but not limited to, civil penalties, abatement of nuisances, injunctive relief and revocation of licenses or permits.

Section 5. That additions and amendments to the Code when passed in such form as to indicate the intention of the Urban County Council to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. That Ordinances adopted after April 22, 1999, that amend or refer to ordinances that have been codified in the Code shall be construed as if they amend or refer to like provisions of the Code.

Section 7. That this Ordinance shall become effective on the date of its passage.

PASSED URBAN COUNTY COUNCIL: March 9, 2000.

/s/ Pam Miller

Mayor ATTEST:

/s/ Liz Damrell

Clerk of Urban County Council

PUBLISHED: March 15, 2000

TABLE OF CONTENTS

Officials of the Urban County of Lexington-Fayette, Kentucky At the time of this Republication. 3
Preface. 5
Ordinance Adopting Code. 7
Ordinance Adopting Republication. 13
Ordinance Adopting Republication of 1999. 17
Part I. CHT:1
Charter. CHT:1
Article 1. General Provisions CHT:7
Article 2. Services Districts and Taxing Districts CHT:7
Article 3. Powers of the Lexington-Fayette Urban County Government CHT:11
Article 4. The Urban County Council CHT:14
Article 5. The Mayor CHT:19
Article 6. Executive Departments and the Office of Administrative Services CHT:25
Article 7. Boards, Commissions and Authorities CHT:32
Article 8. Budget and Financial Matters CHT:39
Article 9. Personnel and Pension Systems CHT:45
Article 10. Urban County Courts CHT:49
Article 11. Functions of Constitutional County Officers CHT:51
Article 12. Conduct of Elections CHT:55
Article 13. Miscellaneous Provisions CHT:56
Article 14. Amending the Charter CHT:58
Article 15. Adoption of the Charter and Interim Provisions CHT:59
Article 16. Code of Ethics CHT:64
Appendix A. Council Districts CHT:66
Part II. Code of Ordinances CD1:1
Chapter 1. General Provisions CD1:1
Chapter 2. Administration CD2:1
Article I. In General CD2:13
Article II. Lexington-Fayette County Human Rights Commission CD2:32
Article III. Reserved CD2:39
Article IV. Masterson Station Park Advisory Board CD2:39
Article V. Environmental Commission of Lexington-Fayette County CD2:42
Article VI. Citizens' Transportation Advisory Commission CD2:44
Article VII. County Cemetery Board CD2:46
Article VIII. Reserved CD2:48

Article IX. Neighborhood Center Boards CD2:48
Article X. Reserved CD2:50
Article XI. Reserved CD2:50
Article XII. Tourist and Convention Commission CD2:50
Article XIII. Parking Authority CD2:53
Article XIV. Senior Services Commission CD2:57
Article XV. "Picnic with the Pops" Commission CD2:60
Article XVI. Memorial Tree Fund CD2:62
Article XVII. Reserved CD2:63
Article XVIII. Raven Run Citizens Advisory Board CD2:63
Article XIX. Reserved CD2:64
Article XX. Domestic Violence Prevention Board CD2:64
Article XXI. Lyric Theatre and Cultural Arts Center Corporation CD2:69
Article XXII. Reserved CD2:70
Article XXIII. Roadways Review Committee CD2:71
Article XXIV. Sister Cities Programs Commission CD2:72
Article XXV. Reserved CD2:74
Article XXVI. Plant Closing Committee CD2:74
Article XXVII. Reserved CD2:75
Article XXVIII. Lexington Children's Museum, Inc. CD2:75
Article XXIX. Carnegie Literacy Center, Inc. CD2:77
Article XXX. Greenspace Trust CD2:78
Article XXXI. Housing and Support Services Commission CD2:83
Article XXXII. Lexington-Fayette Urban County Criminal Justice Commission CD2:86
Article XXXIII. Reserved CD2:88
Article XXXIV. Citizens' Transit Advisory Board CD2:88
Article XXXV. Court-Appointed Special Advocate Board CD2:89
Article XXXVI. Bluegrass Crimestoppers, Inc. CD2:91
Article XXXVII. Community Partnership Action Council CD2:92
Article XXXVIII. Parks and Recreation Advisory Board CD2:94
Article XXXIX. Town and Gown Commission CD2:98
Article XL. Downtown Development Authority CD2:101
Article XLI. Internal Audit Board CD2:103
Article XLII. Arts Commission CD2:105
Article XLIII. Access Lexington Commission CD2:109
Article XLIV. Corridors Commission CD2:111
Article XLV. Affordable Housing Governing Board CD2:113
Article XLVI. Homelessness Prevention and Intervention Board CD2:118
Article XLVII. Mayor's International Affairs Advisory Commission CD2:121

Article XLVIII. Commission on Veterans' Affairs CD2:124
Article XLIX. Industry Authority CD2:127
Article L. Racial Justice and Equity Commission CD2:130
Article LI. Opioid Abatement Commission CD2:132
Chapter 2A. Airports and Aircraft CD2A:1
Article I. In General CD2A:3
Article II. Helicopters CD2A:4
Chapter 2B. Code Enforcement Administrative Hearing Boards CD2B:1
Chapter 3. Alcoholic Beverages CD3:1
Chapter 4. Animals and Fowl CD4:1
Article I. In General CD4:3
Article II. Dogs CD4:10
Article III. Horse-Drawn Vehicles CD4:25
Chapter 5. Buildings and Building Regulations CD5:1
Article I. In General CD5:5
Article II. Wrecking, Moving, etc., Buildings CD5:23
Article III. Building Permits CD5:26
Article IV. Electricity CD5:34
Division 1. Generally CD5:34
Division 2. Licensing of Electricians CD5:35
Division 3. Inspections CD5:40
Article V. Protection of Survey Monuments CD5:41
Article VI. Contractors CD5:43
Article VII. Relocation Assistance Program CD5:51
Article VIII. Emergency Temporary Relocation Assistance Program for Tenants CD5:53
Chapter 5A. Civil Defense: Civil Emergencies CD5A:1
Article I. Civil Defense CD5A:3
Article II. Civil Emergencies CD5A:3
Chapter 6. Employees and Pensions CD6:1
Articles I—III. Reserved CD6:5
Article IV. Pensions—Other Than Police and Firemen CD6:5
Division 1. Ordinance Number 3590 and Amendments CD6:5
Division 2. Ordinance Number 1018 and Amendatory Ordinance Number 2479 ..... CD6:22
Chapter 7. Finance and Taxation CD7:1
Article I. In General CD7:3
Article II. Property Assessment or Reassessment Moratorium Program CD7:9
Article III. Property Conveyance and Leaseback Guidelines CD7:12
Article IV. Abandoned Property CD7:16
Article V. Budget Amendments CD7:18

Chapter 8. Mining and/or Quarrying CD8:1
Chapter 8A. Blasting CD8A:1
Chapter 9. Fire Prevention CD9:1
Chapter 9A. Fireworks Enforcement Code CD9A:1
Chapter 10. Health and Food Regulations CD10:1
Article I. In General CD10:5
Article II. Food-Handling Establishments CD10:8
Article III. Meat CD10:10
Article IV. Milk CD10:13
Chapter 11. Health and Sanitation CD11:1
Article I. In General CD11:3
Article II. Diseases CD11:3
Division 1. Generally CD11:3
Division 2. Venereal Diseases CD11:9
Chapter 12. Housing CD12:1
Article I. In General CD12:3
Article II. Public Nuisances CD12:23
Article III. Riparian Areas CD12:26
Article IV. Blighted, Deteriorated, and Vacant Properties CD12:28
Chapter 13. Licenses and Regulations CD13:1
Article I. In General CD13:5
Article II. Special Licenses And Regulations CD13:29
Article III. Precious Metals Dealers CD13:54
Article IV. Alarm System Businesses CD13:57
Article V. Short Term Rentals CD13:67
Article VI. Medicinal Cannabis Businesses CD13:76
Chapter 13A. Minimum Wage CD13A:1
Chapter 14. Offenses and Miscellaneous Provisions CD14:1
Chapter 15. Peddlers and Solicitors CD15:1
Chapter 16. Sewage, Garbage, Refuse and Weeds CD16:1
Article I. In General CD16:8
Article II. Refuse Collection CD16:28
Article III. Refuse Disposal CD16:45
Article IV. Nuisance Abatement CD16:47
Article V. Sanitary Services CD16:48
Article VI. Sanitary Sewer Charges and Fees CD16:73
Article VII. Sanitary Sewer Financial Assistance Plan CD16:86
Article VIII. Reserved CD16:89
Article IX. Infrastructure and Environmental Hearing Boards CD16:89

Article X. Stormwater Discharges CD16:91
Division 1. General CD16:91
Division 2. Maintenance of Privately Owned Stormwater Controls CD16:92
Division 3. High-Risk Industrial Facilities and High Risk Commercial Facilities CD16:94
Division 4. Illicit Discharges CD16:97
Division 5. Reduction of Soil Erosion CD16:101
Article XI. Sanitary Sewers—Private Infiltration and Inflow CD16:111
Article XII. Civil Fines and Enforcement CD16:113
Article XIII. Sanitary Sewer Capacity Assurance Program (CAP) CD16:121
Article XIV. Water Quality Management Fees CD16:127
Chapter 16A. Hazardous Materials CD16A:1
Chapter 17. Streets and Sidewalks CD17:1
Article I. In General CD17:7
Article II. Street Construction and Improvement CD17:37
Article III. Sidewalk, Curb and Gutter Construction and Improvement CD17:53
Article IV. Sidewalk Repair CD17:58
Article V. Driveway Construction CD17:60
Article VI. Sidewalk Replacement Financial Assistance CD17:65
Chapter 17A. Subdivisions CD17A:1
Chapter 17B. Street Trees CD17B:1
Article I. General Provisions CD17B:3
Chapter 17C. Public Rights-of-Way CH17C:1
Chapter 17D. Dockless Vehicles CD17D:1
Chapter 18. Traffic CD18:1
Article I. In General CD18:9
Article II. Traffic-Control Devices CD18:27
Article III. Parking Meters CD18:30
Article IV. Speed Regulations CD18:33
Article V. Turning and Passing Movements CD18:34
Article VI. One-Way Streets and Alleys CD18:37
Article VII. Special Stops and Yields CD18:37
Article VIII. Pedestrians CD18:39
Article IX. Stopping, Standing, Parking CD18:43
Division 1. Generally CD18:43
Division 2. Prohibited or Restricted CD18:45
Division 3. Loading and Unloading CD18:53
Article X. Bicycles CD18:56
Article XI. Violations, Penalties CD18:58
Article XII. Parking Citation Enforcement CD18:61

Article XIII. Pedestrian-Oriented Business Districts; Off-Street Parking Requirements. ... CD18:67
Chapter 18B. Snow Emergencies ... CD18B:1
Chapter 18C. Emergency Ambulance, Transportation Ambulance Licensing, Regulations ... CD18C:1
Chapter 19. Reserved ... CD19:1
Chapter 20. Zoning ... CD20:1
Chapter 21. Comprehensive Plan for Classified Civil Service System ... CD21:1
Chapter 22. Unclassified Civic Service ... CD22:1
Article I. In General ... CD22:3
Article II. Officers ... CD22:20
Article III. Temporary, Part-Time and Seasonal Positions ... CD22:33
Chapter 23. Divisions of Fire and Emergency Services and Police ... CD23:1
Chapter 24. Detention Center ... CD24:1
Article I. Reserved ... CD24:3
Article II. Operations ... CD24:3
Chapter 25. Ethics Act ... CD25:1
Chapter 26. Rural Land Management ... CD26:1
Article I. In General ... CD26:3
Article II. Rural Land Board ... CD26:4
Article III. Conservation Easements ... CD26:9
Article IV. Miscellaneous ... CD26:20
Chapter 27. Conservation Easements; Small Farm Conservation Easement Program ... CD27:1
Article I. In General ... CD27:3
Article II. Rural Land Board ... CD27:3
Article III. Small Farm Conservation Easements; Small Farm Conservation Easement Program ... CD27:4
Article IV. Miscellaneous ... CD27:10
Appendix A. Rules and Procedures of the Lexington-Fayette Urban County Council ... CDA:1
Chapter I. Organization of the Council ... CDA:5
Section 1. Members of Council ... CDA:5
Section 2. Appointed Staff ... CDA:9
Chapter II. Legislation ... CDA:13
Section 1. Legislative Authority ... CDA:13
Chapter III. Procedures ... CDA:19
Section 1. Meetings ... CDA:19
Section 2. Presiding Officer ... CDA:26
Section 3. Rules of Debate ... CDA:27
Section 4. Motions ... CDA:28
Section 5. Voting ... CDA:31
Section 6. Budget Amendments ... CDA:33

Chapter IV. Committees CDA:33
Section 1. General Rules CDA:33
Section 2. Committee Rules and Procedures CDA:40
Chapter V. Parliamentary Procedure and Application of Rules CDA:42
Section 1. Parliamentary Procedure and Application of Rules CDA:42
Supplement A. Role of Citizen's Advocate CDA:43
Section 1. Guidelines for the Office of Citizens' Advocate CDA:43
Supplement B. Council Guidelines for Use of Other LFUCG Departments CDA:47
Section 1. Guidelines for the Use of Law Department Personnel CDA:47
Section 2. Guidelines for Use of Lex TV Services CDA:48
Supplement C. Neighborhood Development Funds and Capital Projects Policy CDA:50
Section 1. Rules and Procedures for Neighborhood Development Funds CDA:50
Section 2. Council Capital Project Expenditure Policy CDA:52
Supplement D. Council Best Practices CDA:56
Section 1. Reserved CDA:56
Section 2. Taking and Vacating Office CDA:56
Section 3. Additional Reference Documents CDA:56
Section 4. Council Brand Standards CDA:57
Code Comparative Table—Code of Ordinances. CCT:1

Part I

Charter[1]

Article 1. General Provisions

1.01. Merger of County and City Governments; Creation of the Lexington-Fayette Urban County Government; Name.
1.02. Territorial Limits of the Merged Government.

Article 2. Services Districts and Taxing Districts

2.01. Services Districts and Their Areas.
2.02. Services Districts and Taxing Districts.
2.03. Expansion of Full Urban Services District.
2.04. Creation of Partial Urban Services Districts.
2.05. Functions of the General Services District.
2.06. Additional Functions To Be Provided in the Full Urban Services District.
2.07. Functions of Partial Urban Services Districts.
2.08. General Powers of the Council to Redefine the Services and Activities of the Services Districts.

Article 3. Powers of the Lexington-Fayette Urban County Government

3.01. General.
3.02. Specific Powers.
3.03. Construction.

Article 4. The Urban County Council

4.01. Urban County Council Created; Number of Members.
4.02. Districts Established.
4.03. Redistricting Council Districts.
4.04. Terms of Office; Times and Nature of Elections.
4.05. Qualifications and Compensation of Council Members.
4.06. Vacancies.
4.07. Presiding Officer; Rules of Procedure; Meetings.
4.08. Powers.
4.09. Independent Audit.

1. **Editor's note(s)**—The Charter of the Merged Government is printed herein as adopted by the voters of Fayette County. Any editorial emendations made by the editor for purposes of clarity are included in brackets.

4.10. Council Clerk and Other Council Employees.
4.11. Citizens' Advocate.

Article 5. The Mayor

5.01. General.
5.02. Election; Term of Office; and Qualifications.
5.03. Compensation.
5.04. Power and Authority.
5.05. Veto Powers.
5.06. Vacancy in the Office of the Mayor.
5.07. Mayor's Absence or Incapacity.
5.08. The Mayor's Staff.
5.09. Chief Administrative Officer.
5.10. Powers and Duties of the Chief Administrative Officer.

Article 6. Executive Departments and the Office of Administrative Services

6.01. General Provisions.
6.02. Principal Officers of the Executive Branch.
6.03. Division Directors and Employees.
6.04. Office of Administrative Services.
6.05. Department of Law.
6.06. Department of Finance.
6.07. Department of Public Safety.
6.08. Department of Parks and Recreation.
6.09. Department of Social Services.
6.10. Department of Sanitation and Public Works.
6.11. Department of Housing and Community Development.
6.12. General Powers of the Council Over Departments, Divisions and Offices.

Article 7. Boards, Commissions and Authorities

7.01. General Provisions.
7.02. Terms, Compensation and Qualifications of Members.
7.03. Civil Service Commission.
7.04. Pension Fund Boards.
7.05. Budget Commission.
7.06. Assessment Appeals.
7.07. Civil Defense.
7.08. Parks and Recreation.
7.09. Homes for the Aged.
7.10. Social Services.

7.11. Housing Appeals.
7.12. Public Housing.
7.13. Urban Renewal.
7.14. Planning Commission.
7.15. Zoning Adjustment.
7.16. Board of Health.
7.17. Human Rights Commission.
7.18. Airport Board.
7.19. Library Board.
7.20. Transit Authority.

Article 8. Budget and Financial Matters

8.01. Fiscal Year.
8.02. Budget Preparation.
8.03. Scope of the Budgets.
8.04. Adoption of the Annual Operating Budget.
8.05. Adoption of the Annual Capital Improvements Budget.
8.06. Levy of Taxes.
8.07. Homestead Exemptions.
8.08. Independent Audit.
8.09. Borrowing and Indebtedness.
8.10. General Obligation and Revenue Bonds.
8.11. Debt Service and Debt Limitation.

Article 9. Personnel and Pension Systems

9.01. General.
9.02. The Classified Civil Service.
9.03. Rules and Regulations Governing the Classified Civil Service.
9.04. Adoption of a Classified Civil Service Plan for the Merged Government.
9.05. Administration of the Classified Civil Service.
9.06. The Unclassified Civil Service.
9.07. Employee Pension Plans Continued.
9.08. Membership in Pension Plans.
9.09. Administration of Pension Plans.
9.10. Other Retirement Systems.
9.11. Construction.

Article 10. Urban County Courts

10.01. General.
10.02. Status of the Circuit Courts.

10.03. Quarterly Court.
10.04. County Court.
10.05. Justices' Courts.
10.06. County Judge as Administrator of the Urban County Courts.
10.07. The Commonwealth Attorney and the County Attorney as Agents of the Circuit and Urban County Courts.

Article 11. Functions of Constitutional County Officers

11.01. County Judge.
11.02. Fiscal Court.
11.03. County Court Clerk.
11.04. County Attorney.
11.05. Sheriff.
11.06. Property Valuation Administrator.
11.07. Other Constitutional County Officers.
11.08. Construction.

Article 12. Conduct of Elections

12.01. General Elections.
12.02. Primary Elections.
12.03. Qualified Voters.
12.04. Public Questions.
12.05. Applicability of General State Law.

Article 13. Miscellaneous Provisions

13.01. Titles and Subtitles Not Part of Charter.
13.02. Severability Clause.
13.03. Fidelity Bonds.
13.04. Federal, State and Other Aid.
13.05. Authority To Deal With Federal and State Agencies.
13.06. Fayette County School District.
13.07. Water Districts.

Article 14. Amending the Charter

14.01. General.
14.02. Amendment Proposals.
14.03. Referendum; Effective Date.
14.04. Charter Revision Commission.

14.05. Construction.

Article 15. Adoption of the Charter and Interim Provisions

15.01. Adoption.
15.02. Election of the First Mayor and Council.
15.03. Effective Date.
15.04. Early Assumption of Limited Duties.
15.05. Extra Compensation.
15.06. Cooperation and Obligations of Former Governments.
15.07. Acting Chief Administrative Officer.
15.08. Acting Commissioners of Executive Departments.
15.09. Ordinances and Resolutions Continued.
15.10. Contracts, Obligations, and Legal Proceedings Continued.
15.11. Interim Fiscal Provisions.
15.12. Protection of Existing Employees.
15.13. Dissolution of Existing Governments.
15.14. Transfer of Records and Equipment.

Article 16. Code of Ethics

16.01. Declaration of Policy.
16.02. Conflict of Interest.
16.03. Disclosure.
16.04. Use of Public Property.
16.05. Penalties.
16.06. Contracts Voidable and Rescindable.
16.07. Board of Ethics.

Appendix A. Council Districts

Article 1

General Provisions

1.01. Merger of County and City Governments; Creation of the Lexington-Fayette Urban County Government; Name.

The governmental and corporate functions now vested in the City of Lexington, a municipal corporation of the second class operating under the Constitution and Laws of the Commonwealth of Kentucky, are hereby merged with the governmental and corporate functions of the County of Fayette, operating under the Constitution and Laws of the Commonwealth of Kentucky. Said merger creates a single government which replaces and supersedes the governments of the City of Lexington and Fayette County. The name of the new government shall be the Lexington-Fayette Urban County Government, hereinafter sometimes referred to as the "Merged Government," or the "Urban County Government."

1.02. Territorial Limits of the Merged Government.

The Lexington-Fayette Urban County Government shall have power and jurisdiction throughout the total area embraced by the official boundaries of the County of Fayette as the same may be fixed upon the date this Charter is put into effect.

Article 2

Services Districts and Taxing Districts[1]

2.01. Services Districts and Their Areas.

For the general purposes of providing that all property owners in the territory of the Merged Government shall pay an ad valorem tax rate reasonably based upon the services provided by said government; and to further provide that no such property owner shall, insofar as reasonably possible, pay for additional non-revenue producing services and benefits until such time as the services and benefits are being provided to him by the Merged Government; the territory of the Merged Government shall be divided into a General Services District, a Full Urban Services District, and such Partial Urban Services Districts as the Council of the Merged Government shall from time to time create or establish. Except as otherwise provided in Section 2.02 of this Charter, the ad valorem tax rate in any services district shall be the same for all property owners. The General Services District shall consist of the total area of the Merged Government as defined in Section 1.02 of this Charter. The Full Urban Services District shall initially consist of the total area embraced by the corporate boundaries of the City of Lexington, as

1. **Note(s)**—See Kentucky Constitution Section 172A and KRS 67A.150, 67A.850 and 67A.860, relating to additional requirements for provision of urban services.

fixed and established upon the date this Charter is put into effect. Partial Urban Services Districts shall consist of any area outside the Full Urban Services District designated by the Council under the conditions and limitations governing such districts set forth in this Charter.

Note(s)—Sections 2.01, 2.02, 3.02(1) and 8.06—Insofar as these provide differentials on personal property taxes within the territory of the Urban County Government they violate the uniformity requirement of Kentucky Constitution Section 171. Personal property tax rates must be uniform throughout Fayette County, the territory of the merged government. Jacobs v. Lexington-Fayette Urban County Government, Ky., 560 S.W.2d 10, 14 (1978).

2.02. Services Districts and Taxing Districts.

For purposes of levying and collecting ad valorem taxes on property, each of the services districts described in this Charter shall constitute a separate tax district within which the Merged Government shall levy and collect taxes in accordance with the kind, type, level, and character of the services provided by the Merged Government in each of the services districts. The initial rate of ad valorem taxation on property located within the General Services District shall be the same as that imposed by the County of Fayette on the date this Charter is put into effect. Except as otherwise provided in this Section, the initial rate of ad valorem taxation on property located within the Full Urban Services District shall be the same as that imposed on property located within the City of Lexington by the County of Fayette and the City of Lexington on the date this Charter is put into effect. The rate of ad valorem taxation on property located within any Partial Urban Services District created or established by the Merged Government Council shall be governed by the conditions and limitations imposed in Section 2.04 of this Charter.

In the event that any area or property located within the initial Full Urban Services District is not provided with one or more of the additional services covered under Section 2.06 of this Charter, the Council of the Merged Government shall reduce the rate of ad valorem taxation to a level commensurate with the kind, level, and type or character of services provided.

2.03. Expansion of Full Urban Services District.

The Council may, from time to time, expand or extend the territorial limits of the Full Urban Services District to include all or portions of any other services district.

A. In no case shall the Council expand or extend the territorial limits of the Full Urban Services District until:

    1. The Council has prepared and adopted a resolution specifying its intention to expand or extend said district, the area to be included in the Full Urban Services District, the findings of the Council concerning the need for the additional services of the Full Urban Services District in the area specified, and the ability of the Merged Government to extend such additional services to the area specified;

2. The Council has published the contents of said resolution at least once a week for a period of three (3) consecutive weeks in a newspaper of general circulation in the territory of the Merged Government;

3. The Council has conducted at least one public hearing at a time and place other than a regular meeting of the Council following the publication of said resolution to inform and receive the views of all interested persons concerning the proposed expansion or extension of the Full Urban Services District; and

4. The Council has prepared and adopted an ordinance specifying the area to be included in the Full Urban Services District, the kind, type, level, and character of additional services to be provided by the Merged Government.

B. In no case shall an ordinance to expand or extend the Full Urban Services District become effective until such time as all services rendered by the Merged Government in the Full Urban Services District have been provided in the area in question.

2.04. Creation of Partial Urban Services Districts.

Recognizing the erratic boundary of the City of Lexington at the time this Charter was put into effect, and recognizing the various types and levels of services provided to citizens and property owners in the areas adjacent to the City of Lexington at the time this Charter was implemented, the Council of the Merged Government shall be empowered to create or establish one or more Partial Urban Services Districts into which one (1) or more of the services provided within the Full Urban Services District shall be expanded or extended.

A. In no case shall the Council create or establish a Partial Urban Services District until:

1. The Council prepares and adopts a resolution specifying its intention to create or establish a Partial Urban Services District, the area to be included in said district, the findings of the Council concerning the need for the additional service or services involved in the area specified, and the ability of the Merged Government to extend such service or services to the area specified;

2. The Council publishes the contents of said resolution at least once a week for a period of three (3) consecutive weeks in a newspaper of general circulation in the territory of the Merged Government;

3. The Council has conducted at least one (1) public hearing at a time and place other than a regular meeting of the Council following the publication of said resolution to inform and receive the views of all interested persons concerning the proposed creation and establishment of said Partial Urban Services District; and

4. The Council has prepared and adopted an ordinance specifying the area to be included in said district, the kind, type, level, and character of the service or services to be provided by the Merged Government.

B. In no case shall an ordinance to create or establish a Partial Urban Services District become effective until such time as the service or services specified in the ordinance have been provided in the area in question.

2.05. Functions of the General Services District.

Throughout the General Services District, the Lexington-Fayette Urban County Government shall furnish, provide and maintain all services rendered by the County of Fayette and the City of Lexington on the effective date of this Charter, except those additional services specified for the Full Urban Services District or those additional services provided in such Partial Urban Services Districts as the Council may from time to time establish. Among those services and activities to be furnished, provided, and maintained within the General Services District shall be: general administration, fire and police protection, courts, jails and other detention facilities, probation officers, child care, health and welfare services, parks and recreation, airports and such other public transportation as may be established, civil defense, planning and zoning, streets and highways, traffic engineering and control, public libraries, public housing, urban development and renewal, refuse disposal, licensing and inspection, building codes, electrical codes, housing codes, plumbing codes, water and air pollution control, agricultural services, and such other services and activities as may be provided for the general use or benefit of persons residing in the territory of the Merged Government.

The foregoing enumeration is intended as a list of those governmental services and activities which shall be initially performed by the Merged Government within the General Services District and shall not be construed to limit the right of the Merged Government to furnish, provide and maintain other governmental services throughout the General Services District as the Council may from time to time prescribe.

2.06. Additional Functions To Be Provided in the Full Urban Services District.

In addition to those services and activities furnished, provided and maintained in the General Services District, the Merged Government shall provide the following additional services within the Full Urban Services District: sanitary sewers, street lighting, street cleaning, garbage and refuse collection, and such additional fire and police protection as might be required.

The foregoing enumeration is intended as a list of those additional governmental services which shall be initially performed by the Merged Government within the Full Urban Services District and shall not be construed to limit the right of the Merged Government to furnish, provide and maintain other governmental services throughout the Full Urban Services District as the Council may from time to time prescribe.

2.07. Functions of Partial Urban Services Districts.

Pursuant to the provisions of Section 2.04 of this Charter, the Council may extend or expand one (1) or more of the services and activities provided within the Full Urban Services District. Any action by the Council to provide an additional urban service or services to an established Partial Urban Services District shall be construed as an act to create or establish a new Partial Urban Services District, and shall therefore be subject to the rules and procedures set forth in Section 2.04 of this Charter. Any action by the Council that will result in the expansion

or extension of all services and activities provided within the Full Urban Services District to an established Partial Urban Services District shall be construed as an act to expand or extend the Full Urban Services District, and shall therefore be subject to the rules and procedures set forth in Section 2.03 of this Charter.

2.08. General Powers of the Council to Redefine the Services and Activities of the Services Districts.

Nothing in this Charter shall limit the power of the Merged Government Council to redefine, add or reduce the services and functions to be provided within the General Services District or the Full Urban Services District, so long as such action on the part of the Council is applied uniformly throughout the territory of said services districts.

Note(s)—Sections 2.06-2.08—Sewers and additional fire and police protection have been deleted as additional urban services. See Ordinance No. 179-82.

Article 3

Powers of the Lexington-Fayette Urban County Government

3.01. General.

Pursuant to KRS 67A.040, the Lexington-Fayette Urban County Government shall have all powers and privileges which cities of the second class are, or may hereafter be, authorized or required to exercise under the Constitution and general laws of the Commonwealth of Kentucky. In addition, the Merged Government shall have:

(1) Such other powers and privileges which counties are, or may hereafter be, authorized or required to exercise under the Constitution and general laws of the Commonwealth of Kentucky; and

(2) Such other powers and privileges as urban county governments may be authorized or required to exercise under the Constitution and general laws of the Commonwealth of Kentucky.

Note(s)—See KRS 67A.060 and 67A.070 relating to powers of urban county governments.

3.02. Specific Powers.

The Merged Government shall have power and authority:

1. To levy and collect taxes upon all property taxable for state purposes within the territorial limits of the Merged Government not exempt by law from such taxation; and, to provide for reasonable differences in the rate of ad valorem taxation for the General Services District, the Full Urban Services District, and such Partial Urban Services Districts as may be created under the authority of this Charter.

2. To license, tax and regulate all privileges, occupations, trades, and professions authorized by law.

3. To make appropriations for the support of the Merged Government and provide for the payment of all debts and expenses of the Merged Government and the debts and expenses of the county and municipality of which it is the successor.

4. To borrow money for the purposes and in the manner prescribed in Article Eight of this Charter.

5. To purchase, lease, construct, maintain, or otherwise acquire, hold and operate any building or other property, real or personal, for any public purpose; and to sell, lease or otherwise dispose of any property, real or personal belonging to the Merged Government.

6. To exercise the power of eminent domain for any public purpose subject to such limitations and exceptions as are, or hereafter may be, prescribed by the Constitution and general laws of the Commonwealth of Kentucky.

7. To design, lay out, grade, pave, repair, clean and otherwise improve streets, roads, alleys, bridges, tunnels, and walkways, of the Merged Government; and to regulate the use thereof.

8. To provide for the creation and maintenance, building or purchase, and operation of waterworks, transportation facilities, public airports, bridges, and drainage systems, and any other public utility including, but not limited to, sewers and sewage disposal systems as authorized by law; to fix such rates and provide for the making of such charges and assessments as are deemed necessary for the proper furnishing of such services; and, to provide liens or penalties and withdrawal of service for refusal or failure to pay same.

9. To acquire, own, maintain and operate public parks, playgrounds, and other recreational facilities; and to equip and improve them with all suitable devices, buildings, and other structures.

10. To establish, erect, maintain, and operate facilities for the confinement, detention, and rehabilitation of persons convicted of the violation of the ordinances and laws of the Merged Government or the Commonwealth of Kentucky.

11. To establish, maintain, and operate public hospitals or contract with others for the care of the sick, the mentally ill and the destitute.

12. To establish, maintain, and support public libraries.

13. To pass and enforce by fines and penalties, if necessary, all such ordinances, not inconsistent with the law, as are expedient in maintaining the peace, and good government, health and welfare of the inhabitants of the Urban County and to prevent, abate and remove nuisances.

14. To establish, inspect, and regulate weights and measures and provide for the regulation, inspection and use of foods and other commodities as provided by law.

15. To regulate the alteration, destruction, and erection of buildings and all other structures in the interest of the health, safety, and welfare of the public; to adopt building, housing, plumbing, gas, electrical, and other codes; and to regulate, by license or otherwise, all building trades; and to grant permits for the construction, alteration and erection of buildings and all other structures.

16. To grant franchises and rights-of-way through the streets and roads and other public property.

17. To regulate the operation of all vehicles and exercise control over all traffic, vehicular and pedestrian; including, parking on and under the public streets, roads, alleys, and walkways of the Merged Government.

18. To collect and dispose of garbage, junk and other refuse; and to regulate the collection and disposal of garbage, junk and other refuse by others.

19. To regulate the emission of smoke or other exhausts which pollute the air; and to prevent the pollution of natural streams which flow within the territorial limits of the Merged Government.

20. To provide for the redevelopment, renewal or rehabilitation of blighted, deteriorated, or dilapidated areas.

21. To make and enforce zoning regulations.

22. To provide for the protection of, and prevent cruelty to, children and animals.

23. To establish, organize, maintain, and operate police and fire services within the territorial limits of the Merged Government.

24. To create, alter or abolish departments, boards, commissions, offices, and agencies, and to confer upon same necessary and appropriate authority for carrying out all powers and duties assigned thereto.

25. To enter into contracts and agreements with other governmental entities and also private persons, firms, and corporations with respect to furnishing services.

Note(s)—The Charter is the structure of the Urban County Government; the powers of the Urban County Government come from the General Assembly. Holsclaw v. Stephens, Ky., 507 S.W.2d 462, 471 (1974); Candler v. Blevins, Ky., 922 S.W.2d 376 (1996); and Blakely v. Blevins, Ky., 922 S.W.2d 378 (1996).

3.03. Construction.

The powers of the Merged Government shall be construed broadly in favor of said government. The specific mention, or failure to mention, particular powers in this Charter shall not be construed as limiting in any way the general powers of the Merged Government as set forth in this Charter.

Article 4

The Urban County Council

4.01. Urban County Council Created; Number of Members.

The legislative authority of the Lexington-Fayette Urban County Government, except as otherwise specified in this Charter, shall be vested in the Urban County Council, sometimes hereinafter referred to as the "Council." The size of the Council shall be set at fifteen (15) members, including twelve (12) members elected from single-member districts and three (3) members elected at-large. Qualified voters in each of the twelve (12) council districts shall elect one (1) member of the Council. At-large members shall be elected by the qualified voters of the entire Urban County.

4.02. Districts Established.

There shall be twelve (12) single-member council districts within the territorial limits of the Merged Government. The boundaries, population and numerical designation of the twelve (12) initial council districts are specified in Appendix A of this Charter and shall remain in effect until altered or changed in accordance with provisions set forth in this Charter.

4.03. Redistricting Council Districts.

Following the official publication of each decennial census by the United States Bureau of the Census for the area embraced by the Merged Government, the Council shall, if necessary, adopt an ordinance to redistrict the twelve (12) council districts in accordance with the rules and provisions contained herein. The Council shall determine, on the advice of the planning agency designated in this Charter, the population of each existing council district. The Council shall then prepare and adopt a redistricting ordinance which shall provide for population equality among council districts as near as reasonably practicable. The Council shall not create or establish a council district that is not compact and contiguous.

Within the limits established above, the Council may take cognizance of such factors as "community or diversity of interest," "relative rates of population growth" based on official United States census returns, and "patterns of social and economic interests."

In no case shall the Council fail to pass a redistricting ordinance, if necessitated by the provisions of this Charter, later than April 1 preceding the primaries for any regular election in which a seat on the Council of the Merged Government is at stake. Should the Council fail to comply with this requirement, the Circuit Court of Fayette County shall prescribe a redistricting plan in accordance with the rules and limitations of this Charter.

Note(s)—The boundaries of the council districts were redistricted by Ordinances No. 123-82 and No. 72-92. See KRS 67A.023.

4.04. Terms of Office; Times and Nature of Elections.

Council members elected from single-member districts shall serve for a term of two (2) years beginning on the first Monday in January following their election. In no case shall any member elected from a single-member district serve more than six (6) consecutive terms as a district council member. At-large council members shall serve a term of four (4) years beginning on the first Monday in the January following their election. In no case shall an at-large council member serve more than three (3) consecutive terms as an at-large council member.

All elections for members of the Council shall be conducted on a non-partisan basis in November of odd numbered years according to the rules and provisions set forth for elections in Article Twelve of this Charter.

(Ord. No. 66-87, § 1, 4-16-87)

Note(s)—

(1) This section was proposed for amendment by Ordinance No. 66-87; the amendment was adopted by the voters on November 3, 1987; and accordingly this section was amended effective January 1, 1988. A second amendment was proposed for this section by Ordinance No. 83-99 and it will be submitted to the voters on November 2, 1999.

(2) The year in which elections for council members are held was changed to even numbered years, pursuant to an amendment to the Kentucky Constitution proposed by 1992 Ky. Acts Ch. 168 and ratified by the voters on November 3, 1992.

4.05. Qualifications and Compensation of Council Members.

No persons shall be eligible to serve as a member of the Urban County Council unless he or she shall be a qualified voter and a resident of the County of Fayette or the Merged Government for a period of at least one (1) year prior to filing as a candidate for a seat on said Council. No persons shall be eligible to serve as a district council member unless he or she shall have also resided within the district for at least six (6) months immediately prior to filing as a candidate for a seat on the Council. A district council member must continue to reside within the district from which he or she was elected throughout the term of office.

All duly elected members of the Council shall receive an annual salary to be fixed by the Council, which shall not exceed $6,000 per annum, or the maximum set by the General Assembly of Kentucky for Urban County Governments. In no case shall any change in the annual salary of council members voted by the Council become effective during the current term of any council member.

Note(s)—The salary of council members has been changed pursuant to the increase or decrease in the consumer price index using 1972 as a base year pursuant to Ordinances No. 303-77, 118-81, 245-81, 280-85, 239-89, and 95-97.

4.06. Vacancies.

The office of a district council member shall become vacant upon the death, resignation, or ineligibility due to change of residence to a place outside the boundaries of the district from which he or she was elected as defined under the provisions of this Charter. When a district council office becomes vacant, the Mayor of the Urban County Government shall, within thirty (30) days of establishing that a vacancy exists, appoint a successor to fill the vacancy for the remainder of the term. The Council may, within fifteen (15) days of such an appointment, disapprove the appointment of the Mayor by a vote of two-thirds (2/3) of its members. Upon a vote of disapproval, the Mayor shall continue to appoint a successor to fill the vacancy in question. In no case shall the Mayor appoint any individual to fill a specified district council vacancy who has been disapproved by the Council to fill said vacancy.

The office of an at-large council member shall become vacant upon the death, resignation, or ineligibility due to a change of residence to a place outside the territory of the Lexington-Fayette Urban County Government. When an at-large council office becomes vacant less than two (2) years prior to the filing date of the next general election for at-large seats on the Council, the Mayor shall, subject to the provisions and limitations governing vacancies in a district council seat, appoint a successor to fill out the remainder of the term of the at-large member. When an at-large council office becomes vacant more than two (2) years prior to the filing date of the next general election for at-large seats on the Council, the Mayor shall, subject to the provisions and limitations governing vacancies in a district council seat, appoint a successor to fill out the remainder of the term of the at-large member until the installation of the Council following the next general election of any member of the Council. In the event such an appointment is made, the Mayor shall call a special election to fill the remaining term of the at-large vacancy to be conducted on the date and time of the next general Urban County Government election in which any seat on the Council is at stake.

4.07. Presiding Officer; Rules of Procedure; Meetings.

The presiding officer of the Council shall be the Chief Executive Officer of the Merged Government, to be known as the "Mayor." As presiding officer, the Mayor shall have a vote on all matters, substantive and procedural, only in the case of a tie vote among the elected members of the Council. In no case shall the Mayor, as presiding officer, be denied the right of introducing, presenting or otherwise inserting into the record of the Council any resolution, recommendation, or proposed ordinance.

In the absence of the Mayor, the presiding officer of the Council shall be the Vice-Mayor, who shall be the at-large member of the Council who received the highest number of votes in the last preceding general election of the Merged Government at which at-large Council members were elected. In the event the at-large member receiving the highest number of votes in the general election should be or become unwilling, unqualified or unable to serve, the at-large member who received the next highest number of votes and who is willing and qualified to serve shall become Vice-Mayor. In the event of a tie between at-large members as to the highest number of votes received in the general election, the Vice-Mayor shall be chosen by a majority vote of the Council from among the tied at-large members of the Council at a special meeting of the Council immediately following the installation of the Council members elected in the general election of the Merged Government at which at-large Council members were

elected. The Vice-Mayor shall serve for a term of four (4) years and shall assume office on the first Monday in January following his or her election. The powers of the Vice-Mayor as presiding officer of the Council shall be the same as those prescribed for the Mayor, except that the Vice-Mayor shall be entitled to vote on all matters, substantive and procedural, when serving as presiding officer of the Council.

Official action by the Council shall be by the adoption of ordinances and resolutions only. No ordinance or resolution shall be passed until it has been read on at least two (2) separate days; except that the Council may, by two-thirds (2/3) vote of the members, vote to suspend the rules and proceed with the second reading, except in matters pertaining to appropriations, taxation or finance. All official actions by the Council, except as otherwise provided in this Charter, shall be by a vote of a majority of all Council members. Voting, except on procedural motions, shall be by roll call and the yeas and nays shall be recorded in the official record of the Council.

No official action shall be taken by the Council except in meetings open to the public; and the Council shall meet in regular, public meetings at least twice a month. The Council shall prescribe the time and place of all public meetings, provided that the time and place prescribed for regular public meetings shall not be changed except by a vote of two-thirds (2/3) of the members of the Council. All changes in the prescribed time and place of regular Council meetings must be advertised in a newspaper of general circulation in the area served by the Merged Government at least seven (7) days prior to the implementation of such change. A quorum for all meetings of the Council shall consist of not fewer than ten (10) of the fifteen (15) members of the Council.

Special meetings may be held on call of the Mayor, or a majority of the members of the Council, provided that: All members of the Council shall be given at least twenty-four (24) hours written notice; and the time and place of special meetings shall be published in a newspaper of general circulation at least twenty-four (24) hours prior to convening any special meeting.

Except as otherwise provided in this Charter, the Council shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. This record shall be a public record.

Note(s)—

(1) The portion of this section relating to the selection of a vice-mayor was proposed for amendment by petition of the voters; the amendment was adopted by the voters on November 3, 1987; and accordingly this section was amended effective January 1, 1990. The role of the vice-mayor is addressed in the council rules adopted by Resolution No. 55-79, as amended.

(2) The portions of this section relating to the time, place, notice and call of meetings have in some instances been superseded by KRS 61.805 et seq. The schedule for regular, public meetings of the council is set in Code of Ordinances Section 2-1.

(3) See also KRS 67A.070(3) relating to requirements for reading ordinances and resolutions; KRS 67A.070(3) relating to suspension of the rules and second reading of ordinances and resolutions; and Charter Section 5.05 and KRS 67A.070(4) relating to mayoral vetoes.

4.08. Powers.

All legislative powers of the Merged Government are vested in the Council, and the Council shall have the power to act legislatively with respect to all matters which are within the powers of the Merged Government. The term legislative power is to be construed broadly and shall include the power to review the budgets of, and appropriate money to, the Merged Government and such independent agencies as provided for in this Charter. The powers of the Council shall also include the power to levy taxes, subject to the limitations of this Charter and the laws of the Commonwealth of Kentucky.

The Council, or a committee of the Council, appointed under Council rules for establishing standing and temporary committees, shall have the power to make investigations into the affairs of the Merged Government and the conduct of any department, office or agency of the Merged Government. For this purpose, the Council, or such duly appointed committee of the Council, may subpoena witnesses, administer oaths, take testimony, and require the production of evidence under penalty to be established by the Council. It may, subject to official action by the Council, appropriate such sums as may be required to hire counsel or expert assistance for the purpose of conducting such investigations.

4.09. Independent Audit.

The Council shall provide for an annual independent audit of the accounts and financial transactions of the Merged Government. Such audit shall be made by an accountant or an accounting firm selected by the Council. No such accountant or firm, or member thereof, shall have any personal interest in the fiscal affairs of the Merged Government or any of its departments, agencies, or commissions. The final report of the independent audit shall be filed with the Council as soon as practicable after the close of the fiscal year, and said report shall be made part of the public record of Council proceedings.

4.10. Council Clerk and Other Council Employees.

The County Clerk shall be responsible for the keeping of all Council records and perform such other duties as the Council may from time to time designate. The Council may appoint such other employees as might be required to assist the County Clerk in the performance of those duties associated with the keeping of Council records. All appointments made under the provisions of this section shall be in accord with the civil service provisions of this Charter and the rules and regulations enacted pursuant thereto.

Note(s)—This section is invalid "to the extent that it provides the Council may appoint employees to assist the County Clerk and that such appointments shall be in accord with the civil service regulations." Holsclaw v. Stephens, supra, at 480-481.

4.11. Citizens' Advocate.

The Council shall, within one (1) year of the effective date of this Charter, create and establish an Office of Citizens' Advocate. It shall be the purpose of said office to provide the citizens of the Lexington-Fayette Urban County Government with an independent agent through whom they can seek redress of their grievances. To that end, the Citizens' Advocate shall be empowered to:

(a) Investigate any complaint by citizens of the Urban County Government;

(b) Disclose any abuses or irregularities on the part of the Urban County Government, its officers, agents or employees; and

(c) Recommend such substantive or procedural policies as may be required to reduce or eliminate problems of citizen access to the departments, divisions, agencies and officers of the Urban County Government.

The Citizens' Advocate shall be appointed by the Council from a list of candidates recommended by an ad hoc Citizens' Committee established for that purpose. Members of said committee shall be appointed by the Council and shall be composed of citizen representatives from each of the twelve (12) council districts. All vacancies in the Office of Citizens' Advocate shall be filled in the manner prescribed for initial appointment. The rules governing the tenure and removal of the Citizens' Advocate shall be the same as those prescribed for the Chief Administrative Officer in Section 5.09 of this Charter.

Note(s)—See Code of Ordinances Section 2-16 and the council rules adopted by Resolution No. 55-79, as amended, relating to the Citizens' Advocate.

Article 5

The Mayor

5.01. General.

All executive and administrative power of the Merged Government shall be vested in the Office of the Mayor, sometimes hereinafter referred to as the "Mayor," and such other departments, boards, commissions, officers, and agencies as are created or authorized by this Charter. The Mayor shall be the Chief Executive of the Merged Government.

5.02. Election; Term of Office; and Qualifications.

The Mayor shall be elected for a term of four (4) years and shall assume office on the first Monday in January following his or her election. The election for Mayor shall be conducted on a non-partisan basis in November of odd numbered years according to the rules and provisions set forth in Article Twelve of this Charter. No person shall serve more than three (3) consecutive full terms as Mayor of the Merged Government.

The Mayor shall be a qualified voter and a resident of the Urban County for a period of at least three (3) years prior to filing for the Office of Mayor. The Mayor shall continue to reside within the territorial limits of the Merged Government throughout his or her term of office.

(Ord. No. 65-87, § 1, 4-16-87)

Note(s)—

(1) This section was proposed for amendment by Ordinance No. 65-87; the amendment was adopted by the voters on November 3, 1987; and accordingly this section was amended effective January 1, 1988.

(2) The year in which elections for mayor are held was changed to even numbered years, pursuant to an amendment to the Kentucky Constitution proposed by 1992 Ky. Acts Ch. 168 and ratified by the voters on November 3, 1992.

5.03. Compensation.

The Mayor shall be compensated at the rate of Twenty-Five-Thousand dollars ($25,000.00) per annum. The Council may by ordinance change the salary of the Mayor, but no ordinance shall be effective to reduce or increase the salary during any term of the Mayor.

Note(s)—The salary of the mayor was amended by Ordinances No. 314-77, 121-81, 245-81, 280-85, 238-89, and 112-97.

5.04. Power and Authority.

Except as otherwise provided in this Charter, the Mayor is authorized to supervise, administer, and control all departments as may be created by this Charter or created by ordinance in pursuance thereof. The Mayor shall appoint all Department Commissioners, subject to confirmation by a vote of a majority of the Council and to the civil service limitations of this Charter.

The Mayor shall consult with the Chief Administrative Officer on all appointments involving Department Commissioners before submitting same to the Council for confirmation. All appointments involving Department Commissioners submitted to the Council for confirmation shall be accompanied by a written statement by the Mayor and the Chief Administrative Officer indicating the qualifications of the proposed appointee.

Except as otherwise provided, the Mayor shall appoint all members of boards and commissions created by this Charter or by ordinance enacted pursuant thereto. Appointments to boards and commissions shall not require confirmation by the Council except as the same may be specifically required by this Charter or by an ordinance creating a board or commission.

The Mayor is authorized to require any executive officer of the Merged Government to submit to him, or to the Chief Administrative Officer, written or oral reports and information relating to the business and general welfare

of the Merged Government. The Mayor shall have the right to examine and inspect the books, records and official papers of any department, board, commission, office or agency of the Merged Government, and to attend the meetings of the Council, or any board or commission, and make recommendations thereto.

In addition, the Mayor:

A. Shall preside at all Council meetings, but vote only in the case of a tie, as provided in Article Four of this Charter.

B. Shall prepare and submit an annual report on the state of the Merged Government to be presented at a public meeting of the Council orally and in writing on or before the thirtieth of January of each year.

C. Shall submit to the Council the annual operating and capital improvements budgets as provided for in Article Eight of this Charter, and shall transmit to the Council any budgetary recommendations of the Chief Administrative Officer that are at variance with the Mayor's budget.

D. May call special meetings of the Council as provided in Article Four of this Charter.

E. Shall sign all written contracts or obligations of the Merged Government and administer all capital improvement projects authorized by ordinance.

F. May recommend to the Council such measures, resolutions or ordinances relative to the affairs of the Merged Government as may be deemed necessary.

Note(s)—See Charter Section 7.02 relating to mayoral appointment of the members of boards and commissions. See also note at Section 4.07 relating to subsection D.

5.05. Veto Powers.

The Mayor is authorized to approve or disapprove ordinances and resolutions adopted by the Council, except ordinances and resolutions relating to:

A. The revision or amendment of this Charter;

B. The decennial redistricting of council districts;

C. The operation and internal affairs of the Council;

D. The authorization or conduct of investigations by the Council as provided in Section 4.08 of this Charter.

Every ordinance or resolution adopted by the Council over which the Mayor has veto power shall be presented to the Mayor for his consideration. If he approves the ordinance or resolution, he shall sign it and it shall become effective according to the terms thereof. If he disapproves, he shall return the same to the Council without his signature accompanied by a message indicating the reasons for his disapproval. Any ordinance or resolution so disapproved shall become effective when, subsequent to its return to the Council by the Mayor, it shall be adopted

by a roll-call vote of three-fifths (3/5) of all members of the Council. The mayor shall approve or disapprove all ordinances and resolutions within ten (10) days of delivery of said ordinance or resolution by the Council to his office for consideration. Should the Mayor fail to approve or disapprove within the ten (10) days limitation, said ordinance or resolution shall become effective according to the terms thereof.

In addition to the aforementioned veto powers, the Mayor may reduce or disapprove the sum of money appropriated by any one or more items, or parts of items,

in any ordinance appropriating money. All such reductions or disapprovals shall be made within the time limit prescribed for vetoing ordinances generally, and shall be returned to the Council accompanied by a message indicating the reasons for such reductions or disapproval. The one (1) or more items or parts of items reduced or disapproved by the Mayor shall be void to the extent any such items or parts of items have been reduced or disapproved, unless any such item or parts of items so reduced or disapproved shall be restored to the ordinance and become effective by a roll-call vote of three-fifths (3/5) of the members of the Council.

Note(s)—See Charter Section 4.07 and KRS 67A.070(4) relating to mayoral veto power. See also Hacker v. Baesler, Ky., 812 S.W.2d706 (1991), which held this power does not extend to zone map amendments.

5.06. Vacancy in the Office of the Mayor.

If the Mayor shall die, resign, or remove his residence from the territorial limits of the Urban County during his term of office, or be removed from office, the Office of Mayor shall become vacant. If a vacancy occurs less than two (2) years prior to the next regularly scheduled general election for Mayor of the Merged Government, the Vice-Mayor shall serve as Mayor until his successor is duly elected and qualified. If a vacancy in the Office of Mayor occurs more than two (2) years prior to the next regularly scheduled general election for Mayor of the Merged Government, the Vice-Mayor shall serve as the Mayor until the next regularly scheduled general election in which any elective council office of the Merged Government is to be filled, at which time a special election shall be held to fill the unexpired term of the Mayor.

The Council is empowered to create and establish the order of succession to fill vacancies in the Office of Mayor in the event the Vice-Mayor should refuse or become unable to serve as Mayor pursuant to the terms of this Charter.

If the Vice-Mayor, or any other council member, succeeds to the Office of Mayor pursuant to the terms of this Charter, he shall cease to be a council member during his term as Mayor, and his seat on the Council shall be declared vacant and subject to the provisions for filling vacancies on the Council set forth in Section

4.06 of this Charter. Whenever the Vice-Mayor, or any other person, becomes Mayor pursuant to this section of the Charter, he shall have all of the rights, powers, and duties of the Mayor and shall be compensated at the rate set for the Office of Mayor by this Charter or by any ordinance fixing the salary of his immediate predecessor.

5.07. Mayor's Absence or Incapacity.

During the absence of the Mayor from the territorial limits of the Urban County, the Mayor may designate the Vice-Mayor as the temporary Acting Mayor of the Merged Government, subject to such limitations of his authority and power as the Mayor may prescribe in writing to the Vice-Mayor and the Council.

In the event the Mayor, or a panel of three (3) qualified medical experts created by ordinance passed by a two-thirds (2/3) vote of the entire membership of the Council, shall indicate or ascertain that the Mayor is physically or mentally incapable of performing the duties of the Office of Mayor, the Vice-Mayor shall become the temporary Acting Mayor until such time as the Mayor is declared physically or mentally capable of resuming the duties of the Office of Mayor. In the event the Mayor declares himself incapable of performing the duties of the Office of Mayor, it shall be the prerogative of the Mayor to declare himself capable of resuming such duties. In the event the Mayor is declared incapable of performing the duties of the Office of Mayor by the aforementioned panel of qualified medical experts, only the panel of three (3) medical experts that declared the Mayor incapable, or another panel of three (3) medical experts chosen by the Council, may declare the Mayor capable of resuming the duties of the Office of Mayor. Whenever the Mayor is declared incapacitated under the provisions of this Charter, the Vice-Mayor, while serving as temporary Acting Mayor, shall have all the powers, duties, and salary equivalent to that of the Mayor.

5.08. The Mayor's Staff.

The Mayor may appoint such administrative aides and personal secretaries as may be required, subject to the approval of funds by the Council. All administrative aides shall be exempted from the classified civil service provisions of this Charter.

Any secretary appointed by the Mayor under the provisions of this Section who is covered by the classified civil service provisions of this Charter shall retain all of the rights and benefits thereof. All other secretaries appointed by the Mayor under this Section shall be exempted from said provisions.

5.09. Chief Administrative Officer.

For the purpose of providing professional assistance and continuity in the administration of the Merged Government, the Council shall select and employ a Chief Administrative Officer. No person shall be selected or employed as the Chief Administrative Officer unless he or she shall possess demonstrable educational and/or professional experience in the art and science of governmental management as required of such office. Said officer may be a non-resident of Kentucky and/or the Urban County, but must become a resident of the area served by the Merged Government within six (6) months and shall maintain such residence during the tenure of his or her office. The Chief Administrative Officer shall be compensated at a rate determined by the Council.

The Chief Administrative Officer may be removed without cause by a three-fifths (3/5) vote of the entire Council during his first year of service. After one (1) year of service, the Chief Administrative Officer may be removed without cause by a three-fifths (3/5) vote of the entire Council, provided that he shall be granted six (6) months notice of the council's intention to remove him, or in the alternative he shall be granted six (6) months severance pay.

After one (1) year of service a Chief Administrative Officer may be removed at any time for sufficient cause or willful neglect of duty by a three-fifths (3/5) vote of the Council, provided that the Council supply the Chief Administrative Officer a written statement of the charges against him and afford him an opportunity to appear before a public hearing held by the Council within thirty (30) days of notifying him of the charges. The Chief Administrative Officer may be represented by counsel and present evidence at said hearing and may appeal to the courts any decision of the Council to remove him for cause or willful neglect of duty. In no case shall the Council effect the removal of a Chief Administrative Officer by a reduction in his compensation.

Whenever a vacancy shall exist in the office of Chief Administrative Officer, a committee composed of the Mayor and four (4) Council members appointed by the Vice-Mayor shall solicit and evaluate applicants for said position, and shall recommend to the Council one or more candidates for the position. The Council shall then select and employ a Chief Administrative Officer by a vote of a majority of its entire membership.

Note(s)—KRS 67A.025 provides for the hiring, termination and severance pay of the Chief Administrative Officer.

5.10. Powers and Duties of the Chief Administrative Officer.

The Chief Administrative Officer shall:

A. Exercise direct administrative control and supervision over the Office of Administrative Services as provided for in Article Six of this Charter.

B. Recommend to the Mayor, in pursuance of the provisions of Section 5.04 of this Charter, persons to be appointed as Department Commissioners.

C. Subject to the authority of the Mayor as stated in this Charter, supervise and control all departments created by Article Six of this Charter or by ordinance pursuant thereto; the Commissioners of which shall report directly to the Chief Administrative Officer.

D. Serve as the liaison officer between the Mayor and such other agencies, boards, commissions and authorities as the Mayor may designate.

E. Recommend to the Mayor the annual operating and capital improvements budgets.

F. Make periodic reports, with such recommendations as he deems appropriate, to the Mayor and the Council concerning the operation, affairs and future needs of the Merged Government.

G. Examine regularly, at periods fixed by the Mayor and/or the Council, the accounts, records and operations of every department, agency, board, commission or authority receiving financial appropriations from the Merged Government.

H. Perform such other duties not inconsistent with the provisions of this Charter as the Mayor or the Council may prescribe.

Article 6

Executive Departments and the Office of Administrative Services[1]

6.01. General Provisions.

The Merged Government Council shall create and otherwise provide for an Office of Administrative Services. In addition, the Council shall create and otherwise provide for the following Executive Departments:

1. Department of Law
2. Department of Finance
3. Department of Public Safety
4. Department of Parks and Recreation
5. Department of Social Services
6. Department of Sanitation and Public Works
7. Department of Housing and Community Development

The Office of Administrative Services and each of the aforementioned Executive Departments shall be organized into such divisions as may be provided in this Charter or by ordinance passed by the Council pursuant thereto. All matters pertaining to the internal organization of the Office of Administrative Services and the Executive Departments below the division level shall be left to the discretion of the Council.

6.02. Principal Officers of the Executive Branch.

The Office of Administrative Services shall be under the direct control of the Chief Administrative Officer as provided in Section 5.10 of this Charter. The Commissioner of each department shall be appointed by the Mayor, subject to the provisions of Sections 5.04 and 5.10 of this Charter.

All Department Commissioners shall be appointed on the basis of their respective executive, administrative and professional qualifications, and shall receive such compensation as may be prescribed by ordinance of the Council. Any persons appointed as a Department Commissioner shall serve at the pleasure of the Mayor, and the position of Department Commissioner shall be exempted from the civil service provisions of this Charter or any ordinance passed by the Council pursuant thereto.

Except as otherwise provided in Section 15.08 of this Charter, no person shall be appointed as an acting, interim or temporary Department Commissioner unless said appointment is to fill a vacancy created by death, removal, resignation or retirement; nor shall any person be appointed to the position of acting, interim or temporary Department Commissioner for a period of more than six (6) consecutive months. Any person appointed as an acting,

1. **Note(s)**—Many of these departments and divisions have been reorganized or renamed pursuant to Section 6.12.

interim or temporary Department Commissioner who is covered by the classified civil service and/or employee pension provisions of this Charter on the date of such appointment, shall retain all of the rights and privileges thereof. However, any acting, interim or temporary Department Commissioner covered by said provisions who wishes to accept a regular appointment as a Department Commissioner shall be removed from the classified civil service in accordance with the provisions of Section 9.02 of this Charter. All matters pertaining to the pension rights of said persons shall be resolved in accordance with the provisions of Section 9.08 of this Charter.

6.03. Division Directors and Employees.

Each division within the Office of Administrative Services and the various Executive Departments shall be headed by a Division Director. Except as otherwise provided, all Division Directors shall be under the classified civil service system of the Merged Government.

All employees of a division below the rank of Division Director shall be under the classified civil service system of the Merged Government unless specifically prohibited by law or exempted under the provisions of this Charter.

6.04. Office of Administrative Services.

The Office of Administrative Services shall be organized into a Division of Personnel, a Division of Budgeting, a Division of Federal Programs, and such other divisions as the Council may prescribe.

The Division of Personnel shall be responsible for the administration of all personnel programs of the Merged Government, including such civil service programs as may be established under the provisions of this Charter. Said division shall also assist all pension fund boards created or established under the provisions of this Charter in the administration of all employee pension programs. It shall be the particular duty of the Division of Personnel to keep all employees informed of their pension rights, process all applications for pension claims, and perform such other administrative duties as the various pension fund boards of the Merged Government may direct.

The Division of Budgeting shall be charged with assisting the Chief Administrative Officer and the Mayor with the preparation of the annual operating and capital improvements budgets. It shall provide for the periodic review of said budgets and conduct such budgeting studies and long range forecasts as the Chief Administrative Officer may direct. It shall prepare and administer, under the supervision of the Chief Administrative Officer, a system of program budgeting for the Merged Government, and shall prepare and administer all official forms for gathering budgetary data and requests from all departments, agencies, boards and commissions receiving funds from the Merged Government.

The Division of Federal Programs shall be responsible for the coordination of all federal grant applications of the Merged Government. It shall assist any department, division, agency, board or commission of the Merged Government with the preparation of all federal grant applications and shall keep all departments, divisions, agencies, boards and commissions informed of all federal programs relevant to them.

6.05. Department of Law.

The Department of Law shall be organized into a Division of Litigation, a Division of Corporate Counsel, and such other divisions as the Council may prescribe. The Department Commissioner and all Division Directors of said department shall be qualified attorneys-at-law.

The Division of Litigation shall be charged with the performance of all duties associated with the preparation and conduct of all legal proceedings in which the Merged Government, its departments, divisions, agencies, boards and commissions, may be a party.

The Division of Corporate Counsel shall be charged with the preparation of all contracts and other legal instruments of the Merged Government; and shall provide such legal advice and assistance as the Merged Government, its Council, executive departments, boards and commissions may require.

No division in the Department of Law shall engage in any activity which would infringe upon the powers and duties of the County Attorney as the prosecuting attorney for the Lexington-Fayette Urban County Government. Nor shall any division in said department engage in any activity related to the powers and duties of the County Attorney as a legal officer under law for various state agencies.

6.06. Department of Finance.

The Department of Finance shall be organized into a Division of the Treasury, a Division of Accounting, a Division of Data Processing, a Division of Tax Collection, a Division of Central Purchasing, and such other divisions as the Council may prescribe.

The Division of the Treasury shall be responsible for the custody, investment and disbursement of all funds of the Merged Government in accordance with the procedures and standards established by the Council.

The Division of Accounting shall be responsible for the maintenance of a general accounting system for the Merged Government, including auditing and cost control records and procedures, pre-auditing procedures for all claims on the funds of the Merged Government, and a current audit of all cash receipts received and due the Merged Government.

The Division of Data Processing shall provide all computer and other data processing services required by the Department of Finance and such other departments, agencies, boards and commissions as may be authorized or required to use such services.

The Division of Tax Collection shall be charged with the collection of all income, revenues and moneys due the Merged Government. The County Sheriff, elected under the Constitution and laws of Kentucky shall continue to collect all taxes levied by the Merged Government which are to be collected under law by County Sheriffs. All taxes collected by the Sheriff shall be filed with the Director of the Division of Tax Collection. The Director of the Division of Tax Collection shall be responsible for collecting all taxes levied by the Merged Government not covered by the law pertaining to the tax collection duties of the County Sheriff. All receipts of said division shall be forwarded, under procedures established by the Council, to the Division of the Treasury for custody and deposit.

The Division of Central Purchasing shall be responsible for making all purchases for the Merged Government, its departments, agencies, divisions and such boards and commissions as the Council may direct. Said division shall administer a system of centralized purchasing best suited to obtain the greatest economic savings and value in the procurement of all necessary supplies, materials, equipment, contractual services, insurance and surety bonds, and such other items as may be prescribed by the Council.

Note(s)—The duties of the division of tax collection may be satisfied by a contract with an outside agency. Jacobs v. LFUCG, supra, at 14. The tax collection duties of the sheriff have been contracted to the Urban County Government pursuant to an annual purchase of service agreement.

6.07. Department of Public Safety.

The Department of Public Safety shall be organized into a Division of Police, a Division of Building Inspection, a Division of Fire Protection, a Division of Detention, a Division of Animal Control, a Division of Civil Defense, and such other divisions as the Council may prescribe.

The Division of Police shall be responsible for general law enforcement in the Urban County and shall be organized and equipped to provide general police services throughout the General Services District and such additional police services as may be deemed necessary for the protection of lives and property in the Full Urban Services District. The Director of said division shall hold the rank of Chief of Police and shall be professionally trained and experienced in the art and sciences of police work.

The Division of Fire Protection shall be responsible for the provision of fire prevention and protection services in the Urban County, and shall be organized and equipped to provide general fire protection services throughout the General Services District and such additional fire services as may be deemed necessary for the protection of lives and property in the Full Urban Services District. The Director of said division shall hold the rank of Fire Chief and shall be professionally trained and experienced in the operation and management of fire prevention and protection services.

The Division of Detention shall be responsible for the detention and security of all prisoners assigned to the custody of the Merged Government under law, excepting those assigned to the care and custody of the Division of Juvenile Detention and Probation pursuant to Section 6.09 of this Charter. The Division of Detention shall be responsible for the operation of the County Jail and the City of Lexington Jail (workhouse). The latter shall be designated as a county workhouse under the provisions of KRS 441.070 thru 441.205. The County Jailer, elected under the provisions of Section 11.07 of this Charter, shall be designated as the Director of the Division of Detention.

The Division of Building Inspection shall perform all of the duties and functions pertaining to the inspection and safety of buildings and other structures performed by the Department of Building Inspection of the City of Lexington on the effective date of this Charter. Said division shall administer and enforce all zoning ordinances.

The Division of Animal Control shall enforce all laws and ordinances pertaining to the licensing, inspection and control of animals in the General Services District, which shall be the same as those imposed by order of the Fayette

County Fiscal Court on the effective date of this Charter, and the Full Urban Services District, which shall be the same as those imposed by the City of Lexington on the effective date of this Charter. The Director of said division shall be designated as the county dog warden under the provisions of KRS 258.195, and shall coordinate the activities of the Division of Animal Control with the county livestock inspector to be appointed by the Council in accordance with the provisions of KRS 257.280.

The Division of Civil Defense shall be charged with the operation and administration of a civil defense program for a Merged Government in accordance with the state civil defense plan and program. The Director of said division shall be appointed by the Mayor in accordance with the provisions of KRS 39.415 until such time as the General Assembly may provide for the Director of Civil Defense in an urban county government to be covered by civil service.

Note(s)—

(1) Additional fire and police protection have been deleted as additional urban services. See note at Section 2.08.

(2) Ordinance No. 52-76 deleted and abolished the division of detention from the department of public safety. Subsequently, the office of jailer was abolished effective January 3, 1994, by 1990 Ky. Acts Ch. 138, and pursuant to that Act the division of detention was recreated by Ordinance No. 238-93.

(3) Resolution No. 250-75 and Ordinance No. 25-76 had the effect of deleting the division of animal control from the department of public safety and placed that service with the Lexington Humane Society. Too, the Lexington Humane Society was appointed Fayette County Dog Warden pursuant to Resolution No. 286-91. Further, KRS 257.280, relating to the county livestock inspector, was repealed by 1978 Ky. Acts Ch. 118, § 19, effective June 17, 1978.

(4) KRS 39.415, relating to civil defense, was repealed by 1998 Ky. Acts Ch. 226, § 113, effective July 15, 1998.

6.08. Department of Parks and Recreation.

The Department of Parks and Recreation shall be organized into a Division of Parks, a Division of Recreation, and such other divisions as the Council may prescribe.

The Division of Parks shall equip, maintain and operate all parks, playgrounds, swimming pools and golf courses of the Merged Government.

The Division of Recreation shall be responsible for planning, organizing, staffing, equipping and operating all recreational and leisure time programs and activities provided by the Merged Government.

6.09. Department of Social Services.

The Department of Social Services shall be organized into a Division of Welfare, a Division of Homes, a Division of Juvenile Detention and Probation, a Division of Children's Services, and such other divisions as the Council of the Merged Government may prescribe.

The Division of Welfare shall be responsible for all welfare and social service programs administered by the welfare departments of the City of Lexington and the County of Fayette on the effective date of this Charter, and such other welfare and social service programs as may be established under law by the Council of the Merged Government. In addition, said division shall be responsible for the administration of all duties assigned to the Domestic Relations Office of the County of Fayette on the effective date of this Charter.

The Division of Homes shall be responsible for the operation and administration of the Julius Marks Home of Fayette County as the same existed on the effective date of this Charter, and such other homes and refuge places as the Council of the Merged Government may designate. The Director of said division shall be the director of the Julius Marks Home.

The Division of Juvenile Detention and Probation shall administer all juvenile detention and probation programs under law as provided by the Kincaid Home and the Juvenile Probation Office operating under the Fayette County Juvenile Court on the effective date of this Charter, and such other juvenile programs as the Merged Government Council may prescribe. Said division shall serve as the administrative agency for enforcing all juvenile detention and probation orders of the Juvenile Division of the County Court as specified in Article Ten of this Charter.

The Division of Children's Services shall perform all of the duties and functions of the Fayette County Children's Bureau as they are defined under law on the effective date of this Charter.

6.10. Department of Sanitation and Public Works.

The Department of Sanitation and Public Works shall be organized into a Division of Refuse Collection and Disposal, a Division of Sanitary Sewers, a Division of Streets and Roads, a Division of Property Maintenance, a Division of Engineering, a Division of Traffic Engineering, and such other divisions as the Merged Government Council may designate.

The Division of Refuse Collection and Disposal shall be responsible for the collection and proper disposal of all trash and garbage collected by the Merged Government and shall regulate the disposal of all garbage and trash collected by private persons.

The Division of Sanitary Sewers shall operate and maintain the sanitary sewer system of the Merged Government. Initially this system shall be the same as that owned and operated by the City of Lexington on the effective date of this Charter, including all sewage disposal plants of the City of Lexington.

The Division of Streets and Roads shall construct, service and maintain all streets and roads of the Merged Government, including those streets and roads serviced and maintained by the City of Lexington and the County of Fayette on the effective date of this Charter.

The Division of Property Maintenance shall service and maintain all buildings and other structures owned by the Merged Government not specifically covered by other sections of this Charter.

The Division of Engineering shall perform all engineering duties for the Merged Government, including those functions performed by the City Engineer for the City of Lexington on the effective date of this Charter.

The Division of Traffic Engineering shall perform all traffic engineering services for the Merged Government, including those performed by the City Traffic Engineer of the City of Lexington on the effective date of this Charter.

6.11. Department of Housing and Community Development.

The Department of Housing and Community Development shall be organized into a Division of Housing Services, a Division of Urban Renewal, a Division of Planning, and such other divisions as the Merged Government Council may designate.

The Division of Housing Services shall identify housing problems and deficiencies within the territory of the Merged Government. Except as otherwise provided in Section 7.12 of this Charter, said division shall be responsible for planning, coordinating and administering all activities of the Merged Government related to the work of various public and private agencies concerned with housing problems.

The Division of Urban Renewal shall be responsible for the administration and operation of all urban renewal programs of the Merged Government, including such urban renewal programs as may be funded or otherwise implemented by the City of Lexington or the County of Fayette on the effective date of this Charter.

The Division of Planning shall be responsible for preparing, updating and continuous revision of all community development plans and proposals. Said division shall provide such professional planning and staff services to the Planning Commission and the Board of Zoning Appeals as may have been provided by the entire professional staff of the Lexington-Fayette County Planning Commission on the effective date of this Charter.

6.12. General Powers of the Council Over Departments, Divisions and Offices.

The Council of the Merged Government shall have the power to consolidate, divide, and otherwise restructure the organization of all departments, offices and divisions covered by this Article, provided that:

(a) Any ordinance to consolidate, divide or otherwise restructure said departments, offices and divisions shall be passed by a three-fifths (3/5) vote of the Council; and

(b) The substance of such action by the Council is consistent with the Constitution and laws of the Commonwealth of Kentucky governing the administration of the functions or services involved by counties and/or cities of the second class.

Article 7

Boards, Commissions and Authorities

7.01. General Provisions.

On the effective date of this Charter the following boards and commissions shall be terminated:

(a) The Police and Fire Merit Board of Fayette County;

(b) The Parks and Recreation Board of Fayette County;

(c) The Board of Equalization of the City of Lexington;

(d) The Executive Board of the Fayette County Children's Bureau; and

(e) The Lexington Urban Renewal and Community Development Agency.

All city, county or joint city-county boards, agencies and commissions as may exist on the effective date of this Charter which are not specifically provided for in this Charter shall continue for a period of ninety (90) days during which time the Council shall determine, by ordinance, whether they shall be continued or terminated. In the event the Council fails to act within the specified time limit, said boards, agencies and commissions, advisory or otherwise, shall cease to exist.

The Council shall have the power to create by ordinance such boards, agencies and commissions as may be provided under law for cities of the second class and/or counties containing cities of the second class, provided that such ordinance is consistent with the terms of this Charter.

Note(s)—Sections 7.01(e) and 7.13—The provisions for the termination of the Lexington Urban Renewal and Community Development Agency and the transfer of its functions to the division of urban renewal were held invalid. Holsclaw v. Stephens, supra, at 479-480. See Ordinances No. 31-74 and 114-74, which continued boards, agencies and commissions not specifically provided for in the Charter.

7.02. Terms, Compensation and Qualifications of Members.

Except as otherwise provided by this Charter or appropriate state law, all members of boards, agencies and commissions covered by the provisions of this Article shall be appointed by the Mayor subject to confirmation by a majority of the council members.

Except as otherwise provided by law, the terms of board, agency and commission members shall be four (4) years, provided that said terms shall be staggered in such manner as to allow the appointment or re-appointment of at least one-half of the membership of any board, agency or commission every two (2) years.

All vacancies on any board, agency or commission shall be filled for the unexpired term in the manner prescribed for original appointment by this Charter or by applicable state law. Any member of a board, agency or commission may be removed from office in accordance with applicable state law, or in the absence of such law, by a majority of the Council of the Merged Government.

Except as otherwise provided by applicable state law, the Council may prescribe by ordinance for the compensation and/or reimbursement of actual and necessary expenses incurred by members of any board or commission created by this Charter or by ordinance passed pursuant thereto.

The Council may, subject to the limitations of applicable state law, prescribe the qualifications required of any member of the boards, agencies and commissions covered by the provisions of this Charter. In addition, the Council may, within the limits set by this Charter or applicable state law, provide any board, agency or commission with such clerical, secretarial or other staff assistance as may be deemed necessary.

All official meetings of boards, agencies and commissions of the Merged Government shall be public and any citizen shall have access to the minutes and official records thereof on request.

Note(s)—With respect to mayoral appointments to boards and commissions, see also Section 5.04. Further, the provisions of this section relating to open meetings and records have in some instances been superseded by KRS 61.805 et seq., and KRS 61.870 et seq.

7.03. Civil Service Commission.

On the effective date of this Charter, the Lexington Civil Service Commission and the Lexington Civil Service Examining Board shall together constitute the "Civil Service Commission" of the Merged Government. Said commission shall advise and assist the Director of Personnel in the Office of Administrative Services and the Chief Administrative Officer on matters pertaining to the operation and administration of the classified civil service system of the Merged Government within the terms and limitations set forth in Article Nine of this Charter. All vacancies on said commission shall be filled by the Mayor subject to confirmation by a majority of the council members.

Within one (1) year of the effective date of this Charter, said board and commission shall be consolidated into a single, five-member Civil Service Commission.

The members of said commission shall be appointed by the Mayor subject to confirmation by a majority of the council members. The initial terms of members appointed to said board shall be staggered in compliance with the provisions of Section 7.02 of this Charter. Thereafter, all appointments to the Civil Service Commission shall be for a period of four (4) years.

Note(s)—See KRS 67A.210 et seq., and Code of Ordinances Chapter 21, relating to the classified civil service system.

7.04. Pension Fund Boards.

The Lexington Employees' Pension Fund Board and the Lexington Police and Fireman's Pension Fund Board shall continue after the effective date of this Charter as the Merged Government Employees' Pension Fund Board and the Merged Government Police and Fireman's Pension Fund Board. Said boards shall continue to administer the pension funds of all non-police and fire employees and all police and fire employees of the Merged Government respectively under the provisions and limitations of Article Nine of this Charter governing employee pensions.

On the effective date of this Charter, the membership of the Merged Government Employees' Pension Fund Board shall consist of the Mayor, four (4) members of the Merged Government Council selected by the Council, the Commissioner of the Department of Finance, the Director of the Division of Personnel and three (3) civil service employees to be elected to the board by those employees covered by the Employees' Pension Fund.

On the effective date of this Charter, the membership of the Merged Government Police and Fireman's Pension Fund Board shall consist of the Mayor, the Commissioner of the Department of Finance, the Director of the Division of Personnel, the Director of the Division of Police, the Director of the Division of Fire Protection, and two (2) elected representatives, one (1) from the Division of Police and one (1) from the Division of Fire Protection.

Note(s)—See KRS 67A.360-67A.690 relating to police and fire retirement. See KRS 67A.320 and 67A.350 and Code of Ordinances Chapter 6 relating to former city employees retirement.

7.05. Budget Commission.

The County Budget Commission, consisting of the County Judge, the County Attorney, and one (1) member appointed by the Fiscal Court under the provisions of Section 11.02 of this Charter, shall continue in full force and effect after the effective date of this Charter until such time as the General Assembly of Kentucky, or an appropriate state court, shall decide that, for purposes of budgeting, the Lexington-Fayette Urban County Government is not a county under the terms of the law governing county budgets. Until such time, the Budget Commission of the Merged Government shall be responsible only for forwarding the annual operating budget and capital improvements budget to the proper state officer under law, and shall not have any responsibility for the preparation, adoption or implementation of said budgets.

Note(s)—"Statutes creating budget commissions are inapplicable to urban county government". Holsclaw v. Stephens, supra, at 477.

7.06. Assessment Appeals.

The official board charged with hearing and deciding all assessment appeals in the territory of the Merged Government shall be the Lexington-Fayette Urban County Board of Supervisors. Said board shall be initially composed of the members of the Fayette County Board of Supervisors and shall retain all of the powers, duties and legal responsibilities of county boards of supervisors as provided by law.

All vacancies on said board occurring after the effective date of this Charter shall be filled by the County Judge in accordance with the provisions set forth in Section 11.01 of this Charter. Members of the Board of Supervisors shall serve such terms as may be prescribed by law for county boards of supervisors generally.

Note(s)—The title of the board charged with hearing and deciding all assessment appeals has been changed by KRS 133.120 to the board of assessment appeals.

7.07. Civil Defense.

The Civil Defense Board of Advisors of the City of Lexington and the County of Fayette shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Civil Defense Board of Advisors. Said board shall advise the Director of the Division of Civil Defense in the Department of Public Safety, formerly the Director of Civil Defense for Lexington and Fayette County, on all matters pertaining to the operation and administration of a civil defense program for the Merged Government. All vacancies on said board occurring after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

Note(s)—This board is no longer in existence. See Ordinances No. 136-88 and 23-90.

7.08. Parks and Recreation.

The Lexington Board of Parks Commissioners shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Board of Parks Commissioners. Said board shall advise the Department of Parks and Recreation on all matters pertaining to the operation and administration of all parks and recreation programs of the Merged Government.

All vacancies occurring on said board after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

Note(s)—The Urban County Government has not elected to operate under KRS 97.405 to 97.485. However, Code of Ordinances Section 2-396 et seq.; created the parks and recreation advisory board pursuant to KRS 67A.060 and 67A.070.

7.09. Homes for the Aged.

The Julius Marks Advisory Board, consisting of five (5) members, shall continue after the effective date of this Charter. Said board shall advise the Director of the Division of Homes of the Department of Social Services on all matters pertaining to the operation and administration of the Julius Marks Home. It shall be the particular responsibility of said advisory board to make periodic inspections of the Julius Marks Home and to make such recommendations concerning the care and treatment of the residents of said home as may be deemed necessary.

All vacancies occurring after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of7.02 of this Charter.

Note(s)—The Julius Marks advisory board has been abolished. See Release of record in Deed Book 1548, page 228 in the Fayette County Clerk's Office.

7.10. Social Services.

Pursuant to Section 7.01, the Executive Board of the Fayette County Children's Bureau shall be terminated on the effective date of this Charter. In order to assure broad citizen participation and involvement in the operation and management of the total social services program of the Urban County Government, the members of the former Executive Board of the Fayette County Children's Bureau shall constitute a five-member Lexington-Fayette Urban County Social Services Advisory Board. Said advisory board shall advise the Department of Social Services on all matters pertaining to the operation, administration and management of all welfare, domestic relations, juvenile and children's services programs provided by the Urban County Government.

The terms of the original members of said board shall be equivalent to the unexpired terms of the members of the former Executive Board of the Fayette County Children's Bureau. All vacancies in said positions occurring after the effective date of this Charter shall be filled by the Mayor in accordance with the provisions of Section 7.02 of this Charter.

The Council shall, within ninety (90) days of the effective date of this Charter, increase the size of the Social Services Advisory Board to nine (9) members to be appointed in accordance with the provisions of Section 7.02 of this Charter.

Note(s)—This section is invalid only "insofar as that section might be construed to impinge upon the duties and membership of the Social Services Advisory Committee created by KRS 205.330." Holsclaw v. Stephens, supra, at 481. Subsequently, KRS 205.330 was repealed.

7.11. Housing Appeals.

The Lexington Minimum Standard Housing Board of Appeals shall be continued after the effective date of this Charter as the Lexington-Fayette Urban County Minimum Standard Housing Board of Appeals. Said board shall exercise all of the powers and functions under law of the former Lexington Minimum Standard Housing Board of Appeals throughout the territory of the Merged Government and such other duties and functions pertaining to the enforcement of minimum housing codes as the Council may prescribe.

All vacancies on said board occurring after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

Note(s)—This board was superseded by the administrative hearing board. See Code of Ordinances Section 12-13.

7.12. Public Housing.

The Housing Authority of Lexington, or any successor authority created prior to the effective date of this Charter, shall be continued after the effective date of this Charter as the Lexington-Fayette Urban County Housing Authority. Said authority shall retain all powers and authority as may be provided by law and shall continue to plan, implement and administer all public housing programs within the territorial limits of the Urban County Government.

On the effective date of this Charter, the Mayor of the Lexington-Fayette Urban County Government shall replace the Mayor of the City of Lexington on said authority. All other vacancies occurring after the effective date of said Charter shall be filled by the Mayor in accordance with the provisions of KRS 80.030 to 80.060.

7.13. Urban Renewal.

The Lexington Urban Renewal and Community Development Agency shall be terminated on the effective date of this Charter. Pursuant to KRS 99.330 to 99.510, the Lexington-Fayette Urban County Government shall be designated as a "community." All powers, functions, rights, duties and privileges of an urban renewal and community development "agency" shall be vested in said "community" and shall be delegated to the Division of Urban Renewal in the Department of Housing and Community Development in accordance with the provisions of KRS 99.490.

The members of the former Lexington Urban Renewal and Community Development Agency shall constitute a five (5) member Urban Renewal Advisory Board. Said board shall advise the Division of Urban Renewal, the Mayor and the Council on all matters pertaining to urban renewal. All vacancies on said board occurring after the effective date of this Charter shall be filled by the Mayor in accordance with the provisions of Section 7.02 of this Charter.

Note(s)—This section is invalid. Holsclaw v. Stephens, supra, at 479-480.

7.14. Planning Commission.

The Lexington-Fayette County Planning Commission shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Planning Commission. Said commission shall take immediate steps to declare the Lexington-Fayette Urban County Government as the official planning unit under law to supersede the joint city-county agreement designating the City of Lexington and the County of Fayette as an official planning unit.

Said commission shall have all the powers, duties and functions provided under law for planning commissions generally. Pursuant to KRS 100.173, the Lexington-Fayette Urban County Planning Commission shall utilize the Division of Planning in the Department of Housing and Community Development for such professional staff assistance as may be required to accomplish its assigned duties under law.

All vacancies on the Lexington-Fayette Urban County Planning Commission occurring after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

7.15. Zoning Adjustment.

The Lexington-Fayette County Board of Adjustment shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Board of Adjustment. Said board shall have all the powers, duties and functions provided under law for boards of adjustment generally. Pursuant to KRS 100.223, the Lexington-Fayette Urban County Board of Adjustment shall utilize the Division of Planning in the Department of Housing and Community Development for such professional staff assistance as may be required to accomplish its assigned duties under law.

All vacancies on the Lexington-Fayette Urban County Board of Adjustment shall be filled by the Mayor, subject to the provision of Section 7.02 of this Charter.

7.16. Board of Health.

The Lexington-Fayette County Board of Health shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Board of Health. Said board shall retain all of the powers, duties and functions under law as may be now or hereafter assigned to county boards of health, and shall continue to supervise and direct the activities of the City-County Health Department as provided by law. The Director and staff of the Urban County Health Department shall continue to be appointed in accordance with the provisions of applicable state law.

On the effective date of this Charter, the Mayor, as the Chief Executive Officer of the Merged Government, shall replace the County Judge as an ex-officio member of the health board. On said date, the Lexington City Manager shall be replaced as an ex-officio member of the board by a person appointed by the Council of the Merged Government in accordance with the provisions of state law pertaining to the composition of county health boards generally. All other members of the board on the effective date of this Charter shall continue to serve until such time as their terms are completed and their successors are appointed. All vacancies on said board after the effective date of this Charter shall be made in accordance with applicable state law.

Note(s)—See KRS 212.627, which was adopted after the Charter went into effect.

7.17. Human Rights Commission.

The Lexington-Fayette County Human Rights Commission shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Human Rights Commission. Said commission shall retain all of the powers, duties and functions under law as may be now or hereafter assigned to commissions on human rights generally. The Lexington-Fayette Urban County Human Rights Commission shall retain all powers pertaining to the appointment of an executive director and staff as prescribed by law.

All vacancies on said commission occurring after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

Note(s)—See KRS 344.320 and Code of Ordinances Section 2-25 et seq.

7.18. Airport Board.

The Lexington-Fayette County Airport Board shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Airport Board. Said board shall retain all of the powers, duties and functions under law as may be now or hereafter assigned to city, county or joint city-county airport boards. The Lexington-Fayette Urban Airport Board shall retain all powers pertaining to the appointment of an airport manager and staff as prescribed by law.

All vacancies on said board occurring after the effective date of this Charter shall be appointed by the Mayor, subject to the provisions of Section 7.02 of this Charter.

Note(s)—See KRS 183.132 and Code of Ordinances Chapter 2A.

7.19. Library Board.

The Lexington Library Board of Trustees shall continue after the effective date of this Charter as the Lexington-Fayette Urban County Library Board of Trustees. Said board shall retain all powers, duties and functions as may be now or hereafter prescribed by law governing the operation of public libraries by cities of the second class. The Lexington-Fayette Urban County Library Board of Trustees shall retain all powers pertaining to the appointment of a librarian, assistant librarian and staff as prescribed by law. All vacancies on said board occurring after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

The Lexington Public Library Board of Advisors shall continue after the effective date of this Charter, and shall be charged with advising the Mayor and the Library Board of Trustees on all matters pertaining to the operation and administration of public library services for the Merged Government. All vacancies on said board of advisors shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

Note(s)—See KRS 173.350. In Lexington-Fayette Urban County Government v. Hayse, Ky.App., 684 S.W.2d 301 (1985), it was held that the library must be funded consistent with KRS 173.360(1).

7.20. Transit Authority.

The Transit Authority of the City of Lexington and the County of Fayette shall continue in full force and effect after the effective date of this Charter as the Transit Authority of the Lexington-Fayette Urban County Government. Said authority shall retain all the power and authority vested therein by ordinance and resolution of the Board of Commissioners of the City of Lexington and the Fayette County Fiscal Court on the effective date of this Charter, and shall continue to be responsible for fulfilling the mass transportation needs of the citizens of the Merged Government.

All vacancies on said authority occurring after the effective date of this Charter shall be filled by the Mayor in accordance with the provisions of Section 7.02 of this Charter.

Note(s)—See KRS 96A.020.

Article 8

Budget and Financial Matters

8.01. Fiscal Year.

The fiscal year of the Merged Government shall begin on the first day of July of each year and shall end on the thirtieth day of June next following. Said fiscal year shall constitute the budget year and the year for all financial

accounting and reporting for every office, department, agency, board and commission of the Merged Government. The aforementioned provision shall be in addition to, and not in lieu of, any accounting or reporting requirements affecting any official or agency of the Merged Government by state or federal laws.

8.02. Budget Preparation.

The Merged Government Council shall prescribe, by ordinance, the procedures and requirements for the preparation, adoption and execution of an annual operating and an annual capital improvements budget. Said ordinance shall require the use of program budgeting by the Merged Government, and shall be consistent with the budgetary provisions of Sections 5.04 and 5.10 of this Charter.

It shall be the duty of all officers, departments, agencies, boards and commissions receiving appropriations from the Merged Government to furnish the Chief Administrative Officer and the Mayor such information as may be required to prepare the annual operating and capital improvements budgets.

Subject to the provisions of Section 5.04 of this Charter, the Mayor shall submit the proposed annual operating and capital improvements budgets to the Council on or before a date fixed by ordinance, but not less than sixty (60) days prior to the beginning of the next fiscal year. Said budgets shall be accompanied by a budget message from the Mayor containing explanations of general fiscal policies, major changes recommended for the next fiscal year and notification of those points at which the budgetary recommendations of the Chief Administrative Officer are at variance with those submitted by the Mayor. Copies of the budgets shall be filed with the County Clerk and shall be open to public inspection. A summary of the proposed budgets shall be published in one (1) or more newspapers of general circulation within the territory of the Merged Government not less than seven (7) days prior to their adoption by the Council.

Note(s)—See Ordinances No. 39-75 and 1-76.

8.03. Scope of the Budgets.

The annual operating and capital improvements budgets shall consist of two (2) parts. Part I of the annual operating and capital improvements budgets shall set forth, in detail, the revenue, expenditures, and program information for those services, functions, activities and capital improvements projects pertaining to the General Services District.

Part II of the annual operating and capital improvements budgets shall set forth, in detail, the revenues, expenditures, and program information for those services, functions, activities and capital improvements projects pertaining to the Full Urban Services District and such Partial Urban Services Districts as may be created and established by the Council.

Each of the above described parts of the annual operating budget shall contain, with respect to each of the operating funds of the Merged Government to which they are applicable: a) an estimate of the encumbered fund balance for the remainder of the current fiscal year; b) a reasonable estimate of cash revenues to be received during the next fiscal year, classified according to source; c) proposed expenditures detailed by each office, department, agency, and

activity in accordance with an established classification of accounts, including those capital outlays which are to be financed from the revenues of the next year; d) insurance and pension costs and all debt service requirements for said fiscal year payable from such funds; e) work programs and performance data in justification of proposed expenditures; and f) such other information as may be considered necessary or as may be desired by the Mayor or Council.

Parts I and II of the annual capital improvements budget shall contain: a) an estimate of the encumbered capital improvements fund balance for the remainder of the current fiscal year; b) a description of all planned capital improvements to be funded during the next fiscal year; c) the amount and source of all capital improvements expenditures for the next fiscal year; d) a detailed summary of the capital improvements program planned for the next five (5) fiscal years indicating the projected costs and sources of revenue for each separate project, purpose, facility or other capital improvement covered in the five-year program; and e) a copy of any studies and surveys pertaining to the contents of the annual capital improvements budget.

8.04. Adoption of the Annual Operating Budget.

The Council shall, upon receipt of the annual operating budget from the Mayor, schedule and hold one (1) or more public hearings on the contents of the budget. Notice shall be published in a newspaper of general circulation in the territory of the Merged Government at least seven (7) days prior to the date set for such hearings.

The Council may amend the proposed annual operating budget submitted by the Mayor, except that the budget, as amended and adopted, shall provide for all expenditures required by law or by other provisions of this Charter, and for all debt service requirements for the next fiscal year.

Adoption of the annual operating budget by the Council shall be in the form of an annual appropriation ordinance. Said ordinance shall be adopted by the Council and forwarded to the Mayor not later than the fifteenth day of June each year. In the event that final action on the annual operating budget ordinance, including Council action on any veto or item veto by the Mayor, is not completed by the thirtieth day of June each year, the amounts appropriated for operations for the fiscal year just ended shall be deemed adopted for the current fiscal year on a month-to-month basis, with all items prorated accordingly until such time as the Council shall complete action on the appropriation ordinance for the annual operating budget for the current fiscal year.

The appropriations ordinance for the annual operating budget shall specify estimated revenues by source and shall list all appropriations according to fund by organizational unit, purpose or activity as set forth in the format of the budget document submitted by the Mayor. The amount set forth in the appropriation ordinance for each organizational unit, purpose or activity shall constitute the annual appropriation for such item.

The Council may, by vote of three-fifths (3/5) of its membership, make additional appropriations to the Merged Government during any fiscal year, provided that the additional funds are derived from unappropriated funds. In addition, the Council may, by a majority vote of its members, empower the Mayor to transfer the unencumbered

balance of any appropriation, or portion thereof, to another appropriation category within the same section of the budget and within the same fund. In no case shall the Council authorize the transfer of funds from one services district appropriation to another as specified in Parts I and II of the annual operating budget.

8.05. Adoption of the Annual Capital Improvements Budget.

The Council shall, upon receipt of the annual capital improvements budget from the Mayor, schedule one (1) or more public hearings on the contents of said budget. The Council may, however, schedule such hearings on the annual capital improvements budget concurrently with those scheduled to hear testimony on the annual operating budget. Notice of hearings shall be published in a newspaper of general circulation in the territory of the Merged Government at least seven (7) days prior to the date set for such hearings.

The Council may delete projects from the annual capital improvements budget as submitted to it by the Mayor, but shall not otherwise amend said budget until it has requested in writing the recommendations of the Mayor and the Chief Administrative Officer concerning any proposed amendment the Council intends to make. The Council may specify a time limit of not less than five (5) days within which the Mayor and the Chief Administrative Officer may provide written recommendations. The Council shall not be bound by such written recommendations, and may act without them if they are not received within the time limit specified by the Council.

Adoption of the annual capital improvements budget by the Council shall be in the form of an annual capital improvements ordinance which shall specify the capital improvements to be made during the next fiscal year and the contents of the capital improvements program planned for the next five (5) fiscal years. Said ordinance shall be adopted by the Council and forwarded to the Mayor not later than the fifteenth day of June each year. Final action on the annual capital improvements ordinance, including Council action on any veto by the Mayor, shall be completed by the thirtieth day of June each year.

All appropriations for capital improvements expenditures for the next fiscal year shall be included in the annual operating appropriations ordinance. Said appropriations by the Council shall be in conformity with that part of the annual capital improvements program applicable to the next fiscal year; and shall be consistent with the descriptions of proposed expenditures, sources of revenue and type of capital improvements to be made during that fiscal year as set forth in the annual capital improvements ordinance.

8.06. Levy of Taxes.

Following the final adoption of the annual operating appropriation ordinance on or before the thirtieth day of June each year, the Council shall:

(a) Levy, by ordinance, an ad valorem tax on all properties, real and personal, within the General Services District as are now or hereafter may be subject to such taxation by counties containing cities of the second class under the Constitution and laws of the Commonwealth of Kentucky. The rates set by ordinance for the ad valorem tax on property within said services district shall not exceed those established by the Constitution and laws of the Commonwealth of Kentucky for counties containing cities of the second class, and shall be consistent with the provisions of this Charter governing ad valorem

taxes within the General Services District. In addition, said tax rates shall be based on a reasonable estimate of the cash revenues required from ad valorem property taxes to cover those appropriations made under Part I of the annual operating and capital improvements budget ordinances for the General Services District.

(b) Levy, by ordinance, an additional ad valorem tax on all properties, real and personal, within the Full Urban Services District and such Partial Urban Services Districts as may be created or established by the Council as are now or hereafter may be subject to such taxation by cities of the second class under the Constitution and laws of the Commonwealth of Kentucky. The rates set by ordinance for the additional ad valorem tax on property within said services districts shall not exceed those established by the Constitution and laws of the Commonwealth of Kentucky for cities of the second class, and shall be consistent with the provisions of this Charter governing ad valorem taxes within the Full Urban Services District and Partial Urban Services Districts. In addition, said tax rates shall be based on a reasonable estimate of the cash revenues required from ad valorem property taxes to cover those appropriations made under Part II of the annual operating and capital improvements budgets or ordinances for the Full Urban Services and Partial Urban Services Districts not covered by the ad valorem tax imposed on property within said districts under the provisions of this Charter governing the General Services District.

(c) Levy, by ordinance, such other taxes as are now or hereafter may be levied by counties containing cities of the second class or by cities of the second class themselves under the Constitution and laws of the Commonwealth of Kentucky as may be required to meet the annual appropriations for the General Services District, the Full Urban Services District and such Partial Urban Services Districts as the Council may create. All tax levies made under this section shall be uniform throughout the territorial limits of the Merged Government, and shall be based on a reasonable estimate of the cash revenues required to cover the appropriations made under Parts I and II of the annual operating and capital improvements budget ordinances not covered or anticipated by the levy of the ad valorem tax imposed on property located within the General Services District, the Full Urban Services District, or such Partial Urban Services Districts as may be created by the Council.

The Merged Government Council shall provide, by ordinance, for the manner and method of collecting all delinquent taxes due the Merged Government as may be consistent with, the laws of Kentucky.

Note(s)—The enabling legislation for ad valorem property taxes is KRS 67A.850 and for occupational license fees is KRS 67A.060, 67A.070(1), 92.280(2) and 92.281. The ad valorem tax on real property may be raised only in accordance with KRS 132.027 and the ad valorem tax on personal property is limited by KRS 132.029. See also note at Section 2.01.

8.07. Homestead Exemptions.

All homestead exemptions provided under the Constitution and laws of the Commonwealth of Kentucky presently in force, or as may be hereafter provided, shall be applicable to all property located within the territorial limits of the Merged Government.

8.08. Independent Audit.

An annual independent audit of such accounts and other evidences of financial transactions of the Merged Government shall be performed as the Council may determine; provided that said audit shall be made by an accountant or accounting firm that does not have any pecuniary, personal or other interest, direct or indirect, in the fiscal affairs of the Merged Government or any of its offices, departments, agencies, boards and commissions. Said audit shall be completed not later than four (4) months after the close of the fiscal year, and shall be made public in a manner prescribed by the Council. In addition, the Council may, at any time, order an independent audit of any office, department, agency, board or commission of the Merged Government, provided that the Council gives adequate notice of its intent to do so.

8.09. Borrowing and Indebtedness.

The Lexington-Fayette Urban County Government may issue any bonds which counties containing a city of the second class or cities of the second class are, or hereafter may be, authorized to issue under the Constitution and laws of the Commonwealth of Kentucky. All bonds issued by the Merged Government after the effective date of this Charter shall be allocated to the General Services District, the Full Urban Services District, or any Partial Urban Services Districts for the purpose of funding services rendered by the Merged Government in said districts.

All bonds issued before the effective date of this Charter by the County of Fayette and all bonds authorized but unissued by the County of Fayette on the effective date of this Charter shall be allocated to the General Services District. All bonds issued before the effective date of this Charter by the City of Lexington and all bonds authorized but unissued by the City of Lexington on the effective date of this Charter shall be allocated to the Full Urban Services District.

8.10. General Obligation and Revenue Bonds.

All general obligation bonds shall be issued in the name of the Lexington-Fayette Urban County Government and shall be an obligation thereof. The full faith and credit of the Merged Government shall be pledged for all general obligation bonds issued under the provisions of this Charter.

The Council of the Merged Government is hereby empowered and authorized to issue revenue bonds for the purpose and manner as now or hereafter may be provided under the general laws of Kentucky governing counties or cities of the second class.

All revenue derived by the Merged Government from the issuance and sale of bonds shall be used exclusively for the purposes for which such bonds were issued, and all taxes or other revenues collected for the purpose of servicing or retiring such bonds shall be used exclusively for the payment of principal and interest thereof.

8.11. Debt Service and Debt Limitation.

There shall be a Debt Service Fund for each services district established by this Charter, or by ordinance pursuant thereto, for the amortization of the respective bonds issued for each services district, including bonds issued prior to the effective date of this Charter by either the City of Lexington or the County of Fayette allocated to any particular services district under the terms of this Charter. All debt service funds, or their equivalent, for bonds issued by the City of Lexington or the County of Fayette prior to the effective date of this Charter shall be transferred to the Debt Service Fund of the services district to which such bonds are allocated by this Charter.

For purposes of computing the legal debt limitations applicable to the Lexington-Fayette Urban County Government under the Constitution and laws of the Commonwealth of Kentucky, the following definitions shall apply:

(a) The General Services District shall be construed as a county containing a city of the second class.

(b) The area embraced by the Full Urban Services District, plus the area embraced by all Partial Urban Services Districts created under the terms of this Charter, shall be construed as a city of the second class.

Article 9

Personnel and Pension Systems[1]

9.01. General.

It shall be the policy of the Lexington-Fayette Urban County Government to hire, promote and compensate all employees without regard to race, sex, creed or national origin.

9.02. The Classified Civil Service.

All positions in the Lexington-Fayette Urban County Government shall be in the classified civil service except:

A. Officers elected by the voters, and persons appointed to fill vacancies in elective offices;

B. Members of all boards, commissions and authorities established under the provisions of this Charter or by ordinance pursuant thereto;

C. The Chief Administrative Officer;

D. Department Commissioners of all executive departments created by this Charter or by ordinance pursuant thereto;

E. All administrative assistants appointed by the Mayor under the provisions of Section 5.08 of this Charter and all secretaries so excluded by the provisions of said section;

1. **Note(s)**—See KRS 67A.200 et seq., and 95.435 et seq., and Code of Ordinances Chapters 6, 21, 22 and 23, relating to the personnel and pension systems.

F. Temporary or part-time employees and all persons employed to conduct special inquiries, investigations or studies for the Merged Government.

9.03. Rules and Regulations Governing the Classified Civil Service.

Subject to the provisions of Section 9.02 of this Charter, all rules and regulations pertaining to the classified civil service set forth in Chapter Six of the "Code of Ordinances, City of Lexington, Kentucky" on the effective date of this Charter shall continue in full force and effect. Said rules and regulations shall remain in effect until such time as the Council adopts by ordinance a comprehensive classified civil service plan for the Lexington-Fayette Urban County Government.

Subject to the limitations set forth in Section 9.02, all employees of the City of Lexington and the County of Fayette not covered by the above rules and regulations on the effective date of this Charter shall be placed under the classified civil service at a classification level commensurate with the kind and type of duties assigned to said employees by the City of Lexington or the County of Fayette immediately prior to the effective date of this Charter. In no case shall any employee placed under the classified civil service in accordance with this provision receive a salary or wage lower than that received on the effective date of this Charter.

Nor shall any such employee be subject to any examination or certification requirements except those pertaining to promotion or change of classification after their initial entry into the classified civil service.

9.04. Adoption of a Classified Civil Service Plan for the Merged Government.

As soon as practical, but not more than two (2) years after the effective date of this Charter, the Division of Personnel in the Office of Administrative Services shall prepare and submit to the Mayor and the Chief Administrative Officer a comprehensive plan for a classified civil service system for the Lexington-Fayette Urban County Government. Said plan shall then be submitted to the Council along with such written recommendations as the Mayor and the Chief Administrative Officer may wish to make. Among other things, the aforementioned plan shall provide for:

(a) The position classification of all positions in the classified civil service;

(b) The procedures for recruiting, examining and certifying all candidates for positions in the classified civil service;

(c) The method and procedure for promoting persons in the classified civil service;

(d) The rules governing hours of work, vacations, sick leave, leaves of absence, layoffs, suspension and other disciplinary actions, in-service training, employee salaries and benefits; and

(e) Such other provisions as may be necessary for the efficient operation and administration of the classified civil service.

Adoption of the comprehensive classified civil service plan shall be by ordinance passed by the Council. All subsequent additions, revisions or amendments affecting the classified civil service shall be made by ordinance. In no

case shall the Council initiate or enact any such additions, revisions or amendments without first securing the written recommendations of the Mayor, the Chief Administrative Officer and the Director of the Division of Personnel.

Pursuant to Section 7.03 of this Charter, the Division of Personnel shall consult with and seek the advice of the Civil Service Commission on all matters pertaining to the preparation, adoption and subsequent revision of the comprehensive classified civil service plan for the Merged Government.

9.05. Administration of the Classified Civil Service.

Pursuant to the provisions of Section 6.04 of this Charter, the Division of Personnel in the Office of Administrative Services shall be responsible for the administration of all ordinances and regulations pertaining to the classified civil service, including all recruitment, examination, classification, probation, promotion and compensation programs affecting the classified civil service.

The Civil Service Commission, in accordance with the provisions of Section 7.03 of this Charter, shall advise the Division of Personnel on all matters pertaining to the management and administration of the classified civil service, and shall officially certify all applicants to be placed on the list of qualified persons eligible for positions in the classified civil service. Said commission shall also hear and decide, subject to appeal as provided in Chapter Six of the Code of Ordinances for the City of Lexington or ordinance passed by the Council of the Merged Government in pursuance of this Charter, all cases involving the suspension, dismissal or other disciplinary actions brought against employees covered by the classified civil service provisions of this Charter.

9.06. The Unclassified Civil Service.

Except as otherwise provided in this Charter, the Council shall establish by ordinance the qualifications, compensation and other terms of employment for all employees exempted from the classified civil service.

All temporary or part-time employees of the City of Lexington and the County of Fayette not covered by the provisions of this Charter pertaining to the classified civil service on the effective date of this Charter shall be retained for a period of sixty (60) days. Thereafter, said employees shall be retained only by affirmative action by the Council on recommendation of the Chief Administrative Officer and the Director of the Division of Personnel.

The Division of Personnel shall administer all ordinances and regulations pertaining to the employment and compensation of persons exempted from the classified civil service under the terms of this Charter.

9.07. Employee Pension Plans Continued.

All pension and retirement plans of the City of Lexington existing on the effective date of this Charter shall continue in full force and effect. All benefits and rights provided by said plans shall continue unimpaired and shall constitute an obligation and liability of the Lexington-Fayette Urban County Government. The Council may, within the limits of law, increase the rights and benefits of said plans, but may not decrease such rights and benefits.

All persons entitled to benefits under the aforementioned pension plans on the effective date of this Charter shall continue to be entitled to such benefits. After the effective date of this Charter, service with the Merged Government shall constitute service under the terms and provisions of said plans for the purpose of determining eligibility of benefits. In no case shall any employees of the Merged Government be entitled to benefits under said plans unless they are a member thereof.

9.08. Membership in Pension Plans.

All members of the police and firemen and other employee pension plans of the City of Lexington on the effective date of this Charter shall continue as members of said plans unless otherwise specifically exempted therefrom under the provisions of this Charter. All new employees entering the classified civil service of the Merged Government after the effective date of this Charter shall be enrolled as members of the police and firemen or other employee pension plan in accordance with the terms and conditions for membership therein. No other employee, including those employees of the City of Lexington and County of Fayette entering the classified civil service of the Merged Government in accordance with the provisions of Section 9.03 of this Charter, shall be eligible for membership in said pension plans until the Council has provided by ordinance for the terms and conditions to be applied in extending the membership of any pension plan beyond the limits set forth in this Charter.

In no case shall the Council extend the membership in any pension plan beyond the limits set forth in this Charter that will result in the impairment, curtailment or diminishment of any right or benefit accrued by any person who is a member of said plan on the effective date of this Charter. Nor shall the Council extend membership in any pension plan to any employee of the Merged Government exempted from the classified civil service. However, the Council may provide by ordinance for the continuation of membership in any pension plan for any classified civil service employee appointed as an Administrative Assistant to the Mayor or as a Department Commissioner under the provisions of Sections 5.08 or 6.02 of this Charter.

Note(s)—Under KRS 78.510(6), 78.531 and 78.540 every regular full-time appointed or elective officer or employee, except members of the Policemen's and Fire Fighter's Retirement Fund and City Employees Pension Fund, of an urban county government participating in the County Employees Retirement System must be included in the membership of that fund. The Lexington-Fayette Urban County Government is a participant in the County Employees Retirement System, so full-time non-classified civil service employees are covered by the pension plan.

9.09. Administration of Pension Plans.

Pursuant to Section 6.04 of this Charter, the Division of Personnel in the Office of Administrative Services shall administer all employee pension and retirement programs of the Merged Government. All decisions concerning the management, investment and administration of the pension funds for police and firemen and other employees shall be made by the appropriate pension fund board designated in Section 7.04 of this Charter.

9.10. Other Retirement Systems.

The Council is hereby authorized and empowered to establish and provide such other pension systems, Social Security programs or other retirement benefits allowable under law as may be deemed necessary or desirable for those employees not covered by the pension provisions of Sections 9.07 and 9.08 of this Charter.

9.11. Construction.

Except as otherwise provided in this Charter, the Council shall have the power to establish, delegate and otherwise provide for the operation and administration of all policies pertaining to the employment, compensation and fringe benefits of all employees of the Merged Government.

Article 10

Urban County Courts[1]

10.01. General.

The courts of the Lexington-Fayette Urban County Government shall consist of a Quarterly Court, a County Court, and three (3) Justices' Courts. The Municipal Court of the City of Lexington shall be terminated thirty (30) days after the effective date of this Charter; and all powers, duties and jurisdictional authority of said Court shall be vested in the Urban County Courts and such other Courts as the laws of Kentucky may now, or hereafter, provide.

Note(s)—The provision delaying the termination of the municipal court until thirty days after the effective date of the Charter was held invalid. The effect of this ruling was that the former police court of the City of Lexington was terminated as of the effective date of the Charter on January 1, 1974, rather than thirty days later. Holsclaw v. Stephens, supra, at 480-481.

10.02. Status of the Circuit Courts.

The Circuit Courts in and for the County of Fayette shall continue without interruption resulting from the adoption of this Charter, and nothing herein shall be construed as affecting the legal jurisdiction of said Courts. The Judges of said Courts shall submit all requests for annual operating funds, above and beyond those items covered by fees and emoluments provided by law, to the Merged Government in accordance with the provisions of Article Eight of this Charter. All other legal provisions pertaining to the relationship between Circuit Courts and Counties on the date this Charter is put into effect shall be maintained between said Courts and the Urban County Government.

1. **Note(s)**—The structure of the local court system was modified by Kentucky Constitution Sections 109-124, effective January 1, 1976.

10.03. Quarterly Court.

The Quarterly Court of Fayette County, as constituted under the Constitution and laws of the Commonwealth of Kentucky on the effective date of this Charter, shall continue in full force and effect. The Judge of said Court shall be the County Judge as provided in Section 11.01 of this Charter. Said Court shall be organized into a Civil Division, a Criminal Division, a Traffic Division, and such other divisions as the County Judge may from time to time deem necessary. The Judge of the Quarterly Court shall appoint such Trial Commissioners as may be authorized and funded by the Council of the Merged Government to handle the case load of the Quarterly Court or its various divisions.

10.04. County Court.

The County Court of Fayette County, as constituted under the Constitution and laws of the Commonwealth of Kentucky on the effective date of this Charter, shall continue in full force and effect. The Judge of said Court shall be the County Judge as provided in Section 11.01 of this Charter. Said Court shall be organized into a Probate Division, a Juvenile Division, and such other divisions as the County Judge may from time to time deem necessary. The Judge of the County Court shall appoint such Trial Commissioners as may be authorized and funded by the Council of the Merged Government to handle the case load of the County Court or its various divisions.

10.05. Justices' Courts.

The Justices' Courts, as constituted and operated in Fayette County under the Constitution and laws of the Commonwealth of Kentucky on the effective date of this Charter, shall continue in full force and effect. No additional duties, powers or jurisdictional authority above and beyond those actually exercised by the Justices' Courts in Fayette County at the time this Charter is put into effect shall be funded by the Merged Government; nor shall the Merged Government authorize or fund more than three (3) Justices of the Peace. Any statutory or constitutional provisions which shall now or hereafter reduce or eliminate the powers, duties, or jurisdiction authority of the Justices' Courts or Justices of the Peace shall be implemented forthwith by the Merged Government Council.

10.06. County Judge as Administrator of the Urban County Courts.

Within the limits of the Constitution and laws of the Commonwealth of Kentucky, the County Judge shall serve as the administrator of the Urban County Courts specified in Section 10.01 of this Charter. As Judge of the Quarterly Court and the County Court, the County Judge shall submit an annual request for operating funds, above and beyond those items covered by fees and emoluments provided by law, to the Merged Government in accordance with the provisions of Article Eight of this Charter. All requests for annual operating funds, above and beyond those items covered by fees and emoluments provided by law for Justices' Courts, shall be submitted to the County Judge and then to the Merged Government in accordance with the provisions in Article Eight of this Charter.

Nothing in this Charter shall be construed as affecting the powers of the County Judge with respect to clerical, stenographic, Deputy Constables, or other officers of the Quarterly Court, the County Court, or the Justices' Courts; provided that all such positions requiring funding under law, in whole or in part, out of the annual oper-

ating budget of the Lexington-Fayette Urban County Government shall be authorized and funded under the budgetary provisions of this Charter. The Merged Government may, on request of the County Judge, provide and fund such additional Trial Commissioners as may be deemed necessary to operate the Quarterly Court, the County Court, and the divisions thereof.

Note(s)—This section was determined to be invalid to the extent that it might be construed to require approval by the council of appointment of trial commissioners by the county judge. Id. at 481.

10.07. The Commonwealth Attorney and the County Attorney as Agents of the Circuit and Urban County Courts.

The Commonwealth Attorney and the County Attorney, as agents and officers of the Circuit and Urban County Courts, shall:

(1) Submit all requests for annual operating funds above and beyond those items covered by fees and emoluments provided by law to the Merged Government in accordance with the provisions of Article Eight of this Charter; and

(2) Submit all recommendations for Assistant Commonwealth and Assistant County Attorneys respectively to the Council of the Merged Government for approval by a majority of the members of said Council.

Note(s)—Subsection 2 requiring the approval of the council for assistant commonwealth and assistant county attorneys was likewise invalid. Id. at 481.

Article 11

Functions of Constitutional County Officers[1]

11.01. County Judge.

Nothing in this Charter shall be construed to alter or affect the election, term or compensation of the County Judge; nor shall any provision of this Charter be construed to alter or affect the judicial powers, duties and responsibilities of the County Judge as prescribed by the Constitution and laws of the Commonwealth of Kentucky. The County Judge is hereby recognized as an officer of the Merged Government in the exercise of his judicial functions, having the same relationship to the Merged Government in the performance of said functions as previously existed between the County Judge and the County of Fayette.

The term "judicial powers" shall be construed to include all those powers and functions generally held to be judicial in nature that accrue to the County Judge as Judge of the County Court and Judge of the Quarterly Court, including the power to appoint all officers of said Courts as prescribed by law.

In addition to the aforementioned judicial powers, the County Judge shall retain:

1. **Note(s)**—See Holsclaw v. Stephens, supra, at 474, note 2, relating to constitutional county officers.

(1) The power to fill vacancies in the office of Sheriff, Coroner, Surveyor, County Clerk, County Attorney, Jailer and Property Valuation Administrator in accordance with the provision of KRS 63.220;

(2) The power to appoint a three (3) member Board of Supervisors in accordance with the terms and provisions of KRS 133.020;

(3) Such powers over the organization and conduct of elections as the County Judge may be assigned under the laws of the Commonwealth of Kentucky; and

(4) The right to serve on the County Budget Commission in accordance with the provisions of KRS 68.230.

Note(s)—The county judge no longer retains any judicial powers following the adoption and implementation of Kentucky Constitution Sections 109-124, effective January 1, 1976. The title of the position is now county judge/executive pursuant to KRS 67.700 et seq. See note at Section 7.06 relating to the board of assessment appeals and note at Section 7.05 relating to budget commissions.

11.02. Fiscal Court.

Nothing in this Charter shall be construed to alter or affect the election or term of members of the County Fiscal Court.

A. Composition—The County Fiscal Court shall be composed of the Judge of the County Court and three (3) Commissioners to be elected from the Urban County at-large in accordance with the Constitution and laws of Kentucky pertaining to the election of said officers.

B. Compensation of Fiscal Court Commissioners—Fiscal Court Commissioners shall receive no compensation for their services.

C. Powers—The Fiscal Court shall retain:

(1) Its powers to levy the ad valorem tax and such other taxes as may be provided by law for public schools as specified by the Fayette County School District; and

(2) Its powers under KRS 179.420 to advise the Kentucky Department of Highways concerning the construction and maintenance of roads to be funded under the State Rural Secondary Highway Fund and the State Rural Highway Fund; and

(3) Its power to appoint one (1) person to serve along with the County Judge and the County Attorney on the County Budget Commission.

The Fiscal Court is hereby deprived of the power to levy taxes other than those specifically mentioned in this section, to approve or disapprove local acts or otherwise administer the governmental affairs of the Merged Government. Said powers are hereby transferred to the Urban County Government.

Note(s)—Subsection B requiring members of the fiscal court to serve without compensation is invalid. Holsclaw v. Stephens, supra, at 481, note 2. The salary of the members is set by Code of Ordinances Section 22-5. Subsection C(1) has been effectively amended by the provision of KRS 160.460 providing for the levy of all school taxes by the board of education of each school district. Subsection C(2) was addressed in OAG 77-754, wherein it was held that inasmuch as KRS 179.420 actually applied to the county road program rather than the secondary and rural road program, that Charter Section 11.02(C)(2) should be read to apply to the county road program. Subsequently, KRS 179.420 was repealed and KRS 179.415 was enacted by the 1980 General Assembly. The fiscal court and council annually enter into an agreement deciding how the county road aid program monies are to be used on county roads and bridges in Fayette County. See note at Section 7.05 with respect to the county budget commission.

11.03. County Court Clerk.

Nothing in this Charter shall be construed to alter or affect the election, term or compensation of the County Court Clerk. Except as otherwise provided in Section 4.10, no provision of this Charter shall be construed to alter or affect the powers, duties and responsibilities of the County Court Clerk. The County Court Clerk is hereby recognized as an officer of the Merged Government in the exercise of his functions, having the same relationship to the Merged Government in the performance of said functions as previously existed between the County Court Clerk and the County of Fayette.

Pursuant to this relationship, all fees, commissions, emoluments and perquisites of the office of County Clerk shall accrue to the Merged Government as the same formerly accrued to the County of Fayette.

11.04. County Attorney.

Nothing in this Charter shall be construed to alter or affect the election, term or compensation of the County Attorney. Except as otherwise provided in Section 6.05, no provision of this Charter shall be construed to alter or affect the powers, duties or responsibilities of the County Attorney. The County Attorney is hereby recognized as an officer of the Merged Government in the exercise of his functions, having the same relationship to the Merged Government in the performance of said functions as previously existed between the County Attorney and the County of Fayette.

11.05. Sheriff.

Nothing in this Charter shall be construed to alter or affect the election, term or compensation of the County Sheriff; nor shall any provision of this Charter, except as otherwise provided in this section, be construed to alter or affect the powers, duties or responsibilities of the County Sheriff as prescribed in the Constitution and laws of the Commonwealth of Kentucky. While the Sheriff shall retain all powers as a peace officer under the aforementioned Constitution and laws, it is the intent of this Charter that the Sheriff shall not be the principal conservator

of the peace for the Merged Government. The function of principal conservator of the peace is hereby transferred and assigned to the Chief of Police as provided in Section 6.07 of this Charter. The County Sheriff is hereby recognized as an officer of the Merged Government in the exercise of his functions, having the same relationship to the Merged Government in the performance of said functions as previously existed between the County Sheriff and the County of Fayette. Pursuant to this relationship, all fees, commissions, emoluments and perquisites of the Office of Sheriff shall accrue to the Merged Government as the same formerly accrued to the County of Fayette.

Note(s)—Sections 11.05 and 11.07—The sheriff and jailer were merged effective January 3, 1994, by 1990 Ky. Acts Ch. 138.

11.06. Property Valuation Administrator.

Nothing in this Charter shall be construed to alter or affect the election, term or compensation of the County Property Valuation Administrator. Nor shall any provision of this Charter be construed to affect or otherwise alter the powers and duties of said officer as prescribed by the Constitution and laws of the Commonwealth of Kentucky. Said officer shall be the chief assessing officer of the Urban County Government and shall be recognized as an officer of said government having the same relationship to the Urban County Government as previously existed between the Property Valuation Administrator and the County of Fayette.

11.07. Other Constitutional County Officers.

Nothing in this Charter shall be construed to alter or affect the election, term or compensation of any other constitutional officer, including the offices of Circuit Court Clerk, Commonwealth Attorney, Justices of the Peace, Constable, Jailer, Coroner or Surveyor. Nor shall any provision of this Charter be construed to alter or affect the powers, duties or responsibilities of said officers as prescribed by the Constitution and laws of the Commonwealth of Kentucky. All officers referred to or falling under this Section are hereby recognized as officers of the Merged Government in the exercise of their functions, having the same relationship to the Merged Government in the performance of said functions as previously existed between these officers and the County of Fayette. Pursuant to this relationship, all fees, commissions, emoluments and perquisites of any office covered by this Section shall accrue to the Merged Government as the same formerly accrued to the County of Fayette.

11.08. Construction.

Any conflict, dispute or other claim regarding the powers, duties, functions or responsibilities of the aforementioned constitutional officers shall be resolved in favor of the Merged Government, unless the same can be related directly to a constitutional grant of authority under the Constitution of the Commonwealth of Kentucky.

Article 12

Conduct of Elections

12.01. General Elections.

The election of all elected officers of the Merged Government specified in Articles Four and Five of this Charter shall be held on the first Tuesday after the first Monday in November of odd numbered years. Pursuant to the provisions of Article Four, all Council members to be elected from districts shall be elected only by the qualified voters in each district. All other officers shall be elected by the qualified voters of the Urban County. All officers shall be elected by a majority vote.

The election of all officers specified in Article Eleven of this Charter shall be held on the first Tuesday after the first Monday in November pursuant to the provisions of Sections 97 and 99 of the Constitution of the Commonwealth of Kentucky.

Note(s)—The year in which elections for the officers of the Urban County Government are held was changed to even numbered years, pursuant to an amendment to the Kentucky Constitution proposed by Ky. Acts Ch. 168 and ratified by the voters on November 3, 1992.

12.02. Primary Elections.

All candidates for offices specified in this Charter shall be nominated by a primary election. Primary elections shall be held on the first Tuesday after the fourth Monday in May of each election year.

Procedures for petitioning, filing and certifying applicants for nomination for all offices specified in Article Eleven of this Charter shall be as prescribed by applicable state law.

Procedures for petitioning, filing and certifying applicants for nomination for the offices of Mayor and council member as provided in Articles Four and Five of this Charter shall be as prescribed by KRS 89.440, except that KRS 89.440(4) shall be construed to mean that a primary election will be held if there are:

1. More than two (2) applicants for nomination as Mayor; or
2. More than two (2) applicants for district council member in any council district; or
3. More applicants for at-large council members than twice the number of at-large council members to be elected.

12.03. Qualified Voters.

All residents of the Lexington-Fayette Urban County who are lawfully registered and qualified to vote pursuant to the Constitution and laws of the Commonwealth of Kentucky shall be entitled to vote in all Merged Government elections.

12.04. Public Questions.

Public questions shall be enacted in accordance with the provisions for initiative and referendum as specified in KRS 89.600 and 89.610.

Note(s)—Sections 12.02 and 12.04—KRS 89.440 has been repealed, but the Fayette Circuit Court has held that it still applies in Fayette County. Wallace v. Blevins, No. 83-CI-2729 (September 13, 1983 Order); Fields v. Frazier, No. 85-CI-2146 (September 3, 1985 Judgment). See KRS 67A.060(2). However, the Kentucky Supreme Court commented in Candler v. Blevins, supra, at 378, that the General Assembly had "repealed" KRS 89.600 and 89.610 and, thus, removed any such authority from the people of Fayette County.

12.05. Applicability of General State Law.

All general election laws of the Commonwealth of Kentucky shall be applicable to the Merged Government elections, except as herein expressly provided to the contrary.

Article 13

Miscellaneous Provisions

13.01. Titles and Subtitles Not Part of Charter.

The titles, subtitles and captions appearing before the articles and sections of this Charter are not part thereof and are not intended to determine or restrict the meaning of its provisions. No substantive provision of this Charter shall be construed to be unintended, ineffective or otherwise affected because the same has not been suggested, indicated or specified by a title or subtitle. Titles and subtitles have been placed in this Charter merely for the convenience and information of those who examine or index its provisions.

13.02. Severability Clause.

If any section, subsection, paragraph, sentence, clause or phrase of this Charter, or the application thereof to any person or circumstance, should be declared invalid for any reason whatsoever, such decision shall not affect the remaining portions or other applications of this Charter, which shall remain in full force and effect; and to this end the provisions of this Charter and the applications thereof are hereby declared to be severable.

13.03. Fidelity Bonds.

All officers and employees of the Urban County Government, both elective and appointive, shall execute such official bonds in such amounts and upon such terms and conditions as the law or the Council may from time to time require.

13.04. Federal, State and Other Aid.

The Lexington-Fayette Urban County Government shall be deemed a county and shall also be deemed an incorporated municipality of the second class under the Constitution and laws of Kentucky for the purpose of applying for or receiving any aid or grant-in-aid from the Commonwealth of Kentucky, the Government of the United States, or any other agency. When state aid or other grant-in-aid is distributed to any county on the basis of population or area, or both, then the entire population and the total area of the Lexington-Fayette Urban County shall be considered in calculating and determining the basis for such distribution.

When state aid or other grant-in-aid is distributed to any county on the basis of rural area, rural road mileage or rural population, or any combination thereof, then that area of the General Services District outside the Full Urban Services District and outside any Partial Urban Services Districts created by the Council shall be deemed to constitute rural area, its road mileage to constitute rural road mileage, and its population to constitute rural population. When state aid or other grant-in-aid is distributed to any incorporated city or municipality on the basis of population or area, or both, then the population and area of the Full Urban Services District and all Partial Urban Services Districts created by the Council shall be deemed the population and the area of the Urban County Government for the purpose of calculating and determining the basis of such distribution.

Note(s)—See KRS 67A.050.

13.05. Authority To Deal With Federal and State Agencies.

Subject to the provisions of this Charter, the Lexington-Fayette Urban County Government shall have the power and authority to participate in, cooperate in and take all necessary action with respect to any and all projects, programs and undertakings of any nature whatsoever authorized by statute, rule or regulation of the United States or the Commonwealth of Kentucky, or any federal or state agency or instrumentality, including but not limited to, airports, highways, housing, transportation, public safety, urban renewal, neighborhood redevelopment, sewers and sewage disposal, environmental protection, parks and recreation and social welfare. Pursuant to such participation and cooperation, the Urban County Government shall have the power to borrow money, issue promissory notes and general obligation bonds or revenue bonds and execute mortgages or deeds of trust in favor of any state or federal agency secured by property of which the Urban County Government is the legal or beneficial or equitable owner.

13.06. Fayette County School District.

Nothing in this Charter shall be construed to affect in any manner whatsoever the legal status of the Fayette County School District, the Fayette County School Board or the Fayette County public school system. All legal, contractual and other relationships between said district, board or system and the County of Fayette and/or the City of Lexington on the effective date of this Charter shall be continued, subject to the provisions of Section 11.02 of this Charter. The Fayette County School Board may, however, redesignate the Fayette County School District as the Lexington-Fayette Urban County School District.

13.07. Water Districts.

All Water Districts created, established or otherwise provided for by the County of Fayette on the effective date of this Charter shall be continued. All vacancies on any Water District Boards or Commissions after the effective date of this Charter shall be filled by the Mayor, subject to the provisions of Section 7.02 of this Charter.

The Lexington-Fayette Urban County Government shall have the same authority over any water district covered by this Section, or any water district subsequently created by the Council of said government, as exercised by the County of Fayette on the effective date of this Charter.

Note(s)—The Fayette County territory was removed from the South Elkhorn Water District by Resolution No. 121-89.

Article 14

Amending the Charter[1]

14.01. General.

Except as otherwise provided, the voters of the Urban County may amend this Charter in accordance with the provisions of this Article.

14.02. Amendment Proposals.

Except as otherwise provided, all amendments to this Charter shall be proposed and placed on the ballot by:

1. An ordinance passed by a roll call vote of three-fifths (3/5) of the members of the Council; or
2. A petition signed by a number of qualified voters equal to ten (10) per cent of the vote cast in the last preceding regular mayoral election of the Merged Government.

Any amendment which has the effect of abolishing the Merged Government may be placed on the ballot only if petitioned by a number of qualified voters equal to fifteen (15) per cent of the vote cast in the last preceding regular mayoral election of the Merged Government. Said amendment shall become effective in accordance with the provisions of this Charter and only at such time as the General Assembly of Kentucky has established a successor government to replace and supersede the government established by this Charter.

Each proposed amendment shall pertain only to a single article of this Charter.

Note(s)—That portion of this section is invalid which provides that no amendment which has the effect of abolishing the Charter shall become effective until such time as the General Assembly of Kentucky has established a successor government to replace and supersede the government established by the Charter. See Holsclaw v. Stephens, supra, at 480.

1. **Note(s)**—See Goodloe v. Baesler, Ky., 539 S.W.2d 298 (1976); Candler v. Blevins, supra; and Blakely v. Blevins, supra, relating to Charter amendments. Three amendments have successfully proposed to the Charter; see notes at Sections 4.04, 4.07 and 5.02.

14.03. Referendum; Effective Date.

All ordinances or petitions for amendment shall be filed with the County Clerk not less than ninety (90) days prior to the next regular general election. Notice of the referendum shall be published not fewer than three (3) times within thirty (30) days of the election in a newspaper having a general circulation in the territory of the Merged Government. Notice of the referendum shall set forth the exact language of the proposed amendment, shall be prepared by the Department of Law of the Merged Government and shall be submitted to the County Clerk for placement on the ballot under the terms and limitations of Kentucky law governing the preparation of ballots.

The proposed amendment shall appear on the ballot in the following form:

( ) FOR RATIFICATION OF (summary of proposed amendment)

( ) AGAINST RATIFICATION OF (summary of proposed amendment)

Each proposed amendment shall be ratified only when a majority of votes cast on said amendment at the election shall be in favor of ratification.

Except as provided in Section 14.02 of this Charter, if a proposed amendment is ratified it shall become a part of this Charter at the time specified in that amendment, but the effective date shall not be before the first day of January following the election.

No defeated amendment may, in any form, be placed on the ballot more than once in any two (2) year period.

14.04. Charter Revision Commission.

The Council shall be authorized to establish by ordinance a Charter Revision Commission to hold hearings and to make recommendations to the Council with respect to amendments to this Charter. Said Commission shall consist of not fewer than twenty (20) citizens.

14.05. Construction.

Appendix A of this Charter is not to be construed as part of the Charter for purposes of amendment. No amendment shall be proposed which is contrary to the Constitution of Kentucky. This Charter may also be amended in such other manner as may be provided by general law for amending the charters of Urban County Governments generally.

Article 15

Adoption of the Charter and Interim Provisions

15.01. Adoption.

The contents of this Charter and its appendices shall be deemed a "comprehensive plan of urban county government" under the terms and provisions of KRS 67A.010-67A.040, as amended. Said plan shall be submitted to

the qualified voters of Fayette County for their approval in accordance with the provisions of said law on the first Tuesday after the first Monday in November of 1972. Said plan shall be adopted in accordance with the provisions of KRS 67A.020, as amended.

Note(s)—The provisions of KRS Chapter 67A have been changed since the adoption of the Charter.

15.02. Election of the First Mayor and Council.

Pursuant to the provisions of KRS 67A, as amended, the first Mayor and the fifteen (15) members of the first Council of the Lexington-Fayette Urban County Government shall be elected on the first Tuesday after the first Monday in November, 1973. The nomination and election of said officers shall be in accordance with the provisions of Article Twelve of this Charter.

The qualifications for the first Mayor and the members of the first Council shall be the same as those prescribed in Articles Four and Five of this Charter.

15.03. Effective Date.

Except as otherwise provided herein, the effective date of this Charter shall be January 1, 1974 and all officers elected under the provisions of Section 15.01 above shall assume office on that date, and shall serve until their successors are duly qualified and assume office in accordance with the provisions of Sections 4.04 and 5.02 of this Charter. In the event that the first Mayor and members of the first Council are delayed in taking office or in functioning as the governing authority of the Lexington-Fayette Urban County Government by court order or any other cause, the effective date of this Charter shall be the earliest date thereafter when they shall have taken office and commence to function as the governing authority of said government.

15.04. Early Assumption of Limited Duties.

In the interest of planning and scheduling the full implementation of this Charter, the first Mayor and the members of the first Council of the Lexington-Fayette Urban County Government elected under the provisions of Section 15.01 above are hereby authorized and empowered to perform the following limited powers and functions during the period between their election and the effective date of this Charter:

A. Hold meetings, establish committees, and plan for the initial organization and staffing of the Urban County Government;

B. Consider and nominate persons to fill the offices of Chief Administrative Officer and Commissioners of all Executive Departments in accordance with the provisions of this Charter;

C. Prepare such initial budgetary and financial plans as may be necessary to govern the fiscal activities of the Urban County Government during the period between January 1, 1974 and the beginning of the first fiscal year for said government on July 1, 1974; and

D. Perform such other acts as may be necessary to the planning and scheduling of the implementation of this Charter.

15.05. Extra Compensation.

Due to the unusual nature of the tasks facing the first Mayor and the members of the first Council of the Lexington-Fayette Urban County Government during the transitional period between their election and the effective date of this Charter, said officers shall be entitled to receive the following compensation during said transitional period:

A. Mayor—A sum of Twenty-Five Dollars ($25.00) per day, excluding Saturdays, Sundays and holidays beginning on November 7, 1973 and ending December 31, 1973.

B. Members of the Council—A sum of Five Dollars ($5.00) per day, excluding Saturdays, Sundays and holidays beginning on November 7, 1973 and ending December 31, 1973.

Said transitional per diem compensations are to be paid to each officer in two (2) installments, one on or before the thirtieth day of November and the second on or before the thirty-first day of December, 1973, by the City of Lexington and the County of Fayette in accordance with the following formula:

A. The County of Fayette shall be responsible for that portion of said compensations equal to its percentage of the total expenditures of the City and County for the most recent fiscal year ending on or before July 1, 1973; and

B. The City of Lexington shall be responsible for that portion of said compensations equal to its percentage of the total expenditures of the City and County for the most recent fiscal year ending on or before July 1, 1973.

No officer or employee of the City of Lexington or the County of Fayette elected under the provisions of Section 15.02 of this Charter shall be entitled to the aforementioned compensation unless he or she shall have resigned or otherwise severed all connections with said City or County governments on or before the date of their election as officers of the Lexington-Fayette Urban County Government. Otherwise said officers and employees shall continue to be eligible for such compensation as they may be entitled to under law, ordinance or resolution governing their respective office or position in the government of the City of Lexington or the County of Fayette until such time as they assume office as officers of the Urban County Government under the terms of this Charter.

Note(s)—Sections 15.05 and 15.06—The provision for compensation for the mayor and council members after their initial election and before the beginning of their terms of office (November and December, 1973) was held invalid. Holsclaw v. Stephens, supra, at 480-481.

15.06. Cooperation and Obligations of Former Governments.

Following the election of the first Mayor and the members of the first Council under this Charter, all officers and employees of the City of Lexington, the County of Fayette, and all boards, commissions and authorities thereof shall assist and cooperate in the planning and scheduling of the implementation of this Charter. To that end, the officers and employees of said governments and all boards, commissions and authorities thereof shall:

A. Provide, to the extent possible, such office space, equipment and secretarial assistance as may be required by the first Mayor and the members of the first Council during the aforementioned transitional period;

B. Allow the first Mayor and the members of the first Council to examine all files, records and other data in the possession of said governments, boards, commissions and authorities during said transitional period; and

C. Appropriate sufficient funds to cover the anticipated costs of compensating and otherwise assisting the first Mayor and the members of the first Council of the Lexington-Fayette Urban County Government in accordance with the provisions of this Charter pertaining to the transitional period between the election of said officers and the effective date of this Charter.

Failure to comply with the provisions of this Section shall constitute an official breach of the spirit and intent of KRS 67A, as amended. Any officer or employee of the City of Lexington and/or the County of Fayette, their departments, boards, commissions, authorities or agencies contributing to such non-compliance shall be subject to the charge of malfeasance under appropriate law, ordinance or resolution.

15.07. Acting Chief Administrative Officer.

The Council may at its discretion, appoint the former City Manager of the City of Lexington as the Acting Chief Administrative Officer for a period not to exceed six (6) months following the effective date of this Charter. Thereafter, any persons appointed as Chief Administrative Officer of the Lexington-Fayette Urban County Government shall be appointed and retained under the provisions of Section 5.09 of this Charter.

15.08. Acting Commissioners of Executive Departments.

Any person appointed as a Commissioner of an executive department during the first six (6) months following the effective date of this Charter who is covered by the classified civil service provisions of this Charter shall be appointed as an Acting Commissioner for a period not to exceed six (6) months from the date of their appointment. Any person so appointed as Acting Commissioner shall retain all of the rights and privileges to which they were entitled under the classified civil service and/or employee pension provisions of this Charter on the effective date of such appointment. If at the end of six (6) months following their appointment as Acting Commissioner, any individual covered under the provisions of this Section wishes to accept an appointment as Commissioner they shall be removed from the classified civil service in accordance with the provisions of Section 9.02 of this Charter. All matters pertaining to the pension rights of said individuals shall be resolved in accordance with the provisions of Section 9.08 of this Charter.

15.09. Ordinances and Resolutions Continued.

All ordinances and resolutions of the City of Lexington, as codified in the "Code of Ordinances, City of Lexington, Kentucky," as amended, which are not inconsistent with the terms and provisions of this Charter shall be effective as ordinances and resolutions of the Lexington-Fayette Urban County Government until they have been

repealed, modified or amended. All orders and resolutions of the Fiscal Court of Fayette County, Kentucky, not inconsistent with the terms and provisions of this Charter shall have the legal effect of ordinances of the Lexington-Fayette Urban County Government until repealed, modified or amended.

Except as otherwise provided by this Charter, all existing rules and regulations of departments and agencies of the County of Fayette and the City of Lexington not inconsistent with the provisions of this Charter shall be effective as rules and regulations of the appropriate department, division or agency of the Lexington-Fayette Urban County Government until they have been repealed, modified or amended.

Except as may be required to implement the provisions of this Charter pertaining to the General Services District, the Full Urban Services District, and such Partial Urban Services Districts as may be created by the Council, all conflicts and inconsistencies between the ordinances, orders, resolutions, rules and regulations of the City of Lexington and the County of Fayette shall be resolved in favor of those operative in the City of Lexington on the effective date of this Charter.

15.10. Contracts, Obligations, and Legal Proceedings Continued.

Except as otherwise provided by this Charter, all contracts, orders, leases, bonds and other obligations or instruments entered into by the City of Lexington or the County of Fayette shall continue in full force and effect according to the terms thereof as obligations and rights of the Urban County Government.

All right, title and interest in all real and personal property vested in the City of Lexington and the County of Fayette on the effective date of this Charter shall be vested in the Urban County Government.

No pending action or proceeding of any nature (whether civil, criminal, judicial, administrative or other) by or against the City of Lexington and the County of Fayette or an agency or department thereof shall be abated or otherwise affected by the adoption and implementation of this Charter. To that end, the Urban County Government shall stand substituted as a party in lieu of said former governments.

15.11. Interim Fiscal Provisions.

Supplemental appropriations may be made by the Council to any department, division, board, commission or authority of the Urban County Government until June thirtieth, following the effective date of this Charter.

15.12. Protection of Existing Employees.

Upon the effective date of this Charter, all permanent employees of the City of Lexington and the County of Fayette, and all permanent employees of any department, board, authority, commission or agency thereof shall become employees of the Lexington-Fayette Urban County Government and shall be assigned duties as similar in nature as may be practicable within said government.

All permanent employees of the City of Lexington and the County of Fayette or any department, office, or agency thereof shall be entitled to be included in the classified civil service of the Urban County Government in strict accordance with the terms and conditions of Article Nine.

15.13. Dissolution of Existing Governments.

The Lexington-Fayette Urban County Government shall replace and supersede the governments of the City of Lexington and Fayette County on the effective date of this Charter.

Thereupon, the governments of Fayette County and the City of Lexington shall terminate as separate political and governmental entities and be merged into the government created by this Charter in accordance with the terms and conditions specified therein.

15.14. Transfer of Records and Equipment.

When any agency of the City of Lexington or of the County of Fayette is abolished or consolidated by this Charter, all assets, contracts, franchises, books, papers, maps, charts, plans, records, equipment and other personal property in the possession of same shall be delivered to the agency to which its rights, powers, duties and obligations are transferred. In case of controversy between two (2) or more agencies as to the rightful possession of such records and equipment, the Mayor shall be empowered to transfer same to such agency as he may direct.

Article 16

Code of Ethics[1]

16.01. Declaration of Policy.

The proper operation of democratic government requires that public officials and employees be independent, impartial, and responsible to the people; that government decisions and policy be made in the best interests of the people, the community, and the government; that public office not be used for personal gain; and that the public have confidence in the integrity of its government. In recognition of these goals, the following code of ethics shall apply to all officers and employees of the Merged Government, whether elected or appointed, paid or unpaid, and to officers and employees of other independent agencies where so provided by special laws applicable to such other independent agencies.

16.02. Conflict of Interest.

No officer or employee of the Merged Government or any independent agency to which this code of ethics applies shall knowingly:

1. Engage in any business or transaction or have a financial or other personal interest, direct or indirect, which is incompatible with the proper discharge of his official duties or would tend to impair his independence of judgment or action in the performance of his official duties;

1. **Note(s)**—In addition to the Code of Ethics, many officers and employees of the Urban County Government are also subject to the Ethics Act contained in Code of Ordinances Chapter 25.

2. Engage in or accept private employment or render services for private interest when such employment or service is incompatible with the proper discharge of his official duties or would tend to impair his independence of judgement or action in the performance of his official duties;

3. Disclose confidential information concerning the property, government, or affairs of the governmental body by which he is employed without proper legal authorization, or use such information to advance the financial or other private interest of himself or others;

4. Accept any valuable gift, whether in the form of service, loan, thing, or promise, from any person, firm or corporation which to his knowledge is interested directly or indirectly in any manner whatsoever in business dealings with the governmental body by which he is employed; provided, however, that any such officer or employee who is a candidate for public office may accept campaign contributions and services in connection with any such campaign;

5. Represent private interests in any action or proceeding before the governmental body by which he is employed; or

6. Vote or otherwise participate in the negotiation or the making of any contract with any business or entity in which he has a financial interest.

16.03. Disclosure.

Any officer or employee of the Merged Government who shall have any private financial interest, directly or indirectly, in any contract or matter pending before or within any department of the Merged Government shall disclose such private interest to the Council. Any council member who has a private interest in any matter pending before the Council shall disclose such private interest on the records of the Council and shall disqualify himself from participating in any decision or vote relating thereto. Any officer or employee of an independent agency to which this code of ethics applies who shall have any private financial interest, directly or indirectly, in any contract or matter pending before or within such independent agency shall disclose such private interest to the governing body of such independent agency.

16.04. Use of Public Property.

No officer or employee of the Merged Government or any independent agency to which this code of ethics applies shall use property owned by such governmental body for personal benefit, convenience or profit except in accordance with policies promulgated by the Council or the governing body of such independent agency.

16.05. Penalties.

The violation of any of the preceding Sections16.02 through 16.04, inclusive, shall be punishable as follows:

1. By reprimand; suspension for a period not exceeding six (6) months; reduction in rank; removal from office, employment or service; forfeiture of not more than three (3) months' salary; and loss of retirement or pension benefits, all as and when ordered by the Board of Ethics, except that no elected official may be suspended or removed from office except as provided in paragraph two below.

2. In the case of any elected official, by suspension or removal from office, when determined by the Council.

16.06. Contracts Voidable and Rescindable.

Any contract between the Merged Government or any independent agency to which this code of ethics applies and another party shall be voidable or rescindable at the option of the governmental body at any time within a period of one (1) year from the date of execution of such contract if any officer or employee of said governmental body has any interest in said contract and does not disclose such interest in accordance with Section 16.03.

16.07. Board of Ethics.

The Civil Service Commission shall act as a Board of Ethics to enforce the provisions of this code of ethics. The Board of Ethics shall, on the written request of any officer or employee coming under the code of ethics, render advisory opinions concerning the provisions of this code of ethics. The Board may at its discretion publish its advisory opinion with such deletions as may be necessary to prevent disclosure of the identity of the individual or individuals involved or concerned. The Board shall receive, hear and investigate complaints concerning violations of this code of ethics. In any instance in which the Board of Ethics finds that a violation of the code of ethics exists, the Board of Ethics may impose any one or more of the penalties provided under paragraph one of Section 16.05. In any instance in which the Board of Ethics determines that a violation of this code of ethics exists which, in the opinion of the Board, justifies the imposition of the sanctions provided in paragraph two of section 16.05, the Board of Ethics shall submit all relevant information related to such case to the Council. In hearing and investigating complaints concerning violations of this code of ethics, the Board of Ethics shall have power to subpoena witnesses, administer oaths, take testimony and require other production of evidence. Any person who fails or refuses to obey a lawful order issued in the exercise of these powers by the Board of Ethics shall be guilty of a misdemeanor and punishable by a fine of not more than One Thousand Dollars ($1,000.00) or by imprisonment for not more than ninety (90) days, or both.

Appendix A

Council Districts

The twelve initial council districts, as provided in Section 4.02 of this Charter, shall be as follows:

The First District shall include all of census tracts 3, 4, and 14; and that part of census tract 1 included within a boundary running from the intersection of North Limestone and Pleasant Streets southeast along Pleasant and Clark Streets to the intersection with Spruce Street, then northeast to the intersection with Corral Street, then

southeast along Corral Street to Midland Avenue, then following the boundary of census tract 1 east along Midland Avenue to Third Street, and then northwest along Third Street to North Limestone Street, then southwest along North Limestone Street to the intersection with Pleasant Street.

The Second District shall include all of census tracts 11 and 12; all of census tract 2 except that part included in council district 3, that part of census tract 13 not included in council district 6; that part of census tract 1 included within a boundary running from the intersection of Jefferson and West Third Streets southwest to the intersection with West Second Street, then southeast along West Second Street to the intersection with North Limestone Street, then northeast along North Limestone Street to the intersection with West Third Street, then northwest along the census tract boundary to the intersection with Jefferson Street; and that part of census tract 38 included within a boundary running from the intersection of Newtown Pike and New Circle Road north along Newtown Pike to the boundary of the City of Lexington, then generally west along the city boundary to Georgetown Pike, then south along Georgetown Pike to New Circle Road, then east along New Circle Road to Newtown Pike.

The Third District shall include all of census tracts 9, 10, and 18; all of census tract 1 except that part included in council districts 1 and 2; that part of census tract 2 included within a boundary running from the intersection of Jefferson and West Third Streets northeast along Jefferson Street to the intersection with West Fourth Street, then northwest along West Fourth Street to Newtown Pike, then along the Boundary of census tract 2 south and southeast along Newton Pike to West Third Street and then southeast along Third Street to the intersection with Jefferson Street; and that part of census tract 8 included within a boundary running from the intersection of South Limestone Street and Washington Street southeast along Washington Street to Rose Street, then northeast along Rose Street to East Maxwell Street, then along the boundary of census tract 8 northwest to South Limestone Street and southwest along South Limestone Street to the intersection with Washington Street.

The Fourth District shall include all of census tract 25 except that part included in council district 10; all of census tract 8 except that part included in council district 3; and all of census tract 24 except that part included in council district 8.

The Fifth District shall include all of census tracts 5, 6, and 7; that part of census tract 17 included within a boundary running from the intersection of Henry Clay Boulevard and Carolyn Drive southwest along the boundary of census tract 17 to Richmond Road, then southeast along Richmond Road to a point 1000 feet beyond the intersection with Chinoe Road, then northeast through the Idle Hour Country Club on a line running parallel to Holiday Road to the boundary of census tract 17 on the railroad line, then northwest to Henry Clay Boulevard and southwest to the intersection of Henry Clay Boulevard and Carolyn Drive; and that part of census tract 23 included within a boundary running from the intersection of Cooper Drive and Tates Creek Pike south along Tates Creek Pike to the intersection with Lakewood Drive, then southeast along Lakewood Drive to the intersection with Chinoe Road, then northeast along Chinoe Road to the intersection with Cooper Drive, then northwest along Cooper Drive to the intersection with Tates Creek Pike.

The Sixth District shall include all of census tracts 31 and 32; and that part of census tract 13 included within a boundary running from the intersection of Russell Cave Pike and New Circle Road southwest along Russell Cave

Pike to Northland Drive, then northeast along Northland Drive to Kees Road, then southeast along Kees Road and Twelfth Street to North Limestone Street, then along the boundary of census tract 13 northeast to New Circle Road and northwest to the intersection of New Circle Road and Russell Cave Pike.

The Seventh District shall include all of census tracts 15, 16, and 33; all of census tract 17 except that part included in council district 5; and that part of census tract 39 included within a boundary running from the intersection of New Circle Road and Winchester Pike south along New Circle Road to Richmond Road, then southeast along Richmond Road to the intersection of Todds Road, then east along Todds Road as far as the boundary of the City of Lexington extends, then north along the boundary of the City of Lexington to the railroad track, then northwest along the railroad track to a point 1000 feet before the track crosses New Circle Road, then north along a straight line that runs east of Christian Road, Bell Lane, and Belt Road and that hits Winchester Pike at the intersection of Winchester Pike and Eastland Parkway, then west along Winchester Pike to the intersection with New Circle Road.

The Eighth District shall include all of census tracts 34 and 27; all of census tract 23 except that part included in council district 5; that part of census tract 24 included within a boundary running from the intersection of Tates Creek Pike and Rebecca Road generally west along the boundary of the City of Lexington to Bellefonte Drive, then generally north along the boundary of the University of Kentucky experimental farm to a point 200 feet south of the intersection of Montclair Drive and Kastle Road, then east along a line 200 feet south of Montclair Drive to Tates Creek Pike, then south along Tates Creek Pike to Rebecca Road; and that part of census tract 40 included within a boundary running from the intersection of Tates Creek Pike and Armstrong Mill Road south on Tates Creek Pike for 1000 feet, then southeast along a line roughly parallel to Armstrong Mill Road to a point 100 feet from Niles Road then south to the West Hickman Creek and then east along the creek and continuing until it hits Armstrong Mill Road at the point where it turns sharply to the southeast.

The Ninth District shall include all of census tracts 35, 41, 36, and 28; that part of census tract 42 included within a boundary running from the intersection of New Circle Road and Nicholasville Pike south along Nicholasville Pike to Higbee Mill Road, then generally west along Higbee Mill Road to the intersection with Clays Mill Road, then north along the boundary of census tract 42 to New Circle Road, and then east along New Circle Road to the Nicholasville Pike, also that part of census tract 42 lying along Higbee Mill Road between Clays Mill Road and Harrodsburg Pike and extending for 200 feet south of Higbee Mill Road; and that part of census tract 29 included within a boundary running from the intersection of New Circle Road and Clays Mill Road running north along Clays Mill Road to the intersection with Hill `n' Dale Road, then east along Hill `n' Dale Road to Southview Drive, then south along the boundary of census tract 29 to New Circle Road and then west to Clays Mill Road.

The Tenth District shall include all of census tract 30; all of census tract 29 except that part included in council district 9; that part of census tract 25 included within a boundary running from the intersection of Harrodsburg Road and Clays Mill Road southwest along Harrodsburg Road to the intersection of Rosemont Garden, then east along Rosemont Garden to the intersection of Clays Mill Road, then north along Clays Mill Road to the intersection with Harrodsburg Road; and that part of census tract 26 included within a boundary running from the intersection of Lane Allen Road and Harrodsburg Road northeast along Harrodsburg Road to a point 100 feet

beyond the intersection with Della Drive, then northwest along a line parallel to Della Drive and running between Della Drive and Laurel Hill Road to Beacon Hill Road, then southwest along Beacon Hill Road to Wolf Run, then northwest along Wolf Run to Appomattox Road, then southwest along Appomattox Road to Alexandria Drive, then southeast along the boundary of census tract 26 to Harrodsburg Road.

The Eleventh District shall include all of census tracts 19, 20, 21 and 22; and all of census tract 26 except that part included in council district 10.

The Twelfth District shall include all of the area that is not included in council districts One through Eleven; specifically, it shall include all of census tract 37; all of census tract 38 except that part included in council district 2; all of census tract 39 except that part included in council district 7; all of census tract 40 except that part included in council district 8; and all of census tract 42 except that part included in council district 9.

All boundary lines between council districts run down the middle of streets except where some other location is specified. The boundary lines of the City of Lexington referred to are those in effect on June 20, 1972.

The census tracts referred to are those defined for Fayette County by the Bureau of the Census in the 1970 Census.

Population of Council Districts

(Based on 1970 Census Data)

District	Population
1	14,850
2	14,867
3	14,461
4	14,741
5	14,346
6	14,789
7	14,489
8	14,116
9	14,178
10	14,582
11	14,632
12	14,272

Total Population—174,323	
Average District—14,527	

Part II

Code of Ordinances

Chapter 1

General Provisions

Section 1-1. How Code designated and cited.

Section 1-2. Rules of construction.

Section 1-3. Catchlines of sections.

Section 1-4. Effect of repeal of ordinances.

Section 1-5. Severability of parts of Code.

Section 1-6. Amendments to Code.

Section 1-7. Altering Code.

Section 1-8. General penalty.

Section 1-9. Reserved.

Section 1-10. Reserved.

Section 1-11. Official seal adopted; penalty for unauthorized use.

Section 1-12. Official county motto.

Section 1-13. Use of the name "Lexington" for identification or promotional purposes.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute and be designated the "Code of Ordinances, Lexington-Fayette Urban County Government," and may be so cited.

(Ord. No. 89-74, § 1, 5-30-74)

Charter reference(s)—Merger of county and city governments, § 1.01.

Sec. 1-2. Rules of construction.

In the construction of this Code, and of all ordinances, the following rules shall be observed, unless the context clearly indicates otherwise:

Charter. The word "Charter" shall mean the Charter of the Lexington-Fayette Urban County Government.

Chief Administrative Officer. The term "chief administrative officer" shall mean the chief administrative officer of the Lexington-Fayette Urban County Government.

Council Clerk. The term "council clerk" shall mean the clerk of the Lexington-Fayette Urban County Government.

Gender. A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships and corporations as well as to males.

KRS. The abbreviation "KRS" shall refer to the Kentucky Revised Statutes.

Number. A word importing the singular number only may extend and be applied to several persons and things as well as to one (1) person and thing.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath; and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Or, **and**. "Or" may be read "and," and "and" may be read "or" if the sense requires it.

Owner. The word "owner, " applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety, of the whole or of a part of such building or land.

Person. The word "person" shall include and be applied to associations, clubs, societies, firms, partnerships and bodies politic and corporate as well as to individuals.

Personal Property. Personal property includes every species of property except real property.

State. The words "the state" shall be construed to mean the State of Kentucky.

Time. Words used in the present or past tense include the future as well as the present and past.

Urban County. The term "urban county" shall mean the area within the territorial limits of the Lexington-Fayette Urban County Government.

Urban County Council or Council. The term "urban county council" or "council" shall mean the Lexington-Fayette Urban County Council.

Sec. 1-3. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the sections and shall not be deemed or taken to be the titles of such sections, nor as any part of the sections; nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

Sec. 1-4. Effect of repeal of ordinances.

The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed or cause of action arising under the ordinance repealed

Sec. 1-5. Severability of parts of Code.

The sections, paragraphs, sentences, clauses and phrases of this Code are severable; and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional by the valid judgment or decree of a court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.

(Ord. No. 74-5-1, § 3, 5-28-74)

Sec. 1-6. Amendments to Code.

All ordinances passed subsequent to this Code of Ordinances which amend, repeal or in any way affect this Code of Ordinances, may be numbered in accordance with the numbering system of this Code and printed for inclusion herein. In the case of repealed chapters, sections and subsections or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code of Ordinances and subsequent ordinances numbered or omitted are readopted as a new code of ordinances by the urban county council.

Amendments to any of the provisions of this Code may be made by amending such provisions by specific reference to the section number of this Code in the following language:

"That section of the Code of Ordinances, Lexington-Fayette Urban County Government, is hereby amended and reenacted, so that when amended and reenacted the same shall read as follows:"

The provisions may then be set out in full as desired.

In the event a new section not heretofore existing in the Code, is to be added, the following language may be used:

"That the Code of Ordinances, Lexington-Fayette Urban County Government; is hereby amended by adding a section, to be numbered _____, which said section reads as follows: _____"

The new section may then be set out in full as desired.

All sections, articles, chapters or provisions desired to be repealed must be specifically repealed by section, article or chapter number, as the case may be.

Sec. 1-7. Altering Code.

It shall be unlawful for any person, firm or corporation in the urban county to change or amend, by additions or deletions, any part or portion of this Code, or to insert or delete pages, or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the urban county government to be misrepresented thereby.

Sec. 1-8. General penalty.

The penalty for the violation of any of the provisions of this Code or any of the ordinances of the urban county government, where no other penalty is especially prescribed, shall be five dollars ($5.00) for each offense.

Sec. 1-9. Reserved.

Sec. 1-10. Reserved.

Sec. 1-11. Official seal adopted; penalty for unauthorized use.

(a) Henceforth the official seal of the urban county government used in the authentication of all papers and documents requiring the affixation of the same, shall be a circle, in the center of which appears the front of Morrison Chapel of Transylvania College, bearing 1964 [1] on the left cornerstone and the initials ENF* on the right; an upright horseshoe thereover and overlapping burley tobacco leaves end to end on each side thereof, together with 1775, the date of Lexington's incorporation below, all of which shall be surrounded by a circle imprinted "Lexington-Fayette Urban County Government," the outer edge of this circle being another smaller circle of smooth design.

When depicted in color, said inner circle shall be of light blue background, with the chapel, tobacco leaves and horseshoe in gold with white shadows and 1775 in black; the circle containing the words "Lexington-Fayette Urban County Government," shall be of gold background, the lettering in white framed in black, and the outer circle of the same, light blue.

(b) The seal herein adopted is hereby declared copyright; and its use in any form by any person without the express consent of the mayor or urban county government is illegal; and any person using the same without consent shall be fined a sum not to exceed one hundred dollars ($100.00) for each day's use.

[1] Year of adoption of seal.

[*] Initials of designer.

Sec. 1-12. Official county motto.

(1) Lexington-Fayette County, Kentucky is declared to be and is recognized as the "Horse Capital of the World."

(2) Henceforth the official motto of the urban county government shall be the words: Lexington-Fayette County, Horse Capital of the World.

(3) The urban county government and its agencies are encouraged to include the motto herein adopted on all informational brochures, folders, maps, leaflets and other similar written materials which are voluntarily distributed by the urban county government and its agencies to members of the general public. This shall not apply, however, to such materials as employee handbooks and other documents distributed primarily for use within the urban county government, its offices, agencies, departments and divisions; citation forms, personnel examination forms, application forms and other materials which are promulgated pursuant to the requirements of various laws; and court briefs, grant applications and other printed papers which are not generally distributed to the public.

Sec. 1-13. Use of the name "Lexington" for identification or promotional purposes.

The urban county government may use the name "Lexington" or other similar branding for the purpose of identifying the government or the urban county, or for promotional purposes. This is not intended to conflict with Section 1.01 of the Charter of the Lexington-Fayette Urban County Government, nor is it intended to in any way act as a waiver of sovereign immunity or any other third-party defense available to the urban county government.

(Ord. No. 34-2014, § 1, 4-10-14)

Chapter 2

Administration[1]

Article I. In General

Section 2-1. Urban county council--Meetings.

Section 2-2. Same--Order of business at regular meetings.

Section 2-3. Reserved.

Section 2-3.1. Procedures for petitioning, filing, certifying applicants for nomination for offices of mayor/council member.

Section 2-3.2. Redistricting council districts.

Section 2-4. Chief administrative officer.

Section 2-4.1. Office of administrative services.

Section 2-4.2. Director of division of human resources.

Section 2-5. Council clerk.

Section 2-6. Commissioner of law--Generally.

Section 2-6.1. Same--Settlement of claims.

Section 2-6.2. Representation by urban county government officers sued in their individual capacity.

Section 2-7. Insurance program established.

Sections 2-8, 2-9. Reserved

Section 2-10. Commissioner of department of public safety; powers and duties.

Section 2-10.1. Department of public safety.

Section 2-10.2. Police and fire chiefs.

Section 2-11. Commissioner of public works.

Section 2-11.1. Department of public works.

Section 2-11.2. Urban county engineer.

Section 2-11.3. Physical examination of members of department of public works.

Section 2-12. Commissioner of finance.

Section 2-12.1. Department of finance.

Section 2-13. Commissioner of general services.

Section 2-13.1. Department of general services.

1. **Charter reference(s)**—Merger of county and city governments, § 1.01; authority to create, alter or abolish boards, commissions, offices and agencies, § 3.02(24); urban county council, § 4.01 et seq.; mayor, § 5.01 et seq.; executive departments, § 6.01 et seq.; boards, commissions and authorities, § 7.01 et seq.; code of ethics, § 16.01 et seq.

Cross reference(s)—Office of commissioner of finance, § 7-1; director, division of traffic engineering, § 18-3; division of fire and emergency services and division of police, ch. 23.

State law reference(s)—Urban county government, KRS ch. 67A.

Section 2-13.2. Director of division of planning designated as custodian of maps; fee schedule for use of maps, etc.
Section 2-14. Commissioner of social services.
Section 2-14.1. Department of social services.
Section 2-15. Reserved.
Section 2-16. Citizens' advocate; office established; powers and duties.
Section 2-17. Urban renewal agency.
Section 2-18. Mayor authorized to appoint his proxy to board of health meeting.
Section 2-19. Oath of office.
Section 2-20--2-22. Reserved.
Section 2-23. Investment policy.
Section 2-24. Government agency investment policy for county agencies.

Article II. Lexington-Fayette County Human Rights Commission

Section 2-25. Reserved.
Section 2-26. Composition; appointment, term.
Section 2-27. Administrative provisions.
Section 2-28. Executive director; other employees.
Section 2-29. Report; fiscal year.
Section 2-30. Duties.
Section 2-31. Adoption of state law.
Section 2-31.1. Natural texture and color of hair and protective hair styles as protected characteristics of race, national origin and religion.
Section 2-31.2. Discrimination in housing due to lawful source of income or payment.
Section 2-32. Procedures.
Section 2-33. Discrimination due to sexual orientation or gender identity.
Sections 2-34--2-44. Reserved.
Section 2-45. Reserved.
Section 2-46. Equal opportunity employment policy; affirmative action plan.
Section 2-47--2-55. Reserved.

Article III. Reserved

Section 2-56--2-85. Reserved.

Article IV. Masterson Station Park Advisory Board

Section 2-86. Created; purpose.
Section 2-87. Membership; terms; staff.
Section 2-88. Officers.
Section 2-89. Rules of procedure; quorum.
Section 2-90. Meetings; records.

Section 2-91. Powers and duties.
Section 2-92. Conflict of interest.
Sections 2-93--2-95. Reserved.

Article V. Environmental Commission of Lexington-Fayette County

Section 2-96. Established.
Section 2-97. Membership.
Section 2-98. Terms of members.
Section 2-99. Officers and rules of procedure.
Section 2-100. Meetings.
Section 2-101. Duties and functions of the environmental commission.
Section 2-102. Intent.
Section 2-103--2-105. Reserved.

Article VI. Citizens' Transportation Advisory Commission

Section 2-106. Established.
Section 2-107. Membership.
Section 2-108. Terms of members.
Section 2-109. Presiding officers and rules of procedure.
Section 2-110. Meetings.
Section 2-111. Duties and functions of the commission.
Section 2-112. Intent.
Sections 2-113—2-115. Reserved.

Article VII. County Cemetery Board

Section 2-116. Created.
Section 2-117. Membership.
Section 2-118. Terms of members.
Section 2-119. Meetings.
Section 2-120. Officers and rules of procedure.
Section 2-121. Quorum.
Sections 2-122--2-124. Reserved

Article VIII. Reserved

Article IX. Neighborhood Center Boards

Section 2-141. Boards constituted; powers and duties.
Sections 2-142--2-145. Reserved

Article X. Reserved

Article XI. Reserved

Article XII. Tourist and Convention Commission

Section 2-167. Reserved
Sections 2-168, 2-169. Reserved
Section 2-170. Created.
Section 2-171. Membership.
Section 2-172. Transient room tax imposed.
Sections 2-173--2-177. Reserved

Article XIII. Parking Authority

Section 2-178. Created.
Section 2-179. Powers.
Section 2-180. Membership.
Section 2-181. Duties.
Section 2-182. Officers.
Section 2-183. Quorum.
Section 2-184. Rules and regulations.
Section 2-185. Exemption.
Sections 2-186--2-188. Reserved

Article XIV. Senior Services Commission

Section 2-189. Created.
Section 2-190. Membership.
Section 2-191. Terms of office.
Section 2-192. Officers.
Section 2-193. Quorum.
Section 2-194. Executive committee.
Section 2-195. General powers.
Section 2-196. Duties.
Section 2-197. Reports; no power to operate programs.
Sections 2-198, 2-199. Reserved

Article XV. "Picnic with the Pops" Commission

Section 2-200. Created.
Section 2-201. Membership.
Section 2-202. Term.
Section 2-203. Officers.
Section 2-204. Quorum.
Section 2-205. Powers and duties.

Sections 2-206--2-215. Reserved

Article XVI. Memorial Tree Fund

Section 2-216. Created.
Section 2-217. Administration.
Sections 2-218--2-227. Reserved

Article XVII. Reserved

Sections 2-228--2-242. Reserved

Article XVIII. Raven Run Citizens Advisory Board

Section 2-243. Created; purpose.
Section 2-244. Membership.
Section 2-245. Term of office; filling of vacancies.

Article XIX. Reserved

Sections 2-246--2-249. Reserved

Article XX. Domestic Violence Prevention Board

Section 2-250. Created; purpose.
Section 2-251. Members.
Section 2-252. Terms of members.
Section 2-253. Officers; records; frequency of meetings.
Section 2-254. Quorum.
Section 2-255. Contracts; expenditures; bylaws.
Section 2-256. Duties.
Sections 2-257--2-266. Reserved

Article XXI. Lyric Theatre and Cultural Arts Center Corporation

Section 2-267. Organization.
Section 2-268. Board of directors.
Section 2-269. Meetings.
Section 2-270. Quorum.
Sections 2-271--2-283. Reserved

Article XXII. Reserved

Sections 2-284--2-289. Reserved

Article XXIII. Roadways Review Committee

Section 2-290. Established.
Section 2-291. Membership.

Section 2-292. Purpose.
Section 2-293. Recommendation.
Section 2-294. Reserved

Article XXIV. Sister Cities Programs Commission

Section 2-295. Created.
Section 2-296. Members.
Section 2-297. Offices.
Section 2-298. Transaction of business.
Section 2-299. Duties.

Article XXV. Reserved

Sections 2-300--2-306. Reserved

Article XXVI. Plant Closing Committee

Section 2-307. Created.
Section 2-308. Purpose.
Section 2-309. Members.
Section 2-310. Meetings.

Article XXVII. Reserved

Sections 2-311--2-314. Reserved

Article XXVIII. Lexington Children's Museum, Inc.

Section 2-315. Organized; purposes; powers.
Section 2-316. Directors.
Section 2-317. Meetings.
Section 2-318. Quorum.
Section 2-319. Reserved

Article XXIX. Carnegie Literacy Center, Inc.

Section 2-320. Organized; purposes.
Section 2-321. Board of directors.
Section 2-322. Officers; staff.
Section 2-323. Reserved
Section 2-324. Meetings.
Sections 2-325--2-334. Reserved

Article XXX. Greenspace Trust

Section 2-335. Definitions.
Section 2-336. Organization; purpose.

Section 2-337. Board; membership.
Section 2-338. Terms of board members.
Section 2-339. Board; officers; quorum; staff.
Section 2-340. Board power and duties.
Sections 2-341--2-344. Reserved

Article XXXI. Housing and Support Services Commission

Section 2-345. Created.
Section 2-346. Membership.
Section 2-347. Term.
Section 2-348. Officers.
Section 2-349. Quorum.
Section 2-350. Powers and duties.
Section 2-351. Executive committee.
Sections 2-352--2-360. Reserved

Article XXXII. Lexington-Fayette Urban County Criminal Justice Commission

Section 2-361. Created.
Section 2-362. Membership.
Section 2-363. Term.
Section 2-364. Officers.
Section 2-365. Quorum.
Section 2-366. Powers and duties.
Sections 2-367--2-376. Reserved

Article XXXIII. Reserved

Section 2-377. Reserved

Article XXXIV. Citizens' Transit Advisory Board

Section 2-378. Created.
Section 2-379. Membership.
Section 2-380. Term of members.

Article XXXV. Court-Appointed Special Advocate Board

Section 2-381. Created; purpose.
Section 2-382. Members.
Section 2-383. Duties.
Section 2-384. Officers, records, frequency of meetings.
Section 2-385. Quorum.

Section 2-386. Contracts, expenditures, bylaws.

Article XXXVI. Bluegrass Crimestoppers, Inc.

Section 2-387. Creation; purpose; powers.
Section 2-388. Directors.
Section 2-389. Meetings.
Section 2-390. Quorum.

Article XXXVII. Community Partnership Action Council

Section 2-391. Created; purpose.
Section 2-392. Members.
Section 2-393. Officers; records; frequency of meetings.
Section 2-394. Quorum.
Section 2-395. Duties.

Article XXXVIII. Parks and Recreation Advisory Board

Section 2-396. Created.
Section 2-397. Membership; terms.
Section 2-398. Officers.
Section 2-399. Quorum.
Section 2-400. Staff.
Section 2-401. Powers and duties.
Section 2-402. Conflict of interest.
Sections 2-403--2-420. Reserved

Article XXXIX. Town and Gown Commission

Section 2-421. Created; purpose.
Section 2-422. Membership.
Section 2-423. Terms.
Section 2-424. Officers; records.
Section 2-425. Frequency of meetings.
Section 2-426. Quorum.
Section 2-427. Powers and duties.

Article XL. Downtown Development Authority

Section 2-428. Created; purpose.
Section 2-429. Powers and duties.
Section 2-430. Board of directors.
Section 2-431. Officers; records; frequency of meetings.
Section 2-432. Quorum.

Section 2-433. Bylaws.
Sections 2-434--2-440. Reserved

Article XLI. Internal Audit Board

Section 2-441. Established.
Section 2-442. Members.
Section 2-443. Terms.
Section 2-444. Officers.
Section 2-445. Quorum.
Section 2-446. Meetings.
Section 2-447. Bylaws.
Section 2-448. Staff.
Section 2-449. Powers and duties.
Section 2-450. Reserved

Article XLII. Arts Commission

Section 2-451. Creation; purpose.
Section 2-451.1. Definitions.
Section 2-452. Membership.
Section 2-453. Terms.
Section 2-454. Officers; rules; quorum; meetings.
Section 2-455. Duties.
Section 2-455.1. Code of ethics.
Section 2-456. Commission authorized to proceed.

Article XLIII. Access Lexington Commission

Section 2-457. Created.
Section 2-458. Membership.
Section 2-459. Term.
Section 2-460. Officers.
Section 2-461. Quorum.
Section 2-462. Meetings.
Section 2-463. Duties and functions of the commission.

Article XLIV. Corridors Commission

Section 2-464. Created and purpose.
Section 2-465. Membership.
Section 2-466. Term.
Section 2-467. Officers.
Section 2-468. Quorum.

Section 2-469. Meetings.
Section 2-470. By-laws.
Section 2-471. Staff.
Section 2-472. Powers and duties.

Article XLV. Affordable Housing Governing Board

Section 2-473. Created.
Section 2-474. Members.
Section 2-475. Terms.
Section 2-476. Chairperson and vice-chairperson.
Section 2-477. Quorum.
Section 2-478. Meetings.
Section 2-479. Duties.
Section 2-480. Affordable housing fund management.
Section 2-481. Conflict of interest.
Section 2-482. Fund created.
Section 2-483. Purpose of fund.
Section 2-483.5. Neighborhood investment fund

Article XLVI. Homelessness Prevention and Intervention Board

Section 2-484. Created.
Section 2-485. Members.
Section 2-486. Terms.
Section 2-487. Chairperson and vice-chairperson.
Section 2-488. Quorum.
Section 2-489. Meetings.
Section 2-490. Duties.
Section 2-491. Management of fund.
Section 2-492. Conflict of interest.
Section 2-493. Fund created.
Section 2-494. Purpose of fund.

Article XLVII. Mayor's International Affairs Advisory Commission

Section 2-495. Created.
Section 2-496. Membership.
Section 2-497. Terms of office.
Section 2-498. Quorum.
Section 2-499. General powers.
Section 2-500. Duties.
Section 2-501. Reports; no power to operate programs.

Sections 2-502--2-505. Reserved

Article XLVIII. Commission on Veterans' Affairs

Section 2-506. Created.
Section 2-507. Membership.
Section 2-508. Terms of office.
Section 2-509. Officers.
Section 2-510. Meetings.
Section 2-511. Quorum.
Section 2-512. Duties.

Article XLIX. Industry Authority

Section 2-513. Created; purpose.
Section 2-514. Powers and duties.
Section 2-515. Limitations of powers.
Section 2-516. Appointment of members.
Section 2-517. Officers; quorum; frequency of meetings; bylaws.
Section 2-518. Dissolution.

Article L. Racial Justice and Equity Commission

Section 2-519. Established.
Section 2-520. Membership.
Section 2-521. Terms of members.
Section 2-522. Meetings.
Section 2-523. Quorum.
Section 2-524. Facilities and staff.
Section 2-525. Reports.
Section 2-526. Duties and powers.

Article LI. Opioid Abatement Commission

Section 2-527. Established.
Section 2-528. Membership.
Section 2-529. Terms of membership.
Section 2-530. Meetings.
Section 2-531. Quorum.
Section 2-532. Facilities and staff.
Section 2-533. Reports.
Section 2-534. Duties and powers.

Article I

In General

Sec. 2-1. Urban county council--Meetings.

(a) The regular, public meetings of the council of the urban county government shall be held on the dates and times specified in a schedule of meetings adopted annually by ordinance.

(b) The regular, public meetings of the council of the urban county government shall be held in the council chambers of the Lexington-Fayette Government Center at 200 East Main Street.

(c) The time and place prescribed for regular, public meetings shall not be changed except in accordance with KRS 61.905 et seq. and section 4.07 of the Charter of the urban county government.

(Ord. No. 1-74, §§ 1, 2, 1-3-74; Ord. No. 189-76, § 1, 9-16-76; Ord. No. 60-79, § 1, 3-22-79; Ord. No. 164-83, § 1, 9-22-83; Ord. No. 119-95, § 1, 6-1-95; Ord. No. 326-2001, § 1, 12-13-01)

Sec. 2-2. Same--Order of business at regular meetings.

At each regular meeting of the council, the order of business shall be as follows:

(1) Calling the roll.

(2) Reading and acting upon the minutes of the previous meeting.

(3) Considering and acting upon the matters listed or referred to upon the docket prepared in advance by the council clerk.

(4) Other business.

Provided, however, by consent of the council this order may be departed from at any time.

Sec. 2-3. Reserved.

Editor's note(s)—Section 2-3 was repealed by Ord. No. 192-92, § 9, adopted Oct. 29, 1992. The section formerly dealt with notice of special meetings of the urban county council.

Sec. 2-3.1. Procedures for petitioning, filing and certifying applicants for nomination for offices of mayor and council member.

Pursuant to article 12 of the Urban County Charter, procedures for petitioning, filing and certifying applicants for nomination for the offices of mayor and council member shall be as follows:

(1) Each applicant for nomination shall, not later than the last Tuesday in January preceding the day of the primary election no later than 4:00 p.m. local time, file with the county clerk a petition signed by at least one hundred (100) voters who are legally qualified to vote for the candidate, in the following form:

"We the undersigned, qualified voters of the Urban County Government of Lexington, Fayette County, Kentucky, and residing each at the place indicated opposite his/her name, do hereby request that the name of be placed on the ballot as that of an applicant for nomination for the office of _____, at the primary election to be held in our urban county on the first Tuesday after the third Monday in May. We know the applicant to be a qualified voter of the urban county and a person of good character, and he/she is, in our judgment, qualified for the duties of the office.

Name

Street Number

Street"

The petition shall be verified by the affidavit of some person as to the genuineness of the signatures and addresses of the signers. No voter shall sign more than one (1) petition with reference to each office that is to be filled. If any voter signs more than one (1) petition of applicants for nomination for mayor or district council member, or signs the petitions of more applicants for nomination for at-large council members than the number of at-large council members to be elected, the name of that petitioner shall not be counted as a valid name on any petition.

(2) Immediately upon the expiration of the time for filing petitions, the county clerk shall have published as provided in KRS chapter 424, the names of the persons as they will appear upon the primary ballot labels, and shall thereupon cause the primary ballot labels to be printed.

(3) Subsection (2) of this section shall not apply if it appears, immediately upon the expiration of the time for filing petitions, that there are not more than two (2) applicants for nomination as mayor, or not more than two (2) applicants for nomination for district council member in any council district, or not more applicants for nomination for at-large council member than twice the number of at-large council members to be elected. In those cases, the applicants for mayor and the applicants for council member shall thereby be nominated, and no primary election shall be held for nomination for those offices.

(4) The names of the applicants for each nomination shall be placed on the voting machine as provided by law. Above the names of the applicants for nomination for mayor or district council member shall be printed the words, "Vote for one," and above the names of the applicants for nomination for at-large council members shall be printed the words, "Vote for three." No party designation or emblem of any kind, nor any sign indicating any applicant's political belief or party affiliation, shall be used.

(5) The votes shall be counted as provided in the general election laws, and after being so counted the result shall be published as provided in KRS chapter 424.

(6) Voters shall be permitted at any regular election to cast write-in votes for any person according to the procedure prescribed by law for write-in votes generally. As used in this subsection, "regular election" shall mean the general election held pursuant to section 148 of the Kentucky Constitution on the first Tuesday after the first Monday in November.

(Ord. No. 12-87, § 1, 1-22-87; Ord. No. 122-87, § 1, 6-25-87; Ord. No. 243-88, § 1, 10-28-88; Ord. No. 238-90, § 1, 11-15-90; Ord. No. 60-91, § 1, 4-4-91; Ord. No.156-92, § 1, 9-3-92; Ord. No. 80-2003, § 1, 4-24-03)

State law reference(s)—Write-in votes, KRS 117.26.

Sec. 2-3.2. Redistricting council districts.

(a) In accordance with section 4.03 of the Charter of the Urban County Government and KRS 67A.023, following the official publication of each decennial census by the United States Bureau of the Census for the area embraced by Lexington-Fayette County, the council shall, if necessary, redistrict the twelve (12) council districts.

(b) By February 1 of each year in which the decennial census is to be published, the vice-mayor shall appoint a redistricting committee to make a recommendation to the council concerning the revision of district boundary lines.

(c) The redistricting committee shall consist of fifteen (15) members, with nine (9) members constituting a quorum. Each councilmember shall select one (1) member of the committee, with the vice-mayor's selection acting as the chairperson. The committee shall cease to exist upon presentation of its recommended revision of district boundary lines to the urban county council.

(d) The urban county government shall provide staff as needed to assist the committee. The council administrator shall serve as the official custodian of the records of the committee and shall be responsible for maintaining said records for a period of twenty (20) years after the committee makes its final recommendation to the urban county council.

(e) Members of the redistricting committee shall have the following qualifications:

(1) Each member shall reside in the council district of the councilmember making the selection, for those members selected by district councilmembers, or shall be a resident of Lexington-Fayette County, for those members selected by at-large councilmembers;

(2) Each member shall have been registered to vote for at least the past five (5) years;

(3) Each member shall have voted in at least three (3) of the last five (5) general elections preceding appointment;

(4) Each member shall attest that he or she will not run for district councilmember for three (3) years after appointment; and

(5) Neither councilmembers nor council staff may serve as members of the committee.

Each councilmember shall ensure his or her selection possesses the qualifications provided herein, and should be mindful and inclusive of Lexington's diverse community when selecting the membership of the committee.

(f) The commission shall:

(1) Conduct an open and transparent process enabling full public consideration of and comment on the drawing of district lines;

(2) Perform in a manner that is impartial and that reinforces public confidence in the integrity of the redistricting process; and

(3) Draw district lines according to the redistricting criteria specified in the Charter and subsections (g) and (h).

(g) The committee shall abide by the following requirements, which shall be considered equally, in making its recommendations for the revision of district boundary lines:

(1) Districts shall have population equality, based on the census data, as near as reasonably practicable, with a deviation of no more than ten (10) percent;

(2) Districts shall be compact and contiguous;

(3) Existing voting precincts shall be the basic unit for aggregating new council district boundary lines;

(4) Existing voting precincts shall not be split or precinct boundaries changed;

(5) Each district shall be composed of closely arranged precincts which are concentrated into a limited area;

(6) Each district shall be composed of adjoining precincts sharing common boundaries; and

(7) The geographic integrity of any local neighborhood or local community of interest shall be respected in a manner that minimizes their division to the extent possible without violating the requirements of any of the preceding subsections. A community of interest is a contiguous population that shares common social and economic interests that should be included within a single district for purposes of its effective and fair representation.

(h) The committee shall consider the following guidelines in making its recommendations for the revision of district boundary lines:

(1) Districts should accommodate relative rates of future growth such that districts in growth areas have a population in the lower range of the ideal population;

(2) Arterial highways and other corridors should be considered in defining district boundaries.

(i) The committee shall submit its recommendation concerning the revision of district boundary lines to the council no later than the last working day in September of the year in which the committee begins its work. Any ordinance revising district boundary lines shall be approved by the date candidates for councilmember may begin to file for office for the next general election. While candidates shall run in the newly revised districts, councilmembers shall continue to serve in the same districts for the entirety of their existing terms, with newly elected councilmembers serving in the newly revised districts upon being sworn into office.

(j) Prior to the appointment of a redistricting committee, the council administrator shall provide a schedule for the upcoming redistricting process, including, but not limited to, the following:

(1) The month the committee shall hold its first meeting;

(2) The month Census data is anticipated to be released;

(3) The date the committee must submit its revision of the district boundary lines to the council;

(4) The date candidates for councilmember may begin to file for office, which shall serve as the date by which the urban county council should approve district boundary lines;

(5) The date of the primary election in which candidates would run using the newly revised district boundary lines;

(6) The date of the general election in which candidates would run using the newly revised district boundary lines;

(7) The date newly elected councilmembers will be sworn into office which shall serve as the date councilmembers would begin serving in the newly revised districts.

(Ord. No. 160-2012, § 1, 12-6-12; Ord. No.146-2022, § 1, 12-6-22)

Sec. 2-4. Chief administrative officer.

The chief administrative officer shall be responsible for the operation of the office of administrative services as set forth in Section 6.02 of the Charter and shall perform such other duties as the mayor or council may assign.

Sec. 2-4.1. Office of administrative services.

The office of administrative services shall be composed of a division of human resources, a division of community development, a division of historic preservation, a division of planning, a division of public information, a division of risk management and such other divisions as the council may prescribe.

(Ord. No. 70-2011, § 1, 6-23-11)

Cross reference(s)—Office of administrative services, § 6.04.

Sec. 2-4.2. Director of division of human resources.

The director of the division of human resources, under the direction of the chief administrative officer, shall be responsible for the operation of the division of human resources as set forth in section 6.04 of the Charter and shall perform such other duties as the mayor, council or chief administrative officer may assign.

Sec. 2-5. Council clerk.

The council clerk shall be empowered, and it shall be her duty, to do and perform all acts and things authorized or required by general law to be performed by the council clerk. She shall attend all meetings of the council and act as clerk of council, record and preserve the proceedings of the council, and perform such other duties as may be required of her by the council or mayor.

(Ord. No. 3958, 10-22-59; Ord. No. 156-70, § 1, 7-9-70; Ord. No. 32-72, § 1, 2-24-72; Ord. No. 199-73, § 1, 8-9-73; Ord. No. 192-92, § 1, 10-29-92)

Sec. 2-6. Commissioner of law--Generally.

The commissioner of law shall be responsible for the operation of the department of law as set forth in Section 6.05 of the Charter and shall perform such other duties as the mayor or council may assign.

Sec. 2-6.1. Same--Settlement of claims.

(a) The commissioner of law is authorized to adjust, settle or compromise any action, causes of action, accounts, debts, claims, demands, disputes and matters in favor of or against the urban county government or in which the urban county government is concerned as debtor or creditor, now existing or which may hereafter arise and not involving or requiring payment to exceed one thousand dollars ($1,000.00). Such a settlement may be made without first obtaining authorization and approval from the council, but no settlement shall provide for the doing of any other act except payment of a sum not in excess of one thousand dollars ($1,000.00).

(b) Nothing in this section shall be construed as waiving the urban county government's defense of governmental or statutory immunity.

(c) No such settlement shall be made or be valid unless funds have been appropriated and are available for such an expenditure.

(d) In all cases where the claim of the urban county government against other parties is compromised by virtue of this section, a release signed by the commissioner of law shall be binding on the part of the urban county government for the purposes specified therein.

(e) Notice of the settlements authorized and approved by the commissioner of law shall be furnished to the council administrator in the office of the urban county council.

(Ord. No. 285-79, § 1, 11-29-79; Ord. No. 169-88, § 1, 7-14-88)

Sec. 2-6.2. Representation by urban county government officers sued in their individual capacity.

(a) As used in this section, "officer" means any person who is or was a duly elected or appointed official or member or full-time employee of the urban county government or any agency or instrumentality thereof, excluding any official, member or full-time employee of any agency or instrumentality which is a separate corporate entity, or which is entitled to representation by the county attorney.

(b) When an officer is sued for damages in his individual capacity, the urban county government, by and through its department of law, shall defend any such suit against the officer if such suit arises out of any act or omission done in good faith by him while in the bona fide discharge of his official duties in a matter in which the urban county government, its agency or instrumentality, had an interest.

(c) Provided, however, if the commissioner of law determines that the urban county government and such person have differing interests, whether such interests be conflicting, inconsistent, diverse or otherwise discordant, and that as a result thereof, the department of law is prevented from representing such person, and further provided such person has requested, in writing, that he be represented by the urban county government, and the urban county government, by and through its department of law has, in writing, refused to represent such person due to said conflict, the urban county government shall reimburse such person for any and all reasonable and necessary legal expenses incurred by such person in the defense of said suit.

(d) This section shall apply only to actions instituted after the effective date of Ordinance No. 261-76.

(Ord. No. 2-82. § 1, 1-14-82)

Editor's note(s)—The purpose of Ord. No. 2-82, adopted Jan. 14, 1982, was to reinstate provisions inadvertently omitted in recodification. Section 2 of the ordinance specified an effective date of Nov. 12, 1981.

Sec. 2-7. Insurance program established.

(1) An insurance program providing coverages for workers' compensation, general liability, automobile, property or equipment claims and other valid legal claims against the government or its officers, agents, employees, etc., is established according to the master contract, and any amendments thereto, adopted by majority vote of the urban county council. A true copy of said master contract shall be lodged in the office of the clerk of the urban county council.

(2) The insurance program shall be administered by the division of risk management according to the terms and conditions of the master contract and this section; however, the mayor, or his designee, is authorized to adjust, settle or compromise any action, causes of action, accounts, debts, claims, demands, disputes and matters against the urban county government, now existing or which may hereafter arise, according to the terms and conditions of the master contract, subject to the following:

(a) Nothing in this section shall be construed as waiving the urban county government's defense of sovereign, governmental or statutory immunity.

(b) No such settlement shall be made or be valid unless funds have been appropriated and are available for such an expenditure.

(c) Notice of the settlements authorized and approved by the mayor shall be furnished to the council administrator in the office of the urban county council.

(3) Coverage for claims against those in the employ of the urban county government arising from matters contained in the urban county government's master contract is provided in consideration of their employment by the urban county government.

(4) The mayor is authorized to enter into agreements for legal services for the purpose of representing the government and those in its employ regarding the property and casualty loss claims referred to in this section, provided funds have been appropriated and are available for such an expenditure.

(Ord. No. 204-87. § 1, 8-27-87)

Secs. 2-8, 2-9. Reserved

Sec. 2-10. Commissioner of department of public safety; powers and duties.

The commissioner of the department of public safety shall be responsible for the operations of the department of public safety as set forth in section 6.07 of the Charter, except those pertaining to the division of animal control, and other such duties as the mayor or council may assign.

(Ord. No. 215-75, §§ 1, 2, 7-31-75; Ord. No. 333-99. § 2, 12-7-99)

Sec. 2-10.1. Department of public safety.

The department of public safety shall be composed of a division of police, a division of building inspection, a division of fire and emergency services, a division of environmental and emergency management, a division of community corrections, and such other divisions as the council may prescribe.

(Ord. No. 192-92, § 1, 10-29-92; Ord. No. 333-99, § 3, 12-7-99)

State law reference(s)—See KRS 95.435 et seq.

Sec. 2-10.2. Police and fire chiefs.

The director of the division of police shall also be referred to as police chief. The director of the division of fire and emergency services shall also be referred to as fire chief.

(Ord. No. 155-87, § 1, 7-9-87)

Sec. 2-11. Commissioner of public works.

The commissioner of public works shall be responsible for the operation of the department of public works as set forth in Section 6.10 of the Charter. (Ord. No. 200-80, § 1(3), 12-11-80)

Sec. 2-11.1. Department of public works.

The department of public works shall be composed of a division of solid waste, a division of sanitary sewers, a division of streets and roads, a division of engineering, a division of traffic engineering, and such other divisions as the council may prescribe.

(Ord. No. 200-80, § 1(3), 12-11-80; Ord. No. 64-84, § 12, 5-3-84)

Sec. 2-11.2. Urban county engineer.

The director of the division of engineering, also referred to as the urban county engineer, shall, under the direction of the commissioner of public works, have general supervision over the affairs and works of such division. The director of the division of engineering shall do and perform all acts and things authorized or required by general law or by ordinance of the urban county government. It shall be his duty to supervise and superintend the general condition of all streets, sidewalks and sewers and the laying out, construction, maintenance and repair of the same, and to report to the commission of public works all encroachments, nuisances and obstructions thereon; to make such plans, surveys and estimates and establish such grades as may be necessary from time to time for the construction of streets, sidewalks and sewers and for the development of the urban county; to inspect all work of a public character, involving engineering principles, and the materials used therein, to see that the same conform to the contracts and specifications therefor and to report in writing to the commissioner of public works, stating his acceptance or rejection of such work. The director of the division of engineering shall perform such other duties as may be required of him by the mayor, the council or the commissioner of public works.

(Ord. No. 200-80, § 1(3), 12-11-80)

State law reference(s)—Qualifications of engineer, KRS 94.060; public works under unlicensed engineer prohibited, KRS 322.360.

Sec. 2-11.3. Physical examination of members of department of public works.

Any member of the department of public works may be required to submit to a physical examination at any time at the cost of the urban county government. The mayor shall make and issue such rules and regulations issued hereunder. Failure to comply shall be subject to disciplinary action as provided in section 21-44 of this Code.

(Ord. No. 200-80, § 1(3), 12-11-80)

Sec. 2-12. Commissioner of finance.

The commissioner of finance shall be responsible for the operation of the department of finance as set forth in Section 6.06 of the Charter and shall perform such other duties as the mayor or council may assign. The commissioner of finance shall also be responsible for annual completion of the uniform financial information report.

(Ord. No. 222-91, § 1, 10-17-91)

Sec. 2-12.1. Department of finance.

The department of finance shall be composed of a division of accounting, a division of computer services, a division of revenue, a division of central purchasing, division of budgeting, and such other divisions as the council may prescribe.

(Ord. No. 200-80, § 1(2), 12-11-80; Ord. No. 70-2011, § 1, 6-23-11)

Sec. 2-13. Commissioner of general services.

The commissioner of general services shall be responsible for the operation of the department of general services as set forth in this article and other such duties as the mayor or council may assign.

(Ord. No. 200-80, § 1651, 12-11-80; Ord. No. 64-84, § 13, 5-3-84)

Sec. 2-13.1. Department of general services.

The department of general services shall be composed of a division of parks and recreation, a division of fleet services, a division of building maintenance and construction, a division of property management, and such other divisions as the council may prescribe.

(Ord. No. 200-80, § 1(5), 12-11-80; Ord. No. 64-84, § 14, 5-3-84; Ord. No. 251-89, § 1, 12-14-89)

Sec. 2-13.2. Director of division of planning designated as custodian of maps; fee schedule for use of maps, etc.

(a) The director of the division of planning is hereby designated as the official custodian of all maps (mylars, negatives, or scribes) obtained through the unified mapping program.

(b) The director of the division of planning is hereby authorized and directed to establish a fee schedule for providing copies of individual sheets of maps obtained through the unified mapping program. The schedule of fees shall be reasonable and shall not exceed the actual cost not including the cost of staff required. The director of the division of planning may prescribe special lower fees for departments and divisions of the urban county government, and students of universities, colleges, secondary schools and elementary schools.

(c) Original maps (mylars, negatives, or scribes) shall be made available only on the following basis:

(1) The use of mylars, negatives, or scribes of individual map sheets shall be available to departments and divisions of this government for their own use at no charge.

(2) The use of mylars, negatives, or scribes shall be available to persons under contract to this government for consulting services at no charge, provided that said persons shall be required to execute a letter in standard form approved by the director of the division of planning and the department of law. Said letter shall include at least the following provisions: A deposit of fifty dollars ($50.00) per mylar, negative, or scribe requested shall be required; the person shall agree to pay the full cost of replacement if any mylar, negative, or scribe is lost or damaged; the mylars, negatives, or scribes requested shall be used

only for the project the person is completing for the urban county government; and all mylars, negatives, or scribes must be returned to the urban county government division of planning upon completion of the project.

(3) Any person may have access to all mylars, negatives, or scribes produced by the unified mapping program, for the purpose of copying, for a fee of ten thousand dollars ($10,000.00) and providing the person executes a contract in standard form approved by the director of the division of planning and the department of law, containing at least the following provisions: The person shall pay the full cost of replacement of any lost or damaged mylars, negatives, or scribes; said mylars, negatives, or scribes may be held in the possession of the person for a period not to exceed forty-eight (48) hours so that the person may make copies thereof; and the person may not distribute, by sale or otherwise, said mylars, negatives, or scribes or copies obtained therefrom to any other person. A person who obtains mylars, negatives, or scribes under this subsection shall periodically receive, with only a charge for materials, updated copies of maps when the division of planning updates its own copies for a period of two (2) years from the date of contract execution. The mayor is authorized to execute contracts entered into pursuant to this subsection.

(4) Any person may have access to one (1) of the three (3) sets of mylars, negatives, or scribes (tax maps, topographic maps or zoning maps) produced by the unified mapping program for the purposes of copying, for a fee of five thousand dollars ($5,000.00), providing the person executes a contract in standard form approved by the director of the division of planning and the department of law, containing at least the provisions set forth in subsection (c)(3), above. Provisions for updating the maps in a particular set shall be as set forth in subsection (c)(3) above. The mayor is authorized to execute contracts entered into pursuant to this subsection.

(d) Original maps (mylars, negatives, or scribes) produced by the unified mapping program shall not be allowed to be removed from the office of the division of planning or designated storage area for any purpose except as specified in subsection (c) of this section.

(e) All funds collected pursuant to subsections (c)(3) and (c)(4) of this section shall be set aside from other funds of this government and shall be used for maintaining and updating the maps produced by the unified mapping program.

(Ord. No. 192-79, § 1, 8-2-79)

Editor's note(s)—For purposes of classification, and to avoid duplicate section numbers, Ord. No. 192-79, which originally designated its provisions as § 13-66, has been codified instead as § 2-13.2, at the editor's discretion, and with the permission of the legal department.

Cross reference(s)—Planning program, § 2-56 et seq.; finance and taxation, ch. 7.

Sec. 2-14. Commissioner of social services.

(a) The commissioner of social services shall be responsible for the operation of the department of social services as set forth in Section 6.09 of the Charter and shall perform such other duties as the mayor or council may assign.

(b) The commissioner of social services shall adopt eligibility guidelines and application procedures for the financial and protective services unit, division of adult services, and shall amend said guidelines and procedures from time to time as shall be necessary. The adoption and amendment of eligibility guidelines and application procedures shall be subject to the approval of the social services advisory board.

(c) The commissioner of social services shall provide written notice to the urban county council of any changes in the eligibility guidelines and application procedures within ten (10) days of the effective date of such changes.

(Ord. No. 77-82, § 1, 5-18-82)

Sec. 2-14.1. Department of social services.

The department of social services shall be composed of a division of adult services, a division of family services, a division of youth services, and such other divisions as the council may prescribe.

Sec. 2-15. Reserved.

Editor's note(s)—Section 2-15, relating to open meetings, derived from Ord. No. 158-74, § 1, adopted Aug. 22, 1984, was repealed by § 13 of Ord. No. 102-85, adopted May 30, 1985. State law references(s)--Open meetings of public agencies, KRS 61.805 et seq.

Sec. 2-16. Citizens' advocate; office established; powers and duties.

Pursuant to section 4.11 of the Charter, the office of citizens' advocate is hereby created.

The office of citizens' advocate shall be empowered to accomplish those purposes outlined in Section 4.11 of the Charter.

(Ord. No. 246-74, §§ 1, 2, 12-19-74)

Sec. 2-17. Urban renewal agency.

There is hereby established in the urban county the urban renewal agency, previously known as the slum clearance and redevelopment agency.

(Res. No. 1111, § 2, 8-27-59)

State law reference(s)—See KRS 99.010 et seq.

Sec. 2-18. Mayor authorized to appoint his proxy to board of health meeting.

The mayor is authorized to appoint a designee to act as his proxy for all purposes at any meeting of the Board of Health of the Lexington-Fayette County Health Department that he is unable, for any good reason, to attend.

(Ord. No. 279-2007, § 1, 12-6-07)

Sec. 2-19. Oath of office.

(1) All appointees to the boards, agencies and commissions covered by the provisions of Article 7 of the Charter and which require council confirmation for appointment of members shall complete an oath of office by affidavit, unless exempt by law. Appointees shall not take office until after completion of the oath. If the oath is not completed within sixty (60) days after council confirmation, the office shall be vacated and another appointment to the office shall be made by the mayor subject to council confirmation. The oath by affidavit form shall be submitted to the council clerk's office within thirty (30) days after completion.

(2) The requirements set forth in subsection (1) shall not apply to board and commission members whose appointment began prior to the effective date of this section.

(3) The oath taken by appointees to boards, agencies and commissions shall state as follows:

I, _____ do solemnly swear or affirm that I will attend training offered by the Urban County Government relating to members of boards and commissions and that I have reviewed the governing documents relating to the board, agency or commission to which I have been appointed.

I further solemnly swear or affirm that I will discharge, to the best of my ability, the duties and responsibilities of the board, agency or commission to which I have been appointed.

(Ord. No. 271-2009, § 1, 12-8-09; Ord. No. 117-2015, § 1, 10-22-15)

Sec. 2-20--2-22. Reserved.

Sec. 2-23. Investment policy.

(1) **Scope of policy:** The Lexington-Fayette Urban County Government, hereinafter referred to as "Government," maintains a variety of funds for accounting and budgetary purposes. The funds include those used to finance the general operations of the government and its proprietary activities, reserves established to insure the government against risk, reserves established related to debt issuance by bonding ordinances for debt service and capital improvements, and funds held by the government as an agent for other organizations.

(a) All funds of the government, except the retirement funds, are covered by this policy including the following:

(i) General Services Fund;

(ii) Full Urban Services Fund;

(iii) Special Revenue Funds including grant funds;

(iv) Fayette County Detention Center Corporation;

(v) Capital Project Funds;

(vi) Sanitary Sewer System;

(vii) Public Facilities Corporation;

(viii) Public Parking Corporation;

(ix) The self insurance funds.

(b) The following retirement funds are not covered by this policy because they are managed by their respective boards which are established by Kentucky Revised Statutes:

(i) The Policemen's and Firefighters' Retirement Fund (KRS 67A.360 et seq.);

(ii) The City Employees' Pension Fund (KRS 67A.320 and KRS 67A.350).

(2) **Investment objectives and considerations:** It is the policy of the government to invest funds in a manner which will provide the highest investment return with the maximum security of principal while meeting the daily cash flow demand of the government. These objectives should consider the following objectives:

(a) Safety of capital: Safety of capital is the primary objective of the government. Each investment transaction shall seek to ensure that capital losses are avoided, whether they be from security defaults or erosion of market value. Therefore, funds will be deposited and invested without undue exposure to credit risk.

(b) Liquidity: Funds will be available when needed for disbursement and will be invested without undue exposure to market risk or maturity risk.

(c) Yields: Funds which are not immediately needed for operations will be invested in interest earning investments. The investment of the government shall be designed to attain a market-average rate of return, taking into account the government's investment risk constraints and cash flow requirements.

(d) Legality: Funds will be deposited and invested in accordance with statutes, ordinances, bond indentures and internal procedures governing the specific funds.

(3) **Delegation of investment authority:** The department of finance is responsible for the custody, investment and disbursement of all funds of the government in accordance with the procedures and standards adopted by the urban county council. The commissioner of finance shall have the authority to establish additional specific written procedures and policies for the operation of the investment program which are consistent with the adopted investment policy. No person may engage in an investment transaction except as provided under the terms of this policy and the procedures established by the commissioner of finance.

The mayor may sign contracts for investment services which conform to this policy and which are necessary for the implementation of this policy. The commissioner of finance shall be responsible for all transactions undertaken and shall establish a system of controls to regulate the activities of subordinate officials and employees. The controls shall be designed to prevent and control losses of public funds arising from fraud, employee error, misrepresentation by third parties, unanticipated changes in financial markets or imprudent actions by officers or employees.

(4) **Statement of prudence:** The standard of prudence to be applied by investment officials shall be the "prudent person" rule, which is defined to mean "investments shall be made with judgment and care, under circumstances then prevailing, which persons of prudence, discretion, and intelligence exercise in the management of their own affairs, not for speculation, but for investment, considering the probable safety of capital as well as the probable income to be derived." The prudent investor standard shall be applied in the context of managing the overall portfolio.

(5) **Pooling of funds:** Investment efficiencies may be realized if cash is pooled: A higher rate of interest may be obtained from investing one (1) large sum of money than investing several small sums of money. Because of these efficiencies and to the extent that there are not legal restrictions, funds accounted for separately may be pooled for investment purposes.

(6) **Eligible investments:** The funds of the government will be invested in accordance with this policy and all applicable state statutes only in the following types of investment instruments:

(a) Obligations of the United States and of its agencies and instrumentalities, including obligations subject to repurchase agreements, provided that delivery of these obligations subject to repurchase agreements is taken either directly or through an authorized custodian subject to the limitations listed in subsection (7)(c);

(b) Obligations and contracts for future delivery or purchase of obligations backed by the full faith and credit of the United States or a United States government agency, including but not limited to:

(i) United States Treasury;

(ii) Export-Import Bank of the United States;

(iii) Farmers Home Administration;

(iv) Government National Mortgage Corporation; and

(v) Merchant Marine bonds.

(c) Obligations of any corporation of the United States government, including but not limited to:

(i) Federal Home Loan Mortgage Corporation;

(ii) Federal Farm Credit Banks;

(iii) Banks for Cooperatives;

(iv) Federal Intermediate Credit Banks;

(v) Federal Land Banks;

(vi) Federal Home Loan Banks;

(vii) Federal National Mortgage Association; and

(viii) Tennessee Valley Authority.

(d) Certificates of deposit issued by or other interest-bearing accounts of any bank or savings and loan institution which are insured by the Federal Deposit Insurance Corporation or similar entity or which are collateralized, to the extent uninsured, by any obligations, including surety bonds, permitted by KRS 41.240(4);

(e) Bankers' acceptances for banks rated in one (1) of the three (3) highest categories by a nationally recognized rating agency;

(f) Commercial paper rated in the highest category by a nationally recognized rating agency;

(g) Bonds or certificates of indebtedness of the Commonwealth of Kentucky and of its agencies and instrumentalities;

(h) Securities issued by a state or local government, or any instrumentality or agency thereof, in the United States, and rated in one (1) of the three (3) highest categories by a nationally recognized rating agency; and

(i) Shares of mutual funds, each of which shall have the following characteristics:

(i) The mutual fund shall be an open-end diversified investment company registered under the Federal Investment Company Act of 1940, as amended;

(ii) The management company of the investment company shall have been in operation for at least five (5) years; and

(iii) All of the securities in the mutual fund shall be eligible investments under this section.

(7) **Investment limitations:** With regard to the eligible investments, the following limitations shall apply:

(a) The combined investments at any one time in the categories of the investments authorized in subsections (6)(e), (6)(f), and (6)(h) shall not exceed twenty (20) percent of the total invested funds;

(b) No investment shall be purchased on a margin or through the use of any similar leveraging technique;

(c) Repurchase agreements are to be entered into only with primary dealers. Primary dealers include banks which are members of the Federal Reserve, SEC-registered broker-dealers and those government secu-

rity dealers included in the "List of Government Securities Dealers Reporting to the Market Reports Division of the Federal Reserve Bank of New York (NY Fed)". The securities held as collateral for repurchase agreements shall be held in safekeeping by an independent third-party custodian in the name of the government. The securities serving as collateral will be marked to market periodically to ensure they have not fallen below the required collateralization level.

(8) **Diversification of investments:** The government recognizes that investment risk can result from changes in credit quality underlying a security, issuer defaults, market price changes or temporary liquidity problems. In order to reduce investment risk while attaining market average rates of return, it is the policy of the government to diversify its investment portfolio with respect to the type of securities in the portfolio, the concentration of investments held by with any financial institution, and the length of maturities of investments.

(a) In order to reduce credit risk, the following principles will be pursued:

(i) The investments held by a financial institution, excluding that held in a money market mutual fund should be limited to no more than thirty-five (35) percent of the total investments.

(ii) Financial institutions and brokers wishing to conduct business with the government shall annually submit audited financial reports to the government.

(iii) In the event of significant changes in credit quality of an issuer of a security, the financial institution holding the security, or with the custodian of the security, the commissioner of finance shall review and, if appropriate, proceed to liquidate securities.

(b) In order to ensure liquidity and reduce market and maturity risk, the following actions and principles will be pursued:

(i) Weekly, monthly, and annual cash flow forecasts, based on reasonable knowledge of future fiscal events and historical fiscal trends, will be developed by the department of finance. Investment lengths will be based on these forecasts so that cash may be available to meet anticipated expenditures.

(ii) Market price volatility should be controlled through maturity diversification.

(iii) Yields on investments will be monitored and compared to that currently available in the market. In the event that current market yields are higher than that of current investments and the cost of liquidating current investments are relatively small when compared to potential interest earnings, the commissioner of finance may liquidate securities prior to maturity.

(iv) In the event that there are unanticipated disruptions of cash flows which create liquidity problems for the government, the commissioner of finance may liquidate securities prior to maturity.

(9) **Selection of financial institutions and broker-dealers:** : In selecting financial institutions, the creditworthiness of the institution shall be considered. Banks and savings and loan associations seeking to be

eligible for the government's certificate of deposit purchase program, security transactions, repurchase agreements and safekeeping agreements shall annually submit to the government audited financial statements and regulatory reports on financial condition. For broker-dealers of securities not associated with a bank, the government may select only primary government securities dealers that report daily to the New York Federal Reserve Bank, unless a credit and capitalization analysis conducted by or on behalf of the department of finance reveals that other firms are adequately financed to conduct public business. In all cases the broker-dealer must provide proof of certification and state registration by the National Association of Security Dealers.

(10) **Safekeeping and collateralization:** All investment securities purchased by the government shall be held in third-party safekeeping by an institution designated as primary agent. All cash deposits in excess of FDIC insurable amounts and investments maintained by any financial institution will be collateralized. Collateralized securities shall be purchased using the delivery versus payment procedure. Collateral shall be marked to market periodically.

(11) **Reporting requirements:** The department of finance will generate daily, monthly and annual reports for management purposes and will submit quarterly status reports to the urban county council. The performance of the investments shall be reported to the urban county council annually. Investments and conformity to this investment policy will be reviewed annually by the independent auditor.

(Ord. No. 248-94, § 1, 12-8-94; Ord. No. 11-95, § 1, 1-26-95; Ord. No. 161-98, § 1, 6-25-98)

Sec. 2-24. Government agency investment policy for county agencies.

(1) Urban county government agencies, as used in this section, shall include but not be limited to the agencies and instrumentalities listed in Chapter 2 of this Code.

(2) The following investment policy shall be mandatory for all urban county government agencies:

(a) **Objectives:** Capital preservation with surety of income. Reasonable competitive income consistent with high investment quality and purpose of funds. All investments shall conform with state and local law and regulations and these policies.

(b) **Investment funds management:** The governing board may elect to either:

(i) Manage its investments through its executive director where the size or complexity of funds to be managed is deemed by the board to be within the training, expertise and/or available time capacity of the executive director and the operating staff; or

(ii) Utilize the professional investment management facilities of a local bank trust department acting in a fiduciary capacity within the same approved investment policies and federal, state, local and trust laws and regulations. The trust department may utilize its regular short-term one hundred (100) percent U.S. Treasury Fund for daily funds investment.

The election of option (i) or (ii) should be made consistent with the relative cost incurred, and in the case of option (ii) the cost shall be competitive among local trust departments.

(c) **Investment policies; safety and prudence:**

(i) Short-term liquidity funds shall be invested in "riskless" investments, i.e. deposits in Kentucky commercial banks or savings and loan associations that are fully federally insured or deposits collateralized by U.S. treasury securities with a current market value of at least one hundred (100) percent, or in direct obligations of U.S. treasury securities.

Investments shall be diversified according to maturity in order to meet projected cash flow needs.

Collateral pledged to secure uninsured deposits shall be held at a federal reserve bank with the receipt providing absolute control by the agency.

(ii) Retirement funds, endowment funds, long-term capital reserve funds and any other special funds may be held and invested by a local bank trust department under investment objectives and diversification in accordance with the individual nature of the funds and pursuant to the "prudent man" investment rule as well as general trust law.

(iii) All investments shall be reviewed monthly by a finance or investment committee of the agency.

(iv) Local brokerage firms may hold and invest funds provided that investments are located within Kentucky and are fully insured.

(d) **Audit:** All investments shall be audited at least annually by independent certified public accountants who shall express an opinion as to whether or not investments during the year audited have conformed with state and local law and regulation and with the approved investment policies.

(3) To the extent that this section may conflict with a state statute or rule of law, the section shall be deemed inoperative to the extent of the conflict, and shall be deemed modified to conform to such statute or rule of law.

(Ord. No. 197-84, § 1, 11-1-84)

Article II

Lexington-Fayette County Human Rights Commission

Sec. 2-25. Reserved.

Editor's note(s)—Section 2-25, relating to the Inter-Local Cooperation Agreement, which established the human rights commission, derived from Ord. No. 5671, § 1(1)--(21), adopted Oct. 27, 1966; was repealed by § 2 of Ord. No. 190-83, adopted Oct. 6, 1983.

Sec. 2-26. Composition; appointment, term.

(1) The Lexington-Fayette Urban County Human Rights Commission established pursuant to the Inter-Local Cooperation Agreement between the City of Lexington and the Fiscal Court of Fayette County and section 7.17 of the Urban County Charter shall be composed of fourteen (14) members, who are as nearly as possible representative of the several social, economic, cultural, ethnic and racial groups which compose the population of the county. Such members may reside anywhere in the county.

(2) The appointment and term of the commission members shall be as provided in Section 7.02 of the Urban County Charter.

(Ord. No. 190-83, § 1, 10-6-83)

Sec. 2-27. Administrative provisions.

(1) The commission shall elect a chairperson, a vice-chairperson, a secretary and a treasurer from among its members.

(2) All orders of the commission shall be signed by the chairperson or vice-chairperson and attested by the secretary.

(3) A simple majority of the total membership of the commission shall constitute a quorum. The members of the commission shall observe the code of ethics contained in article XVI of the Urban County Charter. Any member of the commission who has a disqualifying interest shall disclose such interest on the record of the commission and shall disqualify himself from participating in any decision or vote relating thereto. A disqualified member may remain for quorum purposes only but shall not participate in any discussion or vote on the subject. A simple majority vote of all members present, where there is a properly constituted quorum, shall be necessary to transact any official business; except that in adopting bylaws, rules or regulations or in any elections, a simple majority of the total membership shall be necessary.

(4) The commission may appoint one (1) or more of its members to act as a hearing examiner or examiners to preside over hearings and make recommendations to the commission based upon the record of proceedings, including testimony which shall be recorded in a form prescribed by the commission.

(5) The commission shall meet as often as it deems necessary, but it shall meet not less than once each month.

(6) Members shall serve without compensation. However, subject to the approval of the commission and within the limitation imposed by the budget, they shall be allowed their necessary expenses, attendant upon their duties.

(7) The chairperson of the commission may appoint such committees as the rules of the commission shall provide and such other committees from time to time as the commission may deem necessary in order to carry out its purposes.

(Ord. No. 190-83, § 1, 10-6-83)

Sec. 2-28. Executive director; other employees.

(1) The commission shall employ an executive director with training and experience in intergroup and interracial relations, whose qualifications and compensation shall be approved by the mayor. The executive director shall coordinate the activities of the commission and its staff.

(2) The commission may, within the limits of funds made available, employ such attorneys, hearing examiners, clerks and other employees and agents as it deems necessary, and fix their compensation.

(Ord. No. 190-83, § 1, 10-6-83)

Sec. 2-29. Report; fiscal year.

(1) The commission shall submit an annual report as of July 1 of each year to the mayor and council, which report shall contain a summary of its activities for the preceding year, a physical inventory of all property, and audit of all receipts, expenditures and funds on hand.

(2) The commission shall prepare, annually, a budget for the ensuing fiscal year and submit by the date specified the same to the mayor and council for their approval.

(Ord. No. 190-83, § 1, 10-6-83)

Sec. 2-30. Duties.

(1) The commission shall endeavor to promote and secure mutual understanding and respect among all economic, social, religious and ethnic groups in the county and shall act as conciliator in controversies involving intergroup and interracial relations.

(2) The commission shall cooperate with federal, state and other local agencies in efforts to develop harmonious intergroup and interracial relations and shall endeavor to enlist the support of civic, religious, labor and commercial groups and leaders dedicated to the improvement of human relations and the elimination of discriminatory practices.

(3) The commission shall receive complaints, conduct investigations, hold hearings and have such studies made as will enable the commission to carry out the purposes of this article and the Kentucky Civil Rights Act [K.R.S. 344.010 et seq.].

(4) The commission shall receive complaints and conduct investigations concerning allegations that an employee has been paid less than the minimum wage established under Chapter 13A of the Code of Ordinances of the Lexington-Fayette Urban County Government. Where the Commission determines that a violation has occurred, the Commission may, with the written consent of the aggrieved employee, bring a civil action on behalf of such employee to recover unpaid wages.

(5) The commission shall receive complaints, conduct investigations, conciliate, hold hearings, and issue orders concerning allegations of violations of Sections 14-107 to 14-112 relating to the use of sexual orientation or gender identity change efforts or conversion therapy with a minor, as those terms are defined by Section 14-108.

(Ord. No. 190-83, § 1, 10-6-83; Ord. No.113-2016, § 2, 6-16-16; Ord. No.32-2021, § 7, 5-6-21)

Sec. 2-31. Adoption of state law.

(1) The provisions of KRS 207.130(1); 344.010(1), (4)--(16); 344.020; 344.030; 344.040; 344.045; 344.050; 344.060; 344.070; 344.080; 344.090; 344.100; 344.110; 344.120 and such discrimination on the basis of sex; 344.130; 344.140; 344.145; 344.280; 344.360; 344.362; 344.365; 344.367; 344.370; 344.375; 344.380; 344.400, and 344.680 as they relate to discrimination in employment, public accommodations and housing on the basis of race, color, religion, national origin, sex, disability or age forty (40) and over; in addition to the above, to discrimination in public accommodations and housing on the basis of familial status, and as they are in effect on July 15, 1998, are adopted by the urban county government.

(2) The commission is given jurisdiction over all complaints for violation of those laws adopted in subsection (1) of this section.

(3) In the enforcement of this section, the commission shall have the powers set forth in KRS 344.320; 344.330; 344.340 and 344.350, as they are in effect on July 15, 1994, as well as the power to meet and exercise its powers at any place within the county and to adopt, promulgate, amend and rescind rules and regulations to effectuate the purposes of this article, including regulations requiring the posting of notices prepared or approved by the commission.

(Ord. No. 190-83, § 1, 10-6-83; Ord. No. 166-92, § 1, 9-17-92; Ord. No. 199-94, § 1, 10-6-94)

Sec. 2-31.1. Natural texture and color of hair and protective hair styles as protected characteristics of race, national origin and religion.

(1) It is the policy of the Lexington-Fayette Urban County Government to safeguard all persons within Fayette County from discrimination in employment, public accommodation, and housing on the basis of race, national origin, and religion.

(2) For purposes of this section, "race" shall include traits historically associated with race, including, but not limited to, natural texture and color of hair; hair styles; whether or not hair is adorned by hair ornaments such as ribbon, headwraps, beads or barrettes; and protective hair styles.

(a) Natural hair includes, but is not limited to, hair that is treated or untreated, protective styles, and hair types and styles that are commonly associated with African-Americans and their racial, ethnic, cultural identities and expressions, and the unwanted touching thereof;

(b) Protective hair styles include, but are not limited to braids, locs, twists, cornrows, Bantu Knots, afros, whether or not hair extensions or treatments are used to create or maintain any such style, whether or not hair is adorned by hair ornaments, beads, headwraps or hair covering, necessary protective hair styles needed due to medical conditions, and the unwanted touching thereof;

(3) For purposes of this section, "national origin" includes natural texture and color of hair, hair styles, and protective hair styles, including, but not limited to, braids, locs, twists, cornrows, Bantu Knots, afros, whether or not hair extensions or treatments are used to create or maintain any such style, and whether or not hair is adorned by hair ornaments, beads, headwraps, or hair coverings, related to a person's place of birth or ancestry.

(4) For purposes of this section, "religion" includes hair styles that are an expression of religious observance and practice, as well as belief, unless an employer demonstrates that they are unable to reasonably accommodate to an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business;

(5) The Lexington Fayette Urban County Human Rights Commission shall have jurisdiction to receive, investigate, conciliate, hold hearings, and issue orders relating to complaints filed alleging discrimination in employment, public accommodation, or housing based on the race or national origin, specifically as it pertains to the natural hair or protective hairstyle of the complaining party.

(Ord. No. 049-2023, § 1, 5-11-23)

Sec. 2-31.2. Discrimination in housing due to lawful source of income or payment.

(1) It is the policy of the Lexington Fayette Urban County Government to safeguard all persons within Fayette County from discrimination in housing on the basis of lawful source of income or payment as evidenced by the refusal to consider any lawful source of income or payment in the same manner as ordinary wage income.

(2) For purposes of this section, "lawful source of income or payment" shall mean:

(a) Any form of lawful income or payment that can be verified, which a person can use to pay rental or other payments associated with the rental, lease, or occupancy of any real estate used for residential purposes within Fayette County; and

(b) May include lawful income paid to or on behalf of a renter including, but not limited to, income derived from wages, salaries, or other compensation for employment, court-ordered payments, income derived from social security, grants, pensions, or any form of federal, state, or local public assistance and/or housing assistance, including Housing Choice vouchers, and any other forms of lawful income. "Lawful source of income or payment" does not include income derived in an illegal manner.

(3) The prohibitions in this section against discrimination based on lawful source of income or payment shall not be construed to prohibit a housing provider from determining the ability of a potential renter to pay rent by verifying in a commercially reasonable and nondiscriminatory manner the source and amount of income or creditworthiness of the potential renter. However, the use of a financial or income standard for the rental of housing that fails to account for any rental payments or portions of rental payments that will be made by other individuals, organizations, or governmental agencies on the same basis as rental payments to be made directly by the tenant or prospective tenant shall be a prohibited, unlawful practice.

(4) This section shall not be construed or interpreted to supersede any federal or state law or regulation that expressly conflicts with any provision of this section, or that prohibits the application or enforcement of any part of this section.

(5) The Lexington-Fayette Urban County Human Rights Commission shall have jurisdiction to receive, investigate, conciliate, hold hearings, and issue orders relating to complaints filed alleging discrimination in housing specifically as it pertains to lawful source of income or payment, and otherwise exercise the enforcement powers consistent with this Article of the Code of Ordinances.

(Ord. No. 024-2024, § 1, 2-15-24)

Sec. 2-32. Procedures.

(1) The commission shall follow the same procedures as the Kentucky Commission on Human Rights as set forth in KRS 344.200(6), pending final determination of proceedings hereunder; 344.230(3), (4); 344.250(1), (6), (7); 344.260(1), (3), (4); 344.385; 344.600 except as it relates to actions taken by the attorney general of Kentucky; 344.605; 344.610; 344.615; 344.620; 344.625; 344.630; 344.635; 344.640(1), (3)--(7); 344.645; 344.670; and 344.675(1), (3), (9) as they are in effect on July 15, 1998. In addition, the commission shall follow the procedures set out in subsection (2) hereof.

(2) Unless otherwise required by law, the following shall apply to complaints filed with the commission:

(a) A person claiming to be aggrieved by an unlawful practice, or a member of the commission, may file with the commission a verified complaint stating that an unlawful practice has been committed, setting forth the facts upon which the complaint is based, and setting forth facts sufficient to enable the commission to identify the persons charged, hereinafter "the respondent." The complaint must be filed within one hundred eighty (180) days after the alleged unlawful practice occurs.

(b) The commission shall make a prompt and full investigation of each complaint, unless a voluntary settlement agreement is entered into before a determination is reached.

(c) If it is determined that there is no probable cause to believe that the respondent has engaged in an unlawful practice, the commission shall issue an order dismissing the complaint.

(d) If it is determined, after investigation, that there is probable cause to believe the respondent has engaged in an unlawful practice, the commission shall notify the parties of such determination and endeavor to eliminate the alleged unlawful practice by conference, conciliation, and persuasion. The terms of a conciliation agreement reached with a respondent may require him to refrain from the commission of unlawful discriminatory practices in the future and make such further provisions as may be agreed upon between the commission or its staff and the respondent.

(e) In any case of failure to eliminate the alleged unlawful practice by means of conference, conciliation and persuasion, the commission shall hold a public hearing to determine whether or not an unlawful practice has been committed. The commission shall serve upon the respondent a statement of the charges made in the complaint and a notice of the time and place of the hearing. The hearing shall be held not less than ten (10) days after the service of the statement of charges. The respondent shall have the right to file an answer, to appear at the hearing in person or to be represented by an attorney, and to examine and cross-examine witnesses.

(f) If the commission determines that the respondent has not engaged in an unlawful practice, the commission shall state its findings of fact and conclusions of law and shall issue an order dismissing the complaint.

(g) If the commission determines that the respondent has engaged in an unlawful practice, the commission shall state its findings of fact and conclusions of law and shall issue an order requiring the respondent to cease and desist from the unlawful practice and to take such remedial and affirmative action as in the judgment of the commission will carry out the purposes of this article.

(Ord. No. 190-83, § 1, 10-6-83; Ord. No. 166-92, § 2, 9-17-92; Ord. No. 199-94, § 2, 10-6-94; Ord. No. 22-2020, § 1, 3-5-20)

Sec. 2-33. Discrimination due to sexual orientation or gender identity.

(1) It is the policy of the Lexington Fayette Urban County Government to safeguard all persons within Fayette County from discrimination in employment, public accommodation, and housing on the basis of sexual orientation or gender identity, as well as from discrimination on the basis of race, color, religion, national origin, sex, disability, and age forty (40) and over.

(2) For purposes of this section, the provisions of KRS 344.010 (1), (5) through (13) and (16), 344.030 (2) through (5), 344.040, 344.045, 344.050, 344.060, 344.070, 344.080, 344.100, 344.110, 344.120, 344.130, 344.140, 344.145, 344.360(1) through (8), 344.365(1) through (4), 344.367, 344.370(1),

(2) and (4), 344.375, 344.380, 344.400 and 344.680, as they existed on July 15, 1998, are adopted and shall apply to prohibit discrimination on the basis of sexual orientation or gender identity within Fayette County.

(3) The commission shall have jurisdiction to receive, investigate, conciliate, hold hearings and issue orders relating to complaints filed alleging discrimination in employment, public accommodation or housing based on the sexual orientation or gender identity of the complaining party. The commission is authorized to use the powers and procedures listed in sections 2-31 and 2-32 to carry out the purposes of this section, except that KRS 344.385, 344.635 and 344.670 shall not apply to the enforcement of this section.

(4) For purposes of this section, "sexual orientation" shall mean a person's actual or imputed heterosexuality, homosexuality, or bisexuality.

(5) For purposes of this section, "gender identity" shall mean:

(a) Having a gender identity as a result of a sex change surgery; or

(b) Manifesting, for reasons other than dress, an identity not traditionally associated with one's biological maleness or femaleness.

(6) Nothing in this section shall be construed to prevent an employer from:

(a) Enforcing an employee dress policy which policy may include restricting employees from dress associated with the other gender; or

(b) Designating appropriate gender specific restroom or shower facilities.

(7) The provisions of this section shall not apply to a religious institution or to an organization operated for charitable or educational purposes, which is operated, supervised, or controlled by a religious corporation, association or society except that when such an institution or organization receives a majority of its annual funding from any federal, state, local or other government body or agency or any combination thereof, it shall not be entitled to this exemption.

(Ord. No. 201-99, § 1, 7-8-99; Ord. No. 22-2020, § 2, 3-5-20)

Secs. 2-34--2-44. Reserved.

Sec. 2-45. Reserved.

Editor's note(s)—Section 2-45, adopting state laws relating to discrimination, derived from Ord. No. 277-79, § 2, adopted Nov. 15, 1979; Ord. No. 113-80, § 1, adopted Aug. 1, 1980; and Ord. No. 18-82, § 2, adopted Feb. 25, 1982, was repealed by § 2 of Ord. No. 190-83, adopted Oct. 6, 1983.

Sec. 2-46. Equal opportunity employment policy; affirmative action plan.

(a) It is the policy of the urban county government to ensure that its employment practices guarantee equal opportunity to all employees without regard to race, color, religion, sex, national origin, age forty (40) and above.

(b) It is the policy of the urban county government to require that contractors with and suppliers to the urban county government ensure equal employment opportunity to their employees without regard to race, color, religion, sex, national origin, age forty (40) and above.

(c) The affirmative action plan, calendar year 1989, as it exists on October 20, 1988, is hereby adopted, and incorporated herein by reference, as the instrument by which the above policies shall be implemented, monitored and enforced. A true copy of said affirmative action plan shall be lodged in the office of the clerk of the urban county council for inspection by the public.

(Ord. No. 62-80, § 2, 5-29-80; Ord. No. 196-83, § 1, 10-20-83; Ord. No. 240-88, § 1, 10-20-88)

Sec. 2-47--2-55. Reserved.

Editor's note(s)—At the direction of the urban county government, the editors deleted the former provisions of article III, pertaining to the planning program, derived from Resolutions No. 1793 and 1797. The urban county government has, by ordinance adopted zoning regulations which provide for a planning commission and board of adjustment and which are on file in the urban county clerk's office.

Article III

Reserved

Sec. 2-56--2-85. Reserved.

Article IV

Masterson Station Park Advisory Board

Sec. 2-86. Created; purpose.

(a) A board is hereby created which shall be known as the Masterson Station Park Advisory Board of the Lexington-Fayette Urban County Government, hereinafter referred to as the "MSP Advisory Board".

(b) The MSP Advisory Board is established for the purpose of serving as an advisory board to the division of parks and recreation on issues relating to policies, programming, fundraising and development with the goal of implementation of the approved Masterson Station Park master plan.

(Ord. No. 177-2004, § 1, 7-8-04)

Sec. 2-87. Membership; terms; staff.

(a) The members of the MSP Advisory Board shall be eighteen (18) in number and shall be appointed by the mayor, with the advice of the constituent groups represented, subject to confirmation by a majority of the urban county councilmembers. Sixteen (16) members shall be voting members and two (2) shall be ex-officio, non-voting members. The eighteen (18) members shall be as follows: one (1) member from the Audubon Society; one (1) member shall be from the Lexington Lions Club, Inc.; one (1) member shall be from the Bracktown Neighborhood Association; one (1) member shall be from the Masterson Station Park Casual Riders; one (1) member shall be a citizen representing the division of parks and recreation Equestrian Program; one (1) member shall be from the Friends of the Dog Park; one (1) member shall be the representative to the Parks and Recreation Advisory Board for the urban county district in which Masterson Station Park is located, unless (s)he is unable or unwilling to serve, in which case the position shall be filled by an individual from the urban county council district in which Masterson Station Park is located; one (1) member shall be from the Kentucky Border Collie Association; one (1) member shall be from the McConnell Trace Neighborhood Association; one (1) member shall be from the Lexington Youth Soccer Association; one (1) member shall be from the Masterson Station Neighborhood Association; one (1) member shall be from the Masterson Equestrian Trust Foundation; one (1) member shall be from the Fayette County Neighborhood Council; one (1) member shall be from the Marehaven/Westwood Homeowners Association; one (1) member shall be from the international sports community; one (1) member shall be a representative from Town Branch Trail, Inc.; one (1) ex-officio, non-voting member shall be the Urban County Council member that represents the urban county district in which Masterson Station Park is located; and one (1) ex-officio, non-voting member shall be the director of the division of parks and recreation or his designee.

(b) The members of the MSP Advisory Board will serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the manner required by section 7.02 of the Urban County Charter.

(c) Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. The membership of the appointed councilmembers shall be terminated upon leaving office as a councilmember.

(d) Any member may be reappointed for additional terms.

(Ord. No. 177-2004, § 1, 7-8-04; Ord. No. 229-2006, §§ 1, 3, 8-24-06; Ord. No. 263-2007, § 1, 11-15-07; Ord. No. 135-2011, § 1, 10-27-11; Ord. No. 66-2012, § 1, 5-17-12; Ord. No. 150-2017, § 1, 10-12-17)

Sec. 2-88. Officers.

The officers of the MSP Advisory Board shall consist of a chairman, a vice-chairman, a secretary and other officers elected from the membership as set forth in the bylaws. They shall take office at the first meeting of the MSP Advisory Board after election. The duties of the officers shall be as specified in the bylaws.

(Ord. No. 177-2004, § 1, 7-8-04)

Sec. 2-89. Rules of procedure; quorum.

(a) The MSP Advisory Board shall determine its own rules and order of business and so provide for keeping a record of its proceedings.

(b) A majority of the voting members of the MSP Advisory Board, that is nine (9) members, shall constitute a quorum for transaction of business at any meeting of the MSP Advisory Board. The acts of a majority of those members present at any regular meeting or special meeting shall be the acts of the MSP Advisory Board, provided that it shall take a vote of nine (9) members to adopt or amend its bylaws.

(Ord. No. 177-2004, § 1, 7-8-04; Ord. No. 229-2006, § 2, 8-24-06; Ord. No.150-2017, § 2, 10-12-17)

Sec. 2-90. Meetings; records.

Regular meetings shall be held at least quarterly. All meetings shall be open to the public and conducted in a manner consistent with KRS 61.805 to 61.850. Full and complete minutes of all meetings and records of all proceedings including the number of votes for and against each motion and the record of the vote of each member shall be kept and made available for public inspection.

(Ord. No. 177-2004, § 1, 7-8-04)

Sec. 2-91. Powers and duties.

This board is advisory in nature and is established with the following powers and duties:

(1) To represent users of Masterson Station Park.

(2) To review proposed park improvements and programs at Masterson Station Park.

(3) To advise the division of parks and recreation in the implementation of park improvements and programs at Masterson Station Park.

(4) To assist in fund-raising for Masterson Station Park.

(5) To adopt bylaws.

(6) To appoint standing and ad-hoc committees. (Ord. No. 177-2004, § 1, 7-8-04)

Sec. 2-92. Conflict of interest.

All members of the MSP Advisory Board shall be subject to the Code of Ethics contained in Article 16 of the Urban County Charter.

(Ord. No. 177-2004, § 1, 7-8-04)

Secs. 2-93--2-95. Reserved.

Article V

Environmental Commission of Lexington-Fayette County

Sec. 2-96. Established.

A commission for environmental improvement is hereby created which shall be known as the "Environmental Commission of Lexington-Fayette County", hereinafter called the "environmental commission."

(Ord. No. 184-74, § 1, 9-26-74; Ord. No. 41-83, § 1, 3-24-83; Ord. No. 25-2024, § 1, 3-7-24)

Sec. 2-97. Membership.

The environmental commission shall consist of twenty-five (25) members appointed by the mayor subject to the confirmation by the council. One member shall be a member of the urban county council, and shall be an ex-officio, non-voting member. The remaining membership shall be representative of all residents of the urban county and shall include at least one (1) but no more than (3) members from each of the twelve (12) urban county council districts.

(Ord. No. 184-74, § 2, 9-26-74; Ord. No. 41-83, § 1, 3-24-83; Ord. No. 25-2024, § 2, 3-7-24)

Sec. 2-98. Terms of members.

Terms of members shall be four (4) years beginning October 1 and ending September 30, of the respective year. Initial terms shall be staggered so that a proportionate number serve one (1), two (2), three (3) and (4) years respectively. Vacancies shall be filled in the same manner as the original appointment and the successor shall be appointed for the unexpired terms. Any member may be appointed for additional terms. The first members of the environmental commission shall assume their duties effective October 1, 1974.

(Ord. No. 184-74, § 3, 9-26-74; Ord. No. 41-83, § 1, 3-24-83)

Sec. 2-99. Officers and rules of procedure.

The officers of the environmental commission shall consist of a chairman, a vice-chairman, a secretary, a treasurer, an information officer, and three (3) directors, elected by the membership at the June meeting to serve a two (2)

year term in accordance with its bylaws. The duties of the officers shall be implied by the respective titles and such as may be specified in the bylaws. The environmental commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 184-74, § 4, 9-26-74; Ord. No. 41-83, § 1, 3-24-83; Ord. No. 132-88, § 1, 6-16-88; Ord. No. 25-2024, § 3, 3-7-24)

Editor's note(s)—The user should note that § 3 of Ord. No. 132-88 provides that the provisions set forth in § 2-99 "shall become effective on June 1, 1989."

Sec. 2-100. Meetings.

The environmental commission shall meet in regular public session at least nine (9) times a calendar year. These meetings shall be held on the first Monday of the month, unless otherwise designated by the officers. Special meetings may be called by the chairperson or by the written request of ten (10) members.

(Ord. No. 184-74, § 5, 9-26-74; Ord. No. 41-83, § 1, 3-24-83)

Sec. 2-101. Duties and functions of the environmental commission.

The environmental commission shall:

(1) Advise the mayor, the council, the planning commission, the board of adjustment, the building inspector, and all other appropriate bodies and officials concerning the environment and environmental policies of the community.

(2) Strive to improve the environment and quality of life of Fayette County by promoting and encouraging good environmental standards and practices in the development and growth of the community; research, draft, negotiate and support the passage of ordinances and statutes and laws on local, state and federal levels that concern the environment, land use planning and community development; encourage the enforcement of existing ordinances, statutes and laws.

(3) Investigate and study pollution of the air, land and water in the community; formulate plans for the elimination and reduction of such pollution; promote and support cleanup campaigns and antilitter projects; develop civic pride in improving the aesthetics of the community; encourage individuals, organizations, businesses, schools and neighborhood associations to improve the appearance of their properties and surroundings; promote landscaping and general beautification of public rights-of-way, buildings, parks, open spaces and utility installations.

(4) Promote greater public consciousness of local environmental problems and needs; publicize local environmental activities; compile and provide a list of environmental speakers to all interested persons, schools and groups; promote the development of environmental curricula in local schools; encourage and organize workshops, seminars, films, slide shows and speaking programs on environmental concerns.

(5) Maintain and preserve records of meetings and actions, and make these records available for public inspection

(6) Perform any other act necessary or appropriate to carry out the purpose of this article.

(Ord. No. 184-74, § 6, 9-26-74; Ord. No. 41-83, § 1, 3-24-83)

Sec. 2-102. Intent.

The intent of this article is to establish the metropolitan environmental improvement commission to enhance every aspect of the environment for the betterment of the urban county.

(Ord. No. 184-74, § 7, 9-26-74)

Sec. 2-103--2-105. Reserved.

Article VI

Citizens' Transportation Advisory Commission

Sec. 2-106. Established.

A commission for transportation is hereby created, which shall be known as the "Citizens' Transportation Advisory Commission of the Lexington-Fayette Urban County Government," hereinafter called "commission."

(Ord. No. 227-74, § 1, 11-21-74)

Sec. 2-107. Membership.

The commission shall consist of sixteen (16) voting members and seven (7) nonvoting members appointed by the mayor subject to confirmation by the council. The voting membership shall consist of a representative of each of the following: Planning commission, transit authority, airport board, chamber of commerce, historic preservation commission of Lexington, Lexington Center Board, and ten (10) citizens of this government not coming within the foregoing classifications. The nonvoting membership shall consist of a representative of each of the following: Division of traffic engineering, division of police, division of fire and emergency services, Kentucky Department of Transportation, Lex-Tran drivers, Bluegrass Area Development District, and the division of planning.

(Ord. No. 227-74, § 2, 11-21-74; Ord. No. 192-92, § 1, 10-29-92)

Sec. 2-108. Terms of members.

Terms of members shall be four (4) years ending on June 30 of the respective year, and initial terms shall be staggered so that a proportionate number serve two (2) and four (4) years respectively.

Vacancies shall be filled in the same manner as the original appointment, and the successor shall be appointed for the unexpired term. Any member may be appointed for additional terms. The first members of the commission shall assume their duties effective July 1, 1974.

(Ord. No. 227-74, § 3, 11-21-74)

Sec. 2-109. Presiding officers and rules of procedure.

Presiding officers for the commission shall consist of a chairman and a vice-chairman appointed by the mayor and approved by the urban county council. The vice-chairman shall preside in the absence of the chairman. The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 227-74, § 4, 11-21-74)

Sec. 2-110. Meetings.

The commission shall meet in regular public session at least once each month, at a time and place designated by it. Special meetings may be called by the chairman or a majority of the members of the commission.

(Ord. No. 227-74, § 5, 11-21-74)

Sec. 2-111. Duties and functions of the commission.

The commission shall:

(1) Investigate and define causes of transportation difficulty particularly related to automotive, truck and bus travel throughout the area, including receiving, considering and acting upon suggestions from citizens or public agencies for improvements to transportation; seek out, engage or cooperate with technical assistance in evaluating technical questions regarding specific transportation improvements; provide liaison and coordination of effort, regarding transportation matters between other public and quasi-public agencies, private individuals, companies involved in transportation, or others who are in a position to contribute to solutions or are involved in matters related to transportation.

(2) Determine practical options open to improvement of transportation difficulties through consultation with technical experts including the seeking out and encouragement of alternative modes of transportation and encouraging development of facilities for these modes; to the greatest extent practical, cooperate with and use the technical expertise available to it through the planning commission, division of traffic and transportation, or other agencies already established in the merged city-county government; consult with technical experts, either individuals or specialized firms, provided expenditure of funds for this purpose must be approved by the mayor; encourage citizen participation in the functions of the commission.

(3) Recommend to the mayor suggestions for control over all traffic, vehicular and pedestrian, including parking on, over, and under the public streets, roads, alleys and walkways of the urban county government.

(4) Recommend to the mayor changes to the staff and budget of the division of traffic engineering and any other division exercising transportation functions, with particular emphasis on improved technology and manpower allocation.

(5) Review, monitor and keep abreast of various state and federal programs or legislation that would be of benefit to the urban county and recommend to the mayor appropriate action.

(6) Maintain and preserve records of meetings and actions and make these records available for pubic inspection.

(7) Perform any other act necessary or appropriate to carry out the purposes of this article.

(8) In accordance with the Highway Act of 1973, this commission will make recommendations to the technical coordinating committee in regard to projects in the transportation planning process as defined by that act. For the purpose of that act, this commission shall be the citizens' committee in the local transportation planning process required by federal law.

(Ord. No. 227-74, § 6, 11-21-74)

Sec. 2-112. Intent.

The intent of this article is to establish the transportation commission to enhance every aspect of transportation for the urban county.

(Ord. No. 227-74, § 1, 11-21-74)

Secs. 2-113—2-115. Reserved.

Article VII

County Cemetery Board

Sec. 2-116. Created.

(a) A board is hereby created which shall be known as the Lexington-Fayette Urban County cemetery board, hereinafter referred to as "board."

(b) The board is established for the purpose of facilitating the restoration and maintenance of nonprofit cemeteries that do not receive perpetual care funds pursuant to krs 367.952;

(c) In carrying out its purpose, the board shall perform a number of functions, including working with other local groups to identify and promote the maintenance and preservation of local cemeteries, applying for, accepting, and dispersing grant funds and donations to carry out its purpose, and assist in developing appropriate projects.

(Ord. No. 51-2004, § 1, 3-18-04)

Sec. 2-117. Membership.

The board shall consist of five (5) members appointed by the mayor subject to confirmation by the urban county council as follows:

(1) Citizens of Fayette County who have resided in the county for at least one (1) year prior to appointment;

(2) No more than three (3) members shall represent the same political party; and

(3) All shall have demonstrated an interest in cemetery preservation, genealogy, local history, or a related area.

(Ord. No. 51-2004, § 1, 3-18-04)

Sec. 2-118. Terms of members.

The appointment term of each board member shall be four (4) years, except for initial appointment terms. Initial appointment terms shall be staggered in the manner required by section 7.02 of the Urban County Charter as follows: two (2) members appointed to a one (1) year term; two (2) members appointed to two (2) year terms; and one (1) member appointed to a three (3) year term.

(Ord. No. 51-2004, § 1, 3-18-04)

Sec. 2-119. Meetings.

The board shall meet at least three (3) times annually at a place to be provided by the urban county government at a time to be selected by the chairperson.

(Ord. No. 51-2004, § 1, 3-18-04)

Sec. 2-120. Officers and rules of procedure.

The board shall elect annually a chairperson and a vice-chairperson from the board members to serve a one-year term. The board shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. It may adopt bylaws and regulations as are necessary to carry out its duties and purposes as set forth in this article.

(Ord. No. 51-2004, § 1, 3-18-04)

Sec. 2-121. Quorum.

The majority of the members shall constitute a quorum for transaction of business at any meeting of the board.

(Ord. No. 51-2004, § 1, 3-18-04)

Secs. 2-122--2-124. Reserved

Article VIII

Reserved[1]

Article IX

Neighborhood Center Boards

Sec. 2-141. Boards constituted; powers and duties.

Each neighborhood center operated by the urban county shall have a board, of which membership requirements and powers are outlined as follows:

(1) **Membership.** Each neighborhood center shall have a board consisting of eleven (11) members appointed by the mayor and approved by the council, of whom nine (9) shall be either residents of the neighborhood of the particular center on whose board they shall serve; former residents of the neighborhood of the particular center on whose board they shall serve; or graduates of the former school the particular center on whose board they shall serve now represents, and two (2) of whom shall be representatives of appropriate urban county departments. The terms of the members of each board shall be for four (4) years; except that initial appointments of six (6) of the members of each board shall be for two (2) years so that the terms shall be staggered in such a manner as to allow the appointment or reappointment of at least six (6) of the members of each board every two (2) years.

(2) **Powers and duties.** The neighborhood center board, in making recommendations and decisions, shall be charged with the following powers and duties:

(i) **Personnel selection within the requirements of the civic service regulations.**

a. Review and make recommendations to the appropriate department commissioner (hereinafter "commissioner") on all jobs descriptions and qualification requirements for neighborhood center positions.

1. **Editor's note(s)**—Ord. No. 227-89, § 1, adopted Nov. 30, 1989, repealed §§ 2-125—2-135, being the substantive sections of art. VIII, economic development commission, derived from Ord. No. 248-79, § 1, adopted Oct. 18, 1979; Ord. No. 9-82, § 1, adopted Feb. 11, 1982; and Ord. No. 41-82, § 1, adopted Apr. 8, 1982.

b. Assist the appointment authority in the recruitment of all full-time and part-time neighborhood center employees, giving special emphasis to potential applicants living within the neighborhood center neighborhood who meet the qualifications for employment.

c. All full-time employees within the neighborhood centers shall be civil service employees of the urban county. Following the procedure for advertising and selection by the civil service commission of the top five (5) applicants, the neighborhood center board shall review and make recommendations on the five (5) applicants available to the appointing authority.

d. Part-time employees are defined as persons employed for less than forty (40) hours per week and/or employed primarily on a seasonal basis. The center board shall assist the appointing authority with recruitment of part-time or seasonal employees.

(ii) **Program selection.** It shall be the duty of the neighborhood center board to identify the needs for program services of its neighborhood and to make recommendations of priorities of such needs to the commissioner. Agencies wishing to provide services in a neighborhood center shall make application to the board through the office of the commissioner. After reviewing the applications for services and priorities of need, the board shall make its recommendations to the commissioner. Thereafter, the commissioner shall review the board's recommendations and advise the board of his or her recommendations regarding the applications for services. In case of disagreement regarding programs, the board shall, within a reasonable time from the notification of the commissioner's recommendations, appeal to the chief administrative officer and then to the mayor for reconsideration. If after said reconsideration there exists disagreement, the board shall refer the matter promptly to the vice-mayor for final resolution by the council. After final determination on the application for services in the neighborhood center, the commissioner shall be responsible for implementation of the program after obtaining an appropriate contract with the agency involved.

(3) **Personnel and program evaluating.** In order to properly evaluate personnel performance and program effectiveness, the neighborhood center boards will assist the commissioner in evaluating procedures. These procedures will be utilized on a regular basis by the neighborhood center board to evaluate both personnel performance and programming within their respective neighborhood center. Recommendations for changes in personnel and/or programming will be made to the commissioner.

(4) **Planning.** It will be the duty of the neighborhood center board to assist the commissioner in establishing priorities on the need for various services within their respective neighborhoods and within the limits of available resources, set forth both short-range and long-range plans aimed at meeting the identified neighborhood needs.

(5) **Neighborhood involvement.** To ensure neighborhood understanding of programs and services available and utilization of the neighborhood center. The board will function as public information officers within their respective neighborhoods to encourage support for and utilization of the respective neighborhood centers.

(6) **Bylaws.** Each neighborhood center board shall have the power to adopt bylaws not in conflict with the provisions of this article to govern its operation.

(7) **Budgeting.** The neighborhood center board shall review and make recommendations on the budget request made by the commissioner for the operation of neighborhood center.

(8) **Compensation.** The members of the neighborhood center board shall serve without compensation.

(Ord. No. 188-76, § 1, 9-7-76; Ord. No. 44-82, § 1, 4-8-82; Ord. No. 192-92, § 3, 10-29-92; Ord. No. 59-2001, § 1, 3-22-01; Ord. No. 87-2001, § 3, 4-19-01; Ord. No. 95-2020, § 1, 9-24-20)

Secs. 2-142--2-145. Reserved

Article X

Reserved

Article XI

Reserved

Article XII

Tourist and Convention Commission

Sec. 2-167. Reserved

Editor's note(s)—Section 2-167, creating a recreational, tourist and convention commission providing for its membership, and levying transient room tax, derived from Ord. No. 66-80, § 1, adopted June 12, 1980, was repealed by § 2 of Ord. No. 134-82, adopted July 29, 1982. See § 2-170 et seq.

Secs. 2-168, 2-169. Reserved

Sec. 2-170. Created.

(1) For the purpose of promoting recreational, convention and tourist activity in the county, there is hereby established a recreational, tourist and convention commission to be known and designated as the "Lexington-Fayette Urban County Tourist and Convention Commission," hereinafter called the commission.

(2) The commission shall be authorized to conduct and transact business in the assumed name of the "Greater Lexington Convention and Visitors Bureau."

(Ord. No. 134-82, § 1, 7-29-82; Ord. No. 221-83, § 1, 11-17-83)

State law reference(s)—Membership of tourist and convention commission in urban county government, KRS 91A.372.

Sec. 2-171. Membership.

(a) The commission established pursuant to Section 2-170 shall be composed of nine (9) members appointed by the mayor of the urban county government in the following manner:

(1) Three (3) commissioners from a list submitted by the Greater Lexington Hotel and Motel Association.

(2) One (1) commissioner from a list submitted by the Bluegrass Restaurant Association.

(3) One (1) commissioner from a list submitted by the Greater Lexington Chamber of Commerce.

(4) Four (4) commissioners who shall be residents of Fayette County.

(b) Vacancies shall be filled in the same manner that original appointments are made.

(c) The commissioners shall be appointed for terms of three (3) years, provided, that in making the initial appointments, the mayor shall appoint three (3) commissioners for a term of three (3) years, three (3) commissioners for a term of two (2) years and three (3) commissioners for a term of one (1) year.

(d) The commission shall elect from its membership a chairman and a treasurer, and may employ such personnel and make such contracts as are necessary to effectively carry out the purpose of KRS 91A.350 to 91A.390. Such contracts may include but shall not be limited to the procurement of promotional services, advertising services and other services and materials relating to the promotion of tourist and convention business; provided, contracts of the type enumerated shall be made only with persons, organizations and firms with experience and qualifications for providing promotional services and materials, such as event coordinators, advertising firms, chambers of commerce, publishers and printers.

(e) The books of the commission shall be audited by an independent auditor who shall make a report to the commission, to the organizations submitting names from which commission members are selected, and to the mayor.

(Ord. No. 134-82, § 1, 7-29-82)

Sec. 2-172. Transient room tax imposed.

(a) Pursuant to KRS 91A.390, there is hereby imposed a transient room tax at the rate of four (4) percent of the rent for every occupancy of a suite, room, rooms, cabins, lodgings, campsites, or other accommodations charged by any hotel, motel, inn, tourist camp, tourist cabin, campgrounds, recreational vehicle parks, or any other place in which accommodations are regularly furnished to transients for consideration or by any person that facilitates the rental of the accommodations by brokering, coordinating, or in any other way arranging for the rental of the accommodations. Provision shall be made by the commissioner of finance for the collection of the tax and the enforcement of the tax measure enacted.

(b) Pursuant to KRS 153.450, in addition to the four (4) percent transient room tax authorized by subsection (a), there is hereby imposed additional transient room tax at the rate of two (2) percent of the rent for every occupancy of a suite, room, rooms, cabins, lodgings, campsites, or other accommodations charged by any hotel, motel, inn, tourist camp, tourist cabin, campgrounds, recreational vehicle parks, or any other place in which accommodations are regularly furnished to transients for consideration or by any person that facilitates the rental of the accommodations by brokering, coordinating, or in any other way arranging for the rental of the accommodations. All additional moneys collected from the tax authorized by this subsection shall be applied toward the retirement of bonds used to finance the Lexington Center Corporation and to defray the operating costs of the Lexington Center Corporation.

(c) Pursuant to KRS 153.450(3), in addition to the transient room taxes authorized by subsections (a) and (b) above, there is hereby imposed additional transient room tax at the rate of two and one-half (2½) percent of the rent for every occupancy of a suite, room, rooms, cabins, lodgings, campsites, or other accommodations charged by any hotel, motel, inn, tourist camp, tourist cabin, campgrounds, recreational vehicle parks, or any other place in which accommodations are regularly furnished to transients for consideration or by any person that facilitates the rental of the accommodations by brokering, coordinating, or in any other way arranging for the rental of the accommodations. All additional moneys collected from the tax authorized by this subsection shall be applied toward the renovation, expansion, or improvement of the Lexington Convention Center by the Lexington Center Corporation.

(d) The transient room taxes established in this section shall not apply to rooms, lodgings, campsites, or accommodations supplied for a continuous period of thirty (30) days or more to a person.

(e) Payment of the transient room tax shall be made to the urban county government on or before the twentieth day of the month following the month of collection.

(f) Any person who is required to pay the transient room taxes pursuant to this section and fails to pay said taxes by the date they become due may be assessed a penalty of four and one-half (4½) percent of the amount of the tax unpaid for each calendar month or fraction of a calendar month, and, in addition, shall be assessed interest at the rate of one (1) percent of the amount of the tax unpaid for each calendar month or fraction of a calendar month. Any partial payment paid and accepted shall be first applied as interest payments, then penalty payments, then transient room tax payments.

(g) For the purposes of this section, the following terms shall have the following definitions:

Person shall have the same meaning as provided in KRS 91A.345.

Rent shall mean the total amount charged for the rental of an accommodation and any charges for any services necessary to facilitate the rental of accommodations whether the amount is charged by the provider of the accommodations or by a person facilitating the rental of the accommodations by brokering, coordinating, or in any way arranging for the rental of the accommodations.

(h) Nothing in this section shall remove from the urban county government the right to collect any other tax or to collect a similar tax for any other purpose authorized by law.

(i) The transient room taxes established in this section shall apply to all short term rentals, as further defined in Section 13-76 of the Code of Ordinances.

(Ord. No. 134-82, § 1, 7-29-82; Ord. No. 64-86, § 2, 5-1-86; Ord. No. 164-94, § 1, 8-25-94; Ord. No. 101-96, § 1, 6-27-96; Ord. No. 268-2000, § 1, 9-14-00; Ord. No. 94-2016, §§ 1, 2, 5-26-16; Ord. No. 42-2018, § 1, 7-3-18; Ord. No. 132-2022, § 1, 12-1-22)

Secs. 2-173--2-177. Reserved

Article XIII

Parking Authority[1]

Sec. 2-178. Created.

Pursuant to KRS 67A.910 through KRS 67A.928, an agency of the urban county government is hereby created to be known as the "Lexington and Fayette County Parking Authority," hereinafter referred to as the "parking authority." The parking authority shall constitute a public body, corporate and politic, and shall act as an agency, instrumentality and constituted authority of the urban county government in the provision, maintenance and operation of adequate and reasonably priced parking facilities, structures, and meters along with the enforcement of non-moving traffic violations, including the residential parking permit program, to protect and promote the safety, comfort, convenience and welfare of the people of Lexington-Fayette County.

(Res. No. 300-80, § 1, 10-16-80; Ord. No. 329-2005, § 1, 12-13-05)

1. **Editor's note(s)**—Section 2 of Res. No. 300-80, adopted Oct. 16, 1980, specified that § 1 of the resolution be included as ch. 2, art. XI. Inasmuch as Ord. No. 94-79, § 1, adopted Apr. 19, 1979, had been included as art. XI, and § 1 of Ord. No. 66-80 had been included as art. XII, the editor has designated the provisions of Res. No. 300-80 as art. XIII, § 2-178.
State law reference(s)—Motor vehicle parking authorities, KRS 67A.910 et seq.

Sec. 2-179. Powers.

The parking authority shall have the following powers, in addition to those granted by KRS 67A.910 through 67A.928 and other applicable statutes:

(1) To install, lease, construct, maintain, manage, operate, repair, acquire, own, finance and control new and existing parking facilities and structures;

(2) To plan, design and locate parking facilities and structures;

(3) To make and execute contracts and other instruments necessary or convenient to the exercise of its powers;

(4) To hire and maintain such staff personnel as may be required;

(5) To purchase, lease, obtain an option upon, acquire by gift, grant, bequest, devise or otherwise any real or personal property including air space, and any interest therein, together with any improvements thereon; to demolish buildings and clear improvements from any of its real property and dispose of any personal property resulting therefrom; to dispose of any real or personal property at fair value; to rent, lease, construct, maintain, manage, operate, repair parking facilities and structures and other real property located within or within reasonable proximity to the parking districts;

(6) To contract with any suitable and qualified person, firm or corporation for construction, operation and/or management of any parking facility or structure as is found to be in the public interest;

(7) To borrow from and to accept loans and grants from the federal, state, urban county government or any agency thereof, or from any sources, public or private, and to pledge such security as may be required;

(8) To issue its bonds, notes, or other obligations to finance or refinance any of its purposes or operations, including the acquisition, construction, installation, equipping, repair, maintenance, renovation, or improvement of parking facilities and structures, or to refund any obligations previously issued by the Lexington and Fayette County Parking Authority or any other governmental agency for any such purpose;

(9) To request the urban county council to levy an ad valorem tax and/or a occupational license tax to finance its operations;

(10) To install, lease, construct, maintain, manage, operate, repair, acquire, own, finance and control all parking meters (including bagging) in the urban county area;

(11) To enforce all non-moving traffic violations connected with such meters or parking facilities and structures which the parking authority maintains, operates, owns or manages;

(12) To fix, set and prescribe reasonable rates, charges and expenses for parking at all meters, parking facilities or parking structures which the parking authority maintains, operates owns or manages;

(13) To manage and enforce the residential parking permit program within the urban county area;

(14) To make, and from time to time amend and repeal bylaws, rules and regulations in order to effect the purpose of this chapter;

(15) To grant exemptions or partial exemptions from any ad valorem tax and/or occupational license tax assessed within a parking district for the purpose of financing a proposed or existing parking authority project; and

(16) To nominate parking citation officers to be appointed by the office of the mayor.

(Ord. No. 329-2005, § 1, 12-13-05)

Sec. 2-180. Membership.

The parking authority shall have a board of commissioners of six (6) members. The mayor shall appoint five (5) of the members of the board of commissioners, subject to confirmation by a majority of the urban county council members and each such member of the board of commissioners shall be a resident of Fayette County. The commissioner of finance or his or her designee shall also serve as an ex-officio, voting member of the board. Each appointed member of the board of commissioners shall serve a term of four (4) years; provided, however, the terms of the initial board shall be staggered such that three (3) of the commissioners first appointed shall be designated to serve terms of one (1), two (2), and three (3) years, respectively, and the remaining two (2) commissioners first appointed shall be designated to serve terms of four (4) years each. A commissioner shall hold office until his or her successor has been appointed and qualified. Vacancies shall be filled for the unexpired term in the manner prescribed for in the original appointment.

(Ord. No. 329-2005, § 1, 12-13-05; Ord. No. 73-2012, § 1, 6-21-12)

Sec. 2-181. Duties.

The board of commissioners shall constitute the governing body of the parking authority and shall perform all duties and take all actions necessary, in accordance with KRS 67A.910 through KRS 67A.928, to further the purposes of the parking authority, which duties shall include, but not be limited to, the following:

(1) Study the need for new parking facilities and structures within the urban county and report the results of such study to the urban county council;

(2) Study the need for parking space to be provided without charge to certain classes of users within one or more districts of the urban county and report the results of such study to the urban county council;

(3) Assist the urban county council in the establishment of local parking districts and identification of parking facilities or structures to be acquired or constructed; and

(4) Assist the urban county council in the establishment of plans of assessment or taxation, or both, to be imposed on the businesses, professions and real estate located within a parking district.

(Ord. No. 329-2005, § 1, 12-13-05)

Sec. 2-182. Officers.

The board of commissioners shall elect a chairman and vice-chairman from among the members of its board of commissioners. The board of commissioners may appoint other officers and employees as the board deems necessary. The duties and terms of the officers shall be as specified in the parking authority's bylaws. The board of commissioners shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The board of commissioners shall meet at least quarterly at a date, place and time to be determined in accordance with KRS 61.820.

(Ord. No. 329-2005, § 1, 12-13-05)

Sec. 2-183. Quorum.

A majority of the board of commissioners shall constitute a quorum for transaction of business at any meeting of the parking authority. The acts of the majority of those members present at any regular or special meeting of the parking authority shall be the acts of the parking authority.

(Ord. No. 329-2005, § 1, 12-13-05)

Sec. 2-184. Rules and regulations.

The board of commissioners shall adopt bylaws, rules and regulations, not inconsistent with KRS 67A.910 through KRS 67A.928, as necessary to carry out its duties and purposes as set forth in this article.

(Ord. No. 329-2005, § 1, 12-13-05)

Sec. 2-185. Exemption.

If a majority of the board of commissioners determines upon application of a business, individual, or property owner doing business, having offices, or owning property within the local parking district, that such business or individual does not benefit from the operation of the authority then an exemption or partial exemption may be ordered by the board of commissioners so as to relieve such business or individual from the same ad valorem tax and/or occupational license tax as would be imposed on others who are benefited to a greater extent by the operation of the authority.

(Ord. No. 329-2005, § 1, 12-13-05)

Secs. 2-186--2-188. Reserved

Article XIV

Senior Services Commission[1]

Sec. 2-189. Created.

(a) A commission is hereby created which shall be known as the "Senior Services Commission."

(b) The Commission is established for the purpose of providing leadership for community efforts, in both the public and private sectors, towards improving the availability, access and effectiveness of services which are appropriate and necessary to protect and enhance the quality of life of older citizens and to strengthen their ability to continue as full participants in the community. The carrying out of this purpose will entail functions such as evaluating the adequacy and effectiveness of existing provisions and services in relation to the needs of older persons; identifying gaps and aspects which are in need of attention; identifying options and formulating approaches to the development and improvement of needed services for the purpose of providing guidance and direction to both public and private efforts; communicating to the public its actions and conclusions and in other ways stimulating community awareness and response necessary for coherent action on needed measures and steps; and supporting and responding to issues or problems of finances, organization, social services, education, housing, employment, leisure time activity, health and health-related services, transportation and other activities as they affect older citizens.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 1, 7-7-11)

Sec. 2-190. Membership.

The Commission shall consist of twenty-two (22) members, eighteen (18) of whom shall be appointed by the mayor, subject to confirmation by a majority of the urban county council members. Of the eighteen (18) members to be appointed, two (2) members shall be selected from the membership of the urban county council; four (4) members shall be selected from Fayette County residents over the age of sixty (60); and twelve (12) other public members shall be selected because of their specific interests in, or competencies pertaining to, problems encountered or concerns identified by older persons. The following urban county government officers shall be ex officio members: the commissioner of general services or his designee, the commissioner of social services, the commissioner of health, and the chief administrative officer.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 42-82, § 1, 4-8-82; Ord. No. 102-85, § 1, 5-30-85; Ord. No. 115-93, § 1, 6-17-93; Ord. No. 89-2011, § 2, 7-7-11)

1. **Editor's note(s)**—Ord. No. 209-80, § 1, adopted Dec. 23, 1980, added art. XXI to ch. 2 of the Code, §§ 2-158—2-166. Due to the addition of previous articles to ch. 2 by other ordinances, the provisions have been included as art. XIV, §§ 2-189—2-197. Subsequently, Ord. No. 89-2011, adopted July 7, 2011, amended Art. XIV by changing the title from "commission on community services for older persons" to "senior services commission"

Sec. 2-191. Terms of office.

The members of the Commission, other than ex officio members, shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Eight (8) members shall be appointed for two (2) years and nine (9) members shall be appointed for four (4) years. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. Any member may be reappointed for additional terms. The membership of the two (2) urban county council members and the other ex officio members shall be deemed to have terminated upon their leaving office as members of the urban county council or as officers of the urban county government.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 3, 7-7-11)

Sec. 2-192. Officers.

The officers of the Commission shall consist of a chairman and a vice-chairman appointed by the mayor to serve for terms of two (2) years. They shall take office at the first meeting of the Commission. The duties of the officers shall be as specified in the bylaws. Other officers may be elected from the membership as set forth in the bylaws. The Commission shall determine its own rules and order of business and so provide for keeping a record of its proceedings.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 4, 7-7-11)

Sec. 2-193. Quorum.

A majority of the Commission shall constitute a quorum for transaction of business at any meeting of the Commission. The acts of a majority of those members present at any regular or special meeting of the Commission shall be the acts of the Commission.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 5, 7-7-11)

Sec. 2-194. Executive committee.

Notwithstanding the provisions of section 2-193, the mayor may appoint from the members of the Commission an executive committee, which shall have and exercise all of the authority of the Commission, subject to the limitations imposed on the powers of the committees and of the directors of nonstock, nonprofit corporations by KRS 273.221. The urban county government may provide staff assistance to the Commission as needed.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 6, 7-7-11)

Sec. 2-195. General powers.

The Commission may enter into contracts, expend such funds as may become available to it, and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article. The Commission shall not acquire any interest in any real property without the expressed prior approval of the mayor and the urban county council.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 7, 7-7-11)

Sec. 2-196. Duties.

The Commission shall, as permitted by law:

(1) Review and make recommendations on all aspects of the urban county budget pertaining to the duties and purpose of the commission;

(2) Review, recommend, stimulate and/or endorse projects and programs in both the public and private sector which have a bearing on older persons;

(3) Apply for, receive and disburse funds and contracts with any state, federal, public or private agency for the purpose of carrying out its duties as set forth herein, utilizing staff made available to or employed by it;

(4) Recommend modifications, appropriate linkages and new programs to both the mayor and urban county council, as well as to various agencies and organizations within the private sector;

(5) Have the authority to develop comprehensive plans for services and programs for older citizens, embracing both the public and private sector, utilizing input from appropriate agencies of the urban county government and the private sector;

(6) Solicit and receive contributions, prepare surveys and studies, conduct conferences, sponsor educational/promotional programs related to services and needs of older citizens, and engage in other activities appropriate to the goals of the Commission; and

(7) Provide technical assistance and coordination to both public and private sectors concerned with issues, services, and programs and opportunities related to older citizens.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 8, 7-7-11)

Sec. 2-197. Reports; no power to operate programs.

(a) Public reporting will be made to the mayor and the council on a periodic and regular basis.

(b) The Commission shall not have the power to directly operate any programs, per se.

(Ord. No. 209-80, § 1, 12-23-80; Ord. No. 89-2011, § 9, 7-7-11)

Secs. 2-198, 2-199. Reserved

Article XV

"Picnic with the Pops" Commission

Sec. 2-200. Created.

(a) A commission to plan and oversee "Picnic with the Pops" performances is hereby created, which shall be known as "The Picnic With the Pops Commission of the Lexington-Fayette Urban County Government."

(b) Picnic with the Pops shall mean an outdoor performance of the Lexington Philharmonic Orchestra, including the appearance of popular guest artist(s), at a suitable venue during the summer, at which picnic facility shall be included among the seating arrangements offered for public sale.

(Ord. No. 113-82, § 1, 7-1-82; Ord. No. 167-2007, § 1, 7-5-07; Ord. No. 109-2010, § 1, 6-24-10; Ord. No 105-2020, § 1, 11-12-20)

Sec. 2-201. Membership.

The commission created by this article shall consist of eleven (11) voting members, which shall be appointed by the mayor subject to confirmation by a majority of the councilmembers. The eleven (11) appointed members shall be representative of the following: Lexington-Fayette Urban County Government (two (2) members); Lexington Philharmonic Society (two (2) members); Keeneland (one (1) member); and at large (six (6) members). The mayor, or his or her designee, and one (1) councilmember designated by the mayor; subject to confirmation by a majority of the councilmembers, shall serve as ex officio, non-voting members of the commission.

(Ord. No. 113-82, § 1, 7-1-82; Ord. No. 330-2005, § 1, 12-13-05; Ord. No. 167-2007, § 2, 7-5-07; Ord. No. 159-2012, § 1, 12-6-12; Ord. No. 105-2020, § 2, 11-12-20)

Sec. 2-202. Term.

For all appointed members of the commission created by this article, the term shall be four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Six (6) members shall be appointed for two (2) years and five (5) members shall be appointed for four (4) years. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. Any member may be reappointed for additional terms. The term of any mayor shall be deemed to have terminated upon leaving office.

(Ord. No. 113-82, § 1, 7-1-82; Ord. No. 105-2020, § 3, 11-12-20)

Sec. 2-203. Officers.

The commission created by this article shall have a chairperson elected by the membership for a term of one (1) year and any other officers elected from the membership as set forth in the bylaws. The officers shall take office at the annual meeting of the commission, and their duties shall be as implied by their respective titles and as may be specified in the bylaws. The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 113-82, § 1, 7-1-82; Ord. No. 167-2007, § 3, 7-5-07; Ord. No. 105-2020, § 4, 11-12-20)

Sec. 2-204. Quorum.

A majority of the appointed members of the commission created by this article shall constitute a quorum for the transaction of business at any meeting. The acts of a majority of those appointed members present in any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 113-82, § 1, 7-1-82)

Sec. 2-205. Powers and duties.

The commission created by this article shall, as permitted by law:

(1) Plan and assist, with the division of parks and recreation, in conception, development and implementation of "Picnic With the Pops" performances; and encourage the development of a permanent outdoor facility suitable for such performances through methods consistent with this article;

(2) Seek the advice and assistance of the general public, including, but not limited to, discussing and meeting with merchants, civic organizations, individuals and others who do business and participate in activities in Fayette County;

(3) Solicit and receive contributions and obtain grants and loans appropriate to the goals of the commission, including funding capital efforts in behalf of a permanent outdoor facility suitable for such performances;

(4) Enter into contracts, expend its funds, and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article;

(5) Collect and hold the proceeds of "Picnic With the Pops" performances, with any proceeds to be used as follows:

Twenty percent (20%) of the net profits to be given to the Lexington Philharmonic Orchestra in addition to their usual performance fee; support of music-related activities and organizations in Fayette County; improvements to the venue where the "Picnic with the Pops" performances are held; and future performances;

(6) Submit an annual report and financial statement to the mayor and council, which summarizes the previous year's activities;

(7) Establish committees, which may include interested members of the public, as may be necessary for carrying out the duties set forth herein; and

(8) Perform any other act necessary or appropriate to carry out the purposes of this article, including designating an executive committee, by a majority vote of the members of the commission, to exercise the authority of the commission in all matters permitted by law but not including changes to the by-laws.

(Ord. No. 113-82, § 1, 7-1-82; Ord. No. 167-2007, § 4, 7-5-07; Ord. No. 105-2020, § 5, 11-12-20; Ord. No. 100-2024, § 1, 9-12-24)

Secs. 2-206--2-215. Reserved

Article XVI

Memorial Tree Fund[1]

Sec. 2-216. Created.

(a) A fund is hereby created which shall be known as the "Memorial Tree Fund."

(b) The memorial tree fund is established for the purpose of providing a mechanism for private citizens to mark significant events in their lives through donations to the urban county government which will fund planting of a tree or trees to serve as a memorial to such events.

(Ord. No. 170-82, § 1, 9-23-82)

Sec. 2-217. Administration.

(a) The memorial tree fund shall be administered by the division of parks and recreation, which shall prepare regulations not inconsistent with this article to implement the purposes contained herein.

(b) The regulations to be promulgated by the division of parks and recreation shall provide for participation of florist shops and tree nurseries through which citizens may make donations to pay for the planting of a tree or trees at no more than the cost of the urban county government per tree. Planting of trees shall be during

1. **Editor's note(s)**—Section 1 of Ord. No. 170-82, adopted Sept. 23, 1982, adopted a new art. XV, §§ 2-200, 2-201, which the editor has redesignated art. XVI, §§ 2-216, 2- 217, inasmuch as Ord. No. 113-82 had previously adopted a new art. XV.

either the spring or fall planting season. Acknowledgement of program participation shall be sent to citizens by the participating florists or nurseries and by the division of parks and recreation. All trees planted shall be maintained by the division of parks and recreation.

(Ord. No. 170-82, § 1, 9-23-82)

Secs. 2-218--2-227. Reserved

Article XVII

Reserved[1]

Secs. 2-228--2-242. Reserved

Article XVIII

Raven Run Citizens Advisory Board[2]

Sec. 2-243. Created; purpose.

(1) A board is hereby created which shall be known as the Raven Run Citizens Advisory Board, hereinafter referred to as "board."

(2) The board is established for the purpose of advising the division of parks and recreation in an effort to perpetuate the nature sanctuary status of property in Fayette County known as the Raven Run Nature Sanctuary. The board's role in carrying out this purpose will entail suggesting methods to protect the scenic, historical, biological, ecological and geological attributes of the Raven Run Nature Sanctuary, to minimize impact to the environment and to maintain a trail system of good quality; assisting in the implementation of a nature study center at the Raven Run Nature Sanctuary; encouraging owners of property adjacent to Raven Run Nature Sanctuary to maintain their property in a manner that is compatible with a nature sanctuary; attempting to obtain funding for the Raven Run Nature Sanctuary through private and public sources, such funds to be administered and appropriated by the urban county government for the purposes of the Raven Run Sanctuary; and advising and assisting in other matters relating to the Raven Run Nature Sanctuary.

(Ord. No. 214-82, § 1, 11-18-82; Ord. No. 313-2001, § 1, 12-13-01; Ord. No. 88-2012, § 1, 7-10-12)

1. **Editor's note(s)**—Ord. No. 057-2022, § 7, adopted June 23, 2022, repealed art. XVII, §§ 2-228—2-234. Former art. XVII pertained to the arts review board and derived from Ord. No. 209-2004, § 1, adopted August 26, 2004; Ord. No. 77-2014, §§ 1—3, adopted July 1, 2014.
2. **Editor's note(s)**—Section 1 of Ord. No. 214-82, adopted Nov. 18, 1982, inadvertently omitted from inclusion in the Code at the time of passage, created art. XV, §§ 2- 198—2-200, which the editor has redesignated art. XVIII, §§ 2-243—2-245, since previous ordinances had added through art. XVII, § 2-232.

Sec. 2-244. Membership.

The board shall consist of fourteen (14) members all of whom shall be appointed by the mayor, subject to confirmation by a majority of the urban county council members. Of the fourteen (14) members to be appointed one (1) member shall be selected as a representative of Bluegrass Tomorrow; one (1) member shall be selected from the Sierra Club; one (1) member shall be selected from the Audubon Society; one (1) member shall be selected from a Lexington garden club; one (1) member shall be a current or former educator from a Fayette County School; one (1) member shall be a trails specialist; one (1) member shall be a botanist; one (1) member shall be a forester; one (1) member shall be selected from the division of parks and recreation; one (1) member shall be a member of the urban county council and shall be an ex officio nonvoting member; and four (4) other members shall be selected because of their specific interest or expertise relating to the preservation and maintenance of the natural environment.

(Ord. No. 214-82, § 1, 11-18-82; Ord. No. 313-2001, § 2, 12-13-01; Ord. No. 88-2012, § 2, 7-10-12)

Sec. 2-245. Term of office; filling of vacancies.

The members of the board shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Seven (7) members shall be appointed for four (4) years and seven (7) members shall be appointed for two (2) years. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. Any member may be reappointed for additional terms.

(Ord. No. 214-82, § 1, 11-18-82)

Article XIX

Reserved

Secs. 2-246--2-249. Reserved

Article XX

Domestic Violence Prevention Board[1]

Sec. 2-250. Created; purpose.

(1) A board is hereby created which shall be known as the Lexington-Fayette Urban County Domestic and Sexual Violence Prevention Coalition, hereinafter referred to as "board."

1. **Editor's note(s)**—Prior to its complete revision by § 1 of Ord. No. 81-86, adopted and effective May 29, 1986, art. XX dealt with the child abuse and exploitation board.

(2) The board is established for the purpose of coordinating individuals and public and private groups and agencies to develop and facilitate a broad-based collaborative community program, the primary goal being prevention of interpersonal violence. The mission of the board is to create a culture of safety and empowered stakeholders through advocacy, education, collaboration, and service coordination for communities impacted by interpersonal violence.

The focus of the board shall encompass the following types of interpersonal violence:

(a) Dating and intimate partner violence;

(b) Sexual violence and exploitation;

(c) Stalking;

(d) Child abuse, neglect, exploitation and/or abduction within the context of intimate partner violence;

(e) Abuse of vulnerable adults within the context of intimate partner violence;

(f) Human trafficking;

(g) Sexual harassment;

(h) Any other area of human abuse and/or exploitation that may be identified as a problem by the board.

For purposes of this ordinance, the terms "violence" and "abuse" include, in addition to physical and sexual violence, the use of threats, financial exploitation, psychological abuse and coercion by one (1) person to dominate, control and/or exploit another person.

The primary objectives of the board shall be:

(a) To develop and facilitate an effective community-wide system of prevention and intervention that is responsive to the needs of victims of interpersonal violence and those they care about;

(b) To identify and coordinate the roles and services of local agencies or offices which provide services to interpersonal violence victims and perpetrators; to facilitate coordination and communication of best practices among community and systems-based agencies;

(c) To monitor, evaluate, and promote the quality and effectiveness of services and protections in the community;

(d) To promote a clear understanding of interpersonal violence, current laws, and resources, available in the community and the impact on the community; and

(e) To serve as a network for information and resource sharing for interpersonal violence issues.

In order to achieve these objectives, the board shall perform a number of functions, including working with other local groups to provide educational and public information programs and seminars to enhance public awareness

regarding the issues outlined above and community resources and interventions to prevent victimization; encouraging the development of community programs; providing prevention and intervention program models and consultation to organizations and agencies; accepting grant funds and donations from public and private sources to fund programs aimed at prevention of interpersonal violence; entering into contracts with public or private agencies to fulfill requirements of various state or federal laws regarding interpersonal violence; conducting a biennial internal evaluation of the function, responsibilities and performance of the board in order to improve the services provided by the board, and in other ways providing direction and coordination to public and private efforts to achieve a cohesive community response to the issue of interpersonal violence. The board shall utilize trained volunteers and existing community resources whenever practicable in carrying out its purpose.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 81-86, § 1, 5-29-86; Ord. No. 69-2014, § 1, 6-19-14; Ord. No 5.1-2019, § 1, 7-9-19)

Sec. 2-251. Members.

(1) The board shall consist of ten (10) at-large members and twenty-seven (27) ex officio members. The at-large members shall be appointed by the mayor, subject to confirmation by a majority of the urban county council members. The at-large members of the board shall be selected because of their demonstrated knowledge of the prevention, education, crisis intervention and treatment services related to interpersonal violence. Those members shall be representative to the extent practicable of all the following categories: parents, legal community, medical community, professional providers of interpersonal violence services faith community, and volunteers in interpersonal violence services, especially preventive services. At-large members shall serve a term of four (4) years from the date of appointment, provided that the terms of those originally appointed shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment.

(2) The ex officio members shall consist of the Lexington-Fayette Urban County Government Chief of Police; the Director of Lexington-Fayette Urban County Division of Adult and Tenant Services; an Urban County Council member designated by the Mayor; the commissioner of public safety; the commissioner of social services; the Director of the Family Care Center; the Director of the Sexual Assault Nurse Examiner Program; the Fayette County Commonwealth's Attorney; the Fayette County Attorney; the Fayette Circuit Court Clerk; the Fayette District Court Chief Judge; the Fayette Family Court Chief Judge; the Office of the Fayette County Sheriff; the University of Kentucky Chief of Police; the Director of Ampersand Sexual Violence Resource Center of the Bluegrass; the Director of the Children's Advocacy Center of the Bluegrass; the Director of the Chrysalis House; the Director of Greenhouse17; the Director of the Nursing Home Ombudsman Agency of the Bluegrass; the Director of the Nest; the Director of the University of Kentucky Violence Intervention and Prevention (VIP) Center; the Superintendent of Fayette County Schools; the Fayette County Service Region Administrator, Kentucky Cabinet for Health and Family Services; the Fayette Friend of the Court; the Lexington-Fayette Urban County Multicultural Affairs Program Coordinator; the Violence Against Women Act Attorney from Legal Aid of the Bluegrass; the Director of the Division of Family and Youth Services for CHES Solutions Group. The ex officio members may select a designee

authorized to represent them on the board. Both the at-large members and the ex officio members or their designees shall be voting members of the board. The division of police, department of social services and the department of law shall provide staff and assistance to the board as needed. Board members shall receive no compensation for their services.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 81-86, § 1, 5-29-86; Ord. No. 281-88, § 1, 12-1-88; Ord. No. 22-89, § 1, 2-9-89; Ord. No. 22-94, § 1, 2-24-94; Ord. No. 197-2005, § 1, 7-12-05; Ord. No. 69-2014, § 2, 6-19-14; Ord. No. 51-2019, § 1, 7-9-19)

Sec. 2-252. Terms of members.

(1) The appointed members of the board shall serve a term of four (4) years from the date of appointment, provided that the terms of those originally appointed shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. Any member may be appointed for additional terms.

(2) Ex officio members shall be deemed to have terminated upon their leaving office as officers of their respective organization.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 81-86, § 1, 5-29-86)

Sec. 2-253. Officers; records; frequency of meetings.

The mayor may appoint a program coordinator and other staff as necessary to assist the board in carrying out its duties. The board shall elect officers to include a chairperson, a vice-chairperson, and a secretary. Elected officers shall serve a four-year term. Elected officers may not serve consecutive terms. The LFUCG Commissioner of Social Services shall serve as the treasurer of the board. The board shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The board shall meet on the 3rd Monday of the months of March, June, September, and December.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 285-85, § 1, 12-19-85; Ord. No. 81-86, § 1, 5-29-86; Ord. No. 69-2014, § 3, 6-19-14; Ord. No 5.1-2019, § 1, 7-9-19)

Sec. 2-254. Quorum.

The majority of the members shall constitute a quorum for transaction of business at any meeting of the board.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 81-86, § 1, 5-29-86)

Sec. 2-255. Contracts; expenditures; bylaws.

The board may enter into contracts, expend such funds as may be available to it, and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 81-86, § 1, 5-29-86)

Sec. 2-256. Duties.

The board shall, as permitted by law:

(1) Apply for, receive and disburse funds and contract with any state, federal, public or private organization, as well as solicit and receive contributions and donations from individuals and groups for the purpose of carrying out its duties as set forth herein;

(2) Deposit any funds received into an account in the LFUCG Department of Social Services for disbursement to eligible agencies and organizations;

(3) Review, endorse and recommend disbursement of funds to local private, nonprofit or public agencies as may apply to the board for funding of interpersonal violence prevention programs, provided that applicant agencies meet the criteria established by the board pursuant to relevant state and federal laws and other conditions deemed by the board as necessary to carry out the goal of prevention of interpersonal violence;

(4) Develop comprehensive plans for programs directed at prevention of interpersonal violence, embracing both the public and the private sector, utilizing information and suggestions of individuals, governmental entities and public and private organizations;

(5) Sponsor educational programs, conduct conferences and seminars, and dispense information aimed at educating the general public, teachers, the medical, legal and social work and other professional communities regarding interpersonal violence identification, prevention and intervention;

(6) Recommend new programs, appropriate linkages and modifications of existing programs dealing with interpersonal violence to the mayor, urban county council, and to public and private agencies;

(7) Provide technical assistance and coordination to the public and private sector on programs, services and issues related to interpersonal violence;

(8) Prepare an annual report to the mayor and the urban county council setting forth projected goals and programs as well as completed programs and accomplishments;

(9) Establish committees, which may include interested members of the public, as may be necessary for carrying out the duties as set forth herein; and

(10) Perform any other act necessary and appropriate to carry out the purposes of this article.

(Ord. No. 40-85, § 1, 2-21-85; Ord. No. 81-86, § 1, 5-29-86; Ord. No. 22-94, § 2, 2-24-94; Ord. No. 69-2014, § 4, 6-19-14; Ord. No. 51-2019, § 1, 7-9-19)

Secs. 2-257--2-266. Reserved

Article XXI

Lyric Theatre and Cultural Arts Center Corporation

Sec. 2-267. Organization.

(1) That the mayor or his designee(s) are hereby authorized and requested to serve as incorporators for and to organize a non-profit non-stock Kentucky corporation under the provisions of Chapter 273 of the Kentucky Revised Statutes, to be named "Lyric Theatre and Cultural Arts Center Corporation" and hereinafter referred to as "corporation."

(2) The corporation is organized for the purposes of overseeing the management of and programming for the Lyric and any and all other appropriate purposes.

(3) The corporation shall possess all the powers conferred upon a corporation organized under chapter 273 of the Kentucky Revised Statutes dealing with non-profit non-stock corporations and shall have all powers necessary, proper, convenient or desirable in order to fulfill and further the purposes of the corporation.

(4) The corporation shall have the authority to submit an application to the Internal Revenue Service for tax exempt status.

(Ord. No. 236-2009, § 1, 11-5-09)

Sec. 2-268. Board of directors.

(1) The affairs of the corporation are to be conducted by a board of directors consisting of fifteen (15) individuals. The initial directors shall be appointed by the mayor subject to confirmation by a majority of the urban county council members, as follows:

   (a) One (1) director shall reside in the East End area;

   (b) One (1) director shall be the Mayor or his designee, ex-officio;

   (c) One (1) director shall be the 1st District Council Representative, ex officio;

   (d) One (1) director shall be from the university community or the K-12 school system;

   (e) One (1) director shall be the President or Chair of the Friends of the Lyric;

   (f) Two (2) directors shall be members of the community at large;

   (g) Two (2) directors shall be artists;

   (h) Six (6) directors shall be from the legal, accounting, financial, marketing or other business community with expertise in fiscal and personnel oversight.

Seven (7) directors shall serve a term of two (2) years and six (6) directors shall serve a term of four (4) years. The mayor or his designee and the 1st district councilmember shall be ex-officio voting members and shall not serve a staggered term.

(2) All directors of the corporation shall serve four (4) years from the date of appointment, provided that the term of the initial directors shall be staggered as set forth above. Upon expiration of the terms of the initial directors, one director designated in (1)(f) and the directors designated in Section 1(h) shall be appointed by the mayor subject to confirmation by a majority of the urban county council members, and the other directors shall be appointed by the corporation using the categories outlined above. Vacancies shall be filled for unexpired terms in the manner prescribed in this subsection. Directors may be appointed for two consecutive terms. Directors who have served two (2) consecutive full terms shall not be eligible to succeed themselves until the lapse of twelve (12) months from the end of said terms.

(Ord. No. 236-2009, § 1, 11-5-09; Ord. No. 28-2012, § 1, 3-8-12)

Sec. 2-269. Meetings.

The corporation shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The corporation shall adopt a meeting schedule, which sets forth the date, place and time for its regularly scheduled meetings.

(Ord. No. 236-2009, § 1, 11-5-09)

Sec. 2-270. Quorum.

Eight (8) directors shall constitute a quorum for the transaction of business at any meeting of the board of directors.

(Ord. No. 236-2009, § 1, 11-5-09)

Secs. 2-271--2-283. Reserved

Article XXII

Reserved

Secs. 2-284--2-289. Reserved

Editor's note(s)—Ord. No. 104-2010, § 1, adopted June 10, 2010, repealed Art. XXII. Former Art. XXII, §§ 2-284—2-287, pertained to one-parent family facility corporation and derived from Ord. No. 151-85, § 1, adopted July 25, 1985.

Article XXIII

Roadways Review Committee

Sec. 2-290. Established.

A roadways review committee is hereby established.

(Ord. No. 303-87, § 1, 12-15-87)

Sec. 2-291. Membership.

The roadways review committee shall consist of nine (9) members. Five (5) of the members shall be employees of the urban county government who hold the following positions and shall be appointed by the mayor:

(a) Park designer in the division of parks and recreation;

(b) Planning manager (transportation) in the division of planning;

(c) Code enforcement officer in the division of building inspection;

(d) Municipal engineer senior in the division of engineering;

(e) Attorney or attorney senior in the department of law;

Of the remaining four (4) members, one (1) shall be a member of the historic preservation commission established pursuant to article 13 of the Zoning Ordinance of the Lexington-Fayette Urban County Government and selected in a manner deemed appropriate by the commission and consistent with their duly enacted bylaws. The other three (3) members shall be residents of the county appointed by the mayor, subject to confirmation by the urban county council, for a term not to exceed four (4) years.

(Ord. No. 303-87, § 1, 12-15-87; Ord. No. 192-92, § 1, 10-29-92)

Cross reference(s)—Zoning, ch. 20.

Sec. 2-292. Purpose.

The roadways review committee shall review all engineering and design proposals for all publicly funded road construction or improvement projects in the county to determine their compliance with the following policies:

(a) The design plans for any publicly funded road construction or improvement project in the county shall include sufficient right-of-way for landscaping.

(b) The budget for any publicly funded road construction or improvement project in the county shall include sufficient sums to acquire not only right-of-way for landscaping but to purchase and install adequate landscaping and replace any landscaping lost as a result of any such construction or improvement project.

(c) The design plans for publicly funded road construction or improvement projects in the county shall contain a statement indicating that in formulating the plans, consideration has been given to the impact that the project will have on the total environment of the area as well as to the preservation of any significant trees or treestands, fences and other existing landmarks.

(Ord. No. 303-87, § 1, 12-15-87)

Sec. 2-293. Recommendation.

Upon completion of their review of the plans for any proposed project, the roadways review committee shall make a nonbinding recommendation to the division of engineering concerning the proposal, and forward a copy of such recommendation to the urban county council.

(Ord. No. 303-87, § 1, 12-15-87)

Cross reference(s)—Streets and sidewalks, ch. 17.

Sec. 2-294. Reserved

Article XXIV

Sister Cities Programs Commission[1]

Sec. 2-295. Created.

A commission is hereby created, which shall be known as the "Sister Cities Programs Commission of the Lexington-Fayette Urban County Government."

(Ord. No. 14-88, § 1, 1-28-88)

Sec. 2-296. Members.

The sister cities programs commission shall consist of five (5) members appointed by the mayor subject to confirmation by a majority of the council members as outlined in section 7.02 of the Charter. The terms of office of the commission members shall be four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Three (3) members shall be appointed for two (2) years, and two (2) members shall be appointed for four (4) years. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. Any member may be reappointed for additional terms.

(Ord. No. 14-88, § 1, 1-28-88)

1. **Editor's note(s)**—Section 1 of Ord. No. 14-88, adopted Jan. 28, 1988, added §§ 2-295—2-299, designated by the editor as art. XXIV.

Sec. 2-297. Offices.

The offices of the sister cities programs commission shall consist of a chairperson and a vice-chairperson, appointed by the mayor, and other officers elected by the commission. Their duties shall be as implied by their respective titles and as may be specified in the bylaws. The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 14-88, § 1, 1-28-88)

Sec. 2-298. Transaction of business.

A majority of the members of the sister cities programs commission shall constitute a quorum for the transaction of business at any meeting. The acts of the majority of those members present in any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 14-88, § 1, 1-28-88)

Sec. 2-299. Duties.

The sister cities programs commission shall perform the following duties:

(1) The commission shall cause the people of Fayette County and Central Kentucky, and the people of similar jurisdictions of foreign nations, to acquire a consciousness of each other, to understand one another as individuals, as members of their community, as citizens of their country, and as part of the family of nations.

(2) The commission shall foster, as a consequence of such knowledge and consciousness, a continuing relationship of mutual concern between the people of Fayette County and Central Kentucky, and the people of similar jurisdictions of other nations.

(3) The commission shall undertake both in seeking and in consequence of such consciousness and concern any activities and programs as will provide to one another appropriate aid and comfort, education and mutual understanding.

(4) The commission may solicit and receive contributions and obtain grants and loans appropriate to the goals of the commission.

(5) The commission may enter into contracts, expend its funds, and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this chapter.

(6) The commission shall submit an annual report and financial statements to the mayor and council, which summarizes the previous year's activities.

(7) The commission may establish committees, headed by commission members, which shall include interested members of the public, for the purpose of carrying out the duties as set forth herein.

(8) The commission may perform any other act necessary or appropriate to carry out the purposes of this section.

(Ord. No. 14-88, § 1, 1-28-88)

Article XXV

Reserved

Secs. 2-300--2-306. Reserved

Article XXVI

Plant Closing Committee

Sec. 2-307. Created.

A plant closing committee is hereby created, which shall be known as the "Lexington-Fayette Urban County Plant Closing Committee."

(Ord. No. 20-89, § 1, 1-26-89)

Sec. 2-308. Purpose.

The purpose of the plant closing committee shall be to advise the urban county government and affected businesses within the community regarding lessening the impact of plant closings or large-scale layoffs on displaced workers.

(Ord. No. 20-89, § 1, 1-26-89)

Sec. 2-309. Members.

The plant closing committee shall consist of six (6) ex officio members consisting of the mayor or his designee; the council member in whose district the plant closing or layoff occurs; the executive director of the Urban League; the president of the Greater Lexington Chamber of Commerce; the executive director of the mayor's training center; and the director of economic development; and five (5) members appointed by the mayor, subject to confirmation by a majority of the council members as outlined in section 7.02 of the Urban County Charter, consisting of:

(1) A representative from the department of law;

(2) One (1) at-large council member;

(3) One (1) council member indicating an interest in serving on the committee; and

(4) Two (2) members selected from the community, one (1) of which shall be a minority representative.

(Ord. No. 20-89, § 1, 1-26-89)

Sec. 2-310. Meetings.

The mayor shall have the authority to call members for meetings as he deems necessary. The plant closing committee, at its first meeting, shall set goals not inconsistent with the provisions of this article.

(Ord. No. 20-89, § 1, 1-26-89)

Article XXVII

Reserved

Secs. 2-311--2-314. Reserved

Editor's note(s)—Section 1 of Ord. No. 234-94, adopted Nov. 1, 1994, repealed §§ 2-311-2-314 in their entirety. Formerly, §§ 2-311-2-314 pertained to the KY World Trade Center and derived from § 1 of Ord. No. 30-89, adopted Feb. 23, 1989. Section 1 of Ord. No. 232-95, adopted Oct. 19, 1995 added §§ 2-311-2-314 as herein set out.

Editor's note(s)—Ord. No. 105-2003, § 1, adopted May 15, 2003, changed the title of art. XXVII, formerly titled "Humane Society Oversight Advisory Committee", to read as set forth above.

Editor's note(s)—Article XXVII was repealed by Ord. No. 034-2025, § 1, adopted May 29, 2025. The section formerly dealt with the Animal Care and Control Advisory Committee.

Article XXVIII

Lexington Children's Museum, Inc.

Sec. 2-315. Organized; purposes; powers.

(1) Pamela Miller, Jane Vimont and Michael Kannensohn, all being residents of the county, are hereby authorized and requested to serve as incorporators for and to organize a non-profit non-stock Kentucky corporation under the provisions of chapter 273 of the Kentucky Revised Statutes, to be named "Lexington Children's Museum, Inc.," and hereinafter referred to as "corporation."

(2) The corporation is organized for the following purposes:

(a) To provide children with diverse experiences for learning through the five (5) senses; to educate, stimulate, challenge and encourage divergent thinking in children by providing access to objects and artifacts

that are not found at home, by exposing and connecting them to other children to explore and learn without formal instruction and with little or no supervision; to encourage the habit of life-long, self-directed learning through museums.

(b) To enhance Lexington's quality of life and its reputation as a cultural center by providing a facility that will contribute to the city's cultural environment and appeal across racial and class lines; to provide an environment for interaction between child and parent or other care-giver and provide opportunities for families to engage in learning activities that need not be scheduled in advance; to be physically and intellectually accessible to all, including the developmentally and physically handicapped and the learning disabled.

(3) The corporation shall possess all the powers conferred upon a corporation organized under chapter 273 of the Kentucky Revised Statutes dealing with non-profit non-stock corporations and shall have all powers necessary, proper, convenient or desirable in order to fulfill and further the purposes of the corporation. The chairperson and other officers of the corporation shall be elected by the board of directors and shall comprise an executive committee, which is authorized to act on behalf of the corporation in performing management and business-related functions.

(Ord. No. 18-90, § 1, 2-8-90; Ord. No. 99-93, § 1, 6-17-93)

Sec. 2-316. Directors.

(1) The affairs of the corporation are to be conducted by a board of directors consisting of not less than three (3) individuals. The directors shall be appointed by the mayor subject to confirmation by a majority of the urban county council members.

(2) All directors of the corporation shall serve four (4) years from the date of appointment, provided that the terms shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for the unexpired terms in the manner prescribed for the original appointment. Any director may be reappointed for additional terms.

(Ord. No. 18-90, § 1, 2-8-90)

Sec. 2-317. Meetings.

The corporation shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The corporation shall meet on a quarterly basis at a date, place and time to be determined by the board of directors.

(Ord. No. 18-90, § 1, 2-8-90; Ord. No. 99-93, § 2, 6-17-93)

Sec. 2-318. Quorum.

A majority of the directors shall constitute a quorum for the transaction of business at any meeting of the board of directors.

(Ord. No. 18-90, § 1, 2-8-90)

Sec. 2-319. Reserved

Article XXIX

Carnegie Literacy Center, Inc.

Sec. 2-320. Organized; purposes.

(1) Will Farrish, Scotty Baesler, Ralph Coldiron and Joseph H. Miller are authorized and requested to serve as incorporators for and to organize a non-profit, non-stock Kentucky corporation, under the provisions of chapter 273 of the Kentucky Revised Statutes, to be named the "Carnegie Literacy Center, Inc.," and hereinafter called the "literacy center."

(2) The literacy center shall be organized to promote literacy, in its broadest sense, among all residents of the county by providing or coordinating remedial or enrichment services for those who wish to overcome illiteracy or sharpen or extend their interests in reading and writing, and by providing a facility which:

(a) Acts as a central referral service at one (1) location for all programs, events and facilities related to literacy which exist in the community;

(b) Serves as a permanent home for a variety of special programs and services related to the development and enhancement of literacy in the community;

(c) Serves as a location for special workshops, events, activities and conferences related to the varied facets of a literate life; and

(d) Serves as a satellite site for literacy programs that are in existence and are located elsewhere in the community.

(Ord. No. 85-90, § 1, 5-17-90)

Sec. 2-321. Board of directors.

(1) The affairs of the literacy center are to be conducted by a board of directors consisting of not less than twelve (12) individuals. Seventy-five (75) percent of the directors shall be appointed by the mayor, subject to confirmation by a majority of the urban county council members. Twenty-five (25) percent of the directors shall be appointed by the chairman of the board of trustees of the Lexington Public Library, subject to confirmation by a majority of the members of the Lexington Public Library Board.

(2) All directors of the literacy center shall serve four (4) years from the date of appointment, provided that the terms shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. Any director may be reappointed for additional terms.

(Ord. No. 85-90, § 1, 5-17-90)

Sec. 2-322. Officers; staff.

(1) The chairperson and other officers of the literacy center shall be elected by the board of directors and shall comprise an executive committee, which is authorized to act on behalf of the literacy center in performing management and business related functions.

(2) The literacy center shall retain, as needed, an executive director and staff, subject to the availability of sufficient budgetary resources.

(Ord. No. 85-90, § 1, 5-17-90)

Sec. 2-323. Reserved

Editor's note(s)—As originally promulgated, Ord. No. 85-90 contained no § 2-323.

Sec. 2-324. Meetings.

The literacy center shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The board shall meet at least semiannually at a place and time to be determined as provided in the bylaws.

(Ord. No. 85-90, § 1, 5-17-90)

Secs. 2-325--2-334. Reserved

Article XXX

Greenspace Trust[1]

Sec. 2-335. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

1. **Editor's note(s)**—Ord. No. 073-2022, §§ 1—9, repealed §§ 2-326—2-334 and Ord. No. 075-2022 repealed §§ 2-335—2-340 and enacted a new art. XXX, §§ 2-335—2- 340 as set out herein. Former art. XXX pertained to the Greenspace Commission and derived from Ord. No. 264-90, § 1, adopted December 6, 1990; Ord. No. 139-93, § 1, adopted July 8, 1993; Ord. No. 295-2002, § 1, adopted November 21, 2002; Ord. No. 313-2002, § 1, adopted December 5, 2002; Ord. No. 210-2004, § 1, adopted August 26, 2004; and Ord. No. 53-2007, § 1, adopted March 22, 2007.

Application shall mean the documentation and information submitted to the Greenspace Trust staff by a landowner on the approved application form offering to transfer to the Greenspace Trust or the Lexington-Fayette Urban County Government a conservation easement in eligible land.

Comprehensive plan shall mean the land use plan, and amendments thereto, adopted by the Lexington-Fayette Urban County Government pursuant to KRS 100.197.

Conservation easement shall mean a non-possessory interest in real property, which is acquired in perpetuity for the purpose of retaining and enhancing greenspace within the urban service boundary or expansion areas; preserving natural, scenic, open space or greenspace values of real property; preserving areas or structures of architectural or historical interest; or other like or similar purposes.

Greenspace shall mean open-space areas reserved for parks and other "green spaces", including plant life, water features - also referred to as blue spaces - and other kinds of natural environment.

Greenspace management plan shall mean the element of the comprehensive plan adopted by the planning commission of the Lexington-Fayette Urban County Government and shall include any future portions of the comprehensive plan, and amendments thereto, pertaining to the urban service and expansion areas.

Greenspace Trust staff shall mean the personnel within the Lexington-Fayette Urban County Government charged by the council with the duty to administer this trust.

(Ord. No. 075-2022, § 1, 7-7-22)

Sec. 2-336. Organization; purpose.

(1) Horst Schach and Fred Duerson, both being residents of Fayette County, are hereby authorized and requested to serve as incorporators for and to organize a non-profit, nonstock Kentucky corporation under the provisions of Chapter 273 of the Kentucky Revised Statutes to be named "Lexington-Fayette Urban County Greenspace Trust, Inc." and hereinafter referred to as the "Greenspace Trust."

(2) The purpose of the Greenspace Trust is to (1) preserve, maintain and enhance the county's unique and special character for the economic, education and general health, safety and welfare of the citizens; (2) apply for and receive funds, contributions and donations, to further the purposes of the Greenspace Trust, including donation of real property and easements; (3) to develop a comprehensive greenspace management plan; and (4) to preserve, protect and enhance open space in the urban service and expansion area(s).

(3) The Greenspace Trust is enabled to:

   (a) Identify the following resources and seek to protect and preserve them and, where appropriate, to enhance them:

      I. Those greenspaces within the county which possess the characteristics which give the Bluegrass Region its unique identity;

II. Those visual elements (scenic areas, scenic vistas, and scenic corridors) which contribute to the unique scenic beauty of the Bluegrass Region;

III. Those elements of our historic and cultural heritage as they exist in relation to greenspace;

IV. Natural areas;

V. Environmentally sensitive areas;

VI. Geologically hazardous areas;

VII. Greenspace for passive recreational use, including, parkways, and greenways;

VIII. Water resources.

(b) Utilize and manage greenspace in a comprehensive and systematic manner which shall:

I. Shape and reinforce the urban service area concept;

II. Encourage more efficient and sensitive use of the land, improving the quality of life and landscape, by providing patterns for development, hence, making development and conservation of open space mutually beneficial;

III. Help achieve an ecologically sustainable relationship between humans and their uses and the environment;

IV. Stimulate economic growth by channeling and encouraging development in a manner conducive to the preservation of the character of this region;

V. Strengthen tourism and related business and attract new businesses through the preservation of our unique character; and

VI. Provide an accessible system of open spaces which offer significant educational value and opportunities.

(c) Encourage cooperation and communication with surrounding counties as regards the promotion of greenspace, protection of the environment, and land conservation.

(Ord. No. 075-2022, § 2, 7-7-22)

Sec. 2-337. Board; membership.

(1) The Greenspace Trust shall consist of eighteen (18) members. Fifteen (15) members shall be voting members and three (3) shall be ex-officio non-voting members.

(2) The fifteen (15) voting members shall work or live in Fayette County and shall have demonstrated an interest in greenspace; conservation of natural areas and; protecting and preserving the Bluegrass Region unique characteristics.

(3) Three (3) non-voting members shall be ex-officio, members of the Greenspace Trust and shall consist of the following positions:

(a) One (1) designee from the Urban County Division of Parks and Recreation;

(b) One (1) designee from the Urban County Division of Planning;

(c) One (1) designee from Urban County Division of Environmental Quality and Public Works.

(4) All voting members shall work or live in Fayette County with a demonstrated interest in the purposes and goals of the Greenspace Trust and shall be appointed by the mayor and approved by majority vote of the urban county council. The members of the Greenspace Trust shall serve without compensation but shall be reimbursed for expenses necessarily incurred in the performance of their duties.

(Ord. No. 075-2022, § 3, 7-7-22)

Sec. 2-338. Terms of board members.

(1) All board members shall serve two (2) years from the date of appointment, provided that the terms shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. Any Greenspace Trust member may be reappointed for additional terms.

(2) Vacancies in the voting membership shall be filled for an unexpired term in the manner prescribed for the original appointment. The membership of the ex officio non-voting members shall be terminated upon leaving the specified offices.

(3) A voting member of the Greenspace Trust shall be removed only by a majority vote of the council, and only for cause, except that a member of the board shall automatically be removed by operation of law in the event of three (3) unexcused absences, whether consecutive or non-consecutive, in any two (2) year period or in the event of absence from twenty-five (25) percent of the meetings in any two (2) year period. An unexcused absence is any absence in which the chair of the board or the Greenspace Trust staff is not notified of the intended absence at least twenty-four (24) hours in advance of a regularly scheduled meeting. In the event of three (3) unexcused absences or the absence from twenty-five (25) percent of the meetings over any two (2) year period, within the meaning of this section, the Greenspace Trust staff shall notify the mayor and council administrator that a vacancy exists on the Greenspace Trust.

(Ord. No. 075-2022, § 4, 7-7-22)

Sec. 2-339. Board; officers; quorum; staff.

(1) The officers of the Greenspace Trust shall consist of a chair, a vice-chair, and other officers elected from the membership as set forth in the bylaws. They shall take office at the first meeting of the Greenspace Trust after their election. The duties of the officers shall be as specified in the bylaws. The Greenspace Trust shall determine its own rules and order of business and so provide for keeping a record of its proceedings.

(2) A majority of the voting members of the Greenspace Trust, shall constitute a quorum for transaction of business at any meeting of the Greenspace Trust. The acts of a majority of those voting members present at any regular or special meeting of the Greenspace Trust shall be the acts of the Greenspace Trust.

(3) Regular meetings shall be held at least once quarterly, and special meetings may be held as specified in the bylaws. All meetings shall be open to the public in a manner consistent with KRS 61.805—61.810. Full and complete minutes of all meetings and records of all proceedings, including the number of votes for and against each motion and the record of the vote of each member, shall be kept and made available for public inspection.

(4) The urban county government shall provide an executive director and staff as needed. The Greenspace Trust staff shall serve as staff to the Greenspace Trust and shall be responsible for coordinating agendas, preparing minutes and handling logistical matters in order to expedite the board's function. Within the limits of the funds appropriated by the council in the annual budget, the other offices and agencies of the government shall provide the Greenspace Trust, either directly or by contract or agreement, with the facilities, materials, supplies, and staff needed for the conduct of its business

(5) All members of the Greenspace Trust shall be subject to the code of ethics contained in Article 16 of the Urban County Charter.

(Ord. No. 075-2022, § 5, 7-7-22)

Sec. 2-340. Board power and duties.

The powers and duties of the Greenspace Trust include the following:

(1) Develop a greenspace management plan for the entire urban county, concentrating on urban service and expansion areas, within twenty-four (24) months after the first official meeting of the Greenspace Trust. This plan should be developed for review and adoption by the planning commission as an amendment to the comprehensive plan. This plan should subsequently be reviewed and updated every five (5) years concurrent with the comprehensive plan.

(2) Make specific recommendations to the mayor and council on actions, including, but not limited to, the following:

(a) The sale of land or any interest therein held by the urban county government.

(b) The acquisition of conservation easements, scenic easements and nature preserve land.

(c) The acceptance of property interests acquired by gift.

(3) Educate citizens about greenspace preservation and maintenance.

(4) Negotiate the conveyance of property interests.

(5) Monitor land contained in the greenspace program and conduct annual on-site inspections. Recommend enforcement of greenspace agreements.

(6) Hold title to and convey interests in real property.

(7) Hold title to and convey interest in conservation easements

(8) Encourage economic development and tourism consistent with the goals of this article.

(9) Promote and cooperate development and tourism consistent with the goals of this article.

(10) Prepare and present to the mayor and council an annual, written report which summarizes the previous year's activities.

(11) Apply for and receive funds from any state, federal or public entity appropriate to the goals of the trust.

(12) Solicit and receive contributions and donations from individuals and groups for the purpose of carrying out its duties as set forth herein.

(13) Solicit financial and other contributions to the urban county government or to the Greenspace Trust, including, but not limited to, donations of money, services and real property.

(14) Adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article.

(Ord. No. 075-2022, § 6, 7-7-22)

Secs. 2-341--2-344. Reserved

Article XXXI

Housing and Support Services Commission[1]

Sec. 2-345. Created.

(a) A commission is hereby created which shall be known as the "Commission on Housing and Support Services," hereinafter referred to as "the commission."

(b) The commission is established for the purpose of providing leadership for community efforts, in both the public and private sectors, toward the improvement of housing, support services, education, job training and employment services for the homeless.

(Ord. No. 77-91, § 1, 4-18-91; Ord. No. 93-93, § 1, 5-20-93)

1. **Editor's note(s)**—Section 1 of Ord. No. 77-91, adopted Apr. 18, 1991, added art. XXX, §§ 2-325—2-340, which the editor has redesignated art. XXXI, §§ 2-345—2-350, since Ord. No. 264-90, § 1, adopted Dec. 6, 1990, had previously added art. XXX, §§ 2-326—2-334.

Sec. 2-346. Membership.

The commission shall be composed of members of all segments of the local community, including but not limited to: local government, business, social service agencies, religious organizations, interested citizens, educators and the homeless. The commission shall consist of nineteen (19) members, all of which shall be voting members. The nineteen members shall be appointed by the mayor subject to confirmation by a majority of the council members, and shall be representative of the following:

(1) Non-profit agencies or entities operating in Lexington-Fayette County (8 members);

(2) General business, banking or mortgage companies or firms operating in Lexington-Fayette County (5 members);

(3) State or local government agencies (6 members).

(Ord. No. 77-91, § 1, 4-18-91; Ord. No. 93-93, § 2, 5-20-93; Ord. No. 147-99, § 1, 6-17-99)

Sec. 2-347. Term.

For all members of the commission created by this article, the term shall be four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Twelve (12) members shall be appointed for two (2) years, and seven (7) members shall be appointed for four (4) years. Vacancies shall be filled for the unexpired term in the manner prescribed for in the original appointment.

(Ord. No. 77-91, § 1, 4-18-91; Ord. No. 147-99, § 2, 6-17-99)

Sec. 2-348. Officers.

The commission created by this article shall have a chair appointed by the mayor to serve for a term of two (2) years and a vice-chair and secretary elected from the membership as set forth in the bylaws. The officers shall take office at the first meeting of the commission, and their duties shall be as implied by their respective titles and as may be specified in the bylaws. The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 77-91, § 1, 4-18-91; Ord. No. 93-93, § 3, 5-20-93)

Sec. 2-349. Quorum.

A majority of the members of the commission created by this article shall constitute a quorum for the transaction of business at any meeting. The acts of a majority of the quorum in any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 77-91, § 1, 4-18-91; Ord. No. 93-93, § 4, 5-20-93; Ord. No. 147-99, § 3, 6-17-99)

Sec. 2-350. Powers and duties.

(a) **General Powers:** The commission created by this article may expend such funds as may become available to it; may examine, report and advise the urban county government on housing issues; and may form committees and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article. The commission shall not acquire any interest in any real property without the prior approval of the mayor and the urban county council.

(b) **Duties:** The commission shall, as permitted by law:

(1) Oversee implementation of the task force on homelessness recommendations;

(2) Coordinate community response;

(3) Establish committees, which may include interested members of the public, as may be necessary for carrying out its duties set forth herein; and

(4) Serve as the lead planning agency for the development of the Consolidated Plan for the United States Department of Housing and Urban Development's Community Planning and Development Programs.

(5) Perform any other act necessary or appropriate to carry out the purposes of this article.

(Ord. No. 77-91, § 1, 4-18-91; Ord. No. 93-93, § 5, 5-20-93; Ord. No. 40-95, § 1, 2-23-95)

Sec. 2-351. Executive committee.

The provisions of section 2-349 notwithstanding, the commission created by this article may create an executive committee composed of the chair, the vice-chair, secretary and a representative of each standing committee chosen by the committee, which shall have and exercise all of the authority of the commission, subject to the limitations imposed on the powers of the committees and of the directors of nonstock, nonprofit corporation by KRS 273.221.

(Ord. No. 93-93, § 6, 5-20-93)

Secs. 2-352--2-360. Reserved

Article XXXII

Lexington-Fayette Urban County Criminal Justice Commission[1]

Sec. 2-361. Created.

(a) A commission is hereby created which shall be known as the Lexington-Fayette Urban County Criminal Justice Commission, hereinafter referred to as "the commission."

(b) The commission is established for the purpose of providing long- and short-range planning for and coordination of activities among agencies participating in the criminal justice system.

(Ord. No. 87-91, § 1, 5-2-91)

Sec. 2-362. Membership.

(a) The commission shall consist of nineteen (19) ex officio members and two (2) appointed members. The appointed members shall be appointed by the mayor, subject to confirmation by a majority of the urban county councilmembers. The appointed members of the commission shall be selected because of their demonstrated knowledge or interest in the area of criminal justice.

(b) The ex officio members shall consist of the commissioner of public safety, the chief justice of the Fayette circuit court, the chief justice of the Fayette district court, the commonwealth attorney, the county attorney, the public defender, the chief of police, the sheriff, the director of detention, the program administrator for juvenile detention, the commissioner of social services, the director of comprehensive care, the director of pre-trial services, the Fayette County circuit clerk, the director of adult probation, the director of the commonwealth probation and parole office, and the president of the Fayette County bar association. Additionally, the mayor shall appoint, subject to confirmation by a majority of the urban county councilmembers, a member of the Fayette county delegation to the Kentucky General Assembly and an urban county councilmember. The ex officio members may select a designee authorized to represent them on the commission. Both the appointed members and the ex officio members or their designees shall be voting members of the commission. The office of the mayor and the department of law shall provide staff and assistance to the commission as needed. Commission members shall receive no compensation for their services.

(Ord. No. 87-91, § 1, 5-2-91; Ord. No. 173-91, § 1, 7-18-91; Ord. No. 133-93, § 1, 7-8-93; Ord. No. 174-94, § 1, 8-25-94)

1. **Editor's note(s)**—Section 1 of Ord. No. 87-91, adopted May 2, 1991, added art. XXXI, §§ 2-331—2-336. The editor has redesignated the provisions as art. XXXII, §§ 2- 361—2-366, since Ord. No. 77-91 had previously been added as art. XXXI, §§ 2-345—2-350.

Sec. 2-363. Term.

(a) The appointed members of the commission shall serve a term of four (4) years from the date of appointment, provided that the terms of those originally appointed shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. Any member may be appointed for additional terms.

(b) The ex officio members shall consist of the commissioner of public safety, the chief justice of the Fayette circuit court, the chief justice of the Fayette district court, the commonwealth attorney, the county attorney, the public defender, the chief of police, the sheriff, the director of community corrections, the program administrator for juvenile detention, the commissioner of social services, the director of comprehensive care, the director of pretrial services, the Fayette County circuit clerk, the director of adult probation, the director of the commonwealth probation and parole office, and the president of the Fayette County bar association. Additionally, the mayor shall appoint, subject to confirmation by a majority of the urban county councilmembers, a member of the Fayette County delegation to the Kentucky General Assembly and an urban county councilmember. The ex officio members may select a designee authorized to represent them on the commission. Both the appointed members and the ex officio members or their designees shall be voting members of the commission. The office of the mayor and the department of law shall provide staff and assistance to the commission as needed. Commission members shall receive no compensation for their services.

(Ord. No. 87-91, § 1, 5-2-91; Ord. No. 333-99, § 4, 12-7-99)

Sec. 2-364. Officers.

The mayor shall appoint the chairperson and vice-chairperson of the commission, and the commission shall have any other officers elected from the membership as the commission deems necessary. The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The board shall meet at least quarterly at a date, place and time to be selected by the chairperson.

(Ord. No. 87-91, § 1, 5-2-91; Ord. No. 174-94, § 2, 8-25-94)

Sec. 2-365. Quorum.

A majority of the members of the commission created by this article shall constitute a quorum for the transaction of business at any meeting. The acts of a majority of those members present in any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 87-91, § 1, 5-2-91)

Sec. 2-366. Powers and duties.

The commission created by this article shall, as permitted by law:

(a) Identify and recommend application for funds from local, state and federal resources, which can be utilized by the various criminal justice agencies.

(b) Gather statistical data and identify trends in the development of the criminal justice system.

(c) Coordinate activities of the agencies of the criminal justice agencies represented on the commission.

(d) Analyze existing criminal justice policy, develop new policies and make recommendations to local and state legislative bodies.

(Ord. No. 87-91, § 1, 5-2-91)

Secs. 2-367--2-376. Reserved

Article XXXIII

Reserved

Sec. 2-377. Reserved

Editor's note(s)—Ord. No. 107-2008, § 1, adopted May 22, 2008, repealed Art. XXXIII, which pertained to Equifestival of Kentucky, Inc. See the Code Comparative Table for complete derivation.

Article XXXIV

Citizens' Transit Advisory Board[1]

Sec. 2-378. Created.

(1) A board is hereby created which shall be known as the citizens' transit advisory board, hereinafter referred to as "board."

(2) The board is established for the purpose of advising the mayor and the Transit Authority of the Lexington-Fayette Urban County on all matters pertaining to the operation and administration of transit services for the urban county government.

(Ord. No. 178-92, § 1, 10-1-92; Ord. No. 187-93, § 1, 10-7-93)

1. **Editor's note(s)**—Ord. No. 187-93, adopted and effective Oct. 7, 1993, changed the title of this article from "Transit Authority Citizens Advisory Board" to "Citizens' Transit Board." See also art. VI, § 2-106 et seq.

Sec. 2-379. Membership.

The board shall consist of seven (7) members. One (1) member shall be a member of the urban county council, who shall serve ex officio and who may select a designee to represent him on the board. All members shall be appointed by the mayor subject to confirmation by a majority of the urban county council. They shall be residents of Fayette County and have an interest in transit.

(Ord. No. 178-92, § 1, 10-1-92; Ord. No. 187-93, § 2, 10-7-93)

Sec. 2-380. Term of members.

The members of the board shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Four (4) members shall be appointed for four (4) years, and three (3) members shall be appointed for two (2) years. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. Any member may be reappointed for additional terms.

(Ord. No. 178-92, § 1, 10-1-92)

Article XXXV

Court-Appointed Special Advocate Board[1]

Sec. 2-381. Created; purpose.

(1) A board is hereby created which shall be known as the court-appointed special advocate board, hereinafter referred to as "board."

(2) The purpose of the board is to ensure and maintain the high quality of independent volunteers who represent abused and neglected children in the court system through the court-appointed special advocate hereinafter referred to as "CASA," program.

(Ord. No. 58-94, § 1, 4-14-94; Ord. No. 63-2006, § 1, 3-9-06)

Sec. 2-382. Members.

(1) The board shall consist of at least sixteen (16) appointed members, excluding ex officio members. The board, through its bylaws, may provide for a greater number of appointed members. The appointed members shall be appointed by the mayor, subject to confirmation by a majority of the urban county council members. The appointed members of the board shall be selected because of their demonstrated sincere interest in the purpose of the CASA program and a commitment to further the program's mission and goals. Appointed

1. **Editor's note(s)**—Section 1 of Ord. No. 58-94, adopted Apr. 14, 1994, added §§ 2-281-2-386. The editor has designated the provisions art. XXXV.

members shall serve a term of four (4) years from the date of appointment, provided that the terms of those originally appointed shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment.

(2) The ex officio members shall consist of the commissioner of social services; the Fayette County Attorney; and the head of the Crimes Against Children Unit of the division of police. The ex officio members may select a designee authorized to represent them on the board. Neither the ex officio members nor their designees shall be voting members of the board. The division of police, department of social services and the department of law shall provide staff and assistance to the board as needed. Board members shall receive no compensation for their services.

(Ord. No. 58-94, § 1, 4-14-94; Ord. No. 63-2006, § 2, 3-9-06; Ord. No. 81-2011, § 1, 6-23-11)

Sec. 2-383. Duties.

The board shall, as permitted by law:

(1) Apply for, receive and disburse funds and contract with any state, federal, public or private organization, as well as solicit and receive contributions and donations from individuals and groups for the purpose of carrying out its duties as set forth herein;

(2) Monitor the CASA program;

(3) Serve as a communications liaison between the CASA program and the public;

(4) Support and promote the CASA program in the areas of legislation;

(5) Develop community links among other interested professionals;

(6) Mediate disputes concerning CASA volunteers;

(7) Establish committees, which may include interested members of the public, as may be necessary for carrying out the duties as set forth herein; and

(8) Perform any other act necessary and appropriate to carry out the purposes of this article.

(Ord. No. 58-94, § 1, 4-14-94; Ord. No. 63-2006, § 3, 3-9-06)

Sec. 2-384. Officers, records, frequency of meetings.

The mayor shall appoint a chairman pro tem until such time as the bylaws are in place. He shall take office at the time of the first board meeting. The mayor shall appoint a paid director and other staff as necessary to assist the board in carrying out its duties. The board may elect other officers and committees from the board membership

as the board deems necessary. The board shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The board shall meet at least quarterly at a date, place and time to be selected by the chairman.

(Ord. No. 58-94, § 1, 4-14-94)

Sec. 2-385. Quorum.

A majority of the voting members shall constitute a quorum for transaction of business at any meeting of the board.

(Ord. No. 58-94, § 1, 4-14-94)

Sec. 2-386. Contracts, expenditures, bylaws.

The board may enter into contracts; expend funds as may be available to it; and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article.

(Ord. No. 58-94, § 1, 4-14-94)

Article XXXVI

Bluegrass Crimestoppers, Inc.

Sec. 2-387. Creation; purpose; powers.

(a) The actions of Lana Gibbons, Roger Dalton, Robert Trinler and David Franklin, all being residents of the county, as incorporators for a nonprofit, nonstock Kentucky corporation under the provisions of KRS chapter 273, named "Bluegrass Crimestoppers, Inc.", and hereinafter referred to as "corporation", and the activities of the corporation, be and are ratified.

(b) The corporation is organized for the following purposes:

(1) To foster the detection of crime and encourage persons to report information about criminal acts;

(2) To encourage the news and other media to promote the Bluegrass Crimestoppers and inform the public of its function;

(3) To assist other crimestoppers organizations in forwarding information about criminal acts to the appropriate law enforcement agencies; and

(4) To help law enforcement agencies detect and combat crime by increasing the flow of information to and between law enforcement agencies.

(c) The corporation shall possess all the powers conferred upon a corporation organized under KRS chapter 273 dealing with nonprofit, nonstock corporations and shall have all powers necessary, proper, convenient or

desirable in order to fulfill and further the purposes of the corporation. The chairperson, the representative of the division of police, and two (2) members of the board selected by majority vote of the board shall comprise an executive committee, which is authorized to act on behalf of the corporation in performing management and business-related functions.

(Ord. No. 48-96, § 1, 4-4-96)

Sec. 2-388. Directors.

(a) The affairs of the corporation are to be conducted by a board of directors consisting of not less than ten (10) nor more than thirty (30) individuals. One of the directors shall be a representative of the division of police. The directors shall be appointed by the mayor subject to confirmation by a majority of the urban county council members.

(b) All directors of the corporation shall serve four (4) years from the date of appointment, provided that the terms shall be staggered in the manner required by section 7.02 of the Urban County Charter. Vacancies shall be filled for the unexpired terms in the manner prescribed for the original appointment. Any director may be reappointed for one (1) additional consecutive term.

(Ord. No. 48-96, § 1, 4-4-96)

Sec. 2-389. Meetings.

The corporation shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The corporation shall meet on a quarterly basis at a date, place and time to be determined by the board of directors.

(Ord. No. 48-96, § 1, 4-4-96)

Sec. 2-390. Quorum.

A majority of the directors shall constitute a quorum for the transaction of business at any meeting of the board of directors.

(Ord. No. 48-96, § 1, 4-4-96)

Article XXXVII

Community Partnership Action Council

Sec. 2-391. Created; purpose.

(a) A council is hereby created which shall be known as the Community Partnership Action Council, herein referred to as "council".

(b) The council is established for the purpose of developing strategies for building a community/police partnership and a community education campaign focused on crime prevention and facilitating a citizen police academy which will contribute to the development of stronger ties and ultimately a sense of partnership between the community and the division of police.

(Ord. No. 51-96, § 1, 4-4-96)

Sec. 2-392. Members.

(a) The council shall consist of seventeen (17) appointed members and two (2) ex officio members. The appointed members shall be appointed by the mayor subject to confirmation by a majority of the urban county councilmembers. The mayor shall appoint the following members:

(1) One (1) member from each council district selected from a list of three (3) recommendations submitted by each councilmember representing a council district;

(2) Three (3) members each of which shall be selected from a list of three (3) recommendations submitted by each at large councilmember; and

(3) Two (2) members under the age of eighteen (18).

The appointed members of the council shall have an interest in promoting a community/police partnership and have a demonstrated ability to constructively discuss potentially difficult issues and work towards an achievable consensus. Appointed members shall serve a term of four (4) years from the date of appointment, provided that the terms of those originally appointed shall be staggered in the manner required by section 7.02 of the urban county charter.

Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. With respect to the recommendations submitted pursuant to subsection (1) or (2), above, the Community Action Partnership Council shall notify the appropriate urban county councilmember that a vacancy exists and request that he or she submit his or her list of recommendations to the mayor within sixty (60) days. In the event a list of recommendations is not submitted to the mayor within sixty (60) days of notification, the mayor may fill the vacancy from a list of recommendations submitted by the Community Action Partnership Council and its staff, or the president of the Fayette County Neighborhood Council, so long as the recommended appointee otherwise meets the membership requirements of this section.

(b) The ex officio members shall consist of the urban county government chief of police and the president of the Fayette County Neighborhood Council. The ex officio members may select a designee authorized to represent them on the council.

(c) Both the appointed members and the ex officio members or their designee shall be voting members of the council.

(d) The division of police shall provide staff and assistance to the council as needed.

(e) The council shall receive no compensation for their services.

(Ord. No. 51-96, § 1, 4-4-96; Ord. No. 83-2002, § 1, 4-25-02)

Sec. 2-393. Officers; records; frequency of meetings.

The council may elect officers from the membership as the council deems necessary. The council shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The council shall meet monthly at a date, place and time to be selected by the council.

(Ord. No. 51-96, § 1, 4-4-96)

Sec. 2-394. Quorum.

The majority of the members shall constitute a quorum for transaction of business at any meeting of the council.

(Ord. No. 51-96, § 1, 4-4-96)

Sec. 2-395. Duties.

The council shall, as permitted by law:

(1) Develop programs directed at building a community/police partnership;

(2) Sponsor educational programs focused on crime prevention, such as a citizen police academy;

(3) Establish committees, which may include interested members of the public, as may be necessary for carrying out the duties as set forth herein; and

(4) Perform any other acts necessary and appropriate to carry out the purpose of this article.

(Ord. No. 51-96, § 1, 4-4-96)

Article XXXVIII

Parks and Recreation Advisory Board

Sec. 2-396. Created.

(1) A board is hereby created which shall be known as the parks and recreation advisory board of the Lexington-Fayette Urban County Government, hereinafter sometimes referred to as the "parks board."

(2) The parks board is established for the purpose of serving as an advisory board to the division of parks and recreation. In this role, it shall serve as a vehicle for receiving public opinion and as a vehicle for promoting a comprehensive parks and recreation delivery system.

(Ord. No. 269-98, § 1, 10-1-98)

Sec. 2-397. Membership; terms.

(1) The members of the parks board shall be fifteen (15) in number and shall be appointed by the mayor, subject to confirmation by a majority of the urban county councilmembers. Twelve (12) members shall be selected in the following manner: one (1) member shall reside in each of the twelve (12) council districts, as those districts exist at the time the appointment is made. Three (3) members shall be selected in the following manner: one (1) member shall be a councilmember at large and one (1) member shall be a district councilmember, recommended by a majority of the urban county councilmembers, and one (1) member shall be a representative of the Fayette County School System, recommended by a majority of the Fayette County School Board.

(2) The members of the parks board shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: four (4) members shall be appointed for one (1) year; four (4) members shall be appointed for two (2) years; four (4) members shall be appointed for three (3) years; and three (3) members shall be appointed for four (4) years.

(3) Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. The membership of the appointed councilmembers shall be terminated upon leaving office as a councilmember.

(4) No member originally appointed to the parks board who has served one (1) consecutive full term after his initial term may succeed himself until the lapse of twelve (12) months from the end of said consecutive term. No later appointed member who has served two (2) consecutive full terms may succeed himself until the lapse of twelve (12) months from the end of said consecutive terms.

(Ord. No. 269-98, § 1, 10-1-98)

Sec. 2-398. Officers.

The officers of the parks board shall consist of a chairman, a vice-chairman, and other officers elected from the membership as set forth in the bylaws. They shall take office at the first meeting of the parks board after election. The duties of the officers shall be as specified in the bylaws. The parks board shall determine its own rules and order of business and so provide for keeping a record of its proceedings.

(Ord. No. 269-98, § 1, 10-1-98)

Sec. 2-399. Quorum.

A majority of the parks board, that is eight (8) members, shall constitute a quorum for transaction of business at any meeting of the parks board. The acts of a majority of those members present at any regular or special meeting of the parks board shall be the acts of the parks board, provided that it shall take a vote of ten (10) members to adopt or amend its bylaws.

(Ord. No. 269-98, § 1, 10-1-98)

Sec. 2-400. Staff.

The director of parks and recreation or his designee shall serve as staff liaison to the parks board and shall be responsible for coordinating agendas, preparing minutes and handling logistical matters in order to expedite the board's function. The members of the parks board should limit contact with the division of parks and recreation staff to the director or his designee, unless other contacts are made with his knowledge or approval.

(Ord. No. 269-98, § 1, 10-1-98)

Sec. 2-401. Powers and duties.

(1) The parks board shall, as permitted by law:

(a) Adopt bylaws which are not inconsistent with this article;

(b) Appoint standing and ad hoc committees, which may be comprised of parks board members, employees of the urban county government, the public, or any combination of the foregoing;

(c) Hold public forums for the purpose of gauging the will of the public on parks and recreation matters;

(d) Solicit financial and other contributions to the urban county government, including donations of real property, for the purposes of parks and recreation programs;

(e) Assist the staff of the division of parks and recreation, upon request, in the performance of their duties in the following areas:

(i) Interpreting and promoting the division of parks and recreation mission, goals and objectives to public officials and the general public;

(ii) Implementing the specifics of a division of parks and recreation public relations plan;

(iii) Implementing the specifics of the parks master plan and any other parks and recreation plans adopted by the government or the division of parks and recreation;

(iv) Evaluating current services and facilities of the division of parks and recreation and divisional priorities;

(v) Providing the highest standards in division of parks and recreation leadership, facilities, and services;

(vi) Reviewing fees and charges and alternate sources of funding to the division of parks and recreation such as grants, gifts, endowments, etc.; and

(vii) Providing for a high standard in the preservation, conservation, and maintenance of all parks, open space, and facilities operated by the division of parks and recreation.

(f) Assist the division of parks and recreation in making recommendations to the mayor and urban county council in the following areas:

(i) Division of parks and recreation policies and priorities for facilities, programs, fees, charges, schedules, etc.;

(ii) Public relation strategies for stimulating public involvement, promoting services and achieving results;

(iii) Presentation of the division of parks and recreation budget;

(iv) Professional development and training of division of parks and recreation staff;

(v) Legislation that will promote the mission, goals, and objectives of the division of parks and recreation;

(vi) Establishing land acquisition and facility development/improvement priorities; and

(vii) Monitoring of services, development of a volunteer program, and coordination with interest groups in the community.

(g) Shall prepare and present to the urban county council in work session written reports on a quarterly basis each calendar year and shall have a place on the work session agenda, if requested, for the purpose of submission of the reports.

(2) The parks board shall not:

(a) Directly or indirectly operate any parks and recreation program;

(b) Hold title to any real or personal property;

(c) Receive or hold any funds;

(d) Be involved in the selection, supervision, evaluation, or discipline of urban county government personnel, provided that parks board members may serve on a selection or recruitment committee;

(e) Have any direct involvement in the urban county government budget process, provided that the parks board may assist the director of parks and recreation in making recommendations as a part of the budget process;

(f) Expend or commit urban county government funds, provided that the parks board may authorize expenditure of any funds directly appropriated to it for a particular purpose by the urban county council;

(g) Enter into or influence contractual obligations, provided that members of the parks board may serve as part of a selection team; or

(h) Represent to the public, media or any other person that they represent the urban county government or the division of parks and recreation.

(Ord. No. 269-98, § 1, 10-1-98)

Sec. 2-402. Conflict of interest.

All members of the parks board shall be subject to the code of ethics contained in Article 16 of the Urban County Charter.

(Ord. No. 269-98, § 1, 10-1-98)

Secs. 2-403--2-420. Reserved

Article XXXIX

Town and Gown Commission[1]

Sec. 2-421. Created; purpose.

(a) A commission is hereby created, which shall be known as the "Town and Gown Commission," hereinafter referred to as "the commission."

(b) The commission is established for the purpose of pursuing the recommendations of the 1999 University of Kentucky Neighborhoods Committee; improving communication between the University of Kentucky, Transylvania University, and the Bluegrass Community and Technical College (hereinafter collectively referred to as the "Universities and College") and other community elements including neighborhoods, local government, students, business community and others; and to analyze issues of common concern and develop recommendations for consideration by the mayor of the urban county government and the Presidents of the Universities and College.

(Ord. No. 289-99, § 1, 10-21-99; Ord. No. 18-2012, § 1, 2-16-12)

Sec. 2-422. Membership.

The membership of the commission shall be composed of sixteen (16) appointed members and eight (8) ex officio members, as follows:

(1) Eight (8) of the members shall be appointed by the Mayor of the Lexington-Fayette Urban County Government, subject to confirmation by a majority of urban county council members, as follows:

a. One (1) member from the administration of the urban county government;

1. **Editor's note(s)**—Section 1 of Ord. No. 289-99, adopted Oct. 21, 1999, added a new §§ 2-396-2-402 to the Code; however, said provisions have been redesignated as § 2- 421-427, at the editor's discretion, for purposes of future expansion.

b. Three (3) landlord/business community representatives, each of whom own residential rental property or business concerns in the immediate area of the main campuses of one (1) of the Universities and College;

c. Three (3) neighborhood organization representatives, selected from among nominees to be submitted to the mayor by incorporated neighborhood associations whose recognized boundaries are contiguous to the border of the main campuses of one of the Universities and College;

d. One (1) at large urban county council member.

(2) The ex officio members shall consist of the urban county council member from the First District, the urban county council member from the Third District, the urban county council member from the Eleventh District, the Executive Director of the Downtown Development Authority, the Lexington-Fayette Urban County Commissioner of Public Safety, or his or her designee, and the Student Government Presidents, or their designees, from each of the respective Universities and College.

(3) Six (6) of the members shall be appointed by the President of the University of Kentucky, one (1) of the members shall be appointed by the President of Transylvania University, and one (1) of the members shall be appointed by the President of Bluegrass Community Technical College System for their respective entities, as follows:

a. Four (4) University of Kentucky administration representatives, one (1) Transylvania University administration representative, and one (1) Bluegrass Community Technical College System administration representative; and

b. Two (2) University of Kentucky student representatives, one (1) Transylvania University student representative, enrolled at university at the time of appointment. Discontinuation of enrolled-student status shall disqualify the incumbent and be cause for a new appointment to be made.

(Ord. No. 289-99, § 1, 10-21-99; Ord. No. 30-2003, § 1, 2-6-03; Ord. No. 18-2012, § 2, 2-16-12)

Sec. 2-423. Terms.

Terms of members shall be four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered so that five (5) members shall be appointed for one (1) year, three (3) members shall be appointed for two (2) years, five (5) members shall be appointed for three (3) years, and five (5) members shall be appointed for four (4) years. The term rotation shall be established so that at least one (1) term expires each year for: LFUCG council/administration; landlord/business community representatives; university administrators; student representatives; and neighborhood representatives.

Vacancies shall be filled in the same manner as the original appointment and the successor shall be appointed for the unexpired terms. The membership of the urban county council members shall be deemed to have been terminated when their respective term of office on the urban county council ends, the membership of the Executive Director of the Downtown Development Authority shall be deemed to have terminated when his or her employ-

ment as the director ends, and the membership of the Lexington-Fayette Urban County Commissioner of Public Safety shall be deemed to have terminated when his or her employment as commissioner ends. The first members of the commission shall assume their duties effective November 1, 1999.

(Ord. No. 289-99, § 1, 10-21-99; Ord. No. 30-2003, § 2, 2-6-03; Ord. No. 18-2012, § 3, 2-16-12)

Sec. 2-424. Officers; records.

The commission shall have joint chairpersons to be appointed by the mayor, with one chairperson selected from those members appointed by the mayor and one chairperson selected from those members appointed by the President of the University of Kentucky. The joint chairpersons shall serve for two year terms and may be appointed for additional terms. A secretary shall be elected from the membership for a two-year term and the commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 289-99, § 1, 10-21-99)

Sec. 2-425. Frequency of meetings.

The commission shall meet at least quarterly at a date, place and time to be selected by the joint chairpersons, with notice provided in accordance with applicable open meetings laws.

(Ord. No. 289-99, § 1, 10-21-99)

Sec. 2-426. Quorum.

A majority of the members of the commission created by this article shall constitute a quorum for the transaction of business at any meeting. The acts of a majority of the quorum in any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 289-99, § 1, 10-21-99)

Sec. 2-427. Powers and duties.

The commission may consider issues of common concern relating to the mutual health and benefit of the Universities and College and the community, including but not limited to the condition and availability of affordable housing and its relationship to the presence of on-campus housing; public transit opportunities; respective roles of the Universities and College and community in the regulation of parking, traffic, student behavioral issues, maintenance and renovation of surrounding properties and infrastructure; matters of common concern affecting zoning, land use, and the environment; and exploring private/public development and grant funding opportunities.

(Ord. No. 289-99, § 1, 10-21-99; Ord. No. 18-2012, § 4, 2-16-12)

Article XL

Downtown Development Authority

Sec. 2-428. Created; purpose.

A nonprofit, non-stock corporation shall be created pursuant to Chapter 58 of the Kentucky Revised Statutes to be known as the "Lexington Downtown Development Authority, Inc.," hereinafter referred to as the "development authority." The development authority shall be created to act as an agency, instrumentality and constituted authority of the urban county government in the acquisition and financing of any "public project" (as defined in KRS 58.180) which may be undertaken by the urban county government pursuant to the provisions of Kentucky law and thus accomplish a public purpose of the urban county government.

(Ord. No. 312-2001, § 1, 12-13-01)

Sec. 2-429. Powers and duties.

The development authority shall possess and exercise all powers of a corporation pursuant to KRS Chapter 58. The development authority may exercise its powers and duties throughout Fayette County, with particular focus on the downtown area. The duties of the development authority shall include, but not be limited to, the following:

(1) Facilitate development and redevelopment projects within Fayette County;

(2) Acquire, construct, maintain, add to, and improve any "public project" as defined in KRS 58.010.

(3) Coordinate urban county policies and programs relating to public investment for financing development and redevelopment projects within Fayette County;

(4) Develop and coordinate the implementation of downtown, neighborhood, area-wide and corridor plans and policies of the urban county government, consistent with, and in coordination with, other urban county departments and agencies with responsibilities in the same area;

(5) Establish design and related standards or guidelines for development and redevelopment projects within Fayette County, consistent with, and in coordination with, other urban county departments and agencies with responsibilities in the same area;

(6) Coordinate the activities of other urban county government supported departments, offices, organizations and corporations involved in development and redevelopment related activities.

Provided, however, the development authority shall not acquire, construct, maintain, add to, or improve any "public project" as defined in KRS 58.010 with respect to the Lexington Center Corporation, or its property, without its consent.

(Ord. No. 312-2001, § 1, 12-13-01)

Sec. 2-430. Board of directors.

The development authority shall have a board of directors consisting of five (5) members. The board shall consist of the mayor or the mayor's designee and such other members as appointed by the mayor, subject to confirmation by a majority of the urban county council members. The board shall elect one (1) of its members to act as chairman of the board. The appointed members of the board shall serve a term of four (4) years from the date of appointment, provided that the terms of those originally appointed shall be staggered in the manner required by Section 7.02 of the Urban County Charter. Vacancies shall be filled for the unexpired term in the manner prescribed for in the original appointment. All members of the board shall have an interest in downtown redevelopment. Only current board members shall be permitted to serve as representatives of the development authority on any other board in which the development authority has a participatory role.

(Ord. No. 312-2001, § 1, 12-13-01; Ord. No. 153-2017, § 2, 10-12-17)

Sec. 2-431. Officers; records; frequency of meetings.

The development authority is authorized to employ an executive director or any other personnel as needed or may contract with another entity for these services. The board of directors may elect other officers as the board deems necessary. The duties of the officers shall be as specified in the bylaws. The board shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. The board shall meet at least quarterly at a date, place and time to be selected by the chairman.

(Ord. No. 312-2001, § 1, 12-13-01; Ord. No. 153-2017, § 4, 10-12-17)

Sec. 2-432. Quorum.

A majority of the board of directors shall constitute a quorum for transaction of business at any meeting of the development authority. The acts of the majority of those members present at any regular or special meeting of the development authority shall be the acts of the development authority.

(Ord. No. 312-2001, § 1, 12-13-01)

Sec. 2-433. Bylaws.

The board of directors may adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes as set forth in this article.

(Ord. No. 312-2001, § 1, 12-13-01)

Secs. 2-434--2-440. Reserved

Article XLI

Internal Audit Board[1]

Sec. 2-441. Established.

A board is hereby established which shall be known as the internal audit board.

(Ord. No. 63-2002, § 1, 3-21-02)

Sec. 2-442. Members.

(a) The internal audit board shall consist of seven (7) voting members appointed by the mayor and two (2) ex-officio, non-voting members appointed as follows:

(1) Four (4) members shall be audit, accounting or legal professionals from the community at large, with CIA, CMA, CPA or other appropriate professional certifications, two (2) of whom shall be based upon a recommendation made by the majority of the urban county council, appointed by the mayor and approved by majority vote of the urban county council;

(2) Two (2) members shall be selected from the membership of the urban county council, approved by a majority of the urban county council;

(3) One (1) member shall be the mayor or his designee; and

(4) The council administrator and the chief administrative officer shall serve as ex-officio, non-voting members of the board.

(b) The members of the board shall serve without compensation but shall be reimbursed for expenses necessarily incurred in the performance of their duties.

(c) A board member may be removed from office by the urban county council after a hearing by a vote of two-thirds (2/3) of the members of the council and only for neglect of duty, malfeasance, conflict of interest or misconduct. The hearing shall be initiated by the vice-mayor, who shall prepare a written statement setting forth the reasons for removal. The hearing shall be chaired by the mayor. The member to be removed shall be notified of the proposed removal and the reason therefore by registered mail sent to the member's last known address at least ten (10) days prior to the hearing. The member to be removed may employ counsel for representation. A record of the hearing shall be made.

(Ord. No. 63-2002, § 2, 3-21-02; Ord. No. 61-2011, § 1, 5-12-11)

1. **Editor's note(s)**—Ord. No. 63-2002, §§ 1-9, adopted March 21, 2002, enacted provisions which were intended for codification as Ch. 2, Art. XL, §§ 2-428-2-436. As those section numbers are already in use, these new provisions have been included herein as Art. XLI, §§ 2-441-2-449.

Sec. 2-443. Terms.

All board members, with the exception of the ex-officio members, shall serve four (4) years from the date of appointment, provided that the terms shall be staggered in the manner required by section 7.02 of the Urban County Charter. The ex-officio members shall serve only so long as they hold the position of council administrator or chief administrative officer. The membership of the mayor or his designee and urban county council members shall be deemed to have been terminated when their respective term of office as mayor or on the urban county council ends. Vacancies shall be filled for any unexpired term in the manner prescribed for the original appointment. Any board member may be reappointed for two (2) additional full terms.

(Ord. No. 63-2002, § 3, 3-21-02; Ord. No. 61-2011, § 2, 5-12-11)

Sec. 2-444. Officers.

The officers of the board shall consist of a chairman and a vice-chairman chosen from the members from the community at large and elected annually by majority vote of the voting members of the board. The chairman may not serve more than two (2) consecutive one-year terms.

(Ord. No. 63-2002, § 4, 3-21-02; Ord. No. 61-2011, § 3, 5-12-11)

Sec. 2-445. Quorum.

A majority of the voting members of the board shall constitute a quorum for the transaction of business at any meeting of the board.

(Ord. No. 63-2002, § 5, 3-21-02)

Sec. 2-446. Meetings.

Regular meetings shall be held at least quarterly, and special meetings may be held as specified in KRS 61.823. All meetings shall be open to the public in a manner consistent with KRS 61.805—61.850. Full and complete minutes of all meetings and records of all proceedings, including the number of votes for and against each motion and the record of the vote of each member, shall be kept and made available for public inspection.

(Ord. No. 63-2002, § 6, 3-21-02)

Sec. 2-447. Bylaws.

The board shall adopt bylaws, rules and order of business, which shall be approved by the urban county council. The board shall provide for keeping a record of its proceedings.

(Ord. No. 63-2002, § 7, 3-21-02; Ord. No. 61-2011, § 4, 5-12-11)

Sec. 2-448. Staff.

The urban county government shall provide staff as needed.

(Ord. No. 63-2002, § 8, 3-21-02)

Sec. 2-449. Powers and duties.

(a) The powers and duties of the board include the following:

(1) To supervise, coordinate, evaluate, monitor, and implement the internal audit function of the urban county government;

(2) To ensure compliance with all federal, state, and local laws relating to financial matters; and

(3) To cooperate with the external auditor in order to reduce as much as possible, the cost to the urban county government of having an external audit performed.

(b) The priorities of the powers and duties contained in subsection (1) above shall be determined by the board.

(Ord. No. 63-2002, § 9, 3-21-02)

Sec. 2-450. Reserved

Article XLII

Arts Commission[1]

Sec. 2-451. Creation; purpose.

(a) A commission is hereby created which shall be known as the Lexington-Fayette Urban County Government Public Arts Commission, hereinafter referred to as the "commission".

(b) The commission is established for the following purposes:

(1) Advising the mayor and the urban county council on the selection, acquisition, funding, placement, maintenance, and conservation of public art, public art events, and public monuments by the urban county government, consistent with the Public Art Master Plan; and

(2) Reviewing applications for installation of permanent visual artwork in public spaces from external sources, including, but not limited to, memorials, monuments and lighting projects, for its aesthetic opportunities with regard to its design and installation, and toward the conservation of permanent artwork.

(Ord. No. 203-2002, § 1, 7-16-02; Ord. No. 233-2002, § 1, 9-12-02; Ord. No. 057-2022, § 1, 6-23-22)

1. **Editor's note(s)**—Ord. No. 203-2002, § 1, adopted July 16, 2002, enacted provisions intended for use as §§ 2-443-2-447. As those sections are already in use, these new provisions have been renumbered §§ 2-451-2-455, as set forth herein.

Sec. 2-451.1. Definitions.

Artist means a practitioner of the arts whose objective is to create original works of art and is generally recognized as accomplished by others in his or her field.

Permanent artwork means visual artwork including, but not limited to, a fresco, mosaic, sculpture, and other architectural embellishment of functional art created by a professional artist, artisan or craftsperson; and any work of visual art including, but not limited to, a drawing, painting, sculpture, mosaic, photograph, work of calligraphy or work of graphic art or mixed media. All such artwork that is designed to remain in place for one (1) year or longer is defined as permanent. All such permanent artwork described herein shall become the property of the Urban County Government upon placement.

Public spaces means any real property or improvements owned or leased by the Lexington-Fayette Urban County Government and open to the public including, but not limited to: courthouses, administrative office buildings, plazas, rights-of-way and parks.

(Ord. No. 057-2022, § 2, 6-23-22)

Sec. 2-452. Membership.

(a) The commission shall consist of sixteen (16) appointed members.

(b) The appointed members shall be residents of Fayette County and shall have demonstrated an interest in the arts and the effect of same on communities and individual lives. They shall be appointed by the mayor, subject to confirmation by the urban county council, from the following:

(1) Two (2) architects or design professionals;

(2) Three (3) professional artists, with at least one (1) possessing public art experience;

(3) Two (2) arts administration professionals;

(4) One (1) representative of the Lexington-Fayette County business community;

(5) One (1) representative of the Lexington-Fayette Urban County Government;

(6) One (1) representative from the community at large;

(7) One (1) representative from the Lexington Convention and Visitors Bureau;

(8) One (1) member of the Lexington-Fayette Urban County Council;

(9) One (1) representative from the Office of the Urban County Mayor;

(10) One (1) licensed civil engineer;

(11) One (1) landscape architect; and

(12) A representative from LexArts, who shall be a non-voting, ex officio member.

(Ord. No. 203-2002, § 1, 7-16-02; Ord. No. 54-2018, § 1, 8-30-18; Ord. No. 24-2019, § 1, 4-11-19; Ord. No. 057-2022, § 3, 6-23-22)

Sec. 2-453. Terms.

(a) Members of the commission shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner:

Two (2) members shall be appointed for one (1) year; Three (3) members shall be appointed for two (2) years;

Three (3) members shall be appointed for three (3) years; and Three (3) members shall be appointed for four (4) years.

(b) Vacancies in the membership shall be filled for an unexpired term in the manner prescribed for the original appointment.

(c) No member who has served two (2) consecutive four-year terms may succeed himself until the lapse of twelve (12) months from the end of said consecutive terms.

(d) A member of the commission shall be removed only by a majority vote of the urban county council, and only for cause.

(Ord. No. 203-2002, § 1, 7-16-02; Ord. No. 72-2018, § 1, 10-11-18; Ord. No. 24-2019, § 2, 4-11-19)

Sec. 2-454. Officers; rules; quorum; meetings.

(a) The officers of the commission shall consist of a chair and a vice-chair, and other officers elected from the membership as set forth in the bylaws. They shall take office at the first meeting of the commission after their election. The duties of the officers shall be as specified in the bylaws. The commission shall determine its own rules and order of business and so provide for keeping a record of its proceedings.

(b) A majority of the voting members of the commission shall constitute a quorum for transaction of business at any meeting of the commission. The acts of a majority of those voting members present at any regular or special meeting of the commission shall constitute the acts of the commission.

(c) The commission shall meet at a minimum on a quarterly basis at a date, place and time to be determined by the commission. All meetings shall be open to the public in a manner consistent with the Kentucky Open Meetings Act.

(d) Special meetings may be called by the chair of the commission or when a majority of the members of the commission requests a special meeting. At least twenty-four (24) hours notice of any special meeting shall be given. All special meetings shall be open meetings held and noticed in compliance with the Kentucky Open Meetings Act.

(e) The day-to-day responsibilities of running the business of the commission will be undertaken by a staff person in the office of the mayor.

(Ord. No. 203-2002, § 1, 7-16-02; Ord. No. 54-2018, § 2, 8-30-18; Ord. No. 24-2019, § 3, 4-11-19; Ord. No. 057-2022, § 4, 6-23-22)

Sec. 2-455. Duties.

The commission shall, as permitted by law:

(1) Adopt bylaws which are not inconsistent with this article;

(2) Make recommendations to the mayor and the urban county council on the development, selection, acquisition, funding, placement, maintenance and conservation of public art and public art events by the urban county government, consistent with the Public Art Master Plan, including the use of the Percent for Art Fund;

(3) Review applications and proposals for permanent artwork in public spaces pursuant to criteria identified herein;

(4) Advise the department of general services, division of risk management, other appropriate urban county government divisions, and the councilmember in whose district artwork is proposed to be placed at the time a proposal is received. Further, any work of art requiring extraordinary operation or maintenance expenses shall receive approval prior to placement and installation from the commissioner of the department of general services;

(5) Promulgate rules and regulations consistent with the Public Art Master Plan and this article that are approved by the Urban County Council, including, but not limited to, 1) a selection process and selection criteria for the approval of artwork for public spaces from applications by external sources, and 2) the process and criteria for making recommendations for the acquisition, funding, and placement of public art by the urban county government from the commission, to facilitate the implementation of its responsibilities hereunder;

(6) Ensure that the interaction of the artwork and the function of the public space will be compatible;

(7) Recommend purchase of works of art or commission of the design;

(8) Make recommendations regarding the design, execution and/or placement of works of art; and

(9) Provide information and make recommendations on operation or maintenance expenses associated with particular art or a particular location and the interaction of art work with the function of its location, and provide for such artwork and installation that will not impede such function.

(Ord. No. 203-2002, § 1, 7-16-02; Ord. No. 057-2022, § 5, 6-23-22)

Sec. 2-455.1. Code of ethics.

All members of the commission shall be subject to the Code of Ethics contained in Article 16 of the Urban County Charter, and agree to comply with all safety and loss policies of the Urban County Government.

(Ord. No. 057-2022, § 5, 6-23-22)

Sec. 2-456. Commission authorized to proceed.

The commission shall be appointed and authorized to proceed upon the adoption by the urban county council of an ordinance or resolution approving the funding mechanism for the public art program.

(Ord. No. 314-2002, § 1, 12-5-02)

Article XLIII

Access Lexington Commission[1]

Sec. 2-457. Created.

A commission is hereby created which shall be known as the "Access Lexington Commission."

(Ord. No. 364-2006, § 1, 12-7-06; Ord. No. 23-2016, § 1, 2-18-16; Ord. No. 012-2023, § 2, 2-9-23)

Sec. 2-458. Membership.

(a) The commission shall consist of nineteen (19) members, which shall be appointed by the mayor, subject to confirmation by the council.

(b) The nineteen (19) members shall be representatives of the following:

(1) Two (2) ex-officio members from the Lexington-Fayette Urban County Council;

(2) Four (4) members from organizations or individuals representing people with specific disabilities;

(3) One (1) member representing the business community;

(4) One (1) member representing a regional college or university;

(5) One (1) member representing rehabilitation professionals;

(6) One (1) member representing a public transportation agency;

(7) Two (2) members from employment and/or education advocacy organizations;

(8) Two (2) members from the community at large;

1. **Editor's note(s)**—Ord. No. 012-2023, §§ 2-5, adopted February 9, 2023, renamed art. XLIII from "Commission for People with Disabilities" to "Access Lexington Commission."

(9) One (1) ex-officio member shall be the ADA coordinator for LFUCG, or their designee;

(10) One (1) ex-officio member shall be the director of building inspection, or their designee;

(11) One (1) ex-officio member shall be the commissioner of social services, or their designee;

(12) One (1) ex-officio member shall be the commissioner of public safety, or their designee; and

(13) One (1) ex-officio member shall be either the commissioner of environmental quality and public works or the director of the division of planning, or their designee.

(Ord. No. 364-2006, § 1, 12-7-06; Ord. No. 151-2012, § 1, 11-29-12; Ord. No. 130-2014, § 1, 10-9-14; Ord. No. 12-2023, § 3, 2-9-23)

Sec. 2-459. Term.

The members of the commission, other than ex-officio members, shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered as provided in Section 7.02 of the Charter. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. Any member may be reappointed for additional terms. The membership of the ex-officio members shall be deemed to have terminated upon their leaving office or employment.

(Ord. No. 364-2006, § 1, 12-7-06; Ord. No. 012-2023, § 4, 2-9-23)

Sec. 2-460. Officers.

The commission shall have a chairperson and a vice-chairperson elected by its membership to serve for terms of two (2) years. They shall take office at the first meeting of the commission. The vice-chairperson shall preside in the absence of the chairperson. The commission shall determine its own rules and order of business and shall provide for keeping record of its proceedings.

(Ord. No. 364-2006, § 1, 12-7-06; Ord. No. 130-2014, § 2, 10-9-14; Ord. No. 91-2019, § 1, 11-14-19)

Sec. 2-461. Quorum.

A majority of the commission shall constitute a quorum for transaction of business at any meeting of the commission. The acts of a majority of those members present at any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 364-2006, § 1, 12-7-06)

Sec. 2-462. Meetings.

The commission shall meet in regular public session at least six (6) times a year, at a time and place designated by it. Special meetings may be called by the chairperson or a majority of the members of the commission.

(Ord. No. 364-2006, § 1, 12-7-06; Ord. No. 130-2014, § 3, 10-9-14)

Sec. 2-463. Duties and functions of the commission.

The commission shall:

(a) Advise the mayor and the council on issues of access, representation, employment, housing and quality of life affecting people with disabilities and their families.

(b) Serve as a resource for people with disabilities and their families to express concerns and solutions regarding issues affecting them.

(c) Publicize the role of the commission for people with disabilities and the resources available to assist people with disabilities, employers, housing representatives, business owners, engineers and architects, and others who have a role in bettering the life of Lexington-Fayette County residents.

(d) Promote awareness to the general public of the capabilities, needs and desires of people with disabilities.

(e) Publicly recognize the efforts of employers, businesses, schools, organizations, individuals, and others who have demonstrated outstanding support of programs and services for people with disabilities.

(f) Serve as advocate for accessibility issues and implementation of plans and projects to improve services for people with disabilities.

(g) Advise urban county departments and divisions on policy matters which affect the daily lives of people with disabilities, especially with regard to public facilities.

(Ord. No. 364-2006, § 1, 12-7-06; Ord. No. 23-2016, § 2, 2-18-16; Ord. No. 012-2023, § 5, 2-9-23)

Article XLIV

Corridors Commission

Sec. 2-464. Created and purpose.

A commission is hereby created which shall be known as the "corridors commission." It shall be the purpose of the corridors commission to assess the major roads of Lexington-Fayette County, especially the major and minor arterials, regarding but not limited to aesthetic qualities, viewsheds, landscaping, fencing, signage, litter control, bike and pedestrian considerations and other elements the commission may deem appropriate.

(Ord. No. 137-2009, § 1, 7-2-09; Ord. No. 40-2015, § 1, 4-30-15)

Sec. 2-465. Membership.

The Commission shall consist of thirteen (13) voting members. Of these members, one (1) member shall be a district councilmember representing either the first, second or sixth district; one (1) member shall be a district councilmember representing either the fourth, seventh or eighth district; one (1) member shall be a district coun-

cilmember representing either the ninth, tenth or twelfth district; one (1) member shall be a district councilmember representing either the third, fifth or eleventh district; one (1) member shall be an at-large councilmember; three (3) members shall be from the community at-large; one (1) of the community at-large members shall be a representative of the Fayette County Neighborhood Council; one (1) member shall be a representative of the Tree Board; one (1) member shall be a representative of the Lexington Council Garden Clubs; one (1) member shall be a representative of District Seven of the Kentucky Transportation Cabinet; one (1) member shall be representative of Bluegrass Greensource; one (1) member shall be a representative from the utility industry. There shall be seven (7) members in a non-voting capacity: one (1) member representing alternative modes of transportation; one (1) member representing the MPO staff; the urban forester; one (1) member shall be a representative of District Seven of the Kentucky Transportation Cabinet; one (1) member shall be from the office of the Commissioner of General Services or a senior designee; one (1) member shall be from the office of the Commissioner of Environmental Quality and Public Works or a senior designee; and one (1) member representing the Complete Streets Manager. The members shall be appointed by the Mayor subject to confirmation by the Urban County Council. The members of the Commission shall serve without compensation but shall be reimbursed for expenses necessarily incurred in the performance of their duties.

(Ord. No. 137-2009, § 1, 7-2-09; Ord. No. 145-2012, § 1, 11-15-12; Ord. No. 40-2014, § 1, 4-24-14; Ord. No. 153-2014, § 1, 12-4-14; Ord. No. 6.8-2019, § 1, 9-12-19; Ord. No. 020-2025, § 1, 3-20-25)

Sec. 2-466. Term.

All commission members shall serve four (4) years from the date of appointment provided that the terms shall be staggered in the manner required by Section 7.02 of the Urban County Charter. Vacancies shall be filled for an unexpired term in the manner prescribed for the original appointment. Any commission member may be reappointed for an additional term. No commission member shall serve more than two (2) consecutive full terms, and can be reappointed after a lapse of twelve (12) months from the end of the second consecutive full term.

(Ord. No. 137-2009, § 1, 7-2-09)

Sec. 2-467. Officers.

The officers of the commission shall consist of a chairperson who shall be a councilmember appointed by the mayor and a vice-chairperson who shall be a councilmember appointed by the chairperson.

(Ord. No. 137-2009, § 1, 7-2-09)

Sec. 2-468. Quorum.

A majority of the voting appointed members of the commission shall constitute a quorum for the transaction of business at any meeting of the commission.

(Ord. No. 137-2009, § 1, 7-2-09; Ord. No. 230-2009, § 1, 11-5-09)

Sec. 2-469. Meetings.

Regular meetings shall be held at least once quarterly and special meetings may be held as specified in the by-laws. All meetings shall be open to the public in the manner consistent with KRS 61.805 through 61.810. Full and complete minutes of all meetings and records of all proceedings, including number of votes for and against each motion and the record of the vote of each member, shall be kept and made available for public inspection.

(Ord. No. 137-2009, § 1, 7-2-09)

Sec. 2-470. By-laws.

The commission shall adopt its own by-laws, rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 137-2009, § 1, 7-2-09)

Sec. 2-471. Staff.

The Urban County Government shall provide staff as needed.

(Ord. No. 137-2009, § 1, 7-2-09)

Sec. 2-472. Powers and duties.

The powers and duties of the commission include the following:

Any waivers that the corridors committee (now corridors commission) is authorized to grant by separate ordinance and resolution shall also require approval of the council.

Review and assess the corridors along major roads, major and minor arterials in Lexington-Fayette County regarding but not limited to aesthetic qualities, landscaping, fencing, signage, litter control, bike and pedestrian considerations and other elements the commission may deem appropriate.

Make specific recommendations to the mayor and council on issues before the commission.

(Ord. No. 137-2009, § 1, 7-2-09)

Article XLV

Affordable Housing Governing Board

Sec. 2-473. Created.

A board is hereby created which shall be known as the "Affordable Housing Governing Board".

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-474. Members.

The Board shall consist of thirteen (13) members, which shall be appointed by the mayor subject to confirmation by the council. The thirteen (13) members shall consist of two (2) members from the Lexington-Fayette Urban County Council; each of the remaining members shall have extensive experience in one or more of the following areas: homelessness and emergency housing; social and support services; affordable housing management; grants administration and/or philanthropic giving; housing construction; commercial or mixed-use development; property leasing or rental housing; real estate management; financial management, capital markets, or affordable housing financing. Additionally, to the extent possible, the composition of the Board shall be representative of the social, economic, cultural, ethnic and racial groups which compose the population of Lexington-Fayette County.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-475. Terms.

For all appointed members of the Board, the term shall be four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: six (6) members shall be appointed for four (4) years and five (5) members shall be appointed for two (2) years. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. No member may serve more than two (2) consecutive four (4) year terms.

The membership of the Urban County Council member shall be deemed to have terminated upon his/her leaving office as a member of the Urban County Council.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-476. Chairperson and vice-chairperson.

The Board shall have a chairperson and a vice-chairperson elected by its membership to serve for a term of one (1) year. They shall take office at the first meeting of the Board. The vice-chairperson shall preside in the absence of the chairperson. No member may serve as chairperson or vice chairperson for more than two (2) consecutive full (1 year) terms without at least one (1) year between terms. The Board shall determine its own rules and order of business and shall provide for keeping record of its proceedings.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-477. Quorum.

A majority of the Board shall constitute a quorum for transaction of business at any meeting of the Board. The acts of a majority of a quorum present at any regular or special meeting of the Board shall be the acts of the Board.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-478. Meetings.

The Board shall meet in regular public session, at least four (4) times within a calendar year, at a time and place designated by it. Special meetings may be called by the chairperson or a majority of the members of the Board.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-479. Duties.

(1) The Board shall:

(a) Establish policies and procedures for the operation and management of the Affordable Housing Fund, and any other moneys allocated to support affordable housing.

(b) Oversee financial and administrative actions of the Affordable Housing Fund, and any other moneys allocated to support affordable housing.

(c) Monitor and evaluate the performance of the Affordable Housing Fund, and any other moneys allocated to support affordable housing.

(d) Establish annual funding goals and priorities for housing preservation, production, and provision utilizing Affordable Housing Funds, and any other moneys allocated to support affordable housing.

(e) Annually review, rank, prioritize, and approve funding proposals from eligible applicants.

(f) Review housing studies and housing needs assessments on an on-going basis, including a formal needs assessment at least once every five (5) years and establish funding priorities based on identified needs.

(2) The Board may:

(a) Establish a Technical Assistance Advisory Group to assist the Board and staff with evaluation of funding proposal feasibility and underwriting.

(Ord. No. 101-2014, § 1, 9-11-14; Ord. No. 109-2020, § 1, 11-19-20; Ord. No. 028-2023, § 3, 3-23-23)

Sec. 2-480. Affordable housing fund management.

The day-to-day management of the Affordable Housing Fund shall be entrusted by the Board to the Office of Affordable Housing. The Office of Affordable Housing shall also provide day-to-day management of any other moneys that the Urban County Council allocates for affordable housing. This allocation may include additional funds as allocated by the Council, and/or moneys received from gifts, grants or state or federal funds. The initial staffing for the Office of Affordable Housing shall consist of one (1) staff person: Affordable Housing Manager. The personnel costs required to administer the program shall be supported by the revenues of the Affordable Housing Fund. Administrative costs shall be limited to no more than ten (10) percent of the fund's revenues, with the initial year targeted at no more than five (5) percent.

The Office of Affordable Housing shall:

1) Serve as the point of contact for affordable housing within the Urban County Government.
2) Engage stakeholders in the community regarding affordable housing and affordable housing programs.
3) Advertise and promote affordable housing programs and funding availability.
4) Develop program materials and provide technical assistance to potential applicants.
5) Evaluate and rank all funding proposals.
6) Conduct research on overall affordable housing needs in Lexington Fayette Urban County.
7) Coordinate with the Division of Planning, the Division of Grants and Special Programs, the Office of Homelessness Intervention and Prevention, and other divisions and outside agencies on affordable housing solutions.
8) Submit annual reports on the activities of the Affordable Housing Fund to the Mayor, the Urban County Council, and the community.
9) Monitor implementation and compliance of projects and coordinates with other divisions and outside agencies as necessary for inspections, verification of rent restrictions, loan repayments, and other aspects of compliance monitoring.
10) Work with the Office of Homelessness Prevention and Intervention and Division of Grants and Special Programs to develop a 5-year strategic plan to address affordable housing.
11) Perform other duties as assigned.

(Ord. No. 101-2014, § 1, 9-11-14; Ord. No. 109-2020, § 2, 11-19-20; Ord. No. 028-2023, § 3, 3-23-23)

Sec. 2-481. Conflict of interest.

No member of the Board shall participate in the discussion of or vote upon any matter before the Board regarding an organization of which the board member or a family member is a trustee, director, officer, or board member; a consultant or contractor to the organization; actively involved in the formulation of the item before the board; or an employee of the organization. In addition, no financial award made by the Board to an organization shall include funds designated to fund any part of the compensation of an active board member, or an individual who served as a member of the Board within the preceding six (6) years.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-482. Fund created.

A fund is hereby created which shall be known as the "Affordable Housing Fund". The fund shall be governed by the Board, as set out in Sections 2-473 to 2-483.

(Ord. No. 101-2014, § 1, 9-11-14)

Sec. 2-483. Purpose of fund.

(A) The purpose of the fund is to leverage public investment to preserve, produce, and provide safe, quality, affordable housing. "Affordable housing," for purposes of this ordinance, means housing that requires families or individuals to pay no more than thirty (30) percent of their gross household income for housing and housing-related costs (such as utilities).

(B) The Board may accept applications for funding from the Fund from non-profit organizations, for-profit organizations, units of local government, or a public housing authority. Funding may be provided in the form of grants or loans.

(C) The Fund may be used to fund the acquisition of property, site development, construction or rehabilitation of housing (including rental housing), permanent financing costs (including down payment and closing costs), construction financing costs, reduction or refinancing of existing debt, matching funds for other grants, technical assistance directly related to creating a housing project, developer fees (up to fifteen (15) percent of each project), administrative costs, permits, fees, taxes, and other soft costs associated with rental housing development, and/or project and tenant based rental assistance.

(D) Projects funded by the Fund shall be allocated for projects that serve households up to a maximum of eighty (80) percent of the area median income ("AMI"). The Board shall annually establish population targets based on AMI. Those targets shall reflect awareness of the need to ensure that a portion of services include those at fifty (50) percent of AMI, and those at thirty (30) percent of AMI.

(E) Any projects funded by the Fund shall include deed restrictions and financial penalties to ensure that projects are maintained as affordable housing for the term set forth in the agreement with the applicant.

(F) Any affordable housing development funded in whole or in part by the fund shall be inspected at least once per calendar year to ensure compliance with any affordable housing standards adopted by the Board, which may include, but are not limited to; building and property maintenance codes applicable in the Commonwealth of Kentucky or within Lexington-Fayette County, requirements for design-based security such as Secured by Design, and other standards as set forth by the Board or the Urban County Government.

(G) Any projects funded by the Fund that require building permits and other action by departments and divisions within the Urban County Government shall be entitled to expedited review and a waiver of the fees associated with these actions, to the extent allowable by law.

(H) Any unexpended balance of the Fund remaining at the close of a fiscal year shall not lapse but shall continue into the succeeding fiscal year for future eligible activities.

(I) All revenues recaptured from loans or unfulfilled grants shall be returned to the Fund for future use.

(J) The Fund may accept private gifts, grants, donations, or other contributions.

(Ord. No. 101-2014, § 1, 9-11-14; Ord. No. 100-2019, § 1, 12-3-19; Ord. No. 109-2020, § 3, 11-19-20)

Sec. 2-483.5. Neighborhood investment fund

A fund is hereby created to provide repayable loans, at zero (0) percent interest, for the purpose of leveraging private investment in the acquisition and rehabilitation of blighted structures, located in areas of Fayette County that are zoned for residential use and that have been vacant for at least one (1) year. The goal of the fund is to provide more affordable housing. The Affordable Housing Governing Board shall oversee the use of this fund in conformity with section 2-479, and the Office of Affordable Housing shall provide day-to-day management of the fund in conformity with section 2-480. For the purposes of determining eligibility, "blighted" shall have the same definition as that provided in chapter 12, article IV, section 12-81.

(Ord. No. 028-2023, § 2, 3-23-23)

Editor's note(s)—Ord. No. 028-2023, § 2, adopted March 23, 2023, set our provisions intended for use as §2-484. To avoid duplication of section numbers and at the editor's discretion, these provisions have been included as § 2-483.5.

Article XLVI

Homelessness Prevention and Intervention Board

Sec. 2-484. Created.

A board is hereby created which shall be known as the "Homelessness Prevention and Intervention Board."

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-485. Members.

The Board shall consist of thirteen (13) members, which shall be appointed by the mayor subject to confirmation by the council. The thirteen (13) members shall consist of two (2) members from the Lexington-Fayette Urban County Council and at least one (1) homeless or formerly homeless individual. Each of the remaining members must include representatives from relevant organizations and projects serving homeless subpopulations, such as persons with substance use disorders; persons with HIV/AIDS; veterans; the chronically homeless; families with children; unaccompanied youth; the seriously mentally ill; and victims of intimate partner violence. One (1) board member may represent the interests of more than one homeless subpopulation. Additionally, to the extent possible, the composition of the Board shall be representative of the social, economic, cultural, ethnic and racial groups which compose the population of Lexington-Fayette County.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-486. Terms.

For all appointed members of the Board, the term shall be four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: six (6) members shall be

appointed for four (4) years and five (5) members shall be appointed for two (2) years. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. No member may serve more than two (2) consecutive four (4) year terms.

The membership of the Urban County Council members shall be deemed to have terminated upon his/her leaving office as a member of the Urban County Council.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-487. Chairperson and vice-chairperson.

The Board shall have a chairperson and a vice-chairperson elected by its membership to serve for a term of one (1) year. They shall take office at the first meeting of the Board. The vice-chairperson shall preside in the absence of the chairperson. No member may serve as chairperson or vice chairperson for more than two (2) consecutive one (1) year terms without at least one (1) year between terms. The Board shall determine its own rules and order of business and shall provide for keeping record of its proceedings.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-488. Quorum.

A majority of the Board shall constitute a quorum for transaction of business at any meeting of the Board. The acts of a majority of a quorum present at any regular or special meeting of the Board shall be the acts of the Board.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-489. Meetings.

The Board shall meet in regular public session, at least four (4) times within a calendar year, at a time and place designated by it. Special meetings may be called by the chairperson or a majority of the members of the Board.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-490. Duties.

1) Make recommendations to the Office of Homelessness Prevention and Intervention.

2) Develop policies and procedures for the operation and management of the Innovative and Sustainable Solutions to Homelessness Fund ("the Fund") and its programs.

3) Recommend annual funding goals and priorities for the Fund.

4) Review funding proposals from eligible applicants and determine rank and prioritization of eligible projects requesting support from the Fund.

5) Perform needs assessments and planning activities and compile pertinent data consistent with the on-going planning activities of existing governmental departments and non-profit agencies. The studies and needs

assessments can be paid for from the Fund and are not included in Administrative costs. Needs assessments and planning should include outreach, engagement and assessment; shelter, housing and supportive services; and homelessness prevention strategies.

6) Review and approve annual reports developed by the Office of Homelessness Prevention and Intervention on the activities of the Innovative and Sustainable Solutions to Homelessness Fund prior to submission to the Mayor, the Urban County Council and the community.

7) In conjunction with the Office of Affordable Housing and other divisions within the Urban County Government re-assess community needs on an ongoing basis by conducting, at least once every (5) five years, a formal homelessness needs assessment either alone or in collaboration with other similar assessments.

8) Establish standing and ad hoc committees as needed and appropriate to perform the functions of the Board.

(Ord. No. 102-2014, § 1, 9-11-14; Ord. No. 016-2021, § 1, 3-18-21)

Sec. 2-491. Management of fund.

The day-to-day management of the Innovative and Sustainable Solutions to Homelessness Fund shall be entrusted by the Board to the Office of Homelessness Prevention and Intervention.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-492. Conflict of interest.

No member of the Board shall participate in the discussion of or vote upon any matter before the Board regarding an organization of which the board member or a family member is a trustee, director, officer, or board member; a consultant or contractor to the organization; actively involved in the formulation of the item before the board; or an employee of the organization. In addition, no financial award made by the Board to an organization shall include funds designated to fund any part of the compensation of an active board member, or an individual who served as a member of the Board within the preceding six (6) years.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-493. Fund created.

A fund is hereby created which shall be known as the "Innovative and Sustainable Solutions to Homelessness Fund". The Fund shall be governed by the Board, as set out in Sections 2-484 to 2-494.

(Ord. No. 102-2014, § 1, 9-11-14)

Sec. 2-494. Purpose of fund.

(A) The purpose of the Fund is to receive and disburse monies in support of the Office of Homelessness Prevention and Intervention specifically for the implementation of innovative and sustainable solutions for homelessness in Lexington Fayette Urban County.

(B) The funds shall be used for projects, services, facilities, equipment, staffing, or such other expenditures which may prevent or reduce homelessness.

(C) Funding may be provided in the form of grants with priority given to projects that leverage additional funding sources and which are one-time or present a plan for sustaining operations beyond the period of grant funding.

(D) The Fund may provide financial support for a wide variety of activities that are consistent with Sec. 2-494(A) and 2-494(B) of this ordinance, including, but not limited to: supportive services, acquisition of property, site development, new construction, rehabilitation, matching funds for other grants, technical assistance, administrative costs, rental assistance, coordinated intake/assessment, and supporting participation in the community's Homeless Management Information System (HMIS).

(E) All projects supported by the Fund shall be non-supplantive and the fund is not intended to support ongoing operations of shelters or other entities.

(F) Applications for funding may be accepted from non-profit organizations.

(G) Any unexpended balance of the Fund remaining at the close of a fiscal year shall not lapse but shall continue into the succeeding fiscal year for future eligible activities.

(H) All interest earned by the Fund or revenues recaptured from incomplete or noncompliant grants shall be returned to the Fund for future use.

(I) The Fund may accept private gifts, grants, donations, or other contributions.

(Ord. No. 102-2014, § 1, 9-11-14)

Article XLVII

Mayor's International Affairs Advisory Commission

Sec. 2-495. Created.

(a) A commission is hereby created which shall be known as the "Mayor's International Affairs Advisory Commission".

(b) The Commission, consisting of individuals with experience and expertise in international affairs in both the public and private sectors, is established for the purpose of providing information and advice to the Mayor and the Urban County Council concerning issues affecting foreign-born residents of Lexington-Fayette County as well as international issues that affect the community-at-large.

(Ord. No. 61-2015, § 1, 6-11-15)

Sec. 2-496. Membership.

The commission shall consist of twenty-eight (28) members, twenty-two (22) of which shall be appointed by the Mayor, subject to confirmation by a majority of the council. The twenty-two (22) appointed members shall consist of two (2) members from the Lexington-Fayette Urban County Council; Fifteen (15) members shall be selected from Lexington-Fayette County foreign-born residents who shall be from and represent the following international geographic areas: three (3) representatives from Africa; three (3) representatives from Asia; three (3) representatives from Europe; three (3) representatives from the Americas; and three (3 representatives from the Middle East. Five (5) members shall be from the community-at-large, from academia or other organizations which specialize in or have specific interests or competencies in global business, immigration, refugees, or international affairs. Six (6) members shall be the following urban county government officers: the chief administrative officer or designee, the commissioner of social services or designee, the commissioner of general services or designee, the commissioner of public safety or designee, the chief development officer or designee and the Multicultural Affairs Coordinator. The six (6) members from the urban county government shall be non-voting ex-officio members.

(Ord. No. 61-2015, § 1, 6-11-15; Ord. No. 030-2021, § 1, 4-22-21)

Sec. 2-497. Terms of office.

The members of the commission, other than ex-officio members, shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: Eight (8) members shall be appointed for two (2) years and nine (9) members shall be appointed for four (4) years. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment. Members of the commission may only serve two (2) consecutive terms. Members of the commission who have served two (2) consecutive full terms shall not be able to succeed themselves until the lapse of twelve (12) months from the end of said term. The membership of the two (2) urban county council members and the other ex-officio members shall be deemed to have terminated upon their leaving office as members of the urban county council or as officers of the urban county government.

(Ord. No. 61-2015, § 1, 6-11-15)

Sec. 2-498. Quorum.

A majority of the voting members of the commission shall constitute a quorum for transaction of business at any meeting of the commission. The acts of the majority of those present at any regular or special meeting of the commission shall be the acts of the commission.

(Ord. No. 61-2015, § 1, 6-11-15)

Sec. 2-499. General powers.

The commission may enter into contracts, expend such funds as may become available to it, and adopt bylaws, rules and regulations as are necessary to carry out its duties and purposes set forth in this article. The commission shall not acquire any interest in real property without the expressed prior consent of the mayor and the urban county council.

(Ord. No. 61-2015, § 1, 6-11-15)

Sec. 2-500. Duties.

The commission shall, as permitted by law:

(1) Promote cultural understanding, education, civic engagement and cooperation;

(2) Provide international expertise, advocacy and resources for the benefit of the greater community;

(3) Lend vision, guidance, and support to the Lexington Global Engagement Center;

(4) Assess the availability, accessibility, and effectiveness of services appropriate to enhance and provide the necessary quality of life of foreign-born residents utilizing input from departments and divisions of the urban county government and the private sector;

(5) Foster international community relationships and inclusion to aid the integration and adaptation of immigrants and minorities into American culture and society being inclusive of local cultures and the community-at-large;

(6) Review and make recommendations on all aspects of the urban county budget pertaining to the duties and purpose of the commission;

(7) Apply for, receive and disburse funds and contracts with any state, federal, public or private agency for the purpose of carrying out its duties as set forth herein, utilizing staff made available to or employed by it;

(8) Review, provide technical assistance, recommend, stimulate and/or endorse projects, opportunities and programs in both the public and private sector which have a bearing on international affairs, services or persons;

(9) Engage local, state, national and international leaders and institutions to network and build mutual respect and understanding among the many nations represented in the Lexington-Fayette county community;

(10) Solicit and receive contributions, prepare surveys and studies, conduct conferences, sponsor educational/promotional programs related to services and needs of international persons, and engage in other activities appropriate to the goals of the Commission.

(Ord. No. 61-2015, § 1, 6-11-15)

Sec. 2-501. Reports; no power to operate programs.

The commission shall regularly report to the mayor and the urban county council. The commission shall not have the power to directly operate any program.

(Ord. No. 61-2015, § 1, 6-11-15)

Secs. 2-502--2-505. Reserved

Article XLVIII

Commission on Veterans' Affairs

Sec. 2-506. Created.

(a) A commission is hereby created which shall be known as the "Commission on Veterans' Affairs."

(b) The Commission is created for the purpose of establishing an integrated support system for veterans and their families by enhancing services, resources, and initiatives, strengthening communication across organizational lines, and promoting veteran friendly community relations in Lexington-Fayette County.

(Ord. No. 156-2017, § 2, 10-26-17)

Sec. 2-507. Membership.

(a) The Commission shall consist of nineteen (19) members, which shall be appointed by the mayor and subject to confirmation by a majority of the Lexington-Fayette Urban County Council.

(b) The nineteen (19) members shall be comprised as follows:

(1) Three (3) ex-officio members shall be from the Lexington-Fayette Urban County Council;

(2) One (1) member shall be a veteran of the United States Army;

(3) One (1) member shall be a veteran of the United States Navy;

(4) One (1) member shall be a veteran of the United States Air Force;

(5) One (1) member shall be a veteran of the United States Coast Guard;

(6) One (1) member shall be a veteran of the United States Marine Corps;

(7) One (1) member shall be a veteran and a member of the Disabled American Veterans Organization;

(8) Five (5) members shall be affiliated with Veterans Service Organizations;

(9) One (1) ex-officio member shall be the Commissioner of the Lexington-Fayette Department of Public Safety, or his/her designee;

(10) One (1) ex-officio member shall be the Chief Administrative Officer of the Lexington-Fayette Urban County Government, or his/her designee;

(11) One (1) member shall be an inductee to the Kentucky Veterans Hall of Fame;

(12) Two (2) members shall be from the Lexington-Fayette County community-at-large.

(c) Members of the Commission shall serve without compensation, but may be reimbursed for all actual and necessary expenses incurred within the limits of the funds appropriated by the Urban County Council in the annual budget.

(d) A member of the Commission shall be removed only by a majority of the Urban County Council.

(Ord. No. 156-2017, § 2, 10-26-17; Ord. No. 59-2018, § 1, 9-13-18; Ord. No. 23-2019, § 1, 4-11-19)

Sec. 2-508. Terms of office.

(a) Appointed members of the Commission shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered, as required by section 7.02 of the Urban County Charter, in the following manner:

(1) Ten (10) members shall be appointed for four (4) years;

(2) Nine (9) shall be appointed for two (2) years.

(b) Vacancies shall be filled for the unexpired term in the matter prescribed for the original appointment.

(c) Members of the Commission may only serve two (2) consecutive terms. Members of the Commission who have served two (2) consecutive terms shall not be able to succeed themselves until the lapse of twelve (12) months from the end of said term.

(d) The terms of ex-officio members shall be deemed to have terminated upon their leaving office as members of the Urban County Council or as officers or employees of the Urban County Government.

(Ord. No. 156-2017, § 2, 10-26-17)

Sec. 2-509. Officers.

The Officers of the Commission shall consist of a chairperson, a vicechairperson, and any other Officer, to be designated by vote of the Commission. The vice-chairperson shall preside in the absence of the chairperson.

(Ord. No. 156-2017, § 2, 10-26-17)

Sec. 2-510. Meetings.

(a) The Commission shall meet at least six (6) times a year, at a date, place, and time to be determined by the Commission.

(b) Special meetings may be called by the chairperson or a majority of the members of the Commission.

(c) The Commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings. Full and complete minutes of all meetings and records of all proceedings, including the number of votes for and against each motion and the record of the vote of each member, shall be kept and made available for public inspection.

(d) All meetings shall be open to the public in a manner consistent with the Open Meetings Act.

(Ord. No. 156-2017, § 2, 10-26-17)

Sec. 2-511. Quorum.

A majority of the members of the Commission shall constitute a quorum for the transaction of business at any meeting of the Commission. The acts of a majority of those members present at any regular or special meeting shall be the acts of the Commission.

(Ord. No. 156-2017, § 2, 10-26-17)

Sec. 2-512. Duties.

The powers and duties of the Commission shall include the following, as permitted by law:

(1) Evaluate and recommend programs, policies, and practices to the Urban County Council designed to improve benefits, opportunities, and recognition of veterans and their families in the Lexington community;

(2) Advise Urban County departments and divisions on policy matters which affect the daily lives of veterans and their families.

(3) Facilitate a comprehensive community network to connect veterans and their families to existing benefits and opportunities in the Lexington community;

(4) Share information and resources to create avenues for veterans to communicate with each other;

(5) Plan and develop community events to raise awareness and support for veterans and their families.

(Ord. No. 156-2017, § 2, 10-26-17)

Article XLIX

Industry Authority

Sec. 2-513. Created; purpose.

(1) Pursuant to KRS 154.50-301, et seq. (the "Local Industrial Development Authority Act" or the "Act"), the Lexington-Fayette Urban County Government is authorized to create a local non-profit industrial development authority for the purpose of aiding in the acquisition, retention and development of land for industrial and commercial purposes in Fayette County; to aid in the development and promotion of industrial sites, parks and subdivisions for accommodating industrial and commercial needs; and to promote and stimulate the acquisition, retention and development of land for industrial and commercial purposes in Fayette County by other local development organizations, both public and private.

(2) Pursuant to the Act, the Lexington-Fayette Urban County Government, through its urban county council, hereby authorizes and directs the formation of a non-profit industrial development authority to be named the "Lexington-Fayette Urban County Industrial Authority (the "industrial authority" or "authority"), which is a body politic and corporate, with the usual corporate attributes, and in its corporate name may sue and be sued, contract and be contracted with, and do all things reasonable or necessary to carry out the duties prescribed by the Act and this article.

(Ord. No. 87-2018, § 1, 11-1-18)

Sec. 2-514. Powers and duties.

The authority shall have the purpose, duties and powers provided in KRS 154.50-301 through 154.50-350, including, but not limited to:

(1) Acquiring, retaining and developing land for industrial and commercial purposes in Fayette County; aiding in the development and promotion of industrial sites, parks, and subdivisions to meet industrial and commercial needs in Fayette County.

(2) Encouraging the acquisition, retention, and development of land for industrial and commercial needs in Fayette County by other local development organizations, both public and private.

(3) Acquiring by contract, lease, purchase, gift, condemnation, or otherwise any real or personal property, or rights therein, necessary or suitable for establishing industrial sites, parks, or subdivisions. The authority may dispose of any real or personal property, or rights therein, which in the opinion of the authority are no longer needed to carry out the purposes of KRS 154.50-301 to 154.50-346.

The authority may lease, sell, or convey any or all industrial sites, parks, and subdivisions owned or optioned by it to any public or private organization, governmental unit, or industry for the purpose of constructing and/or operating any manufacturing, industrial, or commercial facility. Provided, however, that no sale or conveyance of any land shall be made to a private organization or industry without such organization or industry first having executed a written contract with the authority providing that if no actual construction of a manufacturing, industrial, or commercial facility, as set forth in the executed contract, is commenced within five (5) years, the organization or industry shall offer to reconvey the land, free and clear of liens and encumbrances, to the authority, and should the authority accept the offer of re-conveyance, it shall return to the organization or industry ninety-five (95) percent of the purchase price paid therefor.

(4) Eminent domain by and through the Lexington-Fayette Urban County Government and in accordance with the applicable state statute and laws.

(Ord. No. 87-2018, § 1, 11-1-18)

Sec. 2-515. Limitations of powers.

The authority's power is subject to the following:

(1) The authority shall not incur indebtedness in excess of its operating budget, which must be approved by the urban county council.

(2) The authority shall have a fiscal year from July 1 to June 30, with its first year to run from the time it is organized through the following June 30.

(3) The authority shall maintain business records of its management, operation, receipts, disbursements and acquisition and disposition of realty in the manner provided by KRS 154.50-336. The authority shall be subjected to annual audit as part of the Lexington-Fayette Urban County Government's audit.

(4) The authority shall prepare an operating budget for each fiscal year. The authority shall submit its proposed budget to the urban county council for review and approval not less than sixty (60) days prior to the commencement of the fiscal year.

(5) The authority shall operate consistent with public policies provided by:

(a) The comprehensive plan;

(b) Zoning designated to identify potential industrial and commercial sites and protect them against types of development that would lessen their attractiveness or their compatibility with surrounding uses; and

(c) Provision of adequate governmental facilities to serve industrial sites.

(Ord. No. 87-2018, § 1, 11-1-18)

Sec. 2-516. Appointment of members.

(1) The authority shall consist of eight (8) members appointed by the mayor. One (1) member of the Urban County Council shall serve as an ex officio, non-voting member of the authority.

(2) Pursuant to KRS 154.50-326, the initial terms of its members shall be staggered so that two (2) members are appointed for two (2) years; two (2) members are appointed for three (3) years; and three (3) members are appointed for four (4) years. All subsequent appointments shall be for four (4) year terms. Vacancies shall be for the unexpired term in the manner prescribed for in the original appointment.

(3) An authority member may be replaced by the mayor upon a showing to the mayor of that authority member's misconduct, including ineffective service, or upon conviction of a felony.

(4) The mayor shall appoint the members and designate the initial term to be served by each member on the authority, subject to the foregoing provisions.

(Ord. No. 87-2018, § 1, 11-1-18; Ord. No. 110-2020, § 1, 11-19-20)

Sec. 2-517. Officers; quorum; frequency of meetings; bylaws.

(1) The members of the authority shall elect such officers, hold such meetings and establish such rules and regulations as they deem necessary and proper to carry out the authority's functions under the Local Industrial Development Authority Act, KRS 154.50-301 through KRS 154.50-350. The authority shall adopt by-laws covering, among other appropriate matters, election of officers, including, at minimum, a chair, vice-chair, secretary and treasurer, hiring of staff, establishment of the place and time of regular meetings, which must occur at least once per year, the procedure for special meetings, compliance with open meetings and records requirements set out in KRS Chapter 61, standards of conduct for authority members and staff; and operation procedures for conducting authority business. The bylaws may be adopted or amended at any regular meeting or special meeting by a vote of at least a majority of the voting members.

(2) A majority of the membership shall constitute a quorum for conducting business at a regular or duly noticed special meeting. Meetings of the authority may be called by the chairman or by a majority of the members. In case of tie voting by the authority, the issue shall be deemed to have failed passage.

(3) The authority chair shall have supervisory authority over the authority director and staff.

(Ord. No. 87-2018, § 1, 11-1-18)

Sec. 2-518. Dissolution.

The urban county council may dissolve the authority by appropriate ordinance or resolution. Upon such dissolution, all funds, property and other assets held by the authority shall be delivered to the Lexington-Fayette Urban County Government. No dissolution, however, shall be effective until provision is made for all legal obligations of the authority.

(Ord. No. 87-2018, § 1, 11-1-18)

Article L

Racial Justice and Equity Commission

Sec. 2-519. Established.

(1) A commission is hereby created which shall be known as "Racial Justice and Equity Commission."

(2) The focus areas of the commission shall be:

a. Health Disparities;

b. Law Enforcement, Justice and Accountability;

c. Housing and Gentrification;

d. Racial Equity;

e. Education and Economic Opportunity.

(Ord. No. 063-2021, § 1, 7-6-21; Ord. No. 016-2024, § 1, 2-1-24)

Sec. 2-520. Membership.

The commission shall consist of fifteen (15) voting members appointed by the mayor and subject to confirmation by the urban county council.

(Ord. No. 063-2021, § 1, 7-6-21)

Sec. 2-521. Terms of members.

All members shall serve four (4) years from the date of appointment, provided that the term of the initial members shall be staggered in the following manner: eight (8) members shall be appointed for four (4) years and seven (7) members shall be appointed for two (2) years.

Vacancies shall be filled for the unexpired terms in the manner prescribed for the original appointment. Members may be appointed for two (2) consecutive terms. Members who have served two (2) consecutive full terms shall not be eligible to succeed themselves until the lapse of twelve (12) months from the end of said terms.

(Ord. No. 063-2021, § 1, 7-6-21)

Sec. 2-522. Meetings.

(1) The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(2) The commission shall adopt a meeting schedule, which sets forth the date, place and time for its regularly scheduled meetings.

(3) Meetings shall be in compliance with the Kentucky Open Meetings Act. Special meetings may be called by the chair or a majority of the members of the commission.

(4) Presiding officers for the commission shall consist of the chair and a vice-chair. The vice-chair shall preside in the absence of the chair. The initial chair and vice-chair shall be appointed by the mayor and shall serve a term of two (2) years. Thereafter, the chair and vice-chair shall be determined by a majority vote of the voting members of the commission and are eligible to serve two (2) consecutive one-year terms.

(Ord. No. 063-2021, § 1, 7-6-21)

Sec. 2-523. Quorum.

Eight (8) voting members shall constitute a quorum for the transaction of business at any meeting of the commission.

(Ord. No. 063-2021, § 1, 7-6-21)

Sec. 2-524. Facilities and staff.

(1) Within the limits of funds appropriated by the urban council in the annual budget, the urban county government shall provide the commission, either directly or by contract or agreement, with the facilities, materials, supplies and staff needed for the conduct of its business.

(2) The department of law, diversity officer and administrative staff from the office of the mayor shall serve as staff for the commission.

(Ord. No. 063-2021, § 1, 7-6-21)

Sec. 2-525. Reports.

Upon request by the mayor or the urban county council, the commission shall provide an activity report detailing its work.

(Ord. No. 063-2021, § 1, 7-6-21)

Sec. 2-526. Duties and powers.

(1) The commission shall not have the power to directly operate any program.

(2) The commission shall make recommendations and advise the mayor and urban council for purposes of developing racial justice and equity within the city.

(3) The commission shall set goals, develop strategies for reaching their goals, and create methods to measure progress towards their goals.

(4) The commission shall create an annual report detailing the effects and successes of their efforts and outlining a plan for the upcoming year.

(5) The commission shall engage with citizen groups for the purpose of soliciting community feedback.

(6) The commission may request information or assistance from departments and divisions of the government to assist the commission with its duties.

(Ord. No. 063-2021, § 1, 7-6-21; Ord. No. 016-2024, § 2, 2-1-24)

Article LI

Opioid Abatement Commission

Sec. 2-527. Established.

(1) A commission is hereby created which shall be known as the "Opioid Abatement Commission."

(2) The commission shall be charged with recommending appropriate uses for proceeds received by the Lexington-Fayette Urban County Government in any settlement, judgement, bankruptcy, or other manner of resolution of the National Opioid Litigation, or other moneys received from gifts, grants or state or federal funds. Hereafter, all funds referenced in this paragraph shall be referred to as the "Abatement Funds."

(3) The commission shall recommend uses related to opioid use disorder or any co-occurring substance use disorder or mental health issues based on criteria provided in applicable state law and the Memorandum of Understanding, entered between the Lexington-Fayette Urban County Government and the Commonwealth of Kentucky on approximately June 25, 2021.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-528. Membership.

The commission shall consist of thirteen (13) voting members, who shall be appointed by the mayor and confirmed by the urban county council. No voting member shall be an employee of the Lexington-Fayette Urban County Government, with the exception of the Chief of the Lexington Police Department, or whomever serves as the Chief's designee on the commission.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-529. Terms of membership.

All members shall serve for four (4) years from the date of appointment, provided that the term of the initial members shall be staggered in the following manner: Seven (7) members shall be appointed for four (4) years and 6 members shall be appointed for two (2) years.

Vacancies shall be filled for the unexpired terms in the manner prescribed for the original appointment. Members may be appointed for no more than two (2) consecutive full terms. Members who have served two (2) consecutive full terms shall not be eligible to succeed themselves until the lapse of twelve (12) months from the end of said terms.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-530. Meetings.

(1) The commission shall determine its own rules and order of business and shall provide for keeping a record of its proceedings.

(2) The commission shall meet no less than quarterly, and shall adopt a meeting schedule, which sets forth the date, place and time for its regularly scheduled meetings.

(3) All meetings shall be in compliance with the Kentucky Open Meetings Act. Special meetings may be called by the chair or a majority of the members of the commission.

(4) Presiding officers for the commission shall consist of the chair and a vice-chair. The vice-chair shall preside in the absence of the chair. The initial chair and vice-chair shall be appointed by the mayor and shall serve a term of two (2) years. Thereafter, the chair and vicechair shall be determined by a majority vote of the voting members of the commission and are eligible to serve two (2) consecutive one (1) year terms.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-531. Quorum.

Seven (7) voting members shall constitute a quorum for the transaction of business at any meeting of the commission.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-532. Facilities and staff.

Within the limits of funds appropriated by the urban county council in the annual budget, the urban county government shall provide the commission, either directly or by contract or agreement, with the facilities, materials, supplies and staff needed for the conduct of its business.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-533. Reports.

The commission shall work with the Division of Grants and Special Programs to review and/or execute any reports and/or certifications required by the Memorandum of Understanding and applicable state law regarding the Abatement Funds.

Upon request by the mayor or the urban county council, the commission shall provide an activity report detailing its work.

(Ord. No. 022-2023, § 1, 3-23-23)

Sec. 2-534. Duties and powers.

(1) The commission shall make recommendation(s) to the mayor and urban county council on appropriate uses of the Abatement Funds. The commission shall explain in any recommendation(s) to the mayor and the urban county council how the recommendation fits within the approved use(s) as defined in the Memorandum of Understanding and applicable state law.

(2) The commission shall, upon request of the mayor or the urban county council, create an annual report detailing the effects and successes of their efforts and outlining a plan for the upcoming year.

(3) The commission may engage with citizen groups for the purpose of soliciting community feedback.

(4) The commission may request information or assistance from Departments and Divisions of the Government to assist the commission with its duties.

(Ord. No. 022-2023, § 1, 3-23-23)

Chapter 2A

Airports and Aircraft[1]

Article I. In General

Section 2A-1. Operation of aircraft generally; definitions; fees.
Section 2A-2. Airport rules and regulations; policing.
Section 2A-3. Airport board.
Sections 2A-4—2A-15. Reserved.

Article II. Helicopters

Section 2A-16. Landing within urban county regulated.
Section 2A-17. Establishment of heliports and helicopter landing sites and the uses of same.
Section 2A-18. Exceptions.
Section 2A-19. Nonapplicability of article.
Section 2A-20. Air space rights.
Section 2A-21. Penalty.

1. **Charter reference(s)**—Airport board, §7.18
State law reference(s)—Aviation, KRS, ch. 183

Article I

In General

Sec. 2A-1. Operation of aircraft generally; definitions; fees.

(a) As used in this chapter, the following terms shall have the following meanings:

Aircraft: Any airplane, gas bag, flying machine, balloon, helicopter or other device now known or hereinafter invented, used or designed for navigation of or flight in the air, except a parachute or other device used primarily as safety equipment.

Airport: Bluegrass Field or such other landing strips or fields as are now or may be in the future authorized by the Federal Aviation Administration (FAA).

Heliport: An approved area dedicated to the exclusive use of helicopter operations, said operations including landing, taking off, loading, discharging, fueling, maintenance and/or transient storage of helicopters.

Helicopter landing site: An approved area used for helicopter operations, not including facilities for maintenance, fueling or long-term storage of helicopters.

(b) Except while taking off or landing at an established airport, heliport or helicopter landing site, no person shall fly or permit any aircraft to be flown within the urban county except at a height sufficient to permit a reasonably safe emergency landing, which in no case shall be less than the minimum altitude established by FAA.

(c) Except in case of emergency, no person shall land an aircraft within the urban county except upon a regularly established airport, heliport or helicopter landing site, except as and hereinafter provided; further, heliports and helicopter landing sites shall be for the sole use of helicopters.

(d) No person shall make exhibition flights by carrying banners on or operating a loudspeaker from any aircraft flying within or over the urban county without first obtaining a permit to do so from the chief administrative officer and paying a permit fee of five dollars ($5.00) for each flight. The chief administrative officer shall issue the permit if the person who will operate the aircraft is a duly licensed pilot by the FAA, the aircraft to be used is licensed by the FAA, and the safety of inhabitants of the urban county will not be endangered by the proposed flight; provided the permits provided for in this subsection may be issued by the chief administrative officer for a six-month period, rather than for individual flights, upon payment of a permit fee of twenty-five dollars ($25.00) and compliance with the above set out requirements. Such six-month permit shall be revoked by the chief administrative officer upon violation of any provisions of this chapter.

(Ord. No. 219-75, § 1, 8-7-75)

Sec. 2A-2. Airport rules and regulations; policing.

The rules and regulations adopted by the Lexington-Fayette Urban County Airport Board, a copy of which is on file in the council clerk's office, are hereby adopted as a part hereof and ratified by the urban county government.

The penalties prescribed in section 100.31 of such rules and regulations are specifically adopted in order to enforce the rules and regulations and shall be the penalties for violation of the rules and regulations.

The urban county government agrees that the Lexington-Fayette Urban County Airport Board may appoint its own police for enforcement of the rules and regulations referred to above and that such police may issue citations for violations of the rules and regulations, and these citations shall be heard by the district court. The policing of the airport shall be by the airport police and the above-mentioned rules and regulations and policing powers adopted pursuant to KRS 183.430.

(Ord. No. 3933, §§ 1—3, 8-20-59)

Sec. 2A-3. Airport board.

The Lexington-Fayette Urban County Airport Board shall be composed of ten (10) members.

(Ord. No. 190-98, § 1, 7-2-98)

Secs. 2A-4—2A-15. Reserved.

Article II

Helicopters

Sec. 2A-16. Landing within urban county regulated.

(a) No person shall land a helicopter in the urban county in a residential area as defined by Lexington-Fayette Urban County Zoning Ordinance Resolution, except in an emergency.

(b) Helicopter landings are permitted in industrial or business zones as defined by the Lexington-Fayette Urban County Zoning Ordinance Resolution only at established airports, heliports or helicopter landing sites.

(c) Except as prohibited by the FAA, helicopters may make unrestricted landings and takeoffs in all agricultural zones as defined by the Lexington-Fayette Urban County Zoning Ordinance Resolution.

(Ord. No. 219-75, § 2, 8-7-75)

Sec. 2A-17. Establishment of heliports and helicopter landing sites and the uses of same.

(a) **Heliport:**

(1) No site shall be used as a heliport unless and until the location and construction of same has been approved by the division of building inspection of the urban county government in consultation with the fire marshal and the police chief as meeting at least the following minimum specifications:

(i) A heliport must conform to all applicable zoning ordinance resolutions of the Lexington-Fayette Urban County Government.

(ii) Every location approved or used as a heliport shall consist of a hard-surface or grassed area with good drainage and free of dust and gravel, not less in length and width or diameter than twice the length of any helicopter landing or taking off. Such area shall be set aside exclusively for such landing or taking off, be free of trees, wires and other obstructions, and be enclosed by a fence at least four (4) feet in height unless the entire area to be served by the heliport shall be enclosed by said fence or said heliport is located upon the roof of a building.

(iii) Every heliport shall have at least two (2) approach paths free and clear of obstructions extending outward and upward from the landing and takeoff area at an angle of eight (8) feet horizontally to one (1) foot vertically, flaring to a width of five hundred (500) feet at an altitude of five hundred (500) feet. The center line of such paths or planes shall be separated by an arc of at least ninety (90) degrees. The remaining peripheral area surrounding the landing and takeoff area shall be free and clear of obstruction at an angle of two (2) feet horizontally to one (1) foot vertically to a lateral distance of two hundred fifty (250) feet from the landing and take off area.

No approach path shall be used and no helicopter shall be flown at an elevation of less than five hundred (500) feet over a residence, building, school or public building, or closer than two hundred (200) feet to any building, structure or public highway, except for the purpose of landing or taking off.

(iv) All fuel stored upon the heliport shall be stored in accordance with the applicable regulations of the urban county fire marshal and the state fire marshal's office.

(v) Every rooftop or platform heliport shall be constructed of noncombustible materials having a fire-resistance rating of not less than two (2) hours, supported by a building or structure of equivalent fire-resistance rating. Openings in the roof or platform shall not be permitted in the immediate landing area. At least two (2) approved means of egress, remote from each other, shall be provided from each rooftop landing area. Such means of egress shall be by enclosed stairways at least equal in fire-resistance rating to that required by the building code for the specific occupancy of the building. Fire extinguishers, building standpipe systems or other source of water supply and at least two (2) hose stations remote from each other, shall be provided subject to detailed specifications prescribed by the fire marshal.

(2) Every person intending to establish and use a heliport within the urban county shall first submit plans for approval to the division of building inspection of the urban county government, consisting of at least the following:

(i) A statement as to the intended use of the heliport, whether public or private, commercial or otherwise, the identity and financial responsibility of the management, frequency of flights, size, type and manufacture of equipment intended to be used, and hours of operation.

(ii) A plan of the proposed site showing dimensions of the entire usable areas, dimensions of actual landing and takeoff areas, all obstructions within one thousand (1,000) feet of the heliport indicating their heights, and drawings of flight and approach paths within one thousand (1,000) feet of the heliport, and lighting, access and drainage plans.

(iii) A report by a registered professional engineer showing that the roof structure or platform for any elevated heliport is designed to support concentrated loads on any one (1) square foot equivalent to three-fourths gross weight of the largest helicopter to be accommodated, assuming that the load is concentrated only at the point of contact under each main landing gear.

(iv) Such other plans, documents or related additional information as may reasonably be requested by the division of building inspection.

(b) **Helicopter Landing Site:**

(1) No site shall be used as a helicopter landing site unless and until the location of same has been approved by the division of building inspection of the urban county government in conjunction with the urban county fire marshal and the chief of police or his designated representative as meeting at least the following minimum specifications:

(i) A helicopter landing site must conform to all applicable zoning ordinance resolutions of the Lexington-Fayette Urban County Government.

(ii) Every location approved or used as a helicopter landing site shall consist of a ground level hard surfaced or grassed area of sufficient size to permit the safe operation of helicopters in taking off and landing. Such area shall be capable of being set aside exclusively for such landing or taking off; except parking lots or fields located adjacent to buildings located in business or industrial zones shall be permitted to be used as helicopter landing sites.

(iii) No fueling, repairing or maintenance of helicopters shall be performed in such helicopter landing site except in case of emergency.

(2) Every person intending to establish and use a helicopter landing site shall submit plans for approval to the division of building inspection of the urban county government. Said plans shall contain at a minimum a plan of the proposed site, showing the dimensions of the actual landing and takeoff areas, and all obstructions within one thousand (1,000) feet of the helicopter landing site, indicating their height and relative location and lighting, access and drainage plans, together with such additional related information as may be reasonably requested by the division of building inspection.

(Ord. No. 219-75, § 3, 8-7-75)

Sec. 2A-18. Exceptions.

Notwithstanding the provisions of this article to the contrary, helicopters may be landed at locations within business and industrial zones as defined by the Lexington-Fayette Urban County Zoning Ordinance Resolution on a frequency of not more than thirty (30) times per calendar month in any one (1) location, at locations which in the sole discretion of the pilot of the helicopter are safe, by notifying the metropolitan police department and the urban county fire and emergency services division thirty (30) minutes prior to the estimated time of landing that such landing and subsequent takeoff will occur, giving the time and exact location of the landing.

Further, notwithstanding the provisions of this article to the contrary, fixed-wing aircraft may land at such places or locations within business and industrial zones of the urban county area as the FAA authorizes; however such authorization must be communicated in writing to the police and fire and emergency services divisions forty-eight (48) hours prior to such landing.

(Ord. No. 219-75, § 4, 8-7-75; Ord. No.2-2016, § 1, 1-14-16)

Sec. 2A-19. Nonapplicability of article.

This article shall not apply to flights of hot air balloons, except that all flights must be authorized by the FAA and the urban county police and fire and emergency services divisions must be notified of such flight and its departure point prior to said flight.

This article shall not apply to aircraft owned, registered or leased to any federal, state or local governmental unit or agency. (Ord. No. 219-75, §§ 5, 6, 8-7-75)

Sec. 2A-20. Air space rights.

The establishment of a heliport as permitted herein shall not guarantee the owner/operator of said heliport to the unobstructed use of air space off of his immediate property in that adjacent property owners may utilize their property as they see fit and are permitted under the applicable zoning ordinances and building permits.

(Ord. No. 219-75, § 7, 8-7-75)

Sec. 2A-21. Penalty.

Any person who shall violate any provisions of this article shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or be imprisoned for a period not to exceed thirty (30) days, or shall be both so fined and imprisoned for each offense.

(Ord. No. 219-75, § 8, 8-7-75)

Chapter 2B

Code Enforcement Administrative Hearing Boards

Section 2B-1. Administrative hearing boards.

Section 2B-2. Definitions.

Section 2B-3. Membership of board.

Section 2B-4. Organization; meetings.

Section 2B-5. Powers; hearing officers.

Section 2B-6. Enforcement proceedings; citations.

Section 2B-7. Hearings and procedure.

Section 2B-8. Appeals.

Section 2B-9. Liens; personal liability; releases; notifications.

Section 2B-10. Immediate action by government.

Sec. 2B-1. Administrative hearing boards.

This chapter of the Code of Ordinances is adopted pursuant to KRS 65.8801, et seq. It is the intent of the urban county government that it apply to all administrative hearing boards of the urban county government which are empowered to hear appeals related to the issuance of civil fines unless expressly stated otherwise. All civil fines for violations of ordinances shall be as provided in the applicable chapter or section of the Code.

(Ord. No. 77-2011, § 1, 6-23-11; Ord. No.221-2016, § 1, 12-6-16)

Sec. 2B-2. Definitions.

The following words, terms and phrases, when used in this chapter and the Code, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abatement costs means the urban county government's necessary and reasonable costs for and associated with clearing, preventing unauthorized entry to, or demolishing all or a portion of a structure or premises, or taking any other action with regard to a structure or premises necessary to remedy a violation and to maintain and preserve the public health, safety and welfare in accordance with any ordinance.

Code enforcement board or **board** means an administrative body created and acting under the authority of the Local Government Code Enforcement Board Act, KRS 65.8801 to 65.8839 and this chapter.

Code enforcement officer means a police officer, peace officer, safety officer, citation officer, or other person authorized by state law or ordinance to issue a citation for a violation of a particular ordinance.

Final order means any order:

(1) Issued by an assigned hearing officer in accordance with section 2B-7;

(2) Created because a violator neither paid nor contested the citation within seven (7) days as provided in section 2B-6; or

(3) Created because a violator failed to appear at a hearing the violator requested to contest the citation as provided in section 2B-7.

Imminent danger means a condition which is likely to cause serious or life-threatening injury or death at any time.

Owner means a person, association, corporation, partnership or other legal entity having a legal or equitable title in real property.

Premises means a lot, plot or parcel of land, including any structures upon it.

(Ord. No. 221-2016, § 2, 12-6-16)

Editor's note(s)—Ord. No. 221-2016, §§ 2--10, adopted December 6, 2016 renumbered §§ 2B-2--2B-9 as §§ 2B-3--2B-10.

Sec. 2B-3. Membership of board.

(a) Each board shall have the number of members specified in the ordinance creating that board, but in all instances there shall be at least three (3) members. All members shall be appointed by the mayor, subject to the approval of the urban county council.

(b) The mayor may also appoint up to two (2) alternate members to serve on a board in the absence of a regular member(s). The appointment of alternate members shall be subject to the approval of the urban county council, and any alternate members must meet all of the qualifications and be subject to all of the requirements that apply to regular members.

(c) The initial appointments to a board shall be as follows:

(1) One-third (1/3) of the membership or one-third (1/3) of the membership and one (1) member of the board shall be appointed for a term of one (1) year;

(2) One-third (1/3) of the membership or one-third (1/3) of the membership and one (1) member of the board shall be appointed for a term of two (2) years; and

(3) One-third (1/3) of the membership or one-third (1/3) of the membership and one (1) member of the board shall be appointed for a term of three (3) years.

All subsequent appointments shall be made for a term of three (3) years.

(d) Each member of a board shall have resided within the boundaries of Fayette County for a period of at least one (1) year prior to the date of the member's appointment and shall reside there throughout the term in office.

(e) A member may be reappointed, subject to approval of the urban county council.

(f) Any vacancy on a board shall be filled within sixty (60) days by the mayor, subject to the approval of the urban county council. If a vacancy is not filled by the mayor within sixty (60) days, the remaining members of the code enforcement board shall fill the vacancy. All vacancies shall be filled for the remainder of the unexpired term.

(g) Any member of a board may be removed by the mayor for misconduct, inefficiency, or willful neglect of duty. If the mayor exercises his or her power to remove a member of a code enforcement board he or she shall submit a written statement to the member and to the urban county council setting forth the reasons for removal. The member so removed shall have the right of appeal to the Fayette Circuit Court.

(h) All members of a board shall, before entering upon their duties, take the oath of office prescribed by section 228 of the Constitution of the Commonwealth of Kentucky.

(i) The members of a board may only be reimbursed for expenses or compensated for service if specifically authorized in the ordinance creating the board.

(j) No member of a board shall hold any elected or nonelected office, paid or unpaid, or any position of employment with the urban county government. (Ord. No. 77-2011, § 2, 6-23-11; Ord. No.221-2016, § 3, 12-6-16)

Editor's note(s)—Former § 2B-2. See editor's note at § 2B-2.

Sec. 2B-4. Organization; meetings.

(a) Each board shall, upon the initial appointment of its members, and annually thereafter, elect a chair from among its members, who shall be the presiding officer and a full voting member of the board. In the absence of the chair, the remaining members of the board shall select one (1) of their number to preside in place of the chair and exercise the powers of the chair.

(b) Meetings of each board shall be held as specified in the ordinance creating that board. A board or assigned hearing officer shall be authorized to conduct special or emergency meetings in accordance with the state open meetings law.

(c) The presence of at least a majority of the board's entire membership shall constitute a quorum. The affirmative vote of a majority of the members constituting a quorum shall be necessary for any official action to be taken. Any member of a board who has any direct or indirect financial or personal interest in any matter to be decided shall disclose the nature of the interest and shall disqualify himself from voting on the matter and shall not be counted for purposes of establishing a quorum.

(d) Minutes shall be kept for all proceedings of each board and the vote of each member on any issue decided by the board shall be recorded in the minutes.

(e) All meetings and hearings of a board shall be open to the public. (Ord. No. 77-2011, § 3, 6-23-11; Ord. No.221-2016, § 4, 12-6-16)

Editor's note(s)—Former § 2B-3. See editor's note at § 2B-2.

Sec. 2B-5. Powers; hearing officers.

(a) The board shall have the power to adopt rules and regulations to govern its operation and the conduct of its hearings that are consistent with the requirements of KRS 65.8801 to 65.8839 and any applicable ordinances.

(b) The board shall conduct all hearings through the use of assigned hearing officers, who shall determine whether there has been a violation of any local government ordinance that the board has jurisdiction to enforce.

(c) The following shall apply to all hearing officers, hearings, final orders, and appeals:

(1) Eligibility. The board may assign any of its members, including the chair, to be a hearing officer. The board may also assign an individual who is not a member of the board as long as he or she does not hold any elected or appointed office or position of employment with the urban county government.

(2) Experience and training. All hearing officers shall have experience or shall have received training in the code enforcement process and basic procedural due process and as otherwise required by state law. The board may also establish additional standards in writing, including but not limited to examples of qualifying experience and training, and minimum amounts of experience or training required.

(Ord. No. 77-2011, § 4, 6-23-11; Ord.221-2016. 221-2016, § 5, 12-6-16)

Editor's note(s)—Former § 2B-4. See editor's note at § 2B-2.

Sec. 2B-6. Enforcement proceedings; citations.

The following requirements shall govern all administrative enforcement proceedings:

(a) Enforcement proceedings shall be initiated by the issuance of a citation by a code enforcement officer.

(b) When a code enforcement officer, based upon personal observation or investigation, has reasonable cause to believe that a person has committed a violation of an ordinance, the officer is authorized to issue a citation by:

(1) Personal service to the alleged violator;

(2) Leaving a copy of the citation with any person eighteen (18) years of age or older who is on the premises, if the alleged violator is not on the premises at the time the citation is issued;

(3) Mailing a copy of the citation by regular first-class mail to the last known recorded mailing address of the alleged violator; or

(4) If, in the exercise of reasonable diligence, the issuance of a citation using the methods set out in paragraphs (1) to (3) of this subsection is not possible, then the citation is properly served by posting a copy of the citation in a conspicuous place on the premises.

A code enforcement officer may, in lieu of immediately issuing a citation, give notice that a violation shall be remedied within a specified period of time if authorized by ordinance for a violation of that nature. If the person to whom the notice is given fails or refuses to remedy the violation within the time specified, the code enforcement officer is authorized to issue a citation. Nothing in this section shall prohibit the government from taking immediate action if necessary as further provided in section 2B-10 or the applicable ordinance.

(c) The citation issued by the code enforcement officer shall be in a form prescribed by the urban county government and shall contain, in addition to any other information required by ordinance or rule of the board:

(1) The date and time of issuance;

(2) The name and address of the person to whom the citation is issued;

(3) The date and time the offense was committed;

(4) The facts constituting the offense;

(5) The section of the Code or the number of the ordinance violated;

(6) The name of the code enforcement officer;

(7) The civil fine that will be imposed for the violation if the person does not contest the citation (if the ordinance establishing the fine provides for such an option);

(8) The maximum civil fine that may be imposed if the person elects to contest the citation;

(9) The procedure for the person to follow in order to pay the civil fine or to contest the citation; and

(10) A statement that if the person fails to pay the civil fine set forth in the citation or contest the citation, within the time allowed, the person shall be deemed to have waived the right to an administrative hearing to contest the citation and that the determination that a violation was committed shall be final and the person shall be deemed to have waived his or her right to appeal.

(d) After issuing a citation to an alleged violator, the code enforcement officer shall notify the code enforcement board by delivering the citation to the administrative official designated by ordinance or by the board.

(e) When a citation is issued, the person to whom the citation is issued shall respond to the citation within seven (7) days of the date the citation is issued by either paying the civil fine set forth in the citation or requesting, in writing, an administrative hearing to contest the citation. If the person fails to respond to the citation within seven (7) days, the person shall be deemed to have waived the right to a hearing to contest the citation and the determination that a violation was committed shall be considered final. In this event, the citation, as issued, shall be deemed a final order determining that a violation was committed and imposing the civil fine as set forth in the citation, and the person shall be deemed to have waived his or her right to an appeal. Notice of the final order shall be provided to the cited violator by:

(1) Regular first-class mail;

(2) Certified mail, return receipt requested;

(3) Personal delivery; or

(4) Leaving a copy of the order at that person's usual place of residence with any individual residing therein who is eighteen (18) years of age or older and who is informed of the contents of the order.

(Ord. No. 77-2011, § 5, 6-23-11; Ord. No.221-2016, § 6, 12-6-16; Ord. No.143-2017, § 1, 10-12-17)

Editor's note(s)—Former § 2B-5. See editor's note at § 2B-2.

Sec. 2B-7. Hearings and procedure.

(a) When an administrative hearing is requested a hearing shall be scheduled. Not less than seven (7) days before the date set for the hearing, the person who requested the hearing will be notified in writing of the date, time, and place of the hearing. The notice may be given by regular first-class mail; certified mail, return receipt requested; by personal delivery; or by leaving the notice at the person's usual place of residence with any individual residing therein who is eighteen (18) years of age or older and who is informed of the contents of the notice. Any person requesting a hearing who fails to appear at the time and place set for the hearing shall be deemed to have waived the right to a hearing to contest the citation and the determination that a violation was committed shall be final. In this event, the citation, as issued, shall be deemed a final order determining that a violation was committed and imposing the civil fine set forth in the citation, and the person shall be deemed to have waived his or her right to an appeal. Notice of the final order shall be provided to the cited violator in the manner set forth in paragraph (i), below.

(b) Any party to an administrative hearing may participate in person or may be represented by counsel. Each case that is the subject of a hearing may be presented by an attorney selected by the urban county government or by a member of the administrative staff of the government. An attorney may either be counsel to the code enforcement board and the assigned hearing officer or may represent the urban county government by presenting cases at the hearing, but in no case shall an attorney serve in both capacities.

(c) A hearing officer may administer oaths to witnesses prior to their testimony and subpoena alleged violators, witnesses, and evidence to the hearing to which the officer is assigned.

(d) All testimony shall be under oath and shall be recorded. The hearing officer shall take testimony from the code enforcement officer, the alleged offender, and any witnesses to the alleged violation offered by the code enforcement officer or the alleged offender. Formal rules of evidence shall not apply, but fundamental due process shall be observed and shall govern the proceedings. Any person, upon request, may receive a copy of the recording, provided, however, that the party making the request shall be responsible for the cost of any transcript or copy.

(e) Any part of the evidence may be received in written form if doing so will expedite the hearing without substantial prejudice to the interests of any party, or if such practice is authorized by statute. Any party shall have the right, upon reasonable request, to inspect the documentary or tangible evidence relating to an administrative hearing, either in person or through counsel. Copies of documentary evidence may be obtained by parties upon the payment of a fee, except where disclosure is protected by state or federal law.

(f) Objections to evidentiary offers may be made by any party and shall be noted in the record.

(g) The hearing officer may take official notice of any matter of which a court of the Commonwealth of Kentucky may take such notice.

(h) Following a hearing, the hearing officer shall make written findings of facts and conclusions of law, and enter a final order which includes the date the order was issued. When a hearing officer determines that no violation was committed, an order dismissing the citation shall be entered. When a hearing officer determines that a violation has been committed, an order shall be issued upholding the citation and the hearing officer may order the offender to pay a civil fine in an amount up to the maximum authorized by ordinance, or may order the offender to remedy a continuing violation within a specified time to avoid the imposition of a fine, or both.

(i) Within twenty-four (24) hours of entry, these findings, conclusions, and final order shall be forwarded to the violator(s), and to the board. The findings, conclusions, and order may be delivered to the violator(s) at the conclusion of the hearing or by regular first-class mail; certified mail, return receipt requested; personal delivery; or by leaving the documents at the person's usual place of residence with any individual residing therein who is eighteen (18) years of age or older and who is informed of the contents of the delivery.

(j) A violator(s) may appeal a final order issued as a result of a hearing directly to Fayette District Court, in accordance with section 2B-8.

(k) The chief administrative officer shall designate a staff person to serve as secretary to each board. The secretary shall file a detailed record of all proceedings in the office of the appropriate commissioner or director.

(Ord. No. 77-2011, § 6, 6-23-11; Ord. No.221-2016, § 7, 12-6-16)

Editor's note(s)—Former § 2B-6. See editor's note at § 2B-2.

Sec. 2B-8. Appeals.

(a) An appeal from any final order issued by a hearing officer may be made to the Fayette District Court within thirty (30) days of the date the order is issued. The appeal shall be initiated by the filing of a complaint and a copy of the final order in the same manner as any civil action under the Kentucky Rules of Civil Procedure.

(b) A judgment of the district court may be appealed to the circuit court in accordance with the Kentucky Rules of Civil Procedure.

(c) If no appeal from a final order issued by a hearing officer is filed within the time period set forth in this section, the order shall be deemed final for all purposes.

(d) Pursuant to state law and this chapter, the failure to timely utilize the administrative hearing process to challenge a citation or to appear at the administrative hearing shall result in a final order which is not appealable.

(Ord. No. 77-2011, § 7, 6-23-11; Ord. No.221-2016, § 8, 12-6-16)

Editor's note(s)—Former § 2B-7. See editor's note at § 2B-2.

Sec. 2B-9. Liens; personal liability; releases; notifications.

(a) The urban county government shall possess a lien on property owned by the person found by a final order, or by a final judgment of the court, to have committed a violation of a local government ordinance for all civil fines assessed for the violation and for all charges and fees incurred by the government in connection with the enforcement of the ordinance including abatement costs. An affidavit of the code enforcement officer shall constitute prima facie evidence of the amount of the lien and the regularity of the proceedings pursuant to KRS 65.8801 to KRS 65.8839. The lien shall be recorded in the office of the county clerk. The lien shall be notice to all persons from the time of its recording and shall bear interest until paid. The lien shall take precedence over all other liens, except state, county, school board, and city taxes unless otherwise provided by law, and may be enforced by judicial proceedings.

(b) In addition to the remedy prescribed in subsection (a) of this section, the person found to have committed the violation shall be personally responsible for the amount of the lien, including all civil fines associated for the violation and for all charges, fees, and abatement costs incurred by the local government in connection with the enforcement of the ordinance. The urban county government may bring a civil action against the person and shall have the same remedies as provided for the recovery of a debt.

(c) Pursuant to state law, nothing in this section shall otherwise affect the rights or obligation between the owner of the property and those persons who claim a security interest in the property.

(d) The mayor is authorized and directed to execute a release of the lien:

(1) Upon payment in full of all civil fines, charges and fees evidenced by the lien, together with applicable interest;

(2) Upon conclusion of court proceedings resulting in the sale of the property regardless of whether any part of the liens, charges and fees were paid from the proceeds of the sale; or

(3) Upon a determination made in conjunction with the commissioner of law and the appropriate commissioner or director that the cost of collection of the lien would be greater than the lien itself, or when intervening in existing litigation is not cost effective, or when the lien would not be enforceable as a matter of law.

(e) The commissioner of law is hereby authorized to make the determination that liens shall not be filed if the cost of collection of the lien would be greater than the lien itself, or when intervening in existing litigation is not cost effective, or when the lien would not be enforceable as a matter of law.

(f) The commissioner of law is hereby authorized to institute proceedings, in the name of the urban county government, in any court having jurisdiction over such matter, to enforce any liability or lien arising under a civil enforcement action taken pursuant to this chapter of the Code.

(g) The urban county government shall implement a system for notification to lienholders that meets the minimum requirements of KRS 65.8836 and that permits remedial action by lienholders as required by the statute. The personnel responsible for administering this section shall be as directed by the chief administrative officer.

(Ord. No. 77-2011, § 8, 6-23-11; Ord. No.221-2016, § 9, 12-6-16; Ord. No.56-2017, § 1, 4-27-17)

Editor's note(s)—Former § 2B-8. See editor's note at § 2B-2.

Sec. 2B-10. Immediate action by government.

Nothing contained in this chapter shall prohibit the urban county government from taking immediate action to remedy a violation of its ordinances when there is reason to believe that the existence of the violation presents imminent danger, a serious threat to the public health, safety, and welfare, or if in the absence of immediate action, the effects of the violation will be irreparable or irreversible.

(Ord. No. 77-2011, § 9, 6-23-11; Ord. No.221-2016, § 10, 12-6-16)

Editor's note(s)—Former § 2B-9. See editor's note at § 2B-2.

Chapter 3

Alcoholic Beverages[1]

Section 3-1. Definitions.

Section 3-2. Office of urban county alcoholic beverage control administrator—Qualifications.

Section 3-3. Same—Powers.

Section 3-4. Same—Bond.

Section 3-5. Same—Function.

Section 3-6. Same—Appeals.

Section 3-7. License applications—Procedure.

Section 3-8. Same—Transfer or assignment.

Section 3-9. Distilled spirits and wine—Special private club license.

Section 3-9.1. Reserved.

Section 3-9.2. Reserved.

Section 3-9.3. Reserved.

Section 3-10. License revocation or suspension—Powers of board.

Section 3-11. Same—Effect.

Section 3-12. Alcoholic beverage license fees.

Section 3-13. Malt beverage license fees.

Section 3-13.1. Reserved.

Section 3-14. License period; time of payment; delinquency.

Section 3-15. Disposition of license fees.

1. **Editor's note(s)**—Section 1 of Ord. No. 134-79, adopted May 31, 1979, repealed §§ 3-2—3-19, 3-22—3-25, derived from the original codification as amended by Ord. No. 3973, §§ 1, 2, adopted Dec. 13, 1959; Ord. No. 74-67, § 1, adopted Apr. 13, 1967; and Ord. No. 134-68, § 1, adopted June 15, 1978. Section 2 of Ord. No. 134-79 enacted new §§ 3-2—3-19, 3-22—3-25.
State law reference(s)—Alcoholic beverages, KRS ch. 241 et seq.

Section 3-16. License to contain certain information.

Section 3-17. License to be displayed.

Section 3-18. Sales only at place specified in license.

Section 3-19. Sales to be in public view.

Section 3-20. Delivery hours for malt beverages.

Section 3-21. Business hours.

Section 3-22. Dancing where beverages sold; permits, regulations.

Section 3-23. Display of warning to minors.

Section 3-23.1. Permitting possession by minors prohibited.

Section 3-23.2. Congregating on certain ABC licensed premises and vacant premises prohibited.

Section 3-23.3. Alcohol warning signs; drinking alcohol during pregnancy.

Section 3-24. Lavatory facilities, where required.

Section 3-25. Inactive and dormant license renewal.

Section 3-26. Penalties.

Section 3-27. Malt beverage keg registration.

Section 3-28. Beverage service training.

Section 3-29. Commercial quadricycles.

Sec. 3-1. Definitions.

The words and terms used in this chapter specifying the kinds of licenses shall have the same meanings as in those parts of the Kentucky Revised Statutes applying to the licenses provided herein.

Sec. 3-2. Office of urban county alcoholic beverage control administrator—Qualifications.

There is created an office of urban county alcoholic beverage control administrator. The urban county administrator and such investigators and clerks as are deemed necessary for the proper conduct of his office shall be appointed by the mayor. The urban county administrator shall take the oath prescribed in section 228 of the Kentucky Constitution before entering upon such duties.

(Ord. No. 134-79, § 2, 5-31-79)

Cross reference(s)—Appointment, salary, benefits for alcoholic beverage control administrator, § 22-47.

Sec. 3-3. Same—Powers.

(a) The urban county administrator and his investigators shall have the full police powers of peace officers, and their jurisdiction shall be coextensive with the urban county government.

(b) The urban county administrator, and his investigators, may inspect any premises where alcoholic beverages are manufactured, sold, stored or otherwise trafficked in, without first obtaining a search warrant.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-4. Same—Bond.

(a) Before entering upon his duties, the urban county administrator shall execute a bond with a good corporate security in the penal sum of not less than one thousand dollars ($1,000.00).

(b) The urban county administrator may require any employee under his supervision to execute a similar bond in such penal sum as he deems necessary.

(c) The cost of the bonds given under this section shall be borne by the urban county government. (Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-5. Same—Function.

The functions of the urban county administrator shall be the same with respect to urban county licenses and regulations as the functions of the alcoholic beverage control board with respect to state licenses and regulations, except that no regulations adopted by the urban county administrator may be less stringent than the statutes relating to alcoholic beverage control or than the regulations of the board.

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 1, 4-13-00)

Sec. 3-6. Same—Appeals.

Appeals from the orders of the urban county administrator may be taken as prescribed by law. (Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-7. License applications—Procedure.

(a) Each person, before applying to the state alcoholic beverage control board under the provisions of KRS chapter 243, to do business in the urban county shall first apply to and obtain approval of the urban county administrator for an urban county license to do business; and no person shall engage in any business for which a license is provided under this section without first obtaining such license. Such licenses shall conform in their provisions and the business authorized to kindred state licenses.

(b) Such application for an urban county license shall be written and verified, shall contain the information required by the provisions of KRS 243.390, and shall otherwise comply with all provisions of law.

(c) The urban county administrator shall either approve or disapprove of any such application in accordance with the law.

(d) Upon approval of any such application, the applicant shall pay the amount of the license fee provided in this chapter, within the time prescribed in this chapter, to the commissioner of finance, who shall issue the license.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-8. Same—Transfer or assignment.

The urban county administrator may permit the transfer or assignment of any license issued under this chapter to another person or premises under the same terms and conditions as provided by statute.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-9. Distilled spirits and wine—Special private club license.

(a) Any applicant for a special private club license shall be required, as a condition precedent to obtaining such a license, to show to the satisfaction of the urban county administrator that it is a nonprofit social, fraternal, military or political organization or club, which for more than one (1) year prior to the date of filing such application has maintained and operated a club room or rooms within the urban county from which the general public is excluded.

(b) This license shall authorize the licensee to exercise the privilege of a malt beverage or a distilled spirits and wine retail drink licensee, or both, at the designated premises if the general public is excluded. All restrictions and prohibitions applying to a malt beverage and a distilled spirits and wine retail drink licensee shall apply to a special private club licensee.

(c) A special private club license may be issued by the urban county administrator, the fee for which shall be three hundred dollars ($300.00) per annum. (Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 2, 4-13-00)

Sec. 3-9.1. Reserved.

Editor's note(s)—Ord. No. 200-2007, § 1, adopted Sept. 13, 2007, deleted § 3-9.1 in its entirety. Former § 3-9.1 pertained to distilled spirits and wine—hotels, motels, convention centers, restaurants, commercial airports license for Sunday sale and derived from Ord. No. 127-86, § 5, adopted July 17, 1986.

Sec. 3-9.2. Reserved.

Editor's note(s)—Ord. No. 200-2007, § 1, adopted Sept. 13, 2007, deleted § 3-9.2 in its entirety. Former § 3-9.2 pertained to Sunday malt beverage retailer's license for hotels, motels, convention centers, restaurants, and commercial airports and derived from Ord. No. 6-87, § 1, adopted Jan. 8, 1987; Ord. No. 291-95, § 1, adopted Dec. 7, 1995; and Ord. No. 32-2007, § 1, adopted Feb. 8, 2007.

Sec. 3-9.3. Reserved.

Editor's note(s)—Ord. No. 200-2007, § 1, adopted Sept. 13, 2007, deleted § 3-9.3 in its entirety. Former § 3-9.3 pertained to extended hours supplemental license for convention centers, race tracks and commercial airports and derived from Ord. No. 4-87, § 1, adopted Jan. 8, 1987; and Ord. No. 95-2004, § 2, adopted May 13, 2004.

Sec. 3-10. License revocation or suspension—Powers of board.

The urban county administrator shall have the same powers and duties with respect to suspension and revocation of licenses granted under this chapter as the state alcoholic beverage control board has with respect to licenses granted under KRS chapter 243 in addition to any other powers and duties granted to or imposed upon him by ordinance.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-11. Same—Effect.

Upon revocation of any license issued under this chapter, the licensee shall not thereafter be granted a license under this chapter within two (2) years next after such revocation; and on any such revocation, the urban county administrator, in his discretion, may order that no other license be issued to anyone to conduct in the same premises any business required to be licensed by this chapter within two (2) years next after the revocation of such license.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-12. Alcoholic beverage license fees.

The following kinds of alcoholic beverage licenses may be issued by the urban county administrator, the fees for which shall be:

(1) Distiller's license, per annum$ 500.00

(2) Rectifier's license, per annum3,000.00

(3) Wholesaler's distiller's spirit and wine license, per annum3,000.00

(4) Quota retail package license, per annum1,000.00

(5) Quota retail drink license, per annum1,000.00

(6) Special temporary license, per event166.66

(7) Nonquota type 1 retail drink license, per annum2,000.00

(8) Nonquota type 2 retail drink license, per annum1,000.00

(9) Nonquota type 3 retail drink license, per annum300.00

(10) Distilled spirits and wine special temporary auction license, per event200.00

(11) Special Sunday retail drink license, per annum300.00

(12) Extended hours supplemental license, per annum2,000.00

(13) Caterer's license, per annum800.00

(14) Bottling house or bottling house storage license, per annum1,000.00

(15) Limited restaurant license, per annum1,200.00

(16) Limited golf course license, per annum1,200.00

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 127-86, § 5, 7-17-86; Ord. No. 86-2000, § 3, 4-13-00; Ord. No. 26-2004, § 1, 2-5-04; Ord. No. 85-2013, § 1, 7-9-13)

Note(s)—See the editor's note to § 3-9.1.

Sec. 3-13. Malt beverage license fees.

The following kinds of malt beverage licenses may be issued by the urban county administrator, the fees for which shall be:

(1) Brewer's license per annum$500.00

(2) Microbrewery license per annum500.00

(3) Malt beverage distributor's license, per annum400.00

(4) Nonquota retail malt beverage package license, per annum200.00

(5) Nonquota type 4 retail malt beverage drink license, per annum200.00

(6) Malt beverage brew-on-premises license, per annum100.00

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 6-87, § 1, 1-8-87; Ord. No. 86-2000, § 4, 4-13-00; Ord. No. 26-2004, § 2, 2-5-04; Ord. No. 85-2013, § 2, 7-9-13)

Sec. 3-13.1. Reserved.

Editor's note(s)—Ord. No. 85-2013, § 3, adopted July 9, 2013, repealed § 3-13.1 which pertained to the special convention center, extended hours, and horse race track license and derived from Ord. No. 65-85, § 1, adopted April 4, 1985; Ord. No. 4-87, § 1, adopted Jan. 8, 1987; Ord. No. 86-2000, § 5, adopted April 13, 2000; and Ord. No. 26-2004, § 3, adopted Feb. 5, 2004.

Sec. 3-14. License period; time of payment; delinquency.

(a) The license period for all forms of alcoholic beverage licenses shall conform to the period covered by kindred licenses issued by the state; and such licenses, other than special temporary licenses, when issued, shall be valid for a period of no more than one (1) year. All licenses shall expire on the thirtieth day of June of each year until a renewal system with staggered dates has been implemented by the urban county administrator.

(b) The annual license renewal fees provided in this chapter shall be paid on or before the tenth day of July of each year or, after the implementation of a renewal system with staggered dates, within ten (10) days after the expiration date and any person holding any form of such license who fails to pay the license fees by said date shall be subject to a revocation of such license and in addition shall pay a penalty of ten (10) percent of the amount of the annual license renewal fee if the license is subsequently renewed.

(c) The license fees of any person entering upon any of the businesses required by this chapter to be licensed shall be due and payable at the time of their entering upon any of such businesses and if not paid within ten (10) days after they become due shall be deemed delinquent and shall have added thereto a penalty of ten (10) percent of the license tax.

(d) Persons delinquent in their payment of any license fees imposed upon them by this chapter shall be proceeded against and subjected to revocation of license and to additional penalty as provided in section 3-26.

(e) Until a renewal system with staggered dates is implemented, when any person applies for a license authorized to be issued under this chapter after July 1 of any year or for a new license after the implementation of a renewal system with staggered dates, he shall be charged, if the license is issued, the full fee for the respective license if six (6) months or more remain before the license is due to be renewed and one-half (½) the fee if less than six (6) months remain before the license is due to be renewed. No abatement of license fees shall be permitted to any person who held a license of the same kind for the same premises in the preceding license period and who was actually doing business under the license during the last month of the preceding license period.

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 6, 4-13-00)

Sec. 3-15. Disposition of license fees.

All money derived from the collection of license fees or the forfeiture of bonds, pursuant to this chapter, shall be paid into and become part of the general fund of the urban county government.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-16. License to contain certain information.

There shall be stamped or printed on the face of each license issued pursuant to this chapter the type of license issued, such as "Retail Beer," "Retail Package Liquor" and so forth, together with the words "License period shall be July 1 through June 30," and the year to be covered by such license, or, in the case of special temporary licenses and after the implementation of a renewal system with staggered dates, the precise dates covered by the license.

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 7, 4-13-00)

Sec. 3-17. License to be displayed.

(a) Before commencing or doing any business for the time for which a license has been issued, all licenses issued under this chapter shall be posted and at all times displayed in a conspicuous place in the room or principal room where the business is carried on, so that all persons visiting the place may readily see the license.

(b) No licensee shall post the license or permit it to be posted upon premises other than the licensed premises or upon premises where traffic in alcoholic beverages is being carried on by any person other than the licensee, or knowingly deface, destroy or alter the license in any respect.

(c) Whenever a license is lost or destroyed, a duplicate license shall be issued upon proof of loss satisfactory to the urban county administrator and upon the payment of a fee of twenty-five dollars ($25.00).

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 8, 4-13-00)

Sec. 3-18. Sales only at place specified in license.

No license issued pursuant to this chapter shall authorize the sale of alcoholic beverages of any kind at more than one (1) place, which shall be specified in the license; and a separate license must be taken out for each place in which any alcoholic beverages are proposed to be sold.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-19. Sales to be in public view.

The entrance of any premises for which a retail license has been issued shall be of clear glass and permit an unobstructed view. The premises shall be so erected and maintained as to furnish a clear view of the premises from the sidewalk, or, if the premises are not on the street level, from the entrance. No partition, box, stall, screen, curtain,

or other device shall obstruct the view or the general observation of persons, but partitions, subdivisions, or panels that are not higher than forty-eight (48) inches from the floor shall not be construed as obstructing the view or the general observation of persons.

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 9, 4-13-00)

Sec. 3-20. Delivery hours for malt beverages.

(a) It shall be unlawful for any distributor, wholesaler or manufacturer of malt beverages or for any agent or employee thereof to deliver any malt beverages in the urban county between the hours of 12:00 midnight on Saturday and 6:00 a.m. on the succeeding Monday. The word "deliver" as used herein shall include the transfer of actual possession of malt beverages whether the same be sold, bartered, loaned or transferred in any manner, by a distributor, wholesaler or manufacturer, or by any agent or employee thereof.

(b) It shall be unlawful for any person, either for private use or for the purpose of sale, to receive from any distributor, wholesaler or manufacturer of malt beverages, or from any agent or employee thereof, malt beverages between the hours of 12:00 midnight on Saturday and 6:00 a.m. on the succeeding Monday.

(Ord. No. 105-68, § 1, 5-2-68; Ord. No. 86-2000, § 10, 4-13-00)

State law reference(s)—See KRS 244.480.

Sec. 3-21. Business hours.

(a) Distilled spirits and wine by the drink. Unless otherwise provided herein, the selling, giving away, or delivering of distilled spirits or wine by the drink shall not be permitted during the following hours:

(1) Between the hours of 2:30 a.m. and 6:00 a.m. on any day from Monday through Sunday;

(2) Between the hours of 2:30 a.m. and 6:00 a.m. on a Monday; and

(3) Between the hours of 2:30 a.m. and 6:00 a.m. on any day from Tuesday through Saturday.

(b) Malt beverages. Unless otherwise provided herein, the selling, giving away, or delivering of malt beverages shall not be permitted during the following hours:

(1) Between the hours of 2:30 a.m. and 6:00 a.m. on any day from Monday through Sunday;

(2) Between the hours of 2:30 a.m. and 6:00 a.m. on a Monday; and

(3) Between the hours of 2:30 a.m. and 6:00 a.m. on any day from Tuesday through Saturday.

(c) Retail package distilled spirits and wine. The selling, giving away, or delivering of packaged distilled spirits or wine shall not be permitted during the following hours:

(1) Between the hours of 2:30 a.m. and 1:00 p.m. on a Sunday;

(2) Between the hours of 9:00 p.m. on a Sunday and 6:00 a.m. on a Monday, except when Christmas Eve and New Year's Eve fall on a Sunday, then between the hours of 2:30 a.m. and 6:00 a.m. on that Sunday; and

(3) Between the hours of 2:30 a.m. and 6:00 a.m. on any day from Tuesday through Saturday.

(d) Any commercial airport may apply for a special extended hours license, which if granted, shall extend the hours of (a) and (b) above through 4:00 a.m. on any day of the week.

(e) A premises must obtain the appropriate type(s) of license(s) prior to being able to lawfully sell, give away, or deliver alcohol of any kind pursuant to the relevant licensing provisions of this chapter.

(f) If a licensee provides a separate locked department within its licensed remises capable of being locked and closed off, within which is kept all stocks of distilled spirits and wine, and such department is kept locked during the applicable times mentioned above, it shall be deemed to have complied with this section.

(g) The term "locked department" shall include all display windows, show cases, shelves, and counters. In no event shall the shelves and counters be left open, but shall have a door affixed thereto, and the storeroom, display windows, show cases, shelves and counters shall be under lock and key. The "door" may be sliding or affixed with hinges and may be glass, wood, or wire netting of not more than one (1) inch mesh.

A separate locked department will be deemed to exist if the licensee uses a register or computerized check-out system that prohibits the sale of alcoholic beverages and the licensee physically conceals or covers all stocks of alcoholic beverages during the times the licensee is not permitted to remain open.

(h) A licensee shall not sell, give away, or deliver any alcoholic beverage or permit any alcoholic beverage to be sold, given away, or delivered on the licensed premises during the hours specified above. A licensee shall not permit the consumption of alcoholic beverages on the licensed premises for a period of more than thirty (30) minutes after the hour it is to close for business or to stop selling and delivering alcoholic beverages.

(Ord. No. 105-68, § 1, 5-2-86; Ord. No. 127-86, § 5, 7-17-86; Ord. No. 4-87, § 1, 1-8-87; Ord. No. 5-87, § 1, 1-8-87; Ord. No. 86-2000, § 11, 4-13-00; Ord. No. 314-2001, § 1, 12-13-01; Ord. No. 13-2002, § 1, 1-24-02; Ord. No. 95-2004, § 1, 5-13-04; Ord. No. 200-2007, § 2, 9-13-07; Ord. No. 107-2014, §§ 1, 2, 9-11-14; Ord. No. 193-2017, § 1, 12-7-17; Ord. No. 143-2023, §§ 1, 2, 12-5-23)

Sec. 3-22. Dancing where beverages sold; permits, regulations.

(a) No person operating a business wherein alcoholic beverages are sold shall allow dancing on the premises by patrons without first obtaining the permit and paying the license fee as herein prescribed.

(b) A permit shall be obtained by filing an application with the commissioner of public safety or his designee who shall cause inspections, by the divisions of fire and emergency services and building inspection, to be made of the premises for which an application has been made to allow dancing. No permit shall be issued

by the commissioner of public safety unless all the ordinances and laws mentioned in subsections (c) and (d) of this section are being fully complied with and the licensee holds all licenses required by chapter 3 of this code.

(c) The chief of the division of fire and emergency services or his designee shall inspect the premises for which an application has been made to allow dancing under the terms of this section to determine whether the premises and the structures located thereon comply with all the requirements of the existing fire prevention ordinances of the urban county government, including the standards of safety adopted by the urban county government and all other laws relative to fire prevention. The chief of the division of fire and emergency services or his designee shall identify those portions of the premises where dancing is allowed and the maximum number of persons allowed in that portion of the premises where dancing is allowed; and in fixing the maximum number of persons he shall give due consideration to the type of activity for which the permit is sought.

(d) The director of the division of building inspection or his designee shall inspect the premises for which an application has been made to allow dancing under the terms of this section to ascertain whether the premises conform in all respects to the ordinances and codes relating to the structures on such premises. The director of the division of building inspection shall further ascertain whether, under the zoning ordinances of the urban county government, dancing is allowed at the location for which the permit is sought.

(e) The commissioner of public safety shall, within sixty (60) days from receipt of an application for a dance permit, submit to the chief administrative officer, his recommendation for the grant or denial of the permit. If the commissioner of public safety recommends that the permit should be denied then his recommendation shall be accompanied by a written report setting forth why the permit should not be issued. It shall be the duty of the chief administrative officer to review the recommendation and report and to approve or disapprove the application.

(f) The applicant, prior to allowing dancing by its patrons, if the application is approved by the chief administrative officer and issued by the commissioner of public safety, shall pay to the urban county government through the division of revenue a minimum license fee of two hundred dollars ($200.00) per year. The applicant shall further comply in all respects with the provisions of chapter 13 of this Code or subsequent licensing ordinances pertaining to the payment of license fees. No dance permit shall be issued to the applicant unless the written approval of the chief administrative officer is presented to the division of revenue.

(g) The permit issued under the terms of this section shall not be transferable. In case the permit applies to a corporation, a limited liability corporation, a partnership, or a limited liability company, a transfer of ownership of more than ten (10) percent interest in the corporation, partnership, or company shall cancel the permit.

(h) The provisions of this section shall not apply to a nonprofit religious, charitable, benevolent, fraternal, or social organization which is recognized by the United States Internal Revenue Service as being exempt from federal taxation or to bona fide hotels which rent their facilities for private dances, provided the hotels are not engaged in promoting dances for their own profit beyond the charge made to organizations or individuals

conducting private dances. For the purpose of this section "bona fide hotels" shall be construed as establishments wherein the chief business transacted is the renting of rooms to transient guests and the customary hotel accommodations and facilities.

(i) The premises wherein dancing by patrons is permitted under the terms and provisions of this section shall be at all times reasonably and adequately lighted and the license shall be posted and at all times displayed in a conspicuous place in the room or principal room where dancing is permitted.

(j) The dance permit may be renewed by filing a renewal application with the commissioner of public safety or his designee who shall not be required to re-inspect the premises pursuant to subsections (b), (c) and (d) above but shall determine whether the applicant otherwise continues to meet the requirements for a dance permit. The provisions of subsections (e) and (f) above shall apply to the renewal application.

(k) Any person violating any of the provisions of this section or who, having been issued a permit hereunder, allows such business to operate in such a manner as to create a nuisance or to violate any of the provisions of this chapter or any law relating to the sale of alcoholic beverages shall, in addition to any other penalties prescribed by law, be fined in accordance with section 3-26(e).

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 246-97, § 2, 11-20-97; Ord. No. 47-99, § 7, 3-2-99; Ord. No. 86-2000, § 12, 4-13-00)

Sec. 3-23. Display of warning to minors.

It shall be the duty of every retail licensee to display at all times in a prominent place a printed card at least eight (8) inches by eleven (11) inches in size which shall show, in 30-point or larger type, substantially as follows:

WARNING TO MINORS

Persons under the age of twenty-one (21) are subject to a fine up to one hundred dollars ($100.00) if they:

1. Enter licensed premises to buy, or have served to them, alcoholic beverages.
2. Possess, purchase or attempt to purchase, or get another to purchase alcoholic beverages.
3. Misrepresent their age for the purpose of purchasing or obtaining alcoholic beverages.
4. Use or attempt to use any false, fraudulent or altered identification card or document to purchase or attempt to purchase or otherwise obtaining any alcoholic beverages.

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 86-2000, § 13, 4-13-00)

Sec. 3-23.1. Permitting possession by minors prohibited.

(1) No person being the owner or occupant or otherwise in possession or control of any property located within the urban county shall knowingly allow any minor to remain on such property while in possession of, using or consuming alcoholic beverages.

(2) No person shall knowingly allow, aid, assist, induce, cause or otherwise encourage any minor to be in possession of, use or consume alcoholic beverages.

(3) It shall be a defense to any prosecution under this section if the person charged, upon discovery of said minor individuals, manifests a proper effort to enlist the aid of and cooperate with law enforcement personnel in stopping the minor individuals' possession, consumption or use of alcoholic beverages, or that the minor individuals' possession of alcoholic beverages was exempted by KRS 244.087.

(4) As used in this section, the term **alcoholic beverages** shall have the meaning given to it in KRS 241.010.

(Ord. No. 51-87, § 1, 4-2-87; Ord. No. 86-2000, § 14, 4-13-00)

Cross reference(s)—Minors obtaining alcoholic beverages, § 14-39.

Sec. 3-23.2. Congregating on certain ABC licensed premises and vacant premises prohibited.

(1) No person or entity operating a package liquor store shall knowingly allow or permit habitual congregating of persons on the unenclosed portion of the licensed premises so as to constitute a public nuisance.

(2) No person or entity being the owner or otherwise in possession or control of any vacant property shall knowingly allow or permit habitual congregating of persons on the unenclosed portion of such property so as to constitute a public nuisance.

(3) No persons shall congregate for the purposes, under the circumstances, or in the places proscribed in subsections (1) and (2) of this section.

(4) It shall be a defense to any prosecution under subsection (1) or (2) if such licensed vendor or property owner shall permit the division of police to post and maintain a legible, painted or printed sign in at least two (2) separate prominent places in such area, in letters of not less than three (3) inches in height, stating that congregating of persons is prohibited and that violators shall be prosecuted for trespass pursuant to KRS 511.080.

(5) As used in this section, the term:

(a) Habitual shall mean consistent, that is, by frequent practice or use, but not necessarily constant or exclusive;

(b) Package liquor store shall mean a retail establishment selling distilled spirits, wine and/or malt beverages in package containers pursuant to licenses issued for those purposes;

(c) Public nuisance shall mean any activity that endangers or interferes with the general use and enjoyment of neighboring property, passers-by, or the health, safety and welfare of the public; and

(d) Vacant property shall mean a vacant lot on which no building or other structure exists or property on which any structure is unoccupied or unused, or which otherwise reflects abandonment by the owner or person with the right of occupancy.

(Ord. No. 74-88, § 1, 4-21-88; Ord. No. 104-2023, § 1, 9-28-23)

Sec. 3-23.3. Alcohol warning signs; drinking alcohol during pregnancy.

All licensed retail vendors of alcoholic beverages shall post in a prominent place a printed sign at least eleven (11) inches by fourteen (14) inches in size, with letters at least one (1) inch high, which shall warn that drinking alcoholic beverages prior to conception or during pregnancy can cause birth defects.

(Ord. No. 204-88, § 1, 9-8-88; Ord. No. 256-88, § 1, 11-3-88; Ord. No. 100-93, § 1, 6-17-93)

State law reference(s)—Similar provisions, KRS 243.895.

Sec. 3-24. Lavatory facilities, where required.

All retail beer and retail drink licenses shall be required to provide indoor or outdoor lavatory facilities for their customers where such beverages are consumed on the premises.

(Ord. No. 134-79, § 2, 5-31-79)

Sec. 3-25. Inactive and dormant license renewal.

(a) Any license under which no business is transacted for a period of forty-five (45) days shall be deemed inactive and shall be surrendered by the licensee or shall be revoked by the urban county administrator. Any licensee who has had its state alcoholic beverage license placed in dormancy shall, within three (3) days of the state granting its dormancy application, apply to place its urban county license in dormancy or shall immediately surrender its urban county license.

(b) A licensee shall not be deemed to have transacted business for purposes of this section unless its gross sales of alcoholic beverages during any calendar month equal or exceed ten (10) percent of its gross sales of alcoholic beverages for the immediately preceding calendar year.

(c) If a license becomes inactive under the provisions of this section because the licensee was unable to transact business on the licensed premises due to an act of God, casualty, act of eminent domain, landlords refusal to renew an existing lease for the premises, court action, or other similar and verifiable business reason, then the license may not be revoked if the licensee files an application with the urban county administrator to place the license in dormancy and the licensee otherwise satisfies the conditions for a dormant license. The application must be filed prior to the forty-fifth day on which no business is transacted under the license and shall be accompanied by a non-refundable fee of one hundred dollars ($100.00).

(d) The urban county administrator may grant an application to place a license in dormancy if he determines that such status satisfies the business reasons identified in subsection (b).

(e) A dormant license shall continue to be valid during the license period but no business shall be transacted under the license and no alcoholic beverages may be kept on the licensed premises. The dormant license shall be renewed in the same manner as an active license. A license may remain in dormancy for a maximum period of twelve (12) months from the date the dormant license application is granted. Each licensee shall be permitted to place a license in dormancy on only two (2) occasions.

(f) A licensee may activate a dormant license by filing a written request with the urban county administrator. Activation may be granted if the licensee meets all state and local requirements to hold the license.

(Ord. No. 86-2000, § 15, 4-13-00)

Sec. 3-26. Penalties.

(a) Any person who shall engage in or carry on, without a license, any business for which a license is provided by this chapter, or who, having had a license, shall continue in such business in any succeeding year without obtaining a renewal of his license, shall be guilty of a misdemeanor and shall be liable to be proceeded against for the penalty prescribed in subsection (b) in addition to the amount of the license.

(b) Any person who shall violate any provisions of this chapter, other than those provisions specified in subsections (c) through (k) of this section, shall, for each offense, and upon conviction in the district court of the urban county government, be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) or confined in the detention center for more than thirty (30) days, or both so fined and imprisoned. Each day of such violation shall constitute a separate offense.

(c) Any person violating any of the provisions of section 3-20 shall, upon conviction thereof, be fined one hundred dollars ($100.00) for each offense.

(d) Any person, who, by himself or acting through another, directly or indirectly, violates any of the provisions of section 3-21 shall upon the first conviction thereof be fined not less than one hundred dollars ($100.00) nor more than two hundred dollars ($200.00), or imprisoned for not more than six (6) months or both; and for the second and each subsequent conviction he shall be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

(e) Any person violating any of the provisions of section 3-22 shall, upon conviction thereof, be fined not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00) or confined in the detention center not less than one (1) day nor more than thirty (30) days or both so fined and imprisoned; and the license issued to such person shall become null and void.

(f) Any person violating any of the provisions of section 3-23 or section 3-23.3 shall, upon conviction thereof, be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(g) Any person violating any of the provisions of section 3-23.1 shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), and each day of such operation shall constitute a separate offense.

(h) Any person violating any of the provisions of section 3-23.2 shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00), and each day of such assembly shall constitute a separate offense.

(i) Any person violating any of the provisions of section 3-24 by selling beer or liquor by the drink without providing lavatory facilities shall be fined not less than ten dollars ($10.00) nor more than twenty-five dollars ($25.00), and each day of such operation shall constitute a separate offense.

(j) Any person violating the provision of section 3-27 shall, upon conviction thereof, be fined up to five hundred dollars ($500.00) for each offense.

(k) Any person violating the provisions of section 3-28 shall, upon conviction thereof, be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(Ord. No. 134-79, § 2, 5-31-79; Ord. No. 51-87, § 2, 4-2-87; Ord. No. 74-88, § 2, 4-21-88; Ord. No. 204-88, § 2, 9-8-88; Ord. No. 79-97, §§ 1, 3, 5-29-97; Ord. No. 233-98, § 2, 8-27-98; Ord. No. 278-2003, § 2, 11-20-03; Ord. No. 282-2005, § 2, 10-6-05)

Sec. 3-27. Malt beverage keg registration.

(a) For purposes of this section a "keg" is defined as a brewery-sealed individual container of malt beverage having a liquid capacity of six (6) or more gallons.

(b) Each malt beverage retail licensee who sells malt beverages in kegs for consumption off the premises of the licensee shall:

(1) Affix a keg identification tag on all kegs at the time of sale;

(2) Require the purchaser of the keg to complete a keg registration form;

(3) Provide a copy of the completed keg registration form to the purchaser at the time of sale;

(4) Retain, maintain and produce the keg registration form in the same manner as the licensee is required by state law to keep, maintain, retain and produce alcoholic beverage records;

(5) Remove the keg identification tag when the keg is returned to the licensee; and

(6) If a keg is returned without the keg identification tag, within five (5) business days of the return date provide written notice of that fact to the office of the urban county alcoholic beverage control administrator by delivery or by regular, first-class mail.

(c) The keg identification tag shall be furnished by the urban county administrator and shall be in a form prescribed by administrator. The keg identification tag shall consist of paper within a clear plastic coating, plastic, metal, or another durable material that is not easily destroyed. The keg identification tag shall be uniquely numbered to allow the keg to be traced and shall be affixed to the keg at the time of sale with nylon ties or cording, wire tires or other metal attachment devices, or another durable means of tying or attach-

ment. The keg identification tag shall include a prominently visible warning that the intentional removal or obliteration of the tag is unlawful. The keg identification tag should be designed so that when affixed or attached to the keg it will not mar or otherwise physically damage the keg.

(d) The keg registration form shall be in the form prescribed and furnished by the urban county administrator and shall contain the following:

(1) The name and address of the purchaser, verified by an equivalent valid identification document;

(2) The purchaser's motor vehicle operator's number or the type and number of an equivalent identification document;

(3) A statement signed by the purchaser stating that:

a. The purchaser is twenty-one (21) years of age or older;

b. The purchaser does not intend to allow persons less than twenty-one (21) years of age to consume any of the malt beverages being purchased;

c. The purchaser will not intentionally remove or obliterate or knowingly permit the removal or obliteration of the keg identification tag; and

d. The purchaser will produce a copy of the keg registration form upon request of any law enforcement officer.

(4) The location or property address or addresses where the keg will be physically located and the contents consumed and the date or dates on which the contents will be consumed;

(5) The date of sale, the size of the keg, the keg identification number, the amount of the container deposit, if any, paid by the purchaser, and the name of the licensee's agent, servant or employee selling the keg; and

(6) A summary of the requirements of this section including the penalties for any violations of this section and the penalties for providing alcoholic beverages to a minor.

(e) Any brewer, distributor or microbrewer who sells malt beverages in kegs to its employees for home consumption or to charitable or fraternal organizations holding group meetings, picnics or outings shall comply with the requirements of this section when the keg will be physically located or the contents consumed in the urban county.

(f) Any person in possession of a keg that was purchased outside of the urban county shall comply with this section by:

(1) Obtaining a keg identification tag from the urban county administrator within five (5) days of bringing the keg into Fayette County;

(2) Affixing the identification tag to the keg;

(3) Providing the urban county administrator with the information required to complete the keg registration form and sign the completed form; and

(4) Producing a copy of the keg registration form upon request of any law enforcement officer; and

(5) Removing the keg identification tag when the keg is returned to the licensee and, within five (5) business days of such removal, returning the identification tag to the office of the urban county alcoholic beverage control administrator.

(g) It shall be unlawful:

(1) To sell or offer for sale a keg without an affixed keg registration tag;

(2) To sell a keg without obtaining a completed keg registration form;

(3) Except as provided herein, for any person, other than a licensed retailer, brewer, distributor or microbrewer, to remove or obliterate a keg identification tag;

(4) To knowingly provide false information on a keg registration form or to sign a keg registration form knowing the information contained in the form is false;

(5) For any person, other than a licensed retailer, brewer, distributor, transporter or microbrewer, to possess a keg without an affixed keg registration tag;

(6) Except for the five-day period in (f)(1) for kegs purchased outside Fayette County, for any person, other than a licensed retailer, brewer, distributor, transporter or microbrewer, to keep a keg at any place or places other than the location or property address or addresses identified on the keg registration form, except for transporting a keg to and from the licensed premises or between the locations or addresses identified on the keg registration form.

(h) Any keg sold or kept in violation of this section may be confiscated by any law enforcement officer and, upon conviction of the seller or keeper thereof, the keg or any deposit paid to the retail licensee who sold the keg shall be forfeited to the urban county government.

(i) The urban county administrator may charge a reasonable fee for furnishing the keg identification tag and keg registration form, which fees shall be used to pay the costs of implementing and enforcing this section. The urban county administrator is authorized to promulgate reasonable regulations to implement the provisions of this section.

(Ord. No. 278-2003, § 1, 11-20-03)

Sec. 3-28. Beverage service training.

(a) Any person who sells or serves alcoholic beverages in a licensed retail establishment or in any premise where alcoholic beverages are sold or served by the holder of a caterer's or special event license shall participate in and successfully complete a responsible beverage service training program meeting the requirements of subsection (e) below. The urban county administrator is authorized to determine whether a program satisfies the requirements of subsection (e), and upon the request of the licensee he will timely review a program to determine whether it satisfies these requirements. In the event the urban county administrator determines that a program fails to meet any of the requirements in subsection (e) below, he will notify the licensee of the non-satisfactory portion(s) of the program.

(b) All persons who are required to complete training under subsection (a) above and who were not previously subject to the training requirement, shall complete the training within sixty (60) days of the date on which the person is employed or otherwise first subject to the training requirement.

(c) Every licensee shall require every agent, servant or employee who sells or serves or is authorized to sell or serve alcoholic beverages on the licensed premises to complete a responsible beverage service training program meeting the requirements of subsection (e) below. Except for the sixty-day grace period in subsection (b) above, no licensee shall permit any person who has failed to successfully complete the mandatory training to sell or serve alcoholic beverages.

(d) Every licensee shall maintain on the licensed premises a file containing the name, job description, date of employment or association with the licensee and proof of successful completion of a responsible beverage service training meeting the requirements of subsection (e) below for each agent, servant or employee of the licensee who sells or serves or is authorized to sell or serve alcoholic beverages. The licensee shall retain, maintain and produce the compliance file in the same manner as the licensee is required by state law to keep, maintain, retain and produce alcoholic beverage records;

(e) A responsible beverage service training program must effectively train its participants in the following:

(1) Applicable state statutes and regulations and local ordinances regarding the sale of alcoholic beverages. The urban county administrator will prepare and distribute to all licensees a list of the minimal statutes, regulations and ordinances that each agent, servant or employee of a licensee who sells or serves or is authorized to sell or serve alcoholic beverages should know. A signed statement from each such agent, servant or employee indicating that he or she is familiar with and understands the list of statutes, regulations and ordinances provided by the urban county administrator shall satisfy this aspect of training;

(2) Verification of age, forms of identification and methods of recognizing false or misleading age documents;

(3) The effect of alcohol on humans and the physiology of alcohol intoxication;

(4) Recognition of the signs or characteristics of alcohol intoxication;

(5) Strategies for intervention and preventing underage and intoxicated persons from consuming alcoholic beverages; and

(6) Potential liability for persons selling or serving alcoholic beverages. (Ord. No. 282-2005, § 1, 10-6-05)

Sec. 3-29. Commercial quadricycles.

(a) **Commercial quadricycles.** That commercial quadricycles shall have the same meaning as set out in KRS 241.010(16).

(b) **[Permits:]**

(1) No person shall drive or operate a commercial quadricycle for hire in Lexington Fayette Urban County unless the commercial quadricycle owner obtains an operating permit from the division of alcoholic beverage control, in compliance with the following requirements:

a. Completion of a written application with the division of alcoholic beverage control which must include the commercial quadricycle business' name, registered address and articles of incorporation;

b. Written documentation that the commercial quadricycle business has general liability insurance of at least two million dollars ($2,000,000.00) from an insurer authorized to do business in the Commonwealth of Kentucky;

c. Documentation that every commercial quadricycle operated on public streets and highways has been inspected and is certified as meeting the safety and equipment standards;

d. A proposed travel route which shall meet the requirements of Section 3-29(c) of this chapter;

e. Payment of an annual permit fee of two hundred fifty dollars ($250.00) per quadricycle to the division of revenue;

f. Any other documents as the division of alcoholic beverage control may require.

(2) Any permit under this section may be denied, suspended or revoked for one (1) or more of the following reasons:

a. The applicant has failed to comply with one (1) or more of the provisions of this chapter;

b. Fraud, misrepresentation, or bribery in securing or renewing a permit;

c. Fraud, misrepresentation, or false statements made in the application and investigation for, or in the course of the applicant's business;

d. The operating permit is defaced, altered, forged or counterfeited; or

e. Failure to comply with any other local, state or federal law.

(3) A commercial quadricycle business may appeal any denial, suspension, or revocation within seven (7) days of the date of the decision to the commissioner of public safety. A denial by the commissioner of public safety may be appealed within thirty (30) days of the decision to the Fayette County Circuit Court.

(c) **[Travel routes:]**

(1) A commercial quadricycle business must submit its proposed travel route to the alcoholic beverage control administrator for approval. Proposed travel routes shall include:

a. Starting and ending points;

b. Drop off points;

c. Duration of the trip;

d. Expected starting times; and

e. The days of the week that the quadricycle will be traveling this route.

(2) The travel route will be restricted to the following boundaries: High Street turning into Versailles Road from Woodland Avenue to South Forbes Road; South Forbes Road from Versailles Road to West Main Street; West Main Street from South Forbes Road to Newtown Pike; Newtown Pike from West Main Street to Fourth Street; Fourth Street from Newtown Pike to Jefferson Street; Jefferson Street from Fourth Street to Sixth Street; Sixth Street from Jefferson Street to Elm Tree Lane; Elm Tree Lane from Sixth Street to East Third Street; East Third Street from Elm Tree Lane to Winchester Road; Winchester Road from East Third Street to Delaware Avenue; Delaware Avenue from Winchester Road to Henry Clay Blvd; Henry Clay Blvd. from Delaware Avenue to Fairway Drive; Fairway Drive From Henry Clay Blvd to Fairwood Lane; Fairwood Lane from Fairway Drive to East Main Street; East Main Street from Henry Clay Blvd. to Woodland Avenue and Woodland Avenue from East Main Street to High Street. The proposed travel route will need to be vetted with traffic engineering, Lexington division of police, and streets and roads for any adverse impact on safety and roadways. The applicant must submit its planned route during the application process for approval.

(3) Approval or denial of the purposed travel routes for commercial quadricycles will include, but not limited to, the following factors:

a. The number of other travel routes;

b. The safety concerns raised by operating the quadricycle on public highways and streets;

c. The density of vehicular and pedestrian traffic in an area during the proposed operating times; and

d. Any other information relevant to the approval process.

(4) The division of alcoholic beverage control may place additional conditions and limitations on any approved travel route, such conditions and limitations may include, but not limited to, dates and times of operation.

(5) Appeal of any denied travel route may be made within seven (7) days to the commissioner of public safety. A denial by the commissioner of public safety may be appealed within thirty (30) days of the decision to the Fayette County Circuit Court.

(d) **Safety and equipment standards:**

(1) Every commercial quadricycle in operation shall be annually inspected by the division of alcoholic beverage control and meet the following minimum requirements:

a. A slow-moving emblem in accordance with KRS 189.820;

b. A back or seatbelt for each passenger seat;

c. A minimum of four (4) hydraulically operated brakes;

d. A rearview mirror;

e. Headlights; and tail lights if planning to operate at night;

f. Brake lights;

g. Turning signals;

h. A trash receptacle for refuse; and

i. Any other equipment required to comply with all applicable federal and state law.

(2) A commercial quadricycle business shall affix its authorized public consumption license number to each commercial quadricycle in a clear and conspicuous place, if it is allowing for consumption of alcohol.

(e) **Hours of operation.** Commercial quadricycles shall only operate between the local hours of 10:00 a.m. to 11:00 p.m., Monday through Saturday, and 11:00 a.m. to 10:00 p.m. on Sunday.

(f) **Consumption of alcohol:**

(1) Consumption of alcohol shall be allowed if the proper alcoholic consumption license is obtained by the quadricycle business. The APC license will permit passengers to bring a maximum of forty eight (48) total ounces of malt beverages for consumption during travel from nondescript cups; shall not permit glass containers; shall not sell alcoholic beverages or provide samples.

(2) An individual applying for an alcoholic public consumption license shall file an application using the current alcoholic beverage control process and standards, locally and with state alcoholic beverage con-

trol. Along with the application, affidavit of publication and newspaper clipping, background check, articles of incorporation, deed/lease/permit, fee payment form, final inspection form, quadricycle photograph and photo copy of driver's license/photo identification are required to be submitted.

(g) **Standards for commercial quadricycle operation:**

(1) a. Every quadricycle shall operate in conformity and with respect to all traffic laws, rules and regulations of the Lexington-Fayette Urban County Government and the Commonwealth of Kentucky.

b. Commercial quadricycle operators shall be twenty-one (21) years old.

c. Hold a valid drivers' license, complete certified alcoholic beverage control server training program as approved by local or state alcoholic beverage control.

d. No person shall operate a commercial quadricycle unless all passengers are seated in a seat designated for that purpose and remain seated the entire time the quadricycle is in motion.

e. No person shall operate a commercial quadricycle when the number of passengers exceeds the number of available inspected seats.

f. No commercial quadricycle shall be stored on public property overnight, including, but not limited to, streets, highways or thoroughfares.

g. Every commercial quadricycle shall operate as close as possible to the shoulder of the road, except when necessary to overtake another vehicle or to avoid a stationary object.

h. The driver and other employees must not consume or be under the influence of alcoholic beverages or illegal substances.

(h) **Standards for loading and unloading passengers:**

(1) Loading and unloading passengers shall be done off roadway in a parking lot, if possible, for traffic and passenger safety.

(Ord. No. 50-2020, §§ 1—8, 6-11-20)

Chapter 4

Animals and Fowl[1]

Article I. In General

Section 4-1. Auction sales on streets.
Section 4-1.1. Animal adoption.
Section 4-2. Care and treatment of animals.
Section 4-3. Same--Poisoning, etc.
Section 4-4. Same--Abandoning disabled animal.
Section 4-5. Same--Killing, etc., squirrels, rabbits or birds.
Section 4-6. Same--Fights; wagering.
Section 4-7. Same--Selling dyed chicks or other baby fowl.
Section 4-8. Same--Selling chicks or other baby fowl in small numbers.
Section 4-9. Same--Aid to S.P.C.A., Humane Society.
Section 4-10. Fowl going at large.
Section 4-10.1. Horses running at large.
Section 4-11. Hogs; keeping.
Section 4-11.1. Dangerous wildlife.
Section 4-12. Noisy animals, keeping.
Section 4-12.1. Giving away live animals as prizes prohibited.

Article II. Dogs

Section 4-12.2. Nuisances created by animals.
Section 4-12.3. License required for dogs or cats.
Section 4-12.4. Kennel license.
Section 4-12.5. Standards for kennels.
Section 4-13. Sale of dogs and cats by retail pet stores prohibited.
Section 4-13. 1 Sale of dogs and cats in public places prohibited.
Section 4-14. Vicious dogs.
Section 4-15. Reserved.
Section 4-16. Enticing dog from owner; bringing into urban county for impounding; removing muzzle or tag.
Section 4-17. Taking unleashed dogs into parks.
Section 4-18. Female dogs in heat not to run at large.

1. **Charter reference(s)**—Authority to provide for the protection of and prevent cruelty to animals, § 3.02(22).
Cross reference(s)—Fish vending on streets, § 10-16; milk, § 10-51 et seq.; traffic regulations, § 18-9.
State law reference(s)—Agriculture and animals, KRS ch. 246 et seq.

Section 4-19. Dogs running at large.
Section 4-20. Reserved.
Section 4-21. Impoundment.
Section 4-21.1. Spay/neuter grant program.
Section 4-21.2. Definitions.
Section 4-22. Dog pound; dog wardens.
Section 4-23. Dog run areas.
Section 4-23.1. Responsibility of owner to remove animal excreta from waste removal areas.

Article III. Horse-Drawn Vehicles

Section 4-24. License required.
Section 4-25. Application for license.
Section 4-26. Insurance, bond, inspection certificate.
Section 4-27. Insurance, bond.

Section 4-28. Vehicle inspection, permit.

Section 4-29. Inspection of horses, permit.

Section 4-30. Driver's permit.

Section 4-31. Obedience to traffic regulations; operating hours.

Section 4-32. Responsibilities of licensee.

Section 4-33. Minimum standards.

Section 4-34. Penalties.

Article I

In General

Sec. 4-1. Auction sales on streets.

(a) It shall be unlawful for any person to sell by public auction any loose animal on any street, alley or public highway within the urban county or to expose for sale thereon animals in droves, herds or flocks.

(b) Each violation of this section shall be punishable by a fine not exceeding twenty-five dollars ($25.00).

Cross reference(s)—Auctions generally, § 13-23 et seq.

Sec. 4-1.1. Animal adoption.

(a) **Definitions.** For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning:

Animal adoption or **adoption** means the transfer of possession and ownership of a dog or cat from a person or entity that did not originally breed the animal, is not commercially selling the animal for a profit, or is classified as exempt from federal taxation under section 501(c) of the Internal Revenue Code (26 U.S.C. sec. 501(c)).

Adoption agency or **agency** means any person or not-for-profit entity offering ten (10) or more animals for adoption in any calendar year or conducting animal adoptions within Fayette County.

Adopter means the person or entity that accepts the transfer of possession and ownership of an animal from an adoption agency.

Adoption fee means the consideration, monetary or otherwise, exchanged for the adoption of an animal, including all costs paid or to be paid by the adopter.

Animal means a dog or a cat.

(b) Any person who in any calendar year offers ten (10) or more animals for adoption within Fayette County shall be considered an adoption agency and shall comply with the following conditions:

(1) Provide the adopter with a comprehensive list of medical care and services provided to the animal as of the date of adoption and the adoption agency's policy for returning animals.

(2) Shall, at a minimum, spay or neuter, vaccinate for rabies, obtain and maintain all applicable state and local licenses, and microchip with an identification tag all animals offered for adoption. On the date of the adoption, the adoption agency shall provide the adopter with documentary evidence of compliance with this subsection.

(3) Shall post at each location where animals are available for adoption, in a conspicuous place, a sign containing the name (including corporate or company status), business address, and telephone number of the adoption agency and the name of the person responsible for the adoption agency's compliance with this section.

(4) Shall provide the adopter with a copy of the information required in subsection (b)(3) and an itemized list of the adoption fees.

(5) If it is not medically advisable to neuter or spay the animal offered for adoption, then the adoption agency and the adopter shall enter into a written adoption contract in which the adopter agrees to have the animal spayed or neutered within a period of four (4) months from the date of adoption and the adoption agency agrees to pay the cost of neutering or spaying the animal at the appropriate time. A written statement from a licensed veterinarian shall be required to qualify for the temporary exemption from neutering or spaying. Evidence of payment for the cost of neutering or spaying the animal shall be provided in writing to the person adopting the animal on the date of the adoption.

(c) A violation of subsection (b) shall be a misdemeanor, punished by a fine of up to five hundred dollars ($500.00). Each day's continuance of any such violation shall be a separate offense and each animal offered for adoption or adopted in violation of this section shall be considered a separate offense.

(d) Any animal offered for adoption in violation of the provisions of this section may be seized and impounded by the urban county government and may be confined at the urban county government animal shelter until all violations are corrected and all fines paid. The urban county government or its designee may transfer title to any animal impounded for a period greater than thirty (30) days.

(Ord. No. 304-2001, § 1, 12-6-01)

Sec. 4-2. Care and treatment of animals.

(a) **Definitions.**

Adequate food means the provision of foodstuff that is uncontaminated, wholesome, palatable, and of sufficient quality and nutritive value to maintain the normal condition and weight of the animal. Food shall be provided at suitable intervals or at least once a day, unless restricted by a veterinarian. The diet shall be appropriate for the animal's species, age and condition. Food shall be served in a receptacle, dish or container that is physically clean and absent of agents injurious to the health of the animal.

Adequate shade means for dogs one (1) or more separate outside areas of shade, large enough to contain all dogs at one (1) time and to protect them from the direct rays of the sun. A doghouse shall not constitute adequate shade. For all other animals that, as determined by species, require shade, "adequate shade" means one (1) or more outside areas of shade large enough to protect all the animals present from the direct rays of the sun.

Adequate shelter means for dogs an appropriate, durable, enclosed, permanent structure, or a structure manufactured to serve primarily as an outdoor shelter for a dog, with a roof, four (4) sides and a floor constructed in a manner to protect a dog's feet and legs from injury and with dimensions appropriate for breed and size. The shelter shall provide the dog adequate protection and shelter from heat and cold and from the direct effect of wind, rain and snow. The shelter shall have a sufficient amount of clean organic bedding material, e.g., straw, hay or wood shavings, to keep the dog warm and dry. For all other animals, "adequate shelter" means an appropriate structure that provides the animal adequate protection and shelter, as determined by the animal's species, from heat and cold and from the direct effect of wind, rain and snow.

Adequate water means constant access to a supply of clean, fresh, drinkable water, unless restricted by a veterinarian, which is provided in a sanitary manner.

Veterinary care means an appropriate level of professional medical care and treatment by a licensed veterinarian to maintain the proper health and condition of an animal as determined by its species, breed and age.

(b) It shall be unlawful:

(1) For any person within the urban county to unnecessarily or cruelly beat, torture, abuse or otherwise mistreat any horse or other animal, whether his own or that of another, or to subject such an animal to any condition that is likely to result in harm to the animal.

(2) For the owner or harborer of an animal to fail to provide the animal with adequate food, water, shelter, shade or veterinary care.

(3) For any animal's housing area or enclosure to be excessively muddy or contain standing water, due to a lack of groundcover, or be otherwise unsanitary. Any animal's area or enclosure shall be free of objects or contaminants which are likely to cause injury or be detrimental to the health of the animal, including, but not limited to, rusty or jagged metal objects, broken glass, or harmful chemical solvents or agents.

(4) For any person to permit the accumulation of animal excrement on property he or she owns or leases so as to cause unsightly litter or fouling of the air by odor, thereby creating an unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the animal is kept or harbored.

(5) For the owner or harborer of a dog to use a collar or harness made of wire, flat chain, chain with sharp edges, or chain with rusty or non-uniform links. If attached to a tether, the collar or harness shall be properly fitting and not primarily metal or choke-type. The tether attached to a collar or harness shall be of a weight and material appropriate for the breed and size of the animal; cannot weigh more than five (5) pounds total weight; be no less than twelve (12) feet in length; and have swivels at both ends. A person shall not wrap a tether directly around a dog's neck. An area where a dog is tethered shall be free of objects which could become tangled in the tether. The tether shall be secured to a fixed immobile point that allows freedom of movement while withstanding the force necessary to restrain the dog.

(c) Any person who violates this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or be imprisoned for a term not to exceed twelve (12) months, or both, for each act, which shall constitute a separate offense.

(Ord. No. 10-99, § 1, 1-28-99; Ord. No. 108-2009, § 1, 6-25-09; Ord. No. 232-2009, § 1, 11-5-09; Ord. No8. 0-2017, § 1, 5-25-17)

State law reference(s)—Cruelty to animals, KRS 525.125, 525.130.

Sec. 4-3. Same--Poisoning, etc.

If any person shall in the urban county unlawfully kill, disfigure, maim, poison or attempt to administer poison to, any animal whether his own or that of another, he shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 10-99, § 1, 1-28-99)

Sec. 4-4. Same--Abandoning disabled animal.

Any person who shall leave or cause to be left any wounded, diseased or infirm animal on a street, alley, lot or commons to die a lingering death shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 10-99, § 1, 1-28-99)

Sec. 4-5. Same--Killing, etc., squirrels, rabbits or birds.

(a) It shall be unlawful for any person, at any time within any area of the urban county except those zoned agricultural, to kill, injure, pursue, molest or attempt to injure any squirrels or rabbits running at large in the urban county or any birds other than birds of a predatory nature.

(b) Any person who shall violate any provision of this section shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 10-99, § 1, 1-28-99)

Sec. 4-6. Same--Fights; wagering.

(a) Intentionally causing or instigating the fighting of animals or fowl in the urban county is hereby prohibited.

(b) Any person who shall be present at and abet or encourage any such fights and any person who shall bet any money or other thing of value upon the results of any such fight shall, upon conviction, be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 10-99, § 1, 1-28-99)

Sec. 4-7. Same--Selling dyed chicks or other baby fowl.

Any person who shall sell or offer for sale at retail living baby chicks, ducklings or other fowl which have been dyed, colored or otherwise treated so as to import artificial color, shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 10-99, § 1, 1-28-99)

Sec. 4-8. Same--Selling chicks or other baby fowl in small numbers.

Any person who shall sell or offer for sale at retail living baby chicks, ducklings or other fowl under two (2) months of age in any quantity less than six (6) shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 10-99, § 1, 1-28-99)

Sec. 4-9. Same--Aid to S.P.C.A., Humane Society.

(a) It shall be the duty of police officers of the urban county government to aid any member of the Society for the Prevention of Cruelty to Animals or of the Lexington Humane Society in the arrest of any persons who may be in the act of violating any of the provisions of sections 4-2 through 4-12.1 or of the statutes of the state relating to cruelty, mistreatment, or torture of animals.

(b) Any police officer failing to perform the duty required of him in this section shall be fined five dollars ($5.00) for each offense.

(c) Animal control officers may seize and impound any animal or fowl which is the subject of a violation of the provisions of sections 4-2 through 4-12.1 of this Code. In addition to any other penalties provided in this Code, any person whose animal or fowl is impounded under this section shall be liable to the urban county animal control officer for the actual costs incurred in seizing, impounding and confining the animal or fowl.

(Ord. No. 10-99, § 2, 1-28-99; Ord. No. 90-2005, § 1, 4-21-05; Ord. No. 80-2017, § 2, 5-25-17)

Sec. 4-10. Fowl going at large.

(a) No person owning or having in his custody and control any fowl shall permit same to run at large, or to go upon the grounds or property of another, or beyond the bounds of the property of such owner or person in control of such fowl.

(b) Any person who shall violate any provision of this section shall be fined not less than one dollar ($1.00) nor more than twenty-five dollars ($25.00) for each offense.

State law reference(s)—Strays and animals running at large, KRS ch. 259.

Sec. 4-10.1. Horses running at large.

(a) It shall be unlawful for any person owning or having custody and control of any horse, or other member of the equine family, to permit the animal to run at large within the urban county.

(b) The owner or person exercising custody and control of any horse, or other member of the equine family, found running at large in violation of this section shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) for a first offense; not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for a second offense during a twelve-month period; not less than two hundred-fifty dollars ($250.00) nor more than five hundred dollars ($500.00) for a third offense during a twelve-month period; and not less than five hundred dollars ($500.00) for a fourth and each subsequent offense during a twelve-month period.

(Ord. No. 63-2012, § 1, 5-17-12)

Sec. 4-11. Hogs; keeping.

(a) The keeping of hogs, goats or pigs within any area of the urban county except those zoned agricultural is hereby prohibited and declared to be unlawful.

(b) A violation of the provisions of this section shall subject the offender to a fine of five dollars ($5.00) and each day such violation shall continue shall be deemed a separate offense.

Sec. 4-11.1. Dangerous wildlife.

(a) The keeping or holding of wildlife that have been identified by the Kentucky Department of Fish and Wildlife Resource as inherently dangerous to human health and safety within any area of the urban county is hereby prohibited and declared to be unlawful. This section shall not apply to any zoological garden accredited by the American Association of Zoological Parks and Aquariums, appropriately licensed theatrical exhibits, carnivals or circuses, any authorized wildlife rehabilitator or licensed veterinary hospital for purposes of treating injured animals, or any federally-licensed research institution.

(b) Any wildlife kept in violation of the provisions of this section shall be seized and impounded by the division of police and shall be confined in a suitable place.

(c) A violation of the provisions of this section shall subject the offender to a fine of not less than two hundred dollars ($200.00) and not more than five hundred dollars ($500.00) in addition to the reasonable costs incurred in seizing, impounding and confining the wildlife. Each day such violation shall continue shall be deemed a separate offense.

(Ord. No. 147-94, § 1, 7-14-94; Ord. No. 178-98, § 1, 6-25-98; Ord. No. 187-2000, § 1, 6-29-00; Ord. No. 90-2005, § 2, 4-21-05)

Sec. 4-12. Noisy animals, keeping.

(a) It shall be unlawful for any person to keep, pasture or harbor within any area of the urban county except those zoned agricultural any bull, cow or other animal that bellows or otherwise makes such noise as to disturb the peace and quiet of the people in the neighborhood where the same is kept.

(b) Any person violating this section shall be fined not less than five dollars ($5.00) nor more than fifteen dollars ($15.00) for each offense.

Cross reference(s)—Noise disturbances, § 14-71 et seq.

Sec. 4-12.1. Giving away live animals as prizes prohibited.

(a) As used in this section **animal** includes every living creature, domestic or wild, except a human being.

(b) It shall be unlawful within any area of the county for any person to offer or give away any live animal as a prize or reward in connection with any raffle, protest, demonstration, promotion, or as a part of any gratuity or pecuniary exchange to induce entry into any game, contest or other competition, except livestock offered or given away as a part of a farm youth education program.

(c) Nothing in this section shall be construed to prohibit the auction or sale of animals.

(d) Any person who shall violate this section shall, upon conviction thereof, be subject to a fine of not more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both for each offense. Each offering or giving away of an animal in violation of this section shall be deemed a separate offense.

(Ord. No. 201-91, § 1, 9-5-91; Ord. No. 282-95, § 1, 12-7-95)

Article II

Dogs

Sec. 4-12.2. Nuisances created by animals.

(a) It shall be unlawful for the owner or harborer of an animal to permit the animal, without cause, to cause physical injury to any human being or domestic animal, or to give any human being the reasonable impression that he or she is in immediate danger of being physically injured by the animal.

(b) Any person who violates this section shall be punished by a fine of not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00) for a first offense; not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) for a second offense in a twelve-month period; not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for a third offense in a twelve-month period; and not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) for a fourth and each subsequent offense in a twelve-month period. Each day's continuance of any such violation shall be a separate offense.

(Ord. No. 31-93, § 1, 3-11-93; Ord. No. 108-2009, § 2, 6-25-09; Ord. No.80-2017, § 3, 5-25-17)

Sec. 4-12.3. License required for dogs or cats.

(a) Any owner of dogs or cats within the urban county shall apply to the designated license facility for the appropriate license. Proof of licensure shall be evidenced by a license tag issued by the designated license facility. Licenses shall be required for each dog or cat six (6) months of age or older and rabies vaccination shall be required for each dog or cat four (4) months of age or older. Individual dog and cat licenses shall be renewed each year on or before the last day of the month in which the animal's license was issued. License and rabies tags shall be firmly attached to a harness or collar worn by the animal at all times. If a dog or cat is found not to be wearing its license or rabies tag, the owner may prove that the dog or cat is properly vaccinated and licensed by producing a certificate of licensure and evidence of inoculation or by purchasing a vaccination voucher. Animals kept temporarily (not in excess of thirty (30) days) for the purpose of breeding or showing shall not require an individual dog or cat license provided that the owner has proof of a current rabies vaccination.

(b) **Owner**, for the purposes of this section, shall mean any person having an interest in or right of possession to a dog or cat or any person having control, custody or possession of any dog or cat, or having a dog or cat residing consistently at a location.

(c) **Assistance dogs**, as defined by KRS 525.010, shall be exempt from the license required by this section.

(d) The fee for each dog and cat license shall be eight dollars ($8.00) for an altered dog or cat and forty dollars ($40.00) for an unaltered dog or cat. In order to receive the reduced license fee for an altered dog or cat, the

owner or custodian of the animal must provide either proof of alteration from a licensed veterinarian or a written statement from a licensed veterinarian that the spay or neuter procedure would be harmful to the animal. The fee for reissuance of a lost, unexpired license shall be one dollar ($1.00).

(e) The designated license facility may retain six dollars ($6.00) of the fee from each license issued for an altered dog or cat and ten dollars ($10.00) for each license issued for an unaltered dog or cat. Twenty-five dollars ($25.00) of the fee from each license issued for an unaltered dog or cat shall be retained by the agency designated by the department of public safety and used solely to fund the spay and neuter grant program established by section 4-21.1 of this Code.

(f) The fee for each vaccination voucher shall be five dollars ($5.00).

(g) The license fee collected shall be paid to the division of revenue on or before the fifteenth day of each month.

(h) Any person owning an unlicensed dog or cat shall, upon conviction, be punished by a fine not to exceed two hundred dollars ($200.00). Each day's continuance of any such violation shall be a separate offense.

(Ord. No. 32-93, § 1, 3-11-93; Ord. No. 177-93, § 1, 9-23-93; Ord. No. 233-96, §§ 1—4, 11-21-96; Ord. No. 90-2005, § 3, 4-21-05; Ord. No. 142-2011, § 1, 11-3-11)

Editor's note(s)—Section 4-12.3 was added by § 1 of Ord. No. 32-93. Sections 2 and 3 of the ordinance gave conflicting effective dates. Section 1 of Ord. No. 57-93 repealed § 3 of Ord. No. 32-93, thus making the ordinance effective July 1, 1993. Ord. No. 123-93, § 1, adopted June 17, 1993, changed the effective date to Oct. 1, 1993. Section 1 of Ord. No. 177-93, adopted Sept. 23, 1993, purported to amend § 14-12.3(a). The amendment was actually to subsection (a) of this § 4-12.3.

Sec. 4-12.4. Kennel license.

(a) A **kennel**, for purposes of this section shall mean any establishment where eight (8) or more dogs are kept. Puppies in two (2) nursing litters shall not be included in the number of dogs used to define a kennel.

(b) Any owner or operator of a kennel within the urban county shall apply to the designated license facility for a kennel license. A kennel license shall not be required for a licensed veterinary clinic, a state or federally regulated animal research facility, the urban county government division of police canine unit facility or the urban county animal shelter.

(c) Any license issued by the designated license facility under this section shall be subject to all applicable provisions of the zoning ordinance, department of health regulations, chapter 12 of this Code, and the minimum facilities and operating standards established by section 4-12.5 of the Code. Licenses shall be effective upon issuance and remain in effect for a period of twelve (12) months and shall expire the following year on the last day of the calendar month in which the license was issued, unless suspended or revoked pursuant to subsection (g). The designated license facility may refuse to issue a license to any person that fails to meet the requirements of this section or section 4-12.5 of the Code.

(d) The license fee for each kennel is one hundred and thirty-five dollars ($135.00). All license fees collected by the designated license facility shall be paid into the general services fund of the urban county government.

(e) Any dog kept in violation of the provisions of this section or section 4-12.5 of the Code may be seized and impounded by any animal control officer and may be confined at the animal shelter until all violations are corrected and all fines paid. The animal shelter may transfer title to any animal impounded for a period greater than thirty (30) days.

(f) Any person owning or operating a kennel without the license required by this section or in violation of the minimum standards established by section 4-12.5 of the Code shall, upon conviction, be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). Each day's continuance of any such violation shall be a separate offense.

(g) The designated license facility may suspend the license of any person convicted under this section or section 4-12.5 of the Code for up to ninety (90) days, and may revoke the license of any person convicted of two (2) or more such violations within any twelve-month period. The designated license facility may revoke the license of any person convicted of violating any state or local law that criminalizes the mistreatment of animals, including without limitation KRS 525.125, 525.130, 525.135, or Section 4-2 of the Lexington-Fayette County Code of Ordinances. Any person whose license has been revoked may not apply for a new kennel license for a period of five (5) years.

(Ord. No. 77-99, § 1, 4-15-99; Ord. No. 303-2004, § 1, 12-2-04; Ord. No. 90-2005, § 4, 4-21-05; Ord. No. 290-2007, § 1, 12-11-07; Ord. No1.54-2017, § 1, 10-26-17)

Sec. 4-12.5. Standards for kennels.

All kennels within the urban county shall be operated in compliance with the following minimum facilities and operating standards:

(a) Veterinary care shall be provided for all dogs to maintain good health and general welfare and to prevent suffering.

(b) All dogs shall, at a minimum, have current rabies vaccinations a local dog license.

(c) Unless otherwise required by a licensed veterinarian, each dog shall have sufficient space to sit, stand, lie, and turn in a normal manner without touching the sides or tops of cages or enclosures and otherwise have freedom of movement.

(d) **Housing facility** means any premises, shed, barn, building, trailer, or other structure or area housing or intended to house dogs. All dogs shall be provided with housing facilities which meet the requirements of this section and which may consist of an indoor, outdoor or sheltered housing facility, or any combination thereof.

(1) Housing facilities must be kept in good repair, and they must protect the dogs from injury, contain them securely, and restrict other animals from entering.

(2) The surfaces of housing facilities, including houses, dens, and other furniture-type fixtures and objects within the facility, must be constructed in a manner and made of materials that allow them to be readily cleaned and sanitized, or removed or replaced when worn or soiled. Interior surfaces and any surfaces that come in contact with dogs must:

(A) Be free of excessive rust that prevents the required cleaning and sanitization, or that affects the structural strength of the surface; and

(B) Be free of jagged edges or sharp points that might injure the dogs.

(3) **Indoor housing facility** means any structure or building with environmental controls housing or intended to house dogs. Indoor housing facilities must provide adequate protection against weather extremes and must comply with the following requirements:

(A) Floors, walls and roofs of structures and runs must be of impervious material. Floors must be metal, fiberglass, concrete or covered throughout with a minimum depth of three (3) inches of gravel.

(B) The ambient temperature must not fall below forty-five degrees Fahrenheit (45°F) for more than four consecutive hours and must not rise above eighty-five degrees Fahrenheit (85°F) for more than four (4) consecutive hours when dogs are present.

(C) Be sufficiently ventilated when dogs are present to provide for their health and well-being and to minimize odors, drafts, ammonia levels, and moisture condensation. Ventilation must be provided by windows, vents, fans, or air conditioning. Auxiliary ventilation, such as fans, blowers, or air conditioning must be provided when the ambient temperature is eighty-five degrees Fahrenheit (85°F) or higher.

(D) Be lighted well enough to permit routine inspection and cleaning of the facility, and observation of the dogs. Dog areas must be provided a regular diurnal lighting cycle of either natural and/or artificial light and lighting must be uniformly diffused throughout the facility for the well-being of the dogs. Lighting by either natural and/or artificial means shall provide a minimum sixty (60) watts of candle power for at least eight (8) hours each day unless such lighting will adversely affect the health of the dog. Primary enclosures within indoor housing facilities must be placed so as to protect the dogs from excessive light.

(4) **Sheltered housing facility** means a housing facility which provides the dogs with shelter, protection from the elements and protection from temperature extremes at all times. A sheltered housing facility may consist of runs or pens totally enclosed in a barn or building or of connecting outside runs or pens with inside pens in a totally enclosed building.

(A) Dogs kept in sheltered housing facilities must be provided with adequate shelter from the elements at all times to protect their health and well-being.

(B) The following areas in sheltered housing facilities must be impervious to moisture:

(i) Outdoor floor areas in contact with the dogs, when the floor areas are not exposed to the direct sun or are made of a hard material such as wire, wood, metal, or concrete; and

(ii) All walls, boxes, houses, dens, and other surfaces in contact with the dogs.

(5) **Outdoor housing facility** means any structure, building, land, or premise, housing or intended to house dogs, which does not meet the definition of any other type of housing facility provided in this section, and in which temperatures cannot be controlled within set limits.

(A) Outdoor housing facilities must include one (1) or more shelter structures that are accessible to each dog. In addition, one or more separate outside areas of shade must be provided, large enough to contain all the dogs at one time and protect them from the direct rays of the sun. Shelters in outdoor housing facilities must meet the definition in section 4-2 for adequate shelter.

(B) Building surfaces which come into contact with dogs in outdoor housing facilities must be impervious to moisture. Metal barrels, cars, refrigerators or freezers, and the like must not be used as shelter structures.

(6) **Primary enclosure** means any structure or device used to restrict a dog to a limited amount of space, such as a room, pen, run, cage, compartment or hutch. Primary enclosures must be constructed and maintained to meet the following minimum requirements:

(A) Be designed and constructed of suitable materials so that they are structurally sound and be maintained in good repair;

(B) Protect the dogs from injury;

(C) Contain the dogs securely and keep other animals from entering the enclosure;

(D) Enable the dogs to remain dry and clean;

(E) Provide shelter and protection from extreme temperatures and weather conditions that may be uncomfortable or hazardous to all the dogs;

(F) Provide sufficient shade to shelter all the dogs housed in the primary enclosure at one time;

(G) Provide all the dogs with easy and convenient access to clean food and water;

(H) Enable all surfaces in contact with the dogs to be readily cleaned and sanitized or be replaceable when worn or soiled;

(I) Have floors that are constructed in a manner that protects the dogs' feet and legs from injury, and that, if of mesh or slatted construction, do not allow the dogs' feet to pass through any openings in the floor. If the floor of the primary enclosure is constructed of wire, a solid resting surface or surfaces that, in the aggregate, are large enough to hold all the occupants of the primary enclosure at the same time comfortably must be provided;

(J) Provide each female with nursing puppies with an additional amount of floor space, based on her breed and behavioral characteristics, and in accordance with generally accepted husbandry practices as determined by a licensed veterinarian; and

(K) Dogs that are housed in the same primary enclosure must be compatible, as determined by observation, with the following restrictions:

(i) Not more than ten (10) adult dogs may be housed in the same primary enclosure;

(ii) Females in heat (estrus) may not be housed in the same primary enclosure with sexually mature males, except for breeding purposes.

(iii) Any dog exhibiting or known to have a vicious or overly aggressive disposition must be housed separately;

(iv) Puppies four (4) months of age or less may not be housed in the same primary enclosure with adult dogs, other than their dams or foster dams, except when permanently maintained in breeding colonies;

(v) Such housing must not adversely affect the health or the well-being of the dog, in the opinion of a licensed veterinarian; and

(vi) Dogs that have or are suspected of having a contagious disease must be isolated from healthy dogs in the colony. When an entire group or room of dogs is known to have or believed to be exposed to an infectious agent, the group may be kept intact during the process of diagnosis, treatment, and control.

(7) When dogs are kept on tethers the tether must be attached to the front of the dog's shelter structure or to a post in front of the shelter structure and must be at least twelve (12) feet in length. The tether must allow the dog convenient access to the shelter structure and to food and water containers. The tether must be of the type and strength commonly used for the size dog involved and must be attached to the dog by a well-fitted collar or harness that will not cause trauma or injury to the dog. Collars or harnesses made of materials such as wire, flat chains, chains with sharp edges, or chains with rusty or nonuniform links are prohibited. The tether must be

attached so that the dog cannot become entangled with other objects or come into physical contact with other dogs in the outside housing facility and so the dog can roam to the full range of the tether.

(e) Kennel owners and operators must develop, document, and follow an appropriate plan to provide dogs with the opportunity to exercise. The plan must be made available to any animal control officer or the designated license facility on request.

(f) **Feeding and watering.** Adequate food and water shall be provided in accordance with the definitions set forth for those terms in section 4-2. Food and water receptacles shall be readily accessible to all dogs, and shall be located so as to minimize contamination by excreta or pests, and be protected from rain and snow.

(g) Excreta and food waste must be removed from primary enclosures daily and from under primary enclosures as often as necessary to prevent an accumulation of feces and food waste, to prevent soiling of the dogs contained in the primary enclosures, and to reduce disease hazards, insects, pests and odors.

(Ord. No. 77-99, § 2, 4-15-99; Ord. No. 90-2005, § 5, 4-12-05; Ord. No. 108-2009, §§ 3, 4, 6-25-09; Ord. No. 80-2011, § 1, 6-23-11)

Sec. 4-13. Sale of dogs and cats by retail pet stores prohibited.

(a) As used in this section:

Animal rescue organization means a non-profit organization incorporated under the law of any state and exempt from federal taxation under Section 501 (c)(3) of the federal Internal Revenue Code, as amended, and whose principal purpose is the prevention of cruelty to animals and whose principal activity is to rescue sick, injured, abused, neglected, unwanted, abandoned, orphaned, lost or displaced animals and to adopt them to good homes. "Animal rescue organization" does not include any person or entity that breeds animals or that (1) is located on the same premises as; (2) has any personnel in common with; (3) obtains, in exchange for payment or any other form of compensation, dogs or cats from; or (4) facilitates the sale of dogs or cats obtained from; a person that breeds animals.

Retail pet store means a commercial establishment that sells or offers for sale animals on its premises at retail.

Sell or **offer for sale** means to display for sale or exchange for consideration, adopt out, barter, auction, trade, lease, or otherwise transfer.

(b) It shall be unlawful for a retail pet store, as defined in subsection (a)(1), to sell or offer for sale a dog or cat.

(c) Nothing in subsection (b) shall prevent a retail pet store from providing space to either an animal rescue organization, as defined in this section, or an adoption agency, as defined in Section 4-1.1, for the purpose of showcasing adoptable dogs or cats to the public, provided that the retail pet store shall have no ownership interest in the dogs or cats and nor shall the retail pet store receive a fee for providing such space.

(d) A retail pet store that sells or offers for sale a dog or cat in violation of subsection (b) shall, upon conviction thereof, be subject to a fine of five hundred dollars ($500.00). Each sale or offer for sale in violation of subsection (b) shall constitute a separate offense. A retail pet store that provides space in violation of subsection (c) shall, upon conviction thereof, be subject to a fine of five hundred dollars ($500.00). Each provision of space in violation of subsection (c) shall constitute a separate offense.

(Ord. No. 064-2024, § 1, 6-27-24)

Sec. 4-13. 1 Sale of dogs and cats in public places prohibited.

(a) It shall be unlawful for any person to offer for sale any dog or cat at or on any street, public right-of-way, parkway, median, park, recreation area, outdoor market, or parking lot regardless of whether such access is authorized by the owner.

(b) This section shall not apply to the display or offer for sale of dogs or cats by an animal adoption agency, or the display of dogs or cats as part of a state or county fair exhibition, 4-H program, or similar exhibitions or educational programs.

(c) Any person that offers for sale any dog or cat in violation of subsection (a) shall, upon conviction thereof, be subject to a fine of five hundred dollars ($500.00). Each offer for sale in violation of subsection (a) shall constitute a separate offense.

(Ord. No. 064-2024, § 2, 6-27-24)

Sec. 4-14. Vicious dogs.

(a) A **vicious** dog is defined to include:

(1) Any dog owned or harbored primarily or in part for purposes of fighting, or any dog trained for fighting;

(2) Any dog that has bitten a human being or animal, excluding wildlife, without provocation; or

(3) Any dog declared by a court to be a vicious dog.

(b) Any Lexington-Fayette County animal control officer may immediately take temporary possession of any dog that he or she has probable cause to believe has bitten a human being or domestic animal without provocation, and may cause the dog to be held at the Lexington-Fayette County animal shelter for no longer than ten (10) days, after which time the dog shall be returned to its owner if no civil or criminal complaint seeking to have the dog declared vicious has been filed in a court of competent jurisdiction. If a civil or criminal

complaint seeking to have the dog declared vicious has been filed in a court of competent jurisdiction, the urban county animal control officer may retain temporary possession of the dog until the court enters a final determination that the dog is or is not vicious under KRS 258.235 or LFUCG Code of Ordinances Section 4-14, or until the court otherwise orders the dog released to its owner. The owner of any dog held under this section shall be liable to the urban county animal control officer for a boarding charge of ten dollars ($10.00) per day, including the first and last day of impoundment. The urban county animal control officer may withhold release of the dog until all boarding charges incurred by the dog's impoundment hereunder have been paid in full. Any owner of a dog held hereunder that fails to take possession of the dog within five (5) days of being notified that the owner may reclaim possession shall forfeit ownership of the dog to the urban county animal control officer, who may dispose of the dog in any humane manner permitted by law.

(c) **Vicious dog kenneling requirements.**

(1) It shall be unlawful for any person to keep or harbor within Lexington-Fayette County a dog declared vicious by a court of competent jurisdiction unless it is at all times kept on the owner's or harborer's property securely confined indoors or in a securely enclosed and locked outdoor pen or shelter suitable to prevent the entry of young children and designed to prevent the dog from escaping. Such pen or structure must have minimum dimensions of five (5) feet by ten (10) feet, must have secure sides and must be at least seven (7) feet high and have a secure top. If it has no concrete, cement or asphalt bottom, the sides must be imbedded into the ground no less than two (2) feet. The enclosure must also satisfy the care and treatment standards of Section 4-2 of the LFUCG Code of Ordinances. A vicious dog shall be transported to or from the indoors and the securely enclosed and locked outdoor pen or shelter only if such dog is muzzled and restrained by a suitable chain or leash not exceeding six (6) feet in length and under the control of a responsible adult. The muzzle must be made in a manner that it will not cause injury to the dog or interfere with its vision or respiration but will prevent the dog from biting any person or animal.

(2) Any Lexington-Fayette County animal control officer that witnesses a vicious dog being housed or harbored in violation of the kenneling requirements for vicious dogs contained herein and in KRS 258.235 may immediately take temporary possession of the dog and may cause the dog to be held at the Lexington-Fayette County animal shelter. Before taking temporary possession of the dog hereunder, or as soon thereafter as reasonably possible, the urban county animal control officer shall issue a citation to, or cause charges to be filed against, the dog's owner or harborer for violation of state or local kenneling requirements for vicious dogs. The urban county animal control officer may hold the dog until the complaint against the owner or harborer has been resolved by the court. The owner or harborer of any dog held under this subsection shall be liable to the urban county animal control officer for a boarding charge of ten dollars ($10.00) per day, including the first and last day of impoundment. The urban county animal control officer may withhold release of the dog until all boarding charges incurred by the dog's impoundment hereunder have been paid in full. Any owner or harborer of a dog

held hereunder that fails to take possession of the dog within five (5) days of being notified that the owner may reclaim possession shall forfeit ownership of the dog to the urban county animal control officer, who may dispose of the dog in any humane manner permitted by law.

(d) Vicious dogs shall be permitted off the owner's or harborer's property only if such dogs are muzzled and restrained by a substantial chain or leash not exceeding six (6) feet in length and under the control of a responsible adult and only for the purposes authorized by KRS 258.235. The muzzle must be made in a manner that will not cause injury to the dog or interfere with its vision or respiration but must prevent the dog from biting any person or animal.

(e) When any dog is required by this section to be confined, it shall also be required that a conspicuous notice be posted at the place of confinement of such a nature as to warn the public of the nature of the dog therein confined.

(f) No person under the age of eighteen (18) years shall be permitted to own, harbor or handle a vicious dog.

(g) The urban county animal control officer shall maintain a photographic registry of all dogs in Lexington-Fayette County that have been declared vicious by a court of competent jurisdiction, which registry shall contain the following information for each dog:

(1) The legal name, date of birth, and permanent address of the dog's owner;

(2) The address for each location at which the dog is regularly kept;

(3) A list of all vaccinations the dog has received;

(4) The dog's microchip identification information;

(h) The owner of any dog declared vicious by a court of competent jurisdiction shall thereafter have thirty (30) days to comply with the following provisions:

(1) The owner shall ensure that the dog is spayed or neutered;

(2) The owner shall present the dog to the urban county animal control officer so that it may be tagged with a microchip identifier if not already tagged and added to the photographic registry of vicious dogs in Lexington-Fayette County established in subsection (h) of this section;

(3) Should any of the information provided to the urban county animal control officer for the photographic registry of vicious dogs in Lexington Fayette County become inaccurate in any way, the owner shall contact the urban county animal control officer within ten (10) days thereof to provide updated information. The urban county animal control officer may require owners to provide reasonable verification of all information to be included in the photographic registry of vicious dogs in Lexington-Fayette County.

(i) The urban county animal control officer may charge a reasonable fee for spaying or neutering a vicious dog and for tagging a vicious dog with a microchip identifier as required in subsection (h) of this section.

(j) Any person violating any of the provisions of this section shall be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) for each offense.

(Ord. No. 58-74, § 1, 4-18-74; Ord. No. 164-86, § 1, 7-24-86; Ord. No. 259-87, § 2, 11-12-87; Ord. No. 101-93, § 1, 6-17-93; Ord. No. 270-95, § 1, 12-7-95; Ord. No. 90-2005, § 6, 4-21-05; Ord. No. 80-2017, § 4, 5-25-17; Ord. No.118-2017, § 1, 7-11-17; Ord. No.011-2024, § 1, 1-23-24)

Sec. 4-15. Reserved.

Editor's note(s)—Section 4-15, relating to barking dogs, derived from Ord. No. 58-74, § 1, adopted Apr. 18, 1974, was repealed by § 1 of Ord. No. 281-87, adopted Dec. 10, 1987. See § 14-72(9).

Sec. 4-16. Enticing dog from owner; bringing into urban county for impounding; removing muzzle or tag.

(a) It shall be unlawful to entice a dog from a yard or enclosure of its owner or keeper, or to bring any dog into the urban county for the purpose of impounding the same or to remove a muzzle or license or rabies tag from any dog without the consent of the owner or keeper thereof.

(b) Any person who shall violate this section shall be fined not less than one dollar ($1.00) nor more than ten dollars ($10.00) for each offense.

(Ord. No. 58-74, § 1, 4-18-74; Ord. No. 90-2005, § 7, 4-21-05)

Sec. 4-17. Taking unleashed dogs into parks.

(a) It shall be unlawful for any owner or person in charge of any dog to accompany or take any such animal, male or female, except when such dog is upon a leash or chain, into any of the public parks of the urban county.

(b) Any owner or person in charge of such dog who shall violate this section shall, upon conviction thereof, be punished by a fine of not less than twenty-five dollars ($25.00) nor more than fifty dollars ($50.00).

(Ord. No. 58-74, § 1, 4-18-74; Ord. No. 81-78, § 1, 4-6-78)

Sec. 4-18. Female dogs in heat not to run at large.

(a) It shall be unlawful for the owner of any female dog to permit her, when proud or rutting, to run at large in the urban county.

(b) Any person who shall violate this section shall be punished by a fine of not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than five (5) nor more than sixty (60) days, or both so fined and imprisoned.

(Ord. No. 58-74, § 1, 4-18-74)

Sec. 4-19. Dogs running at large.

(a) It shall be unlawful for any dog to run at large within the urban county; provided that a hound or hunting dog may be unrestrained when engaged in lawful hunting activities while on private or public property designated or authorized for that purpose.

(b) Dogs shall be confined behind a fence or within an enclosed area or otherwise securely restrained at all times while on the owner's or harborer's property. A dog may be unconfined or unrestrained while on the owner's or harborer's property where the dog is in the company of the owner or harborer and the dog is under the owner's or harborer's direct control and supervision.

(c) A dog shall be permitted off the owner's or harborer's property only if it is restrained by a properly fitting collar or harness physically attached to a leash or tether of appropriate material and weight with the capacity to physically restrain the dog.

(d) Any dog found to be on public or private property without the permission of the property owner and unattended by the owner or harborer shall be presumed to be running at large and may be impounded by the division of animal control as set forth in section 4-21.

(e) The owner or harborer of any dog found running at large in violation of this section shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) for a first offense, not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for a second offense during a thirty-six-month period, not less than two hundred-fifty dollars ($250.00) nor more than five hundred dollars ($500.00) for a third offense during a thirty-six-month period, and not less than five hundred dollars ($500.00) for a fourth and each subsequent offense during a thirty-six-month period.

(Ord. No. 5387, §§ 1, 3, 12-9-65; Ord. No. 58-74, § 1, 4-18-74; Ord. No. 81-78, § 2, 4-6-78; Ord. No. 219-80, § 1, 12-23-80; Ord. No. 282-87, § 1, 12-10-87; Ord. No. 90-2005, § 8, 4-21-05; Ord. No. 291-2007, § 1, 12-11-07; Ord. No. 108-2009, § 4, 6-25-09; Ord. No. 80-2017, § 5, 5-25-17)

Sec. 4-20. Reserved.

Editor's note(s)—Section 4-20, specifying that dogs be kept secured and under control, derived from Ord. No. 5387, § 2, adopted Dec. 9, 1965, and Ord. No. 58-74, § 1, adopted Apr. 18, 1974, was repealed by § 3 of Ord. No. 81-78, adopted Apr. 6, 1978.

Sec. 4-21. Impoundment.

(a) Any dog, fowl or head of livestock found running at large within the urban county, unless accompanied by the owner, custodian, possessor or harborer, and under his immediate control and not confined on the premises of the owner, custodian, possessor or harborer, shall be taken up by an animal control officer and held in the animal shelter designated as the urban county animal shelter. Each dog, head of livestock or fowl shall be there confined in a humane manner for a period of not less than five (5) days and each cat shall be there confined in a humane manner for a period of not less than three (3) days, unless sooner claimed by

their owners, custodians or persons entitled to possession thereof, and may be disposed of in a humane manner if not otherwise claimed, sold or adopted. Equine and bovine livestock shall be confined for the period required by state law.

(b) The urban county animal control officer may transfer title to all animals held after the legal detention period in subsection (a) hereof has expired and the animal has not been claimed by its owner, custodian or other person entitled to possession thereof, provided the person to whom title is being transferred licenses said animal and pays for rabies inoculation for said dog or cat, together with the boarding and adoption charges levied by the urban county animal shelter, and in addition thereto pays the pickup fee payable to the animal shelter provided in subsection (c) hereof.

(c) Any owner, custodian or other person entitled to the possession of a dog, cat, head of livestock, or fowl impounded under subsection (a) hereof may claim the animal upon proof that said dog or cat has been inoculated against rabies or purchase of a vaccination voucher from the animal shelter; payment of boarding charges at the rate of ten dollars ($10.00) per day, including the first and last day of impoundment, levied by the urban county animal shelter; payment to the urban county of any fine due under section 4-19(e) hereof; compliance with the redemption requirements for dogs and cats under subsection (d); and payment of a pickup fee of twenty-five dollars ($25.00) for each fowl or head of livestock impounded, which pickup fee shall be paid into the general services fund of the urban county government. The agency designated by the urban county government responsible for enforcement of this ordinance may waive all impoundment and boarding fees if the impoundment of an animal resulted from an emergency situation, such as fire or natural disaster.

(d) In addition to the requirements in subsection (c) above, any owner, custodian or other person entitled to the possession of an impounded dog or cat may redeem the animal by paying a redemption fee. For the first impound within a twelve-month period, the fee is twenty-five dollars ($25.00) for an altered dog or cat and seventy-five dollars ($75.00) for an unaltered dog or cat. For the second and each subsequent impound within a twelve-month period, the fee shall be doubled. Twenty-five dollars ($25.00) of the redemption fee shall be paid into the general fund and the balance shall be retained by the agency designated by the department of public safety and used solely to fund the spay and neuter grant program established by section 4-21.1 of this Code. In lieu of paying the redemption fee for an unaltered animal, the owner may elect to have the animal spayed or neutered by a licensed veterinarian provided by the Lexington Humane Society, at a cost not exceeding the sum of fifty dollars ($50.00).

(Ord. No. 5387, § 4, 12-9-65; Ord. No. 58-74, § 1, 4-18-74; Ord. No. 108-77, § 1, 4-21-77; Ord. No. 168-77, § 1, 6-30-77; Ord. No. 233-96, § 5, 11-21-96; Ord. No. 316-2000, § 1, 10-26-00; Ord. No. 90-2005, § 9, 4-21-05; Ord. No. 285-2008, § 1, 12-9-08; Ord. No. 95-2009, § 1, 6-25-09; Ord. No. 142-2011, § 2, 11-3-11; Ord. No. 118-2017, § 2, 7-11-17)

Sec. 4-21.1. Spay/neuter grant program.

(a) The dog and cat spay and neuter grant program is hereby established to provide grants to qualified residents of the urban county who own unaltered dogs or cats.

(b) A qualified animal owner may receive a grant of up to one hundred (100) percent of the reasonable cost of spaying and neutering his or her dog or cat and a partially qualified animal owner may receive a grant of up to eighty (80) percent of the reasonable cost of spaying or neutering his or her dog or cat.

(c) The agency designated by the department of public safety shall be responsible for operating and administering the grant program consistent with the provisions of this chapter, and shall file, at least annually, with the commissioner of the department of public safety a report of all funds received and expended for the program.

(d) The dog and cat spay and neuter grant program shall be funded by fees retained by the above-referenced agency for funding of the program and donations.

(Ord. No. 90-2005, § 10, 4-21-05; Ord. No. 142-2011, § 3, 11-3-11)

Sec. 4-21.2. Definitions.

(a) For purposes of the spay and neuter grant program, the term **qualified animal owner** means any person who resides in the urban county, who owns an unaltered dog or cat, meets the Assets Test and has an annual income equal to or less than one hundred twenty-five (125) percent of the poverty income levels set forth in the poverty guidelines chart established by the community services administration, annually published in the federal register, in effect at the time of application and the term partially qualified animal owner means any person who otherwise meets the definition of a qualified animal owner but has an annual income equal to or less than one hundred eighty-five (185) percent of the poverty income levels set forth in the poverty guidelines chart. However, income itself shall be measured by the definition contained in subsection (b).

(b) For purposes of the spay and neuter grant program, the term **income** means the total cash receipts to the animal owner and spouse after taxes from all sources. These sources include money, wages and salaries after any deductions required by law, but not including food or rent in lieu of wages. They include receipts from self-employment or from one's own farm or business after deductions for business or farm expenses. They include regular payments from public assistance, social security, unemployment and workmen's compensation, strike benefits from union funds, veterans benefits, training stipends, alimony and military family allotments or other regular support from an absent family member or someone not living in the household; government employee pensions, private pensions and regular insurance or annuity payments; and income from dividends, interest, rents, royalties or income from estates and trusts. For eligibility purposes, Income does not refer to the following money receipts: any assets drawn down as withdrawals from a bank, sale of property, house or car, tax refunds, gifts, one-time insurance payments or compensation for injury; also to be disregarded is noncash income, such as the bonus value of food and fuel produced and consumed on farms and the imputed value of rent from owner occupied farm or nonfarm housing.

(c) For purposes of the spay and neuter grant program, the term **assets test** means that any person having assets in excess of either:

(1) Five thousand dollars ($5,000.00) in liquid assets such as bank accounts, savings, certificates of deposits, stocks, bonds, etc.; or

(2) Five thousand dollars ($5,000.00) in equity in assessed value of nonhomestead property;

shall not be eligible to participate in the spay neuter grant program, notwithstanding that he or she meets the income level qualifications set forth in this section. However, the person's primary residence, motor vehicles for personal use and household furnishings shall not be included in computing assets.

(Ord. No. 90-2005, § 11, 4-21-05)

Sec. 4-22. Dog pound; dog wardens.

(a) The animal shelter on property of the Lexington Humane Society is hereby designated as the urban county animal shelter and its designated licensing facility, and all Lexington Humane Society animal control officers are designated as urban county animal control officers for the purposes of sections 4-19 through 4-22. In addition thereto the chief administrative officer is hereby authorized to employ and appoint additional animal control officers to enforce the provisions thereof.

(b) All members of the division of police of the urban county are hereby designated as animal control officers for the purpose of sections4-19 through 4-22.

(Ord. No. 5387, § 4, 12-9-65; Ord. No. 58-74, § 1, 4-18-74; Ord. No. 90-2005, § 12, 4-21-05)

Sec. 4-23. Dog run areas.

The director of the division of parks and recreation is hereby authorized to designate a portion of various parks as "dog run areas" as citizen demand and financing becomes available, which, at the time designated by the director, not withstanding sections 4-17 and 4-19 of this Code, any dog shall be allowed to run at large when under the strict control of its owner, custodian, possessor or harborer. All such dog run areas shall be clearly marked with appropriate signs. The provisions of sections 4-14 and 4-18 remain in effect in all dog run areas designated hereunder.

(Ord. No. 103-79, § 1, 5-3-79; Ord. No. 90-2005, § 15, 4-21-05; Ord. No. 110-2010, § 1, 6-24-10)

Sec. 4-23.1. Responsibility of owner to remove animal excreta from waste removal areas.

(1) The custodian of every animal shall remove any excreta deposited by his/her animal(s) within the urban service boundary on public walks, streets, recreation areas or private property belonging to another.

(2) Any excreta not removed in violation of subsection (1) above is declared to be a public nuisance.

(3) Any person violating any provision of this section shall, upon conviction thereof by a court of competent jurisdiction, be fined not more than fifty dollars ($50.00) for each violation.

(Ord. No. 122-91, § 1, 7-2-91; Ord. No. 39-93, § 1, 3-11-93)

Article III

Horse-Drawn Vehicles

Sec. 4-24. License required.

Any person, corporation, partnership or other entity desiring to operate a horse-drawn vehicle business upon the public streets of the county shall be required to secure the license established in section 13-13 therefor. No horse, driver or horse-drawn vehicle shall be used in a horse-drawn vehicle business in the county unless an appropriate permit has been issued for each and the same is affixed in plain view, as hereinafter provided.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-25. Application for license.

Owners of horse-drawn vehicle businesses shall apply to the division of revenue for a license to use the public streets of the county, using application forms provided by that division which shall, at a minimum, contain the following information:

(1) A description of each horse to be used, including photograph, name, breeding, color and size;

(2) A description of each vehicle to be used, including photograph, manufacturer and seating capacity;

(3) The names of all persons other than the applicant who will have any financial interest in any of the horses, vehicles or other property used in the business;

(4) The proposed routes for the owner's vehicles, the hours of operation and the station or office from which such vehicles shall be operated; and

(5) Any other information required by the director of tax collection.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-26. Insurance, bond, inspection certificate.

Before a horse-drawn vehicle license is issued to any owner by the division of revenue, the applicant must have on file an approved insurance policy and indemnity bond, a current vehicle inspection certificate for any horse-drawn

vehicle he intends to operate, and a current horse inspection certificate for any horse he intends to use in the horse-drawn vehicle business, all as hereinafter provided. Owners are also responsible for securing a permit for all drivers, including themselves, as provided for in section 4-30.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-27. Insurance, bond.

(1) The horse-drawn vehicle, its drivers, and the owner of the business, shall be adequately insured by a company licensed to do business in the commonwealth for injury or death of individuals in accidents resulting from any cause for which the driver or owner of the horse-drawn vehicle would be liable on account of liability imposed on them by law in the minimum amount of three hundred thousand dollars ($300,000.00) regardless of whether the horse-drawn vehicle is driven by the owner or agent; and for the loss or damage to the property of another including personal property, under the circumstances, in the minimum amounts of two hundred fifty thousand dollars ($250,000.00) to five hundred thousand dollars ($500,000.00) for bodily injury and one hundred thousand dollars ($100,000.00) for property damage and under such terms as may be required by the director of tax collection.

(2) Further, the horse-drawn vehicle licensee must file or have on file with the commissioner of finance an improved indemnity bond in the amount of five hundred dollars ($500.00) issued by a surety company authorized to transact business within the commonwealth or post a cash bond in that amount. The term of the bond shall be one (1) year or until an improved occupational license tax return is filed with the division of revenue, whichever is later. A horse-drawn vehicle licensee shall forfeit his bond to the urban county government if he fails to comply with chapter 4 or 13 of the Code of Ordinances. Only one (1) bond shall be required for each horse-drawn vehicle license per year, regardless of the number of horse-drawn vehicles for which he is issued permits.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-28. Vehicle inspection, permit.

(1) Each vehicle which is desired to be used in the horse-drawn vehicle business shall be inspected prior to being placed in service and again before renewal of any horse-drawn vehicle license by the commissioner of public safety or his designee. The inspection shall verify that the vehicle conforms to the safety requirements as set out in the regulations of that office, which regulations shall be available in printed form to all applicants. As a minimum standard and to be included in said regulations are following:

   (a) Vehicles will have no less than one and three-eighths (1 3/8) inch spoked wheels with a rubber covering thick enough to protect the streets from damage and to keep noise to a minimum;

   (b) All vehicles will be equipped with front lights on both sides that are capable of illuminating an object one hundred (100) feet in front of the carriage; turn signals on the front and the rear of the vehicle; flashing warning lights on the front and rear of the vehicle; tail lights; and brake lights.

(c) All vehicles will be equipped with hydraulic brakes on the rear axle of the vehicle and with a horn or other device capable of making an abrupt sound sufficiently loud to be heard under all ordinary traffic conditions.

(d) Each vehicle will be equipped with a device to catch horse manure from falling to the pavement;

(e) Each vehicle will be equipped with a chemical to be poured over horse urine by drivers so as to break down and eliminate accumulated agents and odor;

(f) Each vehicle will be equipped with the slow-moving vehicle emblem required by the commonwealth to be attached to the rear of the vehicle;

(g) No vehicle shall be wider than eight (8) feet, including fenders, running boards, and safety mirrors and devices.

(2) When a horse-drawn vehicle license is issued to any owner, the director of tax collection shall be authorized to issue a vehicle permit to each horse-drawn vehicle owned by the business which shall meet the requirements of this article and any regulations adopted pursuant thereto. The division of revenue shall clearly set forth the permit number of such horse-drawn vehicle and the expiration date thereof on each permit. Such permit shall be securely affixed by the owner to a conspicuous and indispensable part of such horse-drawn vehicle. Whenever a horse-drawn vehicle is found by the commissioner of public safety not to be in a safe and sanitary condition or does not fully comply with all requirements specified in this article or in any regulation issued pursuant thereto, the director of tax collection shall suspend or revoke the permit therefor until these provisions are complied with.

(3) In no case shall a vehicle permit be transferable from one horse-drawn vehicle to another; however if the licensee replaces a vehicle, he shall not be required to pay an additional license fee if the vehicle permit for the removed vehicle is returned to the director.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-29. Inspection of horses, permit.

(1) Each horse which is desired to be used in the horse-drawn vehicle business shall be inspected prior to being placed in service and again before renewal of any horse-drawn vehicle license by a licensed Kentucky veterinarian, at the expense of the licensee. The inspection shall verify to the designated license facility that the horse conforms to the safety and fitness requirements of this article and the regulations of that office, which regulations shall be available in printed form to all applicants. As a minimum standard, such examination shall certify that the animal is suited for the use intended by the licensee. Such certification shall identify the horse by name and physical description. The designated license facility shall notify the director of tax collection in writing whenever he approves any horse for service.

(2) When a horse-drawn vehicle license is issued to any owner, the director of tax collection shall be authorized to issue a horse permit for each horse owned by the business which shall meet the requirements of this article

and any regulations adopted pursuant thereto, as determined by the designated license facility. The director of tax collection shall clearly set forth the permit number of such horse and the expiration date thereof on each permit. Such permit shall be securely affixed by the owner to a conspicuous and indispensable part of the harness of such horse at all times he is pulling a horse-drawn vehicle. Whenever a horse used in the horse-drawn vehicle business is found by the executive director of the Lexington Humane Society not to be in a safe or fit condition or does not fully comply with all requirements specified in this article or in any regulation issued pursuant thereto, the director of tax collection shall suspend or revoke the permit therefor until these provisions are complied with.

(3) In no case shall a horse permit be transferable from one horse to another.

(4) As used in this article, the word **horse** shall include horses, mules or any other beasts of burden which may be hired for the transportation of passengers by pulling a vehicle.

(Ord. No. 17-85, § 1, 2-7-85; Ord. No. 90-2005, § 13, 4-12-05)

Sec. 4-30. Driver's permit.

Driver's of vehicles used in the horse-drawn vehicle business shall apply to the division of revenue for a permit to engage in that occupation, using application forms provided by that division which shall, at a minimum, contain a certification that the applicant:

(1) Holds a valid chauffeur's license issued by the commonwealth;

(2) Is free of alcohol or drug addiction; and

(3) Either has experience in driving horse-drawn vehicles or has successfully completed a course in such driving, or both, and shall, if requested, demonstrate his ability to the satisfaction of the director of the Lexington Humane Society or his designee.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-31. Obedience to traffic regulations; operating hours.

(1) A licensee, having been issued a license under this article to engage in the business of operating horse-drawn vehicles or driving the same, shall be subject to all traffic provisions of this Code and all other ordinances, rules and regulations now in effect in the county or the commonwealth and all traffic ordinances and rules and regulations which may pertain to the operation of horse-drawn vehicles, hereinafter enacted or adopted by the urban county government or the commonwealth, and such rules and regulations formulated and promulgated under authority of this article.

(2) No horse-drawn vehicle business shall operate upon the public streets of the county prior to 6:00 p.m., prevailing local time, on any day from Monday through and including Friday, except when New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day or Christmas Day falls on one of those days.

(3) Notwithstanding the provisions of subsection (2), any licensee may make application to the police chief for a special event permit to allow his horse-drawn vehicle to operate at a time other than those permitted above. Any such application shall be in writing and shall specify the day and hour requested for the special event and the route to be taken. If, after consideration and investigation, the police chief finds, with the concurrence of the fire chief and the director of traffic engineering, that the convenience of the public in the use of the county's streets would not be unduly disturbed by such special event, he shall issue the permit applied for.

(4) No horse-drawn vehicle shall operate upon any public street of the county not having streetlights from one-half hour before sunset to one-half hour before sunrise unless preceded by an escort motor vehicle. The escort motor vehicle shall operate its headlights and flashing warning lights at all times it is escorting a horse-drawn vehicle.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-32. Responsibilities of licensee.

A licensee, having been issued a license under this article to engage in the business of operating horse-drawn vehicles or driving the same, shall be responsible for:

(1) Ensuring that the horse and vehicle are attended at all times, including when loading or discharging passengers;

(2) Requiring that all passengers be seated except when boarding or discharging;

(3) Making available to any person, upon request, the rates for all tours and trips offered by the business;

(4) Spraying all liquid wastes from the horse immediately with the appropriate chemical to eliminate all noxious odor and bacteria;

(5) Disposing of manure from the manure-catching device on the horse-drawn vehicle upon return to its base of operations;

(6) Prohibiting smoking by the driver while he is driving the vehicle;

(7) Preventing the driver from soliciting patronage or in any manner annoying or obstructing the movement of any person or following any person for the purpose of soliciting patronage;

(8) Operating safe and sanitary horse-drawn vehicles at all times, which are in full compliance with the mandatory specifications established pursuant to section 4-28; and

(9) Otherwise conducting the horse-drawn vehicle business in accordance with this article and other requirements of law.

(Ord. No. 17-85, § 1, 2-7-85)

Sec. 4-33. Minimum standards.

A licensee shall, in addition to other requirements of this article, comply with the minimum standards of this section:

(1) All horses shall be provided with daily food and water, free from contamination. Such food shall be wholesome, palatable and of sufficient quantity and nutritive value to meet the normal daily requirements for the condition and size of the horse.

(2) All buildings and sheds used for stabling horses shall be well lighted and ventilated and provide protection from the weather. All buildings and sheds used for stabling horses shall be kept clean and in good repair at all times, and manure shall be removed therefrom daily. Any enclosure where horses are kept shall be graded and raked so as to keep the surface reasonably dry. All such facilities shall be subject to inspection at reasonable times by the designated licensing facility upon request.

(3) Flies and other insects must be controlled through general sanitation and necessary means.

(4) All horses used in the horse-drawn vehicle business must weigh at least thirteen hundred (1,300) to fourteen hundred (1,400) pounds and be considered in general good health;

(5) Horses exhibiting the following shall be deemed unfit for work:

(a) Sores or abrasions caused or likely to be irritated by the wearing of services, girths, harnesses or bridles;

(b) Serious injury or illness;

(c) Obvious signs of emaciation, malnutrition, lameness or exhaustion; or

(d) Excessive parasitism.

(6) Horses requiring veterinary care shall not be moved, ridden or driven except for the purpose of humane keeping, or pasturing or obtaining medical care.

(7) Horses shall be properly shod with rubber compound type horseshoes, borium shoes, or similar non-slip type shoes to keep the animal from slipping on the pavement; and the hoof shall be kept trimmed.

(8) Horses shall be kept clean and in particular the areas in contact with harness or other tack.

(9) Horses shall not be worked more than two (2) hours without being given a cumulative total of thirty (30) minutes rest. The maximum working period for any one (1) horse shall be eight (8) hours out of every twenty-four (24) hours.

(10) The speed at which any horse is driven shall not exceed a slow trot.

(11) No horse shall be overridden or driven to result in overheating or exhaustion.

(12) Horses shall be provided water at the loading site and on routes at all times they are working.

(13) All harnesses and bridles shall be kept oiled and cleaned so as to be soft at all times.

(14) All harness will be properly fitted and maintained, and kept free of makeshift like wire, sisal rope and rusty chain.

(15) No horse is to be worked with equipment causing an impairment of vision other than normal blinders.

(16) No one (1) horse shall ever pull more than five (5) adult passengers.

(17) Unsanitary conditions shall not be permitted to be present on any town route, horse rest area or any area where the horses are kept. All such areas shall be kept clean and free of conditions which might harbor or be conducive to the breeding of insects or rodents.

(18) No horse shall be subject to any cruel or harassing treatment, including any violation of the mandatory rest periods, feeding and watering schedules and workload limits established pursuant to this article.

(Ord. No. 17-85, § 1, 2-7-85; Ord. No. 90-2005, § 14, 4-12-05)

Sec. 4-34. Penalties.

Any individual who shall violate any provision of this article shall be subject for each offense to a fine or penalty not to exceed five hundred dollars ($500.00) and/or to imprisonment for a period not to exceed twelve (12) months.

(Ord. No. 17-85, § 1, 2-7-85; Ord. No. 102-85, § 2, 5-30-85)

Chapter 5

Buildings and Building Regulations[1]

Article I. In General

Section 5-1. Adoption of building code.
Section 5-2. Awnings—Metal.
Section 5-3. Same—Canvas, over sidewalks.
Section 5-4. Same—Suspending articles therefrom.
Section 5-4.1. Overhanging signs in downtown Lexington.
Section 5-4.2. Adoption of gas code.
Section 5-4.3. Discontinuance and amortization of certain signs.
Section 5-4.4. Penalty for violation of section 5-4.3.
Section 5-5. Fire limits or districts, special restrictions therein.
Sections 5-6--5-10. Reserved
Sections 5-11--5-19. Reserved

Article II. Wrecking, Moving, etc., Buildings

Section 5-20. Permit required; historic preservation study; emergency exceptions.
Section 5-21. Statement of nature of work and examination of structure.
Section 5-22. Application for permit by nonresident.
Section 5-23. Insurance or bond required.
Section 5-24. Notice to adjacent or abutting property owners.
Section 5-25. Barricades, signals, etc.
Section 5-26. Assignment or subletting of work.
Section 5-27. Penalties.
Section 5-28. Article is in addition to building code.

Article III. Building Permits

Section 5-29. Fee schedule.
Section 5-29.1. Additional building permit fee.
Section 5-29.2. Commercial and residential construction plan review fee.
Section 5-29.3. Additional fees.

1. **Charter reference(s)**—Authority to regulate alteration, destruction and erection of buildings, § 3.02(15); department of housing and community development, § 6.11; housing authority, § 7.12.
Cross reference(s)—Fire prevention, ch. 9; housing code, ch. 12; streets and sidewalks, ch. 17.
State law reference(s)—Urban renewal and redevelopment, KRS ch. 99; planning and zoning, KRS ch. 100; housing, buildings and construction—building code, KRS ch. 198B.

Section 5-29.4. Additional inspection fees.
Section 5-30. Requirements prerequisite to issuance of certain building permits.
Section 5-31. Bonding site improvements or other conditions; posting of a full cash bond.
Section 5-32. Mechanical permit fees for the installation, replacement or addition of heating, ventilation and air conditioning systems.
Sections 5-33--5-40. Reserved

Article IV. Electricity

Division 1. Generally

Section 5-41. Reserved.
Section 5-42. Reserved.
Section 5-43. Reserved.
Section 5-44. Reserved.
Sections 5-45--5-54. Reserved.

Division 2. Licensing of Electricians

Section 5-55. Standards adopted.
Section 5-56. Reserved.
Section 5-57. Reserved.
Section 5-58. Reserved.
Section 5-59. Reserved.
Section 5-60. Reserved.
Section 5-61. Reserved.
Section 5-62. Reserved.
Section 5-63. Reserved.
Section 5-64. Reserved.
Section 5-65. Reserved.
Section 5-66. Reserved.
Section 5-67. Permit for installation, alteration required; functions of department of public safety.
Section 5-68. Reserved.
Section 5-69. Reserved.
Section 5-69.1. Reserved.
Section 5-70. Reserved.
Section 5-71. Reserved.
Section 5-72. Authority to turn off current or disconnect wires in emergencies.
Section 5-73. Penalty.
Section 5-74. Liability for damage caused by defective equipment or work.

Section 5-75. Promulgation of regulations.

Division 3. Inspections

Section 5-76. Required; fees.
Section 5-77. Penalty.

Article V. Protection of Survey Monuments

Section 5-78. Definition.
Section 5-79. System adopted.
Section 5-80. Permit—Required.
Section 5-81. Same—Application.
Section 5-82. Replacement, relocation of monuments.
Section 5-83. Cost of replacement.
Section 5-84. Penalty for violation of article.

Article VI. Contractors

Section 5-85. Registration required.
Section 5-86. Definitions.
Section 5-87. Registration application.
Section 5-88. Contents of registration application.
Section 5-89. Insurance required of contractors.
Section 5-90. Registration fees and insurance requirements; renewal.
Section 5-91. Reinstatement of registration.
Section 5-92. Registration not transferable.
Section 5-93. Exception to registration requirements.
Section 5-94. Display of registration certificate; advertising.
Section 5-95. Contract provisions.
Section 5-96. Contractor review board; membership; rules.
Section 5-97. General powers and duties of review board.
Section 5-98. Suspension and revocation of registration.
Section 5-99. Appeal procedure and conduct of hearing.
Section 5-100. Limitation of registration; power of government to regulate.
Section 5-101. Penalty.
Section 5-102. Liability for damage caused by defective work or equipment.
Section 5-103. Promulgation of regulations.

Article VII. Relocation Assistance Program

Section 5-104. Creation.
Section 5-105. Eligibility.
Section 5-106. Application.

Section 5-107. Appropriation.

Article VIII. Emergency Temporary Relocation Assistance Program for Tenants

Section 5-108. Created.
Section 5-109. Eligibility.
Section 5-110. Determination of dwellings fit for human occupancy.
Section 5-111. Appropriation of funds.

Article I

In General

Sec. 5-1. Adoption of building code.

(a) Pursuant to KRS chapter 198B, the division of building inspection is hereby designated as the agency to enforce the Kentucky Uniform State Wide Mandatory Building Code, promulgated in 815 KAR 7:120 and the Kentucky Residential Code promulgated in 815 KAR 7:125 by the Board of Housing, Buildings and Construction, Commonwealth of Kentucky, within the urban county government.

(b) Pursuant to KRS chapter 198B, the director of the division of building inspection is designated as the building official, and his subordinates within the division of building inspection are designated as inspector and code enforcement personnel to enforce the provisions of the Kentucky Uniform Statewide Mandatory Building Code and the Kentucky Residential Code, within the urban county government.

(c) The agency and officers mentioned in this section shall also assume any additional plan review functions which may be assumed pursuant to KRS chapter 198B by agreement between this government and the department of housing, buildings and construction of the commonwealth.

(d) The agency and officers mentioned in this section should be under the general supervision of the commissioner of public works and development.

(e) Pursuant to KRS 198B.060, this government does hereby extend the application of KRS chapter 198B to include the Kentucky Uniform Statewide Mandatory Building Code and the Kentucky Residential Code, as to one family, two family and townhouse dwellings.

(f) Copies of the Kentucky Uniform Statewide Mandatory Building Code and the Kentucky Residential Code, shall be kept on file in the office of the clerk of the urban county council as a public record.

(Ord. No. 4742, § 1, 9-19-63; Ord. No. 5567, § 1, 6-9-66; Ord. No. 28-70, § 1, 2-19-70; Ord. No. 189-75, §§ 1—3, 7-10-75; Ord. No. 8-80, § 1, 2-7-80; Ord. No. 79-2003, § 3, 4-24-03; Ord. No. 83-2008, § 1, 4-24-08)

Sec. 5-2. Awnings—Metal.

Whenever canvas awnings and fixed canvas hoods or canopies are permitted under the ordinances of the urban county government, fixed or retractable metal awnings may be used if properly attached to buildings and if applicable requirements are met; provided:

(1) They are made of rust-resistive material.

(2) They are installed above windows or doors.

(3) They are in no case less than eight (8) feet clear above sidewalk or grade when projecting over public property.

(4) They shall not extend more than eight (8) feet from the building with a slope not to exceed an angle of forty-five (45) degrees from the horizontal, and in no case shall they extend over more than half the width of the sidewalk; provided the provisions of this subsection shall not apply to stationary canopies, or to dwellings not over two and one-half (2½) stories high.

(5) They shall not extend below the upper sixty (60) percent of any window opening.

(6) They shall not project over four (4) feet when installed above the first floor.

(7) They shall not be installed above the second floor without the written approval of the chief of the fire and emergency services division; provided such approval by the chief of the fire and emergency services division shall not be required for installation on dwellings not over two and one-half (2½) stories high and not occupied above the second floor.

(8) A permanent awning shall not be permitted on the first floor of buildings over one (1) story high where there are window openings in the wall above and directly over the first floor awning, unless such awning is designed and constructed in the manner which will permit it to be readily collapsed against the building; provided, the provisions of this subsection shall not apply to dwellings not over two and one-half (2½) stories high and not occupied above the second floor.

(9) They shall not bear any indicia, either painted or attached, nor shall they be wired for electric illumination or have any extraneous attachments of any kind except that the name, street number and character of business of the owner may be printed or painted thereon.

(10) Before any permanent awning shall be erected on a building, other than a dwelling, not more than two and one-half (2½) stories high and not occupied above the second floor, a building permit shall be obtained from the director of inspection of the urban county. Applications for such permits shall be made by the licensed awning contractors and the same procedure shall be followed as prescribed for the erection of signs in the building code, adopted and incorporated herein by reference in section 5-1.

Sec. 5-3. Same—Canvas, over sidewalks.

(a) Every canvas awning erected over and above any public sidewalk of the urban county shall meet the following minimum requirements:

(1) It shall be supported on an iron framework securely attached to the building.

(2) The lowest part of any metal structure of such awning shall be at least seven (7) feet, six (6) inches above the sidewalk at all points and the lowest part of the valance, if the same is made of canvas, shall be at least seven (7) feet above the sidewalk.

(3) Where slide rods are used they shall not project more than two (2) inches from the building;

(4) Awnings over nine (9) feet in width shall have metal frames that are hinged and shall be made in such a manner as to fold snugly against building;

(5) No awning shall extend over two-thirds of the width of the sidewalk and in any event shall not be closer than eighteen (18) inches to the curbline.

(b) Stationary or temporary awnings of any description requiring support from posts are prohibited.

(c) Canvas awnings which were at least seven (7) feet above the sidewalk on April 19, 1951, need not be made to conform to the provisions of this section until replaced or recovered.

(d) No awning shall be erected without first securing a written permit therefor from the building inspector of the urban government; and it shall be unlawful to establish, erect or alter any awning over any public sidewalk before obtaining a permit.

(e) Any person violating any of the provisions of this section, upon conviction therefor, shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00).

(f) Nothing contained in this section shall be construed to conflict with any of the provisions of section 5-2 relating to the construction and erection of metal awnings.

Sec. 5-4. Same—Suspending articles therefrom.

No sign, article or merchandise, poster or other article shall be attached to or suspended from any awning or awning frame extending over any sidewalk in the urban county.

Sec. 5-4.1. Overhanging signs in downtown Lexington.

(a) The provisions of other ordinances notwithstanding, no sign shall project perpendicularly from any building or other structures so as to overhang the sidewalk or public right-of-way within the area of downtown Lexington, said area being more particularly defined below. No horizontal or flush sign shall overhang said sidewalk or right-of-way more than one (1) foot. This section shall not affect theater or hotel marquees, nor existing marquees.

(b) Downtown Lexington is defined as follows: Properties abutting upon one (1) or both sides of streets and public ways to be included within an area where overhanging signs are to be prohibited.

All parcels or lots abutting upon the southerly right-of-way of Pleasant Stone Street from its inception at North Limestone to its intersection with North Martin Luther King Jr. Boulevard.

All parcels or lots abutting upon the southerly right-of-way of Corral Street from its inception at North Martin Luther King Jr. Boulevard to its intersection with Clark Street.

All parcels or lots abutting upon the southerly right-of-way of Church Street from its intersection with North Broadway to its intersection with North Upper Street. All properties abutting upon both sides of Church Street from its intersection with North Upper Street to its intersection with North Limestone.

All parcels or lots abutting upon both sides of Short Street from its intersection with Algonquin Street to its intersection with Esplanade.

All parcels or lots abutting upon Barr Street from its inception at North Limestone to its terminus at North Martin Luther King Jr. Boulevard.

Parcels or lots abutting upon Main Street being identified by street address numbers at 101 through 335 East Main Street, inclusive, and those properties abutting upon the southerly right-of-way identified as 100 through 400 East Main Street.

All parcels or lots abutting upon Vine Street from its intersection with West Main Street to its intersection with East Main Street.

All lots or parcels abutting upon the northerly right-of-way of High Street from its intersection with Patterson Street to its intersection with Grand Boulevard.

All lots or parcels of land abutting upon both sides of Broadway from the intersection of South Broadway and West High Street north to and including property identified by street address as 157 North Broadway and the intersection of North Broadway and Church Street.

All lots or parcels of land abutting upon both sides of Mill Street from its intersection with West High Street north to its intersection with Church Street. All parcels of land abutting upon both sides of Cheapside.

All lots or parcels of land abutting upon both sides of Upper Street from its intersection with West High Street north to and including property identified as 180 North Upper on the easterly right-of-way and those properties abutting upon the westerly right-of-way of Upper from its intersection with West High Street to its intersection with Church Street.

All lots or parcels of land abutting upon both sides of Market Street from its intersection with Church Street to its intersection with West Short Street.

All lots or properties abutting upon the westerly right-of-way of Limestone from its intersection with High Street North to and including property identified by street address at 187 North Limestone. All lots or properties abutting upon the easterly right-of-way of Limestone from its intersection with High Street North to its intersection with Pleasant Stone Street.

All lots or parcels of land abutting upon both sides of South Martin Luther King Jr. Boulevard from East Main Street to East High Street.

All lots or parcels of land abutting upon both sides of North Martin Luther King Jr. Boulevard from its intersection with East Main Street north to its intersection with Pleasant Stone Street.

All lots or parcels abutting upon both sides of Esplanade from its inception to its terminus.

All lots or parcels of land abutting upon both sides of Rose Street from its inception at East Main Street to its intersection with East High Street.

All lots or parcels of land abutting upon the westerly right-of-way of Grand Boulevard from its intersection with East High Street to its intersection with Old Vine Street. All lots or parcels abutting upon both sides of Southeastern Avenue from its intersection with Old Vine Street north to its intersection with East Main Street.

All lots abutting upon the westerly right-of-way of Shreve Avenue from its intersection with Old Vine Street north to its terminus in a cul-de-sac. A lot fronting upon the westerly right-of-way of DeWeese Street, address number 111 DeWeese Street.

(c) Any person, corporation or legal entity violating the provisions of subsection (a) hereof shall be fined ten dollars ($10.00) for each and every day said violation exists.

(Ord. No. 274-76, § 1, 12-29-76)

Sec. 5-4.2. Adoption of gas code.

(a) The gas code prepared by the Columbia Gas System, August 1974, is hereby adopted as the gas code of the urban county government.

(b) A copy of said gas code is filed with the urban county council clerk, and she is directed to cause to be published in the Lexington Leader an abstract thereof which shall incorporate sufficient information to constitute a description of the subject matter to which this section relates.

(Ord. No. 4889, § 1, 4-23-64; Ord. No. 111-74, §§ 1, 2, 6-20-74; Ord. No. 154-74, §§ 1, 2, 8-22-74)

Sec. 5-4.3. Discontinuance and amortization of certain signs.

(1) As used in this section:

Abandoned sign means a sign which no longer identifies a business conducted or product sold on the premises; any advertising sign which no longer directs attention to a bona fide business conducted, product sold, or activity or campaign being conducted or for which no legal owner can be found. A sign shall be deemed as abandoned when the conditions described above have been in evidence for a period exceeding one hundred eighty (180) days. For the purposes of this definition, an advertising sign shall not be deemed abandoned solely because the sign has contained no copy for a period exceeding one hundred eighty (180) days.

Area of a sign means and shall be computed as follows:

1. Freestanding or projecting signs:

    a. Any double-faced sign shall have only one (1) face, the largest, counted in calculating the area.

b. Any sign with three (3) or more sign faces shall have the area calculated by summing the area of the sign faces and dividing by two (2).

c. If the sign is composed of one (1) or two (2) individual cabinets, the area around and enclosing the perimeter of each cabinet or module shall be summed and totaled to determine the area. The perimeter of the measurable area shall not include embellishments such as pole covers, framing, decorative roofing, etc., provided there is no written copy on such embellishments and their total surface area (excluding pole covers provided such covers do not extend more than six (6) inches at any point from any structural member) does not exceed twenty-five (25) percent of the otherwise permitted sign area.

d. If the sign is composed of more than two (2) sign cabinets, or modules, the area enclosing the entire perimeter of all cabinets and/or modules within a single continuous geometric figure shall be the area of the sign. The measurable area shall not include embellishments such as pole covers, framing, decorative roofing, etc., provided there is no written copy on such embellishments and their total surface area (excluding pole covers provided such covers do not extend more than six (6) inches at any point from any structural member) does not exceed twenty-five (25) percent of the otherwise permitted sign area.

2. Wall signs: The area shall be within a single continuous perimeter composed of any straight line geometric figure which encloses the extreme limits of the copy, including vertical and horizontal spacing between individual letters, logos, etc.

Flashing or blinking sign means a sign, the illumination of which is not kept constant and which contains an intermittent or sequential flashing light source for the purpose of either attracting attention to the sign or as a method of changing copy.

Freestanding sign means a sign, not attached to any building, and attached to the ground by poles, braces or other means.

Height of a sign means the vertical distance measured from the highest point of the sign, including the frame and any embellishments, and the established grade at the adjacent street.

Projecting sign means a sign which is attached directly to a canopy, marquee or wall of a building and which extends horizontally outward from such canopy, marquee or wall more than twenty-four (24) inches.

Roof sign means a sign which projects above the cornice of a flat roof, or above the top edge of any roof, including the ridge line of a gabled or hipped roof. Such top edge shall not include any cupolas, pylons, chimneys or other minor projections above the roof line.

Rotating or moving sign means a sign, any portion of which moves by mechanical means, motion of the wind or other means. Such motion does not refer to methods of changing copy used on an electronic message display system.

Sign means any writing, pictorial representation, form, emblem, trademark, flag, banner, decoration (including material used to differentiate the sign copy from the background) or any figure which is written, printed, projected, painted, constructed or otherwise displayed upon or designed into a building, board, plate, canopy, awning, window, vehicle, or upon any object or device which by reason of its form, color, wording, symbol, design, illumination, motion or other characteristic is designed to attract attention to the subject thereof or is used as a means of identification, advertisement, announcement, or of illustrating products.

(2) The Lexington-Fayette Urban County Government Sign Review Board (hereinafter "sign review board" or "board") shall be appointed by the mayor with the approval of the urban county council and shall have the duties and authority stated herein.

(a) The board shall consist of nine (9) members. Three (3) of the initial members shall be appointed for terms of four (4) years, two (2) members for three (3) years, two (2) members for two (2) years and two (2) members for one (1) year. Subsequently, members shall be appointed for terms of four (4) years as vacancies occur or to fill the remaining term for any membership vacancy occurring during said term. The sign review board shall function during the amortization period established herein and shall be dissolved by the council at the conclusion of the period.

(b) The board shall adopt rules for the conduct of its duties, elect a chairman, and keep minutes of all meetings. Meetings shall be held at regularly scheduled times or the call of the chairman or in the chairman's absence, at the call of the vice-chairman. A quorum shall consist of five (5) members, but a lesser number may conduct meetings at which the purpose is collection of information provided no action binding on the board is taken at such meeting. All meetings and records of the board shall be public except as provided under provisions of the Kentucky Open Meetings and Open Records Laws. It shall take a majority of the entire board to approve an extension to the amortization period or to approve the designation of a sign as an historic landmark sign.

(c) The sign review board shall give notice of its meetings to all members and to the applicants which have business before the board at least seven (7) days prior to the meeting. The notice shall contain the date, time and place of the meeting and the subject or subjects to be considered. In addition, the board shall give notice containing the aforementioned information by one (1) publication in the newspaper of highest circulation in the county, not earlier than twenty-one (21) days nor later than seven (7) days prior to the board's meeting.

(3) Any sign which is prohibited by this subsection shall be removed or converted to a sign which is not prohibited by no later than October 13, 1984, and shall not be eligible for any time extension from the sign review board. The following signs shall be prohibited in the county:

(a) Flashing or blinking signs, except for permitted informational signs;

(b) Abandoned signs;

(c) Streamers, pennants and tag signs or similar signs or devices except when attached to a permitted temporary sign; and

(d) Any sign which emits any noise, odor or visible matter for the purpose of attracting attention to the sign.

(4) Any sign which is prohibited by this subsection shall be removed or converted to a sign which is not prohibited by no later than the end of the applicable time periods provided for herein, subject to any time extension granted by the sign review board.

(a) The following signs shall be prohibited in the county, subject to the amortization periods established in subsection (4)(b):

1. Rotating or moving signs;

2. Projecting signs except those permitted as conditional uses in the zoning ordinance;

3. Roof signs;

4. Any freestanding sign, any portion of which overhangs any part of a building;

5. Any existing individual sign which exceeds the maximum area or height limitations established for a particular sign in a particular zone by ten (10) percent or more; and

6. Any sign which exceeds the setback or other requirements as to location on a property, exceeds the limitations as to the number of signs permitted or is erected or mounted, incorporates any design features, information or copy, or is a design type not permitted in the zone in which the sign is located.

(b) Subject to any time extension granted by the sign review board any owner of a sign who desires to rely upon an amortization period longer than three (3) years shall file with the division of building inspection, by no later than July 15, 1985, a statement setting forth the current value and a written agreement to remove or bring the sign into conformance at or prior to the expiration of the amortization period applicable to that sign. "Current value" is defined as the cost to duplicate and erect the sign as of July 15, 1984, as determined by the statement of the sign owner. All signs subject to amortization shall be amortized as of July 15, 1984, notwithstanding any interim changes permitted by section 17-9 of the Zoning Ordinance. The time period for removal of the signs listed in subsection (4)(a) shall be established in the following table:

Current Value of the Sign	**Deadline Date**
$1 to $500	July 15, 1985
$501 to $2,000	July 15, 1987
$2,001 to $5,000	July 15, 1989

Current Value of the Sign	Deadline Date
$5,001 to $10,000	July 15, 1991
Over $10,000	July 15, 1994

(c) The sign review board may grant extensions to the permitted years of amortization where it finds that the extension would not be contrary to the public interest. In no case, however, shall the permitted years plus extensions exceed fifteen (15) years. In approving or denying such an extension, the board shall consider any special or unusual conditions to the property, as well as any unnecessary or undue hardship that would result from the strict enforcement of the amortization provisions. In approving an extension, the board shall consider the facts and circumstances presented by the sign owner and allow the shortest time extension that would be fair and reasonable and in keeping with the intent of this section.

(d) The sign review board shall have the authority to declare certain signs as historic landmark signs, which shall mean the signs may remain in place until such a time as the owner desires to remove them. In designating a sign as an historic landmark sign, the board shall find all of the following and the reasons therefor, which shall be recorded in the minutes and records of the board:

1. The sign exhibits distinctive stylistic features and an unusual use of materials in the design;
2. The sign is an example of artistic design and skilled craftsmanship;
3. The sign is a significant part of the architectural or cultural history of the community; and
4. Preservation of the sign would be in the interest of the entire community.

(Ord. No. 260-83, § 1, 12-15-83; Ord. No. 167-85, § 1, 8-27-85)

Editor's note(s)—Editor's note(s)—Section 3 of Ord. No. 260-83 declared the ordinance effective July 15, 1984.

Cross reference(s)—State law reference(s)—Open meetings of public agencies, KRS 61.805 et seq.

Sec. 5-4.4. Penalty for violation of section 5-4.3.

Any person who violates the provisions of section 5-4.3 shall upon conviction thereof be fined not less than ten dollars ($10.00) but not more than five hundred dollars ($500.00) for each conviction. Each day of violation shall constitute a separate offense.

(Ord. No. 167-85, § 2, 8-27-85)

Sec. 5-5. Fire limits or districts, special restrictions therein.

For the purpose of this Code, the urban county is divided into three (3) districts for fire protection. The types of construction permissible in each district are given below, except that reference must be made to restrictions imposed by occupancy, state laws or zoning, which may be more stringent than required for respective fire zones:

(1) **Types of construction permissible by fire zones:**

(i) **District 1 inner fire zone.** Construction types permissible:

Type I—Fire resistive A Type II—Fire resistive B

Type III—Protected limited combustible Type IV—Unprotected limited combustible

Roof coverings shall be either class "A" or class "B" Underwriters' Laboratories specifications on all new buildings or structures but shall be replaced with only a class A or class B U.L. specified roof covering.

Roofing of existing buildings or structures may be of class "C" Underwriters' Laboratories specifications.

(ii) **District 2, outer fire zone.** Construction types permissible: Type I—Fire resistive A

Type II—Fire resistive B

Type III—Protected limited combustible Type IV—Unprotected limited combustible Type V—Ordinary

Type VI—Heavy timber Type VII—Wood frame

Roof coverings shall be either class "A," class "B," or class "C," Underwriters' Laboratories Specifications on all new and existing buildings or structures.

(iii) **District 3, area outside of fire zones.** Construction types permissible:

Type I—Fire resistive A Type II—Fire resistive B

Type III—Protected limited combustible Type IV—Unprotected limited combustible Type V—Ordinary

Type VI—Heavy timber Type VII—Wood frame

Roof coverings shall be either class "A," class "B," class "C," Underwriters' Laboratories Specifications or with vertical (edge) grain wood shingles.

(2) **District 1, inner fire zone described:** All of the portions of the urban county embraced in the following described limits and all existing and any future shopping centers, regardless of how named, shall be known and designated as the inner fire zone:

Beginning at the intersection of the center line of West High Street and the center of the Jefferson Street Viaduct; thence with the center line of Jefferson Street Viaduct to the center line of West Main Street, 670 feet; thence with the center line of West Main Street to the center line of Old Georgetown Street, 530 feet thence with the center line of Old Georgetown Street to the point midway between Todd and Ballard Streets, 670 feet; thence in an easterly direction and parallel with Ballard Street along the line halfway between Ballard and Todd Streets, 600 feet to a point 125 feet west of the curbline of Jefferson Street; thence in a northerly direction parallel to and 125 feet west of the west curbline of Jefferson Street, 1,100 feet to a point in the center line of West Third Street; thence in an easterly direction with the center line of Third Street, 290 feet to a point 125 feet east of the east curbline of Jefferson Street; thence in a southerly direction parallel to and 125 feet east of the east curbline of Jefferson Street, 1,240 feet to a point in the center line of Ballard Street; thence in an easterly direction with the center line of Ballard Street and as if produced 225 feet to a point in the center of Bruce Street; thence continuing in the same straight line being parallel to Main Street, 110 feet east of the east curbline of Bruce Street, 175 feet to a point; thence in an easterly direction parallel to Second Street, 430 feet to a point; thence in a northerly direction parallel to Saunier Avenue, 80 feet; thence in an easterly direction parallel to Second Street, 80 feet; thence in a northerly direction parallel to Saunier Avenue, 50 feet; thence in an easterly direction parallel to Second Street, 80 feet; thence in a northerly direction parallel to Saunier Avenue, 80 feet; thence in an easterly direction parallel to Second Street, 80 feet to the center line of Saunier Avenue; thence in a northerly direction to the center line of Saunier Avenue, 150 feet to the center line of West Second Street; thence with the center line of West Second Street in an easterly direction, 440 feet to a point in the center line of Second Street, 190 feet east of the center line of Broadway; thence in a southerly direction along the center line of Bark Alley and parallel to Broadway, 240 feet; thence in an easterly direction parallel to Second Street, 220 feet to the center line of Mill Street; thence in a southerly direction to the center line of Mill Street, 60 feet; thence in an easterly direction parallel to Second Street, 220 feet to the center line of Market Street; thence in a northerly direction with the center line of Market Street, 80 feet; thence in an easterly direction parallel to Second Street, 110 feet; thence in a northerly direction parallel to and 125 feet west from the west curb line of Upper Street, 920 feet to the center line of Third Street; thence in an easterly direction with the center line of Third Street, 625 feet to the point 110 feet east of the east curb line on North Limestone; thence in a southerly direction parallel to Limestone, 180 feet to the center line of Houston Alley; thence with the southern line of Houston Alley, 500 feet to the point 100 feet west of the west property line of North Martin Luther King Jr. Boulevard; thence in a northerly direction parallel to and 100 feet west from the west curbline of North Martin Luther King Jr. Boulevard, 180 feet to the center line of Third Street; thence in an easterly direction with the center line of Third Street, 250 feet to a point 125 feet east from the east curbline of North Martin Luther King Jr. Boulevard; thence in a southerly direction parallel to and 125 feet east from the east curbline of North Martin Luther King Jr. Boulevard, 620 feet to a point in the center line of Wickliffe Street; thence in an easterly direction with the center line of Wickliffe Street and, if extended, 490 feet to a point 100 feet west from the west curbline of Elm Tree Lane; thence in a northerly direction parallel to and 110 feet west from the west curbline of Elm Tree Lane, 540 feet to a point 110 feet north of the north curbline of Third Street; thence in an easterly direction parallel to and 110 feet north from the north curbline of Third Street, 260 feet to a

point; thence in a southerly direction parallel to and 110 feet east from the east curbline of Elm Tree Lane, 1,250 feet to a point 160 feet south of the center line of Wilson Street; thence in an easterly direction parallel to and 160 feet south of the center line of Wilson Street, 100 feet; thence in a northerly direction parallel to Elm Tree Lane, 30 feet; thence in an easterly direction parallel to Wilson Street, 250 feet to the center line of Curley Avenue; thence in a southerly direction with the center line of Curley Avenue, 80 feet; thence in an easterly direction parallel to Wilson Street, 560 feet to the point where this line paralleling Wilson Street intersects the north right-of-way line of the L. & N. Railway Company; thence following the west right-of-way line of the L. & N. Railway Company, about 1,900 feet to a point 300 feet south from the center line of Third Street; thence crossing the L. & N. right-of-way and the C. & O. right-of-way, about 225 feet to the east right-of-way line of the C. & O. Railway Company where it intersects with the north property line of Ellerslie Avenue; thence in a southwesterly direction with the southeasterly right-of-way line of the C. & O., 300 feet; thence leaving said right-of-way line in a southerly direction, 200 feet to the center line of Indiana Avenue; then in an easterly direction with the center line of Indiana Avenue, 35 feet; thence in a southerly direction parallel to Forest Avenue 120 feet; thence in a westerly direction parallel to Skain Avenue, 30 feet; thence in a southerly direction parallel to Forest Avenue, 90 feet; thence in a westerly direction parallel to Skain Avenue, 20 feet; thence in a southerly direction, 230 feet to a point in the center line of Skain Avenue, 160 feet east of the center line of Indiana Avenue; thence with the center line of Skain Avenue in a westerly direction, 30 feet; thence in a southerly direction parallel with Forest Avenue, 180 feet; thence in a westerly direction parallel with Main Street, 90 feet; thence in a southerly direction parallel with Forest Avenue, 50 feet; thence in a westerly direction parallel with Main Street, 40 feet; thence in a southerly direction parallel with Forest Avenue, 350 feet to the center line of Main Street; thence with the center line of Main Street, 100 feet to a point 140 feet east of the center line of Ransom Avenue, thence in a southerly direction parallel with Ransom Avenue, 140 feet; thence in a westerly direction parallel with Main Street, 140 feet to the center line of Ransom Avenue; thence in a southerly direction with the center line of Ransom Avenue, 70 feet; thence in a westerly direction parallel with Main Street, 160 feet; thence in a southerly direction parallel with Ransom Avenue, 200 feet; thence in an easterly direction parallel with Main Street, 40 feet; thence in a southerly direction parallel with Ransom Avenue, 80 feet to the centers line of Vine Street; thence in a westerly direction with the center line of Vine Street, 70 feet; thence in a southerly direction parallel with Ransom Avenue, 160 feet; thence in a westerly direction parallel with Vine Street, 350 feet to the center line of Grand Boulevard; thence in a northerly direction with the center line of Grand Boulevard, 50 feet; thence in a westerly direction about parallel with Vine Street, 190 feet; thence in a southwesterly direction parallel to Grand Boulevard, 70 feet; thence in a northwesterly direction parallel to High Street, 50 feet; thence in a southwesterly direction parallel to Grand Boulevard, 30 feet; thence in a northwesterly direction parallel to High Street, 170 feet; thence in a southwesterly direction, 150 feet to the center line of High Street, which point is 100 feet southeast from the center line of Rose Street; thence with the center line of High Street, 4,530 feet to the center line of the Jefferson Street Viaduct, being the point of beginning.

(3) **Restriction applying to district 1:**

(i) No building or structure of frame, ordinary heavy timber or unprotected limited combustible construction shall be hereinafter increased in height or remodeled without the addition of a sprinkler system.

(ii) No building or structure of frame, ordinary, heavy timber or unprotected limited combustible construction shall be extended hereinafter on any side unless the construction of such extension conforms to the requirements of this Code for new construction and shall not be increased in size or remodeled without the addition of a sprinkler system.

(iii) No building of frame or unprotected metal construction shall be hereafter moved from without to within the inner fire limits nor from one location to another within the inner fire limits.

(iv) A building or structure shall be deemed to be within the inner fire limits if more than one-third of the area of such building or structure is located therein.

(v) No building, structures or premises within the inner fire limits, unless heretofore legally occupied or used for such purpose, shall hereafter be occupied or used as a lumberyard, cooperage or a place for the storage of new or secondhand lumber, empty packing boxes or similar flammable material, nor as a saw mill, feed, flour or grain mill, except by special permission and after approval of the zoning board of adjustment of the location; and then the stock must be stored in sheds or buildings with masonry walls.

(4) **Exceptions applying to district 1:** Nothing in this section shall prohibit within the inner fire limits and subject to the specified limitations of this Code and the zoning ordinances, the erection of new buildings or structures nor the extension or enlarging of existing buildings or structures of frame or ordinary heavy timber and unprotected limited combustible construction as follows:

(i) Temporary wooden scaffolding, barricades and covered walls.

(ii) Temporary wood frame buildings not more than one (1) story in height for the sole use of builders within the limits of the lot whereon buildings are in course of erection or within the limits of adjoining vacant lots. Such temporary buildings shall be removed upon completion of the building or thirty (30) days after building operations have ceased.

(iii) No building of frame or unprotected metal construction shall be hereafter moved from without to within the inner fire limits nor from one location to another within the inner fire limits.

(iv) Wood frame porches or balconies which do not exceed ten (10) feet in depth and which do not extend more than three (3) feet above the second floor level and having fire-retardant roofing.

(v) Bay windows of frame, covered with incombustible material not extending above the second story and otherwise in accordance with this Code.

(vi) Wood fences not over six (6) feet high.

(vii) Facades of wood frame construction not exceeding twelve (12) feet in height for parking lots and other such facilities.

(viii) Greenhouses not more than fifteen (15) feet high erected on the same lot with and accessory to a residence, store or other industry.

(ix) Storm enclosures not more than twelve (12) feet high nor more than four (4) feet wider than the doors they serve, located entirely within the lot lines.

(x) Display signs as elsewhere provided for in this Code.

(5) **District 2, outer fire zone described:** All of the portions of the urban county embraced in the following described limits shall be known and designated as the outer fire zone:

Beginning at a point being the center line of the main switch track of the Southern Railway Company, 80 feet north of the center line of De Roode Street and 125 feet west of the west curbline of Broadway; thence in a westerly direction following the center line of the Southern Railway Company's switch to a point 125 feet southeast of the southeast curb line of West High; thence in a westerly direction parallel to and 125 feet from the south curbline of High Street to a point 400 feet east of the center line of Bennett Avenue; thence in a northerly direction crossing High Street at right angles with same, 285 feet to a point 125 feet north of the north curbline of West High Street; thence in an easterly direction parallel to and 125 feet from the north curbline of West High Street to a point in the center line of the switch track of the Southern Railway Company near Cox Street; thence following the center line of the Southern Railway Company switch track in a northerly direction to a point 100 feet north of the north curbline of West Main Street; thence in an easterly direction parallel to and 100 feet north from the north curbline of West Main Street to a point 100 feet west of the west curbline of Old Georgetown Street; thence in a northerly direction parallel to and 100 feet from the west curbline of Georgetown Street to a point opposite the center line of Black Street; thence in an easterly direction 230 feet to a point in the center line of Black Street, 100 feet east of the east curbline of Georgetown Street; thence in a southerly direction parallel to and 100 feet from the east curbline of Georgetown Street to a point in the center line of King Street; thence in an easterly direction with the center line of King Street and the same as if continued in a straight line to a point in the center line of Ross Avenue; thence in a northerly direction to the center line of Ross Avenue to a point 125 feet south of the south curbline of West Fourth Street; thence in an easterly direction parallel to and 125 feet from the south curbline of West Fourth Street to a point 200 feet west of the west curbline of North Broadway; thence in a northerly direction parallel to and 200 feet from the west curbline of Broadway to a point in the south right-of-way line of the C. & O. Belt Line Railroad; thence in an easterly direction with the south line of said railroad right-of-way, 440 feet to a point 200 feet east of the east curbline of Broadway; thence in a southerly direction parallel to and 200 feet from the east curbline of North Broadway to a point 125 feet north of the north curbline of West Fourth Street; thence in an easterly direction parallel to and 125 feet from the north curbline of West Fourth Street to a point 210 feet west of the west curbline of North Limestone; thence in a northerly direction parallel to and 210 feet west of the west curbline to a point 125 feet south of the south curbline of Sixth Street; thence in a westerly direction parallel to and 125 feet south of the south curbline of Sixth Street to a

point in the center line of Upper Street; thence in a northerly direction with the center line of Upper Street, 280 feet to a point 125 feet north of the north curbline of Sixth Street; thence in an easterly direction parallel to and 125 feet from the north curbline of Sixth Street to a point in the center line of Harry Street; thence in a northerly direction with the center line of Harry Street to a point in the center line of Seventh Street; thence in a westerly direction with the center line of Seventh Street to the center line of Upper Street; thence with the center line of Upper Street in a northerly direction to the north right-of-way of the C. & O. Belt Line Railroad; thence in a westerly direction with the north right-of-way line of the C. & O. Belt Line to a point 200 feet west of the west line of the C. & O. Belt Line to a point 200 feet west of the west curbline of North Broadway; thence in a northerly direction parallel to and 210 feet west of Broadway to a point 650 feet; thence in an easterly direction and parallel to Loudon Avenue to a point 125 feet east of the east curbline of Limestone; thence in a southerly direction parallel to and 125 feet from the east curbline of Limestone, 175 feet; thence in an easterly direction parallel to Loudon Avenue 320 feet; thence in a southerly direction parallel to Limestone, 80 feet; thence in an easterly direction 200 feet to a point in the center line of Bryan Avenue; thence in a southerly direction parallel to Limestone to a point in the center line of the C. & O. Belt Line Railroad Company; thence in an easterly direction with the center line of the C. & O. Belt Line 100 feet; thence in a southerly direction parallel to Limestone, to a point 130 feet south of the center line of York Street; thence in a westerly direction parallel to York Street to a point 110 feet east of the east curbline of North Limestone; thence in a southerly direction parallel to and 110 feet from the east curb line of Limestone to a point 360 feet south of the center line of Fourth Street; thence in an easterly direction parallel to East Fourth Street to a point in the center line of North Martin Luther King Jr. Boulevard, 360 feet south of the center line of Fourth Street; thence in an easterly direction parallel to and 100 feet south of the center line of Campsie Place to a point in the line of the old Catholic cemetery's property; thence in a southerly direction with the line of the old Catholic cemetery to a point 160 feet north of the north curbline of East Third Street; thence in an easterly direction parallel to and 160 feet from the north curbline of East Third Street to a point 200 feet of the center line of Walton Avenue if continued; thence in a southerly direction crossing Third Street and parallel to and 200 feet from the center of Walton Avenue to a point in the north property line of Cramer Avenue; then in a westerly direction with the north property line of Cramer Avenue crossing Walton Avenue and continuing in a straight line to a point 200 feet west of the center line of Walton Avenue; then in a northerly direction parallel to and 200 feet from the center line of Walton Avenue, 350 feet to a point near the end of Owen Street; thence in a westerly direction crossing Owen Street and parallel to Ellerslie Avenue to a point in the east right-of-way line of the C. & O. Railroad Company; thence in a westerly direction with the east right-of-way line of the C. & O. Railroad Company to a point in said right-of-way line where it intersects the north property line of Ellerslie Avenue; thence with the line of the inner fire limits; thence in a southwesterly direction with the southeasterly right-of-way line of the C. & O., 300 feet; thence rear lot lines of said lots to a point in the center line of North Ashland Avenue leaving said right-of-way line in a southerly direction, 200 feet to the center line of Indiana Avenue; thence in an easterly direction with the center line of Indiana Avenue, 35 feet; thence in a southerly direction parallel to Forest Avenue, 120 feet; thence in a westerly direction parallel to Skain Avenue, 30 feet; thence in a southerly direction parallel to Forest Avenue, 90 feet; thence in a westerly direction parallel to Skain Avenue, 20 feet; thence in a southerly

direction, 230 feet to a point in the center line of Skain Avenue, 160 feet east of the center line of Indiana Avenue; thence with the center line of Skain Avenue in a westerly direction, 30 feet; thence in a southerly direction parallel with Forest Avenue, 180 feet; thence in a westerly direction parallel with Main Street, 90 feet; thence in a southerly direction parallel with Forest Avenue, 90 feet; thence in a southerly direction parallel with Forest Avenue, 50 feet; thence in an easterly direction parallel to and 350 feet north from the center line of Main Street to a point 140 feet east of the center line of Forest Avenue; thence in a southerly direction parallel to Forest Avenue to a point 200 feet north of the center line of Main Street; thence in an easterly direction parallel to and 200 feet north from the center line of Main Street to a point opposite the center line of Sayre Avenue extended; thence in a northerly direction parallel with Walton Avenue, 40 feet to a point in the center line of Sayre Avenue extended where it turns towards Walton Avenue; thence in an easterly direction with the center line of Sayre Avenue to the center line of Walton Avenue; thence in a northerly direction with the center line of Walton Avenue to a point opposite the rear lot line of the school property; thence in an easterly direction with the line of the school property to the northeast corner of the school lot; thence in a southerly direction along the east property line of the school lot to a point where the rear lot lines of the lots fronting on East Main Street intersect the school line; thence in an easterly direction with the rear lot lines of said lots to a point in the center line of North Ashland Avenue; thence with the center line of Ashland Avenue in a southerly direction to a point 230 feet south of the center line of Main Street; thence in a westerly direction parallel to and 230 feet south from the center line of Main Street to a point 150 feet west of the center line of Woodland Avenue; thence in a southerly direction parallel to and 150 feet west from the center line of Woodland Avenue to a point 125 feet northeast of the northeast curbline of East High Street; thence in a southeasterly direction parallel to and 125 feet northeast from the northeast curbline of East High Street to a point 150 feet south of the Ashland Park Subdivision, said point being the Clay-Simpson property; thence in a westerly direction crossing High Street to a point 125 feet west of the west curbline of East High Street; thence in a northwesterly direction parallel to and 125 feet from the curbline of High Street to a point in the center line of Kentucky Avenue; thence in a westerly direction parallel to and 125 feet south from the south curbline of Maxwell Street to a point 125 feet east of the east curbline of Rose Street; thence in a southerly direction parallel to and 125 feet east from the east curbline of Rose Street to a point 125 feet south of the south curbline of Euclid Avenue; thence in a westerly direction parallel to and 125 feet south from the south curbline of Euclid Avenue 285 feet to a point 125 feet west of the west curbline of Rose Street; thence in a northerly direction parallel to and 125 feet from the west curbline of Rose Street to a point 110 feet north of the north curbline of College View Avenue; thence in a westerly direction parallel to and 125 feet from the north curbline of College View Avenue to a point 180 feet east of the east curbline of Lexington Avenue; thence in a northerly direction parallel to and 180 feet east from the east curbline of Lexington Avenue to a point 150 feet south from the south curbline of Maxwell Street; thence in a westerly direction parallel to and 150 feet from the south curbline of Maxwell Street to a point 130 feet west of the west curbline of Lexington Avenue; thence in a southerly direction parallel to and 130 feet west from the west curbline of Lexington Avenue to a point 130 feet north of the north curbline of Euclid Avenue; thence in a westerly direction parallel to and 130 feet north from the north curbline of Euclid Avenue to a point 130 feet east from the east curbline of South Limestone; thence in a southerly direction parallel to and 130

feet from the east curbline of South Limestone to a point in the Experiment Station property 300 feet south from the center line of Rose Street; thence in a westerly direction crossing South Limestone just south of the intersection of Rose and Limestone to a point 130 feet west of the west curbline of South Limestone; thence in a northerly direction parallel to and 130 feet from the west curbline of South Limestone to a point 110 feet north of the north curbline of Colfax Street; thence in a westerly direction parallel to and 110 feet from the north curbline of Colfax Street to a point in the east right-of-way line of the C. N. O. T. P. Railroad Company; thence in a northerly direction with the said right-of-way line to a point 110 feet south from the south curb line of Scott Street; thence in a northwesterly direction parallel to and 110 feet from the south curbline of Scott Street to a point 125 feet east of the east curbline of South Broadway; thence in a southerly direction parallel to and 125 feet from the east curbline of South Broadway to a point in the center line of Simpson Avenue; thence in a westerly direction crossing Broadway to a point 125 feet west from the curbline of South Broadway; thence in a northerly direction parallel to and 125 feet from the west curbline of Broadway to the point of the beginning.

The inner boundary line of the outer area corresponds to the outer boundary line of the inner fire zone.

NOTE: A building or structure shall be declared within the outer fire zone if more than one-third of the building or structure is located therein.

(6) **Exceptions applying to district 2:** In addition to those allowed in district 1, the following exceptions are permitted:

(i) Arbors, hot houses or conservatories may be built of wood frame if not over fourteen (14) feet high at the highest point.

(ii) Open heavy timber shelter sheds (having no structural member less than four (4) inches in its least dimension and roof sheathing not less than one and five-eighths (1 5/8) inches thick) not exceeding twenty-five hundred (2,500) square feet in area and having roof covered with fire-retardant roofing will be permitted. Such sheds shall be not more than eighteen (18) feet high from the ground to the highest point of the roof and shall have no enclosing walls. No fence shall be used for the back or side of such shed, nor shall such a shed be less than thirty (30) feet from any other building or adjoining lot line. The distance may be decreased to ten (10) feet where sprinkled.

(iii) Frame additions, one (1) story high, to frame buildings in the outer fire limits, provided such extension shall not exceed four hundred (400) square feet in area; frame addition, two (2) stories high to frame buildings in the outer fire limits, provided such extension shall not exceed two hundred (200) square feet in area, and provided further, that no building together with such addition shall exceed the allowable area of frame construction, as provided in the building code.

(7) **District 3, area outside of fire zone:** District 3 is all of the area in the urban county not included in the previously described fire districts 1 and 2.

(8) **Street encroachments:**

(i) **New buildings:** No part of a building hereafter erected or of an enlargement of an existing building shall project beyond a street line or beyond a building line unless as provided for in this section.

(ii) **Structural support:** No part of a building hereafter erected or an enlargement of an existing building that is necessary for structural safety shall project beyond a property line or building line; but this shall not be deemed to prohibit the projection beyond the property line, to the extent of not more than twelve (12) inches, of the footings of street walls when such projecting parts of footings are not less than eight (8) feet below the curb level, nor beyond the building line when they are within the property line.

(iii) **Permissible projections:**

a. The main cornice, meaning thereby a moulded projection at or near the top of a wall that faces on a street, may project beyond the building line or street line not more than three (3) feet, provided such main cornice is not less than fourteen (14) feet above the curb level at all points.

b. Cornices of show windows and porches, including metal awning covers, may project beyond the building line of street line not more than twelve (12) inches.

c. Mouldings, belt courses, lintels, sills, architraves, pediments and similar projections of a decorative character may not project beyond the building line when they are less than ten (10) feet or more above the curb level.

d. Columns, pilasters and other similar ornamental projections, including their mouldings and bases, erected for aesthetic reasons may not project beyond the building line or street line unless they are ten (10) feet above the curb.

e. Rustications and quoins may project beyond the building line or street line not more than four (4) inches provided they are ten (10) feet above the curb.

f. Base courses may not project beyond the building line or street line.

g. No door or gate shall be hung hereafter so as to project when fully open more than twelve (12) inches beyond the building line or street line.

h. Marquees at entrances to buildings may extend beyond the street line and across the sidewalk to the curbline provided they are not less than ten (10) feet above the curb level at all points, constructed of noncombustible materials, securely supported from the building and properly drained.

i. Awnings may extend over the sidewalk when constructed and maintained as described in sections 5-2, 5-3 and 5-4.

j. Fire escapes and balconies to fire towers or other required exits, constructed of steel or other combustible material, only when required, may project beyond the building line or street line not

more than four (4) feet; but no part of such fire escapes or balconies shall be lower than ten (10) feet above the sidewalk. Nothing in this section shall prevent the use of movable stairs to the sidewalk, so arranged that they are more than ten (10) feet above the sidewalk when not in actual use.

k. Vaults, entirely below the sidewalk level, may extend beyond the street line but not beyond the curbline; and their tops must be flush with the sidewalk.

l. Exterior hose connections, for fire extinguishing equipment or fresh air inlets for plumbing systems, hereafter installed shall be set inside the building line or street line or in recesses in the street walls when such walls are on the building or street line.

m. No change or enlargement shall be made to an existing part of a building now projecting beyond the building line or street line, except in conformity with the provisions of this Code.

n. A part of a building permitted to project beyond a street line or building line shall be so constructed that its removal may be made without causing the building to become structurally unsafe.

o. Such parts of buildings which already project beyond the building line or street line may be maintained as constructed until their removal is directed by the urban county council.

(Ord. No. 87-67, § 1, 4-20-67)

Cross reference(s)—Fire prevention generally, ch. 9.

Secs. 5-6--5-10. Reserved

Editor's note(s)—Sections 5-6—5-9, relating to smoke abatement, and derived unamended from the original codification, and § 5-10, relating to fences, and derived from Ord. No. 5200, § 1, adopted June 3, 1965, were repealed by § 2 of Ord. No 8-80, adopted Feb. 7, 1980.

Secs. 5-11--5-19. Reserved

Article II

Wrecking, Moving, etc., Buildings

Sec. 5-20. Permit required; historic preservation study; emergency exceptions.

(a) Before commencing or proceeding with the wrecking, shoring, razing or moving of any structure, a permit therefor shall be first obtained by the owner or his agent from the director, division of building inspection; and it shall be unlawful to commence or proceed with such work unless such permit shall have been obtained. However, no permit shall be issued sooner than three (3) working days after the application is filed

in order that the notice provisions in section 5-24 and the historical study in section 5-20(b) may be completed. No work shall commence under a permit herein for a period of twenty-four (24) hours from the time of issuance of the permit.

(b) No permit required by subsection (a) above shall be issued until after the division of historic preservation is allowed to perform an initial examination of the structure and determine if the structure is at least fifty (50) years old and/or has any historic significance. Such examination is to be conducted on every proposed demolition regardless of whether the building or structure is listed in the National Register of Historic Places. However, under no circumstances shall such examination exceed three (3) working days in length. The time shall begin to run from the date that the application to demolish is filed with the division of building inspection.

(c) If the division of historic preservation determines that the structure is at least fifty (50) years old and/or has any historic significance, no permit shall be issued until after the division of historic preservation has completed a thorough study of the structure and documented for future generations the historical significance of the structure. However, under no circumstances shall such study exceed thirty (30) calendar days in length. The time shall begin to run on the date following the end of the initial three-day waiting period.

(d) Subsections (a), (b) and (c) above and section 5-24 shall not apply in any case where the division of building inspection, division of fire and emergency services, division of code enforcement, the board of health, or any officer or agency thereof, or any court orders or directs the demolition of any structure or building for the purpose of remedying emergency conditions determined to be dangerous to life, health or property.

(Ord. No. 4004, § 1, 1-28-60; Ord. No. 240-83, § 1, 12-15-83; Ord. No. 248-96, § 1, 12-12-96)

Sec. 5-21. Statement of nature of work and examination of structure.

No permit required by section 5-20 shall be issued until after a statement of the nature of the proposed work has been filed with and examined and approved by the director, division of building inspection or until such structure has been examined by the building inspector. Such statements shall be made on forms furnished by the building inspector's office.

(Ord. No. 4004, § 2, 1-28-60)

Sec. 5-22. Application for permit by nonresident.

The application for any permit under this article made by any person who is a nonresident of Fayette County shall contain a provision appointing the director, division of building inspection as agent for the service of process in any suit brought against such holder arising out of the work covered by such permit, and consenting that any suit arising out of such work may be prosecuted against such person in any court having jurisdiction of the subject matter.

(Ord. No. 4004, § 6, 1-28-60)

Sec. 5-23. Insurance or bond required.

No permit required by this article shall be issued until the owner or his contractor shall have furnished to the director, division of building inspection, evidence of the existence of public liability insurance covering bodily injury and property damage. Each policy shall protect the owner and contractor performing the work from claims for damages for personal injury, including accidental death, as well as from claims for property damage, which may arise from the proposed operation, whether such operation is conducted by the owner or contractor or by anyone directly or indirectly employed by either of them.

The minimum amount of public liability coverage required for each wrecking job shall be determined by the following table: If the assessed valuation of the property is:

Over $100,000.00—then $25,000.00 per person; $200,000.00 per accident.

$50,000.00 to $100,000.00—then $15,000.00 per person; $100,000.00 per accident.

$5,000.00 to $50,000.00—then $10,000.00 per person; $50,000.00 per accident. Less than $5,000.00—then $5,000.00 per person; $10,000.00 per accident.

The property damage coverage shall be two (2) times the assessed valuation of the property. Insurance policies covering this requirement shall issue under such rules and regulations as may be made by the division of risk management.

In lieu of obtaining insurance coverage as described in this section, a person desiring a permit required by this article may evidence proof of financial responsibility and fulfill the requirements of this section by furnishing the director, division of building inspection with a bond in the required amounts issued by a surety company duly authorized to transact business within this state, or a bond with an individual surety owning real estate within the state, which real estate shall be scheduled in the bond approved by the director, division of building inspection, which bond shall be conditioned for payment of the amount specified in this section. Such bond shall constitute a lien in favor of the city upon the real estate of any surety so scheduled, which lien shall exist in favor of any holder of a financial judgment against the person who has filed such bond for any damages resulting from wrecking, removing or demolishing of the structure concerned.

(Ord. No. 4004, § 3, 1-28-60)

Sec. 5-24. Notice to adjacent or abutting property owners.

The owner or his agent shall promptly notify all owners of all property abutting, adjacent to, or located within fifty (50) feet of the property line of any lot upon which any demolition or removal for which a permit is required by this article that an application for demolition or removal has been filed. Such notice shall include the nature of the work and the time frame during which such work may commence. Such notice shall be in writing and shall be furnished within twenty-four (24) hours of the filing of the application. Evidence that the notice required herein was furnished shall be provided by the owner or his agent to the division of building inspection.

(Ord. No. 4004, § 5, 1-28-60; Ord. No. 240-83, § 2, 12-15-83; Ord. No. 248-96, § 2, 12-12-96)

Sec. 5-25. Barricades, signals, etc.

The director, division of building inspection shall have authority from time to time to require necessary barricades, walkways, access ways and safety signals about the site of work for which a permit is required by this article.

(Ord. No. 4004, § 5, 1-28-60)

Sec. 5-26. Assignment or subletting of work.

No person procuring a permit under this article shall assign or sublet the work covered thereby, or any part thereof, to any person who has not previously received in his own name a permit therefor.

(Ord. No. 4004, § 4, 1-28-60)

Sec. 5-27. Penalties.

(a) The director, division of building inspection, shall have the right to revoke any permit issued under this article if any provisions of this Code have been violated, or if the holder of the permit shall fail to maintain the insurance or furnish the bond required by section 5-23.

(b) Any person or persons who violates any provision of this article shall be subject for each offense to a fine not to exceed five hundred dollars ($500.00) and each day's continuance of any such violation shall be a separate offense.

(Ord. No. 4004, § 7, 1-28-60; Ord. No. 248-96, § 3, 12-12-96)

Sec. 5-28. Article is in addition to building code.

The requirements of this article are in addition to the requirements imposed under the building code adopted in section 5-1.

(Ord. No. 4004, § 8, 1-28-60)

Article III

Building Permits

Sec. 5-29. Fee schedule.

No building, moving or wrecking permit, or certificate, letter, or other documentation required by this section shall be issued until there has been paid through the director, division of building inspection, a fee for the same computed according to the following schedule:

(1) For the construction of residential buildings, including additions, the director of building inspection shall receive a fee of ten cents ($0.10) per square foot of the project with a minimum fee of one hundred fifty dollars ($150.00).

(2) For the construction of commercial and other non-residential structures, the director, division of building inspection shall receive the following fees based on intended use, and in no event shall the fee be less than two hundred fifty dollars ($250.00).

a. $0.09 per square foot for restaurant use.

b. $0.09 per square foot for educational use.

c. $0.068 per square foot for hotel and motel use.

d. $0.062 per square foot for office use.

e. $0.042 per square foot for retail sales use.

f. $0.042 per square foot for canopies.

g. $0.028 per square foot for warehouse use.

h. $0.042 per square foot for all other non-residential uses.

(3) For residential remodeling, the director, division of building inspection, shall receive a fee of ten cents ($0.10) per square foot of the project with a minimum fee of one hundred fifty dollars ($150.00). For commercial remodeling, the director, division of building inspection, shall receive a fee of ten cents ($0.10) per square foot of the project with a minimum fee of two hundred fifty dollars ($250.00).

(4) For the construction of residential accessory buildings, the director, division of building inspection, shall receive a fee of ten cents ($0.10) per square foot of the project with a minimum fee of one hundred fifty dollars ($150.00).

(5) For the erection of residential swimming pools, the director, division of building inspection, shall receive a fee of one hundred dollars ($100.00). For the erection of commercial swimming pools, the director, division of building inspection, shall receive a fee of two hundred dollars ($200.00).

(6) For the issuance of wrecking permits, the director, division of building inspection, shall receive a fee of two-tenths (00.2) of one (1) percent of assessed valuation; but in no event shall the fee be less than one hundred dollars ($100.00);

(7) For the issuance of house moving permits, the director, division of building inspection, shall receive a fee of two-tenths (00.2) of one (1) percent of assessed valuation; but in no event shall the fee be less than one hundred dollars ($100.00);

(8) For the construction or erection of elevators, the director, division of building inspection, shall receive a fee of two-tenths (00.2) of one (1) percent of the contract price; but in no event shall the fee be less than one hundred dollars ($100.00);

(9) For the construction of liquid storage tanks, the director, division of building inspection, shall receive a fee of twenty cents ($0.20) per hundred gallons; but in no event shall the fee be less than one hundred dollars ($100.00);

(10) For signs and billboards, the director, division of building inspection, shall receive a fee of fifty cents ($0.50) per square foot, but in no event shall the fee be less than fifty dollars ($50.00);

(11) For residential curb cuts, the director, division of building inspection, shall receive a fee of ten dollars ($10.00); for commercial curb cuts, the director, division of building inspection, shall receive a fee of twenty-five dollars ($25.00). For the initial construction and surfacing of residential driveways or parking areas, the director, division of building inspection shall receive a fee of one (1) percent of the cost price, with the cost to be based on sixty cents ($0.60) per square foot, but in no event shall the fee be less than twenty-five dollars ($25.00). For the initial construction and surfacing of commercial driveways or parking areas, the director, division of building inspection shall receive a fee of one (1) percent of the cost price, with the cost to be based on sixty cents ($0.60) per square foot, but in no event shall the fee be less than fifty dollars ($50.00). No permit shall be required for the resurfacing of existing driveways or parking areas;

(12) For the erection of a residential fence, the director, division of building inspection, shall receive a fee of fifty dollars ($50.00). For the erection of a commercial fence, the director, division of building inspection shall receive a fee of one hundred dollars ($100.00).

(13) For commercial fit-ups, the director, division of building inspection, shall receive a fee of one hundred dollars ($100.00);

(14) For the erection of towers, the director, division of building inspection, shall receive a fee of two hundred fifty dollars ($250.00);

(15) For the erection of co-locates, the director, division of building inspection, shall receive a fee of one hundred dollars ($100.00);

(16) For the placement of a manufactured home other than those located in an M-1P zone or other existing mobile home parks, the director, division of building inspection, shall receive a fee of one hundred dollars ($100.00);

(17) For the certificate of occupancy, which shall only be required in instances in which a building permit was not previously required, the director, division of building inspection, shall receive a fee of twenty-five dollars ($25.00);

(18) For the home office certificate, the director, division of building inspection, shall receive a fee of ten dollars ($10.00);

(19) For the zoning and use verification letter, the director, division of building inspection, shall receive a fee of twenty-five dollars ($25.00).

(20) For the review of fire detection systems, the director, division of building inspection, shall receive a fee as follows: For systems up to twenty thousand (20,000) square feet two hundred seventy-five dollars ($275.00); over twenty thousand (20,000) square feet two hundred seventy-five dollars ($275.00) plus thirty dollars ($30.00) for each additional ten thousand (10,000) square feet.

(21) For the review of fire suppression systems, the director, division of building inspection, shall receive a fee according to the following schedule:

Sprinkler Systems	**Fee**
4—25	$150.00
26—100	$200.00
101—200	$250.00
201—300	$275.00
301—400	$325.00
401—750	$375.00
Over 750	$375.00 plus 30 cents per sprinkler
All other suppression systems	$275.00

(Ord. No. 5444, § 1, 2-3-66; Ord. No. 149-70, § 2, 7-9-70; Ord. No. 176-70, § 1, 7-30-70; Ord. No. 278-78, § 1, 11-16-78; Ord. No. 66-86, § 1, 5-1-86; Ord. No. 242-88, § 1, 10-20-88; Ord. No. 104-95, § 1, 5-18-95; Ord. No. 58-2000, § 1, 3-9-00; Ord. No. 53-2004, § 1, 3-18-04; Ord. No. 213-2009, § 1, 10-1-09; Ord. No. 40-2019, §§ 1—5, 6-20-19; Ord. No. 44-2019, § 1, 7-2-19; Ord. No. 051-2021, §§ 1, 2, 6-24-21)

Sec. 5-29.1. Additional building permit fee.

In addition to the building permit fees imposed in section 5-29(1), (2), the director of building inspection shall at the time a building permit is issued for any new commercial building receive a fee of thirty-five one-hundredths (0.35) of one (1) percent of the cost of construction of any new commercial building, with the cost to be based on:

(i) Seventy-two dollars ($72.00) per square foot for restaurant construction;

(ii) Fifty dollars ($50.00) per square foot for office building construction;

(iii) Thirty-four dollars ($34.00) per square foot for retail sales building construction;

(iv) Twenty-two dollars ($22.00) per square foot for warehouse construction;

(v) Fifty-four dollars ($54.00) per square foot for hotel and motel construction;

(vi) Thirty-four dollars ($34.00) per square foot for all other commercial nonresidential construction;

and for any new residential dwelling receive a fee of one hundred dollars ($100.00) per unit for apartments, one hundred dollars ($100.00) per unit for duplex or townhouse units, and one hundred eighty dollars ($180.00) per unit for detached single-family homes. However, construction of residential structures for properties in the expansion areas described in the expansion area master plan adopted by the planning commission on July 18, 1996, effective November 30, 1996, for which a building permit is issued after November 30, 1996, and which are subject to comprehensive development exactions pursuant to article 23C of the Lexington-Fayette Urban County Zoning Ordinance shall be exempt from the provisions of this section.

(Ord. No. 273-83, § 1, 12-20-83; Ord. No. 178-95, § 1, 8-24-95; Ord. No. 199-96, § 1, 10-3-96)

Sec. 5-29.2. Commercial and residential construction plan review fee.

In addition to any other fee imposed in section 5-29 or 5-29.1, the director of building inspection shall, at the time a commercial or residential construction project plan is submitted for review, receive a plan review fee as follows: For commercial construction, the fee shall be six cents ($.06) per square foot, with a minimum fee of fifty dollars ($50.00). This fee shall apply to all commercial construction projects, including both new construction and remodeling, but shall not apply to the portion of construction involving fences, paving, curb cuts, grading, signs, swimming pools, and sidewalk cafes. For residential construction, the plan review fee shall be twenty-five dollars ($25.00). This fee shall apply to all residential construction projects, including new construction, additions, remodeling and accessory structures, but shall not apply to fences, paving, curb cuts, and swimming pools.

(Ord. No. 151-2005, § 1, 6-23-05; Ord. No. 40-2019, § 6, 6-20-19)

Sec. 5-29.3. Additional fees.

Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits, certificates, letters, or other documentation required pursuant to this article of the Code may be subject to an additional fee payable to the director, division of building inspection, along with the original fee, immediately upon discovery that such work has commenced.

(a) The additional fee for the following sections of the Code shall be in addition to and equal to the amount of the original relevant fee provided in that section, subsections 5-29(1) through section 5-29.1, section 5-32 and section 5-67.

(Ord. No. 198-2009, § 1, 9-17-09; Ord. No. 213-2009, § 2, 10-1-09; Ord. No. 27-2019, § 1, 4-25-19)

Sec. 5-29.4. Additional inspection fees.

Each commercial or residential building permit issued shall include an initial inspection and one re-inspection for each inspection type (i.e. footer, framing, etc.). When a second re-inspection is scheduled for the same type, the

director, division of building inspection shall receive a fee of fifty dollars ($50.00). For each additional re-inspection, the director, division of building inspection shall receive a fee that is double the previous re-inspection fee. All fees shall be paid prior to requesting additional inspections or permits.

(Ord. No. 40-2019, § 7, 6-20-19)

Sec. 5-30. Requirements prerequisite to issuance of certain building permits.

(a) Prior to the issuance of any building permit for the construction or expansion of an apartment building or any commercial or industrial building or related blacktopping, or for any residential building where no previous building permit has been issued in the subdivision unit in which said residential lot is located from the date of the enactment of this section, the director, division of building inspection shall:

(1) Obtain a certificate from the urban county engineer that such construction, including related blacktopping shall not materially cause stormwater damage. In areas where stormwater problems are known to exist, including but not limited to floodplains, areas of alluvial soils, and environmentally sensitive areas, the urban county engineer may require a stormwater study. Based on that study, additional stormwater management features may be required. The stormwater study shall be prepared in conformance with the Division of Water Quality Stormwater Technical Manual by a professional engineer licensed in the State of Kentucky.

(2) If deemed necessary, certify upon consultation with the director, division of traffic engineering, that curb cut regulations have been complied with, and that the construction and related property use will not unreasonably interfere with traffic flow.

(b) No building permit for the construction of any structure that will require connection to the urban county government sanitary sewer system or the re-modeling or expansion of any existing structure that will result in an increase in sanitary sewer usage shall be issued unless the division of building inspection can verify via the urban county government's database or evidence provided by the applicant that a sanitary sewer capacity permit as defined in subsection 16-302(q) has been issued for the subject property or a waiver has been granted because the project is a remodeling project as defined in subsection 16-302(p).

(Ord. No. 110-71, § 1, 7-1-71; Ord. No. 42-72, § 1, 3-2-72; Ord. No. 174-2001, § 1, 7-5-01; Ord. No. 63-2013, § 2, 6-6-13)

Sec. 5-31. Bonding site improvements or other conditions; posting of a full cash bond.

(a) When site improvements or conditions are required as part of the building permit approval, no final certificate of occupancy shall be issued until the required site improvements or conditions have been completed as certified by an on-site inspection by the division of building inspection. If the required site improvements or conditions have not been completed and a temporary certificate of occupancy is requested, a full cash bond shall be posted at that time. The amount of the bond shall be based upon the cost of the proper site improvements or conditions shown in the submitted plan or noted as a condition of the permit, with the cost certi-

fied by a contractor registered to perform such work. The amount of the bond shall also include an inflation factor and/or administrative contingency cost of no more than twenty-five (25) percent of the base cost, as determined by the division of building inspection.

(b) After a full cash bond has been posted, the required site improvements or conditions shall be completed within six (6) months after the date of posting the full cash bond. An additional six (6) month extension may be granted by the division of building inspection upon a demonstration by the property owner or developer that such an extension is warranted because of adverse conditions or unforeseen circumstances. The full cash performance bond shall be called if the required site improvements or conditions have not been completed by the end of the approved period, and the LFUCG shall apply the proceeds of the bond to have the work completed.

(Ord. No. 16-2018, § 1, 3-22-18)

Sec. 5-32. Mechanical permit fees for the installation, replacement or addition of heating, ventilation and air conditioning systems.

No mechanical permit shall be issued for the installation, replacement or addition of heating, ventilation and air conditioning systems until the applicant has paid to the division of building inspection a fee according to the following schedule, which shall be administered in accordance with the applicable provisions of 815 KAR 8:070:

(1) The fee for each heating, ventilation, or air conditioning system installation permit for one- and two-family dwellings shall be one hundred five dollars ($105.00) for the first system plus fifty dollars ($50.00) for each additional system.

(2) The fee for each heating, ventilation, or air conditioning system installation permit for multi-family dwellings other than duplexes shall be one hundred five dollars ($105.00) for the first system plus twenty-five dollars ($25.00) for each additional system.

(3) The fee for each heating, ventilation, or air conditioning installation permit other than those provided for in subsections (1) or (2) above, shall be based upon either the actual or estimated total dollar value of each such installation as further provided below:

Amount in dollars	**Permit fee**
$2,000 or less	$125
$2,001 to $10,000	$180
$10,001 to $25,000	$270
$25,001 to $50,000	$330
$50,001 to $75,000	$390
$75,001 to $100,000	$500

Amount in dollars	Permit fee
$100,001 to $150,000	$630
$150,001 to $200,000	$760
$200,001 to $250,000	$885
$250,001 to $300,000	$1,025
$300,001 to $400,000	$1,150
$400,001 to $500,000	$1,500
$500,001 to $600,000	$1,725
$600,001 to $700,000	$1,900
$700,001 to $800,000	$2,125
$800,001 to $900,000	$2,355
$900,001 to $1,000,000	$2,590
$1,000,001 to $1,100,000	$2,820
$1,100,001 to $1,200,000	$3,050
$1,200,001 to $1,300,000	$3,280
$1,300,001 to $1,400,000	$3,510
$1,400,001 to $1,500,000	$3,735
$1,500,001 to $1,600,000	$3,965
$1,600,000 and above	$3,965 plus $200 per $100,000 or fraction thereof in excess of $1,600,000

(4) The permit fee shall be the base fee of seventy-five dollars ($75.00) if the application for permit does not include any new installation, but is to make corrections or provide testing for an installation made by someone else.

(5) Each heating, ventilation, or air conditioning system permit shall include up to three (3) inspections of the system at no additional cost. Any additional inspection shall require payment of an additional permit fee of fifty dollars ($50.00) for each inspection.

(Ord. No. 212-2002, § 1, 8-29-02; Ord. No. 62-2004, § 1, 4-8-04; Ord. No. 202-2010, § 1, 11-18-10; Ord. No. 39-2015, § 1, 4-30-15)

Secs. 5-33--5-40. Reserved

Article IV

Electricity

Division 1

Generally[1]

Sec. 5-41. Reserved.

Sec. 5-42. Reserved.

Editor's note(s)—Section 5-42, adopting the National Electrical Code, was repealed by § 2 of Ord. No. 8-80, adopted Feb. 7, 1980. Formerly, § 5-42 was derived from the following:

Ord. No.	Date	Section
4177	2-16-61	1, 2
4888	4-23-64	1, 2
5402	12-23-65	1
183-71	11-4-71	1
36-74	3-21-74	1
88-79	4-19-79	1

Sec. 5-43. Reserved.

Cross reference(s)—See § 5-72.

Sec. 5-44. Reserved.

Cross reference(s)—See § 5-74.

Secs. 5-45--5-54. Reserved.

1. **Cross reference(s)**—See § 5-73.

Division 2

Licensing of Electricians[1]

Sec. 5-55. Standards adopted.

Standards for the construction, alteration and repair of any electrical wiring shall be as prescribed by ordinance of the urban county government, provided that in no event shall any standard be less rigid than the requirement of the National Electrical Code which is incorporated into the State Standards of Safety and which is hereby adopted as the minimum standard in the county.

(Ord. No. 247-88, § 1, 10-20-88; Ord. No. 219-91, § 1, 10-17-91)

Sec. 5-56. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-56, which pertained to definitions, and derived from Ord. No. 36-74, § 2, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, and Ord. No. 60-2003, § 1, adopted March 20, 2003.

Cross reference(s)—Formerly, § 5-55.

Sec. 5-57. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-57, which pertained to creation, membership, and compensation of the examining board of electricians, and derived from Ord. No. 36-74,

1. **Editor's note(s)—**Section 1 of Ord. No. 247-88, adopted Oct. 20, 1988, effective Nov. 1, 1988, amended div. 2, §§ 5-55—5-75, in its entirety. In most cases, the new ordinance dealt with essentially same subject matter as Ord. No. 36-74, from which this division was originally derived, but gave the provisions different section numbers. In those cases, a complete history note has been given, with a note indicating the former section number. Reference only to Ord. No. 247-88 indicates the provisions are included in this division for the first time. Some of the provisions were formerly found in div. 1 of this article. They have been included as numbered by Ord. No. 247-88 and have been deleted from div. 1, with a note giving their location in this div. 2. Provisions relating to an advisory board of electricians, formerly included in § 5-59 and derived from Ord. No. 36-74, § 4, were not included in the new ordinance. The division was further amended in its entirety by § 1 of Ord. No. 219-91, adopted Oct. 17, 1991.

§ 3, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, Ord. No. 15-92, § 1, adopted February 6, 1992, and Ord. No. 240-94, § 1, adopted December 8, 1994.

Cross reference(s)—Formerly, § 5-56.

Sec. 5-58. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-58, which pertained to general powers of the examining board, and derived from Ord. No. 36-74, § 5, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, and Ord. No. 293-2002, § 1, adopted November 12, 2002.

Cross reference(s)—Formerly, § 5-57.

Sec. 5-59. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-59, which pertained to general duties of the examining board, and derived from Ord. No. 36-74, § 6, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, and Ord. No. 256-2001, § 1, adopted October 11, 2001.

Cross reference(s)—Formerly, § 5-61.

Sec. 5-60. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-60, which pertained to designation of classes of licenses, and derived from Ord. No. 36-74, § 7, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Cross reference(s)—Formerly, § 5-61.

Sec. 5-61. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-61, which pertained to application requirements and issuance of license, and derived from Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, Ord. No. 241-94, § 1, adopted December 8, 1994, and Ord. No. 256-2001, § 2, adopted October 11, 2001.

Sec. 5-62. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-62, which pertained to electrical contractor's license required, application, issuance and scope of license, and derived from Ord. No. 36-74, § 8, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Sec. 5-63. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-63, which pertained to journeyman electrician's license required, application, issuance and scope of license, and derived from Ord. No. 36-74, § 9, adopted March 21, 1974, Ord. No. 247-88, § 8, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Sec. 5-64. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-64, which pertained to apprentice electrician's license required, application, issuance and scope of license, and derived from Ord. No. 36-74, § 10, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Sec. 5-65. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-65, which pertained to exceptions to testing and licensing requirements, and derived from Ord. No. 36-74, § 12, adopted March 21, 1974, Ord. No. 92-75, § 1, adopted April 10, 1975, Ord. No. 205-87, § 1, adopted August 27, 1987, Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, Ord. No. 149-94, § 1, adopted August 18, 1994, and Ord. No. 256-2001, § 3, adopted October 11, 2001.

Cross reference(s)—Formerly, § 5-66.

Sec. 5-66. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-66, which pertained to license fees, expiration and reinstatement of licenses, and derived from Ord. No. 36-74, § 11, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, Ord. No. 219-91, § 1, adopted October 17, 1991, and Ord. No. 256-2001, § 5, adopted October 11, 2001.

Cross reference(s)—Formerly, § 5-65.

Sec. 5-67. Permit for installation, alteration required; functions of department of public safety.

(1) Electrical wiring or equipment shall not be installed nor shall any alteration be made in any existing installation without first obtaining a permit from the division of building inspection, the fee for which shall be ten dollars ($10.00). The application and issuance of said permit is governed by all applicable sections of the Kentucky Building Code, including but not limited to article 27, and by the rules and regulations established by the division of building inspection.

(2) A permit shall not be required for the execution and use of the classes of work specified in sections 2703.2.1 through 2703.2.4 of the Kentucky Building Code.

(3) The division of building inspection shall establish regulations governing the issuance of permits.

(4) The department of public safety, division of building inspection, shall issue permits, maintain records, promulgate rules and regulations, and conduct on-site inspections to ensure compliance with this article.

(Ord. No. 247-88, § 1, 10-20-88; Ord. No. 219-91, § 1, 10-17-91; Ord. No. 230-95, § 1, 10-19-95; Ord. No. 187-2003, § 2, 7-10-03)

Cross reference(s)—Subsection (4) was formerly § 5-68.

Sec. 5-68. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-68, which pertained to inactive status of licenses, and derived from Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Sec. 5-69. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-69, which pertained to insurance required of contractors, and derived from Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Sec. 5-69.1. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-69.1, which pertained to continuing education, and derived from Ord. No. 256-2001, § 4, adopted October 11, 2001.

Sec. 5-70. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-70, which pertained to creation and membership of the appeals board of electricians, and derived from Ord. No. 36-74, § 13, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Cross reference(s)—Formerly, § 5-60.

Sec. 5-71. Reserved.

Editor's note(s)—Ord. No. 187-2003, § 1, adopted July 10, 2003, repealed former § 5-71, which pertained to appeals, and derived from Ord. No. 36-74, § 14, adopted March 21, 1974, Ord. No. 247-88, § 1, adopted October 20, 1988, and Ord. No. 219-91, § 1, adopted October 17, 1991.

Sec. 5-72. Authority to turn off current or disconnect wires in emergencies.

The chief of the division of fire and emergency services, or his designated representatives, shall have the authority to cause the turning off of all electrical currents and to cut or disconnect, in cases of emergency, any wires where such electrical currents are dangerous to life or property or where such wires may interfere with the work or progress of the division of fire and emergency services in fighting fires. The director of the division of building

inspection or his designated representatives, in order to ensure compliance with these regulations, shall have the authority to cause the turning off of all electrical currents in cases of emergency or where such currents are dangerous to life or property.

(Ord. No. 36-74, § 15, 3-21-74; Ord. No. 247-88, § 1, 10-20-88; Ord. No. 219-91, § 1, 10-17-91)

Cross reference(s)—Formerly, § 5-43 in div. 1 of this article.

Sec. 5-73. Penalty.

Any person who violates any provision of this division shall be fined not less than twenty-five dollars ($25.00) nor more than two hundred fifty dollars ($250.00), or imprisoned not more than ninety (90) days, or both. Each day any violation continues shall be deemed a separate offense.

(Ord. No. 36-74, § 16, 3-21-74; Ord. No. 247-88, § 1, 10-20-88; Ord. No. 219-91, § 1, 10-17-91; Ord. No. 58-99, § 1, 3-25-99)

Cross reference(s)—Formerly, § 5-41 in div. 1 of this article.

Sec. 5-74. Liability for damage caused by defective equipment or work.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling or installing any electrical wiring, devices or equipment for damage to person or property caused by any defect therein; nor shall the division of building inspection be held as assuming any such liability by reason of the inspections authorized herein or permits of approval issued as herein provided.

(Ord. No. 36-74, § 17, 5-21-74; Ord. No. 247-88, § 1, 10-20-88; Ord. No. 219-91, § 1, 10-17-91)

Cross reference(s)—Formerly, § 5-44 in div. 1 of this article.

Sec. 5-75. Promulgation of regulations.

The mayor, the commissioner of public safety and their designees shall promulgate regulations which may be necessary to carry out and effectuate the provisions of this article.

(Ord. No. 247-88, § 1, 10-20-88; Ord. No. 219-91, § 1, 10-17-91)

Division 3

Inspections

Sec. 5-76. Required; fees.

Any person making any construction, alteration or repairs of any electrical wiring shall have same inspected by an electrical inspector employed in the division of building inspection or pursuant to contract with the urban county government as to compliance with all standards established by law, including ordinances of this government. Fees for electrical inspections required by this division shall be paid in accordance with the following schedule:

(1) For inspection of electrical wiring work not exceeding thirty thousand dollars ($30,000.00) in cost:

Rough wire inspection:

$65.00 for the first 10 circuits.

$0.65 each circuit over 10 and up to 20.

$0.40 each for all over 20.

Rewire inspection:

$65.00 for service change inspection.

Reinspection because of turndown:

$45.00 per inspection.

Final inspection:

$65.00 for service and fixtures up to 10 circuits.

$0.40 for each fixture over 10.

$1.10 for each 240-volt motor and appliance circuits.

Temporary inspection:

$65.00

Manufactured or mobile home services:

$65.00 for inspection of manufactured or mobile homes without state approval.

Apartments - rough wire and temporary on permanent inspections:

$55.00 per unit per inspection.

Apartments - final inspection:

$55.00 per unit per inspection.

$1.10 for each 240-volt appliance circuit.

$1.10 for each small appliance circuit.

(2) Contracts of thirty thousand dollars ($30,000.00) and above:

The rate for inspections for electrical wiring work including all owner furnished materials costing more than thirty thousand dollars ($30,000.00) shall be one percent of the total cost.

(Ord. No. 15-75, § 1, 1-16-75; Ord. No. 217-87, § 1, 9-3-87; Ord. No. 181-91, § 1, 8-29-91; Ord. No. 314-98, § 1, 11-12-98; Ord. No. 256-2001, § 5, 10-11-01; Ord. No. 184-2009, § 1, 9-3-09; Ord. No. 98-2017, § 1, 6-15-17; Ord. No. 028-2025, §§ 1, 2, 5-8-25)

Sec. 5-77. Penalty.

Any person who fails to obtain an electrical inspection required by this division shall be fined not less than ten dollars ($10.00), nor more than one hundred dollars ($100.00), or imprisoned not more than fifty (50) days, or both.

(Ord. No. 15-75, § 2, 1-16-75; Ord. No. 181-91, § 1, 8-29-91)

Article V

Protection of Survey Monuments

Sec. 5-78. Definition.

For purposes of this article, the term "monument" shall mean the same as the following terms frequently used to describe monuments and which were placed in conjunction with the unified mapping programs system of permanent control monuments, including marker, control monument, survey monument, permanent control monument, monumented azimuth mark, or any reference which pertains to a permanent control monument. In addition, the term "bench mark," a well-understood term reserved for vertical control markers, may continue to be used in addition to the term "monument." The term "monument" shall also include any and all new monuments placed in the county.

(Ord. No. 150-83, § 1, 8-30-83)

Sec. 5-79. System adopted.

The unified mapping program's system of permanent control monuments is hereby adopted and incorporated herein as the official map of monuments in the county and is on file at the division of planning.

(Ord. No. 150-83, § 1, 8-30-83)

Sec. 5-80. Permit—Required.

No person shall engage in any activity, including but not limited to grading, construction and excavation, which may result in the disturbance, destruction or removal of monuments provided for herein without having first obtained a permit from the department of public works within a reasonable time of such activity.

(Ord. No. 150-83, § 1, 8-30-83)

Sec. 5-81. Same—Application.

The application for a permit required by section 5-80 shall contain specific information as to the location and placement of the monument. The permit shall provide that in the event a monument is removed, disturbed or destroyed, the monument shall be resurveyed and replaced by the department of public works or its designated representative, with the reasonable administrative costs to be borne by the applicant. The permit shall also provide that, wherever it is reasonable to anticipate that a monument will have to be moved due to the proposed activities, the applicant shall promptly inform the department of public works in order that the department or its designated representative can resurvey and relocate the monument prior to the removal of the original monument. The reasonable administrative costs of such resurvey and removal shall be borne by the applicant.

(Ord. No. 150-83, § 1, 8-30-83)

Sec. 5-82. Replacement, relocation of monuments.

As soon as practicable after issuance of a permit as provided for in section 5-80, the department of public works or its designated representative shall relocate or replace where necessary the monuments and shall record such monuments in accordance with the unified mapping program's system of permanent control monuments. Replacement of all monuments pursuant to this article shall meet the following requirements:

(1) Survey based upon North American datum 1929;

(2) Grid data based upon Kentucky State Plan Coordinate System; "x coordinate" shall give the position in an east direction; the other, to be known as the "y coordinate" shall give the position in a north direction;

(3) A verbal description as to location of monument;

(4) A sketch map of the new monument placement;

(5) The placement shall be a permanent monument equal to or better than the one removed; and

(6) The brass disk will be furnished by the department of public works.

(Ord. No. 150-83, § 1, 8-30-83)

Sec. 5-83. Cost of replacement.

Upon replacement of the monuments, the department of public works shall bill the applicant for the reasonable administrative costs associated with the replacement of the monument removed by the applicant. Such costs shall include but not be limited to the costs of any required surveys, the cost of a replacement brass disk and other costs required to correctly replace the monument.

(Ord. No. 150-83, § 1, 8-30-83)

Sec. 5-84. Penalty for violation of article.

Any person or persons who modifies, defaces, disturbs, removes or destroys any existing or future monuments set in conjunction with the unified mapping program without first complying with the terms of this article, including the reimbursement of reasonable administrative costs, upon conviction thereof, shall be fined at least twenty-five dollars ($25.00) but not more than five hundred dollars ($500.00) for each violation.

(Ord. No. 150-83, § 1, 8-30-83)

Article VI

Contractors

Sec. 5-85. Registration required.

No person shall act as a contractor or specialty contractor within the limits of the urban county, whether personally, by agents or employees, independently or along with some other business or enterprise, without first being registered as a contractor in accordance with the provisions of this article or while such registration is under suspension or revocation as provided in section 5-97.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-86. Definitions.

As used in this article:

Contractor means any person, other than a bona fide employee of the property owner, who engages in the business of constructing, erecting, installing, repairing, replacing, remodeling, altering, converting, modernizing, improving, or adding to any land or building, including, but not restricted to, the construction, replacement, or improvement of houses, apartments, residential structures, commercial, retail or office buildings, driveways, swimming pools, spas, porches, decks, rooms, basements, windows, doors, roofs, siding, chimneys, garages, and other improvements to structures or upon land which is adjacent to a building.

Contract means a written agreement contained in one (1) or more documents between a contractor or specialty contractor and a property owner for the performance of any of the activities set forth in subsection (a), including all labor, services, and materials furnished and performed thereunder, and the entire cost of same.

Registered contractor means a person registered as a contractor as required by the provisions of section 5-85.

Property owner means any property owner, tenant, or any other person who orders, contracts for, or purchases any of the services set forth in subsection (a), or the person entitled to the performance of the work of a contractor pursuant to a contract.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 1, 11-12-02)

Sec. 5-87. Registration application.

An application to become a registered contractor shall be made on an application form obtainable from the division of building inspection or from any other source so designated to distribute such applications. The form shall be filed with the division of building inspection or such person or entity designated to accept said applications, together with the required fee. The application shall be signed by the applicant if an individual, by the majority partner if a partnership, by the president or chief officer if a corporation or other organization, or by a manager or member if a limited liability corporation. The application shall be sworn to by each of its signers before a notary public or other officer authorized by law to administer oaths.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-88. Contents of registration application.

An application for registration shall contain, but not be limited to, the following information:

(a) The name and residence address of each individual owner, partner, or, if a corporation, each officer thereof, and the name and residence address of the manager or person responsible for the operation of the business, if different from such individual owner, partners, or officers, and the federal identification number, if incorporated, or social security number or other taxpayer identification number of individuals;

(b) The trade name, business address, telephone number under which the business and/or registered contractor will operate, which may include up to two (2) additional business names by which the registered contractor also operates, provided that these two (2) additional entities possess the same taxpayer identification number as the initial registrant;

(c) A certification that the contract form which will be used when scheduling jobs or agreeing to provide services, if the work is to be performed for a member of the general public will be in compliance with the provisions of section 5-95.

(d) Proof of liability insurance and workers' compensation insurance sufficient to demonstrate compliance with section 5-89;

(e) A certification that the applicant will participate in, and abide by, an alternative dispute resolution process to investigate and resolve complaints regarding the applicant and will abide by any mediated agreement reached in such a process;

(f) Identification of the person or entity, approved by the review board, which will perform mediation or other alternative dispute resolution services to investigate and resolve complaints regarding the applicant when necessary;

(g) Proof of state or local license in good standing for trades or occupations where state or local license is required;

(h) Certification by the applicant that it holds a current business license in Fayette County; and

(i) Certification by the applicant that it has not been adjudicated to be in violation of any provision of chapter 16 or, if so adjudicated, the applicant has paid any fines and fully complied with any administrative orders and/or remedial measures related to the violation.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 2, 11-12-02; Ord. No. 143-2009, § 20, 7-7-09)

Sec. 5-89. Insurance required of contractors.

(a) All registered contractors shall maintain premises and products and completed operation liability insurance coverage in the amount specified in section 5-90 and shall show and place on file with the division of building inspection, proof of same prior to being registered each year. The required liability insurance shall be kept current during the registration period and shall include coverage for those employed by the registered contractor.

(b) All registered contractors shall maintain workers' compensation insurance if required by state law and shall show and place on file with the division of building inspection proof of same prior to being registered each year.

(c) Failure to comply with subsections (a) and (b) of this section shall result in the voiding of the registration.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-90. Registration fees and insurance requirements; renewal.

(a) An initial registration fee of forty dollars ($40.00) shall be paid by the contractor with the first application for registration, along with the applicable annual fee set forth herein. The annual fee to be paid thereafter for renewal shall be as set forth in the following schedule:

(1) General contractors; defined as those performing commercial, industrial, public works, and/or residential construction of larger than four-family homes; a general contractor may supervise, arrange and/or perform partly or completely more than two (2) unrelated building trades or craft, provided that the

general contractor is appropriately licensed in the trade or craft where licensing is required; five hundred thousand dollars ($500,000.00) insurance coverage, applicable workers' compensation coverage as determined by state law, and two hundred dollars ($200.00) registration fee.

(2) General contractors, residential only; defined as those constructing up to four-family homes, or performing home remodeling; a general contractor, residential only, may supervise, arrange and/or perform partly or completely more than two (2) unrelated building trades or craft, provided that the general contractor is appropriately licensed in the trade or craft where licensing is required; two hundred fifty thousand dollars ($250,000.00) insurance coverage, applicable workers' compensation coverage as determined by state law, and seventy-five dollars ($75.00) registration fee.

(3) Specialty contractors; defined as those who perform commercial, industrial, public works, and residential construction and specialize in two (2) or fewer unrelated building trades or crafts; one hundred thousand dollars ($100,000.00) insurance coverage, applicable workers' compensation coverage as determined by state law, and thirty dollars ($30.00) registration fee. Any specialty contractor holding a valid and effective state or local license to perform plumbing, HVAC or electrical work shall be exempt from the registration fee herein, but shall be registered and subject to all terms and conditions of this article.

(b) The registration shall expire on December 31 of every year and if not timely renewed, shall be automatically suspended.

(c) On or before January 1 of each year, every registered contractor shall pay as a registration fee for the ensuing twelve (12) months, such sums as are provided in subsection (a) of this section.

(d) Any registration fee paid after January 1 but before January 31 of each year shall include a late payment fee of twenty-five dollars ($25.00). If payment of the registration fee and late payment fee is made by January 31, the suspension shall cease and the renewal registration issued.

(e) Before renewal of the registration, every registered contractor shall certify that all information provided pursuant to section 5-88 remains accurate and that the contractor is in compliance with all provisions of section 5-88.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 278-2000, § 1, 9-14-00; Ord. No. 287-2002, § 3, 11-12-02; Ord. No. 143-2009, § 21, 7-7-09)

Sec. 5-91. Reinstatement of registration.

(a) Any contractor who was registered previously and whose registration was suspended solely for failure to pay fees as provided herein may apply for the reinstatement of registration by completing a new application form and tendering the required initial registration fee of forty dollars ($40.00) in addition to the applicable annual fee if he or she fails to renew by January 31 as provided in section 5-90(d).

(b) A registered contractor may place his registration in escrow for a period not to exceed five (5) years, at a fee of ten dollars ($10.00) per year. A registration placed in escrow may be reinstated provided all other conditions of this article have been met and the current year's renewal fee has been paid.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 4, 11-12-02)

Sec. 5-92. Registration not transferable.

No registration issued under the provisions of this article shall be transferred or assigned or used by a person other than the one to whom it was issued.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-93. Exception to registration requirements.

(a) Registration as a contractor or subcontractor shall not be required of any person performing new construction or remodeling on his legal residence, provided such residence is a single-family dwelling.

(b) Registration shall not be required for maintenance, repair or improvement work on his rental property personally performed by a property owner or by a subcontractor regularly engaged by the property owner's construction-related business or entity.

(c) Any subcontractor who works under contract to and under the supervision of any contractor registered under this article, or who works as an employee of any contractor registered under this article, shall be exempt from the requirements of this article. This exemption shall not apply to subcontractors or persons performing work directly for a property owner, or for any party not registered under this article.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 5, 11-12-02)

Sec. 5-94. Display of registration certificate; advertising.

(a) The registration certificate or certificate number issued to a registered contractor or a true and legible copy thereof shall be prominently displayed in a place clearly visible from outside the structure, residence or other work site or prominently displayed upon a vehicle of the registered contractor while at the work site, during such time as the registered contractor is performing any work on the site.

(b) It shall be unlawful to advertise or otherwise represent that one (1) is a currently registered contractor unless one (1) is in fact so registered.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 6, 11-12-02)

Sec. 5-95. Contract provisions.

(a) Every contract entered into by a registered contractor shall be in writing and shall include, at a minimum, the following:

(1) The entire agreement between the owner and the registered contractor;

(2) The names and addresses of all parties, the date when executed by the parties, a full and complete description of the work to be performed and/or the goods or services to be furnished, the terms of payment, the anticipated date by which performance is to begin, and the anticipated date performance is to be completed;

(3) The process the property owner may follow for resolution of disputes with the registered contractor, including the identification of matters which shall be subject to dispute resolution, identification of the entity which will hear such disputes, and any costs associated with the dispute resolution process;

(4) A certification by the registered contractor that all work will be performed in accordance with applicable federal, state and local codes and regulations; and

(5) A statement as to whether any of the work is covered by a warranty and, if so, a description of said warranty.

(b) Contracts shall not be required, but are not prohibited, for construction, maintenance, or repair work where the total cost is reasonably estimated to be less than fifteen hundred dollars ($1,500.00).

(c) The contract requirements of this section shall not apply to commercial projects where the property owner furnishes the written contract.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 7, 11-12-02)

Sec. 5-96. Contractor review board; membership; rules.

(a) A contractor review board, which shall also be referred to as the review board, is hereby created. The review board shall be composed of seven (7) members appointed by the mayor and approved by the council, and shall consist of one (1) registered commercial contractor, one (1) architect or engineer, one (1) registered builder member of the Home Builders Association of Lexington, Inc., one (1) representative of the Lexington Better Business Bureau of Central and Eastern Kentucky or similar organization, one (1) registered member of a subcontracting trade, one (1) registered member of the remodeling trade, and one (1) Lexington-Fayette County homeowner. At least one (1) of these members shall be a member of the Home Builders Association of Lexington, Inc. at the time of appointment.

(b) The terms of members shall be four (4) years from the date of appointment, provided the terms be staggered in the manner required by section 7.02 of the Urban County Charter. No member shall serve more than two (2) consecutive terms. Vacancies shall be filled in the same manner as the original appointment, and the successor shall be appointed for the unexpired term. Discontinued membership in the Home Builders Association of Lexington, Inc. shall terminate the review board membership for the member appointed in this representative capacity. A majority of the members of the review board shall constitute a quorum. The review board may appoint a secretary for itself, adopt its own rules of procedure, and shall keep a record of its proceedings and transactions. The members of the review board shall serve without salary.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-97. General powers and duties of review board.

(a) The review board is empowered to issue orders granting, denying, renewing, reinstating, suspending, or revoking any registration provided for in accordance with the provisions of this article. If a civil action is initiated challenging an order of the review board, the order shall be stayed pending final adjudication of the civil action.

(b) It shall be the duty of the review board to hear complaints arising against any registered contractor for any alleged violation of this article. Complaints which involve alleged violations of the applicable building code will first be investigated by the division of building inspection. The review board shall have the authority to warn, revoke or suspend the registration of any registered contractor for a willful violation of applicable building codes or this article, provided that written notice of a hearing, as more particularly set forth in section 5-98, is provided.

(c) The review board shall also have the power to review a proposed use of excess fees, if any, for enumerated purposes including a consumer education program and make recommendations to the council regarding the proposed use.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-98. Suspension and revocation of registration.

(a) The registration of a registered contractor may be suspended or revoked by the review board for any of the following causes:

(1) That the registration was knowingly obtained through any fraud, misstatement, or omission of material fact;

(2) Violation of any provision of this article;

(3) The business transactions of the registered contractor are found by the review board to have been marked by a willful practice of failure to meet applicable building codes or to correct deficiencies under such codes;

(4) Violation of applicable building codes or this article;

(5) Failure or refusal to submit to alternative dispute resolution process or to honor a mediated agreement; or

(6) Violation of any provision of chapter 16 of the Code of Ordinances.

(b) The suspension or revocation shall not take place until the review board has notified the registered contractor in writing of the cause or causes for such revocation or suspension, which notice shall:

(1) Contain a brief statement of the facts relating to the suspension or revocation;

(2) Advise the registered contractor of the procedure for appeal; and

(3) Be served upon the registered contractor in person or by leaving it at the address as stated on the application for registration, or at the address on file with the review board, or by certified mail or regular first class U.S. mail addressed to the registered contractor at such address.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 8, 11-12-02; Ord. No. 143-2009, § 22, 7-7-09)

Sec. 5-99. Appeal procedure and conduct of hearing.

(a) Any person aggrieved by a denial of registration, renewal or reinstatement, or a notice of suspension, except for failure to pay fees, or revocation, issued by the division of building inspection under this article may request and shall be granted a hearing on the matter before the review board. However, such person shall file with the division of building inspection a written request for such hearing and set forth the name, address, and telephone number of the registered contractor, and a brief statement of the grounds for the appeal. This written request shall be filed within twenty (20) days after the service of the notice or action appealed from.

(b) Upon receipt of such a request, the division of building inspection, after consulting with chairperson of the review board, shall set a time and place for hearing before the review board, and shall give the appellant written notice thereof in the manner provided in section 5-98. The hearing shall be commenced within a reasonable time after a request has been filed and shall be concluded not more than ninety (90) days following the request. If the board fails to act within this time, the person aggrieved by such denial, suspension or revocation shall be restored to the status of a registered contractor, but shall be subject to all provisions of this article. At such hearing, the appellant shall be given an opportunity to be heard and to show cause why the notice appealed from should be modified or withdrawn. The failure of the appellant or a legal representative to appear and participate in the hearing, shall have the same effect as if no request was filed.

(Ord. No. 35-2000, § 1, 2-10-00; Ord. No. 287-2002, § 9, 11-12-02)

Sec. 5-100. Limitation of registration; power of government to regulate.

(a) A registration granted pursuant to this article shall not be construed to authorize the registered contractor to perform any particular type of work or kind of business which is reserved to qualified licensees under separate provisions of state or local law; nor shall any registration, license or authority other than that granted under these sections be construed to authorize the grantee to engage in the construction business.

(b) Nothing in this article shall be construed to limit or restrict the power of the urban county government to regulate construction projects, including a system of permits and inspections which are designed to secure compliance with and aid in the enforcement of applicable state and local building laws, or to enforce other laws necessary for the protection of the public health and safety.

(c) Nothing in this article shall limit the power of the urban county government to adopt any system of permits requiring submission to and approval by the urban county government of plans and specifications for an installation prior to the commencement of construction of the installation or of inspection of work done.

(d) Nothing in this article shall constitute an endorsement or approval of a registered contractor by the urban county government nor shall registration constitute a warranty or guarantee of the registered contractor's performance by the urban county government.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-101. Penalty.

Any person who violates any provision of this article shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00). Each day any violation continues shall be deemed a separate offense for which a separate fine may be levied.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-102. Liability for damage caused by defective work or equipment.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party engaged in making improvements to residential or commercial property for damage to person or property caused by said work; nor shall the division of building inspection be held as assuming any such liability or as warranting the quality of work or materials by reason of the registration of contractors or subcontractors as authorized herein.

(Ord. No. 35-2000, § 1, 2-10-00)

Sec. 5-103. Promulgation of regulations.

The mayor, the division of building inspection, and their designees shall promulgate regulations which may be necessary to carry out and effectuate the provisions of this article.

(Ord. No. 35-2000, § 1, 2-10-00)

Article VII

Relocation Assistance Program

Sec. 5-104. Creation.

(a) The Relocation Assistance Program for Tenants is hereby created to assist tenants displaced from low-income housing by rezoning, redevelopment or change in use of property with the expenses associated with relocation, or to assist tenants displaced from low-income housing due to conditions that make it permanently unfit for human occupancy (condemnation) with the expenses associated with relocation to a safe housing unit.

(b) For the purposes of this article, a dwelling and/or the property upon which it is located is "permanently unfit for human occupancy" whenever a determination of blight or deterioration has been made and that failure to eliminate the conditions causing the blight render the property subject to condemnation by the urban county government under chapter 12 of this Code and KRS chapter 99.

(c) The Relocation Assistance Program for Tenants shall be administered by the department of housing advocacy and community development. The department shall develop the application and procedures necessary for the administration of the program in accordance with this article.

(Ord. No. 253-2008, § 1, 11-20-08; Ord. No. 065-2023, § 1, 6-29-23)

Sec. 5-105. Eligibility.

(a) Any person or family whose income is no more than eighty (80) percent of the area median income in Lexington-Fayette County displaced from rental housing, whether a dwelling or property upon which the dwelling is located, by rezoning and/or redevelopment and/or change in use, or by condemnation, is eligible for funds from the Relocation Assistance Program for Tenants to assist in locating replacement affordable housing and the costs of relocation.

(b) A person or family eligible for assistance from the Relocation Assistance Program for Tenants may receive up to one thousand dollars ($1,000.00) to assist in payment of utility deposits and/or arrearages (up to $500.00), security deposits, first month's rent and moving expenses. The assistance provided shall not exceed the actual cost of these expenses. All assistance payments from the Relocation Assistance Program for Tenants shall be made directly and only to vendors providing the foregoing services.

(c) Any monetary assistance provided by the Relocation Assistance Program for Tenants is secondary to any other funds available to a household for relocation. The fair market value of any relocation assistance provided to a tenant by the owner and/or developer of the property on which the relocating tenant resides shall also be an adjustment to any payment provided by the Relocation Assistance Program for Tenants. In no event shall the amount of assistance from the Relocation Assistance Program for Tenants combined with any other relocation assistance exceed one thousand dollars ($1,000.00).

(d) In order to be eligible for assistance, a tenant shall make application prior to moving from the property from which the tenant is being displaced.

(Ord. No. 253-2008, § 1, 11-20-08; Ord. No. 065-2023, § 2, 6-29-23)

Sec. 5-106. Application.

(a) Any person filing an application for a building permit, occupancy permit, zone map amendment, development plan, subdivision plan or appeal to the LFUCG Board of Adjustment that would result in the displacement of any tenant or tenants shall provide the following information along with the application or no less than sixty (60) days prior to the change of use: (1) whether any existing dwelling units will be removed; (2)

whether any such dwelling units have been present on the property with the past twelve (12) months; and (3) a written statement setting forth any efforts undertaken or to be undertaken to assist tenants in obtaining alternative housing.

(b) Prior to the granting of any building or occupancy permit by the Division of Building Inspection of a nature that would result in the displacement of any tenant or tenants, the applicant shall distribute to every tenant a packet of information provided by the LFUCG explaining to the tenant how to apply for relocation assistance and what assistance is available. For such cases, the applicant will be required to file an affidavit with the Division of Building Inspection attesting to compliance with the provisions of this section prior to issuance of the permit.

(c) The provisions of this article shall not apply to emergency situations, such as fire or natural disasters, that result in the displacement of tenants.

(Ord. No. 253-2008, § 1, 11-20-08)

Sec. 5-107. Appropriation.

In order to ensure that the Relocation Assistance Program for Tenants remains viable, any funds appropriated to the program shall remain available to the program in subsequent fiscal years. The fund for the program shall be maintained as an open fund. Funds from the program shall be available on a first come-first served basis. If the fund is exhausted in any fiscal year, no further assistance shall be available from or provided by the program, and no person or household shall be eligible for assistance from the program unless additional appropriation of funds is made by the LFUCG. Any amount in excess of two hundred thousand dollars ($200,000.00) remaining in the fund may be allocated to other relocation assistance programs administered by the department of housing advocacy and community development.

(Ord. No. 253-2008, § 1, 11-20-08; Ord. No. 78-2014, § 1, 7-1-14; Ord. No. 065-2023, § 3, 6-29-23)

Article VIII

Emergency Temporary Relocation Assistance Program for Tenants

Sec. 5-108. Created.

The Emergency Temporary Relocation Assistance Program for Tenants is hereby created to assist tenants displaced from low-income rental housing due to conditions that render the dwelling or property upon which the dwelling is located temporarily unfit for human occupancy.

(a) For purposes of this article, a dwelling and/or the property upon which it is located is "temporarily unfit for human occupancy" whenever the Division of Code Enforcement finds that the property is unsafe due to the degree to which the property is in disrepair, is unsanitary, vermin or rat infested, contains filth and contamination, or lacks ventilation, water service, illumination, sanitary or heating facilities

or other essential equipment or services required for human occupancy, or because the property otherwise constitutes a hazard to the occupants or to the public. This determination shall be temporary in nature and apply until the Division of Code Enforcement certifies that the necessary repairs have been made to make the property fit for human occupancy.

(b) The Emergency Temporary Relocation Assistance Program for Tenants shall be administered by the department of housing advocacy and community development. The department shall develop the application and procedures necessary for the administration of the program in accordance with this article.

(Ord. No. 79-2014, § 1, 7-1-14; Ord. No. 066-2023, § 1, 6-29-23)

Sec. 5-109. Eligibility.

(a) Any person or family whose income is no more than eighty (80) percent of the area median income in Lexington-Fayette County that is displaced from rental housing due to conditions that render the dwelling or property upon which the dwelling is located temporarily unfit for human occupancy is eligible for funds from the Emergency Temporary Relocation Assistance Program for Tenants to assist in locating temporary replacement housing or lodging.

(b) A person or family eligible for assistance from the Emergency Temporary Relocation Assistance Program for Tenants may receive up to one thousand dollars ($1,000.00) in assistance for the payment of temporary housing costs. The assistance provided shall not exceed the actual cost of these expenses, as determined by the department of housing advocacy and community development. All assistance payments from the Emergency Temporary Relocation Assistance Program for Tenants shall be made directly and only to vendors providing the foregoing services.

(c) Any monetary assistance provided by the Emergency Temporary Relocation Assistance Program for Tenants is secondary to any other funds available to a household for relocation. The fair market value of any relocation assistance provided to a tenant by the owner and/or manager of the property on which the relocating tenant resides shall also be an adjustment to any payment provided by the Emergency Temporary Relocation Assistance Program for Tenants. In no event shall the amount of assistance from the Emergency Temporary Relocation Assistance Program for Tenants combined with any other relocation assistance exceed the actual cost of these expenses, as determined by the department of housing advocacy and community development.

(d) In order to be eligible for assistance, a tenant shall make application within seven (7) business days, unless otherwise approved by the commissioner of housing advocacy and community development in writing, prior to moving from the property from which the tenant is being displaced.

(Ord. No. 79-2014, § 1, 7-1-14; Ord. No. 066-2023, § 2, 6-29-23)

Sec. 5-110. Determination of dwellings fit for human occupancy.

(a) The division of code enforcement shall determine whether dwellings or property upon which the dwellings are located are unfit for human occupancy and when the dwelling has been returned to a condition that is fit for human occupancy.

(b) The division of code enforcement and/or the department of housing advocacy and community development shall attempt to obtain from an owner of rental housing that is temporarily unfit for human occupancy the estimated time to complete repairs to return the property to being fit for human occupancy and any efforts being undertaken by the owner to assist tenants in obtaining alternative housing.

(c) The provisions of this article shall not apply to certain emergency situations, such as fire or natural disasters, that result in the displacement of tenants.

(d) Nothing in this article shall preclude an eligible applicant from participating in other relocation assistance programs at a later date.

(Ord. No. 79-2014, § 1, 7-1-14; Ord. No. 066-2023, § 3, 6-29-23)

Sec. 5-111. Appropriation of funds.

In order to ensure that the Emergency Temporary Relocation Assistance Program for Tenants remains viable, any funds appropriated to the program shall remain available to the program in subsequent fiscal years. The fund for the program shall be maintained as an open fund. Funds from the program shall be available on a first-come-first-served basis. If the fund is exhausted in any fiscal year, no further assistance shall be available from or provided by the program, and no person or household shall be eligible for assistance from the program unless additional appropriation of funds is made by the LFUCG.

(Ord. No. 79-2014, § 1, 7-1-14)

Chapter 5A

Civil Defense: Civil Emergencies[1]

Article I. Civil Defense

Section 5A-1. Vehicles may be designated as emergency vehicles.
Section 5A-2. Flashing red lights.
Section 5A-3. Provisions of section 18-94 applicable to emergency vehicles.
Sections 5A-4—5A-10. Reserved.

Article II. Civil Emergencies

Section 5A-11. Definitions.
Section 5A-12. Mayor's proclamation.
Section 5A-13. Curfew.
Section 5A-14. Mayor authorized to issue certain orders.
Section 5A-15. Penalty for violations.

1. **Charter reference(s)**—Civil defense board of advisors, § 7.07.
Cross reference(s)—Traffic generally, ch. 18.
State law reference(s)—Disaster and emergency services, KRS 39.400 et seq.

Article I

Civil Defense

Sec. 5A-1. Vehicles may be designated as emergency vehicles.

Vehicles of the environmental and emergency management organization used in the performance of official duties may be designated as emergency vehicles by the director of the division of environmental and emergency management by notifying the police chief of such designation.

(Ord. No. 4377, § 1, 3-8-62; Ord. No. 23-90, § 3, 2-8-90)

Sec. 5A-2. Flashing red lights.

All emergency vehicles of the civil defense organization shall be equipped with one (1) or more flashing, rotating or oscillating red lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of such vehicle, and a siren, whistle or bell, capable of emitting a sound audible under normal conditions from a distance of not less than five hundred (500) feet. This equipment shall be in addition to any other equipment required by the motor vehicle laws.

(Ord. No. 4377, § 2, 3-8-62; Ord. No. 23-90, § 4, 2-8-90; Ord. No. 72-90, § 1, 5-3-90)

Sec. 5A-3. Provisions of section 18-94 applicable to emergency vehicles.

The provisions of section 18-94 of this Code shall apply to authorized emergency vehicles of the division of environmental and emergency management which display flashing red lights.

(Ord. No. 4377, § 3, 3-8-62; Ord. No. 23-90, § 5, 2-8-90)

Secs. 5A-4—5A-10. Reserved.

Article II

Civil Emergencies

Sec. 5A-11. Definitions.

(a) A **civil emergency** is hereby defined to be:

(1) A riot or unlawful assembly characterized by the use of actual force or violence or any threat to use force if accompanied by immediate power to execute by three (3) or more persons acting together without the authority of law.

(2) Any natural disaster or man-made calamity, including flood, conflagrations, cyclone, tornado, earthquake or explosion resulting in the death or injury of persons or the destruction of property to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare.

(b) **Curfew** is hereby defined as a prohibition against any person or persons walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the corporate limits of the urban county, excepting persons officially designated with reference to said civil emergency.

(Ord. No. 216-68, § 1, 8-29-68)

Sec. 5A-12. Mayor's proclamation.

When, in the judgment of the mayor, a civil emergency, as defined herein, is deemed to exist, he shall forthwith proclaim, in writing, the existence of the same.

(Ord. No. 216-68, § 2, 8-29-68)

Sec. 5A-13. Curfew.

After proclamation of a civil emergency by the mayor, he may order a general curfew applicable to such geographical areas of the urban county or to the urban county as a whole, as he deems advisable, and applicable during such hours of the day or night as he deems necessary in the interest of the public safety and welfare.

(Ord. No. 216-68, § 3, 8-29-68)

Sec. 5A-14. Mayor authorized to issue certain orders.

After proclamation of civil emergency, the mayor may, also in the interest of public safety and welfare, make any or all of the following orders:

(1) Order the closing of all retail liquor stores.

(2) Order the closing of all beer taverns.

(3) Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor and/or beer is permitted.

(4) Order the discontinuance of the sale of beer.

(5) Order the discontinuance of selling, distributing or giving away gasoline or other liquid flammable or combustible products in any container other than a gasoline tank properly affixed to a motor vehicle.

(6) Order the closing of gasoline stations and other establishments the chief activity of which is the sale, distribution or dispensing of liquid flammable or combustible products.

(7) Issue such other orders as are imminently necessary for the protection of life and property.

(Ord. No. 216-68, § 4, 8-29-68; Ord. No. 98-84, § 1, 6-28-84)

Sec. 5A-15. Penalty for violations.

Any person violating the provisions of any executive order issued pursuant to this article shall be guilty of an offense against the urban county government and shall be punishable by a fine not exceeding one hundred dollars ($100.00) and/or imprisonment in the urban county detention center not exceeding three (3) months.

(Ord. No. 216-68, § 5, 8-29-68)

Chapter 6

Employees and Pensions[1]

Articles I—III. Reserved

Sections 6-1—6-46.2. Reserved.

Article IV. Pensions—Other Than Police and Firemen

Division 1. Ordinance Number 3590 and Amendments

Section 6-47. Definitions.
Section 6-48. Management and operation of system.
Section 6-49. Board of trustees; members, officers; investment of funds.
Section 6-49.1. Civil service employees on employees pension fund board.
Section 6-50. Membership in retirement plan.
Section 6-51. Prior service; prior service certificates.
Section 6-52. Retirement of employees; age or service.
Section 6-53. Pensions on retirement.
Section 6-54. Ordinary disability retirement allowances.
Section 6-55. Accidental disability retirement allowance.
Section 6-56. Ordinary death benefits.
Section 6-57. Accidental death benefits.
Section 6-58. Workmen's compensation payments deducted from benefits.
Section 6-59. Return of employee contributions.
Section 6-60. Reexamination of disability beneficiaries; gainful occupation; restoration to service.
Section 6-61. Legal advisers.
Section 6-62. Medical director.
Section 6-63. Benefits; contributions prerequisite.
Section 6-64. Funeral expenses.
Section 6-65. Benefits; beneficiaries, specified.
Section 6-66. Pension fund, books or accounts, bond of custodian, payments from fund.
Section 6-67. Application of pension or retirement system.
Section 6-68. Members of the system; contributions as acceptance of ordinances; contracts status.
Section 6-69. Contributions from members—Amount for 1956 and thereafter.

1. **State law reference(s)**—State law reference(s)—Merit and pension systems, KRS 67A.210 et seq.

Section 6-69.1. Same—Amount beginning July 1, 1969; amount beginning January l, 1970.
Section 6-69.2. Same—Amount beginning July 1, 1981.
Section 6-69.2.1. Same—Amount beginning August 1, 1992.
Section 6-69.3. Contributions from the urban county government.
Section 6-69.4. Service credit for unused, accumulated sick leave.
Section 6-69.5. Group health insurance plan—Members retiring on or after July 1, 1999.
Section 6-69.6. Same—Members retired prior to July 1, 1999.
Section 6-70. Effective date.

Division 2. Ordinance Number 1018 and Amendatory Ordinance Number 2479

Section 6-71. Definitions.
Section 6-72. Board of trustees; membership; officers; control of pension fund.
Section 6-73. Contributions from employees; tax by city; investment of funds.
Section 6-73.1. Contributions from employees of department of recreation; tax; social security for recreation employees.
Section 6-74. Investment of pension fund.
Section 6-75. Regulations of board of trustees; decisions on applications for pensions, etc.; record.
Section 6-76. Prior service; prior service certificates.
Section 6-77. Creditable service at retirement.
Section 6-78. Retirement of employees; age and service.
Section 6-79. Pensions on retirement; amount.
Section 6-80. Ordinary disability retirement allowances.
Section 6-81. Accidental disability retirement allowance.
Section 6-82. Ordinary death benefits.
Section 6-83. Accidental death benefits.
Section 6-84. Workmen's compensation payments deducted from benefits.
Section 6-85. Termination of employment; return of employee's contributions.
Section 6-86. Reexamination of disability beneficiaries; gainful occupation; restoration to city service.
Section 6-87. Legal advisers.
Section 6-89. Medical director.
Section 6-89.1. Benefits; contributions prerequisite.
Section 6-90. Funeral expenses.
Section 6-91. Benefits; beneficiaries, specified.
Section 6-92. Pension fund; custody; books or accounts; bond of custodian; payments from fund.
Section 6-93. Members of pension and retirement system.

Section 6-94. Contributions to pension fund during probationary period.
Section 6-95. Inviolability of contract between city and civil service employees.
Section 6-96. Time spent in armed forces counts for pension purposes.
Section 6-97. Amount of assessment.
Section 6-98. Nonapplication to police and fire and emergency services divisions.

Articles I—III

Reserved[1]

Secs. 6-1—6-46.2. Reserved.

Article IV

Pensions—Other Than Police and Firemen[2]

Division 1

Ordinance Number 3590 and Amendments

Sec. 6-47. Definitions.

The following words and phrases as used in this division, unless a different meaning is plainly required by the context, shall have the following meanings:

Average monthly salary shall mean the monthly salary actually received by the employee based over a period of the three (3) highest years' salary received by the employee, and shall not include compensation paid for overtime work.

Board shall mean the board of trustees of the pension fund provided in section 6-49.

Employee shall mean all employees of the urban county government who were included in the classified service of the City of Lexington on December 31, 1973, and who chose to stay under the pension system created by Ordinance No. 3590, as amended.

Invalid dependent (husband) shall mean a man legally married to a member where there has been no divorce at the time of the death of the member and where they are not legally separated and where the husband has not voluntarily abandoned his wife and is wholly dependent upon her for his support.

Member shall mean any person included in the membership of the retirement system as provided in section 6-50.

Monthly salary shall mean the monthly salary actually received by the employee exclusive of compensation for overtime.

1. **Editor's note(s)**—Editor's note(s)—The urban county government officials have advised that arts. I—III, §§ 6-1—6-46.2, are currently under revision and are therefore omitted from this republication. For the disposition of ordinances used in §§ 6-1—6-46.2, see the Code Comparative Table. These articles were subsequently repealed by § 5 of Ord. No. 230-83, adopted Nov. 22, 1983. These provisions are now located in ch. 22.
2. **State law reference(s)**—State law reference(s)—Pension fund, KRS 90.400.

Pension fund shall mean the moneys derived from the employees and the levy of a special tax, either or both, or any sum derived from any other source, a gift or otherwise, to be used for the retirement of employees after the prescribed number of years of service and for the benefit of disabled employees, and for the benefit of widows and dependent children and parents in the case of the death of an employee within the scope of his employment according to the terms of this division.

Prior service shall mean service rendered prior to the first day of February, 1939, for which credit is allowable under the provisions of section 6-51.

Widow shall mean, for members who sever employment on or after December 1, 1973, a person legally married to a member (whether male or female) where there has been no decree of divorce entered dissolving such marriage and such marriage is in full force and effect at the time of death of the member and where there has been no decree of divorce from bed or board secured by the member and where such member's spouse has not at the time of death of such member voluntarily abandoned such member. For severances of employment on or after December 1, 1973, the term "widow" shall also mean widowers.

Year means full and partial years computed on the basis of one-twelfth year for each month of service in which the employee made a contribution to the pension fund.

(Ord. No. 3590, § 1, 1-3-57; Ord. No. 4030, § 1, 3-17-60; Ord. No. 305-73, §§ 1, 8, 12-27-73; Ord. No. 204-76, § 1, 10-26-76)

Sec. 6-48. Management and operation of system.

The retirement system for employees of the urban county government as established in 1939 shall continue to operate under the management of the board of trustees of the pension fund for the purpose of providing disability and retirement allowances and death benefits for members of such retirement system.

(Ord. No. 3590, § 2, 1-3-57)

Sec. 6-49. Board of trustees; members, officers; investment of funds.

(a) The membership of the board of trustees of the pension fund shall consist of the mayor, the commissioner of finance, the director of human resources, four (4) council members subject to confirmation by a majority of the council members, and three (3) retired members who shall be elected from the retirees of the fund. Members elected to the board of trustees shall hold their offices for a period of two (2) years and/or until their successors have been elected and qualified. The mayor shall be chairman of the board. In addition thereto, but without having a vote on any question that comes before the board, the council clerk shall be ex officio secretary of the board. The commissioner of finance shall be ex officio treasurer of the board.

(1) **Retiree board members—Regular elections.** Beginning in December, 1992, and continuing every second year thereafter, an election shall be held by the retired members of the pension fund. This election shall be conducted by mail ballot of the retired members. For all retired member elections conducted after December 1, 2022, the council clerk shall send written notification of the upcoming

election to all retired members no later than October 1, and shall seek nominations for a retired member to serve on the board. Nominations for candidates for retiree positions on the board shall be submitted to the council clerk no later than November 1, and shall be supported by either one (1) signature of a retired member of the fund nominating another member or by a signed self-nomination of a retired member. The council clerk, no later than November 1, shall inquire of each nominee who did not self-nominate to verify that the person consents to participation as a candidate in the election. The council clerk shall not include on the ballot any candidate who did not self-nominate if such candidate informs the council clerk that he or she does not wish to be included on the ballot. The council clerk shall make a written record documenting any such refusal and maintain it with records relating to the subject election. Secret mail ballots shall be mailed to all retiree members no later than November 25, and returned no later than December 1. The council clerk and commissioner of finance shall verify membership, open and count the mail ballots, and then prepare a report to the board of trustees for approval at a regularly scheduled meeting of the board of trustees, and every second year thereafter. After the election deadline has passed, if a successful candidate is unable or unwilling to serve for any reason, the candidate who received the next highest number of votes shall be declared the winner of such board position.

(2) **Retiree board members—Special elections.** The board of trustees shall hold a special election to fill the unexpired term of any retiree position on the board of trustees. The nomination, voting and validation of election results procedures for a special election shall be identical to the procedures for regular elections except that a special election may be initiated in any calendar month as necessary.

(3) **Retiree board members—Vacancies unfilled by election.** Notwithstanding the foregoing, if one (1) or more of the three (3) retired board of trustee positions cannot be filled due to an insufficient number of retired members being willing or able to serve, any such vacancy shall be filled by the mayor with council approval as authorized by KRS 67A.320. Not later than six (6) months prior to the expiration of a term of a retiree board member that is anticipated to be unfilled by election, the clerk shall give written notice, if practicable, to non-retiree beneficiaries of the fund of the pending board vacancy and determine if any non-retiree beneficiary is interested in consideration for appointment to the retiree position. No later than two (2) months prior to the expiration of a term of a retiree board member that is anticipated to be unfilled by election, the board shall forward to the office of the mayor the names of any non-retiree beneficiaries of the retirement fund who are interested in appointment to a retiree position on the board for consideration for an appointment. In the event of any retiree member vacancy unfilled by election, the mayor shall appoint a non-retiree beneficiary to fill the vacancy on the board, subject to council approval. In the event of any retiree member vacancy that is unfilled by election, and where there are an insufficient number of non-retiree beneficiaries willing or able to serve, any such vacancy shall be filled by appointment by the mayor subject to the approval of the council as authorized by KRS 67A.320.

(b) Such board shall have exclusive control and management of the pension fund.

(c) The board of trustees shall have power to make all needful rules and regulations for its government in the discharge of its duties and shall hear and decide all applications for relief and pension on retirement allowances under this division; and the decision of the board of trustees on any such application shall be final and conclusive, and not subject to revision or reversal, except by such board; and a record shall be kept of all the meetings and proceedings of such board.

(d) The board of trustees shall have the power to draw such pension funds from the treasurer and invest the same or any part thereof in the name of the board of trustees of the city employees' pension fund in interest-bearing bonds of the United States, State of Kentucky, or any county or city of the first, second or third class of the State of Kentucky, or in any securities in which trustees or guardians are permitted to invest trust or guardianship funds under the laws of the state.

(Ord. No. 3590, § 3, 1-3-57; Ord. No. 5313, § 1, 9-23-65; Ord. No. 5519, § 1, 4-14-66; Ord. No. 63-72, § 1, 4-13-72; Ord. No. 205-72, § 1, 9-28-72; Ord. No. 305-73, § 9, 12-27-73; Ord. No. 102-85, § 3, 5-30-85; Ord. No. 45-89, § 1, 3-7-89; Ord. No. 90-92, § 1, 6-25-92; Ord. No. 197-92, § 1, 10-29-92; Ord. No. 29-2002, § 1, 2-13-02; Ord. No. 99-2017, § 1, 6-15-17; Ord. No. 088-2022, § 1, 8-30-22)

Sec. 6-49.1. Civil service employees on employees pension fund board.

The three (3) civil service employees to be elected to the employees pension fund board shall consist of one (1) from the department of sanitation and public works, street and roads, and sewer divisions; one (1) from the department of sanitation and public works, division of solid waste; and one (1) from other departments of the merged government.

(Ord. No. 26-74, § 1, 3-7-74)

Charter reference(s)—Pension fund boards, § 7.04.

Sec. 6-50. Membership in retirement plan.

Membership in the retirement plan shall mean all employees of the urban county government who were included in the classified service of the City of Lexington on December 31, 1973, and who chose to stay under the pension system created by Ordinance No. 3590 as amended.

(Ord. No. 3590, § 4, 1-3-57)

Sec. 6-51. Prior service; prior service certificates.

Under such rules and regulations as the board shall adopt, each member of the retirement system who was an employee at any time during the year 1938 and who became a member during the year 1939 shall file a detailed statement of all services as an employee rendered by him prior to February 1, 1939, for which he claims credit and of such other facts as the board may require for the proper operation of the retirement system.

The board shall not allow credit as service for any period of more than one (1) month's duration during which the employee was absent without pay.

Subject to the above restrictions and as to such other rules and regulations as the board may adopt, the board shall verify, as soon as practicable after the filing of such statements of service, the service therein claimed.

Upon verification of the statement of service, the board shall issue prior service certificates certifying to such member the length of prior service with which he is credited. So long as membership continues, a prior service certificate shall be final and conclusive for retirement purposes as to such services; however, within one (1) year from the date of the issuance or modification of such certificate, the board, upon request of the member, may modify or correct his prior service certificate.

When membership ceases, such prior service certificate shall become void. Should the employee again become a member, such employee shall enter the retirement system as an employee not entitled to prior service credit.

Creditable service at retirement on which the retirement allowance of a member shall be based shall consist of the membership service rendered by him since he last became a member, also, if he has a prior service certificate which is in full force and effect, the amount of the service certified on his prior service certificate.

(Ord. No. 3590, § 5, 1-3-57)

Sec. 6-52. Retirement of employees; age or service.

(a) Any member in service may file his written application to the board setting forth at what time, not less than thirty (30) days nor more than ninety (90) days subsequent to the execution of the filing thereof, he desires to be retired, provided such member at the time so specified for his retirement shall have thirty (30) years of service credit, or attained the age of sixty (60) years and have been continuously employed by the urban county government for a period of at least twenty (20) years.

(b) Any member who has attained the age of seventy (70) years shall be forthwith retired, or on the first day of the calendar month next succeeding that in which such member shall have attained an age of seventy (70) years. On recommendation of the board, the mayor may permit an employee who has attained the age of seventy (70) years to continue in the employment of the urban county government for a period not to exceed two (2) years. At the expiration of any such period, on the recommendation of the board, the mayor may again permit his continuing for a similar period.

(c) Any member in service on or after December 1, 1973, may file his written application to the board setting forth at what time, not less than thirty (30) days nor more than ninety (90) days subsequent to the execution of the filing thereof, he desires to be retired, provided such member at the time so specified for his retirement shall have been continuously employed by the urban county government for a period of at ten (10) years and shall have attained the age of forty-five (45). If such member is not age sixty (60), the pension calculated in accordance with section 6-53 shall become payable beginning with the month that such retired member attains age sixty (60), if then living. In lieu of such pension, the member, provided he has then attained age fifty-five (55), may request in writing that his pension commence not less than thirty (30) days after the date of such request, in which event the pension payments shall begin in an amount equal to that calculated in section 6-53 but the total pension so calculated shall be permanently reduced by two-thirds (2/3) of one

(1) percent for each month by which the commencement month precedes the month in which the member attains age sixty (60). If the retired member dies prior to the date payments commence hereunder, the only death benefit payable shall be the refund of his contributions as provided in section 6-59(b). If the retired member becomes disabled prior to the date payments commence hereunder, the disability allowances provided herein shall not be applicable.

(Ord. No. 3590, § 6, 1-3-57; Ord. No. 305-73, § 2, 12-27-73; Ord. No. 90-92, § 2, 6-25-92)

Sec. 6-53. Pensions on retirement.

(a) Upon application of a qualified member for retirement from service on and after December 1, 1973, the board shall retire such member; and such member shall receive a pension monthly equal to two and one-half (2½) percent of his average monthly salary based over the period of three (3) highest years' salary he received while employed by the urban county government or its predecessor, the City of Lexington, such amount multiplied by his completed years of service up to a maximum of twenty (20) years, plus one (1) percent additional allowance for each year of service in excess of twenty (20), not to exceed sixty-five (65) percent of three (3) highest years' salary received.

(b) (1) When a member, retiring after July 1, 1981, has been retired for one (1) year or has attained sixty-one (61) years of age, whichever is later, or when he would have been retired for one (1) year or attained sixty-one (61) years of age in the event the member is deceased, the board shall increase his retirement annuity or the annuity paid to his widow or dependent children by three (3) percent per year, compounded annually; and such increase shall be granted annually thereafter by the board.

(2) Beginning July 1, 1992, the board shall grant annual cost-of-living increases of three (3) percent, compounded annually to the members who retired prior to July 1, 1981, or their survivors in the same manner as provided in paragraph (1) of this subsection (b).

(3) Notwithstanding the provisions of subsections (b)(1) and (2), any member who retires under disability shall not be entitled to an increase in his retirement annuity, or in the event he is deceased, in the annuity paid his widow or dependent children, until the date upon which the member would have been retired for one (1) year or the date upon which he has attained sixty-one (61) years of age, whichever is later, or would have attained sixty-one (61) years of age in the event the member is deceased. Thereafter, the annuity paid to the member or to his widow or to the guardian of his minor children shall be increased as provided in subsection (b)(1) of this section.

(4) (a) In the first pay period following January 1, 2014, all persons receiving a pension benefit shall be paid a one-time supplement as follows based on the amount of pension benefit being received on that date:

$0 — $10,000.00	$700
$10,000.01 — $20,000.00	$600

$20,000.01 — $30,000.00	$500
$30,000.01 — $40,000.00	$400
$40,001.01 — $50,000.00	$300
$50,000.01 and Above	$200

(b) In the first pay period following January 1, 2014 all persons receiving a pension benefit shall be paid a one-time supplement as follows based on the person's completed years of service or beneficiary status:

Years of Service	**Supplement**
Beneficiary	$200
0.00—10.00	$200
10.01—20.00	$300
20.01—30.00	$400
30.01—40.00	$500

(5) In the first pay period following January 1, 2020, all persons receiving a pension benefit shall receive an increase of four (4) percent to the base amount of their pension benefit.

(6) In the first pay period following January 1, 2022, all persons receiving a pension benefit shall receive an increase of four (4) percent to the base amount of their pension benefit.

(7) In the first pay period following January 1, 2023, all persons receiving a pension benefit shall receive an increase of five (5) percent to the base amount of their pension benefit.

(8) In the first pay period following January 1, 2024, all persons receiving a pension benefit shall receive an increase of five percent (5%) to the base amount of their pension benefit.

(9) In the first pay period following January 1, 2025, all persons receiving a pension benefit shall receive an increase of three percent (3%) to the base amount of their pension benefit.

(Ord. No. 3590, § 7, 1-3-57; Ord. No. 4066, § 1, 6-23-60; Ord. No. 5314, § 1, 9-23-65; Ord. No. 305-73, § 3, 12-27-73; Ord. No. 110-81, § 3, 7-2-81; Ord. No. 90-92, § 3, 6-25-92; Ord. No. 151-2013, § 1, 12-5-13; Ord. No. 101-2019, § 1, 12-3-19; Ord. No. 128-2021, § 1, 12-2-21; Ord. No. 089-2022, § 1, 8-30-22; Ord. No. 139-2023, § 1, 12-5-23; Ord. No. 114-2024, § 1, 11-14-24)

Sec. 6-54. Ordinary disability retirement allowances.

Upon application of a member in service, or of the head of his department, any member who has had ten (10) or more years of creditable service from February 1, 1939, may be retired by the board not less than thirty (30) and not more than ninety (90) days next following the date of filing such application, on an ordinary disability retirement allowance, provided the member shall submit to a medical examination by a doctor of the board's choice, and provided such doctor shall certify that such member is mentally or physically incapacitated for the further performance of duty and such incapacity is likely to be permanent and such member should be retired. Such member shall receive monthly a pension equal to one-fortieth of his average monthly salary based on the three (3) highest years' salary received, multiplied by the number of years' service with the city, based on a minimum of ten (10) years' service and a maximum of twenty (20) years' service.

Also, there shall be a one (1) percent additional allowance for each year's service in excess of twenty (20). In no event, however, shall this monthly pension exceed sixty-five (65) percent of his average monthly salary based on the three (3) highest years' salary received.

(Ord. No. 3590, § 8, 1-3-57; Ord. No. 4066, § 2, 6-23-60; Ord. No. 113-81, § 1, 7-2-81)

Sec. 6-55. Accidental disability retirement allowance.

Upon application of a member of the head of his department, any member who has been totally and permanently incapacitated for duty as the natural and proximate result of an accident occurring while in the actual performance of duty at some definite time and place, without willful negligence on his part, shall be retired by the board, provided the medical director, after a medical examination of such member shall certify that such member is mentally or physically incapacitated for the further performance of duty and such incapacity is likely to be permanent and such member should be retired. Such member who has had less than ten (10) years continuous service shall receive monthly fifty (50) percent of his average monthly salary, based on the three (3) highest years' salary received (if the member has worked as many as three (3) years; members with less than three (3) years prorated accordingly) and members with ten (10) years or more at continuous service shall receive monthly five (5) percent of his average monthly salary based on the three (3) highest years' salary multiplied by the number of years of continuous service of such member with the urban county government since February 1, 1939. In no event, however, shall such member's total allowance exceed sixty-five (65) percent of his average monthly salary based on the three (3) highest years' salary received.

(Ord. No. 3590, § 9, 1-3-57; Ord. No. 4066, § 3, 6-23-60; Ord. No. 54-69, § 1, 3-13-69)

Sec. 6-56. Ordinary death benefits.

(a) Upon receipt of proper proof by the board of the death of a member in service or if a member should die while he is on pension, there shall be paid the following amount to his widow, if there be one, for such length of time as she remains unmarried, such payments to start immediately for widows with minor children under the age of eighteen (18) years and age forty-five (45) if there are no children under eighteen (18); the widow shall receive a monthly pension in an amount equal to one and one-half (1½) percent of the aver-

age monthly salary for each year of service of the member, based on an average of the three (3) highest years' salary received by the member, computed on a minimum of ten (10) years' service or a maximum of thirty (30) years' service or seventy-five (75) percent of the last monthly annuity of a retired member, whichever is greater; and in no event shall the pension to the widow be less than one hundred dollars ($100.00) per month.

(b) If the member has minor children under the age of eighteen (18) years, there shall be paid to these children immediately a monthly pension as follows:

(1) If there be one (1) child, the child shall receive a monthly pension of one-half the amount to which the widow would have been entitled.

(2) If there be two (2) children, the children shall receive three-fourths of the amount to which the widow would have been entitled, share and share alike.

(3) If there be more than two (2) children, the children shall receive the full amount to which the widow would have been entitled.

In no event shall the total pension to widow and children exceed sixty-five (65) percent of the members' average monthly salary based on the three (3) highest years' salary received by the member as prescribed in subsection (a).

(c) All pension benefits payable to children shall be discontinued when they reach the age of eighteen (18) years.

(d) If there be no widow or children, and the member leaves surviving him a dependent mother and/or father the dependent mother and/or father of the member shall be entitled to receive a pension in the same amount as that to which the widow would have been entitled, share and share alike.

(e) The widower of a member who is entitled to pension benefits shall receive the same pension benefits as a widow.

(f) Any pension benefits being paid to a widow or widower of a member shall be discontinued if the widow or widower remarries.

(g) If there be no beneficiaries under subsection (a), (b), (d) or (e) of this section, the amount which would have been paid under the aforementioned sections shall be paid as provided in section 6-59(b).

(Ord. No. 3590, § 10, 1-3-57; Ord. No. 4066, § 4, 6-23-60; Ord. No. 54-69, § 2, 3-13-69; Ord. No. 90-92, § 4, 6-25-92; Ord. No. 256-93, § 1, 12-9-93; Ord. No. 63-96, § 1, 5-2-96; Ord. No. 235-96, § 1, 11-21-96)

Sec. 6-57. Accidental death benefits.

If, upon receipt of proper proof by the board of the death of a member in service indicating that such death was the natural and proximate result of an accident occurring at some definite time and place while the member was in the actual performance of duty, and the board shall decide that the death was the result of an accident in the performance of duty and not caused by willful negligence on the part of the member, there shall be paid:

(a) To the widow, if there be a widow, to continue during her widowhood, a monthly pension in the amount of fifty (50) percent of the member's average monthly salary, based on the three (3) highest years' salary received (if the member had worked as many as three (3) years; members with less than three (3) years prorated accordingly).

(b) In addition to benefits in subsection (a), if minor children under age eighteen (18) also survive, the monthly payment to the widow shall be increased by ten (10) percent of the aforementioned salary on account of each minor child payable until they reach age eighteen (18). In no event shall the combined payments for widow and children exceed seventy-five (75) percent of the member's average monthly salary calculated as set forth above.

(c) If the member does not leave a widow, or if she remarries and minor children under age eighteen (18) exist, each child shall be entitled to a payment of fifteen (15) percent of the member's average monthly salary calculated as set forth above until said child reaches eighteen (18) years of age. In no event shall the combined payments to minor children exceed fifty (50) percent of the aforementioned salary.

(d) If neither a widow or minor children survive the member, each dependent parent, if any, is entitled to a payment of twenty-five (25) percent of the member's salary as calculated above or fifty (50) percent to both parents who were dependent upon the member.

(e) If there be no beneficiaries under the above subsections, the amount which would have been paid out under such subsections shall be paid as provided in section 6-59(b).

(Ord. No. 3590, § 11, 1-3-57; Ord. No. 54-69, § 3, 3-13-69)

Sec. 6-58. Workmen's compensation payments deducted from benefits.

Any amounts which may be paid or payable under the provisions of any state workmen's compensation or similar law to a member or to the dependents of a member on account of any disability or death while in the service of the urban county government shall be offset against and payable in lieu of any benefits payable out of funds provided by the urban county government under the provisions of the retirement system on account of the same disability or death.

In case the present value of the total computed benefits under such workmen's compensation or similar law is less than the pension reserve or the benefits otherwise payable from the pension fund, the present value of the computed payments shall be deducted from the pension benefits; and such benefits as may be provided by this division, so reduced, shall be payable under the provisions of this division.

(Ord. No. 3590, § 12, 1-3-57)

Sec. 6-59. Return of employee contributions.

(a) Should a member discontinue to be an employee on or after December 1, 1973, where no immediate or deferred benefits are payable, or should a member who is entitled to deferred benefits hereunder at the time of discontinuance elect in writing filed with the board to forfeit his deferred benefit, such member shall be paid the total amount of his accumulated contribution reduced by any prior allowances paid to him or on his behalf. The member's refund may be transferred directly, at the member's request, to the trustee of an eligible retirement plan pursuant to 26 USC § 401(A)(31).

(b) If, at the death of a retired member who retired on or after December 1, 1973, or at the death of his spouse or other dependent receiving benefits hereunder, no further benefits of any sort are payable from the pension fund, and if the total benefits paid to the member or on his behalf to his beneficiaries are less than the total amount of his accumulated contributions, such difference shall be paid to the estate of the member or, if death benefits were being paid hereunder to a beneficiary, to the estate of that beneficiary.

(c) All amounts payable under this section shall be payable in a lump sum and shall be payable as soon as reasonably possible.

(Ord. No. 3590, § 13, 1-3-57; Ord. No. 305-73, § 4, 12-27-73; Ord. No. 178-81, § 1, 10-15-81; Ord. No. 50-93, § 12, 4-3-93)

Sec. 6-60. Reexamination of disability beneficiaries; gainful occupation; restoration to service.

(a) Once each year during the first five (5) years following retirement of a member on a retirement allowance for disability, and once in every three-year period thereafter, the board may, and upon his application shall, require any disability beneficiary who has not yet attained sixty (60) years of age to undergo a medical examination to be made by the medical director at the place of residence of said beneficiary or other place mutually agreed upon. Should any disability beneficiary who has not yet attained the age of sixty (60) years refuse to submit to at least one (1) medical examination in any such year by the medical director, his allowance may be discontinued until his withdrawal of such refusal; and should his refusal continue for one (1) year, all his rights in and to his pension may be revoked by the board.

(b) Should the medical director report and certify to the board that such disability beneficiary is engaged in or is able to engage in a gainful occupation paying more than the difference between his retirement allowance and the average monthly salary of such beneficiary before his retirement and should the board concur in such reports, the amounts of his pension shall be reduced to an amount which, together with his pension and the

amount earnable by him, shall equal the amount of his or her average monthly salary while in the service of the urban county government. Should the earning capacity be later changed, the amount of his pension may be further modified in like manner.

(c) Should a disability beneficiary be restored to active service at a compensation not less than his average monthly salary with the urban county government when he retired, his retirement allowance shall cease and he shall again become a member of the retirement system and he shall contribute thereafter at the current rate determined by the board of trustees. Any prior service certificate, on the basis of which his service was computed at the time of his retirement, shall be restored to full force and effect, if he be restored before the attainment of the age of sixty (60) years; and, in addition, upon his subsequent retirement he shall be credited with all his service as a member.

(Ord. No. 3590, § 14, 1-3-57)

Sec. 6-61. Legal advisers.

The commissioner of law and his assistants shall be the legal advisers of the board. (Ord. No. 3590, § 15, 1-3-57)

Sec. 6-62. Medical director.

The board shall designate a physician as medical director who is not eligible to participate in the retirement system. The medical director shall arrange for and pass upon all medical examinations required under the provisions of this division, shall investigate all essential statements and certificates by or on behalf of a member in connection with application for disability retirement, and shall report in writing to the board his conclusion and recommendations upon all matters referred to him.

(Ord. No. 3590, § 16, 1-3-57)

Sec. 6-63. Benefits; contributions prerequisite.

No retirement benefits or allowances or pensions shall be paid to any member of the retirement system who has not paid in to the pension fund his assessment on his average monthly salary for at least ten (10) years except as is specifically provided for in sections 6-55, 6-57, 6-59 and 6-64.

(Ord. No. 3590, § 17, 1-3-57)

Sec. 6-64. Funeral expenses.

Upon receipt of the proper proof of the death of a member or retired employee of the retirement system, the board shall, in addition to any allowance or benefit set out herein, pay an amount not to exceed seven thousand five hundred dollars ($7,500.00) to the funeral director having charge of the funeral of such deceased member for the actual costs of the funeral.

(Ord. No. 3590, § 18, 1-3-57; Ord. No. 4066, § 5, 6-23-60; Ord. No. 11-99, § 1, 1-28-99; Ord. No. 273-2008, § 1, 12-9-08)

Sec. 6-65. Benefits; beneficiaries, specified.

(a) No person shall be entitled to receive any pension or other allowance from the pension fund except a retired member, a widow, children under the age of eighteen (18) years, any dependent mother and/or father, the estate of any of the above-named or the funeral benefits herein set out.

(b) The monthly pension benefits of each retired member, widow, child under the age of eighteen (18) years, or dependent mother and father who is receiving benefits under chapter 6 of this Code shall be increased by the sum of thirty dollars ($30.00) on January 9, 2001, in addition to the previous increases of forty dollars ($40.00) made on January 1, 1998 and on October 1, 1999, notwithstanding any other provision of chapter 6 of this Code.

(Ord. No. 3590, § 19, 1-3-57; Ord. No. 305-73, § 5, 12-27-73; Ord. No. 262-97, § 1, 12-11-97, Ord. No. 273-99, § 1, 9-23-99; Ord. No. 106-2001, § 1, 5-3-01)

Sec. 6-66. Pension fund, books or accounts, bond of custodian, payments from fund.

The commissioner of finance shall be the custodian of the pension fund and shall securely and safely keep the same subject to the control and direction of the board, and shall keep the books and accounts concerning such fund in such a manner as may be prescribed by the board; and the books and accounts shall always be subject to the inspection of the board or any member thereof; and such books shall at all times show the total contributions to such pension fund of any member derived from the assessment on such member's salary.

The bond of the commissioner of finance acting as such shall run to and be for the benefit of the pension fund for the faithful performance of the duties of the office and that the commissioner of finance will safely keep and well and trustfully account for all moneys and property which come into his hands as custodian of the pension fund and that he will, upon expiration of his office, surrender and deliver to his successor all bonds, securities and unexpended moneys or properties which may have come into his hands as treasurer of such fund.

All moneys ordered to be paid from the pension fund to any person shall be paid by the commissioner of finance upon a warrant or order duly signed by the chairman of the board of trustees and countersigned by the secretary thereof, and no warrant or order shall be drawn except by the order of the board as having been duly entered on the record of the proceedings of the board.

The board may retain and pay for professional investment counseling services and professional banking custodial services. The commissioner of finance shall transmit assets of the fund to and from investment counselors and custodial banks as directed by the board.

(Ord. No. 3590, § 20, 1-3-57; Ord. No. 205-72, § 2, 9-28-72; Ord. No. 90-92, § 5, 6-25-92)

Sec. 6-67. Application of pension or retirement system.

Nothing in this division shall be construed as interfering with or affecting any way or manner, expressly or by implication, or otherwise, with any other department of the urban county government that is now and has been

operating under the civil service pension fund plan; and it is the distinct intention of this division to separate and to keep apart from the laws governing those departments heretofore being operated under the civil service pension fund plan as prescribed and enumerated in KRS 95.851 and KRS 61.510 et seq., from the provisions of this division.

(Ord. No. 3590, § 21, 1-3-57)

Sec. 6-68. Members of the system; contributions as acceptance of ordinances; contracts status.

Only those employees of the urban county government who were included in the classified service of the City of Lexington on December 31, 1973, and who chose to stay under the pension system created by Ordinance No. 3590, as amended, shall be members of the retirement system; and upon the effective date of the civil service provisions and this division all members of the retirement system shall pay monthly into the pension fund the percentage of his monthly salary as prescribed by ordinance; and the payments of such assessment by such member into the pension fund shall be deemed an acceptance of the terms and provisions of the civil service provisions and of this division and shall constitute and thereby make effective a contract between such member and employee and the urban county government, which contract shall be inviolable and shall continue to exist without right of revisions or repeal as between the urban county government and such member or employee unless by the mutual agreement of such employee and the urban county government.

(Ord. No. 3590, § 22, 1-3-57)

Sec. 6-69. Contributions from members—Amount for 1956 and thereafter.

(a) In accordance with the provisions of the civil service provisions of the urban county government, and retirement system or pension fund provisions of the urban county government, there is hereby assessed against each employee of the civil service of the urban county government under the terms and provisions of such civil service provisions, and against each member of the retirement system, under the provisions and terms of the retirement system or pension fund provisions, a three (3) percent contribution of his monthly salary. Such sum is to be paid to the commissioner of finance each month by each of such employees and placed by the commissioner in the pension fund, as provided in such pension fund provisions. Such sum shall be deducted from the salary checks of the employees and paid into such fund until the employees shall otherwise request.

(b) This division shall remain in full force and effect for the year 1957 and for each succeeding year unless amended or repealed in any succeeding year; those persons receiving pension benefits as of June 30, 1960, shall draw the same benefits under the provisions of Ordinance No. 1018 as amended by Ordinance No. 2479 and under the provisions of Ordinance No. 3590 [division 2 of this article].

(Ord. No. 3590, § 23, 1-3-57; Ord. No. 4066, § 6, 6-23-60; Ord. No. 90-92, § 6, 6-25-92)

Sec. 6-69.1. Same—Amount beginning July 1, 1969; amount beginning January l, 1970.

Pursuant to KRS 90.400 and section 6-49 of this Code, the percentum of salary to be withheld from civil service employees for the benefit of their pension fund shall, beginning July 1, 1969, be four (4) percent of the monthly salary of each such employee, and beginning January 1, 1970, five (5) percent of the monthly salary of each such employee.

(Ord. No. 106-69, § 1, 4-24-69)

Sec. 6-69.2. Same—Amount beginning July 1, 1981.

Pursuant to KRS 67A.320 and section 6-69 of this Code of Ordinances, the percentum of salary to be withheld from members for the benefit of their pension fund shall be, beginning the first pay period commencing after July 1, 1981, eight (8) percent of the monthly salary of each such member.

(Ord. No. 350-73, § 6, 12-27-73; Ord. No. 110-81, § 1, 7-2-81)

Sec. 6-69.2.1. Same—Amount beginning August 1, 1992.

Pursuant to KRS 67A.320 and section 6-69 of this Code of Ordinances, the percentum of salary to be withheld from members for the benefit of their pension fund shall be, beginning the first pay period commencing after August 1, 1992, eight and one-half (8½) percent of the monthly salary of each such member.

(Ord. No. 90-92, § 7, 6-25-92)

Sec. 6-69.3. Contributions from the urban county government.

(a) For the period July 1, 1981, to June 30, 1982, the urban county government shall contribute to the pension fund an amount equal to fourteen (14) percent of the monthly salary of each member.

(b) Beginning July 1, 1982, the urban county government shall contribute to the pension fund an amount equal to sixteen (16) percent of the monthly salary of each member.

(c) Beginning July 1, 1992, the urban county government shall contribute to the pension fund an amount equal to seventeen and one-half (17½) percent of the monthly salary of each member.

(d) The urban county government shall contribute to the pension fund additional amounts necessary to fund on an actuarially sound basis the benefits promised or described in the fund pursuant to KRS 67A.320.

(Ord. No. 350-73, § 7, 12-27-73; Ord. No. 209-75, § 1, 7-31-75; Ord. No. 110-81, § 2, 7-2-81; Ord. No. 90-92, § 8, 6-25-92; Ord. No. 19-98, § 1, 1-22-98)

Sec. 6-69.4. Service credit for unused, accumulated sick leave.

(a) Any member who retires may purchase service credit for up to seven hundred twenty (720) hours of unused sick leave accrued while contributing to the pension fund from which the retirement benefit is to be paid in accordance with this section.

(b) A member retiring who chooses to purchase service credit for unused, accumulated sick leave as provided in this subsection shall notify the pension board of his intention upon submitting his retirement application to the board. The urban county government shall certify the retiring member's unused, accumulated sick leave balance, up to a maximum of seven hundred twenty (720) hours. The member's sick leave balance, expressed in days, shall be divided by the average number of working days per month and rounded to the nearest number of whole months. This number of months shall be added to the member's service credit for the purpose of determining his rate of retirement annuity pursuant to section 6-53 through 6-55 and his total service credit pursuant to section 6-52. The value of the unused, accumulated sick leave shall be based on the daily salary rate calculated from the member's last annual salary. Payment for unused sick leave, up to a maximum of seven hundred twenty (720) hours, shall be incorporated into the annual salary of the final year of service, provided that the member contributes to the pension fund the amount set forth in sections 6-69 through 6-69.2.1 and the urban county government matches such contribution by the amount set forth in section 6-69.3 on the unused, accumulated sick leave.

(Ord. No. 124-90, § 1, 6-14-90)

Editor's note(s)—Section 2 of Ord. No. 124-90 declared the provisions effective retroactive to Jan. 1, 1990.

Sec. 6-69.5. Group health insurance plan—Members retiring on or after July 1, 1999.

(a) All members of the city employees pension fund who retire on or after July 1, 1999, shall be eligible to participate in a group health insurance plan (providing hospital and medical or health maintenance organization health care coverage) approved by the urban county council for such retirees (the "plan").

(b) The urban county government shall provide, on behalf of all members of the city employees pension fund who retire on or after July 1, 1999 and who elect to participate in the group health insurance plan coverage provided pursuant to subsection (a) of this section, the following benefits: (1) for the period from July 1, 1999 through June 30, 2000, a sum equal to fifty (50) percent of the urban county government's contribution to the health insurance component of the benefit pool for current urban county government employees (the "contribution"); and (2) for the period from July 1, 2000 through June 30, 2001 and thereafter, a sum equal to the single premium for the plan coverage selected by the retiree, but not more than one hundred (100) percent of the contribution.

(c) No benefits shall be available under this section to members of the city employees pension fund who retire prior to July 1, 1999 or who do not participate in the group health insurance plan approved by the urban county council.

(d) All payments shall be made to the approved provider of the group health insurance plan, not to the retiree, and the retiree shall not be entitled to receive any portion of the government contribution remaining after payment is made to the approved provider.

(e) Group rates under the group health insurance plan approved by the urban county council under subsection (a) shall be made available to the spouse, dependents, and disabled children, regardless of the disabled child's age, of a qualified and participating retiree, if the premium for the spouse, dependent, or disabled child is paid by payroll deduction or similar method.

(Ord. No. 198-99, § 1, 7-8-99)

Sec. 6-69.6. Same—Members retired prior to July 1, 1999.

(a) All members of the city employees pension fund who retired prior to July 1, 1999, and who did not terminate their participation in the group health insurance plan provided by the urban county government before that date, shall continue to be eligible to participate in a group health insurance plan (providing hospitalization and medical or health maintenance organization health care coverage) approved by the urban county council for such returnees (the "plan").

(b) The urban county government shall provide, on behalf of all members of the city employees pension fund who retired prior to July 1, 1999 and who were participants in the group health insurance plan coverage provided to urban county government employees and retirees immediately prior to July 1, 1999, the following benefits: (1) for the period from July 1, 1999 through June 30, 2000, a sum equal to fifty (50) percent of the urban county government's contribution to the health insurance component of the benefit pool for current urban county government employees (the "contribution"); and (2) for the period from July 1, 2000 through June 30, 2001 and thereafter, a sum equal to the single premium for the plan coverage selected by the retiree, but not more than one hundred (100) percent of the contribution.

(c) No benefits shall be available under this section to retired members of the city employees pension fund who were not, immediately prior to July 1, 1999, participants in the group health insurance plan coverage provided to urban county government employees and retirees.

(d) All payments shall be made to the approved provider of the group health insurance plan, not to the retiree, and the retiree shall not be entitled to receive any portion of the government contribution remaining after payment is made to the approved provider.

(e) Group rates under the group health insurance plan approved by the urban county council under subsection (a) shall be made available to the spouse, dependents, and disabled children, regardless of the disabled child's age, of a qualified and participating retiree, if the premium for the spouse, dependent, or disabled child is paid by payroll deduction or similar method.

(Ord. No. 217-99, § 1, 8-19-99; Ord. No. 366-2000, § 1, 12-5-00)

Sec. 6-70. Effective date.

This division shall take effect on January 1, 1957.

(Ord. No. 3590, § 24, 1-3-57)

Division 2

Ordinance Number 1018 and Amendatory Ordinance Number 2479[1]

Sec. 6-71. Definitions.

The following words and phrases as used in this division unless a different meaning is plainly required by the context shall have the following meanings:

Employee shall mean all employees of the city who are included within the city civil service under the provisions of section 6-46.

The board and the board of trustees shall mean the board of trustees of the city employees pension fund constituted as provided in section 6-72.

Pension fund shall mean the moneys derived from assessments deducted from salaries of the employees, and from the levy of a special tax, either or both, as provided in section 6-73, or any other sum derived from any other source by gift or otherwise to be used for the retirement of employees after the prescribed number of years of service and for the benefit of disabled employees and for the benefit of widows and dependent children and parents in the case of death of an employee within the scope of his or her employment according to the terms of this division.

Prior service shall mean service rendered prior to the first day of February, 1939, for which credit is allowable under the provisions of sections6-76 and 6-77.

Widow shall mean a woman legally married to an employee where, at the time of death of such employee:

(a) There has been no decree of divorce entered into dissolving such marriage; or, if such decree has been entered, it is not in full force and effect; and

(b) There has been no decree of divorce from bed and board secured by the husband; and

(c) The woman has not voluntarily abandoned her husband.

Sec. 6-72. Board of trustees; membership; officers; control of pension fund.

(a) The membership of the board of trustees of the city employees pension fund shall consist of the mayor and four (4) commissioners of the city. The mayor shall be chairman of the board. In addition thereto, but without having a vote on any questions that come before the board, the city clerk shall be ex officio secretary of the board and the city treasurer shall be the treasurer of the board.

(b) The board shall have the exclusive control and management of the pension fund.

1. **Editor's note(s)**—Although the contents of this division are superseded by the provisions of div. 1, this division is included for reference as to employees receiving benefits hereunder. In the republication of this Code, the original language has been retained.

Sec. 6-73. Contributions from employees; tax by city; investment of funds.

(a) There is hereby assessed a sufficient percentum of the salary from each employee's pay so as to adequately maintain the pension fund hereby created, but in no event shall said assessment exceed five (5) percent of the monthly salary of each employee. Within such limit, the percentum of salary so withheld shall be fixed annually by the board of commissioners, and same shall be paid into the pension fund in cash and held by the treasurer subject to the order of the board of trustees.

(b) The board of commissioners shall annually levy a tax not exceeding five cents ($0.05) on each one hundred dollars ($100.00) valuation of taxable property in the city, and the proceeds of such tax shall be paid into the pension fund in cash and held by the treasurer subject to the order of the board of trustees. In no year shall the contribution of the city by means of such tax be less than the total amount assessed upon and deducted from the salary of the employees.

Sec. 6-73.1. Contributions from employees of department of recreation; tax; social security for recreation employees.

(a) Each employee of the department of recreation who is eligible for civil service as set forth in this Code is hereby assessed a sufficient percentum of his salary to be paid into the pension fund, but in no event shall said assessment exceed five (5) percent of the monthly salary of each employee. Within such limit, the percentum of salary so withheld shall be fixed annually by the board of commissioners; and same shall be paid into the pension fund in cash and held by the treasurer subject to the order of the board of trustees.

(b) The board of commissioners shall annually levy a tax not to exceed five cents ($0.05) on each one hundred dollars ($100.00) valuation of taxable property in the city and the proceeds of such tax shall be paid into the pension fund and held by the treasurer subject to the order of the board of trustees. This contribution by the city by means of this tax shall be not less than the total amount assessed upon and deducted from the salaries of the employees.

(c) Employees of the department of recreation who are being covered under the provisions of this section and the civil service plan, and who are now covered by social security, shall continue to pay social security; and the city shall continue its contributions for these employees pursuant to the provisions of KRS 90.400; and this coverage and social security coverage is hereby deemed the pension plan for employees and classes of employees who are members of the department of recreation.

(d) Those department of recreation employees who cannot meet the requirements of civil service because of age shall remain "probationary employees" of the city pursuant to KRS 97.445.

(Ord. No. 4153, § 1, 12-22-60)

Sec. 6-74. Investment of pension fund.

The board of trustees shall have the power to draw such pension fund from the treasurer and invest the same or any part thereof in the name of the board of trustees of the city employees pension fund in interest-bearing coupons

of the United States, the State of Kentucky, or any county or city of the first, second or third class of the State of Kentucky, or in any securities in which trustees or guardians are permitted to invest trust or guardianship funds under the laws of the state; and all securities shall be deposited with the treasurer and shall be subject to the order of the board.

Sec. 6-75. Regulations of board of trustees; decisions on applications for pensions, etc.; record.

The board of trustees shall have the power to make all needful rules and regulations for its government in the discharge of its duties. It shall hear and decide all applications for relief, pension or retirement allowance under this division, and its decision on any such application shall be final and conclusive and not subject to revision or reversal, except by the board. A record shall be kept of all meetings and proceedings of the board.

Sec. 6-76. Prior service; prior service certificates.

Prior service certificates duly issued to employees respecting service as an employee prior to February 1, 1939, shall be final and conclusive for retirement purposes as to such service. When the holder of such certificate ceases to be in the employ of the city because of resignation, or discharge for cause, his certificate shall become void; and should he again become an employee he shall not be entitled to credit for such prior service.

Sec. 6-77. Creditable service at retirement.

Creditable service at retirement, on which the retirement allowance of an employee shall be based, shall consist of the amount of service rendered by him since he last became an employee and also, if he has a prior service certificate which is in full force and effect, the amount of service certified thereon.

Sec. 6-78. Retirement of employees; age and service.

(a) Any employee in service may file his written application to the board specifying at what time, not less than thirty (30) days subsequent to the execution and filing thereof, he desires to be retired, provided such employee at the time so specified for his retirement shall have attained the age of sixty (60) years and shall have been continuously employed by the city for a period of at least twenty (20) years.

(b) Any employee who has attained the age of seventy (70) years shall be retired forthwith or on the first day of the calendar month next succeeding that in which such employee shall have attained the age of seventy (70) years. On recommendation of the board the city manager may permit an employee who has attained the age of seventy (70) years to continue in the employment of the city for a period not to exceed two (2) years. At the expiration of any such period on the recommendation of the board the city manager may again permit his continuing for a similar period.

Sec. 6-79. Pensions on retirement; amount.

Upon the application of an employee for retirement from service, pursuant to section 6-78(a), the board, if it sees fit, may retire such employee. If his service as an employee shall have existed continuously for as much as twenty

(20) years after February 1, 1939, such employee shall receive a pension monthly equal to one-half of his average monthly salary based on the highest five (5) annual salaries received during the ten-year period next preceding date of retirement. In the event such employee continuously for more than ten (10) years from and after February 1, 1939, but less than twenty (20) years from and after that date, and his prior service certificate is credited with a sufficient number of years, when added to his subsequent continuous service from and after February 1, 1939, to bring his total continuous service to twenty (20) years, such employee shall receive a pension monthly equal to one-half of his average monthly salary based on the ten-year period next preceding date of retirement. In no event, however, shall a monthly pension exceed one-half of the monthly salary of the employee at the time of his retirement.

Sec. 6-80. Ordinary disability retirement allowances.

Upon the application of an employee or of the head of his department, any employee who has had ten (10) or more years of creditable service after February 1, 1939, may be retired by the board not less than thirty (30) and not more than ninety (90) days next following the date of filing such application on an ordinary disability retirement allowance provided the medical director, after a medical examination of such employee, shall certify that such employee is mentally or physically incapacitated for the further performance of duty, and such incapacity is likely to be permanent and such employee should be retired. Such employee shall receive such proportion of the pension allowance to which he would be entitled if retiring under the provisions of section 6-79 as his number of years service since February 1, 1939, together with the years credited to him on his prior service certificate (provided such certificate is in full force and effect under section 6-76) bear to twenty (20) years; provided, that in no event shall his allowance exceed one-half of his monthly salary at the time of his retirement.

Sec. 6-81. Accidental disability retirement allowance.

Upon application of an employee, or of the head of his department, any employee who has been totally and permanently incapacitated for duty as the natural and proximate result of an accident occurring while in the actual performance of duty at some definite time and place, without willful negligence on his part, shall be retired by the board, provided the medical director after a medical examination of such employee shall certify that such employee is mentally and physically incapacitated for the further performance of duty and such incapacity is likely to be permanent and such employee should be retired. Such employee shall receive monthly one-twentieth of his average monthly salary during the period of his employment or during the ten-year period preceding the date of retirement, whichever is the shorter period, multiplied by the number of years of continuous service of such employee with the city since February 1, 1939. If such employee has a prior service certificate, he shall receive monthly in addition one-fortieth of his average monthly salary multiplied by the number of years credited to him on such certificate, provided his certificate is in full force and effect under the provisions of section 6-76. In no event, however, shall such employee's total allowance exceed one-half of his monthly salary at the time of his retirement.

Sec. 6-82. Ordinary death benefits.

Upon the receipt of proper proofs by the board of the death of an employee, while in service, which is not the result of an accident in the actual performance of duty, as defined in section 6-83, there shall be paid the following

amounts, at the rate of thirty dollars ($30.00) per month, to his widow, if there be one, for such length of time as she remains unmarried; and if there be no widow or if she should remarry, then to his infant children to be divided equally between them until any such child reaches the age of fifteen (15) years, then to the survivors under that age, and if there be neither widow unmarried nor infant children under fifteen (15) years of age; then to the dependent father and mother to be divided equally between them and if either be dead, to the survivor:

(1) A benefit equal to the sum of the total compensation received by the employee during the two (2) years immediately preceding his death, if the employee has been in the continuous service of the city for twenty (20) years or more after February 1, 1939; or

(2) A benefit equal to one-twentieth of the sum of the total compensation received by the employee during the two (2) years immediately preceding his death, multiplied by the number of years continuous service if the employee had been in continuous service of the city for less than twenty (20) years after February 1, 1939; plus, if such employee had a prior service certificate in full force and effect under section 6-76, an additional benefit of one-fortieth of such two (2) years' salary multiplied by the number of years credited on such certificate; provided, in no event, shall there be allowed a benefit hereunder greater than the sum total of such employee's two years' salary; and

(3) In addition to (1) or (2), as the case may be, the accumulated contributions of the deceased employee to the pension fund.

Sec. 6-83. Accidental death benefits.

If, upon the receipt of proper proofs by the board of the death of an employee in service indicating that such death was the natural and proximate result of an accident occurring at some definite time and place while the employee was in the actual performance of duty, the board shall decide that the death was the result of an accident in the performance of duty and not caused by willful negligence on the part of the employee, there shall be paid as benefits the amount of his accumulated contribution in a lump sum, plus a pension of thirty dollars ($30.00) per month as follows:

(1) To his widow, if there be a widow, to continue during her widowhood; or

(2) If there be no widow or the widow dies or remarries, then to his child or children, under the age of fifteen (15) years, if he leaves children, divided equally between or among such children and to continue as a joint and survivorship pension for the benefit of the child or children under such age until every child dies or attains such age; or

(3) If there be no widow or the widow dies or remarries, and if there be no child or children under the age of fifteen (15) years surviving such deceased employee, then to his dependent mother and father, or if either be dead then to the other, to continue for life.

(4) If there be no beneficiary under (1), (2) or (3), then the amount which would have been paid under this section shall remain part of the pension fund and shall be credited to the pension accumulated fund.

Sec. 6-84. Workmen's compensation payments deducted from benefits.

Any amounts which may be paid or payable under the provisions of any state workmen's compensation or similar law to an employee or to the dependents of an employee on account of disability or death while in the service of the city shall be offset against and payable in lieu of any benefit payable out of funds provided by the city under the provisions of this division on account of the same disability or death. In case the present value of the total computed benefits under such workmen's compensation or similar law is less than the pension reserve on the benefits otherwise payable from the pension fund pursuant to this division, then the present value of the computed payments shall be deducted from the pension benefits, and such benefits as may be provided by this division, so reduced, shall be payable as provided in this division.

Sec. 6-85. Termination of employment; return of employee's contributions.

Should an employee discontinue to be an employee of the city except by death, or retirement under the provisions of this division, he shall be paid one-half of the amount of the accumulated contributions standing to the credit of his individual account in the pension fund after two (2) years; provided, if such employee has during his employment received any disability allowance from the pension fund, such allowance shall be offset and deducted from the amount of the accumulated contributions; and one-half the balance only of such contributions shall be paid to such employee after two (2) years. Any employee who shall have charges preferred against him, which charges shall be of such nature as to merit dismissal from service under the provisions of section 6-43, may resign and accept the benefits above provided in this section. However, if such employee elects to stand trial, and if the result of the hearing is dismissal from service, such employee shall not receive any accumulated contributions or any other allowances or benefits from the pension fund. No accumulated contributions shall be returned to any employee not serving for as much as two (2) years after February 1, 1939.

Sec. 6-86. Reexamination of disability beneficiaries; gainful occupation; restoration to city service.

(a) Once each year during the first five (5) years following retirement of an employee on a retirement allowance for disability, and once in every three-year period thereafter, the board may, and upon his application shall, require any such disability beneficiary who has not yet attained the age of sixty (60) years to undergo a medical examination, such examination to be made by the medical director at the place of residence of such beneficiary or other place mutually agreed upon. Should any disability beneficiary who has not yet attained the age of sixty (60) years refuse to submit to at least one (1) medical examination in any such year by the medical director, his allowance may be discontinued by the board until his withdrawal of such refusal; and, should his refusal continue for one (1) year, all his rights in and to his pension may be revoked by the board.

(b) Should the medical director report and certify to the board that such disability beneficiary is engaged in or is able to engage in a gainful occupation paying more than the difference between his retirement allowance and his average monthly salary before his retirement, and should the board concur in such report, the amount

of his pension shall be reduced to an amount which, together with the amount earnable by him, shall equal the amount of his average monthly salary while in the service of the city. Should the earning capacity of such beneficiary be later changed, the amount of his pension may be further modified in like manner.

(c) Should a disability beneficiary be restored to active service at a compensation not less than his average monthly salary with the city when he retired, his retirement allowance shall cease and he shall again become an employee and shall contribute thereafter at the same rate as if he had not been retired. Any prior service certificate, on the basis of which his service was computed at the time of his retirement, shall be restored to full force and effect, if he be restored before the attainment of age sixty (60) years; and, in addition, upon his subsequent retirement he shall be credited with all his services as an employee.

Sec. 6-87. Legal advisers.

The city attorney and his assistant shall be the legal advisers of the board.

Sec. 6-89. Medical director.

The board shall designate a physician as medical director who is not eligible to participate in the retirement system. The medical director shall arrange for and pass upon all medical examinations required under the provisions of this division, shall investigate all essential statements and certificates by or on behalf of an employee in connection with the application for a disability retirement, and shall report in writing to the board his conclusions and recommendations upon all the matters referred to him.

Sec. 6-89.1. Benefits; contributions prerequisite.

No retirement benefits or allowances or pensions shall be paid to any employee who has not paid into the pension fund the assessment on his average monthly salary for at least ten (10) years except as specifically provided for in sections 6-81, 6-83, 6-85 and 6-90.

Sec. 6-90. Funeral expenses.

Whenever an employee or retired employee shall die, the board of trustees may, in addition to any other allowance or benefit provided in this division, pay not exceeding one hundred dollars ($100.00) to the undertaker having charge of the funeral of such deceased employee.

Sec. 6-91. Benefits; beneficiaries, specified.

Except as provided in section 6-90, no person shall be entitled to receive any pension or other allowance from the pension fund except a retired employee, his widow, his children under the age of fifteen (15) years or his dependent mother or father.

Sec. 6-92. Pension fund; custody; books or accounts; bond of custodian; payments from fund.

The city treasurer shall be the custodian of the pension fund, and shall securely and safely keep the same subject to the control and direction of the board of trustees, and shall keep the books and accounts concerning such fund in

such manner as may be prescribed by the board. Such books and accounts shall always be subject to the inspection of the board or any member thereof, and such books shall at all times show the total contributions to such pension fund of any employee derived from the assessment on such employee's salary.

The bond of the city treasurer acting as such shall run to and be for the benefit of the pension fund, for the faithful performance of the duties of the office, and that he will safely keep and well and trustfully account for all money and property which may come into his hands as treasurer of the pension fund and that he will, upon the expiration of his office, surrender and deliver to his successor all bonds, securities and unexpended money or properties which may have come into his hands as treasurer of such fund. All money ordered to be paid from the pension fund to any person shall be paid by the treasurer upon a warrant or order duly signed by the chairman of the board of trustees and countersigned by the secretary thereof, and no warrant or order shall be drawn except by the order of the board of trustees as having been duly entered on the record of the proceedings of the board.

Sec. 6-93. Members of pension and retirement system.

Only those employees of the city who are included in the civil service of the city under the provisions of section 6-46 shall be members of the pension and retirement system provided in this division.

Sec. 6-94. Contributions to pension fund during probationary period.

Any appointee to a permanent position shall, during the term of his probationary period, contribute to the pension fund and be eligible to the rights and privileges provided in this division.

Sec. 6-95. Inviolability of contract between city and civil service employees.

This section number is included for the purpose of referring to KRS 90.400(2)(b) which, paraphrased, provides that the adoption of an ordinance creating a pension fund, followed by acceptance from employees of a portion of their wages, and the levying of a tax, creates an inviolable contract between the city and its employees; and they shall continue to operate under civil service, even a repeal of the ordinance not affecting the employees without their consent.

Sec. 6-96. Time spent in armed forces counts for pension purposes.

All time spent in the armed forces of the United States by any civil service employee of the city at any time after becoming such an employee shall be counted for all purposes in connection with the provisions of this division as regular time of employment by the city the same as if the employee had not been absent from his duties with the city during the time spent in the armed forces, provided such employee returns to his or her regular employment with the city within sixty (60) days after his or her discharge from the armed forces.

Sec. 6-97. Amount of assessment.

(a) Pursuant to the provisions of KRS 90.400(1) and section 6-73 hereof, the assessment for the pension fund against each employee shall be two (2) percent of his or her monthly salary, until changed by ordinance.

(b) Pursuant to KRS 90.400 and section 6-49 of the Lexington Code of Ordinances, the percentum of salary to be withheld from civil service employees for the benefit of their pension fund shall, beginning July 1, 1969, be four (4) percent of the monthly salary of each such employee, and beginning January 1, 1970, five (5) percent of the monthly salary of each such employee.

(Ord. No. 106-69, § 1, 4-24-69)

Sec. 6-98. Nonapplication to police and fire and emergency services divisions.

Nothing in this division shall be construed as interfering with or affecting in any way or manner, expressly, by implication, or otherwise the police or fire and emergency services division of the city; and it is the distinct intention of this division to separate and keep apart from the provisions of this division those departments, which shall continue to be operated under the police and firemen's pension fund plan, pursuant to the provisions of KRS 95.520 et sequitur.

Chapter 7

Finance and Taxation[1]

Article I. In General

Section 7-1. Commissioner of finance.
Section 7-2. Reserved.
Section 7-3. Director, division of accounting.
Section 7-4. Director, division of revenue.
Section 7-5. Director, division of central purchasing.
Section 7-5.1. Sworn statement required for bid award.
Section 7-6. Alternative approval process for price contracts.
Sections 7-7, 7-8. Reserved.
Section 7-9. Fiscal year.
Section 7-10. Depositories—Seeking and submitting bids by chief administrative officer.
Section 7-11. Same—Selecting bids; designating.
Section 7-12. Same—Bond.
Section 7-13. Checks and warrants; drawings, signing.
Section 7-14. Payroll; preparation, submission, approval.
Section 7-15. Sale or disposition of obsolete property.
Section 7-16. Authority of mayor, designated employees to sign indemnity bonds.
Section 7-17. Chief information officer—Custodian of maps, software, data, etc. for GIS.
Section 7-18. Reserved.
Section 7-19. Collection of service fee for dishonored checks.
Section 7-20. Court fees.
Sections 7-21—7-24. Reserved.

Article II. Property Assessment or Reassessment Moratorium Program

Section 7-25. Adopted.
Section 7-26. Definitions.
Section 7-27. Operation of program.
Section 7-28. Application procedures.

1. **Charter reference(s)**—Authority to levy taxes on nonexempt property, § 3.02(1); authority to make appropriations, § 3.02(3); authority to borrow money, § 3.02(4); department of finance, § 6.06; pension fund boards, § 7.04; budget commission, § 7.05; assessment appeals, § 7.06; budget and financial matters, art. 8; fidelity bonds, § 13.03; federal, state and other aid, § 13.04.
Cross reference(s)—Pension funds, § 6-47 et seq.; licenses, ch. 13; sewer charges and fees, § 16-56 et seq.
State law reference(s)—Finance and revenue, KRS ch. 92; revenue and taxation, KRS ch. 131 et seq.

Section 7-29. Transfer, assignment of certificate.

Article III. Property Conveyance and Leaseback Guidelines

Section 7-30. Sale or lease of property authorized.
Section 7-31. Construction of buildings on government-owned land authorized.
Section 7-32. Approval of plans; payment of fees.
Section 7-33. Bond; financial statement.
Section 7-34. Renegotiation of lease.
Section 7-35. Copies of application materials required.
Section 7-36. Application deposit required.
Section 7-37. Negotiation of lease; action of lease review committee.
Section 7-38. Review of projects by council.

Article IV. Abandoned Property

Section 7-39. Defined.
Section 7-40. Ad valorem tax assessed.
Section 7-41. Determination of abandoned property.
Section 7-42. Taxation of abandoned property.
Section 7-43. Notice.

Article V. Budget Amendments

Section 7-44. Ordinance required.
Section 7-45. Exceptions.
Section 7-46. Report required.
Section 7-47. Fiscal year transition.
Section 7-48. Grants.

Article I

In General[1]

Sec. 7-1. Commissioner of finance.

The commissioner of finance shall control the department of finance and shall, under the direction of the mayor and council, have general supervision over the affairs and work of such department. That department shall be responsible for the custody, investment and disbursement of all funds of the urban county government in accordance with the procedures and standards established by the council.

(Ord. No. 156-70, § 2, 7-9-70; Ord. No. 32-72, § 2, 2-24-72; Ord. No. 102-85, § 4, 5-30-85)

Sec. 7-2. Reserved.

Editor's note(s)—Section 7-2, relating to the director, division of treasury, was repealed by § 13 of Ord. No. 102-85, adopted May 30, 1985. That division had been abolished by Ord. No. 66-83.

Sec. 7-3. Director, division of accounting.

The director, division of accounting, also referred to as auditor, shall, under the supervision of the commissioner of finance, be authorized and empowered and it shall be his duty to do and perform all acts and things authorized or required by general law or ordinances of the urban county government to be performed by the director, division of accounting. It shall be his duty to open and keep in a neat and methodical manner, a complete set of books, under the direction of the chief administrative officer, wherein he shall state, among other things, the appropriation for the year for each distinct object and branch of expenditure, and also the receipts in detail, from each and every source of revenue, so far as he can ascertain the same. Such books and all papers, vouchers, contracts, receipts and other things kept by the director, division of accounting shall be subject to the examination of the mayor and urban county council members and of the chief administrative officer. He shall be responsible for processing all requests for cash disbursements, payment of invoices, and maintaining accounts payable for records. The director, division of accounting shall also examine periodically the books of the heads of various departments of the urban county government and shall perform such other duties as may be required of him by the urban county council or the mayor.

(Ord. No. 102-85, § 5, 5-30-85)

Sec. 7-4. Director, division of revenue.

The director, division of revenue shall, under the supervision of the commissioner of finance, be authorized and empowered, and it shall be his duty, for the collection of all income, revenues and moneys due the urban county

1. **Editor's note(s)**—The editor has designated the existing provisions of ch. 7 as art. I to accommodate the inclusion of Ord. No. 156-82 as art. II.

government. It shall be his duty to keep suitable books, in which all his receipts and disbursements shall be regularly entered, so that the character of the same shall plainly appear, and in which the accounts of each collector, and of each fund, shall be separately stated and all accounts of the urban county government kept correctly and plainly, so that the state of such funds and accounts may at all times be seen and easily understood. He shall receive all taxes, licenses, rents and other revenues of the urban county government and deposit same in the designated depositories, and shall make such disbursements and perform such other duties as the council or the mayor may order or the ordinances may require.

(Ord. No. 102-85, § 6, 5-30-85)

Sec. 7-5. Director, division of central purchasing.

(a) The director, division of central purchasing and such assistants and employees subordinate to him as may be necessary for the proper performance of the work of his office, shall be appointed as provided by law. The director, division of central purchasing shall be under the supervision of the commissioner of finance.

(b) The director, division of central purchasing shall be charged with the purchase of all supplies, materials and equipment required by the various departments, boards, commissions, officers and institutions of the urban county government. Through consultation with the heads of departments and other administrative officers, boards and commissions, the director, division of central purchasing shall prepare standard specifications for the supplies, materials and equipment needed. He shall sell such personal property of the urban county government as in the opinion of the mayor will not be needed for further public use. He shall have charge of such storerooms and storehouses of the urban county government as may be established for the storing of supplies and materials purchased by the urban county government and not delivered directly to the various departments, offices, bureaus and commissions. The director, division of central purchasing shall keep himself informed and maintain records as to the sources of supply for all classes of purchases, trends of prices and other matters pertinent to his office. He shall keep a record of purchases made for the various departments and shall supply the needs of the various departments on proper requisition.

(c) No bill for any purchase shall be audited by the director, division of accounting or paid unless such purchases have been made and approved by either the chief administrative officer or, in his absence, the commissioner of finance.

Sec. 7-5.1. Sworn statement required for bid award.

(1) A bid shall not be awarded to a bidder until the bidder provides the division of purchasing with a sworn statement made under penalty of perjury that:

   (a) The bidder has not knowingly violated any provision of the campaign finance laws of the Commonwealth within the past five (5) years and that the award of a contract to the bidder will not violate any provision of the campaign finance laws of the Commonwealth;

(b) The bidder will pay all taxes and fees owed to urban county government at the time the bid was submitted and will maintain a "current" status in regard to those taxes and fees;

(c) The bidder will obtain an urban county government business license, if applicable; and

(d) The bidder has not knowingly violated any provision of Chapter 25 of the urban county government Code of Ordinances.

(2) **Knowingly** for purposes of this section means, with respect to conduct or to circumstances described by a statute or ordinance defining an offense, that a person is aware or should have been aware that his contact is of that nature or that the circumstance exists.

(Ord. No. 167-95, § 1, 7-13-95)

Sec. 7-6. Alternative approval process for price contracts.

(a) For purchases utilizing either: price contracts, or fixed price bids or sole source procurements that only require the Urban County Government to enter into a unilateral contract or issue a purchase order, and for which the funds have been budgeted, the administration may place a summary of the acceptance, approval, and establishment of each such procurement on the Mayor's Report for Council approval in lieu of a resolution for each procurement.

(b) At a minimum, the following information must be provided for each procurement: the name of the department or division for which the procurement is being made, a description of the goods or services being procured, and the name(s) of the successful bidder(s).

(c) The Urban County Council may take any appropriate action with respect to any procurement item that is included in the Mayor's Report.

(Ord. No. 110-2022, § 1, 9-22-22; Ord. No. 050-2024, § 1, 5-16-24)

Secs. 7-7, 7-8. Reserved.

Sec. 7-9. Fiscal year.

The fiscal year of the urban county government shall begin on the first day of July and end on the next following thirtieth day of June.

Sec. 7-10. Depositories—Seeking and submitting bids by chief administrative officer.

At least once every five years, the chief administrative officer shall seek to procure written bids from the several banks in the urban county for the handling of the urban county government's deposits during subsequent fiscal years and shall submit all bids received, together with his recommendations concerning same, to the council.

(Ord. No. 4140, § 1, 11-17-60; Ord. No. 326-98, § 1, 12-3-98)

Sec. 7-11. Same—Selecting bids; designating.

From such bids, the council shall select the one which in its judgment is the best and most advantageous to the urban county government and shall at any regular meeting of the board in December, designate by resolution the maker of such bid as the urban county government depository, and authorize the making of the necessary contract for the acceptance of such bid. In case, in the judgment of the council, two (2) or more of such bids be equal, or substantially equal, the council may accept such two (2) or more bids and provide for the designation of two (2) or more urban county government depositories accordingly.

(Ord. No. 4140, § 2, 11-17-60)

Sec. 7-12. Same—Bond.

After any bank is thus designated, and before any urban county government funds be deposited with it, it shall qualify by:

(a) Giving bond to the urban county government in such amount as the resolution accepting its bid shall have required, conditioned for the faithful compliance with its obligations as urban county government depository, and particularly the proper payment of and accounting for all of the urban county government funds entrusted to it; and

(b) By giving such other depository protection as such resolution shall have required.

Sec. 7-13. Checks and warrants; drawings, signing.

(1) The funds of the urban county government shall be dispersed only by check or warrant drawn in the division of accounting and in payment of duly audited vouchers; and such checks or warrants shall be signed by two (2) of the following: the mayor, the commissioner of finance, the commissioner of law, the assistant commissioner of finance, or the director, division of accounting. In the absence of signatories authorized above, such checks or warrants shall be signed by such others as may be designated, authorized and directed in writing by the mayor.

(2) Notwithstanding the foregoing, payroll checks may be signed by the mayor or any two (2) persons authorized by subsection (1) to sign urban county government checks and warrants.

(Ord. No. 314-75, § 1, 12-18-75; Ord. No. 160-86, § 1, 7-24-86; Ord. No. 217-92, § 1, 12-9-92)

Sec. 7-14. Payroll; preparation, submission, approval.

(a) The administrative heads of all urban county government departments and agencies shall prepare, sign and submit to the division of personnel an itemized biweekly payroll time record of their departments and agencies.

(b) **All payroll expenses shall be subject to review and approval by the mayor.** The mayor shall have full power and authority to authorize and make payment of such payrolls to the full extent authorized by the budget or by ordinance or resolution, or provided for by contract, authorized by the council.

(Ord. No. 156-70, § 2, 7-9-70; Ord. No. 32-72, § 2, 2-24-72; Ord. No. 44-72, § 1, 3-16-72; Ord. No. 199-73, § 2, 8-9-73)

Sec. 7-15. Sale or disposition of obsolete property.

There is delegated to the mayor the power, and he is authorized on behalf of the urban county government and in its name, to sell for cash, or to exchange for other equipment to replace any equipment in the urban county government whenever in his judgment, because of obsolescence, wear and tear or cost of the repair and maintenance of the same, it is for the best interests of the urban county government that the same be sold and exchanged. All money received from the sale of any such equipment shall be paid into the general fund of the urban county government.

Sec. 7-16. Authority of mayor, designated employees to sign indemnity bonds.

(a) There is delegated to the mayor the power, and he is authorized on behalf of the urban county government and in its name, to sign indemnity bonds, as principal, in favor of the Commonwealth of Kentucky, only in the event a check drawn on the treasury of the Commonwealth of Kentucky and payable to the urban county government is lost, and further only in the event the furnishing of such indemnity bond by the urban county government is required by the treasurer of the commonwealth as a prerequisite to the issuance of a duplicate of the lost check.

(b) The mayor is authorized on behalf of the urban county government to designate an employee or employees to sign, as surety, an indemnity bond in favor of the Commonwealth of Kentucky. Employees so designated are authorized to sign such indemnity bonds as surety only in the event a check drawn on the treasury of the Commonwealth of Kentucky and payable to the urban county government is lost and only in the event the furnishing of such indemnity bond, with surety, is required by the treasurer of the Commonwealth of Kentucky as a prerequisite to the issuance of a duplicate of the lost check.

(c) Notwithstanding the provision in (b), the government by this section assumes primary liability on the obligation secured by indemnity bonds executed pursuant to this section.

(d) There is delegated to the commissioner of finance the power, and he is authorized on behalf of the urban county government and in its name, to sign stop-payment forms on cashier's checks and certified checks drawn in favor of the urban county government.

(e) There is delegated to the commissioner of finance the power, and he is authorized on behalf of the urban county government and in its name, to sign any form required for annually abandoned property subject to escheat to the commonwealth pursuant to KRS 393.110.

(Ord. No. 63-82, § 1, 5-6-82; Ord. No. 235-94, § 1, 12-1-94; Ord. No. 346-2000, § 1, 11-16-00)

Sec. 7-17. Chief information officer—Custodian of maps, software, data, etc. for GIS.

(a) The chief information officer is hereby designated as the official custodian of all software, data and maps generated by the geographic information system, hereinafter referred to as "GIS".

(b) The chief administrative officer is hereby authorized and directed to establish fee schedules for all software, data, and maps generated by the GIS.

(c) All funds collected pursuant to sale or lease of software, data, and maps generated by the GIS shall be set aside from other funds of this government and shall be used for maintaining and updating the GIS.

(d) The mayor is hereby authorized and directed to enter into license agreements for the provision of all software, data, and maps generated by the GIS with qualifying non-profit corporations and license agreements where the total cost is ten thousand dollars ($10,000.00) or less.

(Ord. No. 37-95, § 1, 2-23-95; Ord. No. 228-98, § 1, 8-27-98; Ord. No. 109-2009, § 1, 6-25-09; Ord. No. 10-2012, § 1, 1-26-12)

Sec. 7-18. Reserved.

Sec. 7-19. Collection of service fee for dishonored checks.

(a) When any person shall give or cause to be given to any official of the urban county government a negotiable instrument in payment of any obligation of such person due and owing to the urban county government which instrument is subsequently dishonored by the party or institution upon whom drawn, a service fee of ten dollars ($10.00) shall be added to the original obligation, in addition to any interest and/or penalties that may be due as provided by ordinance or regulation for overdue obligations.

(b) Assessment of the service fee provided for in this section shall not relieve the maker of a dishonored negotiable instrument, given in payment of any obligation due and owing to the urban county government, of any criminal or civil liability that may otherwise be provided for by law.

(Ord. No. 84-81, § 1, 5-28-81)

Sec. 7-20. Court fees.

(a) Additional fees and costs for the purpose of paying expenses for courthouses, bonds related to them, and administration expenses of the Fayette Circuit Court are assessed as follows:

(1) In civil cases, a fee of twenty-five dollars ($25.00) shall be added to filing fees;

(2) In criminal cases, a cost of twenty-five dollars ($25.00) shall be added to the court costs that the defendant is required to pay; and

(3) In civil cases that are appealed from the circuit court to the court of appeals, a fee of twenty-five dollars ($25.00) shall be added to the filing fees.

(b) Additional fees and costs for the purpose of paying expenses for courthouses, bonds related to them, and administration expenses of the Fayette District Court shall be assessed as follows:

(1) In all traffic offense cases, a fee of ten dollars ($10.00) shall be added to the court costs;

(2) In probate cases, a filing fee of ten dollars ($10.00) shall be added to each filing fee;

(3) In misdemeanor cases, a cost of twenty dollars ($20.00) shall be added to the court costs;

(4) In civil cases, a fee of ten dollars ($10.00) shall be added to all filing fees.

(Ord. No. 257-2002, § 1, 10-10-02; Ord. No. 296-2002, § 1, 11-21-02)

Secs. 7-21—7-24. Reserved.

Article II

Property Assessment or Reassessment Moratorium Program

Sec. 7-25. Adopted.

(a) A property assessment or reassessment moratorium program, hereinafter referred to as "program," for existing residential properties and commercial facilities for the purpose of encouraging the repair, restoration, rehabilitation or stabilization of improvements thereon is hereby established.

(b) Property assessment or reassessment moratoriums certified under this program shall be for a period of five (5) years.

(c) The office of the mayor, hereinafter referred to as "office," acting through its director of economic development, is designated as the administering agency and is delegated the responsibility of administering the program pursuant to the provisions of this article.

(Ord. No. 156-82, § 1, 9-9-82; Ord. No. 99-99, § 1, 4-22-99)

Sec. 7-26. Definitions.

The following definitions shall apply throughout this article:

Assessment or reassessment moratorium means the act of deferring the value of the improvements from the taxable assessment of qualifying units of real property for a period of five (5) years.

Commercial facility means any structure the primary purpose and use of which is the operation of a commercial business enterprise and which is twenty-five (25) years old or older.

Existing residential building means a residential building which has been in existence for at least twenty-five (25) years and use of which is to provide independent living facilities for one (1) or more persons.

Rehabilitation means the process of returning an existing structure to a state of utility through repair or alteration which makes possible an efficient contemporary use.

Repair means the reconstruction or renewal of any part of an existing structure for the purpose of maintenance.

Restoration means the process of accurately recovering the form and details of a structure and its setting as it appeared at a particular period of time by removal of later work or by the replacement of missing earlier work.

Stabilization means the process of applying measures designed to reestablish a weather-resistant enclosure and the structural stability of an unsafe or deteriorated property while maintaining the essential form as it exists.

(Ord. No. 156-82, § 1, 9-9-82)

Sec. 7-27. Operation of program.

The property assessment or reassessment moratorium shall operate as follows:

(1) Property assessment or reassessment moratoriums granted by the office pursuant to this article shall be for a period of five (5) years.

(2) The property assessment or reassessment moratorium shall become effective on the assessment date next following the issuance of a moratorium certificate by the office.

(3) The taxable assessment of property qualifying for an assessment or reassessment moratorium shall be the assessment made by the property valuation administrator within thirty (30) days of receipt of the application as more fully set forth in section 7-28(5).

(4) Following the expiration, cancellation or revocation of an assessment or reassessment moratorium, the property shall be reassessed on the basis of its full fair cash value on the assessment date.

(5) Any property granted an assessment or reassessment moratorium may be eligible for a subsequent moratorium certificate provided that reapplication be made no sooner than three (3) years following the expiration of the original moratorium, or any other moratorium, and provided that such property shall otherwise meet the requirements for the assessment or reassessment moratorium.

(Ord. No. 156-82, § 1, 9-9-82; Ord. No. 99-99, § 2, 4-22-99)

Sec. 7-28. Application procedures.

The application procedures for the property assessment or reassessment moratorium shall be as follows:

(1) Any owner of an existing residential building or any owner or lessee of a commercial facility may make application to the office for a property assessment or reassessment moratorium certificate. Such application shall be filed within thirty (30) days before commencing restoration, repair, rehabilitation or stabilization of the residential building or commercial facilities in question.

(2) Application forms shall be as prescribed by the commonwealth department of revenue and shall be available at the office. The office shall administer and regulate the manner of filing, including but not limited to provisions of place of filing, number of copies, and filing of a copy with the property valuation administrator.

(3) The application shall contain or be accompanied by a general description of the property and a general description of the proposed use of the property, the general nature and extent of the restoration, repair, rehabilitation or stabilization to be undertaken and a time schedule for undertaking and completing the project.

(4) Applications with respect to commercial facilities shall, in addition to the above-described information, be accompanied by a descriptive list of the fixed building equipment which will be part of the facility and a statement of the economic advantages expected from the moratorium, including expected construction employment.

(5) Except as otherwise provided herein, the property valuation administrator shall maintain a record of all applications for a property assessment or reassessment moratorium and shall assess or reassess the property within thirty (30) days of receipt of the application.

(6) The office shall review the application and determine if the application is eligible pursuant to the provisions of this article. The office shall issue a moratorium certificate only after completion of the project. The applicant shall notify the office when the project is complete, and the office shall then conduct an on-site inspection of the property for purposes of verifying improvements.

(7) The applicant shall have two (2) years in which to complete the improvement unless granted an extension by the office. In no case shall the application be extended beyond two (2) additional years. This provision shall not preclude normal reassessment of the property.

(8) Any application for an assessment or reassessment moratorium not acted upon by the applicant shall become void two (2) years from the date of application and shall be purged from the files of office.

(Ord. No. 156-82, § 1, 9-9-82; Ord. No. 99-99, § 3, 4-22-99)

Sec. 7-29. Transfer, assignment of certificate.

An assessment or reassessment moratorium certificate may be transferred or assigned by the holder of the certificate to a new owner or lessee of the property.

(Ord. No. 156-82, § 1, 9-9-82)

Article III

Property Conveyance and Leaseback Guidelines

Sec. 7-30. Sale or lease of property authorized.

Pursuant to KRS 91A.180, the urban county government, hereinafter referred to as "government," is authorized to sell or lease its real property which is not needed or has become unsuitable for public use by the government or which would be more suitably consistent with the public interest for some other use of a public nature. It is the policy of the government to use this authority for projects by private developers which would promote the public purposes of the government and the commonwealth.

(Ord. No. 171-82, § 1, 9-23-82)

Sec. 7-31. Construction of buildings on government-owned land authorized.

(a) The urban county council, hereinafter referred to as "council," upon a finding that its real property is not needed or has become unsuitable for public use by the government and upon a finding that the public purposes of the government and the public purposes of the commonwealth would be promoted by the construction of buildings and improvements on land owned by the government, may authorize the construction of such buildings and improvements by private developers with private capital.

(b) Upon the finding required by subsection (a) of this section, the council may convey the fee interest in the particular real property to a private individual, corporation or partnership subject to a written agreement by such private developer to construct such buildings and improvements on the fee simple holding and then subsequently, after placing a mortgage necessary to fund the capital improvements on the fee interest by the private developer, reconvey the fee title back to the government. The government shall in turn execute a long-term lease on the property back to the private developer.

(c) The mortgage under such conveyance set forth in subsection (b) of this section shall not constitute a general obligation or debt of the government. The actual operation of the constructed facility shall be conducted solely by the lessee or his agent, but the operation will be considered a public purpose and public use of the property.

(Ord. No. 171-82, § 1, 9-23-82)

Sec. 7-32. Approval of plans; payment of fees.

The commissioner of general services or commissioner of public works, where appropriate, shall approve all construction drawings, materials, renovation plans and other necessary documents prior to any implementation of the project. All fees pertaining to the development, including but not limited to legal fees, engineering fees, property description fees and lease preparation fees, shall be paid by the project developer.

(Ord. No. 171-82, § 1, 9-23-82; Ord. No. 192-92, § 1, 10-29-92)

Sec. 7-33. Bond; financial statement.

(a) The developer/lessee must produce a performance bond for the maintenance of all constructed facilities and grounds and shall keep said bond in force for the entire term of the lease. The developer/lessee shall provide a certificate of insurance of casualty loss with a combined limit of $1 million. The developer/lessee shall coinsure the government and any and all of its agents in a $1 million liability insurance policy. The government shall have the right to approve any and all subleases of the property and facility.

(b) The lessee shall provide to the government a financial statement once a year, which shall include all income, expenses, accounts receivable, and current accounts payable and other pertinent financial information for the project. The government shall maintain the right to inspect all facilities constructed on property leased to private individuals at any time without prior notification. All such facilities and properties shall be open to all persons regardless of race, color, or national origin.

(Ord. No. 171-82, § 1, 9-23-82)

Sec. 7-34. Renegotiation of lease.

Upon the termination of the lease, the government shall have the option to renegotiate the lease with the current lessee, or any other party. The government may elect to operate said facility itself after termination of the original lease.

(Ord. No. 171-82, § 1, 9-23-82)

Sec. 7-35. Copies of application materials required.

Ten (10) copies of the application materials shall be submitted to the office of the mayor, and shall contain the following information:

(1) Name of the party or parties desiring to lease the urban county government property.

(2) Location and description of the property to be leased.

(3) Description of the project proposed, including both construction schedule and method of operation upon completion.

(4) Terms of the desired lease. A draft of the proposed lease shall be included with the application.

(5) Methods of financing construction of the project.

(6) Ownership, operating history, and financial statements and credit rating of the applicant.

(7) A development plan of the proposed project containing the information required by article 19.21 of the Zoning Ordinance-Resolution.

(8) A list containing the names and addresses of all owners of every parcel within four hundred (400) feet of the property on which the project is to be developed.

(Ord. No. 171-82, § 1, 9-23-82; Ord. No. 61-83, § 1, 4-21-83)

Sec. 7-36. Application deposit required.

An application deposit of fifteen hundred dollars ($1,500.00) must accompany each application prior to its review by the government. The purpose of this deposit is to compensate the government for all costs involved in administrative review and the holding of public hearings on the project. Upon final action of the council upon the lease submitted, any portion of the deposit not used for these purposes shall be returned to the applicant.

(Ord. No. 171-82, § 1, 9-23-82)

Sec. 7-37. Negotiation of lease; action of lease review committee.

(a) Upon receipt of the application by the office of the mayor, copies will be distributed to the department of law and the division of the government currently responsible for the property, for comments on the proposal.

(b) After receipt of these comments, the mayor may negotiate with the applicant and shall submit a proposal to the lease review committee. The lease review committee shall be composed of the following persons:

(1) The mayor, who shall act as a nonvoting chairman;

(2) One (1) council member;

(3) The commissioner of community development;

(4) The commissioner of public works; and

(5) The council member from the district in which the proposed project is located; the council member holding this position on the committee will change for each hearing based upon the location of the proposed project.

(c) The lease review committee shall meet as appropriate, depending upon whether or not any proposals have been received by the committee. Meetings shall take place either in the neighborhood or district in which the project is to be located or at an appropriate central community location. The lease review committee shall establish its own procedures and order of business for the review of applications.

(d) Public notice shall be given for each meeting of the lease review committee at least two (2) weeks in advance, describing the affected property and the proposed development. In addition, the developer shall notify by first class mail each owner of every parcel of property within four hundred (400) feet of the property on which the project is to be developed. Said four hundred (400) feet shall be measured from the outside boundaries of all contiguous tracts comprising the urban county government land upon which the project is proposed to be located, rather than being measured simply from the boundaries of the actual site of the project. Such notice shall describe the affected property and the proposed developments and shall be given at

least fourteen (14) days in advance of the meeting. The developer shall also post at least five (5) signs in adjacent neighborhoods briefly describing the affected property and the proposed development in letters three (3) inches in height. The time, place and date of the meeting shall be in letters at least one (1) inch high. Such signs shall be posted at least fourteen (14) days in advance of the meeting.

(e) The lease review committee shall forward a recommendation of approval or disapproval to the council, giving its reasons for the action taken on the project.

(Ord. No. 171-82, § 1, 9-23-82; Ord. No. 61-83, §§ 2—4, 4-21-83)

Sec. 7-38. Review of projects by council.

(a) All projects evaluated by the lease review committee shall be forwarded to the council for its review. However, the applicant may, at its discretion, withdraw the application after review by the lease review committee prior to review by the council. No material amendments or revisions to application materials may be made by the applicant without requiring approval of such revisions by the review committee and any other necessary review approvals. This section shall not limit or restrict in any way the council from adding amendments, changes or revisions to the application to better suit the needs and desires of the government.

(b) The council shall give initial consideration to the recommendations of the lease review committee at its regularly scheduled work session. At this work session, the council may elect to assign the least review committee recommendation to an appropriate council committee or may schedule a public hearing. In all cases, there shall be at least one (1) public hearing on the application with an opportunity for presentation by the applicant and for public comment. Additional review hearings or discussions at the work session may be scheduled as the council deems appropriate. The developer shall notify by first class mail each owner of every parcel of property within four hundred (400) feet of the property on which the project is to be developed. Said four hundred (400) feet shall be measured from the outside boundaries of all contiguous tracts comprising the urban county government land upon which the project is proposed to be located, rather than being measured simply from the boundaries of the actual site of the project. Such notice shall describe the affected property and the proposed developments and shall be given at least fourteen (14) days in advance of the meeting. In addition, the developer shall post at least five (5) signs in adjacent neighborhoods briefly describing the affected property and the proposed development in letters three (3) inches in height. The time, place and date of the public hearing shall be in letters at least one (1) inch in height. Such signs shall be posted at least fourteen (14) days in advance of the required public hearing.

(c) Approval of the project by the urban county council shall require a first and second reading at two (2) regular meetings of the council.

(d) Each application shall be considered on its own merits on an individual basis. Any approval granted to any project shall not be construed as setting a precedent for any future applications, nor shall a project approval be based on the approval of a prior application or applications.

(Ord. No. 171-82, § 1, 9-23-82; Ord. No. 61-83, §§ 5, 6, 4-21-83)

Article IV

Abandoned Property

Sec. 7-39. Defined.

Abandoned urban property is established as a separate classification of real property for the purpose of ad valorem taxation. As used in this article, abandoned urban property means any vacant structure or vacant or unimproved lot or parcel of ground in the Urban Service Area or in any residential neighborhood outside of the Urban Service Area which has been vacant or unimproved for a period of at least one (1) year and which:

(a) Because it is dilapidated, unsanitary, unsafe, vermin infested, or otherwise dangerous to the safety of persons, it is unfit for its intended use; or

(b) By reason of neglect or lack of maintenance has become a place for the accumulation of trash and debris, or has become infested with rodents or other vermin; or

(c) Has been tax delinquent for a period of at least three (3) years; or

(d) Is located within a development area established under KRS 65.7049, 65.7051, and 65.7053. (Ord. No. 138-2009, § 1, 7-7-09; Ord. No. 118-2015, § 1, 10-22-15)

Sec. 7-40. Ad valorem tax assessed.

Pursuant to KRS 92.305 and 132.012 there is hereby established an ad valorem real property tax on the assessed value of all abandoned urban property within the taxing jurisdiction of the Lexington-Fayette Urban County Government as of the January 1 assessment date of each year, in addition to all other ad valorem taxes. The ad valorem tax levied upon such abandoned urban properties shall be an additional one dollar ($1.00) on each one hundred dollars ($100.00) of the assessed valuation of the real property as of the January 1st assessment date, but in no instance shall it exceed the maximum tax rate allowable by law.

(Ord. No. 138-2009, § 1, 7-7-09; Ord. No. 104-2014, § 1, 9-11-14)

Sec. 7-41. Determination of abandoned property.

The vacant property review commission shall each year determine which properties are abandoned urban properties, based upon referrals provided to it by the division of code enforcement or other appropriate government agencies. A list of such properties shall be prepared and furnished to the urban county government's division of revenue and Office of the Fayette County Property Valuation Administrator prior to January 1 of each year.

(Ord. No. 138-2009, § 1, 7-7-09)

Sec. 7-42. Taxation of abandoned property.

Except as otherwise provided in section 7-43, any property classified by the vacant property review commission as an abandoned urban property as of January 1 shall be taxed as an abandoned urban property for such tax year at the rate provided in section 7-40. If a property classified as abandoned urban property is repaired, rehabilitated, or otherwise returns to productive use, the owner shall notify the vacant property review commission which shall, if it finds the property is no longer abandoned urban property, notify the division of revenue and property valuation administrator to strike the property from the list of abandoned urban properties as of the succeeding January 1.

(Ord. No. 138-2009, § 1, 7-7-09)

Sec. 7-43. Notice.

(a) No later than February 15 of each year, the urban county government shall mail, by first class mail, to the owner or other party in interest as listed in the records of the property valuation administrator of each abandoned urban property, notice that the property has been classified as abandoned urban property pursuant to this article.

(b) The owner or other party in interest of any abandoned urban property who believes that the property has been incorrectly classified may appeal such classification to the vacant property review commission. Appeal to the vacant property review commission may only be made on the basis that the property was incorrectly classified as abandoned urban property in that it did not meet the criteria established in section 7-39 as of January 1 of that tax year. Such appeal shall be in writing, and must be received by the vacant property review commission within thirty (30) days of the date the notice was mailed.

(c) The vacant property review commission shall afford the owner the opportunity for a hearing upon the timely filing of an appeal. All such hearings shall be scheduled to conclude by no later than May 31 of each year.

(d) If the vacant property review commission finds that the property was incorrectly classified as an abandoned urban property, it shall cause the property to be removed from the list of properties so classified and will provide the division of revenue and the property valuation administrator with such changes so that they can be stricken for that tax year. In the event that an incorrectly classified property is not removed from the list of properties for that year, the owner may apply for and obtain a refund for any overpayment of the abandoned urban property tax for that tax year.

(e) The vacant property review commission shall develop policies and procedures for conducting such appeals consistent with section 12-91 of the Code of Ordinances, that at a minimum will provide the owner with at least ten (10) days' written notice before the scheduling of the appeal. The decision of the vacant property review commission on an appeal shall be a final action appealable to the Fayette County Circuit Court.

(Ord. No. 138-2009, § 1, 7-7-09)

Article V

Budget Amendments

Sec. 7-44. Ordinance required.

All budget amendments between divisions, crossing budget adoption control levels, effecting transfers, capital, revenue or fund balance require the approval of an ordinance by the Urban County Council unless otherwise specified in this chapter.

(Ord. No. 124-2022, § 1, 11-3-22)

Sec. 7-45. Exceptions.

The following types of amendments may be processed using a budget adjustment process administered by the division of budgeting:

(a) Personnel accounts for temporary, seasonal, part time, and overtime, with the associated tax and benefit accounts and those related to council approved personnel actions;

(b) Transfer of funds from contingency personnel accounts to division budgets;

(c) Utilities and vehicle maintenance/fuel accounts within a fund may be adjusted by the division of facilities and fleet management;

(d) General insurance accounts within a fund may be adjusted by the division of budgeting;

(e) Grant match accounts within a fund may be adjusted by the division of grants and special programs;

(f) Neighborhood development for council approved allocations to any department or division;

(g) Capital accounts within the same capital account series;

(h) Operating accounts within a division or department; and

(i) Council Capital Project for Council-approved allocations to any department or division.

(Ord. No. 124-2022, § 1, 11-3-22; Ord. No. 049-2024, § 1, 5-16-24)

Sec. 7-46. Report required.

The division of budgeting will provide a written weekly report on all budget adjustments to the Office of the Urban County Council Office for review. (Ord. No. 124-2022, § 1, 11-3-22)

Sec. 7-47. Fiscal year transition.

The Urban County Council shall not approve any budget amendment which reduces the budgeted fund balance in the current fiscal year before the presentation of the prior year's final audit report unless at least one of the following conditions is met:

(a) A certification is given by the chief administrative officer that an emergency exists. The certification shall set out the reason(s) an emergency situation exists;

(b) The budget amendment request involves a fund in which unallocated budget funds exist; or

(c) The budget amendment request involves a re-appropriation of funds.

Any budget amendment request which does not meet the criteria set out above and which will result in a reduction of the budgeted fund balance shall be presented to council with additional justification for the request.

(Ord. No. 124-2022, § 1, 11-3-22)

Sec. 7-48. Grants.

The mayor may, from time to time, be authorized by ordinance or resolution to transfer the unencumbered balance of any account within the same grant budget, so long as the scope and intent of the grant is not significantly changed. Weekly summaries of grant budget transfers made pursuant to any such ordinance or resolution will be furnished the Office of the Council of the Lexington-Fayette Urban County Government.

(Ord. No. 124-2022, § 1, 11-3-22)

Chapter 8

Mining and/or Quarrying[1]

Section 8-1. Purpose.

Section 8-2. Definitions.

Section 8-3. Applicability.

Section 8-4. Application/permit requirements.

Section 8-5. Bonding.

Section 8-6. Performance requirements/standards.

Section 8-7. Mapping of mining operations.

Section 8-8. Leases/notice of permit issuance.

Section 8-9. Enforcement of conditions and inspections.

Section 8-10. Preemption.

Section 8-11. Conflict of laws.

Section 8-12. Severability.

Section 8-13. Penalties.

1. **Editor's note(s)**—Chapter 8, relating to the fire and police departments, under revision at the time of republication and thus omitted, was repealed by § 8 of Ord. No. 135- 82, adopted July 29, 1982. Provisions relating to members of the divisions of fire and emergency services and police are now found in ch. 23. Subsequently, § 1 of Ord. No. 252-91, adopted and effective Dec. 12, 1991, added a new ch. 8, §§ 8-1—8-13.

State law reference(s)—Mines and minerals, KRS ch. 350 et seq.

Sec. 8-1. Purpose.

The purpose of this chapter is to allow the mining and/or quarrying of nonmetallic minerals, excluding coal, within the county and to permit these operations where they are consistent with and/or appropriate to other existing land uses, and to promulgate rules and regulations establishing performance requirements and standards for the protection of people and property, land, water and other natural resources in areas where mining and quarrying are permitted.

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-2. Definitions.

The following words and phrases shall have the meanings respectively ascribed to them except where the context clearly requires a different meaning:

Abandoned workings means excavations, either caved, sealed or reclaimed, or open workings which are ventilated but not inspected regularly that are deserted and in which further mining or quarrying is not intended.

Access roads means all approaches or entrances whether public or private which enter the mine and/or quarry site.

Active workings means all places in a mine or quarry where a product is being removed, which is being ventilated or is exposed to the open air, where mine or regulatory personnel should or do visit and all areas which have not been formally abandoned through concurrence of local, state and federal regulatory agencies.

Applicant means the person(s) with the decision-making authority over the operation and facilities who applies for a permit(s).

Board means the board of adjustment.

Bond(s) means those moneys, letters of credit insurance bonds, or other instruments acceptable to the LFUCG to guarantee a specific written obligation(s) or requirement(s).

Buffer means a strip of land which is used to lessen the possibility of conflict(s) between the mine and/or quarry and the surrounding land uses.

Drainage course means a natural or artificial watercourse of perceptible extent, with a definite bed and banks to confine and conduct continuously or periodically flowing water. Drainage course thus is that water which is flowing within the limits of the defined channel.

Drainage manual means the LFUCG Division of Engineering's Drainage Design Criteria and Procedures Manual.

Drift means an opening in or through the strata, with a grade such as to permit hauling, and capable of being used for the purpose of ventilation, drainage, ingress, egress and other purposes in connection with the mine.

Excavations and workings includes all the excavated portions of a mine, whether abandoned or being worked, all underground workings, shafts, drifts, slopes, tunnels, ways and openings, whether completed or in the course of being sunk or driven, and all roads, appliances, machinery and material connected therewith beneath the surface.

Frequency, measured in Hertz, means the number of vibrations or cycles per second.

Hazardous materials, as defined in the hazardous materials ordinance chapter 16A, means any chemical, biological or radiological compound, gas, oil, gasoline, lubricant, or other petroleum products, substances, solution or mixture which, because of its quality, quantity, concentration, physical or infectious characteristics, or any combination thereof, when released into the environment, presents or may present harmful or potentially harmful effects to human health or welfare or the environment.

High wall means the vertical or near-vertical surface wall created by mining/quarrying operations.

Inactive operations means all portions of a mine or quarry in which operations have been suspended for an indefinite period, but have not been abandoned.

LFUCG means the Lexington-Fayette Urban County Government.

Mine means any underground excavation made in the earth from which to extract materials produced for sale, exchange or commercial use, and all shafts, slopes, drifts or inclines thereto. Workings that are adjacent to each other but not interconnected, under the same management but having a separate shaft, slope, drift or incline shall be considered a separate mine.

Mineral(s) means any solid homogeneous crystalline chemical element or compound which includes, but is not limited to, limestone, dolomite, sand, gravel, rock, stone, earth, slag, ore, vermiculite, clay and other mineral resources.

Mining/quarrying means any mine, surface mine, pit, or quarry operation.

Operation(s) means all activities above or below the ground surface associated with mining/quarrying, including but not limited to all of the premises, facilities, roads, processing plants, stockpiles, and equipment used in the process of mining/quarrying from a designated area.

Overburden means all the earth and other material in the strata overlying the mineral deposit to be mined.

Owner/operator means the owner(s), lessee(s) or any entity who has the ultimate decision-making authority over the mining/quarrying facility.

Pillar means a vertical structure used as a support in a mine as a column.

Portal means the horizontal or inclined opening(s) from the surface through which access is made to the underground workings.

Processing plant means the crusher(s), screen(s), conveyor(s), and other equipment utilized to reduce and separate the run of mine/quarry material into salable product.

Product means the mineral after it has been extracted from the mine/quarry and has been processed for sale, exchange, or commercial use.

Quarry means a surface excavation for the extraction of any nonmetallic mineral, excluding coal, which is produced for sale, exchange or commercial use.

Reclamation means the restoration or conversion of disturbed land to a stable condition which minimizes or prevents adverse disruption and the injurious effects thereof and presents an opportunity for further productive use.

Shaft means a vertical opening through the strata that is or may be used in connection with mining for the purpose of ventilation, drainage, and/or transportation of men, machinery, materials or product(s).

Slope means an inclined opening used for the same purpose as a shaft.

Spoil means that portion of the mined or quarried product which has no commercial value.

Stockpile/storage piles means a reserve supply of mined or quarried material(s) which have been processed and accumulated for use when needed.

Subsidence means any surface deflection above the mined zone or within the zone of influence caused by the mining operation, whether directly or indirectly.

Surface mine or **quarry** or **open pit mine** means any open excavations, prospect openings, and open cut workings for the extraction of any material which is produced for sale, exchange or commercial use.

Topsoil means the surface layer and its underlying materials that have properties capable of producing desirable reclamation and vegetation.

Valid existing rights means for areas other than haul roads; a legally binding conveyance, lease, deed, contract or other document which establishes a right to the minerals (or to conduct a mining/quarrying operation) as of the date of enactment of this chapter [December 12, 1991]. In addition, an entity asserting a valid existing right shall demonstrate that one of the following standards is met:

(a) The minerals are both needed for and immediately adjacent to a validly authorized mining/quarrying operation existing as of the date of enactment of this chapter; or

(b) The entity had obtained or had made a good-faith effort to obtain all necessary state and federal permits as of the date of enactment of this chapter (application for permits being deemed to constitute good faith efforts to obtain the permits), or as of the date the prohibitions became effective, would effect a taking of the entity's property that would entitle an entity to just compensation under the Fifth and Fourteenth Amendments to the United States Constitution.

Velocity is a measure of particle motion caused by the passage of a blast wave and is characterized in terms of inches per second.

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-3. Applicability.

(1) **Application:** Application for a permit and/or renewal permit shall occur if an owner/operator proposes to commence or continue mining/quarrying. This chapter is not intended in any way to regulate the mining of coal. Auxiliary and/or accessory uses for mines/quarries shall apply for separate permits as required by the Zoning Ordinance. These could include but are not limited to overnight truck storage, storage of explosives, asphalt batch plant, concrete batch plant, storage of materials, night watchman quarters, and transmission towers.

(2) **Minimum Area and Location:** Area and location shall be limited as follows:

(a) Except for operations with valid existing rights, no new quarry, processing plant, or stockpiles shall be conducted closer than one thousand (1,000) feet to any existing residence unless the residence is located on the subject property.

(b) Portals, stockpiles, processing facilities, and/or other uses associated with mining/quarrying shall be located in a zone(s) which permit such uses as defined in the Zoning Ordinance.

(3) **Reapplication:** Reapplication shall occur if the owner/operator proposes to alter the activity(s) set forth in the conditional use permit(s) by any of the following:

(a) An increase of greater than twenty (20) percent of projected monthly production or ten (10) percent of an annual basis as set forth in the mining plan except that the owner/operator shall be permitted to operate during the period of review of this reapplication for a change in production.

(b) Relocation, modification or alteration of any permanent structures, roads, stockpile areas, or ingress/egress or any part of the surface site plan.

(c) Any significant modification or alteration of any aspect of the underground mine or quarry plan.

(d) Expansion beyond the defined mining boundary.

(e) Change in the type of mining.

(f) Change in the ownership of the owner/operator whether by sale of greater than ten (10) percent of its stock, assignment, lease, merger or otherwise, except that the owner/operator shall be permitted to operate during the period of review of his reapplication for a change in ownership.

(g) Blasting frequency or velocity exceeding the standards set forth herein.

(h) Any changes or significant modifications to the ultimate land use as defined in the reclamation plan and reclamation description.

(4) **Existing Operations:** The owner/operator of any existing operations shall submit a complete permit application within six (6) months of the effective date of this chapter [December 12, 1991].

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-4. Application/permit requirements.

(1) **Introduction:** Prior to any mining or quarrying on a property, the owner/operator shall submit an application for a mining/quarry permit to the division of engineering. The application shall conform to the requirements as defined herein in subsection (2) of this section. No application shall be deemed to be valid until all requirements as described herein are completed. The division of engineering shall process the application. Where new and/or expanded uses are requested, the board of adjustment may impose specific requirements and/or conditions relating to plans for such an operation as defined in the zoning ordinance. Upon approval by the board, the division of engineering may approve the permit application.

(2) **Application:** The application shall include the common name and geologic title of the mineral to be extracted and the following:

(a) **Vicinity map:** A vicinity map using the LFUCG unified base mapping scale of 1 inch equals 2000/4000 feet.

(i) The map shall at least show the area within a two-mile radius of the boundary of the proposed site.

(ii) The map shall indicate the following: Historical and archaeological sites; public facilities such as parks, schools, churches, cemeteries, fire stations and government offices; and environmentally sensitive and geologic hazard areas as defined by the land subdivision regulations, natural areas, scenic easements, and natural preserves as defined by KRS 146.415 and the greenspace ordinance [section 2-326 et seq.], and the boundary of the proposed site shall be shown.

(iii) The map shall indicate the notification area as defined by the zoning ordinance.

(b) **Existing condition map:** The existing condition map of the site shall use the LFUCG unified base mapping. The map shall be on a minimum scale of one (1) inch equals two hundred (200) feet and a reduced scale to match the appropriate LFUCG's unified mapping program. The map shall indicate the following:

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-5. Bonding.

(1) **Bond:** An applicant shall not disturb surface acreage or extend any underground shafts, tunnels or operations prior to issuance of a permit and approval of a performance bond covering areas to be affected by the new and/or continued operation of mining/quarrying.

(2) **Bond Forfeiture:** A bond for a permit area shall be forfeited if the division of engineering finds after notice that: (a) The permittee has violated any of the terms, regulations or conditions of the bond and has failed to take corrective action; (b) The permittee has failed to conduct the mining and reclamation operations in accordance with the regulations and/or conditions of the permit within the time required; (c) The permit for the area or increment under bond has been revoked or the operation terminated; (d) The permittee or surety has failed to comply with a compliance schedule issued pursuant to section 8-13(1); or (e) The permittee has become insolvent, been adjudicated as bankrupt, filed a petition in bankruptcy or for a receiver, or had a receiver appointed by any court.

(Ord. No. 252-91, § 1, 12-12-91; Ord. No. 127-2012, §§ 7—10, 10-11-12)

Sec. 8-6. Performance requirements/standards.

The conduct of mining/quarrying and the handling of refuse and mining wastes shall be done in such a way as to eliminate adverse effects and to protect the adjoining landowners and those in the area from damage. Development and operation of the mining/quarrying site shall be in accordance with all federal, state, and local laws and regulations. Portals, stockpiles and processing facilities associated with underground mining shall only be located in a zone(s) which permits such uses as defined in the zoning ordinance. In the event of conflict in the standards, the stricter or higher standard shall apply. They shall meet the following standards:

(1) **Noise:** The approved facility shall be operated at all times in compliance with applicable federal, state and local laws and regulations relating to noise.

(2) **Air Quality:** The approved facility shall be operated at all times in compliance with applicable federal, state and local laws and regulations pertaining to air pollution.

(3) **Water Quality:** The approved facility shall be operated at all times in compliance with applicable federal, state, and local laws and regulations pertaining to water quality.

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-7. Mapping of mining operations.

(1) The operator of each underground mine shall annually make or cause to be made a new or updated map of the workings of the mine which is accurate and of professional quality. The map shall be on a minimum scale of one (1) inch equals two hundred (200) feet and a reduced scale to match the appropriate LFUCG's unified mapping program.

(Ord. No. 252-91, § 1, 12-12-91; Ord. No. 127-2012, §§ 17—20, 10-11-12)

Sec. 8-8. Leases/notice of permit issuance.

(1) **Leases:** Prior to obtaining a permit from the LFUCG, the owner/operator shall ensure that all leases, conditions and/or restrictions to the subject property, or a memorandum thereof specifying the parties and terms thereof are filed in the office of the division of engineering.

(Ord. No. 252-91, § 1, 12-12-91; Ord. No. 127-2012, §§ 21, 22, 10-11-12)

Sec. 8-9. Enforcement of conditions and inspections.

(1) The division of engineering shall be authorized to inspect the mining operation, and shall enlist other consultant's assistance as needed for said inspections.

(Ord. No. 252-91, § 1, 12-12-91; Ord. No. 127-2012, §§ 23, 24, 10-11-12)

Sec. 8-10. Preemption.

Nothing contained in this chapter is intended to conflict with existing laws at either the federal or state levels. Where any area may be specifically preempted or changed by federal and/or state regulation(s) or law(s), compliance with such federal and state authority shall be considered in compliance with the provisions of this chapter. All provisions of this chapter not specifically preempted or changed shall remain applicable.

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-11. Conflict of laws.

To the extent any of the provisions of this chapter may conflict with other relevant federal, state or local laws, the more stringent shall apply, except where state or federal law preempts a more stringent application of local law.

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-12. Severability.

If any provision(s) of this chapter or the application thereof to any person or circumstances is held to be invalid, such invalidity shall not affect other provisions or application; and to this end the provisions of these regulations and the various applications thereof are declared to be severable.

(Ord. No. 252-91, § 1, 12-12-91)

Sec. 8-13. Penalties.

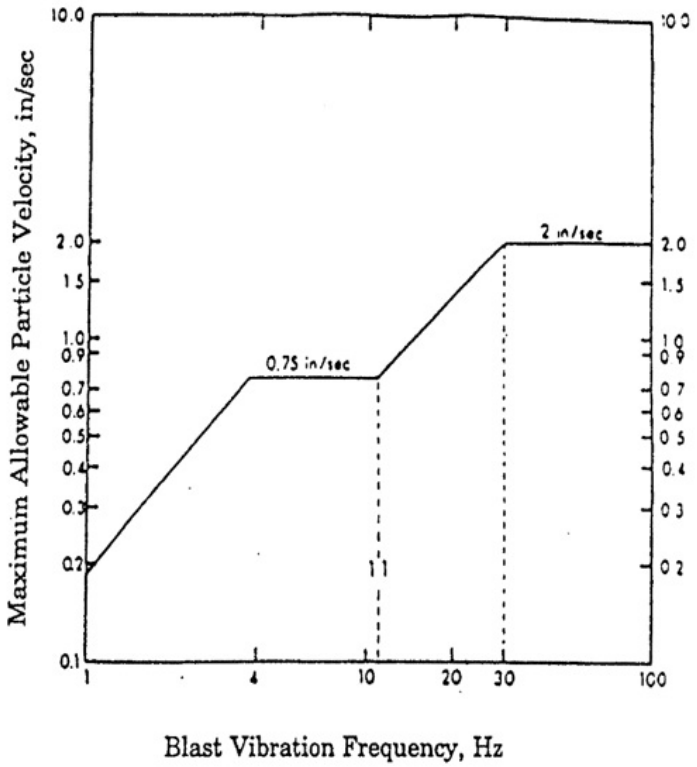
(1) **Notice of Violation:** Any mining/quarrying operation which is found to be in violation of the conditions, regulations or provisions of the permit shall be subject to the issuance of a notice of violation. The notice of violation shall state the specific violations of the permit, the remedial actions required, and the schedule for compliance. The notice of violation may be appealed to the board as set forth in the zoning ordinance.

(2) **Closure Order:** Any mining/quarrying operation which fails to abate the notice of violation within the specified time shall be subject to the issuance of a closure order. A copy of the closure order shall be delivered to the operator at the mine/quarry facilities or served by certified mail addressed to the operator at the permanent address shown on the application for a permit. The closure order shall state the specific violations of the permit, the remedial actions required, and the schedule for compliance.

(3) **Fines:** Any person(s) failing to comply with any of the provisions, regulations or conditions of this ordinance shall be guilty of a class B misdemeanor and upon conviction fined not less than five hundred dollars ($500.00) per day. Each day the violation occurs shall constitute a separate offense.

(Ord. No. 252-91, § 1, 12-12-91)

Table I



Chapter 8A

Blasting

Section 8A-1. Definitions.

Section 8A-2. Blasting; notification.

Section 8A-3. Preemption.

Section 8A-4. Penalties.

Sec. 8A-1. Definitions.

As used in this chapter, unless the context clearly indicates otherwise:

Blaster means a person licensed by the Kentucky Department for Natural Resources to fire or detonate explosives in blasting operations;

Blasting operation or **blasting** means the use of explosives in any construction or demolition work, but shall not include its use in mining/quarrying subject to the requirements of chapter 8 of the Code of Ordinances, in the mining/quarrying of coal, or in agricultural operations;

Director means the Director of the Division of Engineering;

Division means the Division of Engineering; and

Explosives mean any chemical compound or other substance or mechanical system intended for the purpose of producing an explosion, or that contains oxidizing and combustible units or other ingredients in such proportions or quantities that ignition by detonation may produce an explosion, capable of causing injury to persons or damage to property.

(Ord. No. 120-2024, § 2, 11-14-24)

Sec. 8A-2. Blasting; notification.

(1) The use and storage of explosives for blasting operations shall be conducted in accordance with all applicable rules and regulations of the Kentucky Department for Natural Resources, as well as all applicable federal, state, and local laws and regulations.

(2) (a) **Notice required.** In addition to any notice required by state or federal law, the blaster shall, at least five (5) days before commencing blasting operations, provide electronic notice thereof to the Director on the form promulgated by the Division.

(b) **Changes to dates and times of detonation.** Upon any significant change to any date or time of detonation contained in the notice required in subsection (2)(a), the blaster shall provide electronic notice thereof to the Director at least five (5) days before implementing the change in blasting operations.

(Ord. No. 120-2024, § 3, 11-14-24)

Sec. 8A-3. Preemption.

Nothing contained in this chapter is intended to conflict with existing laws at either the federal or state levels but shall be an additional requirement on blasters. All provisions of this chapter not specifically preempted or changed shall remain applicable. This chapter is enacted to protect the natural environment of the county and, consequently, the health and welfare of the general public within.

(Ord. No. 120-2024, § 4, 11-14-24)

Sec. 8A-4. Penalties.

(1) **Notice of Violation.** Any blaster found to be in violation of this chapter shall be subject to the issuance of a notice of violation. The notice of violation shall state the specific violation and the remedial actions required. The notice of violation is not appealable.

(2) **Fines.** After the issuance of a notice of violation, any blaster failing to comply with any of the provisions, regulations or conditions of this chapter shall be fined, through the issuance of a civil citation, for every offense, in an amount based upon the number of citations issued within a twelve (12) month period.

Number of Citations	**Fine**
1	$100.00
2	$750.00
3	$1,500.00
4	$2,500.00
5+	$5,000.00

(3) Any fines may be recovered by the urban county government in a civil action in the nature of the debt if the violator fails to pay the penalty within a prescribed period of time.

(Ord. No. 120-2024, § 5, 11-14-24)

Chapter 9

Fire Prevention[1]

Section 9-1. Title and scope.

Section 9-2. Standards of safety as they pertain to fire prevention and protection.

Section 9-2.1. Reserved.

Section 9-3. Enforcement; duties of officers of division of fire and emergency services generally.

Section 9-4. Cause and origin of fire—Investigations, report, arson, person liability.

Section 9-5. Same—Department of law to assist.

Section 9-6. Inspections and elimination of hazards—Inspections and orders generally.

Section 9-7. Same—Special hazards.

Section 9-8. Same—Removal of dangerous material.

Section 9-9. Same—Hazardous materials stored, reporting.

Section 9-10. Same—Hazardous businesses, reporting, permit.

Section 9-11. Same—Procedure generally on discovery of conditions.

Section 9-12. Reserved.

Section 9-13. Same—Closing of buildings, premises and public thoroughfares.

Section 9-14. School fire drills.

Section 9-15. Operation of apparatus outside urban county.

Section 9-16. Penalty for interference with fireman or fire inspector.

Section 9-17. Penalty for violation of chapter.

1. **Editor's note(s)**—Section 1 of Ord. No. 155-87, adopted and effective July 9, 1987, changed the division of fire to the division of fire and emergency services.
Cross reference(s)—Buildings, ch. 5; fire limits, § 5-5; housing, ch. 12; tampering with alarm system, § 14-28; smoking in sleeping rooms, § 14-55; smoking on buses, § 14-55.1; hazardous materials, ch. 16A; traffic authority at fires, § 18-6; right-of-way of emergency vehicles, § 18-10; following fire apparatus, § 18-18; crossing fire hose, § 18-19; division of fire and emergency services, ch. 23.
State law reference(s)—Fire prevention and protection, KRS ch. 227.

Section 9-18. Reserved.

Section 9-19. Right of entry of officials of division of fire and emergency services.

Section 9-20. Burning of building rubbish specifically prohibited.

Section 9-21. Reserved.

Section 9-22. Appeals.

Sec. 9-1. Title and scope.

This chapter is to be known and cited as the fire prevention ordinance of the urban county government. The following provisions pertain to the prevention of fires and the minimization of danger to life from fire hazards; and for the safety of persons and property.

Nothing contained herein shall be construed to conflict with the provision of KRS 198B - Housing, Buildings and Construction - Building Code. In the event of a conflict, the provisions of KRS 198B shall prevail.

(Ord. No. 2059, § 1, 12-26-46; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-2. Standards of safety as they pertain to fire prevention and protection.

The Kentucky Fire Prevention Code, which is approved, adopted and promulgated by the Kentucky Department of Housing, Buildings and Construction pursuant to KRS 227.300 and 815 KAR 10:060, and which is known as the Kentucky Standards of Safety, is hereby adopted in full.

(Ord. No. 2059, § 3, 12-26-46; Ord. No. 117-73, § 1, 4-26-73; Ord. No. 213-78, § 1, 9-7-78; Ord. No. 276-78, § 1, 11-16-78; Ord. No. 95-82, § 1, 6-17-82; Ord. No.

Cross reference(s)—55-86, § 1, 4-17-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91; Ord. No. 74-93, § 1, 5-6-93)

Sec. 9-2.1. Reserved.

Editor's note(s)—Section 9-2.1, specifying codes of safety as they pertain to fire prevention and protection, derived from Ord. No. 215-74, § 1, Nov. 7, 1974, was repealed by § 2, of Ord. No. 213-78, adopted Sept. 7, 1978.

Sec. 9-3. Enforcement; duties of officers of division of fire and emergency services generally.

(a) It shall be the duty of the officers of the division of fire and emergency services to enforce all laws and ordinances of the state and the urban county government covering among other things the following:

(1) The prevention of fires.

(2) The storage and use of explosives and flammables.

(3) The installation and maintenance of automatic and other fire alarm systems and fire extinguishing equipment.

(4) The maintenance and regulation of fire escapes.

(5) The investigation of the cause, origin and circumstances of fires.

(6) The investigation of buildings especially susceptible to fires.

(7) The investigation of hazardous occupancies.

(b) Such officers, under the direction of the mayor, shall have, in addition to the above powers, such other powers and duties as are set forth in other sections of this Code and as may be conferred and imposed upon them from time to time by law. Furthermore, they shall have power to act and do whatever may be deemed necessary for the safety and protection of the citizens from danger or loss of life or injury to persons or property from fire hazards. The mayor shall have the authority, whenever fire hazard conditions warrant, to adopt emergency regulations prohibiting specified activities under penalty of fine or imprisonment as provided in section 9-17; provided, notice that is reasonable under existing circumstances and is calculated to inform the public of the regulations shall be given to the news media and the public.

(c) All powers given in this chapter to the fire chief are likewise given to his deputy and authorized assistants under the direction of the mayor.

(Ord. No. 2059, §§ 4, 5, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 177-88, § 1, 7-14-88; Ord. No. 24-91, § 1, 2-21-91; Ord. No. 19-2015, § 1, 3-17-15)

Sec. 9-4. Cause and origin of fire—Investigations, report, arson, person liability.

(a) The fire chief and his officers shall investigate the cause, origin and circumstances of every fire occurring in the urban county by which property has been destroyed or damaged, and shall further investigate all known attempted fires. Such investigations shall be started immediately upon the occurrence of the fire; except that the occurrence of a fire in any hotel, public building, school, or other institution shall be reported immediately by the person in charge thereof.

(b) The fire chief shall make a record of the cause, origin and circumstances, of all fires, the extent of the damage thereof and the insurance, if any, upon the property affected, and any other information that may be required.

(c) The fire chief shall be immediately notified whenever it is determined so far as possible that a fire resulted from carelessness, design or violation of or negligence to comply with any notice or order issued by his division under this chapter.

(d) If it appears to the officer making the investigation that such fire is of a suspicious origin, the fire chief and his officers shall thereupon take charge of the physical evidence and shall notify the proper authorities designated by law to pursue the investigation of such matters and shall further cooperate with the authorities in the collection of evidence and in the prosecution of the case if the prosecution is had.

(e) In the event of fire resulting directly or indirectly from any omission or negligence to comply with any valid written order of the fire chief or the fire marshal, the owner, lessee, occupant or person whose duty it was to correct the defects or obey such order shall be liable, jointly or severally as the case may be, to the urban county government for the payment of all costs and expense for the service of the division of fire and emergency services in the extinguishing of such fire. The cost and expense of this service shall be for the personnel, apparatus and maintenance as determined by the fire chief, under the direction of the mayor, based upon the reasonable time consumed by the personnel and apparatus at such fire, and the use of materials at such

fire, at a reasonable cost for such time and materials expended by the urban county government. An expense account, so determined, shall be mailed by the fire chief, under the direction of the mayor, to the person above designated as responsible therefor with direction that such sum be paid to the director, division of treasury within ten (10) days from the date of such notice of such account; and, if such account be not paid within said time, a civil action shall be brought wherein the urban county government shall be plaintiff and said party or parties responsible for said fire or responsible for such breach of duty, as above set out, shall be defendant. It shall be sufficient in such action to file a copy of the order issued by the fire chief or the fire marshal to such defendant and to allege and prove a breach of the requirements of such order by such defendant.

(Ord. No. 2059, § 11, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-5. Same—Department of law to assist.

The department of law of the urban county, upon the request of the mayor, shall assist the fire chief or his officers in the interrogation of any witnesses brought before the fire chief in the investigation of any fire which, in their opinion, is of a suspicious origin.

(Ord. No. 2059, § 12, 12-26-46; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-6. Inspections and elimination of hazards—Inspections and orders generally.

(a) The fire chief, his officers and inspectors, upon the complaint of any person, found to be based upon reasonable facts, or whenever it shall be deemed necessary, shall inspect all buildings or premises within their jurisdiction.

(b) Reports on such inspections shall be extensive and thorough and shall give full recommendations to the owner or occupant of such premises, setting forth the measures necessary to correct any hazards by alterations, additions or demolition, or by any other method; and the fire chief shall order such condition remedied as provided in this chapter.

(Ord. No. 2059, § 14, 12-26-46)

Sec. 9-7. Same—Special hazards.

The fire chief and his inspectors, especially designated under the direction of the mayor, shall make regular, periodic inspection as often as may be necessary, of all especially hazardous manufacturing processes; storage or installation of acetylene or other gases, chemicals, oils, explosives and flammable materials; all interior fire alarms and automatic sprinkler systems; and such other hazards or appliances as the fire chief, under the direction of the mayor, shall designate and shall make such orders as may be necessary for the enforcement of the laws and ordinances governing the same and for safeguarding life and property from fire.

(Ord. No. 2059, § 6, 12-26-46; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-8. Same—Removal of dangerous material.

Whenever any inspector of the division of fire and emergency services shall find, in any building or upon any premises or other place, combustible or explosive matter or dangerous accumulation of wastepaper, boxes or any highly flammable materials especially liable to fire and which is so situated as to endanger life or property, or shall find obstructions to or on fire escapes, stairs, passageways, doors or windows liable to interfere with the operations of the division of fire and emergency services or egress of occupants in case of fires or shall find any other violation of the provisions of this chapter, such inspector shall order the defects or hazards to be removed or remedied. This order shall be complied with by the owner or occupant of such premises or buildings at once; and if not so complied with, the written notice or order provided for in section 9-11 shall be given.

(Ord. No. 2059, § 13, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-9. Same—Hazardous materials stored, reporting.

It shall be the duty of any person engaged in the urban county in the business of storage, sale, use or transportation of explosives or flammable materials of any description, and apparatus pertaining to such hazardous materials, or conducting processes which produce conditions hazardous to life or property from fire or explosives, to notify the fire chief of such occupation or business and its location; and the fire chief and his officers and inspector shall forthwith inspect all such premises and buildings engaged in any such occupation.

(Ord. No. 2059, § 13, 12-26-46)

Sec. 9-10. Same—Hazardous businesses, reporting, permit.

Any person intending to do business in the urban county, which business will require the storage, use, manufacture, sale, handling, transportation or other disposition of highly flammable materials, crude petroleum or any of its products, gun or blasting powder, dynamite or explosives, shall first give notice, in writing, to the fire chief of the intention of such person to conduct such business at a given location in the urban county and to apply for a license to do business in the urban county not sooner than ten (10) days from the date of such written notice; and the fire chief or his assistants or inspectors shall, as promptly as possible, and within ten (10) days make an inspection of such premises where such business is to be conducted, and shall write on such written notice the approval of the fire chief, if such premises and business are approved and do comply with the standards of safety and with this chapter; and the director, division of inspection shall not issue a license to any such person until and unless such approval is presented.

(Ord. No. 2059, § 7, 12-26-46; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-11. Same—Procedure generally on discovery of conditions.

(a) It shall be the duty of the fire chief or his designated inspectors in the division of fire and emergency services, under the direction of the mayor, to inspect or cause to be inspected all buildings, premises and public thoroughfares, especially theaters, nightclubs, bars, schools, hotels and office buildings, for the purpose of ascertaining and causing to be corrected any condition liable to cause fire or endanger lives and property.

(b) Private dwellings are exempt from the provisions of this section, except or unless there are reasonable grounds to believe by the officers or inspectors or other officials of the urban county government that conditions existing in such private dwellings are reasonably liable to cause fire, or that there is any violation of the standards of safety or other ordinances of the urban county government affecting fire hazards.

(c) When any inspector shall find in any building or upon any premises or other place a deficiency of the standards of safety or of other ordinances of the urban county government with respect to fire hazard, the fire chief or other officer designated in the division of fire and emergency services shall give to the owner of such premises or his/her agent a written notice of deficiencies. Such written notice will be called an "Order to Remedy", and may be delivered personally by the inspector to the owner or agent of such premises; or, in the event such owner or agent cannot be found at the premises, the order may be posted by affixing it to the door or near the door of such building. In addition, the order shall be directed in writing and mailed to the address of the owner of the premises; and the posting of the letter to such owner directed to the place of his/her residence shall be considered sufficient notice hereunder.

(d) The inspector giving such written order to remedy shall mark on the copy of the order the manner in which such order was given and the date given, and shall file such order in a file to be kept in the division of fire and emergency services for the purpose of preserving the order so long as it is required to be kept as a record.

(e) Whenever a deficiency of this chapter is observed and the "Order to Remedy", hereinabove provided for, is given to correct such deficiency, the inspector giving the order shall set out the specific sections of the standards of safety prescribing the regulations to be observed by such person to whom the order is sent, and shall also set out a direction as to the time within which the deficiency shall be corrected and such other advice to such person as the inspector may consider advisable to give to assist such person to comply with this chapter, and the standards of safety. The time, however, given for the correction of the deficiency shall in no event be longer than such reasonable time as ordinary prudent persons would usually require to conform to the applicable rules and regulations.

(f) Such order to remedy shall comply with the following format:

(1) Be in writing.

(2) Include a description of the real estate sufficient for identification.

(3) Include a statement of reasons why it is being issued.

(4) Include a reasonable time for repairs and improvements required to bring the dwelling unit or structure into compliance with the provisions of this Code.

(5) Specify appropriate acceptable alternatives, which afford a substantially equivalent margin of safety, to correct any or all deficiencies, where available.

(6) Include an explanation of the owner's right to seek modification, clarification, or withdrawal of the order by contacting the inspector who issued the order.

(g) The owner or agent, who has received a notice to comply with the standards of safety or other regulations as set out in the order, shall forthwith comply with such order and remedy the deficiencies and notify the inspector within a reasonable time that the defects, violations or hazards have been corrected; and the inspector shall cause another inspection to be made to verify the assertion that the correction has been satisfactorily made; and, if the correction has been satisfactorily made and the premises rendered safe in accordance with the order, the copy of such order may be taken from the files and destroyed unless, in the opinion of the fire chief, it is needed for future record.

(h) In any case where such a notice is given to an owner or agent to comply with the standards of safety or other ordinance of the urban county affecting fire hazards and the deficiency is not eliminated or corrected within a reasonable amount of time and the owner and inspector are unable to come to any agreeable solution, said notice of deficiency shall be reviewed by the fire marshal. Following this review, and where appropriate, the fire marshal may issue a fire marshal's order to correct the deficiency and specify the time within which the deficiency is to be corrected. Consideration may be given to the nature of the deficiency, previous time allowed under the notice and other relevant factors which go to the reasonableness of the time allowed. Said orders shall include an explanation of the owner's right to seek an appeal of the order by petition to the fire chief.

(i) Such an order shall comply with the following format:

(1) Be in writing.

(2) Include a description of the real estate sufficient for identification.

(3) Include a statement of reasons why it is being issued.

(4) Include a reasonable time for repairs and improvements required to bring the dwelling unit or structure into compliance with the provisions of this Code.

(5) Specify appropriate acceptable alternatives, which afford a substantially equivalent margin of safety, to correct any or all deficiencies, where available.

(6) Include an explanation of the owner's right to seek modification, clarification or withdrawal of the order by appeal to the fire chief.

Such order shall be mailed to the address of the owner or agent of the premises, and the posting of the letter to such owner directed to the place of residence shall be considered sufficient notice hereunder.

(j) The owner or their agent, who has received an order to comply with the standards of safety or other regulations as set out in the order, shall forthwith comply with such order and remedy the deficiencies and notify the fire marshal within a reasonable time that the defects, violation or hazards have been corrected; and the fire marshal shall cause another inspection to be made to verify the assertion that the correction has been sat-

isfactorily made; and, if the correction has been satisfactorily made and the premises rendered safe in accordance with the order, the copy of such order may be kept in accordance with the state's requirements for records retention.

(Ord. No. 2059, § 8, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91; Ord. No. 17-2015, § 1, 3-17-15)

Sec. 9-12. Reserved.

Editor's note(s)—Section 9-12, requiring compliance with an order to reduce a fire hazard, derived from Ord. No. 2059, § 9, adopted Dec. 26, 1946, was repealed by § 2 of Ord. No. 24-91, adopted Feb. 21, 1991.

Sec. 9-13. Same—Closing of buildings, premises and public thoroughfares.

The fire chief, under the direction of the mayor, is authorized to close buildings, premises, and public thoroughfares, especially theaters, nightclubs, bars, schools, hotels and office buildings, by padlocking such place of by placing a notice, "Closed to the Public by Order of the Fire Chief" on the entrance doors, immediately upon the expiration of time given in writing to correct any designated fire hazard, or immediately upon the discovery of any condition where there is such imminent peril to life or property that delay in giving notice or issuing an "Order to Remedy" will be reasonably calculated to increase the chances of loss of life or property or endanger the safety of the occupants of such premises.

(Ord. No. 2059, § 9, 12-26-46; Ord. No. 18-2015, § 1, 3-17-15)

Sec. 9-14. School fire drills.

(a) It shall be the duty of the fire chief, or the inspectors of the division of fire and emergency services, or other officers designated by the fire chief, under the direction of the mayor, to notify the principal and teachers of the public, private and parochial schools and educational institutions to have one (1) fire drill each month in such schools during school hours, and to prevent any obstruction from being maintained in the corridors or exits which obstruction would unreasonably prevent the passage of children in and out of the school building during an emergency, such as a fire.

(b) Each principal of each school shall keep a record of the fire drills conducted in such school and the time of such drill and shall cause a notice to be mailed to the fire chief within two (2) days after each drill stating the time such drill was held.

(c) In the event any principal shall fail or refuse to make such report or to require fire drills in his school as provided herein, such principal shall be guilty of a violation of this section and shall, upon conviction in the district court, be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) for each such failure.

(d) The fire chief shall notify the mayor of the failure of any principal of any school to so notify him of the fact that the described drill for each month was conducted as herein provided for.

(Ord. No. 2059, § 10, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-15. Operation of apparatus outside urban county.

Pursuant to KRS 95.830, fire apparatus of the division of fire and emergency services of the urban county may be operated and used outside the urban county in conformity with the following regulations:

(1) Upon the order of the fire chief or acting chief, the division of fire and emergency services shall have the authority to respond to all fires, hazardous materials releases, or other similar emergencies at the West Hickman Creek Treatment Plant located in Jessamine County.

An emergency will be deemed to exist when the chief or officer in charge at the scene of the fire believes that serious danger of loss of property or life may reasonably result unless assistance is had from the division of fire and emergency services of the urban county.

In the event fire units from both Jessamine County and the urban county government respond to an emergency at the West Hickman Creek Treatment Plant, by virtue of the fact that the urban county government units are responding for the purpose of protecting property of the urban county government, the ranking officer of the division of fire and emergency services shall be deemed the incident commander.

(2) In the event of a serious conflagration or other emergency in a surrounding county in which a disastrous and extensive loss of property or life of citizens of that jurisdiction is involved or is threatened and the fire department of such jurisdiction cannot reasonably be expected to prevent such loss, the mayor or his designee may, in his discretion, order such units of the division of fire and emergency services of the urban county to assist in the prevention of such loss upon call for assistance from the chief executive officer of such nearby jurisdiction or the chief of the fire department thereof. Units of the division of fire and emergency services may likewise respond to surrounding counties when there are incidents which do not pose a threat of disastrous and/or extensive loss of life, but which require special equipment and/or training which the local jurisdiction does not possess.

When units from the division of fire and emergency services respond to such calls for assistance, the ranking fire officer of the jurisdiction making the request shall be deemed the incident commander.

(3) In exercising the discretion to send equipment of the division of fire and emergency services out of the corporate limits of the urban county as above set out, the mayor and the fire chief shall at all times ascertain to the best of their ability the necessity for such assistance and shall also give primary and due consideration to the requirements of adequate fire protection for the urban county.

(Ord. No. 2059, § 15, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-16. Penalty for interference with fireman or fire inspector.

Any person interfering with a fireman or fire inspector in the performance or discharge of his duties shall be guilty of a misdemeanor and shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00).

(Ord. No. 2059, § 16, 12-26-46; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-17. Penalty for violation of chapter.

Any person failing or neglecting to comply with any order issued pursuant to any section hereof, and having failed to appear as requested and/or not having appealed said order within the time specified in the order, shall be guilty of a misdemeanor and, upon conviction in the district court, shall, unless other punishment is specifically provided in this chapter, be punished by a fine of not less than twenty-five dollars ($25.00) nor more than one thousand dollars ($1,000.00) or imprisoned for not less than ten (10) days nor more than sixty (60) days for each offense, or both so fined and imprisoned. Each day that any such violation is permitted to exist beyond the time fixed by order, as provided in this chapter, shall constitute a separate offense.

(Ord. No. 2059, §§ 17, 18, 12-26-46; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 24-91, § 1, 2-21-91)

Sec. 9-18. Reserved.

Editor's note(s)—Section 9-18, relating to fire safety listings, derived from Ord. No. 277-78, § 1, adopted Nov. 16, 1978, and Ord. No. 155-87, § 1, adopted July 9, 1987, was repealed by § 2 of Ord. No. 24-91, adopted Feb. 21, 1991.

Sec. 9-19. Right of entry of officials of division of fire and emergency services.

Whenever the chief of the division of fire and emergency services of the urban county government or any officer or member of his department is denied entrance to any property, land, structure or building, for the purpose of inspecting, ascertaining and causing to be corrected any conditions likely to cause fire loss, or determining the cause or origin of any fire loss, or discovering any violation of the law or ordinance relating to fire prevention and protection, said chief, officer or designated member may apply to the district court for a warrant allowing entrance and inspection. This authority shall apply to the interior of occupied, private dwellings only when a fire loss has occurred therein or when the officer has reason to believe that unsafe conditions exist in the building.

(Ord. No. 277-78, § 2, 11-16-78; Ord. No. 155-87, § 1, 7-9-87)

Sec. 9-20. Burning of building rubbish specifically prohibited.

(a) As used in this chapter:

(1) Open burning means any fire wherein the production of combustion is emitted directly into the outdoor atmosphere and is not directed thereto through a stack or chimney, incinerator or similar device.

(2) Building rubbish means the waste material resulting from construction, remodeling, repair or demolition operations on houses, commercial buildings and other structures.

(3) Household rubbish means waste materials and trash, including garbage, normally accumulated by a family in a residence in the course of normal day-to-day living.

(b) No person shall cause or allow any building rubbish or household rubbish to be burned for the purpose of disposing of same, or for any other purpose. All building rubbish and household rubbish shall be disposed of in accordance with the provisions of chapter 16 of this Code.

(c) Except as provided in this section or in other provisions of this Code, open burning is prohibited. The fire chief or his designee may allow open burning for the following purposes:

(1) Fires set for the cooking of food for human consumption;

(2) Fires set for recreational or ceremonial purposes;

(3) Small fires set by construction and other workers for comfort heating purposes when daytime temperatures are below forty degrees Fahrenheit (40°F) if excessive or unusual smoke is not created, the fire is contained in a metal vessel not to exceed the size of a fifty-five (55) gallon drum, and the fire is not left unattended for more than fifteen (15) minutes while workers are present at the job site. Fires must be extinguished whenever workers leave the job site;

(4) Fires set for the purpose of weed abatement, disease, and pest prevention;

(5) Fires set for prevention of a fire hazard, including the disposal of dangerous materials if no safe alternative is available;

(6) Fires set for the purpose of bona fide instruction and training of public and industrial employees in the methods of fighting fires;

(7) Fires set for recognized agricultural, silvicultural, range, and wildlife management practices;

(8) Fires set for the purpose of disposing of accidental spills or leaks of crude oil, petroleum products or other organic materials, and the disposal of absorbent material used in their removal, if no other economically feasible means of disposal is available and practical and if a permit has been issued by the Kentucky Natural Resources and Environmental Protection Cabinet; and

(9) Fires set for disposal of natural growth for land clearing, and trees and limbs felled by storms, if no extraneous materials such as tires or heavy oil which tend to produce dense smoke are used to cause ignition or aid combustion and the burning is done on days when conditions do not pose a threat of igniting a forest fire.

(d) No person shall cause or allow any open burning for the purposes authorized in subsection (c) without obtaining an open burn permit from the fire chief or his designee; provided, however, that no permit shall

be required for fires set to cook food for human consumption or for small fires set by construction and other workers pursuant to subsections (c)(1) and (3). The fire chief shall establish reasonable rules to regulate the issuance of open burn permits, including conditions that may be placed upon the use of the permit.

(e) No open burn permit shall be granted for any fire that would be in violation of Chapters 149, 150, or 227 of the Kentucky Revised Statutes, Title 401, Chapters 51 or 63 of the Kentucky Administrative Regulations, or other state or local law.

(f) Any person in violation of the provisions of this section shall, upon conviction thereof, be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or imprisonment for a term not to exceed twelve (12) months, or both, for each act which shall be a separate offense.

(Ord. No. 154-87, § 1, 7-9-87; Ord. No. 304-2004, § 1, 12-2-04; Ord. No. 130-2005, § 1, 6-9-05)

Sec. 9-21. Reserved.

Ord. No. 20-2015, § 1, adopted Mar. 17, 2015, repealed §9-21, which pertained to fire prevention board of appeals and derived from Ord. No. 24-91, § 1, adopted Feb. 21, 1991; and Ord. No. 59-91, § 2, adopted Apr. 4, 1991.

Sec. 9-22. Appeals.

(a) **Appeal of Fire Marshal's Order.**

(1) **Application.** This subsection shall not apply in instances in which the order is issued by the fire chief. In addition, this subsection shall not apply in instances in which an emergency order is issued pursuant to state law that directs the property to be closed to the public or vacated by its occupants until the violation is corrected.

(2) **Authorized.** Where any person seeks relief from an order of the fire marshal or other officer or member of the department acting in an official capacity enforcing provisions of this code, including but not limited to matters of code interpretations, that person may request reconsideration of the fire marshal's decision by appealing in writing to the fire chief within ten (10) business days of the receipt of the order stating the reasons why relief is sought and what decision the person feels should be forthcoming. The fire chief or his designee shall act as a hearing officer and hear such appeals filed. In no instance shall the designee be the fire marshal issuing the order. A hearing on such an appeal shall be held within thirty (30) days after it is received by the fire chief.

(3) **Notice of hearings.** The fire chief or his designee shall give written notice of hearings not less than ten (10) days in advance. The notice shall state the date, time and place of the hearing and specify the matters to be considered at the hearing. The fire chief shall give such notice to all persons whose pecuniary interests, to the fire chief's knowledge or belief, are to be directly and immediately affected by the hearing. Notice of hearing may be given by delivery to the person to be notified or his agent or by mailing it, postage prepaid, addressed to him at his principal place of business or residence as last of record in the fire chief's office.

(4) **Conduct of hearing.** Any party to the hearing shall have the right to appear in person and to present evidence in support of his interest. The fire chief shall consider all relevant evidence presented at the hearing and shall render a written decision within five (5) business days after the hearing is completed.

(b) **Appeal of Fire Chief's Order.** Any appeal of the fire chief's order shall be as provided under the applicable state law.

No entity shall operate as a producer of medicinal cannabis at any location within Lexington-Fayette County unless that entity first possesses a valid special fees license, as required by section 13-84 of this article, providing that it intends to operate a medicinal cannabis business as a producer at that location.

(Ord. No. 062-2024, § 2, 6-27-24)

Chapter 9A

Fireworks Enforcement Code

Section 9A-1. Title.

Section 9A-2. Definitions.

Section 9A-4. Permits.

Section 9A-5. Seasonal fireworks retailers.

Section 9A-6. Revocation; suspension.

Section 9A-7. Ancillary fireworks retailers.

Section 9A-8. Penalties.

Sec. 9A-1. Title.

The provisions of this chapter shall be known and may be cited as the "fireworks enforcement code."

(Ord. No. 141-2011, § 1, 11-3-11)

Sec. 9A-2. Definitions.

The following words, terms and/or phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ancillary fireworks retailer shall mean any person, business entity, association, or corporation of any kind as those terms are defined in section 13-1 of the code.

Consumer fireworks shall have the same meaning as in KRS 227.702.

Display fireworks shall have the same meaning as in KRS 227.706.

Fireworks shall have the same meaning as in KRS 227.700.

Seasonal fireworks retailer shall mean a retailer operating between June 10 and July 7.

(Ord. No. 141-2011, § 2, 11-3-11; Ord. No. 118-2012, § 1, 9-13-12)

Sec. 9A-4. Permits.

Seasonal fireworks retailers shall obtain a retail fireworks permit.

(Ord. No. 141-2011, § 5, 11-3-11; Ord. No. 118-2012, § 4, 9-13-12)

Sec. 9A-5. Seasonal fireworks retailers.

Seasonal fireworks retailers shall comply with operational restrictions.

(Ord. No. 141-2011, § 6, 11-3-11; Ord. No. 118-2012, § 5, 9-13-12)

Sec. 9A-6. Revocation; suspension.

Permits may be revoked or suspended for violations.

(Ord. No. 141-2011, § 7, 11-3-11; Ord. No. 118-2012, 9-13-12)

Sec. 9A-7. Ancillary fireworks retailers.

Ancillary fireworks retailers shall comply with applicable requirements.

(Ord. No. 141-2011, § 8, 11-3-11; Ord. No. 118-2012, § 6, 9-13-12)

Sec. 9A-8. Penalties.

Violations shall be subject to penalties.

(Ord. No. 141-2011, § 9, 11-3-11; Ord. No. 118-2012, § 7, 9-13-12)

Chapter 10

Health and Food Regulations[1]

Article I. In General

Section 10-1. Sanitary permits—Generally, issuance, revocation.

Section 10-2. Products from counties where no inspection facilities—Application, issuance, revocation.

Section 10-3. Providing inspection personnel.

Section 10-4. Meeting state standards.

Section 10-5. Standards for ice, bakeries and bottling plants.

Section 10-6. Products from counties having inspection facilities.

Section 10-7. Inspection service—Examination of samples.

Section 10-8. No discrimination; assistance to dealers.

Section 10-9. Adulterated food; marking, condemnation.

Section 10-10. Bread loaves to be sold in certain weights only; exceptions.

Section 10-11. Cold storage foods.

Section 10-12. Drugs—Restrictions on dispensing, generally.

Section 10-13. Marihuana.

Section 10-14. Farm produce—Wholesale; list of vehicles, license, penalties.

Section 10-14.1. Gardens.

Section 10-15. Exemption from license fee.

Section 10-16. Fish vending on streets prohibited.

Article II. Food-Handling Establishments

Section 10-17. Definitions.

Section 10-18. Permits.

Section 10-19. Kentucky standards shall be met; where such standards filed.

Section 10-20. Inspection.

Section 10-21. Grade—Determination, posting.

Section 10-22. Same—Minimum, required.

Section 10-23. Same—Regrading.

Section 10-24. Same—New and old establishments; degrading period; revocation of permit, etc.

Section 10-25. Abatement of nuisance.

1. **Charter reference(s)**—Board of health, § 7.16.
Cross reference(s)—Alcoholic beverages, ch. 3; sales of ice regulated, § 13-41 et seq.
State law reference(s)—Food, drugs and poisons, KRS ch. 217.

Section 10-26. Condemnation of utensils and equipment.
Section 10-27. Food handler's school.
Section 10-28. Vehicles and containers to be sanitary.
Section 10-29. Buildings plans to be submitted.
Section 10-30. Insecticide and rodent-control companies.
Section 10-31. Penalties.

Article III. Meat

Section 10-32. Definitions.
Section 10-33. Permit.
Section 10-33.1. Slaughter of animals.
Section 10-34. Supervision of slaughtering.
Section 10-35. Rules and regulations; hours of slaughtering.
Section 10-36. Branding, stamping or marking.
Section 10-37. Veterinarian; supervision of inspectors.
Section 10-38. Inspection outside urban county.
Section 10-39. Inspection upon request; fee.
Section 10-40. Laws and rules of state and state board of health govern.
Section 10-41. Right of entry of inspectors.
Section 10-42. Sanitary facilities in slaughterhouses.
Section 10-43. Slaughterhouses prohibited near residences.
Section 10-44. Inspection and approval of carcass.
Section 10-45. Disposition of unfit carcass and parts.
Section 10-46. Meat not to be left exposed.
Section 10-47. Sale of undiseased slaughtered meat only.
Section 10-48. Protection of meat during transportation.
Section 10-49. Sanitation of delivery vehicles.
Section 10-50. Penalties.

Article IV. Milk

Section 10-51. Definitions.
Section 10-52. Enforcement interpretation.
Section 10-53. Sale of adulterated, misbranded or ungraded milk or milk products prohibited.
Section 10-54. Permit required.
Section 10-55. Labeling.
Section 10-56. Inspection of dairy farms and milk plants.
Section 10-57. Examination of milk and milk products.
Section 10-58. Grading of milk and milk products.
Section 10-59. Grade of milk and milk products which may be sold.

Section 10-60. Reinstatement of permit; supplementary regrading.
Section 10-61. Transferring or dipping milk; delivery containers, cooling; quarantined residence.
Section 10-62. Milk and milk products from points beyond the limits of routine inspection.
Section 10-63. Future dairies and milk plants.
Section 10-64. Notification of disease.
Section 10-65. Procedure when infection is suspected.
Section 10-66. Penalty.

Article I

In General

Sec. 10-1. Sanitary permits—Generally, issuance, revocation.

The following rules govern sanitary permits for sale and operation of places producing/handling foods.

(a) No person shall bring any ice cream, fresh meat, poultry, fish or other fresh meat or meat products into the urban county for sale without a permit from the health officer.

(b) No person shall operate any place where such products are produced, prepared, kept, offered for sale or sold without a permit from the health officer.

(c) No person shall operate soda fountains, bottling factories, or other food production places (except certain originally packaged foods) without a permit from the health officer.

(d) Permits are issued free by the health officer subject to board approval and sanitary compliance.

(e) When unsanitary conditions exist, permits may be revoked after notice and opportunity to remedy and appeal.

(f) Payment of license fees does not substitute for required sanitary permit; violations fined and each day is a separate offense.

Sec. 10-2. Products from counties where no inspection facilities—Application, issuance, revocation.

(a) Permits under this section apply to manufacturers/distributors in counties lacking full-time inspection facilities.

(b) Producers/distributors must apply to the health officer; permits issued only if sections 10-2—10-5 are complied with.

(c) Permits may be revoked for failure to comply with these requirements.

Sec. 10-3. Providing inspection personnel.

The Lexington-Fayette County Board of Health may require compensation from permittees to provide sufficient inspection personnel for protection of consumers.

Cross reference(s)—Milk, § 10-52; license for milk distributor, § 13-13.

Sec. 10-4. Meeting state standards.

Manufacturers (other than milk) must meet state board of health requirements for their establishment types for permits under §10-2.

Sec. 10-5. Standards for ice, bakeries and bottling plants.

Requirements for production, handling, distribution and supervision of ice, bakeries and bottling plants shall follow Board policies; water used must meet purity standards.

Cross reference(s)—License to sell ice, § 13-41.

Sec. 10-6. Products from counties having inspection facilities.

Sanitary certification from counties with full-time health departments or federal inspection will be accepted when standards meet §10-5 requirements.

Sec. 10-7. Inspection service—Examination of samples.

(a) Dairymen/food dealers shall deliver representative samples for examination at market price upon request by the health officer.

(b) No person shall tamper with supplied samples to affect analysis results.

Cross reference(s)—License, § 13-13

Sec. 10-8. No discrimination; assistance to dealers.

(a) Inspection work shall not give special advantage to any individual or firm.

(b) Inspectors and staff shall, as far as possible, assist dealers in locating causes of trouble; assistance isn't for private advertisement.

(c) Violations subject to fines and additional penalties including refusal of permit or discharge for employees.

Sec. 10-9. Adulterated food; marking, condemnation.

(a) Adulterated or dangerous foods shall be tagged/quarantined and not removed until authorized; removal in violation is penalized.

(b) Health officer shall petition for condemnation and provide owners a hearing.

(c) If court finds against owner, products destroyed at owner's expense and other costs taxed accordingly.

Sec. 10-10. Bread loaves to be sold in certain weights only; exceptions.

Loaves must be sold in prescribed weights or labeled with actual weight; rules and tolerances may be promulgated by license inspector.

Sec. 10-11. Cold storage foods.

(a) Cold storage animal products must be labeled/branded to show cold storage, with exceptions for in-transit preservation.

(b) Retailers must have sufficient refrigeration; products must not be exposed to warm temperatures.

(c) Products removed from cold storage, exposed and returned to storage shall not be resold for human consumption.

(d) Labeling and signage requirements apply throughout distribution chain; restaurants/hotels must disclose stored products on menus.

(e) Violations are misdemeanors with fines and/or imprisonment.

Sec. 10-12. Drugs—Restrictions on dispensing, generally.

(a) Sale/gifting of morphine, opium, cocaine, chloral, etc. is unlawful except on written prescription of a licensed physician.

(b) Pharmacists must label packages and keep the prescription pasted in a book open to police, coroner, and board of health.

(c) Prescriptions shall not be filled a second time unless reendorsed by the original physician.

(d) Violations are misdemeanors with fines and confinement.

Cross reference(s)—Driving while under influence, § 14-16. State law: KRS ch.217.

Sec. 10-13. Marihuana.

(a) Unlawful to give/possess Cannabis indica, Cannabis sativa, marihuana, etc., except when obtained by prescription from licensed pharmacist/physician.

(b) Unlawful to offer for sale, sell, deliver, possess with intent to sell, or manufacture such preparations, except licensed pharmacists/physicians for prescription sale.

(c) Violations of (a) penalized by fine and/or imprisonment.

(d) Violations of (b) carry higher fines and potential imprisonment.

Sec. 10-14. Farm produce—Wholesale; list of vehicles, license, penalties.

(a) Wholesale farm product sellers must obtain license and list vehicles operated in business.

(b) Violations fined upon conviction per offense.

Sec. 10-14.1. Gardens.

(a) Primary purpose of community and market gardens is sustainable local food production.

(b) Community gardens permitted on any parcel subject to federal/state/local regulations.

(c) Market gardens regulated by LFUCG Zoning Ordinance.

(d) Definitions provided for community garden etc.; community garden defined as area less than 5 acres cultivated by a group for personal/group use or sales.

(e) Operational rules include: no on-site retail sales (community gardens), signage, hours (sunrise to 1/2 hour after sunset), accessory structure limits, setbacks, composting and storage rules, no livestock, limited mechanized equipment, fencing standards, and more.

(Ord. No. 43-2016, § 1, 4-7-16; Ord. No. 56-2017, § 2, 4-27-17)

Sec. 10-15. Exemption from license fee.

Farmers/market gardeners selling from house to house produce of their own farms are exempt from the regulatory license fee in §13-13.

Sec. 10-16. Fish vending on streets prohibited.

(a) No person shall vend fish on streets of the urban county.

(b) Violations fined and each day constitutes a separate offense.

Article II

Food-Handling Establishments

Sec. 10-17. Definitions.

Definitions:

Food-handling establishment = place where food/beverage is prepared, stored, sold, etc.

Health officer = health officer of urban county;

Sec. 10-18. Permits.

(a) Health officer issues permits to compliant food-handling establishments.

(b) Unlawful to operate without such permit.

(c) Permits automatically revoked when business closed 30 days or more; reopening requires new permit per §10-24.

(d) Health officer may temporarily suspend permit and must provide notice and a board meeting within 24 hours to 3 days.

(e) Before suspension, permit holder given at least one day's notice and opportunity to be heard, with right to counsel.

Sec. 10-19. Kentucky standards shall be met; where such standards filed.

Grading and inspection follow "Instructions for the Grading of Food-Handling Establishments and Hotels, 1949" as adopted by the state; copies on file with council clerk, chief inspector, and health officer.

Sec. 10-20. Inspection.

(a) Each food-handling establishment shall be inspected at least twice each grading period or once every six months.

(b) One copy of inspection posted/given to proprietor; another copy filed with health department.

Sec. 10-21. Grade—Determination, posting.

(a) Grades determined at least every six months based on two inspections.

(b) Placard showing grade posted in each establishment in conspicuous place.

Sec. 10-22. Same—Minimum, required.

No establishment without grade A or B permitted to operate except during degrading periods not exceeding 30 days per §10-24.

Sec. 10-23. Same—Regrading.

(a) If lower grade becomes necessary after two successive inspections, the health officer shall lower the grade and enforce placarding.

(b) Managers may apply for regrading.

(c) Reinspection timeline described; regrading granted if findings justify.

Sec. 10-24. Same—New and old establishments; degrading period; revocation of permit, etc.

New establishments must be graded A or B before opening; permit suspension, degrading period (30 days) and revocation processes described in detail.

Sec. 10-25. Abatement of nuisance.

Any food-handling establishment operating without a permit is a nuisance and subject to summary abatement.

Sec. 10-26. Condemnation of utensils and equipment.

Utensils or equipment unfit for food use may be condemned by the health officer and marked with a condemnation seal.

Sec. 10-27. Food handler's school.

Health officer authorized to conduct food-handling schools and require attendance of proprietors, managers and employees.

Sec. 10-28. Vehicles and containers to be sanitary.

All vehicles/containers used for transportation/storage/sale of food must be kept clean and protected from contamination and provided with proper refrigeration for perishables.

Sec. 10-29. Buildings plans to be submitted.

Plans for remodeling or constructing buildings to be used for food-handling establishments must be submitted in triplicate to the health officer for approval in accordance with state rules.

Sec. 10-30. Insecticide and rodent-control companies.

Roach/rodent/pest control companies must obtain a permit and comply with food-handling regulations where poisonous materials are used.

Sec. 10-31. Penalties.

Operating without a permit or violating provisions of this article is a misdemeanor with fines up to $100; each day a separate offense.

Article III

Meat

Sec. 10-32. Definitions.

(a) **Health officer** means the health officer of the urban county board of health charged with enforcing this article.

(b) Terms **processing** and **manufacture** include comminuting, grinding, drying, cooking, smoking, pickling, rendering, canning, etc.

Sec. 10-33. Permit.

(a) No person shall slaughter or process meat in the urban county without a board of health permit, except those under USDA supervision or equivalent municipalities.

(b) Permit remains in effect until revoked for noncompliance and is nontransferable.

(c) Health officer shall revoke permits issued under this section for violations.

Sec. 10-33.1. Slaughter of animals.

(a) Definition: **slaughter** = kill/butcher an animal for food.

(b) No person shall slaughter within the urban services boundary in any area visible at ground level from street/sidewalk/neighborhood properties.

(c) Violations punishable by fine not more than $100.

(Ord. No. 231-2009)

Sec. 10-34. Supervision of slaughtering.

Slaughtering must be under lay meat inspector supervision except in emergency; ante/post-mortem inspection required prior to meat entering inspected supply.

Sec. 10-35. Rules and regulations; hours of slaughtering.

(a) Board of health adopts reasonable rules/regulations necessary to carry out this article including hours of slaughtering.

(b) Hours established shall be reasonable considering business nature.

Sec. 10-36. Branding, stamping or marking.

(a) No person shall display/sell meat lacking required inspection marks from Board, USDA, or approved municipalities.

(b) Meat without marks shall be destroyed or excluded under health officer direction.

(c) Forgery/alteration of marks is a misdemeanor punished per §10-50.

(d) Inspection stamps and marks under control of lay meat inspector.

Sec. 10-37. Veterinarian; supervision of inspectors.

(a) Board of health shall appoint a licensed veterinarian to supervise lay inspectors and inspect plants.

(b) Veterinarian's decision on questionable carcasses is final.

Sec. 10-38. Inspection outside urban county.

Board of health not required to furnish inspection service outside urban county limits.

Sec. 10-39. Inspection upon request; fee.

On purchaser's request, lay meat inspector may inspect animals (ante/post-mortem) for $15 fee payable to the board of health.

Sec. 10-40. Laws and rules of state and state board of health govern.

If conflicts exist with state law or state board rules regarding inspection/sanitation, the state laws and rules govern.

Sec. 10-41. Right of entry of inspectors.

Meat inspectors and assistants authorized to enter premises, vehicles, or marketplaces to inspect animals or meat as necessary.

Sec. 10-42. Sanitary facilities in slaughterhouses.

Slaughterhouses shall have adequate sanitary facilities per state board headings (quarantine pen, floors, ventilation, toilets, water, waste disposal, etc.).

Sec. 10-43. Slaughterhouses prohibited near residences.

Unlawful to erect/maintain slaughterhouse within 100 yards of any residence; violation fined per day.

Sec. 10-44. Inspection and approval of carcass.

(a) No carcass shall be branded until inspected and passed.

(b) Viscera and parts removed when inspector absent must be kept together and marked for later inspection.

Sec. 10-45. Disposition of unfit carcass and parts.

Any diseased carcass/parts shall be slashed and saturated with kerosene and not sold for human food.

Sec. 10-46. Meat not to be left exposed.

No fresh/cured meat shall be left exposed to moisture, soot, dust, or flies for exhibition purposes.

Sec. 10-47. Sale of undiseased slaughtered meat only.

Unlawful to sell flesh of animals dying other than by slaughter or slaughtered when diseased.

Sec. 10-48. Protection of meat during transportation.

Meat transported must be fully protected from contamination by covered refrigerated vehicles or clean protective coverings.

Sec. 10-49. Sanitation of delivery vehicles.

Delivery vehicles must be kept sanitary; dirty coverings prohibited from contact with meat.

Sec. 10-50. Penalties.

(a) Violations of sections 10-32—10-39 punishable by $5–$500 fines per day.

(b) Violations of specified sections punishable by $5–$100 fines per day.

(c) Violations of §10-43 fined $10 per day.

(d) Violations of §10-47 fined $5–$50.

Article IV

Milk

Sec. 10-51. Definitions.

Adulterated and **misbranded milk and milk products** shall mean any milk or cream to which water has been added, or any milk or milk product which contains any unwholesome substance, or which if defined in this article, does not conform with its definition. Any milk or milk product which carries a grade label, unless such grade label has been awarded by the health officer and not revoked, or which fails to conform in any other respect to the statement on the label shall be deemed misbranded.

And/or. Where the term "and/or" is used, "and" shall apply where possible; otherwise "or" shall apply.The following definitions shall apply in the interpretation and the enforcement of this article:

Average bacterial plate count and direct microscopic count shall mean the logarithmic average and average cooling temperature shall mean the arithmetic average, of the respective tests results of the last four (4) consecutive samples, taken upon separate days, irrespective of the six-month period referred to in section 10-57.

Buttermilk is a fluid product resulting from the churning of milk or cream. It contains not less than eight and one-fourth (8¼) percent milk solids-not-fat.

(i) Cultured buttermilk is a fluid product resulting from the souring or treatment, by a lactic acid or other culture, of pasteurized skim milk, or pasteurized reconstituted skim milk. It contains not less than eight and one-fourth (8¼) percent milk solids-not-fat.

(ii) Cultured milk is a fluid or semifluid product resulting from the souring or treatment, by a lactic acid or other culture of pasteurized milk, pasteurized reconstituted milk, or pasteurized concentrated milk. It contains not less than eight and one-fourth (8¼) percent milk solids-not-fat and not less than three and one-fourth (3¼) percent milk fat.

Concentrated milk is a fluid product, unsterilized and unsweetened, resulting from the removal of a considerable portion of the water from milk. When recombined with water, in accordance with instructions printed on the container, the resulting product conforms with the standards for milk fat and solids-not-fat of milk as defined above.

(i) Concentrated milk products means and includes homogenized concentrated milk, vitamin D concentrated milk, concentrated skim milk, concentrated flavored milk, concentrated flavored drink, and similar concentrated products made from concentrated milk or concentrated skim milk, as the case may be, and which, when combined with water in accordance with instructions printed on the container, conform to the definitions of the corresponding milk products in this section.

Dairy or dairy farm is any place or premises where one (1) or more cows are kept, a part or all of the milk or milk products from which is sold or offered for sale.

(i) Producer-dairy is any dairy farm which sends milk or cream to a milk plant for processing.

(ii) Milk hauler is any person, other than a milk producer or a milk plant employee, who transports milk and/or milk products to and from a milk plant or a collecting point.

Health officer shall mean the health authority of the urban county or his authorized representative.

Homogenized milk is milk which has been treated in such a manner as to ensure breakup of the fat globules to such an extent that after forty-eight (48) hours of quiescent storage, no visible cream separation occurs on the milk, and the fat percentage of the top one hundred (100) milliliters of milk in a quart bottle, or of proportionate volume in containers of other sizes, does not differ by more than ten (10) percent of itself from fat percentage of the remaining milk as determined after thorough mixing. The word "milk" shall be interpreted to include homogenized milk.

Milk is the lacteal secretion, practically free from colostrum, obtained by the complete milking of one (1) or more healthy cows, which contains not less than eight and one-fourth (8¼) percent milk solids-not-fat and not less than three and one-fourth (3¼) percent milk fat. The word "milk" shall be interpreted to include goat milk, unless the context otherwise requires.

(i) Goat milk is the lacteal secretion, practically free from colostrum, obtained by the complete milking of healthy goats.

Milk distributor is any person who offers for sale or sells to another any milk or milk products for human consumption as such.

(a) Producer-distributor is a milk producer who is also a milk distributor.

Milk fat or **butterfat** is the fat of milk.

(i) Cream is a portion of milk which contains not less than ten (10) percent milk fat.

(ii) Sour cream is cream, the acidity of which is more than two-tenths (0.2) percent expressed as lactic acid.

(iii) Light cream, coffee cream, or table cream is cream which contains less than thirty (30) percent milk fat.

(iv) Whipping cream is cream which contains not less than thirty (30) percent milk fat.

(v) Light whipping cream is cream which contains less than fifty (50) percent milk fat.

(vi) Heavy cream or heavy whipping cream is cream which contains not less than thirty-six (36) percent milk fat.

(vii) Half-and-half is a product consisting of a mixture of milk and cream which contains not less than eleven and five-tenths (11.5) percent milk fat.

(viii) Reconstituted or recombined half-and-half is a product resulting from the combination of reconstituted milk or reconstituted skim milk with cream or reconstituted cream which contains not less than eleven and five-tenths (11.5) percent milk fat.

(ix) Whipped cream is cream to which a harmless gas has been added to cause whipping of the product. It may also contain sugar, other harmless flavoring and a harmless stabilizer.

Milk plant is any place, premises, or establishment where milk or milk products are collected, handled, processed, stored, pasteurized, bottled or prepared for distribution, except an establishment where milk for milk products are sold at retail only.

Milk producer is any person who owns or controls one (1) or more cows, a part or all of the milk or milk products from which is sold, or offered for sale.

Milk products shall include cream, sour cream, half-and-half, reconstituted milk products, skim milk, nonfat milk, flavored milk, flavored drink, flavored reconstituted milk, flavored reconstituted drink, buttermilk, cultured buttermilk, vitamin D milk, reconstituted or recombined milk, reconstituted cream, reconstituted skim milk, homogenized milk and others designated as a milk product by the health officer.

Nonfat milk is milk from which substantially all milk fat has been removed.

Pasteurization shall mean the process of heating every particle of milk or milk products to at least one hundred forty-three (143) degrees Fahrenheit and holding it at such temperature continuously for at least thirty (30) minutes, or at least one hundred sixty-one (161) degrees Fahrenheit and holding it at such temperature continuously for at least fifteen (15) seconds, in approved and properly operated equipment. Nothing contained in this definition shall be construed as barring any other process which has been demonstrated to be equally efficient and which is approved by the state board of health.

Person shall mean any individual, partnership, corporation, company, firm, trustee or association.

Reconstituted or recombined milk is a product which results from the recombining of milk constituents with water and which complies with the standards of milk fat and solids-not-fat of milk defined herein.

(i) Reconstituted or recombined cream is a product which results from the combination of dry cream, butter or milk fat, with cream, milk, skim milk, or water, and which complies with the standards of cream as defined herein.

(ii) Reconstituted or recombined skim milk is a product which results from the recombining of skim milk constituents with water, and which contains not less than eight and one-fourth (8¼) percent milk solids-not-fat.

Skim milk is milk from which a substantial portion of the milk fat has been removed.

Vitamin D milk is milk of which the vitamin D has been increased by an approved method to at least four hundred (400) U.S.P. units per quart.

Sec. 10-52. Enforcement interpretation.

This article enforced per "Milk Ordinance and Code—1953 Recommendations of the Public Health Service"; in case of conflict this article governs.

Sec. 10-53. Sale of adulterated, misbranded or ungraded milk or milk products prohibited.

No person shall produce, sell, offer for sale, or have with intent to sell any adulterated, misbranded or ungraded milk product within urban county; emergency exceptions for ungraded pasteurized milk may be authorized by health officer.

Sec. 10-54. Permit required.

Unlawful to bring/sell milk products without a health officer permit; permit required for milk distributors and milk plant operators; permits nontransferable and may be suspended or revoked following hearing.

Sec. 10-55. Labeling.

All containers must be plainly labeled with contents name, pasteurized/raw designation, grade, producer, vitamin D units, recombination info, and other required data; labels must be approved and not misleading.

Sec. 10-56. Inspection of dairy farms and milk plants.

(a) Prior to permit and at least once every six months thereafter, health officer shall inspect all dairies and milk plants supplying the urban county.

(b) Inspection report posting and filing requirements.

(c) Producers/distributors must permit access and furnish records upon request.

Sec. 10-57. Examination of milk and milk products.

Sampling frequency, laboratory methods, and follow-up sampling rules are specified; violations of bacterial or coliform limits trigger notice and additional sampling and potential suspension or court action.

Sec. 10-58. Grading of milk and milk products.

(a) At least once every six (6) months, the health officer shall announce the grades of all milk and milk products delivered by all distributors and ultimately consumed within the urban county. Grades shall be based on the following standards, the grading of milk products being identical with the grading of milk, except that the bacterial count standards shall be doubled in the case of cream and half-and-half and shall be omitted in the case of sour cream, buttermilk, cultured buttermilk and cultured milk.

(b) Grade A raw milk for pasteurization is raw milk from producer dairies conforming to the following items of sanitation. The bacterial plate count or the direct microscopic clump count of the milk, as delivered from the farm, shall not exceed 200,000 per millimeter, as determined in accordance with section 10-57.

Item 1R. Cows' health. All milk for pasteurization shall be from herds which are located in a modified accredited tuberculosis-free area, as determined by the Bureau of Animal Industry, United States Department of Agriculture, and which have been tested for tuberculosis not more than six (6) years prior to February 3, 1955, and at least every six (6) years after such test; provided, herds located in an area that fails to maintain such accredited status, or that has an incidence of bovine tuberculosis in excess of two-tenths (0.2) percent, shall have been accredited by such bureau of animal industry as tuberculosis free, or shall have passed an annual tuberculin test. All additions to such herds shall be free from tuberculosis. Such tests and retests shall be made, and any reactors disposed of, in accordance with the latest requirement approved by the Bureau of Animal Industry, United States Department of Agriculture, for tuberculosis-free, accredited herds, in effect on February 3, 1955. A certificate identifying each animal, signed by the veterinarian or attested to by the health officer, shall be evidence of the above test. By February 3, 1955, and thereafter, all milk and milk products for pasteurization shall be from herds certified by the state livestock sanitary authority as following either plan A or plan B approved by the U.S. Bureau of Animal Industry, Department of Agriculture for the eradication of brucellosis. Evidence of this certification shall be filed as directed by the health officer. All additions to the herd shall be brucellosis free. Tests and retests shall be made, and any reactors disposed of, in accordance with the latest requirements approved by the Bureau of Animal Industry, United States Department of Agriculture, in effect on February 3, 1955. A certificate identifying each animal, signed by the veterinarian and the director of the laboratory making the test, and filed as directed by the health officer, shall be evidence of the above tests. Cows which show a complete induration of one (1) quarter or extensive induration in one (1) or more quarters of the udder upon physical examination, whether secreting abnormal milk or not, shall be permanently excluded from the milking herd; provided, this shall not apply in the case of a quarter that is completely dry. Cows giving bloody, stringy or otherwise abnormal milk, but without entire or extensive induration of the udder, shall be excluded from the herd until reexamination shows that the milk has become normal. For other diseases, such tests and examinations as the health officer may require after consultation with state livestock sanitary officials shall be made at intervals and by methods prescribed by him; and any diseased or reactors shall be disposed of as he may require.

Item 2R. Milking barn lighting. A milking barn, stable or parlor shall be provided with adequate light, properly distributed, for both day and night milking.

Item 3R. Milking barn air space and ventilation. Such sections of the milking barn, stable or parlor where cows are kept or milked shall be well ventilated, and shall be so arranged as to avoid overcrowding.

Item 4R. Milking barn floors, animals. The floors and gutters of that portion of the barn, stable or parlor in which cows are milked shall be constructed of concrete or other approved, impervious and easily cleaned material. Floors and gutters shall be graded so as to drain properly and shall be kept clean and in good repair. No swine or fowl shall be permitted in the milking barn, stable or parlor. If horses, dry cows, calves or bulls should be stabled therein, they shall be confined in stalls, stanchions or pens, which shall be kept clean and in good repair.

Item 5R. Milking barn walls and ceilings. The interior walls and ceilings of the milking barn, stable or parlor shall be whitewashed or painted as often as may be necessary, or finished in an approved manner, and shall be kept clean and in good repair. Where there is a second story above the milking barn, stable or parlor, the ceiling shall be tight; if feed should be ground or mixed, or sweet feed should be stored, in a feed room or feed storage space which adjoins the milking space, it shall be separated therefrom by a dusttight partition and door.

Item 6R. Cowyard. The cowyard shall be graded and drained as well as practicable and shall be so kept that there are no standing pools of water nor accumulations of organic waste; provided, that in loading and/or cattle-housing area, manure dropping shall be removed, or clean bedding added, at sufficiently frequent intervals to prevent the accumulation of manure on cows' udders and flanks. Swine shall be kept out.

Item 7R. Manure disposal. All manure shall be removed and stored or disposed of in such manner as best to prevent the breeding of flies therein and the access of cows to piles thereof.

Item 8R. Milkhouse or room construction and equipment. There shall be provided a milkhouse or milk room, in which the cooling, handling and storing of milk and milk products and the washing, bactericidal treatment and the storing of milk containers and utensils shall be done.

(1) The milk house or room shall be provided with a smooth floor, constructed of concrete or other impervious material, maintained in good repair, and graded to provide proper drainage.

(2) It shall have walls and ceilings of such construction as to permit easy cleaning and shall be well painted or finished in an approved manner.

(3) It shall be well lighted and well ventilated.

(4) It shall have all openings effectively screened, including outward opening self-closing doors, unless other effective means are provided to prevent the entrance of flies.

(5) It shall be used for no purpose other than those specified above, except as may be approved by the health officer; it shall not open directly into a milking barn or stable, nor into any room used for domestic purposes; it shall be provided with adequate facilities for heating water to clean uten-

sils; and it shall be equipped with two-compartment, stationary wash and rinse vats. The cleaning and other operations shall be located and conducted so as to prevent any contamination of the milk or of cleaned equipment.

Item 9R. Milkhouse or room cleanliness, flies. The floors, walls, ceilings and equipment of the milkhouse or room shall be kept clean at all times. All necessary means for the elimination of flies shall be used.

Item 10R. Toilet. Every dairy farm shall be provided with one (1) or more sanitary toilets, conveniently located, and properly constructed, operated and maintained so that the waste is inaccessible to flies and does not pollute the surface soil nor contaminate any water supply.

Item 11R. Water supply. Water for all dairy purposes shall be from a supply properly located, protected and operated, and shall be easily accessible, adequate and of a safe, sanitary quality.

Item 12R. Utensils, construction. All multiuse containers, equipment and other utensils used in the handling, storage or transportation of milk or milk products shall be made of smooth, nonabsorbent, noncorrodible, nontoxic material; shall be so constructed as to be easily cleaned; and shall be kept in good repair. Joints and seams shall be welded or soldered flush. Woven wire cloth shall not be used for straining milk. When milk is strained, strainer pads shall be used and shall not be reused. All milk pails shall be of seamless, hooded type. All single-service articles used shall have been manufactured, packaged, transported and handled in a sanitary manner.

Item 13R. Utensils, cleaning. All multiuse containers, equipment and other utensils used in the handling, storage or transportation of milk and milk products shall be thoroughly cleaned after each usage.

Item 14R. Utensils, bactericidal treatment. All multiuse containers, equipment and other utensils used in the handling, storage or transportation of milk or milk products shall, before each usage, be subjected effectively to an approved bactericidal process utilizing steam, hot water, chemicals or hot air.

Item 15R. Utensils, storage. All containers and other utensils used in the handling, storage or transportation of milk or milk products, unless stored in bactericidal solutions, shall be stored so as to drain dry, and so as not to become contaminated before being used.

Item 16R. Utensils, handling. After bactericidal treatment, containers and other milk and milk products utensils shall be handled in such manner as to prevent contamination of any surface with which milk or milk products come into contact.

Item 17R. Milking, udders and teats, abnormal milk. Milking shall be done in the milking barn, stable or parlor. The udders and teats of all milking cows shall be clean and wiped with an approved bactericidal solution at the time of milking. Abnormal milk shall be kept out of the milk supply and shall be so handled and disposed of as to preclude the infection of the cows and contamination of milk utensils.

Item 18R. Milking, flanks. The flanks, bellies and tails of all milking cows shall be free from visible dirt at the time of milking. All brushing shall be completed before milking commences.

Item 19R. Milkers' hands. Milkers' hands shall be washed clean, rinsed with an effective bactericidal solution, and dried with a clean towel immediately before milking and immediately after any interruption in the milking operation. Wet-hand milking is prohibited. Convenient facilities shall be provided for the washing of milker's hands. No person with an infected cut or lesion on hands or arms shall milk cows or handle milk or milk utensils.

Item 20R. Clean clothing. Milkers and milk handlers shall wear clean outer garments while milking or handling milk, milk products, containers, utensils or equipment.

Item 21R. Milk stools. Milk stools and surcingles shall be kept clean.

Item 22R. Removal of milk. Each pail or can of milk shall be removed immediately to the milkhouse or straining room. No milk shall be strained or poured in the barn unless it is protected from flies and other contamination.

Item 23R. Cooling. Milk for pasteurization, unless delivered to a milk plant or receiving station within two (2) hours after completion of milking, shall be cooled immediately to fifty (50) degrees Fahrenheit or less and shall be maintained at that temperature as determined in accordance with section 10-57 until delivered.

Item 24R. Vehicles and surroundings. All vehicles used for the transportation of milk or milk products shall be constructed and operated so as to protect their contents from sun, from freezing and from contamination. The immediate surroundings of the dairy shall be kept in a clean neat condition.

(c) Grade A pasteurized milk is grade A raw milk for pasteurization which has been pasteurized, cooled and placed in a final container in a milk plant which conforms with the items of sanitation described below. In all cases the milk shall show efficient pasteurization as evidenced by satisfactory phosphatase test; and at no time after pasteurization and before delivery shall the milk have a bacterial plate count exceeding thirty thousand (30,000) per millimeter, or coliform count exceeding ten (10) per milliliter, as determined in accordance with section 10-57; provided, the raw milk at no time between dumping and pasteurization shall have a bacterial plate count or direct microscopic clump count exceeding four hundred thousand (400,000) per milliliter.

The grading of a pasteurized milk supply shall include the inspection of receiving and collection stations with respect to compliance with items 1P to 15P inclusive, and 17P, 19P, 21P, 22P and 23P, except that the partitioning requirement of items 5P shall not apply.

Item 1P. Floors. The floors of all rooms in which milk or milk products are handled or stored, or in which milk utensils are washed, shall be constructed of concrete or other equally impervious and easily cleaned material, and shall be smooth, properly drained, provided with trapped drains, and kept clean and in good repair.

Item 2P. Walls and ceilings. Walls and ceilings of rooms in which milk or milk products are handled or stored, or in which milk utensils are washed, shall have a smooth, washable, light-colored surface, and shall be kept clean and in good repair.

Item 3P. Doors and windows. Unless other effective means are provided to prevent the access of flies, all openings to the outer air shall be effectively screened, and all doors shall be self-closing.

Item 4P. Lighting and ventilation. All rooms shall be well lighted and well ventilated.

Item 5P. Miscellaneous protection from contamination. The various milk plant operations shall be located and conducted so as to prevent any contamination of the milk, or of cleaned equipment. All necessary means shall be used for the elimination of flies, other insects and rodents. There shall be separate rooms for: (1) the pasteurizing, processing, cooling and bottling operations and (2) the washing and bactericidal treatment of containers. Cans of raw milk shall not be unloaded directly into a pasteurizing room. Rooms in which milk or milk products, cleaned utensils or containers are handled or stored shall not open directly into stable or living quarters.

Item 6P. Toilet facilities. Every milk plant shall be provided with toilet facilities conforming with the ordinances of the urban county government. Toilet rooms shall not open directly into any room in which milk or milk products, equipment or containers are handled or stored. The doors of all toilet rooms shall be self-closing. Toilet rooms shall be kept in a clean condition, in good repair and well ventilated. A placard on which section 10-64 is printed, and a sign directing employees to wash their hands before returning to work, shall be posted in all toilet rooms used by employees.

Item 7P. Privies, earth closets. Where privies or earth closets are permitted and used they shall be separate from the building and shall be of a sanitary type, located, constructed and operated in conformity with the requirements of item 10R.

Item 8P. Hand-washing facilities. Convenient handwashing facilities shall be provided, including hot and cold running water, soap and approved sanitary towels. Handwashing facilities shall be kept clean. The use of a common towel is prohibited. No employee shall resume work after using the toilet room without having washed his or her hands.

Item 9P. Sanitary piping. All piping used to conduct milk or milk products shall be "sanitary milk piping" of a type which can be easily cleaned. Pasteurized milk and milk products shall be conducted from one piece of equipment to another only through sanitary milk piping.

Item 10P. Construction and repair of containers and equipment. All multiuse containers and equipment with which milk and milk products come into contact shall be of smooth, impervious, noncorrodible, nontoxic material; shall be so constructed and so located as to be easily cleaned; and shall be kept in good repair. All single-service containers, closures, gaskets and other articles used shall have been manufactured, packaged, transported and handled in a sanitary manner.

Item 11P. Disposal of waste. All waste shall be properly disposed of. All plumbing and equipment shall be so designed and so installed as to prevent contamination of milk equipment by backflow.

Item 12P. Cleaning and bactericidal treatment of containers and equipment. All milk and milk product containers and equipment, except single-service containers, shall be thoroughly cleaned after each usage. All such containers shall be subjected effectively to an approved bactericidal process after each cleaning, and all equipment immediately before each usage. When empty, and before being returned to a producer by a milk plant, each container shall be thoroughly cleaned and subjected to an effective, approved, bactericidal process.

Item 13P. Storage of containers and equipment. After bactericidal treatment, all bottles, cans and other multiuse milk or milk products containers and equipment shall be transported and stored in such a manner as to be protected from contamination.

Item 14P. Handling of containers and equipment. Between bactericidal treatments and during usage, containers and equipment shall not be handled or operated in such manner as to permit contamination of the milk. Pasteurized milk or milk products shall not be permitted to come into contact with equipment with which unpasteurized milk or milk products have been in contact unless the equipment has first been thoroughly cleaned and effectively subjected to an approved bactericidal process.

Item 15P. Storage of caps, parchment paper and single-service containers. Milk bottles, caps or cap stock, parchment paper for milk cans, single-service containers, and gaskets shall be purchased and stored only in sanitary tubes, wrapping or cartons; shall be kept therein in a clean, dry place until used; and shall be handled in a sanitary manner.

Item 16P. Pasteurization. Pasteurization shall be performed as described in section 10-51(11).

Item 17P. Cooling. All milk and milk products received for pasteurization shall be cooled immediately in approved equipment to fifty (50) degrees Fahrenheit, or less, and shall be maintained at that temperature until pasteurized, unless they are to be pasteurized within two (2) hours after receipt; and all pasteurized milk and milk products, except those to be cultured, shall be cooled immediately in approved equipment to a temperature of fifty (50) degrees Fahrenheit, or less, and shall be maintained thereat until delivery, as determined in accordance with section 10-57.

Item 18P. Bottling and packaging. Bottling and packaging of milk and milk products shall be done at the place of pasteurization in approved mechanical equipment.

Item 19P. Overflow milk. Overflow milk or milk products shall not be sold for human consumption.

Item 20P. Capping. Capping of milk and milk products shall be done in a sanitary manner by approved mechanical equipment. Hand capping is prohibited. The cap or cover shall protect the pouring lip to at least its largest diameter.

Item 21P. Personnel health. The health officer, or a physician authorized by him, shall examine and take a careful morbidity history of each person connected with a pasteurization plant, or about to be employed by one, whose work will bring him into contact with the processing, handling, storage or transportation

of milk, milk products, containers or equipment. If such examination or history should suggest that such a person may be a carrier of or infected with the organisms of typhoid or paratyphoid fever, or any other communicable disease likely to be transmitted through milk, he shall secure appropriate specimens of body discharges and cause them to be examined in a laboratory approved by him or the board of health for such examination; and if the results justify, such person shall be barred from such employment.

Item 22P. Personnel cleanliness. All persons who come into contact with milk, milk products, containers or equipment shall wear clean outer garments and shall keep their hands clean at all times while engaged in such work.

Item 23P. Vehicles. All vehicles used for the transportation of milk or milk products shall be constructed and operated so as to protect their contents from the sun, from freezing and from contamination. All vehicles used for the distribution of milk or milk products shall have the name of the distributor prominently displayed thereon. Milk tank cars and tank trucks shall comply with the construction, cleaning, bactericidal treatment, storage and handling requirements of items 5P, 10P, 12P and 14P. While containing milk, cream or milk products, they shall be sealed and labeled in an approved manner. For each tank shipment, a bill of lading containing all necessary information shall be prepared in triplicate and shall be kept on file by the shipper, the consignee and the carrier for a period of six (6) months for the information of the health officer.

Milk tank cars and tank trucks shall comply with the construction, cleaning, bactericidal treatment, storage and handling requirements of items 5P, 10P, 12P and 14P. While containing milk, cream or milk products, they shall be sealed and labeled in an approved manner. For each tank shipment, a bill of lading containing all necessary information shall be prepared in triplicate and shall be kept on file by the shipper, the consignee and the carrier for a period of six (6) months for the information of the health officer.

Sec. 10-59. Grade of milk and milk products which may be sold.

No milk or products sold to final consumer or similar establishments except grade A pasteurized milk; health officer authorized to suspend permits, degrade products, or institute court action.

(Ord. No. 3642, § 1, 6-20-57)

Sec. 10-60. Reinstatement of permit; supplementary regrading.

Procedures for regrading/reinstatement when grade lowered and conditions corrected are described, including additional sampling and inspections.

Sec. 10-61. Transferring or dipping milk; delivery containers, cooling; quarantined residence.

Restrictions on transferring/dipping milk, container requirements, delivery temperature rules, prohibition on wet box storage, and special delivery rules for quarantined residences.

Sec. 10-62. Milk and milk products from points beyond the limits of routine inspection.

Such products may not be sold unless produced/pasteurized under substantially equivalent provisions, enforcement effective, and area awarded an adequate rating.

Sec. 10-63. Future dairies and milk plants.

New/reconstructed/altered dairies and milk plants must meet Grade A construction requirements and submit plans to the health officer prior to work.

Sec. 10-64. Notification of disease.

No person with communicable disease or carrier shall work in dairy/milk plant capacities that bring them in contact with milk products; suspected communicable disease must be reported immediately to health officer.

Sec. 10-65. Procedure when infection is suspected.

The health officer may exclude persons from milk handling, exclude milk supply from distribution, and require medical/bacteriological exams when infection transmission is suspected.

Sec. 10-66. Penalty.

Violations of this article are punishable by fines of $100–$500 and/or confinement for 5–30 days; each violation constitutes a separate offense.

Chapter 11

Health and Sanitation[1]

Article I. In General

Section 11-1. Cemeteries—Not to be established without authority.

Section 11-2. Same—All human burials to be therein.

Section 11-3. Cistern, unlawful use of.

Sections 11-4--11-14. Reserved.

Article II. Diseases

Division 1. Generally

Section 11-15. Powers or duties of health board; prevention; treatments; penalty.

Section 11-16. Reports—Duty of heads of families and health board.

Section 11-17. Same—By physicians.

Section 11-18. Medical examination of suspected persons.

Section 11-19. Vaccination.

Section 11-20. Quarantine—Disinfection of premises.

Section 11-21. Same—Against other localities.

Section 11-24. Same—Report of, on premises.

Section 11-25. Attendance at public schools of pupils afflicted or exposed to disease prohibited.

Section 11-27. Eyes of new-born babies; inflammation or discharge; report; penalty.

Section 11-28. Tuberculosis.

Section 11-29. Hospitals; management or supervision.

Section 11-30. Spitting on sidewalk or public place—Penalty.

Section 11-31. Same—Notices to be posted.

Section 11-32. Violations and penalties.

Division 2. Venereal Diseases

Section 11-33. Declared dangerous to the public health.

Section 11-34. To be reported.

Section 11-35. Patients to be given information; notice of health officer.

1. **Charter reference(s)**—Board of health, § 7.16.

Cross reference(s)—Alcoholic beverages, ch. 3; animals and fowl, ch. 4; food and drugs, ch. 10; depositing rubbish in parks, §§ 14-50, 14-51; noise disturbances, § 14- 71; specific acts of noise disturbance, § 14-72; sewage, garbage and waste, ch. 16; sweeping or vegetable matter on streets, burning leaves, etc., § 17-32.

State law reference(s)—Public health, KRS ch. 210 et seq.

Section 11-36. Investigation of cases.
Section 11-37. Protection of others from infection.
Section 11-38. Quarantine—Of sufferers or suspects.
Section 11-39. Same—Termination.
Section 11-40. Change of physicians; procedure.
Section 11-41. Druggists forbidden to prescribe for.
Section 11-42. Certificates of freedom from; giving regulated.
Section 11-43. Prostitution to be repressed.
Section 11-44. Spread of, unlawful.

Article I

In General

Sec. 11-1. Cemeteries—Not to be established without authority.

All the cemeteries used for burial purposes and authorized in pursuance of the laws and ordinances of the urban county government, are hereby authorized to receive and inter bodies of deceased persons, and it shall be unlawful for any person to establish or maintain within the urban county any burying ground without having been authorized to do so by ordinance.

Any person violating this section shall be fined not less than twenty dollars ($20.00) nor more than one hundred dollars ($100.00) for each offense, and each interment of a deceased person in violation hereof shall constitute a separate offense.

Sec. 11-2. Same—All human burials to be therein.

It shall be unlawful to inter the body of any deceased person in any place in the urban county except some public cemetery authorized by law. Any person violating this section shall be fined in any sum not exceeding one hundred dollars ($100.00).

Sec. 11-3. Cistern, unlawful use of.

If any person shall take water from a public cistern for any purpose other than to extinguish fires, or shall open or leave uncovered a public cistern or catch basin, he shall be fined twenty-five dollars ($25.00) for each offense.

Secs. 11-4--11-14. Reserved.

Article II

Diseases

Division 1

Generally

Sec. 11-15. Powers or duties of health board; prevention; treatments; penalty.

(a) The board of health, commissioner of health, health officer, and officer of the day shall have the power and authority, for and on behalf of the urban county government, and it shall be its duty, to inaugurate and execute, and to require the heads of families and other persons to execute, such sanitary regulations as the local

board of health, commissioner of health, health officer, or officer of the day may consider expedient to prevent the outbreak and spread of epidemic and communicable diseases, including, but not limited to, venereal diseases, Cholera, Botulism, Diphtheria, infectious Tuberculosis, Plague, Smallpox, Yellow Fever, Viral Hemorrhagic Fevers (Lassa, Marburg, Ebola, Crimean-Congo, South American, and others not yet isolated or named), Severe Acute Respiratory Syndrome (SARS), Swine Influenza and Pandemic Influenza, and to this end may bring the infected population under prompt and proper treatment during premonitory or other stages of such diseases; and they are empowered to go upon and inspect any premises which they may believe are in an unclean or infectious condition.

(b) Any person who shall fail or refuse after written notice from the board of health, commissioner of health, health officer, or officer of the day to observe or obey the written request of the board of health, commissioner of health, health officer, or officer of the day shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each day he so fails or neglects.

(c) The division of police of the urban county government shall have the authority, and it shall be its duty, to aid any member of the health department in the arrest, detainment, isolation or quarantine of any person subject to and/or in violation of a written order issued by the board of health, commissioner of health, health officer or officer of the day pursuant to the provisions of sections 11-15, 11-18, 11-20, 11-21, and 11-29 of the Code of Ordinances, or the statutes and regulations of the state and/or board of health relating to the prevention, control and treatment of a suspected or confirmed epidemic and communicable disease or other biological, chemical, radiological or nuclear agent which creates a serious threat to public health.

Sec. 11-16. Reports—Duty of heads of families and health board.

(a) It shall be the duty of heads of families to report any epidemic or communicable diseases, when known by them to exist in their respective families, to the board of health, or to some member thereof, within twenty-four (24) hours from their knowledge of the existence of such disease.

(b) The board of health shall make a report to the state board of health at least once in every three (3) months as required by law: (1) Of the character of the infectious, epidemic or communicable diseases prevailing in their jurisdiction. (2) The number reported as afflicted with such disease. (3) The action taken by the board in arresting the progress of such epidemics, and the visible effects of such action. The board shall also make special reports when it deems it expedient or when required by the state board of health.

Sec. 11-17. Same—By physicians.

Every physician shall report in writing to the board of health the name of every patient he may have in the urban county afflicted with cholera, smallpox, diphtheria, typhus, typhoid or scarlet fever, measles, tuberculosis in any form, varicella, whooping cough, epidemic dysentery, trachoma, ophthalmia neonatorum, epidemic cerebrospinal meningitis, pellagra, infantile paralysis, hookworm disease, rabies, tetanus, pneumonia, or any other com-

municable disease that may be declared and published by the board of health to be dangerous to the public health, together with the precise locality where such patient may be found, immediately after such physician shall have ascertained the nature of such disease.

Sec. 11-18. Medical examination of suspected persons.

(a) Whenever it shall be deemed necessary by the board of health, commissioner of health, health officer, or officer of the day to establish the true character of any disease which is suspected to be communicable, a medical examination of the persons affected by such disease may be ordered by the board of health, commissioner of health, health officer, or officer of the day.

(b) It shall constitute a violation for any person to interfere with or refuse to permit such examination. (Ord. No. 197-2009, § 2, 9-3-09)

Sec. 11-19. Vaccination.

(a) No person shall fail or refuse to be vaccinated or refuse to permit any minor under his control to be vaccinated, when visited for that purpose by the physician employed by the urban county government, unless such person or minor has already been effectually vaccinated at the time of such visit, or is vaccinated by some competent physician within twenty-four (24) hours thereafter.

(b) The health department of the urban county government shall examine each pupil in the school system not submitting satisfactory evidence of vaccination, or not submitting evidence from a physician that vaccination is dangerous to the health of the child, and prevent the entrance of anyone who has no vaccine mark, and notify the parent or guardian of such pupil that vaccination is an indispensable prerequisite to admission to the public schools of the urban county.

(c) The health department of the urban county government shall vaccinate against smallpox all indigent persons applying to them for such services. The health officer shall supply the vaccine needed.

Sec. 11-20. Quarantine—Disinfection of premises.

(a) Any person in the urban county having a communicable disease shall be isolated as the board of health, commissioner of health, health officer, or officer of the day may direct; and all buildings, clothing, property, premises and vehicles which may be infected by emanations from such person shall be disinfected as the board of health, commissioner of health, health officer, or officer of the day may direct.

(b) No premises shall be disinfected after diphtheria until at least two (2) negative cultures, taken on successive days, have been obtained from the throat of the patient, or from the nose if a case of nasal diphtheria. (Ord. No. 197-2009, § 3, 9-3-09)

Sec. 11-21. Same—Against other localities.

The board of health, commissioner of health, health officer, and officer of the day shall have authority to order and secure the removal and isolation of any person afflicted with a communicable disease. When any contagious

disease is prevalent in any city or town with which the urban county has communication, the board of health, commissioner of health, health officer, and officer of the day shall have the power to issue an order against such city or town and to prevent coming therefrom into the urban county any persons who are afflicted or exposed to such communicable disease; and to issue an order to restrict the movement and gathering of individuals within the urban county who have been exposed or could be exposed to a communicable disease; and to adopt all such regulations as are reasonably necessary to protect the health of the people of the urban county.

Sec. 11-24. Same—Report of, on premises.

Any owner or other person having control of any house where there shall be one (1) or more cases of smallpox and who, knowing the same, shall fail to give notice thereof to the board of health within six (6) hours after this discovery, shall upon conviction be subject to the penalties provided in section 11-32.

Sec. 11-25. Attendance at public schools of pupils afflicted or exposed to disease prohibited.

No principal, teacher or superintendent of any school shall knowingly permit any child sick from any disease mentioned in section 11-17, or from any other communicable disease, or any child residing in any house in which whooping cough, chicken pox, infantile paralysis, scarlet fever, diphtheria, smallpox, measles or epidemic cerebrospinal meningitis shall exist to attend any school until such time as the board of health certifies to such teacher, principal or superintendent that such child may attend school without danger of communicating the disease to others.

Sec. 11-27. Eyes of new-born babies; inflammation or discharge; report; penalty.

(a) If any physician, or midwife, knows or has reason to believe that one (1) or both eyes of an infant whose mother he is called to visit or treat has become inflamed, swollen and red and shows an unnatural discharge within two (2) weeks after the birth of such infant, he shall, within six (6) hours, give notice thereof to the health officer, or in his absence to the president of the board of health.

(b) A violation of this section shall subject the offender upon conviction to a fine of not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) and each day's neglect to give notice of the condition after the duty to give notice accrues shall be a separate offense.

Sec. 11-28. Tuberculosis.

(a) Tuberculosis is hereby declared to be an infectious and communicable disease and dangerous to the public health. It shall be the duty of every physician in the urban county to report to the health officer in writing, on forms to be provided by such officer, the name, age, sex, color, occupation and address of every person in the urban county having pulmonary or any other communicable form of tuberculosis who has been attended by such physician for the first time within one (1) week after the disease is recognized.

(b) It shall be the duty of the chief officer having charge of each hospital, dispensary, sanitorium or other similar public or private institution in the urban county to report in like manner, the name, age, sex, color, occupation and last address of every patient afflicted with pulmonary or any other communicable form of tuberculosis who is in his care or who is under his observation, within one (1) week of such time.

(c) The health officer shall make or cause to be made a microscopic examination of the sputum of persons having symptoms of tuberculosis, which shall be accompanied by a form giving name, age, sex, color, occupation and address of the patient, whenever it may be requested by the attending physician or by the proper officer of any hospital or dispensary, and shall promptly make a report thereof free of charge to the physician or officer upon whose application the examination is made.

(d) The health officer shall cause all reports made in accordance with subsections (a) and (b), and all reports showing the presence of tuberculosis bacilli received in accordance with subsection (c), of this section, to be recorded in a register of which he shall be custodian, and which shall not be open to inspection by anyone outside of the health department. Neither the health officer nor anyone outside of the health department nor anyone connected with the health department shall permit any such report or record to be divulged in such manner as to disclose the identity of the person to whom it relates except as may be necessary in carrying out the provisions of this section.

(e) Unless the attending physician requests in his report that they shall not be furnished, it shall be the duty of the health department to furnish each patient, or those in charge of such patient, printed instructions as to the methods to be employed to prevent the spread of the disease in each case of tuberculosis so reported.

(f) In case of the vacation of any apartment or premises by death from pulmonary or any other communicable form of tuberculosis, or by the removal therefrom of a person so afflicted, it shall be the duty of the attending physician, or if there be no such physician, or if such physician be absent, then of the owner, lessee, tenant, keeper or other person in charge of such apartment or premises, to notify the health officer in writing of such death or removal within twenty-four (24) hours thereafter. Such apartment or premises shall then be disinfected by the health department at public expense, or, if the owner prefers, by the owner, to the satisfaction of the health department, and shall not be again occupied until so disinfected.

(g) Whenever a person having tuberculosis moves out of a house or an apartment, the attending physician, if there be one, or the active head of the family, shall so notify the board of health within twenty-four (24) hours, and both of the above-mentioned persons shall be held responsible for a violation of this section.

(h) It shall be the duty of every person afflicted with tuberculosis, and of every person in attendance upon anyone afflicted therewith, and of the authorities of private and public institutions or dispensaries in the urban county to observe and enforce all sanitary rules and regulations of the health department for preventing the spread of tuberculosis.

(i) Upon the recovery of any patient from the tuberculosis condition for which he was previously reported, a report to that effect to the health department made by the attending physician shall be recorded and shall relieve such patient from further liability to any requirements imposed by this section.

Sec. 11-29. Hospitals; management or supervision.

The board of health, commissioner of health, health officer, and officer of the day shall have control of the hospitals for communicable diseases and shall adopt rules and regulations for the management of the same.

(Ord. No. 197-2009, § 5, 9-3-09)

Sec. 11-30. Spitting on sidewalk or public place—Penalty.

(a) Spitting upon the sidewalk of any public street, avenue, park, public square, or place in the urban county or upon the floor of any hall or office in any hotel or lodging house, which is used in common by the guests thereof, or upon the floors of any theater, store, factory or of any building which is used in common by the public, or upon the floor of any public conveyance used as a common carrier of passengers, or upon the floor of any depot or station, or upon any station platform in the urban county is forbidden.

(b) Whoever violates any of the provisions of this section shall be fined in any sum not exceeding five dollars ($5.00) for each offense.

Sec. 11-31. Same—Notices to be posted.

The person owning or having the management or control of any building, store, factory or public conveyance, depot or station platform, in which spitting is prohibited by section 11-30, shall keep permanently posted in each of such places a sufficient number of notices forbidding spitting upon the floor, calling attention to the provisions of section 11-30.

Sec. 11-32. Violations and penalties.

Unless otherwise specifically provided:

(1) Any person violating the provisions of sections 11-15 through 11-26, or any part thereof, shall upon conviction be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00); and each day's continuance of any such violation shall be a separate offense.

(2) Any person violating any of the provisions of section 11-28 shall upon conviction be fined not less than five dollars ($5.00) nor more than twenty-five dollars ($25.00) for each offense.

(3) Any person violating the provisions of sections 11-33 through 11-43 inclusive, or any part thereof, shall upon conviction be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00).

Division 2

Venereal Diseases

Sec. 11-33. Declared dangerous to the public health.

Syphilis, gonorrhea and chancroid, hereinafter in this article designated "venereal diseases," are hereby declared to be contagious, infectious, communicable and dangerous to the public health.

Sec. 11-34. To be reported.

(a) Any physician or other person who makes a diagnosis in, or treats, a case of syphilis, gonorrhea or chancroid, and every superintendent or manager of a hospital dispensary, or charitable or penal institution where there is a case of venereal disease shall, by number, report such case immediately in writing to the health officer, the office number, age, sex, color and occupation of the diseased person, and the date of the onset of the disease, and the probable source of the infection; provided, the names and address of the diseased person need not be stated, except as hereinafter specifically required. The report shall be enclosed in a sealed envelope and sent to the health officer, who shall report at least once in every three (3) months on the prescribed form to the state board of health all cases reported to him.

(b) All information and reports concerning persons infected with venereal diseases shall be inaccessible to the public, except insofar as publicity may attend the performance of the duties imposed by these regulations and by the laws of the state.

Sec. 11-35. Patients to be given information; notice of health officer.

(a) It shall be the duty of every physician and every other person who examines or treats a person having syphilis, gonorrhea, or chancroid to instruct him in measures for preventing the spread of such disease, and inform him of the necessity for treatment until cured.

(b) If any attending physician or other person knows or has good reason to suspect that a person having syphilis, gonorrhea or chancroid is so conducting himself as to expose other persons to infection, or is about so to conduct himself, he shall notify the health officer of the name and address of the diseased person and the essential facts of the case.

Sec. 11-36. Investigation of cases.

(a) The health officer shall use every available means to ascertain the existence of, and to investigate, all cases of syphilis, gonorrhea or chancroid within the urban county, and to ascertain the sources of such infection. The health officer is hereby empowered and directed to make such examinations of persons reasonably suspected of having syphilis gonorrhea or chancroid as may be necessary for carrying out the provisions of this article. Owing to the prevalence of such diseases among prostitutes and persons associated with them, all such persons are to be considered within the above class.

(b) The duties and authority imposed on and given the health officer thereunder may be performed and exercised by any of his assistants.

Sec. 11-37. Protection of others from infection.

Upon receipt of a report of a case of venereal disease, it shall be the duty of the health officer to institute measures for the protection of other persons from infection by such venereally diseased persons.

Sec. 11-38. Quarantine—Of sufferers or suspects.

(a) The health officer is authorized and directed to quarantine persons who have, or are reasonably suspected of having syphilis, gonorrhea or chancroid whenever in the opinion of the health officer, or the state board of health or its secretary, quarantine is necessary for the protection of the public health.

(b) In establishing quarantine, the health officer shall designate and define the limits of the area in which the person known to have, or reasonably suspected of having, syphilis, gonorrhea or chancroid, and his immediate attendant, are to be quarantined.

(c) No persons other than the attending physicians shall enter or leave the area of quarantine without the permission of the health officer.

(d) Every breach of quarantine and every refusal to abide by it shall be considered a violation of this section, and each hour such breach or refusal continues shall be considered a separate violation.

Sec. 11-39. Same—Termination.

(a) No person but the health officer shall terminate the quarantine established pursuant to section 11-38, and this shall not be done until the diseased person has become noninfectious, as determined by the health officer or his authorized deputy through clinical examination and all necessary laboratory tests, or until permission has been given him to do so by the state board of health or its secretary.

(b) The local health officer shall inform all persons who are about to be released from quarantine for venereal disease, in case they are not cured, what further treatment should be taken to complete their cure.

(c) Any person not cured before release from quarantine hereunder shall be required to sign the following statement after the blank spaces have been filled to the satisfaction of the health officer: "I, , residing at , hereby acknowledge the fact that I am at this time infected with , agree to place myself under the medical care of"

(d) All persons signing the above agreement shall observe its provisions, and any failure so to do shall be a violation of this section.

(e) All such agreements shall be filed with the health officer and kept inaccessible to the public as provided in section 11-34(b).

Sec. 11-40. Change of physicians; procedure.

(a) When a person applies to a physician or other person for the diagnosis or treatment of syphilis, gonorrhea or chancroid, it shall be the duty of the physician or person so consulted to inquire of and ascertain from the person seeking such diagnosis or treatment whether such person has theretofore consulted with or has been treated by any other physician or person. It shall be the duty of the applicant for diagnosis or treatment to furnish this information, and a refusal to do so or a falsification of the name and address of such physician or person previously consulted by such applicant shall be deemed a violation of this section.

(b) It shall be the duty of the physician or other person whom the applicant consults to notify the physician or other person last consulted of the change of advisers.

(c) Should the physician or person previously consulted fail to receive such notice within ten (10) days after the last date upon which the patient was instructed by him to appear, it shall be the duty of such physician or person to report to the health officer the name and address of such venerally diseased person.

Sec. 11-41. Druggists forbidden to prescribe for.

No druggist or other person not a physician licensed under the laws of the state shall prescribe or recommend to any person any drugs, medicine or other substances to be used for the cure or alleviation of gonorrhea, syphilis or chancroid, or shall compound drugs or medicines for such purpose from any written formula or order not written for the person for whom the drugs or medicines are compounded and not signed by a physician licensed under the laws of the state.

Sec. 11-42. Certificates of freedom from; giving regulated.

Physicians, health officers and all other persons are prohibited from issuing certificates of freedom from venereal disease; provided this rule shall not prevent the issuance of necessary statements of freedom from infectious diseases written in such form or given under such safeguards that their use in solicitation for sexual intercourse would be impossible.

Sec. 11-43. Prostitution to be repressed.

Prostitution is hereby declared to be a prolific source of syphilis, gonorrhea and chancroid; and the repression of prostitution is declared to be a public health measure. The health officer is therefor directed to cooperate with the proper officials whose duty it is to enforce laws directed against prostitution and otherwise to use every proper means for the repression of prostitution.

Sec. 11-44. Spread of, unlawful.

It shall be unlawful for any infected person knowingly to expose another person to infection with any venereal disease, or for any person to perform an act which exposes another person to infection with venereal diseases.

Chapter 12

Housing[1]

Article I. In General

Section 12-1. Property maintenance code.
Section 12-2. Nuisances.
Section 12-3. Abatement of nuisance.
Section 12-4. Authority of commissioner.
Section 12-5. Penalties.
Section 12-6. Administrative hearing board; establishment.
Section 12-6.1. Reserved.
Section 12-7. Reserved.
Section 12-8. Reserved.
Sections 12-8.1, 12-8.2. Reserved.
Section 12-8.3. Appeal.
Section 12-8.4. [Accumulation of snow as a nuisance.]
Section 12-9. Reserved.
Section 12-10. Conflicts.
Section 12-11. Housing repair financial assistance.
Section 12-12. Purpose.
Section 12-13. Housing assistance grant program.
Section 12-14. Administration.
Sections 12-15, 12-16. Reserved.
Sections 12-17—12-53. Reserved.
Section 12-54. Landlord-tenant act adopted.
Section 12-55. Landlord retaliation prohibited.
Sections 12-56-12-59. Reserved.

Article II. Public Nuisances

Section 12-60. Definition.
Section 12-61. Prohibition.
Section 12-62. Enforcement.
Section 12-63. Abatement procedure.

1. **Charter reference(s)**—Department of housing and community development, § 6.11; homes for the aged, § 7.09; housing board of appeals, § 7.11; public housing, § 7.12; urban renewal, § 7.13.
Cross reference(s)—Building code, § 5-1; fire prevention regulations, ch. 9.
State law reference(s)—Housing projects, etc., KRS ch. 80; urban renewal and redevelopment, KRS ch. 99.

Section 12-64. Action on failure to comply.
Section 12-65. Destroying, etc., notice; disobeying order.
Section 12-66. Multiple unit dwellings.
Section 12-67. Defense to violation.
Sections 12-68--12-70. Reserved.

Article III. Riparian Areas

Section 12-71. Permit.
Section 12-72. Maintenance; species; compliance.
Section 12-73. Revocation of permit.
Section 12-74. Appeal.
Section 12-75. Lists of acceptable vegetation.
Section 12-76. Penalty.
Sections 12-77--12-80. Reserved.

Article IV. Blighted, Deteriorated, and Vacant Properties

Section 12-81. Definitions.
Section 12-82. Vacant property review commission.
Section 12-83. Membership.
Section 12-84. Terms of members.
Section 12-85. Officers.
Section 12-86. Quorum.
Section 12-87. Meetings.
Section 12-88. Rules of procedure.
Section 12-89. Power and duties.
Section 12-90. Appeal of determination or valuation.
Section 12-91. Conduct of hearing.
Section 12-92. Eminent domain proceedings.
Section 12-93. Acquisition by employees prohibited; disclosure required.

Article I

In General

Sec. 12-1. Property maintenance code.

(a) **Adopted; filed.** The International Code Council, Inc., International Property Maintenance Code, 2021 Edition (hereinafter referred to as "this code"), with the revisions and deletions shown in paragraph (b) and herein, is hereby approved and adopted as the existing structures code of the urban county government. A copy of said code is incorporated herein by reference and filed with the urban county council clerk as a part of the public records of this government. This code is adopted pursuant to KRS 65.8801 to KRS 65.8839 and unless otherwise provided shall be interpreted in accordance with the provisions of chapter 2B of the Code of Ordinances.

(b) **Certain sections not incorporated.** The following sections of the International Property Maintenance Code, 2021 Edition, shall not be incorporated in the Property Maintenance Code of Lexington-Fayette Urban County: 107.1, 107.2, 107.3, 107.4, 113.4, 302.4, 304.17, 308.2, 308.2.1, 308.2.2, 308.3, 308.3.1, 308.3.2, and 309.5.

(c) **Revisions.** Certain sections of this code are hereby revised to read as follows:

PM-101.1

Title: These regulations shall be known as the Property Maintenance Code of Lexington-Fayette Urban County, hereinafter referred to as "this code."

PM-102.3

Application of other codes: Repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with the procedures and provisions of the Kentucky Residential Code, Kentucky Building Code, International Energy Conservation Code (with Kentucky Amendments), Kentucky Fire Standards of Safety, Fire Prevention Code-NFPA 101; National Fuel Gas Code-NFPA 54, International Mechanical Code, Kentucky Plumbing Code and the National Electrical Code-NFPA 70.

PM-103.1

General: The director of the division of code enforcement shall be the code official and shall enforce or delegate the enforcement of all the provisions of this code.

PM-103.2

Appointment: The code official shall be employed in conformance with KRS 67A.230 through 67A.350 and Chapter 21 of the Code of Ordinances.

PM-105.5

Notice and orders: The code official or his designee may issue all necessary notices and orders to abate illegal or unsafe conditions to ensure compliance with the requirements of this code for the safety, health, and general welfare of the public.

PM-105.6

Official records: An official record shall be kept of all business and activities of the department specified in the provisions of this code, and such records shall be open subject to KRS 61.870 et seq.

PM-105.8

Restriction of employees: All officials or employees, including the members of the board of appeals established under the provisions of section PM 108.1, are subject to article 16 of the Urban County Charter—Code of Ethics and chapter 25 of the Lexington-Fayette Urban County Government Code of Ordinances—Ethics Act.

PM-108.1

Appeals board: The administrative hearing board established in section 12-6 of the Code of Ordinances shall be responsible for enforcing the provisions of this code in accordance with the procedures of chapter 2B of the Code of Ordinances through the use of assigned hearing officer(s).

PM-109.4.1

Violation penalties:

(a) Every person, firm, or corporation failing to perform the duties required of them by or to comply with the provisions of section 12-1 shall for every offense be fined not less than one hundred dollars ($100.00) nor more than two thousand five hundred dollars ($2,500.00), and each day's continuance of any such violation shall be a separate offense.

(b) As an alternative remedy to subsection (a), any person, firm or corporation who violates any provision of this code may be subject to civil fines of not less than one hundred dollars ($100.00) nor more than ten thousand dollars ($10,000.00) per parcel of real property for each separate instance in which civil fines are imposed. Such fines may be assessed on each separate structure or dwelling unit located on a parcel of real property, pursuant to the civil fine guidelines as set forth below. In addition, the urban county government may assess the administrative cost involved with any inspection(s), in an amount not to exceed two hundred fifty dollars ($250.00). Each day

that a violation continues after due notice has been served, as provided herein, shall be deemed a separate offense. All such civil fines shall be issued through citations in conformity with section 2B-6 of the Code.

Number of citations

Number of violations at time of citation	1	2	3	4	5+
1—5	$100.00	$200.00	$300.00	$400.00	$500.00
6—10	$200.00	$300.00	$400.00	$500.00	$750.00
11—15	$300.00	$400.00	$500.00	$750.00	$1,000.00
16—20	$400.00	$500.00	$750.00	$1,000.00	$1,500.00
21—30	$500.00	$750.00	$1,000.00	$1,500.00	$2,000.00
31—40	$600.00	$850.00	$1,250.00	$1,750.00	$2,250.00
41+	$700.00	$1,000.00	$1,500.00	$2,000.00	$2,500.00

PM-110.4

Failure to comply with an order: Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than $250.00 dollars or more than $500.00 dollars per each day of continued violation of the stop work order.

PM-111.1

General: When a structure or equipment is found by the code official to be unsafe, or when the structure is found unfit for human occupancy, or is found unlawful, such structure may be condemned pursuant to the provisions of this code.

PM-111.2

Closing of vacant structures: If the structure is vacant or unfit for human habitation and occupancy, and is not in danger of structural collapse, the code official is authorized to place a placard of condemnation on the premises and order the structure closed up so as not to be an attractive nuisance. Upon failure of the owner to close up the premises within the time specified in the order, the code official shall cause the premises to be closed through any available public agency or by contract or arrangement with private persons and the cost thereof, including an administrative cost not to exceed $250.00 shall be charged against the real estate upon which the structure is located and if not paid within the time allocated, shall become a lien upon such real estate.

PM-111.2.1

Authority to disconnect service utilities: The code official shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this code and the referenced codes and standards set forth in Section 102.7 in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without approval or when the structure has been placed under a condemnation or demolition order. The code official shall notify the serving utility and, whenever possible, the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection the owner or occupant of the building structure or service system shall be notified in writing as soon as practical thereafter.

PM-111.4

Notice to owner or to person or persons responsible: Whenever a code enforcement officer determines that there has been a violation of this section, the official may issue a preliminary notice of violation, which carries no penalty and is non-appealable. Should the owner of the premises fail to correct the violation, a code official shall issue a citation containing the information and in the manner required by Section 2B-6 of the Code of Ordinances. If the owner of the property cannot be ascertained from the tax rolls in the exercise of reasonable diligence, the serving of such notice or citation upon such owners may be made by posting a copy of the notice and/or citation in a conspicuous place on the property. If the property owner employs or utilizes a management company or other agent for the maintenance of the property, the owner may designate in writing, on a form provided by and filed with the division of code enforcement, the name and address of the company or agent to which said notices shall also be provided; however, it shall remain the responsibility of the property owner to comply with the provisions of this code. The property owner shall be responsible for updating any such information filed with the division of code enforcement as necessary. Notices for condemnation procedures shall also comply with this section.

PM-111.6

Transfer of Ownership: It shall be unlawful for the owner of any dwelling unit or structure who has received a compliance order or upon whom a notice of violation has been served to sell, transfer, mortgage, lease or otherwise dispose of such dwelling unit or structure to another until the provisions of the compliance order or notice of violation have been complied with, or until such owner shall first furnish the grantee, transferee, mortgagee or lessee a true copy of any compliance order or notice of violation issued by the code official and shall furnish to the code official a signed statement from the grantee, transferee, mortgagee or lessee, acknowledging the receipt of such compliance order or notice of violation and fully accepting the responsibility without condition for making the corrections or repairs required by such compliance order or notice of violation.

PM-111.8

Prohibited occupancy: Any occupied structure condemned by the code official shall be vacated as ordered by the code official. Any person who shall occupy a condemned premises or shall operate placarded equipment, and any owner, owner's authorized agent or person responsible for the premises who shall allow any person or animal occupy a condemned premises or operate placarded equipment shall be liable for the penalties provided by this code.

Exception: This section shall not apply to the owner or the owner's agent when they are actively working to address the status of the property and/or violations of this code, but only when such work is being conducted between the hours of 7:00 a.m. EDT and 10:00 p.m. EDT or authorized otherwise by the code official.

PM-111.8.1

Occupying a Condemned Structure: Any property owner who wantonly or intentionally permits any person(s) or animal(s) to inhabit a structure which has been condemned may be issued a civil penalty in the amount of $250.00 per day. Each day of inhabitation will be considered a separate violation and will only apply after the initial time allotted to vacate the structure has expired.

PM-111.8.2

Violation of PM-111.8.1: Any person, who knowingly enters or remains in a condemned structure, not including the exception outlined in PM-108.5, shall be considered in violation of Kentucky Revised Statue 511.080 regardless of their intent or relationship to the premises.

PM-112.5

Costs of emergency work: Costs incurred in the performance of emergency work shall be paid using Lexington-Fayette Urban County Government funds and legal action may be instituted against the owner of the premises for the recovery of all costs expended, which may also include administrative costs in an amount not to exceed two hundred fifty dollars ($250.00). This may be initiated through the recording of a lien on the owner's property.

PM-113.1

General: The code official shall order the owner of any premises upon which is located any structure or part thereof, which in the code official's judgment is so old, dilapidated or has become so out of repair as to be dangerous, unsafe, unsanitary or otherwise unfit for human habitation, occupancy or use and to raze and remove such structure or part thereof; or if such structure can be made safe by repairs, to repair and make safe and sanitary or to raze and remove at the owner's option; or where there has been a cessation of normal construction of any structure for a period of more than one (1) year, to raze and remove such structure or part thereof.

PM-113.3

Failure to comply: Whenever the owner of a property fails to comply with a demolition order within the time prescribed, the code official shall cause the structure or part thereof to be razed and removed, or otherwise disposed of, as deemed appropriate, either through an available public agency or by contract or arrangement with private persons, and the cost of such razing and removal, including an administrative cost not to exceed two hundred fifty dollars ($250.00), shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate.

PM-201.3

Terms defined in other codes: Where terms are not defined in this code and are defined in the Kentucky Revised Statutes, Lexington-Fayette Zoning Ordinance, Kentucky Residential Code, Kentucky Building Code, International Energy Conservation Code (with Kentucky Amendments), International Fire Code (only when specifically referenced), Kentucky Standards of Safety, Fire Prevention Code-NFPA 1; National Fuel Gas Code-NFPA 54, International Mechanical Code, Kentucky Plumbing Code and the National Electrical Code-NFPA 70, such terms shall have the meanings ascribed to them as stated in those codes.

PM-202.0

The following definition shall be added to this section:

Graffiti: Any inscription, word, figure, or design marked, etched, scratched, drawn or painted on any surface that damages, mutilates or defaces such surface.

PM-301.4

Manufactured homes: All manufactured homes, mobile homes or house trailers that are occupied or are let for occupancy within the urban county shall meet the standards enumerated in this code and shall be installed and anchored in accordance with the provisions of American National Standards Institute (ANSI) A225.1 as provided in 815 KAR 25.020 through 25.100. Transient recreational vehicles parked in a campground, state or Local Park are exempted from this requirement.

PM-302.2.1

Discharging of Storm Water: Installing a storm drain, downspout or sump discharge to effectively or intentionally direct water onto a neighboring property or across a public way shall be declared a nuisance. The downspout or sump discharge point shall be so located that it discharges a minimum of ten (10) feet from all neighboring properties and public ways. Whenever the minimum distance cannot be met the discharge point shall be so located as to direct discharge of storm water away from downslope structures to the maximum practical extent.

PM-302.8

Motor Vehicles: The keeping, parking or storing of vehicles on any premises shall conform with and be subject to section 12-2 of the Code of Ordinances.

PM-304.3.1

Unit Identification: Every dwelling unit(s) shall have the unit number placed in a position to be plainly legible and visible from the entrance to the unit.

PM-304.14

Insect screens: During the period from April 1 to December 1, every door, window and other outside opening used or required for ventilation purposes serving any building containing habitable rooms, food preparation areas, food service areas, or any areas where products used in food for human consumption are processed, manufactured, packaged or stored, shall be supplied with approved tightly fitting screens of not less than sixteen (16) mesh per inch and every swinging door shall have a self-closing device in good working condition.

Exception: Screen doors shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

PM-304.15

Doors: All exterior doors, door assemblies, operator systems, and hardware shall be maintained in good condition. Doors and frames installed in exterior openings shall be designed for and intended to be used for that purpose. Locks at all entrances to dwelling units and sleeping units shall tightly secure the door. Locks on means of egress doors shall be in accordance with Section 702.3.

PM-309.3

Single occupant: The occupant of a detached single family dwelling or a single tenant non-residential structure shall be responsible for pest elimination on the premises.

Exception: Where the infestations are caused by defects in the structure, the owner shall be responsible for pest elimination.

PM-309.4

Multiple occupancy: The owner of a structure containing any Group R occupancy shall be responsible for pest elimination of the structure and exterior property.

PM-402.2

Common halls and stairways: Every common hall and stairway in residential occupancies, other than in one-and two-family dwellings, shall be lighted at all times with at least a 60-watt standard incandescent light bulb for each 200 square feet (19 m2) of floor area or equivalent illumination, provided that the spacing between lights shall not be greater than 30 feet (9144 mm). In other than residential occu-

pancies, means of egress, including exterior means of egress, stairways shall be illuminated at all times the building space served by the means of egress is occupied with a not less than a light of sufficient brightness to illuminate the floors, landings and threads to provide safe passage or use.

PM-503.4

Floor surface: Every toilet room floor shall be maintained to be a smooth, hard, nonabsorbent surface to permit such floor to be easily kept in a clean and sanitary condition.

PM-602.2

Residential buildings: Every dwelling shall be provided with heating facilities capable of maintaining a room temperature of 65 degrees F. (18 degrees C.) in all habitable rooms, bathrooms and toilet rooms based on the outside design temperature required for the locality by the mechanical code listed in Chapter 8.

PM-602.3

Heat supply: Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from October 1 to May 1 to maintain a minimum temperature of 65°F (20°C) in all habitable rooms, bathrooms and toilet rooms.

Exceptions:

1. When the outdoor temperature is below 10°F (-12°C), maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity.
2. When the average monthly temperature is above 30°F (-1°C) a minimum temperature of 65°F (18°C) shall be maintained.

PM-602.4

Occupiable Work Spaces: Every enclosed occupied work space shall be supplied with sufficient heat during the period from October 1 to May 1 to maintain a temperature of not less than 65 degrees F. (18 degrees C.) during all working hours.

Exceptions:

1. Processing, storage and operation areas that require cooling or special temperature conditions.
2. Areas in which persons are primarily engaged in vigorous physical activities.

PM-602.6

Climate control: When facilities for interior climate control (heating, cooling, and/or humidity) are integral functions of structures used as dwelling units or other occupancies, such facilities shall be maintained and operated in a continuous manner in accordance with the designed capacity.

PM-605.2

Receptacles: Every habitable space in a dwelling unit and every guest room shall contain at least two (2) separate and remote receptacle outlets. Every bathroom shall contain at least one (1) receptacle outlet, and all receptacle outlets in the bathrooms shall be a ground-fault circuit interrupter (GFCI). Every laundry room and kitchen shall contain at least one (1) grounded receptacle outlet or a tamper resistant ground-fault circuit interrupter (GFCI). Any receptacle outlet located within six (6) feet of an uncovered water receptacle, such as a sink, wherever located, shall be a ground-fault circuit interrupter (GFCI). Any accessible outlet located on the exterior of a structure shall be a ground-fault circuit interrupter (GFCI).

PM-704.6

Single- and multiple-station smoke alarms: Single- and multiple-station smoke alarms shall be installed in existing one-and-two family dwellings and Group 1-1 and R occupancies in accordance with Sections 704.6.1 through 704.6.3.

PM-704.6.1.5

Single- or multiple-station smoke alarms: Single-station smoke alarms shall be installed and maintained in all one-and-two-family dwellings and dwelling units regardless of occupant load at all of the following locations:

1. On the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.
2. In each story within a dwelling unit, including basements and cellars but not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one full story below the upper level.
3. In each room used for sleeping purposes where required at the time of construction.

PM-801.1

Violations library: The division of code enforcement shall prepare and maintain a comprehensive list for existing structure violations to be known as the violations library. A copy of the violations library is incorporated herein by reference and shall be filed with the urban county council clerk as a part of the public records of this government.

(Ord. No. 78-79, § 2, 4-5-79; Ord. No. 172-82, § 1, 9-23-82; Ord. No. 115-87, § 1, 6-11-87; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 33-91, § 2, 2-21-91; Ord. No. 182-91, § 1, 8-29-91; Ord. No. 79-93, § 1, 5-6-93; Ord. No. 66-94, § 1, 5-5-94; Ord. No. 56-95, § 1, 3-23-95; Ord. No. 64-95, § 2, 4-6-95; Ord. No. 4-96, § 1, 1-11-96; Ord. No. 26-96, § 1, 2-22-96; Ord. No. 27-96, § 2, 2-22-96; Ord. No. 127-97, § 1, 6-26-97; Ord. No. 62-98, § 1, 3-19-98; Ord. No. 339-99, § 1, 12-7-99; Ord. No. 13-2010, §§ 1—3, 1-28-10; Ord. No. 131-2010, §§ 1, 2, 7-6-10; Ord. No. 220-2016, §§ 1—6, 12-6-16; Ord. No. 165-2017, § 1, 11-16-17; Ord. No. 100-2018, § 1, 12-6-18; Ord. No. 101-2022, § 1, 9-22-22)

Editor's note(s)—Section 1 of Ord. No. 78-79, adopted April 5, 1979, repealed §§ 12-1—12-8, relating to the adoption, scope, administration and standards of the housing code; and § 2 reenacted § 12-1, reading as set out. Formerly §§ 12-1—12-8 were derived from the following:

Ord. No.	Date	Section
190-67	8-3-67	2
20-71	2-4-71	1
184-76	9-9-76	1
158-78	7-11-78	1
23-79	1-25-79	1—3

Section 12-1 formerly adopted the BOCA property maintenance code. Reference to the property maintenance code in the remainder of this chapter has been changed to refer to the existing structures code adopted in this section.

The official title of the code adopted in this section by Ord. No. 182-91 is "The BOCA National Property Maintenance Code/1990." This replaces the existing buildings code. Reference in the remainder of this chapter will be to the property maintenance code.

Editor's note(s)—Ord. No. 107-2008, § 1, adopted May 22, 2008, repealed §§ 12-1.1—12-1.3, which pertained to BOCA review commission—created; definition, same—membership; terms; qualifications and same—powers, duties. See the Code Comparative Table for complete derivation.

Sec. 12-2. Nuisances.

Violations of this chapter of the Code of Ordinances shall be enforced through a code enforcement board created pursuant to KRS 65.8801 to KRS 65.8839, as further provided in, utilizing assigned hearing officer(s).

(a) The definitions provided section 2B-2 of the Code of Ordinances shall apply to this chapter unless otherwise stated below:

Ashes shall mean the residue from the burning of wood, coal, coke and other combustible materials in homes, stores, institutions and small industrial establishments for the purpose of heating, cooking and disposing of waste combustible material. Cinders that are produced in large quantities at steam-generating plants are not included within the meaning of the term.

Debris shall mean the remains of anything broken or destroyed; ruins, fragments and shall include, but not be limited to concrete blocks, concrete slabs, wood scraps and other material generated by construction activity.

Garbage shall mean animal and vegetable waste resulting from the handling, preparation, cooking and serving of foods, paper and other kitchen-type wastes generated from normal household activities. It is composed largely of putrescible organic matter and its natural moisture content. It includes a minimum amount of free liquids. Garbage originates primarily in home kitchens, and also may originate in stores, markets, restaurants, hotels and other places where food is stored, prepared or served.

Trash shall mean a variety of both combustible and noncombustible solid waste from materials from homes, stores and institutions. Trash shall include, but is not limited to, brush, tree limbs, fallen trees, scrap lumber, scrap metal, scrap plastic, plastic bags, car parts, appliances, tires, rags, paper, general yard waste and the like.

Weed shall mean any plant, bush, vine and other vegetation, whether classified as edible or not, that grows in an aggressive or invasive manner and/or is unmaintained, undesirable, or may cause blight on the property.

(b) No owner of any premises shall maintain or keep any nuisance thereon, nor shall any such person keep or maintain such premises in a manner which may cause diminution in the value of the other property in the neighborhood in which such premises are located, and the owner shall not permit any structure upon his or her premises to become unfit and unsafe for human habitation, occupancy, or use or permit conditions to exist on the structure or premises which are dangerous or injurious to the health or safety of the occupants of the structure, the occupants of neighboring structures, or other residents of the urban county.

(c) Except as provided in subsection (h) of this section, it shall be unlawful for the owner, occupant, or person having control or management of any premises within the urban county to permit a public nuisance, health hazard, or source of filth to develop thereon through the accumulation or presence of:

(1) Junked, wrecked, non-licensed, improperly licensed or inoperative automobiles, vehicles, or machines, or other similar scrap or salvage materials, excluding inoperative farm equipment;

(2) One (1) or more mobile or manufactured homes as defined in KRS 227.550 that are junked, wrecked, or inoperative and which are not inhabited;

(3) Rubbish, garbage, debris, ashes, trash, or waste of any kind, whether liquid or solid;

(4) The excessive growth of weeds, grass and other vegetation as follows:

a. Any weeds such as thistle, jimson, burdock, ragweed, cocklebur, poison ivy, poison oak, pokeweed, poison sumac, and poison hemlock and any other weed, plant or shrub, or other weed of a like kind classified by the United States Department of Agriculture as a noxious weed is prohibited and unlawful. Notwithstanding the above, any property known to be a remnant, non-buildable or undevelopable regardless of zoning that is greater than one (1) acre in size shall only be required to have a minimum eight (8) foot buffer maintained in accordance with this section in all areas adjacent to developed properties or within two hundred (200) feet of a structure. This section shall not apply to property for which a current riparian buffer area permit is in effect or lands designated as environmentally sensitive, conservation areas, tree protection areas, greenways and woodlots.

b. It shall be unlawful for the owner to permit any weeds, or grass, edible or not, to grow to a height exceeding ten (10) inches anywhere on such premises, including those portions thereof abutting any street, road, alley or other thoroughfare, and in the event such premises are crossed by a sidewalk, ditch, pathway, private roadway, fence or other natural or manmade boundary or divider, including those portions thereof between such boundary or divider and the edge of the thoroughfare; any such weeds or grass exceeding such height are hereby declared to be a nuisance. Notwithstanding the above, any property known to be a remnant, non-buildable or undevelopable regardless of zoning that is greater than one (1) acre in size shall only be required to have a minimum eight (8) foot buffer maintained in accordance with this section in all areas adjacent to developed properties or within two hundred (200) feet of a structure. This section shall not apply to property for which a current riparian buffer area permit is in effect or lands designated as environmentally sensitive, conservation areas, tree protection areas, greenways and woodlots. This section shall also not apply to any crops, trees, bushes, shrubs, flowers or other ornamental plants or flowers which are maintained in a clearly definable fashion. This section shall also not apply to native plantings for the purpose of intentional naturalization, which includes plantings used for food or fiber, for aesthetic purposes, to attract or promote pollinators, to offset and control soil loss or erosion, to promote storm water control or water conservation, or to improve the soil. Naturalization does not include vegetation abandonment which is defined as the lack of premises management. Management activities include but are not limited to site preparation, planting, and maintenance. Naturalized gardens shall not contain plant species that are categorized as a level one threat by the Kentucky Exotic Plant Pest Council.

c. It shall be unlawful for the owner or occupant of any premises to permit any tree, brush, hedge or other vegetation to grow in a manner which interferes with normal sidewalk traffic or vehicular traffic within the public right-of-way.

d. All bushes, shrubs, plants, vines and other vegetation, whether classified as edible or not, must be maintained in a way to prevent the possible collection of trash, refuse, rubbish, garbage or debris and must not present a public safety risk and/or fire risk to the property or adjoining properties. Failure to maintain vegetation as indicated may result in its required removal.

e. There is hereby exempted from the scope of the provisions of subsections a. and b. above property within the urban county zoned for agricultural uses, except that such exemption shall not apply when the property has been planned for development and a subdivision plat has been filed of record in the office of the county clerk reflecting the property as residential.

f. Special provisions shall be applied to lots known to be remnants, non-buildable or undevelopable regardless of zoning that are greater than one (1) acre in size that provision a. and b. shall maintain an minimum eight (8) foot buffer along adjacent developed properties or within two hundred (200) feet of a structure in accordance with the provisions above.

(d) No owner of any premises shall allow the use or storage of furniture which is upholstered, or not designed or manufactured for outdoor use and equipment or appliances which are not designed for outdoor use, in an outdoor area such as a porch, carport, deck, patio or yard.

(e) Any compost pile located on a property must be maintained in a clearly definable area and out of ordinary public view. It shall not attract vermin, insects or animals nor shall it create a nuisance, health hazard, safety issue or fire concern.

(f) It shall be unlawful for any person, whether in person or by his agent or employee or servant, to cast, throw, sweep, sift or deposit, in any manner, any ashes, debris, garbage, refuse or waste of any kind, whether liquid or solid, in or upon any public way, public place, river, canal, public water, drain, sewer or receiving basin within the jurisdiction of the county government. Nor shall any person cast, throw, sweep, sift or deposit any of the aforementioned items anywhere within the jurisdiction of the urban county government in such manner that it may be carried or deposited, in whole or in part, by the action of the sun, wind, rain or snow into any of the aforementioned places. This section shall not apply to the deposit of material under a permit authorized by any ordinance of the urban county government; or to goods, wares or merchandise deposited upon any public way or other public place temporarily, in the necessary course of trade, and removed therefrom within two (2) hours after being so deposited; or to articles for things deposited in or conducted into the urban county government sewer system through lawful drains in accordance with the ordinances of the urban county government.

(g) It shall be unlawful for any person, whether in person or by his agent or employee or servant, to use any vehicle to haul any ashes, debris, garbage, refuse or waste of any kind, whether liquid or solid, unless such vehicle is covered to prevent any part of its contents from spilling or escaping the vehicle at all times while such vehicle is in motion on any street or alley in the urban county. However, the requirements herein for covering such vehicles shall not apply to vehicles carrying brush cuttings, tree trimmings, branches, logs and similar waste material if such matter is securely lashed to such vehicle to prevent spilling or escaping the vehicle.

(h) The provisions of subsection (c)(1), above shall not apply to:

(1) Junked, wrecked, or inoperative automobiles, vehicles, machines, or other similar scrap or salvage materials located on the business premises of a:

a. Licensed automotive recycling dealer as described in KRS 190.010(8);

b. Used motor vehicle dealer as defined in KRS 190.010(6); or

c. Motor vehicle auction dealer as defined in KRS 190.010(11);

(2) Junked, wrecked, or inoperative motor vehicles, including parts cars, stored on private premises by automobile collectors, whether as a hobby or a profession, if these motor vehicles and parts cars are stored out of ordinary public view by means of suitable fencing, trees, shrubbery, or other means;

(3) Any motor vehicle as defined in KRS 281.010 that is owned, controlled, operated, managed, or leased by a motor carrier.

(4) Any vehicle on the premises of a business enterprise operated in a lawful place, other than in a residential district, and operated in a lawful manner, when the keeping or maintenance of such vehicle is necessary to the operation of such business enterprise; or with regard to a vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the urban county government or any other public agency or entity.

(Ord. No. 220-2016, § 7, 12-6-16; Ord. No. 165-2017, § 2, 11-16-17; Ord. No. 093-2021, § 1, 9-30-21; Ord. No. 101-2022, § 2, 9-22-22)

Editor's note(s)—Ord. No. 220-2016, § 7, adopted December 6, 2016 repealed § 12-2 and enacted a new § 12-2 set out herein. Former § 12-2 pertained to legal proceedings for collection of delinquent demolition liens and board-up liens authorized and derived from Ord. No. 153-92, adopted August 27, 1992.

Sec. 12-3. Abatement of nuisance.

(a) **Notice of violation and citation.** It shall be the duty of the commissioner of housing advocacy and community development, citation officers as specifically authorized by ordinance, or others authorized by ordinance to act as code enforcement officers to serve or cause to be served a notice of violation or citation upon

the owner of any premises on which there is kept or maintained any nuisance in violation of the provisions of this chapter. If issued, such notice of violation shall describe the nuisance so maintained and shall demand abatement of such nuisance within a prescribed time. The notice of violation shall carry no penalty and shall be non-appealable. Should the owner of the premises fail to abate the nuisance within the time set by the notice of violation, a citation may be issued for the violation in accordance with chapter 2B of the Code of Ordinances. In addition to prescribing any civil fine authorized by the ordinance violated, the citation may demand that the violation be abated within a prescribed time. If the violation is not abated within the prescribed time, the urban county government may proceed to abate the nuisance at the expense of the owner, keeping an account of the expense of the abatement; and such expense, including an administrative fee, if any, shall be charged to and paid by the owner.

(b) **Right to a hearing and appeal.** Any person issued a citation under this section shall have the right to a hearing before an assigned hearing officer acting on behalf of the administrative hearing board established pursuant to section 12-6 herein. The notices and procedures related to the hearing shall be as provided in chapter 2B of the Code.

(c) **Lien.** The urban county government shall possess a lien on the violator's property pursuant to and in accordance with section 2B-9 of the Code of Ordinances for all civil fines and the cost of any abatement, including a reasonable administrative fee, issued or incurred under this section.

(Ord. No. 268-95, § 1, 11-30-95; Ord. No. 83-97, § 1, 5-29-97; Ord. No. 399-99, § 8, 12-7-99; Ord. No. 13-2010, § 4, 1-28-10; Ord. No. 220-2016, § 9, 12-6-16; Ord. No. 101-2022, § 3, 9-22-22)

Editor's note(s)—Ord. No. 220-2016, § 9, adopted December 6, 2016 renumbered § 12-7 as § 12-3.

Sec. 12-4. Authority of commissioner.

The commissioner of the department of planning, preservation and development is hereby to exercise such powers as may be necessary or convenient to carry out and effectuate the provisions of this chapter of the code of ordinances, including the following powers in addition to any others herein granted:

(a) To enter upon all properties within the urban county for the purposes of inspection, observation, measurement, sampling, and testing in accordance with the provisions of this article.

(b) To appoint and fix the duties of such officers, agents and employees as he deems necessary to carry out the purposes of this chapter.

(c) To delegate any of his functions or powers under this article to such officers, agents and employees as he may designate.

(d) To promulgate regulations which may be necessary to carry out and effectuate the provisions of this article.

(Ord. No. 268-95, § 1, 11-30-95; Ord. No. 339-99, § 10, 12-7-99; Ord. No. 220-2016, § 10, 12-6-16)

Editor's note(s)—Ord. No. 220-2016, § 10, adopted December 6, 2016 repealed § 12-4 and renumbered § 12-8.1 as § 12-4. Former § 12-4 pertained to nuisance abatement and litter regulations and derived from Ord. No. 268-95, adopted November 30, 1995; and Ord. No. 320-99, adopted November 18, 1999.

Sec. 12-5. Penalties.

(a) Every person failing to perform the duties required of him by or to comply with the provisions of section 12-2 shall, for every offense, be fined not less than one hundred dollars ($100.00) nor more than two thousand five hundred dollars ($2,500.00), and each day's continuance of any such violation shall be a separate offense.

(b) As an alternative remedy to subsection (a), any owner who violates any provision of section 12-2 and has been previously issued at least one (1) nuisance citation for a violation or violations on the same property within a Twenty-four (24)-month period, may also be assessed civil fines of not less than one hundred dollars ($100.00) no more than one thousand-five hundred dollars ($1,500.00), pursuant to the civil fine guidelines as set forth herein.

(c) Civil fines assessed for violations of section 12-2 shall be based on the number of citations issued within a Twenty-four (24)-month period, as follows:

	1	**2**	**3**	**4**	**5+**
Number of Citations	$100.00	$250.00	$500.00	$1,000.00	$1,500.00

(Ord. No. 268-95, § 2, 11-30-95; Ord. No. 83-97, § 2, 5-29-97; Ord. No. 339-99, § 11, 12-7-99; Ord. No. 13-2010, § 5, 1-28-10; Ord. No. 220-2016, § 11, 12-6-16; Ord. No. 165-2017, § 3, 11-16-17)

Editor's note(s)—Ord. No. 220-2016, § 11, adopted December 6, 2016 repealed § 12-5 and renumbered § 12-8.2 as § 12-5. Former § 12-5 pertained to declaring weeds a nuisance and derived from Ord. No. 268-95, adopted November 30, 1995; Ord. No. 339-99, December 7, 1999; and Ord. No. 74-2013, July 2, 2013.

Sec. 12-6. Administrative hearing board; establishment.

A five (5) member administrative hearing board is hereby created pursuant to KRS 65.8801 to KRS 65.8839 and chapter 2B of the Code of Ordinances to enforce those provisions of this chapter that are enforceable by civil remedy, including fines. All administrative hearings shall be heard by an assigned hearing officer appointed by the

board using the process and procedures provided in chapter 2B. The board or its assigned hearing officers shall meet at least annually and on a regular basis as required for hearings and all such meetings shall comply with the applicable notice requirements of the law.

(Ord. No. 93-97, § 4, 5-29-97; Ord. No. 339-99, § 14, 12-7-99; Ord. No. 220-2016, § 12, 12-6-16)

Editor's note(s)—Ord. No. 220-2016, § 12, adopted December 6, 2016 repealed § 12-6 and renumbered § 12-13 as § 12-6. Former § 12-6 pertained to nuisance conditions on private property and derived from Ord. No. 268-95, adopted November 30, 1995; and Ord. No. 339-99, December 7, 1999.

Sec. 12-6.1. Reserved.

Editor's note(s)—Ord. No. 339-99, § 7, adopted December 7, 1999, repealed former section 12-6.1, which pertained to cellars and derived from Ord. No. 268-95, § 1, 11-30-95.

Sec. 12-7. Reserved.

Editor's note(s)—Ord. No. 220-2016, § 9, adopted December 6, 2016 renumbered § 12-7 as § 12-3.

Sec. 12-8. Reserved.

Editor's note(s)—Ord. No. 220-2016, § 11, adopted December 6, 2016 repealed § 12-8. Former § 12-8 pertained to the accumulation of water forming ice declared nuisance and derived from Ord. No. 268-95, adopted November 30, 1995; and Ord. No. 339-99, December 7, 1999.

Secs. 12-8.1, 12-8.2. Reserved.

Editor's note(s)—Ord. No. 220-2016, § 9, adopted December 6, 2016 renumbered §§ 12-8.1 and 12-8.2 as §§ 12-4 and 12-5.

Sec. 12-8.3. Appeal.

Editor's note(s)—Ord. No. 220-2016, § 11, adopted December 6, 2016 repealed § 12-8.3. Former § 12-8.3 pertained to housing code violation appeals and derived from Ord. No. 83-97, adopted May 29, 1997; Ord. No. 339-99, adopted December 7, 1999; and Ord. No. 13-2010, adopted January 28, 2010.

Sec. 12-8.4. [Accumulation of snow as a nuisance.]

(a) Accumulation of snow upon a sidewalk so as to endanger the public health and safety by preventing the safe and reasonable flow of pedestrian traffic is hereby declared a nuisance.

(b) Any person who causes or maintains a nuisance in violation of subsection (a) of this section is subject to the abatement procedure provided in Section 12-3 of this Code subject to the following:

(1) The owner of property abutting any sidewalk shall clear the sidewalk after any snow event with an accumulation of four (4) or more inches.

(2) The owner of property on which a sidewalk abuts any street must have such sidewalk cleared within twenty-four (24) hours of the end of the snow event.

(3) The end of the snow event shall be indicated on the government's website, in public communications made by the government related to the end of the snow event and in any notice of violation.

(c) The government shall not issue a notice of violation for a violation of this section if the street abutting the property has not been plowed.

(d) In the event of the presence of extreme weather conditions, the mayor or his designee may hold the enforcement of this section in abeyance until conditions improve.

Any such announcement will be made on the government's website and in all public communications made by the government during and immediately following the snow event.

(Ord. No. 179-2016, § 1, 10-27-16; Ord. No. 165-2017, § 4, 11-16-17)

Sec. 12-9. Reserved.

Editor's note(s)—Ord. No. 339-99, § 16, adopted December 7, 1999, repealed former § 12-9, which pertained to rehabilitation, and derived from Ord. No. 190-67, § 2, 8-3-67; Ord. No. 184-76, § 1, 9-9-76; and Ord. No. 115-91, § 1, 7-2-91.

Sec. 12-10. Conflicts.

The provisions of this Code shall not be construed to conflict with any other applicable laws, codes or ordinances pertaining to housing but are supplemental thereto; and where the provisions of this code are similar to provisions of other applicable laws, codes or ordinances, the more stringent provision shall apply.

(Ord. No. 190-67, § 2, 8-3-67; Ord. No. 339-99, § 13, 12-7-99)

Sec. 12-11. Housing repair financial assistance.

Definitions: **Qualified property owner** means any person owning and residing in residential property who meets an assets test and has an annual income equal to or less than eighty (80) percent of the Area Median Income as published annually by the U.S. Department of Housing & Urban Development (HUD) and in effect at the time of application. The Division of Code Enforcement shall produce a set of program policies and procedures, updated annually, which define the process for calculating assets and household income for the purposes of this program.

(Ord. No. 039-2022, § 1, 5-5-22)

Sec. 12-12. Purpose.

It is the purpose of the Housing Assistance Grant Program to enable the Urban County Government to assist qualified residential property owners notified pursuant to section 2B-6 to comply with their home repair duties and responsibilities as set forth in section 12-1.

(Ord. No. 039-2022, § 2, 5-5-22)

Sec. 12-13. Housing assistance grant program.

(a) The Housing Assistance Grant Program is hereby established, subject to annual appropriations by the Urban County Council, to provide housing repair grants to qualified owners of residential property notified pursuant to section 2B-6. The program will continue each fiscal year as long as appropriated funds remain available.

(b) Qualified property owners notified pursuant to section 2B-6 may receive a grant for repair of their residential property as required by section 12-1. The Division of Code Enforcement shall establish program policies & procedures which set the maximum assistance available per property with exceptions to be approved by the Commissioner for Housing Advocacy and Community Development.

(Ord. No. 039-2022, § 3, 5-5-22)

Sec. 12-14. Administration.

The Commissioner of the Department of Housing Advocacy and Community Development shall be responsible for administration of the program consistent with all provisions of section 12-11 through 12-13.

(Ord. No. 039-2022, § 4, 5-5-22)

Secs. 12-15, 12-16. Reserved.

Editor's note(s)—Ord. No. 220-2016, § 7, adopted December 6, 2016 repealed §§ 12-14—12-16. Former §§ 12-14—12-16 pertained notice, conduct of hearing, orders and appeals and derived from Ord. No. 83-97, adopted May 29, 1997; and Ord. No. 13-2010, adopted January 28, 2010 and Ord. No. 77-2011, adopted June 23, 2011.

Secs. 12-17—12-53. Reserved.

Editor's note(s)—Section 6 of Ord. No. 98-84, adopted June 28, 1984, repealed §§ 12-13—12-53, relating to landlord-tenant relations, pursuant to the provisions of HB 224 of the 1984 General Assembly, which authorizes local governments to enact the provisions of the Uniform Residential Landlord and Tenant Act. Formerly, §§ 12-13—12-53 were derived from Ord. No. 199-82, § 1, adopted Nov. 4, 1982, and Ord. No. 241-83, § 1, adopted Dec. 15, 1983.

Sec. 12-54. Landlord-tenant act adopted.

The urban county government hereby enacts the provisions of the Uniform Residential Landlord and Tenant Act as set forth in the Kentucky Revised Statutes.

(Ord. No. 98-84, § 2, 6-28-84)

Cross reference(s)—Uniform Residential Landlord and Tenant Act, KRS 383.500 et seq.

Sec. 12-55. Landlord retaliation prohibited.

(1) Except as provided in this section, a landlord may not retaliate by increasing rent or decreasing services or by bringing or threatening to bring an action for possession after:

   (a) The tenant has complained to a governmental agency charged with responsibility for enforcement of a building or housing code of a violation applicable to the premises materially affecting health and safety;

   (b) The tenant has complained to the landlord of a violation under KRS 383.595;

   (c) The tenant has organized or become a member of a tenant's union or similar organization.

(2) If the landlord acts in violation of subsection (1) of this section, the tenant is entitled to the remedies provided in subsection (5) and has a defense in any retaliatory action against him for possession. In an action by or against the tenant, evidence of a complaint within one (1) year before the alleged act of retaliation creates a presumption that the landlord's conduct was in retaliation. The presumption does not arise if the tenant made the complaint after notice of a proposed rent increase or diminution of services. "Presumption" means that the trier of fact must find the existence of the fact presumed unless and until evidence is introduced which would support a finding of its nonexistence.

(3) Notwithstanding subsections (1) and (2) of this section, a landlord may bring an action for possession if:

   (a) The violation of the applicable building or housing code was caused primarily by lack of reasonable care by the tenant or other person in his household or upon the premises with his consent;

   (b) The tenant is in default in rent; or

   (c) Compliance with the applicable building or housing code requires alteration, remodeling, or demolition which would effectively deprive the tenant of use of the dwelling unit.

(4) The maintenance of an action under subsection (3) of this section does not release the landlord from liability under KRS 383.625(2).

(5) If a landlord unlawfully removes or excludes the tenant from the premises or willfully diminishes services to the tenant by interrupting or causing the interruption of heat, running water, hot water, electric, gas, or

other essential service, the tenant may recover possession or terminate the rental agreement and, in either case, recover an amount not more than three (3) months periodic rent and a reasonable attorney's fee. If the rental agreement is terminated the landlord shall return all prepaid rent.

(Ord. No. 025-2025, §§ 1-5, 4-24-25)

Secs. 12-56-12-59. Reserved.

Article II

Public Nuisances

Sec. 12-60. Definition.

For purposes of sections 12-60 through 12-64, the term **public nuisance** is hereby defined as any premises or place where law enforcement officers have, on more than two (2) occasions in a twelve (12) month period, criminally cited or arrested a person for violation of the laws governing assault, sexual offenses, prostitution, controlled substances, weapons, gambling on the premises or any felony, or executed a court-issued search warrant for violation of the laws governing assault, sexual offenses, prostitution, controlled substances, weapons, gambling on the premises or any felony. Instances in which the owner or occupant is the victim of the crime and had no control over the criminal act, including domestic violence calls for service, shall not be considered in the number of occasions.

(Ord. No. 332-98, § 2, 12-10-98; Ord. No. 24-2013, § 1, 3-7-13; Ord. No. 220-2016, § 13, 12-6-16)

Sec. 12-61. Prohibition.

No owner of property located within the urban county shall allow his or her property to be used as the site for any public nuisance after having received notice pursuant to section 12-63 that the property has been used for the commission of a public nuisance. This prohibition shall apply to both rental and owner-occupied property. A legal or equitable owner of the property is deemed to have knowledge of such activity upon receipt of the notice as set forth in this Code.

(Ord. No. 332-98, § 2, 12-10-98; Ord. No. 24-2013, § 2, 3-7-13)

Sec. 12-62. Enforcement.

The division of police shall be responsible for enforcement of sections 12-60 through 12-64 relating to public nuisances. The term code official as used in these sections shall refer to the chief of police or his or her designated representative.

(Ord. No. 332-98, § 2, 12-10-98; Ord. No. 220-2016, § 14, 12-6-16)

Sec. 12-63. Abatement procedure.

(a) **Duty to notify owner.** Whenever the code official has reason to believe that a public nuisance exists in or upon property, he shall notify the owner of the property, and any representative designated by the owner pursuant to subsection (c) below, that the property is being used in a manner so as to constitute a public nuisance and that the public nuisance must be abated.

(b) **Failure to abate.** Should the owner fail to abate the public nuisance after receiving the notice required by subsection (a), above, it shall be the duty of the code official to serve or cause to be served a citation upon the owner of the premises upon which there is kept or maintained a public nuisance in violation of section 12-61. In addition to prescribing a civil fine as authorized by section 12-64, the citation may also demand that the violation be abated within a prescribed time. If the violation is not abated within the prescribed time, the urban county government may issue an order closing and vacating the premises to the extent necessary to abate the public nuisance. Such closing and vacating shall be for such period of time as the code official reasonably may direct, but in no event shall the closing and vacating be for a period of more than one (1) year from the date of closing. An order to close and vacate issued pursuant to this section is not an act of possession, ownership or control by the urban county government. An order to close and vacate order shall be rescinded within fourteen (14) days of an abatement, unless such premises are the site of repeated orders to close and vacate. The urban government may take reasonable steps to enforce the order to close and vacate the premises to the extent necessary to abate the public nuisance should the owner fail to do so. The urban county government shall keep an account of the expense of the abatement, including the reasonable value of labor and materials used and a reasonable administrative fee, and such expense shall be charged to and paid by the owner.

(c) **Service of citation order to close and vacate.** A citation issued under this section shall conform with section 2B-6 of the Code of Ordinances. An order to close and vacate shall be served in the same manner as the citation, and shall also be posted in a conspicuous place on the premises affected by the notice. Any property owner may voluntarily file with the division of police a completed certificate, on a form provided by the division, that provides the name and address of a management company or designated representative with authority over the subject property or an alternative address of the property owner to which all notices issued under this article also shall be served.

(d) **Right to a hearing and appeal.** Any person issued a citation or order to close and vacate under this section shall have the right to a hearing before an assigned hearing officer acting on behalf of the administrative hearing board established pursuant to section 12-6, as further provided under chapter 2B of the Code, as well as any additional appeal provided thereunder.

(e) **Lien.** The county government shall possess a lien on the subject property in accordance with section 2B-9 of the Code of Ordinances for all civil fines and the cost of any abatement, including a reasonable administrative fee, issued or incurred under this section.

(Ord. No. 332-98, § 2, 12-10-98; Ord. No. 24-2013, § 3, 3-7-13; Ord. No. 84-2015, § 1, 7-7-15; Ord. No. 220-2016, § 15, 12-6-16)

Sec. 12-64. Action on failure to comply.

If any person fails to comply with a notice to abate a public nuisance, the code official may take any, or any combination of, the following remedial actions:

(a) Issue a citation assessing a civil fine of not less than five hundred dollars ($500.00) nor more than five thousand dollars ($5,000.00) per violation;

(b) Issue an order to close and vacate the premises to the extent necessary to abate the public nuisance;

(c) Revoke the certificate of occupancy of the premises; or

(d) Use any other legal remedy available under the laws of the Commonwealth.

(Ord. No. 332-98, § 2, 12-10-98; Ord. No. 220-2016, § 16, 12-6-16)

Sec. 12-65. Destroying, etc., notice; disobeying order.

No person shall destroy, remove or deface any notice or order posted by the code official. No person shall disobey any order to close and vacate, or use or occupy or permit any other person to use or occupy any premises ordered closed.

(Ord. No. 332-98, § 2, 12-10-98)

Sec. 12-66. Multiple unit dwellings.

If the premises consist of multiple unit dwellings or mixed uses and the public nuisance has occurred solely within a unit or units, the authority to issue an order to close and vacate is restricted to the unit or units in which the public nuisance has occurred and does not extend to any other unit in the premises.

(Ord. No. 332-98, § 2, 12-10-98)

Sec. 12-67. Defense to violation.

It shall be a defense to a violation of this section if the owner has instituted an eviction proceeding within thirty (30) days of the notice or order against the offending tenant(s) and all occupants of the premises, and completes the eviction within seventy-five (75) days of commencement of the eviction proceeding or as soon thereafter as court procedure will allow. In the event that judicial or quasi-judicial proceedings prohibit an owner from proceeding with an eviction, enforcement under this section will be stayed until the judicial or quasi-judicial proceed-

ing is resolved. It shall be the responsibility of the owner to provide, in writing to the code official, notice that an eviction proceeding has been instituted and to provide such other proof of such proceeding as may reasonably be requested by the code official.

(Ord. No. 332-98, § 2, 12-10-98)

Secs. 12-68--12-70. Reserved.

Editor's note(s)—Ord. No. 220-2016, § 7, adopted December 6, 2016 repealed §§ 12-68—12-70. Former §§ 12-68—12-70 pertained to hearings, notice and conduct of hearings, written order of hearing officer and appeals and derived from Ord. No. 332-98, adopted December 10, 1998.

Article III

Riparian Areas

Sec. 12-71. Permit.

Any person whose property contains a riparian area, as defined herein, may create a buffer area bordering the riparian area upon obtaining a permit from the division of environmental services or its designee. Such a buffer area shall be exempt from the nuisance provisions of chapter 12 provided that the area is properly maintained as defined herein and acceptable species of vegetation are utilized. Upon application, the Division of Environmental Services or its designee shall inspect the area and determine whether a permit should be granted. The permit shall be granted providing the following conditions are met:

(1) The property must contain a riparian area, hereby defined as real property related to or located in conjunction with a wetland, river or stream, naturalized detention basin bottom, or along the edge of a lake, which real property is influenced by and influences the neighboring body of water.

(2) A buffer zone is real property which adjoins or includes a riparian area and which is maintained in a natural state consistent with the provisions of this article.

(3) The maximum area for a buffer zone shall be twenty-five (25) feet from the edge of the wetland, river, stream, lake, or naturalized basin bottom, unless a larger area is approved by the division of environmental services and so designated on the permit.

(4) The buffer zone shall not interfere with designated greenways as set forth in the comprehensive plan.

(5) The division of environmental services or its designee may deny a permit although all conditions have been met, for just cause based on circumstances unique to the property affected which would create a threat to public welfare and/or safety if the proposed planting were permitted.

(6) The decision of the division of environmental services or its designee shall be made within thirty (30) days after an application is filed. Failure to issue such decision within said time period shall have the same effect as approval of the application.

(Ord. No. 28-2000, § 1, 2-10-00; Ord. No. 32-2016, § 1, 3-3-16)

Sec. 12-72. Maintenance; species; compliance.

(1) The property owner shall maintain the area after it is established. Proper maintenance shall include, as necessary, selection and use of approved species of vegetation, watering, pruning, removal of hazardous or diseased vegetation and insect control.

(2) Riparian species shall be approved by the division of environmental services prior to planting. Riparian species include vegetative species of trees and understory which have adapted to conditions that constitute root systems surviving where there are shallow water tables, and can exist adjacent to streams, creeks, rivers, lakes and in wetlands or other saturated soil conditions. Examples of riparian species are green ash, willow, sycamore, boxelder and cypress.

(3) The division of environmental services or its designee shall check proposed planting sites for compliance with requirements under this article. The division of environmental services or its designee may waive any of the conditions in granting a permit where such action would promote the preservation of the health, integrity or appearance of an area's riparian characteristics. Further, where such action would promote the public welfare, the division of environmental services or its designee may condition the granting of a permit upon the applicant's agreement to plant only a certain species of vegetation.

(Ord. No. 28-2000, § 1, 2-10-00; Ord. No. 32-2016, § 2, 3-3-16)

Sec. 12-73. Revocation of permit.

If a buffer area for which a permit has been issued is not properly maintained or has not met the conditions set forth in the permit, the division of environmental services or its designee may revoke the permit by providing written notice of the revocation to the permit holder. If a permit is revoked, the buffer area shall become subject to the nuisance provisions of chapter 12.

(Ord. No. 28-2000, § 1, 2-10-00; Ord. No. 32-2016, § 3, 3-3-16)

Sec. 12-74. Appeal.

Any applicant for or holder of a permit required by this chapter adversely affected by the decision of the urban forester or his designee in the application or interpretation of any of the provisions of this chapter may appeal the decision of the division to the administrative hearing board established by section 12-13 of this Code. The appeal provided herein shall be taken by filing written notice thereof with the clerk of the urban county council, with a copy thereof to be filed with the urban forester within ten (10) days from notification of the decision. The written

notice provided for herein shall recite the reasons why the appeal is being taken. The appeal provided herein shall be heard at the first administrative hearing board meeting following the filing of the appeal, and the appellant shall be notified in writing.

(Ord. No. 28-2000, § 1, 2-10-00)

Sec. 12-75. Lists of acceptable vegetation.

Vegetation with characteristics which make them acceptable for use in riparian areas and which are recommended for buffer zones shall be set forth in lists provided by the current planning section and the division of engineering.

(Ord. No. 28-2000, § 1, 2-10-00)

Sec. 12-76. Penalty.

Any person violating any provision of this chapter shall be, upon conviction or a plea of guilty, subject to a fine of not less than fifty dollars ($50.00), nor more than five hundred dollars ($500.00).

(Ord. No. 28-2000, § 1, 2-10-00)

Secs. 12-77--12-80. Reserved.

Article IV

Blighted, Deteriorated, and Vacant Properties

Editor's note(s)—Ord. No. 78-2000, § 1, adopted March 23, 2000, set out provisions intended for use as Article III, §§ 12-71—12-83. Inasmuch as Ord. No. 28-2000, adopted February 10, 2000, set out provisions codified herein as Article III, §§ 12-71—12-76, these new provisions have been included as Article IV, §§ 12-81—12-93.

Sec. 12-81. Definitions.

Blighted or **deteriorated property** shall mean any vacant structure or vacant or unimproved lot or parcel of land in the Urban Service Area or in any residential neighborhood outside of the Urban Service Area:

(1) Which because of its physical condition or use is regarded as a public nuisance at common law or has been declared a nuisance in accordance with the housing, building, plumbing, fire or related codes; or

(2) Which because of physical condition, use or occupancy is considered an attractive nuisance to children, including but not limited to abandoned wells, shafts, basements, excavations, and unsafe fences or structures; or

(3) Which, because it is dilapidated, unsanitary, unsafe, vermin-infested or lacking in facilities or equipment required by the International Property Maintenance Code as adopted in chapter 12 of this Code, has been designated by the division of code enforcement as unfit for human habitation; or

(4) Which is a fire hazard or is otherwise dangerous to the safety of persons or property; or

(5) From which the utilities, plumbing, heating, sewerage or other facilities have been disconnected, destroyed, removed or rendered ineffective so that the property is unfit for its intended use; or

(6) Which by reason of neglect or lack of maintenance has become a place for accumulation of trash and debris or a haven for rodents or other vermin; or

(7) Which has been tax delinquent for a period of at least three (3) years; or

(8) Which has not been rehabilitated within the time constraints placed upon the owner by the appropriate governmental agency.

Redevelopment shall mean the planning or replanning, design or redesign, acquisition, clearance, development and disposal or any combination of these, of a property and the preparation of such property for residential or related uses as may be appropriate or necessary.

Residential and related use shall mean residential property for sale or rental, and related uses including, but not limited to, park and recreation areas, neighborhood community services and neighborhood parking lots.

Vacant property review commission or review commission shall mean the commission established by this code to review vacant properties to make a written determination of blight and deterioration.

(Ord. No. 78-2000, § 1, 3-23-00; Ord. No. 118-2015, § 2, 10-22-15)

Sec. 12-82. Vacant property review commission.

There is hereby created a vacant property review commission, whose purpose shall be as follows:

(a) To certify, to the urban county council, properties within the urban county that are blighted or deteriorated in the manner and form set forth in this article;

(b) To fulfill the duties provided in chapter 7, article IV, of the Code of Ordinances pertaining to abandoned urban properties;

(c) To assist the Lexington-Fayette Urban County Landbank Authority and the urban county council in identifying properties of any classification or use that are abandoned, blighted, deteriorated, or otherwise in a condition of non-productive use; and

(d) To perform other duties as may be assigned to it by the urban county council that are consistent with the general purpose of this article.

(Ord. No. 78-2000, § 1, 3-23-00; Ord. No. 138-2009, § 2, 7-7-09; Ord. No. 229-2009, § 1, 11-5-09)

Sec. 12-83. Membership.

The review commission shall consist of seven (7) members appointed by the mayor and approved by majority vote of the urban county council. The members of the review commission shall consist of:

(1) One (1) real estate agent or appraiser;

(2) One (1) representative of a local lending institution knowledgeable in the financing of residential property;

(3) One (1) representative who is a home builder or owner of rental property within the urban county;

(4) One (1) representative who holds an elected position within a neighborhood association;

(5) One (1) at-large member;

(6) One (1) member of the urban county council, who shall not be considered for purposes of determining the presence of a quorum and shall not be a voting member of the review commission; and

(7) One (1) member of the Office of Property Valuation Administrator, Fayette County, Kentucky, who shall not be considered for purposes of determining the presence of a quorum and shall not be a voting member of the review commission.

Members shall be at least twenty-one (21) years of age and shall have lived within the urban county for at least one (1) year immediately prior to appointment. The members of the commission shall serve without compensation. No officer or employee of the urban county government whose duties include enforcement of housing, building, plumbing, fire, or related codes shall be appointed to the review commission.

(Ord. No. 78-2000, § 1, 3-23-00; Ord. No. 229-2009, § 2, 11-5-09)

Sec. 12-84. Terms of members.

All review commission members shall serve four (4) years from the date of appointment, provided that the initial terms shall be staggered so that three (3) members are appointed for four (4) years and two (2) members are appointed for two (2) years. Vacancies shall be filled for the unexpired term in the manner prescribed for the original appointment.

(Ord. No. 78-2000, § 1, 3-23-00)

Sec. 12-85. Officers.

The officers of the review commission shall consist of a chairman and a vice-chairman to be designated by vote of the commission.

(Ord. No. 78-2000, § 1, 3-23-00)

Sec. 12-86. Quorum.

A majority of the five (5) voting members of the review commission shall constitute a quorum for the transaction of business at any meeting of the board. The acts of a majority of the quorum in any regular or special meeting of the review commission shall constitute acts of the review commission.

(Ord. No. 78-2000, § 1, 3-23-00; Ord. No. 229-2009, § 3, 11-5-09)

Sec. 12-87. Meetings.

Regular meetings shall be held at least once quarterly, and special meetings may be held as specified in the bylaws. All meetings shall be open to the public in a manner consistent with KRS 61.805—61.810.

(Ord. No. 78-2000, § 1, 3-23-00)

Sec. 12-88. Rules of procedure.

The review commission shall determine its own bylaws, rules and order of business and shall provide for keeping a record of its proceedings.

(Ord. No. 78-2000, § 1, 3-23-00)

Sec. 12-89. Power and duties.

(a) The urban county council shall not institute eminent domain proceedings pursuant to KRS 99.705 to 99.730 unless the review commission has certified that the property is blighted or deteriorated.

(b) A property which has been referred to the review commission by the appropriate government agency as blighted or deteriorated may only be certified to the urban county council as blighted or deteriorated after the review commission has determined:

(1) That the owner of the property, as determined by reference to the current tax assessment roll in the office of the property valuation administrator, or the owner's designated agent, has been notified through a notice or order by the appropriate government agency to eliminate the conditions which are in violation of local codes or law;

(2) That the property is vacant;

(3) That the property is blighted or deteriorated;

(4) That the review commission has notified the property owner or the owner's designated agent that the property has been determined to be blighted or deteriorated and the time period for correction of such condition has expired and the property owner or agent has failed to comply with the notice;

(5) That the property owner has been afforded the opportunity to a hearing before the review commission with regard to the finding of blight;

(6) That the planning commission has determined that the reuse of the property for residential and related uses is in keeping with the comprehensive plan.

(c) The findings required by subsection (b) of this section shall be in writing and included in the report to the urban county council.

(d) Upon making an initial determination of blight or deterioration and prior to the above certification to the urban county council, the review commission shall notify the owner of the property or the owner's designated agent that a determination of blight or deterioration has been made and that failure to eliminate the conditions causing the blight shall render the property subject to condemnation by the urban county government under this article and KRS chapter 99. This notice shall include the statement that the owner may request a hearing before the review commission to dispute the determination of blight or deterioration and the process by which such a hearing must be requested. Notice shall be mailed to the owner by certified mail, return receipt requested, at the owner's last known address as recorded with the Fayette County property valuation administrator or to the owner's designated agent. However, if the owner cannot be ascertained by the review commission in the exercise of reasonable diligence, copies of the notice shall be posted in a conspicuous place on the property affected.

(e) The written notice to the property owner or the owner's designated agent shall describe the conditions that render the property blighted or deteriorated and shall demand abatement of the conditions within ninety (90) days of the receipt of such notice. This notice shall include the statement that the owner may request a hearing before the review commission to dispute the determination of blight or deterioration and that such a request must be made in writing within twenty (20) days of the date of the notice from the review commission. If the notice is returned as not deliverable, the ninety (90) days shall commence upon the posting of the notice on the property. An extension of the ninety-day period may be granted by the review commission if the owner or his designated agent demonstrates that such period is insufficient to correct the conditions cited in the notice.

(Ord. No. 78-2000, § 1, 3-23-00; Ord. No. 229-2009, § 4, 11-5-09)

Sec. 12-90. Appeal of determination or valuation.

(a) The owner or the owner's designated agent of a property initially declared by the review commission to be blighted or deteriorated shall have the right to a hearing before the review commission for purposes of contesting the finding of blight or deterioration.

(b) The owner or other party in interest of any abandoned urban property may appeal such classification to the review commission.

(c) If a hearing is requested by the property owner, the request must be made in writing within twenty (20) days.

(d) The review commission shall attempt to schedule and hear all matters within thirty (30) days.

(Ord. No. 78-2000, § 1, 3-23-00; Ord. No. 229-2009, § 5, 11-5-09)

Sec. 12-91. Conduct of hearing.

Upon receipt of a request for hearing, the review commission shall set a time and place for hearing and shall give the appellant written notice thereof.

(Ord. No. 78-2000, § 1, 3-23-00)

Sec. 12-92. Eminent domain proceedings.

The urban county council may institute eminent domain proceedings pursuant to KRS Chapter 416 against any property which has been certified as blighted and/or deteriorated.

(Ord. No. 78-2000, § 1, 3-23-00)

Sec. 12-93. Acquisition by employees prohibited; disclosure required.

No member of the review commission or officer or employee of the urban county government shall acquire any interest in any property declared blighted.

(Ord. No. 78-2000, § 1, 3-23-00)

Chapter 13

Licenses and Regulations[1]

Article I. In General

Section 13-1. Definitions.
Section 13-2. Enforcing officers, powers and duties.
Section 13-3. Unlawful license not to be imposed.
Section 13-4. Who must obtain; basis of computation.
Section 13-5. Separate license for each place of business.
Section 13-6. Exempt activities.
Section 13-7. Deductions from employee compensation, payment; records.
Section 13-7. 1. Household workers, withholding requirements; returns required.
Section 13-7. 2. Federal Form 1099; responsibility to report.
Section 13-8. Separate returns; payments.
Section 13-8.1. Extension.
Section 13-8.2. Overpayment; refund.
Section 13-8.3. Authority of the urban county government to examine and audit the return.
Section 13-8.4. Collection or payment.
Section 13-9. Initial fee.
Section 13-10. Duty to collect; record of collections.
Section 13-11. Information confidential.
Section 13-12. Payment in arrears; failure to withhold.
Section 13-13. Special fees.
Section 13-14. Penalties—Revocation of license.
Section 13-14.1. Same—Fine, imprisonment.
Section 13-15. Same—Failure to obtain special fees license.
Section 13-15.1. Severability.

Article II. Special Licenses And Regulations

Section 13-16. Amusements—Endurance contests.
Section 13-17. Same—Offensive exhibitions in buildings, revocation of license.
Section 13-18. Same—Street fairs or carnivals, prohibited.
Section 13-19. Same—Excessive crowds in theaters, etc.

1. **Charter reference(s)**—Authority to license, tax and regulate all privileges, occupations, trades and professionals authorized by law, § 3.02(2).
State law reference(s)—See Constitution, § 181; license taxes, KRS ch. 137.

Section 13-20. Definitions.
Section 13-20.1. Off-premises sales.
Section 13-20.2. Grant/refusal of license or permit; time period.
Section 13-20.3. Notification.
Section 13-20.4. Temporary sale or display.
Section 13-20.5. Regulations and forms.
Section 13-20.6. Violation; fine.
Section 13-20.7. Fees.
Sections 13-21, 13-22. Reserved.
Section 13-23. Auctions, closing out sales, liquidation sales and other special sales—Implied warranty by auctioneer.
Section 13-24. Same—"Cappers," "boosters" and "by-bidders" at auctions.
Section 13-25. Same—Days and hours of auctions.
Section 13-26. Reserved.
Section 13-27. Auctions, etc.—Sales on streets prohibited.
Sections 13-28, 13-29. Reserved.
Section 13-30. Coal and other solid fuels—Delivery tickets, weighing load.
Section 13-31. Same—Operation under assumed name.
Section 13-32. Reserved.
Section 13-33. Same—Hours of delivery.
Section 13-34. Same—Violations, penalties.
Section 13-35. Coin-operated machines—Music, pinball; license fees.
Section 13-36. Same—Application for license.
Section 13-37. Same—Notice of ownership change.
Section 13-38. Same—Affixing owner's name to machine.
Section 13-39. Same—When owner to pay license tax.
Section 13-40. Same—Nonpayment of license tax.
Section 13-41. Ice—Sales regulated; chemical analysis certificates; penalties.
Section 13-42. Same—Sale by weight, penalty.
Section 13-43. Same—Weighing, penalty.
Section 13-44. Insurance; time of payment of license tax when amount based on premiums.
Sections 13-45—13-49. Reserved
Section 13-50. Surety bond companies, license tax.
Section 13-51. Musical instruments, demonstrations to be indoors.
Section 13-52. Pawnbrokers and loan agencies—Daily reports of pawnbrokers.
Section 13-53. Same—Business hours.
Section 13-54. Secondhand and junk dealers—Records, reports, retention of goods by secondhand dealers.

Section 13-54.1. [Definitions.]
Section 13-54.2. Scrap metal dealer license application process.
Section 13-54.3. Administrative requirements of scrap metal dealers.
Section 13-54.4. Retention of certain purchased regulated scrap material by scrap metal dealers.
Section 13-54.5. [Prohibited purchases.]
Section 13-54.6. Penalties and appeals process.
Section 13-55. Reserved.
Section 13-55.1. Trailer parks; operators to keep register, make reports of occupants for assessment information.
Sections 13-56—13-61. Reserved.
Section 13-62. Permit required for possession, sale of explosives, contents of permit; fee; logging of sales; penalty.
Section 13-63. Emergency communications system; fee.
Section 13-64. Inter-hospital and institutional medical transportation services; fee.
Section 13-65. Emergency medical treatment unit; fee.
Section 13-65.1. Emergency ambulance service; fee.

Article III. Precious Metals Dealers

Section 13-66. License required.
Section 13-67. Records required; inspection by police; retention of articles; exceptions.
Section 13-68. Bond.
Section 13-69. Purchases from minors; purchases of stolen goods.
Section 13-70. Penalty for violation of article.

Article IV. Alarm System Businesses

Section 13-71. License and permit required.
Section 13-72. Application for alarm business license.
Section 13-72.1. License denial, suspension and revocation.
Section 13-72.2. Alarm company duties and services.
Section 13-72.3. Alarm user duties.
Section 13-72.4. Application for alarm user permit.
Section 13-72.5. Proprietor alarms.
Section 13-72.6. Alarm administrator.
Section 13-73. Contents of application; fee; validity.
Section 13-73.1. Confidentiality of information.
Section 13-73.2. False alarms.
Section 13-73.3. Appeal of warning notice, civil fines, suspension and revocation.
Section 13-73.4. Reinstatement.
Section 13-73.5. Alarm advisory board.

Section 13-74. Shutoff device.
Section 13-75. Penalties and fines for violation of article.

Article V. Short Term Rentals

Section 13-76. Definitions.
Section 13-77. Short-term rental special fee license.
Section 13-78. Taxes.
Section 13-79. Duties of a licensee.
Section 13-80. Advertising on a hosting platform.
Section 13-81. Enforcement.
Section 13-82. Appeals.

Article VI. Medicinal Cannabis Businesses

Section 13-83. Definitions.
Section 13-84. Medicinal cannabis business special fees license.
Section 13-85. Cultivator.
Section 13-86. Dispensary.
Section 13-87. Producer.
Section 13-88. Processor.
Section 13-89. Safety compliance facility.
Section 13-90. Taxes.
Section 13-91. Enforcement and appeals.
Section 13-92. Procedure to deny, revoke, or fail to renew a special fees license.

Article I

In General[1]

Sec. 13-1. Definitions.

The following words, when used in this chapter, shall have the meanings ascribed to them in this section except where the context clearly indicates or requires a different meaning:

Alarm administrator: The person designated by the urban county government to administer, control and review the urban county government's alarm system ordinances, regulations and procedures. The chief of the division of police or his designee shall be the alarm administrator.

Alarm advisory board: The five (5) member board created by section 13-73.5 of the Code.

Alarm business: The activity of any individual, partnership, corporation or other entity involving the sale, lease, maintenance, service, repair, alteration, monitoring, movement or installation of any alarm device within or on any building, structure or facility. This definition does not include a business that engages in the manufacture or sale of an alarm system from a fixed location and does not visit the location where the alarm system is to be installed, nor designs the scheme for physical location and installation of the alarm system in a specific location.

Alarm business license: A license issued to an alarm company to sell, lease, install, monitor, maintain, repair, or replace alarm systems in the urban county.

Alarm company: A person or business entity involved in selling, leasing, maintaining, servicing, repairing, altering, replacing, moving, installing or monitoring an alarm system.

Alarm dispatch request: A notification to a law enforcement agency that an alarm, either manual or automatic, has been activated at a particular alarm site.

Alarm registration: The notification by an alarm company or an alarm user to the alarm administrator that an alarm system has been installed and is in use.

Alarm site: A single fixed premises or location serviced by an alarm system or systems. If served by a separate alarm system, each unit in a multi-unit building or structure shall be considered a separate alarm site.

Alarm system: Any mechanical or electrical device or series of devices, designed or used for the detection of an unauthorized entry into a building, structure or facility, or for alerting others of the commission of an unlawful act within a building, structure or facility, or both; and which emit a sound or transmit a remote or local audible, visual or electronic signal or message when activated. Alarm systems include, but are not limited to, systems interconnected with a radio frequency method such as cellular or private radio signals, direct-dial telephone devices,

1. **Editor's note(s)**—Section 1 of Ord. No. 147-90, adopted July 5, 1990, amended and reenacted this article in its entirety. Section 2 declared the ordinance effective Jan. 1, 1991.

audible alarms and proprietor alarms. Devices which are not designed or used to register alarms that are audible, visible or perceptible outside of the protected buildings, structure or facility are not included within this definition, nor are auxiliary devices installed by the telephone company to protect telephone company systems which might be damaged or disrupted by the use of an alarm system. "Alarm system" does not include audible alarms affixed to automobiles or on someone's person.

Conversion: The transaction or process by which one (1) alarm company begins servicing, maintaining or monitoring of a previously unmonitored alarm system or an alarm system previously serviced or monitored by another alarm company.

Corporation: A corporation or joint stock association organized under the laws of the United States, the Commonwealth of Kentucky, or any other state, territory or foreign country or dependency.

Direct line: A telephone line leading directly from a location to the communication center of the division of police, where said line is used only to report emergency signals.

Division of revenue: The division created by the Charter of the Lexington-Fayette Urban County Government and charged with the collection of all income, revenues and monies due the urban county government.

Duress alarm: A silent alarm system signal generated by the manual activation of a device intended to signal a life threatening situation or a crime in progress requiring law enforcement response. A duress alarm signal is generally not verified.

Emergency ambulance service: Any person or business operating or maintaining vehicles for the health, care and transportation of persons who are sick, injured or otherwise incapacitated in emergency situations pursuant to chapter 18C of the Lexington-Fayette Urban County Government Code of Ordinances.

Employee: Any person who renders services to another person or any business entity for compensation, including an officer of a corporation and any officer, employee, or elected official of the United States, a state, or any political subdivision of a state, or any agency of instrumentality of any one (1) or more of the above. A person classified as an independent contractor under the Internal Revenue Code shall not be considered an employee.

Employer: An individual, partnership, association, corporation, governmental body or unit or administration or agency, or any other entity, who or that employs one (1) or more persons on a salary, wage, commission or other compensation basis, regardless of whether such employer is engaged in business as above defined, or is excluded by the terms of such definition.

False alarm: An alarm dispatch request to a law enforcement agency, when the responding officer finds no evidence of a criminal offense or attempted criminal offense after having completed an investigation of the alarm site.

Fiduciary: A person or other entity who holds in trust property, monies or other assets, to which another has a beneficial title or interest, or who receives and controls income for another person or persons.

Fiscal year: An accounting period of twelve (12) months.

Gross receipts: The total income, revenue, sales or fees of a business activity.

Holdup alarm: A silent alarm signal generated by the manual activation of a device intended to signal a robbery in progress. A holdup alarm is generally not verified.

Household worker: An individual employed to drive his employer in the capacity of a chauffeur or employed on the grounds or in the home of his employer in activities to care for or wait upon the employer, the employer's family or guests, or to care for the home, grounds and/or vehicle of the employer or the employer's family or guests, not including such individuals who are employed by a cleaning service, personal nursing service, chauffeuring service or other entity which offers the services of its employees to the public.

Independent contractor: A person who is subject to the control and direction of another only as to the result of his work, and not as to means, and who is therefore not an employee, as further defined by United States official treasury regulations.

Internal Revenue Code: With respect to occupational license fees shall mean the Internal Revenue Code as defined by KRS 67.750.

Itinerant merchant: An individual who does not have a permanent business location in Fayette County and who sells items of merchandise by means other than peddling.

Licensee: Any person, whether an individual, partnership, association, corporation or other legal entity, required to file an occupational license fee return or pay occupational license fees on net profits or wages or withhold an occupational license fee on employee wages to the urban county government under this chapter.

Limited liability company: An entity organized under KRS Chapter 275 or comparable laws of the United States or any other state, territory or foreign country or dependency. For purposes of this chapter, a limited liability company shall have the same entity classification as that elected for IRS federal income tax filings and shall be assessed occupational license fees accordingly under this chapter and all regulations promulgated hereunder.

Local alarm system: Any alarm system that annunciates an alarm only by a local or external audio device.

Monitoring: The process by which an alarm company receives signals from an alarm system and relays an alarm dispatch request to the responding local law enforcement agency for the purpose of summoning law enforcement personnel to the alarm site.

Net profit: Gross income as defined in Section 61 of the Internal Revenue Code minus all the deductions from gross income allowed by Chapter 1 of the Internal Revenue Code, and adjusted as follows:

> Include any amount claimed as a deduction for state tax or local tax which is computed, in whole or in part, by reference to gross or net income and which is paid or accrued to any state of the United States, local taxing authority in a state, the District of Columbia, the Commonwealth of Puerto Rico, any territory or possession of the United States, or any foreign country or political subdivision thereof;

Include any amount claimed as a deduction that directly or indirectly is allocable to income which is either exempt from taxation or otherwise not taxed;

Include any amount claimed as a net operating loss carryback or carryforward allowed under Section 172 of the Internal Revenue Code;

Include any amount of income and expenses passed through separately as required by the Internal Revenue Code to an owner of a business entity that is a pass-through entity for federal tax purposes; and

Exclude any amount of income that is exempt from state taxation by the Kentucky Constitution, or the Constitution and statutory laws of the United States.

Nonresident: An individual, corporation, partnership, fiduciary, association or other entity that is not domiciled or does not have a business situs in Fayette County.

Occupational license fee: For purposes of this chapter, this term shall have the same meaning as occupational license tax and those terms shall be interchangeable.

One plus duress alarm: The manual activation of a silent alarm signal by entering at an arming station a code that adds one (1) digit to the last digit of the normal arm/disarm code (for example, if the normal code is 1234, the One Plus Duress Code is 1235).

Panic alarm: An audible alarm system signal generated by the manual activation of a device intended to signal a life threatening or emergency situation requiring law enforcement response. A panic alarm is generally not verified.

Partnership: Any unincorporated enterprise of two (2) or more persons engaged in any business, profession or occupation recognized as a partnership for federal income tax purpose.

Peddler: An individual who carries his merchandise with him while traversing the streets, sidewalks or alleys of Fayette County for the purpose of exhibiting and selling such merchandise.

Person: Every natural person, sole proprietorship, partnership, fiduciary, association or corporation. Whenever the term "person" is used in any clause prescribing and imposing a penalty in the nature of a fine or imprisonment, the word, as applied to associations, shall mean the partners or members thereof and as applied to corporations, the officers and directors.

Place of business: Any bona fide office (other than a mere statutory office), factory, warehouse, or other space which is occupied and used by the licensee in carrying on any business activity, individually or through one (1) or more of his employees regularly in attendance.

Precious metals dealer: Any business, excluding banking institutions, licensed to do business in the commonwealth, and broker-dealers licensed with the department of securities of the commonwealth, making any second-

hand purchase of gold, silver or platinum, whether in the form of bulk metal, coins, watches, jewelry or any other form. The term "secondhand purchase" shall not include any purchase made by a retailer or wholesaler from a bona fide manufacturer.

Proprietor alarm: An alarm system which is not serviced by an alarm business.

Resident: An individual, partnership, association, corporation or other entity domiciled or having a business situs in Fayette County.

Sales revenue: Receipts from the sale, lease, or rental of goods, services, or property;

Sales within the urban county: Includes the following:

Sales, lease, or rental of merchandise delivered to a customer or deemed to have risen from the licensee's activity within Fayette County, or

Sales, lease, or rental of services performed within Fayette County for a customer.

Sole proprietor: A natural person engaged in any business, profession or occupation, but not as an employee.

Tax year: The calendar year or the fiscal year used by the licensee for calculation of annual net profits.

Taxable net profit only within the urban county government: In case of a business entity having payroll or sales revenue only within the urban county government, net profit as defined in subsection (27) of this section;

Taxable net profit both within and without the urban county government: In case of a business entity having payroll or sales revenue both within and without the urban county government, net profit as defined in subsection (27) of this section, and as apportioned under section 13-4.

Temporary mall merchant: An individual who does not have a permanent location in Fayette County, who sells a service or items of merchandise from within an enclosed mall.

Transfer or takeover: The transaction or process by which an alarm user takes over control of an existing alarm system previously controlled by another alarm user.

Transportation ambulance service: Any person or business operating or maintaining vehicles for health care transportation for patients with stable conditions or for individuals whose impaired health condition does not indicate a need for emergency medical treatment during transit.

Urban county: Fayette County.

Urban county government: Lexington-Fayette Urban County Government.

Verify: With reference to the monitoring of an alarm system, means a minimum of two (2) attempts by the alarm company, or its representative, to contact the alarm site of the alarm user by telephonic or other electronic means, whether actual contact with a person is made, before requesting law enforcement assistance or dispatch, in an

attempt to avoid false alarms. Telephone verification shall require, as a minimum, that a second call be made to a different number if the first attempt fails to reach an alarm user who can properly identify themselves to determine whether an alarm signal is valid before requesting law enforcement assistance or dispatch.

Zones: Subdivisions into which an alarm system is divided to indicate the general location from which an alarm system signal is transmitted.

(Ord. No. 19-81, § 1, 2-5-81; Ord. No. 53-81, § 1, 3-19-81; Ord. No. 52-83, § 1, 4-7-83; Ord. No. 143-83, § 1, 8-25-83; Ord. No. 209-85, § 1, 10-17-85; Ord. No. 18-86, § 1, 2-20-86; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 207-91, § 1, 10-8-91; Ord. No. 78-94, § 1, 5-19-94; Ord. No. 225-97, § 1, 10-30-97; Ord. No. 175-99, §1, 6-29-99; Ord. No. 311-99, §§ 1—3, 11-4-99; Ord. No. 60-2000, §§ 1, 2, 3-9-00; Ord. No. 335-2000, § 1, 11-9-00; Ord. No. 246-2004, §§ 1, 2, 9-28-04; Ord. No. 56-2005, § 1, 3-10-05; Ord. No. 267-2007, § 1, 12-6-07)

Sec. 13-2. Enforcing officers, powers and duties.

(a) The commissioner of finance is hereby charged with the enforcement of the provisions of this article and is hereby empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter or thing pertaining to the administration and enforcement of the provisions of this article, including, but not limited to, provisions for the reexamination and correction of returns as to which an overpayment or underpayment is claimed or found to have been made; and the rules and regulations promulgated by him shall be binding upon the licensee and the employers.

(b) The commissioner of finance or any agent or employee designated in writing by him is hereby authorized to examine and copy the books, papers and records of any employer or supposed employer or of any licensee or supposed licensee in order to determine the accuracy of any return made, or if no return was made, to ascertain the amount of license fee imposed by the terms of this article. Each such employer or supposed employer or licensee or supposed licensee is hereby directed and required to give to the commissioner of finance or his duly authorized agent or employee the means, facilities and opportunity for such examination and investigation as are hereby authorized. The commissioner of finance is hereby authorized to examine any person under oath concerning any wages, salaries, commissions or other compensation or net profits which were or should have been reported; and to this end he may compel the production of books, papers, records and the attendance of all persons before him, whether as parties or witnesses, whom he believes to have knowledge of such wages, salaries, commissions or other compensation or net profits, to the extent that any officer empowered to administer oaths in this state is permitted to so order.

(c) Every business entity subject to an occupational license tax governed by the provisions of this ordinance shall keep records, render under oath statements, make returns, and comply with rules as the urban county government from time to time may prescribe. Whenever the urban county government deems it necessary, the urban county government may require a business entity, by notice served to the business entity, to make a return, render statements under oath, or keep records, as the urban county government deems sufficient to determine the tax liability the business entity.

(d) The urban county government may require, for the purpose of ascertaining the correctness of any return or for the purposes of making an estimate of the taxable income of any business entity, the attendance of a representative of the business entity or of any other person having knowledge in the premises.

(Ord. No. 147-0, § 1, 7-5-90; Ord. No. 225-97, § 2, 10-30-97; Ord. No. 267-2007, § 2, 12-6-07)

Sec. 13-3. Unlawful license not to be imposed.

(1) It shall be unlawful for any person to operate a business in the urban county without a license issued pursuant to section 13-9.

(2) It is not the intention of the urban county government or of this article to impose and require an occupational license fee prohibited by the law.

(Ord. No. 147-90, § 1, 7-5-90; Ord. No. 243-91, § 1, 11-21-91)

Sec. 13-4. Who must obtain; basis of computation.

(a) Except as provided in section 13-6, every person or business entity engaged in any business for profit and any person or business entity that is required to make a filing with the Internal Revenue Service or the Kentucky Revenue Cabinet shall be required to file and pay to the urban county government an occupational license tax for the privilege of engaging in such activities within the urban county government. The occupational license tax shall be measured by two and one-quarter (2.25) percent of:

(1) All wages and compensation paid or payable in the urban county government for work done or services performed or rendered in the urban county government by every resident and nonresident who is an employee; and

(2) The net profit from business conducted in the urban county government by a resident or nonresident business entity.

(b) Where salaries, wages, commissions and other trade compensations are paid under subsection (a)(1) above for any business, trade, occupation, profession or other activity in the urban county, such license fee shall be computed by obtaining the percentage which the compensation for any business, trade, occupation, profession or other activity in the urban county bears to the total compensation.

(c) The net profits of businesses, trades, occupations, professions and other activities conducted in the urban county under subsection (a)(2) above shall be computed as follows:

(1) Except as provided in subsection (c)(4) of this section, net profit shall be apportioned as follows:

(a) For business entities with both payroll and sales revenue in more than one (1) tax district, by multiplying the net profit by a fraction, the numerator of which is the payroll factor, described in subsection (c)(2) of this section, plus the sales factor, described in subsection (c)(3) of this section, and the denominator of which is two (2); and

(b) For business entities with sales revenue in more than one (1) tax district, by multiplying the net profit by the sales factor as set forth in subsection (c)(3) of this section.

(2) The payroll factor is a fraction, the numerator of which is the total amount paid or payable in the urban county government during the tax period by the business entity for compensation, and the denominator of which is the total compensation paid or payable by the business entity everywhere during the tax period. Compensation is paid or payable in the urban county government based on the time the individual's service is performed within the urban county government.

(3) The sales factor is a fraction, the numerator of which is the total sales revenue of the business entity in the urban county government during the tax period, and the denominator of which is the total sales revenue of the business entity everywhere during the tax period.

(a) The sale, lease, or rental of tangible personal property is in the urban county government if:

1. The property is delivered or shipped to a purchaser, other than the United States government, or to the designee of the purchaser within the urban county government regardless of the f.o.b. point or other conditions of the sale; or

2. The property is shipped from an office, store, warehouse, factory, or other place of storage in the urban county government and the purchaser is the United States government.

(b) Sales revenues, other than revenues from the sale, lease or rental of tangible personal property or the lease or rental of real property, are apportioned to the urban county government based upon a fraction, the numerator of which is the time spent in performing such income-producing activity within the urban county government and the denominator of which is the total time spent performing that income-producing activity.

(c) Sales revenue from the sale, lease, or rental of real property is allocated to the tax district where the property is located.

(4) If the apportionment provisions of this section do not fairly represent the extent of the business entity's activity in the urban county government, the business entity may petition the urban county government or the urban county government may require, in respect to all or any part of the business entity's business activity, if reasonable:

(a) Separate accounting;

(b) The exclusion of any one (1) or more of the factors;

(c) The inclusion of one (1) or more additional factors which will fairly represent the business entity's business activity in the urban county government; or

(d) The employment of any other method to effectuate an equitable allocation and apportionment of net profit.

(5) When compensation is paid or payable for work done or services performed or rendered by an employee, both within and without the urban county government, the license tax shall be measured by that part of the compensation paid or payable as a result of work done or service performed or rendered within the urban county government. The license tax shall be computed by obtaining the percentage which the compensation for work performed or services rendered within the urban county government bears to the total wages and compensation paid or payable. In order for the urban county government to verify the accuracy of a taxpayer's reported percentages under this subsection, the taxpayer shall maintain adequate records.

(6) All partnerships, S corporations, and all other entities where income is "passed through" to the owners are subject to this ordinance. The occupational license tax imposed in this ordinance is assessed against income before it is "passed through" these entities to the owners.

(7) If any business entity dissolves, ceases to operate, or withdraws from the urban county government during any taxable year, or if any business entity in any manner surrenders or loses its charter during any taxable year, the dissolution, cessation of business, withdrawal, or loss or surrender of charter shall not defeat the filing of returns and the assessment and collection of any occupational license tax for the period of that taxable year during which the business entity had business activity in the urban county government.

(8) If a business entity makes, or is required to make, a federal income tax return, the occupational license tax shall be computed for the purposes of this ordinance on the basis of the same calendar or fiscal year required by the federal government, and shall employ the same methods of accounting required for federal income tax purposes.

(9) All business entity returns for the preceding taxable year shall be made by April 15 of each year, except returns made on the basis of a fiscal year, which shall be made by the fifteenth day of the fourth month following the close of the fiscal year. Blank forms for returns shall be supplied by the urban county government.

(10) Every business entity shall submit a copy of its federal income tax return and all supporting statements and schedules at the time of filing its occupational license tax return with the urban county government. Whenever, in the opinion of the urban county government, it is necessary to examine the federal income tax return of any business entity in order to audit the return, the urban county government may compel the business entity to produce for inspection a copy of any statements and schedules in support thereof that have not been previously filed. The urban county government may also require copies of reports of adjustments made by the federal government.

(11) The full amount of the unpaid tax payable by any business entity, as appears from the face of the return, shall be paid to the urban county government at the time prescribed for filing the occupational license tax return, determined without regard to any extension of time for filing the return.

(Ord. No. 3583, § 1, 12-27-56; Ord. No. 99-72, § 1, 5-25-72; Ord. No. 164-83, § 2, 9-22-83; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 236-93, § 2, 12-9-93; Ord. No. 82-95, § 1, 8-31-95; Ord. No. 128-2000, § 1, 5-4-00; Ord. No. 336-2000, § 1, 11-9-00; Ord. No. 79-2006, § 1, 4-13-06; Ord. No. 267-2007, § 3, 12-6-07)

Sec. 13-5. Separate license for each place of business.

(a) Every person and business entity engaged in any business in the urban county shall be required to apply for and obtain an initial occupational license from the urban county government before the commencement of business or in the event of a change of business status, and annually thereafter if otherwise required. Licensees are required to notify the urban county government of any changes in address, the cessation of business, or any other changes which render the information supplied to the urban county government in the license application inaccurate.

(b) All licenses now or hereafter issued pursuant to ordinances of the urban county government requiring a license for any business, profession, trade or occupation shall authorize the conducting of business at no more than one (1) place; and a separate license must be procured annually for each place from which business is conducted unless the ordinance providing for the license shall specifically provide otherwise; however, the place at which the business is conducted may, with the consent of the director, division of revenue, unless otherwise provided, be changed during the license period.

(c) The foregoing provisions regarding the requirement of an additional license for each additional place of business conducted by any licensee shall be applied in the construction of all license ordinances of the urban county government.

(Ord. No. 147-90, § 1, 7-5-90; Ord. No. 267-2007, § 4, 12-6-07; Ord. No. 160-2008, § 1, 6-26-08; Ord. No. 170-2010, § 1, 10-14-10)

Cross reference(s)—Transfer of alcoholic beverage license, § 3-8.

Sec. 13-6. Exempt activities.

(a) No license under this article shall be required of nonresidents who sell farm products, other than trees, shrubs, or ornamental plants, in the urban county; or nonresident owners who sell livestock in the urban county or who board their livestock in the urban county for breeding purposes. The activities described in this subsection shall not constitute being engaged in any occupation, trade, profession or other activity as defined in section 13-4 of this article.

(b) Natural persons of the age of sixty-five (65) and older shall be exempt from the provisions of the occupational license fee as to the first three thousand dollars ($3,000.00) of salaries, wages, commissions or other compen-

sation earned by such persons in the urban county for work done or services performed or rendered in the urban county, and the first three thousand dollars ($3,000.00) of net profits of any business, profession or occupation conducted in the urban county.

(c) No license under this article shall be required of any person authorized by the Lexington-Fayette Urban County Government to demonstrate, sell or offer for sale any goods, wares or merchandise at any festival or special event sponsored by the urban county government or its departments.

(d) No license under this article shall be required of precinct workers for election training or work at election booths in state, county, and local primary, regular, or special elections within the urban county.

(e) No license under this article is required where expressly exempted elsewhere by ordinance, federal or state law.

(f) Any bank, trust company, combined bank and trust company, or trust, banking and title insurance company organized and doing business in this state, any savings and loan association whether state or federally chartered.

(g) Public service corporations that pay an ad valorem tax on property valued and assessed by the Kentucky Department of Revenue pursuant to the provisions of KRS 136.120. Licensees whose businesses are predominantly non-public service who are also engaged in public service activity are required to pay a license fee on their net profit derived from the non-public service activities apportioned to the urban county government.

(h) Persons or business entities that have been issued a license under KRS Chapter 243 to engage in manufacturing or trafficking in alcoholic beverages. Persons engaged in the business of manufacturing or trafficking in alcoholic beverages are required to file a return, but may exclude the portion of their net profits derived from the manufacturing or trafficking in alcoholic beverages.

(i) Insurance companies incorporated under the laws of and doing business in the Commonwealth of Kentucky, except as provided in KRS 91A.080.

(j) Any compensation received by members of the Kentucky national guard for active duty training, unit training assemblies and annual field training.

(k) Funds received from the state as a share of the tobacco settlement funds to be paid to farmers is exempt from inclusion in net profits for the purpose of calculating the net profits which are subject to this occupational license fee as follows:

(1) Any amount received by a producer of tobacco or a tobacco quota owner from the multi-state settlement with the tobacco industry, known as the Master Settlement Agreement, signed on November 22, 1998;

(2) Any amount received from the secondary settlement fund, referred to as "Phase II", established by tobacco companies to compensate tobacco farmers and quota owners for anticipated financial losses caused by the national tobacco settlement;

(3) Any amount received from funds of the Commodity Credit Corporation for the Tobacco Loss Assistance Program as a result of a reduction in the quantity of the tobacco quota allotted from the 1998 to the 1999 calendar year as provided under Public Law 106-78 Title 8 sec. 803; and

(4) Any amount received as a result of a tobacco buydown program that all quota owners and growers are eligible to participate in.

(l) Individuals and sole proprietorships who file a return as prescribed by section 13-8 which reports gross receipts of four thousand four hundred dollars ($4,400.00) or less for a tax year shall not be required to pay the annual minimum license fee provided in section 13-9 after initial licensure of that business, or the net profit occupational license fees for that tax year.

(Ord. No. 123-74, § 1, 7-18-74; Ord. No. 63-77, § 1, 3-8-77; Ord. No. 158-79, § 1, 6-28-79; Ord. No. 70-83, § 1, 5-5-83; Ord. No. 169-88, § 3, 7-14-88; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 105-94, § 1, 6-16-94; Ord. No. 225-97, § 3, 10-30-97; Ord. No. 238-99, § 1, 8-26-99; Ord. No. 79-2006, § 2, 4-13-06; Ord. No. 267-2007, § 5, 12-6-07; Ord. No. 170-2010, § 2, 10-14-10; Ord. No. 080-2024, § 7, 7-9-24)

Sec. 13-7. Deductions from employee compensation, payment; records.

(a) Every employer making payment of compensation to an employee shall deduct and withhold from the compensation an occupational license tax calculated under subsection 13-4(a).

(b) The payment required to be made on account of deductions by employers shall be made quarterly to the urban county government, for the quarterly periods ending the thirty-first day of March, the thirtieth day of June, the thirtieth day of September, and the thirty-first day of December, on or before the last day of the month following the quarter of such deduction; however, any employer withholding three hundred dollars ($300.00) or more license fee during any quarter shall file a return and pay the license fee withheld monthly. The return for the first two (2) months of the quarter shall be filed on forms provided by the urban county government within fifteen (15) days following the close of the month. The return of the third month of the quarter shall be filed by the end of the month following the close of the quarter. The employer may be permitted or required to report within a reasonable time after some other period as determined by the urban county government.

(c) Every employer who fails to withhold or pay to the urban county government any sums required by this ordinance to be withheld and paid shall be personally and individually liable to the urban county government for any sum or sums withheld or required to be withheld in accordance with the provisions of this section.

(d) The urban county government shall have a lien upon all the property of any employer who fails to withhold or pay over to the urban county government sums required to be withheld under this section. If the

employer withholds, but fails to pay the amounts withheld to the urban county government, the lien shall commence as of the date the amounts withheld were required to be paid to the urban county government. If the employer fails to withhold, the lien shall commence at the time the liability of the employer is assessed by the urban county government.

(e) Every employer required to deduct and withhold tax under this section shall annually on or before February 28 of each year complete and file on a form furnished or approved by the urban county government a reconciliation of the occupational license tax withheld where compensation is paid or payable to employees. Either copies of federal forms W-2 and W-3, transmittal of wage and tax statements, or a detailed employee listing with the required equivalent information, as determined by the urban county government, shall be submitted.

(f) Every employer shall furnish each employee a statement on or before January 31 of each year showing the amount of compensation and occupational license tax deducted by the employer from the compensation paid to the employee for payment to the urban county government during the preceding calendar year.

(g) An employer shall be liable for the payment of the tax required to be deducted and withheld under this section.

(h) The president, vice president, secretary, treasurer or any other person holding an equivalent corporate office of any business entity subject to this section shall be personally and individually liable, both jointly and severally, for any tax required to be withheld from compensation paid or payable to one or more employees of the business entity, and neither the corporate dissolution or withdrawal of the business entity from the urban county government, nor the cessation of holding any corporate office, shall discharge that liability; provided that the personal and individual liability shall apply to each and every person holding the corporate office at the time the tax becomes or became obligated. No person shall be personally and individually liable under this subsection unless such person had authority to collect, truthfully account for, or pay over the tax imposed by this article at the time that the taxes imposed by this article become or became due.

(i) Not withstanding subsections (a) and (g) of this section, every employee receiving compensation in the urban county government subject to the tax imposed under section 13-4 of this ordinance shall be personally liable for any amount due. In all cases where the employer does not withhold the tax levied under this article from the employee, such employee or employees shall be responsible for filing with the urban county government each quarter in the same manner as if they were the employer.

(Ord. No. 100-71, § 1, 6-24-71; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 108-94, §§ 1, 2, 6-16-94; Ord. No. 267-2007, § 6, 12-6-07)

Sec. 13-7. 1. Household workers, withholding requirements; returns required.

Except in the case of a household worker that resides in the employer's household, withholding of occupational license fee is not required on compensation paid to household workers employed exclusively in or about a private residence. However, a household worker who receives gross compensation of one thousand dollars ($1,000.00) or

more in a calendar year shall be deemed to be engaged in an activity which requires the worker to obtain an urban county government license and identification number, to file an annual return and to remit the license fee due as shown on said return if:

(1) The worker is eighteen (18) years of age or older; or

(2) The worker is not a student and engages in household work as a principal occupation.

(Ord. No. 225-97, § 4, 10-30-97)

Sec. 13-7. 2. Federal Form 1099; responsibility to report.

It shall be the responsibility of persons who make Federal Form 1099 "non-employee compensation" payment to natural persons other than employees for services performed within the urban county government, to maintain records of such payments and to report such payments to the urban county government. Said payments must be reported on by remitting Federal Form 1099 by February 28 of the year following the close of the calendar year in which the nonemployee compensation was paid. The information required to be reported by said licensee shall include:

(a) Payer's name, address, Social Security and/or federal identification number.

(b) Recipient's name and address.

(c) Recipient's Social Security and/or federal identification number.

(d) Amount of nonemployee compensation paid in the calendar year.

(Ord. No. 267-2007, § 7, 12-6-07)

Sec. 13-8. Separate returns; payments.

(a) Each person subject to a license fee imposed by this article shall, on or before the fifteenth day of the fourth month following the closing of each year, make and file with the division of revenue, a return, on a form furnished or obtainable from the division of revenue, setting forth the aggregate amount of salaries, wages, commissions and other compensation or net profits it had during the preceding year, with such other pertinent information as the commissioner of finance may require. The annual returns required by the provisions of this article must be filed regardless of profit or loss for the filing year; however, where the entire license due under this article has been withheld under the provisions hereof, the commissioner of finance may waive the filing of such return by such licensee; further, where the fiscal year of the business, profession or other activity differs from the calendar year and the licensee filed a federal income tax return for such other fiscal period, the license fee shall be measured by the net profits of the fiscal year, and where the return is made for a fiscal year or any other period different from a calendar year, such return shall be made on or before the fifteenth day of the fourth month following the end of such fiscal year or other period. Such return shall also show the amount of the license fee imposed by this article.

(b) The person making the return shall, at the time of the filing thereof, pay to the division of revenue the amount of license fees shown as due thereon, if any; however, where any portion of the license fee so due shall have been deducted at the source, credit for such amount shall be deducted from the amount shown to be due and only the balance, if any, shall be due and payable at the time of the filing of such return, as hereinabove provided.

(c) Every business entity, other than a sole proprietorship, subject to taxation under this ordinance, shall make quarterly estimated tax payments on or before the fifteenth day of the fourth, sixth, ninth, and twelfth month of each taxable year if the tax liability for the taxable year exceeds five thousand dollars ($5,000.00).

(d) The quarterly estimated tax payments required under subsection (c) of this section shall be based on the lesser of:

(1) Twenty-two and one-half (22.5) percent of the current taxable year tax liability;

(2) Twenty-five (25) percent of the preceding full year taxable year tax liability; or

(3) Twenty-five (25) percent of the average tax liability for the three (3) preceding full year taxable years' tax liabilities if the tax liability for any of the three (3) preceding full taxable years exceeded twenty thousand dollars ($20,000.00).

(e) Any business entity that fails to submit the minimum quarterly payment required under subsection (d) of this section by the due date for the quarterly payment shall pay an amount equal to twelve (12) percent per annum simple interest on the amount of the quarterly payment required under subsection (d) of this section from the earlier of:

(1) The due date for the quarterly payment until the time when the aggregate quarterly payments submitted for the taxable year equal the minimum aggregate payments due under subsection (d) of this section; or

(2) The due date of the annual return.

(3) A fraction of a month is counted as an entire month.

(f) The provisions of this section shall not apply to any business entity's first full or partial taxable year of doing business in the urban county government or any first taxable year in which a business entity's tax liability exceeds five thousand dollars ($5,000.00).

(g) At the election of the business entity, any installment of the estimated tax may be paid prior to the date prescribed for its payment.

(Ord. No. 177-89, § 1, 9-7-89; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 111-2000, § 1, 4-20-00; Ord. No. 267-2007, § 8, 12-6-07)

Sec. 13-8.1. Extension.

(a) The urban county government may grant any business entity an extension of not more than six (6) months, unless a longer extension has been granted by the Internal Revenue Service or is agreed to by the urban county government and the business entity, for filing its return, if the business entity, on or before the date prescribed for payment of the occupational license tax, requests the extension and pays the amount properly estimated as its tax.

(b) If the time for filing a return is extended, the business shall pay, as part of the tax, an amount equal to twelve (12) percent per annum simple interest on the tax shown due on the return, but not been previously paid, from the time the tax was due until the return is actually filed and the tax paid to the urban county government. A fraction of a month is counted as an entire month.

(Ord. No. 267-2007, § 9, 12-6-07)

Sec. 13-8.2. Overpayment; refund.

(a) Where there has been an overpayment of tax under section 13-4, a refund or credit shall be made to the employer to the extent of overpayment only if a written application for refund or credit is received by the urban county government from the employer within two (2) years from the date the overpayment was made.

(b) An employee who has compensation attributable to activities performed outside the urban county government, based on time spent outside the urban county government, whose employer has withheld and remitted to this urban county government, the occupational license tax on the compensation attributable to activities performed outside the urban county government, may file for a refund within two (2) years of the date prescribed by law for the filing of a return. The employee shall provide a schedule and computation sufficient to verify the refund claim and the urban county government may confirm with the employer the percentage of time spent outside the urban county government and the amount of compensation attributable to activities performed outside the urban county government prior to approval of the refund.

(c) In the case where the tax computed under the provisions of this ordinance is less than the amount which has been declared and paid as estimated tax for the same taxable year, a refund or credit, if a credit is requested, shall be made upon the filing of a return.

(1) Overpayment resulting from the payment of estimated tax in excess of the amount determined to be due upon the filing of a return for the same taxable year may be credited against the amount of estimated tax determined to be due on any declaration filed for the next succeeding taxable year or for any deficiency or nonpayment of tax for any previous taxable year;

(2) No refund shall be made of any estimated tax paid unless a complete return is filed as required by this article.

(d) The two-year limitation period for refunds or credits shall be in effect for any application for refund or credit submitted on or after January 1, 2008.

(Ord. No. 267-2007, § 9, 12-6-07)

Sec. 13-8.3. Authority of the urban county government to examine and audit the return.

(a) As soon as practicable after each return is received, the urban county government may examine and audit the return. If the amount of tax computed by the urban county government is greater than the amount returned by the business entity, the additional tax shall be assessed and a notice of assessment mailed to the business entity by the urban county government within five (5) years from the date the return was filed, except as otherwise provided in this subsection.

(1) In the case of a failure to file a return or of a fraudulent return the additional tax may be assessed at any time.

(2) In the case of a return where a business entity understates net profit, or omits an amount properly includable in net profits, or both, which understatement or omission, or both, is in excess of twenty-five (25) percent of the amount of net profit stated in the return, the additional tax may be assessed at any time within six (6) years after the return was filed.

(3) In the case of an assessment of additional tax relating directly to adjustments resulting from a final determination of a federal audit, the additional tax may be assessed before the expiration of the times provided in this subsection, or six (6) months from the date the urban county government receives the final determination of the federal audit from the business entity, whichever is later.

(4) The times provided in this subsection may be extended by agreement between the business entity and the urban county government. For the purposes of this subsection, a return filed before the last day prescribed by law for filing the return shall be considered as filed on the last day. Any extension granted for filing the return shall also be considered as extending the last day prescribed by law for filing the return.

(b) Every business entity shall submit a copy of the final determination of the federal audit within thirty (30) days of the conclusion of the federal audit.

(c) The urban county government may initiate a civil action for the collection of any additional tax within the times prescribed in subsection (a) of this section.

(Ord. No. 267-2007, § 10, 12-6-07)

Sec. 13-8.4. Collection or payment.

(a) No suit shall be maintained in any court to restrain or delay the collection or payment of the tax levied by this article.

(b) Any tax collected pursuant to the provisions of this article may be refunded or credited within two (2) years of the date prescribed by law for the filing of a return or the date the money was paid to the urban county government, whichever is the later, except that:

(1) In any case where the assessment period contained in section 13-8.3 of this article has been extended by an agreement between the business entity and the urban county government, the limitation contained in this subsection shall be extended accordingly.

(2) If the claim for refund or credit relates directly to adjustments resulting from a federal audit, the business entity shall file a claim for refund or credit within the time provided for in this subsection or six (6) months from the conclusion of the federal audit, whichever is later.

(3) For the purposes of this subsection, a return filed before the last day prescribed by law for filing the return shall be considered as filed on the last day.

(c) The authority to refund or credit overpayments of taxes collected pursuant to this article is vested exclusively in the urban county government. The two-year limitation period for refund or credit shall be in effect for any application for refund or credit submitted on or after January 1, 2008.

(Ord. No. 267-2007, § 11, 12-6-07)

Sec. 13-9. Initial fee.

Every person and business entity engaged in any business in the urban county shall obtain an initial occupational license from the division of revenue before the commencement of such business, the fee for which shall be one hundred dollars ($100.00) Each year thereafter, such persons and entities shall pay an annual minimum license fee of one hundred dollars ($100.00). All such fees shall be submitted with the appropriate documentation required by the division of revenue, and must be paid each year by no later than the due date for the filing of net profit license fee returns. Licensure shall be valid for the calendar year in which the payment of the fee was submitted. To the extent that a person or a business entity owes an occupational license fee as otherwise provided in this chapter, the annual minimum license fee shall be credited as a payment of that occupational license fee only for the tax year covered by the occupational license, and not for any subsequent year. In no instance shall this credit create a refund. Any person or business entity filing returns on a fiscal year basis may take this credit for the tax year ending on or after the end of the calendar year for which the occupational license was issued. Any person or business entity found to be engaged in any business in the urban county without a current occupational license may be assessed a penalty of twenty-five dollars ($25.00), which shall be in addition to any required license fees.

(Ord. No. 147-90, § 1, 7-5-90; Ord. No. 267-2007, § 12, 12-6-07; Ord. No. 160-2008, § 2, 6-26-08; Ord. No. 170-2010, § 3, 10-14-10)

Sec. 13-10. Duty to collect; record of collections.

It shall be the duty of the division of revenue to collect and receive the license fees imposed by this article, and the division of revenue shall keep records showing the amount received from each licensee and employer and the date of such receipt.

(Ord. No. 147-90, § 1, 7-5-90)

Sec. 13-11. Information confidential.

(a) No present or former employee of any tax district shall intentionally and without authorization inspect or divulge any information acquired by him or her of the affairs of any person, or information regarding the tax schedules, returns, or reports required to be filed with the tax district or other proper officer, or any information produced by a hearing or investigation, insofar as the information may have to do with the affairs of the person's business. This prohibition does not extend to information required in prosecutions for making false reports or returns for taxation, or any other infraction of the tax laws, or in any way made a matter of public record, nor does it preclude furnishing any taxpayer or the taxpayer's properly authorized agent with information respecting his or her own return. Further, this prohibition does not preclude any employee of the tax district from testifying in any court, or from introducing as evidence returns or reports filed with the tax district, in an action for violation of a tax district tax law or in any action challenging a tax district tax laws.

(b) The urban county government reserves the right to disclose to the Commissioner of Revenue of the Commonwealth of Kentucky or his or her duly authorized agent all such information and rights to inspect any of the books and records of the urban county government if the Commissioner of Revenue of the Commonwealth of Kentucky grants to the urban county government the reciprocal right to obtain information form the files and records of the Kentucky Department of Revenue and maintains the privileged character of the information so furnished. Provided, further, that the urban county government may publish statistics based on such information in such a manner as not to reveal data respecting net profits or compensation of any person or business entity.

(c) In addition, the urban county government is empowered to execute similar reciprocity agreements as described in subsection (b) of this section with any other taxing entity, should there be a need for exchange of information in order to effect diligent enforcement of this article.

(Ord. No. 147-90, § 1, 7-5-90; Ord. No. 267-2007, § 13, 12-6-07)

Sec. 13-12. Payment in arrears; failure to withhold.

(a) A business entity subject to tax on net profits as prescribed under section 13-8 or an employer subject to withholding requirements as prescribed under section 13-7 may be subject to a penalty equal to five (5) percent of the tax or withholdings due for each calendar month or fraction thereof if the business entity:

(1) Fails to file any return or report on or before the due date prescribed for filing or as extended by the urban county government; or

(2) Fails to pay the tax or withholdings computed on the return or report on or before the due date prescribed for payment.

(3) The total penalty levied pursuant to this subsection shall not exceed twenty-five (25) percent of the total amount due; however, the penalty shall not be less than twenty-five dollars ($25.00).

(b) In addition to the penalties prescribed in this section, any business entity or employer shall pay, as part of the tax, an amount equal to twelve (12) percent per annum simple interest on the tax shown due, but not previously paid, from the time the tax was due until the tax is paid to the urban county government. A fraction of a month is counted as an entire month.

(c) Every tax imposed by this article, and all increases, interest, and penalties thereon, shall become, from the time the tax is due and payable, a personal debt of the taxpayer to the urban county government.

(d) The urban county government may enforce the collection of the occupational tax due under section 13-4 and any fees, penalties, and interest as provided in subsections (a), (b), and (c) of this section by civil action in a court of appropriate jurisdiction. To the extent authorized by law, the urban county government shall be entitled to recover all court costs and reasonable attorney fees incurred by it in enforcing any provision of this article.

(e) In addition to the penalties prescribed in this section, any business entity or employer who willfully fails to make a return or willfully makes a false return, or who willfully fails to pay taxes owing or collected, with the intent to evade payment of the tax or amount collected, or any part thereof, shall be guilty of a Class A misdemeanor.

(f) Any person who willfully aids or assists in, or procures, counsels, or advises the preparation or presentation under, or in connection with, any matter arising under this article of a return, affidavit, claim, or other document, which is fraudulent or is false as to any material matter, whether or not the falsity or fraud is with the knowledge or consent of the person authorized or required to present the return, affidavit, claim, or document, shall be guilty of a Class A misdemeanor.

(g) A return for the purpose of this section shall mean and include any return, declaration, or form prescribed by the urban county government and required to be filed with the urban county government by the provisions of this ordinance, or by the rules of the urban county government or by written request for information to the business entity by the urban county government.

(h) Any person violating the provisions of section 13-11 by intentionally inspecting confidential taxpayer information without authorization, shall be fined not more than five hundred dollars ($500.00) or imprisoned for not longer than six (6) months, or both.

(i) Any person violating the provisions of section 13-11 by divulging confidential taxpayer information shall be fined not more than one thousand dollars ($1,000.00) or imprisoned for not more than one (1) year, or both.

(Ord. No. 135-79, § 1, 5-31-79; Ord. No. 40-80, § 1, 4-3-80; Ord. No. 119-90, § 4, 6-14-90; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 267-2007, § 14, 12-6-07)

Editor's note(s)—Subsection (c) was added by § 4 of Ord. No. 119-90, adopted June 14, 1990. In its reenactment of this article, Ord. No. 147-90 failed to include subsection (c); however, the editor has retained the provisions of the subsection as still being in effect.

Sec. 13-13. Special fees.

(a) The urban county council hereby finds that the following occupations are of such a nature as to require special regulation and supervision; therefore, the following minimum license fees are imposed on every person engaged in the business, occupation, calling or profession, or using, holding or exhibiting articles named in this section, who shall pay in advance to the urban county government for each calendar year, or fraction thereof, the license fee or fees herein set forth, which payment shall be a credit on the license fee as otherwise provided in this article; however, where minimum fees are set forth in the following table for a period of one (1) year or less, the same shall be considered the minimum fee due for the period as set forth in such table and shall be paid in advance of engaging in such activity.

(b) In the event a licensee is engaged in more than one (1) business entity, the highest minimum license fee shall apply. Under the column headed "date due" in the following table the words "before showing" or "before activity" shall, in the case of "before showing," mean that the license fee per showing is due prior to the date of each showing and in the case of "before activity" or "yearly" shall mean that the license fee is due prior to each specified period of engaging in activity.

	Subject to fee	**Minimum fee**	**Date due**
(1)	Adult entertainment establishment	$600.00 per year	Yearly
(2)	Adult entertainment establishment employee	100.00 per year	Yearly
(3)	Alarm business license	250.00 per year	Yearly
(4)	Amusement	50.00 per showing or 200.00 per year	Before showing Yearly
(5)	Bazaar	1 to 9 individuals, 100.00 per 1 week showing or 300.00 per year	Before activity

	Subject to fee	Minimum fee	Date due
		10 to 19 individuals, 200.00 per 1 week showing or 500.00 per year	Before activity
		20 or more individuals, 300.00 per 1 week showing or 750.00 per year	Before activity
(6)	Bowling alleys	15.00 per lane	Yearly
(7)	Carnival, regardless of local sponsorship	50.00 per day	Before showing
(8)	Circus, unless sponsored as below	200.00 per showing	Before showing
(9)	Circus, sponsored by a bona fide civic, patriotic, religious or educational organization	50.00 per day	Before showing
(10)	Collection agencies	25.00 per year	Yearly
(11)	Detective agencies	250.00 per year	Yearly
(12)	Emergency and transportation ambulance services	30.00 per year per vehicle	Yearly
(13)	Escort agency	600.00 per year	Yearly
(14)	Escort	100.00 per year	Yearly
(15)	Horse-drawn vehicle business	50.00 per year per vehicle	Yearly
(16)	Itinerant merchant	100.00 per month or 150.00 per 3 months or	Before activity Before activity
		200.00 per 6 months or	Before activity
		250.00 per year	Yearly
(17)	Junk dealers	250.00 per year	Yearly
(18)	Meat packer or processor	400.00 per year	Yearly
(19)	Medical cannabis business		
	Cultivator	500.00 per year	Yearly
	Dispensary	500.00 per year	Yearly
	Processor	500.00 per year	Yearly

	Subject to fee	**Minimum fee**	**Date due**
	Producer	500.00 per year	Yearly
	Safety Compliance Facility	500.00 per year	Yearly
(20)	Milk distributor	400.00 per year	Yearly
(21)	Model/talent business	100.00 per month or	Before activity
		150.00 per 3 months or	Before activity
		200.00 per 6 months or	Before activity
		250.00 per year	Yearly
(22)	Pawnbroker	250.00 per year	Yearly
(23)	Peddler	10.00 per day per person or	Before activity
		250.00 per year per person	Yearly
(24)	Pool and billiard tables	25.00 per table	Yearly
(25)	Precious metals dealers	250.00 per year	Yearly
(26)	Private impound tow truck service	200.00 per year	Yearly
(27)	Scrap metal dealer	500.00 per year	Yearly
(28)	Shooting gallery	50.00 per year	Yearly
(29)	Short-term rentals	200.00 per year for the first rental, then $100.00 for each remaining rental	Yearly
(30)	Skating rink	100.00 per year	Yearly
(31)	Teenage canteen	200.00 per year	Yearly
(32)	Temporary mall merchants	100.00 per year	Yearly
(33)	Theater	300.00 per year per theater	Yearly

(Ord. No. 78-72, § 1, 4-27-72; Ord. No. 183-79, § 1, 7-26-79; Ord. No. 36-81, § 1, 2-19-81; Ord. No. 52-83, § 2, 4-7-83; Ord. No. 70-83, § 2, 5-5-83; Ord. No. 76-83, § 1, 5-19-83; Ord. No. 143-83, § 2, 8-25-83; Ord. No. 17-85, § 2, 2-7-85; Ord. No. 18-86, § 2, 2-20-86; Ord. No. 147-90, § 1, 7-5-90; Ord. No. 207-91, § 2, 10-8-91; Ord. No. 233-91, § 1, 11-14-91; Ord. No. 64-96, § 2, 5-2-96; Ord. No. 56-97, § 5, 4-3-97; Ord. No. 205-97, § 14, 10-16-97;

Ord. No. 212-98, § 1, 7-14-98; Ord. No. 260-99, § 5, 9-23-99; Ord. No. 337-2000, § 1, 11-9-00; Ord. No. 87-2001, § 6, 4-19-01; Ord. No. 79-2012, § 1, 6-21-12; Ord. No. 157-2012, §§ 1, 2, 12-6-12; Ord. No. 080-2023, § 1, 7-11-23; Ord. No.062-2024, § 1, 6-27-24)

Sec. 13-14. Penalties—Revocation of license.

(1) In addition to all other remedies and penalties contained in chapter, a license issued pursuant to this chapter may be revoked when a business fails to file returns as required by section 13-8; when a business fails to pay over the occupational license fees collected pursuant to section 13-7; when a business fails to pay the transient room tax imposed in section 2-172; or when a business fails to pay sewer user fees required by sections16-56 through 16-59.1.

(2) Upon a finding that one of the above conditions exists, the director of tax collection shall issue a letter to the business so identified requiring that the business come forward and show cause why its license should not be revoked. The letter shall be sent to both the owner and operator of the business if the two are not the same.

(3) The business shall have ten (10) days to respond to the director's letter and shall present evidence of payment or evidence of good cause for failure to pay. The director shall determine whether or not the business has produced sufficient evidence to contest payment and shall request review by the commissioner of finance if such evidence exists.

(4) Within a reasonable time of the director's request, not to exceed thirty (30) days, the commissioner of finance shall review all evidence submitted by the business, require such audits as are necessary for a determination of whether or not the contested amounts are disputed in good faith, and shall hold a hearing at which the business shall be allowed to present witnesses on its behalf. The commissioner's decision whether to revoke the business license shall be final.

(5) If a business fails to produce evidence of payment or evidence of good cause for nonpayment, the director shall revoke the license of the business, and the business shall immediately cease operation. The urban county government may take steps necessary to enforce this section.

(Ord. No. 243-91, § 2, 11-21-91)

Editor's note(s)—Section 2 of Ord. No. 243-91, adopted Nov. 21, 1991, repealed former § 13-14, derived from Ord. Nos. 135-79 and 147-90, and enacted new §§ 13-14, 13-14.1.

Sec. 13-14.1. Same—Fine, imprisonment.

Any person who shall fail to make and file a return with the urban county government, or to withhold license fees due under the terms of this article, or to pay over to the urban county government fees so withheld under the terms of this article or to pay over net profits license fees due to the urban county government, or any person who shall refuse to permit the commissioner of finance or any agency or employee designated by him, in writing, to examine his books, records, papers, or who shall knowingly make any incomplete, false or fraudulent return, or who shall

attempt to do anything whatever to avoid the full disclosure of earnings or profits in order to avoid the payment of the whole or any part of the license fee shall, upon conviction, be subject for each offense to a fine or penalty not to exceed five hundred dollars ($500.00) and/or to imprisonment for a period not to exceed twelve (12) months.

(Ord. No. 243-91, § 2, 11-21-91)

Editor's note(s)—See the editor's note to § 13-14.

Sec. 13-15. Same—Failure to obtain special fees license.

Any person who shall engage in the occupations, or shall employ the use of the devices mentioned in section 13-13, without first obtaining the required license therefor, or who shall fail to pay the required license fee when the same shall be due shall, upon conviction, be subject for each offense to a fine or penalty not to exceed five hundred dollars ($500.00) and/or imprisonment for a period not to exceed twelve (12) months; and each day that any person continues to operate without the required license shall be deemed a separate offense.

(Ord. No. 135-79, § 1, 5-31-79; Ord. No. 102-85, § 7, 5-30-85; Ord. No. 147-90, § 1, 7-5-90)

Sec. 13-15.1. Severability.

Each section and each provision of each section of this article are severable, and if any provision, section, paragraph, sentence or part thereof, or the application thereof to any person licensee, class or group, is held by a court of law to be unconstitutional or invalid for any reason, such holding shall not affect or impair the remainder of this article, it being the legislative intent to ordain and enact each provision, section, paragraph, sentence and part thereof, separately and independently of the rest.

(Ord. No. 267-2007, § 15, 12-6-07; Ord. No. 52-2008, § 2, 3-6-08)

Editor's note(s)—Ord. No. 267-2007, § 15, adopted Dec. 6, 2007, supplied provisions to be added to the Code as § 13-16. In order to preserve the numbering system of the Code, at the discretion of the editor, these provisions have been redesignated as § 13-15.1.

Article II

Special Licenses And Regulations

Sec. 13-16. Amusements—Endurance contests.

(a) It shall be unlawful for any person to manage, conduct or operate any endurance contest within the urban county or for any person to participate in any such endurance contest; or for any person to knowingly lease or rent any room, hall, auditorium or theater to any person to be used for the purpose of conducting an endurance contest in such room, hall, auditorium or theater; or for any person owning or having control of any room, hall, auditorium or theater to knowingly permit such room, hall, auditorium or theater to be used for the purpose of conducting an endurance contest therein.

(b) For the purposes of this section, any contest participated in by two (2) or more persons as contestants, which contest shall continue more than twelve (12) hours, is hereby declared an endurance contest, regardless of whether there be regular rest periods for the participants during the continuance of such contest.

(c) Any person violating or assisting in the violation of any part of this section shall upon conviction be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00) and each day's continuance or participation or assistance shall constitute a separate offense.

Cross reference(s)—Gambling devices, § 14-22; playing ball in streets, § 17-27.

Sec. 13-17. Same—Offensive exhibitions in buildings, revocation of license.

Any person giving any kind of exhibition, not prohibited by law, in a permanent building in the urban county, to which an admission fee is charged, shall pay the license fee provided in section 13-13; but, notwithstanding any such payment, the mayor shall have the power to revoke any such license whenever he shall deem the entertainment or exhibition a nuisance or any way hurtful or offensive to public morals.

Sec. 13-18. Same—Street fairs or carnivals, prohibited.

It shall be unlawful for any person to give, conduct or carry on or to participate in the giving, conducting or carrying on of any exhibition, show or entertainment of the kind commonly known as street fairs or street carnivals in the urban county; and no license shall hereafter be granted or issued for the giving of such exhibitions; but nothing herein shall be construed to prevent the licensing or giving of such exhibitions as ordinary circuses, menageries or dog or pony shows.

Any person who shall violate this section, either as principal, employee, performer or otherwise, shall upon conviction be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00) for each offense; and each day or part day of such violation shall constitute a separate offense.

Sec. 13-19. Same—Excessive crowds in theaters, etc.

(a) It shall be unlawful for any person, firm, corporation or other entity or any agent of same which is holding, sponsoring, promoting or otherwise responsible for an event in an opera house, theater, picture show, arena, gymnasium or other place of assembly, with a defined seating capacity, to admit to such opera house, theater, picture show, arena, gymnasium or other place of assembly with a defined seating capacity at any time a greater number of persons than the seating capacity thereof, or to permit persons to stand or remain in the aisles or corridors thereof longer than may be reasonably necessary in going to and returning from their seats; and if such opera house, theater, picture show, arena, gymnasium or other place of assembly has more than one (1) floor or level, it shall likewise be unlawful to admit to any floor, level, balcony or gallery thereof at any time, a greater number of persons than the seating capacity of such floor, level, balcony or gallery.

(b) (1) Festival seating, defined as admitting persons to an activity which would customarily be presented in a concert seating arrangement where no seats are provided is prohibited in all enclosed indoor facilities with a fixed seating capacity greater than four thousand (4,000) seats.

(2) General admission seating is defined as admitting persons to an activity where seats are provided without tickets which assign them a particular seat.

(3) Reserved seating is defined as admitting persons to an activity where seats are provided with tickets which assign them a particular seat.

(c) Application for a special permit to use "festival seating" rather than general admission or reserved seating may be made by the person, firm, corporation or other entity or agent of same responsible for presenting an event proposing to utilize "festival seating" in a facility wherein "festival seating" is prohibited.

(1) Application for a special permit to use "festival seating" shall be made and the permit issued prior to advertising or placing tickets on sale for an event in which "festival seating" is to be utilized. When the event is part of a series of scheduled events, all featuring the same attraction, only one (1) permit shall be required for the entire series.

(2) The cost of making an application for a special permit to use "festival seating" shall be fifty dollars ($50.00).

(3) A special permit to use "festival seating" for an event in a facility where "festival seating" is prohibited shall be granted by the commissioner of public safety or his duly authorized representative when the applicant demonstrates to the satisfaction of the commissioner or his representative that due to the nature of the event, "festival seating" would not pose a reasonable threat to public safety. If the application is denied, the commissioner or his representative shall state his reasons in writing. The applicant may request a hearing before the commissioner of public safety to offer evidence why his application should be reconsidered.

(4) The commissioner of public safety shall promulgate rules, standards and procedures for granting and denying special permits so as to best assure the protection of public safety and welfare. The rules, standards and procedures shall be in writing and shall be presented to the council for approval.

(d) Any person, firm, corporation or other entity or any agent of same convicted of violating this section shall be fined not less than one thousand dollars ($1,000.00) nor more than five thousand dollars ($5,000.00) for each offense.

(Ord. No. 998, § 1, 7-24-80)

Sec. 13-20. Definitions.

The following words, when used in this section, shall have the meaning ascribed to them in this subsection except where the context clearly indicates or requires a different meaning:

Licensed motor vehicle dealer: Motor vehicle dealers, as defined in KRS 190.010.

Temporary display: Displaying motor vehicles, where no sale, transfer, or test drive will be conducted at the temporary display location, for a period not to exceed sixty (60) days.

Temporary sale: Conducting or holding of a sale of motor vehicles not to exceed five (5) days.

(Ord. No. 246-2004, § 3, 9-28-04)

Sec. 13-20.1. Off-premises sales.

No licensed motor vehicle dealer shall conduct, hold, or otherwise participate in a temporary sale of motor vehicles at a location other than that specified in his/her state license without first obtaining a license as follows:

(1) Any licensed motor vehicle dealer already holding a license to do business from a permanent business location in Fayette County shall apply for a license pursuant to section 13-5.

(2) Any licensed motor vehicle dealer who does not have a permanent business location in Fayette County shall apply for an itinerant merchants license pursuant to section 15-8. Any licensed motor vehicle dealer who is participating in an event which qualifies under the definition in subsection 13-1(7) as a bazaar shall be licensed pursuant to subsection 13-13(b)(5) under a bazaar license.

(3) Any licensed motor vehicle dealer intending to conduct a temporary display of motor vehicles shall apply for a display location permit and pay an application fee of ten dollars ($10.00).

(Ord. No. 246-2004, § 4, 9-28-04)

Sec. 13-20.2. Grant/refusal of license or permit; time period.

All licenses or permits required pursuant to section 13-20.1 shall be granted or refused within three (3) working days after submission of a complete application and shall expire, unless revoked or suspended, at the end of the permit period. The application shall be on a form provided by the division of revenue.

(Ord. No. 246-2004, § 5, 9-28-04)

Sec. 13-20.3. Notification.

The applicant(s) will be notified of the granting or rejecting of the license or permit, and if the application is rejected, the reason or reasons for rejection, and the applicants(s) will be notified of his/her right to appeal the rejection to the director of the division of revenue.

(Ord. No. 246-2004, § 6, 9-28-04)

Sec. 13-20.4. Temporary sale or display.

The temporary sale or display shall be advertised as temporary in nature and shall consist of a representative sampling of the inventory of each participating licensee. The temporary sale license or display permit shall be conspicuously posted at the location of the sale or display.

(Ord. No. 246-2004, § 8, 9-28-04)

Sec. 13-20.5. Regulations and forms.

The division of revenue is hereby authorized to promulgate any regulations and forms necessary for the administration and enforcement of sections13-20 through 13-20.6.

(Ord. No. 246-2004, § 9, 9-28-04)

Sec. 13-20.6. Violation; fine.

Any person violating any of the provisions of sections 13-20 through 13-20.4 shall, upon conviction thereof, be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) for each offense. Each day of such violation shall constitute a separate offense, and no additional notice other than notice of the original offense shall be required to convict a person for violations resulting from a continuation of such offense.

(Ord. No. 246-2004, § 9, 9-28-04)

Sec. 13-20.7. Fees.

Payment of the itinerant merchants license fee does not take the place of required occupational license fees. All itinerant merchants, including licensed motor vehicle dealers, remain obligated to withhold occupational license fees from wages earned by employees for work performed in Fayette County and to pay occupational license fees on net profits earned in Fayette County as required by ordinance.

(Ord. No. 246-2004, § 10, 9-28-04)

Secs. 13-21, 13-22. Reserved.

Sec. 13-23. Auctions, closing out sales, liquidation sales and other special sales—Implied warranty by auctioneer.

Any person selling, disposing of or offering for sale at public auction in the urban county any gold, silver, plated ware, precious stones, watches, clocks, jewelry, bric-a-brac, china, glassware or leather goods shall, in describing the same, be truthful with respect to the character, quality, kind and description of same; and any description of such wares by him at such auction shall be considered as warranties.

Cross reference(s)—Animal auction sales on streets, § 4-1.

Sec. 13-24. Same—"Cappers," "boosters" and "by-bidders" at auctions.

It shall be unlawful for any person to act as a fictitious bidder or what is commonly known as a "capper," "booster" or "by-bidder" at any sale conducted in the urban county.

Any person violating or causing to be violated this section shall be guilty of a misdemeanor and upon conviction thereof shall be fined not less than ten dollars ($10.00) nor more than twenty dollars ($20.00) for each offense.

Sec. 13-25. Same—Days and hours of auctions.

It shall be unlawful for any person to sell, dispose of or offer for sale in the urban county at public auction, or to cause or permit to be sold, disposed of or offered for sale in the urban county at public auction between the first day of October of any year and the first day of March in any succeeding year any gold, silver, plated ware, precious stones, watches, clocks, jewelry, bric-a-brac, crockery, glassware and leather goods, whether the same shall be his own property, or whether he sells the same as agent or employee of others; however, this section shall not apply to judicial sales or sales of executors or administrators or to sales by or on behalf of licensed pawnbrokers of unredeemed pledges in the manner provided by law; and further, auctions may be held for the purpose of closing out or liquidating a business in good faith between the first day of February and the thirtieth day of September of any year; and further, auction sales may be held until the hour of 9:00 p.m. between the first day of February and the thirtieth day of September of any year, but only for the purpose of closing out or liquidating a business in good faith.

It shall be unlawful for any person to sell, dispose of or offer to sell at public auction from the second day of March until the thirtieth day of September, both inclusive, in any year, between the hours of 6:00 in the evening and 8:00 the following morning any gold, silver, plated ware, precious stones, watches, clocks, jewelry, bric-a-brac, china, crockery, glassware and leather goods; but this section shall not apply to judicial sale or sales which may be made pursuant to the order of any court of competent jurisdiction.

It shall be unlawful for any person to act as by-bidder or what is commonly known as a "capper" or "booster" at any such auction or place or to offer or make any false bid or to offer any false bid to buy or pretend to buy such article sold or offered for sale at any such auction sales.

Any person violating any of the provisions of this section shall upon conviction be fined in any sum not exceeding one hundred dollars ($100.00) or confined in the city jail for a period not exceeding fifty (50) days or both so fined and imprisoned within the discretion of the court or jury.

Sec. 13-26. Reserved.

Editor's note(s)—Section 13-26, regulations for special sale license for auctions, etc., was repealed by § 3 of Ord. No. 164-83, adopted Sept. 22, 1983.

Sec. 13-27. Auctions, etc.—Sales on streets prohibited.

It shall be unlawful for any person to sell, trade or exchange, or to exhibit for the purpose of sale, trade or exchange, at public auction or otherwise, any horse, mule, cattle or other livestock, or any secondhand clothing, furniture, farming implement or other article, or any junk, old iron or rubbish of any kind, on any public street, sidewalk or square in the urban county.

Any person who shall violate this section shall upon conviction be fined not less than one dollar ($1.00) nor more than twenty-five dollars ($25.00) for each offense.

Secs. 13-28, 13-29. Reserved.

Sec. 13-30. Coal and other solid fuels—Delivery tickets, weighing load.

(a) Every seller who shall barter or sell coal, charcoal, coke or any other solid fuel, in the urban county, or to be delivered in the urban county shall, prior to the delivery or transportation for delivery of such commodity, provide the driver or handler of the wagon, truck, conveyance or container in which same is to be hauled or carried for delivery with a delivery ticket, which shall show:

(1) The name of the seller, and if the seller resides or is located outside the urban county, and has no office and place of business in the urban county, the name of the seller and of his agent in the urban county, if any;

(2) The weight of the commodity sold or to be delivered; and

(3) The name and address of the purchaser, or person to whom delivery is to be made.

(b) Such delivery ticket shall be delivered along with the commodity to the purchaser, or person to whom delivery may be made.

(c) The driver or handler of such commodity en route to be delivered shall, upon demand of the division of revenue, or of any police officer of the urban county government, produce such delivery ticket for inspection and submit to a testing of the correctness of the same by an actual weighing or measuring of the quantity of the commodity being transported by him for delivery, by or in the presence of the inspector or police officer; and if required by such employee of the division of revenue or police officer, the driver or handler shall take the commodity to an approved scale, or any other weighing or measuring instrument or device designated by the employee of the division of revenue or police officer at the time, for the purpose of weighing or measuring the commodity being transported by him for delivery; however, after such testing, the employee of the division of revenue or police officer shall, on demand of the driver or handler, or person in charge, accompany the latter to any other scale, or measuring instrument or device, for the purpose of retesting the correctness of the delivery ticket and of the weight or measure of the commodity.

(d) When any seller shall maintain no permanent yards of his own, equipped with an office and scales, in the urban county, every such seller shall deliver or cause to be delivered through a duly authorized agent or employee to the director, division of revenue at his office at the city hall an exact duplicate of the delivery ticket herein required, in advance of the delivery or transportation for delivery, of the commodity sold; no seller shall deliver or permit to be delivered or transport for delivery in the urban county any coal, coke, charcoal or other solid fuel without first delivering or causing to be delivered such duplicate delivery ticket to the director, division of revenue.

(e) No driver or handler of any wagon, truck, conveyance or container in which any coal, coke, charcoal or other solid fuel is being transported for delivery in the urban county to a purchaser shall transport or deliver such commodity without having in his possession, at the time of such transportation or delivery, the delivery ticket required by this section, or transport or deliver such commodity until after a duplicate copy of such ticket shall have been delivered to the director, division of revenue, as in this section provided.

Sec. 13-31. Same—Operation under assumed name.

No seller shall sell and deliver or transport for delivery in the urban county any coal or other solid fuel under any other name than his own, or use or attempt to use, any delivery ticket bearing an assumed name or any other name than his own, as seller; nor shall any driver, handler, agent or employee of any seller deliver or transport for delivery in the urban county any such commodity without a delivery ticket of the kind required by section 13-30; and it shall be unlawful for any person to issue any delivery ticket unless it be the bona fide seller of the commodity for which the ticket is issued.

Sec. 13-32. Reserved.

Sec. 13-33. Same—Hours of delivery.

It shall be unlawful for any seller or for any driver or handler, or for any agent or employee of any seller, to deliver or to transport for delivery to any purchaser any coal or other solid fuel at any time on Sunday or between the hours of 5:30 p.m. and 5:00 a.m., on other days; but in case of an emergency the division of revenue may issue a permit for transportation and delivery on Sunday or between the hours above named on other days.

Sec. 13-34. Same—Violations, penalties.

Any person and any driver, handler, agent or employee thereof who shall violate any provisions of sections13-30, 13-31 or 13-33 shall be deemed guilty of a misdemeanor and for the first offense shall be fined not less than ten dollars ($10.00) nor more than fifty dollars ($50.00) and for a second or any further offense shall be fined in a like amount, or imprisoned for not exceeding thirty (30) days, or both so fined and imprisoned.

Sec. 13-35. Coin-operated machines—Music, pinball; license fees.

(a) Every person operating in the urban county musical machines or pinball machines of the coin-in-the-slot variety and used for gain shall pay an annual license fee of ten dollars ($10.00) for each machine.

(b) Any person operating in the urban county a coin-in-the-slot radio manufactured and adapted for the use of hospitals and similar uses where the speaker unit is separately encased from the remaining portion of the radio and more commonly referred to as a pillow speaker radio shall pay an annual license fee of one dollar ($1.00) for each machine; however, the total license fee paid by any person for operating such pillow speaker radio shall not be more than two hundred dollars ($200.00) per year, regardless of the number of such machines operated in the urban county by such person.

Cross reference(s)—Gambling, § 14-22.

Sec. 13-36. Same—Application for license.

To obtain any of the licenses mentioned in section 13-35, it shall be necessary for any applicant to file a written application therefor upon blanks to be furnished by the division of revenue, giving the name and address of the owner and of the operator of every such machine to be licensed, together with the location where such machine is to be installed or operated.

Sec. 13-37. Same—Notice of ownership change.

In the event of change of ownership or of the person operating any licensed machine, or of change of location of the place of installation or operation thereof, it shall be the duty of the licensee to notify the division of revenue of such change.

Sec. 13-38. Same—Affixing owner's name to machine.

The name and address of the owner of each licensed machine shall be placed upon the machine in a place and manner where the same can be easily read, and so that same cannot be easily removed therefrom.

Sec. 13-39. Same—When owner to pay license tax.

In the event the operator of any machine for which a license has been procured under sections13-35 through 13-40 refuses, neglects or fails to pay the license tax upon such machine or device, the owner or proprietor of the business conducted in the storeroom or place where such machine is installed, operated or maintained shall be liable for the payment of such license tax.

Sec. 13-40. Same—Nonpayment of license tax.

In the event any license tax provided for in sections13-35 through 13-39 shall for any reason remain unpaid for a period of fifteen (15) days after the same shall become delinquent within the terms of section 13-35, the commissioner of finance or director, division of revenue, or their agents, are authorized to and directed to take such machine or device into possession, and such machine or device shall be impounded until such license tax, together with ten (10) percent penalty thereon, is paid. In the event the license tax and penalties are not paid within ninety (90) days from and after the date of such impounding, the director, division of central purchasing is authorized and directed to sell such machine or device in the manner provided by law for the sale of personal property for delinquent taxes, and from the proceeds of such sale shall discharge and pay the license tax upon such machine or device, including all penalties and interest, including the cost of impounding, storage, advertising and other fees of any nature due the urban county government; and the balance, if any, shall be held by the director, division of central purchasing for the owner of such machine and shall be paid to the owner of such machine upon the execution by the owner of a receipt therefor.

Sec. 13-41. Ice—Sales regulated; chemical analysis certificates; penalties.

In order to protect the health of citizens of the urban county, all persons offering ice for sale within the limits of the urban county not manufactured from water which is inspected by the department of health shall be required to submit a sample of each load of ice brought into the urban county to the department of health for analysis. It shall be unlawful for such ice to be sold or distributed in any manner whatsoever within the urban county limits until the department of health, after examination and analysis, shall have issued a certificate to the vendor of such ice showing the chemical analysis thereof, the date of the examination and the fact that it is pure and safe for human consumption; and the driver of any vehicle used for transporting such ice shall have this certificate on his person

for ready inspection by the public upon demand. If such analysis by the department of health shows any ice to be impure and unsafe for human consumption, it shall be the duty of the department of health to destroy such ice and to prevent the delivery, sale or distribution of any of it within the urban county.

Any person who shall violate any provisions of this section shall for each offense, upon conviction, be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) or confined in the county detention facility for not more than thirty (30) days, or both so fined and imprisoned; and each day of such violation shall constitute a separate offense.

Cross reference(s)—Foods, ch. 10; standards, §§ 10-5, 10-6; cold storage, § 10-11.

Sec. 13-42. Same—Sale by weight, penalty.

No ice shall be bartered or sold in the urban county except by weight, unless in containers plainly stamped upon them the quantity or weight of ice contained.

Any person guilty of a violation of any of the provisions of this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 13-43. Same—Weighing, penalty.

(a) It is hereby made the duty of each person delivering ice by retail from truck or other vehicle, to provide each vehicle, while being so used, with accurate weighing scales of the type appropriate for the purpose of weighing ice; and the scales thus used shall at all times be subject to test by the building inspector.

(b) It shall be the duty of any person selling and delivering more than five (5) pounds of ice as set forth in section 13-42, upon request of any consumer or purchaser of ice, to weigh each quantity of ice of five (5) pounds or more so purchased in the presence of the purchaser thereof; and no charge for such ice shall be made in excess of the actual weight thereof.

(c) Any person who shall violate any provision of this section shall be fined upon conviction, not less than one dollar ($1.00) nor more than twenty-five dollars ($25.00) for each offense, which punishment shall be imposed upon the driver or actual person in charge of the vehicle from which the ice is sold and delivered, or upon the person owning and controlling and operating such vehicle.

Sec. 13-44. Insurance; time of payment of license tax when amount based on premiums.

(1) Pursuant to KRS 91A.080(2) and 806 KAR 2:090, et seq., the urban county government imposes a license fee of five (5) percent on insurance companies with respect to life insurance policies, based upon the first year's premiums, and applied to the amount of the premiums actually collected within each calendar quarter upon the lives of persons residing within the corporate limits of the urban county government.

(2) Pursuant to KRS 91A.080(3) and 806 KAR 2:090, et seq., the urban county government imposes a license fee of five (5) percent upon any insurance company with respect to any policy which is not a life insurance policy based upon the premiums actually collected by the company within each calendar quarter on risks

located within the corporate limits of the urban county government on those classes of business which the company is authorized to transact, less all premiums returned to policyholders. In determining the amount of license fee or tax to be collected and to be paid to the urban county government, the insurance company shall use the tax rate effective on the first day of the policy term. When an insurance company collects a premium as a result of a change in the policy during the policy term, the tax rate used shall be the rate in effect on the effective date of the policy change. With respect to premiums returned to policyholders, the license fee or tax shall be returned by the insurance company to the policyholder pro rata on the unexpired amount of the premium at the same rate at which it was collected and shall be taken as a credit by the insurance company on its next quarterly report to the urban county government. Such license fee imposed upon premium receipts shall not include premiums received for insuring employers against liability for personal injuries to their employees, or the death of their employees caused thereby, under the provisions of the Workers' Compensation Act.

(3) To facilitate computation, collection and remittance of the fee provided in this section and the collection fee provided in KRS 91A.080(4), the fees set out in subsections (1) and (2) of this section, together with the collection fee in KRS 91A.080(4), may be rounded off to the nearest dollar amount.

(4) Pursuant to KRS 91A.080(8), the license fees provided for by subsections (1) and (2) of this section shall be due thirty (30) days after the end of each calendar quarter. Annually, by March 31, each insurer shall furnish the urban county government with a breakdown of all collections in the preceding calendar year for the following categories of insurance:

(a) Casualty;

(b) Automobile;

(c) Inland marine;

(d) Fire and allied perils;

(e) Health; and

(f) Life.

(5) Pursuant to KRS 91A.080(9), any license fee not paid on or before the due date shall bear interest at the tax interest rate as defined in KRS 131.010(6) from the date due until paid. Such interest payable to the urban county government is separate of penalties provided for in KRS 91A.080(6).

(6) No license fee imposed under this section shall apply to premiums received on policies of group health insurance provided for state employees under KRS 18A.225(2) and 18A.228.

(7) No license fee imposed under this section shall apply to premiums received on policies issued to public service companies which pay ad valorem taxes.

(8) No license fee imposed under this section shall apply to premiums received on livestock insurance of any type.

(Ord. No. 89-70, § 1, 5-7-70; Ord. No. 65-71, § 1, 4-22-71; Ord. No. 74-71, § 1, 5-6-71; Ord. No. 124-74, § 1, 7-18-74; Ord. No. 98-84, § 3, 6-28-84; Ord. No. 67-94, § 1, 5-5-94; Ord. No. 106-94, § 1, 6-16-94; Ord. No. 223-2007, § 1, 10-4-07)

State law references(s)—Insurance code, KRS ch. 304.

Secs. 13-45—13-49. Reserved

Editor's note(s)—Section 7 of Ord. No. 98-84 adopted June 28, 1984, declared by § 8 to be effective Jan. 1, 1985, repealed §§ 13-45—13-49, relating to license taxes on insurance companies, in order to conform this subject with HB 4 of the 1984 General Assembly. These sections were formerly derived form the following ordinances:

Ord. No.	Date	Section
89-70	5-7-70	1
241-70	10-2-70	1
65-71	4-22-71	1
74-71	5-6-71	1
80-80	6-24-80	1

Sec. 13-50. Surety bond companies, license tax.

Each fidelity, trust, surety, guaranty or other company or corporation engaged in furnishing bonds required or used in the various courts, such as attachment, replevin and injunction bonds of a similar nature, shall pay a license tax of fifty dollars ($50.00) for each agent having an office or doing business in the urban county.

Sec. 13-51. Musical instruments, demonstrations to be indoors.

Any person selling or handling radios, victrolas or musical instruments shall make all demonstrations inside the building leased by the person selling or handling such articles; and it shall be unlawful for any person to demonstrate or operate any such instruments outside of the premises wherein the same are sold.

Any person violating any of the terms or provisions of this section shall be fined in the sum of ten dollars ($10.00) for each offense, and each day this section is violated shall be deemed a separate offense.

This section shall not be construed to prevent the placing of such articles in homes or other places designated by prospective purchasers for demonstration purposes.

Sec. 13-52. Pawnbrokers and loan agencies—Daily reports of pawnbrokers.

Each person whose business or occupation is to take and receive by way of pledge, pawn, or exchange any goods, wares, merchandise or any kind of personal property as security for payment of money loaned thereon shall be deemed a pawnbroker and shall make a daily report to the division of police on forms provided by the urban county government for such reports or on a computer disk if the pawnbroker's records are maintained on a computer system. The pawnbroker shall require each person presenting the merchandise for pawn to provide a thumbprint. The thumbprint shall be maintained by the pawnbroker with other records of the pawn, and shall be made available to the division of police on demand.

(Ord. No. 311-99, § 6, 11-4-99; Ord. No. 152-2005, § 1, 6-23-05)

Sec. 13-53. Same—Business hours.

(a) It shall be unlawful for any person to keep open any pawnshop or loan office or to transact any business therein to advance any money upon goods pawned or received therein except between the hours of 7:00 a.m. prevailing time, and 7:00 p.m., prevailing time, on Mondays; between the hours of 7:00 a.m., prevailing time, and 4:30 p.m., prevailing time, on Tuesdays, Wednesdays and Thursdays; between the hours of 7:00 a.m., prevailing time, and 5:00 p.m., prevailing time, on Fridays; and between the hours of 7:00 a.m., prevailing time, and 6:00 p.m., prevailing time, on Saturdays; except that when it is determined by a majority of the retail merchants of downtown Lexington that they shall stay open on other designated nights for special events, the pawnshops may stay open during the hours designated by the other merchants and only on these events, and not past the hour of 7:00 p.m., prevailing time; provided further from the first day of December to and including the twenty-fourth day of December of each year, such places may be kept open for the transaction of business on all weekdays from 7:00 a.m., prevailing time, to 7:00 p.m., prevailing time; and provided further, such stores shall not be open for business on New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day or Christmas Day. Nothing in this section shall preclude the operating of a business other than that relating in any manner to the operation of a pawnshop.

(b) Any person violating the provisions of this section shall be punished by a fine of not more than one hundred dollars ($100.00) for each offense.

(Ord. No. 3580, § 1, 12-6-56; Ord. No 193-93, § 1, 10-21-93)

Sec. 13-54. Secondhand and junk dealers—Records, reports, retention of goods by secondhand dealers.

(a) Every person, including a pawnbroker as defined in section 13-52, conducting business where junk, used auto parts or secondhand goods, wares or merchandise, materials or electronic devises including video games, CD's, or DVD's are purchased, for money or store credit, from an individual in the urban county shall comply with all provisions of this section as hereinafter set forth.

(b) Every person carrying on any of the aforesaid businesses shall keep a register at his principal place of business, which shall contain the name, address and a visible description of the person or persons from whom any

secondhand goods, wares or merchandise, or material, junk, used auto parts, or electronic devices including video games, CD's or DVD's are purchased; the date when received or bought; and a full description of said article, same to be in plain English handwriting or on computer disk if the store's records are maintained on a computer system; if any articles so left or deposited, pledged or purchased have engraved thereon any numbers words or initials, or contain any setting of any kind, the description recorded in said register shall show the numbers and initials:

(1) Seller shall identify himself by name, address and date of birth by providing a valid operators license or similar identification.

(2) All aforesaid material must be tagged by the buyer as to the page and line listing corresponding to the page and line listing in the register or on his computer.

(3) No purchases or trades shall be made from any person under the age of eighteen (18).

(4) The buyer shall require each person presenting merchandise to provide a thumbprint. The thumbprint shall be maintained by the buyer with other records of the transaction, and shall be made available to the division of police on demand.

(c) It shall be the duty of any person to provide a copy of the register or the computer disk to the division of police on a daily basis and allow said officer to examine any and all articles herein belonging to or temporarily left in charge of such person up to a period of ten (10) business days; after that said material may be sold.

(d) Any person violating any of the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall for each offense be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) or confined in the county detention facility not more than thirty (30) days, or both so fined and imprisoned.

(Ord. No. 19-71, § 1, 2-4-71; Ord. No. 152-2005, § 2, 6-23-05)

Sec. 13-54.1. [Definitions.]

For the purpose of sections 13-54.1 to 13-54.6 the following definitions shall apply unless the context clearly indicates or requires a different meaning.

Ferrous metal is defined as materials containing iron which are, pure iron steel, and certain steel alloys but not limited to these examples. These metals often have magnetic properties but not exclusively.

HVAC means heating, ventilating, air conditioning systems used in residential, commercial, and automotive environments, also included are the parts associated with such systems.

Nonferrous metal is defined as material with little or no iron such as copper brass, titanium, and aluminum or alloys there of. These metals often contain no magnetic properties.

Plastics means any polymer based (natural or synthetic) material or any material further defined by the Society of Plastics Industry and or the American Chemistry Council and further stamped with a numbering symbol identifying its composition.

Regulated scrap material means catalytic converter, metal beverage container that is capable of holding more than two (2) liters of beverage and is marketed as returnable, railroad rails, nonferrous metal or an alloy thereof, or an object containing nonferrous metal or an alloy thereof, ferrous metal or an alloy there of, an object containing ferrous metal or an alloy there of, vehicles sold for scrap, or plastics or other secondhand recyclable material.

Restricted metals means any of the following metal items: manhole covers; electric light poles or other utility poles; guardrails; street signs, traffic signs, or traffic signals; whole road tiles; funeral markers or funeral vases; railroad equipment, including but not limited to a tie plate, signal house, control box, switch plate, e-clip, or rail tile junctions; condensing or evaporating coils made from copper, aluminum, or aluminum-copper, including the tubing or rods from a heating or air conditioning unit that is not from a window air conditioning unit or automobile air conditioning unit; stainless steel beer kegs; a catalytic converter or any nonferrous part of a catalytic converter unless purchased as part of a vehicle; storm drain covers.

Scrap metal dealer is defined as a person, business, or corporation who: engages in the business of purchasing, trading, bartering or otherwise receiving regulated scrap material; and or uses machinery and equipment for processing and manufacturing ferrous or nonferrous scrap into prepared grades, and whose principal product is ferrous or nonferrous metallic scrap or use similar equipment for the same purposes with other regulated scrap material.

Scrap metal dealer's license means a license issued to a scrap metal dealer conducting business in Fayette County.

Transport vehicle means any conveyance used to move ferrous and nonferrous metals for the purpose of selling, trading, bartering, or processing.

Vehicle means every device in, upon or by which any person or property is or may be transported or drawn upon a public highway other than by muscular power to include, but not limited to, heavy machinery i.e.; farm equipment and construction equipment.

(Ord. No. 58-2012, § 2, 5-17-12)

Sec. 13-54.2. Scrap metal dealer license application process.

(1) **Scrap metal dealer licenses.**

(a) Any "scrap metal dealer" located inside of Fayette County shall be required to obtain the license established in section 13-13 by making application for the same to the division of police in order to conduct business as described under the definition of a scrap metal dealer.

(b) The license or copy shall be displayed at the final point of sale of the location notated on the permit so as to be clearly visible.

(2) **Application and review process.**

(a) The applicant for a license to engage in the business of scrap metal dealer shall file an application with the Lexington Division of Police on a form provided by that division.

(b) The following information shall be provided in or with the application:

(1) Business name in which license is sought;

(2) Business address, including street address, and zip code;

(3) Telephone number;

(4) The location(s) of the facility sought to be licensed;

(5) Name and address of person responsible for management of the operation of the business, and shall include such other information as the division of police deems necessary to investigate the applicant and the applicant's proposed place of business. The division of police shall, within thirty (30) days of receipt of a completed application form, make a complete review of the accuracy of the information contained therein, including a criminal records check on any individuals named therein. If the application is to be approved, the division of police shall provide the applicant with such written notification, for presentation to the division of revenue. The division of revenue shall issue the license if the application is approved. If the application is to be denied, the division of police shall provide the applicant with such written notification, including a statement of the reasons for denial. An aggrieved applicant shall, within ten (10) days of receipt of such notice, have a right to request, in writing, a hearing before the commissioner of public safety, as authorized by section 13-54.6.

(3) The cost of each license is five hundred dollars ($500.00) per year. The license shall expire on December 31 of each year, unless suspended or revoked. Application for the next year's license should be made at least thirty (30) days prior to the expiration date.

(Ord. No. 58-2012, § 3, 5-17-12)

Sec. 13-54.3. Administrative requirements of scrap metal dealers.

Every scrap metal dealer, whether such dealers have established places of business or operate a business of an itinerant nature, with regard to any regulated scrap material shall:

(a) Keep a register that contains:

(1) A photocopy of a valid driver's license or other government-issued identification card of the seller. If the purchaser has a copy of the seller's valid photo identification on file, it shall not be necessary for the purchaser to make another copy of the identification document for each purchase if the purchaser ref-

erences the number on the identification document in the register at the time of each purchase; however, a photocopy of a valid driver's license or government-issued identification card must be presented with each purchase.

(2) The state and license number of the motor vehicle used to transport the regulated scrap materials to the place of purchase, which shall be provided by the seller of the items. If the displayed registration plate is a temporary license plate then the VIN number of the transport vehicle shall be recorded;

(3) The time and date of the transaction;

(4) A description in the usage of the trade of the kind and weight of the regulated scrap materials and information regarding the material acquired stating the weight and a detailed description of the materials. If the material is tubing, the diameter will be recorded and noted as new or used. All items for purchase shall be photographed in digital format from a position that is capable of revealing a true depiction of the material; and

(5) The amount paid for the regulated scrap material and the unit basis of the purchase, such as by ounce or pound, etc.;

(6) Purchases made from a utility, telecommunications, and/or data communication's company should be documented in a manner that accurately depicts the type of regulated scrap material purchased and the total weight of the purchase. If a mix of material is purchased then an accurate notation of the various materials shall be noted in the registry, including the company making the sale and the employee or representative of the company making the transaction;

(7) If the scrap is a vehicle as defined, the VIN number or other identifying number or mark shall be recorded along with a photograph of the VIN, other identifying number, or mark. The photograph shall be taken in digital format for future processing. If the VIN or other identifying number or mark is not readily accessible then photographs in the listed manner shall be taken from four (4) vantage points to accurately depict the description of the scrapped vehicle in the manner in which it was purchased;

(8) Retain the information required by this section for a period of two (2) years, after which time, the information may be retained or destroyed in a manner that protects the identity of the owner of the regulated scrap material and the seller of the material.

(9) If the purchaser ceases business, transfer all records and information required by this section to the chief of police;

(10) Upon written request of the chief of police, as appropriate, upload the required data to a secure, electronic database approved by the chief of police no later than the close of business on the day the regulated scrap material was purchased by the scrap metal dealer.

(11) Comply with a written request pursuant to subsection (10) of this subsection until a written notice to cease sending the reports required by subsection (10) of this section is received by the purchaser. A request may relate to:

(a) All records of purchases;

(b) Records of a specific class of metals or items purchased;

(c) Records of purchases during a specific period of time;

(d) Records of a specific purchase or purchases; and

(e) Photographs of regulated scrap material purchased.

(12) The police department receiving records pursuant to this section shall retain the records for two (2) years, after which time, it may either retain or destroy the records in a manner that protects the identity of the owner of the regulated scrap material, the seller of the material, and the purchaser of the material; or if uploaded to a secure database, the retention schedule will be regulated by that company's policy and procedure;

(13) Any record required to be made or reported pursuant to this section may be kept and reported in hard copy and uploaded to a secure database in digital or in electronic format.

(14) A scrap metal dealer shall not enter into any cash transaction for the purchase of any restricted metals as defined in section 13-54.1.

(a) Payment by a scrap metal dealer for the purchase of restricted metals shall be made by check issued to the seller and payable to the seller.

(b) Each check for payment shall be mailed by the scrap metal dealer directly to the street address of the seller. Payment shall not be mailed to a post office box.

(c) Each check shall be mailed by the scrap metal dealer to the seller no sooner than one (1) day after the purchase transaction.

(15) Scrap metal dealers or their designee shall meet at least every quarter with the designee from the chief of police.

(Ord. No. 58-2012, § 4, 5-17-12)

Sec. 13-54.4. Retention of certain purchased regulated scrap material by scrap metal dealers.

(1) Retain copper gutters and downspouts; copper roofing and flashing material; backflow preventer valves; cast iron sinks and bathtubs; and new or bare copper wiring or plumbing materials weighing ten (10) pounds or more in its original form for a period of three (3) business days from the date of purchase unless notified by a peace officer having reasonable cause to believe that the material may be stolen material, in which case,

the material may be seized as evidence by the peace officer or, if not seized, shall be retained for an additional thirty (30) days unless earlier notified by a peace officer that the material may be sold. All materials purchased will be maintained, in its received form, in addition, all purchased items will be tagged and stored separately in a manner so that no intermingling of material will occur;

(a) The material purchased from a utility, telecommunications, and or data company need not be held on site for the required time previously stated and may be processed immediately upon acquisition by the scrap metal dealer;

(b) Material purchased from another scrap metal dealer, whether located in Lexington-Fayette Urban County, another county in the State of Kentucky or from out of state need not be held on site for the required time previously stated and may be processed immediately upon acquisition by the scrap metal dealer;

(c) Material purchased from an industrial or commercial account, non-profit organization (civic, religious fraternal, philanthropic, social, patriotic or school sponsored), or a municipal waste department or licensed waste hauler need not be held on site for the require time previously stated and may be processed immediately upon acquisition by the scrap metal dealer.

(2) It shall be the duty of every scrap metal dealer, his agents or employees to hold all suspected stolen regulated scrap material in a secure place for thirty (30) business days upon request by a peace officer. The metal scrap metal dealer, his agents or employees, may not process or remove the material from the dealer's premises before the thirtieth business day after receipt of the request from a peace officer to hold the material unless:

1. The material is released into a peace officer's care, custody and control at an earlier time;

2. A peace officer releases the hold on the material upon an earlier date;

3. A peace officer makes a written request to extend the holding period for up to ninety (90) business days from the date the original request is received; or

4. A court orders release of the material.

(3) Permit any peace officer to inspect the register, and if the peace officer deems it necessary to locate specific stolen regulated scrap material, may inspect the regulated scrap materials received during business hours. This section also includes the inspection of holding areas where the materials are stored.

(Ord. No. 58-2012, § 5, 5-17-12)

Sec. 13-54.5. [Prohibited purchases.]

A scrap metal dealer shall not make any of the following purchases:

(1) Any regulated scrap material from a person who:

(a) Is less than eighteen (18) years of age or;

(b) Is unable or refuses to provide the identification and information required in subsection 13-54.4(1)(a)(1); or

(c) Is visibly intoxicated by way of an alcoholic beverage or other impairing substance;

(d) Is on the restricted sellers list as provided to the scrap metal dealer by the division of police.

(2) A vehicle sold for scrap, less than ten (10) years of age, without a valid title or copy of title produced at the time and location of the sale. Failure to produce the title will result in the recycler, scrap metal dealer, dealer in junk or metals, dealer in secondhand articles, vendor of bottles or rags, collector of or dealer in articles found in ashes, garbage, or other refuse, not completing the sale. Vehicles whose title has been surrendered pursuant to KRS 186A.295 are exempt from this section.

(3) Any heating, ventilating, air conditioning (HVAC) equipment in whole units or parts without the seller, while being an employee of a business that provides such services, producing an urban county government-issued HVAC permit or state-issued professional license while selling within the scope of their employment.

(a) Any individual wishing to sell heating, ventilating, air conditioning (HVAC) equipment must provide a permit issued by a city to a homeowner for the installation, alteration, or repair of an air-conditioning system at a particular address and an invoice or repair order for work completed which would show the location and customer name where the units or parts were serviced. Failure to produce any of the required information will result in the scrap metal dealer not completing the sale;

(1) The scrap metal dealer will maintain a copy of the invoice or repair order for work completed at the business location of the sale for a period of time not to exceed two (2) years.

(2) This provision shall not apply to window air conditioning units.

(4) It shall be unlawful for a scrap metal dealer, his agents or employees to purchase any of the following items of regulated scrap materials without obtaining proof that the seller owns the property (such as by a receipt or bill of sale) or proof that the seller is an employee, agent, or contractor of a governmental entity, utility company, cemetery, railroad, manufacturer, or other person, business, or entity owning the property and the seller is authorized to sell the item of regulated scrap materials on behalf of the person, business, or entity owning the property:

(1) A manhole cover.

(2) An electric light pole and its fixtures and hardware.

(3) A guard rail.

(4) A street sign, traffic sign, or traffic signal and its fixtures and hardware.

(5) A funeral marker or funeral vase.

(6) An historical marker.

(7) Railroad equipment, including but not limited to a tie plate, switch plate, E clip, or rail tie junction.

(8) Any metal used by, or that is the property of, or any item that is marked with any form of the name, initials, or logo of a governmental entity, utility company, cemetery, or railroad.

(9) An aluminum or stainless steel container or bottle designed to hold propane for fueling fork lifts.

(5) An item of regulated scrap metal in its original packaging unless the person selling such item presents a receipt or proof of purchase for that material.

(6) An item of regulated scrap metal that is marked with any form of the name or initials of a private company (excludes manufactures labeling) or that the scrap metal dealer knows or should reasonably be expected to know belongs to a private company unless the person selling such material presents at the time of sale a written, signed statement from the seller attesting to lawful ownership of the material, a receipt from the lawful owner, or a written, signed statement from the lawful owner of the property providing that the seller has authorization to sell or otherwise transfer that property.

(7) Any regulated scrap material that has been smelted, burned, or melted unless, in addition to the other requirements of this subsection, the seller provides the following and the purchaser maintains a copy thereof:

(a) A signed certificate of ownership stating that he or she is the owner of the material and is entitled to sell it; or

(b) A signed certificate from the owner of the material stating that he or she is the owner of the material and that the person selling the material is authorized to sell the material on behalf of the owner;

(8) Any regulated scrap material that is stolen or by reasonable diligence one should know is stolen. The scrap metal dealer, his agents, or employees, shall report to police any attempt to sell such stolen material or material acquired by the dealer subsequently determined or reasonably suspected to be stolen material, and the scrap metal dealer, his agents or employees, shall furnish such other information as might be helpful to the police in investigating the matter.

(Ord. No. 58-2012, § 6, 5-17-12)

Sec. 13-54.6. Penalties and appeals process.

The following are penalties and appeals process for [sections 13-54.1 through 13-54.6]:

(1) Convictions of three or more incidents in violation of any provision in sections13-54.1 through 13-54.6 during a twelve-month period shall result in a probationary period imposed on the scrap metal dealer convicted for such offences not to exceed a six-month period. If further convictions of violations pertaining to sections 13-54.1 through 13-54.6 occur during the probationary period then a revocation of the scrap metal dealer's/seller's license will occur for a period not to exceed thirty (30) calendar days.

(a) Upon conviction of three (3) or more incidents in violation of any section in sections13-54.1 through 13-54.6 during a twelve-month period or upon a conviction of a violation of this section during the probationary period, the scrap metal dealer shall have the right to an administrative hearing to appeal the probationary period and/or license revocation or license denial. The hearing will be held before the commissioner of public safety or his/her designee.

(b) Before the institution of the probationary period or license revocation, the commissioner of public safety shall notify the scrap metal dealer in writing of his intent to institute the probationary period or revoke the license, including a summary of the grounds for the action. The notice shall be sent to the scrap metal dealer by certified mail to the person and address specified on the license. Within ten (10) days of receipt of such notice, the scrap metal dealer may provide to the commissioner of public safety, in writing, a response which shall include a statement of reasons why the license should not be put in probation or revoked and may include a request for a hearing. If a response is not received by the commissioner of public safety within ten (10) days, the notice shall be a final administrative act of probation or revocation. If a response is received by the commissioner of public safety within ten (10) days, he shall schedule a hearing and shall give notice of such hearing to the scrap metal dealer. The hearing shall be conducted within thirty (30) days of the commissioner of public safety's receipt of the scrap metal dealer's response. The commissioner or designee shall render a written decision within (10) days after the completion of the hearing and shall serve the scrap metal dealer with a copy of the decision by certified mail. The scrap metal dealer may appeal the decision to the Fayette Circuit Court within thirty (30) days after receipt of the written notice of the decision.

(c) It shall be the responsibility of the general manager or principal facility manager of the scrap metal dealer to see that the employees of the business understand the provisions set forth in sections 13-54.1 through 13-54.6 and that those provisions are adhered to.

(d) Any violations of sections 13-54.1 through 13-54.6 shall constitute a misdemeanor and any person who is convicted shall upon the first conviction thereof be fined not less than one hundred dollars ($100.00) nor more than two hundred fifty dollars ($250.00), or imprisoned for not more than six (6) months or both; and for the second and each subsequent conviction shall be fined not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00), or imprisoned for not more than six (6) months, or both.

(e) There will be a thirty-day grace period from the date that sections13-54.1 through 13-54.6 go into effect. No enforcement action shall be taken during this grace period to help educate scrap metal dealers of this new Ordinance [No. 58-2012].

(Ord. No. 58-2012, § 7, 5-17-12)

Sec. 13-55. Reserved.

Editor's note(s)—Ord. No. 152-2005, § 3, adopted June 23, 2005, repealed § 13-55 in its entirety. Former § 13-55 pertained to purchase of junk from minors. For a complete history of former § 13-55 see the Code Comparative Table.

Sec. 13-55.1. Trailer parks; operators to keep register, make reports of occupants for assessment information.

(a) Every person providing rental space for the parking of house trailers shall, by September 1, 1965, and September 1 of each year thereafter, report the name of the owner, type and size of all house trailers on his premises on July 1, 1965, and July 1 of each year thereafter, to the commissioner of finance. The report required herein shall be made in accordance with the form prescribed by the commissioner of finance and shall be signed and verified by the chief officer or person in charge of the business.

(b) Every person providing rental space for the parking of house trailers when there is no keeper or operator shall keep a register of all house trailers which make use of the trailer park, such register setting forth:

(1) The name of owner or occupier;

(2) The permanent and temporary post office address of the owner or occupier;

(3) The license of all units;

(4) The state issuing such a license;

(5) The date of arrival and departure of each house trailer.

(c) Any person failing to comply with subsections (a) and (b) of this section shall upon conviction be fined not less than one dollar ($1.00) nor more than one hundred dollars ($100.00) for each offense, and each day's failure to so comply shall be a separate offense.

(Ord. No. 5152, §§ 1—3, 4-15-65)

Secs. 13-56—13-61. Reserved.

Editor's note(s)—Section 6 of Ord. No. 98-84, adopted June 28, 1984, repealed §§ 13-56—13-60, relating to weapons. The sections carried no history note. Section 7 of Ord. No. 98-84 repealed § 13-61, prescribing a penalty

for violation of §§ 13-45, 13-46 and 13-57—13-60. Section 8 of the ordinance declared the repeal effective Jan. 1, 1985. Formerly, § 13-61 was derived from Ord. No. 89-70, § 1, adopted May 5, 1970; Ord. No. 65-71, § 1, adopted Apr. 22, 1971; Ord. No. 74-71, § 1, adopted May 7, 1971; and Ord. No. 98-84, § 4.

Sec. 13-62. Permit required for possession, sale of explosives, contents of permit; fee; logging of sales; penalty.

(a) It shall be unlawful for a person to possess, for any reason whatsoever, dynamite, TNT, nitroglycerine, or any other explosive material, blasting caps or any other device used for detonating or setting off any explosive material after the enactment of this section, unless such person has first secured from the chief of police, urban county government, a permit for the possession of same.

(b) The permit shall contain the name, address, telephone number, principal business of the applicant, the purpose for which the explosive material or device is to be used, and a registration number. There shall be a five dollar ($5.00) fee for the permits, which shall be renewable July 1 of each year.

(c) It shall be unlawful for any person to sell any such explosive material or explosive device without first securing a permit; and it shall further be unlawful for any person to sell any such explosive material or explosive device to any other person who does not present the required permit at the time of sale. All sales of any of the above-mentioned items shall be logged in a permanent record, said record to reflect the amount sold, price of same, to whom sold, along with permit number, and the stated purpose of use by the purchaser. Such record shall be open to inspection by law enforcement authorities.

(d) Except for the logging of sales by dealers, nothing herein shall be construed to apply to smokeless powder, in any quantities, primers, or any other components normally used in the handloading or reloading of small arms ammunition. Likewise, except for the logging of sales by dealers, this section shall not be deemed applicable to black powder, in quantities not exceeding five (5) avoirdupois pounds in the aggregate, or to flints or percussion caps normally used with muzzle-loading firearms.

(e) However, when federal laws or regulations pertain to the aforementioned activities, such federal laws or regulations shall supersede the provisions of this section.

(f) Any person violating any provision of this section shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or imprisonment of not less than thirty (30) days, nor more than twelve (12) months, or both. Each separate sale without the permit and/or each day's possession without a permit shall constitute a separate offense.

(Ord. No. 218-70, §§ 1—5, 9-24-70; Ord. No. 145-71, §§ 1—7, 8-26-71)

Cross reference(s)—Storage of hazardous materials, § 9-9 et seq.; transporting explosives through streets, § 18-24.

Sec. 13-63. Emergency communications system; fee.

(a) Pursuant to KRS 65.760(3) there is hereby established a special "911" emergency telephone service funding fee of two dollars and ten cents ($2.10) per month to be collected from each telephone subscriber located

in Fayette County, Kentucky, and served by the 911 emergency telephone service. The fee shall be assessed on an individual exchange line basis limited to a maximum of twenty-five (25) exchange lines per account. This fee shall automatically increase by four and one-half percent (4.5%) per annum, effective every July 1, commencing July 1, 2009. The mayor shall have the authority to sign any agreements and memorandum of understanding with the billing or collection entities as necessary to effectuate the intent of this section.

(b) The fee established in this section shall be deposited into a special account and shall be used solely for the establishment, operation and maintenance of the 911 emergency communication system; this includes expenditures to train communications personnel and to inform the public of the availability and proper use of the 911 service.

(c) The 911 emergency communication system shall be operated by the department of public safety of the urban county government.

(Ord. No. 57-95, § 1, 3-23-95; Ord. No. 12-99, § 1, 1-28-99; Ord. No. 170-2003, § 1, 7-1-03; Ord. No. 128-2008, § 1, 6-12-08)

Sec. 13-64. Inter-hospital and institutional medical transportation services; fee.

(a) A fee of one thousand dollars ($1,000.00) shall be charged each time specialty care transport is provided by the division of fire and emergency services.

(b) The fee charged pursuant to subsection (a) of this section shall be adjusted annually each January 1, beginning January 1, 2009, by a percentage equal to the annual adjustment of Medicare's reimbursement rate.

(Ord. No. 44-88, § 1, 3-10-88; Ord. No. 372-2000, § 1, 12-14-00; Ord. No. 78-2002, § 1, 4-11-02; Ord. No. 127-2008, § 1, 6-12-08)

Sec. 13-65. Emergency medical treatment unit; fee.

(a) The commissioner of finance shall collect fees for life support services, whenever transportation is furnished by the emergency medical treatment unit of the division of fire and emergency services, as follows:

(1) Six hundred fifty dollars ($650.00) for basic life support services;

(2) Seven hundred fifty dollars ($750.00) for advanced life support level 1 emergency; and

(3) Nine hundred dollars ($900.00) for advanced life support level 2.

(b) In addition to the fee collected under subsection (a) of this section, the commissioner of finance shall collect a fee of eleven dollars ($11.00) for each mile of patient transportation furnished by the emergency medical treatment unit of the division of fire and emergency services.

(c) The fees charged pursuant to subsections (a) and (b) of this section shall be adjusted annually each January 1, beginning January 1, 2009, by a percentage equal to the annual adjustment of Medicare's reimbursement rate.

(Ord. No. 90-78, § 1, 4-20-78; Ord. No. 116-85, § 1, 6-27-85; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 207-94, § 1, 10-20-94; Ord. No. 44-98, § 1, 2-19-98; Ord. No. 73-98, § 1, 3-19-98; Ord. No. 372-2000, § 2, 12-14-00; Ord. No. 78-2002, § 2, 4-11-02; Ord. No. 127-2008, § 2, 6-12-08)

Sec. 13-65.1. Emergency ambulance service; fee.

Every person or organization engaged in providing emergency ambulance service and/or transportation ambulance service pursuant to chapter 18C of this Code shall pay a yearly license fee of thirty dollars ($30.00) per vehicle to the division of revenue.

(Ord. No. 143-83, § 3, 8-25-83; Ord. No. 202-83, § 1, 11-3-83)

Editor's note(s)—Section 3 of Ord. No. 143-83, adopted Aug. 25, 1983, added § 13-75 to the Code, which was redesignated § 13-76 by § 1 of Ord. No. 202-83, adopted Nov. 3, 1983, since § 13-75 was already in the Code. In agreement with the urban county government, for purposes of classification, the provisions of Ord. No. 202-83, § 1, have been included in § 13-65.1.

Article III

Precious Metals Dealers

Sec. 13-66. License required.

(a) Effective March 15, 1981, all precious metals dealers shall be required to secure the license established in section 13-13 by making application for the same to the division of police. Such applications shall be on standard forms furnished by the division of police and shall contain all information determined by that division to be necessary for an evaluation of the applicant's eligibility to be licensed hereunder. As a part of the application process, the applicant must present proof that, if approved for licensure, he can secure an approved indemnity bond as specified in section 13-68 in the amount of thirty thousand dollars ($30,000.00), issued by a surety company authorized to transact business within the commonwealth, or can post a cash bond in that amount. No license shall be issued to or held by any person not of good moral character, nor shall a license be issued to any corporation or partnership whose chief officers or members of the firm are persons not of good moral character.

(b) The division of police shall, within thirty (30) days of receipt of a completed application form, make a complete review of the accuracy of the information contained therein, including a criminal records check on any individuals named therein and a determination as to the adequacy of the proposed bond. If the application is to be approved, the division of police shall provide the applicant with such written notification, for presen-

tation to the division of revenue. The division of revenue shall issue the license if the application is approved and if the aforementioned bond is filed with the commissioner of finance or his representative. If the application is to be denied, the division of police shall provide the applicant with such written notification, including a statement of the reasons for denial. An aggrieved applicant shall, within thirty (30) days of such action, have a right to request a hearing before the commissioner of public safety.

(c) Any license issued under this section may be suspended or revoked by the division of police for any violation of sections13-66 through 13-70 of the Code of Ordinances. However, before any such action is taken, a licensee shall be entitled to notice, a hearing before the commissioner of public safety and any other protection required by law.

(d) Licenses issued under this section shall not be transferable. License holders shall be required to post their license or a copy thereof in a conspicuous place in the place of business.

(Ord. No. 36-81, § 2, 2-19-81; Ord. No. 33-82, § 1, 3-30-82)

Sec. 13-67. Records required; inspection by police; retention of articles; exceptions.

(a) Any business meeting the definition of precious metals dealers as specified in section 13-1 shall keep a record of all purchases of gold, silver or platinum; or unset precious stones. The division of police shall furnish standard forms for such purposes, which shall at a minimum require the following information: date, time, amount paid by the dealer for the item, manufacturer's name and pattern, if ascertainable, serial number, if any, any distinguishing marks or engravings, weight of the item, pattern, number of items, and settings, if any. Additionally, the following information shall be required from the seller: Name, address, date of birth, age, hair color, race, sex, height, weight, build, general appearance, distinguishing marks, driver's license number or numbers from two (2) ID's, which may include credit cards, and a thumbprint.

(b) All precious metals dealers shall furnish to the division of police each day by 11:00 a.m. a copy of the completed record form for all transactions which took place during the preceding day. The thumbprint of each seller shall be maintained by the precious metal dealer, and it shall be the duty of any precious metals dealer to allow any member of the division of police to examine and inspect the records required above; and if sufficient information cannot be gained from inspection of said records, it shall be the duty of any precious metals dealer to permit and allow said officer to examine any and all such articles still in the dealer's possession.

(c) Every article or set of articles received by a precious metals dealer shall be kept with the aforementioned record form attached, during the entire time it is in the possession of the licensee or until the item is altered or changed in such a way as to make it no longer readily identifiable, whichever happens first. All such articles shall be retained at the place of business or other locations where the articles may be made readily available, upon request, to the division of police in the same state or condition in which they were received for a period of twelve (12) consecutive days after their receipt, during which time they shall not be resold, exchanged

or otherwise disposed of. Krugerrands and manufactured ingots shall be so retained for five (5) consecutive days. Coins other than Krugerrands and manufactured ingots, being excluded from the scope of this section, need not be recorded, reported, or retained for any period of time.

(d) Nothing contained in this section shall require compliance by a person engaging in business within Fayette County who possesses a current business license from the urban county government and is either accepting returns for cash, credit or replacement of any item originally purchased from said person or exchanging an item for another item of greater value.

(Ord. No. 19-81, § 2, 2-5-81; Ord. No. 33-82, § 1, 3-30-82; Ord. No. 161-93, § 1, 8-26-93; Ord. No. 55-96, § 1, 4-18-96; Ord. No. 311-99, § 4, 11-4-99)

Sec. 13-68. Bond.

The bond provided for in section 13-66 shall be for a term of one (1) year or until an approved occupational license tax return is filed with the division of revenue, whichever is later. Said bond shall inure to the benefit of the urban county government or of any person who shall be injured or sustain damage proximately caused by the failure of any precious metals dealer, its servants, agents or employees, failing to comply with sections 13-13 or 13-66 through 13-70.

(Ord. No. 36-81, § 2, 2-19-81; Ord. No. 33-82, § 1, 3-30-82)

Sec. 13-69. Purchases from minors; purchases of stolen goods.

In no case shall a precious metals dealer make a secondhand purchase of gold, silver or platinum or unset precious stones from a minor unless the minor is accompanied by a parent or guardian. Such purchases shall likewise not be made of any goods which the precious metals dealer knows or has reason to believe are stolen.

(Ord. No. 19-81, § 2, 2-5-81; Ord. No. 33-82, § 1, 3-30-82; Ord. No. 311-99, § 5, 11-4-99)

Sec. 13-70. Penalty for violation of article.

Any person violating any of the provisions of this article shall, upon conviction thereof, be fined not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00), or imprisoned for not more than twelve (12) months, or both so fined and imprisoned, for each offense.

(Ord. No. 19-81, § 2, 2-5-81; Ord. No. 36-81, § 3, 2-19-81; Ord. No. 33-82, § 1, 3-30-82)

Article IV

Alarm System Businesses

Sec. 13-71. License and permit required.

(1) No person shall engage in, conduct or carry on an alarm business without first applying for and receiving an alarm business license in accordance with the provisions of this article.

(2) No person shall install an alarm system, proprietor alarm or panic alarm, or use or possess an operative alarm system, proprietor alarm or panic alarm without first applying for and receiving a permit in accordance with the provisions of section 13-73; provided, however, that this ordinance shall not apply to any alarm system operated by the state, federal or local government and installed on premises which such entity occupies or uses for governmental purposes.

(3) It shall be unlawful for any person to use or cause to be used any telephone device or telephone attachment that automatically selects a public telephone trunkline then reproduces any prerecorded message to report any burglary or any other emergency situation directly by use of said phone lines to the urban county division of police.

(Ord. No. 52-83, § 3, 4-7-83; Ord. No. 56-2005, § 2, 3-10-05)

Sec. 13-72. Application for alarm business license.

(1) Any person conducting an alarm business shall be required to secure the license established in section 13-71 by making application for the same to the alarm administrator. Such applications shall be on standard forms furnished by the alarm administrator and shall contain all information determined by the alarm administrator to be necessary for an evaluation of the applicant's eligibility to be licensed hereunder, which shall include but not be limited to the following:

   (a) The name, business address, mailing address and telephone number of the alarm business;

   (b) The name of an officer, general partner, or member designated to act as the responsible managing officer if the applicant is a corporation, general or limited partnership, limited liability company or similar legal entity;

   (c) The name, mailing address, height, weight, color of eyes and hair, date of birth and two (2) current two (2) inches by two (2) inches color photographs of the applicant and, if the applicant is a legal entity other than a sole proprietorship, each person who has a controlling interest in the applicant;

   (d) The employment history of the applicant and each person who has a controlling interest in the applicant for the five-year period immediately proceeding the date of filing the application;

(e) Information as to whether the applicant or any person who has a controlling interest in the applicant, or the business on behalf of which the license is being sought, has ever been denied any similar license or has had any similar license revoked, canceled or suspended and, if so, the reason for the denial, revocation, cancellation or suspension and the name of the jurisdiction where same occurred;

(f) Information as to whether the applicant or any person who has a controlling interest in the applicant has within the last five (5) years been convicted of any crime or is presently the subject of any pending criminal action, including a description of the violation and the date and jurisdiction where the conviction occurred; and

(g) A criminal record report for the applicant or each person who has a controlling interest in the applicant.

As a part of the application process, the applicant must present proof that if approved for licensure, he can secure an approved indemnity bond in the amount of ten thousand dollars ($10,000.00), issued by a surety company authorized to transact business within the commonwealth, or can post a cash bond in that amount.

(2) The alarm administrator shall, within thirty (30) days of receipt of a completed application form and payment of a nonrefundable administrative application fee of fifteen dollars ($15.00), review the information contained therein and make a determination to grant or deny the application. If the application is to be granted, the alarm administrator shall provide the applicant with such written notification, for presentation to the division of revenue. The division of revenue shall issue the license if the application is granted and if the aforementioned bond is filed with the commissioner of finance or his representative. Licenses issued by the division of revenue shall bear a license number, which has been permanently assigned to that alarm business. If the application is to be denied, the alarm administrator shall provide the applicant with such written notification, including a statement of the reasons for denial. An aggrieved applicant shall, within thirty (30) days of such action, have a right to request a hearing before the alarm advisory board.

(3) In addition to the causes listed in section 13-72.1, any license issued under this section may be suspended or revoked by the alarm administrator for any violation of sections 13-71 through 13-74. However, before any action is taken to suspend or revoke a license, a licensee shall be entitled to notice, a hearing before the alarm advisory board and any other protection required by law.

(4) Licenses issued under this section shall not be transferable. License holders shall be required to post their license or a copy thereof in a conspicuous place in the place of business and shall include their license number in all advertisements.

(Ord. No. 52-83, § 3, 4-7-83; Ord. No. 209-85, § 2, 10-17-85; Ord. No. 56-2005, § 3, 3-10-05)

Sec. 13-72.1. License denial, suspension and revocation.

(1) The alarm administrator may deny an initial or renewal application for an alarm business license if:

(a) All application requirements have not been met, including the provision of criminal record reports;

(b) All fees have not been paid in full;

(c) The applicant, the licensee or any person who has a controlling interest in the applicant has within the last five (5) years been convicted of any felony or any misdemeanor involving fraud, theft, dishonesty, physical violence, assault, indecent exposure, illegal use or possession of a deadly weapon, or the sale, transfer, possession or use of controlled substances;

(d) The applicant filed an application containing or supported by any false or misleading information or failed to fully disclose all information required in the application;

(e) The applicant, the licensee or any person who has a controlling interest in the applicant has had any alarm system or similar business license suspended, canceled or revoked within the last five (5) years; or

(f) The applicant or any person who has a controlling interest in the applicant has violated any provision of this article.

(2) The alarm administrator may suspend or revoke an alarm business license if any ground for which the license could be denied occurs or the licensee fails to comply with the requirements of this article.

(3) No person shall apply for an alarm business license for a period of one (1) year from the denial of a license application, denial of a renewal license application or revocation of such license unless the cause for denial, revocation or non-renewal has been removed or if the denial was for an administrative, technical or otherwise non-material reason.

(Ord. No. 56-2005, § 4, 3-10-05)

Sec. 13-72.2. Alarm company duties and services.

(1) **General duties.** Every alarm company shall comply with the following duties:

(a) Upon request, provide the alarm administrator with documentation evidencing compliance with the provisions of this article;

(b) After installation of a new alarm system or conversion, takeover or transfer of an existing alarm system, provide written and oral instructions to each of its alarm users in the proper use and operation of their alarm system, including but not limited to all instructions necessary to turn the alarm system on and off and to avoid false alarms;

(c) After completion of the installation of an alarm system or conversion, takeover or transfer of an existing alarm system, review with the alarm user a false alarm prevention checklist provided or approved by the alarm administrator;

(d) When a transfer, takeover or conversion of an alarm system occurs or upon request of an alarm system user for inspection or modification of an alarm system, remove the one plus duress alarm capability from the alarm system;

(e) If available and required by the alarm administrator, use only alarm control equipment which meets or exceeds the American National Standards Institute (ANSI) approved Security Industry Association (SIA) SIA CP-01 Control Panel Standard, as amended, and is appropriately labeled as meeting such standard by an independent third party testing organization;

(f) Require all alarm system users to go through a seven-day acclimation period following installation of an alarm system or conversion, takeover or transfer of an existing alarm system during which period the alarm company will not make dispatch requests to the division of police, unless circumstances necessitate immediate requests for response pursuant to regulations adopted by the alarm administrator;

(g) Within thirty (30) days of assuming responsibility for another alarm company's monitored alarm user, notify the alarm administrator of the transfer of responsibility;

(h) Collect from each of its alarm users the initial and renewal nonrefundable fifteen dollar ($15.00) administrative fees and remit the fees to the alarm administrator with the completed alarm user permit application and renewal applications, as appropriate, at least fourteen (14) calendar days prior to initial activation of a new system or expiration of the permit for an existing system; and

(i) At least fourteen (14) calendar days prior to a conversion, verify that the contents of the last alarm system user permit application is accurate and, if not, submit a new application, which shall not require payment of a new application fee or alter the permit period.

(2) **Prohibited system functions.** No alarm company shall:

(a) Program an alarm system so that it is capable of sending one plus duress alarms;

(b) Install a device to activate a holdup alarm which is a single action, non-recessed button; or

(c) Use automatic voice dialers.

(3) **Monitoring service providers.** Every alarm company that provides monitoring services shall:

(a) Report alarm signals by use of a telephone number or numbers provided by the alarm administrator;

(b) Communicate an alarm dispatch cancellation to the division of police immediately upon determining that a false alarm or a false dispatch has occurred;

(c) Except for duress, holdup or panic alarm signals, attempt to verify every alarm signal before making an alarm dispatch request;

(d) Communicate all alarm dispatch requests to the division of police in the manner directed by the alarm administrator;

(e) Ensure that all alarm system users of alarm systems equipped with duress, holdup or panic alarms are given adequate training as to the proper use of the duress, holdup or panic alarm;

(f) Include all available information about the alarm in the alarm dispatch request, which shall include but not be limited to:

1. The location of the activated alarm, including the complete business or residential address, homeowner's name and telephone number;

2. The alarm user permit or registration number;

3. If the alarm system is zoned, the specific location of the alarm activation such as interior, perimeter, vault, motion detection, north, south, front back, first floor, second floor;

4. The results of the verification procedure;

5. For alarms at nonresidential premises, any available information regarding whether the business is open or closed, if guards or guard dogs are on site, and if dangerous or special conditions exist within the location; and

6. For alarms at residential premises, any available information regarding the presence of pets, handicapped or disabled individuals, or unusual or special conditions.

(g) For a period of one (1) year maintain records relating to alarm dispatch requests, including the alarm user's name, address and telephone number; the alarm system zone activated; the time of the alarm dispatch request; and, a detailed description of all attempts made to verify the alarm;

(h) Within three (3) business days of receiving of a request from the alarm administrator, furnish the alarm administrator with all records for a specific alarm dispatch request made within the past year;

(i) Within twenty (20) calendar days of receiving a request from the alarm administrator, furnish the alarm administrator with all records for a specific alarm user for the prior year;

(j) Arrange for either the alarm user or other responsible party to go to the premises of an activated alarm within thirty (30) minutes of activation of the alarm in order to be available to assist law enforcement personnel in determining the reason for activation and to secure the premises.

(Ord. No. 56-2005, § 5, 3-10-05)

Sec. 13-72.3. Alarm user duties.

The alarm user shall:

(a) Apply for the permit required by section 13-71(2) at least fourteen (14) calendar days prior to activating the alarm system;

(b) Maintain the alarm site and the alarm system in good working order and in a manner that will minimize or eliminate false alarms;

(c) At the request of the responding law enforcement personnel, respond or make arrangements for a responsible person to respond to the alarm site within thirty (30) minutes of the alarm activation in order to (i) deactivate the alarm system, (ii) provide access to the alarm site, and/or (iii) to provide alternate security for the alarm site, as appropriate;

(d) Instruct all persons who are authorized to activate the alarm system in the appropriate method of operation and to maintain at each alarm site a set of written operating instructions for the alarm system; and

(e) Adjust the mechanism or cause the mechanism to be adjusted so that an alarm signal audible on the exterior of the alarm site will sound for no longer than ten (10) minutes after being activated.

(Ord. No. 56-2005, § 6, 3-10-05)

Sec. 13-72.4. Application for alarm user permit.

(1) No alarm user shall operate, or cause to be operated, an alarm system at its alarm site without a valid alarm user permit. A separate application and permit is required for each alarm site.

(2) An alarm user permit is valid for a period of up to twelve (12) months, commencing on the first day of the month in which the permit is issued and automatically expiring the next calendar year on the last day of the month in which it was originally issued, and may be renewed for additional twelve-month periods by filing an application for renewal and payment of the fifteen dollar ($15.00) nonrefundable administrative fee.

(3) No alarm user permit shall be issued or renewed if the applicant has:

(a) Failed to pay the alarm user permit administrative fee;

(b) Failed to pay any civil fine imposed by section 13-73.2;

(c) Made a material false statement for the purpose of receiving an alarm user permit; or

(d) Had an alarm user permit for the alarm site suspended or revoked and the violation causing the suspension or revocation has not been corrected.

(4) When the alarm administrator has recorded an alarm for an alarm user who has not applied for, or not renewed, an alarm user permit, the alarm administrator will issue a warning statement to the alarm user informing the alarm user that he is in violation of this article and that the alarm user has ten (10) days from the date of the warning within which to apply for a permit. If the alarm user fails to apply for the permit within the ten-day grace period, the alarm administrator shall issue an administrative citation initiating an enforcement proceeding before the alarm advisory board.

(Ord. No. 56-2005, § 7, 3-10-05)

Sec. 13-72.5. Proprietor alarms.

Proprietor alarm owners or users shall:

(1) Comply with the provisions of this article that apply to alarm users;

(2) Notify the alarm administrator of the name, address and telephone number of the person or persons to be notified in case the alarm is activated;

(3) If the alarm system includes an audible alarm, to deactivate or cause to be deactivated the alarm system within thirty (30) minutes of notification of the alarm system activation; and

(4) Maintain a current copy of this article and applicable regulations issued by the alarm administrator on the premises and make them available to the person or persons identified in subsection (2) above.

(Ord. No. 56-2005, § 8, 3-10-05)

Sec. 13-72.6. Alarm administrator.

(1) The alarm administrator shall have the powers of a "code enforcement officer", as that term is defined in KRS 65.8805, for purposes of enforcing this article, including but not limited to the authority to issue an administrative citation to initiate enforcement proceedings before the alarm advisory board.

(2) The alarm administrator shall enforce the provisions of this article and may adopt reasonable rules and regulations to implement and enforce this article.

(3) The alarm administrator shall approve or develop and implement an alarm user awareness class to educate alarm users about the problems created by false alarms and the responsible use, operation and maintenance of alarm systems.

(Ord. No. 56-2005, § 9, 3-10-05)

Sec. 13-73. Contents of application; fee; validity.

(1) Any person or business entity installing an alarm system for use upon that person's or entity's premises or using an alarm system previously installed upon that person's or entity's premises shall submit an application for an alarm system user's permit to the alarm administrator or his designee. Such application shall be on standard forms furnished by the alarm administrator and shall contain, but not be limited to, the following information:

(a) Name, address and telephone number of the permittee;

(b) Type of alarm system and the address of the premises where the alarm system is installed;

(c) Name, address and telephone number of the individual primarily responsible for maintenance of the alarm system; and

(d) Name, address and telephone number of the individual who will be responsible for maintenance of the alarm system if the primary individual should not be available.

(2) The alarm administrator shall, upon receipt of properly completed application form, furnish the applicant or the applicant's designated agent or representative with written notification of the approval of the same for presentation to the division of revenue. The division of revenue shall issue an alarm system user's permit upon presentation of an approval notice from the alarm administrator and payment of a nonrefundable administrative fee of fifteen dollars ($15.00). Federal, state and urban county agencies and facilities shall be exempt from payment of the aforementioned administrative fee.

(3) Whenever any change occurs relating to the written information required by subsection (1) of this section, the applicant or permittee shall give written notice thereof to the alarm administrator within fifteen (15) days of such change.

(4) An alarm user's permit shall not be assigned or transferred without the written approval of the alarm administrator.

(Ord. No. 52-83, § 3, 4-7-83; Ord. No. 110-84, § 1, 7-12-84; Ord. No. 209-85, § 3, 10-17-85; Ord. No. 56-2005, § 10, 3-10-05)

Sec. 13-73.1. Confidentiality of information.

To the extent permitted by KRS 61.878, the information furnished and secured pursuant to sections13-71 through 13-74 shall be confidential in character and shall not be subject to public inspection and shall be kept and maintained so that the contents thereof shall not be known except to persons charged with administration of sections 13-71 through 13-74.

(Ord. No. 209-85, § 4, 10-17-85; Ord. No. 56-2005, § 11, 3-10-05)

Sec. 13-73.2. False alarms.

(1) When an alarm system generates a false alarm in any calendar year, the alarm administrator shall issue a warning notice to the alarm user and the alarm company providing service for that alarm system informing them that subsequent false alarms within the same calendar year may subject the alarm user to civil fine. Unless otherwise specified herein, the provisions of chapter 2B of the Code of Ordinances shall apply to all civil enforcement.

(2) Any alarm system that has four (4) or more false alarms in any calendar year shall subject the alarm user to a maximum civil fine, which must be issued in the form of the citation specified in section 2B-6 of the Code of Ordinances, as follows:

Violation	Maximum Civil Fine
Fourth	$25.00
Fifth	60.00
Sixth	125.00
Seventh	200.00
Eighth	250.00
Ninth	300.00

If the alarm user does not contest the citation issued for a false alarm, then the civil fine shall be in the amount of the citation.

(3) The alarm administrator may suspend the permit for any alarm system that has five (5) or more false alarms in any calendar year and shall revoke the permit for any alarm system that has ten (10) or more false alarms in any calendar year. The suspension period shall be for a period of up to sixty (60) days and the revocation period shall be for a period of up to one (1) year.

(4) The alarm administrator may suspend or revoke a license and/or a permit if the alarm company fails to arrange for the alarm user or other responsible party to go to the premises of an activated alarm, as required by subsection 13-72.2(3)(j), or if the alarm user fails to respond or make arrangements for a responsible party to respond to the alarm site, as required by subsection 13-73.3(3).

(5) It shall be an affirmative defense to a false alarm civil fine that the false alarm was caused by an act of God, common cause, action of a telephone company, telephone line outage, power outage lasting more that the life of a fully charged battery, and other extraordinary circumstances not reasonably subject to control by the alarm business or alarm user.

(6) Alarm users shall have the option of attending the alarm user awareness class approved or created by the alarm administrator in lieu of paying one (1) civil fine. An alarm system user who elects to attend an alarm user awareness class shall not be eligible to attend the alarm user awareness class more than once and must notify the alarm administrator in writing of the decision to take the class prior to the deadline for filing an appeal.

(7) Any person operating an alarm system without the required license or permit or while the required license or permit is suspended or revoked shall be subject to an additional civil fine of one hundred dollars ($100.00) for each false alarm, which shall be issued in the form of the citation specified in section 2B-6 of the Code of Ordinances.

(8) If cancellation occurs before the responding local law enforcement agency arrives at the alarm site the alarm will not be considered a false alarm and no warning notice or citation will be issued.

(9) The civil fines imposed against an alarm user in subsection (2) above may be imposed against the alarm company if the alarm administrator determines that the alarm company did not verify a false alarm. A warning notice will not be issued and a civil fine will not be assessed against an alarm user if an alarm company is assessed a civil fine for failing to verify a false alarm.

(Ord. No. 209-85, § 5, 10-17-85; Ord. No. 56-2005, § 12, 3-10-05; Ord. No.221-2016, § 11, 12-6-16)

Sec. 13-73.3. Appeal of warning notice, civil fines, suspension and revocation.

Any person who has received a warning notice, a citation or an order of suspension or revocation shall have a right to appeal such order to the alarm advisory board. Any appeal of an order of a warning notice or an order of suspension or revocation must be in writing and shall be filed with the alarm administrator within ten (10) days of receipt of the notice or order. An appeal from a citation must comport with the requirements of section 2B-6 of the Code of Ordinances (i.e., filed within seven (7) days). All appeals will be heard by an assigned hearing officer as provided in section 2B-5 of the Code of Ordinances using the process provided in chapter 2B of the Code.

(Ord. No. 209-85, § 6, 10-17-85; Ord. No. 56-2005, § 13, 3-10-05; Ord. No.221-2016, § 12, 12-6-16)

Sec. 13-73.4. Reinstatement.

(1) Any person who has received an order of suspension or revocation may petition the alarm administrator for a reinstatement conference for the purpose of presenting proof that reinstatement of a suspended or revoked permit or license and renewed use of the alarm system will not result in excessive false alarms and constitute a public nuisance. The alarm administrator may require inspections of an alarm system as a condition of reinstatement.

(2) If after a reinstatement conference the alarm administrator finds that the petitioner has failed to establish that permit or license reinstatement and renewed use of the system will not result in excessive false alarms and will not constitute a public nuisance, the suspension or revocation shall remain in effect and the petitioner may appeal the ruling to an assigned hearing officer acting for the alarm advisory board.

(3) If after an appeal the assigned hearing officer finds that the petitioner has failed to establish that permit or license reinstatement and renewed use of the system will not result in excessive false alarms and will not constitute a public nuisance, the suspension or revocation shall remain in effect. If, after the initial reinstatement conference or after an appeal, the petitioner has established through proof of renewed user training, system maintenance, modification or repair that permit or license reinstatement and use of the system will not result in excessive false alarms and will not constitute a public nuisance, the order of suspension or revocation shall be dissolved upon submission of a new permit application and payment of a nonrefundable reinstatement fee of fifteen dollars ($15.00).

(4) Filing of a petition for reinstatement or an appeal of the alarm administrator's decision after a reinstatement conference shall not stay an order of suspension or revocation.

(Ord. No. 209-85, § 7, 10-17-85; Ord. No. 56-2005, § 14, 3-10-05; Ord. No.221-2016, § 13, 12-6-16)

Sec. 13-73.5. Alarm advisory board.

There is hereby created an administrative hearing board pursuant to KRS 65.8801 to KRS 65.8839 (the Local Government Code Enforcement Board Act) to be known as the alarm advisory board. The board shall be composed of five (5) members and shall operate under and be subject to the provisions of chapter 2B of the code.

(Ord. No. 209-85, § 8, 10-17-85; Ord. No. 56-2005, § 15, 3-10-05; Ord. No. 77-2011, § 11, 6-23-11)

Sec. 13-74. Shutoff device.

Any alarm system which is installed or connected on or after April 17, 1983 and which, when activated, generates an audible sound on the premises, shall have as part of the system an automatic shutoff that will deactivate the audible portion of the system within thirty (30) minutes after it is first activated.

(Ord. No. 52-83, § 3, 4-7-83; Ord. No. 209-85, § 9, 10-17-85; Ord. No. 56-2005, § 16, 3-10-05)

Sec. 13-75. Penalties and fines for violation of article.

(1) **Criminal penalty.** Any person violating any of the provisions of sections13-71 through 13-74 shall, upon conviction thereof, be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) or imprisoned for a period of not more than twelve (12) months, or both so fined and imprisoned.

(2) Civil fine: Except as otherwise provided herein, any person who violates any provision of this article may be subject to civil fines of not less than fifteen dollars ($15.00) nor more than five hundred dollars ($500.00), pursuant to the civil fine guidelines for false alarms set forth in section 13-73.2.

(3) The civil fines provided in this article may be levied in conjunction with, or as an alternative to, the criminal penalties provided in this article or in state law.

(Ord. No. 52-83, § 3, 4-7-83; Ord. No. 209-85, § 10, 10-17-85; Ord. No. 56-2005, § 17, 3-10-05)

Article V

Short Term Rentals

Sec. 13-76. Definitions.

For the purposes of this article, the following definitions shall apply:

Director shall mean the Director of the Lexington-Fayette Urban County Government, Division of Revenue.

Hosted short-term rental shall mean a short-term rental in which the dwelling unit utilized as the short-term rental, or another dwelling unit on the subject property, is a primary residence, and the primary resident continues to occupy the property while the short-term rental is being rented to a transient guest.

Hosting platform shall mean an internet-based platform that generally facilitates the rental of the short-term rental accommodations by brokering, coordinating, or in any other way arranging for the rental of the accommodations.

Licensee shall mean any person who owns a short-term rental that possesses a short-term rental special fees license pursuant to this article.

Person shall have the same meaning as provided in section 13-1 of the Code.

Primary residence shall mean the permanent residence or the usual place of return for housing of the owner of the short-term rental, the operator of the short-term rental, or an individual who otherwise consents to be an agent of the owner or operator for the purposes of this article, as documented by the following:

(1) One of the following:

a. Un-expired driver's license; or

b. Current voter registration; and

(2) One of the following, dated within the past year:

a. Tax document showing the premises as the individual's residence; or

b. Bank statement; or

c. Motor vehicle registration; or

d. Utility bill.

An individual may only have (1) primary residence and must reside there for a minimum of two hundred seventy-five (275) days during the calendar year.

Primary resident shall mean the owner of the short-term rental, the operator of the short-term rental, or an individual who otherwise consents to be the agent of the owner or operator for the purposes of this article, whose primary residence is the dwelling unit utilized as the short-term rental, or another dwelling unit on the subject property.

Rent shall have the same definition as provided in section 2-172 of the Code.

Short-term rental shall mean a dwelling unit that is rented, leased, or otherwise assigned, in whole or in part, for temporary occupancy by transient guests for a tenancy of less than thirty (30) consecutive days, where no meals are served. This term does not include hotel or motel rooms, extended stay hotels, bed and breakfast facilities, or boarding and lodging house rooms.

Short-term rental advertisement shall mean any method of soliciting another to use a dwelling unit or portion thereof as a short-term rental.

Transient guest shall mean an individual who exercises occupancy or is entitled to occupancy by reason of concession, permit, right of access, license, or other agreement for a period of less than thirty (30) consecutive days. This term shall not be construed to include individuals who rent their primary residence on a weekly basis.

Un-hosted short-term rental shall mean a short-term rental in which the dwelling unit utilized as the short-term rental, or another dwelling unit on the subject property, is not a primary residence, or a primary resident fails to occupy the subject property while the short-term rental is being rented to a transient guest.

(Ord. No. 42-2018, § 2, 7-3-18; Ord. No.080-2023, § 2, 7-11-23; Ord. No.138-2024, § 1, 12-5-24)

Sec. 13-77. Short-term rental special fee license.

(a) No person shall own a short-term rental in Lexington-Fayette County unless the person possesses a valid special fee license for the short-term rental issued by the Lexington-Fayette Urban County Government, Division of Revenue, as provided in section 13-13 of the Code and this article.

(b) The Director may promulgate such forms and procedures as reasonably necessary for the orderly and efficient processing of short-term rental special fee license applications and renewals. Provided, however, that an applicant shall be required to provide the following information as part of its application for a special license and renewal:

(1) Address of the proposed short-term rental;

(2) Name, address, phone number, and email address of the applicant;

(3) Name, address, phone number, and email address of the operator of the short-term rental, if different from the applicant;

(4) Name, address, phone number, and email address of an emergency contact that resides or is otherwise located in Lexington-Fayette County, Kentucky, or within twenty-five (25) miles of the proposed short-term rental;

(5) Approval by the Division of Planning that the short-term rental complies with the Zoning Ordinance;

(6) The maximum number of occupants requested for the short-term rental, which shall be no greater than the number permitted by section 13-79(a)(7);

(7) A site plan and floor plan depicting the short-term rental, including the number of vehicles that can be legally parked on the property, without encroaching onto the street, sidewalks, alleys, public rights of way or public property;

(8) A certificate of insurance or other valid proof of general liability insurance in the amount not less than one million dollars ($1,000,000.00) per occurrence, which shall remain in effect at all times while engaged in the licensed activity;

(9) An affidavit confirming that the health and safety requirements of section 13-79(a)(1)-(6) of the Code of Ordinances have been satisfied for each short-term rental;

(10) An affidavit confirming that the applicant complies and shall continue to comply with all aspects the applicable building codes, fire codes, and all other applicable state, federal, and local laws or regulations; and

(11) For short-term rentals utilizing septic tanks documentation from the Health Department stating that the septic tank on the property is sufficient to handle the proposed use of the property as a short-term rental.

(c) All applications for a special fee license and renewal shall be accompanied by the fee referenced in section 13-13 of the Code for short-term rental special fee licenses.

(d) The operator of the short-term rental may apply on behalf of the owner of the short-term rental, with the express written permission of the owner. However, the owner of the short-term rental shall remain the licensee.

(e) A short-term rental special fee license shall cover all short-term rentals owned by the licensee holding the license.

(f) All short-term rental special fee licenses and renewals shall expire upon the earlier of (1) December 31st following the most recent application or renewal; (2) a change in licensee or ownership of a dwelling unit used as a short-term rental; (3) a change in use from one form of short-term rental (hosted or un-hosted) to the other; or (4) the revocation of a conditional use permit.

(g) Upon receipt of the short-term rental special fee license, each licensee shall be issued a unique local registration number, by which the short-term rental may be identified.

(h) The Director may refuse to issue a license or renew the license of a licensee in the following circumstances:

(1) When the applicant intentionally or knowingly makes a false statement as to a material matter in an application;

(2) When the applicant fails to complete any part of the application;

(3) When the licensee has failed to pay any fee, tax, fine, or penalty related to a violation of sections13-76 through 13-82;

(4) When the property submitted for registration or renewal as a short-term rental is subject to unsatisfied penalties, fines, or liens assessed or levied by the government for any reason;

(5) When the licensee fails to maintain a conditional use permit, if applicable; or

(6) When the licensee or short-term rental is not in compliance with any applicable federal, state, or local law or regulation, including, without limitation, mandatory zoning, building, safety, maintenance, health, sanitation, fire, electrical, plumbing, and mechanical codes.

(i) The Director may revoke the registration of any short-term rental for any of the following reasons:

(1) When any one of the circumstances provided in section (h), above, occurs;

(2) When the licensee or the short-term rental has been found to be in violation of sections13-76 through 13-82 two (2) or more times during the relevant license term.

A licensee whose special fees license is revoked is not eligible to apply for another short-term rental special fees license for the dwelling unit in which the license was revoked for a period of one (1) year.

(j) The Director may revoke, suspend, or refuse to renew or issue a license on a dwelling unit basis.

(k) Relevant divisions and departments with necessary information for the Director to perform his or her responsibilities under this article should provide such information to the Director at his or her request. Members of the public may also provide complaints and relevant evidence indicating violation of this article to the Director.

(Ord. No. 080-2023, § 3, 7-11-23; Ord. No.138-2024, § 2, 12-5-24; Ord. No.002-2025, § 1, 1-23-25)

Sec. 13-78. Taxes.

(a) Pursuant to section 2-172 of the Lexington-Fayette Urban County Government Code of ordinances, each hosting platform shall be required to collect and pay to the urban county government all transient room taxes on all rent charged or collected by the hosting platform. If rent is not charged or collected by a hosting platform, the licensee shall be required to collect and pay to the urban county government all transient room taxes required by law.

(b) Pursuant to article I of this chapter, licensees are responsible for payment of occupational license fees on net profits earned from the operation of short-term rentals and on withholdings from employee compensation paid for work done or services performed in the urban county, subject to any applicable exemptions, including for rental property.

(Ord. No. 080-2023, § 4, 7-11-23)

Sec. 13-79. Duties of a licensee.

It is the duty of a licensee under this article to ensure that:

(a) Every short-term rental owned by the licensee meets and complies with the following at all times:

(1) Contains sufficient smoke detectors installed and in working order as required in section 12-1 of the Code of Ordinances;

(2) Contains at least one (1) functional carbon monoxide detector installed in an appropriate location as set forth in the Kentucky Residential Code;

(3) Contains at least one (1) maintained and charged fire extinguisher located in an open and easily accessible location on each habitable floor of the short-term rental;

(4) Contains at least one (1) operable emergency and rescue opening in every sleeping room, as set forth in the Kentucky Residential Code;

(5) Has posted, in a conspicuous location in the short-term rental, the following:

a. The name, email address, and telephone number of the licensee or operator of the short-term rental, if different from the licensee;

b. The name, email address, and telephone number of the registered emergency contact for the short-term rental referenced in the licensee's application for a special fees license;

c. The emergency and non-emergency telephone numbers for police, fire, and emergency medical service providers;

d. Trash and recycling pickup information;

e. A clearly marked emergency evacuation plan for the premises showing exit routes, exits, and fire extinguisher locations;

f. The maximum number of occupants permitted in the short- term rental;

g. A copy of the conditional use permit, if applicable; and

h. The website address of the Lexington-Fayette Urban County Government where the guest may review the locally-required duties of a Licensee and file a complaint;

(6) Contains no outdoor signage identifying the dwelling unit as a short-term rental;

(7) May be occupied by the maximum number of individuals provided in the licensee's conditional use permit, if applicable, or otherwise the Zoning Ordinance, as applicable in the relevant zone. Any permanent resident of the dwelling unit present during the short-term rental period shall count toward the maximum occupancy; and

(8) May not become the location where a violation of the laws governing assault, sexual offenses, prostitution, controlled substances, weapons, gambling on the premises, or any felony has occurred. Instances in which the licensee or primary resident is the victim of the crime and had no control over the criminal act, including domestic violence, shall not be considered.

(b) Short-term rentals shall not be utilized for private events, such as weddings or parties, in which the number of participants exceeds the maximum occupancy limit described in this section. No private events, such as weddings or parties, shall occur between the hours of 11:00 p.m. and 7:00 a.m. Special events for a commercial purpose shall be prohibited at all times;

(c) The licensee shall abide by all requirements contained within the conditional use permit, if applicable;

(d) There shall be no more than one contract per short-term rental at a time;

(e) The licensee of a hosted short-term rental shall not allow "entire (or whole) house," "entire (or whole) home," or "entire (or whole) dwelling unit" rentals for those short-term rentals occupied by someone other than the transient guest;

(f) The licensee shall submit a true and accurate report annually to the Division of Revenue, in the manner and form specified by the Director, identifying:

(1) The address of each short-term rental owned or operated by the licensee;

(2) The local registration number of each short-term rental owned or operated by the licensee; and,

(3) The number of contracts to which each short-term rental owned or operated by the licensee was subject in the preceding year, and the duration of each contract;

(g) Every short-term rental operated by the licensee complies with all applicable planning and zoning rules, ordinances, and regulations.

(Ord. No. 080-2023, § 5, 7-11-23; Ord. No.138-2024, § 3, 12-5-24; Ord. No.002-2025, § 2, 1-23-25)

Sec. 13-80. Advertising on a hosting platform.

(a) Short-term rentals registered in accordance with section 13-77 may be advertised for stays of less than thirty (30) days on a hosting platform.

(b) All advertisements for a short-term rental, including, without limitation, those on hosting platforms, shall include the following:

(1) The short-term rental's local registration number;

(2) Language specifying the allowed maximum number of occupants allowed under this article; and

(3) Language specifying that guests of the short-term rental are prohibited from allowing more people onto the premises than the maximum occupancy allowed.

(Ord. No. 080-2023, § 6, 7-11-23; Ord. No.002-2025, § 3, 1-23-25)

Sec. 13-81. Enforcement.

(a) Pursuant to section 14-10 of the Code, this article shall be enforced by citation officers within the division of revenue and the administrative hearing board established in section 12-6 of the Lexington-Fayette County Code of Ordinances in accordance with the rules and procedures established therein.

(b) Except as otherwise provided herein, any person that violates any provision of this article shall be subject to civil penalties, as imposed by a citation officer within the division of revenue in accordance with section 2B-6 of the Lexington-Fayette County Code of Ordinances, in the following amounts:

1st Offense	$125.00
2nd Offense	$250.00
3rd Offense	$500.00
4+ Offense	$1,000.00

(c) In addition to the penalties provided in section 13-15 of the Code for failure to obtain a special fees license, any person that violates section 13-77(a) of the Lexington-Fayette Urban County Code of Ordinances shall be subject to civil penalties, as imposed by a citation officer within the division of revenue in accordance with section 2B-6 of the Lexington-Fayette County Code of Ordinances, in the amount of $500 per offense.

(d) Any person that violates section 13-78 of the Lexington-Fayette Urban County Code of Ordinances shall be subject to the penalty provided in article I of this chapter for failure to pay the applicable tax or occupational license fee.

(e) Each day that a violation continues after notice of the offense has been served shall constitute a separate offense.

(f) The government shall possess a lien on the property owned by the licensee in accordance with section 2B-9 of the Code of Ordinances for all civil fines issued or incurred under this section.

(g) In addition to the penalties provided herein, the director is authorized, with the assistance of the department of law, to bring and prosecute civil actions for violations of this article as appropriate, including, without limitation, actions for injunctive relief and declarations of rights, in any court of competent jurisdiction.

(h) Nothing provided herein shall limit the power of the director, as provided in section 13-77, to deny, revoke, or fail to renew the registration of a short-term rental.

(i) Pursuant to KRS 65.8821, the Administrative Hearing Board established in section 12-6 of the Lexington-Fayette County Code of Ordinances and assigned hearing officer(s) shall have the authority to subpoena information from any person to determine whether there has been a violation of any ordinance that the Board or hearing officer has jurisdiction to enforce. Any such subpoena shall:

(1) Be served upon the person, or its registered agent, if applicable, via certified mail;

(2) Identify the provision(s) of any ordinance that the government has reason to believe may have been violated; and

(3) Describe with reasonable specificity the evidence supporting the government's reasonable belief that a violation of said ordinance has occurred.

(Ord. No. 080-2023, § 7, 7-11-23; Ord. No.002-2025, § 4, 1-23-25)

Sec. 13-82. Appeals.

(a) If an application is denied, a licensee's short-term rental special fee license is revoked, or the director fails to renew a licensee's short-term rental special fee license under this article, the licensee may appeal as follows:

(1) Upon finding that a condition exists to deny an application, revoke a license, or fail to renew a short-term rental special license fee, the director shall issue a letter to the licensee or applicant requiring that it come forward and show cause why the above action should not be taken.

(2) The licensee or applicant shall have ten (10) days to respond to the director's letter and shall present evidence showing that the proposed action should not be taken.

(3) The director shall determine whether the business has produced sufficient evidence to contest the proposed action and shall request review by the commissioner of finance if such evidence exists.

(4) Within thirty (30) days, the commissioner of finance shall review all evidence and hold a hearing at which the business shall be allowed to present witnesses on its behalf. The commissioner's decision whether to deny an application, revoke a short-term rental special fee license, or fail to renew a license shall be final.

(5) Failure to appeal as provided above shall result in the director taking the proposed action described in his or her letter.

(b) Any person issued civil penalties for violations of this article may appeal to the administrative hearing board in accordance with section 12-6 and section 2B of the Code of Ordinances.

(c) Any person issued civil penalties for zoning code violations may appeal to the infrastructure hearing board in accordance with section 5-9 of the Zoning Code and section 16-79 of the Code of Ordinances.

(Ord. No. 080-2023, § 8, 7-11-23)

Article VI

Medicinal Cannabis Businesses

Sec. 13-83. Definitions.

For the purposes of this article, the following definitions shall apply:

Applicant shall mean any person who applies for a special fees license pursuant to this article.

Commissioner of finance shall mean whoever is appointed by the mayor, pursuant to Sec. 6.02 of the Charter, to fill that role.

Cultivator shall have the same meaning as provided in KRS Ch. 218B, as may be amended.

Director shall mean the Director of the Lexington-Fayette Urban County Government, Division of Revenue.

Dispensary shall have the same meaning as provided in KRS Ch. 218B, as may be amended.

Government shall mean the Lexington-Fayette Urban County Government.

Licensee shall mean any person who currently holds a special fees license(s) for any medicinal cannabis business pursuant to this article.

Medicinal cannabis business shall mean either a cultivator, dispensary, processor, producer, or safety compliance facility, as defined in KRS Ch. 218B, as may be amended.

Operator shall mean any person who currently operates a medicinal cannabis business, as defined in KRS Ch. 218B, as may be amended.

Processor shall have the same meaning as provided in KRS Ch. 218B, as may be amended.

Producer shall have the same meaning as provided in KRS Ch. 218B, as may be amended.

Safety compliance facility shall have the same meaning as provided in KRS Ch. 218B, as may be amended.

Sufficient evidence shall mean the type of substantial evidence sufficient to convince reasonable-minded people, which may include: (1) location map(s) that identify the proposed location for the medicinal cannabis business and also identify all properties and current uses of same, located within one thousand (1,000) feet of the proposed site of the medicinal cannabis business; and/or (2) plans submitted to the division of planning.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-84. Medicinal cannabis business special fees license.

(a) No person or entity shall operate a medicinal cannabis business at any location in Lexington-Fayette County unless that entity first possesses a valid business license and the required special fees license(s) for each type of medicinal cannabis business operating at that location, as provided in section 13-13 of the Code and further specified in section 13-85 through 13-89 of this article.

(b) The Director is authorized to promulgate such forms and implement procedures as reasonably necessary and consistent with state law and this article for the orderly and efficient processing of medicinal cannabis business special fees license applications and renewals. Provided, however, that an applicant shall be required to provide the following information as part of its application for the initial special fees license and each renewal:

(1) Address of each proposed medicinal cannabis business;

(2) Identification of each type of proposed medicinal cannabis business operating at that location (cultivator, dispensary, producer, processor, safety compliance facility);

(3) Name, address, phone number, and email address of the applicant;

(4) Name, address, phone number, and email address of the operator, if different from the applicant;

(5) Sufficient evidence that the location of the proposed medicinal cannabis business is not within one thousand (1,000) feet of an existing child-care center, as defined by KRS 199.894(3), family child-care home, as defined in KRS 199.894(5), or a registered childcare provider in the child care assistance program, as regulated by 922 KAR 2:180;

(6) A zoning compliance permit issued by the division of planning;

(7) An affidavit confirming that the applicant complies and shall continue to comply with all aspects of the applicable building codes, fire codes, and all other applicable state and local laws or regulations.

(c) All applications for a special fees license and renewal shall be accompanied by the fee referenced in section 13-13 of the Code for medicinal cannabis business special fees license and shall be conditioned upon issuance of a valid license issued by the appropriate cabinet pursuant to KRS Ch. 218B, as may be amended.

(d) The operator of the medicinal cannabis business may apply on behalf of the owner of the medicinal cannabis business, with the express written permission of the owner.

(e) All medicinal cannabis business special fees licenses and renewals shall expire upon the earlier of (1) December 31 following the most recent application or renewal; (2) the revocation of any licenses or permits issued by the Commonwealth of Kentucky authorizing the entity to operate the medicinal cannabis business.

(f) The director may refuse to issue a license or renew the license of an existing medicinal cannabis business in the following circumstances:

(1) When the applicant intentionally or knowingly makes a false statement as to a material matter in an application;

(2) When the applicant fails to complete any part of the application;

(3) When the licensee has failed to pay any fee, tax, fine, or penalty related to a violation of this article;

(4) When the medicinal cannabis business is subject to unsatisfied penalties, fines, or liens assessed or levied by the government, for any reason;

(5) When the applicant of the medicinal cannabis business cannot provide sufficient evidence that its proposed location is more than one thousand (1,000) feet from an existing child-care center, as defined by KRS 199.894(3), family child-care home, as defined in KRS 199.894(5), or a registered childcare provider in the child care assistance program, as regulated by 922 KAR 2:180;

(6) When the operator of the medicinal cannabis business fails to comply with any applicable state or local law or regulation, including, without limitation, mandatory zoning, building, safety, maintenance, health, sanitation, fire, electrical, plumbing, and mechanical codes.

(g) The director may revoke the special fees license held by any licensee of any medicinal cannabis business for any of the following reasons:

(1) When any one of the circumstances provided in subsection (f), above, occurs; or

(2) When the licensee has been found to be in violation of this article two (2) or more times during the relevant license term.

A licensee whose special fees license is revoked is not eligible to apply for another medicinal cannabis business special fees license at the location for which the special fees license was revoked for a period of one (1) year.

(h) Relevant divisions and departments with necessary information for the director to perform his or her responsibilities under this article should provide such information to the director at his or her request. Members of the public may also provide complaints and relevant evidence indicating violation of this article to the director.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-85. Cultivator.

No entity shall engage as a cultivator of medicinal cannabis at any location within Lexington-Fayette County unless that entity first possesses a valid special fees license, as required by section 13-84 of this article, providing that it intends to operate a medicinal cannabis business as a cultivator at that location.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-86. Dispensary.

No entity shall operate a dispensary of medicinal cannabis at any location within Lexington-Fayette County unless that entity first possesses a valid special fees license, as required by section 13-84 of this article, providing that it intends to operate a medicinal cannabis business as a dispensary at that location.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-87. Producer.

No entity shall operate as a producer of medicinal cannabis at any location within Lexington-Fayette County unless that entity first possesses a valid special fees license, as required by section 13-84 of this article, providing that it intends to operate a medicinal cannabis business as a producer at that location.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-88. Processor.

No entity shall operate as a processor of medicinal cannabis at any location within Lexington-Fayette County unless that entity first possesses a valid special fees license, as required by section 13-84 of this article, providing that it intends to operate a medicinal cannabis business as a processor at that location.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-89. Safety compliance facility.

No entity shall operate a safety compliance facility of medicinal cannabis at any location within Lexington-Fayette County unless that entity first possesses a valid special fees license, as required by section 13-84 of this article, providing that it intends to operate a medicinal cannabis business as a safety compliance facility at that location.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-90. Taxes.

Pursuant to article I of this chapter, licensees are responsible for payment of occupational license fees on net profits earned from the operation of a medicinal cannabis business and on withholdings from employee compensation paid for work done or services performed in the urban county, subject to any applicable exemptions, including for rental property.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-91. Enforcement and appeals.

(a) Pursuant to section 14-10 of the Code, this article shall be enforced by the director of revenue, citation officers within the division of revenue, and the administrative hearing board established in section 12-6 of the Lexington-Fayette County Code of Ordinances in accordance with the rules and procedures established therein.

(b) Pursuant to KRS 65.8821, the administrative hearing board established in section 12-6 of the Lexington-Fayette County Code of Ordinances and assigned hearing officer(s) shall have the authority to subpoena information from any person to determine whether there has been a violation of any ordinance that the board or hearing officer has jurisdiction to enforce. Any such subpoena shall:

(1) Be served upon the person, or its registered agent, if applicable, via certified mail;

(2) Identify the provision(s) of any ordinance that the government has reason to believe may have been violated; and

(3) Describe with reasonable specificity the evidence supporting the government's reasonable belief that a violation of said ordinance has occurred.

(c) Any person that violates section 13-84(a) through 13-89 of this article shall be subject to civil penalties, as imposed by a citation officer within the division of revenue in accordance with section 2B-6 of the Lexington-Fayette County Code of Ordinances, in the amount of five hundred dollars ($500.00) per offense.

(d) Any person that violates section 13-90 of the Lexington-Fayette Urban County Code of Ordinances shall be subject to the civil penalty provided in article I of this chapter for failure to pay the applicable tax or occupational license fee.

(e) Any person issued civil penalties for violations of section 13-84 through section 13-90 of this article may appeal to the administrative hearing board in accordance with section 12-6 and chapter 2B of the Code of Ordinances.

(f) Each day that a violation continues after notice of the offense has been served shall constitute a separate offense.

(g) The government shall possess a lien on the property owned by the licensee in accordance with section 2B-9 of the Code of Ordinances for all final citations issued under this section.

(h) In addition to the penalties provided herein, the director is authorized, with the assistance of the department of law, to bring and prosecute civil actions for violations of this article as appropriate, including, without limitation, actions for injunctive relief and declarations of rights, in any court of competent jurisdiction.

(i) Nothing provided herein shall limit the power of the director, as provided in section 13-84, to deny, revoke, or fail to renew the registration of a medicinal cannabis business.

(Ord. No. 062-2024, § 2, 6-27-24)

Sec. 13-92. Procedure to deny, revoke, or fail to renew a special fees license.

(a) Upon finding that a condition exists to deny an application, revoke a license, or fail to renew a special fees license, the director shall issue a letter to the licensee or applicant requiring that it come forward and show cause why the above action should not be taken.

(b) The licensee or applicant shall have ten (10) calendar days to respond to the director's letter in writing and present evidence showing that the proposed action should not be taken.

(c) The director shall determine whether the licensee or applicant has produced sufficient evidence to contest the proposed action and shall request review by the commissioner of finance, if such evidence exists.

(d) Within thirty (30) days, the commissioner of finance shall review all evidence and hold a hearing at which the licensee or applicant shall be allowed to present witnesses on its behalf. The commissioner's decision whether to deny an application, revoke a special fees license, or fail to renew a license shall be final. The licensee or applicant may then pursue appeal through the circuit court.

(e) Failure to respond to the director's letter or otherwise present evidence shall result in the director taking the proposed action described in his or her letter.

(Ord. No. 062-2024, § 2, 6-27-24)

Chapter 13A

Minimum Wage

Section 13A-1. Definitions.

Section 13A-2. Amount of minimum wage.

Section 13A-3. Tipped employees.

Section 13A-4. Remedies.

Section 13A-5. Review.

Section 13A-6. Severability.

Sec. 13A-1. Definitions.

For purposes of this chapter, the following definitions shall apply:

Employee: Has the same meaning as found in KRS 337.010(2)(a) and, as provided in KRS 337.010(2)(a), does not include any individual employed in agriculture, as defined in KRS 337.010(2)(b).

Employer: Has the same meaning as found in KRS 337.010(1)(d).

Gratuity: Has the same meaning as found in KRS 337.010(2)(c).

Tipped employee: Has the same meaning as found in KRS 337.010(2)(d).

Wage: Has the same meaning as found in KRS 337.010(1)(c)(1).

(Ord. No. 130-2015, § 1, 11-19-15)

Sec. 13A-2. Amount of minimum wage.

(a) Every employer within the jurisdictional boundaries of Lexington-Fayette County shall pay to each of its employees wages at a rate of not less than eight dollars and twenty cent ($8.20) per hour beginning on July 1, 2016; nine dollars and fifteen cents ($9.15) per hour beginning on July 1, 2017; and ten dollars and ten cents ($10.10) per hour beginning on July 1, 2018.

(b) If the federal minimum hourly wage as prescribed by 29 U.S.C. § 206(a)(1) or state minimum hourly wage as prescribed by KRS 337.275(1) is increased in excess of the minimum hourly wage in effect under this chapter, the minimum hourly wage in effect under this chapter shall be increased to the same amount, effective on the same date as the federal or state minimum hourly wage rate.

(Ord. No. 130-2015, § 1, 11-19-15)

Sec. 13A-3. Tipped employees.

(a) Notwithstanding the provisions of section 13A-2 of this chapter, for any tipped employee engaged in an occupation in which he or she is customarily and regularly receiving more than thirty dollars ($30.00) per month in tips from patrons or others, the employer shall pay an amount equal to-

    (1) the cash wage required under 29 U.S.C. § 203(m)(1); and

    (2) an additional amount on account of the tips received by such employee which amount is equal to the difference between the cash wage required under 29 U.S.C. § 203(m)(1) and the wage in effect under section 13A-2 of this chapter.

(b) The employer shall establish by his or her records that for each week where credit is taken, when adding tips received to wages paid, not less than the minimum rate set forth in section 13A-2 was received by the

employee. No employer shall use all or part of any tips or gratuities received by employees toward the payment of the statutory minimum hourly wage as required by section 13A-2. Nothing, however, shall prevent employees from entering into an agreement to divide tips or gratuities among themselves.

(Ord. No. 130-2015, § 1, 11-19-15)

Sec. 13A-4. Remedies.

(a) Any employee who is paid less than the minimum wage established under the provisions of section 13A-2 and section 13A-3 may bring a civil cause of action, authorized in KRS 337.020, against his or her employer for the full amount of wages due from the employer.

(b) In addition to the civil remedy provided in section 13A-4(a), any employee who is paid less than the minimum wage established under the provisions of this chapter may submit a written complaint to the Lexington-Fayette Urban County Human Rights Commission, which shall investigate the alleged violation. If the Commission determines that a violation has occurred, the Commission shall report such finding to the Lexington-Fayette Urban County Government and may, with the written consent of the aggrieved employee, file a civil action to recover unpaid wages for the employee on the employee's behalf in the court of appropriate jurisdiction.

(Ord. No. 130-2015, § 1, 11-19-15 ; Ord. No.113-2016, § 1, 6-16-16)

Sec. 13A-5. Review.

A formal review of the minimum wage established in this chapter shall be performed on or before July 1, 2018, and shall be reviewed by the Lexington-Fayette Urban County Council unless the minimum wage established under section 13A-2(a) is superseded by a higher state or federal minimum wage under section 13A-2(b). The Lexington-Fayette Urban County Council shall hold at least one (1) public meeting related to the minimum wage established in this chapter at or around the time the council performs the review required by this section.

(Ord. No. 130-2015, § 1, 11-19-15)

Sec. 13A-6. Severability.

Each section and provision of this chapter is hereby declared to be independent and, notwithstanding any other evidence of legislative intent, it is hereby declared to be the controlling legislative intent that if any provision of this chapter, or the application thereof to any person or circumstance, is held to be invalid, the remaining sections or provisions and the application of such sections or provisions to any person or circumstances other than those to which it is held invalid shall not be affected thereby, and it is hereby declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid.

(Ord. No. 130-2015, § 1, 11-19-15)

Chapter 14

Offenses and Miscellaneous Provisions[1]

Section 14-1. Reserved.

Section 14-2. Advertising—Deceptive.

Section 14-3. Reserved.

Section 14-3.1. Definitions.

Section 14-3.2. Graffiti.

Section 14-3.3. Same—Paint.

Section 14-3.4. Penalties.

Section 14-4, 14-4.1. Reserved.

Section 14-5. Begging or soliciting alms or money prohibited; exception.

Section 14-6. Same—"Tag day."

Section 14-7. Reserved.

Section 14-8. Disorderly conduct.

Section 14-9. Same—Disturbing gatherings; disturbances not otherwise penalized.

Section 14-10. Citation officers.

Section 14-11. Reserved.

Section 14-11.1. Coin-operated equipment—Tampering with or damaging.

Section 14-12. Disguises.

Section 14-13. Adult entertainment establishments—Defined.

Section 14-13.1. Same—Additional requirements.

1. **Charter reference(s)**—Authority to establish facilities for confinement of offenders, § 3.02(10); authority to enforce by fines and penalties all ordinances expedient in maintaining the peace, § 3.02(13); department of law, § 6.05; urban county courts, art. 10; county judge, § 11.01; county clerk, § 11.03; county attorney, § 11.04; sheriff, § 11.05.
Cross reference(s)—General penalty, § 1-8; police authority, § 8-26 et seq.
State law reference(s)—Duty of peace officers to enforce state penal statutes, KRS under titles "Peace Officers" and "Criminal Offenses."

Section 14-13.2. Same—license.

Section 14-13.3. Employee license.

Section 14-13.4. Existing establishments.

Section 14-13.5. Escort agencies—Licensing.

Section 14-13.6. Same—Operation of business.

Section 14-13.7. Same—Applicants.

Section 14-14. Disorderly house—Bawdy house; prostitution.

Section 14-14.1. Same—Patronizing.

Section 14-15. Same—Licensed place of business becoming.

Section 14-16. Operating vehicle while under influence of intoxicants or drugs prohibited; presumptions concerning intoxication.

Section 14-17. Public intoxication.

Section 14-18. Habitual drunkards.

Section 14-19. Firearms, discharging within the urban county; penalty.

Section 14-19.1. Right of division of police to use pistol range.

Section 14-19.2. Safety rules for use of pistol range.

Section 14-19.3. Penalty for violation of section 14-19.1 or 14-19.2.

Section 14-19.4. Concealed deadly weapons.

Section 14-20. Fortune-telling.

Section 14-21. Fraud; defrauding operators of vehicles for hire.

Section 14-22. Gambling machines or devices.

Section 14-22.1. Hotels—Registration records.

Section 14-23. Reserved.

Section 14-23.1. Indecency, obscenity, lewdness—Sale or exhibition of explicit sexual material to minors.

Section 14-24. Report required by medical professions, to the police of injuries/disorders.

Section 14-25. Injury to property—Fences, trees, etc.

Section 14-26. Same—Of utility companies or railways.

Section 14-27. Same—Public.

Section 14-28. Same—Alarm systems; cancelling alarms.

Section 14-29. Same—Lampposts, street lights, etc.

Section 14-30. Same—Signal lamps, barriers, tools; carrying away lumber.

Section 14-31. Same—Billboards.

Section 14-32. Library, damaging books.

Section 14-33. Reserved.

Section 14-34. Same—On private property.

Section 14-35. Same—About public institutions, trespass.

Section 14-36. Merchandise, endless chain contracts.

Section 14-37. Curfew for minors.

Section 14-38. Teenage canteens.

Section 14-39. Minors obtaining alcoholic beverages.

Section 14-40. Reserved.

Section 14-41. Reserved.

Section 14-42. Permitting minors in house of ill fame.

Section 14-43. Death stars or shurikens.

Section 14-44. Missiles—Shooting or throwing generally.

Section 14-45. Same—Stones.

Section 14-46. Same—Air rifles, air pistols, BB guns, or similar guns, slingshots or steel-tipped arrows, discharging within the urban county; penalty.

Section 14-47. Officers—Interfering with police.

Section 14-48. Same—Failing to assist police.

Section 14-49. Same—Impersonating police officer or fire fighter.

Section 14-50. Parks—Throwing rubbish therein.

Section 14-51. Same—Causing rubbish to be thrown therein.

Section 14-52. Same—Political speeches therein.

Section 14-52.1. Electioneering and exit polling.

Section 14-53. Reserved.

Section 14-54. Radio receiving wave length in establishments selling alcoholic beverages.

Section 14-55. Smoking in sleeping rooms.

Section 14-55.1. Smoking on buses.

Section 14-56. Telephones, depositing slugs in coin box.

Section 14-57. Trespass, on school grounds.

Section 14-57.1. Central criminal records file check required.

Section 14-58. Sexual offenders.

Section 14-59. Reserved.

Section 14-60. Reserved.

Section 14-60.5. Unattended children in vehicles.

Section 14-61. Electric fence, structure or barrier prohibited; penalty.

Section 14-62. Parks.

Section 14-62.1. Regulation of activities in Triangle Park.

Section 14-63. Volatile substances; definitions.

Section 14-64—14-66. Reserved.

Section 14-67. Unlawful use of volatile substance.

Section 14-68. Permitted use of volatile substances.

Section 14-69. Penalty for violation of section 14-67.

Section 14-70. Definitions applicable to sections 14-70 through 14-80.

Section 14-71. Noise disturbances—Generally.

Section 14-72. Same—Specific acts.

Section 14-73. Right of entry of law enforcement officer to investigate noise disturbance.

Section 14-74. Mayor authorized to grant special variances relative to noise disturbances.

Section 14-75. Order of abatement of noise disturbance.

Section 14-76. Citation for violation of sections 14-70 through 14-80.

Section 14-77. Effect of sections 14-70 through 14-80 on existing law.

Section 14-78. Exceptions to provisions of sections 14-70 through 14-80.

Section 14-79. Enforcement of other laws not affected by sections 14-70 through 14-80.

Section 14-80. Penalty for violation of sections 14-70 through 14-80.

Section 14-81. Distribution of materials to public free of charge; designation of funding.

Section 14-82. Moped license.

Section 14-83. Stone wall preservation ordinance.

Section 14-84. Reserved.

Section 14-85. Definitions.

Section 14-86. Applicability.

Section 14-87. Private impound tow truck service license requirements; identification of tow trucks.

Section 14-87.1. Signage.

Section 14-88. Release of vehicle to owner or custodian prior to towing.

Section 14-89. Police to be notified of removal of vehicle.

Section 14-89.1. Compliance with state code.

Section 14-90. Redemption of vehicles; receipt required; maximum towing charge and impoundment fees.

Section 14-91. Requirements for storage yard.

Section 14-92. Private impound tow truck service operator's log.

Section 14-93. Miscellaneous prohibited acts by private impound tow truck service or operator.

Section 14-94. Registration and license requirements.

Section 14-94.1. Suspension and revocation.

Section 14-94.2. Hearing for denial, suspension or revocation; appeal.

Section 14-95. Violations.

Section 14-96. Lexington Area Party Plan.

Section 14-97. Regulation of smoking indoors—Definitions.

Section 14-98. Same—Prohibition; exceptions.

Section 14-99. Same—Responsibilities of owners, lessees, principal managers or other persons in control of establishments.

Section 14-100. Same—Owners, lessees, principal managers, etc., to ensure compliance with chapter.

Section 14-101. Same—Enforcement.

Section 14-102. Same—Violations; penalties.

Section 14-103. Same—Smoking near building entrances, etc.

Section 14-104. Same—Discrimination prohibited.

Section 14-105. Littering.

Section 14-106. Unsolicited written materials.

Section 14-107. Sexual orientation or gender identity change efforts prohibited—Purpose; findings.

Section 14-108. Same—Definitions.

Section 14-109. Same—Prohibitions.

Section 14-110. Same—Enforcement.

Section 14-111. Same—Complaint procedure.

Section 14-112. Same—Appeals.

Sec. 14-1. Reserved.

Sec. 14-2. Advertising—Deceptive.

No person, with intent to sell or in any way dispose of merchandise, securities, service or any other thing, offered directly or indirectly by such person to the public for sale or distribution, or in order to induce the public to acquire an interest therein, or incur any obligation relating thereto, shall make, publish, circulate or otherwise place before the public, or cause to be placed before the public, in a newspaper, or in any other form of publication, or in any pamphlet, handbill, letter or in any other way, any advertisement of any sort regarding such thing so offered to the public which contains a representation or statement which is untrue, deceptive, misleading or fraudulent. The use in any advertisement of any sort of an address other than the address assigned to a property by the urban county government pursuant to sections 17-2 and 17-3 of this Code shall be considered untrue, deceptive, misleading or fraudulent advertising. The use or inclusion in any advertisement of directions to an address when such directions are untrue, deceptive, misleading or fraudulent shall be deemed a violation of this section.

Any person violating this section shall be subject to a fine of not less than five dollars ($5.00) nor more than twenty-five dollars ($25.00), and each publication shall be deemed a separate offense.

(Ord. No. 148-99, § 1, 6-17-99)

Sec. 14-3. Reserved.

Sec. 14-3.1. Definitions.

For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning:

Graffiti. Drawings, inscriptions, or markings, of whatever kind, character, or description, written, sprayed, painted, etched, or otherwise applied to any surface of a building, wall, fence, tree, sidewalk, curb, or other structure or object, so as to be seen by the public, placed there by a person other than the owner, manager, or other person having lawful control of the property, and without the consent or acceptance of the owner, manager, or other person having lawful control of the property.

Graffiti Implement(s). Include the following or other similar tools or items that are capable of creating graffiti:

(a) **Broad tipped marker.** Any felt tip indelible or permanent marker and/or marking pen and/or any similar implement which contains any pigmented substance including, but not limited to, ink or any other substance which cannot be easily and completely removed with water after said substance has dried; with a flat or angled writing surface that, at its broadest width, is three-eighths (3/8) inch or greater.

(b) Etching equipment any:

(1) Tool or device, including, but not limited to, those commonly known as "glass etchers," "glass cutters," "metal etchers," "cutting instrument," and/or "drill bits"; or

(2) Substance, such as etching acid (hydrofluoric acid), acid etching materials, liquid, cream, paste, or similar chemical substance that can be used to etch, draw, carve, sketch, engrave, or otherwise alter, change, or impair the physical integrity of glass, metal, plastic, concrete or any other surface; or

(3) Any other instrument that can be applied by pressure or any other contact with any surface including, but not limited to, glass, metal, plastic, concrete or any other surface which can cause graffiti.

(c) **Marker nibs, tips, or bits.** Any device three-eighths (3/8) inch or greater in width or diameter that is designed to be placed onto markers or paint sticks to aid in their application.

(d) **Paint Stick.** Any device containing a solid form of paint, chalk, wax, epoxy, or other similar substance capable of being applied to a surface by pressure and leaving a mark of three-eighths (3/8) inch or greater in width.

(e) **Spray paint container.** Any canister, can, bottle, container, or other receptacle which contains any substance commonly known as paint, stain, dye and/or any other pigmented substance which is and/or can be modified to contain pressure (or be pressurized) in order to impel, spray, eject and/or propel any such substance or other substances capable of defacing property.

(f) **Spray paint nozzle.** A nozzle designed to deliver a spray of paint of particular width or flow from a can of spray paint.

(Ord. No. 147-2008, § 1, 6-26-08)

Sec. 14-3.2. Graffiti.

(1) It is unlawful for any person to apply graffiti to any natural or manmade surface or property without the authority or consent of the owner, or the manager or other person having lawful control of the property. Each act of applying graffiti shall constitute a separate offense.

(2) Prosecution for a violation of this section does not preclude prosecution for a related criminal act under applicable federal, state or local law.

(3) It is unlawful for any person to possess any graffiti implement while in or upon public property, or in or upon private property without the express permission of the owner, manager, or other person having lawful control of the property. It is an exception to such a charge that the person possessing the graffiti implement was:

(a) At his or her place of employment and possessed the implement within the scope of that employment;

(b) Upon property with express permission from the owner, manager, or other person having lawful control of the property to possess the materials upon the property;

(c) Attending a school, or traveling between a lawful location and a school, at which the person is enrolled if the person is participating in a class at the school that formally requires the possession of the materials;

(d) Transporting the implement between lawful locations while going about one's business or lawful activity while so transporting. Transporting shall not include loitering or aimlessly driving, riding, or walking about on any street, avenue, highway, road, parking lot, alley vacant lot, park, playground, yard, sidewalk or other location, whether public or private.

(Ord. No. 147-2008, § 2, 6-26-08)

Sec. 14-3.3. Same—Paint.

(1) It is unlawful for any person to sell, offer to sell, give, deliver, furnish, or otherwise transfer a spray paint container, spray paint nozzle, broad tipped marker, paint stick, marker nibs, tips, or bits, or etching equipment to any person under the age of eighteen (18) years unless such person is accompanied by his or her parent, legal guardian or custodian, or other responsible adult and the item is to be used in a lawful manner.

(2) It shall be unlawful for any person to display for sale any spray paint container, spray paint nozzle, broad tipped marker, paint stick, marker nibs, tips, or bits, or etching equipment without first providing a sign or plaque in such display area with a warning containing the following or substantially similar language:

"It is unlawful to sell or transfer any spray paint container, spray paint nozzle, broad tipped marker, paint stick, marker nibs, tips, or bits, or etching equipment to any person under the age of 18 years without appropriate parental consent."

(3) It is a defense to prosecution under subsection (1) of this section that the seller, deliverer or transferor was actively misled or deceived by the presentation of a written or printed information presented by a person under the age of eighteen (18) years, relating to the age or identity of such person.

(Ord. No. 147-2008, § 3, 6-26-08)

Sec. 14-3.4. Penalties.

Any person violating this section [sections 14-3.1—14-3.4] shall be deemed to have committed a misdemeanor for each offense, and shall be subject to the following penalties, which shall not be mutually exclusive:

(1) Payment of a fine in the amount of not less than fifty dollars ($50.00), nor more than five hundred dollars ($500.00) and court costs;

(2) Imprisonment for not more than thirty (30) days; and

(3) Payment of a fee in the amount of fifty dollars ($50.00) to any Lexington-Fayette Urban County Government or not-for-profit program that removes graffiti and/or provides rewards for the reporting of graffiti violations. Such payment shall not be in lieu of the payment of a fine.

(Ord. No. 147-2008, § 4, 6-26-08)

Sec. 14-4, 14-4.1. Reserved.

Editor's note(s)—At the editor's discretion, the provisions of §§ 14-4, 14-4.1 have been redesignated as §§ 2A-1, 2A-2, with the former sections being reserved to maintain Code format.

Sec. 14-5. Begging or soliciting alms or money prohibited; exception.

(a) No person shall beg or solicit upon the public streets or at the intersection of said public streets within the urban county area.

(b) Any person who violates any provision of this section shall be fined not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than ten (10) days nor more than thirty (30) days or both for each offense.

(Ord. No. 227-75, § 1, 8-21-75; Ord. No. 156-2007, §§ 1, 2, 7-5-07)

Sec. 14-6. Same—"Tag day."

It shall be unlawful for any person to conduct, carry on or participate in any campaign or movement for the raising of funds by public solicitation upon any day known or designated as "tag day" in connection with which campaign or movement tags, buttons or other devices of any kind are given to the person making the contributions, unless permission shall have previously been obtained from the mayor of the urban county government for such purpose, and such day designated by him as "tag day" for such purpose.

Any person who shall violate this section shall be fined not less than one dollar ($1.00) nor more than ten dollars ($10.00) for each offense.

Sec. 14-7. Reserved.

Editor's note(s)—Section 5 of Ord. No. 207-74, adopted Oct 17, 1974, repealed former § 14-7, pertaining to breaches of the peace caused by riots, etc., and providing a penalty therefor.

Sec. 14-8. Disorderly conduct.

(a) A person is guilty of disorderly conduct when in a public place and with intent to cause public inconvenience, annoyance or alarm, or wantonly creating a risk thereof, he:

(1) Engages in fighting or in violent tumultuous or threatening behavior; or

(2) Refuses to obey an official order to disperse issued to maintain public safety in dangerous proximity to a fire, hazard or other emergency; or

(3) Creates a hazardous or physically offensive condition by any act that serves no legitimate purpose.

(b) Any person found guilty of violating this section shall be fined in an amount not to exceed two hundred fifty dollars ($250.00) or be imprisoned for ninety

(90) days or less, or both fined and imprisoned for each offense.

(Ord. No. 207-74, § 1, 10-17-74; Ord. No. 23-83, § 2, 2-24-83)

Sec. 14-9. Same—Disturbing gatherings; disturbances not otherwise penalized.

Any person who shall disturb, disrupt or in any way interfere with any religious assembly, or any other lawful gathering of people, or who shall be guilty of any other violation of the peace or disorderly conduct not specifically provided in any other section of this Code shall be fined in any sum not exceeding one hundred dollars ($100.00) for each offense.

Sec. 14-10. Citation officers.

(a) **Authorized.** Pursuant to KRS 67A.076, there are hereby authorized citation officers, subject to the provisions of this section.

(b) **Manner of Appointment.** Citation officer positions shall be specifically designated, by ordinance, which ordinance will set out the title of the citation officer and the Code of Ordinance sections and articles to be enforced by the citation officer. Urban county government officers, agents and employees meeting the qualifications of a citation officer shall be nominated by a department commissioner to the mayor for appointment as citation officers. In addition, the district court and urban county council will be notified of all citation officers appointed by the urban county government. The appointment of a citation officer may be withdrawn or suspended for any reason.

(c) **Powers.** Citation officers shall not have the powers of peace officers to arrest or carry weapons but may issue citations as authorized by ordinance upon observation of violations of ordinances of the urban county government.

(d) **Uniform.** Each citation officer appointed pursuant to this section shall be readily identifiable by the public as a citation officer by a uniform or other identifying characteristic as designated by the mayor. Citation officers shall immediately identify themselves as citation officers to any member of the public while enforcing any ordinance of the urban county government.

(e) **Citation Procedures.** The procedures for citations issued by citation officers shall be as provided in KRS 431.015. The citation shall provide that the defendant shall appear within a designated time in the district court, pursuant to the direction of the district court. Standard citation forms will be utilized by all citation officers appointed pursuant to this section.

(f) **Issuance of Citations.** The mayor may designate certain officers, agents and employees, holding the positions listed below, to issue citations with respect to the ordinances expressly set out for their respective positions.

Subsection	Position Title	Ordinances To Be Enforced
(1)	Director of building inspection, building inspection manager, building inspection supervisor, commercial building inspector and building inspector employed in the division of building inspection.	The zoning ordinance; the land subdivision regulations; and Code of Ordinances chapter 2A; articles I, II and III of chapter 5; and section 14-61, 17-21, 17-22, 17-28, 17-30, 17-38.4, and 18-113.4.
(2)	Director of revenue and license inspector employed in the division of revenue.	Code of Ordinances article III of chapter 4; chapter 13; and sections 15-7, 15-8 and 15-9.
(3)	Municipal engineer senior; municipal engineer, associate municipal engineer, engineering technician principal, employed in the division of engineering.	Code of Ordinances chapter 8A, sections 14-60, 16-34.1, and 17-21, zoning ordinance articles 19-7(a)(1), 19-7(g), 19-8, and 20 and subdivision regulations article 6-7, and 6-11.
(4)	Code enforcement officer, nuisance control officer, code enforcement supervisor, and director of code enforcement employed in the division of code enforcement.	Code of Ordinances sections 12-1 through 12-5, 14-105, 14-106, article IV of chapter 17, and subsections 17-4(g) and (j) of the zoning ordinance (per Ordinance No. 349-2005), and 18-124 and 18-129 of the Code of Ordinances.
(5)	Director of environmental services, and enforcement and compliance program manager and environmental enforcement specialist in the division of environmental services.	Code of Ordinances chapter 16; subsections 5-4(b)(l), 16-2(g), and 19-7(g) of the zoning ordinance; zoning ordinance article 18; sections 4-8(d), 6-7 and 6-11 of the land subdivision regulations; and LFUCG engineering manuals.
(6)	Urban forester employed in the division of environmental policy, arborist technician employed in the division of environmental policy, and environmental enforcement specialist employed in the division of environmental policy.	Code of Ordinances chapter 17B.
(7)	Environmental health specialist, senior environmental health specialist, environmental health team leader, environmental health and	Code of Ordinances sections 14-97 through 14-104.

Subsection	Position Title	Ordinances To Be Enforced
	protection manager, and environmental health coordinator, employed by the Lexington-Fayette County Health Department.	
(8)	Firefighter assigned to the division of fire and emergency services office of the fire marshal.	Code of Ordinances sections 9-20, 18-112(a) and 18-118.
(9)	Parking control officers employed by or otherwise under the control of the Lexington and Fayette County Parking Authority.	Code of Ordinances sections 14-105, 18-63, 18-64, 18-106, 18-108, 18-110 through 18-112, 18-113.3 through 18-115, 18-118 through 18-131, 18-133, 18-135 through 18-138, 18-141, 18-142.
(10)	Commissioner, director of enhanced 911, citation officers, GIS programmer/analyst, and GIS specialist employed in or assigned to the department of public safety.	Code of Ordinances sections 17-2 through 17-4; and section 6-8(k) of the land subdivision regulations of the zoning ordinance.
(11)	Director of historic preservation and historic preservation specialist(s).	Zoning ordinance article 13.

(g) **Enforcement.** Nothing in this section shall be a limitation on the power of a citation officer to make an arrest as a private person as provided in KRS 431.005, that is, when a felony has been committed in fact and the citation officer has reasonable grounds to believe that the person being arrested has committed it. This section shall not be the exclusive means for enforcement of urban county government ordinances, and citation officers are not limited to use of a citation but may swear to a complaint in lieu of citation.

(Ord. No. 212-78, § 1, 9-7-78; Ord. No. 175-79, § 1, 7-12-79; Ord. No. 35-80, § 1, 4-30-80; Ord. No. 70-83, § 3, 5-5-83; Ord. No. 270-83, § 1, 12-20-83; Ord. No. 205-84, § 3, 11-1-84; Ord. No. 17-85, § 3, 2-7-85; Ord. No. 50-87, § 1, 4-2-87; Ord. No. 251-89, § 2, 12-14-89; Ord. No. 254-89, § 1, 12-14-89; Ord. No. 201-91, § 2, 9-5-91; Ord. No. 40-93, § 1, 3-11-93; Ord. No. 58-93, § 1, 4-22-93; Ord. No. 71-94, § 1, 5-25-94; Ord. No. 165-94, § 1, 8-25-94; Ord. No. 268-95, § 6, 11-30-95; Ord. No. 4-96, § 2, 1-11-96; Ord. No. 221-96, § 4, 11-14-96; Ord. No. 13-99, § 1, 1-28-98; Ord. No. 77-99, § 3, 4-15-99; Ord. No. 112-2000, §§ 1, 2, 4-20-00; Ord. No. 163-2000, § 2, 6-15-00; Ord. No. 174-2001, §§ 2, 3, 7-5-01; Ord. No. 327-2001, § 1, 12-13-01; Ord. No. 238-2002, § 1, 9-26-02; Ord. No. 329-2002, § 4, 12-5-02; Ord. No. 236-2003, § 1, 9-25-03; Ord. No. 282-2003, § 23, 12-4-03; Ord. No. 269-2004, § 1, 11-4-04; Ord. No. 304-2004, § 2, 12-2-04; Ord. No. 90-2005, § 16, 4-21-05; Ord. No. 111-2005, § 1, 5-5-05; Ord. No. 121-2005, § 1, 5-19-05; Ord. No. 329-2005, § 5, 12-13-05; Ord. No. 349-2005, § 1, 12-13-05; Ord. No. 35-2006, § 1, 2-9-06; Ord. No. 365-2006, §§ 1, 2, 12-7-06; Ord. No. 374-2006, § 13, 12-12-06; Ord. No. 71-2007, § 1, 4-12-07; Ord. No. 247-2007, § 2, 11-1-07; Ord. No. 144-2009, § 1, 7-7-09; Ord. No. 268-2009, § 1, 12-8-09; Ord. No. 129-2011, § 1, 10-13-11; Ord. No. 160-2011, § 1, 12-6-11; Ord. No. 146-2012, § 2, 11-15-12;

Ord. No. 24-2016, § 1, 2-18-16 ; Ord. No. 159-2016, § 3, 9-15-16; Ord. No. 220-2016, § 17, 12-6-16; Ord. No. 25-2017, § 2, 3-2-17; Ord. No. 60-2018, § 1, 9-13-18; Ord. No. 074-2022, § 1, 7-7-2022; Ord. No. 120-2024, § 6, 11-14-24)

Sec. 14-11. Reserved.

Sec. 14-11.1. Coin-operated equipment—Tampering with or damaging.

It shall be unlawful for any person to tamper with, break into or in any manner damage a coin-operated vending machine, coin-operated telephone or any other coin-operated equipment with the intent to steal therefrom coins or merchandise. Any person found guilty of violating this section shall be liable to a fine of not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00), or imprisonment in jail for not less than thirty (30) days nor more than twelve (12) months, or both so fined and imprisoned.

(Ord. No. 4048, § 1, 5-5-60)

Cross reference(s)—License for coin-operated machines, § 13-35 et seq.

Sec. 14-12. Disguises.

It shall be unlawful for any person to wear any mask, disguise or regalia which conceals the identity, or prevents or hinders recognition on any public street or in any public place within the urban county; except that children twelve (12) years of age or under may on Halloween wear such masks or disguises.

Any person who shall violate any provisions of this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than ten (10) days nor more than fifty (50) days, or shall be both fined and imprisoned for each offense.

Sec. 14-13. Adult entertainment establishments—Defined.

(a) Definitions:

Adult cabaret or adult dancing establishment means an establishment which features, as one of its principal business uses or as a regular use of its business, employees, agents, servants, independent contractors or entertainers, either male or female, who appear in public view of the patrons of the establishment at any time in a nearly nude state, as defined in subsection (a)(8) herein, including but not limited to go-go dancers, exotic or erotic dancers, strippers, male or female impersonators, or similar entertainers.

Adult entertainment establishment means an "adult cabaret", "adult dancing establishment" or "sexual entertainment center".

Adult entertainer means any person who appears in public view of the patrons of an adult entertainment establishment at any time in a nearly nude state, as defined in subsection (a)(8) herein, including but not limited to go-go dancers, exotic or erotic dancers, strippers, male or female impersonators, or similar entertainers. "Adult entertainment employee" means any individual working or performing services in any adult

entertainment establishment, including any independent contractor who provides services on behalf of any adult entertainment establishment to or for the patrons of such business, but this does not include janitors, cooks, accountants, or other employees who do not have direct contact with patrons. Adult entertainment employees include, but are not limited to, dancers, bouncers, doormen, bartenders, and waiters working on the premises of adult entertainment establishments.

Amusement arcade means any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, computers or other image producing devices are maintained to show images to five (5) or fewer persons per machine at any one time and where the images so displayed are distinguished or characterized by the depicting or describing of "specified sexual activities" as herein defined.

Entertainment area means an area in an adult entertainment establishment consisting of a platform or other structure raised not less than eighteen (18) inches above the immediately surrounding main floor area.

Escort means any person who for monetary consideration in the form of a fee, commission or salary, is hired, or is held out to the public as available for hire, to consort with or to accompany another or others to social affairs, places of amusement or entertainment within any place of public resort or within private quarters.

Escort agency means any person who for a fee, commission, profit, payment or other monetary consideration, furnishes, refers, or offers to furnish or refer escorts, or provides, or offers to introduce, patrons to escorts.

Escort agency runner means any person, not an escort, who for a salary, fee, hire, reward, or profit, as the agent for either a sexually oriented escort or a sexually oriented escort agency, or a patron, contacts or meets with escort patrons or an escort or an escort agency at any location other than the established open office, as defined in subsection (16) herein, whether that person is employed by the escort, the escort agency, or any business, or is self-employed.

Film or video viewing device means any electrical or mechanical device or computer which projects or displays any film or videotape, computer disk or reproduction, the temporary use of which is contingent upon the payment of some consideration and which use is to occur upon the premises where the device is located.

Nearly nude. A person is nearly nude when that person appears in public at any time in a state of dress or attire in which no more than the anus, genitals, pubic region, and areola of the female breast are opaquely covered. "Nearly nude" shall include, but not be limited to, the state of female dress or attire commonly known as "pasties" and "g-string" or "thong" whether or not worn in combination with accessory clothing such as gloves, hats, shoes, jewelry, stockings, and similar accessory garments.

Nude. A person is nude when that person appears in such a manner as to expose to public view the anus, genitals, pubic region, or areola of the female breast.

Offer to provide acts of sexual conduct means to offer, propose or solicit to provide sexual conduct to a patron. Such definition includes all conversations, advertisements, and acts which would lead a reasonably prudent person to conclude that such acts were to be provided.

Open office means an office at the established place of business of a licensed escort agency from which escort business is transacted.

Sexual conduct means engaging in or the commission of an act of sexual intercourse, oral-genital contact, or the touching of the sexual organs, pubic region, buttock or female breast of a person for the purpose of amusing or gratifying sexual desire of another person.

Sexual entertainment center means any establishment, not otherwise specifically defined in this section, which regularly makes available to or for patrons of such businesses material, services, or entertainment appealing to "adult sexual interests", including but not limited to a public bath house, a public swingers' club, or similar public establishment if the establishment or its entertainment, services, or goods are offered or provided by or on behalf of the establishment in a manner patently designed to appeal to such adult sexual interests. Entertainment appealing to adult sexual interests, for purposes of sections 14-13 through 14-13.3 of this Code, shall mean any exhibition, live performance, display or dance of any type which has as a significant or substantial portion of such performance any "specified sexual activities", as defined herein, or the exhibition of any person or persons in a nearly nude state, as defined herein.

Sexual gratification means sexual conduct as defined in subsection (15) herein.

Sexual stimulation means to excite or arouse the prurient interest or to offer or solicit acts of sexual conduct as defined in subsection (15) herein.

Sexually oriented acts means sexual conduct as defined in subsection (15) herein.

Sexually oriented escort means an escort who:

(a) Employs an escort agency runner as an employee, agent, or independent contractor;

(b) Works for, as an agent, employee or independent contractor, or is referred to a patron by a sexually oriented escort agency;

(c) Advertises, either directly or by implication, that sexual conduct will be provided or works for, as an agent, employee, or independent contractor, or is referred to a patron by an escort agency which so advertises;

(d) Solicits, offers, agrees to provide or provides acts of sexual conduct to a patron; or

(e) Accepts an offer of solicitation to provide acts of sexual conduct for a fee in addition to the fee charged by the escort agency.

Sexually oriented escort agency means an escort agency which:

(a) Engages in advertising to make the prospective patron believe that acts of sexual conduct or sexual stimulation will be provided;

(b) Uses as escorts persons known to have been convicted of crimes involving prostitution or solicitation for prostitution;

(c) Does not maintain an open office;

(d) Uses an escort agency runner as an employee, agent or independent contractor;

(e) Advertises, either directly or by implication, that sexual conduct will be provided or that escorts which provide such sexual conduct will be provided, referred, or introduced to a patron;

(f) Solicits, offers or agrees to provide or provides acts of sexual conduct to a patron;

(g) Employs, contracts with, or provides or refers escorts who do not possess an escort license;

(h) Does not deliver contracts to every patron or customer; or

(i) Employs, contracts with, or refers or provides to a patron, a sexually oriented escort.

Service oriented escort means an escort who:

(a) Operates from an open office;

(b) Does not employ or use an escort agency runner;

(c) Does not advertise, either directly or by implication, that sexual conduct will be provided or work for an escort agency that so advertises;

(d) Does not offer, solicit, agree to provide, or provide sexual conduct; and

(e) Is licensed as an escort.

Service oriented escort agency means an escort agency which:

(a) Maintains an open office;

(b) Does not use an escort agency runner;

(c) Does not advertise, either directly or by implication, that sexual conduct will be provided to a patron, or offer, solicit, agree to provide, or provide sexual conduct to a patron; and

(d) Employs or provides only licensed escorts.

Specified sexual activities means:

a. Human genitals in a state of sexual stimulation or arousal.

b. Acts of human masturbation, sexual intercourse, sodomy, oral sex, real or simulated, fondling or other erotic touching of human genitals, pubic region, buttocks or female breasts, or sexual contact between humans and animals.

(b) **Film or video viewing device specifications and requirements:**

(1) Any amusement arcade containing film or video viewing devices shall comply with the requirements of subsection (b)(2) herein if the material exhibited by the devices depicts any of the specified sexual activities defined in subsection (a)(2).

(2) Each device and every viewing booth for all film or video devices must comply with all of the following:

(a) Be visible from a well-illuminated continuous main aisle;

(b) Not be obscured by any curtain, door or other enclosure;

(c) All side or rear walls must be without holes or openings;

(d) Shall not be occupied by more than one patron at a time;

(e) Be illuminated by a light bulb of a wattage of no less than 25 watts.

(3) No owner, operator, employee, or agent of an amusement arcade shall violate this section and/or allow and/or permit a violation thereof to occur.

(4) No patron of an amusement arcade shall violate subsection (b)(2)d. above.

(5) Each violation of any provision of this section is subject to a fine of between one hundred dollars ($100.00) to five hundred dollars ($500.00) and/or imprisonment for a term not to exceed twelve (12) months in jail.

(Ord. No. 1-96, § 1, 1-11-96; Ord. No. 56-97, § 1, 4-3-97; Ord. No. 152-97, § 1, 7-10-97; Ord. No. 241-97, § 1, 11-20-97; Ord. No. 47-99, § 1, 3-2-99; Ord. No. 260-99, § 1, 9-23-99)

Sec. 14-13.1. Same—Additional requirements.

(a) **General requirements.** In addition to the licensing and other general requirements contained in this Code relating to adult entertainment establishments, each adult entertainment establishment shall comply with the following requirements:

(1) **Nude activity.** No person shall, while on the premises of any adult entertainment establishment, perform or appear while nude.

(2) **Prohibited activities.** No person, while on the premises of any adult entertainment establishment, shall engage in, or simulate any specified sexual activities.

(3) **Entertainment area.** No person in an adult entertainment establishment shall engage in any form of entertainment or dancing except while said person is positioned in or occupying an entertainment area, as defined in section 14-13(10) of this Code, and while the person so dancing, performing, displaying or exhibiting is positioned not less than six (6) feet from any patron or spectator.

(4) **Entertainment area exclusion.** No spectator, patron, or persons other than a licensed adult entertainer shall be present in an entertainment area, as defined in section 14-13(a)(10) of the Code, during the course of any adult entertainment, dancing, or performance.

(5) **Physical contact prohibition.** While on the premises of an adult entertainment establishment, no adult entertainment employee shall be permitted to have any physical contact with any other adult entertainment employee, other employee, patron or spectator while that adult entertainment employee is entertaining, dancing, or performing and all such performances shall occur only in an entertainment area. An adult entertainment employee shall not touch the breast, buttocks, or genitals of any patron, spectator, or other adult entertainment employee and no patron or spectator shall touch the breast, buttocks, or genitals of any adult entertainment employee or another patron or spectator while on the premises of the adult entertainment establishment.

(6) **Age restriction.** No person under eighteen (18) years of age shall be permitted in an adult entertainment establishment.

(7) **Business hours.** No adult entertainment establishment shall be open for business between the hours of 1:00 a.m. and 3:00 p.m., Monday through Sunday.

(8) **Adult entertainer.** No owner or operator of an adult entertainment establishment shall permit an unlicensed adult entertainer to work or perform services in its adult entertainment establishment.

(b) **Penalty.** Any person who shall violate any of the provisions of section 14-13.1 shall, upon conviction thereof, be fined not more than five hundred dollars ($500.00) or imprisoned for a period of not more than twelve (12) months, or both so fined and imprisoned.

(Ord. No. 56-97, § 2, 4-3-97; Ord. No. 152-97, § 2, 7-10-97; Ord. No. 241-97, § 2, 11-20-97; Ord. No. 47-99, § 2, 3-2-99)

Sec. 14-13.2. Same—license.

(a) **General requirements.** No person shall own an adult entertainment establishment as defined in section 14-13 of the Code without an adult entertainment establishment license. No person shall operate an unlicensed adult entertainment establishment.

(b) The owner of an adult entertainment establishment shall apply for a license with the department of public safety. Such application shall be in writing shall be in the form prescribed by the commissioner of the department of public safety, and shall contain the following information:

(1) The name and business address of the establishment, including any assumed or fictitious names under which the establishment is or will be operated.

(2) The name, including any assumed or fictitious name or alias, business address, social security or tax identification number of the owner and every officer, partner, director, or person performing a similar function to an officer, partner or director and the names and addresses of any individual who owns ten (10) percent or more of the partnership, corporation, limited liability corporation or company, or limited liability partnership that is the owner of the establishment.

(3) In the event the owner of the adult entertainment establishment is not the owner of record of the real property on which the establishment is located or to be located, the applicant shall include a notarized statement from the owner of record of the real property acknowledging that an adult entertainment establishment is located or to be located on the real property upon the issuance of the license. The applicant also shall furnish the name and address of the owner of record of the real property and a copy of the lease or rental agreement or memorandum thereof.

(4) The name, including any assumed or fictitious name or alias, business address, date of birth, social security number, and photograph of all persons engaged in the day-to-day management of the licensed premises. All persons who at any time shall be responsible for attending the entrance of the establishment for the purpose of insuring compliance with section 14-13.1(a)(6) of this Code shall be included in this subsection.

(5) The name, including any assumed or fictitious name or alias, business address, date of birth, social security number, and photograph of the individual designated by the applicant to undertake to keep the applicant, if licensed, at all times in compliance with the restrictions, requirements, and conditions of sections 14-13.1, 14-13.2 and 14-13.3 of this Code together with the written statement of the individual stating that he has received a copy of sections 14-13 through 14-13.3 of this Code and that he willfully undertakes on behalf of the applicant to comply therewith.

(6) The name, including any assumed or fictitious name or alias, business address, date of birth, social security number, and photograph of the individual designated by the applicant to be responsible for keeping current the information required hereunder at all times together with a written statement stating that he has received a copy of Sections 14-13 through 14-13.3 of this Code and that he willfully undertakes on behalf of the applicant to comply with the requirements therein pertaining to the disclosure of information.

(7) The name and address of any rental agent of the property on which the establishment is located.

(8) The nature of the activity or activities to be engaged in at such location.

(9) A criminal record report for the applicants, owners, officers, directors, partners, employees or other persons whose names are required pursuant to this section together with a list of all criminal convictions of such persons within the last five (5) years for the offenses listed in section 14-13.2(e)(2) of this Code. Any such person who is on parole shall submit with the application the terms of such parole.

(10) The name and mailing address of the owner to whom notice will be given in case of violations or other matters affecting the license hereunder.

(c) **Supplemental information.** The information required by subsection (b) of this section shall be at all times current even after the granting of the adult entertainment license. It shall be the responsibility of the owner or other person designated in the license application to notify the commissioner in writing, no later than forty-eight (48) hours after the effective date of any change, alteration or modification in any information contained in the application.

(d) **Review process.** The commissioner of public safety or his designee shall inspect the premises within fifteen (15) days after the application has been submitted. The commissioner shall issue a license if all restrictions, requirements, conditions and all applicable requirements of this Code and other applicable laws have been met. The commissioner shall grant or deny a license application within twenty (20) days of the filing of such application.

(e) **Prohibitions.** No adult entertainment establishment license shall be issued if the applicant or any operator, officer, director, partner, or shareholder:

(1) Is less than eighteen (18) years of age;

(2) Has been convicted of any of the following offenses within the last five (5) years:

(a) Gambling, conspiracy to promote gambling, or possession of gambling records or gambling devices;

(b) Prostitution, promoting prostitution, permitting prostitution, solicitation for the purpose of prostitution or loitering for the purpose of prostitution;

(c) The sale, transfer, possession or use of any controlled substance;

(d) Sexual offenses including rape, sodomy, sexual abuse, sexual misconduct and indecent exposure;

(e) Distribution of obscene material to a minor, use of a minor to produce, promote, or distribute obscene material, advertising obscene material, promoting the sale of obscenity; or

(f) Unlawful transaction with a minor (as defined in KRS Chapter 530 or other similar laws) use of a minor in a sexual performance, promoting a sexual performance by a minor, or possession of or advertising matter portraying a sexual performance by a minor; or

(g) Murder, manslaughter, or the felony assault (as defined in KRS Chapters 507 or 508 or similar laws); or

(3) Has failed in the operation of an adult entertainment establishment to comply with any health, zoning, fire, or building code enacted or adopted by the urban county government and has failed to correct such violation as provided in section 14-13.2(f) of this Code.

(f) **Notice.** If the commissioner's inspection reveals a failure to comply with any provisions of this Code, the commissioner shall notify the applicant in writing of that fact, stating what failures have been discovered, allowing a reasonable time to correct such defects and informing the applicant of the appeal procedure if the applicant does not agree with the commissioner's decision or finding.

(g) **No transfer of license.** The adult entertainment establishment license issued under this section does not authorize the operation of an adult entertainment establishment at any place other than the address designated in the application and such license is not transferable. A transfer is deemed to occur when the business is sold, leased or subleased; when the securities which constitute a controlling interest in the business are sold or otherwise exchanged; or a trust, gift, or other similar legal device is established which transfers the ownership or control of the business, except for a transfer by bequest or other operation of law upon the death of the natural person possessing the ownership or control of the business.

(h) **Access to licensed premises.** The application for or the granting of an adult entertainment establishment license is deemed to permit periodic inspections by law enforcement officers, or other persons designated or authorized by the commissioner, of all areas of any establishment requiring a license under section 14-13.1 of this Code for the purpose of verifying compliance with the terms and conditions of section 14-13.1 through 14-13.3 of this Code. It shall be unlawful for an applicant, licensee, owner or operator of an adult entertainment establishment to refuse to permit a law enforcement officer or authorized person to inspect the premises at any time during normal business hours of the establishment.

(i) **Application and license fee.** Concurrent with the submission of a license application, the applicant shall pay to the division of revenue a nonrefundable fee of one hundred dollars ($100.00). Every adult entertainment establishment shall pay to the division of revenue an annual license fee of six hundred dollars ($600.00), which fee is due and payable upon the issuance of a license and on or before January 1 of each year thereafter.

(j) **Expiration.** Each license shall expire on December 31 of each calendar year, unless earlier suspended or revoked. A license shall be renewed as a matter of course upon payment of the annual license fee provided that it is paid on or before January 1 of each year thereafter.

(k) **Suspension.** The commissioner may suspend an adult entertainment establishment license for a period not to exceed thirty (30) days if the commissioner determines that the applicant, owner, operator or an employee thereof has violated any provisions of sections 14-13 through 14-13.3 of this Code, has been on the adult

entertainment establishment premises while intoxicated or in a disorderly condition (consistent with the definition of disorderly conduct contained in KRS Chapter 525), has refused to allow an inspection of the premises, or has knowingly permitted any violation of state law to occur on the premises.

(l) **Revocation.** The commissioner shall revoke an adult entertainment license if the commissioner determines that:

(1) Cause for suspension under subsection (k) above occurs and the license has been suspended within the preceding twelve (12) months;

(2) An applicant knowingly gave false or misleading information in the initial license or any subsequent license application;

(3) An applicant, owner, operator or employee has knowingly allowed possession, use or sale of controlled substances on the premises;

(4) An applicant, owner, operator or employee has knowingly allowed prostitution or solicitation for prostitution on the premises;

(5) An applicant, owner, operator or employee has knowingly operated an adult entertainment establishment during a period of time when the establishment's license was suspended; or

(6) An applicant, owner, operator or employee has knowingly allowed a violation specified in subsection (e) above to occur on the premises.

(m) **Hearing for denial, suspension or revocation; appeal.** If the commissioner determines that grounds exist to deny, suspend, or revoke an adult entertainment license, he shall notify the applicant or licensee in writing of his intent to deny, suspend or revoke, including the grounds therefore. The notice shall be sent to the applicant or licensee by certified mail to the owner at the address specified in the application. Within five (5) business days of receipt of such notice, the applicant or licensee may provide to the commissioner, in writing, a response which shall include a statement of reasons why the license should not be denied, suspended or revoked and may include a request for a hearing. If a response is not timely received by the commissioner, the notice shall be a final administrative act of denial, suspension or revocation. If a timely response is received by the commissioner he shall within three (3) business days of his receipt of the response either withdraw the written notice of intent to deny, suspend or revoke by giving notice of such withdrawal to the applicant or licensee or schedule a hearing before the chief administrative officer or his designee and shall give notice of such hearing to the applicant or licensee. The hearing shall be informal in nature and shall be conducted within seven (7) business days of the commissioner's receipt of the applicant's or licensee's response. The chief administrative officer or his designee shall render a written decision within three (3) business days after the completion of the hearing and shall serve the applicant or licensee with a copy of his decision by certified mail. The applicant or licensee may appeal a decision of the chief administrative officer or his designee to the Fayette Circuit Court after receipt of the written notice of the decision.

If an applicant or licensee pursues a judicial appeal of a final decision of the chief administrative officer or his designee, then that licensee or applicant may continue to operate or work pending the completion of judicial review.

(n) **Penalty.** Any person who shall violate any of the provisions of section 14-13.2 of this Code, shall, upon conviction thereof, be fined not more than five hundred dollars ($500.00) or imprisoned for a period of not more than twelve (12) months, or both so fined and imprisoned.

(Ord. No. 56-97, § 3, 4-3-97; Ord. No. 152-97, § 3, 7-10-97; Ord. No. 241-97, § 3, 11-20-97; Ord. No. 47-99, § 3, 3-2-99)

Sec. 14-13.3. Employee license.

(a) **General requirement.** Any person who is or intends to be employed or working in any capacity, whether as an employee, working proprietor or independent contractor, in an adult entertainment establishment as an adult entertainer, as defined by section 14-13(a)(6) of this Code, shall obtain an adult entertainer license. The person seeking an adult entertainer license shall apply for a license with the department of public safety. Such application shall be in writing, shall be in the form prescribed by the commissioner of the department of public safety and shall contain the following information:

(1) The name, including any other name or alias used by the applicant (e.g., "stage name"); present residence and business address; present residence and business telephone number; date and place of birth; social security number; date, issuing state and number of drivers' license; height, weight, hair and eye color; a description of any distinguishing marks or tattoos; and a recent photograph of the applicant.

(2) The name and address of the adult entertainment establishment where the applicant intends to work together with a written statement that he has received a copy of sections 14-13 through 14-13.3 of this Code and that he willfully undertakes to comply therewith.

(3) A statement detailing the applicant's work history for the five (5) year period immediately preceding the date of the filing of the application, including whether the applicant previously operated or was employed in an adult entertainment establishment; whether the applicant has ever had an adult entertainer or other similar license denied, revoked or suspended. In the event of any such denial, revocation, or suspension, the applicant shall list the name of the issuing or denying jurisdiction, and state in full the reason for the denial, revocation or suspension.

(4) A criminal record report for the applicant together with a statement whether within the last five (5) years the applicant has been convicted of any criminal activity described in section 14-13.2(e)(2) and, if so, the specific criminal activity involved and the date, place and jurisdiction where such conviction occurred.

(b) **Issuance process.** The commissioner shall issue an adult entertainer license to an applicant if all provisions of this code and other applicable laws have been met. The commissioner shall conduct an investigation

to determine whether the applicant has met all requirements for issuance of a license. The commissioner shall grant or deny a license application within ten (10) days of the filing of such application. The review, denial, suspension, revocation and appeal procedure for the issuance of an adult entertainment establishment license in section 14-13.2 shall be the process for review, denial, suspension, revocation and appeal for an adult entertainer license.

(c) **License prohibitions.** No adult entertainer license shall be issued if the applicant is less than eighteen (18) years of age or has been convicted of any of the offenses listed in section 14-13.2(e)(2) within the last five (5) years preceding the date of his application.

(d) **Application and license fees.** Concurrent with the submission of his license application, the applicant shall pay to the division of revenue a nonrefundable fee of twenty-five dollars ($25.00). An annual license fee of one hundred dollars ($100.00) shall be paid to the division of revenue prior to the issuance of the license. Each adult entertainer license shall expire on December 31 of each calendar year, unless earlier suspended or revoked. A license shall be renewed as a matter of course upon payment of the annual license fee provided that it is paid on or before January 1 of each year thereafter.

(e) **Penalty.** Any person who violates any of the provisions of section 14-13.3 of this Code shall, upon conviction thereof, be fined not more than five hundred dollars ($500.00) or imprisoned for a period of not more than twelve (12) months, or both so fined and imprisoned.

(Ord. No. 56-97, § 4, 4-3-97; Ord. No. 152-97, § 4, 7-10-97; Ord. No. 241-97, § 4, 11-20-97; Ord. No. 47-99, § 4, 3-2-99)

Sec. 14-13.4. Existing establishments.

Any adult entertainment establishment existing and operating as of March 11, 1999, shall apply for a license pursuant to section 14-13.2(b) within thirty (30) days of said date. After submission of an application, said establishment shall be permitted to operate pending the issuance of a license or the entry of a final decision or order denying its application, whichever comes first. Notwithstanding this permission for continued operation, every adult entertainment establishment shall comply with the requirements of section 14-13.1(a)(1)-(7). Any person who is employed by or working in an adult entertainment establishment as an adult entertainer as of March 11, 1999, shall apply for a license pursuant to section 14-13.3 within thirty (30) days of said date and, after submission of an application, shall be permitted to continue to work in such establishment pending the issuance of a license or the entry of a final decision or order denying his application, whichever comes first. Notwithstanding this permitted continued employment, every adult entertainer shall comply with the requirements of section

14-13.1(a)(1)-(7). No adult entertainment establishment shall operate and no adult entertainer shall work in an adult entertainment establishment beyond the thirty (30) day application period unless an application for licensing has been submitted as required herein.

(Ord. No. 152-97, § 5, 7-10-97; Ord. No. 47-99, § 5, 3-2-94)

Editor's note(s)—Section 5 of Ord. No. 152-97, adopted July 10, 1997, did not specifically amend this Code; hence, codification of § 5 of said ordinance as § 14-13.4 was herein included at the editor's discretion.

Sec. 14-13.5. Escort agencies—Licensing.

(a) **General requirements.** No person shall own or operate an escort agency as defined in section 14-13(a) of the Code without an escort agency license. The owner of an escort agency shall apply for a license by complying with the license process and requirements in section 14-13.2(a) and section 14-13.2(b)(1)—(4) and (7)—(10) of the Code.

(b) **Review process.** An escort agency license shall be issued according to the rules and requirements of section 14-13.2(d) and (f) of the Code and shall be denied, suspended, or revoked according to the rules and requirements of section 14-13.2(k), (l) and (m) of the Code.

(c) **Prohibitions.** No escort agency license shall be issued if the applicant or any owner, director, partner, majority shareholder, or management employee of the escort agency is less than eighteen (18) years of age or has been convicted of any of the offenses listed in section 14-3.2(e)(2) of the Code within the last five (5) years.

(d) **Other applicable sections.** The requirements of section 14-13.2(c), (e)(3), (f), (g), (h), payment of the nonrefundable application fee in (i), and (j) of the Code shall also apply to escort agencies.

(e) **Additional requirements.** The license application shall contain the following information about the applicant, the person or persons having the greatest ownership interest in the applicant, any authorized local agents of the applicant and any management employee of the applicant:

(1) Each residence and business address for the five-year period immediately preceding the date of filing of the application and the inclusive dates of such address;

(2) A copy of a valid driver's license;

(3) Proof that the applicant, local agent and managing employee are at least eighteen (18) years of age;

(4) Height, weight, color of eyes, color of hair and date of birth;

(5) Two (2) current two (2) feet by two (2) feet color photographs of the applicant, local agent and managing employee;

(6) The business, occupation, or employment history of the applicant for the three-year period immediately preceding the date of filing of the application;

(7) Information as to whether such individual or business has ever been refused any similar license or permit or has had any similar license or permit issued to such individual or business revoked or suspended, and the reason or reasons therefor;

(8) A description of the services to be provided; and

(9) The name, alias and residential address of all persons employed by the applicant as escorts.

(f) **Violations.** It shall be unlawful for any person to work or perform services as an escort within the urban county unless licensed as an escort. It shall be unlawful for any person to work or perform services as a sexually oriented escort or to own or operate a sexually oriented escort agency, regardless of license.

(g) **Penalty.** Any person who violates any of the provisions of section 14-13.5 of the Code shall, upon conviction thereof, be fined not more than five hundred dollars ($500.00) or imprisoned for a period of not more than twelve (12) months, or both fined and imprisoned.

(Ord. No. 260-99, § 2, 9-23-99)

Sec. 14-13.6. Same—Operation of business.

(a) **General requirements.** In addition to the licensing and other general requirements contained in this Code relating to escorts and escort agencies, each escort agency shall comply with the following requirements:

(1) **Escort agency duties.**

a. The escort agency shall provide to each patron a written contract and receipt of payment for services. The contract shall clearly state the type of services to be performed, the total amount of money such services shall cost the patron, the patron's drivers' license number including the state that issued the license, and any special terms or conditions relating to the service to be performed.

b. The escort agency shall maintain an open office. The address of that office shall at all times be provided to the commissioner of the department of public safety and shall be included in all patron contracts and published advertisements. If the location of the open office changes the escort agency shall provide the commissioner of the department of public safety with written notice of the new address of the open office within ten (10) days of such change. Private rooms or baths where the patron may meet with the escort shall not be provided by the escort agency or any of its escorts either at the open office or at any other location.

c. The escort agency shall be responsible for the acts of all its employees and subcontractors including, but not limited to, telephone receptionists and escorts who are referred by that agency while the escort is with a patron.

(2) **Advertising.** It is unlawful to advertise or hold out to the public the availability of an escort or escort agency without a license therefor, whether the actual business of escorts or escort agencies is performed. The escort agency license number and open office address must be prominently displayed or stated in any such advertisement.

(3) **Prohibited activities.** It shall be unlawful for a licensee to provide escort services to persons less than eighteen (18) years of age without the prior written authorization of the minor's parent or legal guardian.

(4) **Open office.** Each escort agency shall transact or conduct business only from the open office of the licensed escort agency in the following manner:

a. Business hours shall be established and posted in a prominent public place and such posting shall state that the office is open to the public and patrons or prospective patrons during such business hours. The office shall be open and accessible to business invitees, business license officials, officials in the divisions of revenue and building inspection, and law enforcement officers during business hours and during hours that the agency's escorts are working;

b. The office shall be managed or operated by the owner or a management employee of the owner having authority to bind the escort service and its escorts to written contracts with patrons and to adjust patron and consumer complaints;

c. All telephone lines and numbers listed for the escort agency, or advertised as escort agency numbers, shall terminate at the open office and at no other location;

d. A current index or list of all employees of the escort agency and all escorts employed or provided by the escort agency and a copy of the photographic identification card of all escorts employed or provided by the escort agency shall be kept in the open office; and

e. All business records of the escort agency shall be kept in the open office for a period of one (1) year. The business records shall include: (1) copies of all published advertisements for the escort agency and each escort who is employed or referred by the escort agency and (2) records of all escort calls and referrals, including the name and address of the patron, the date and time of referral, the name of the escort sent, whether the referral resulted in an escort service, and the total fee received from the patron, if any. If the patron's address is a hotel or motel then the hotel or motel room shall be listed in the call records. All business records shall be open and available to inspection by law enforcement officers during business hours and during hours that the agency's escorts are working.

(b) **Existing businesses.** The provisions of this section shall apply to all escort agencies, whether they were established or conducting business before or after October 1, 1999; provided, however, that each escort agency in existence as of such date shall have sixty (60) days therefrom to comply with the licensure provisions of the Code.

(c) **Penalty.** Any person who violates any of the provisions of section 14-13.6 of this Code shall, upon conviction thereof, be fined not more than five hundred dollars ($500.00) or imprisoned for a period of not more than six (6) months, or both fined and imprisoned.

(Ord. No. 260-99, § 3, 9-23-99)

Sec. 14-13.7. Same—Applicants.

(a) **General requirements.** Any person who is or intends to be employed or work in any capacity, whether as an employee, working proprietor or independent contractor, as an escort shall obtain an escort license. The person seeking an escort license shall apply for a license according to the application process contained in section 14-13.3 (a)(1)—(4) and (d) of the Code.

(b) **Review process.** An escort license shall be issued, denied, suspended or revoked according to the rules and requirements of section 14-13.3(b) of the Code.

(c) **Prohibitions.** No escort license shall be issued to an applicant if the applicant is less than eighteen (18) years of age or has been convicted of any of the offenses listed in section 14-13.2(e)(2) of the Code within the last five (5) years preceding the date of application.

(d) **Identification card.** Each escort licensee shall be issued a photographic identification card in the licensee's name and in the name of the escort agency for which the escort is or intends to be employed or to work for as an escort. The identification card shall include a current color photograph of the licensee, the licensee's name, alias, residential address, and date of birth, and the name and open office address of the escort agency that the licensee is employed by or working for as an escort. The identification card shall be carried on the person of the licensee while such person is engaged in the activity of an escort within the urban county. The identification card shall be displayed upon request of any law enforcement officer.

(e) **Penalty.** Any person who violates any of the provisions of section 14-3.7 of the Code shall, upon conviction thereof, be fined not more than five hundred dollars ($500.00) or imprisoned for a period of not more than twelve (12) months, or both fined and imprisoned.

(Ord. No. 260-99, § 4, 9-23-99)

Sec. 14-14. Disorderly house—Bawdy house; prostitution.

(a) Any person who shall use or conduct or operate any house or building or other property as a bawdy house or as a place of assignation for immoral purposes shall, whether such person be the owner or not of such house, building or property, be guilty of the offense of prostitution.

(b) Any person who is an inmate of a bawdy house or house of prostitution or who may go to such a house or to an assignation house for lewd or immoral practices or purposes shall be guilty of an offense of prostitution.

(c) Any person who shall be found guilty of the offense of prostitution shall be imprisoned for not less than thirty (30) days nor more than fifty (50) days for each offense.

Sec. 14-14.1. Same—Patronizing.

(a) A person patronizes a prostitute when:

(1) Pursuant to a prior understanding, he pays a fee to another person as compensation for such person or a third person having engaged in sexual conduct with him; or

(2) He pays or agrees to pay a fee to another person pursuant to an understanding that in return therefor such person or a third person will engage in sexual conduct with him; or

(3) He solicits or requests another person to engage in sexual conduct with him in return for a fee.

(b) As used in this section, "sexual conduct" means sexual intercourse or any act of sexual gratification involving the sex organ.

(c) Any person who shall violate this section shall be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) for each offense and/or shall be imprisoned for not less than five (5) days nor more than one (1) year for each offense.

(Ord. No. 171-81, § 1, 10-1-81)

Sec. 14-15. Same—Licensed place of business becoming.

(a) It shall be unlawful to allow or permit any place of business conducted under a license issued in pursuance to any ordinance of the urban county government to be or become a disorderly house, or to permit lewd, indecent or immoral acts to be committed therein, or on the premises adjacent thereto and under the control of the person conducting such business, or to permit on such premises or adjacent premises any lewd, boisterous or obscene conversations, sounds or other noises, or to permit such premises to be used for the purposes of prostitution, assignation or other immoral or illegal purposes or otherwise to become a nuisance.

(b) Any person who shall violate any provisions of this section shall be fined one hundred dollars ($100.00) for each offense.

(c) Upon any bona fide sworn charge being made in writing to the urban county council to the effect that the licensee has been guilty of any of the above-mentioned unlawful acts on such premises, such council shall have the right to hold a public hearing upon such charge after not less than three (3) days' written notice to the licensee; and, if upon such public hearing, such council shall find the licensee guilty of a charge or charges, it may revoke the license of such licensee, or may suspend such license and the right to do business thereunder for such time as the council may deem proper. If any person continues to do such business in the urban county after revocation of the license therefor or during the time for which it may be suspended by the council, he shall be deemed guilty of doing business without a license and shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(d) This section shall apply to all licenses issued under any ordinance of the urban county government now in effect or hereafter passed, except such ordinances as specifically prescribe a different method of revocation of license issued thereunder.

Sec. 14-16. Operating vehicle while under influence of intoxicants or drugs prohibited; presumptions concerning intoxication.

(a) No person under the influence of intoxicating beverages or any drug which may impair one's driving ability shall operate a vehicle that is not a motor vehicle anywhere in the urban county.

(b) No person shall operate a motor vehicle anywhere in the urban county while under the influence of intoxicating beverages or any drug which may impair one's driving ability.

(c) No peace officer shall fail to enforce rigidly this section.

(d) In, many criminal prosecution for a violation of subsections (a) and (b) of this section, wherein the defendant is charged with having operated a vehicle while under the influence of intoxicating beverages, the amount of alcohol in the defendant's blood, as determined at the time of making a chemical analysis of his blood, urine, breath or other bodily substance, shall give rise to the following presumptions:

(1) If there was five-hundredths percent or less by weight of alcohol in such blood, it shall be presumed that the defendant was not under the influence of intoxicating beverages;

(2) If there was more than five-hundredths percent but less than ten-hundredths percent by weight of alcohol in such blood, such fact shall not constitute a presumption that the defendant either was or was not under the influence of intoxicating beverages, but such fact may be considered, together with other competent evidence, in determining the guilt or innocence of the defendant;

(3) If there was ten-hundredths percent or more by weight of alcohol in such blood, it shall be presumed that the defendant was under the influence of intoxicating beverages.

(e) The provisions of subsection (d) of this section shall not be construed as limiting the introduction of any other competent evidence bearing upon the question of whether the defendant was under the influence of intoxicating beverages.

(f) No person may be compelled to submit to any test specified in subsection (d) of this section, but his refusal to submit to such test shall result in revocation of his license as provided in KRS ch. 189A.

(g) Only a person authorized by KRS 189A.103(6) can withdraw any blood of any person submitting to a chemical test under KRS ch. 189A.

(h) The person tested shall be permitted to have a duly licensed physician of his own choosing administer a chemical test in addition to the one administered at the direction of the police officer.

(i) Any person who shall violate subsection (a) or (b) of this section shall be fined for the first offense not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), for a second offense a fine

of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) and imprisoned for not less than three (3) days nor more than six (6) months, and for each subsequent offense a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) and imprisoned not less than thirty (30) days nor more than twelve (12) months.

(Ord. No. 4939, § 1, 6-25-64; Ord. No. 191-68, § 1, 7-25-68; Ord. No. 207-74, § 2, 10-17-74)

Sec. 14-17. Public intoxication.

(a) A person is guilty of public intoxication when he appears in a public place manifestly under the influence of alcohol, or a controlled substance, or other intoxicating substance, not therapeutically administered, to the degree that he may endanger himself or other persons or property, or unreasonably annoy persons in his vicinity.

(b) Any person found guilty of violating this section shall be fined in an amount not to exceed two hundred fifty dollars ($250.00) or imprisoned for a term not to exceed ninety (90) days, or both so fined and imprisoned.

(Ord. No. 207-74, § 3, 10-17-74)

Sec. 14-18. Habitual drunkards.

Any person who shall become an habitual drunkard and neglect his business, or fail to provide for his family, shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than ten (10) days nor more than sixty (60) days or shall be both so fined and imprisoned.

Sec. 14-19. Firearms, discharging within the urban county; penalty.

(a) No person, except peace officers, military personnel and similar officers in the execution of their official duties, shall discharge any firearm within the urban county in the following places or circumstances, unless in lawful defense of person or property:

(1) Within the urban service area boundary;

(2) In close proximity to any building which, in addition to its ordinary meanings, includes any vehicle or aircraft; except that this prohibition shall not apply to the safe discharge of firearms with the consent of the owner of any such building; close proximity is presumed if such discharge would be considered as done "recklessly or wantonly," as defined in KRS 501.020;

(3) On any real property without the consent of the owner thereof;

(4) Within any urban county park, unless said park is posted otherwise by the director of parks and recreation. Such posting may be made only in areas which have been inspected for safety purposes by the department of public safety and for which a written permit has been obtained from the commissioner of public safety.

(b) In the places and circumstances enumerated in paragraphs (1) and (2) of subsection (a), the discharge of firearms while engaged in target shooting, skeet shooting and other sport or demonstration shooting, shall be permissible on premises which have been inspected for safety purposes by the department of public safety and for which a written permit has been obtained from the commissioner of public safety:

(1) Such permit shall be granted on request to any private sporting club which has been in existence and operation at least ninety (90) days prior to the adoption of this section and which has complied with all regulations in effect prior to the date of this section.

(2) Such permit shall be granted on proper application unless said commissioner, for reasons stated in writing, finds that the activity to be permitted would constitute a safety hazard.

(3) There shall be no charge for such permit.

(4) Subsequent to the issuance of a permit by the commissioner, if, for reasons stated in writing, the commissioner determines that any activity of the permit holder constitutes a safety hazard, said permit may be suspended by the commissioner. Any denial of application for a permit or any suspension of a permit shall be reviewed by the urban county council within seven (7) days of said denial or suspension.

(5) The word "firearms" as used in this subsection shall include rifles, shotguns and handguns, but not fully automatic weapons of any type.

(c) Any person who violates this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each offense.

(Ord. No. 46-76, § 1, 3-18-76; Ord. No. 323-88, § 1, 12-15-88)

Sec. 14-19.1. Right of division of police to use pistol range.

The division of police shall have the right and privilege of using the pistol range located at Parker's Mill Road and Airport Road. The pistol range shall be operated by the police chief in conjunction with the training unit of the division of police and shall be manned by qualified personnel approved by the police chief. No persons other than those specified in this section shall use the same except with the permission in writing of the police chief or the director of the training unit. Any person to whom permission is granted shall be subject to sections 14-19.2 and 14-19.3 and to any additional range rules applicable to the division of police.

(Ord. No. 135-82, § 7, 7-29-82)

Sec. 14-19.2. Safety rules for use of pistol range.

The following safety rules are adopted as minimum rules for the use of the pistol range:

(1) Never load any firearm on a firing line or range unless on the firing line and commanded to do so.

(2) Never "snap" or practice dry-firing behind the firing line.

(3) Never speak to anyone on the firing line unless you are coaching, or are a range officer.

(4) If you should be spoken to while on the firing line, do not turn around to make a reply.

(5) In case of a misfire, do not open the gun for at least ten (10) seconds, and keep the arm pointed down the range in the direction of the target.

(6) Never load a gun while it is pointed in any other than the general direction of the targets, preferably at a forty-five-degree elevation.

(7) Never pick up a firearm without positively ascertaining whether it is loaded. Look first to see if weapon is loaded and then again to see that you didn't make a mistake.

(8) Never lay a firearm down without unloading it and leaving the action of the arm open. The Thompson submachine gun is an exception. The bolts on this gun should be forward with the magazine out.

(9) Never point a firearm at any person unless you are prepared and willing and have the right to shoot that person.

(10) Check a firearm for barrel obstruction before firing it. Heavy grease is an obstruction.

(11) Never point or carry a firearm down or behind the firing line loaded or with the action closed.

(12) When on a firing range, pistols and revolvers should remain in holsters unless on the firing line.

(13) Never fire a succeeding shot following the malfunction of a cartridge until the barrel has been examined to ascertain whether a bullet is lodged therein.

(14) Should it become necessary for any person to proceed from the firing point to the targets, all arms should be unloaded, actions opened (except automatic weapons), and the arms should be laid down on the firing point or placed in holsters.

The range officers will give these commands:

(15) Never proceed to the targets or leave the firing line without the command of the range officer.

(16) When reducing a stoppage or misfire in an automatic weapon, pull the bolt or slide back first lock and put safety on.

(17) Never permit the muzzle of a weapon to touch the ground. If this should happen, never fire the weapon until the barrel has been examined and any dirt or snow removed before the weapon is fired again.

(18) Special care should be taken so that the ricocheting of bullets will be prevented during firearms training. The area immediately in the rear of the targets used for hip or other shooting purposes should be specially inspected to ensure the elimination of rocks and other hard objects which may serve to cause ricochets.

(19) All safety precautions must be strictly adhered to and enforced at all times. There should at no time be any firearms training which is not properly and adequately supervised by the range officer.

(20) The strictest discipline must be maintained at all times on the firearms ranges in order to prevent accidents and injuries. Carelessness and thoughtlessness of any type cannot and must not be tolerated during firearms training programs.

(21) Never take a weapon from any one place without first opening the weapon to ascertain if the weapon is loaded.

(22) Everyone except men who are on the firing line should be at least twenty (20) feet behind the firing line.

(23) No one should talk to anyone who is on the firing line except the range officer. (Ord. No. 135-82, § 7, 7-29-82)

Sec. 14-19.3. Penalty for violation of section 14-19.1 or 14-19.2.

Any person violating any of the provisions of section 14-19.1 or 14-19.2 shall be guilty of a misdemeanor and upon conviction fined not less than ten dollars ($10.00) nor more than twenty-five dollars ($25.00) for each offense; and each use of the urban county government pistol range in violation of any such sections shall be a separate offense.

(Ord. No. 135-82, § 7, 7-29-82)

Sec. 14-19.4. Concealed deadly weapons.

(a) No person shall carry a concealed deadly weapon in any building or portion of any building owned, leased, occupied or controlled by the urban county government.

(b) The prohibition in subsection (a) shall not apply to the following:

(1) Any urban county government building used for public housing by private persons;

(2) Urban county government highway rest areas;

(3) Private dwellings owned, leased or controlled by the urban county government; and

(4) Sworn officers in the division of police and other law enforcement officers authorized to carry concealed deadly weapons pursuant to KRS 527.020.

(c) The commissioner of the department of general services shall post signs at the entrances to all restricted areas which shall read as follows: CARRYING CONCEALED DEADLY WEAPONS IN THIS AREA IS PROHIBITED.

(d) Any person violating this section shall be denied entrance into the restricted area and ordered to leave the building. Any urban county government employee violating this section or the provisions of House Bill No. 40 shall also be subject to disciplinary action, up to and including dismissal from employment.

(Ord. No. 124-96, § 1, 7-11-96)

Sec. 14-20. Fortune-telling.

(a) Any person who shall, for pay or compensation, claim, pretend or attempt to foretell the future, or predict coming events by means of fortune-telling, spiritualism, palmistry, phrenology or otherwise, or who shall, for pay or compensation, give or hold seances where the pretended spirits of deceased persons are brought into communication with living persons shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) for each offense.

(b) Any person publishing any newspaper in the urban county who shall, for pay or compensation, publish any notice or advertisement of any person claiming or pretending to do any of the things mentioned in this section shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 14-21. Fraud; defrauding operators of vehicles for hire.

It shall be unlawful for any person, with intent to defraud the owner or operator of any public vehicle for hire, to engage carriage therein. Refusal to pay the lawful charge for such carriage or absconding without payment or offering to pay such charges shall be evidence of such intent to defraud.

Any person who shall violate this section shall be fined not less than five dollars ($5.00) nor more than twenty-five dollars ($25.00) for each offense.

Sec. 14-22. Gambling machines or devices.

(a) Whoever shall have in his possession or on any premises in his occupation or under his control any device, machine, punchboard or other contrivance designed for use in gambling, betting, or whereby money or other thing of value may be won or lost shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or be imprisoned not less than thirty (30) days nor more than twelve (12) months, or shall be both so fined and imprisoned. Each device, machine, punchboard or contrivance possessed or kept on the premises in violation of this section and each day that such violation shall continue or occur shall be considered separate offenses for which a fine or imprisonment, or both, may be imposed.

(b) A licensee, or the clerk, servant, agent, or employee of any premises licensed for the sale of alcoholic beverages under chapter 3 of this Code shall not set up, conduct, operate, keep, or engage in any gambling game, handbook or bookmaking on the licensed premises or permit any gambling game, handbook or bookmaking to be set up, conducted, operated, kept, or engaged in on the licensed premises. The sale of lottery tickets under the provisions of KRS Chapter 154A and contests in which the licensee has no interest and in which eli-

gibility to participate is determined by chance and the winner is determined by skill shall be exempt from this prohibition. Any person convicted for violating this subsection shall be fined or imprisoned, or both, in accordance with subsection (a) and shall have his licenses revoked in accordance with subsection (c).

(c) If the person convicted of a violation of subsection (a) or (b) of this section is the licensee or the clerk, servant, agent or employee of any premises licensed for the sale of alcoholic beverages under chapter 3 of this Code or the owner or proprietor of a poolroom, soft drink parlor, confectionery, restaurant, cigar store or other place of public resort, and such device, machine, punchboard or other contrivance is found or such gambling game, handbook or bookmaking occurs on the premises for which the alcoholic beverage license was issued or wherein such business is conducted, the business license issued to such person or business pursuant to section 13-9 of the code shall be revoked and the licensee shall not be granted another license to conduct such business for a period of one (1) year from the date of such revocation and, in addition to the revocation of his business license, the holder of any license for the sale of alcoholic beverages issued under chapter 3 of this Code shall have his alcoholic beverage license revoked by the urban county alcoholic beverage control administrator.

(d) Any device, machine, punchboard or other contrivance mentioned in this section shall be confiscated and destroyed by the division of police. (Ord. No. 86-2000, § 16, 4-13-00)

Sec. 14-22.1. Hotels—Registration records.

(a) All hotels in the urban county shall keep registration records of all persons occupying rooms and shall not dispose of or destroy the same for a period of at least one (1) year from the date of any such registration.

(b) A hotel within the meaning of this section is defined as any establishment or building in which lodging is provided and offered to the public for compensation and which is open to transient guests.

(c) Any urban county government police officer, upon demand of the officer to the owner, operator or manager of the hotel, and upon a representation by said officer that a reasonable suspicion exists that the requested information is relevant to a pending inquiry or investigation, shall be provided the following:

(1) The room number and, if available, the address, of any person named by said officer who is occupying, or who has occupied a room at the hotel during the period requested by the officer.

(2) The name and, if available, the address, of any person who is occupying, or who has occupied any room specifically identified by number during the period requested by the officer.

(d) Any person violating the provisions of this section shall be fined not less than ten dollars ($10.00), nor more than five hundred dollars ($500.00), or be imprisoned not more than twelve (12) months, or both so fined and imprisoned.

(Ord. No. 4094, § 1, 8-11-60; Ord. No. 117-99, § 1, 4-22-99)

Sec. 14-23. Reserved.

Sec. 14-23.1. Indecency, obscenity, lewdness—Sale or exhibition of explicit sexual material to minors.

(a) **Purpose.** It is the purpose of this section to regulate the direct commercial distribution of certain explicit sexual materials to minors in order to aid parents and guardians in supervising and controlling the access of minors to such material. The council finds that whatever social value such material may have for minors can adequately be served by its availability to young persons through their parents or guardians. It is also the purpose of this section to prohibit open public display of certain explicit sexual materials, in order to protect persons from potential offense through involuntary exposure to such materials.

(b) **Definitions.** For the purposes of this section:

Disseminate means to sell, lease or exhibit commercially and, in the case of an exhibition, to sell an admission ticket or pass, or to admit persons who have bought such a ticket or pass to the premises whereon an exhibition is presented.

Display for sale in an area to which minors have access means display where minors are able to see it.

Explicit sexual material means any pictorial or three-dimensional material, or motion picture, or still picture, or photograph, or book, or pocketbook, or pamphlet, or magazine, the cover or contents of which:

(i) Depicts human sexual intercourse, masturbation, sodomy, bestiality, or oral or anal intercourse;

(ii) Depicts direct physical stimulation of unclothed genitals;

(iii) Depicts flagellation or torture in the context of a sexual relationship; or

(iv) Emphasizes the depiction of adult human genitals, buttocks or the female breast;

however, works of art, or of anthropological significance, or materials when presented in a program of education in a church, school or college shall not be deemed to be within the foregoing definitions.

Knowingly means having general knowledge of, or reason to know, or a belief or ground for belief, which warrants further inspection or inquiry of both of the following:

(i) The character and contents of any material described herein which is reasonably susceptible of examination; and

(ii) The age of the person;

however, an honest mistake shall constitute an excuse from liability hereunder if a reasonable, bona fide attempt is made to ascertain the true age of the person.

Material is placed upon public display if it is placed on or in a billboard, viewing screen, theater marquee, newsstand, display rack, window, showcase, display case or similar place so that matter bringing it within the definition of "explicit sexual material" is easily visible from a public thoroughfare or from the property of others.

Minor shall mean a person less than eighteen (18) years of age.

(c) **Offenses Defined.** A person is guilty of a violation of this section if he or she:

(1) Knowingly disseminates explicit sexual material to a minor; or

(2) Knowingly displays "explicit sexual material" for sale in an area to which minors have access, unless such material has artistic, literary, historical, scientific, medical, educational or other similar social value for adults and access to such material is limited to adults; or

(3) Knowingly places "explicit sexual material" upon public display;

or if he knowingly fails to take prompt action to remove such a display from property in his possession after learning of its existence.

(d) **Defenses to Prosecution.** It shall be an affirmative defense to a prosecution under this section for the defendants to show:

(1) That the dissemination was made with the consent of a parent or guardian of the recipient or that the defendant was misled as to the existence of parental consent by a misrepresentation made by a person holding himself out as a parent or guardian of the recipient, or that the dissemination was made to the recipient by his teacher or clergyman in the discharge of official responsibilities;

(2) That the recipient was married.

(e) **Exemption for Broadcast.** The prohibition of this section shall not apply to broadcasts of telecasts through facilities licensed under the Federal Communications Act, 47 U.S.C., Section 201 et seq.

(f) **Penalties.** Any person violating any provision of this section shall be fined not less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00), or imprisoned not less than thirty (30) days nor more than twelve (12) months, or both. This section shall not apply to any offense which is a felony under the Kentucky Revised Statutes.

(Ord. No. 285-77, § 1, 11-3-77)

Sec. 14-24. Report required by hospitals, physicians, surgeons and doctors of medicine, to the division of police of persons treated for injuries or disorders.

(a) When any person is brought or comes to any hospital in the urban county for treatment of gunshot wounds, cuts or fractures which, from the nature of same, may have been caused by the commission of a crime of violence, or if said person is the victim of poisoning, misuse or abuse of drugs or narcotics, or other injuries or disorders, it shall be the duty of such hospital to immediately notify the division of police of the presence of such person in said hospital and of the nature of the injury or disorder from which said patient is suffering.

(b) In the event that any person suffering from such injury or disorder shall thereafter die while a patient in any hospital in the urban county, it shall be the duty of such, hospital to immediately notify the division of police of the urban county of such death.

(c) When any doctor shall treat a person in the urban county suffering from such injury or disorder, it shall be the duty of the said doctor to immediately notify the division of police of the urban county of the name and whereabouts of such patient, and the nature of the injury or disorder; however, when such treatment takes place in the urban county hospital, it shall be the duty of the hospital to make such report and it shall not be necessary for the doctor to make same.

(d) When any person in the urban county who is a patient of any doctor, as aforesaid, and who is not confined in any hospital in the urban county, shall die, it shall be the duty of said doctor to report said death immediately to the division of police of the urban county.

(e) Violation of any of the provisions of this section will subject the violator to a fine of not less than ten dollars ($10.00) nor more than five hundred dollars ($500.00), or up to six (6) months in jail, or both.

(Ord. No. 214-70, § 1, 9-17-70)

Sec. 14-25. Injury to property—Fences, trees, etc.

It shall be unlawful for any person in the urban county willfully and unlawfully to cut down, destroy or injure, by topping or otherwise, any fruit or shade trees of another, or pull down or open any fence or gate, or break or cut any wire fence, or destroy or injure the vegetables, trees or shrubbery, of another.

Any person who shall violate this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 14-26. Same—Of utility companies or railways.

Any person who shall injure, break, destroy or carry away any of the pipes or fixtures of any waterworks company, gas company or street railway company doing business in the urban county or who shall deface or stop up or in any way tamper with or injure any hydrant belonging to such company shall be fined not less than ten dollars ($10.00) nor more than fifty dollars ($50.00) for each offense.

Sec. 14-27. Same—Public.

(a) Any person who shall injure, damage or deface the courthouse or jail building or any hospital, university, college, seminary or schoolhouse, church of public worship, or any property, furniture, fixture, fence or enclosure pertaining to any thereof, or any tree, plant or shrub on public grounds, or any box or plant thereon, or any public lamppost, or other public property, shall be fined not less than two dollars ($2.00) nor more than fifty dollars ($50.00) for each offense.

(b) Any person who shall injure, deface, remove, cover up, or in any way disturb any of the stone posts or markers to designate the urban county shall be fined twenty-five dollars ($25.00) for each offense.

Cross reference(s)—Franchise holders for excavating streets bound to protect city from claims concerning damages, § 17-12; injuring sidewalk or curb, § 17-15.

Sec. 14-28. Same—Alarm systems; cancelling alarms.

It shall be unlawful for any person maliciously to cut or tamper with any wire or appliance of, or to injure or in any manner to interfere with or obstruct the operation of, the urban county fire alarm system, police alarm system or police radio alarm system, or any part of such systems, or willfully and without cause to telephone or turn in or cancel or countermand any fire alarm or police alarm, or otherwise obstruct or interfere with the operation of any of such systems, or any part of such systems.

Any person who shall violate any provision of this section shall be fined not less than twenty dollars ($20.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than five (5) days nor more than thirty (30) days, or shall be both so fined and imprisoned for each offense.

Sec. 14-29. Same—Lampposts, street lights, etc.

Any person who shall injure or deface any public lamp or post, or any fixture pertaining thereto, or shall without authority interfere therewith; or any person who cuts or breaks any electric light wire or bulb for the purpose and with the intention of extinguishing any electric light used for lighting the public street, or otherwise damage any such electric light, shall be fined not less than three dollars ($3.00) nor more than fifty dollars ($50.00) for each offense.

Sec. 14-30. Same—Signal lamps, barriers, tools; carrying away lumber.

Any person who shall remove or destroy any of the signal lamps, barriers or tools placed or left at or around unfinished work on the streets or alleys of the urban county, or carry away any lumber or other material belonging to the urban county government, shall be fined not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00) or be imprisoned for not less than sixty (60) days.

Sec. 14-31. Same—Billboards.

It shall be unlawful for any person knowingly to destroy, mutilate, obstruct, remove or damage by any means, with willful intent, any sign, billboard or advertisement, whether on public or private property, for the purpose of displaying their own advertising or for any other purpose.

Any person who shall violate this section shall be fined not less than five dollars ($5.00) nor more than twenty-five dollars ($25.00) for each offense.

Sec. 14-32. Library, damaging books.

(a) Any person who may use the books, pamphlets, newspapers, periodicals, manuscripts and other literary property of the Lexington Public Library, or any part of same, either in the library building or on the premises of such library, or by withdrawing any such books, pamphlets, newspapers, periodicals, manuscripts or other literary property for private use elsewhere, under the rules and regulations of the board of trustees of the library, are forbidden to mark, mutilate or, in any manner, deface or injure or destroy such property; and any books, pamphlets, newspapers, periodicals, manuscripts, or other literary property, so used or withdrawn, shall be returned to the library in as good condition as when received, unavoidable wear and tear alone excepted.

(b) To any person violating the provisions of this section, the board of trustees of the library is authorized and empowered, in its discretion, to deny the privileges of the library for a period not exceeding one (1) year, including the privilege of withdrawing books from the library for private use; and, in addition thereto, any person so offending, and his surety on the library card of such person, shall be liable for the cost of repairing or replacing any of the property of the library so damaged or destroyed.

(c) Any person who shall be guilty of a second or subsequent offense under this section shall, in addition to the penalties prescribed above, as well as in addition to the penalties prescribed by general law, be liable to a fine of not less than one dollar ($1.00) and not more than twenty-five dollars ($25.00), to be recovered by appropriate proceedings in the district court; and all fines and costs collected for the violation of this section shall, when collected, be paid over to the board of trustees of such library.

Sec. 14-33. Reserved.

Editor's note(s)—Section 14-33, relating to loitering, derived from Ord. No. 207-74, § 4, adopted Oct. 17, 1974; Ord. No. 155-81, § 1, adopted Sept. 3, 1981; and Ord. No. 172-81, § 1, adopted Oct. 1, 1981, was repealed by § 1 of Ord. No. 65-83, adopted Apr. 21, 1983.

Sec. 14-34. Same—On private property.

(a) Any person who shall be found loitering, eating, sleeping or wandering on the premises of another person or on the premises of any railroad company or other corporation, in the daytime, without permission of the owner or occupant of such premises or other lawful excuse therefor, shall be fined in any sum not exceeding five dollars ($5.00) for each offense.

(b) Any person who shall be found loitering, eating, sleeping or wandering on the premises of another person or on the premises of any railroad company or other corporation, in the nighttime, shall be prima facie guilty of trespassing, but proof that he is on such premises by permission of the owner shall be a complete defense, with the burden, however, on such person to prove same. Any person found guilty under this subsection shall be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00) or be imprisoned for not more than twenty (20) days, or both so fined and imprisoned for each offense.

Sec. 14-35. Same—About public institutions, trespass.

It shall be unlawful for any person having no lawful business thereat to lounge about the door or in the immediate vicinity of any church, hall or the public library, or on the grounds or buildings of any school or college, or to trespass in any manner upon buildings aforesaid or any of the grounds thereof, or in any manner interfere with any of the rules and discipline or good order of any of the aforesaid institutions.

Any person who shall violate any of the provisions of this section shall be fined not less than two dollars ($2.00) nor more than fifteen dollars ($15.00) for each offense.

Sec. 14-36. Merchandise, endless chain contracts.

It is hereby made illegal for any person to carry on in the urban county an endless chain retail merchandising store or business. An endless chain retail merchandise business is defined to be one where a dealer sells to a customer, for a certain sum, merchandise or service under the terms of a main contract with supplementary coupon contracts attached, each of a stated value, such main contract authorizing the customer to sell the supplemental coupon contracts at the stated value and giving each purchaser of a coupon contract, in turn, the right to apply to the dealer and buy merchandise or service under a contract similar to the main one, and to receive similar coupon contracts as did the first purchaser from the dealer; and so on in an endless chain; it being provided in the main contract that when any customer has signed a contract and has sold one (1) or more of the coupon contracts, each to different individuals, as above stated, such customer is entitled to an allowance or rebate to the value due under his contract, for each person to whom a coupon is sold, when that person applies to and enters into a similar contract with the dealer.

Any person, or his agents or employees, who shall violate the provisions of this section shall be deemed guilty of an offense, and upon conviction thereof shall be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00) or confined in the urban county detention center for not less than ten (10) days nor more than thirty (30) days, either or both penalties to be inflicted in the discretion of the court; the sale of each main contract being a separate offense.

Sec. 14-37. Curfew for minors.

(1) For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

(a) **Minor.** Any person under the age of eighteen (18) or as may be otherwise phrased, any person of the age of seventeen (17) and under.

(b) **Parent.** Any person having legal custody of a minor.

(1) As a natural or adoptive parent; or

(2) As a legal guardian; or

(3) As a person who stands in loco parentis; or

(4) As a person whom legal custody has been given by order of court.

(c) **Remain.** To stay behind, tarry, linger, congregate, move about, wander, stroll, or stay unnecessarily.

(d) **Allow.** Either permit or neglect to prevent. It requires actual or constructive knowledge on the part of the parent, that is the parent must actually know about the minor is violating this section, or the circumstances must be such that reasonably prudent parent should have known the minor was violating this section.

(2) (a) It shall be unlawful for a minor to be or remain in or upon any public assembly, building, place, street, or highway within the county between times of 12:00 a.m. to 5:00 a.m.

(b) It shall be unlawful for any parent of a minor to allow such minor to be or remain in or upon a public assembly, building, place, street, or highway in the county under circumstances not constituting an exception as enumerated in subsection (3) during the time periods contained in subsection 2(a).

(3) In the following exceptional cases a minor found in or upon any public assembly, building, place, street, or highway in the county during the time periods provided for in subsection 2(a) shall not be considered in violation of this section:

(a) When the minor is accompanied by their parent;

(b) When accompanied by an adult authorized by a parent of such minor;

(c) When exercising first amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech, and the right to assembly, provided that written notice signed by the minor and countersigned by a parent is in the possession of such minor specifying when, where, and in what manner said minor will be exercising such First Amendment rights;

(d) When returning home, by a direct route from, and within one (1) hour of the termination of a school activity, or any religious or other voluntary association, provided that justification indicating the place and time of termination of said event can be given to any investigating officer of the division of police;

(e) When authorized by regulation issued by the mayor in cases of reasonable necessity involving more minors than may reasonably be dealt with on an individual basis. Such regulation should be issued sufficiently in advance to permit publicity through news media and through other agencies such as the schools. The regulation shall define the activity, the scope of the use of the public assembly, building, place, street, or highway permitted, and the period of time involved not to extend more than one (1) hour beyond the time for termination of the activity, and the reason for finding that such regulation is reasonably necessary. The mayor shall notify the division of police of said information;

(f) When engaged in a business or occupation which the law of Kentucky authorize a person under eighteen (18) years of age to perform;

(g) When the minor, who is a duly authorized and licensed driver, is operating a motor vehicle within the county for the purpose of passing through, including all minors within the vehicle;

(h) When the minor is married in accordance with the law or had disability of non-age removed by a court of competent jurisdiction.

(4) (a) A police officer finding or being notified of any minor in or upon any public assembly, building, place, street, or highway whose parent is believed to be in violation of this section may stop and question such minor and request such information as his or her name and age and the name and address of his or her parent, guardian, or person having legal custody.

(b) If the police officer determines or has reasonable cause to believe that a curfew violation has occurred; the police officers may obtain from the minor the information necessary to issue a citation to the minor's parent.

(5) Any minor found in violation of this section shall be:

(a) Taken to his or her home; or

(b) Directed to proceed immediately to his or her home; or

(c) Taken to a facility designated by the division of police.

(6) Any parent of a minor allowing a minor to violate subsection (2) of this section shall be subject to a fine of no more than four hundred ninety-nine dollars ($499.00).

(Ord. No. 5069, § 1, 12-10-64; Ord. No. 5610, § 1, 8-11-66; Ord. No. 66-95, § 1, 4-6-95; Ord. No 43-2017, § 1, 4-13-17)

Sec. 14-38. Teenage canteens.

(a) For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

(1) **Minor.** Any person under the age of eighteen (18) or, as may be otherwise phrased, any person of the age of seventeen (17) or under.

(2) **Teenage canteen.** Commercial premises which are open to minors and which offer their patrons an opportunity to engage in social activities such as dancing, or the enjoyment of live or pre-recorded music, or the enjoyment of entertainment provided by dancers or other performers. The term "teenage canteen" does not include the following: premises which serve alcoholic beverages and which are under the jurisdiction of alcohol beverage control; theaters; full-service restaurants; a banquet, party, or celebration conducted for invited guests which is not open to the public; or dances or events sponsored or

operated by a government entity, an accredited educational institution, or a nonprofit religious, charitable, benevolent, fraternal, or social organization which is recognized by the United States of America as being exempt from federal taxation.

(b) No person shall conduct or operate a teenage canteen unless the person who is conducting or operating such teenage canteen has obtained a license in accordance with the provisions of this section.

(c) A person desiring to conduct or operate a teenage canteen shall file an application for a license with the division of police. Such applications shall be on a standard form furnished by the division of police and shall include the following information:

(1) The names and address of the applicant;

(2) The names and addresses of the operator, manager and employees of the teenage canteen;

(3) The name and address of the owner of the premises upon which the teenage canteen will be located;

(4) If the answers to subsections (c)(1), (2) and (3) of this section involve an unincorporated association, a corporation or a partnership, the name of the unincorporated association, corporation or partnership and the names and addresses of the limited partners, partners, officers and directors thereof;

(5) The address of the premises upon which the teenage canteen will be located;

(6) A statement of any and all measures to be used to ensure that adequate traffic control and crown protection, both with and without the premises, will be maintained;

(7) A certificate from the division of building inspection that all of the requirements of the zoning ordinance and the building code have been met;

(8) A certification from the chief of the division of fire and emergency services that the premises and the structure located thereon comply with the requirements of the existing fire prevention ordinances of the urban county government, including the standards of safety adopted by the urban county government and all other laws relative to fire prevention. Said certification shall also state the maximum capacity of people authorized by the Lexington-Fayette fire marshal for the premises;

(9) An oath or affirmation that the information listed is true under penalty or perjury.

(d) The division of police shall, within thirty (30) days of receipt of a completed application form, make a complete review of the accuracy of the information contained therein, including a criminal records check on any individuals named therein. If the application is approved, the division of police shall provide the applicant with such written notification, for presentation to the division of revenue. The division of revenue shall issue the license if the application is approved and collect a fee of two hundred dollars ($200.00) from the applicant. If the application is denied, the division of police shall provide the applicant with such written notification, including a statement of the reasons for denial. An aggrieved applicant shall have a right to request a hearing before the chief administrative officer as set forth in subsection (m).

(e) The division of police shall deny a license if:

(1) The applicant or any of the applicant's officers, directors, partners, operators, employees or any other person involved in the operation of the teenage canteen are not of good moral character or have committed any act which if committed by a licensee would be grounds for the suspension or revocation of a teenage canteen license; or

(2) The traffic control and crowd protection measures listed in the application are not adequate.

(f) Any license issued under the provisions of this section shall apply to a single licensee and to a single location only and shall not be transferable to other locations or other persons.

(g) Before commencing or doing any business for the time for which a license has been issued, the license shall be posted and at all times displayed in a conspicuous place in the room or principal room where business is carried on, so that all persons visiting the place may readily see the license. Licenses shall be enclosed in a wood or metal frame enclosing a clear glass space so that the whole license may be seen.

(h) Each license issued by the commissioner of public safety shall be valid for a period of one (1) year.

(i) A license issued pursuant to this section may be suspended or revoked upon a finding that any one (1) or more of the following conditions exist:

(1) The license was procured by fraud or false representation or omission of a material fact in the license application.

(2) The applicant or licensee or any officer, director or agent thereof knowingly has made any false statement or given any false information in connection with an application for a license or a renewal of a license;

(3) The licensee or employee, agent, partner, director, officer or manager thereof has knowingly allowed or permitted: (i) a felony to occur in or upon the teenage canteen premises; (ii) a crime involving prostitution, lewd conduct or assault on a minor to occur in or upon the teenage canteen premises; (iii) any act of or solicitation for sexual intercourse, sodomy, oral copulation or masturbation to be committed in or upon the teenage canteen premises; (iv) the possession or consumption of marijuana, cocaine or any other controlled substances in or upon the teenage canteen premises, or has knowingly failed to remove from such premises any person who appears to be under the influence of or affected by the use of any controlled substances or whose conduct poses a physical danger to the safety of others present; or (v) a violation of any provisions of this section or the commission of any act by any employee, agent, manager, partner, or director thereof which is grounds for denial of a license issued pursuant to this section.

(j) No person conducting or operating a teenage canteen shall permit any person, other than an employee, to leave the teenage canteen and return unless that person pays a readmission fee equal to or greater than one-half (1/2) the original price of admission.

(k) No premise which operates as a teenage canteen shall be operated or otherwise be open for any other purpose during the following hours:

12:30 a.m. to 5:00 a.m. Saturday

12:30 a.m. to 5:00 a.m. Sunday

10:30 p.m. Sunday to 5:00 a.m. Monday

10:30 p.m. Monday to 5:00 a.m. Tuesday

10:30 p.m. Tuesday to 5:00 a.m. Wednesday

10:30 p.m. Wednesday to 5:00 a.m. Thursday

10:30 p.m. Thursday to 5:00 a.m. Friday

and the exclusion or attempted exclusion of minors during the above-mentioned prohibited hours shall not relieve any person operating a teenage canteen from this prohibition.

(l) The application for or the granting of a license is deemed to permit periodic inspections by law enforcement officers, or other persons designated or authorized by the commissioner of public safety, of all areas of any establishment requiring a license under this section for the purpose of verifying compliance with the terms and conditions of this section. It shall be unlawful for an applicant, licensee, owner or operator of a teenage canteen to refuse to permit a law enforcement officer or other authorized person to inspect the premises during normal business hours.

(m) If the commissioner of public safety determines that grounds exist to deny, suspend, or revoke a teenage canteen license, he shall notify the applicant or licensee in writing of his intent to deny, suspend or revoke, including the grounds therefore. The notice shall be sent to the applicant or licensee by certified mail to the person and address specified in the application. Within five (5) business days of receipt of such notice, the applicant or licensee may provide to the commissioner, in writing, a response which shall include a statement of reasons why the license should not be denied, suspended or revoked and may include a request for a hearing. If a response is not timely received by the commissioner, the notice shall be a final administrative act of denial, suspension or revocation. If a timely response is received by the commissioner, he shall within three (3) business days of his receipt of the response either withdraw the written notice of intent to deny, suspend or revoke by giving notice of such withdrawal to the applicant or licensee or shall schedule a hearing before the chief administrative officer or his designee and shall give notice of such hearing to the applicant or licensee. The hearing shall be informal in nature and shall be conducted within seven (7) business days of the commissioner's receipt of the applicant's or licensee's response. The chief administrative officer or his designee shall render a written decision within three (3) business days after the completion of the hearing and shall serve the applicant or licensee with a copy of his or her decision by certified mail. If a licensee pursues a judicial appeal of a final decision of the chief administrative officer or his designee, then that licensee may continue to operate or work pending the completion of judicial review.

(n) Any person operating a teenage canteen in violation of this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) per offense. Each day during which such violation shall continue or occur shall be considered a separate offense.

(Ord. No. 64-96, § 1, 5-2-96; Ord. No. 241-2000, § 1, 7-13-00)

Sec. 14-39. Minors obtaining alcoholic beverages.

(a) Except as provided in KRS 244.085, it shall be unlawful for any person under twenty-one (21) years of age to enter any premises licensed for the sale of alcoholic beverages including, in the case of drive-in establishments, the entire lot upon which the business establishment is situated, for the purpose of purchasing, receiving, or having served or delivered to him any alcoholic beverage.

(b) It shall be unlawful for any person under the age of twenty-one (21) years to possess for his own use, or to purchase or attempt to purchase or have another purchase for him any alcoholic beverage.

(c) It shall be unlawful for any person under the age of twenty-one (21) years to misrepresent his age for the purpose of purchasing or attempting to purchase alcoholic beverages or inducing any retail licensee or any employee of any retail licensee to sell, serve or deliver any alcoholic beverage to him.

(d) It shall be unlawful for any person under the age of twenty-one (21) years to use or attempt to use any false, fraudulent or altered identification card or document to purchase or attempt to purchase or otherwise to obtain any alcoholic beverage.

(e) It shall be unlawful for any parent or guardian knowingly to permit any minor of which he may have the legal custody to violate any of the provisions of this section.

(f) Nothing contained in this section shall excuse or relieve the owner, proprietor, employee or person in charge of any licensed premises in the urban county where alcoholic beverages are sold from the restrictions, requirements and penalties of any other ordinance of the urban county government or statute of the state relating to violations pertaining to the sale of alcoholic beverages.

(g) Any person who shall violate any of the provisions of this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each offense. Each purchase, sale or delivery and each attempt to purchase or have served or delivered shall be considered a separate offense for which a fine may be imposed.

(Ord. No. 86-2000, § 17, 4-13-00)

Cross reference(s)—Permitting possession of alcoholic beverages by minors prohibited, § 3-23.1.

Sec. 14-40. Reserved.

Editor's note(s)—Section 14-40 prohibiting supplying small arms ammunition to minors, was repealed by § 6 of Ord. No. 98-84, adopted June 28, 1984, pursuant to the provisions of HB 311 of the 1984 General Assembly.

Sec. 14-41. Reserved.

Editor's note(s)—Section 14-41, relating to minors playing coin-operated amusement machines, derived from Ord. No. 4017, § 1, adopted Feb. 25, 1960, was repealed by § 1 of Ord. No. 245-79, adopted Oct. 18, 1979.

Sec. 14-42. Permitting minors in house of ill fame.

Any keeper or inmate of a house of ill fame who shall permit any minor under seventeen (17) years of age, who does not reside in such house, to enter the same, shall be fined ten dollars ($10.00) for each offense.

Sec. 14-43. Death stars or shurikens.

(a) It shall be unlawful for any person to sell or give away death stars or shurikens to any person under the age of eighteen (18) years within the urban county.

(b) It shall be unlawful for any person under the age of eighteen (18) years to purchase or otherwise acquire, use or possess death stars or shurikens within the urban county.

(c) Any person who shall violate the provisions of this section shall be fined not less than fifty dollars ($50.00) for each offense nor more than one hundred dollars ($100.00).

(Ord. No. 269-87, § 1, 11-19-87)

Editor's note(s)—Ord. No. 4-76, § 4, adopted Jan. 15, 1976, repealed § 14-43, which has pertained to skating in public parks. Said section had been contained in the original codification. Subsequently, § 1 of Ord. No. 269-87, adopted Nov. 19, 1987, added a new § 14-43.

Sec. 14-44. Missiles—Shooting or throwing generally.

Any person who shall throw or shoot any missile whereby any person or property shall be injured shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 14-45. Same—Stones.

Any person who shall throw any stone or hard substance in such a manner as to endanger any person or property shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 14-46. Same—Air rifles, air pistols, BB guns, or similar guns, slingshots or steel-tipped arrows, discharging within the urban county; penalty.

(a) It shall be unlawful for any person to sell or give away any air rifle, air pistol, BB gun, or similar gun, slingshot or steel-tipped arrow to any person under the age of eighteen (18).

(b) It shall be unlawful for any person under the age of eighteen (18) to discharge any air rifle, air pistol, BB gun, or similar gun, slingshot or steel-tipped arrow without adult supervision.

(c) No person, except peace officers, military personnel and similar officers in the execution of their official duties, shall shoot or discharge air rifles, air pistols, BB guns, or similar guns, slingshots or steel-tipped arrows within the urban county in the following places or circumstances:

(1) Within the urban service area boundary, rural activities centers (as identified in the comprehensive plan) and rural settlements, including but not limited to Athens, Avon, Bracktown, Clays Ferry, Coletown, Fort Springs, Jimtown, Little Georgetown, Little Texas, Loradale, Maddoxtown, Princetown, Nihizertown, Centerville, Uttingertown, Columbus and Willa Lane, except as provided in subsections (d), (e), and (f).

(2) Within three hundred (300) feet of any building which, in addition to its ordinary meanings, includes any vehicle or aircraft; except that this prohibition shall not apply to the safe discharge of air rifles, air pistols, BB guns, or similar guns, slingshots or steel-tipped arrows with the consent of the owner of any such building.

(3) On any real property without the consent of the owner thereof.

(4) Within any urban county park, unless said park is posted otherwise by the director of parks and recreation. Such posting may be made only in areas which have been inspected for safety purposes by the department of public safety.

(d) Air rifles, air pistols, BB guns, or similar guns, slingshots or steel-tipped arrows may be shot or discharged:

(1) In lawful defense of person or property.

(2) In competition at the Bluegrass State Games.

(3) In competition or for instructional purposes at schools or universities.

(e) Steel-tipped arrows may be shot in indoor archery ranges.

(f) Paint ball guns may be shot or discharged in properly zoned commercial establishments operated in accordance with recognized national standards.

(g) Any person who violates this section shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each offense, and any parent of any minor who shall knowingly permit such minor to violate this section shall likewise be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for each offense.

(Ord. No. 49-92, § 1, 4-2-92; Ord. No. 244-2005, §§ 1, 2, 8-25-05)

Sec. 14-47. Officers—Interfering with police.

Any person who shall interfere with or obstruct a police officer in the discharge of his duty shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 14-48. Same—Failing to assist police.

Any person who, when legally summoned by a police officer to assist him in the execution of his office, shall fail or refuse to do so, shall be fined fifteen dollars ($15.00) unless he shall give a good reason for such failure or refusal.

Sec. 14-49. Same—Impersonating police officer or fire fighter.

No person shall falsely represent himself to be an officer, agent or employee of the division of police or division of fire and emergency services and in such assumed character, arrest or detain or search in any manner the person or the property of anyone, nor shall any person without the authority of the departments wear the official uniform or insignia or badges or any uniforms or insignia or present any identification cards or papers likely to be confused with the official uniform or insignia or badges of the departments.

Any person who violates the provisions of this section shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) or imprisoned for not more than thirty (30) days or both.

(Ord. No. 16-69, § 1, 1-30-69; Ord. No. 155-87, § 1, 7-9-87)

Sec. 14-50. Parks—Throwing rubbish therein.

Any person who shall place or deposit any garbage, dirt, rock, debris or other rubbish in any of the parks or parkways in the urban county shall be fined not less than one dollar ($1.00) nor more than twenty-five dollars ($25.00).

Cross reference(s)—Amusements license, § 13-13.

Sec. 14-51. Same—Causing rubbish to be thrown therein.

Any person who shall cause or direct any person to deposit any dirt, rubbish, debris or other trash in any of the parks or parkways of the urban county shall be fined not less than one dollar ($1.00) nor more than twenty-five dollars ($25.00).

Sec. 14-52. Same—Political speeches therein.

It shall be unlawful for any person to make a political speech or hold a political gathering or distribute political cards, placards, propaganda or literature, or to tack cards, posters or placards on the trees or buildings, in any public parks.

Any person violating this section shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) or shall be imprisoned for not less than ten (10) days nor more than thirty (30) days for each offense.

Sec. 14-52.1. Electioneering and exit polling.

(a) As used in this section, the following shall have the stated meaning:

(1) Electioneering shall include the displaying of signs, the distribution of campaign literature, cards or handbills, the soliciting of signatures to any petition, or the solicitation of votes for or against any candidate or question on the ballot in any manner.

(2) The main entrance is the principal entrance to be used by voters for entrance to the polling place in which a voting machine is located.

(b) To fulfill the government's obligation to protect the voter and the integrity of the election process from actual or attempted fraud, from obstruction, from intimidation real or inferred, from attempted or actual vote buying, from invasion of privacy, from harassment real, threatened or implied, from hindrance or delay all done under the disguise of electioneering, a electioneering free zone is established within three hundred feet of the entrance to any building contained a polling place on any election day;

(1) No person shall, on the day of any election as established in KRS 118.025, do any electioneering at the polling place or within a distance of three hundred (300) feet of the main entrance of a building used by voters in which a voting machine is located on election day.

(2) No person shall, on the day of any election as established in KRS 118.025 intentionally invade the right of privacy of any person on his or her way to vote, or cause interference, harassment, or alarm to any person on his or her way to vote.

(3) No person shall loiter or congregate in, or hinder or delay a voter, or solicit, or attempt to influence any voter in casting his vote within this 300 foot campaign free zone.

(4) Nothing contained in this section shall prohibit electioneering conducted within the interior of a private residence or business establishment by persons having a leased or ownership interest in such property, within the campaign free zone, provided that electioneering activities are confined to the interior of the buildings and cannot be heard or observed by any voters going to the polling place.

(5) Nothing in this section shall prohibit the displaying of political signs on private property or private establishment by a person having a leased or ownership interest in that private property or private

establishment within the campaign free zone, regardless of the distance from the polling place provided that the sign is not accompanied by a person and does not emit any sound and is not audio-visual or mechanical and no larger than four (4) square feet in size.

(6) Any precinct election officer, county clerk, deputy county clerk, or any law enforcement official may enforce this section at the polls within three hundred (300) feet of the main entrance to the building used by voters in which the voting machine is located. Assistance may be requested of any law enforcement officer.

(7) Any property used for a polling location on election day shall not be considered a public place in any manner for public discourse. The grounds, buildings, sidewalks and parking lots at all polling locations are designated non-public forums for the election day.

(c) Any person who violates any provision of this section after he has been duly notified of such provisions by the sheriff of the election precinct shall, for each offense, be fined not more than five hundred dollars ($500.00) or be imprisoned for a term not to exceed twelve (12) months, or both so fined and so imprisoned.

(Ord. No. 240-79, § 1, 10-4-79; Ord. No. 103-88, § 1, 5-19-88; Ord. No. 192-92, § 5, 10-29-92; Ord. No. 99-2004, §§1, 2, 5-13-04)

Sec. 14-53. Reserved.

Editor's note(s)—Ord. No. 4-76, § 4, adopted Jan. 15, 1976, replaced § 14-53, which had pertained to playing ball in the public parks. Said section had been contained in the original codification.

Sec. 14-54. Radio receiving wave length in establishments selling alcoholic beverages.

(a) It shall be unlawful for any person offering for sale alcoholic beverages at retail within the urban county to maintain or operate upon the premises used for such business or in connection therewith any short-wave radio or other radio receiving set capable of receiving police messages.

(b) Any person who shall violate any provision of this section shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(c) Conviction in district court of violation of this section shall be deemed grounds for the revocation of the license of any person so convicted, upon notice and hearing before the urban county alcoholic beverage administration or the state alcoholic beverage control commission.

Sec. 14-55. Smoking in sleeping rooms.

It shall be unlawful for any person willfully, wantonly or carelessly to use matches, lighters or smoking material, or dispose of lighted matches, cigarettes or cigars or live embers of any smoking material, so as to result in the setting fire to any part of any building, or to any furnishings therein, in which rooms are occupied by the public as sleeping accommodations.

Any person who shall violate this section shall be fined not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00) or shall be imprisoned for not less than ten (10) days nor more than thirty (30) days, or both so fined and imprisoned for each offense.

Sec. 14-55.1. Smoking on buses.

(a) Any person shall be prohibited from smoking or holding a lighted pipe, cigar, cigarette or burning substance on any LexTran bus operating within the urban county area.

(b) At least one (1) sign notifying passengers that smoking on buses is prohibited and announcing the fine for violation of this section shall be posted in a conspicuous place on each LexTran bus.

(c) The penalty for violating this section shall be not less than five dollars ($5.00) nor more than one hundred dollars ($100.00). Each violation of this section shall constitute a separate offense.

(Ord. No. 235-77, § 1, 8-25-77)

Sec. 14-56. Telephones, depositing slugs in coin box.

It shall be unlawful for any person to place a check or other piece of metal or other substance other than a lawful coin of the United States of America in any coin box of any pay station of a telephone company for the purpose of obtaining service thereby.

Any person who shall violate this section shall be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00) or be imprisoned for not less than ten (10) days nor more than thirty (30) days, or shall be both so fined and imprisoned for each offense.

Sec. 14-57. Trespass, on school grounds.

It shall be unlawful for any person except teachers, pupils, janitors, trustees or other persons having lawful business thereon, to go upon the grounds of any college or school, and there engage in any game of ball or other sport, or there be or congregate, without the permission of the principal officer or person in charge of such grounds and buildings.

Any person who shall violate this section shall be fined not less than two dollars ($2.00) nor more than fifteen dollars ($15.00) for each offense.

Cross reference(s)—Ball playing in streets, § 17-27.

Sec. 14-57.1. Central criminal records file check required.

(1) **Definitions.**

Agency, **club**, **organization**, **day care center** or **school** includes any association which as a component of its activities or services exercises supervisory or disciplinary control over children.

Central criminal records file check means a check of criminal records pursuant to KRS 17.160.

Child means any person under the age of eighteen (18) years.

Sex crime means a criminal conviction for a violation or attempted violation of KRS 510.040 to 510.150, 529.020 to 529.050, 529.070, 530.020, 530.065, 530.070, 531.310, 531.320 and 531.340 to 531.370. Conviction for a violation or an attempted violation of an offense committed outside Kentucky is a sex crime if such offense would have been a crime in Kentucky under one of the above-enumerated statutes.

Volunteer means any person who offers to perform his services on a regular basis, without remuneration, to any agency, club, organization or school, in any capacity which would place him in a position of supervisory or disciplinary control over children. The commissioner of public safety shall promulgate regulations, subject to approval by majority vote of the urban county council, to further define which volunteers must submit to a records check according to the terms of this section.

(2) All agencies, organizations, clubs, day care centers or schools which receive funds from the urban county government shall perform a central criminal records file check on any prospective employee or volunteer who would be in a position to exercise disciplinary or supervisory control over children. Funding by the urban county government shall be conditional upon compliance by the agency, club, organization, day care center or school with this section. The responsibility and cost of performing the records check shall be borne by the agency, organization, club or day care center and not by the urban county government.

(3) The urban county government shall perform a central criminal records file check of all volunteers within the urban county government who would be in a position to exercise supervisory or disciplinary control over children. The commissioner of public safety shall be responsible for administering the records check program.

(Ord. No. 238-85, § 3, 11-12-85)

Cross reference(s)—Civil service employee qualifications, § 21-6; unclassified civil service employee qualifications, § 22-6.

Sec. 14-58. Sexual offenders.

(1) For purposes of this section, the following terms shall have the following meanings:

Child means a person under the age of eighteen (18).

Loiter means standing, sitting idly, whether or not the person is in a vehicle, or remaining in or around a public or private school, registered child-care center, public park or playground and approaching, contacting or communicating with a child.

Playground means a piece of land in Lexington-Fayette Urban County owned, leased, operated or controlled by the Commonwealth of Kentucky, the Lexington-Fayette Urban County Government or the Lexington-Fayette Urban County Public Facilities Corporation for use solely or primarily for children's recreation, including, but not limited to, playground equipment.

Public or private school means any institution that has the primary purpose of educating children.

Public park means a park, nature preserve, conservation area, greenway, trail, or public swimming pool owned, leased, operated or controlled by the Commonwealth of Kentucky, the Lexington-Fayette Urban County Government or the Lexington-Fayette Urban County Public Facilities Corporation.

Registered child-care center means a facility licensed pursuant to KRS 199.896 by the Commonwealth of Kentucky to provide care to children.

Registered sex offender means "registrant" as it is defined in KRS 17.500(4) and whose offense for which the offender is required to register involved a child victim.

(2) (a) It is unlawful for a registered sex offender to be present in any public park building or on real property comprising any public park when children are present in the building or on the grounds, unless the registered sex offender is a parent or guardian of a child present in the building or on the grounds and the offender does not approach, contact or communicate with any other child.

(b) It is unlawful for a registered sex offender to loiter on a public way or sidewalk within one thousand (1,000) feet of a public park building or real property comprising any public park while children are present in the building or on the grounds, unless the registered sex offender is a parent or guardian of a child present in the building or on the grounds and the offender does not approach, contact or communicate with any other child.

(c) It is unlawful for a registered sex offender to be present in any public or private school building or on real property comprising any public or private school, unless the registered sex offender is a parent or guardian of a child present in the building or on the grounds and the offender does not approach, contact or communicate with any other child.

(d) It is unlawful for a registered sex offender to loiter on a public way or sidewalk within one thousand (1,000) feet of a public or private school building or real property comprising any public or private school, unless the registered sex offender is a parent or guardian of a child present in the building or on the grounds and the offender does not approach, contact or communicate with any other child.

(e) It is unlawful for a registered sex offender to be present in any registered child-care center building or on real property comprising any registered child-care center, unless the registered sex offender is a parent or guardian of a child attending the child-care center and the child is present in the building or on the grounds and the offender does not approach, contact or communicate with any other child.

(f) It is unlawful for a registered sex offender to loiter on a public way or sidewalk within one thousand (1,000) feet of a registered child-care center building or real property comprising any registered child-care center, unless the registered sex offender is a parent or guardian of a child attending the child-care center and the child is present in the building or on the grounds and the offender does not approach, contact or communicate with any other child.

(g) It is unlawful for a registered sex offender to be present on real property comprising any playground, unless the registered sex offender is the parent or guarding of a child who is present on the playground and the offender does not approach, contact or communicate with any other child.

(h) It is unlawful for a registered sex offender to loiter on a public way or sidewalk within one thousand (1,000) feet of real property comprising any playground, unless the registered sex offender is the parent or guardian of a child who is present on the playground and the offender does not approach, contact or communicate with any other child.

(3) For purposes of determining distance for subsections (2)(b), (d), (f), and (h) above, the measurement shall be taken in a straight line from where the registered sex offender is loitering to the nearest property line of the public park, public or private school, registered child-care center or playground.

(4) Any person who violates any provision of this section shall be punished by a fine of not greater than five hundred dollars ($500.00) or imprisonment not to exceed twelve (12) months, or both, for each offense.

(Ord. No. 60-2006, § 1, 3-9-06)

Sec. 14-59. Reserved.

Editor's note(s)—Section 14-59, requiring property to be free of motor vehicles not licensed or having inspection certificate, derived from Ord. No. 38-74, §§ 1—5, adopted Mar. 21, 1974, was repealed by § 1 of Ord. No. 122-80, adopted Aug. 28, 1980.

Sec. 14-60. Reserved.

Editor's note(s)—Ord. No. 151-2010, § 4, adopted Aug. 26, 2010, renumbered § 14-60 as § 16-106. Former § 14-60 pertained to transportation, relocation of dirt, earth, debris, enforcement; penalties and derived from Ord. No. 162-74, § 1, adopted Aug. 22, 1974; Ord. No. 140-84, § 1, adopted Aug. 2, 1984; Ord. No. 163-2000, § 1, adopted June 15, 2000; and Ord. No. 269-2004, § 2, adopted Nov. 4, 2004.

Sec. 14-60.5. Unattended children in vehicles.

(a) It shall be unlawful for any person to at any time lock, confine or leave unattended, or to cause to be locked, confined or left unattended in any auto, bus or any other vehicle upon a public street, alley or public parking facility, or other public or private property where parking or drive-in facilities are offered to the public within the urban county for a period of time exceeding fifteen (15) minutes, a child under eight (8) years of age.

(b) A child is unattended within the meaning of this section if the oldest person with the child is a person under the age of thirteen (13) years.

(c) Any individual may use any and all reasonable means to effect the release of any child locked, confined or left unattended in violation of this section, provided said individual has reasonable cause to believe that at said time and place there exists an imminent danger to the child's life or health.

(d) Anyone acting upon reasonable cause in effecting the release of a child pursuant to this section shall have immunity from any liability, civil or criminal, that might otherwise be incurred or imposed.

(e) Any person violating the provisions of this section shall, for each offense, be fined not more than two hundred fifty dollars ($250.00) or imprisoned not more than ninety (90) days, or both.

(Ord. No. 174-80, § 1, 11-13-80; Ord. No. 14-81, § 1, 2-5-81)

Sec. 14-61. Electric fence, structure or barrier prohibited; penalty.

It shall be unlawful for any owner, tenant or license holder of land to erect or maintain any fence, structure or barrier which in any way utilizes electricity to repel persons or animals from that fence, structure or barrier on, surrounding or adjacent to any property which is zoned and/or used for residential purposes. Any person who violates this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00). Each day a violation of this section continues shall be construed as a separate offense.

(Ord. No. 203-75, § 1, 7-24-75)

Editor's note(s)—Ord. No. 203-75 amended the code by adding § 14-60, the provisions of which have been redesignated as § 14-61, at the editor's discretion as the Code already contained § 14-60.

Sec. 14-62. Parks.

(a) All dedicated parks and parkways in the urban county shall be operated and maintained under the supervision of the director, division of parks and recreation (hereafter referred to as director). The director is hereby empowered to enforce the provisions of this section and to issue temporary permits for the use of real and personal property controlled by the division of parks and recreation.

(b) The director may regulate uses and activities within urban county parks and parkways and may issue written regulations prohibiting certain uses and activities within all or part of such parks and parkways based on ecological or public health, welfare or safety concerns. The factors to be considered in restricting or prohibiting certain activities within urban county parks and parkways shall include:

(1) The nature, design and intended use of the park;

(2) The location and size of the park;

(3) The likelihood of disturbance to residents adjacent to the park; and

(4) Whether the use or activity to be restricted or prohibited is permitted in other urban county parks.

(c) No person shall:

(1) Possess, sell, deliver or consume any alcoholic beverage in any park or parks facilities except when authorized by a permit issued in writing by the director.

(2) Prevent any person from using any park or any of its facilities, or interfere with such use in compliance with this section and the rules applicable to such use;

(3) Engage in gambling of any form in park areas and buildings;

(4) Engage in an amusement for gain or for which a charge is made without the written consent of the director and such amusement must be conducted in accordance with any ordinance pertaining hereto;

(5) Swim, bathe or wade in any waters or waterways in or adjacent to any park, except in such waters and at such places as are provided therefor, and in compliance with posted regulations;

(6) Ignite open fires in any park area except by written permit or in areas so designated by the director;

(7) Ice skate on any water area, unless the division of parks has determined its safety and posted public notice that ice skating is permitted;

(8) Engage in archery except by written permit from the director or in areas designated by the director;

(9) Picnic or lunch in a place other than those designated for that purpose;

(10) Drive or park any motor vehicle (motor bikes, minibikes, cars, trucks, etc.) except on a street, driveway or parking lot in any park, unless authorized in writing by the director; or leave any such vehicle unattended in a park when the park is not open for public use or leave any such vehicle unattended in a park when not using that park for recreational activities.

(11) Bring any dangerous animal into any park, or permit any dog in any park unless such dog is on a leash not more than six (6) feet long;

(12) Bring any horse into any park, except that the director may designate areas into which horses may be brought;

(13) Bring any animal into designated picnic areas of parks unless authorized in writing by the director;

(14) Vend, sale, peddle or offer for sale any commodity or article within any park except as approved in writing by the director unless such sale is made by park employees and officials of the urban county government acting on behalf of the government;

(15) Smoke within swimming pool areas except in designated areas;

(16) Handle, possess or consume food or beverages inside swimming pool areas except in designated areas;

(17) Paste, glue, tack or otherwise post any sign, placard, advertisement or inscription, whatsoever, nor shall any person erect or cause to be erected any sign whatsoever on any public land or highways or roads adjacent to a park unless written approval is obtained from the director;

(18) Fly model airplanes, practice golf or ice skate except at locations specifically designated for such activities by the director; areas for such activities may be reserved through the director by groups for use at specified times;

(19) Fail to clean up all debris and extinguish fires in park areas;

(20) Discharge any firearm or air weapon except in designated areas within any park;

(21) Enter upon or remain in any park areas at a time other than during those hours which the director has specified that the facilities are open for public use.

(d) (1) Any person who shall violate any provision of this section shall be fined not less than five dollars ($5.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than thirty (30) days, or both so fined and imprisoned.

(2) Leaving unattended any vehicle in a park when the park is not open for public use or when not using that park for recreational activities, in violation of section 14-62(c)(10) is hereby declared to be a public nuisance. The public nuisance may be abated by impounding the vehicle immediately.

(Ord. No. 4-76, §§ 1—3, 5, 1-15-76; Ord. No. 199-85, § 1, 10-3-85; Ord. No. 198-88, § 1, 9-6-88; Ord. No. 76-95, § 1, 4-27-95; Ord. No. 151-2000, § 1, 6-1-00; Ord. No. 157-2003, §§ 1, 2, 6-26-03; Ord. No. 80-2018, § 1, 11-1-18)

Editor's note(s)—Ord. No. 4-76, §§ 1—3, 5, adopted Jan. 15, 1976, specifically amended the Code by adding a new § 14-61. Due to the prior existence of a § 14-61, the provisions of Ord. No. 4-76 have been redesignated as § 14-62 as herein set out.

Sec. 14-62.1. Regulation of activities in Triangle Park.

(1) As used in this section, **Triangle Park** shall mean the triangular-shaped parcel of land bounded by South Broadway, Vine Street and West Main Street, being more particularly described as parcel 2 of the plat of record at plat cabinet A, slide 580 in the county clerk's office.

(2) Within the confines of Triangle Park, no person shall:

(a) Ride a bicycle, skateboard, roller skates, coaster, or any similar device;

(b) Sleep;

(c) Play or wade in the fountains; or

(d) Operate a motorized vehicle, except with permission of the Lexington Center Corporation.

(3) Any person who shall violate any provision of this section shall be fined not less than five dollars ($5.00) nor more than five hundred dollars ($500.00) or imprisoned for not more than thirty (30) days, or both so fined and imprisoned.

(Ord. No. 171-88, § 1, 7-14-88)

Sec. 14-63. Volatile substances; definitions.

In sections 14-63 through 14-69 of this Code, unless the context requires otherwise, "frequently abused volatile substances" shall mean the following designated substances:

(1) Spray paints containing toluene, propane, isobutane, aromatic hydrocarbons, propellant hydrocarbons, or petroleum hydrocarbons.

(2) Paint or lacquer thinners containing naphtha, petroleum distillates, toluene, acetates, hexane, benzene or methyl alcohol.

(3) Lighter fluids containing naphtha.

(4) Model paints containing toluene, ketones, or petroleum distillates.

(5) Tube glues containing toluene.

(6) Vegetable oil cooking sprays containing hydrocarbon or fluorohydrocarbon propellants.

(7) Nitrous oxide (laughing gas).

(8) Solvents containing amyl nitrate.

Substances may be added to or deleted from the foregoing list of frequently abused volatile substances from time to time by the urban county council. (Ord. No. 303-79, § 1, 12-13-79; Ord. No. 113-84, § 1, 7-12-84; Ord. No. 45-98, § 1, 2-19-98)

Sec. 14-64—14-66. Reserved.

Editor's note(s)—Sections 14-64—14-66, relating to the advisory commission on frequently abused volatile substances, derived from Ord. No. 303-79, §§ 2—4, adopted Dec. 13, 1979, were repealed by § 2 of Ord. No. 113-84, adopted July 12, 1984.

Sec. 14-67. Unlawful use of volatile substance.

(a) It shall be unlawful for any person to be in a condition of intoxication, excitement, giddiness, irrational behavior, depression, stupefaction, paralysis, unconsciousness, asphyxiation or other harmful or psychological condition as a result of the intentional inhalation or induction into his respiratory or circulatory system of any frequently abused volatile substance, or to possess or use a frequently abused volatile substance for the purpose of causing any such condition in himself or another person.

(b) It shall be unlawful for any person to sell, offer to sell, give, deliver or furnish or otherwise transfer any frequently abused volatile substance to any person under the age of eighteen (18) years unless such person is accompanied by his parent, legal guardian or other legal custodian, except when one (1) tube of glue and the amount of model paint and paint thinner necessary to complete a hobby or model kit is sold and delivered simultaneously with the sale and delivery of such a kit.

(c) It shall be unlawful for any person to display for sale any frequently abused volatile substance without first providing a sign or plaque in such display area warning all potential users that such substances can be dangerous to an individual's health if inhaled.

(d) It is a defense to prosecution under subsection (b) of this section that the seller, deliverer or transferor was actively misled or deceived by the presentation of a written or printed information presented by a person under the age of eighteen (18) years, relating to the age of identity of such person.

(Ord. No. 303-79, § 5, 12-13-79)

Sec. 14-68. Permitted use of volatile substances.

The prohibitions contained in section 14-67 shall not apply to the use or possession of frequently abused volatile substances by or at the direction of a licensed dentist or physician for medical or dental purposes.

(Ord. No. 303-79, § 6, 12-13-79)

Sec. 14-69. Penalty for violation of section 14-67.

(a) Any person convicted of violating any provision of section 14-67(a) or (c) of this Code shall be punished upon a first conviction by imprisonment for a period not exceeding thirty (30) days or by a fine not exceeding one hundred dollars ($100.00), or by both such imprisonment and fine, and on a second or subsequent conviction shall be punished by imprisonment for a period not exceeding six (6) months or by a fine not exceeding two hundred fifty dollars ($250.00), or by both such imprisonment and fine.

(b) Any persons convicted of violating any provision of section 14-67(b) of this Code shall be punished upon a first conviction by imprisonment for a period not exceeding six (6) months or by a fine not exceeding two hundred fifty dollars ($250.00), or by both such imprisonment and fine, and on a second or subsequent conviction shall be punished by imprisonment for a period not less than thirty (30) days nor more than twelve (12) months, or by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or by both such imprisonment and fine.

(Ord. No. 303-79, § 7, 12-13-79; Ord. No. 102-85, § 8, 5-30-85)

Sec. 14-70. Definitions applicable to sections 14-70 through 14-80.

As used in sections 14-70 through 14-80:

Construction means any site preparation, assembly, erection, substantial repair, alteration or similar action, but excluding demolition for or on public or private rights-of-way, structures, utilities or similar property.

Demolition means any dismantling or intentional destruction or removal of structures, utilities, public or private right-of-way, surfaces, or similar property.

Dwelling unit means one (1) room or rooms connected together, constituting a separate, independent housekeeping establishment for occupancy by a family as owner, by rental or lease on a weekly, monthly or longer basis and physically separated from any other rooms or dwelling units which may be in the same building, and containing independent cooking and sleeping facilities.

Dwelling unit boundary means a real or imaginary boundary which separates one (1) dwelling unit from another dwelling unit, including, but not limited to, walls, ceilings and floors in a building containing more than one (1) dwelling unit or in situations involving detached single dwelling unit[s], the real property boundary line of the unit.

Motor vehicle means every vehicle defined as a motor vehicle in section 18-1(15) of this Code.

Motorcycle means every vehicle defined as a motorcycle in section 18-1(14) of this Code.

Noise disturbance means any sound which:

(a) Endangers or injures the safety or health of humans or animals;

(b) Annoys or disturbs a reasonable person of normal sensitivities; or

(c) Endangers or injures personal or real property.

Person means any individual, association, partnership or corporation, and includes any officer, employee, department, agency or instrumentality of a state or any political subdivision of a state.

Powered model vehicle means any self-propelled airborne, waterborne or landborne plane, vessel or vehicle, which is not designated to carry persons, including, but not limited to, any model airplane, boat, car or rocket.

Public right-of-way means any street, avenue, boulevard, highway, sidewalk, alley or similar place which is owned or controlled by a governmental entity.

(Ord. No. 115-82, § 1, 7-1-82; Ord. No. 192-92, § 6, 10-29-92; Ord. No. 293-2000, § 1, 9-28-00)

Sec. 14-71. Noise disturbances—Generally.

In addition to the specific prohibitions outlined in section 14-72, no person shall make, continue, or cause to be made, continued or permitted any noise disturbance on or across a public right-of-way or a public place. This section shall not apply to noncommercial public speaking and public assembly activities conducted on any public space or public right-of-way.

(Ord. No. 115-82, § 1, 7-1-82; Ord. No. 293-2000, § 2, 9-28-00)

Sec. 14-72. Same—Specific acts.

The following acts, and the causing or permitting thereof, are declared to be in violation of section 14-70 through 14-80:

(1) Maintaining any machinery or equipment, whose operation involves rotating or reciprocating parts or equipment in such a manner as to create a noise disturbance across a dwelling unit boundary.

(2) Operating or permitting the operation of any tools or equipment used in construction, drilling or demolition work between the hours of 11:00 p.m. and 7:00 a.m., prevailing local time, such that the sound therefrom creates a noise disturbance across a dwelling unit boundary, except for emergency work of public service utilities or by special variance as provided for in section 14-74. This paragraph shall not apply to the use of domestic power tools subject to subsection (3) of this section.

(3) Operating or permitting the operation of any mechanically powered saw, drill, sander, grinder, lawn or garden tool, lawnmower or other similar device used outdoors that creates a noise disturbance across a dwelling unit boundary other than powered snow removal equipment, between the hours of 11:00 p.m. and 7:00 a.m., prevailing local time, or on Saturday or Sunday before the hour of 9:00 a.m., prevailing local time.

(4) Loading, unloading, opening, closing or other handling of boxes, crates, containers, building materials, garbage cans or similar objects between the hours of 11:00 p.m. and 7:00 a.m., prevailing local time, in such a manner as to cause a noise disturbance across a dwelling unit boundary.

(5) Collecting refuse or operating refuse collection vehicles between the hours of 11:00 p.m. and 5:30 a.m., prevailing local time, in such a manner as to create a noise disturbance across a dwelling unit boundary.

(6) a. Using, operating or permitting the operation of any loudspeaker, public address system, mobile sound vehicle or similar device amplifying sound therefrom on a public right-of-way or public space for any commercial purpose.

b. Using, operating or permitting for any noncommercial purpose any loudspeaker, public address system, mobile sound vehicle or similar device between the hours of 11:00 p.m. and 7:00 a.m., prevailing local time, such that the sound therefrom creates a noise disturbance across a dwelling unit boundary.

(7) Operating or permitting the operation of powered model vehicles so as to create a noise disturbance across a dwelling unit boundary or in a public place between the hours of 11:00 p.m. and 7:00 a.m., prevailing local time.

(8) Operating, playing or permitting the operation or playing of any radio, television, phonograph, drum, musical instrument or similar device in such a manner as to create a noise disturbance across a dwelling unit boundary.

(9) Repairing, rebuilding, modifying, testing or operating any motor vehicle, motorcycle, motor bicycle or motorboat in such a manner as to cause a noise disturbance across a dwelling unit boundary.

(10) It shall be unlawful for any person to keep or harbor within the urban county any animal, including, but not limited to, domestic pets, that repeatedly or frequently emits any sound, including but not

limited to barking, yelping, howling, meowing, or squawking, or that otherwise creates a noise disturbance across a dwelling unit boundary, in such a manner so as to annoy or disturb a reasonable person of normal sensitivities.

(11) Consistent with the other provisions of sections 14-70 through 14-80 of the Code, and in addition thereto, no person shall use or operate any radio, stereo, tape player, record player, compact disc player or any similar device for the producing, reproducing or amplification of sound in or on any vehicle located within or on the public streets or rights-of-way or within or on any other public property, including, but not limited to parks, or public parking lots operated by the urban county government or the Lexington and Fayette County Parking Authority/LexPark, in such a manner as to create a noise disturbance that is audible to a person of normal hearing sensitivity more than ten (10) feet from such vehicle. Words and phrases need not be discernible for said sound to be "audible", and said sound shall include bass reverberation.

(Ord. No. 115-82, § 1, 7-1-82; Ord. No. 23-83, § 1, 2-24-83; Ord. No. 216-90, § 1, 10-18-90; Ord. No. 5-91, §§ 1—3, 1-24-91; Ord. No. 293-2000, § 3, 9-28-00; Ord. No. 162-2012, §§ 1, 2, 12-6-12)

Sec. 14-73. Right of entry of law enforcement officer to investigate noise disturbance.

Any urban county government law enforcement officer, in addition to any authority vested in him, has the power, upon presentation of proper credentials, to enter and inspect any dwelling, multifamily dwelling, building, structure or premises within the county as may be necessary to enforce the provisions of this section.

Needed permission is to be obtained from the occupant or, in the case of unoccupied property, from the owner or his agent. If such permission is refused or is otherwise unobtainable, a search warrant must be obtained upon the showing of probable cause to believe that a violation of sections 14-70 through 14-80 may exist, before such entry or inspection is made.

(Ord. No. 115-82, § 1, 7-1-82)

Sec. 14-74. Mayor authorized to grant special variances relative to noise disturbances.

(a) The mayor or his designated representative shall have the authority, consistent with this section, to grant special variances to those persons who can demonstrate that bringing a source of sound or activity into compliance with sections 14-71 and 14-72 would constitute an unwarranted health hazard or an unreasonable economic hardship upon the applicant.

(b) Any person seeking a special variance pursuant to this section shall file a written application with the mayor or his designated representative. The application will be provided by the mayor or his designated representative. The application shall contain reasons why an unwarranted health hazard or an unreasonable economic hardship would result if the applicant was required to comply with sections 14-71 and 14-72. The mayor or his designated representative additionally may require that the applicant give notice of the application for special variance to persons who frequent the area of the sound or activity and may be adversely affected by

the granting of the variance. Any individual who claims to be adversely affected by allowance of the special variance may file a statement with the mayor or his designated representative containing any information to support his claim.

(c) In determining whether to grant or deny the application, the mayor or his designated representative shall balance the hardship to the applicant, the community and other persons of not granting the special variance against the adverse impact on the health, safety and welfare of persons affected, the adverse impact on property affected and any other adverse impact of granting the special variance. Applicants for special variances and persons contesting special variances may be required to submit any information the mayor or his representative may reasonably require. In granting or denying an application, the mayor or his representative shall place on public file a copy of the decision and the reasons for denying or granting the special variance.

(d) Special variances shall be granted by notice to the applicant containing all necessary conditions including a time limit on the permitted activity. The special variance shall not become effective until all conditions are agreed to by the applicant. Noncompliance with any conditions of the special variances shall terminate it and subject the person holding it to those provisions of this section regulating the source of sound or activity for which the special variance was granted.

(e) Application for extension of time limits specified in special variances or for modification of other substantial conditions shall be treated like application for initial special variances.

(f) The mayor or his designated representative may issue guidelines defining the procedures to be followed in applying for a special variance and the criteria to be considered in deciding whether to grant a special variance.

(Ord. No. 115-82, § 1, 7-1-82; Ord. No. 164-82, § 1, 9-9-82)

Sec. 14-75. Order of abatement of noise disturbance.

In lieu of issuing a citation as provided for in section 14-76, any urban county government law enforcement officer may issue an order requiring the immediate abatement of any source of sound alleged to be in violation of sections 14-70 through 14-80.

(Ord. No. 115-82, § 1, 7-1-82)

Sec. 14-76. Citation for violation of sections 14-70 through 14-80.

Except where a person is acting in good faith to comply with an abatement order issued pursuant to section 14-75, violation of any provision of sections 14-70 through 14-80 shall be cause for a citation to be issued by an urban county government law enforcement officer.

(Ord. No. 115-82, § 1, 7-1-82)

Sec. 14-77. Effect of sections 14-70 through 14-80 on existing law.

No provision of sections 14-70 through 14-80 shall be construed to impair any common law or statutory cause of action, or legal remedy therefrom, of any person for injury or damage arising from any violation of these sections or from other law.

(Ord. No. 115-82, § 1, 7-1-82)

Sec. 14-78. Exceptions to provisions of sections 14-70 through 14-80.

The provisions of sections 14-70 through 14-80 shall not apply to the following:

(1) The emission of sound for the purpose of alerting persons to the existence of an emergency, or for the performance of emergency work.

(2) Organized school-related programs, activities or events, or parades or other public programs, activities or events authorized by the mayor or his designated representative.

(3) The discharge of firearms by members of the division of police or other sworn peace officers.

(4) The operation of airplanes and aircraft both on and off airport property, the maintenance of same. (Ord. No. 115-82, § 1, 7-1-82; Ord. No. 5-91, § 4, 1-24-91)

Sec. 14-79. Enforcement of other laws not affected by sections 14-70 through 14-80.

Nothing in sections 14-70 through 14-80 shall be construed to permit conduct prohibited by any other statute, ordinance or regulation, or to prohibit the enforcement thereof.

(Ord. No. 115-82, § 1, 7-1-82)

Sec. 14-80. Penalty for violation of sections 14-70 through 14-80.

Any person who violates any provision of sections 14-70 through 14-80 shall be punished by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00). Any person found guilty of a second offense of any of these sections within any twelve-month period shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), and any person found guilty of a third offense of any of these sections within any twelve-month period shall be subject to a fine of not less than two hundred-fifty dollars ($250.00) nor more than five hundred dollars ($500.00).

(Ord. No. 115-82, § 1, 7-1-82; Ord. No. 293-2000, § 4, 9-28-00)

Sec. 14-81. Distribution of materials to public free of charge; designation of funding.

All informational brochures, folders, maps, leaflets and other similar written materials which are voluntarily distributed by the urban county government to members of the general public without charge and which are printed at urban county government expense shall indicate that the cost of printing was paid from urban county government funds by placing thereon, "Paid for with Lexington-Fayette Urban County Government funds." This shall

not apply, however, to such materials as employee handbooks and other documents distributed primarily for use within the urban county government, its offices, agencies, departments and divisions; citation forms, personnel examination forms, application forms and other materials which are promulgated pursuant to the requirements of various laws; and court briefs, grant applications and other printed papers which are not generally distributed to the public.

(Ord. No. 183-83, § 1, 10-6-83)

Sec. 14-82. Moped license.

(1) **Definition.** As used in this section, **moped** means either a motorized bicycle whose frame design may include one (1) or more horizontal cross bars supporting a fuel tank so long as it also has pedals, or a motorized bicycle with a step-through type frame which may or may not have pedals rated no more than two (2) brake horsepower, a cylinder capacity not exceeding fifty (50) cubic centimeters, an automatic transmission not requiring clutching or shifting by the operator after the drive system is engaged, and capable of a maximum speed of not more than thirty (30) miles per hour.

(2) **License Required.** All retail moped dealers shall be required to advise any purchaser of a moped that pursuant to KRS 186.010(4), (5), 186.410(1), (2), 186.412(1) and 186.450(2), (3), operators of mopeds are required to possess a valid driver license. Such dealers shall further be required to secure from the purchaser an acknowledgement that he has received such information by requiring the purchaser to affix his signature to a standard form provided by the urban county government division of police. Completed acknowledgement forms shall be kept on file by the dealer for a period of one (1) year following each sale.

(3) **Penalty for Violation of Section.** Failure of any retail moped dealer to comply with the provisions of this section shall be punishable by a fine to not exceed one hundred dollars ($100.00) for each offense.

(Ord. No. 31-85, § 1, 2-21-85; Ord. No. 122-87, § 2, 6-25-87)

Sec. 14-83. Stone wall preservation ordinance.

(1) No person shall remove any stone walls or portion thereof located within the public right-of-way without first applying for and receiving a permit from the office of historic preservation. "Stone wall" is defined to be a wall built of stones or rocks which have been gathered from fields or creek bottoms or quarried stones or rocks. The office of historic preservation may issue a removal permit only in special circumstances including but not limited to the following:

   (a) The stone wall is a traffic hazard or otherwise presents a threat to public safety;

   (b) The stone wall is to be relocated or replaced by a more appropriate stone wall; or

   (c) The existing stone wall is in such a damaged or neglected condition that it is not feasible to have it remain. No permit shall be issued however in cases where the property owner or his agents cause the stone wall to be damaged in order to justify the issuance of a removal permit.

Nothing contained in this section is intended to limit or impair the authority of the federal or state government to remove stone walls within the public right-of-way of any publicly dedicated road when the removal or alternation is necessary to make road improvements.

(2) Applicants may appeal the denial of a permit to the stone wall appeals board. The appeal provided herein shall be taken by filing written notice thereof with the office of historic preservation within twenty (20) days from the final action of the office of historic preservation's denial of the permit. The written notice provided for herein shall state the reasons why the appeal is being taken. The appeal provided herein shall be heard within sixty (60) days following the date the appeal is filed.

(3) The stone wall appeals board shall meet to review applicants' appeals. The stone wall appeals board may consider whether special circumstances exist to allow for the removal of a stone wall. Special circumstances may include, but are not limited to, the circumstances set out in subsection (1) of this section. Decisions made by the stone wall appeals board shall be final. The stone wall appeals board shall be composed of the members of the board of architectural review established pursuant to Article 13-5 of the Zoning Ordinance with terms concurrent with their terms serving on the board of architectural review.

(4) Any person violating any provision of this section shall be upon conviction or a plea of guilty subject to a fine of not less than three hundred dollars ($300.00) per five (5) linear feet of stone wall removed nor more than five hundred dollars ($500.00) per five (5) linear feet of stone wall removed.

(Ord. No. 224-94, § 1, 11-17-94; Ord. No. 179-2009, § 1, 8-27-09)

Sec. 14-84. Reserved.

Sec. 14-85. Definitions.

Unless a different meaning is required by the context, the following terms, as used in sections 14-85 through 14-95, shall have the meaning hereinafter respectively ascribed to them:

Department shall mean the department of public safety.

Drop fee shall mean the fee paid by the owner or custodian of an improperly parked vehicle, for release of the vehicle prior to impoundment.

Heavy duty tow shall mean the impoundment of a vehicle with a gross vehicle weight rating (GVWR) of ten thousand one (10,001) pounds or more.

Identifying tow number means a control number assigned by the division of police which will identify both the document file on the impoundment and the vehicle privately impounded.

Operator means any person operating a tow truck for a private impound tow truck service or any employee of a private impound tow truck service.

Private impound cost schedule (PICS) means a pre-printed sheet with the name address and phone number of the private impound tow truck service at the top. The sheet shall include an itemized payment schedule to include the maximum towing charge, storage charge and drop fees. The sheet may include other fees for services offered by the private impound tow truck service. At the bottom of the sheet will be a line for the operator providing the sheet to write their name.

Private impound tow truck service means a person engaged in any business which provides the services of one (1) or more tow trucks to tow and privately impound motor vehicles.

Privately impounded means that the vehicle has been towed and impounded from a private parking lot without the consent of the owner of the vehicle at the direction of a person having control or possession of the private property upon which the vehicle was located.

Standard tow shall mean the impoundment of a vehicle with a gross vehicle weight rating (GVWR) of ten thousand (10,000) pounds or less.

Tow truck service storage yard means any property, including the premises of any service station, upon which vehicles that have been privately impounded are stored.

Vehicle means any motorized vehicle, any trailer or any container or moveable apparatus subject to impoundment under this section.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 1, 10-16-97; Ord. No. 10-2013, § 1, 1-31-13)

Sec. 14-86. Applicability.

The provisions of sections 14-85 through 14-94.2 shall apply only to tow services which privately impound vehicles.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 2, 10-16-97)

Sec. 14-87. Private impound tow truck service license requirements; identification of tow trucks.

(1) No tow truck service or operator shall privately impound any vehicle unless the private impound tow truck service possesses a valid private impound tow truck service license issued in accordance with chapter 13 and sections 14-85 through 14-94.2 of this Code.

(2) All private impound tow trucks operated by a private impound tow truck service shall display the name, address and telephone number of the owner thereof on both sides of the private impound tow truck on permanently mounted signs or painted directly on the body of the truck in letters large enough to be readily legible, but in no case less than two (2) inches in height. It shall be unlawful to operate a private impound tow truck displaying an incorrect name or address, or a telephone number which is incorrect or not in service.

(3) The private impound tow truck service license holder shall ultimately be responsible for all actions of the private impound tow truck service and the employees thereof.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 3, 10-16-97; Ord. No. 10-2013, § 2, 1-31-13)

Sec. 14-87.1. Signage.

(1) No private impound tow truck service or operator shall privately impound any vehicle from private property which has not been posted with signs meeting the specifications set forth in this section.

(2) Every person having control or possession of a parking lot shall, prior to authorizing any private impoundment of any unauthorized vehicle on that lot, post and continuously maintain a sign of not less than twelve (12) inches by eighteen (18) inches having bold lettering stating that the parking lot is privately owned and unauthorized vehicles will be towed away at the owner's expense. The sign shall be placed in a conspicuous location at or near each entrance of the parking lot and easily visible to a motorist seated in an automobile. By January 1, 2000, all signs shall have a reflective border measuring at least ¼ inch in width around the entire circumference of the sign.

(3) The sign required by this section shall clearly indicate the following:

(a) The times a vehicle may be impounded as an unauthorized vehicle; and

(b) The name, telephone number, and address of the private impound tow truck service storage yard where the vehicle may be redeemed, or a telephone number of the private impound tow truck service or the owner or operator of the parking lot where such information could be obtained twenty-four (24) hours a day.

(Ord. No. 205-97, § 4, 10-16-97; Ord. No. 78-99, § 1, 4-15-99)

Sec. 14-88. Release of vehicle to owner or custodian prior to towing.

(1) If the owner or custodian of any vehicle not authorized to be parked in a private lot returns after a tow truck service has arrived but before the vehicle has been fully hooked up to the tow truck, it shall be unlawful for the tow truck service or operator to refuse to release the vehicle; however, if the vehicle has been physically raised to normal transport height by a tow truck that is capable of towing the vehicle to be impounded and properly registered to accommodate the weight of the impounded vehicle; and/or the vehicle is partially loaded onto a flat bed rollback truck, the tow truck operator may charge a fee not to exceed one-half (½) of the maximum towing fee posted at the storage yard before releasing the vehicle or discontinuing the towing process. For tow vehicles utilizing a wheel lift apparatus, merely having tow pans affixed to the tow truck and violator vehicle shall constitute a hook up and be considered legal for a drop fee.

(2) No tow truck operator shall request payment of the charge authorized by this section, or tow any vehicle thereafter if the charge is not paid, unless he shall first provide to the owner or custodian a copy of this section and a copy of the private impound cost schedule. The operator, upon receiving such payment shall pro-

vide to the owner or custodian a legible receipt containing the name of the towing service, the date and time and place of vehicle release, and the name of the tow truck operator. A copy of the receipt shall be retained by the towing service for a period of one (1) year and shall be made available for inspection by the division of police or the commissioner of public safety during normal business hours of the tow truck service.

(3) All drivers must carry current copies of the private impound cost schedule. A copy of the PICS shall be provided to the owner or custodian of a released vehicle. The name of the operator providing the private impound cost schedule shall be legibly written at the bottom of the PICS sheet.

(4) No additional fees, other than storage fees, may be assessed by the private impound tow truck service on a private impound, to include but not limited to: separating vehicles (truck and trailer) to be towed, the use of wheel dollies, caging of brakes, etc.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 194-2003, § 1, 7-10-03; Ord. No. 209-2003, § 1, 8-28-03; Ord. No. 10-2013, § 3, 1-31-13)

Sec. 14-89. Police to be notified of removal of vehicle.

Within two (2) hours of removal of any vehicle by a private impound tow truck service operator, the division of police reports desk shall be notified of such removal. That notification shall include the following information:

(1) The make, model, year and color of the vehicle towed;

(2) The license number and state of issuance of the license and, if known, the vehicle identification number;

(3) The time and location that the tow occurred;

(4) The location of the private impound tow truck service storage yard; and

(5) The telephone number which the owner should call to reclaim the vehicle.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 5, 10-16-97; Ord. No. 304-98, § 1, 10-29-98; Ord. No 139-2021, § 2, 12-7-21)

Sec. 14-89.1. Compliance with state code.

It is the responsibility of the private impound tow truck license holder to ensure that the private impound tow truck service is in compliance with KRS 376.275, Lien on motor vehicles for storage or towing charges — Attempt to notify registered owner.

(1) A copy of the letter sent in accordance with KRS 376.275 shall be retained in a file by the private impound tow truck service for a period of not less than one (1) year.

(2) The file required by subsection (1) of this section must be made available for inspection by the division of police or the commissioner of public safety during normal business hours.

(Ord. No. 10-2013, § 4, 1-31-13)

Sec. 14-90. Redemption of vehicles; receipt required; maximum towing charge and impoundment fees.

(1) Only the registered owner, the lessee, the vehicle's insurer, or a person authorized in writing by one (1) of the above persons, or a person who has purchased the vehicle from the registered owner who produces proof of ownership or written authorization and signs a receipt therefore, may redeem a privately impounded vehicle.

(a) A private impound tow truck service may request and retain a photocopy of the drivers license of the redeeming party.

(b) A private impound tow truck service may retain any written notice from an impounded vehicle's registered owner, lessee, or insurer providing permission for a third party to redeem the impounded vehicle. A photocopy of the written notice shall be provided to the person redeeming the vehicle.

(c) A private impound tow truck service shall not require photocopies of the impounded vehicle's title, registration, proof of sale or insurance card, to be retained by the private impound tow truck service, prior to release of the impounded vehicle.

(d) A private impound tow truck service shall not photocopy or retain a photocopy of any credit or debit card used to redeem an impounded vehicle; nor shall the tow operator require a social security number for the release of a vehicle.

(2) For each and every tow, a receipt bearing the identifying tow number must be given to each person who redeems a vehicle which has been towed by the private impound tow truck service upon release of the vehicle. The information on the receipt must be clearly legible and include the date and place of the tow, the license plate number and the state of issuance, the make, model and color of the vehicle, the private impound tow truck service operator's employee number or name, and the name of the private impound tow truck service said operator works for. The receipt must also list the amount of money paid for the release of the vehicle. Any receipt provided to the redeemer of the vehicle must be itemized so that the individual fees are clearly discernible. All receipts shall include a statement of the right to make a written complaint to the Division of Police Traffic Section, at 150 E. Main Street, Lexington, KY 40507. A copy of the receipt must be retained by the private impound tow truck service for a period of two (2) years and shall be made available for inspection upon written request to the division of police, commissioner of public safety, a law enforcement agency, the attorney general, a city attorney, county attorney, or the prosecuting attorney having jurisdiction in the location of any of the towing company's business locations, the disabled motor vehicle's owner or lienholder,

an agent of the disabled motor vehicle's owner or lienholder and any individual involved in the underlying collision, his or her respective insurance companies, or his or her legal representatives, if the disabled motor vehicle was involved in a collision.

(3) A private impound tow truck service shall file a private impoundment fee schedule with the department. Fees charged for private impoundment may not exceed those filed with the department. At least ten (10) days before the effective date of any change in a tow truck service's fee schedule, the registered service shall file the revised fee schedule with the department.

(4) Prior to attaching a motor vehicle to the tow truck, the towing company shall furnish the vehicle's owner or operator, if the owner or operator is present at the scene of the disabled vehicle and upon the owner's or operator's request, a rate sheet listing all rates for towing services, including but not limited to, all rates for towing and associated fees, cleanup, labor, storage, and any other services provided by the towing company. Any towing company or storage facility shall post a rate sheet at its place of business and shall make the rate sheet available upon a customer's request. Any charge in excess of the rate sheets provided under this subsection shall be deemed excessive.

(5) No fee shall be charged by a private impound tow truck service for the storage of a vehicle for the first twenty-four (24) hours from the time the vehicle arrived at the secure storage area. If the vehicle has not been redeemed by the end of that initial twenty-four-hour period, any fee charged by a private impound tow truck service for storage will then begin to accrue but must be calculated on a twenty-four-hour basis and must be charged to the nearest half day from the time the vehicle arrived at the secure storage area.

(6) The vehicle shall be released upon the presentation by a person authorized to redeem the vehicle pursuant to subsection (1) to any person having custody of the vehicle of commercially reasonable tender sufficient to cover the costs of drop fees, towing, storage, or other services requested by the vehicle owner or custodian during the course of towing, removing, impounding, or storing any such vehicle. Commercially reasonable tender shall include, without limitation, cash or major bank credit cards.

(7) In instances where major bank credit cards are used as tender for payment upon redemption of a vehicle, it shall be lawful for the tow operator to collect an additional five-dollar ($5.00) fee in order to cover service charges for processing by the major credit card issuing bank. This cost shall be specifically itemized on the customer receipt.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 6, 10-16-97; Ord. No. 194-2003, § 2, 7-10-03; Ord. No. 209-2003, § 2, 8-28-03; Ord. No. 10-2013, § 5, 1-31-13; Ord. No. 139-2021, §§ 3, 4, 12-7-21)

Sec. 14-91. Requirements for storage yard.

(1) Any storage yard receiving and privately impounding vehicles from private property located in Fayette County must also be located within the county.

(2) At the storage yard of each private impound tow truck service, there shall be a sign prominently displayed specifying tow and storage rates.

(3) A towing company or storage facility shall be open for business or accessible by telephone during posted business hours. A towing company or storage facility shall provide a telephone number available on a twenty-four (24) hour basis to receive calls and messages from callers, including calls made outside posted business hours. All calls made to a towing company or storage facility shall be returned within twenty-four (24) hours from the time received. However, if adverse weather, an emergency situation, or another act over which the towing company or storage facility has no control prevents the towing company or storage facility from returning calls within twenty-four (24) hours, the towing company or storage facility shall return all calls received as quickly as possible.

(4) Each private impound tow truck service storage yard shall provide reasonable security and protection for all vehicles towed, including illumination of the storage area during hours of darkness, an eight-foot chain link fence with a three-strand barbed wire cap enclosing the storage yard if an attendant or security guard is not on duty twenty-four (24) hours a day, seven (7) days a week.

(5) During the hours of darkness, the operator shall provide an area sufficiently illuminated to enable an owner to inspect a vehicle prior to removing it from the storage yard.

(6) It shall be unlawful to operate any private impound tow truck service storage yard or to deposit, impound or store any towed vehicle therein, unless said yard is in full compliance with the sign, security and lighting requirements of this section and with all applicable zoning regulations, licensing requirements and use permits, established by law.

(7) It shall also be unlawful for tow truck services to store privately impounded vehicles from counties other than Fayette County on their premises. (Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 7, 10-16-97; Ord. No. 194-2003, § 3, 7-10-03; Ord. No. 209-2003, § 3, 8-28-03; Ord. No. 10-2013, § 6, 1-31-13;

Ord. No. 139-2021, § 5, 12-7-21)

Sec. 14-92. Private impound tow truck service operator's log.

(1) Private impound tow truck service operators shall keep a current and accurate log and/or file (written or electronic) containing the following information on all vehicles towed: the identifying tow number; the make, model, year and vehicle identification number of the vehicle; its license number and state of issuance; the time, date and place of removal; the reason for removal; the name of the private impound tow truck service operator who made the tow; the date and time the vehicle arrived on the lot; the name and address of the person released to; the date and time of release; the name of employee releasing the vehicle; the total charges paid to include any additional charges made at the request of the vehicle owner or custodian; the method of payment; and the date and time police was notified of the tow. For each entry of tow, the signature of the owner of the private parking lot, or his representative, requesting and authorizing the tow shall be required. A letter of authorization in advance from the owner of the private parking lot or his representative shall be

sufficient to meet the latter requirement. Such log and/or file (written or electronic), along with all receipts pertaining to private impounds shall be retained for not less than one (1) year, and shall be immediately available for inspection by the division of police during normal business hours. Failure to keep and retain such a log and/or file, or omitting to make a true and complete entry for each vehicle towed, or failure to surrender such log and/or file to any police officer upon request shall be unlawful and may be cause for revoking a private impound tow truck service license.

(2) Private impound tow truck service operators must provide an opportunity for persons to file written complaints which must be answered in writing within one (1) week of receipt of the complaint. Such written response shall include a statement of the person's right to file a written complaint with the department. A file of such complaints, together with the written responses, must be made available for inspection by the division of police during normal business hours.

(3) If utilizing electronic logs, the private impound tow truck service shall provide these logs to the division of police, upon request, along with any necessary software to view these logs.

(4) All logs and files kept in compliance with this section must remain current and accurate.

(5) If another tow service is subcontracted to complete an impound of a vehicle over ten thousand one (10,001) pounds, the name and current phone number of the subcontracted tow service and the name of the operator from the subcontracted tow service, shall be listed in the private impound tow truck service operator's log of the contracting private impound tow truck service. The name of the subcontracted tow service, the name of the operator from the contracted tow service and a current phone number for the subcontracted tow service shall be listed on the customer receipt.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 8, 10-16-97; Ord. No. 194-2003, § 4, 7-10-03; Ord. No. 209-2003, § 4, 8-28-03; Ord. No. 10-2013, § 7, 1-31-13)

Sec. 14-93. Miscellaneous prohibited acts by private impound tow truck service or operator.

Except when acting as an agent in the legal repossession of a vehicle, it shall be unlawful for any private impound tow truck service or operator to:

(1) Rebate or pay money or any other valuable consideration to the owners or operators of the premises from which the vehicles are towed or removed, for the privilege of removing or towing those vehicles.

(2) Tow or otherwise move a vehicle from any area or portion of a public street, without either the consent of the owner or custodian of the vehicle or authorization from a police officer or other designated official of the county.

(3) Tow or otherwise move a vehicle from any private road, driveway or any other privately owned land or property, except when requested to do so by the owner or custodian of the vehicle or as authorized by the property owner or representative.

(4) Block the movement of any vehicle, other than when on the property of the tow truck service, to prevent the movement thereof by its owner or custodian who is occupying the vehicle or has appeared and desires to move the vehicle. However, if the private impound tow truck operator has fully hooked up and physically raised the vehicle to normal transport height in accordance with section 14-88, then this subsection shall not apply.

(5) Provide false information to any division of police personnel concerning any vehicle towed.

(6) Require the owner of any towed vehicle to wait for a period exceeding one (1) hour from the time of contact or attempted contact by the owner with the private impound tow truck service or operator for release of a vehicle. Any delay over one (1) hour caused by failure to monitor or respond to calls placed to the operator's designated telephone number shall constitute a violation of this section and may be cause for revoking a private impound tow truck service license.

(7) Move any vehicle to any intermediate place of storage, or to any location other than to the registered secure storage yard of a private impound tow truck service, unless specifically requested by the owner or custodian of said vehicle.

(8) Upon request by any owner or custodian of a currently licensed vehicle, deny or prevent access to said vehicle for the purpose of removing personal items, whether or not the owner or custodian is then able to reclaim the vehicle.

(9) Prohibit any person authorized to retrieve a vehicle pursuant to subsection 14-90(1) from redeeming such vehicle.

(10) Refuse to release a privately impounded vehicle to an authorized person upon demand and offer of reasonable tender, as set forth in subsection 14-90(7), sufficient to cover the costs of towing, and storage.

(11) Operate any vehicle that is being, or has been, impounded on a public roadway within Fayette County.

(12) No operator shall attempt to hook up to an occupied vehicle without first contacting the division of police or the property owner.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 205-97, § 9, 10-16-97; Ord. No. 304-98, § 2, 10-29-98; Ord. No. 124-2003, § 1, 5-29-03; Ord. No. 194-2003, § 5, 7-10-03; Ord. No. 209-2003, § 5, 8-28-03; Ord. No. 10-2013, § 8, 1-31-13)

Sec. 14-94. Registration and license requirements.

(1) A person shall not engage in or offer to engage in the activities of a private impound tow truck service without a current license from the department of public safety authorizing him to engage in such activities.

(2) Application for licensing as a registered private impound tow truck service shall be made on forms furnished by the department, shall be signed by the applicant or an agent, and shall include the following information:

(a) The name and address of the person, firm, partnership, association, or corporation under whose name the business is to be conducted;

(b) The names and addresses of all persons having an interest in the business, or if the owner is a corporation, the names and addresses of the officers of the corporation;

(c) The address of each storage location where vehicles may be stored;

(d) The address of the business location where the files of the private impound tow truck service operation are kept;

(e) A fee schedule which states the fee that is charged for towing services, the fee that is charged for the storage of a vehicle, and any other charges which may be incidental to a private impoundment;

(f) Name of current liability insurance carrier and policy number, of which any lapse in coverage shall be grounds for revocation of the license; and

(g) A list of all private property from which applicant is authorized to tow vehicles, such list to be kept current and up to date within ten (10) days of any change during the entire term of the license.

(3) A license issued under this section is not transferable.

(4) Concurrent with the submission of the license application, the applicant shall pay to the division of revenue a nonrefundable fee of one hundred dollars ($100.00). When the license is issued, the private impound tow truck operator shall pay to the division of revenue an annual license fee of two hundred dollars ($200.00), which fee is due and payable upon the issuance of a license and on or before January 1 of each year thereafter.

(5) Each license shall expire on December 31 of each year, unless earlier suspended or revoked. A license may be renewed by making a renewal application and payment of the annual license fee. Application for renewal should be made at least thirty (30) days prior to the expiration date.

(Ord. No. 205-97, § 10, 10-16-97; Ord. No. 194-2003, § 6, 7-10-03; Ord. No. 209-2003, § 6, 8-28-03)

Sec. 14-94.1. Suspension and revocation.

(1) Upon notice from the division of police of a violation of the private impound towing ordinance, the commissioner of public safety may suspend a private impound tow truck service license for a period not to exceed thirty (30) days if the commissioner determines that the applicant, owner, operator or an employee thereof has violated any provisions of sections 14-85 through 14-94.2 of the Code.

(2) The commissioner shall revoke or deny a private impound tow truck service license if the commissioner determines that:

(a) Cause for suspension under subsection (1) above occurs and the license has been suspended within the preceding twelve (12) months;

(b) An applicant gave false or misleading information in the license or renewal application;

(c) An applicant, owner, operator or employee has knowingly operated a private impound tow truck service during a period of time when the business's license was suspended; or

(d) An applicant's previous license was revoked within twelve (12) months of the application.

(Ord. No. 205-97, § 11, 10-16-97; Ord. No. 194-2003, § 7, 7-10-03; Ord. No. 209-2003, § 7, 8-28-03)

Sec. 14-94.2. Hearing for denial, suspension or revocation; appeal.

(1) If the commissioner determines that a violation has occurred or that grounds exist to deny, suspend, or revoke a private impound tow truck service license, he shall notify the applicant or licensee in writing of his intent to find a violation or to deny, suspend or revoke, including a summary of the grounds therefore. The notice shall be sent to the applicant or licensee by certified mail to the person and address specified in the application. Within ten (10) days of receipt of such notice, the applicant or licensee may request a hearing before the commissioner. If a request for a hearing is not timely received by the commissioner, the notice shall be a final administrative act of a finding of violation, denial, suspension or revocation. If a timely request for hearing is received by the commissioner, a hearing before the commissioner shall be conducted within thirty (30) days of the commissioner's receipt of the applicant's or licensee's request therefore, with written notice of the hearing date to be sent to the applicant or licensee at least twenty (20) days prior to the scheduled hearing. The commissioner shall render a written decision within ten (10) days after the completion of the hearing and shall serve the applicant or licensee with a copy of his or her decision by certified mail. The applicant or licensee may appeal a decision of the commissioner to the Fayette Circuit Court within thirty (30) days after receipt of the written notice of the decision.

(2) A private impound towing company whose license has been revoked may reapply no earlier than twelve (12) months after said revocation. If a license is issued, it shall be considered probationary for the first six (6) months and any finding of violation shall result in revocation.

(Ord. No. 205-97, § 12, 10-16-97; Ord. No. 194-2003, § 8, 7-10-03; Ord. No. 209-2003, § 8, 8-28-03)

Sec. 14-95. Violations.

(1) It shall be unlawful for any person to violate or refuse, fail or neglect to comply with any of the provisions of sections 14-85 through 14-95 concerning tow truck service operation.

(2) Any person or corporation or other entity violating any provision of sections 14-85 through 14-95 shall be fined not less than twenty dollars ($20.00) nor more than five hundred dollars ($500.00), and each day's continuance of any such violation shall be a separate offense for which a fine not less than twenty dollars ($20.00) nor more than five hundred dollars ($500.00), shall be imposed.

(Ord. No. 84-93, § 1, 5-6-93; Ord. No. 244-95, § 1, 11-2-95; Ord. No. 205-97, § 13, 10-16-97)

Sec. 14-96. Lexington Area Party Plan.

(a) For the purposes of this section, which shall be known as the "Lexington Area Party Plan" the following definitions shall apply:

Disturbance complaint means a complaint that is based upon a violation of sections 14-70 through 14-80, or other unlawful activity that may take place at a party or social gathering, including but not limited to disorderly conduct, the possession of alcohol by minors, or the use or possession of illegal substances.

Disturbance problem means that a dwelling unit or residence has generated at least two (2) enforcement actions where citations were issued or arrests made within a one-year period. In the event that all citations issued and arrests made pursuant to a particular enforcement action are successfully appealed, that enforcement action shall not be utilized as a basis to determine that a property is a disturbance problem.

Dwelling unit shall have the same meaning as provided in section 14-70.

Enforcement action means that the division of police, upon responding to a disturbance complaint and substantiating that unlawful activity is occurring, takes action to shut down the unlawful activity and issue any citation(s) or make any arrest(s), as appropriate.

No party property means a dwelling unit or residence that has been identified and certified by the division of police as being a disturbance problem.

(b) The division of police shall keep accurate and sufficient records such that it is able to readily ascertain the number of disturbance complaints associated with any dwelling unit or residence located within Fayette County, any action taken by the division of police in response to said complaints and the final disposition of such action.

(c) Upon determining that a dwelling unit or residence is a disturbance problem, the division of police shall immediately certify that property as being a "no party property". A "no party property" certification shall be in effect for a period of one (1) year from the date of the initial certification. If, during this one-year period, another disturbance complaint is received by the division of police and the division of police takes enforcement action in response to said complaint, the certification shall automatically be extended to run for a period of one (1) year from the date of the latest disturbance complaint unless all citations issued and arrests made pursuant to the latest enforcement action are successfully appealed.

(d) Upon certifying a dwelling unit or residence as a "no party property", the division of police shall notify the property owner and occupant(s) by:

(1) Providing a notice of such certification, along with a copy of the provisions of this section, via personal service or by certified or registered mail, to the street address listed for said property;

(2) In the event that the property is not owner-occupied, also providing a notice of such certification, along with a copy of the provisions of this section, via personal service or by certified or registered mail to the last-known address of the owner of the property as it appears on the current tax assessment rolls; and

(3) Providing with such notification a sticker or similar document to be displayed in a prominent place within the premises during the period of time that the premises is certified for the purpose of placing persons on notice that the property has been so certified. This additional notification shall include the term "no party property" and shall list a point of contact telephone number for any questions that may arise with respect to the certification.

(e) Any occupant of a dwelling unit or residence that has been certified as a "no party property" by the division of police who allows unlawful activity at that property which results in a disturbance complaint leading to an enforcement action shall be in violation of this section.

(f) In the event that a disturbance complaint is received by the division of police during the period of time that a dwelling or residence is certified as a "no party property", the division of police shall, upon substantiating that a violation is occurring, take immediate enforcement action, including the issuance of any and all appropriate citations for violation of this section.

(g) The property owner or occupant of a dwelling unit or residence certified as a "no party property" may petition the commissioner of public safety at any time to have the certification removed. Upon a sufficient showing that the basis for the problem has been adequately addressed and that the property is not likely to be a disturbance problem in the future, the commissioner of public safety shall remove the "no party property" certification.

(h) Nothing contained in this section shall be construed to permit conduct prohibited by any other statutes, ordinance, or regulation, or to prohibit the enforcement thereof.

(i) Any person who violates subsection (e) this section shall be punished by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00). Any person found guilty of a second offense of this section which occurred within twelve (12) months of the first offense shall be subject to a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), and any person found guilty of a third offense of this section which occurred within twelve (12) months of the first and second offenses shall be subject to a fine of not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00).

(Ord. No. 315-2001, § 1, 12-13-01)

Sec. 14-97. Regulation of smoking indoors—Definitions.

For the purpose of Sections 14-97 to 14-104, the following definitions shall apply unless the context clearly indicates or requires a different meaning:

Building. Any structure whose floor area is enclosed overhead by a roof or other covering of any material, whether permanent or temporary, and has forty (40) percent or more of its perimeter permanently or temporarily enclosed by walls, windows, doors, or other coverings of any material. Any structure whose floor area is enclosed overhead by a roof or other covering of any material, whether permanent or temporary, that has forty (40) percent or more

of the perimeter temporarily enclosed by walls, windows, doors or other coverings of any materials shall not be subject to the definition of a building when the temporary walls, windows, doors or other coverings are not in place.

Dwelling. Any building used primarily for sleeping overnight and conducting activities of daily living, including, without limitation, a single or multi-family residential housing unit, a hotel or motel room or suite or a hospital, hospice or nursing home room.

[Electronic Smoking Device.] Electronic Smoking Device means any product containing or delivering nicotine or any other substance intended for human consumption that can be used by a person to simulate smoking through inhalation of aerosol from the product. The term includes any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, e-hookah, or vapor pen, or under any other product name or descriptor.

Establishment. Any business or other entity operating or otherwise located in a building or portion thereof, and open to public, including but not limited to banks, laundromats, retail stores, professional offices, restaurants, bars, gaming facilities such as bingo halls, pool halls, bowling alleys, child day care facilities, and adult day care facilities, among others.

Open to the public. Buildings, portions thereof, or establishments therein, are "open to the public" when their physical nature, function, custom, usage, or notice would cause a reasonable person to believe no invitation or permission to enter is required.

Private organization. An organization which is the owner, lessee, or occupant of a building, that is not open to the public. The building will be used exclusively for the organization's or a member's purposes at all times. The organization must maintain selective members, and be operated by the membership. The organization neither provides food, drink, nor lodging for pay to anyone who is not a member or a member's guest, nor permits others to provide food, drink, or lodging for pay to anyone who is not a member or a member's guest. The organization has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. § 501.

Retail electronic cigarette store. A retail store devoted primarily to the sale of any electronic smoking device, including but not limited to e-cigarettes, e-cigars, e-pipes, e-hookah, or vapor pen, or under any other product name or descriptor and accessories, and in which the sale of other products is incidental. The sale of other such products shall be incidental if the sales generate less than twenty-five (25) percent of the total annual gross sales.

Retail tobacco store. A retail store devoted primarily to the sale of any tobacco product, including but not limited to cigarettes, cigars, pipe tobacco and chewing tobacco, and accessories and in which the sale of other products is incidental. The sale of such other products shall be considered incidental if such sales generate less than twenty-five (25) percent of the total annual gross sales.

Smoke or smoking. The act of inhaling or exhaling from, or the burning, heating or carrying of, any lighted or heated cigarette, cigar, pipe, other combustible tobacco product, or electronic smoking device or any oral smoking device including but not limited to an E-Cigarette or E-Cig.

Workplace. Any building or portion thereof in which an establishment is located, including, but not limited to, work areas, private offices, lounges, restrooms, conference rooms, meeting rooms, classrooms, cafeterias, and hallways.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 2, 11-6-08; Ord. No. 136-2014, § 2, 11-13-14; Ord. No. 54-2015, § 1, 5-7-15)

Sec. 14-98. Same—Prohibition; exceptions.

(1) No person shall smoke within any building or any establishment therein, that is open to the public, or any workplace. No person shall smoke within any public transportation vehicle, including buses and taxicabs, nor within any ticket, boarding and waiting area of public transportation buildings enclosed overhead by a roof. The prohibition does not apply to the following locations, provided that smoke does not infiltrate into areas where smoking is prohibited under the provisions of sections 14-97 to 14-104:

   (a) **Any dwelling.** This exception also extends to a business located in the dwelling and owned or leased by the occupant living in the dwelling; provided, however, that the business is not operating as a child care, adult day care, or health care facility. This exception does not extend to a lobby, common elevator, common hallway, or any other common area of a building containing attached dwelling units or hotel or motel rooms. If a hospital, hospice, or nursing home permits smoking in its dwelling rooms, smoking is not allowed in any room shared with another person without that person's consent.

   (b) A rental room or hall being used by a person or group for a private social function that is not open to the public.

   (c) Any room used for psychological treatment of nicotine addiction by a licensed health care professional, or in a physically separate and independently ventilated room in a hospital, hospice, or nursing home open to all residents as a smoking room and for no other purpose.

   (d) A retail tobacco store, to the extent no electronic smoking device shall be smoked inside the store.

   (e) A theatrical production by a performer as part of the performance so long as adequate notice is provided patrons both before the performance and by specific signage at the theater.

   (f) A building operated or used by a private organization, provided that the building is not open to the public.

   (g) A retail electronic cigarette store, to the extent no tobacco product shall be smoked inside the store.

(2) Nothing in this chapter shall prevent an owner, lessee, principal manager or person in control of any building or establishment therein, or any other place, including, without limitation, any motor vehicle, outdoor area, or dwelling, from prohibiting smoking completely in any such place.

(3) Nothing in this chapter shall authorize smoking in any place where it is otherwise prohibited by statute, ordinance, regulation or by order of the fire marshal.

(4) All buildings or vehicles owned, leased, operated by or under the jurisdiction of the Lexington-Fayette Urban County Government or any unit thereof shall be subject to the provisions of sections 14-97 to 14-104 unless the Lexington-Fayette Urban County Government Council adopts a written policy pursuant to KRS 61.165(3) (a) or (b), in which event the written policy shall apply to the extent KRS 61.165(3) is controlling.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 3, 11-6-08; Ord. No. 54-2015, § 1, 5-7-15 ; Ord. No. 60-2015, § 1, 6-11-15)

Sec. 14-99. Same—Responsibilities of owners, lessees, principal managers or other persons in control of establishments.

(1) An owner, lessee or their assignee in control of a building, an establishment therein or a workplace shall post signs, with letters of not less than one (1) inch high or symbols no less than three (3) inches high, using the words "No Smoking" or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) conspicuously either on all public entrances or in a position clearly visible on entry into the building or establishment therein.

(2) The owner, lessee, manager, person in control or employee of any building, establishment therein or workplace shall inform persons violating sections 14-97 to 14-104 of the applicable provisions thereof and require compliance.

(3) All ashtrays that are intended to be used on the premises of an establishment for the collection of ashes, butts, or other residue from smoking shall be removed from any area where smoking is prohibited by sections 14-97 to 14-104 and shall not be permitted by the owner, operator, manager or other person having control of the establishment. Any permanent structure that functioned or was used as an ashtray shall be disabled or altered to prevent its use as an ashtray.

(4) The requirements of this section do not apply to any exempt building, establishment therein, private organization, or workplace as set forth in section 14-98.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 4, 11-6-08)

Sec. 14-100. Same—Owners, lessees, principal managers, etc., to ensure compliance with chapter.

(1) An owner, lessee, principal manager, or person in control of a building, any establishment therein or workplace shall:

   (a) Ask a person who is smoking to refrain from smoking and to extinguish any smoking materials.

   (b) Demand that a person who is smoking leave the premises if the person refuses to refrain from smoking or refuses to extinguish any smoking materials after being asked to do so.

   (c) Refuse service to a person who is smoking.

(d) Take necessary steps and use any other legal means which may be appropriate to stop a person from smoking and further the intent of sections 14-97 to 14-104.

(2) No owner, lessee, principal manager, proprietor, employer, or any other person in control of a building, establishment therein or workplace shall fail to ensure compliance by subordinates, employees, and agents with sections 14-97 to 14-104.

(3) The requirements of this section do not apply to any exempt building, establishment therein, private organization, or workplace as set forth in section 14-98.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 5, 11-6-08)

Sec. 14-101. Same—Enforcement.

Enforcement of sections 14-97 to 14-104 shall be by citation issued by the Lexington-Fayette Urban County Health Department. Notice of the provisions of the chapter shall be given by the Lexington-Fayette Urban County Government to all applicants for a business or other license. The Lexington-Fayette Urban County Health Department shall enforce the provisions of this subchapter through the issuance of citations, and, for this purpose, during times when employees are scheduled to work, may enter those portions of the building, establishment or workplace where employees perform their duties or take breaks, including, but not limited to, those areas where food and beverages, alcoholic or otherwise, are served, prepared or stored. Nothing herein shall be construed to prevent a citation officer of the Lexington-Fayette Urban County Health Department from issuing a citation for a violation of any provisions of sections 14-97 to 14-104 committed in his or her presence.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 6, 11-6-08)

Sec. 14-102. Same—Violations; penalties.

(1) Any person who violates any provision of sections 14-97 to 14-104, including a person who smokes in an area where smoking is prohibited, shall be subject to the following penalties:

(a) A fine of one hundred dollars ($100.00) for the first offense;

(b) A fine of two hundred fifty dollars ($250.00) for the second offense, within one (1) year;

(c) A fine of five hundred dollars ($500.00) for the third and each subsequent offense, within one (1) year.

(d) Persons who smoke in an area where smoking is prohibited and who refuse to extinguish their smoking material when asked may be required to leave the premises, and shall be subject to prosecution for trespass if they do not leave when asked.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 7, 11-6-08)

Sec. 14-103. Same—Smoking near building entrances, etc.

Smoking is prohibited within a reasonable distance from the outside entrance to any building so as to ensure that tobacco smoke does not enter the building through entrances, windows, ventilation systems, or other means.

(Ord. No. 171-2003, § 2, 7-1-03)

Sec. 14-104. Same—Discrimination prohibited.

No person or employer shall discharge, refuse to hire, or in any manner retaliate against an employee, applicant for employment, or customer because that employee, applicant, or customer exercises any rights afforded by sections 14-97 to 14-104. Any person aggrieved by a violation of section 14-104 may apply for injunctive or other legal relief in any court of competent jurisdiction.

(Ord. No. 171-2003, § 2, 7-1-03; Ord. No. 247-2008, § 8, 11-6-08)

Sec. 14-105. Littering.

(a) **Definitions.** For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

Board. The environmental hearing board created pursuant to section 16-76 of the Code.

Citation officer. A peace officer or other person authorized by state law or ordinance to issue a citation for a violation of KRS 512.070 or a citation officer identified in subsection 14-10(f)(4) or subsection 14-10(f)(9) of the Code.

Littering. The offense of littering as defined by KRS 512.070.

(b) **Civil enforcement of littering violations.** Pursuant to KRS 512.070(4), the urban county council hereby classifies the offense of littering proscribed by KRS 512.070 as a civil offense enforceable in accordance with KRS 65.8808 and the provisions of this section of the Code. Such civil enforcement is in addition to other remedies that may be available at law, including criminal prosecution under KRS 512.070.

(c) **Code enforcement board.** The environmental hearing board or its assigned hearing officer shall have the authority to determine whether there has been a littering violation.

(d) **Enforcement.** Proceedings before the environmental hearing board or its assigned hearing officer to determine whether there has been a littering violation shall be initiated by the issuance of a civil citation by a citation officer. The civil enforcement process and the issuance of citations, administrative hearings, and appeals shall be as provided in Chapter 2B of the Code of Ordinances. The issuance of a citation must be based upon the citation officer having reasonable cause to believe that a person committed a littering violation based upon personal observation or investigation, and the officer may, in his or her discretion, issue a warning or notice of violation in lieu of a citation if the person immediately remedies the violation.

(e) **Civil penalty.** A person found to have committed a littering violation proscribed by KRS 512.070(1) and enforced pursuant to KRS 512.070(4) and this section shall be subject to the following civil fines:

First Violation	$100.00
Second Violation	250.00
Third or Subsequent Violation	500.00

(1) **Time period for subsequent violations.** If a person commits a second, third, or subsequent littering violation within a twenty-four-month period, he or she shall pay the appropriate civil fine stated herein. A violation occurring more than twenty-four (24) months after a previous violation shall be treated as a first violation for the purpose of determining the appropriate civil fine.

(2) **Designated uses.** Civil fines collected pursuant to this section shall be designated for those divisions or agencies charged with enforcement of the littering ordinance.

(f) **Costs of enforcement; liens; personal liability.** The urban county government shall be entitled to all civil fines imposed and all charges and fees incurred by the local government in enforcing this section. The urban county government shall be entitled to enforce this section against persons found to have committed a violation of this section by resort to all remedies described in section 2B-9 of the Code, including a lien on property owned by the person and/or a civil action against the person responsible for the violation for all civil fines, fees, charges, and costs of enforcement. All amounts collected by the urban county government in the enforcement of this section shall be designated as provided in subsection (e)(2).

(Ord. No. 146-2012, § 1, 11-15-12; Ord. No. 56-2017, §§ 3—5, 4-27-17; Ord. No. 101-2020, § 2, 10-22-20)

Sec. 14-106. Unsolicited written materials.

(a) **Definitions.** For the purpose of this section, the following definitions shall apply unless the context clearly indicates or requires a different meaning.

Citation officer. A person authorized by state law or local ordinance to issue a citation for a violation of this section.

Front door. The street-facing entrance(s) to a principal structure. In the event no door faces the street, then any other door of a principal structure nearest the street shall be considered a front door for purposes of this section.

Porch. An exterior appendage to a principal structure leading to a doorway, including any stairway attached thereto.

Premises. A lot, plot, or parcel of land including any structures, driveways, or other impervious surfaces thereon.

Principal structure. A structure, or combination of structures of primary importance on the premises, and that contains the primary use associated with the premises. The primary use is characterized by identifying the main activity taking place on the premises.

Unsolicited written materials. Any written materials delivered to any premises without the express invitation or permission, in writing or otherwise, by the owner, occupant, or lessee of such premises.

(b) **Placement of unsolicited written materials.** Unsolicited written materials delivered to premises shall be placed:

(1) On a porch, if one exists, nearest the front door; or

(2) So that such materials are securely attached to the front door; or

(3) Through a mail slot on the front door or principal structure, if one exists, as permitted by the United States Postal Service Domestic Mail Manual, Section 508 Recipient Services, Subsection 3.1.2; or

(4) Between the exterior front door, if one exists and is unlocked, and the interior front door; or

(5) Where permitted, in a distribution box located on or adjacent to the premises; or

(6) Personally with the owner, occupant, and/or lessee of the premises.

(c) Notwithstanding subsection (b) above, an owner, lessee, or occupant maintains the right to restrict entry to his or her premises.

(d) Unsolicited written materials placed at a premises create a rebuttable presumption that the materials were placed at the premises by the owner, agent, manager, and/or authorized distributor of the business, product, good, service, message, or idea, which is being advertised, promoted, endorsed, or conveyed in such materials.

(e) The provisions of this section do not apply to the United States Postal Service.

(f) Any placement of unsolicited written materials in areas on or adjacent to a premises other than as set forth in subsection (b) of this section shall be a violation of this section, classified as a civil offense, and may be enforced by issuance of a civil citation by a citation officer, consistent with chapter 2B of the Code, or as it may be amended.

(g) **Civil penalty.** The civil penalty for each violation of this section shall be a maximum of two hundred dollars ($200.00) per violation.

(h) **Code enforcement board.** The administrative hearing board established in section 12-6 of the Code of Ordinances shall be the code enforcement board having authority to determine whether there has been a violation of this section. Administrative review of citations shall adhere to those procedures set forth in chapter 2B of the Code through the use of assigned hearing officer(s).

(i) **Severability.** If any provision, clause, sentence, or paragraph of this section or the application thereof to any person or circumstances shall be held invalid, that invalidation shall not affect the other provisions of this section which can be given effect without the invalid provision or application, and to this end, the provisions of this section are declared to be severable.

(Ord. No. 25-2017, § 2, 3-2-17)

Sec. 14-107. Sexual orientation or gender identity change efforts prohibited—Purpose; findings.

(1) **Purpose.** Sections 14-107 to 14-112 is an exercise of the Urban County's police power for public safety, health and welfare; and its provisions shall be liberally construed to accomplish this purpose.

(2) **Findings and Intent.** Medical and mental health experts have denounced efforts to change sexual orientation and gender identity as ineffective and unsafe for people, especially minors. These efforts are based on the discredited premise that being non-heterosexual is a mental disorder that can be corrected or cured. It is the intent of the Urban County Council that these unethical conversion practices that correlate with serious and dangerous harm to the health and wellbeing of minors be prohibited. Therefore, the Urban County Council finds and declares that a compelling and important interest exists in protecting the physical and psychological well-being of minors from efforts to change sexual orientation and gender identity within the municipality through the professional conduct of licensed providers, and no other less intrusive means of protecting minors from the harms associated with conversion therapy would be effective in furthering the Urban County's interest.

(Ord. No. 32-2021, § 1, 5-6-21)

Sec. 14-108. Same—Definitions.

For purposes of Sections 14-107 to 14-112, the following definitions shall apply:

Minor. Any person less than eighteen (18) years of age.

Provider. Any person licensed, certified, or registered with the state to provide professional counseling including, but not limited to, behavior analysts; licensed professional counselors; marital and family therapists or associates; physicians or assistants; osteopaths or assistants; registered or practical nurses or assistive personnel, certified nurse aides; physical or occupational therapists or assistants; psychologists or psychological associates; social workers or associates; licensed professional conservators or guardians; naturopaths; or any other person who performs counseling as part of the person's professional training.

Public Funds. Any money, regardless of the original source of the money, of the Lexington-Fayette Urban County Government, and any department, agency or instrumentality thereof.

Sexual Orientation or Gender Identity Change Efforts or "Conversion Therapy. "Any counseling, practice, or treatment that seek to change a person's sexual orientation or gender identity, including, but not limited to, efforts to change behaviors or gender expression, or reduce or eliminate sexual or romantic attraction or feelings

toward a person of the same gender. The definition encompasses the terms "reparative therapy," "aversion therapy," and "reorientation therapy." Sexual orientation or gender identity change efforts do not include counseling that does not seek to change sexual orientation or gender identity and that:

(a) Assists a person undergoing gender transition;

(b) Provides acceptance, support, and understanding to the person; or

(c) Facilitates a person's coping, social support, identity exploration, and development, including sexual orientation and gender identity neutral interventions to prevent or address unlawful conduct or unsafe sexual practices.

(Ord. No. 32-2021, § 2, 5-6-21)

Sec. 14-109. Same—Prohibitions.

(1) It is unlawful for any provider to provide, apply, or use sexual orientation or gender identity change efforts or conversion therapy with a minor through a provider's professional conduct; and

(2) Public funds shall not be directly or indirectly used, granted, paid, or distributed to any Provider who provides conversion therapy to a minor. (Ord. No. 32-2021, § 3, 5-6-21)

Sec. 14-110. Same—Enforcement.

The Lexington-Fayette Urban County Human Rights Commission shall enforce the provisions of Sections 14-107 to 14-112 pursuant to Article II of Chapter 2 of the Code.

(Ord. No. 32-2021, § 4, 5-6-21)

Sec. 14-111. Same—Complaint procedure.

(1) Any person or persons claiming to be aggrieved by a violation of Sections 14-107 to 14-111, or a member of the Lexington-Fayette Urban County Human Rights Commission, may file a verified complaint to the Lexington-Fayette Urban County Human Rights Commission pursuant to Section 2-32 of the Code.

(2) The procedures contained in Section 2-32(2) of the Code shall apply to complaints filed under this section.

(Ord. No. 32-2021, § 5, 5-6-21)

Sec. 14-112. Same—Appeals.

An appeal from any final order issued by the Commission may be made to the Fayette Circuit Court within thirty (30) days of the date the order is issued, with service made upon the Commission. Within thirty (30) days of the

notice of filing an appeal in Fayette Circuit Court, the Commission shall cause to be certified and deliver to the Clerk of the Fayette Circuit Court, the entire records of the proceedings before the Commission, including the transcript or other reproduction of the hearing.

(Ord. No. 32-2021, § 6, 5-6-21)

Chapter 15

Peddlers and Solicitors[1]

Section 15-1. Stopping on street, maximum time.

Section 15-1.1. Sale of goods in Lexington Center area.

Section 15-1.2. Sale of food or goods in festival areas.

Section 15-1.3. Reserved.

Section 15-2. Photographers—Definitions.

Section 15-3. Same—Permit required.

Section 15-4. Same—Issuance of permit, bond, identification card, duration of permit.

Section 15-5. Same—Delivering copy of order.

Section 15-6. Same—Violation, penalty.

Section 15-7. Peddlers license required.

Section 15-8. Itinerant merchants license required.

Section 15-9. Penalty for violation of sections 15-7, 15-8.

Section 15-10. Model/talent businesses—Definitions.

Section 15-10.1. Same—Fees.

Section 15-10.2. Same—Licensure requirements.

Section 15-10.3. Same—Application.

Section 15-10.4. Same—Renewal of license.

Section 15-10.5. Same—Display of license; consumer complaint.

Section 15-10.6. Same—Exemptions.

Section 15-10.7. Same—Responsibilities of the licensee.

1. **Cross reference(s)**—License, § 13-13.
State law reference(s)—Transient merchants, KRS 365.650 et seq.

Section 15-10.8. Same—Promulgation of regulations.

Section 15-10.9. Same—Business review board.

Section 15-10.10. Same—Injunctive relief; penalties.

Section 15-11. Mobile food unit vendors—Definition. Sec. 15-11.1. Same—Definition.

Section 15-11.2. Same—Subject to applicable ordinances and regulations.

Section 15-11.3. Same—Exceptions licensing and regulatory requirements.

Section 15-11.4. Same—Issuance of permit or license.

Section 15-11.5. Regulation of mobile food unit vendors.

Section 15-11.6. Penalty.

Section 15-12. Requirements—Peddlers and itinerant merchants.

Section 15-13. Exceptions.

Section 15-14. Penalty.

Sec. 15-1. Stopping on street, maximum time.

(a) It shall be unlawful for any peddler or vendor of fruit, candy, food products or other article of merchandise to stop in any place on the streets, sidewalks or alleys of the urban county for a period of time longer than it may be necessary for him to wait on any person stopping him.

(b) Any peddler or vendor of fruit, candy, food products or other articles of merchandise who shall stop for a period of time longer than it may be necessary to wait on a customer, may be forthwith arrested or cited and for each violation of this section shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00).

(Ord. No. 121-2010, § 1, 7-1-10)

Sec. 15-1.1. Sale of goods in Lexington Center area.

(1) Lexington Center area, as used in this section, shall mean all of the public right-of-way, including the sidewalks, located within the following geographic boundaries: Broadway between Main Street and Maxwell Street, Maxwell Street between Broadway and Merino Street, Merino Street between Maxwell Street and High Street, High Street between Merino Street and Jefferson Street, Jefferson Street between High Street and Main Street, and Main Street between Jefferson Street and Broadway.

(2) It shall be unlawful for any person to sell, or offer for sale, food or goods while in the Lexington Center area, at any time during the two (2) hours preceding a ticketed Rupp Arena event or during the one (1) hour following a ticketed Rupp Arena event. Goods shall include tickets to any event taking place in Rupp Arena.

(3) Any peddler who shall sell or offer for sale food or goods in violation of this section shall be fined not to exceed two hundred fifty dollars ($250.00) or be imprisoned for a period not to exceed seven (7) days, or be both so fined and so imprisoned.

(Ord. No. 198-83, § 1, 10-20-83; Ord. No. 213-2002, §§ 1, 2, 8-29-02; Ord. No. 8-2006, § 1, 1-12-06)

Sec. 15-1.2. Sale of food or goods in festival areas.

(1) Festival area, as used in this section, shall mean all of the public right-of-way, including the sidewalks, of any area designated by the office of the mayor to be the site of a festival or special event duly established as such by the office of the mayor.

(2) It shall be unlawful for any vendor or peddler to sell or offer for sale food or goods in a festival area, at any time during the festival, without securing a permit therefor from the festival or special event organizer.

(3) Any vendor or peddler who shall sell or offer for sale food or goods, in violation of this section shall be fined not to exceed two hundred fifty dollars ($250.00) or be imprisoned for a period not to exceed seven (7) days, or be both so fined and so imprisoned.

(Ord. No. 121-88, § 1, 6-2-88; Ord. No.080-2024, § 3, 7-9-24)

Sec. 15-1.3. Reserved.

Editor's note(s)—This § 15-1.3 expired at 12:00 a.m. midnight on October 11, 2010, and was not earlier modified, amended or repealed. Former § 15-1.3 pertained to clean zone for the 2010 World Equestrian Games and derived from Ord. No. 110-2009, §§ 1—9, adopted June 25, 2009; Ord. No. 45-2010, § 1, adopted Mar. 11, 2010.

Sec. 15-2. Photographers—Definitions.

As used in sections 15-3 through 15-6 the terms "canvasser" and "solicitor" shall be deemed to mean and include any person who goes from house to house or from place to place selling or taking orders for or offering to sell or take orders for photographs, pictures or enlargements for future delivery, or sells or offers for sale any coupons or other tokens as evidence of payment or part payment on any photographs, pictures or enlargements.

Sec. 15-3. Same—Permit required.

It shall be unlawful for any person to engage in the canvassing or soliciting of photographs, pictures, enlargements or any photographic work, or the sale or offering for sale of any coupons or other tokens representing the purchase price or part purchase price of any photographs, pictures or enlargement, or the transaction of any business in connection therewith within the urban county without having first obtained a permit so to do as provided herein and otherwise complying with the terms and conditions of this chapter.

Sec. 15-4. Same—Issuance of permit, bond, identification card, duration of permit.

(a) Any person desiring to engage in the business of photography as a solicitor or canvasser thereof within the urban county shall first make application in writing to the commissioner of finance through the division of revenue, which application shall be filed with the commissioner of finance at least seven (7) days before the applicant shall be authorized to begin business. Such application shall have attached thereto two (2) pictures or photographs of the applicant and shall state the name and residence of the applicant, the place where business to be conducted, the kind and type of photographs or enlargements for which orders are to be taken and the length of time for which such canvasser or solicitor desires to do business in the urban county.

(b) No permit shall be issued until there is deposited with the commissioner of finance bond in the penal sum of one thousand dollars ($1,000.00) executed by a responsible surety company, such bond to be approved by the commissioner of finance, or in lieu thereof cash bond of equal amount, such bond to be conditioned that all photographs, pictures or enlargements taken, or for which orders are taken, shall be as represented by such canvasser or solicitor, and that he will refund any money or purchase price paid on such work in the event same is not as represented, and to indemnify and reimburse any person dealing with the applicant in a sum equal to at least the amount of payment that the purchaser may have been induced to make through any misrepresentation as to the kind and character of photograph or enlargement work.

(c) Any person so misled or aggrieved by any permit holder shall have the right of action on the bond for the recovery of the amount of his or her payment, damage suffered, or both. In the event a cash bond is deposited, the same shall be retained by the commissioner of finance for a period of one hundred eight (108) days after the expiration of the permit herein issued.

(d) Each solicitor and canvasser shall carry a card bearing his picture, his name, address and the place where his business is conducted.

(e) When any applicant has met all of the requirements of this section, unless otherwise disqualified, a permit shall be issued permitting applicant to engage in business as a canvasser or solicitor of photographs; however, no permit shall be valid except for the year in which it is issued.

Sec. 15-5. Same—Delivering copy of order.

All orders taken by any permit holder under sections15-3 and 15-4 shall be in writing and in duplicate stating fully the terms thereof together with the amount paid in advance and the balance remaining due on such order, and one (1) copy of such order shall be delivered to the purchaser at the time such order is taken.

Sec. 15-6. Same—Violation, penalty.

Any person who shall violate any of the terms of sections15-2 through 15-5 shall be guilty of a misdemeanor and upon conviction shall be fined not less than one dollar ($1.00) nor more than one hundred dollars ($100.00), and each day of violation shall be deemed a separate offense.

Sec. 15-7. Peddlers license required.

(1) Effective May 19, 1983, all peddlers shall be required to secure the license established in section 13-13 by making application for the same to the division of revenue.

(2) Further, before the division of revenue shall issue a peddler license, the peddler must file or have on file with the commissioner of finance an approved indemnity bond in the amount of five hundred dollars ($500.00) issued by a surety company authorized to transact business within the commonwealth, or post a cash bond in that amount. The term of the bond shall be for one (1) year or until an approved occupational license tax return is filed with the division of revenue, whichever is later. A peddler shall forfeit his bond to the urban county government if he fails to comply with chapter 13 or 15 of the Code of Ordinances. Only one (1) bond shall be required for each peddler per year.

(3) Upon approval of an application for a peddler license and payment of the applicable fee, the division of revenue shall issue a badge or other certificate of licensure specifying the name of the licensee, which shall be worn in plain view at all times by the licensee. The peddler license shall not be transferable; and, accordingly, no licensed individual shall sell his business to an unlicensed individual.

(Ord. No. 70-83, § 4, 5-5-83)

Sec. 15-8. Itinerant merchants license required.

(1) Effective May 19, 1983, all itinerant merchants shall be required to secure the license established in section 13-13 by making application for the same to the division of revenue. As a part of the application process, the applicant must specify in writing the exact location where the business is to be conducted, present a valid certificate of occupancy from the division of building inspection for that location, and furnish a duly executed statement of permission to use that location from the property owner or his authorized agent.

(2) Further, before the division of revenue shall issue an itinerant merchant license, the itinerant merchant must file or have on file with the commissioner of finance an approved indemnity bond in the amount of five hundred dollars ($500.00) issued by a surety company authorized to transact business within the commonwealth, or post a cash bond in that amount. The term of the bond shall be for one (1) year or until an approved occupational license tax return is filed with the division of revenue, whichever is later. An itinerant merchant shall forfeit his bond to the urban county government if he fails to comply with chapter 13 or 15 of the Code of Ordinances. Only one (1) bond shall be required for each itinerant merchant per year, regardless of the number of locations for which licensed to do business.

(3) Upon approval of an application for an itinerant merchant license and payment of the applicable fee, the division of revenue shall issue a certificate of licensure specifying the name of the licensee and the exact location at which he is licensed to do business. The itinerant merchant license shall not be transferable; and, accordingly, no licensed individual shall sell his business to an unlicensed individual. Said license shall only be valid for the location for which it was issued, and the certificate of licensure shall be posted in a prominent place at that location at all times.

(4) Notwithstanding the provisions of section 13-5, if a licensed itinerant merchant desires during the license period to change the location at which he is licensed to do business, he must secure a new certificate of licensure from the division of revenue. Prior to issuing said certificate, the division shall require the itinerant merchant to specify his new location, present a new certificate of occupancy and a new statement of permission, remit a nonrefundable fifteen dollars ($15.00) administrative fee, and return the previous certificate of licensure. In any case where the previous certificate of licensure is not returned, the itinerant shall be treated as a new applicant and, accordingly, be required to pay the full applicable license fee.

(Ord. No. 70-83, § 4, 5-5-83; Ord. No. 102-85, § 10, 5-30-85)

Sec. 15-9. Penalty for violation of sections 15-7, 15-8.

In addition to the penalties specified in sections13-14 and 13-15, any individual who shall deface or otherwise alter a badge or certificate of licensure or violate any provision of sections 15-7 and 15-8 shall be subject for each offense to a fine or penalty not to exceed five hundred dollars ($500.00) and/or to imprisonment for a period not to exceed twelve (12) months.

(Ord. No. 70-83, § 4, 5-5-83; Ord. No. 102-85, § 9, 5-30-85)

Sec. 15-10. Model/talent businesses—Definitions.

The following words, terms and phrases, when used in sections15-10 through 15-10.10, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commissioner means the commissioner of the department of public safety or his/her designee.

Customer means an individual who renders professional services as a fashion model, as a model for commercial photography or demonstration of products for advertising purposes, or as a host for a convention or other special event or a person who seeks opportunities to provide such professional services or to obtain training or screening for opportunities.

Department means the department of public safety or any outside entity with which the department contracts for services in connection with the administration of section 15-10 of the Code.

Model/talent business means a person that engages in the business of providing, obtaining or attempting to obtain employment or training for models. The term includes an entity that counsels or directs a model in the development of the model's professional career, or represent themselves as model or talent agents, or as providing model or talent screening opportunities, model or talent training opportunities, or other model or talent related opportunities.

Person means an individual, corporation, organization, business trust, estate, trust, partnership, association, or any other private legal entity.

(Ord. No. 212-98, § 2, 7-14-98)

Sec. 15-10.1. Same—Fees.

Effective August 1, 1998, all model/talent businesses shall be required to secure the license established in section 13-13 of this Code by furnishing to the division of revenue a certificate of approval issued by the department establishing that it has completed the application process and has demonstrated compliance with the requirements of sections 15-10 through 15-10.9 of this Code.

(Ord. No. 212-98, § 3, 7-14-98; Ord. No. 279-98, § 1, 10-15-98)

Sec. 15-10.2. Same—Licensure requirements.

(a) A person may not operate a model/talent business within the boundaries of Fayette County without a license issued by the division of revenue under sections 15-10 through 15-10.9 of this Code.

(b) Unless exempt pursuant to section 15-10.6 of this Code, all model/talent businesses that have a place of business in Fayette County, obtain or attempt to obtain employment for models in Fayette County, or recruit models from a temporary location in Fayette County, or offer any other service included in the definition of a model/talent business in section 15-10(1) in Fayette County, must obtain a license in order to operate a

model/talent business. "Personal agents," or any persons under any name or title, who perform the services described in sections 15-10 through 15-10.9 of this Code as any part of the services they provide, are model/talent businesses under these sections.

(c) As part of each application or reapplication process with the department for a certificate of approval, the applicant must present proof to the department that, if approved for licensure, the applicant can secure an approved indemnity bond in the amount of five thousand dollars ($5,000.00) issued by a surety company authorized to transact business within the commonwealth, or can post a cash bond in that amount. Such bond shall be for a term of one year and shall inure to the benefit of the urban county government or of any person who shall be injured or sustain damage proximately caused by the failure of any model/talent business, its servants, agents or employees, to comply with sections 13-13 or 15-10 through 15-10.9 of this Code. A certificate of approval shall be valid for one year from the date issued, but information on file must be kept current in accordance with the requirements of section 15-10.3(c).

(d) A license is not assignable or transferable.

(e) All applications shall include a statement that each owner, partner, member of associations, trustee, or fiduciary, has received a copy of sections15-10 through 15-10.9 of this Code.

(f) Any model/talent business using an assumed name(s) must comply with the Assumed Business Names Act, KRS 365.015.

(g) Any incorporated model/talent business must comply with the provisions of KRS chs. 271 through 274, Private Corporations and Associations.

(h) The model/talent business must furnish to the department with its application a copy of all registrations filed with the clerk of the county in which the principal office of the model/talent business is located if located within the state, or the registration filed with the secretary of state if located out of state. A copy of any changed or revised registrations must be furnished to the department within thirty (30) days of filing.

(i) A license or certificate of approval can be denied, suspended or revoked for failure to comply with the provisions of sections15-10 through 15-10.9 or for failure to comply with regulations promulgated pursuant to section 15-10.8.

(Ord. No. 212-98, § 4, 7-14-98)

Sec. 15-10.3. Same—Application.

(a) An application for a certificate of approval for a license to operate a model/talent business must be submitted, with a $70.00 nonrefundable application fee, to the department and be signed by each officer if a corporation, each partner if a partnership, each member if an association, or each trustee or fiduciary as applicable.

(b) The commissioner is authorized to contract with an outside agency if deemed appropriate for services required to administer the provisions of these sections.

(c) An initial application must contain:

(1) The name and principal business address of the model/talent business;

(2) Any other state or county registration numbers;

(3) The address of each location at which the applicant for registration proposes to operate a model/talent business within Fayette County;

(4) A description of the type of services offered;

(5) A full and complete disclosure of any litigation relating to the operation of a model/talent business brought against the model/talent business or an owner, officer, or director that was completed within three (3) years before the date on which the statement is filed or is pending as of the date of filing. The model/talent business shall notify the department if a legal action relating to the operation of the business is subsequently brought against the business or an owner, officer or director. The business shall notify the department in writing not later than the tenth day after the date on which the defendant business receives notice of the action;

(6) The complete names, social security numbers, dates of birth, addresses, and telephone numbers of all persons owning at least ten (10) percent of the model/talent business. If the model/talent business is a partnership, the above information for each partner must be included. If the model/talent business is a limited partnership, the above information for each general and limited partner must be included, along with the name and address of the registered agent. If the model/talent business is a corporation, the above information for the corporate president, vice president, secretary and treasurer must be included. The percent ownership interest must be stated in all cases;

(7) The names of any model/talent business owners who have a financial interest in any company involved in the casting, production or distribution of motion pictures or television motion pictures, independent video production companies, recording studios, photography studios, or any other companies or firms which would hire models from time to time. This disclosure shall include the company or companies in which the owners have a financial interest, and the percent of ownership in each company listed;

(8) The names of any model/talent business owners who have a financial interest in any school or course of instruction which is primarily intended for the professional study of acting or modeling. This disclosure shall include the school or course name and the percent of ownership held;

(9) Bank and industry references; and

(10) A schedule of commissions and/or fees charged.

(c) If any information on the application changes, the model/talent business must forward a new application to the department within ten (10) working days of the change. A change in fees or commissions shall not be effective until it has been forwarded as required.

(d) Each model/talent business shall keep a current copy of its fee and commission schedule available in each location where it conducts business. The model/talent business shall provide a customer who uses the services of the model/talent business, or is considering using the services of the model/talent business, a copy of the fee and commission schedule.

(Ord. No. 212-98, § 5, 7-14-98)

Sec. 15-10.4. Same—Renewal of license.

(a) A yearly license issued under sections 15-10 through 15-10.9 of this Code is valid from January 1 through December 31 of the year issued, not prorated.

(b) A renewal application must contain any change in information submitted in the initial or subsequent renewal applications.

(Ord. No. 212-98, § 6, 7-14-98)

Sec. 15-10.5. Same—Display of license; consumer complaint.

(a) Each model/talent business licensed under sections 15-10 through 15-10.9 of this Code shall display the license in a conspicuous place in the business's principal office and any location where the business conducts operations within Fayette County.

(b) Each model/talent business licensed under sections 15-10 through 15-10.9 of the Code shall display in the business's principal office and any location where the business conducts operations within Fayette County a sign provided by the department that contains:

(1) The name of the department;

(2) The mailing address and telephone number of the department's main office; and

(3) A statement informing consumers that a complaint against a model/talent business licensed under sections15-10 through 15-10.9 of the Code may be directed to the department.

(Ord. No. 212-98, § 7, 7-14-98)

Sec. 15-10.6. Same—Exemptions.

(a) The term "model/talent business" does not apply to:

(1) A person who obtains or attempts to obtain employment for himself.

(2) An organized labor union that represents models and whose efforts to obtain or attempt to obtain employment for its members is incidental to representing its members.

(3) A person who, without assessing a fee, employs model/talent for use in his/her own business as employees.

(4) Attorneys licensed to practice law who represent models strictly as legal advisors and not as managers.

(Ord. No. 212-98, § 8, 7-14-98)

Sec. 15-10.7. Same—Responsibilities of the licensee.

(a) All model/talent business publications or advertisements, including but not limited to, circulars, newspapers, periodicals, yellow page ads, brochures, business cards, and receipts, for activities to take place within Fayette County shall contain the name, principal business address and license number of the model/talent business.

(b) Any model/talent business registered in Fayette County acting as host for an open model/talent call for an out-of-county business in expectation of signing business contracts with customers on behalf of either the host business or the out-of-county business shall be responsible for:

(1) Publishing its own Lexington-Fayette Urban County Government license number and the out-of-county model/talent business's registration number from another state or county, if available, in all advertisements;

(2) Providing a commission or fee schedule of the out-of-county business to the department at least five (5) days before the open model/talent call is held; and

(3) Adherence to all provisions of sections 15-10 through 15-10.9 of this Code by the out-of-county business for the open model call.

(c) All licensees, by application for and acceptance of a model/talent business license, agree to submit to mediation/arbitration if so requested by a customer who uses or has used the services of the model/talent business or who has entered into a contract for the services of the model/talent business.

(Ord. No. 212-98, § 9, 7-14-98)

Sec. 15-10.8. Same—Promulgation of regulations.

The commissioner is hereby charged with the enforcement of the provisions of sections15-10 through 15-10.9 of this Code and is hereby empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter or thing pertaining to the administration and enforcement of the provisions of these sections.

(Ord. No. 212-98, § 10, 7-14-98)

Sec. 15-10.9. Same—Business review board.

(a) The review board shall consist of the director of revenue who shall be the chairperson; the commissioner of public safety and the chief administrative officer or their designees; and a representative from the council office.

(b) A majority of the members of the review board shall constitute a quorum.

(c) The review board may appoint a secretary for itself, adopt its own rules of procedure, and shall keep a record of its proceedings and transactions.

(d) The review board shall hear appeals of denials, suspensions, or revocations of certificates of approval and licenses. (Ord. No. 212-98, § 11, 7-14-98)

Sec. 15-10.10. Same—Injunctive relief; penalties.

(a) The commissioner of law may institute an action for injunctive relief to restrain a person from engaging in or continuing any violation of sections15-10 through 15-10.9 of this Code or a rule or order of the department related to sections15-10 through 15-10.9 of this Code. Such an action may also seek to recover costs.

(b) In addition to the penalties in sections13-14 and 13-15 of this Code, any person who shall deface or otherwise alter a certificate of licensure or violate any provision of sections 15-10 through 15-10.9 of this Code shall be subject for each offense to a fine or penalty not to exceed five hundred dollars ($500.00) and/or to imprisonment for a period not to exceed twelve (12) months. Each day that any person continues such conduct shall constitute a separate offense.

(Ord. No. 212-98, § 12, 7-14-98)

Sec. 15-11. Mobile food unit vendors—Definition. Sec. 15-11.1. Same—Definition.

Mobile food unit vendor. An itinerant merchant who conducts business from a food establishment which is on wheels or is otherwise mobile. (Ord. No. 17-2013, § 1, 2-28-13)

Sec. 15-11.2. Same—Subject to applicable ordinances and regulations.

A mobile food unit vendor shall be subject to all applicable ordinances and regulations unless expressly provided otherwise herein. These include, but are not necessarily limited to, those matters pertaining to zoning, public safety, pedestrian and state traffic laws, restricted sales or vending areas, parking and licensing.

(Ord. No. 17-2013, § 1, 2-28-13)

Sec. 15-11.3. Same—Exceptions licensing and regulatory requirements.

(a) The licensing of the vendor shall be on a per unit basis, with each different mobile food unit vendor requiring a separate license. A separate license is not required for each location.

(1) Unless otherwise exempted, all applications for permits/licenses shall be accompanied with the required fee(s) as specified in the schedule of fees established by ordinance or the director of the division of revenue.

(2) Any person operating more than one (1) mobile food unit shall pay an additional fifty dollar ($50.00) fee for each additional unit. This fee will not be prorated and will be in effect for the same period of time as the license for the primary mobile food unit.

(b) As an alternative to the requirements imposed by subsections15-8(1) and (3) of the Code of Ordinances, the owner of the real property to be used for mobile food unit vending operations or his designee, may, in advance of such a business operating on that property, apply to the division of planning to have the property used on a regular basis by one (1) or more mobile food unit vendors, in compliance with the following:

(1) The location of mobile food unit vendors shall be subject to a general zoning compliance permit issued by the division of planning. The permit shall be valid for a period of two (2) years from the date of its issuance. The application for the general zoning compliance permit shall contain information as reasonably required by the division of planning and shall, at a minimum, include a site plan clearly depicting the proposed location for the mobile food unit vendor(s).

(2) The division of planning shall review the application for the permit and shall be authorized to approve it upon finding that:

a. Minimum off-street parking spaces as required for the site shall be maintained; however, no new parking spaces shall be required for a mobile food unit vendor;

b. The location specified for mobile food unit vendors allows for proper vehicular and pedestrian access and circulation on the site, including required fire access; and

c. That the site is zoned in a category that permits restaurants as a principal permitted use, or that site restrictions are in place that make the mobile vending use compliant with applicable zoning restrictions related to the serving of food within the zone.

(3) Upon approval of the general zoning compliance permit, no additional specific occupancy permit shall be required from the urban county government for the location of any individual mobile food unit vendor(s) on the site. Notwithstanding the above, a mobile food unit vendor(s) must make available to the government a duly executed statement of permission from the property owner or his or her agent for use of the property upon request.

(4) Nothing contained in this section shall relieve a mobile food unit vendor from obtaining its itinerant merchant license(s) and any other permits required by state agencies or the local health department.

(Ord. No. 17-2013, § 1, 2-28-13)

Sec. 15-11.4. Same—Issuance of permit or license.

(a) It shall be unlawful for any person to intentionally provide false information or to intentionally omit requested information on an application for any license or permit pertaining to mobile food unit vendors.

(b) As a condition of issuance of any license or permit, the mobile food unit vendor agrees to indemnify, hold harmless, and defend the urban county government and its officials, officers, employees, representatives, and agents against liability and/or loss arising from activities connected with and/or undertaken pursuant to the permit or licensee. The urban county government is not liable for any business loss, property loss, or other damage that may result from use of the permit or license, or suspension or revocation of the permit or license, and no such vendor shall maintain any claim or action against the urban county government and/or its officials, officers, employees, or agents on account of any suspension or revocation.

(c) Any permit or license issued to a mobile food unit vendor shall be valid for the time period specified thereon. Re-application shall be required upon expiration of said permit or license if the person wishes to continue such activity.

(d) Every mobile food unit vendor to whom a license or permit is issued shall, at all times while engaged in that business, have the applicable license or permit in his or her possession and shall produce the same at the request of any urban county government official or at the request of any individual to whom the vendor is exhibiting his or her food or attempting to sell same.

(e) Permits for vending activities which occur solely on or within urban county government park lands or on avenues, streets, roads, drives or sidewalks adjacent to the boundaries of a public park must be obtained from the division of parks and recreation prior to performing such activities. The division of parks and recreation may impose conditions on any issued permit as it deems necessary for health and safety, and/or to mitigate the impact of vending on an area and may restrict or prohibit vending in certain locations. The division of parks may limit the number of vendors at any one (1) location or within an area, or limit the number of operators, sales persons, or others engaged in the act of vending at the requested or approved location.

(f) Each mobile food unit vendor must obtain all necessary licenses and permissions and comply with all requirements imposed by the health department or other regulatory agencies.

(Ord. No. 17-2013, § 1, 2-28-13)

Sec. 15-11.5. Regulation of mobile food unit vendors.

All mobile food unit vendors must comply with the following:

(1) The requirements of all applicable ordinances and regulations, including but not limited to the following:

a. Sections 18-119 through 18-129 of the code;

b. Sections 17-129 of the code and the Americans with Disabilities Act; and

c. Sections 14-70 through 14-80 of the code.

(2) Shall at all times operate in a manner that ensures the safety of patrons, pedestrians and the public.

(3) Shall not park or operate in a manner which prohibits others from parking in otherwise available spaces or areas.

(4) Shall obtain any necessary permits and comply with the requirements of any applicable rules and regulations of the Fayette County Health Department.

(5) Shall provide and use a tarp, roofing paper, or similar impermeable material or protective barrier under and around the mobile food unit in order to prevent spilling, staining or contamination onto or into any public property.

(6) Shall not locate or operate within fifteen (15) feet of any driveway or other main entrance to a building without the express written permission of the affected property owner or her or his authorized agent.

(7) Shall provide, in a prominent location, trash and recycling container(s) sufficient in size to collect all waste and recyclables generated by customers and staff of the vendor. All trash and debris related to the operation shall be collected by the vendor throughout the duration of their vending and deposited in their own trash or recycling container(s) and removed from the site by the vendor. Such waste shall not be placed in urban county government trash receptacles. The vendor shall be responsible for any litter or debris located within a five (5) feet radius of their unit, including sidewalks in the immediate vicinity.

(8) Shall not, during any LFUCG-recognized Special Event, locate, operate or vend inside the event footprint without the express written permission of the special event coordinator.

(9) Shall only use lighting which is permanently or semi-permanently affixed to its unit and which does not cause any glare that could be considered a public hazard, nuisance or distraction to vehicular movement, neighboring business operations or residential uses. No flashing or strobe lighting shall be permitted.

(10) Shall not use any electrical outlet located within the public right-way or on public property, unless specifically authorized by the urban county government or, if required, the utility company. A vendor shall not create any tripping or other hazard related to its use of electricity.

(11) Shall not block access to or use of, any public bench or any public utility pole or set up any chairs or tables on the public right-of-way.

(12) Shall not in any manner damage public property or the public right-of-way. Examples include, but are not necessarily limited to, using stakes, rods or any method of support that is required to be drilled, driven or otherwise fixed in asphalt pavement, curbs, sidewalks or buildings. The vendor shall be solely responsible for any such damage.

(13) Must not locate or operate within an area zoned as a Residential District under the Lexington-Fayette County Zoning Ordinance. A limited exception is provided if permission is obtained from the legally recognized Homeowner's Association for the affected property, or if the property at issue is used by the neighborhood as a community property, such as a swimming pool, and permission is obtained from the entity responsible for managing that property.

(14) Shall not locate or operate within an area closed for an emergency.

(Ord. No. 65-2013, § 1, 6-6-13)

Sec. 15-11.6. Penalty.

Any person convicted of violating any provision of sections 15-11.1 through 15-11.5 of the Code shall be subject to a fine of not less than two hundred fifty dollars ($250.00), nor more than five hundred dollars ($500.00). Each day a violation occurs shall constitute a separate offense.

(Ord. No. 65-2013, § 2, 6-6-13)

Sec. 15-12. Requirements—Peddlers and itinerant merchants.

(a) **General Requirements.** In addition to the licensing and other general requirements contained in the code of ordinances relating to peddlers and itinerant merchants, each such business shall also comply with the following requirements at all times while conducting business in Fayette County:

(1) All applicable federal, state, or local laws or regulations pertaining to their conduct and operations.

(2) Operate in a manner that ensures the safety of patrons, pedestrians and the public.

(3) If the business is a "transient" merchant, as defined in KRS 365.650, have filed a completed transient merchant application as required by KRS 365.665 with the division of revenue at least ten (10) days prior to conducting business.

(4) Shall not park or operate in a manner which prohibits others from parking in otherwise available spaces or areas or which creates a traffic hazard.

(5) Ensure that any vehicle, other conveyance, structure, or stand used in the operation of the business is maintained and kept in good operating order.

(6) Shall provide, in a prominent location, trash and recycling container(s) sufficient in size to collect all waste and recyclables generated by customers and staff of the vendor. All trash and debris related to the operation shall be collected by the vendor throughout the duration of their vending and deposited in their own trash or recycling container(s) and removed from the site by the vendor. Such waste shall not be placed in urban county government trash receptacles. The vendor shall be responsible for any litter or debris located within a five feet (5') radius of their unit, including sidewalks in the immediate vicinity. Provide or make available garbage receptacle(s) sufficient for customer use.

(7) Ensure that its operations do not violate, or contribute to a violation of the noise ordinance (section 14-70 through 14-80 of the code, as may be amended).

(8) Shall only use lighting which is located within the area lawfully permitted for conducting the business and which does not cause any glare that could be considered a public hazard, nuisance or distraction to vehicular movement, neighboring business operations or residential uses. No flashing or strobe lighting shall be permitted.

(9) Ensure that any and all signs are compliant with any ordinances or regulations pertaining to signage and located only within the area lawfully permitted for conducting the business.

(10) Ensure that all merchandise, goods, or wares are only displayed or offered for sale within the area lawfully permitted for conducting the business.

(11) Shall not use any electrical outlet located within the public right-way or on public property, unless specifically authorized by the urban county government or, if required, the utility company. A vendor shall not create any tripping or other hazard related to its use of electricity.

(12) Shall not block access to or use of, any public bench or any public utility pole or set up any chairs or tables on the public right-of-way.

(13) Shall not in any manner damage public property or the public right-of-way. Examples include, but are not necessarily limited to, using stakes, rods or any method of support that is required to be drilled, driven or otherwise fixed in asphalt pavement, curbs, sidewalks or buildings. The vendor shall be solely responsible for any such damage.

(14) Shall not locate or operate within an area closed for an emergency.

(b) **Hours of operation.** No peddler or itinerant merchant shall engage or attempt to engage in business except during the hours of operation provided herein.

(1) Unless otherwise authorized by the urban county government, the general lawful hours of operation shall be limited to the hours of 7:00 a.m. to 11:00 p.m. However, the hours of operation shall be allowed to continue after 11:00 p.m. if a permanent business also located on that parcel of property is open to the general public. In those instances, the peddler's or itinerant merchant's operation may lawfully continue to conduct business until the time at which such a permanent business is closed to the general public.

(2) Door-to-door sales are limited to the hours of 9:00 a.m. to 8:00 p.m. Door-to-door sales means going from dwelling unit to dwelling unit (i.e., house, apartment, condominium, etc.) or from business to business in Fayette County selling or taking orders for, or offering to sell or take orders for, goods, wares and merchandise for present or future delivery or for services to be performed immediately or in the future whether such person has, carries or exposes a sample of such goods, wares and merchandise or not and whether he/she is collecting advance payments on such sales or not.

(c) **Locations.** Unless otherwise permitted or authorized by the urban county government, no peddler or itinerant merchant shall locate, conduct business, or solicit in the following manner or within the following specified areas or locations:

(1) Within an urban county government park unless permission of the urban county government is obtained pursuant to section 14-62 of the code of ordinances;

(2) In a location which causes a violation of section 17-5 of the code of ordinances (congregating so as to obstruct sidewalk), or which causes people to congregate in any street, avenue, or alley which is open to vehicular traffic;

(3) In a location or manner that restricts pedestrian access to any other business or building;

(4) In or upon any public right-of-way or public property within one hundred (100) feet of the defined boundary for a Lexington-Fayette Urban County Government permitted special event, or any other event sponsored by the urban county government, without the written permission of the event organizers or the department or division sponsoring said event or unless otherwise authorized by the urban county government.

(5) Within any other area or location in which such activity is otherwise prohibited or restricted unless all necessary permission or approval is otherwise obtained, including but not limited to the "Lexington Center Area" (section 15-1.1 of the code of ordinances).

(d) **Additional location restrictions on itinerant merchants.** In addition to the restrictions listed in subsection 15-12(c), above, no itinerant merchant shall locate, conduct business, or solicit in the following manner, or within the following specified areas or locations:

(1) Within a Residential Zone, or within a land use zone where the underlying business activity would otherwise be prohibited under the zoning ordinance.

(2) Within one hundred (100) feet of the property line of a dwelling unit located in an area zoned as a Residential District under the Lexington-Fayette County Zoning Ordinance.

(3) These restrictions shall not apply to locations owned or operated by religious, charitable, health, welfare, educational, political, or youth service organizations or neighborhood or homeowner's associations as long as the vending activities are expressly permitted in writing by the organization or association.

(e) No itinerant merchant shall locate, conduct business, or solicit on public property, including, but not limited to, the public right-of-way, unless the merchant has obtained any additional appropriate licensure and such

property has been designated for such use by the urban county government through a resolution, ordinance, or the adoption of a pilot program, or the government has otherwise provided express permission for such conduct.

(Ord. No. 106-2013, § 1, 9-12-13)

Sec. 15-13. Exceptions.

(a) The provisions of section 15-12 of the code of ordinances shall not apply to the following:

(1) Properly licensed Mobile Food Unit Vendors, as defined in section 15-11.1 of the code of ordinances.

(2) The selling of personal property at wholesale to dealers in such articles; to newspaper carriers or newspaper vendors; to merchants or their employees in delivering goods in the regular course of business; or to vendors' products distributed or sold to regular customers on established routes.

(3) The selling or soliciting for the sale of goods or services at a properly licensed bazaar or sales exhibition, or on property owned or operated by the Commonwealth of Kentucky.

(4) The selling or offering for sale or distribution from interior private pedestrian circulation areas of shopping centers or malls of products to pedestrians which are traversing such areas or patrons of retail stores. Such merchants or vendors are required to obtain a temporary mall merchant license pursuant to chapter 13 of the code of ordinances unless otherwise exempt.

(5) Yard sales, garage sales, bake sales or other similar types of activities. These activities must be temporary in nature and must comply with all local ordinance and zoning ordinance provisions and must not be located on public property or public right-of-way unless expressly authorized by the urban county government.

(b) The provisions of sections 15-12(b), (c), and (d) of the code shall not apply to vending activities by appropriately permitted merchants at a Lexington Fayette Urban County Government Special Event.

(c) No license shall be required for any member or members of a religious, charitable, health, welfare, educational, political or youth service organization selling or offering to sell goods or services to raise funds for the work of such organization and for no other purpose.

(Ord. No. 106-2013, § 2, 9-12-13)

Sec. 15-14. Penalty.

Any person convicted of violating any provision of section 15-12 of the code of ordinances shall be subject to a fine of not more than two hundred fifty dollars ($250.00). Each day a violation occurs shall constitute a separate offense.

(Ord. No. 106-2013, § 3, 9-12-13)

Chapter 16

Sewage, Garbage, Refuse and Weeds[1]

Article I. In General

Section 16-1. Definitions.

Section 16-2. Enforcement.

Section 16-2.1. Compliance with engineering manuals.

Article II. Refuse Collection

Section 16-3. Roll cart container service.

Section 16-3.1, 16-3.2. Reserved.

Section 16-4. Dumpster container service.

Section 16-4.1. Dumpster screening requirements; requirements for obtaining permit; location and maintenance of dumpsters.

Section 16-5. Special handling waste collection.

Section 16-6. Refuse collection procedures.

Section 16-6.1. Recycling at community activities on urban county government property.

Section 16-6.2. [Pickup of small animal carcasses at veterinarian offices; roll-off refuse containers available to residents upon request; fees.]

Section 16-7. Containers for ashes.

Section 16-8. Procedure for using roll cart containers.

Section 16-9. Maintenance and placement of roll cart container.

Section 16-10. Refuse collection schedules.

Section 16-11. Dumpster collection schedules.

Section 16-12. Garbage and refuse collection rates.

Section 16-13. Downtown collection.

Section 16-14. Special collections.

Section 16-15. Private garbage and refuse collection; interfering with containers.

Section 16-15.1. Appointment of appeals board.

Section 16-16. Solid waste disposal—Funding for operational and capital costs.

Section 16-16.1. Same—Rates and charges.

Section 16-16.2. Same—Billing.

Section 16-16.3. Landfill user fee assistance program.

Section 16-16.4. [Refund claim; time period for filing.]

1. **Editor's note(s)**—Section 1 of Ord. No. 126-83, adopted July 21, 1983, reenacted ch. 16 to read as set out in §§ 16-1—16-69. The chapter formerly consisted of §§ 16-1—16-97 and was derived from the following:

Section 16-16.5. Reserved.

Article III. Refuse Disposal

Section 16-17. Collection and transportation of solid waste.
Section 16-18. Permit required.
Section 16-19. Notice required.
Section 16-20—16-28. Reserved.

Article IV. Nuisance Abatement

Section 16-29—16-34. Reserved.
Section 16-34.1. Failure to maintain privately owned roadways or alleyways declared nuisance.
Section 16-35. Penalties.

Article V. Sanitary Services

Section 16-36. Discharge of sewage, wastes, etc., without treatment prohibited.
Section 16-37. Septic tanks, cesspools, etc.
Section 16-38. Connection with public sanitary sewer; when required.
Section 16-39. Private sewage-disposal system; when required; permit; regulations, etc.
Section 16-40. No public sewer to be used or disturbed without permit.
Section 16-40.1. Placement of materials in or upon manholes.
Section 16-41. Building sewers and connections.
Section 16-42. Discharge of storm water and unpolluted drainage.
Section 16-43. Materials forbidden to be discharged into public sewer.
Section 16-43.1. Avoidance of requirements prohibited.
Section 16-44. Grease and oil interceptors when required.
Section 16-44.1. Special grease and oil interceptor permit.
Section 16-45. Admission of objectionable water or waste to public sewers; approved; preliminary treatment; permit; survey data; manholes.
Section 16-46. Permit required; special agreements authorized.
Section 16-46.1. Enforcement.
Section 16-46.2. [Sample collection.]
Section 16-47. Protection of sewerage works from damage; arrest of offenders.
Section 16-48. Regulations for dumping of sewage and refuse at the night soil house of urban county government disposal plant; penalty.
Section 16-49. Inspection by director, division of sanitary sewers.
Section 16-50. Penalty.
Section 16-51. Hearing board.
Section 16-52. New construction to conform to urban county and state regulations.
Section 16-53. Required certification, inspections, tests.

Section 16-54. Items and material specifications not included in manuals to conform to approved construction plans.
Section 16-55. Occupancy of structures.

Article VI. Sanitary Sewer Charges and Fees

Section 16-56. Article supplemental to chapter; definitions.
Section 16-57. Free use of system prohibited.
Section 16-57.1. Rates adjustable.
Section 16-58. Charges based on water consumption.
Section 16-59. Rates generally.
Section 16-59.1. Adjustment of increased fees.
Section 16-60. Tap-on or connection fees.
Section 16-61. Tap-on or connection fee adjustments.
Section 16-61.1. Properties in expansion areas exempt.
Section 16-62. Privilege fee.
Section 16-62.1. Privilege fees; alternate method.
Section 16-63. Billing generally; periods.
Section 16-64. When bills due; delinquencies.
Section 16-64.1. [Refund claim; time period for filing.]
Section 16-65. Authority to cut off water if improvement benefit assessment not paid.
Section 16-65.1. Authority to institute legal proceedings for collection of delinquent improvement benefit assessment.
Section 16-65.2. Authority of mayor to execute release of lis pendens upon payment of delinquent improvement benefit assessment.

Article VII. Sanitary Sewer Financial Assistance Plan

Section 16-66. Purpose.
Section 16-67. Deferment of annual improvement assessments.
Section 16-68. Connection fee; grant; deferment.
Section 16-69. Board of appeals.
Section 16-70. Administration, regulations and procedures.
Section 16-71. Mortgage extensions.
Section 16-72. Mortgage releases.

Article VIII. Reserved

Section 16-73—16-75. Reserved.

Article IX. Infrastructure and Environmental Hearing Boards

Section 16-76. Hearing boards; establishment; powers.
Section 16-76.1. Members.

Section 16-77. Meetings.
Section 16-78. Citations.
Section 16-79—16-83. Reserved.

Article X. Stormwater Discharges

Division 1. General

Section 16-84. Purpose and intent.
Section 16-85. Stormwater manual incorporated.

Division 2. Maintenance of Privately Owned Stormwater Controls

Section 16-86. Purpose and intent; applicability.
Section 16-87. Stormwater control devices in residential areas.
Section 16-88. Stormwater controls in commercial and industrial areas.

Division 3. High-Risk Industrial Facilities and High Risk Commercial Facilities

Section 16-89. [Purpose.]
Section 16-90. [Notice.]
Section 16-91. [Requirements.]

Division 4. Illicit Discharges

Section 16-92. [Title.]
Section 16-93. [Exemption.]
Section 16-94. [Prohibited.]
Section 16-94.1. Placement of materials upon manholes.
Section 16-95. [Suspension.]
Section 16-96. [Responsibility.]
Section 16-97. Watercourse protection.
Section 16-98. Notification of spills.

Division 5. Reduction of Soil Erosion

Section 16-99. Purpose and intent.
Section 16-100. Scope of coverage.
Section 16-101. Procedures and standards for submission of erosion and sediment control plans and obtaining a land disturbance permit for land disturbance of less than one acre.
Section 16-102. Erosion and sediment control plans for linear utility line construction projects disturbing less than one acre.
Section 16-103. Erosion control standards for land disturbance of less than five thousand square feet.
Section 16-104. Construction and demolition sites disturbing one or more acres of land.

Section 16-105. Continuation of existing grading permits and erosion control plans.
Section 16-106. Transportation, relocation of dirt, earth, debris.
Section 16-107. Other permits and approvals.
Section 16-108. Surety requirements.
Section 16-109, 16-110. Reserved.

Article XI. Sanitary Sewers—Private Infiltration and Inflow

Section 16-111. [Purpose.]
Section 16-112. [Inspection.]
Section 16-113. [Notice.]
Section 16-114. [Charges.]
Section 16-115. [Supplementary charge.]
Section 16-116—16-199. Reserved.

Article XII. Civil Fines and Enforcement

Section 16-200. Purpose and intent.
Section 16-201. Applicability; definition of day.
Section 16-202. Enforcement; response authorities; rights; remedies.
Section 16-203. Civil fines.
Section 16-204. Stop work order; revocation of permit.
Section 16-205. Appeal.
Section 16-206. Expenses; violation of chapter 16; abatement by the urban county government; other enforcement actions.
Section 16-207. Inspections and access.
Section 16-208. Action to recover penalties and costs; injunctive relief.
Section 16-209. Violations deemed a public nuisance.
Section 16-210. Criminal prosecution.
Section 16-211. Recovery of expenses.
Section 16-212. Withholding permits; exception.
Section 16-213. Remedies not exclusive.
Section 16-214—16-300. Reserved.

Article XIII. Sanitary Sewer Capacity Assurance Program (CAP)

Section 16-301. Purpose and intent.
Section 16-302. Definitions.
Section 16-303. Sanitary sewer capacity permit/sewer capacity reservation.
Section 16-304. Capacity requests/sewer capacity reservations.
Section 16-305. Appeals.
Section 16-306. Compliance with consent decree.

Section 16-307. Review; audit.
Section 16-308—16-400. Reserved.

Article XIV. Water Quality Management Fees

Section 16-401. Establishment.
Section 16-402. Definitions.
Section 16-403. Water quality management fee.
Section 16-404. Billing and collection.
Section 16-404.1. [Refund claim; time period for filing.]
Section 16-405. Adjustment of charges.
Section 16-405.1. Grant program.
Section 16-406. Stormwater revenues; expenses.
Section 16-407. Adjustment of charges; appeals.
Section 16-408. Water quality fees board.
Section 16-409. Review; audit; public hearing.
Section 16-410. Stormwater quality projects incentive grant program.

Ord. No.	Date	Section
3995	1-7-60	1—5, 7, 8
3997	1-14-60	1
4029	3-10-60	1, 3—5
4130	11-3-60	
4226	5-18-61	1
4271	8-31-61	1
4642	5-9-63	
4718	8-22-63	1
4973	7-3-64	1
5076	12-17-64	1
270-67	10-13-67	1
44-68	2-29-68	1
159-69	7-10-69	
207-70	8-27-70	1
38-77	2-24-77	1
79-77	4-7-77	1

Ord. No.	Date	Section
251-77	9-13-77	3—6
111-78A	5-18-78	1
133-78	6-15-78	1
153-78	6-29-78	
159-78	7-11-78	1
263-78	10-19-78	1, 2
268-78	11-2-78	1
289-78	11-30-78	1
176-79	7-12-79	
177-79	7-12-79	
57-80	5-29-80	
106-80	8-1-80	1
276-70	12-17-70	1
293-70	12-31-70	1
52-71	3-25-71	1
51-72	3-30-72	1
39-73	2-15-73	1, 4—13
165-73	6-28-73	1—4
295-73	12-20-73	1
48-75	2-20-75	1—4
50-75	2-20-75	1
132-76	7-1-76	1—8
133-76	7-1-76	1—4
186-76	9-9-76	2—12
265-76	12-16-76	1
271-76	12-29-76	1—7
122-80	8-28-80	2
137-80	9-18-80	1
177-80	11-13-80	1

Ord. No.	Date	Section
39-81	2-19-81	1
139-81	7-9-91	2—5
157-81	9-17-81	2
220-81	12-10-81	1
36-82	4-8-82	1
61-82	5-6-82	1, 2
68-82	5-18-82	1—3
219-82	12-2-82	1
6-82	1-27-83	1
46-83	3-24-83	1
104-83	6-30-83	1

Charter reference(s)—Authority to provide for creation of sewage disposal system, § 3.02(8); authority to collect and dispose of garbage, junk and other refuse, § 3.02(18); department of sanitation and public works, § 6.10; board of health, § 7.16.

State law reference(s)—Local solid waste management, KRS ch. 109; waste, KRS 224.40-100 et seq.

Article I

In General

Sec. 16-1. Definitions.

(a) With relation to article II of this chapter:

Apartment complex, townhouse complex, or condominium complex shall mean a group of two (2) or more individual apartment, townhouse, or condominium buildings constructed on one (1) taxable parcel of land and containing seven (7) or more individual units.

Approved landscape waste containers shall mean biodegradable paper bags or polyethylene containers on wheels provided by the urban county government and intended to hold both woody and nonwoody landscape waste, or polyethylene or metal containers up to thirty (30) gallons, with lids, that are labeled "Yard Waste Only".

Ashes shall mean the residue from the burning of wood, coal, coke, and other combustible materials in homes, stores, institutions, and small industrial establishments for the purpose of heating, cooking, and disposing of waste combustible material. Cinders that are produced in large quantities at steam-generating plants are not included within the meaning of the term.

Building rubbish shall mean the waste material resulting from the construction, remodeling, repair, and demolition operations on commercial buildings, houses, and other structures.

Director, division of solid waste shall mean the director of the division of solid waste of the urban county government or his authorized deputy, agent, or representative.

Dumpster shall mean a metal tank designed or intended to be mechanically dumped into a packer-type garbage truck.

Dumpster enclosure shall mean a structure designed to support and enclose a dumpster.

Dumpster service standards (also known as the dumpster service guide) shall mean the document used to provide the standards for design, review, construction, inspection, and permitting of dumpster placement sites.

Garbage shall mean animal and vegetable waste resulting from the handling, preparation, cooking, and serving of foods, paper, and other kitchen-type wastes generated from normal household activities. It is composed largely of putrescible organic matter and its natural moisture content. It includes a minimum amount of free liquids. Garbage originates primarily in home kitchens, and also may originate in stores, markets, restaurants, hotels, and other places where food is stored, prepared, or served.

Hazardous waste shall mean ammunition, explosives, pathological waste, pesticides, herbicides, propane tanks, toxic industrial waste, radioactive waste, and other toxic materials which are harmful to public waste.

Kitchen facilities shall mean equipment arranged in a room or some other space in a structure which facilitates the preparation of food, including, but not limited to, a combination of two (2) or more of the following: a range, microwave oven, dishwasher, kitchen sink or refrigerator.

Nonwoody landscape waste shall mean grass clippings, leaves, garden vegetation, weeds and twigs (pencil thin), free of other debris or refuse.

Recyclable materials may include, but is not limited to various grades of paper, aluminum and tin cans, glass and plastics.

Roll cart container shall mean a large, durable polyethylene refuse container on wheels, complete with attached lid. Roll cart containers are designed to be rolled to the curb by residents or proprietors. Carts are designed to be dumped automatically by refuse vehicles. Carts are designed to hold both garbage and trash. Carts are provided by the urban county government and remain the property of the urban county government.

Roll cart container equivalent shall mean any regularly recurring volume of garbage and/or trash, up to a ninety (90) gallon capacity, which is collected by the urban county government but not contained in a roll cart container or dumpster.

Shall is mandatory; may is permissive.

Special handling wastes shall mean wastes which cannot be properly or safely handled by a packer-type garbage truck (front or rear loading) without resulting in damage to government equipment. This waste shall include but is not limited to tires on rims, wooden pallets, lumber, large engine parts, large furniture, large scrap metal and shavings, bricks, building rubbish, concrete blocks, commercial stoves, excavated earth, food processing waste, metal drums, large wire bindings, heavy packing material, boiler house cinders, sewage, process sludge, liquids and hazardous or toxic materials of any sort.

Townhouse or condominium shall mean a single-family residence sharing a common wall with one (1) or more single-family residences.

Trash shall mean a variety of both combustible and noncombustible solid waste from materials from homes, stores, and institutions.

Woody landscape waste shall mean tree limbs or trunks not more than six (6) inches in diameter.

(b) With relation to article III of this chapter:

Access road means a road designed and constructed so that traffic will flow smoothly and will not be interrupted by ordinary inclement weather.

Applicant means any person making application for a permit to operate a landfill.

Approved, authorized or designated landscape waste containers shall mean biodegradable paper bags with the official seal of the urban county government.

Construction permit means a permit for:

A landfill not previously permitted;

A permitted landfill which seeks substantial modifications in the scope of its permitted activities; and

A landfill whose permit has lapsed and has not been renewed within sixty (60) days.

Department of health shall mean the Lexington-Fayette County Health Department or its successor.

Hazardous waste shall mean explosives, pathological waste, pesticides, herbicides, toxic industrial waste, radioactive waste and other toxic materials which are harmful to public waste.

Junked motor vehicle shall mean one that does not have lawfully affixed thereto both an unexpired license plate and a current motor vehicle safety certificate and the condition of the vehicle is wrecked, dismantled, inoperative, abandoned or discarded upon any public or private properly, excepting those at lawfully licensed and properly operating junkyards.

Landfill means a solid waste disposal site or facility.

Nonwoody landscape waste shall mean grass clippings, leaves, garden vegetation, weeds and twigs (pencil thin), free of other debris or refuse.

Open burning means any fire wherein the production of combustion is emitted directly into the outdoor atmosphere and is not directed thereto through a stack or chimney, incinerator or other similar device.

Operator means any person responsible for the construction and/or operation of the landfill.

Permit means permission, in whatever form, by the commissioner of public works and the department of health.

Person means any individual, public or private corporation, political subdivision, government agency, municipality, industry, partnership, association, firm or other entity whatsoever.

Plan means the detailed plans and specifications for the disposal site or facility, which shall include all material, description and information set forth in the application for permit and upon which said permit was approved by the department of health and the commissioner of public works.

Putrescible means organic solid waste subject to decomposition by bacteria, fungi and oxidation, except trees, brush and the like not requiring daily cover.

Recyclable materials may include but is not limited to various grades of paper, aluminum and tin cans, glass and plastics.

Refuse means all nonputrescible waste.

Salvage means the controlled removal of reusable materials.

Sanitary landfill means a landfill at which putrescible and other solid waste may be disposed pursuant to a method of disposing of said waste on land without creating nuisances or hazards to public health or safety, by utilizing the principles of engineering to confine the refuse to the smallest practicable volume and to cover it with a layer of earth at the conclusion of each day's operation, or at such more frequent intervals as may be necessary.

Scavenging means the manual sorting of refuse either in the trucks or at the place of the fill, or in unconfined truck discharge areas by individuals not associated with the landfill operation.

Solid waste means all putrescible or nonputrescible refuse in solid form. Solid waste includes but is not limited to garbage, rubbish, ashes, incinerator residue, street refuse, dead animals, demolition wastes, construction wastes, solid commercial and industrial wastes including explosives, pathological wastes and radioactive materials.

Solid waste collector shall mean any person who collects or transports solid waste.

Solid waste disposal site or facility means any place at which solid waste is disposed of by incineration, land filling or any other approved method.

Spoiled food shall mean any food which has been removed from sale by the United States Department of Agriculture, Food and Drug Administration, Kentucky State Department of Health, Lexington-Fayette County Department of Health, or any other regulatory agency having jurisdiction in judging food unfit for consumption.

Vector shall mean any insect or animal which transmits diseases from one person or animal to another.

Woody landscape waste shall mean tree limbs or trunks not more than six (6) inches in diameter.

(c) With relation to articles V and VI of this chapter:

Act or the Act shall mean the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. 1251 et seq.

ASTM shall mean the American Society for Testing and Materials.

Authorized representative of industrial user. An authorized representative of an industrial user may be:

a. A principal executive officer of at least the level of vice-president, if the industrial user is a corporation;

b. A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively;

c. A duly authorized representative of the individual designated above if such representative is responsible for the overall operation of the facilities from which the indirect discharge originates.

BOD (denoting biochemical oxygen demand) shall mean the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five (5) days at twenty (20) degrees Celsius, expressed in parts per million by weight.

Building drain shall mean the part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste and other drainage inside the walls of the building and conveys it to the building sewer, beginning five (5) feet outside the inner surface of the building wall.

Building sewer shall mean the extension from the building drain to the point of connection with the public sewer or other place of disposal.

Categorical standards shall mean National Categorical Pretreatment Standards or pretreatment standard.

Categorical user shall be defined by the industrial categories described in title 40 of the Code of Federal Regulations (40 CFR) Chapter I, subchapter N.

City shall mean Lexington-Fayette Urban County Government.

Combined sewer shall mean a sewer receiving both surface runoff and waste water.

Commissioner of environmental quality shall mean the commissioner of environmental quality of the urban county government or his authorized deputy, agent or representative.

Contractor. The person having the contract for the work in question.

Cooling water shall mean the water discharged from any use such as air conditioning, cooling or refrigeration, or to which the only pollution added is heat.

Director, division of water quality shall mean the person designated by the urban county government to supervise the operation of the publicly-owned treatment works and the MS4 and who is charged with certain duties and responsibilities by this article, or his duly authorized representative.

Direct discharge shall mean the discharge of treated or untreated waste water directly to the waters of the state.

Discharger shall mean any person that discharges or causes a discharge to a public sewer.

Domestic waste water shall mean the water-carried wastes produced from noncommercial or nonindustrial activities and which result from normal human living processes.

Effluent shall mean the liquid overflow of any facility designed to treat, convey or restrain waste water.

Engineering manuals. That set of documents used to provide the standards for the design, review, construction and inspection of infrastructure in Lexington-Fayette County. These are also known as the engineering manuals or as the manuals. The engineering manuals consist of the procedures manual for infrastructure development (also known as the procedures manual), the construction inspection manual (also known as the inspection manual), geotechnical manual, the roadway manual, structures manual, stormwater manual, and the sanitary sewer and pumping station manual (also known as the sewer manual). These manuals, including the definitions therein, are hereby adopted and incorporated into this Code by reference. From time to time, the urban county government may revise, modify, or amend the manuals in conformance with the procedures established in the procedures manual.

Environmental Protection Agency or EPA shall mean the U.S. Environmental Protection Agency, or where appropriate the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Fats, oil and grease shall mean organic polar compounds derived from animal and/or plant sources that contain multiple carbon chain triglyceride molecules. These substances are detectable and measurable using analytical test procedures established in 40 CFR Part 136, as may be amended from time to time. All shall be referred to herein as "grease".

Grab sample shall mean the sample which is taken from a waste stream on a one-time basis with no regard to the flow in the waste stream and without consideration of time.

Garbage shall mean animal and vegetable waste resulting from the handling, preparation, cooking and service of food in home kitchens, stores, markets, restaurants, motels, hotels and other places where food is stored, prepared or served. Specifically excluded are food-processing wastes from canneries, slaughterhouses, packing plants and similar industries.

Grease trap or interceptor is a device for separating and retaining waterborne greases and grease complexes prior to the wastewater exiting the interceptor and entering the sanitary sewer collection system.

Holding tank waste shall mean any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks.

Indirect discharge shall mean the discharge or the introduction of nondomestic pollutants from any source regulated under section 307(b) or (c) of the Act (33 U.S.C. 1317) into the POTW (including holding tank waste discharge into the system).

Industrial waste water shall mean all water-carried wastes and waste water of the community excluding domestic waste water and uncontaminated water, and shall include all waste water from any producing, manufacturing, processing, institutional, commercial, agricultural or other operation where the waste water discharged includes waste of nonhuman origin.

Industrial user shall mean a source of indirect discharge which does not constitute a "discharge of pollutants" under regulations issued pursuant to section 402 of the Act (33 U.S.C. 1342).

Interference shall mean the inhibition or disruption of the POTW treatment processes or operations which contribute to a violation of any requirement of the city's NPDES or KPDES permit. The term includes prevention of sewage sludge use or disposal by the POTW in accordance with section 405 of the Act (33 U.S.C. 1345) or any criteria, guidelines or regulations developed pursuant to the Solid Waste Disposal Act, (SWDA), the Clean Air Act, the Toxic Substances Control Act, or more stringent state criteria (including those contained in any state sludge management plan prepared pursuant to title IV of SWDA) applicable to the method of disposal or use employed by the POTW.

Main line means a pipe which is eight (8) inches or greater in diameter designed and used to transport sanitary sewage, owned by the urban county government and contained in the public right-of-way or an approved, recorded easement.

National Categorical Pretreatment Standard or pretreatment standard shall mean any regulation containing pollutant discharge limits promulgated by the EPA in accordance with section 307(b) and (c) of the Act (33 U.S.C. 1347) which applies to a specific category of industrial users.

National Prohibitive Discharge Standard or prohibitive discharge standard shall mean any regulation developed under the authority of section 307(b) of the Act and 40 CFR section 403.5.

National Pollutant Discharge Elimination System or NPDES permit shall mean a permit issued pursuant to section 402 of the Act (33 U.S.C. 1342).

New source means any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of federal pretreatment standards under section 307(c) of the Act (33 U.S.C. 1317) provided that:

a. The building, structure or facility or installation is constructed at a site at which no other source is located; or

b. It totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or waste water generating processes are substantially independent of an existing source at the same time.

Ordinance shall mean, unless otherwise specified, this chapter.

Person shall mean any individual, partnership, committee, association, corporation, public agency, firm, company, and any other organization or group of persons, public or private.

pH shall mean the logarithm of the reciprocal of the weight of hydrogen ions in grams per liter of solution.

Pollution means the contamination or other alteration of any waters, physical, chemical or biological properties, including change in temperature, taste, color, turbidity, or odor of such waters or the discharge of any liquid, gaseous, solid, radioactive, or other substance into any such waters.

Pretreatment or treatment shall mean the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of properties in waste water to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological process, or process changes by other means, except as prohibited by 40 CFR 403.6(d).

Pretreatment requirements shall mean any substantive or procedural requirement related to pretreatment, other than a National Pretreatment Standard imposed on an industrial user.

Properly shredded garbage shall mean the wastes from the preparation, cooking and dispensing of food that have been shredded to such a degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-half (½) inch in any direction.

Public sewer shall mean a sewer controlled by the urban county government to which owners of abutting properties may have access. In general, the public sewer shall include the main sewer in the street and the service branch to the curb or property line, or to a main sewer upon private property and any such sewers which are connected with the sewerage system of the urban county government.

Publicly-owned treatment works (POTW) shall mean a treatment works as defined by section 212 of the Act (33 U.S.C. 1292) which is owned in this instance by the city. This definition includes any sewers that convey waste water to the POTW treatment plant, but does not include pipes, sewers or other conveyances not connected to a facility providing treatment. For the purposes of this chapter, "POTW" shall also include any sewers that convey waste waters to the POTW from persons outside the city who are, by contract or agreement with the city, users of the city's POTW.

Sanitary sewer shall mean a sewer which carries domestic and/or industrial waste water and to which storm water, surface water and groundwater are not intentionally admitted.

Sewerage shall mean waste water.

Sewerage system shall mean all facilities for collecting and pumping waste water.

Sewerage works shall mean all facilities for collecting, pumping, treating and disposing of waste water.

Sewer shall mean a pipe or conduit for carrying waste water.

Shall is mandatory; may is permissive.

Significant industrial user shall mean all categorical industrial users and any noncategorical industrial user that:

(a) Discharges twenty-five thousand (25,000) gallons per day or more of process waste water ("process waste water" excludes sanitary, noncontract, cooling and boiler blowdown waste waters); or

(b) Contributes to a process water stream which makes up five (5) percent or more of the average dry weather hydraulic or organic (BOD, TSS, etc.) capacity of the treatment plant; or

(c) Has a reasonable potential, in the opinion of the control or approval authority, to adversely affect the POTW treatment plant (inhibition, pass-through of pollutants, sludge contamination, or endangerment of POTW workers).

Significant violation means a violation that meets one (1) or more of the following criteria:

(a) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all of the measurements taken during a six-month period prior to the end of each calendar quarter exceed (by any magnitude) a numeric Pretreatment Standard or Requirement, including instantaneous limits, as defined by 40 CFR 403.3(1);

(b) Technical review criteria (TRC)—Violations defined here as those in which thirty-three (33) percent or more of all of the measurements for each pollutant parameter taken during a six-month period prior to the end of each calendar quarter equal or exceed the product of a numeric Pretreatment Standard or Requirement, including instantaneous limits, as defined by 40 CFR 403.3(1) multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH);

(c) Any other violation of a Pretreatment Standard or Requirement, including instantaneous limits, as defined by 40 CFR 403.3(1) (daily maximum, long term average, instantaneous limit, or narrative standard) that the director, division of water quality, determines has caused, alone or in combination with other discharges, interference or pass-through (including endangering the health of POTW personnel or the general public);

(d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority to halt or prevent such a discharge;

(e) Failure to meet, within ninety (90) days after the scheduled date, a compliance schedule milestone contained in a waste water discharge permit or other order issued hereunder for starting construction, completing construction, or attaining final compliance;

(f) Failure to provide, within forty-five (45) days after the due date, required reports such as baseline monitoring reports, ninety-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(g) Failure to accurately report noncompliance;

(h) Any other violation or group of violations, which may include a violation of best management practices, which the director, division of water quality, determines will adversely affect the operation or implementation of the local pre-treatment program.

Slug shall mean any discharge of water or waste of a non-routine episodic nature, including but not limited to an accidental spill or a non-customary batch discharge which has reasonable potential to cause interference or pass through, or in any way violate local limits or permit conditions.

Standard drawings: The current edition, latest revision of the standard drawings which are promulgated by the division of engineering to provide design standards for public (or when appropriate, private) infrastructure.

Standard methods shall mean the current edition of "Standard Methods for the Examination of Water and Wastewater" and as published by the American Public Health Association.

State shall mean the Commonwealth of Kentucky, or an authorized agency thereof having regulatory authority.

Storm sewer or storm drain shall mean a sewer which is designed to carry storm and surface water and drainage.

Suspended solids shall mean the solids that either float on the surface of or are in suspension in water, waste water or other liquids and which are removable by laboratory filtering.

Toxic pollutant shall mean any pollutant or combination of pollutants listed as toxic in regulations promulgated by the administrator of the Environmental Protection Agency under the provisions of section 307(a) of the Act (33 U.S.C. 1317) or other acts.

Urban county engineer shall mean the director of the division of engineering of the urban county government or his authorized deputy, agent or representative.

User shall mean any person who contributes, causes or permits the contribution of waste water into the city's POTW.

Waste water shall mean a combination of the water-carried wastes from residences, business buildings, institutions and industrial establishments, together with such groundwater, surface water and storm water as may be present.

Waste water treatment plan shall mean any arrangement of devices and structures used for treating waste water.

Waters of the commonwealth shall have the meaning of that term as set forth in KRS 224.01-010(33).

(d) With relation to article VII of this chapter:

Annual improvement assessment means the share of each owner of benefitted property of the annual cost of the sanitary sewer improvement bond issued, or the annual share of an owner required to connect his property to an existing sanitary sewer.

Assets test means that any person having assets in excess of either:

(i) Five thousand dollars ($5,000.00) in liquid assets such as bank accounts, savings, certificates of deposits, stocks, bonds, etc.; or

(ii) Five thousand dollars ($5,000.00) in equity in assessed value of nonhomestead property;

shall be ineligible to participate in the sanitary sewer financial assistance program, notwithstanding that he meets the income level qualifications set forth in this section. However, motor vehicles for personal use, household furnishings and the benefitted property itself, as well as the buildings located thereon which are occupied by the person seeking the qualify as a home for himself and his family shall not be included in computing assets.

Benefitted property shall have the same meaning as the term "benefitted property" in the statute pursuant to which the sanitary sewer improvement is financed. In the case of connection to an existing public sanitary sewer, "benefitted property" shall mean that property required to be connected to such existing public sewer.

Connection fee means the cost of installing a service lateral from the main sanitary sewer line to the residence.

Income means total cash receipts to the property owner and spouse after taxes from all sources. These sources include money, wages and salaries after any deductions required by law, but not including food or rent in lieu of wages. They include receipts from self-employment or from one's own farm or business after deductions for business or farm expenses.

They include regular payments from public assistance, social security, unemployment and workmen's compensation, strike benefits from union funds, veterans benefits, training stipends, alimony and military family allotments or other regular support from an absent family member or someone not living in the household; government employee pensions, private pensions and regular insurance annuity payments; and income from dividends, interest, rents, royalties or income from estates and trusts. For eligibility purposes income does not refer to the following money receipts: any assets drawn down as withdrawals from a bank, sale of property, house or car, tax refunds, gifts, one-time insurance payments or compensation for injury; also to be disregarded is noncash income, such as the bonus value of food and fuel produced and consumed on farms and the imputed value of rent from owner-occupied farm or non-farm housing.

Person means a natural person.

Program means the sanitary sewer financial assistance programs.

Project means any sanitary sewer improvement project of the urban county government, its agency or instrumentality.

Qualified property owner means any person owning benefitted property who meets the assets test and has an annual income equal to or less than one hundred twenty-five (125) percent of the poverty income levels set forth in the poverty guidelines chart established by the Community Service Administration, annually published in the Federal Register, in effect at the time of application. However, the income itself shall

be measured by the definition contained in paragraph (5) of this subsection. Any person having a beneficial interest in benefitted property may qualify for the sanitary sewer financial assistance program so long as and only on condition that the owner of the property executed the required mortgages and promissory notes.

(e) With relation to article VIII of this chapter:

Commissioner means the commissioner of public works of the urban county government or the authorized deputy, agent or representative of said commissioner.

Pollution means the contamination or other alteration of any waters, physical, chemical or biological properties, including change in temperature, taste, color, turbidity, or odor of such waters or the discharge of any liquid, gaseous, solid, radioactive, or other substance into any such waters as will or is likely to create a nuisance or render such waters harmful, detrimental, or injurious to the public health, safety, or welfare, or to domestic, commercial, industrial, agricultural, recreational, or other legitimate and official uses, or to livestock, wild animals, birds, fish, or other aquatic life.

Storm water means storm water runoff, snow melt runoff, and surface runoff and drainage.

Urban county government storm sewer system means a conveyance or system of conveyances, including, but not limited to, roads with drainage systems, urban county streets, catch basins, curbs, gutters, ditches, man-made channels or storm drains which are: (i) owned or operated by the urban county government; and (ii) designed or used for collecting or conveying storm water.

Person shall mean any individual, partnership, committee, association, corporation, public agency, firm, company and any organization or group of persons, public or private.

(f) With relation to article X of this chapter and any permits issued pursuant thereto the following definitions apply:

Agricultural activities are activities related to planting of crops or pasture associated with farming or the horse industry, excluding construction for buildings or structures associated with such activities.

Authorized enforcement agency means employees or designees of the director of the division of water quality or the director of the division of environmental policy.

Commercial area means an area developed for commercial or institutional uses including institutional facilities, retail, offices, apartment buildings, townhouse/condominium developments, golf courses or other non-single-family residential, non-agricultural, or non-industrial uses.

CWA means the Clean Water Act, also referred to as "the Act" or the "Federal Water Pollution Control Act" as subsequently amended (33 U.S.C. Section 1251 et seq.).

Detention basin or detention pond means a stormwater quantity control device that is designed to control peak discharge during a rain event and to completely drain after the design storm passes.

Drainage way means any channel that conveys surface runoff.

Hazardous materials means any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Industrial area means an area developed for industrial activity.

High-risk industrial facility means any facility located within LFUCG's jurisdictional boundary from which there is a "stormwater discharge associated with industrial activity" as defined in 40 CFR 122.26(b)(14), excluding Construction Sites. It also includes SARA Section 313 facilities referenced in 40 CFR 122.26(d)(2)(iv)(c) and those that the urban county government determines have a reasonable potential to discharge storm water containing pollutants of concern at a significant level.

Manager means a person who manages, controls, operates, maintains, and/or directs a commercial or industrial facility or activity.

MS4, or municipal separate storm sewer system, is the conveyance, or system of conveyances (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels and storm drains) that is owned or operated by LFUCG that discharges to waters of the United States:

a. Designed or used for collecting or conveying stormwater;

b. Which is not combined sewer; and

c. Which is not part of a publicly owned treatment works (POTW) as defined at KRS 224.01-010.

Person means any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as either the owner or as the owner's agent.

Residential area means an area which has been developed for single family or two-family dwelling units.

Retention basin or retention pond means a basin or pond that has a permanent pool exclusive of basins or ponds on property used solely for agricultural activities.

Stormwater or storm water means water which originates from atmospheric moisture (rainfall or snow melt) and that falls onto land, water, or other surfaces. Without any change in its meaning, this term may be spelled or written as one (1) word or two (2) separate words.

Stormwater runoff means that part of precipitation (rainfall or snow melt) which does not infiltrate into the ground.

Stormwater control device means any detention basin, detention pond, drainage way, extended detention basin, retention basin, catch basin, or any other structure or equipment designed to control stormwater quantity or improve stormwater quality.

Best management practices (BMPs) means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the United States. BMPs also include treatment requirements, operating procedures, and practices to control stormwater runoff.

Grab sample means an instantaneous sample collected from the flow at a sampling location, either in-stream or at an outfall.

Hazardous materials means any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Industrial land use means an area characterized by or involving land utilized in connection with manufacturing, processing, or raw materials storage at industrial facilities, excluding construction sites.

KPDES, or Kentucky Pollutant Discharge Elimination System, is the effluent permitting program in the Commonwealth of Kentucky for point source discharges.

Large industrial outfall means an outfall from an industrial facility that discharges from a single pipe with an inside diameter of twelve (12) inches or more or from its equivalent (discharge from other than a circular pipe associated with a drainage area of two (2) acres or more).

LFUCG facilities are land, properties, and/or buildings which are owned and operated, or leased and operated, by the Lexington-Fayette Urban County Government.

Major municipal separate storm sewer outfall (or "major outfall") means a municipal separate storm sewer outfall within the Urban Area as defined in 40 CFR 122.26(b)(5).

Major watershed means one of the seven (7) urbanized watersheds in Fayette County that include Cane Run, East Hickman, North Elkhorn, South Elkhorn, Town Branch, West Hickman, and Wolf Run.

MEP, or maximum extent practicable, is the control standard for discharges of stormwater from the Municipal Separate Storm Sewer Systems established by section 402(p) of the Act (33 U.S.C. 1342).

Municipal waste facilities are LFUCG facilities that actively treat, store, or dispose of sewage or refuse, including but not limited to, material recovery facilities, wastewater treatment plants, landfills, and transfer stations.

Outfall means a "point source" at the point where a municipal separate storm sewer discharges to waters of the United States, but does not include open conveyances connecting two (2) municipal separate storm sewers, or pipes, tunnels, or other conveyances which connect segments of the same stream or other waters of the United States and are used to convey waters of the United States.

Permittee means the holder of a KPDES permit who is responsible for compliance with permit conditions relating to the discharges that it owns or operates.

Point source means any discernible, confined, and discrete conveyance, including but not limited to, any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be discharged. This term does not include return flows from irrigated agriculture or agricultural stormwater runoff.

Pollution means the contamination or other alteration of any waters, physical, chemical or biological properties, including change in temperature, taste, color, turbidity, or odor of such waters or the discharge of any liquid, gaseous, solid, radioactive, or other substance into any such waters.

Premises means any building, lot, parcel of land, or portion of land whether improved or unimproved including adjacent sidewalks and parking strips.

Storm sewer, unless otherwise indicated, refers to a municipal separate storm sewer.

Stormwater discharge associated with industrial activity is defined at 40 CFR 122.26(b) (14).

Stormwater quality management program, or SWQMP, refers to the urban county government's comprehensive program to manage the quality of stormwater discharged from the urban county government's municipal separate storm sewer system. The SWQMP is considered a single document, even though it actually consists of separate programs (e.g. "chapters") for each permittee and references various Appendices.

Stormwater pollution prevention plan, or SWPPP, is a site-specific, written document that identifies potential sources of stormwater pollution at the site or facility, and describes best management practices and procedures the operator will implement to eliminate or reduce pollutants in stormwater runoff from the site or facility.

TMDL, or total maximum daily load, is a pollutant load allocation to a water of the United States developed to implement section 303(d) of the Act (33 U.S.C. 1313).

Urban areas are areas within the LFUCG Urban Service Boundary and the residential areas and concentrated commercial areas outside the Urban Service Boundary as determined by the department of environmental quality, such as: Westmorland Road area, Athens Community, Eastpoint Drive area, Riviera Road area, Donelwal Drive area, Wellesley Heights Way area, Avon/Bluegrass Station Industrial Park area, Blue Sky Industrial Park area, Horse Park/Spindletop area, and Bluegrass Airport.

Wastewater means a combination of the water-carried wastes originating from plumbing associated with residences, business buildings, institutions and industrial establishments, together with such groundwater, surface water and stormwater as may be present.

Watercourse means any body of water, including, but not limited to lakes, ponds, rivers, streams, and bodies of water delineated by the urban county government.

Waterway means a channel that directs surface runoff to a watercourse or to the public storm drain.

High-risk commercial facilities are commercial or institutional facilities that LFUCG determines have a reasonable potential to discharge storm water pollutants of concern at significant levels. The division of water quality maintains a list of those facilities designated as high-risk commercial facilities.

Illicit connection means any connection to the MS4 that is not composed entirely of stormwater except discharges pursuant to a KPDES permit, discharges resulting from fire fighting activities or other de minimis activities allowable under the MS4 regulations at 40 CFR 122.26.

Illicit discharge means any discharge to the MS4 that is not composed entirely of stormwater except discharges pursuant to a KPDES permit, other than the KPDES permit for discharges from the municipal separate storm sewer, and discharges resulting from fire fighting activities, or other de minimis activities allowable under the MS4 regulations at 40 CFR 122.26.

Institutional facility means any facility used for institutional purposes, including schools, colleges, universities, hospitals and churches.

Commercial facility means any facility used for commercial purposes.

Waters of the United States means waters as defined in 40 CFR 122.2.

Erosion means the process by which the ground surface is worn away by the action of wind or water.

Excavation or cut means any act by which soil or rock is cut into, dug, quarried, uncovered, removed, displaced or relocated, and shall include the conditions resulting therefrom.

Fill means a deposit of soil, rock or other non-deteriorating material used by man, to replace or supplement the original soil or sub-soil.

Grading means any stripping, excavating, filling, stockpiling of soil or any combination thereof, and shall include the land in its excavated or filled condition.

Natural features means features including but not be limited to, existing water courses, soils, vegetation (including grasses, shrubs, legumes, etc.) and tree stands having trees five (5) inches or greater in diameter or fifteen (15) feet or greater in height, whichever is less.

Existing land surface means any ground surface in its existing state before any grading, excavation, filling, or other disturbance. The existing land surface would include areas that were previously disturbed and are covered with asphalt, concrete, brick, or similar materials. The area of disturbance of existing land surface includes areas where dirt or debris is stockpiled.

Sediment means any solid material, both mineral and organic that is in suspension, is being transported, or has been moved from its site or origin by air, water or gravity as a product of erosion.

Slope means any inclined, exposed surface of a fill, excavation, or natural terrain.

Soil means all earth material of whatever origin that overlies bedrock, and may include the decomposed zone of bedrock, which can be readily excavated by mechanical equipment.

Clearing means any activity which removes or significantly disturbs the vegetative surface cover, including stripping and grubbing operations.

Common plan of development means any announcement or piece of documentation (e.g., sign, public notice, or hearing, sales pitch, advertisement, drawing, permit application, zoning request, computer design, etc.) or physical demarcation (e.g., boundary signs, lot stakes, surveyor markings, etc.), indicating construction activities may occur on a specific plot. Where discrete construction projects within a larger plan of development or sale are located one-quarter-mile or more apart and the area between the projects is not being disturbed, each individual project can be treated as a separate plan of development or sale, provided any interconnecting road, pipeline, or utility project that is part of the same "common plan" is not currently being disturbed.

Linear utility line construction project means a project that will result in the disturbance of the existing land surface through clearing, grading, excavating, or filling activities along a relatively narrow strip of land for the purpose of installing, repairing, removing, or maintaining a pipeline, sewer, cable, wire, culvert, or other type of conduit. An individual linear utility line construction project includes non-contiguous disturbances that are associated with an overall utility line project that serves a common purpose.

Intermittent stream means a stream which flows periodically in an established channel or bed where groundwater provides water for part of the stream flow. Channels that only flow in direct response to and immediately after precipitation are not intermittent streams.

Perennial stream means a stream that has continuous flow in parts of its bed all year round during years of normal rainfall.

Wetland means land that has a predominance of hydric soils and that is inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances does support, a prevalence of hydrophytic vegetation typically adapted for life in saturated soil conditions.

Storm sewer inlet means the surface inlet entry point to a subsurface stormwater pipe, conduit, or culvert.

Buffer means a strip of vegetated undisturbed land.

New residential or commercial building means a new building that will be occupied by persons for residential or commercial purposes, including homes, office buildings, townhomes, and retail establishments. Renovations of existing buildings or structures are not new buildings.

Day shall mean a calendar day unless otherwise specified.

Disturbance means any land disturbance activity that may result in soil erosion, including but not limited to, clearing, grubbing, stripping, grading, excavation, demolition, or soil stockpiling.

Regular inspections means at least once every seven (7) calendar days, or at least once every fourteen (14) calendar days, and within twenty-four (24) hours after any storm event of one-half-inch or greater.

Engineering manuals means that set of documents used to provide the standards for the design, review, construction, repair, and inspection of infrastructure in Lexington-Fayette County. These are also known as the engineering manuals or as the manuals. The engineering manuals consist of the procedures manual for infrastructure development (also known as the procedures manual), the construction inspection manual (also known as the inspection manual), the geotechnical manual, the roadway manual, the structures manual, the stormwater manual, and the sanitary sewer and pumping station manual (also known as the sewer manual). These manuals, including the definitions therein, are hereby adopted and incorporated into this Code by reference. From time to time, the urban county government may revise, modify, or amend the manuals in conformance with the procedures established in the procedures manual.

(g) With relation to article XII of this chapter the following definitions apply:

(1) Confidential business information or trade secret means any record or other information which is not of public knowledge or general knowledge in the trade or business, furnished to or obtained by the department of environmental quality, the disclosure of which would be likely to have either of the following effects:

(a) To impair the department's ability to obtain the necessary information in the future; or

(b) To create an unfair advantage in the competitors of the person from which the information was obtained.

Confidential business information and trade secrets do not include monitoring data or information collected or recorded to determine compliance with chapter 16 or the impact of operations on the environment.

(2) Day means a calendar day.

(3) All definitions in subsections 16-1(a), (c) and (f) are incorporated by reference and have the same meanings with relation to article XII.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 173-87, § 3, 7-16-87; Ord. No. 165-89, §§ 1, 2, 8-31-89; Ord. No. 251-89, § 3, 12-14-89; Ord. No. 286-90, § 1, 12-18-90; Ord. No. 234-91, § 1, 11-14-91; Ord. No. 122-93, § 1, 6-17-93; Ord. No. 268-95, § 3, 11-30-95; Ord. No. 43-97, §§ 1, 2, 3-20-97; Ord. No. 196-98, §§ 1—3, 7-2-98; Ord. No. 14-99, §§ 1, 2, 1-28-99; Ord. No. 148-2000, § 1, 6-1-00; Ord. No. 174-2001, §§ 4, 5,

7-5-01; Ord. No. 282-2003, § 1, 12-4-03; Ord. No. 36-2009, § 1, 3-26-09; Ord. No. 142-2009, §§ 1—6, 7-7-09; Ord. No. 143-2009, §§ 1, 2, 7-7-09; Ord. No. 151-2010, § 1, 8-26-10; Ord. No. 130-2012, § 1, 10-25-12; Ord. No. 217-2016, § 1, 12-6-16; Ord. No. 048-2025, § 1, 6-26-25)

Sec. 16-2. Enforcement.

The commissioner of the department of environmental quality is hereby authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the provisions of this chapter, including the following powers in addition to any other herein granted:

(1) To enter upon all properties within the urban county for the purposes of inspection, observation, measurement, sampling and testing as reasonably necessary to enforce the provisions of this chapter.

(2) To appoint and fix the duties of such officers, agents and employees as he deems necessary to carry out the purposes of this chapter.

(3) To delegate any of his functions or powers under this chapter to such officers, agents and employees as he may designate.

(4) To promulgate regulations which may be necessary to carry out and effectuate the provisions of this chapter.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 251-89, § 4, 12-14-89; Ord. No. 143-2009, § 3, 7-7-09)

Sec. 16-2.1. Compliance with engineering manuals.

(a) Any person engaged in the design, review, construction, repair, and/or inspection of infrastructure in Lexington-Fayette County is required to comply with the engineering manuals of the Lexington-Fayette Urban County Government, as revised, modified, or amended from time to time. For purposes of this section, "engineering manuals" shall be defined as set forth in section 16-1(c)(19) of the Code.

(b) Any failure to comply with the requirements of the engineering manuals, as revised, modified, or amended from time to time, constitutes a violation that is subject to civil enforcement consistent with the procedures set forth in chapter 16, article XII of the Code.

(Ord. No. 159-2016, § 1, 9-15-16)

Article II

Refuse Collection

Sec. 16-3. Roll cart container service.

(a) The urban county government will provide a roll cart container to every residential property which is currently within the full urban service district or a partial district which provides for refuse collection. For multi-unit residential properties, the urban county government will, subject to the provisions of Code of Ordinances section 16-4(b), provide a roll cart container for each unit which contains kitchen facilities. Roll cart containers for recyclable materials will be provided to the above-noted properties upon request. Residents who have received a medical exemption from the roll cart collection by the urban county government may be provided a refuse collection container but will not be subject to ordinances regulating placement of roll cart containers or roll cart containers for recyclable materials at the curbline but will be subject to all other applicable ordinances.

(b) The urban county government will, subject to the provisions of Code of Ordinances section 16-4(b), provide a roll cart container or containers to office, commercial and industrial units, apartment complexes or other buildings in the urban county which are currently in the full urban service district or a partial district which provides for refuse collection.

(c) The urban county government may provide an additional roll cart for the separate collection of recyclable materials to any property receiving the roll cart container service.

(d) The commissioner of the department of public works and the director of the division of solid waste will determine the appropriateness and feasibility of roll cart container(s) at locations in the downtown collection area. If roll cart container(s) are not deemed feasible or appropriate at a given location, the commissioner or director shall designate appropriate containers for setout and collection at the location.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 286-90, § 2, 12-18-90; Ord. No. 43-97, § 3, 3-20-97; Ord. No. 14-99, § 3, 1-28-99; Ord. No. 112-2001, § 1, 5-24-01)

Sec. 16-3.1, 16-3.2. Reserved.

Editor's note(s)—Ord. No. 143-2009, § 4, adopted July 7, 2009, repealed §§ 16-3.1 and 16-3.2. Former §§ 16-3.1 and 16-3.2 pertained to civil citations and violations and penalties, respectively, and derived from Ord. No. 282-2003, §§ 2, 3, adopted Dec. 4, 2003.

Sec. 16-4. Dumpster container service.

(a) The urban county government will provide collection service for dumpster containers as described in the division of waste management Dumpster Service Guide at any multifamily residential structure, office, com-

mercial and industrial unit, or other building within the full urban services district or a partial urban services district which provides for refuse collection, upon request, subject to the approval of the commissioner of environmental quality.

(b) Dumpster containers will be required to be furnished at the expense of the owner and shall meet the screening requirements contained in section 16-4.1 at the following locations:

(1) Apartment buildings, townhouses or condominiums of seven (7) units or larger.

(2) All office, commercial and industrial units or other buildings, including apartment complexes, townhouse complexes and condominium complexes, which, as determined by the commissioner of environmental quality generate a sufficient amount of refuse to warrant the use of a dumpster (approximately eight (8) cubic yards per any collection day or three (3) or more roll cart containers of refuse normally).

(3) Exempt from this requirement are existing apartment buildings, office, commercial and industrial units or other buildings which the director of waste management determines either do not have sufficient space to properly locate a dumpster or have special circumstances which make the use of a dumpster at that location wholly impracticable. Existing properties which have sufficient space but do not have dumpster collection may be ordered to change type of service and comply with subsection 16-4.1(a)(4) by the commissioner of environmental quality within one hundred twenty (120) days of formal written notice. Failure to comply with the order to change service will result in enforcement action pursuant to article XII.

(4) Properties otherwise subject to subsections (1) and (2) may be approved by the director of waste management for rollcart service upon request, provided the property is in compliance with subsection 16-4.1(a)(3) and (4) and waste generation from the property is not sufficient to require dumpster service. Should waste generation at the property increase so that rollcart service is not sufficient the property shall be required to change to dumpster service as provided in subsections (1) and (2) and the Dumpster Service Guide.

(5) Where rollcart containers are permitted pursuant to subsection (3) or (4), the urban county government shall make a maximum of two (2) collections per week from each exempted establishment.

(c) The urban county government may provide an additional dumpster collection service for the separate collection of recyclable materials to any property receiving dumpster collection service. Recycling dumpster containers must be furnished at the expense of the owner in accordance with subsection (b) above.

(d) The director, Division of Waste Management, shall have the authority to designate the location for collection with consideration for such factors as: ease of accessibility, convenience for customers, hazardous conditions

such as cables, utility poles, equipment clearance, animals, and collection costs. Dumpster service truck operators are not to maneuver the truck in a reverse position beyond fifty (50) feet. Dumpster service truck operators will not back out onto a public roadway.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 286-90, § 3, 12-18-90; Ord. No. 97-2001, § 1, 5-3-01; Ord. No. 296-2004, § 1, 12-2-04; Ord. No. 143-2009, § 5, 7-7-09; Ord. No. 120-2010, § 1, 7-1-10; Ord. No. 048-2025, § 2, 6-26-25)

Sec. 16-4.1. Dumpster screening requirements; requirements for obtaining permit; location and maintenance of dumpsters.

(a) All dumpsters shall be screened except when located in any B-4, I-1 or I-2 zone. Dumpsters in the B-4, I-1 and I-2 zones shall be screened when located within one hundred (100) feet of any zone except B-4, I-1 or I-2. Existing properties with dumpsters located in these zones and which are not screened may be required to be screened within one hundred twenty (120) days of formal written notice by the director of the division of waste management. The screening requirements shall be as follows:

(1) The dumpster area must be screened on three (3) sides using material consisting of stone, brick, concrete block, wood or a continuous planting of evergreens. Screens of stone, brick, concrete block or wood shall have eighty (80) percent opacity (80% solid); evergreen plantings shall be placed two (2) per side on three (3) sides and be six and one-half (6½) feet tall and one and three-quarter (1¾) inches in diameter at installation. Whenever evergreens are used as screening material, they shall be promptly replaced if and when they should die.

(2) The height of screening material shall be eight (8) feet from the surface of the concrete pad to the top of the dumpster screening.

(3) The opening for removal of the dumpster for collection must be a minimum of twelve (12) feet in width (for each additional dumpster, add ten (10) feet) and when doors are provided, some means of retaining the door in an open position while servicing must be provided.

(4) A concrete pad sufficient to support the dumpster and the front wheels of the dumpster collection vehicle shall be required where the existing foundation, as determined by the director of the Division of Waste Management, is not adequate to support the dumpster and the collection vehicle and bollards shall be installed which are sufficient to protect any adjacent structure(s) and allow access to the dumpster. Bollards sufficient to protect the dumpster enclosure shall be installed per the dumpster service standards.

(b) No dumpster or screening as required above, regardless of whether collection service will be provided by the urban county government or by private hauler, shall be permanently placed or constructed upon any site without first obtaining a permit from the director of the division of waste management.

(1) In order to obtain such permit, an application accompanied by a plat of the property on which the dumpster and screening is to be located, drawn to scale and showing the location of all structures, pub-

lic rights-of-way, and the location of the proposed dumpster and all required screening, shall be submitted to the director of the division of waste management. All dumpster enclosures will be inspected by the Division of Waste Management to determine whether the enclosure conforms to the plans provided in the initial application. Deviation from the initial application or the dumpster service standards may result in the denial or revocation of the dumpster permit. The plat shall contain a statement that it is a true and accurate depiction of the site shown thereon and be signed by the owner or person who has charge, care or control of the premises. A fee in the amount of twenty-five dollars ($25.00) shall be paid to the Division of Waste Management prior to issuance of any dumpster and screening permit except as provided in subsection (b)(3).

(2) Any dumpster or screening placed or constructed without a permit as required by this subsection shall be removed within forty-eight (48) hours of notice to the person responsible for placement of the dumpster or screening unless a permit is immediately obtained as provided in subsection (b)

(3) The notice shall state that a civil citation may be issued if two (2) or more notices to remove unpermitted dumpsters or screening have been issued to the same person within any six-month period, notwithstanding whether a permit was obtained after the prior notices.

(3) A permit may be granted for a dumpster or screening which was placed without a permit upon compliance with the requirements of this section and payment of a fee in the amount of one hundred dollars ($100.00) to the director of waste management prior to issuance of the permit.

(c) No dumpster shall be located closer than ten (10) feet to any abutting residential property line. No dumpster shall be located in such a manner that the unscreened side shall be visible from any public right-of-way. Whenever, in the opinion of the director of the division of waste management, a dumpster and/or the screen cannot be located upon a particular side so as to conform with these requirements, or there are special circumstances which make the requirements wholly impracticable, the director may designate a location for the dumpster which in his discretion is the most accessible and aesthetically appropriate or make exemptions from the requirements as necessary.

(d) All dumpsters, regardless of whether collection service will be provided by the urban county government or by private hauler, shall be maintained in a safe and sanitary condition and shall be cleaned by the owner/occupant of the dumpster site as often as necessary to prevent the dumpster from becoming malodorous. Litter and debris, e.g. wooden pallets, mattresses, furniture, tires, or grease receptacles, shall not be allowed to accumulate around the dumpster, and all refuse shall be deposited in such manner as to prevent it from blowing out of the dumpster.

(e) No special handling waste, hazardous waste, medical waste, paints, solvents, flammable liquids or hot ashes shall be placed in any dumpster for which the urban county government provides collection service. The commissioner of environmental quality, upon consultation with the director of the division of waste management, is hereby authorized to promulgate further regulations regarding dumpsters in order to provide standards for the location and maintenance of not in conflict with this section.

(f) No properly permitted dumpster, regardless of whether collection service is provided by the urban county government or by private hauler, shall be removed from any site unless the division of waste management has been notified at least forty-eight (48) hours before the dumpster is removed. Failure to provide notice may result in the issuance of a civil citation.

(g) Any person who fails to perform the duties required of him by the provisions of this section or who shall cause a dumpster to be located, maintained or filled in violation of this section shall, for every offense not abated within forty-eight (48) hours following notice to the person responsible for payment of the solid waste disposal fee for the dumpster, be subject to the penalty provisions in article XII and each day's continuance of any such violation shall be a separate offense. The urban county government may choose to abate the condition in accordance with section 16-8. In addition to the above remedies, where collection would pose a safety or health threat or may damage collection equipment, service may be suspended by the government when prohibited material or items are placed in the dumpster, until such time as the prohibited material is removed.

(Ord. No. 173-87, § 1, 7-16-87; Ord. No. 14-99, § 4, 1-28-99; Ord. No. 97-2001, §§ 2—4, 5-3-01; Ord. No. 282-2003, § 4, 12-4-03; Ord. No. 296-2004, § 2, 12-2-04; Ord. No. 143-2009, § 6, 7-7-09; Ord. No. 120-2010, § 2, 7-1-10; Ord. No. 048-2025, §§ 3-7, 6-26-25)

Sec. 16-5. Special handling waste collection.

The urban county government does not collect special handling wastes or hazardous wastes. Residential units, office, commercial and industrial units and other buildings shall contract privately for the removal of special handling wastes and hazardous wastes.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 14-99, § 5, 1-28-99)

Sec. 16-6. Refuse collection procedures.

(a) It shall be the duty of owners, proprietors, occupants or persons in charge of every dwelling house, office, commercial and industrial unit or other building in the urban county to place or cause to be placed all garbage and trash accumulating on the premises in regulation roll cart containers provided by the urban county government. Exceptions include residents who have received a medical exemption, units having dumpster collection, residences or buildings where roll carts are not feasible for collection and those units serviced privately. The container provided by the government shall be rolled to the curb by residents, owners or occupants on their regularly scheduled collection day. Both garbage and trash may be placed in the roll cart container. No person shall block access to or cause access to be blocked to a roll cart container that has been placed for collection at the curb.

(b) It shall be the duty of owners, proprietors, occupants and persons in charge or control of, and using, any place or premises in the urban county fronting on a street, alley or other public right-of-way to maintain the portion of the street, alley or other public right-of-way adjacent to the place or premises in a condition free

from solid waste. For the purposes of this section, the portion of a street, alley or other public right-of-way adjacent to a place or premises includes any walkway, trail, sidewalk, parkway, curb and gutter, and the travel lane portion of the roadway on the side of the street or alley adjoining the property.

(c) Anything left or placed within a three-foot radius of any refuse container shall be deemed as placed or left there for collection, and the urban county government and its employees shall not be liable for the removal thereof; however, improper preparation or placement of items for collection shall be subject to the abatement process set forth in subsection 16-8(d).

(d) The director, division of waste management, shall have the authority to designate the location for collection with consideration for such factors as: ease of accessibility, convenience for residents; hazardous conditions such as cables, utility poles, equipment clearance, animals; and collection costs.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 14-99, § 6, 1-28-99; Ord. No. 97-2001, § 5, 5-3-01; Ord. No. 296-2004, § 3, 12-2-04; Ord. No. 120-2010, § 3, 7-1-10)

Sec. 16-6.1. Recycling at community activities on urban county government property.

(1) A Community Activity subject to these requirements is any event on urban county government property or using urban county government buildings which is reasonably expected to be attended by three hundred (300) or more individuals in a twenty-four-hour period.

(2) The agency or individual sponsoring the Community Activity shall designate one person, known as the Coordinator, to be responsible for implementation of these requirements.

(3) No later than thirty (30) days prior to the Community Activity, the Coordinator shall contact the Division of Waste Management and arrange to have the division deposit and collect containers for recyclable waste at the location of the Community Activity. The Coordinator shall be responsible for the arrangement of the containers for recyclable waste throughout the Community Activity. The Coordinator shall be responsible for educating others associated with the Community Activity about what and how to recycle, and encouraging persons associated with the Community Activity to recycle.

(4) Failure to contact the division as provided in subsection (3) may result in cancellation of the Community Activity.

(5) The division shall provide containers specifically designed to collect recyclable waste and the Coordinator for the Community Activity shall ensure that the recyclable waste containers are properly positioned and that the recyclable wastes and containers are returned to a central location/container to be collected by the division.

(6) All organizers of Community Activities are encouraged to require providers of goods and vendors at the Community Activity to package their items in locally reusable or recyclable material.

(7) The division shall provide all reasonable assistance to the Coordinator to plan for, organize and otherwise successfully collect and dispose of recyclable waste at the Community Activity.

(8) The Director of the division is authorized to promulgate regulations to carry out the purposes of this section.

(Ord No. 134-2008, § 1, 6-12-08)

Sec. 16-6.2. [Pickup of small animal carcasses at veterinarian offices; roll-off refuse containers available to residents upon request; fees.]

(a) The division of waste management will pick up carcasses of small animals such as dogs, cats, rabbits, gerbils, or other typical household pets at the offices of veterinarians located in the division of waste management refuse collection service area. Such pickups will be scheduled by the division upon request. The fee for each pickup shall be forty-five dollars ($45.00) with a maximum of five (5) animals per pickup.

(b) The division of waste management will provide a ten-cubic yard size "roll off" refuse collection container upon request for properties within the urban services boundary. The fee for the container shall be ninety dollars ($90.00) per weekday. The fee shall be adjusted each year on July 1 to account for changes in the Consumer Price Index for All Urban Consumers (CPI-U) as reported by the U.S. Department of Labor. Notice of the adjusted fee shall be provided by publication of the adjusted fee on the urban county government's website.

(Ord. No. 32-2012, § 1, 3-22-12; Ord. No. 15-2018, § 1, 3-8-18)

Sec. 16-7. Containers for ashes.

Ashes will be kept in a separate, metal container not less than five (5) gallons nor more than thirty (30) gallons in size. Ashes containing hot embers shall not be placed in containers for collection.

(Ord. No. 126-83, § 1, 7-21-83)

Sec. 16-8. Procedure for using roll cart containers.

(a) It will be the responsibility of the property owners and/or occupant(s) of said property to keep the roll cart container provided by the urban county government reasonably secure and in good condition. If the urban county government container needs replacement due to normal wear and tear or because of some manufacturer's defect, a new container will be provided or repairs will be made at no charge. The urban county government will replace stolen or vandalized containers unless the urban county government determines that the property owner and/or occupant(s) clearly has been negligent in the care of his container. If so, the property owner and/or occupant(s) may be required to purchase replacement containers.

(b) The roll cart container may be filled to capacity as long as the lid can be closed and latched. The recommended weight capacity of two hundred (200) pounds shall not be exceeded. Within a cart, garbage and trash shall be contained in disposable plastic bags. The bags shall be leak proof, of sufficient strength to resist tearing under normal handling, and shall be securely tied. No special handling wastes, hazardous wastes,

medical waste, bricks, dirt, engine blocks or other excessively heavy material, hot ashes, paints, solvents or flammable liquids shall be placed in the container. Any canine feces (dog excrement) placed in the container must be contained in a securely closed doubled plastic bag.

(c) All establishments that are exempt from using the urban county government roll cart container or establishments that use containers for occasional excess garbage and trash in addition to the one provided by the urban county government will comply with the following regulations. All containers and receptacles must have covers. Regulation garbage containers shall be watertight containers equipped with tight-fitting covers sufficient to keep out water, prevent disturbance by animals and entrance of insects. Containers shall be neither less than five (5) nor more than thirty (30) gallons' capacity. All standard garbage containers shall be equipped with suitable handles by which they may be lifted. Tied plastic bags may be used for occasional excess trash placed at the curb.

(d) Material placed at the curb which does not meet the requirements set forth in this section or material which has not been properly prepared pursuant to subsection 16-9(a) or properly prepared and scheduled for special collection pursuant to section 16-14 shall, if not corrected within the time period provided in the notice of violation, be subject to abatement by the urban county government with all costs for such abatement to be billed to the property owner pursuant to the procedures set forth in this article and the property owner shall further be subject to the penalty provisions of article XII.

(e) When refuse is not properly prepared in accordance with this section or subsection 16-9(a), or properly prepared and scheduled for special collection pursuant to section 16-14, it shall be deemed a nuisance pursuant to state law and Chapter 12 of the Code of Ordinances, and a notice of violation shall be affixed to the front door of the residence or structure by the director, division of waste management or his designee, listing the date and time the notice was issued and the defect to be cured before collection is continued and directing the abatement of the defect, either by proper preparation or removal of the refuse from the curb, within forty-eight (48) hours. The time period to abate shall commence upon attachment of the notice. A copy of this notice shall also be mailed, via regular mail, or transmitted by fax to the owner of the property as determined by reference to the records of the property valuation administrator, or to the owner's designee if the owner has filed notice of a designee pursuant to subsection 16-10(e). This notice shall state that a civil fine pursuant to article XII may be assessed if the violation continues or two (2) or more notices to abate have been issued to the same owner on the same property within any twelve-month period.

(f) If the violation is not abated following the expiration of the period of time to abate provided for in the notice, the urban county government may abate the condition and bill the property owner for the costs associated with such abatement pursuant to article XII. If a violation constitutes an immediate danger to the health and well being of the community the urban county government shall issue a citation for the violation and immediately abate the condition and bill the property owner for the costs associated with such abatement pursuant to article XII.

(g) The citation shall be served in the manner specified in Chapter 2B of the Code of Ordinances. A copy may also be provided to the subsection 16-10(e) designee.

(h) The urban county government shall have a lien against the property for its costs incurred in abating a nuisance condition pursuant to this article and any civil fines assessed for violations of this article, which shall be enforced as provided in chapter 2B and article XII.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 14-99, § 7, 1-28-99; Ord. No. 97-2001, § 6, 5-3-01; Ord. No. 282-2003, §§ 5—10, 12-4-03; Ord. No. 296-2004, § 4, 12-2-04; Ord. No. 143-2009, § 7, 7-7-09; Ord. No. 120-2010, § 4, 7-1-10; Ord. No. 77-2011, § 12, 6-23-11; Ord. No. 56-2017, § 6, 4-27-17)

Sec. 16-9. Maintenance and placement of roll cart container.

(a) Refuse containers and recycling containers shall be maintained in good condition. Any container that is not provided by the urban county government and does not conform to the provisions of this chapter or that may have ragged or sharp edges or any other defect liable to hamper or injure the person collecting the contents thereof must be promptly replaced by a proper receptacle. The combined weight of the any refuse container and its contents shall not exceed sixty (60) pounds. All bulk trash accumulated in residential, commercial or manufacturing buildings, such as cardboard containers, wooden crates and similar refuse, shall be flattened and tied in bundles or packed in suitable containers of a size that may be readily handled by one (1) collector, and in no case shall such bundle or container be larger than three (3) feet by four (4) feet. Woody landscape waste shall not exceed six (6) inches in diameter and shall be cut into lengths not exceeding four (4) feet and tied into bundles not to exceed sixty (60) pounds which can be readily handled by an individual collector. All nonresidential establishments which do not use dumpsters will comply with the regulations listed above. When any container is found to be in bad condition or when the refuse is not properly prepared in accordance with this section, a notice shall be affixed to the front door of the residence or structure by the director, division of solid waste or his representative, listing the defect to be cured before collection is continued. A copy of this notice shall also be mailed, via regular mail or transmitted by fax, to the owner of the property as determined by reference to the records of the property valuation administrator or to the owner's designee if the owner has filed notice of a designee pursuant to section 16-10(f). Failure to properly prepare refuse for collection shall entitle the urban county government, after such notice, to abate the defect and bill the property owner for the cost of such abatement as set forth in section 16-8.

(b) For residents who have received a medical exemption from roll cart collection, garbage containers shall be kept or placed at the most accessible place at the rear of the house or building or in unlocked areas or passageways thereof at ground level. Containers must be clearly visible to collectors as they enter the rear yard. Garbage containers shall not be kept upon the street, sidewalk, other public place, front yard or premises or below ground. Containers should not be kept in garages, on patios or in enclosed areas. Residents with exemptions from roll cart collection shall place receptacles for trash at the curb.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 14-99, § 8, 1-28-99; Ord. No. 97-2001, § 7, 5-3-01)

Sec. 16-10. Refuse collection schedules.

(a) In all areas of residential urban county government collection, garbage service will be provided once each week on the same day of each succeeding week. Collection of recyclable materials and yard waste in approved yard waste containers will be provided once each week on the same day as garbage service. Trash that will not fit in the roll cart container and that is properly prepared pursuant to this article will be collected once per week. When a scheduled refuse collection day falls on an urban county government holiday, refuse will be collected on a makeup collection day. The commissioner of environmental quality retains the right to adjust schedules in response to emergencies or severe weather.

(b) Roll cart containers, receptacles for properly prepared trash, roll cart containers for recyclable materials, approved yard waste containers and any other waste subject to collection by LFUCG be placed at the curb line in front of the residence for collection but shall not remain at the curb line longer than a reasonable time necessary for collection. Urban county government containers, other receptacles for trash and ashes and any other waste subject to collection by LFUCG shall be placed at the curb no sooner than 4:00 p.m. on the evening prior to collection and no later than 5:00 a.m. on the day of collection. Urban county government containers and other receptacles shall be removed from the curb no later than 7:00 p.m. in the evening on the day of collection. When not at the curb for collection, roll carts and other approved receptacles shall be kept in the rear yard or side yard. Nonwoody yard waste must be contained in approved yard waste containers and must not be placed in any other type container. Approved yard waste containers must not contain material other than yard waste.

(c) When a violation of subsection (b) has occurred the director, division of waste management, or his designee shall affix a notice of violation to the front door of the residence or structure, to the roll cart container or other conspicuous place and serve upon the property owner, by personal service or by regular mail to the last known address of the owner of the property as it appears on the current tax assessment roll, or to the owner's designee and to the occupant(s) if readily determinable, a notice describing the violation and listing the date and time of the violation and informing the property owner or his designee and the occupant(s) that a civil fine pursuant to article XII may be assessed if the violation continues or two (2) or more notices of violation have previously been issued to the same owner on the same property within a twelve-month period.

(d) An additional citation is authorized to be issued for each further violation of the same nature occurring in any twelve-month period, subject to any pending appeal of a previously issued citation. For the purposes of this section the term "responsible party" shall mean the occupant, if readily determinable in accordance with subsection (f). However, in the event that the occupant is not readily determinable, or in the event that the occupant has previously been issued a citation for a violation of this section within the past twelve (12) months and has failed to timely pay the corresponding civil fine or successfully appeal the citation, the citation shall be issued to the property owner.

(e) A property owner may provide written notice to the director of waste management with the name, address, and phone number of a management company or other designated representative with authority over the subject property to which notices shall be issued pursuant to the provisions of this article II.

(f) Occupant(s) shall be primarily responsible for compliance with the requirements of this section and shall be deemed readily determinable when listed as the party responsible for payment of the solid waste disposal fee at a property or when currently designated by the property owner on a form provided by and filed with the commissioner of environmental quality.

(g) It shall be a defense for a property owner for alleged violations of this section if the readily determinable occupant(s) have vacated the property or the owner has instituted an eviction proceeding against the occupant(s) within thirty (30) days of the third notice of violation and completed the eviction within sixty (60) days of the commencement of the proceeding or as soon as court procedures will allow. It shall be the responsibility of the property owner to provide, in writing, proof of the initiation of eviction proceedings and such other proof necessary to establish this defense.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 286-90, § 4, 12-18-90; Ord. No. 14-99, § 9, 1-28-99; Ord. No. 97-2001, § 8, 5-3-01; Ord. No. 282-2003, §§ 11—14, 12-4-03; Ord. No. 296-2004, § 5, 12-2-04; Ord. No. 143-2009, § 8, 7-7-09; Ord. No. 120-2010, § 5, 7-1-10; Ord. No. 15-2018, § 3, 3-8-18)

Sec. 16-11. Dumpster collection schedules.

(a) The urban county government shall make a maximum of two (2) collections per week from each establishment having dumpster containers. If a dumpster is blocked by a vehicle or is obstructed in any other way which prohibits access to a dumpster, the division of waste management will return for this collection only if collection schedules allow. If more collections are needed by certain establishments, a service charge shall be made for each additional dumpster container collected. The amount of the charge for each additional dumpster container collected shall be fifty dollars ($50.00) and shall be adjusted each year on July 1 to account for changes in the Consumer Price Index for All Urban Consumers (CPI-U) as reported by the U.S. Department of Labor. Notice of the adjusted fee shall be provided by publication of the adjusted fee on the urban county government's website. No dumpster containers will be collected or emptied by the urban county government if its collection equipment is required to pass over a curb. Such containers shall be placed and located as directed by the director of the division of waste management.

(b) A dumpster container will not be collected when in the opinion of the director of waste management the container is filled with special handling wastes, hazardous wastes, construction material, or when the combined weight of the container and its contents is of such an excessive weight, which is over 8,000 pounds, as to pose a threat to the proper functioning of the packer truck lifting equipment.

(c) Establishments using dumpster containers shall ensure that the container is placed at a point that is reasonably accessible for the purpose of collection. Such point shall not be in any public street, alley or sidewalk, or upon any public property of any nature. Dumpsters in extremely difficult locations may not be serviced if in the opinion of the director of the division of waste management a better, safer and more accessible location exists upon the property. Establishments shall see that dumpster containers are maintained in good condition. Any container with ragged edges, serious rust problems affecting the strength of the container or broken sleeves will not be serviced by the urban county government. Formal notice of the required dumpster

replacement will be given to property owners and/or tenants. Dumpster containers shall be cleaned as often as necessary by the owner/occupant to ensure that the container does not become malodorous and unsanitary.

(d) Temporary placement of dumpsters on rights-of-way for restoration or demolition work requires a permit from the division of engineering. The urban county government will not service temporary dumpsters.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 14-99, § 10, 1-28-99; Ord. No. 132-2007, §§ 3, 4, 6-21-07; Ord. No 15-2018, § 2, 3-8-18; Ord. No. 048-2025, § 8, 6-26-25)

Sec. 16-12. Garbage and refuse collection rates.

(a) The commissioner of public works is authorized to enter into agreements for terms of up to eighteen (18) months with property owners for the provision of garbage and refuse collection if:

(1) Their property is within the urban services boundary;

(2) Their property is not located in an urban services district providing garbage and refuse collection; and

(3) Private garbage and refuse collection is not available.

(b) The rate for the provision of garbage and refuse collection for each property within the urban services boundary which is not located within an urban services district providing garbage and refuse collection shall be $0.175 per one hundred dollars ($100.00) of the assessed value of the property per year. If garbage and refuse collection is provided for a fraction of a year, the above-mentioned rate shall be charged on a pro rata basis.

(Ord. No. 1-95, § 1, 1-12-95)

Sec. 16-13. Downtown collection.

(a) Garbage and trash collection shall be made during an a.m. cycle between 2:00 a.m. and 10:00 a.m. and a p.m. cycle between 2:00 p.m. and 10:00 p.m., including Saturdays and holidays, except Christmas, New Year's, Fourth of July and Thanksgiving within the following area: Main Street from Jefferson Street to Ransom Avenue; Vine Street and High Street from Broadway to Rose Street; Short Street from Felix Street to Deweese Street; Second Street from Broadway to Martin Luther King Jr. Boulevard; Church Street; Barr Street; Water Street; Mechanic Street; Pleasant Street; Broadway from Second Street to High Street; Mill Street; Upper Street from Third Street to High Street; Limestone Street from Third Street to High Street and the properties located at 203, 205, 207, 208, 210, and 212 South Limestone Street; Market Street; Martin Luther King Jr. Boulevard from Main Street to Third Street; DeWeese Street from Main Street to Second Street; Felix Street; Esplanade; and Cheapside. The aforementioned area shall be known as the downtown collection area. The collection applies to retail stores, hotels, restaurants, office buildings and houses in the center of town.

(b) Residential and nonresidential establishments within the downtown collection area, which do not use dumpsters, should place their receptacles or roll carts at the sidewalk at the curbline no sooner than one (1) hour before a collection cycle and no later than one (1) hour before the end of a cycle. Containers shall be removed from the sidewalks after collection and shall not be permitted to remain there.

(c) The urban county government may provide for separate downtown collection of recyclable materials from curbside receptacles maintained and collected in accordance with the provisions of subsection (a) above.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 89-88, § 1, 5-5-88; Ord. No. 286-90, § 5, 12-18-90; Ord. No. 112-2001, § 2, 5-24-01; Ord. No. 72-2013, § 1, 6-20-13)

Sec. 16-14. Special collections.

(a) The division of waste management will pick up carcasses of small animals such as cats, dogs, rabbits, squirrels and rats. It will not pick up the carcasses of large animals such as cows, horses or sheep.

(b) Appliances such as dryers, washing machines, hot water heaters, stoves, refrigerators, freezers and all other Freon appliances will be collected free of charge by calling the division of waste management. Refrigerator and freezer doors must be removed and the unit must be placed chest down on the curb.

(c) Items generated from residential units, such as televisions, tires off rims (up to four (4)), furniture, small scrap metal pieces, etc., will be collected free of charge by calling the Division of Waste Management. Calls must be made at least twenty-four (24) hours in advance of the requested special pick-up. There is a maximum of one (1) special pickup per week, in addition to the regular pickup. Dumpsters placed in an apartment complex, townhouse complex, or condominium complex will require a designated site for the collection of any special handling waste, such as furniture, tires, etc. The location of this site must be indicated in the dumpster permit application. This site must be at least six (6) feet away from the screening of any dumpster enclosure and must not impede access to any dumpster enclosure. Clear signage must be posted indicating the "Pickup Area."

(d) Building rubbish from demolition or remodeling activities will not be collected by the urban county government. Property owners shall contract privately for appropriate collection, removal and disposal of such waste.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 14-99, § 11, 1-28-99; Ord. No. 140-2013, § 1, 11-21-13; Ord. No. 048-2025, § 9, 6-26-25)

Sec. 16-15. Private garbage and refuse collection; interfering with containers.

(a) It shall be unlawful for any person to engage in the refuse collection business in the urban county without first obtaining a license from the urban county government.

(b) It shall be unlawful for any person to dump at the urban county government transfer station or the urban county landfill without first obtaining a dumping permit from the commissioner of public works.

(c) No person outside the urban county shall be issued a permit to use the urban county government's disposal site or facilities until such time as the facilities are expanded to properly provide this extended service. No person inside the urban county shall be issued a permit unless he is in the business of refuse collection through a contractual arrangement with his customers living within the urban county, or unless he represents a commercial establishment within the urban county making regular hauls of refuse.

(d) Such license and permit, listed above, may be revoked by the urban county government upon evidence that the nature of collection or disposal is not in conformity with the requirements of this chapter or such further rules as may be adopted.

(e) Refuse collection contractors, as specified in subsection (c) hereof, shall pay the urban county government for dumping at the urban county government landfill such sum as determined by the urban county government to defray the cost of operation.

(f) It shall be unlawful for any person, other than refuse collectors in the division of waste management and a person duly licensed to collect, haul, convey or transport any of the waste materials herein mentioned, to interfere in any manner with the receptacles: containing any such waste materials, or to remove any such receptacle from the location where placed by the owner thereof, or to remove any of the contents of such receptacles. Peace officers in the execution of their official duties are exempt from this section.

(g) Notwithstanding any other provisions of this section, the commissioner of public works is hereby empowered, in his discretion, to issue temporary permits for dumping.

(h) Pursuant to subsections (e) and (g) of this section, the "dumping fee" for the use of the urban county government's landfill for demolition and construction refuse and refuse from land subdivision clearing, shall be determined by the commissioner of public works and a rate schedule shall be published periodically and maintained and shall contain the rates for such dumping fees. Any fees imposed by this subsection remaining unpaid for more than thirty (30) days after they are billed shall bear interest at the rate of one and one-half (1½) percent per month.

(i) The department of law is authorized and directed to institute legal proceedings in the name of the urban county government in any court having jurisdiction over such matter for the collection of delinquent landfill dumping fees, and to take any actions necessary in such proceedings to protect the interests of the urban county government. The commissioner of finance shall refer cases to the department of law upon a determination that all other collection efforts have failed.

(j) The mayor is authorized and directed to execute a release of any lien or lis pendens filed of record upon payment in full of the delinquent landfill dumping fees and applicable costs or upon conclusion of court pro-

ceedings which result in a sale of the property regardless of whether any proceeds of the fees and costs were paid from the proceeds of the sale. The department of law shall cause this release to be filed in the county clerk's office.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 267-86, § 1, 12-18-86; Ord. No. 166-89, § 1, 8-31-89; Ord. No. 114-90, § 1, 6-14-90; Ord. No. 154-91, § 1, 7-18-91; Ord. No. 167-91, § 1, 7-18-91; Ord. No. 145-92, § 1, 8-27-92; Ord. No. 66-93, §§ 1, 2, 4-27-93; Ord. No. 201-95, § 1, 9-7-95; Ord. No. 166-98, § 1, 6-25-98; Ord. No. 132-2007, §§ 3, 4, 6-21-07; Ord. No. 159-2011, § 1, 12-6-11)

Sec. 16-15.1. Appointment of appeals board.

The appeals board referred to in article II of this chapter shall mean the environmental hearing board created and established in article IX of this chapter.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 97-2001, § 9, 5-3-01)

Sec. 16-16. Solid waste disposal—Funding for operational and capital costs.

It is hereby determined that the most accurate, appropriate, effective and equitable method of apportioning and funding the operational and capital costs of solid waste disposal is a user fee for properties within the full urban services district or a partial urban services district providing refuse collection and for other properties receiving collection service from the urban county government.

(Ord. No. 138-95, § 2, 6-20-95)

Sec. 16-16.1. Same—Rates and charges.

Rates and charges for landfill-solid waste disposal are hereby established as follows:

Schedule A: The landfill-solid waste disposal fee for roll cart containers or roll cart container equivalents shall be four dollars and fifty cents ($4.50) per container per month.

Schedule B: The landfill-solid waste disposal fee for dumpster containers (8CY) shall be forty-eight dollars and twenty cents ($48.20) per container per month. Schedule C: The landfill-solid waste disposal fee for dumpster containers (6CY) shall be thirty-six dollars and fifteen cents ($36.15) per container per month.

Schedule D: The landfill-solid waste disposal fee for dumpster containers (4CY) shall be twenty-four dollars and ten cents ($24.10) per container per month. Schedule E: The landfill-solid waste disposal fee for dumpster containers (2CY) shall be twelve dollars and five cents ($12.05) per container per month.

(Ord. No. 138-95, § 3, 6-20-95; Ord. No. 188-95, § 1, 8-31-95; Ord. No. 43-97, § 4, 3-20-97; Ord. No. 49-2013, § 1, 5-2-13)

Sec. 16-16.2. Same—Billing.

(a) The rates and charges for landfill-solid waste disposal as established by section 16-16.1 shall be billed on a monthly basis.

(b) Bills for landfill-solid waste disposal shall be due when rendered; and the face amount, without penalty or interest, shall be paid on the due date.

(c) All unpaid landfill-solid waste bills are subject to penalty and interest charges to be computed as follows:

(1) Any unpaid landfill-solid waste disposal bill or a portion of any unpaid bill remaining unpaid for more than twenty (20) days from the date of billing may be assessed a penalty of ten (10) percent of the unpaid balance.

(2) In addition to the penalty provided in subsection (c)(1) of this section, any landfill-solid waste disposal bill or a portion of any such bill remaining unpaid for more than thirty (30) days from the date of billing shall be assessed an interest charge at the statutory rate, which shall be on file with the division of revenue against the unpaid balance of such bill.

(d) The department of law is authorized and directed to institute legal proceedings in the name of the urban county government in any court having jurisdiction over said matter for the collection of delinquent landfill-solid waste disposal fees and charges, and to take any action necessary in such proceedings to protect the interests of the urban county government.

(e) The mayor is authorized and directed to execute a release of any lien or lis pendens filed of record upon payment in full of the delinquent landfill-solid waste disposal fees and applicable costs or upon conclusion of court proceedings which result in a sale of the property regardless of the fees and costs paid from the proceeds of the sale. The department of law shall cause this release to be filed in the county clerk's office.

(f) The commissioners of the departments of finance and public works may prescribe such regulations and procedures necessary to carry out the program authorized herein.

(Ord. No. 138-95, § 4, 6-20-95; Ord. No. 188-95, § 2, 8-31-95; Ord. No. 2-96, § 1, 1-11-96; Ord. No. 44-97, § 1, 3-20-97; Ord. No. 85-2012, § 1, 7-5-12; Ord. No. 84-2013, § 1, 7-9-13; Ord. No. 117-2013, § 1, 9-26-13)

Sec. 16-16.3. Landfill user fee assistance program.

(a) As used in this section, the following terms shall have the meanings given:

(1) Assets test means that any person having assets in excess of either:

(i) Five thousand dollars ($5,000.00) in liquid assets such as bank accounts, savings, certificates of deposit, stocks, bonds, etc.; or

(ii) Five thousand dollars ($5,000.00) in equity in assessed value of non-homestead property;

shall be ineligible to participate in the program, notwithstanding that he meets the income qualifications set forth in this section. However, motor vehicles for personal use, household furnishings and the benefitted property itself, as well as buildings located thereon which are occupied by the person seeking to qualify as a home for himself and his family, shall not be included in computing assets.

(2) Income means gross income as defined in Section 61 of the Internal Revenue Code.

(3) Program means the assistance program established in this section.

(4) Qualified customer means a person responsible for a residential landfill user fee (schedule A) for their place of residence or a person responsible for fees paid to a landfill for dropping off garbage and refuse from their place of residence who meets the assets test and has an annual income equal to or less than one hundred fifty (150) percent of the poverty income levels set forth in the poverty guidelines chart established by the community services administration, annually published in the Federal Register, in effect at the time of application. Income shall be measured by the definition contained in subsection (a)(2) of this section.

(b) Qualified customers may receive an assistance grant for fifty (50) percent of their landfill user fee bill (schedule A or drop-off fees paid at a landfill). All payments of landfill user fee bills under the program by the urban county government are subject to the annual appropriation by the urban county council of the funds to make such payments, and neither the establishment of this program nor participation in the program shall constitute a contract between the urban county government and any qualified customer for other than the fiscal year for which funds are appropriated to make payments. In the event funds are not appropriated for any given fiscal year, customers will be required to pay the full cost for that year.

(c) The administration of this program shall be under the division of community and resident services in the department of housing advocacy and community development. The commissioners of the departments of finance, environmental quality and public works, and housing advocacy and community development may prescribe such regulations and procedures consistent with the provisions of this section as deemed necessary to carry out the intentions stated herein.

(Ord. No. 212-95, § 1, 9-21-95; Ord. No. 70-98, §§ 1, 2, 3-19-98; Ord. No. 067-2023, § 1, 6-29-23)

Sec. 16-16.4. [Refund claim; time period for filing.]

Any person or entity responsible for payment of a landfill-solid waste disposal bill who believes that the bill or amount of the bill is in error may file for a refund within two (2) years of the date of billing. Such claim shall be made in writing to the director, division of revenue, on a form provided by the division. The director or his or her designee shall review the claim and respond in writing within thirty (30) days of the filing. The decision of the director or designee shall be final. The division of revenue may prescribe such regulations, policies, or guidelines consistent with the provisions of this section as deemed necessary or appropriate to carry out the intentions stated herein.

(1) Any overpayment may be credited against the amount of a future bill(s).

(2) The two-year limitation period for refunds or credits shall be in effect for any filing for a refund or credit submitted on or after August 1, 2012.

(Ord No. 85-2012, § 2, 7-5-12)

Sec. 16-16.5. Reserved.

Editor's note(s)—Ord. No. 174-2010, § 1, adopted Oct. 21, 2010, repealed § 16-16.5. Former § 16-16.5 pertained to appeal and derived from Ord. No. 97-2001, § 11, adopted May 3, 2001; and Ord. No. 282-2003, § 16, adopted Dec. 4, 2003.

Article III

Refuse Disposal

Sec. 16-17. Collection and transportation of solid waste.

(a) The solid waste collector shall be responsible for satisfactory collection and transportation of all solid waste to a disposal site or facility.

(b) Vehicles or containers used for the collection and transportation of garbage or refuse containing garbage shall be covered, leakproof, have an enclosed body, be durable and be of easily cleanable construction. These shall be cleaned as often as necessary to prevent a nuisance or insect breeding and shall be maintained in good repair. No vehicle used for collection and transporting of garbage shall be parked in a residential area overnight.

(c) Vehicles or containers used for the collection and transportation of any solid waste shall be loaded and moved in such a manner that the contents will not fall, leak or spill therefrom, and shall be covered when necessary to prevent blowing of material. If spoilage should occur, the material shall be picked up immediately by the solid waste collector and returned to the vehicle or container and the area properly cleaned.

(d) The owner of any vehicle used for the collection of garbage and putrescible material must provide adequate facilities for the cleaning of such vehicle.

(e) No solid waste or junked motor vehicles collected from any source other than a source within the urban county may be deposited without prior written approval of the commissioner of public works. Such approval may only be given when, in the opinion of the commissioner, an emergency situation which may be hazardous to the health and safety of the residents of another county exists.

(Ord. No. 126-83, § 1, 7-21-83)

Sec. 16-18. Permit required.

No person shall dispose of solid waste on any property within Fayette County unless that person has obtained any required permit coverage for the disposal from the Kentucky Division of Waste Management and is in compliance with all terms and conditions of such permit, including environmental performance standards under 401 KAR 47:030.

(Ord. No. 143-2009, §§ 9, 10, 7-7-09)

Sec. 16-19. Notice required.

Any person that manages or disposes of solid waste within Fayette County pursuant to a Registered Permit-by-Rule under 401 KAR Chapter 47 or disposes of solid waste within Fayette County pursuant to a permit issued by the Kentucky Division of Waste Management under 401 KAR Chapter 48 shall provide written notice of the solid waste management or disposal activity to the department of environmental quality by January 31 of each year. The notice shall contain the following information:

1. Facility operator name and address;
2. Permit type and permit number, if any;
3. Facility location;
4. Description of solid waste management activities;
5. Facility contact name and telephone number for obtaining information regarding permitted activities;
6. Status of the facility's compliance with permit terms and conditions; and
7. Anticipated operating life of facility.

(Ord No. 143-2009, §§ 9, 11, 7-7-09)

Sec. 16-20—16-28. Reserved.

Editor's note(s)—Ord. No. 143-2009, § 9, adopted July 7, 2009, repealed §§ 16-18—16-28. Sections 16-18 and 16-19 were recreated by §§ 10 and 11 of said ordinance. Former §§ 16-18—16-28 pertained to sanitary landfills, access and site improvement; operation; closing a landfill; penalties; powers and authority of inspector; citizens' committee—created; membership; terms; meetings; duties and functions of committee; and notification of proposed change in policy, etc., respectively, and derived from Ord. No. 126-83, § 1, adopted July 21, 1983; and Ord. No. 286-90, § 6, adopted Dec. 18, 1990.

Article IV

Nuisance Abatement

Sec. 16-29—16-34. Reserved.

Editor's note(s)—See the editor's note to § 12-4.

Sec. 16-34.1. Failure to maintain privately owned roadways or alleyways declared nuisance.

(a) No person owning, leasing, occupying or having charge of any private roadway, alleyway or other area used for vehicular travel by members of the general public shall fail to maintain such roadway, alleyway or other area in a manner sufficient to assure public safety by allowing deterioration of such roadway, alleyway or other area through potholes, uneven surface, breakup of surface or in any other manner which causes or may tend to cause damage to vehicles or injury to persons who travel on such roadway, alleyway or other area.

(b) Property which is not maintained in a manner sufficient to comply with subsection (a) of this section is hereby declared a nuisance.

(c) Any person who causes or maintains a nuisance in violation of subsections (a) and (b) of this section is subject to having the nuisance abated by the urban county government at the expense of that person pursuant to chapter 2B of the Code of Ordinances.

(Ord. No. 205-84, § 1, 11-1-84; Ord. No. 268-95, § 4, 11-30-95; Ord. No. 221-2016, § 14, 12-6-16)

Sec. 16-35. Penalties.

Any owner or occupant of premises where any nuisance is caused, maintained, or kept in violation of any of the provisions of section 16-34.1, who fails to remove or abate the same after notice as provided in section 12-7, is subject to a fine of not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00) for each day the nuisance remains after notice. Each day the nuisance remains after notice shall constitute a separate offense for which the maximum fine may be imposed. The penalty as herein provided is in addition to the civil abatement procedures as set out herein.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 114-84, § 1, 7-12-84; Ord. No. 205-84, § 2, 11-1-84; Ord. No. 251-89, § 10, 12-14-89; Ord. No. 268-95, § 5, 11-30-95)

Article V

Sanitary Services[1]

Sec. 16-36. Discharge of sewage, wastes, etc., without treatment prohibited.

It shall be unlawful to discharge into any natural outlet within the urban county or in any area under the jurisdiction of the urban county government or into any sewer which connects to the sewerage system of the urban county government any domestic waste water, industrial waste or other polluted water, except where suitable treatment has been provided in accordance with the provisions of this chapter.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Sec. 16-37. Septic tanks, cesspools, etc.

Except as hereinafter provided, it shall be unlawful to construct or maintain any privy, septic tank, cesspool or other facility intended or used for disposal of sewage.

(Ord. No. 126-83, § 1, 7-12-83; Ord. No. 164-84, § 1, 9-20-84)

Sec. 16-38. Connection with public sanitary sewer; when required.

(a) The owner of each house, building, apartment or property used for human occupancy, employment, recreation or other purposes, situated within the urban county and abutting on any street, alley, right-of-way or sanitary sewer easement in which there is now located or may in the future be located a public sanitary sewer of the urban county government is required, at his own expense, to install suitable toilet facilities therein and to connect such facilities directly with the proper public sanitary sewer in accordance with the provisions of this chapter, either:

(1) Within five (5) years of the passage of any ordinance which expanded the full urban service district or created a partial urban service district providing sanitary sewer services which ordinance included such property; such ordinance shall have an effective date prior to July 1, 1982; or

(2) Within five (5) years of the date by which the division of sanitary sewers accepts maintenance responsibility of a sewer line which benefits the particular property in question;

whichever is later. The provisions of this subsection are subject to determination by the urban county department of health of a health hazard which constitutes a public nuisance, in which case connection to a public sanitary sewer may be directed by the department of health at any time such connection is technically feasible.

1. **Editor's note(s)**—Section 1 of Ord. No. 164-84, adopted Sept. 20, 1984, amended arts. V—VII to read as set out in §§ 16-36—16-71. In some cases completely new provisions were enacted. These will be self-evident, as only Ord. No. 164-84 will be cited in the history note. In other cases, the text of existing subjects was retained. In still other cases, the text was retained but the section number was changed. In those two cases, a complete history note has been included; and, where necessary, a note has been appended, giving the former section number.

(b) In cases of businesses employing coin-operated machines which are used in vending goods or services and which operate without any resident attendant, or an attendant who is not present during the full period of the operation of said business, and in cases of businesses occupying only one (1) room of a building, the necessity for and the adequacy of toilet facilities shall be determined by the urban county health officer. In cases of operation of unattended businesses in which it is deemed that the installation of toilet facilities constitutes a danger to the safety of the patrons and public, or which afford an opportunity for concealment of wrong-doers and which may serve as breeding places for crime, the necessity for the installation of toilet facilities shall be determined by agreement between the chief of police and urban county health officer. If the chief of police and the health officer determine that the interest of the public safety outweighs the desirability of toilet facilities, a certificate shall be issued by the health officer to the owner of such business permitting him to operate without toilet facilities.

(Ord. No. 126-83, § 1, 7-12-83; Ord. No. 164-84, § 1, 9-20-84)

Sec. 16-39. Private sewage-disposal system; when required; permit; regulations, etc.

(a) Where a public sanitary sewer is not available under the provisions of section 16-38, the building sewer shall be connected to a private sewage-disposal system complying with the provisions of this section.

(b) Before commencement of construction of a private sewage disposal system, the owner shall first obtain a written permit, signed by the urban county engineer, after approval by the health department. The application for such permit shall be made on a form furnished by the urban county government, which the applicant shall supplement by any plans, specifications and other information deemed necessary by the urban county engineer.

(c) A permit for a private sewage-disposal system shall not become effective until the installation is completed to the satisfaction of the urban county engineer and the urban county health department. They shall be allowed to inspect the work at any stage of construction, and in any event the applicant for the permit shall notify the urban county engineer when the work is ready for final inspection and before any underground portions are covered. The inspection shall be made within forty-eight (48) hours of the receipt of the notice by the urban county engineer, Saturdays, Sundays and holidays excepted.

(d) The type, capacities, location and layout of any private sewage-disposal system shall comply with all regulations of the urban county health department. No permit shall be issued for any private sewage-disposal system employing subsurface soil absorption facilities where the area of the lot is less than ten thousand five hundred (10,500) square feet.

(e) The owner shall operate and maintain the private sewage disposal facilities in a sanitary manner at all times, at no expense to the urban county government.

(f) No statement contained in this section shall be construed to interfere with any additional requirements that may be imposed by the urban county health department.

(g) At such times as a public sewer becomes available to a property served by a private sewage-disposal system, as provided in section 16-38, a direct connection shall be made to the public sewer in compliance with this chapter; and any septic tanks, cesspools and similar private sewage-disposal facilities shall be abandoned and filled with suitable material.

(h) As of November 1, 1982, no new private waste water treatment plants or expansion of existing private waste water treatment plants which discharge to natural waterways shall be allowed in the urban county. However, this section does not affect the construction or expansion of private waste water treatment plants in the rural activity centers as defined by the 1980 Comprehensive Plan, nor does this section affect the construction of a pretreatment facility for waste water discharging to the urban county government sewer system.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Sec. 16-40. No public sewer to be used or disturbed without permit.

(a) No person shall uncover, make any connection with or opening into, use, alter or disturb any public sanitary sewer or appurtenance thereof, including raising or lowering the top rim elevation of a sanitary sewer manhole, without first obtaining a written permit from the urban county engineer.

(b) All permits to tap a sanitary sewer and to construct a building sewer must be obtained from the urban county engineer and signed by a master plumber before any connection with or opening into, use, altering or disturbing of any public sanitary sewer or appurtenance thereof can be made. It shall be the sole responsibility of the property owner to obtain and sign the owner's permit before a sanitary sewer tap permit is issued.

(c) The urban county engineer or his authorized representative is empowered to stop all lateral sanitary sewer construction by a plumber in any phase whatsoever upon finding that no sanitary sewer tap permit has been issued. Violation of the urban county engineer's directive to stop construction shall subject the offender to the penalty provisions of article XII, each day of violation to constitute a separate offense.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 174-2001, § 6, 7-5-01; Ord. No. 143-2009, § 12, 7-7-09)

Sec. 16-40.1. Placement of materials in or upon manholes.

No person shall place or deposit any material of any type including but not limited to night soil, garbage, dirt, rocks or other rubbish in a sanitary sewer manhole or on top of a sanitary sewer manhole lid.

(Ord. No. 174-2001, § 7, 7-5-01)

Sec. 16-41. Building sewers and connections.

(a) There shall be two (2) classes of building having domestic wastewater only sewer permits, (1) for residential and commercial service and (2) for service to establishments producing industrial wastes. In either case, the

owner or his agent shall make application on a special form furnished by the urban county government. The permit application shall be supplemented by any plans, specifications or other information considered pertinent in the judgment of the urban county engineer.

(b) All costs and expenses incidental to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the urban county government from any loss or damage that may directly or indirectly be occasioned by the installation of the building sewer.

(c) A separate and independent sanitary sewer connection shall be provided for every lot. Any division of multi-family units to create separate ownership shall require a sanitary sewer tap maintenance agreement signed by all property owners prior to recording the final record plan or horizontal property regime.

(d) Old building sewer may be used in connection with new buildings only when they are found, on examination and test by the urban county engineer, to meet all requirements of this chapter.

(e) The building sewer shall be constructed in accordance with the sanitary sewer and pumping station manual, and the Kentucky Plumbing Code.

(f) All excavations required for the installation of a building sewer shall be open trench work unless otherwise approved by the urban county engineer and the Kentucky State Plumbing Inspector. No backfill shall be placed until the work has been inspected and approved by the urban county engineer, or his authorized representative, and the Kentucky State Plumbing Inspector.

(g) All joints and connections shall be made gas-tight and watertight.

(h) The building sewer shall be connected into the public sanitary sewer at a point determined by the division of engineering and as specified in the record drawings. Where no properly located service branch is available, a permit shall be required from the division of engineering which includes a pay item agreement signed by the applicant for the cost of the tap installation. The cost of the tap installation is two hundred fifty dollars ($250.00) per trip to the site. Once the permit is obtained, the plumber shall uncover the mainline sewer and contact the division of sanitary sewers for installation of the tap. Under no circumstances shall the tap into the mainline sewer be made by the plumber unless authorized by the division of sanitary sewers.

(i) In order to ensure proper construction and verify the location of the sewer tap the applicant for the building sewer permit shall notify the urban county engineer when the building sewer is ready for inspection and connection to the public sewer. The completed connection shall be smoke tested and inspected by the division of engineering prior to backfill being placed. The repair of any leak found shall be the responsibility of the property owner.

(j) All excavations for building sewer installation shall be adequately protected in accordance with the manual for uniform traffic control devices for traffic control in work zones so as to protect the public from hazards on streets, sidewalks, parkways and other public property.

(k) **Basement sewer service for existing structures.**

(1) No person shall construct or install sanitary facilities within a basement or other below grade space, including split foyer residential housing, without first obtaining a permit from the division of building inspection and the division of engineering. For the purposes of this section, sanitary facilities are defined to include, but not be limited to, any of the following: toilet, shower, bathtub, sink, washing machine or floor drain.

(2) The division of engineering shall visit the site to determine whether the sanitary facilities can be served by the building's gravity sewer. Gravity sewer service for sanitary facilities requires that the floor elevation on which the sanitary facilities are located be at least one (1) foot above the elevation of the nearest downstream manhole lid. In the event gravity sewer service cannot be achieved, the plumbing fixtures in the sanitary facilities shall discharge through a sewage pump to the building's gravity sewer. All work shall be performed in conformance with the sanitary sewer and pumping station manual and the Kentucky State Plumbing Code.

(l) **Sewer service for new structures and reconstruction of existing structures.** All new structures and reconstruction of existing structures after the date of the enactment of this section shall have a floor that is not partially or completely underground, that is at least one (1) foot above the elevation of the nearest downstream manhole lid. Sewage from plumbing connections below that floor shall be lifted by a pump and discharged into the structure's sewer line.

(m) **New sewer service for existing structures.** Any house, building, apartment, or property used for human occupancy, employment, recreation or other purposes, which was in existence prior to the passage of this section, and which was not previously served by the sanitary sewer, shall connect with the sanitary sewer when available in conformance with section 16-38. Where gravity sewer service as defined in (k)(2) above cannot feasibly be provided, the government may require the installation of a sewage pump. In such instances, the installation and maintenance of the sewage pump shall be the responsibility of the property owner.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 174-2001, § 8, 7-5-01)

Sec. 16-42. Discharge of storm water and unpolluted drainage.

(1) No person shall discharge or cause to be discharged any storm water, surface water, groundwater, roof runoff, subsurface drainage, cooling water or unpolluted industrial process water to any sanitary sewer.

(2) Storm water and all other unpolluted drainage shall be discharged to such sewers as are specifically designated as storm sewers, or to a natural outlet approved by the urban county engineer. Industrial cooling water or unpolluted process water may be discharged, upon approval of the urban county engineer, to a storm sewer or natural outlet.

(3) To prevent the intrusion of groundwater into abandoned services lines, the division of building inspection shall issue a demolition permit only after the applicant has acquired a sewer plug permit for each sewer service to the building. The applicant must agree to properly plug the connections prior to completion of the wrecking project. Plug permits may be obtained from the division of engineering.

(4) A refundable deposit of two hundred fifty dollars ($250.00) shall be submitted to the division of engineering prior to issuance of the sewer plug permit referenced above. When the applicant has completed the sanitary sewer connection plug and the division of engineering has confirmed that the work has been properly completed, the deposit shall be refunded to the applicant. In the event the applicant has not completed the work within ninety (90) days of issuance of the permit, the deposit shall be forfeited and the work shall be completed by the urban county government.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 165-89, § 3, 8-31-89; Ord. No. 33-94, § 1, 3-10-94; Ord. No. 174-2001, § 9, 7-5-01)

Sec. 16-43. Materials forbidden to be discharged into public sewer.

Except as hereinafter provided, no person shall discharge or cause to be discharged any of the following described water or waste into any public sewer:

(1) Any liquid having a temperature higher than one hundred fifty (150) degrees Fahrenheit or which will inhibit biological activity in the POTW treatment plant resulting in interference, but in no case waste water with a temperature at the introduction into the POTW which exceeds one hundred four (104) degrees Fahrenheit unless the POTW treatment plant is designed to accommodate such temperatures.

(2) Any water or waste containing nonemulsified fats, wax, grease or oils, in excess of one hundred (100) mg/l or containing substances which may solidify or become viscous at temperatures between thirty-two (32) degrees and one hundred fifty (150) degrees Fahrenheit.

(3) Any gasoline, benzene, kerosene, hexene, naphtha, fuel oil or other solid or gas, which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fires or explosions or be injurious in any way to the waste water system. At no time shall two (2) successive readings on an explosion hazard meter, at the point of discharge into the waste water system, be more than fifteen (15) percent nor any single reading more than twenty (20) percent of the lower explosive limit (L.E.L.).

(4) Any garbage that has not been properly shredded.

(5) Any ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, animal hair, animal parts, whole blood, paunch manure, tar, plastics, wood or any solid or viscous substance capable of causing obstructions to the flow in sewers or other interference with the proper operation of the sewerage works.

(6) Any waters or wastes containing strong acid iron pickling wastes or concentrated plating solutions whether neutralized or not.

(7) Any water or wastes containing the following chemical constituents and/or similar objectionable or toxic substances that exceed the following limits:

Constituents	Contributor to Town Branch WWTP (mg/l)	Contributors to West Hickman Creek WWTP (mg/l)
(a) Arsenic	0.95	1.00
(b) Cadmium	0.009	0.032
(c) Chromium, Total	2.77	2.77
(d) Chromium, Hexavalent	0.34	1.62
(e) Copper	0.42	3.38
(f) Cyanide, Total	0.18	0.86
(g) Lead	0.24	0.49
(h) Mercury	0.006	0.005
(i) Nickel	2.39	3.98
(j) Selenium	0.26	0.70
(k) Silver	0.49	0.59
(l) Zinc	3.24	4.10

All other similar objectionable or toxic substances shall be reviewed by the director, division of sanitary sewers, prior to any discharge into the public sewer. Upon the promulgation of the Federal Categorical Pretreatment Standards for a particular industrial subcategory, the Federal Standard, if more stringent than limitations imposed under this chapter for sources in that subcategory, shall immediately supersede the limitations imposed under this chapter.

(8) Any waters or wastes exerting an excessive chlorine requirement.

(9) Any waters or waters containing phenols or other taste- or odor-producing substances in such concentrations exceeding limits which may be established by the director, water pollution control, as necessary, to meet the requirements of state, federal or other public agencies of jurisdiction for such discharge to the receiving waters.

(10) Any radioactive wastes or isotopes of such half-life or concentration as may exceed the following limits:

(a) Gross beta activity shall not exceed one thousand (1,000) picocuries per liter.

(b) Activity from dissolved strontium 90 shall not exceed ten (10) picocuries per liter.

(c) Activity from dissolved alpha emitters shall not exceed three (3) picocuries per liter.

(11) Materials which exert or cause:

(a) Unusual concentrations of inert suspended solids (such as but not limited to fuller's earth, lime slurries and lime residues) or of dissolved solids (such as but not limited to sodium chloride and sodium sulfate).

(b) Excessive discoloration (such as but not limited to dye wastes and vegetable tanning solutions).

(c) Unusual BOD, chemical oxygen demand or chlorine requirements in such quantities as to constitute a significant load on the sewage treatment plant.

(d) Unusual volume of flow or concentration of wastes constituting slugs, as defined.

(12) Waters or wastes containing substances which are not amenable to treatment or reduction by the waste water treatment processes employed, or are amenable to treatment only to such degree that the sewage treatment plan effluent cannot meet the requirements of other agencies having jurisdiction over discharge to the receiving waters.

(13) Any water or waste having a pH lower than five and five-tenths (5.5) or higher than eleven and five-tenths (11.5) or having any other corrosive property capable of causing damage or hazard to structures, equipment and personnel of the sewerage works.

(14) Any water or waste containing a toxic or poisonous substance in sufficient quantity to injure or interfere with any waste water treatment process, constitute a hazard to humans or animals or create hazards in the receiving waters of the sewage treatment plant.

(15) Any waste or wastewater classified as a hazardous waste by the Resource Conservation and Recovery Act (RCRA) without, at least, a sixty-day prior notification and approval of such discharge to the director, division of sanitary sewers. This notification must include the name of the waste, EPA hazardous waste number, type of discharge, volume/mass of discharge, and time of occurrence. The director, division of sanitary sewers, may deny or condition this discharge at any time.

(16) Any noxious or malodorous gas or substance capable of creating a public nuisance.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 165-89, §§ 4, 5, 8-31-89; Ord. No. 234-91, §§ 2, 3, 5, 11-14-91; Ord. No. 2-93, § 1, 1-14-93; Ord. No. 169-99, § 1, 6-22-99; Ord. No. 148-2000, § 2, 6-1-00; Ord. No. 36-2004, §§ 1, 2, 2-19-04; Ord. No. 72-2010, § 1, 4-22-10; Ord. No. 156-2016, § 1, 9-15-16)

Sec. 16-43.1. Avoidance of requirements prohibited.

No user shall ever increase the use of process water, or in any way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or for any other pollutant-specific limitation developed by the city or the commonwealth.

(Ord. No. 234-91, § 4, 11-14-91)

Sec. 16-44. Grease and oil interceptors when required.

(a) Grease and oil interceptors shall be required at all facilities which provide food service and/or preparation activities, including, but not limited to, full service restaurants, fast food establishments, delis, cafeterias (including church and school facilities where commercial equipment is installed and the square footage and/or frequency of use indicates more than occasional use), meat distributors, food processing facilities, grocery stores with food preparation/service areas, bakeries, caterers, and/or other similar types of operations.

(b) Grease and oil interceptors shall be provided as stipulated in subsection (a) above or when liquid wastes contain an excess of one hundred (100) mg/l of grease or contain substances which may solidify or become viscous at temperatures between thirty-two (32) degrees Fahrenheit or zero (0) degrees Centigrade and one hundred fifty (150) degrees Fahrenheit or sixty-five (65) degrees Centigrade, except that such interceptors shall not be required for single family or multifamily dwelling units unless problems occur at particular locations more than twice in twelve-month period.

(c) Any facility where a grease and oil interceptor is required must apply for a grease and oil interceptor permit from the division of water quality. The director, division of water quality, upon review of a permit application, may grant the permit, reject the permit, or grant the permit with the following conditions:

(1) Require the use of a grease and oil interceptor meeting specified performance standards;

(2) Require a specific schedule for cleaning the grease and oil interceptor;

(3) Require the applicant to exercise best management practices in its operation related to grease and oil handling as specified in the permit;

(4) Require any other reasonable conditions warranted by the circumstances of the particular facility applying for the permit.

(d) Grease and oil interceptors to be installed shall be in conformance with the most recent Lexington-Fayette Urban County Government Sanitary Sewer and Pumping Station Manual, the State Plumbing Code and the applicable Lexington-Fayette Urban County Government Standard Drawing. The required interceptor shall be designed according to the most stringent of the above current standards. A site map, design documents, and as-built drawings shall be submitted to the Lexington-Fayette Urban County Government Division of Water Quality. Approval of the interceptor shall be determined by the Division of Water Quality upon review of the proposed facility and sized according to the requirements of the Lexington-Fayette Urban County Government Sanitary Sewer and Pumping Station Manual. The interceptor shall be located so as to be readily and easily accessible for cleaning and inspection.

(e) Grease and oil interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperatures. They shall be of substantial construction, watertight and equipped with easily removable covers which, when bolted in place, shall be gastight and watertight. Each user shall provide protection against accidental discharge of grease and oil. Features which prevent accidental discharge of these materials shall be provided and maintained at the user's expense. Facilities and operating procedures

to provide this protection shall be submitted to the division of water quality for review and approval prior to construction of the facility. Review and approval of such plans and operating procedures by the division of water quality shall not relieve the user of the responsibility to modify its facility as necessary to meet the requirements of this chapter.

(f) A food service and/or preparation facility which demonstrates that the discharge from its food service and/or preparation activities contains less than one hundred (100) mg/l of grease, may receive an exemption from minimum sizing requirements or installation and maintenance requirements. The sampling and testing to demonstrate the concentration of grease in the discharge must be conducted, at the facility's expense, by an independent testing organization and measured in accordance with the analytical test procedures established in 40 CFR Part 136 as amended from time to time.

(g) Grease and oil interceptors shall be cleaned on a regular basis which will ensure proper and efficient operation but not less than one (1) time within a six-month period or as provided in the facility's grease and oil interceptor permit. Approved internal or under-counter interceptors shall be cleaned at least once per week or as provided in the facility's special grease and oil interceptor permit. Cleaning shall consist of removal of the entire contents of the device, including grease cap and sludge pocket, and inspection of the empty device for defects and/or obstructions which would prevent proper function.

(h) Written records shall be maintained by the user indicating maintenance and cleaning of the grease interceptor. The record shall indicate: dates of maintenance; person performing the maintenance; estimated volume of grease removed; receipts or manifest from haulers; disposal locations; facility manager's verification. The records shall be retained for a period of three (3) years and shall be available at the facility along with a copy of the grease interceptor permit for inspection by the division of water quality.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 148-2000, § 3, 6-1-00; Ord. No. 278-2001, §§ 1, 2, 11-8-01; Ord. No. 143-2009, § 13, 7-7-09)

Sec. 16-44.1. Special grease and oil interceptor permit.

(a) Any food service and/or preparation facility which because of space or other considerations cannot install a grease and oil interceptor which complies with sizing requirements appropriate for its operation and as provided in subsection 16-44(b) must apply for a special grease and oil interceptor permit from the division of water quality. Any food service and/or preparation facility which does not require a grease and oil interceptor because of the nature of its operation must apply for an exemption from installation of a grease and oil interceptor. To assess the volume of grease and/or oil potentially discharged into the sewer system by a facility, factors which will be considered in review of the special permit application include, but are not limited to, interceptor location options, restaurant seating capacity, preparation methods, method of service (e.g. plateware or disposable), and type of food served. The director, division of water quality, upon review of a special permit application, may grant the special permit, reject the special permit, or grant the special permit with the following conditions:

(1) Require the use of a grease and oil interceptor meeting specified performance standards;

(2) Require a specific schedule for cleaning the grease and oil interceptor;

(3) Require the applicant to exercise best management practices in its operation related to grease and oil handling as specified in the permit;

(4) Require any other reasonable conditions warranted by the circumstances of the particular facility applying for the permit.

All special permits shall contain specific requirements for recordkeeping to document the permit-holder's compliance with the terms of the permit and the Code of Ordinances. No special permit shall be granted without documentation that the special permit-holder has agreed to all terms and conditions contained in the special permit, including affirmation of such agreement by signature on the application. In the event a special permit holder denies agreement evidenced by signature on the application, the special permit shall be revoked immediately subject to a new application being processed.

The director, division of water quality, upon review of an exemption application, may grant the exemption or reject the application. If an application for an exemption is rejected, the facility shall comply with the provisions of this chapter regarding installation of a grease and oil interceptor or apply for a special grease and oil interceptor permit as provided in this section.

(b) Applicants for a special grease and oil interceptor permit shall complete an application form available at the office of the director, division of water quality. The special permit shall remain in effect unless revised or revoked as provided in this section. The special permit fee shall be one hundred and fifty dollars ($150.00) for the initial application and seventy-five dollars ($75.00) if the special permit is revised. A revised special permit application must be submitted upon a change of ownership and upon any major changes in the operation that affect the constituents of the waste stream.

Upon receipt of the special permit fee and of all required information, the application shall be processed and, upon approval, the special permit shall be written and signed by the director, division of water quality, or his designee, and one (1) copy returned to the applicant. When properly signed, the permit shall be valid for installation of a grease and oil interceptor consistent with the special permit.

The application shall be approved if the applicant has complied with all applicable requirements of this chapter and furnished to the urban county government all requested information and if the director, division of water quality, determines that there is adequate capacity in the sewerage facilities to convey, treat and dispose of the waste waters.

(c) The urban county government may change the restrictions or conditions of a special grease and oil interceptor permit from time to time as circumstances may require. The urban county government shall allow a special grease and oil interceptor permit-holder a reasonable period of time to comply with any changes in the special permit required by the urban county government.

(d) When suspension of a special grease and oil interceptor permit is necessary in order to stop a discharge which presents an imminent hazard to the public health, safety or welfare, to the local environment or to the urban county government's sewerage system, the permit may be suspended or revoked as provided in section 16-204.

Any facility notified of a suspension or revocation of its special permit shall immediately cease and desist the discharge to any public sewer that is tributary to the sewerage system. In the event of a failure of the facility to comply voluntarily with the suspension or revocation order, the director, division of water quality, shall take such steps as are reasonably necessary to ensure compliance, including disconnection of or blocking of the facility's sewer.

Grounds for revocation of a special grease and oil permit include violation of any provision of its special permit or any of the following:

(1) Failure to factually report the operations of the facility which affect the waste water discharged into the sewerage system of the urban county government;

(2) Failure of the user to report significant changes in its operations;

(3) Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring by a representative of the LFUCG.

After revocation, before any further discharge of waste water may be made by the facility, it must apply for a new grease and oil interceptor permit and pay all charges that would be required upon initial application, together with all delinquent fees, charges and penalties, and such other sums as the facility may owe to the urban county government. Costs incurred by the urban county government in revoking the permit and disconnecting the sewer shall be paid for by the facility before issuance of a new special grease and oil interceptor permit.

(Ord. No. 26-2007, § 1, 2-8-07; Ord. No. 143-2009, § 14, 7-7-09)

Sec. 16-45. Admission of objectionable water or waste to public sewers; approved; preliminary treatment; permit; survey data; manholes.

(a) The admission into the public sewers of any water or waste having:

(1) A five-day BOD greater than two hundred fifty (250) parts per million by weight; or

(2) Containing more than two hundred fifty (250) parts per million by weight of suspended solids; or

(3) Containing any quantity of substances having the characteristics described in sections 16-42 or 16-43; or

(4) Flows defined as "significant industrial user."

shall be subject to the review and approval of the director, division of engineering and the director, division of sanitary sewers.

(b) Where necessary, in the opinion of the director, division of engineering or director, division of sanitary sewers, the owner shall provide, at his expense, such preliminary treatment as may be necessary to:

(1) Reduce the BOD and/or suspended solids to two hundred fifty (250) parts per million by weight; or

(2) Reduce the objectionable characteristics or constituents to within the maximum limits provided for in section 16-43; or

(3) Control the quantities and rates of discharge of such water or waste.

(c) Plans, specifications and any other pertinent information relating to proposed preliminary treatment facilities shall be submitted for the approval of the director, division of engineering and the director, division of sanitary sewers and of the urban county health department; and no construction of such facilities shall be commenced until such approvals are obtained in writing.

(d) Where preliminary treatment facilities are provided for any water or waste, they shall be maintained continuously in satisfactory and effective operation by the owner at his expense.

(e) If any waters or wastes are discharged, or are proposed to be discharged to the public sewers, which waters contain the substances or possess the characteristics enumerated in section 16-43 of this article, and which in the judgment of the director, division of sanitary sewers, may have a deleterious effect on the sewerage system, processes, equipment or receiving waters, or which otherwise create a hazard to life or constitute a public nuisance, the director, division of sanitary sewers shall require the discharger to obtain a waste water discharge permit. The director, division of sanitary sewers, upon review of the permit application, may grant the permit, reject the permit or grant with the following conditions:

(1) Require pretreatment to an acceptable condition for discharge to the public sewers;

(2) Require control over the quantities and rates of discharge; and/or

(3) Require payment to cover the added cost of handling and treating the wastes not covered by existing taxes or sewer service charges.

If the director, division of sanitary sewers permits the pre-treatment or equalization of waste flows, the design and installation of the plants and equipment shall be subject to the review and approval of the director, division of sanitary sewers, and subject to the requirements of all applicable codes, ordinances and laws.

(f) When required by the director, division of engineering and or the director, division of water quality, the owner of any property served by a building sewer carrying industrial wastes shall install a suitable control manhole and monitoring equipment in the building sewer to facilitate observation, sampling and measurement of the wastes. Such manhole, when required, shall be accessibly and safely located, and shall be

in accordance with plans approved by the director, division of engineering. The manhole and monitoring equipment shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times.

Sampling and measurement of the waste will be done in accordance with instructions and at a frequency specified in the users permit. Monitoring frequencies will be based on the volume and strength of waste and have been approved by the urban county government, state and EPA. All wastewater samples must be representative of the User's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a User to keep its monitoring facility in good working order shall not be grounds for the User to claim that sample results are unrepresentative of its discharge.

(g) All measurements, tests and analyses of the characteristics of water and waste to which reference is made in sections 16-42 through 16-44 shall be determined and performed in accordance with procedures established by the EPA pursuant to section 304(g) of the Act and contained in 40 CFR 136, as amended, and 40 CFR 261, and shall be determined at the control manhole provided for in subsection (f) of this section or upon suitable samples taken at such control manhole. In the event no special manhole has been required, the control manhole shall be considered to be the nearest downstream manhole in the public sewer to the point at which the building sewer is connected.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 165-89, §§ 6, 7, 8-31-89; Ord. No. 234-91, § 6, 11-14-91; Ord. No. 130-2012, § 2, 10-25-12)

Sec. 16-46. Permit required; special agreements authorized.

(a) General permit requirements are as follows:

(1) No person shall discharge or cause to be discharged any water or waste as described in subsection 16-45(a), directly or indirectly, to sewerage facilities owned by the urban county government without first applying for a permit for industrial waste water discharge and receiving final action on such application; nor shall any person discharge or cause to be discharged into the sewerage system any pollutant except in compliance with federal standards promulgated pursuant to prevailing federal law, and any more stringent state and local standards.

(2) A permit for industrial waste water discharge may require restriction of peak flow discharges, discharge of certain waste waters only to specified sewers of the urban county government, relocation of point of discharge, prohibition of discharge of certain waste water components, restriction of total mass (pounds) discharged of constituents described in section 16-43, restriction of discharge to certain hours of the day, payment of additional charges to defray increased costs of the urban county government created by the waste water discharge, and such other conditions as may be required to effectuate the purpose of this chapter.

(3) Each holder of a permit for industrial waste water discharge shall conform to any federal pretreatment standards and/or other applicable requirements promulgated by the Environmental Protection Agency in accordance with applicable federal law, including but not restricted to those requirements specified in 40 CFR 403.12 or more stringent state or local standards.

(4) No permit for industrial waste water discharge is transferable without the prior written consent of the director, division of water quality.

(5) No person shall discharge industrial waste waters in excess of the quantity or quality limitations set by the permit for industrial waste water discharge. Any person desiring to discharge waste waters or use facilities which are not in conformance with the permit should apply to the urban county government for an amended permit.

(6) Each significant industrial user shall provide protection from accidental and/or slug discharges of prohibited materials or other substances regulated by this article. Facilities to prevent accidental and slug discharges of prohibited materials shall be provided and maintained at the owner's or user's cost and expense. The director, division of water quality, will determine whether each significant industrial user needs to develop a plan to control slug discharges. Significant Industrial Users shall notify the director, division of water quality immediately of any changes at its facility affecting potential for a slug discharge. If the director, division of water quality, decides that a slug control plan is needed, the plan shall contain the following:

(a) Description of discharge practices, including non-routine batch discharges;

(b) Description of stored chemicals;

(c) Procedures for immediately notifying the POTW, including any discharge that would violate a prohibition under section 16-43 with procedures for follow-up written notification within five days;

(d) If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measure for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

Where spill prevention or contingency plans are already in existence, the director shall accept the existing plan but shall retain authority to impose additional or differing requirements where reasonably necessary to assure compliance with the intent of this chapter.

(7) In the case of all possible or accidental and/or slug discharges, it is the responsibility of the user to immediately telephone and notify the POTW of the incident. The notification shall include the location of discharge, type of waste, concentration and volume, and corrective actions taken.

(8) Within five (5) days following an accidental and/or slug discharge, the user shall submit to the director, division of water quality, a detailed written report describing the causes of discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage or other liability which may be incurred as a result of damage to the POTW, fish kills or any other damage to person or property; nor shall such notification relieve the user of other notification responsibilities, any fines, civil penalties or other liability which may be enforced by this chapter, the enforcement response plan or other applicable laws or regulations.

(9) It is the responsibility of each industrial user to ensure that all employees who may cause or suffer such a dangerous discharge to occur be advised of the emergency notification procedure and that emergency numbers are posted for easy reference.

(b) Applicants for a permit for industrial waste water discharge shall complete an application form available at the office of the director, division of water quality. The permit shall remain in effect for three (3) years unless revised prior to that date. The permit fee shall be one hundred fifty dollars ($150.00) for the initial application and seventy-five dollars ($75.00) thereafter for the permit renewal or revision. A revised permit application must be submitted upon any major changes in process control or pretreatment procedures that affect the constituents of the waste stream.

Upon receipt of the permit fee prescribed in subsection (f) below and of all required information, the application shall be processed and, upon approval, be signed by the director, division of water quality and one (1) copy returned to the applicant. When properly signed, the application form shall constitute a valid permit for industrial waste water discharge.

The application shall be approved if the applicant has complied with all applicable requirements of this chapter and furnished to the urban county government all requested information and if the director, division of water quality determines that there is adequate capacity in the sewerage facilities to convey, treat and dispose of the waste waters.

(c) The urban county government may change the restrictions or conditions of a permit for industrial waste water discharge from time to time as circumstances may require. The urban county government shall allow an industrial discharger a reasonable period of time to comply with any changes in the permit required by the urban county government.

(d) New sources shall install and have in operating condition and shall "start-up" all pollution control equipment required to meet applicable pretreatment standards before beginning to discharge. Within the shortest feasible time (not to exceed ninety (90) days), new sources must meet all applicable pretreatment standards.

(e) A permit for industrial waste water discharge may be suspended or revoked when such action is necessary in order to stop a discharge which presents an imminent hazard to the public health, safety or welfare, to the local environment or to the urban county government's sewerage system as provided in section 16-204.

Any discharger notified of a suspension or revocation of his permit shall immediately cease and desist the discharge from all points to any public sewer that is tributary to the sewerage system not in compliance with sections 16-42, 16-43 and subsection 16-45(a). In the event of a failure of the discharger to comply voluntarily with the suspension order, the director, division of water quality shall take such steps as are reasonably necessary to ensure compliance, including disconnection of or blocking of the discharger's sewer.

The director, division of water quality shall reinstate the permit on proof of satisfactory compliance with all discharge requirements of the urban county government.

(f) Grounds for revocation of include violation of any provision of sections 16-42, 16-43 and subsection 16-45(a) or any of the following:

a. Failure to factually report the waste water constituents and characteristics of his discharge;

b. Failure of the user to report significant changes in operations or waste water constituents and characteristics;

c. Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring by a representative of the LFUCG.

After revocation of a permit, before any further discharge of industrial waste water may be made by a discharger, he must apply for a new permit for industrial waste water discharger and pay all charges that would be required upon initial application, together with all delinquent fees, charges and penalties, and such other sums as the discharger may owe to the urban county government. Costs incurred by the urban county government in revoking the permit and disconnecting the industrial connection sewer shall be paid for by the discharger before issuance of a new permit for industrial waste water discharge.

(g) Further, to effectuate the purpose of this section 16-46, all holders of permits for industrial waste water discharge shall, at least semiannually (during the months of June and December), furnish the director, division of water quality a written report on a form furnished by division of water quality on the quantity and quality of the discharge as demonstrated by parameters specified by the director, division of water quality. Such specification of parameters, however, does not relieve the discharger from reporting any and all other data that may be necessary to ensure compliance with the permit or any other section of this article.

(h) Permit holders subject to the reporting requirements of this chapter shall retain, and make available for inspection and copying upon reasonable request, all records of information obtained pursuant to any monitoring activities required by this chapter, any additional records of information obtained pursuant to monitoring activities undertaken by the permit holder independent of such requirements, and documentation associated with "best management practices" established by the urban county government. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three (3)

years. This period shall be automatically extended for the duration of any related litigation concerning the permit holder or where the permit holder has been specifically notified of a longer retention period by the director, division of water quality.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 165-89, §§ 8, 9, 8-31-89; Ord. No. 234-91, §§ 7, 8, 11-14-91; Ord. No. 143-2009, § 15, 7-7-09; Ord. No. 130-2012, §§ 3—5, 10-25-12)

Sec. 16-46.1. Enforcement.

(a) In addition to all other enforcement powers set forth in this chapter, the commissioner of public works or the director, division of sanitary sewers, may take enforcement steps as set forth in this section against users in noncompliance with this chapter. All violations of the requirements of sections 16-42 through 16-46 shall be reviewed by the director, division of sanitary sewers. The director shall notify the industrial user when a violation occurs. The director shall receive an explanation for all violations and, as appropriate, a plan from the industrial user to correct the violation within a specified time period. If the violation persists or the explanation and/or plan are not adequate, the director's response shall be more formal; and commitments or schedules, as appropriate, for compliance will be established in an enforceable document. The enforcement response selected will be escalated if compliance is not achieved expeditiously after initial action. A significant violation will require a formal enforcement action. A range of enforcement responses are established in the urban county government's pretreatment program enforcement response plan.

(b) Enforcement response steps shall include:

(1) **Informal notice:** These actions include statements made to the industrial user during sampling and/or inspection visits, telephone calls to the industrial user, informal meetings, warnings or reminder letters. Informal notices shall be used for minor violations, and the communication shall indicate to the user that the action constitutes an informal notice.

(2) **Formal notice:** These actions shall include:

(a) **Notice of violation:** Any person found to be violating any provision of sections 16-42 through 16-46, any provision of a wastewater discharge permit, or any order issued under this section, shall be served by the director, division of sanitary sewers, with a written notice stating the nature of the violation.

(b) **Administrative orders:** Any person who, after receiving a notice of violation, shall continue to discharge in violation of sections 16-42 through 16-46, or other pretreatment standards or requirements or is determined to be a chronic or persistent violator, shall be ordered to appear before the director, division of sanitary sewers. At said appearance a compliance schedule will be given to the violating user. Administrative orders may take the following forms:

(i) **Consent order:** The director, division of sanitary sewers, is hereby empowered to enter into consent orders, assurances of voluntary compliance or other similar documents estab-

lishing an agreement with the industrial user responsible for the noncompliance. Such order will include specific action to be taken by the industrial user to correct the noncompliance within a time period also specified in the order. Consent orders shall have the same force and effect as all other administrative orders.

(ii) **Compliance order:** When the director, division of sanitary sewers, finds that an industrial user has violated any provision of sections 16-42 through 16-46, or any other permit condition or order issued under this section, an order may be issued to the industrial user responsible for the noncompliance. Such order will direct specific action to be taken by the industrial user to correct the noncompliance and establish a time period for such correction. Orders may also contain such other requirements reasonably necessary and appropriate to address the noncompliance, including installation of pretreatment technology, additional self-monitoring and management practices.

(iii) **Cease and desist order:** When the director, division of sanitary sewers, finds that an industrial user has violated or continues to violate sections 16-42 through 16-46 or any permit or order issued hereunder, the director may issue an order to cease and desist all such violations to the user and direct those persons in noncompliance to comply forthwith and/or take appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and terminating the discharge.

(iv) **Show-cause hearing.** The commissioner of public works or director, division of sanitary sewers, may issue to any user who causes or contributes to a violation of sections 16-42 through 16-46 or any discharge permit or order issued hereunder, an order to appear and show cause why a more severe enforcement action should not be taken. A notice shall be served on the user specifying the time and place of the hearing to be held by the commissioner of public works regarding the violation, the reasons why the action is to be taken, the proposed enforcement action and directing the user to show cause before the commissioner of public works why more severe enforcement action should not be taken. Notice of the hearing shall be given to the discharger at least ten (10) days prior to the date of the hearing.

(Ord. No. 234-91, § 9, 11-14-91)

Sec. 16-46.2. [Sample collection.]

Samples collected to satisfy reporting requirements in sections 16-44, 16-44.1, 16-45, or 16-46 must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, based on data that is representative of conditions occurring during the reporting period.

(1) Except as indicated in subsections (2) and (3) below, the User must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the Director. Where time-proportional composite sampling or grab sampling is authorized by the government, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the government, as appropriate. In addition, grab samples may be required to show compliance with Instantaneous Limits.

(2) Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

(3) For sampling required in support of baseline monitoring and 90-day compliance reports required in Section 6.1 and 6.3 [40 CFR 403.12(b) and (d)], a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the Director may authorize a lower minimum. For the reports required by paragraphs Section 6.4 (40 CFR 403.12(e) and 403.12(h)), the Industrial User is required to collect the number of grab samples necessary to assess and assure compliance by with applicable Pretreatment Standards and Requirements.

(Ord. No. 130-2012, § 6, 10-25-12)

Sec. 16-47. Protection of sewerage works from damage; arrest of offenders.

No unauthorized person shall maliciously, willfully or negligently break, destroy, uncover, deface or tamper with any structure, appurtenance or equipment which is a part of the urban county government sewerage works.

Any person violating this section shall be subject to immediate arrest under the charge of breach of the peace.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Sec. 16-48. Regulations for dumping of sewage and refuse at the night soil house of urban county government disposal plant; penalty.

(a) Every person engaged in the business of disposing of sewage, sewage waste or similar refuse when disposal of same is made from within the limits of the urban county shall dispose of the same under the following terms and conditions:

(1) Any conveyance used for the hauling of sewage, sewage waste or similar refuse shall be equipped with waterproof tanks with tight-fitting covers so as to be free from leakage in the course of transportation.

(2) All such sewage, sewage waste and similar refuse shall be disposed of at the town branch sewage treatment plant septage receiving station maintained by the urban county government at such hours as may be designated by the director, division of water quality.

(3) All tanks, after having been emptied as herein provided, shall be thoroughly cleaned before leaving the disposal area.

(b) All vehicles and conveyances used in such manner as to be affected by the terms of this section shall be first approved by the board of health and a permit for their use obtained from such board.

(c) Any person disposing of sewage, sewage waste or similar refuse as herein provided shall pay to the urban county government, director, division of revenue, a fee as follows, based on tank capacity, such fee being due for each tank, or portion of tank, of such waste disposed of as herein provided.

Tank Capacity (gallons)	**Effective July 1, 2023**
500 or less	$59.05
501 to 700	73.79
701 to 900	90.42
901 to 1,000	101.47
1,000 or more, per gallon	0.114

(d) Every person who shall dispose of such sewage, sewage waste or similar refuse, as herein provided, shall make application to the urban county government, director, division of revenue, for a permit and shall purchase from the director, division of revenue, a book of tickets in the amount of fifty dollars ($50.00) for the right to use the facilities of the urban county government in disposing of sewage waste and similar refuse. Before any person shall be permitted to use such facilities, he shall deliver to the person in charge of the disposal plant tickets in the amount of the fee as provided in subsection (c) of this section. All moneys received under the provisions of this section shall become a part of the urban county government sewer revenue fund.

(e) The emptying of sewage, sewage waste or similar refuse into any sanitary sewer or storm sewer which leads into or is a part of the urban county government's sanitary sewer system or storm sewer is specifically prohibited; and nothing contained in this section shall be construed to approve in any manner of disposal of sewage, sewage waste or similar refuse except as provided in this section.

(f) The urban county government recognizes no obligation to receive and treat at its sewage treatment plant any sewage, sewage waste or similar refuse hauled there in vehicles or conveyances and tendered for such purpose. In the event the urban county government shall see fit to suffer such use of the services and facilities of the sewage treatment plant, the conditions thereof and rates and charges applicable thereto shall be as set forth in this section, or as the same may be amended from time to time.

(g) All materials listed under section 16-43 (materials forbidden to be discharged into public sewer) are likewise forbidden to be discharged at the town branch sewage treatment plant septage receiving station.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 35-86, § 1, 3-18-86; Ord. No. 165-89, § 10, 8-31-89; Ord. No. 269-2004, § 3, 11-4-04; Ord. No. 34-2008, § 1, 2-21-08; Ord. No. 131-2008, § 2, 6-12-08; Ord. No. 22-2015, § 1, 3-17-15 ; Ord. No. 34-2019, § 1, 6-6-19; Ord. No. 056-2020, § 1, 7-7-20)

Sec. 16-49. Inspection by director, division of sanitary sewers.

(a) The director, division of water quality and other duly authorized employees of the urban county government bearing proper credentials and identification shall be permitted to enter all properties for the purpose of inspection of facilities, inspecting and/or copying records, observation, measurement, sampling and testing in accordance with the provisions of this chapter.

(b) While performing the necessary work on private properties referred to in subsection (a) above, the director, division of water quality or duly authorized employees of the urban county government shall observe all safety rules applicable to the premises, established by the company and made known to urban county government personnel prior to the entrance to said properties.

(c) The director, division of water quality and other duly authorized employees of the urban county government bearing proper credentials and identification shall be permitted to enter all private properties through which the urban county government holds a duly negotiated easement for the purpose of, but not limited to, inspection, observation, measurement, sampling, repair and maintenance of any portion of the sewage works lying within said easement. All entry and subsequent work, if any, on said easement shall be done in full accordance with the terms of the duly negotiated easement pertaining to the private property involved.

(d) Information and data provided by an industrial user to the director, division of water quality or his designated representative, identifying the nature and frequency of a discharge, shall be made accessible to the public. All other information which may be so submitted or which may be furnished by an industrial user to the urban county government or its designated representatives in connection with required reports or by request shall also be available to the public unless the industrial user is able to demonstrate to the satisfaction of the urban county government that disclosure of such information or a particular part thereof to the general public would divulge methods or processes entitled to protection as trade secrets. Any request for confidential treatment of information and for access to such information shall be governed by procedures specified in 40 CFR part 2 and KRS 61.870 et seq.

(Ord No. 164-84, § 1, 9-20-84; Ord. No. 234-91, § 10, 11-14-91; Ord. No. 143-2009, § 16, 7-7-09)

Sec. 16-50. Penalty.

(a) Except as otherwise specified herein, the provisions of chapter 2B of the Code of Ordinances shall apply to all civil enforcement actions. Any person found to be violating any provision of sections 16-36 through 16-46 or 16-48 through 16-55, or any provision of a permit or order issued under these sections, shall, for the first

violation of such section, be served by the urban county government with written notice of violation stating the nature of the violation and providing a reasonable time period of at least twenty-four (24) hours for the satisfactory correction thereof. The offender shall, within the time stated in such notice, permanently cease all violations. No notice of violation shall be required prior to the issuance of a citation for any offense which occurs after the first citation is issued to a person or entity for the same property address.

(b) Any persons who shall continue any violation beyond the time limit provided for in section 16-50(a) shall for every offense, if any individual, be fined not less than two hundred dollars ($200.00) nor any more than five hundred dollars ($500.00), or if a corporation, be fined not less than five hundred dollars ($500.00) nor more that ten thousand dollars ($10,000.00). For violations of section 16-42, 16-43, or 16-45(a), corporations shall be fined not less than one thousand dollars ($1,000.00). Each day in which any such violation shall continue shall be deemed a separate offense.

(c) Any person violating any of the provisions of sections 16-36 through 16-46 or 16-48 though 16-55 shall become liable to the urban county government for any expense, loss or damage occasioned by the urban county government by reason of such violation. Said person shall also be liable for repairing or restoring any sanitary sewer, storm sewer and natural outlet damaged, obstructed or impaired by such violation to its pre-existing condition.

(d) If any person discharges sewage, industrial waste or other waste into the urban county government waste water disposal system contrary to the provisions of this chapter, federal or state pretreatment requirements or any order of the urban county government, the urban county government may commence an action for appropriate legal and/or equitable relief, including injunctive relief in conformance with 401 KAR 5:057 section 6(4)(a)6a.

(e) In addition to the remedies provided herein, the urban county government shall possess the authority to issue civil citations for the violation of the provisions of sections 16-37, 16-38, 16-40, 16-40.1, 16-41, 16-44 or 16-48. Any person who shall continue any violation beyond the time limit established in the written notice of violation provided in subsection (a) may be issued a civil citation for every offense.

(f) Citation officers designated in section 14-10 shall have power to enforce the provisions of sections 16-37, 16-38, 16-40, 16-40.1, 16-41, 16-44 or 16-48 through the issuance of civil citations. All citations issued pursuant to these sections shall be referred to the infrastructure hearing board with the citations and civil process to conform to sections 16-76 through 16-78 and chapter 2B.

(g) For violation of sections 16-37, 16-38, 16-40, 16-40.1, 16-41, 16-44 or 16-48 the civil fines associated with the issuance of a citation are as follows:

(1) Upon issuance of the first citation for violation of these sections within any twelve-month period the maximum fine shall be four hundred dollars ($400.00).

(2) Upon the issuance of the second citation for violation of these sections within any twelve-month period the maximum fine shall be six hundred dollars ($600.00).

(3) Upon issuance of the third citation for violation of these sections within any twelve-month period the maximum fine shall be eight hundred dollars ($800.00).

(4) Upon issuance of the fourth or more citation for violation of these sections within any twelve-month period the maximum fine shall be one thousand dollars ($1,000.00).

(h) Appeal of the citation may be made to the infrastructure hearing board, article IX, as provided in chapter 2B.

(i) When there is reason to believe that the violation of section 16-37, 16-38, 16-40, 16-40.1, 16-41, 16-44, or 16-48 presents a serious threat to the public health, safety, and welfare, or if in the absence of immediate action, the effects of the continuation of the violation would be irreparable or irreversible, the urban county government may abate the conditions without prior notice. In such cases the government may, in addition to any fine imposed herein, charge the responsible person with an administrative fee of seventy-five dollars ($75.00) and with the costs for any expense, loss or damage occasioned by the urban county government by reason of such violation. Said person shall also be liable for the costs of repairing or restoring any sanitary sewer or other infrastructure damaged, obstructed or impaired by such violation to its pre-existing condition. The urban county government may file a lien for the costs of such abatement in accordance with section 2B-8. Citations, if issued, shall not preclude the government from abating the conditions and billing the responsible person, persons, or entities for the cost of abatement.

(j) Nothing contained herein shall preclude the urban county government from the enforcement of sections 16-36 through 16-46 or 16-48 through 16-55 by any means authorized by law. If any person discharges sewage, industrial waste or other waste into the urban county government waste water disposal system contrary to the provisions of this chapter, federal or state pretreatment requirements or any order of the urban county government, the urban county government may commence an action for appropriate legal and/or equitable relief, including injunctive relief in conformance with 401 KAR 5:057 section 6(4)(a) 6a.

(k) Pursuant to 401 KAR 5:057 section 6(4)(b)(7), the names of all industrial dischargers that significantly violated applicable pretreatment standards in the previous twelve (12) months will be published in the largest local daily newspaper at least annually.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 165-89, § 11, 8-31-89; Ord. No. 234-91, § 11, 11-14-91; Ord. No. 148-2000, § 4, 6-1-00; Ord. No. 269-2004, § 4, 11-4-04; Ord. No. 77-2011, § 13, 6-23-11; Ord. No. 221-2016, § 15, 12-6-16)

Editor's note(s)—Formerly, § 16-53.

Sec. 16-51. Hearing board.

(a) A hearing board shall be appointed as needed for arbitration of differences between the commissioner of public works and sewer users on matters concerning interpretation and execution of the provisions of this article by the commissioner of public works.

(b) One (1) member of the board shall be a registered professional engineer, one (1) member shall be a practicing registered professional sanitary engineer, one (1) member shall be a representative of an industry or manufacturing enterprise, one (1) member shall be a lawyer admitted to the Kentucky State Bar, and one (1) member shall be selected at large for their interest in accomplishing the objectives of this chapter.

(Ord. No. 164-84, § 1, 9-20-84; Ord. No. 165-89, § 12, 8-31-89)

Sec. 16-52. New construction to conform to urban county and state regulations.

Prior to construction of any sanitary sewer facility in the urban county area, without regard to whether it is to be publicly or privately owned, operated and maintained, all plans and specifications shall be submitted to the urban county engineer's office and shall be in conformance with this Code, the 2001 Facilities Plan Update, current edition, latest revision, and the Sanitary Sewer and Pumping Station Manual. All plans and specifications shall also be approved by the Kentucky Division of Water, pursuant to KRS Chapter 224.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 174-2001, § 10, 7-5-01)

Editor's note(s)—Formerly, § 16-49.

Sec. 16-53. Required certification, inspections, tests.

Prior to placing the sanitary sewer system into operation, all testing, inspections and certifications required by the sanitary sewer and pumping station manual and the construction inspection manual shall be completed.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 174-2001, § 11, 7-5-01)

Editor's note(s)—Formerly, § 16-50.

Sec. 16-54. Items and material specifications not included in manuals to conform to approved construction plans.

Sanitary sewer items and material specifications not included in the division of engineering manuals or by this Code of ordinances shall conform to construction plans approved by the urban county engineer.

(Ord. No. 174-2001, § 12, 7-5-01)

Editor's note(s)—Ord. No. 174-2001, § 12, adopted July 5, 2001, amended § 16-54 to read as set out above. Formerly, § 16-54 pertained to fees and derived from Ord. No. 126-83, § 1, adopted July 21, 1983, and Ord. No. 164-84, § 1, adopted Sept. 20, 1984.

Editor's note(s)—Formerly, § 16-51.

Sec. 16-55. Occupancy of structures.

(a) No person shall occupy any structure or shall cause or allow the occupancy of any structure before the sewer system to which said structure is connected has met all requirements of sections 16-52 through 16-54.

(b) No building permit or occupancy permit, other than a nonoccupancy building permit, shall be issued by any officer or agent of this government until the sewer system serving the structure for which the permit is requested has met all requirements of sections 16-52 through 16-54.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-52.

Article VI

Sanitary Sewer Charges and Fees

Sec. 16-56. Article supplemental to chapter; definitions.

This article is supplemental to and, where appropriate, may be construed in the light of pertinent provisions of article I of this chapter, to which reference is hereby made for definitions of "sewage," "sanitary sewer," and other terms herein used but not herein defined.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-54.

Sec. 16-57. Free use of system prohibited.

No free use of the services and facilities of the sanitary sewer system shall be granted or permitted to any user thereof.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-55.

Sec. 16-57.1. Rates adjustable.

All rates and fees set forth in sections 16-48, 16-59, and 16-60 shall be adjustable each July 1 beginning on July 1, 2021, by an amount based upon the Consumer Price Index for All Urban Consumers, the U.S. City Average ("CPI-u") published monthly by the Bureau of Labor Statistics. These rates shall be adjusted up if so indicated by a factor determined by averaging the monthly CPI-u published for the twelve-month period ending, and including, April of the year before the July 1 adjustment.

(Ord. No. 34-2008, § 2, 2-21-08; Ord. No. 22-2015, § 2, 3-17-15 ; Ord. No. 34-2019, § 2, 6-6-19)

Sec. 16-58. Charges based on water consumption.

It is hereby determined that the most accurate and feasible method of ascertaining and measuring the use of the facilities and services of the sanitary sewer system, and of requiring compensation for such use, is by basing sanitary sewer service rates and charges upon the quantity of water supplied to the premises of the respective users, as

shown by periodic meter readings of the party supplying water service; and the urban county government's rates and charges for such use and service are established on such basis. It being realized that all such water supplied may not be discharged into the sanitary sewer system, for those users, as defined in schedule A of Code of Ordinances section 16-59, the urban county government will utilize low water usage months, determined to be the calendar months of November, December, January, February, March and April, for purposes of calculating an average for use in the remaining months of the year if such averaging will result in a bill based on a lower consumption than the actual consumption during those remaining months. A zero-month reading, that is, a month in which no water is consumed, will not be used in computing averages. Those new customers who do not have an established use history of three (3) or more months of low water usage will be billed at a rate of ninety (90) percent of actual usage until the low water usage months begin.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 242-83, § 1, 12-15-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 52-97, § 1, 4-3-97)

Editor's note(s)—Formerly, § 16-56.

Sec. 16-59. Rates generally.

Rates and charges for sanitary sewer service are hereby established as follows:

(a) Schedule A: Rates and charges shall be as follows:

(1) This schedule shall apply to users whose sewage originates solely from the result of human habitation in dwelling units which are individually metered for water service, defined herein to be a room or suite of two (2) or more rooms that is designed for, or is occupied by, one (1) family doing its own cooking therein and having only one (1) kitchen; however, "dwelling unit" shall not include a boarding-house, motel or hotel as defined in the zoning ordinance. Residential users whose sewage originates solely from the result of human habitation in dwelling units as defined herein shall be charged the rate of seven dollars and one cent ($7.01) effective July 1, 2019, and seven dollars and thirty six cents ($7.36) effective July 1, 2020, for any amount between zero and the first one hundred (100) cubic feet (one (1) unit, equivalent of seven hundred and forty-eight (748) gallons) of incoming water used per residential unit per month for the first unit of incoming water per month.

(2) For all amounts in excess of one (1) unit of usage, users shall be charged at the following unit cost, as established by the commissioner of environmental quality, in accordance with the provisions of this Code:

Flow per one (1) unit of incoming water:

Effective July 1, 2019 ..... $5.28

Effective July 1, 2020 ..... $5.54

(b) Schedule B: Rates and charges shall be as follows:

(1) Users, other than those users charged under schedule A of this section, whose parameter loadings are established by the commissioner of public works in accordance with the provisions of this Code, shall be charged the rate for each parameter according to the following:

Flow per unit of incoming water for any amount between zero and the first unit:

Effective July 1, 2019 ..... $8.51

Effective July 1, 2020 ..... $8.94

Flow per unit over one (1) unit:

Effective July 1, 2019 ..... $6.43

Effective July 1, 2020 ..... $6.75

Plus

Suspended solids discharged per pound in excess of 250 ppm:

Effective July 1, 2019 ..... 0.957

Effective July 1, 2020 ..... 1.005

Ammonia nitrogen discharged, per pound in excess of 25 ppm:

Effective July 1, 2019 ..... 2.907

Effective July 1, 2020 ..... 3.052

Biochemical oxygen demand discharged, per pound in excess of 250 ppm

Effective July 1, 2019 ..... 1.157

Effective July 1, 2020 ..... 1.215

(2) The urban county government will permit the installation of a separate water meter for those users as defined under schedule B. The installation of meters will be at the expense of the customer. This meter will measure the amount of water used that does not go into the sewer system and can then be excluded from the billing.

(3) Applications for a billing credit for water that does not go into the sanitary sewer system shall be made in writing to the compliance and monitoring manager, division of water quality, on a form provided by the division. Provided satisfactory evidence is provided with the application a credit for water excluded from the sewer system shall be granted for a period not to exceed six (6) months prior to the application date. No further credit shall be granted without a monthly application for credit with sufficient

supporting evidence. The administration of these credits shall be under the division of revenue and the division may prescribe such regulations, policies, or guidelines consistent with the provisions of this section as deemed necessary or appropriate to carry out the intentions stated herein.

(c) Any user subject to schedule A who is the legal title/leaseholder/renter of the benefited property who is age sixty-five (65) or older or who is receiving social security disability benefits and whose annual household income (as defined in section 16-59.1 below) is twenty-five thousand dollars ($25,000) or less, said amount of income to be adjusted annually in accordance with the Social Security Administration's cost of living adjustment, can apply for a discount. Upon acceptance for the discount, said user's bill shall be decreased by thirty (30) percent of the billing amount or the amount of the rate for the first unit of usage, whichever is greater.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 242-83, § 2, 12-15-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 35-86, § 2, 3-18-86; Ord. No. 50-92, § 1, 4-28-92; Ord. No. 23-2001, § 1, 2-8-01; Ord. No. 87-2001, § 4, 4-19-01; Ord. No. 34-2008, §; 3, 2-21-08; Ord. No. 84-2008, § 1, 4-24-08; Ord. No. 85-2012, § 3, 7-5-12; Ord. No. 22-2015, § 3, 3-17-15 ; Ord. No. 72-2015, § 1, 6-18-15 ; Ord. No. 34-2019, § 3, 6-6-19)

Editor's note(s)—Formerly, § 16-57.

Sec. 16-59.1. Adjustment of increased fees.

(a) As used in this section only, the following terms shall have the meanings given:

(1) Assets test means that any person having assets in excess of either:

(i) Five thousand dollars ($5,000.00) in liquid assets such as bank accounts, savings, certificates of deposits, stocks, bonds, etc.; or

(ii) Five thousand dollars ($5,000.00) in equity in assessed value of nonhomestead property;

shall be ineligible to participate in the program, notwithstanding that he meets the income level qualifications set forth in this section. However, motor vehicles for personal use, household furnishings and the benefited property itself, as well as buildings located thereon which are occupied by the person seeking to qualify as a home for himself and his family, shall not be included in computing assets.

(2) Income means gross income as defined in Section 61 of the Internal Revenue Code.

(3) Program means the assistance program established in this section.

(4) Qualified customer means a residential sewer user customer who meets the assets test and has an annual income equal to or less than one hundred fifty (150) percent of the poverty income levels set forth in the poverty guidelines chart established by the Community Services Administration, annually published in the Federal Register, in effect at the time of application. However, income itself shall be measured by the definition contained in subsection (a)(2) of this section.

(b) Qualified customers may receive assistance for fifty (50) percent of the cost of their sewer user charges, decreasing their obligation to fifty (50) percent of the total charges on the bill or the amount of the rate for the first unit of usage, whichever is greater. All payments of sewer user fee grants by the urban county government are subject to an annual appropriation by the urban county council of the funds to make such payments, and neither the establishment of this program nor participation in the program shall constitute a contract between the urban county government and any qualified resident for other than the fiscal year for which funds are appropriated to make payments. In the event funds are not appropriated for any given fiscal year, customers will be required to pay the full cost for that year.

(c) Qualified customers who participate in this program shall not be eligible to receive the discount allowed in subsection 16-59(c) above.

(d) The administration of this program shall be under the direct supervision of the mayor of the urban county government. The mayor may prescribe such regulations and procedures, consistent with the provisions of this section, as he or she deems necessary or appropriate to carry out the intentions stated herein. The commissioners of the departments of finance, environmental quality and public works, and housing advocacy and community development shall be responsible for administration of aspects of the program at the direction of the mayor.

(Ord. No. 35-86, § 4, 3-18-86; Ord. No. 192-92, § 7, 10-29-92; Ord. No. 23-2001, § 2, 2-8-01; Ord. No. 34-2008, § 4, 2-21-08; Ord. No. 84-2008, § 2, 4-24-08; Ord. No. 067-2023, § 2, 6-29-23)

Sec. 16-60. Tap-on or connection fees.

(a) Prior to every future tap-on or connection to any sewer pipe, main lateral, trunk line, interceptor or other installation or facility of the sanitary sewer system, there shall be paid to the director, division of revenue, a fee or charge, hereby established, which shall be solely for the privilege of connecting to the system and which shall be in addition to the requirement, as prescribed in section 16-38, that connections to the system be made at the sole expense of the connecting property owner. Such tap-on, connection or privilege fee is established and fixed as follows:

(1) **Single-family residences, town homes, and duplexes (per unit) occupying lots:**

	Effective July 1, 2026
Of ¼ acre or less	$1,699.50
From ¼ to ½ acre	$3,155.90
From ½ to ¾ acre	$4,616.32
From ¾ to 1 acre	$6,315.81
Larger than 1 acre	$8,015.29

(2) **Apartments, condominiums, hospitals, and nursing homes:**

	Effective July 1, 2026
Each efficiency unit	$680.57
Each 1-bedroom unit	$1,261.90
Each 2-bedroom unit	$1,650.84
3- or 4-bedroom unit	$2,041.76
Minimum for building	$3,398.93

(3) **Motels:**

	Effective July 1, 2026
Each living unit	$1,261.90

(4) **Trailer parks:**

	Effective July 1, 2026
Each trailer or space	$ 1,699.50

(5) **Service stations:**

	Effective July 1, 2026
Each station	$ 9,714.75

(6) **Restaurants, business, professional, commercial and industrial buildings, including such facilities in hospitals or nursing homes:**

	Effective July 1, 2026
A fee to be per square foot of floor space	$1.944
Minimum fee for each Urban County Government sewer connection	$1,699.50

(7) **Storage areas, warehouses, and distribution centers:**

	Effective July 1, 2026
A fee to be per square foot of floor space	$ 0.405
Minimum fee for each Urban County Government sewer connection	$ 1,699.50

(8) **Swimming pools:**

	Effective July 1, 2026
For the erection of each swimming pool, a fee 100 cubic feet	$2.916

(9) **Non profit school establishment:**

	Effective July 1, 2026
Minimum fee for each Urban County Government sewer connection, per square foot of floor space	$0.971

(b) However, neighborhoods which are served by septic tanks and which are identified for sewer installation in the urban county government's 1976 201 Facilities Plan for Wastewater Treatment Works and were further identified in a capacity reservation resolution as at the previous rate, shall pay the tap-on fee rates in effect prior to July 1, 1986.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 35-86, § 3, 3-18-86; Ord. No. 183-91, § 1, 8-29-91; Ord. No. 23-2001, § 3, 2-8-01; Ord. No. 87-2001, § 5, 4-19-01; Ord. No. 23-2001, § 3, 2-8-01; Ord. No. 87-2001, § 5, 4-19-01; Ord. No. 34-2008, § 5, 2-21-08; Ord. No. 35-2012, §§ 1—10, 3-22-2012; Ord. No. 22-2015, § 4, 3-17-15 ; Ord. No. 34-2019, § 4, 6-6-19)

Editor's note(s)—Ord. No. 22-2015, adopted March 17, 2015, provides that all rate and fees set forth in this section shall be adjusted annually each fiscal year beginning effective July 1, 2017, in accordance with the consumer price index for all urban consumers.

Editor's note(s)—Formerly, § 16-58.

Sec. 16-61. Tap-on or connection fee adjustments.

If a tap-on or connection fee or charge is for a structure replacing a preexisting structure, credit shall be given the applicant on the fee to the extent of the rate applicable to the preexisting use. If the fee or charge is for an addition

to an existing structure, and it is shown that by virtue of the addition, a preexisting use under section 16-60(6) is reduced to a use under section 16-60(7), the tap-on or connection fee for the addition, notwithstanding its intended use, shall not exceed the rate of section 16-60(7) to the extent of the reduction of preexisting use.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-59.

Sec. 16-61.1. Properties in expansion areas exempt.

Effective November 30, 1996, properties in the expansion areas described in the expansion area master plan adopted by the planning commission effective November 30, 1996, and which are subject to comprehensive development exactions pursuant to article 23C of the urban county zoning ordinance shall be exempt from the provisions of sections 16-60 and 16-61.

(Ord. No. 198-96, § 1, 10-3-96)

Sec. 16-62. Privilege fee.

(a) Those property owners who may be compensated in the form of a privilege fee are those that have spent funds on their sewer system which ultimately will benefit other properties served by the sewer system in the watershed.

(b) Built-up area as used in this section means properties previously developed for residential, business or commercial purposes and using septic tanks for sewage treatment. Small isolated vacant lots within built-up areas shall be included in this definition.

(c) Any person who constructs sewer facilities pursuant to this section must comply with the following prerequisite requirements:

(1) All plans must be approved by the urban county engineer and the urban county council, and completed according to urban county government and commonwealth standards.

(2) Prior to approval by the urban county council, the person constructing the sewer facilities must:

(i) Provide written notice by certified mail to all owners of property to be ultimately benefitted, at least fourteen (14) days in advance of the work session date at which the particular privilege fee agreement is to be discussed, said written notice to provide a description of the proposed project, the share of costs to be borne by each property, and the date of the work session at which the agreement is to be discussed; and

(ii) Agree to hold the urban county government harmless from any liability arising from the failure to collect the privilege fee at the time the connection (tap-on) fee is paid.

(3) If the project is within a built-up area, the person constructing the sewer facilities must show evidence that at least fifty-one (51) percent of the owners of the properties to he ultimately benefitted have agreed to share the cost of the sewer facilities.

(d) The shared costs for the construction of the sewer facilities subject to apportionment pursuant to the privilege fee agreement provided for herein shall be based upon all costs of construction, including engineering costs, easement acquisitions and right-of-way costs. The urban county government may institute eminent domain proceedings to obtain necessary easements, and all expenses of such proceedings shall be an included project cost. Participating owners will dedicate easements free of charge.

(e) The shared costs for the construction of the project shall be divided as follows:

(1) **Built-up areas:** The costs shall be assessed against each property as proposed in the privilege fee agreement and approved by the urban county council for each particular agreement.

(2) **Non-built-up areas.** The shared costs shall be assessed against each property in the project area based upon acreage or density of proposed land use or both, and the privilege fee agreement shall include the exact percentage of shared costs each property shall be assessed.

(f) The shared costs for the construction of the project shall be paid as follows:

(1) **Built-up areas:** The costs shall be paid on the date of connection to the system.

(2) **Non-built-up areas:** The privilege fee agreement shall provide that payment shall be due immediately prior to the signing of a final subdivision plan by the urban county engineer or his designee. In the event that a final subdivision plan is not required, the payment of the fee shall be due prior to the approval of the sanitary sewer plans by the division of engineering. The predetermined privilege fee due will be proportionate to the area in the subdivision plan, or the area for which approval is granted for a sanitary sewer system, if the total property subject to the privilege fee is not included.

(g) The privilege fee agreement approved by the urban county council may, in the discretion of the council, provide that payments as indicated in the agreement shall bear interest at a reasonable rate. The beginning interest date shall be subject to council approval and shall not be sooner than thirty (30) days following the opening of construction bids for the project.

(h) A privilege fee shall apply to property adjacent to an existing benefitted area for a KRS chapter 107 bond issue. The privilege fee in this instance shall be a proration of the principal amount of the bond issue and interest thereon for expenditures for the extra facilities enumerated in subsection (e) above. The privilege fee shall be paid into the redemption fund for said bond issue.

(i) A privilege fee shall apply to property adjacent to an existing benefitted area for a KRS chapter 67A bond issue. The privilege fee in this instance shall be a proration of the principal amount of the bond issue and

interest thereon for expenditures for the extra facilities enumerated in subsection (e) above. The privilege fee shall be paid in a proportional share to property owners who have made full cash payments for their assessments, and the remainder of the privilege fee shall be paid into the redemption fund for said bond issue.

(j) Any ordinance of initiation to initiate a waste water collection project under KRS chapter 67A and which affects the properties to be benefitted under any privilege fee agreement shall serve to halt any privilege fee proceedings or installation of sewers as provided under this section.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 112-84, § 1, 7-12-84; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 193-86, §§ 1—4, 9-18-86)

Editor's note(s)—Formerly, § 16-60.

Sec. 16-62.1. Privilege fees; alternate method.

(a) The urban county government may be compensated in the form of a privilege fee where it expends funds on construction of sewer facilities which ultimately will benefit undeveloped properties served by the sewer system in the watershed wherein such facilities are constructed.

(b) The urban county government shall provide for compensation for expenditure of funds for sewer facilities as follows:

(1) The urban county council shall determine that it is in the best interest of the government, in order to facilitate development and/or serve existing property, to expend funds on sewer facilities which will benefit properties in the watershed.

(2) A privilege fee agreement shall be prepared to be executed by the property owners who have participated in the planning and implementation of the construction plan for sewer facilities ("participating owners") and by the mayor, on behalf of the urban county government and on behalf of property owners who have not participated in the construction plans ("nonparticipating owners").

(3) Prior to final approval by the urban county council, the urban county government shall provide written notice by certified mail to all owners of property to be ultimately benefitted at least fourteen (14) days in advance of the work session date at which the privilege fee agreement is to be discussed, said written notice to provide a description of the proposed project, the share of costs to be borne by each property and the date of the work session at which the agreement is to be discussed.

(c) The shared costs for the construction of the sewer facilities subject to apportionment pursuant to the privilege fee agreement provided for herein shall be based upon all costs of construction, including engineering costs, easement acquisitions and right-of-way costs. (Participating owners will dedicate easements free of charge.)

(d) The shared costs shall be assessed against each property in the project area based upon acreage or density of proposed land use or both, and the privilege fee agreement shall include the exact percentage of shared costs each property shall be assessed.

(e) The privilege fee agreement shall provide that payments shall be due immediately prior to the signing of a final subdivision plan by the urban county engineer or his designee. In the event that a final subdivision plan is not required, the payment of the fee shall be due prior to the approval of the sanitary sewer plans by the division of engineering. The predetermined privilege fee due will be proportionate to the area in the subdivision plan, or the area for which approval is granted for a sanitary sewer system, if the total property subject to the privilege fee is not included.

(f) The privilege fee agreement may, in the discretion of the urban county council, provide that payments as indicated in the agreement shall bear interest at a reasonable rate from the date the sewer facilities are completed and accepted as a part of the urban county government sewer system until the payment is made.

(Ord. No. 161-83, § 1, 9-22-83; Ord. No. 16-84, §§ 1, 2, 2-9-84; Ord. No. 94-94, § 1, 6-2-94)

Editor's note(s)—Although the provisions of this section were not addressed in Ord. No. 164-84, the editor has retained these provisions, renumbering them from § 16-60.1 to § 16-62.1.

Sec. 16-63. Billing generally; periods.

(a) Billing of the sewer user fee will be monthly.

(b) The urban county government will honor all adjustments made by the Kentucky-American Water Company in an individual bill if such adjustment is made within two (2) years of the original billing. These adjustments shall include but are not limited to the following reasons:

(1) Bill errors;

(2) Accidental overreads;

(3) Water meter leaks;

(4) Faulty meter dials;

(5) Water tank leaks;

(6) Recommended cold weather drippage.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 242-83, § 3, 12-15-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 314-88, § 1, 12-15-88; Ord. No. 73-2009, § 3, 5-14-09; Ord. No. 85-2012, § 4, 7-5-12)

Editor's note(s)—Formerly, § 16-61.

Sec. 16-64. When bills due; delinquencies.

(a) Bills for sanitary sewer service of users in the classifications identified in section 16-59 shall be due when rendered; and the face amount, without penalty or interest, shall be paid on the due date. If a bill is not paid on the due date, the urban county government may, as authorized by KRS 96.930 to 96.943, inclusive, issue to the party supplying water service to the premises a direction to discontinue such water service, whether the water service bill shall have been paid or not. In the event that the water service is discontinued as result of non-payment of the bill the urban county government shall assess any fees or expenses it incurs as a result of the discontinuance as an additional charge.

(b) When such delinquent sanitary sewer user shall have paid to the urban county government the full amount of the delinquent bill, together with the prescribed penalty and/or interest provided by subsection (c) of this section, the urban county government will notify the water supplier that the sewer bill delinquency no longer exists and the sewer user may then, as far as the urban county government is concerned, seek restoration of the discontinued water service upon such terms and conditions as the water supplier may lawfully prescribe.

(c) All unpaid sanitary sewer bills are subject to a penalty and interest charge to be computed in the following manner.

(1) Any sanitary sewer service bill or a portion of any unpaid sewer service bill remaining unpaid for more than twenty (20) days from the date of billing may be assessed a penalty of ten (10) percent of the unpaid balance.

(2) In addition to the penalty provided in subsection (c)(1) of this section, any sanitary sewer bill or a portion of any sanitary sewer bill remaining unpaid for more than thirty (30) days from the date of billing shall be assessed an interest charge at the statutory rate, which shall be on file with the division of revenue against the unpaid balance of such bill.

(d) The department of law is authorized and directed to institute legal proceedings in the name of the urban county government in any court having jurisdiction over such matter for the collection of delinquent sewer user fees, and to take any actions necessary in such proceedings to protect the interests of the urban county government. The commissioner of finance shall refer cases to the department of law when the amount owed is greater than five hundred dollars ($500.00) and upon a determination that all other collection efforts have failed.

(e) The mayor is authorized and directed to execute a release of any lien or lis pendens filed of record upon payment in full of the delinquent sewer user fees and applicable costs or upon conclusion of court proceedings which result in a sale of the property regardless of whether any portion of the fees and costs were paid from the proceeds of the sale. The department of law shall cause this release to be filed in the county clerk's office.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 119-90, § 3, 6-14-90; Ord. No. 85-2012, §§ 5, 6, 7-5-12; Ord. No. 84-2013, § 2, 7-9-13; Ord. No. 117-2013, § 2, 9-26-13)

Editor's note(s)—Formerly, § 16-62.

Sec. 16-64.1. [Refund claim; time period for filing.]

Any person or entity responsible for payment of a sanitary sewer bill who believes that the bill or amount of the bill is in error may file for a refund within two (2) years of the date of billing. Such claim shall be made in writing to the director, division of revenue, on a form provided by the division. The director or his or her designee shall review the claim and respond in writing within thirty (30) days of the filing. The decision of the director or designee shall be final. The division of revenue may prescribe such regulations, policies, or guidelines consistent with the provisions of this section as deemed necessary or appropriate to carry out the intentions stated herein.

(1) Any overpayment may be credited against the amount of a future bill(s).

(2) The two-year limitation period for refunds or credits shall be in effect for any filing for a refund or credit submitted on or after August 1, 2012.

(Ord. No. 85-2012, § 7, 7-5-12)

Sec. 16-65. Authority to cut off water if improvement benefit assessment not paid.

(a) Within forty-five (45) days after any annual improvement benefit assessment levied against any benefitted property pursuant to KRS 67A.871—67A.894 becomes delinquent, the commissioner of finance shall notify the owner of the delinquent property, by registered mail, that such nonpayment will result in cutoff of water service to the affected property ninety (90) days after the delinquent date unless such annual improvement benefit assessment, together with any penalties and interest, shall be paid. Within thirty-five (35) days after the first notice is mailed, the commissioner of finance shall send, by registered mail, to the owner of the delinquent property a second notice restating the information contained in the first notice and stating this to be a "final notice." Where the owner of the delinquent property is not the occupant of the property, the commissioner of finance shall send both the first and final notice to the occupant of the delinquent property, by mail, when he sends such notices to the owner of the delinquent property.

(b) If the annual improvement benefit assessment remains delinquent ninety (90) days after the date on which it was delinquent, the commissioner of finance shall direct the Kentucky-American Water Company, or its successors, to cease delivery of water service to such premises until such time as it is notified to resume water service to such premises by the commissioner of finance.

(c) Where the owner of the delinquent property is not the occupant of the property, the commissioner of finance is authorized to accept payment for the annual improvement benefit assessment from the occupant of the delinquent property.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-63.

Sec. 16-65.1. Authority to institute legal proceedings for collection of delinquent improvement benefit assessment.

The department of law is authorized and directed to institute legal proceedings in the name of the urban county government in any court having jurisdiction over such matter for the collection of delinquent annual improvement benefit assessments and to bake any actions necessary in such proceedings to protect the interests of the urban county government.

(Ord. No. 119-90, § 1, 6-14-90)

Sec. 16-65.2. Authority of mayor to execute release of lis pendens upon payment of delinquent improvement benefit assessment.

The mayor is authorized and directed to execute a release of any lis pendens filed pursuant to section 16-65.1 upon payment in full of the delinquent annual improvement benefit assessments and applicable costs or upon conclusion of court proceedings which result in the sale of the benefitted property regardless of whether any portion of the assessments were paid from the proceeds of the sale. The department of law shall cause the release to be filed in the county clerk's office.

(Ord. No. 119-90, § 2, 6-14-90)

Article VII

Sanitary Sewer Financial Assistance Plan

Sec. 16-66. Purpose.

It is the purpose of the sanitary sewer financial assistance program to enable the urban county government to establish projects in areas of the urban county and to assist property owners required to connect their property to public sanitary sewers, where the cost of these projects or required connection would otherwise impose a financial hardship on certain owners of benefitted property and certain owners required to connect their property to an existing public sanitary sewer, by allowing these property owners to defer payment of the annual improvement assessment and to receive a grant for the cost of the connection fee.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84; Ord. No. 122-87, § 3, 6-25-87)

Editor's note(s)—Formerly, § 16-64.

Sec. 16-67. Deferment of annual improvement assessments.

(a) The annual improvement assessment resulting from a project or from connection to an existing public sanitary sewer may be deferred for qualified property owners. Qualified property owners desiring to participate in the program shall execute an unassignable and unassumable mortgage of their benefitted property, or property required to be connected to an existing public sanitary sewer, in favor of the urban county government for the cumulative cost of all annual improvement assessments (the sum of principal and interest for the life of the bond issue, including the tap-on fee) on their benefitted property. Upon receipt of each annual improvement assessment bill, each participating property owner shall execute a promissory note in favor of the urban county government for any amount of the annual improvement assessment which is not paid by the participating property owner, whereupon the urban county government will pay the unpaid portion of the participating property owner's annual improvement assessment. Promissory notes executed by a participating property owner shall be due and payable on the date of the expiration of the sanitary sewer improvement bond issue which financed the project or the public sanitary sewer improvements to which the qualified property owner is connecting his property. All mortgages and promissory notes shall contain an acceleration clause which shall operate to cause all sums owing by reason of such promissory notes, and secured by such mortgages, to be immediately due and payable upon the transfer of the mortgaged benefitted property to other than a surviving spouse by will or intestacy. All payments of annual improvements assessments by the urban county government are subject to an annual appropriation by the urban county council of the funds to make such payments, and neither the establishment of this program nor participation in the program shall constitute a contract between the urban county government and any qualified property owner for other than the fiscal year for which funds are appropriated to make annual improvement assessment payments. In the event funds are not appropriated for any given fiscal year, the participating property owner will be required to pay the annual improvement assessment for that year.

(b) Failure of the property owner to acquire or maintain property insurance shall not prevent participation in the program.

(Ord No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-65.

Sec. 16-68. Connection fee; grant; deferment.

(a) Qualified property owners may receive a one hundred (100) percent grant for the cost of the connection fee resulting from a project or from connection to an existing public sanitary sewer. This grant shall not include the cost of any sump pump or sewage ejector. All payments of connection fee costs by the urban county government are subject to an annual appropriation by the urban county council of the funds to make such payments, and neither the establishment of this program nor participation in the program shall constitute a contract between the urban county government and any qualified property owner for other than the fiscal year for which funds are appropriated to make connection fee payments. In the event funds are not appropriated for any given fiscal year, property owners will be required to pay the connection fee cost for that year.

(b) Any person who has previously received either the partial connection fee grant authorized by this article or the connection fee loan authorized by this article shall be entitled in lieu thereof to receive the one hundred (100) percent grant authorized in subsection (a). The commissioner of finance shall reimburse to any such person the sum he or she paid to the urban county government under either of the programs. All mortgages and promissory notes executed pursuant to the connection fee loan program shall be destroyed.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-66.

Sec. 16-69. Board of appeals.

There is established a sanitary sewer financial assistance program board of appeals to address grievances arising under this program. The board shall have authority to administratively review any determination of ineligibility to participate in the program, when the owner of benefitted property has requested such review by the board in writing, and will submit reports to the urban county council concerning its activities as directed by the urban county council. The board shall be composed of five (5) members, all of whom shall be residents of the urban county, and no two (2) of whom shall be residents of the same urban county council district, which members shall be appointed by the mayor subject to confirmation by a majority of the members of the urban county council. The terms of board members shall be four (4) years, which terms shall be staggered, so that at least half the membership of the board is eligible for appointment every two (2) years.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-67.

Sec. 16-70. Administration, regulations and procedures.

The administration of this program shall be under the direct supervision of the chief administrative officer of the urban county government. The chief administrative officer may prescribe such regulations and procedures, consistent with the provisions of this article, as he deems necessary or appropriate to carry out the intentions stated herein. The commissioners of the departments of finance, public works and social services shall be responsible for administration of aspects of the program at the direction of the chief administrative officer.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-68.

Sec. 16-71. Mortgage extensions.

Upon the expiration of the bond issue financing the project, or any extension pursuant to this section, a qualified property owner shall have the option, upon the execution of a promissory note in favor of the urban county government for all sums due and payable at the expiration of the bond issue, or any extension hereunder, to extend

any mortgage executed in favor of the urban county government pursuant to the program for a period up to ten (10) years. The option to extend created by this section shall be exercised during the one-year period before the expiration of the bond issue, or any extension hereunder.

(Ord. No. 126-83, § 1, 7-21-83; Ord. No. 164-84, § 1, 9-20-84)

Editor's note(s)—Formerly, § 16-69.

Sec. 16-72. Mortgage releases.

The mayor is authorized to release sanitary sewer financial assistance program mortgages when requested by the department of law upon receiving satisfactory evidence that such mortgages have been satisfied and paid in full.

(Ord. No. 96-87, § 1, 5-28-87)

Article VIII

Reserved

Sec. 16-73—16-75. Reserved.

Editor's note(s)—Ord. No. 143-2009, § 17, adopted July 7, 2009, repealed §§ 16-73, 16-74 and 16-75. Former §§ 16-73, 16-74 and 16-75 pertained to prohibited discharges, connections and derived from Ord. No. 122-93, §§ 2—4, adopted June 17, 1993; and Ord. No. 174-2001, § 14, adopted July 5, 2001.

Article IX

Infrastructure and Environmental Hearing Boards

Editor's note(s)—Ord. No. 77-2011, §§ 16, 18, adopted June 23, 2011, amended Art. IX by deleting §§ 16-77, 16-79—16-82. Former § 16-77 pertained to powers of board and derived from Ord. No. 317-2000, § 1, adopted Oct. 26, 2000. Former §§ 16-79—16-82 pertained to appeals, final judgment; notice, lien, recording, responsibility for fines, charges and fees; and immediate action to remedy violations, respectively, and derived from §§ 16-76—16-83, pertained to similar subject matter and derived from Ord. No. 317-2000, § 1, adopted Oct. 26, 2000; Ord. No. 282-2003, §§ 18—21, adopted Dec. 4, 2003; and Ord. No. 269-2004, §§ 11, 12, adopted Nov. 4, 2004.

Sec. 16-76. Hearing boards; establishment; powers.

Two (2) hearing boards are hereby created pursuant to KRS 65.8801 through 65.8840, one (1) to be known and referred to as the infrastructure hearing board and one (1) to be known and referred to as the environmental hearing board. The infrastructure hearing board shall hear matters regarding enforcement of ordinances by the divi-

sions of engineering, water quality, planning, traffic engineering, environmental services, and streets and roads, as specified in applicable code sections, and those portions of the zoning ordinance and subdivision regulations subject to enforcement through civil citations. The environmental hearing board shall hear matters regarding enforcement of ordinances by the division of solid waste and shall also hear matters relating to the enforcement of section 14-105 of the Code which classifies littering as a civil offense. The boards shall operate under and be subject to the provisions of chapter 2B of the Code.

(Ord. No. 317-2000, § 1, 10-26-00; Ord. No. 269-2004, § 8, 11-4-04; Ord. No. 247-2007, § 3, 11-1-07; Ord. No. 77-2011, § 14, 6-23-11; Ord. No. 146-2012, § 3, 11-15-12; Ord. No. 044-2023, § 13, 4-27-23)

Sec. 16-76.1. Members.

(a) The infrastructure hearing board established pursuant to section 16-76 shall be composed of five (5) members and two (2) alternate members to serve in absence of the regular members as follows:

(1) One (1) member shall be a builder or developer.

(2) One (1) member shall be a representative of the conservation or environmental community.

(3) One (1) member shall be an engineer with experience in civil engineering.

(4) Two (2) members shall be from the community at large.

(5) Two (2) alternate members who shall be representative of two (2) of the areas designated in section 16-76.1(a)(1), (2), or (3), above.

(b) The environmental hearing board established pursuant to section 16-76 shall be composed of three (3) members.

(c) Terms and qualification: Appointed board members, and alternate members shall serve a term of three (3) years from the date of appointment, provided that the terms of those originally appointed shall be for one (1) year, two (2) years, and three (3) years, so as to be staggered in the manner required by KRS 65.8811 and shall be subject to the provisions of section 2B-3 of the Code of Ordinances. All administrative hearings shall take place before an assigned hearing officer in conformity with chapter 2B of the Code.

(Ord. No. 269-2004, § 9, 11-4-04; Ord. No. 77-2011, § 15, 6-23-11; Ord. No. 221-2016, § 16, 12-6-16)

Sec. 16-77. Meetings.

The board or its assigned hearing officer shall meet on a designated day of each calendar month, as established by the board, if written applications for appeal have been filed or other business is pending before the board, or at

such other times as deemed necessary by the board. The board secretary shall give public notice of board meetings or administrative hearings in conformity with chapter 2B of the code. An application for appeal shall not be heard by the assigned hearing officer until the required public notice has been given.

(Ord. No. 317-2000, § 1, 10-26-00; Ord. No. 282-2003, § 17, 12-4-03; Ord. No. 269-2004, § 10, 11-4-04; Ord. No. 77-2011, § 17, 6-23-11; Ord. No. 221-2016, § 17, 12-6-16)

Editor's note(s)—Ord. No. 77-2011, § 17, adopted June 23, 2011, renumbered § 16-77 as § 16-78 to read as set out herein.

Sec. 16-78. Citations.

All civil citations issued pursuant to articles IV, V and VIII of this chapter shall be issued by citation officers cited in section 14-10, or peace officers.

(Ord No. 269-2004, § 13, 11-4-04; Ord. No. 77-2011, § 19, 6-23-2011)

Editor's note(s)—Ord. No. 77-2011, § 19, adopted June 23, 2011, renumbered § 16-83 as § 16-78 to read as set out herein.

Sec. 16-79—16-83. Reserved.

Article X

Stormwater Discharges

Division 1

General

Sec. 16-84. Purpose and intent.

The purpose of this article is to set forth ordinances that will ensure compliance with the urban county government's MS4 permit regulations implementing the Clean Water Act and reduce impacts to public health, welfare, and the environment due to stormwater runoff from public and private properties, including flooding and property damage.

(Ord. No. 36-2009, § 2, 3-26-09)

Sec. 16-85. Stormwater manual incorporated.

The urban county government stormwater manual, as revised, modified, or amended from time to time, is incorporated herein by reference provided that in the event of any conflict between the manual and this article the provisions of this article shall apply.

(Ord. No. 36-2009, § 2, 3-26-09; Ord. No. 217-2016, § 2, 12-6-16)

Division 2

Maintenance of Privately Owned Stormwater Controls

Sec. 16-86. Purpose and intent; applicability.

(a) The purpose of sections 16-87 and 16-88 is to ensure adequate maintenance of stormwater control devices located on private property.

(b) These sections apply to any stormwater control device that is entirely or partially located on private property.

(Ord No. 36-2009, § 2, 3-26-09)

Sec. 16-87. Stormwater control devices in residential areas.

(a) In a residential area where a public easement for a stormwater control device exists, the private property owner is responsible for non-structural maintenance of any detention basin, detention pond, retention basin, retention pond or any other stormwater control device located on the owner's property, including but not limited to mowing the area, including any embankment, removing algae and all debris that accumulates in the basin, including litter and tree limbs, sodding or seeding bare areas, including areas on the embankment, and taking care of any landscaped areas such as trees and shrubs.

(b) In a residential area where a public easement for a stormwater control device exists, the urban county government is responsible for all structural repairs, maintaining the integrity of any embankment and the structural items in the embankment, including concrete, pipe, gabions, stone, spillways, headwalls, repairing eroded areas on the embankment that threaten the stability of the embankment, repairing paved ditches and inlet structures in the basin, removing excess silt that affects the functionality of the stormwater control device and removing large debris that obstructs any outlet pipes or spillways of any dam provided the above-described actions are necessary to maintain the stormwater detention function of the stormwater control device. The urban county government shall not undertake any action, including, but not limited to, replacement of a liner, to maintain the stormwater control device as a retention facility that permanently contains water.

(c) In a residential area where no public easement exists, the property owner is responsible for non-structural maintenance of any detention basin, detention pond, retention basin, retention pond or any other stormwater control device located on the owner's property, including but not limited to mowing the area, including

any embankment, removing algae and all debris that accumulates in the basin, including litter and tree limbs, sodding or seeding bare areas, including areas on the embankment, and taking care of any landscaped areas such as trees and shrubs and is also responsible for all structural repairs, maintaining the integrity of any embankment and the structural items in the embankment, including concrete, pipe, gabions, stone, spillways, headwalls, repairing eroded areas on the embankment that threaten the stability of the embankment, repairing paved ditches and inlet structures in the basin, removing excess silt that affects the functionality of the stormwater control device as directed by the urban county government, and removing large debris that obstructs any outlet pipes or spillways of any dam.

(d) No trees shall be planted on any dam structure associated with a stormwater control device.

(e) No structures or equipment including but not limited to, fences, gazebos, swimming pools, trampolines, or buildings shall be placed in a stormwater control device.

(f) No fill dirt shall be placed in a stormwater control device without prior approval by the director, division of water quality.

(g) The property owner is responsible for taking reasonable care to ensure that a stormwater control device does not contain conditions that are unsafe or that adversely affect water quality including, but not limited to, leaving tools or equipment or misusing pesticides and/or herbicides in the basin.

(h) The property owner shall ensure that no equipment, structures, materials, or substances are located in the easement that may adversely affect the performance of a stormwater control device in controlling stormwater quantity or that adversely affect water quality.

(i) Nothing herein shall preclude the urban county government from assuming responsibility to maintain any stormwater control device pursuant to contract, easement, or other legal arrangement.

(Ord. No. 36-2009, § 2, 3-26-09)

Sec. 16-88. Stormwater controls in commercial and industrial areas.

(a) Maintenance and repair of retention and detention basins and other stormwater control devices located on property used for commercial or industrial purposes is the responsibility of the property owner and the manager of the property who shall ensure the facilities are operating as intended.

(b) The property owner and/or manager of the property may be notified in writing by the division of water quality of any problems or maintenance or repair concerns that must be addressed or corrected, such as removing debris from the basin, repairing eroded areas on the embankment, replacing a crushed pipe, or improving embankment stability.

(c) On property where a stormwater control device is located fully or partially underground, the owner and manager of the property shall be responsible for causing an inspection of the facility to be performed annu-

ally and shall submit an annual inspection report to the division of water quality by January 31 of each year for the prior calendar year. The inspection report shall be prepared by a professional engineer licensed to practice in Kentucky and shall address the condition of the device for meeting its intended purpose.

(d) No trees shall be planted on any dam structure associated with a stormwater control device.

(e) No structures, including but not limited to, fences, gazebos, swimming pools, trampolines, or buildings shall be placed in a stormwater control device.

(f) No fill dirt shall be placed in a stormwater control device without prior approval by the director, division of water quality.

(g) The property owner or manager is responsible for taking reasonable care to ensure that a stormwater control device does not contain conditions that are unsafe or that adversely affect water quality including, but not limited to, leaving tools or equipment or misusing pesticides and/or herbicides in a basin.

(h) The property owner or manager shall ensure that no structures, materials, or substances are located in the stormwater control device that may adversely affect its performance in controlling stormwater quantity or that adversely affect water quality.

(Ord. No. 36-2009, § 2, 3-26-09)

Division 3

High-Risk Industrial Facilities and High Risk Commercial Facilities

Sec. 16-89. [Purpose.]

The purpose of sections 16-90 and 16-91 is to ensure adequate control of stormwater on properties where high-risk industrial facilities and high-risk commercial facilities are located consistent with the purposes of this article.

(Ord. No. 142-2009, § 7, 7-7-09)

Sec. 16-90. [Notice.]

(a) The owner, operator, or manager of a high-risk industrial facility that has a KPDES permit for stormwater discharges shall submit an electronic copy of the permit and the current SWPPP to the division of water quality by January 31 of each year thereafter. When no changes have been made to a permit and SWPPP previously submitted in compliance with this section, only written notice so advising the division of water quality shall be submitted by January 31 of each year thereafter.

(b) Except for industrial facilities that meet the requirements for a conditional exclusion under 40 CFR 122.26(g), the owner, operator, or manager of a industrial facility that is not required to hold a KPDES permit for stormwater discharges shall develop and submit a SWPPP and submit an electronic copy to the division of water quality by January 31 of each year thereafter. When no changes have been made to a SWPPP

previously submitted in compliance with this section, only written notice so advising the division of water quality shall be submitted by January 31 each year thereafter. The SWPPP shall be prepared taking into account guidance documents from the U.S. EPA and the Kentucky Division of Water and shall contain the following:

(1) Facility description and SWPPP contact information.

(2) Site and activity description, including a site map.

(3) Identification of potential stormwater pollution sources.

(4) Description of controls to reduce pollution (structural and non-structural BMPs).

(5) Maintenance/inspection procedures.

(6) Records of inspections and follow-up maintenance of BMPs.

(7) Schedule and procedures for monitoring.

(8) Certification by the owner, operator, or manager that no illicit discharges exist.

(9) SWPPP certification statement.

(10) Description of any changes made since the previous SWPPP was submitted.

(c) The owner, operator, or manager of a high-risk industrial facility that has a KPDES permit for stormwater discharges that includes a monitoring program shall submit electronic copies of all monitoring results to the division of water quality by February 28 of each year for samples collected and analyzed for the previous calendar year. The submittal shall include a summary of findings/conclusions from the previous year's monitoring results.

(d) The owner, operator, or manager of a high-risk industrial facility that is not required to have a monitoring program by a KPDES permit may be required by LFUCG to develop and implement a monitoring program, as part of the facility's SWPPP, to determine levels of pollution in stormwater discharges from the facility and shall submit electronic copies of all monitoring results to the division of water quality by February 28 of each year for samples collected and analyzed for the previous calendar year. The submittal shall include a summary of findings/conclusions from the previous year's monitoring results.

(e) The owner, operator, or manager of a high risk commercial facility shall develop and submit a SWPPP within ninety (90) days of notification by the division of water quality and submit an updated electronic copy to the division of water quality by January 31 of each year thereafter. The SWPPP shall be prepared based on guidance documents from the U.S. EPA and the Kentucky Division of Water and shall contain the following:

(1) Facility description and SWPPP contact information.

(2) Site and activity description, including a site map.

(3) Identification of potential stormwater pollution sources.

(4) Description of controls to reduce pollution (structural and non-structural BMPs).

(5) Maintenance/inspection procedures.

(6) Records of inspections and follow-up maintenance of BMPs.

(7) Schedule and procedures for monitoring.

(8) Certification by the owner, operator, or manager that no illicit discharges exist.

(9) SWPPP certification statement.

(10) Description of any changes made since the previous SWPPP was submitted.

(f) The owner, operator, or manager of a high risk commercial facility may be required by LFUCG to develop and implement a monitoring program, as part of the facility's SWPPP, to determine levels of pollution in stormwater discharges from the facility.

(g) LFUCG may develop general permits for certain categories of industrial facilities and high risk commercial facilities that are not required to be covered under a KPDES permit for stormwater discharges. Within six (6) months of the effective date of the urban county government's establishment of a general permit for a category of industrial facilities or high risk commercial facilities, each covered facility shall provide written notice to the director of the division of water quality of the facility's compliance with the general permit.

(h) Any facility required to develop a SWPPP shall:

(1) Have it accessible on-site for review by LFUCG personnel;

(2) Implement the SWPPP as prepared; and

(3) Maintain records sufficient to establish that the SWPPP is being implemented.

(i) Any high-risk industrial facility or high risk commercial facility established after the effective date of this article shall develop, submit, and implement a SWPPP within ninety (90) days of notification by the division of water quality.

(j) SWPPPs shall be prepared by persons knowledgeable about stormwater runoff and water quality. Any best management practices included in the SWPPP which require engineering design as defined in KRS 322.010 shall be designed by a professional engineer licensed to practice in Kentucky. The director of the division of water quality shall have the authority to require that plans be prepared by qualified professionals licensed to practice in Kentucky, such as a professional engineer or professional geologist, when deemed necessary by

the director to protect the health, safety, and welfare of the public. The following certification shall be signed by a responsible corporate officer. For purposes of this section, corporate officer shall mean (1) the president, secretary, treasurer, or vice-president of the corporation or (2) the manager of the facility.

I certify that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete.

(Ord. No. 142-2009, § 7, 7-7-09; Ord. No. 127-2010, §§ 1—3, 7-6-10)

Sec. 16-91. [Requirements.]

(a) The division of water quality may adopt requirements identifying Best Management Practices or stormwater controls for any industrial, commercial, or institutional activity, operation, or facility which may cause or contribute to pollution or contamination of storm water, the MS4, or waters of the United States.

(b) The owner or operator of a facility engaged in industrial, commercial or institutional activity shall provide, at their own expense, reasonable protection from accidental discharge of prohibited materials or other wastes into the municipal storm drain system or watercourses through the use of structural and non-structural BMPs.

(c) Any person responsible for a property or premises, which is, or may be, the source of an illicit discharge, may be required to implement, at said person's expense, additional structural and non-structural BMPs to prevent the further discharge of pollutants to the municipal separate storm sewer system.

(d) The BMPs adopted pursuant to subsection (a) shall be part of a stormwater pollution prevention plan (SWPPP) as necessary for compliance with requirements of section 16-90.

(Ord. No. 142-2009, § 7, 7-7-09)

Division 4

Illicit Discharges

Sec. 16-92. [Title.]

This division shall apply to Illicit Connections and Illicit Discharges.

(Ord No. 142-2009, § 8, 7-7-09)

Sec. 16-93. [Exemption.]

(a) No person shall create, cause, continue or authorize an illicit discharge except as authorized by subsection (b).

(b) The commencement, establishment, or continuance of any illicit discharge is prohibited except as authorized by this subsection (b). The following discharges are exempt from discharge prohibitions established by this division for illicit discharges unless they create an erosion problem that is avoidable using reasonable precautions through energy dissipating devices such as, but not limited to, splashblocks:

(1) Potable water line flushing or other potable water sources, landscape irrigation or lawn watering, diverted stream flows, rising ground water, ground water infiltration to storm drains, uncontaminated pumped ground water, foundation or footing drains (not including active groundwater dewatering systems), crawl space pumps, air conditioning condensation, springs, non-commercial washing of vehicles, natural riparian habitat or wet-land flows, swimming pool drainage (if dechlorinated - to less than 1.0 part per million chlorine), fire fighting activities.

(2) Discharges specified in writing by the authorized enforcement agency as being necessary to protect public health and safety.

(3) Non-toxic dye testing contingent upon providing written notification to the authorized enforcement agency prior to the time of the test.

(4) Non-storm water discharges permitted under a KPDES permit, waiver, or waste discharge order issued to the discharger and administered under the authority of the Kentucky Division of Water, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations.

(5) Other discharges containing de minimis pollutants if advance written authorization is provided by the director, division of water quality.

(6) Discharges authorized by the director, division of water quality, where necessary to protect public health or welfare in an emergency situation on a case-by-case basis.

(Ord. No. 142-2009, § 8, 7-7-09)

Sec. 16-94. [Prohibited.]

(a) The construction, use, maintenance or continued existence of illicit connections to the storm drainage system is prohibited.

(b) The prohibition in subsection (a) expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

(Ord. No. 142-2009, § 8, 7-7-09)

Sec. 16-94.1. Placement of materials upon manholes.

No person shall place or deposit material of any type including but not limited to night soil, garbage, dirt, rocks or other rubbish on top of any storm sewer manhole lid.

(Ord. No. 174-2001, § 13, 7-5-01; Ord. No. 143-2009, § 18, 7-7-09)

Editor's note(s)—Ord. No. 143-2009, § 18, adopted July 7, 2009, renumbered § 16-74.1 as § 16-94.1 to read as set out herein.

Sec. 16-95. [Suspension.]

(a) Suspension due to illicit discharges in emergency situations. The division of water quality may, without prior notice, suspend MS4 discharge access to a person when such suspension is necessary to stop an actual or threatened discharge which presents or may present imminent and substantial danger to the environment, or to the health or welfare of persons, or to the MS4 or waters of the United States. If the violator fails to comply with an administrative order issued under article XII the authorized enforcement agency may take such steps as deemed necessary to prevent or minimize damage to the MS4 or waters of the United States, or to minimize danger to persons.

(b) Suspension due to the detection of illicit discharge. Any person discharging to the MS4 in violation of this division may have their MS4 access terminated if such termination would abate or reduce an illicit discharge. The authorized enforcement agency will notify a violator of the proposed termination of its MS4 access. The violator may petition for a reconsideration and hearing as provided in article XII.

(Ord. No. 142-2009, § 8, 7-7-09)

Sec. 16-96. [Responsibility.]

(1) Any person that owns, created, continues, or operates an illicit connection or an illicit discharge shall be responsible for eliminating the illicit connection and illicit discharge.

(2) The division of water quality may require any person that owns, created, continues, or operates an illicit connection or an illicit discharge to eliminate the illicit connection or illicit discharge as soon as possible. If the illicit connection or illicit discharge cannot practically be eliminated with fifteen (15) days of being notified of the violation by the division of water quality, the person may be required to submit to the division of

water quality a remedial plan and implementation schedule for review and approval. Upon approval of the plan by the division of water quality, it shall be implemented by the person that owns, created, continues, or operates the illicit connection or illicit discharge.

(Ord. No. 142-2009, § 8, 7-7-09)

Sec. 16-97. Watercourse protection.

Every person owning or controlling property through which a water of the United States passes shall keep and maintain that part of the watercourse within the property free of trash, debris, and other obstacles that would pollute, contaminate, or significantly retard the flow of water through the watercourse.

(Ord. No. 142-2009, § 8, 7-7-09)

Sec. 16-98. Notification of spills.

(a) Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any release of materials which are resulting or may result in illegal discharges of pollutants discharging into the MS4 or waters of the United States said person shall take all necessary steps to ensure the immediate containment, and appropriate cleanup of such release.

(b) In the event of such a release of hazardous materials said person shall immediately notify the division of water quality.

(c) Notifications in person, by facsimile, by email, or by phone shall be confirmed by written notice addressed and mailed to the division of water quality within three (3) business days of the initial notice.

(d) If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence and retain such records for at least three (3) years after the date of the discharge.

(Ord. No. 142-2009, § 8, 7-7-09)

Division 5

Reduction of Soil Erosion

Sec. 16-99. Purpose and intent.

The intent of this division is to reduce soil erosion in Fayette County, and to provide procedures for submission, review, and acceptance of erosion and sediment control plans and applications for land disturbance permits prior to soil disturbance.

(Ord. No. 151-2010, § 2, 8-26-10)

Sec. 16-100. Scope of coverage.

(a) The following are included within the scope of this division 5: clearing, grading, excavating, and filling activities that will result in disturbing the existing land surface.

(b) The following activities are exempted from the scope of this division 5:

(1) Accepted agricultural land management practices such as plowing, cultivation, home gardens, nursery operations such as the removal and/or transplanting of cultivated sod, shrubs, and trees, tree cuttings at or above existing ground level, and logging operations leaving the stump, ground cover, and root mat intact.

(2) Individual excavations at cemeteries for human or animal burial.

(3) Seeding and sod replacement where the disturbed land area is less than ten thousand (10,000) square feet and the seeding or sod replacement is completed in less than five (5) calendar days.

(Ord. No. 151-2010, § 2, 8-26-10)

Sec. 16-101. Procedures and standards for submission of erosion and sediment control plans and obtaining a land disturbance permit for land disturbance of less than one acre.

(a) Any person intending to conduct clearing, grading, excavating, or filling activities associated with construction of a new residential or commercial building that will result in the disturbance of less than one (1) acre of existing land surface shall submit an erosion and sediment control plan to the division of engineering and obtain a land disturbance permit from the division prior to conducting any such activities.

(b) Unless exempted by section 16-100, any person intending to conduct other clearing, grading, excavating, stripping, or filling activities that will result in the disturbance of five thousand (5,000) or more square feet, but less than one (1) acre of existing land surface, shall submit an erosion and sediment control plan to the division of engineering and obtain a land disturbance permit from the division prior to conducting any such activities.

(c) All erosion and sediment control plans shall be prepared in accordance with this article, the Engineering Stormwater Manual and Engineering Standard Drawings, as revised, modified, or amended from time to time, and shall contain erosion and sediment control best management practices that are reasonable and effective for minimizing impacts of stormwater runoff. Aspects of an erosion and sediment control plan that involve engineering design as defined in KRS 322.010 shall be prepared by a professional engineer licensed in Kentucky and shall be so identified and designated in the plan.

(d) The division of engineering shall conduct a summary review of erosion and sediment control plans to assess whether plans reasonably include measures that address potential water quality impacts from construction prior to issuance of the land disturbance permit. It shall be the sole responsibility of the permit applicant to ensure the accuracy and completeness of all drawings, calculations, and reports, and to ensure construction feasibility of the design. Within ten (10) working days after receipt of a plan, the division shall notify the permit applicant, in writing, of any deficiencies or omissions or shall issue the land disturbance permit.

(e) The permittee shall implement the erosion and sediment control plan in conducting activities under the land disturbance permit.

(f) A land disturbance permit issued under this section shall expire one (1) year from the issuance date. The land disturbance permit shall expire if work has not commenced within one hundred eighty (180) days of the permit issuance date, or if no construction activity has occurred within a one-hundred-eighty-day period. The permittee may, at least ten (10) days prior to the expiration of the permit, request in writing an extension. The division of engineering shall extend the expiration date contained in the permit upon a showing by the permittee in the extension request:

(1) That there is sufficient justification for the extension;

(2) That the extension not create a new erosion hazard or permit an existing one to continue; and

(3) That a new completion date has been set.

(g) Erosion and sediment control plans shall conform to the requirements of the Engineering Stormwater Manual, as revised, modified, or amended from time to time, and shall include:

(1) A discussion of the land disturbing project including the purpose, location, and size of the area to be disturbed;

(2) A discussion of the topography, land cover conditions, soils, percent of impervious areas, and drainage patterns both before and after land disturbance;

(3) An identification of land use and cover conditions of adjacent property;

(4) A schedule of the work to be conducted including the projected beginning and completion dates of construction activities, and construction sequencing, including clearing, grading, and revegetation activities, as well as any winter shut-downs;

(5) A listing of erosion and sediment control best management practices, along with location, installation schedule, and the rationale for each use, such as silt fences, diversion ditches, earthen berms, grass strips, or other methods installed in conformance with the Stormwater Manual, as revised, modified, or amended from time to time, to prevent, to the maximum extent practicable, sediment from washing into streets, catch basins, storm sewers, grassed open channels, or adjacent seeded or sodded lots;

(6) A listing of stormwater pollution control and best management practices to minimize pollution during construction (other than erosion) that might result from construction activities;

(7) A discussion of the permittee's inspection and maintenance activities for erosion and sediment control best management practices;

(8) A site map showing:

I. Areas of disturbance;

II. Locations of proposed controls, utilities, paved areas, and construction entrances; and

III. All perennial or intermittent streams, wetlands, sinkholes, retention basins, retention ponds, culverts, and storm sewer inlets within one hundred (100) feet of the site.

(h) A fifty (50) foot vegetated buffer shall be maintained between the land disturbance activity and the edge of any perennial or intermittent stream, wetland, open throat sinkhole, or municipal storm sewer inlet. If a fifty (50) foot vegetated buffer is not feasible due to the nature or purpose of the activity, a protective alternate erosion control shall be proposed and justified in the erosion and sediment control plan. In such cases, the permittee shall minimize disturbances in buffer zone areas.

(i) The permittee shall post a copy of the land disturbance permit at the work site in a conspicuous location.

(j) The permittee shall revise the erosion and sediment control plan whenever control measures are significantly modified. Changes to an approved erosion and sediment control plan that alter engineering designs shall be resubmitted to the division of engineering and the division of water quality for review prior to implementing the revised plan.

(k) The permittee shall notify the division of engineering and the division of water quality in writing (email, fax, or letter) at least two (2) working days before the following:

(1) Start of construction;

(2) Completion of soil stabilization.

(l) The permittee shall make regular inspections of all control measures. The purpose of such inspections will be to determine the overall effectiveness of the erosion control plan and the need for maintenance and/or additional control measures. Records shall be maintained of each inspection that include:

(1) The date of the inspection;

(2) The name of the inspector;

(3) The findings from the inspection; and

(4) Any actions taken as a result of the inspection.

Records shall be retained for one hundred eighty (180) days following termination of the permit after project completion and shall be available for inspection consistent with subsection 16-207(c).

(m) The permittee shall promptly amend erosion and sediment control practices if its own inspections, or inspections by the urban county government, determine that existing erosion control measures or other best management practices in the plan are ineffective at minimizing sediment in stormwater runoff.

(n) The permittee shall, to the extent practicable, minimize land disturbances and the period of time the disturbed area is exposed without stabilization practices.

(o) The requirement to obtain and maintain permit coverage for activities subject to this section shall not terminate until a complete notice of termination is filed with the division of water quality and a final site inspection is completed by the division of water quality concurring that the terms of the permit have been met. The division of water quality shall complete the final inspection within thirty (30) calendar days of receipt of the notice of termination.

(Ord. No. 151-2010, § 2, 8-26-10; Ord. No. 217-2016, §§ 3—5, 12-6-16)

Sec. 16-102. Erosion and sediment control plans for linear utility line construction projects disturbing less than one acre.

(a) Any person intending to conduct an individual linear utility line construction project that will result in the disturbance of five hundred (500) linear feet or more, of unpaved land surface, but less than one (1) acre of unpaved land surface, shall submit an erosion and sediment control plan to the division of engineering and obtain a land disturbance permit prior to conducting any such activities as required by section 16-101.

(b) Any person who intends to conduct linear utility line construction projects that individually disturb less than one (1) acre of unpaved land surface on a regular basis shall submit an operational linear utility line erosion control plan to the division of engineering for review and obtain a linear utility line land disturbance general permit for all such activities commenced within a twenty-four-month period from the date of permit issuance. For purposes of this section, regular basis shall mean such projects are conducted on more than ten (10) occasions during a calendar year. The initial linear utility line erosion control plan shall be submitted within ninety (90) days of the effective date of this division.

(c) Any person conducting an individual linear utility line construction project that will result in the disturbance of five hundred (500) linear feet or more of paved land surface and which immediately places an all excavated materials into a truck or other transportable soil containment device shall not be required to submit a linear erosion control plan.

(d) A linear utility line erosion control plan shall contain erosion and sediment control best management practices as are required for erosion and sediment control plans under section 16-101, taking into account the unique characteristics of utility line construction projects, and shall be specified for categories of proposed and anticipated activities based upon:

(1) Type of construction activity;

(2) Proximity of perennial or intermittent streams, wetlands, sinkholes, or municipal storm sewer inlets;

(3) Size of disturbance, including disturbance width;

(4) Other factors, such as slope, deemed relevant to minimizing erosion impacts from stormwater runoff for the category of activities and conditions that can be expected to be encountered.

Best management practices shall be described, by way of example, for stockpiled soils, backfilled area, stream crossings, storm sewer inlet protection, trench dewatering, and revegetated areas.

(e) Linear utility line construction projects subject to this section shall be conducted in compliance with a land disturbance permit or linear utility line land disturbance general permit.

(f) Aspects of a linear utility line erosion control plan that involve engineering design as defined in KRS 322.010 shall be prepared by a professional engineer licensed in Kentucky and shall be so identified and designated in the plan.

(g) All linear utility line erosion control plans shall be prepared in accordance with this article, the Engineering Stormwater Manual and Engineering Standard Drawings, as revised, modified, or amended from time to time, and shall contain erosion and sediment control best management practices that are reasonable and effective for minimizing impacts of stormwater runoff.

(h) The division of engineering shall conduct a summary review of erosion and sediment control plans to assess whether plans reasonably include measures that address potential water quality impacts from construction prior to issuance of the land disturbance general permit. It shall be the sole responsibility of the permit applicant to ensure the accuracy and completeness of all drawings, calculations, and reports, and to ensure construction feasibility of the design. Within fifteen (15) working days after receipt of a plan, the division shall notify the permit applicant, in writing, of any deficiencies or omissions or shall issue the land disturbance permit.

(i) A fifty (50) foot vegetated buffer shall be maintained between the land disturbance activities and the edge of any perennial or intermittent stream, wetland, open throat sinkhole, or municipal storm sewer inlet. Where a fifty (50) foot vegetated buffer is not feasible due to the nature or purpose of the activity, a protective alternate erosion control shall be used as described in the linear utility line erosion control plan. In such cases, the permittee shall minimize disturbances in buffer zone areas.

(j) The permittee shall revise the linear utility line erosion control plan whenever control measures are significantly modified. Changes to an approved erosion control plan that affect engineering designs shall be resubmitted to the division of engineering and the division of water quality for review prior to implementing the revised plan.

(k) The permittee shall make regular inspections of all control measures. The purpose of such inspections will be to determine the overall effectiveness of the control plan and the need for additional control measures. Records shall be maintained of each inspection that include:

(1) The date of the inspection;

(2) The name of the inspector;

(3) The findings from the inspection; and

(4) Any actions taken as a result of the inspection.

Records shall be retained for one hundred eighty (180) days following completion of a project and shall be available for inspection consistent with subsection 16-207(c).

(l) The permittee shall promptly amend erosion and sediment control practices if its own inspections, or inspections by the urban county government, determine that existing erosion control measures or other best management practices in the plan are ineffective at minimizing sediment in stormwater runoff.

(m) The permittee shall, to the extent practicable, minimize land disturbances and the period of time the disturbed area is exposed without stabilization practices.

(n) The permittee shall notify the division of engineering and the division of water quality in writing (email, fax, or letter) at least two (2) working days prior to commencing construction on a project that will result in a disturbance of five hundred (500) linear feet or more of existing land surface.

(o) The permittee shall post a copy of the land disturbance permit at the work site in a conspicuous location. If posting the land disturbance permit is not practical, a copy of the sections of the general permit that relate to the work being performed shall be available at the work site whenever work is being performed. The erosion control plan shall also be available at the work site whenever work is being performed.

(p) Linear utility line construction projects that result in the disturbance of one (1) acre or more of existing land surface as part of an individual project are subject to section 16-104 permit requirements.

(Ord. No. 151-2010, § 2, 8-26-10; Ord. No. 217-2016, §§ 6, 7, 12-6-16)

Sec. 16-103. Erosion control standards for land disturbance of less than five thousand square feet.

(a) Unless exempted by section 16-100, any person that conducts clearing, grading, excavating, or filling activities that results in the disturbance of less than five thousand (5,000) square feet of existing land surface that

is not subject to erosion and sediment control plan requirements under section 16-101 or linear utility line erosion control plan requirements under subsection 16-102(b), shall use practical and reasonable practices to prevent unabated erosion of disturbed areas due to stormwater runoff. By way of example, practical and reasonable practices may include use of vegetated buffers, mulch, berms, covers, or barriers.

(b) A fifty (50) foot vegetated buffer shall be maintained between the land disturbance activities and the edge of any perennial or intermittent stream, wetland, sinkhole, or municipal storm sewer inlet. If a fifty (50) foot vegetated buffer is not feasible due to the nature or purpose of the activity, a protective alternate erosion control or management practice shall be used.

(Ord. No. 151-2010, § 2, 8-26-10; Ord. No. 217-2016, § 8, 12-6-16)

Sec. 16-104. Construction and demolition sites disturbing one or more acres of land.

(a) Unless exempted by section 16-100, all clearing, grading, excavating, or filling activities that will result in the disturbance of one (1) or more acres of existing land surface, including those activities that are part of a common plan of development that disturbs collectively one (1) or more acres of land, are subject to the permitting and erosion control requirements of this section. No person shall conduct such activities until and unless the person obtains land disturbance permit coverage for such activities from the urban county government under the terms and conditions of the state pollutant discharge elimination system general permit for stormwater discharges associated with construction activities ("KYR10") issued by the state division of water on December 1, 2014.

(b) Except as otherwise herein provided, the terms and conditions of KYR10 issued December 1, 2014, by the state division of water and the associated notice of intent form (NOI-SWCA) are hereby incorporated by reference as the permit requirements of the county government for activities subject to this section.

(c) **Permit coverage submittal.**

(1) At least thirty (30) days prior to the proposed date of commencement of activities subject to this section, a person requiring permit coverage shall submit a notice of intent to be covered by KYR10 and a stormwater pollution prevention plan ("SWPPP") to the division of engineering for review. Aspects of a SWPPP that involve engineering design as defined in KRS 322.010 shall be prepared by a professional engineer licensed in Kentucky and shall be so identified and designated in the plan. The division of engineering shall conduct a summary review of the SWPPP to assess whether the SWPPP reasonably includes measures that address potential water quality impacts from construction prior to authorization of land disturbance through a KYR10 land disturbance permit. It shall be the sole responsibility of the permit applicant to ensure the accuracy and completeness of all drawings, calculations, and reports, and to ensure construction feasibility of the design. Within fifteen (15) working days after receipt of a plan, the division shall notify the permit applicant, in writing, of any deficiencies or omissions or shall issue the land disturbance permit.

(2) Authorization to commence activities subject to this section shall be effective upon the issuance of a land disturbance permit by the division of engineering under the terms and conditions of KYR10 and additional terms authorized by this section.

(3) If deficiencies are identified in the SWPPP, the division of engineering will notify the permit applicant of the deficiencies and shall not grant permit coverage until the deficiencies are addressed to the satisfaction of the division of engineering.

(4) The requirement to obtain and maintain permit coverage for activities subject to this section shall not terminate until a complete notice of termination is filed as provided in KYR10 (with a copy provided to the division of water quality) and a final site inspection is completed by the division of water quality concurring that the terms of the permit have been met. The division of water quality shall complete the final inspection within thirty (30) calendar days of receipt of the notice of termination.

(5) A land disturbance permit issued under this section shall expire one (1) year from the issuance date. The land disturbance permit shall expire if work has not commenced within one hundred eighty (180) days of the permit issuance date, or if no construction activity has occurred within a one-hundred-eighty-day period. The permittee may, at least ten (10) days prior to the expiration of the permit, request in writing an extension. The division of engineering shall extend the deadlines contained in the permit upon a showing by the extension request applicant:

(i) That there is sufficient justification for the extension;

(ii) That the extension will not create a new erosion hazard or permit an existing one to continue; and

(iii) That a new completion date has been set.

(d) Any person required to obtain permit coverage for activities subject to this section shall comply with the terms and conditions of KYR10 in conducting such activities, except as modified below.

(1) The exclusions set out in Section 1.2 of KYR10 are not applicable. The urban county government will allow permit coverage under KYR10 for all activities subject to this Section without regard to whether the state division of water requires coverage under an individual KPDES permit in lieu of KYR10. Alternatively, LFUCG will allow permit coverage to be established under an individual permit issued by the state division of water in lieu of KYR10.

(2) A SWPPP shall, in addition to satisfying the requirements of KYR10, contain best management practices ("BMPs") and erosion controls consistent with the urban county government's Engineering Stormwater Manual and Engineering Standard Drawings, as revised, modified, or amended from time to time.

(3) Inspection reports prepared for all inspections are not required to be certified by a responsible corporate officer. Inspection reports may be signed by the site operator or the qualified person that conducts the inspection on behalf of the site operator.

(4) The requirements for critical areas and buffer zones under KYR10 shall also apply to any municipal storm sewer inlet.

(5) The term "as soon as practicable" as used in KYR10 shall mean, for purposes of this section, at the earliest practicable time when external factors beyond the control of the permittee, such as inclement weather, would not prevent completion of the task.

(6) Any proposed variances or alternative practices from specific standards that are authorized by KYR10 shall be described in the SWPPP and are subject to review by the division of engineering.

(7) A SWPPP shall identify any structural water quality control measures that will be retained as part of the post-construction development land use.

(8) A SWPPP shall include any special conditions or BMPs required by the urban county government to specifically address streams identified as impaired by sedimentation and/or siltation under section 303(d) of the Clean Water Act to assure the discharge is effectively treated to minimize pollution to such impaired water body.

(9) A SWPPP shall include any special conditions or BMPs required by the state division of water as KPDES permit conditions to address antidegradation requirements for high quality or exceptional waters.

(e) Issuance of a permit by the division of engineering under this Section shall not relieve the permit applicant from obtaining permit authorizations to discharge stormwater from the state division of water under KYR10 or an individual KPDES permit prior to commencing activities subject to this section. A permit applicant shall provide the division with a copy of a written authorization to discharge under KYR10 that is issued by the state division of water as soon as practical after issuance of the state authorization.

(f) The permittee shall post a copy of the KYR10 land disturbance permit at the work site in a conspicuous location.

(g) The permittee shall notify the division of engineering and the division of water quality in writing (email, fax, or letter) at least two (2) working days before the following:

(1) Start of construction;

(2) Completion of final soil stabilization.

(Ord. No. 151-2010, § 2, 8-26-10; Ord. No. 38-2015, §§ 1—3, 4-30-15 ; Ord. No. 217-2016, § 9, 12-6-16)

Sec. 16-105. Continuation of existing grading permits and erosion control plans.

Any person conducting clearing, grading, excavating, or filling activities at the time of adoption of this division may continue to operate pursuant to an existing grading permit or erosion and sediment control plan accepted by the division of engineering and need not obtain new permit coverage under section 16-102, 16-103, or 16-104 for such existing activities. Expansions of existing projects that prior to the expansion involve one (1) or more acres of land disturbance that are not covered by an approved erosion and sediment control plan shall require permit coverage under section 16-104. For existing projects with a total disturbance prior to the expansion of less than one (1) acre, expansions shall be authorized by revisions to existing erosion control plans, unless the expansion involves disturbance of more than one (1) acre of land.

(Ord. No. 151-2010, § 2, 8-26-10)

Sec. 16-106. Transportation, relocation of dirt, earth, debris.

(a) All and any dirt, earth or debris, including yard waste, within the urban county shall be kept and/or transported in such a manner that it will not wash, drain or otherwise be caused to enter and be deposited in or upon the streets, sanitary sewers, storm sewers and/or other drainage facilities of the urban county government except as authorized by a land disturbance permit issued under this division.

(b) Any person who displaces or relocates or causes to be displaced or relocated any dirt, earth or debris, and such displacement or relocation places the dirt, earth or debris in such a manner that it washes, drains or is caused to enter and be deposited in or upon the street, sanitary sewers, storm sewers and/or other drainage facilities of the urban county government, shall forthwith remove and relocate said dirt, earth or debris to a safe location and shall clean up or cause to be cleaned up any dirt, earth or debris that has washed, drained or entered any street, storm sewer, sanitary sewers or other drainage facility. The provisions of this section apply also to any person, persons, partnerships or corporations, including property owners, building contractors, and developers, who direct another person to drive a vehicle onto a building site so as to displace or relocate any dirt, earth or debris in the manner described in this section.

(Ord. No. 151-2010, § 4, 8-26-10)

Sec. 16-107. Other permits and approvals.

Nothing in this division 5 shall excuse a person that conducts clearing, grading, excavating, or filling activities from the responsibility of obtaining any other permits, licenses, certifications, or approvals required by the urban county government, the Commonwealth of Kentucky or United States.

(Ord. No. 151-2010, § 5, 8-26-10)

Sec. 16-108. Surety requirements.

(a) Any surety required to be posted under article 4 of the Land Subdivision Regulations shall include an amount for the completion and proper operation of erosion and sediment control facilities.

(b) The urban county government may require a surety to be posted for erosion and sediment control facilities that are required to be constructed but are not in conjunction with an improvement plan when such facilities are to be used by more than one (1) property in a development. The amount of the surety shall be sufficient to provide for completion, proper operation and any required conversion of the basins to permanent stormwater best management practices.

(c) If not already required by subsection (a) or (b) the urban county government shall require a surety to be posted for any land disturbance covered by section 16-104 in an amount sufficient to cover site stabilization costs should the site fall into default.

(d) In all cases adjustments to the amount of the surety will be made as provided for in the Land Subdivision Regulations based on completion of work.

(Ord No. 151-2010, § 5, 8-26-10)

Sec. 16-109, 16-110. Reserved.

Article XI

Sanitary Sewers—Private Infiltration and Inflow[1]

Sec. 16-111. [Purpose.]

The purpose of article VIII is ensuring adequate enforcement to deter and prevent the introduction of surface or groundwater into the sanitary sewer of the urban county government to reduce its impact on the capacity of sanitary sewer facilities of the urban county government and abate the consequential impacts on public health, welfare, and the environment.

(Ord. No. 13-2012, § 1, 1-26-12)

Sec. 16-112. [Inspection.]

(a) Discharge of surface water or groundwater into the sanitary sewer system of the urban county government is prohibited. As a condition of initial or continued sewer service by the urban county government, owners and occupants of premises within Fayette County where there exists a sanitary sewer line which ultimately leads to the sanitary sewer system of the urban county government or where wastewater is discharged which ultimately flows into the sanitary sewer system of the urban county government shall allow representatives of the urban county government ready access at all reasonable times to all parts of the premises, whether inside or outside, for purposes of inspection to determine if surface water is discharged into the sanitary sewer system.

1. **Editor's note(s)**—Ord. No. 13-2012, § 1, adopted Jan. 26, 2012, added provisions to be included herein as Art. VIII. In order to maintain the numbering style of the Code, said provisions were redesignated as Art. XI at the discretion of the editor. Subsequently, Ord. No. 48-2012, § 1, adopted April 26, 2012, amended Ord. No. 13-2012 to correctly identify said provisions as Art. XI.

(b) Properly identified employees or other authorized representatives of the urban county government are authorized to enter any property, land, structure or building at all reasonable times for the purpose of performing an inspection(s) to determine if surface water or groundwater is discharged into the sanitary sewer system, subject to constitutional restrictions of unreasonable searches and seizures and may apply to the district court for a warrant allowing entrance and inspection.

(c) The division of water quality is authorized to create an inspection program related to such inspections to provide for a reasonable basis for performing inspections in the event that a discharge of surface water or groundwater into the sanitary sewer system is not directly observed.

(Ord. No. 13-2012, § 1, 1-26-12)

Sec. 16-113. [Notice.]

When it has been established that surface water or groundwater is being discharged into the sanitary sewer system of the urban county government, the urban county government shall cause to be served upon the owner or occupant of the property where such discharge is found to exist a written notice requiring such person to abate the discharge within sixty (60) days after service of the notice.

(Ord. No. 13-2012, § 1, 1-26-12)

Sec. 16-114. [Charges.]

(a) If proper notice has been provided and the urban county government's inspectors are refused access to property in order to perform a required inspection pursuant to section 16-112, it shall be presumed that an unauthorized connection to the sanitary sewer system of the urban county government exists at the subject property causing a discharge of surface water or groundwater. The urban county government shall, on all subsequent sanitary sewer user charge billings made to the property involved, add seventy-five dollars ($75.00) per month until the urban county government is permitted to perform the required inspection.

(b) Upon failure of a person notified as provided in section 16-113 to abate a discharge of surface water or groundwater into the sanitary sewer system of the urban county government, the urban county government shall, on all sanitary sewer user charge billings made to the property involved after the sixty-day period has expired, add seventy-five dollars ($75.00) per month until the urban county government is satisfied that the discharge of surface water has been eliminated.

(c) The supplementary charge provided for in subsections (a) of this section shall be assessed against the receiver of the service, whether an occupant or an owner. The supplementary charge provided for in subsection (b) shall be assessed against the owner of the subject property. If no urban county government billings are otherwise made for the property in question, the owner shall be billed directly for the supplementary sanitary sewer user charge. Failure to timely pay said supplementary sanitary sewer user charge and other ancillary charges necessary to generate a separate bill shall be cause to terminate water service to the affected property pursuant to KRS 96.932.

(d) Failure to eliminate the discharge of surface water or groundwater into the sanitary sewer system within six (6) months of the date of notification pursuant to section 16-113 shall, in addition to the supplemental sanitary sewer user charge provided for in subsection (b) of this section, subject the owner of the affected property to civil penalties or criminal prosecution pursuant to Article XII of this chapter.

(Ord. No. 13-2012, § 1, 1-26-12)

Sec. 16-115. [Supplementary charge.]

The purpose of the supplementary charge made under the provisions of section 16-114 shall be for the additional service required to identify unauthorized discharges and additional services required by the discharge of surface water or groundwater into the sanitary sewer system and for the problems and damages created by excess flows received by sewage treatment facilities. Such charge is in addition to any fines or other penalties otherwise provided by any provisions of this Code, other ordinances of the urban county government, or by state law.

(Ord. No. 13-2012, § 1, 1-26-12)

Sec. 16-116—16-199. Reserved.

Article XII

Civil Fines and Enforcement

Sec. 16-200. Purpose and intent.

The purpose of article XII is ensuring adequate enforcement to deter and prevent violations of chapter 16 and to reduce and abate consequential impacts on public health, welfare, and the environment.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-201. Applicability; definition of day.

(a) Article XII shall apply to all violations of any provision of articles II, V, VIII, and X of chapter 16, any provision of a permit issued by the urban county government pursuant to said articles, any provision of an order or schedule issued by the urban county government relating to violations of said articles, and any provision of the engineering manuals as provided by section 16-2.1 of the Code. For purposes of this article the beforementioned articles, permits, orders, schedules and manuals are hereinafter referred to collectively as "chapter 16" or "this chapter".

(b) As used in this article"**day** means a calendar day.

(Ord No. 159-2016, § 2, 9-15-16)

Sec. 16-202. Enforcement; response authorities; rights; remedies.

(a) Enforcement response actions available to the urban county government for violations of chapter 16 by any person shall include:

(1) **Informal notice:** These actions include statements made during sampling and/or inspection visits, telephone calls to the violator, informal meetings, warnings or reminder letters. Informal notices may be used for minor violations, and the communication shall indicate to the violator that the action constitutes an informal notice.

(2) **Formal actions:** These actions shall include:

(a) **Notice of violation:** Any person found to be violating any provision of this chapter shall be served by an authorized representative of the urban county government with a written notice stating the nature of the violation. The notice of violation will be served on the violator, if known, or, in the alternative, on the owner or manager of the property where the violation occurred. If practicable, the responsible person shall immediately correct the violation. If the violation is not immediately reparable the notice will provide a reasonable time period of at least twenty-four (24) hours for the satisfactory correction thereof. The time period specified shall not impose unrealistic requirements under prevailing weather conditions, site soil conditions, or other relevant conditions. The responsible person shall, within the time stated in such notice, permanently cease all violations and may request a meeting with the director of the division of waste management, division of water quality, or division of environmental policy as appropriate based on the nature of the violations. The enforcement response may be escalated if compliance is not achieved within the specified abatement period. A notice of violation shall precede the issuance of a civil citation unless:

(1) There is reason to believe that the violation presents a serious threat to the public health, safety, and welfare or the environment, or

(2) In the absence of immediate action, the effects of the continuation of the violation would be irreparable or irreversible, or

(3) The offense occurs after the first citation for the same type violation is issued to a person or entity for the same property address.

(b) **Civil citations:** Any person who violates any provision of chapter 16 shall for every civil offense be subject to civil fine for each day the violation continues based upon the provisions in section 16-203. All civil citations issued for violations of any provision of chapter 16 shall be issued by an authorized code enforcement officer or a peace officer and shall contain the information required in chapter 2B of the Code and a cross-reference to the notice of violation or administrative order that describes the corrective or remedial measures to be taken by the violator to address the violation. The notice of violation or administrative order may be attached to the citation.

(c) **Administrative orders.**

(1) Any person who, after receiving a notice of violation, continues to violate any provision of chapter 16 or who is determined to be a chronic or persistent violator may be ordered to appear before the director of the division of waste management, division of water quality, or division of environmental policy, as appropriate based on the nature of the violations. The director shall be provided an explanation for all violations and undertake appropriate enforcement action pursuant to this section. Any person receiving a notice of violation may request a meeting with the appropriate director to dispute the notice or proposed remedial measures and the request may be granted in the director's discretion.

(2) Compliance schedules; compliance orders: When the director, division of environmental policy, finds that a person has violated any provision of this chapter, an order may be issued to the person for the noncompliance providing for corrective or remedial measures to be taken by such person. The director is hereby empowered to issue a compliance schedule providing a reasonable time for the violator to come into compliance with the provisions of chapter 16. The director is further empowered to enter into consent orders, assurances of voluntary compliance or other similar documents establishing an agreement with the person responsible for the noncompliance, or absent agreement, to enter any other order containing requirements reasonably necessary and appropriate to address the noncompliance, such as, if necessary, installation of pretreatment technology, additional self-monitoring and management practices. Any such order will include specific action to be taken by the violator to correct the noncompliance within a time period also specified in the order. Orders establishing an agreement with the violator shall have the same force and effect as all other administrative orders.

(3) Cease and desist order: When a person has violated any provision of this chapter, the director of environmental policy, director of water quality, or director of waste management may issue an order that the person immediately cease and desist all such violations and may direct those persons in noncompliance to comply forthwith and/or take appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation such as terminating the discharge.

(d) All notices of violation and administrative orders may be served upon the responsible party by personal service or by regular mail, and if the responsible party is not the property owner, a copy shall also be provided to the property owner (or, where appropriate, his designee pursuant to subsection 16-10(e)), by personal service or by fax transmission or by regular mail to the last known address of the owner of the property as it appears on the current tax assessment roll or to the designee's address. All citations shall be served in conformity with section 2B-6 of the Code and are appealable as provided in chapter 2B of the Code.

(e) The type and severity of the enforcement action response shall be within the discretion of the department of environmental quality commissioner and the department's division directors based upon the facts and circumstances of each matter.

(Ord. No. 143-2009, § 19, 7-7-09; Ord. No. 77-2011, § 20, 6-23-11; ; Ord. No. 221-2016, § 18, 12-6-16)

Sec. 16-203. Civil fines.

(a) Any person who violates any provisions of article II, V, or X of chapter 16, or who fails to perform any duties imposed by these articles, or who violates any determination, permit, administrative regulation, or order of the division of environmental services issued pursuant thereto shall be liable for a civil fine for the civil offense and in addition, maybe concurrently enjoined from any violations as provided in sections 16-209.

(b) The compliance history of the violator, the degree of environmental harm caused by the violation, and whether the violation demonstrates a willful and knowing disregard for the environment or the requirements of chapter 16 shall be considered in determining the amount of the civil fine. The division of environmental services may consider a reduction in the assessed civil penalty amount considering the violator's good faith efforts to correct the violation as stipulated in the citation.

(c) The maximum civil fine that may be imposed for a violation of chapter 16 is fifteen thousand dollars ($15,000.00) and each day on which any such violation shall continue shall be deemed a separate offense.

(d) The amount of the maximum civil fine for each violation, not to exceed fifteen thousand dollars ($15,000.00), shall be specified in a civil citation issued pursuant to section 16-202(b).

(Ord. No. 143-2009, § 19, 7-7-09; Ord. No. 067-2024, § 1, 7-2-24)

Sec. 16-204. Stop work order; revocation of permit.

(a) In the event that any person holding a permit issued pursuant to this chapter violates the terms of the permit or violates any provision of this chapter in such a manner as to pose a threat to the public health, welfare, or safety so as to be materially detrimental to the public welfare or injurious to property or improvements, the permit may be suspended or revoked and an order issued to stop all work pursuant to the permit by the director of the division of waste management, division of water quality, division of environmental policy or the commissioner of environmental quality as appropriate.

(b) An appeal from a stop work order issued pursuant to subsection (a) may be made to Fayette District Court within thirty (30) days of the date the order is issued. The appeal shall be initiated by the filing of a complaint and a copy of the order in the same manner as any civil action under the rules of civil procedure.

(c) A judgment of the Fayette District Court may be appealed to the circuit court in accordance with the rules of civil procedure.

(Ord No. 143-2009, § 19, 7-7-09)

Sec. 16-205. Appeal.

(a) Any person affected by a determination of the director of environmental services under subsections 16-4(b)(3) or 16-4.1(c), or the assessment of a civil fine in a civil citation issued in connection with the enforcement of article II, shall have the right to be granted a hearing on the matter. To perfect an appeal such person shall file, with the environmental hearing board, or its designee, a written request for such hearing

and the grounds therefore within the time established under section 2B-6 of the Code. A notice of violation issued pursuant to section 16-202(a)(2)(a) is not a final determination and shall not be subject to appeal under this section.

(b) Any person affected by a determination of the director of environmental policy under section 16-202, the assessment of a civil fine in a civil citation issued in connection with the enforcement of this chapter, or any administrative order issued pursuant to this article, shall have the right to request and shall have granted a hearing on the matter. To perfect an appeal such person shall file, with the infrastructure hearing board as set forth in article IX, or its designee, a written request for such hearing and the grounds therefore in the manner and time specified in section 2B-6 of the Code. A notice of violation issued pursuant to subsection 16-202(a)(2)(a) is not a final determination and shall not be subject to appeal under this section.

(c) **Failure to appeal.** Civil citations and any administrative orders referenced therein or attached thereto issued pursuant to sections 16-202 shall represent determinations that the violation has been committed and that determination shall be final and deemed adjudicated, unless appeal is taken to the environmental hearing board or infrastructure hearing board, as appropriate, within the applicable time period.

(d) All appeals shall be as specified in chapter 2B of the Code.

(Ord No. 143-2009, § 19, 7-7-09; Ord. No. 221-2016, § 16, 19, 12-6-16)

Sec. 16-206. Expenses; violation of chapter 16; abatement by the urban county government; other enforcement actions.

(a) Any person violating any of the provisions of articles II, V, or X of this chapter shall become liable to the urban county government for any expense, loss or damage occasioned by the urban county government by reason of such violation. Said person shall also be liable for repairing or restoring any sanitary sewer, storm sewer, natural outlet stormwater control device, or other stream, structure or property that is damaged, obstructed or impaired by such violation to its pre-existing condition.

(b) If any person discharges sewage, industrial waste or other waste into the urban county government waste water disposal system contrary to the provisions of this chapter, federal or state pretreatment requirements or any order of the urban county government, the urban county government may commence an action for appropriate legal and/or equitable relief, including injunctive relief in conformance with 401 KAR 5:057.

(c) When there is reason to believe that the violation of chapter 16 presents a serious threat to the public health, safety, and welfare, or if in the absence of immediate action, the effects of the continuation of the violation would be irreparable, irreversible, or otherwise detrimental to the environment, the urban county government may abate the conditions without prior notice. In such cases the government may, in addition to any civil fine imposed on the violator, charge the responsible person with an administrative fee of two hundred and fifty dollars ($250.00) and with the costs for any expense, loss or damage incurred by the urban county government by reason of such violation. Said person shall also be liable for the costs of repairing or restoring any sanitary sewer, stormwater control device, or other infrastructure or stream that is damaged, obstructed

or impaired by such violation to its pre-existing condition. The urban county government may file a lien for the costs of such abatement in accordance with section 2B-9 of the code and this article. Citations, if issued, shall not preclude the government from abating the conditions and billing the responsible person, persons, or entities for the cost of abatement.

(d) If any violation has not been corrected pursuant to the requirements set forth in the citation or administrative order or, in the event of an appeal, within five (5) days of the decision of the hearing board upholding the decision of the authorized enforcement agency or such other time period specified in the order of the hearing board, then representatives of the authorized enforcement agency may enter upon the subject private property and are authorized to take any and all measures necessary to abate the violation and/or restore the property.

(e) It shall be unlawful for any person, owner, agent or person in possession of any premises to refuse to allow the authorized enforcement agency or designated contractor to enter upon the premises for the purposes set forth in subsections (c) and (d) above.

(f) The urban county government may file a lien for the cost of such abatement under subsections (c) and (d) in accordance with section 2B-9 of the Code and this article.

(g) Pursuant to 401 KAR 5:057 Section 6, relating to pretreatment program requirements, the names of all industrial dischargers that significantly violated applicable pretreatment standards in the previous twelve (12) months will be published in the largest local daily newspaper at least annually.

(h) Reserved.

(i) Reserved.

(j) Pursuant to 401 KAR 5:057 section 6(4)(b)(7), the names of all industrial dischargers that significantly violated applicable pretreatment standards in the previous twelve (12) months will be published in the largest local daily newspaper at least annually.

(Ord. No. 143-2009, § 19, 7-7-09; Ord. No. 77-2011, § 21, 6-23-11; Ord. No. 221-2016, § 20, 12-6-16)

Sec. 16-207. Inspections and access.

(a) Representatives of the department of environmental quality and the division of engineering shall, upon presentation of identification and credentials, be permitted to enter and inspect construction sites, industrial facilities, commercial facilities, and institutional facilities that are subject to regulation under chapter 16 but only as necessary to determine compliance with provisions of chapter 16 applicable to such facilities.

(b) Representatives of the department of environmental quality and the division of engineering shall, upon presentation of identification and credentials, be permitted to enter and inspect the exterior portions of residen-

tial properties at reasonable times when probable cause exists that there may be a violation of chapter 16 as may be necessary or convenient to determine compliance with provisions of chapter 16 applicable to such residential properties.

(c) In conducting any inspections pursuant to this section, representatives of the department of environmental quality and division of engineering shall be allowed reasonable access to all those parts of the premises with erosion control preparations or activities for the purposes of inspection, sampling, examination, photographing, recording, and copying of records that are required to be kept under chapter 16, and the department of environmental quality shall have the right to set upon any such property devices as are necessary in the opinion of the commissioner of the department of environmental quality to conduct monitoring and/or sampling of wastes, stormwater runoff, air emissions, or wastewaters.

(d) In conducting any inspections pursuant to this section, the department of environmental quality or division of engineering shall, upon written request of the owner/manager, enter into appropriate agreements to protect the confidentiality of records or other information furnished to the department of environmental quality that is trade secret or confidential business information.

(e) It shall be a violation of chapter 16 for any person to impede or obstruct the safe and easy access of a representative of the department of environmental quality or the division of engineering in conducting an inspection authorized by this section.

(f) It shall be a violation of chapter 16 for any person to impede or obstruct the safe and easy access of a representative of the department of environmental quality or division of engineering in conducting an inspection authorized by this section.

(Ord. No. 143-2009, § 19, 7-7-09; Ord. No. 151-2010, § 3, 8-26-10)

Sec. 16-208. Action to recover penalties and costs; injunctive relief.

(a) It shall be the duty of the department of law to defend court appeals and to institute actions for the recovery of any penalties and costs otherwise authorized in this chapter, and to bring an action for an injunction against any person violating or threatening to violate any provision of this chapter, or any administrative regulation, order, or determination of the department promulgated pursuant thereto. In any such action any findings of the hearing board shall be prima facie evidence of the fact or facts found therein.

(b) Nothing contained in this chapter shall abridge the right of any person to recover actual compensatory damages resulting from any violation of this chapter.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-209. Violations deemed a public nuisance.

In addition to the enforcement processes and penalties provided, any condition caused or permitted to exist in violation of any of the provisions of chapter 16 that is a threat to public health, safety, and welfare, may be declared and deemed a public nuisance, and may be summarily abated or restored at the violator's expense, and/or a civil action to abate, enjoin, or otherwise compel the cessation of such nuisance may be taken.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-210. Criminal prosecution.

Any person that knowingly or wantonly has violated or continues to violate any provision of chapter 16 shall be subject to criminal prosecution to the fullest extent of the law, and shall be subject upon conviction to a criminal penalty of fifteen thousand dollars ($15,000.00) per violation per day and/or imprisonment for a period of time not to exceed three hundred sixty-five (365) days.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-211. Recovery of expenses.

The urban county government may recover all attorneys' fees, court costs and other expenses associated with successful enforcement of this article, including sampling and monitoring expenses.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-212. Withholding permits; exception.

No person who has been adjudicated to be in violation of any provision of this chapter shall be granted a building permit or any other permit issued pursuant to sections 5-29 through 5-32, or any permit issued pursuant to chapter 16 unless and until the violator has paid any fines and fully complied with any administrative orders and/or remedial measures related to the violation. However, if the violator enters into a consent order and compliance schedule with the division of environmental policy to resolve the outstanding violations, the division of environmental policy may direct the appropriate division to issue a permit in accordance with any other applicable requirements.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-213. Remedies not exclusive.

The remedies listed in this article are not exclusive of any other remedies available under any applicable federal, state or local law and it is within the discretion of the urban county government to seek cumulative remedies.

(Ord. No. 143-2009, § 19, 7-7-09)

Sec. 16-214—16-300. Reserved.

Article XIII

Sanitary Sewer Capacity Assurance Program (CAP)

Sec. 16-301. Purpose and intent.

The intent of this Article is to implement a sanitary sewer system Capacity Assurance Program (CAP) to assure that the sanitary sewer system is adequate for future connections.

(Ord. No. 63-2013, § 1, 6-6-13)

Sec. 16-302. Definitions.

Active in regard to preliminary subdivision plans, preliminary development plans, final development plans, and/or amended final development plans shall mean a plan that has been approved by the Planning Commission and has not expired because activity related to the plan has occurred within the appropriate time period in compliance with the Zoning Ordinance and Land Subdivision Regulations.

Adequate capacity shall mean Adequate Treatment Capacity, Adequate Transmission Capacity, and Adequate Collection Capacity.

Adequate collection capacity shall mean that each Gravity Sewer Line, through which a proposed additional flow from new or existing connections would pass, has the capacity to carry the existing One-Hour Peak Flow passing through the Gravity Sewer Line, plus the addition to the existing One-Hour Peak Flow from the proposed connection, plus the addition to the existing One-Hour Peak Flow predicted to occur from all other authorized sewer service connections which have not begun to discharge into the Sanitary Sewer System without causing a Surcharge Condition.

Adequate transmission capacity shall mean that each Pumping Station through which a proposed additional flow from new or existing sewer service connections would pass to the WWTP receiving such flow, has the capacity to transmit the existing One-Hour Peak Flow passing through the Pumping Station, plus the addition to the existing One-Hour Peak Flow predicted to occur from the proposed connection, plus the addition to the existing One-Hour Peak Flow predicted to occur from all other authorized sewer service connections which have not begun to discharge into the Sanitary Sewer System.

Adequate treatment capacity shall mean that at the time the WWTP receives the flow from a proposed sewer service connection(s) or increased flow from an existing sewer service connection(s), when combined with the flow predicted to occur from all other authorized sewer service connections (including those which have not begun to discharge into the Sanitary Sewer System), the WWTP will not be in "noncompliance" for quarterly reporting as defined in 40 C.F.R Part 123.45, Appendix A and that the new or increased flow to the WWTP will not result in Unpermitted Bypasses or diversions prohibited by the KPDES Permits due to lack of treatment capacity.

Administrative capacity approval shall mean a waiver of administrative requirements for a Sanitary Sewer Capacity Permit or Sewer Capacity Reservation available to a new business or industry, or an expansion of an existing business or industry, under certain circumstances.

Capacity Assurance Program or CAP shall mean the System Capacity Assurance Program as defined in Section VII Paragraph 16.B. of the Consent Decree and accepted by the Urban County Council in Resolution No. 722-2012, passed December 11, 2012 and otherwise described in Sections 16-301, et seq. in the Code of Ordinances.

Capacity request shall mean written submission of a Sewer Capacity Application to the Division of Water Quality (DWQ) for a Permanent Allocation or Sewer Capacity Reservation.

Consent decree shall mean the Decree and all attachments lodged on March 14, 2008 between the United States of America and the Commonwealth of Kentucky (Plaintiffs) v. Lexington-Fayette Urban County Government (Defendant), Civil Action No. 5:06-cv-386, with an effective date of January 3, 2011.

Credit shall mean a unit of flow equivalent to one gallon per day (1 gpd).

Essential services shall mean public schools as defined herein, health care facilities licensed by the Kentucky Cabinet for Health and Family Services and meeting the definition of "health facility" in KRS 216B.015, or a building or facility that is contiguous to or connected to a licensed hospital and which serves as a medical office building, site for delivery of outpatient health services or is otherwise integral to hospital operations or which building or facility is required to have a Certificate of Need under KRS 216B.010, et seq.

One hour peak flow shall mean the greatest flow in a sewer averaged over a sixty (60) minute period at a specific location expected to occur as a result of a representative 2-year 24-hour storm event.

Permanent allocation shall mean the assignment of sewer capacity/credits to a property and is not subject to expiration.

Planning commission shall mean the Lexington-Fayette Urban County Planning Commission.

Public school shall mean a school which is operated by the state, a political subdivision of the state, a governmental agency within the state, or by a non-profit corporation which has IRS Section 501(c)(3) tax exempt status.

Remodeling project shall mean a project for the remodeling or expansion of an existing residential structure which does not increase the number of dwelling units.

Sanitary sewer capacity permit shall mean a document provided by the Division of Water Quality approving a Sewer Capacity Application under Article XIII of Code of Ordinances Chapter 16.

Sanitary sewer system shall mean the WCTS owned or operated by LFUCG designed to collect and convey municipal sewage (domestic, commercial and industrial) to a WWTP.

Sewer capacity application shall mean the application form completed and filed with the Division of Water Quality to request a Permanent Allocation and/or a Sewer Capacity Reservation.

Sewer capacity reservation shall mean the temporary assignment of sewer capacity to a property until a "Sanitary Sewer Capacity Permit" is issued upon approval of a Capacity Request.

Staged capacity allocation shall mean an assignment of sewer capacity with certain conditions to a property based on its development status.

Tap-on permit shall mean a permit to connect to the public sanitary sewer system as provided in Section 16-40 of the Code of Ordinances.

Use of record shall mean the existing or previous wastewater flow from a property that is represented in a baseline condition of the sanitary sewer system hydraulic model plus any future Permanent Allocations assigned to the property by the Division of Water Quality.

(Ord. No. 63-2013, § 1, 6-6-13)

Sec. 16-303. Sanitary sewer capacity permit/sewer capacity reservation.

(a) A Sanitary Sewer Capacity Permit ("permit") must be obtained prior to any future connection to the sanitary sewer system that will result in additional sanitary sewer flow. An applicant may apply for a single Permit which shall apply to all lots or buildings, as appropriate, on an approved preliminary subdivision plat, final subdivision plat, final development plan or authorized plan amendment.

(b) A permit shall be granted by the Division of Water Quality upon request, after verification by the division of all relevant facts, for any property that has a use of record in an amount not to exceed the maximum previous wastewater flow from the property.

(c) A permit shall be granted by the Division of Water Quality upon request, after verification by the division of all relevant facts, for any single family residential, townhouse, or duplex lot for which a building permit has not been previously issued if the lot was created by a final subdivision plat or final development plan recorded or certified, as appropriate, prior to July 3, 2013.

(d) A permit shall be granted by the Division of Water Quality upon request, after verification by the division of all relevant facts, for any property for which an active preliminary subdivision plan, final development plan, final plat, or authorized plan amendment was submitted to the Planning Commission prior to December 11, 2012 provided the plan is approved and certified by the Urban County Planning Commission not later than July 3, 2013.

(e) A permit shall be granted by the Division of Water Quality upon request, after verification by the division of all relevant facts, for any property located in Expansion Area 2A, 2B or 2C in Fayette County.

(f) A Remodeling Project shall not require a permit and the Division of Water Quality shall provide written notice of such waiver to the Division of Building Inspection.

(g) A Staged Capacity Allocation shall be granted by the Division of Water Quality upon request, after verification by the division of all relevant facts, for any residential development property for which an active preliminary subdivision plan, final development plan, or authorized amendments to such plans was not submitted to the Planning Commission prior to December 11, 2012 if the relevant plan or amendment is certified as approved by the Urban County Planning Commission Secretary not later than July 3, 2013. The amount of the Staged Capacity Allocation, up to a maximum annual threshold, shall be determined by a negotiated agreement between the applicant and the urban county government by and through the Division of Water Quality based on the nature and timing of the development.

(h) A Staged Capacity Allocation shall be granted by the Division of Water Quality upon request, after verification by the division of all relevant facts, for any non-residential development property for which an active preliminary subdivision plan, final development plan, or authorized amendments to such plans was not submitted to the Planning Commission prior to December 11, 2012 if the relevant plan is approved and certified by the Urban County Planning Commission not later than July 3, 2013, and all tap-on fees for the property are paid by July 3, 2014. The amount of the Staged Capacity Allocation up to a maximum annual threshold shall be determined by a negotiated agreement between the applicant and the urban county government by and through the Division of Water Quality based on the nature and timing of the development. Any amount of the reserved sewer capacity that has not been used by July 3, 2014, shall expire.

(i) Within ten (10) calendar days after receipt of a Sewer Capacity Application, the division shall notify the applicant, in writing, of its determination to grant or deny the request. If a determination cannot be made within ten (10) calendar days the division will notify the applicant and provide response status updates not less than every ten (10) days until a final determination is made. No application shall be approved without a written determination.

(j) (1) A project for an Essential Service may be granted a Sanitary Sewer Capacity Permit even though adequate capacity does not exist upon a finding by the Commissioner of Public Works and Commissioner of Planning, Preservation and Development that such action is justified and will not have an unduly detrimental impact on the Capacity Assurance Program.

(2) A project for a new business or industry, or the expansion of an existing business or industry, may qualify for Administrative Capacity Approval of a Sanitary Sewer Capacity Permit only upon a finding by the Commissioner of Finance and Commissioner of Planning, Preservation and Development that the project will have a significant economic impact. Such action shall not result in delay of other planned neighborhood sewer improvements or Remedial Measures Plan (RMP) projects. The Commissioners shall report any Administrative Capacity Approval to the Environmental Quality Committee within thirty (30) days of taking such action.

(3) Any project that is approved pursuant to subsection (a) or (b) must still file all otherwise required applications or forms and pay all applicable fees and deposits, unless such fee or deposit is waived as provided elsewhere in this Article.

(k) All applications or requests made pursuant to this section shall be made by the owner of the subject property or by the owner's duly authorized representative. Written verification of representative status will be required prior to acceptance of any application or request.

(Ord. No. 63-2013, § 1, 6-6-13)

Sec. 16-304. Capacity requests/sewer capacity reservations.

(a) A sewer Capacity Request may be made for any development property that has an approved preliminary subdivision plan, final development plan, authorized plan amendment, or a final subdivision plat which has been certified as approved by the Planning Commission Secretary.

(b) A Sewer Capacity Reservation request may be made for any development property for which a preliminary development plan, preliminary subdivision plan, final development plan, or authorized plan amendment, has been submitted to the Planning Commission.

(c) To formally request a Staged Capacity Allocation, a Sanitary Sewer Capacity Permit or a Sewer Capacity Reservation for any development property, including Administrative Capacity Approval or Essential Services eligible properties, a Sewer Capacity Application shall be completed and filed with the division of Water Quality and a non-refundable administrative fee of four hundred fifty dollars ($450.00) shall be paid, except as provided in subsection (g) of this section. An applicant may file a Sewer Capacity Application which applies to all lots or buildings, as appropriate, on a preliminary subdivision plat, final subdivision plat, final development plan or authorized plan amendment.

(d) If a Sewer Capacity Reservation is granted, the reservation will be effective upon payment of a reservation deposit in an amount equal to twenty-five (25) percent of the estimated tap-on fee associated with the reservation. If a Sewer Capacity Reservation is granted for properties in Expansion Area 1 or 3, the reservation shall be in effective upon payment of a reservation deposit in an amount equal to twenty-five (25) percent of the estimated sanitary sewer capacity exactions in the subject area or in such other amount determined by a development agreement between the applicant and the urban county government pursuant to Article 23C-7(d) of the Zoning Ordinance based on the applicant's participation in system improvement construction within the subject development. The amount of the reservation deposit shall be credited in full toward the payment of the final tap-on fee or exaction fee as appropriate. The length of the reservation period shall not exceed one (1) year after which the reservation shall expire unless extended as provided herein. Prior to expiration of the reservation, an extension shall be granted upon payment of an additional non-refundable administrative fee of two hundred twenty-five dollars ($225.00). The extension shall not exceed an additional one (1) year unless a longer extension is justified based on the timing of the applicant's construction of system improvements under a development agreement pursuant to Article 23C-7(d) of the Zoning Ordinance. If a Sewer Capacity Reservation expires one-half (½) of the reservation deposit shall be refunded. For developments requesting capacity where a reservation has expired, a new Sewer Capacity Application form must be completed and filed with the Division of Water Quality and a new non-refundable administrative application fee and reservation deposit, if applicable, shall be due for the subject property.

(e) A Sewer Capacity Reservation shall become a Permanent Allocation upon certification by the Urban County Planning Commission Secretary of the approval of the preliminary subdivision plan or final development plan, or authorized amendments thereto as may be applicable for the subject property or issuance by the urban county government of a tap-on permit, for the subject property, whichever occurs first.

(f) All rates and fees set forth in this section shall be adjustable each July 1 beginning on July 1, 2014, by an amount based upon the Consumer Price Index for All Urban Consumers, the U.S. City Average ("CPI-u") published monthly by the Bureau of Labor Statistics. These rates shall be adjusted up if so indicated by a factor determined by averaging the monthly CPI-u published for the twelve-month period ending, and including, April of the year before the July 1 adjustment.

(g) No administrative fee for Sewer Capacity Applications or deposit for Sewer Capacity Reservations shall be due for the following:

1) Any Remodeling Project;

2) Any construction project that will result in less than forty-five (45) gallons per day (gpd) increase in sanitary sewer usage;

3) Any property that qualifies for Sanitary Sewer Capacity Permit or a Sewer Capacity Reservation pursuant to subsections 16-303(b), (c), (d), or (e);

4) Any property that is currently paying a sewer user fee that is directed by the Fayette County Health Department to connect to the sewer system to eliminate an illicit connection.

(h) The Sewer Capacity Reservation deposit for any development property that qualifies for a Administrative Capacity Approval under subsection 16-303(i)(2) may be waived at the discretion of the urban county government.

(i) All applications or requests made pursuant to this section shall be made by the owner of the subject property or by the owner's duly authorized representative. Written verification of representative status will be required prior to acceptance of any application or request.

(j) Within ten (10) calendar days after receipt of a Capacity Request or an application for a Staged Capacity Allocation, a Sanitary Sewer Capacity Permit or a Sewer Capacity Reservation, the division shall notify the applicant, in writing, of its determination to grant or deny the requested action. If a determination cannot be made within ten (10) calendar days the division will notify the requestor and provide response status updates not less than every ten (10) days until a final determination is made. No request or application shall be approved without a written determination.

(Ord. No. 63-2013, § 1, 6-6-13)

Sec. 16-305. Appeals.

Any applicant who disagrees with a sewer capacity/reservation/allocation/waiver determination on its application made under this Article may appeal to the Commissioner of Environmental Quality and Public Works. Such appeal shall be made in writing and shall state the grounds for the appeal. Any technical data which supports the appeal shall be provided with the appeal. The Commissioner shall render his decision within thirty (30) days from receipt of the appeal and supporting documents.

(Ord. No. 63-2013, § 1, 6-6-13)

Sec. 16-306. Compliance with consent decree.

All actions and requirements under this Article shall be subject to the provisions of the Consent Decree and the urban county government's Capacity Assurance Plan as approved by the United States of America pursuant to the Consent Decree. Where any conflict exists between this Article and the Consent Decree or approved Capacity Assurance Plan, the Consent Decree or Capacity Assurance Plan shall control.

(Ord. No. 63-2013, § 1, 6-6-13)

Sec. 16-307. Review; audit.

An independent formal review and audit of the Capacity Assurance Program and collected fees shall be performed on or before June 30, 2025 and every five (5) years thereafter and the audit reports shall be sent to the urban county council.

(Ord. No. 63-2013, § 1, 6-6-13; Ord. No. 059-2023, § 1, 6-15-23)

Sec. 16-308—16-400. Reserved.

Article XIV

Water Quality Management Fees[1]

Sec. 16-401. Establishment.

A system and structure of water quality management fees to be applied to all developed parcels of land within Fayette County is hereby established in accordance with the provisions of this chapter.

(Ord. No. 73-2009, § 1, 5-14-09)

1. **Editor's note(s)**—The water quality management fees authorized in this article shall not be implemented before January 1, 2010.

Sec. 16-402. Definitions.

Developed means the condition of real property altered from its natural state by the addition to or construction on such property of impervious ground cover or other manmade physical improvements so that the hydrology of the property or a portion thereof is affected.

Equivalent residential unit (ERU) means the measure of impervious ground cover for a typical single-family residential property used in assessing the water quality management fees for each parcel of property and which has been determined to be two thousand five hundred (2,500) square feet.

Farm property means any parcel occupied exclusively for "agricultural use" as defined in article 1-11 of the zoning ordinance.

Impervious surface means those hard surface areas either which prevent or retard the entry of water into the soil in the manner that such water entered the soil under natural conditions pre-existent to development, or which cause water to run off the surface in greater quantities or at an increased rate of flow than that present under natural conditions pre-existent to development, including, without limitation, such surfaces as roof tops, asphalt, concrete, pavers, aggregate, paving, driveways and parking lots, private streets, walkways, patio areas, storage areas or other surfaces which similarly affect the natural infiltration or runoff patterns existing prior to development.

Non-single-family residential properties or parcels means properties or parcels which contain more than one (1) residential structure or one (1) residential structure with more than two (2) residential dwelling units and institutional, commercial or industrial properties.

Parcel or lot means a legally created and definable piece of real estate resulting from subdivision of a large area or from conveyance by deed or land sales contract.

Residence means a building or structure or portion thereof, designed for and used to provide a place of abode for human beings. The term residence includes the term residential and residential unit as referring to the type of or intended use of building or structure.

Single-family residential property or parcel means any property or parcel which contains one (1) residential structure with one (1) or two (2) residential dwelling units.

Stormwater means stormwater runoff, snow melt runoff, and surface runoff and drainage.

Stormwater drainage system means a conveyance or system of conveyances, including, but not limited to, roads with drainage systems, urban county streets, inlets, curbs, gutters, ditches, basins, manmade channels or storm drains which are: (i) owned or operated by the urban county government; and (ii) designed or used for collecting or conveying stormwater.

Stormwater management program means the plan for managing storm drainage and surface water runoff facilities and features within the water quality management area and the drainage basins therein.

Undeveloped means the condition of real property unaltered by construction or addition to such property by man of impervious ground cover or physical manmade improvements of any kind which change the hydrology of the property from its natural state.

Water quality management area includes all developed parcels within Fayette County.

Water quality management fee means the fee levied by the urban county government upon all developed parcels within the boundaries of the water quality management area as authorized by this chapter.

(Ord. No. 73-2009, § 1, 5-14-09)

Sec. 16-403. Water quality management fee.

(1) A water quality management fee is imposed on every parcel of land within the water quality management area except the following:

   (a) Undeveloped parcels;

   (b) Railroad tracks;

   (c) State and federal roads;

   (d) Urban county government streets and roads;

   (e) Private streets which are used exclusively for access to single-family residential parcels.

(2) The following charges are hereby established and imposed for all parcels within the water quality management area, excluding exempted properties:

   (a) Class A properties: Single-family residential or farm properties. The single-family residential rate shall be four dollars and thirty-two cents ($4.32) per month for each parcel and the farm property rate shall be four dollars and thirty-two cents ($4.32) per month for each parcel. This flat rate fee is based on each single-family residential parcel or farm property being equal to one ERU. The urban county government shall determine the number of single family residential parcels and farm properties in the water quality management area.

   (b) Class B: All other parcels: The charge for all other parcels within the water quality management area shall be based upon the number of square feet of measured impervious surface, as determined by the urban county government through aerial photography and surface feature evaluation processes, expressed in whole ERUs by rounding to the nearest ERU (determined to be two thousand five hundred (2,500) square feet of impervious surface). The charge for Class B properties shall be computed by multiplying the number of ERUs for a given parcel by the unit rate established by the urban county government of four dollars and thirty-two cents ($4.32) per ERU per month but in no event shall any such parcel pay less than four dollars and thirty-two cents ($4.32) per month.

(c) All rates and fees set forth in this section shall be adjustable each July 1 beginning on July 1, 2011, by an amount based upon the Consumer Price Index for All Urban Consumers, the U.S. City Average ("CPI-u") published monthly by the Bureau of Labor Statistics. These rates shall be adjusted up if so indicated by a factor determined by averaging the monthly CPI-u published for the twelve-month period ending, and including, April of the year before the July 1 adjustment.

(Ord. No. 73-2009, § 1, 5-14-09)

Sec. 16-404. Billing and collection.

(1) Water quality management fees shall be billed and made payable monthly.

(2) The owner(s), tenant(s), or person(s) responsible for the payment of water service charges and/or sewer service charges shall also be responsible for the payment of water quality management fees for the same parcel(s) except for multiple occupancy such as shopping centers, apartments, condominiums, etc., in which cases the urban county government may either allocate the water quality management fees among the occupants of the parcel or may deem that a single billing to the parcel's owner(s), agent, or association is appropriate. In either case, the billed party shall be responsible for payment of water quality management fees. In all situations, the owners of properties subject to water quality management fees shall be fully responsible for payment of said charges regardless of any other parties herein above identified as also being responsible for payment of water quality management fees.

(3) Bills for water quality management service shall be due when rendered; and the face amount, without penalty or interest, shall be paid on the due date.

(4) All unpaid water quality management bills are subject to penalty and interest charges to be computed in the following manner:

(a) Any water quality management bill or a portion of any unpaid water quality management bill remaining unpaid for more than twenty (20) days from the date of billing may be assessed a penalty of ten (10) percent of the unpaid balance.

(b) In addition to the penalty provided in subsection (4)(a) of this section, any water quality management bill or a portion of any water quality management bill remaining unpaid for more than thirty (30) days from the date of billing shall be assessed an interest charge at the statutory rate, which shall be on file with the division of revenue against the unpaid balance of such bill.

(5) The department of law is authorized and directed to institute legal proceedings in the name of the urban county government in any court having jurisdiction over such matter for the collection of delinquent water quality management fees, and to take any actions necessary in such proceedings to protect the interests of the urban county government.

(Ord. No. 73-2009, § 1, 5-14-09; Ord. No. 85-2012, § 8, 7-5-12; Ord. No. 84-2013, § 3, 7-9-13; Ord. No. 117-2013, § 3, 9-26-13)

Sec. 16-404.1. [Refund claim; time period for filing.]

Any person or entity responsible for payment of a water quality management bill who believes that the bill or amount of the bill is in error may file for a refund within two (2) years of the date of billing. Such claim shall be made in writing to the director, division of revenue, on a form provided by the division. The director or his or her designee shall review the claim and respond in writing within thirty (30) days of the filing. The decision of the director or designee shall be final. The division of revenue may prescribe such regulations, policies, or guidelines consistent with the provisions of this section as deemed necessary or appropriate to carry out the intentions stated herein.

(1) Any overpayment may be credited against the amount of a future bill(s).

(2) The two-year limitation period for refunds or credits shall be in effect for any filing for a refund or credit submitted on or after August 1, 2012.

(Ord No. 85-2012, § 9, 7-5-12)

Sec. 16-405. Adjustment of charges.

Any user subject to the water quality management fee who is the legal title/leaseholder/renter of the benefited property who is age sixty-five (65) or older, or who is receiving social security disability benefits, and whose annual household income (as defined in section 16-405.1(a)(2) below) is $25,000 or less, said amount of income to be adjusted annually in accordance with the Social Security administration's cost of living adjustment, can apply for a discount. Upon acceptance for the discount, said user's bill shall be decreased by thirty (30) percent of the billing amount.

(Ord. No. 73-2009, § 1, 5-14-09)

Sec. 16-405.1. Grant program.

(a) As used in this section only, the following terms shall have the meanings given:

(1) Assets test means that any person having assets in excess of either:

(i) Five thousand dollars ($5,000.00) in liquid assets such as bank accounts, savings, certificates of deposits, stocks, bonds, etc.; or

(ii) Five thousand dollars ($5,000.00) in equity in assessed value of nonhomestead property; shall be ineligible to participate in the program, notwithstanding that he meets the income level qualifications set forth in this section. However, motor vehicles for personal use, household furnishings and the benefited property itself, as well as buildings located thereon which are occupied by the person seeking to qualify as a home for himself and his family, shall not be included in computing assets.

(2) Income means gross income as defined in Section 61 of the Internal Revenue Code.

(3) Program means the assistance program established in this section.

(4) Qualified customer means a residential water quality management fee customer who meets the assets test and has an annual income equal to or less than one hundred fifty (150) percent of the poverty income levels set forth in the poverty guidelines chart established by the Community Services Administration, annually published in the Federal Register, in effect at the time of application. However, income itself shall be measured by the definition contained in subsection (a)(2) of this section.

(b) Qualified customers may receive assistance for fifty (50) percent of the cost of their water quality management fees, decreasing their obligation to fifty (50) percent of the total charges on the bill. All payments of water quality management fee grants by the urban county government are subject to an annual appropriation by the urban county council of the funds to make such payments, and neither the establishment of this program nor participation in the program shall constitute a contract between the urban county government and any qualified property owner for other than the fiscal year for which funds are appropriated to make payments. In the event funds are not appropriated for any given fiscal year, customers will be required to pay the full cost for that year.

(c) Qualified customers who participate in this program shall not be eligible to receive the discount allowed in section 16-405.

(d) The administration of this program shall be under the direct supervision of the mayor of the urban county government. The mayor may prescribe such regulations and procedures, consistent with the provisions of this section, as he or she deems necessary or appropriate to carry out the intentions stated herein. The commissioners of the departments of finance, environmental quality and public works, and housing advocacy and community development shall be responsible for administration of aspects of the program at the direction of the mayor.

(Ord. No. 73-2009, § 1, 5-14-09; Ord. No. 067-2023, § 3, 6-29-23)

Sec. 16-406. Stormwater revenues; expenses.

All monies collected through water quality management fees authorized herein shall be separately identified and accounted for in the urban county government's financial records, and all expenses related to the urban county government's stormwater program overseeing drainage, flood control, and water quality, including any administrative costs related thereto shall be separately identified and administered according to generally accepted principles of governmental accounting.

(Ord. No. 73-2009, § 1, 5-14-09)

Sec. 16-407. Adjustment of charges; appeals.

(1) Any owner who considers that water quality management fees applied to the owner's parcel are inaccurate or otherwise disagrees with the determination may apply to the director of the division of water quality for a rate review, stating in writing the grounds for the adjustment. The director or his designee

will review the case and report findings to the commissioner of environmental quality. The commissioner shall consider the complaint and staff recommendations and determine whether an adjustment is necessary to provide for reasonable and equitable application of the water quality management fee.

(2) Appeals of decisions made by the commissioner may be brought before the water quality fees appeals board created pursuant to section 16-408.

(Ord No. 73-2009, § 1, 5-14-09)

Sec. 16-408. Water quality fees board.

(1) There is established a water quality fees board to review:

(a) Denials by the director of revenue and commissioner of finance in cases where sanitary sewer users have submitted written requests for adjustments to their bills for the sanitary sewer user fee pursuant to section 16-59.

(b) Decisions made by the director of water quality and commissioner of environmental quality on applications for adjustments to water quality management fees as provided in subsection 16-407(1).

(c) Recommendations of the director of water quality pursuant to section 16-410.

(2) The board shall meet quarterly and shall be composed of five (5) citizens appointed by the mayor. No more than two (2) citizen members may reside in the same urban county council district. The terms of the board members shall be four (4) years, which terms shall be staggered so that at least half the membership of the board is eligible for appointment every two (2) years.

(3) When considering an appeal of a decision pursuant to section 16-59 or subsection 16-407(1), the board shall review applicants' written requests for adjustment, the written responses from the commissioner of finance or commissioner of environmental quality, and any other relevant documents. The board's decision as to the appropriate adjustment shall be final.

(4) When considering the recommendation of the director of water quality pursuant to section 16-410, the board shall review the application, supporting information, and the director's recommendation to determine if the project proposed for inclusion in the water quality incentive grant program meets the criteria contained in subsection 16-410(2).

(Ord. No. 73-2009, § 1, 5-14-09; Ord. No. 85-2012, § 10, 7-5-12)

Sec. 16-409. Review; audit; public hearing.

A formal review and audit of the water quality management fees established in this chapter shall be performed on or before January 31, 2013 and every five (5) years thereafter and the audit report shall be sent to the urban county council. At least one (1) public hearing shall be held by the council related to the water quality management fees every time the review and audit required by this section is performed.

(Ord. No. 73-2009, § 1, 5-14-09)

Sec. 16-410. Stormwater quality projects incentive grant program.

(1) There is established a stormwater quality projects incentive grant program ("program") to provide funding where urban county monetary participation is justified for the following:

   (a) Cost-sharing assistance for stormwater projects/programs on residential and commercial /industrial properties with existing stormwater concerns; and

   (b) Grants for community-based stormwater projects.

(2) Projects that may qualify for participation in the program include, but are not limited to:

   (a) Projects to reduce stormwater runoff from the property;

   (b) Projects to improve water quality; and

   (c) Projects to provide public or private education related to stormwater quality.

(3) In determining whether a project/program qualifies for participation in the program by justifying monetary participation by the urban county government, the following factors may be considered:

   (a) The extent to which the project/program reduces stormwater runoff from the property or improves water quality in an amount in excess applicable urban county government standards;

   (b) The applicant's record of compliance with the provisions of chapter 16 of the Code of Ordinances.

(4) To participate in the program an application and information supporting the project/program must be submitted as provided for in a form provided by the division of water quality.

(5) Eligible applicants may include, but are not limited to, property owners, neighborhood associations, and conservation organizations.

(6) Applications for participation in the program shall be reviewed by the division of water quality. If additional information is required the applicant will be notified. The director of water quality shall make a recommendation for approval or denial of the application. The recommendation shall be presented to the water quality fees board which shall review the application and recommendation pursuant to subsection 16-408(4).

(7) All grants under this section are subject to the limitations of funding each fiscal year.

(8) The program shall be funded annually at a minimum of ten (10) percent of the total revenue generated by the water quality management fee and shall be reviewed as part of the audit provided for in section 16-409.

(Ord. No. 73-2009, § 1, 5-14-09)

Chapter 16A

Hazardous Materials[1]

Section 16A-1. Definitions.

Section 16A-2. Materials regulated.

Section 16A-3. Discharges.

Section 16A-4. Reporting; reportable quantities.

Section 16A-5. Restoration.

Section 16A-6. Closure of facilities.

Section 16A-7. Hazardous materials inventory.

Section 16A-8. Spill prevention and control plan (SPC plan).

Section 16A-9. Hazardous materials commander.

Section 16A-10. Hazardous materials team ("HMT").

Section 16A-11. Confidentiality; trade secrets.

Section 16A-12. Hazardous materials emergency response management program.

Section 16A-13. Affirmative defenses.

Section 16A-14. Disclaimer of liability.

Section 16A-15. Enforcement; notice of violations.

Section 16A-16. Penalties.

Section 16A-17. Preemption.

1. **Editor's note(s)**—Ord. No. 23-2013, §§ 1—25, adopted Mar. 7, 2013, amended ch. 16A to read as herein set out. Former ch. 16A, §§ 16A-1—16A-27, pertained to similar subject matter. See the Code Comparative Table for a complete history of former ch. 16A. Sections 16A-2 and 16A-3 were not amended by Ord. No. 23-2013 and so remain in the Code to read as adopted by Ord. No. 261-85, § 1, adopted Dec. 19, 1985.
State law reference(s)—Transportation of hazardous materials, KRS 174.400 et seq.

Sec. 16A-1. Definitions.

Clean up contractor means those individuals or companies that have been trained in Hazardous Waste Operations and Emergency Response ("HAZWOPER") and Occupational Safety and Health Administration ("OSHA") standards and have the resources and ability to clean up hazardous materials.

Closure means the time at which handling of hazardous material permanently ceases at a facility or ceases for a period of sixty (60) days or more.

Discharge means any spilling, pouring, leaking, emitting, pumping, emptying, discharging, escaping, injecting, dumping, or disposing of any hazardous materials.

Exempt discharge means any discharge which is exempted from reporting requirements pursuant to this chapter.

Facility means a building or buildings, appurtenant structures and surrounding land area used by a person at a single location or site.

Handle means to store, maintain, treat, process, use, generate, dispose of, or otherwise manage, but does not mean transportation of hazardous materials except transportation of such materials within a facility.

Hazardous materials means any chemical, biological or radiological compound, gas, oil, gasoline, lubricant, or other petroleum products, substance, solution or mixture which because of its quality, quantity, concentration, physical or infectious characteristics, or any combination thereof, when released into the environment, presents or may present harmful or potentially harmful effects to human health or welfare or the environment. Hazardous materials shall only include any substance, mixture, element, compound or solution in concentration greater than one (1) percent by volume designated pursuant to the Federal Water Pollution Control Act (otherwise known as the Clean Water Act) and the Comprehensive Environmental Response, Compensation and Liability Act and any petroleum products as defined in this section.

Radiological compounds or nuclear material shall be regulated by this chapter subject to the limits contained in the Atomic Energy Act, as amended, 42 U.S.C. 2011 et seq. and other applicable federal and state laws.

Hazardous materials commander or **HMC** means the officer in charge of special operations for the division of fire and emergency services, or other designee by the chief of the division of fire and emergency services.

Hazardous materials platoon leader or **HMPL** means the commanding officer for each of the three (3) platoons for the division of fire and emergency services.

Hazardous materials team or **HMT** means a specially trained and equipped multi-disciplinary unit responsible for the implementation of the inspection, enforcement and emergency response provisions of this chapter.

Owner/operator means the owner of a facility as well as any person with whom rests decision-making authority over the facility.

Person means an individual, trust, firm, corporation, joint stock company, partnership, consortium, association, cooperative, joint venture, city, county, city and county, district, the state or any department or agency thereof, the United States or any department of agency thereof, or other commercial or legal entities.

Petroleum product means gasoline, oil and lubricants of any kind or in any form, including but not limited to virgin, used and mixtures of petroleum, fuel oil, sludge, oil refuse, and oil mixed with wastes other than dredged spoil.

Secondary containment means a system installed so that any volume of hazardous materials discharged from the primary system of containment will be prevented from reaching the environment beyond the system for the period of time anticipated to be necessary for the detection and recovery of the discharged hazardous materials.

Unauthorized discharge means any discharge which is made unlawful pursuant to section 16A-3.

Underground storage tank means any one (1) or combination of tanks (including underground pipes connected thereto) which is used to contain an accumulation of regulated substances, and the volume of which (including the volume of the underground pipes connected thereto) is ten (10) percent or more beneath the surface of the ground. Such term does not include any:

(1) Farm or residential tank of eleven hundred (1,100) gallons or less capacity used for storing motor fuel for noncommercial purposes;

(2) Septic tank;

(3) Pipeline facility (including gathering lines) regulated under federal law;

(4) Surface impoundment, pit, pond or lagoon;

(5) Storm water or waste water collection system;

(6) Flow-through process tank;

(7) Liquid trap or associated gathering lines directly related to oil or gas production and gathering operations; or

(8) Storage tank situated in an underground area (such as a basement, cellar, mineworking, drift, shaft, or tunnel) if the storage tank is situated upon or above the surface of the floor.

The term **underground storage tank** shall not include any pipes connected to any tank which is described in (1) through (8) above.

(Ord. No. 23-2013, § 1, 3-7-13)

Sec. 16A-2. Materials regulated.

(1) Materials regulated by this chapter shall include:

Petroleum products as defined in section 16A-1;

Hazardous materials as defined in section 16A-1.

(2) Hazardous wastes as defined under state or federal laws shall be regulated only to the extent of discharge prohibitions or reporting requirements as found in sections 16A-3 and 16A-4; except that for response purposes, the location of hazardous waste storage shall be identified.

(Ord. No. 261-85, § 1, 12-19-85)

Sec. 16A-3. Discharges.

It shall be unlawful for any person, in person or by his agent, employee or servant, to discharge any hazardous material in any reportable quantity as defined in section 16A-4 in any manner in or upon any public way or other public place or any river, canal, public water drain, sewer, storm sewer, receiving basin or any other area in the county.

(Ord. No. 261-85, § 1, 12-19-85)

Sec. 16A-4. Reporting; reportable quantities.

(1) It shall be unlawful for any owner/operator or other person in possession or control of any facility where hazardous materials are handled to fail to report to the division of fire and emergency services any unauthorized or nonexempt discharge in a quantity equal to or exceeding those quantities identified as reportable quantities under the Clean Water Act and the Comprehensive Environmental Response, Compensation and Liability Act at 40 CFR part 302 and amendments thereto.

(2) Subsection (1) of this section shall not apply to:

(a) The discharge of any hazardous material under a permit authorized by any ordinance of the urban county government.

(b) A discharge which is authorized pursuant to state or federal law.

(c) Material deposited in or conducted into the urban county government sewer system through lawful drains in accordance with the ordinances of the urban county government relating thereto.

(d) Discharges which do not cause hazardous materials to leave the premises where such discharge occurred, provided such materials are collected in secondary containment, except that any discharge on premises in a location where such materials could enter the soil or any drain, well, groundwater, surface water, storm sewer or sanitary sewer must be recorded even where such material has been contained to the satisfaction of the person discharging such material. Such record shall identify the date and time of the discharge, the hazardous material discharged, the quantity discharged, and action taken to clean up the affected area and to dispose of discharged material. This record must be kept on site and made available to the HMT upon request.

(e) Application of agricultural chemicals in the ordinary course of agricultural operations.

(f) Application of hazardous materials in the ordinary course of any treatment of property for insects, weeds or any other treatment provided such application is in the ordinary course of business and the person making the application has obtained any permit or license required by any law other than this chapter.

(g) Application or use of hazardous materials only in conjunction with residential use of property.

(h) Application or use of hazardous materials only in the manner for which such hazardous materials were intended according to manufacturer's specifications and recommendations or application of such materials according to good industry practices.

(3) Persons otherwise exempted from reporting requirements pursuant to subsections 16A-4(2)(f) and (h) herein must report spills or intentional or unintentional discharges which occur during such applications which are not within the ordinary course of business or within manufacturer's specifications and/or recommendations.

(4) It is not intended that the notice required by this section be deemed compliance with any reporting requirement of any state or federal law.

(5) A person is subject to the reporting requirements contained in this section even though such person is not subject to registration pursuant to this chapter.

(6) When a discharge occurs from a transportation accident, the first responders-division of police and/or division of fire and emergency services-shall be responsible for reporting such discharge according to the requirements of this section for other discharges.

(Ord. No. 23-2013, § 2, 3-7-13)

Sec. 16A-5. Restoration.

(1) Any Owner/operator or Person who discharges, or causes or permits the discharge of any hazardous material into the environment shall be responsible for taking cost-effective remedial action to return the environment to the extent practicable to the condition and quality which existed prior to such discharge, even if the quantity discharged is less than the reportable discharge quantity listed above. Any Owner/operator or Person who discharges or causes or permits a discharge of any hazardous material into the environment, which requires any urban county government HazMat team member, any member of the Division of Fire and Emergency Services, or any agent of the urban county government to spend public funds for the response to the release, its abatement, cleanup or removal, shall be liable to the urban county government for the urban county government's actual and necessary costs, including but not limited to the cost of urban county government personnel and equipment utilized, expended in response to the discharge.

(2) Persons not subject to registration requirements pursuant to this chapter shall remain responsible for the proper cleanup and disposal of any discharged material.

(3) In the event of a discharge of hazardous materials, the HMC or HMPL or their designee shall be authorized to:

(a) Direct the Owner/operator or Person responsible for the discharge of hazardous materials to properly restore the environment and damaged property;

(b) Authorize personnel from the division of fire and emergency services to undertake efforts to restore the environment and damaged property; or

(c) Authorize the hiring of a Clean up contractor by the division of fire and emergency services to undertake efforts to restore the environment and damaged property.

(4) Should the hiring of a Clean up contractor be authorized, it shall be the responsibility of the Clean up contractor as an agent for the responsible party, to assure that the environment is restored and damages repaired to an acceptable degree. A written report documenting the actions taken shall be submitted to the HMC of the division of fire and emergency services. The responsible party shall cooperate fully with the cleanup contractor, local, state, and federal authorities.

(Ord. No. 23-2013, § 3, 3-7-13)

Sec. 16A-6. Closure of facilities.

Upon closure or termination of handling of hazardous materials at a registered facility, the person who owns or operates said facility shall notify the urban county government in writing of such closure. In the event the facility handled extremely hazardous substances (EHS) or required Tier 2 submits, the Local Emergency Planning Committee (LEPC) shall also be notified.

Nothing contained in this section is intended to supersede any requirement of state or federal law related to procedures for closure of facilities. (Ord. No. 23-2013, § 4, 3-7-13)

Sec. 16A-7. Hazardous materials inventory.

(1) Those facilities required by the Superfund Amendments and Reauthorization Act (SARA) of 1986, Title III, and any regulations promulgated thereunder, to submit annually an emergency and hazardous chemical inventory form shall be subject to the reporting requirements of this section.

(2) Any facility that reports Tier II information to the Fayette County Local Emergency Planning Committee (FCLEPC) and the division of fire and emergency services shall be required to use the electronic reporting software specified by that agency.

(3) Any person who begins handling hazardous materials after May 18, 1986, shall complete an inventory form within thirty (30) days after first handling such materials.

(Ord. No. 23-2013, § 5, 3-7-13)

Sec. 16A-8. Spill prevention and control plan (SPC plan).

(1) A spill prevention and control plan ("SPC") shall be prepared by the owner/operator or other person in possession or control of any facility where the amount of hazardous materials handled are equal to or in excess of a reportable quantity as defined by the United States Environmental Protection Agency, and shall be kept on site at all times.

(2) All persons that have or that are required to prepare an SPC plan shall sign a certificate stating that they have read, understand and agree to implement the plan.

(3) Copies of the SPC plan shall be kept on the premises affected and shall be readily available to inspectors upon request any time during working hours and any time during emergency situations.

(4) The SPC plan shall be updated every three (3) years or when changes of operation occur at the facility or some other change occurs which may affect the adequacy of the existing SPC plan. If no changes of operation have occurred since the last SPC plan update, a written statement to that effect from the owner/operator of the facility shall be sufficient to update the SPC plan.

(5) The division of fire and emergency services, HMC, HMPL and division of water quality and other applicable local and state agencies shall have the authority to review a facility's hazardous materials management practices when such facility has a discharge and does not have an existing SPC or SPCC plan.

(6) General provisions for the SPC plan shall include:

(a) Information to identify firm and facility where materials are handled;

(b) Description of facility and site;

(c) Identification of hazardous materials storage, transfer and process areas, including a map;

(d) Techniques to prevent and control discharges;

(e) Measures to ensure against fire and explosion;

(f) Self-inspection and monitoring schedules;

(g) Contingency plan, including spill notification procedures and availability of spill control equipment;

(h) Employee training in handling and disposal of hazardous materials;

(i) Hazardous materials data sheets (HMDS) where appropriate.

(7) All SPC plans shall include an implementation schedule for prevention and containment measures which are to be undertaken. The schedule shall identify those measures which may be implemented immediately due to insubstantial cost factors. More costly measures shall be implemented as soon as practical, and all measures shall be completed and implemented within two (2) years from the date of the plan.

(Ord. No. 23-2013, §§ 6, 9, 3-7-13)

Sec. 16A-9. Hazardous materials commander.

The Fire Chief of the division of fire and emergency services, or his or her designee from within the division's Special Operations Division, shall be the Hazardous Materials Commander ("HMC") for Fayette County. The HMC must have experience in and be qualified in the area of hazardous materials management. The HMC shall be responsible for the emergency response functions of this chapter. The HMC shall be a member and the leader of the hazardous materials team and shall coordinate all activities of that team. The HMC shall be responsible for implementation of emergency response management consistent with best practices regarding mitigation of hazardous materials.

(Ord. No. 23-2013, §§ 7, 10, 3-7-13)

Sec. 16A-10. Hazardous materials team ("HMT").

(1) The HMT shall review and analyze regular delivery and shipment routes of hazardous materials transported within the county and may propose regulations, not inconsistent with this chapter or any applicable state or federal law, designating traffic routes and other specific procedures for transportation of hazardous materials.

(2) The HMT shall perform periodic inspections of every site or facility which handles hazardous materials in reportable quantities according to published guidelines to assure compliance with the provisions of this chapter. Inspections may include but are not limited to a request to review the on-site copy of a facility's SPC Plan and performance of tests, generally accepted in the industry, to determine if unsafe conditions exist. Every effort shall be made to coordinate such periodic inspections with other required local inspections by state, federal or other governmental entity, in order to minimize inconvenience and duplication.

(3) The HMT shall cooperate with federal, state and other local authorities in protecting life, property, and the environment.

(4) The HMT shall propose and promulgate rules and regulations not inconsistent with this chapter to provide for implementation of the team's duties and responsibilities.

(5) The HMT shall be responsible for monitoring the mitigation of all incidents involving hazardous materials, including emergency response and oversight of cleanup activities by a licensed cleanup contractor.

(Ord. No. 23-2013, §§ 8, 12, 3-7-13)

Sec. 16A-11. Confidentiality; trade secrets.

(1) If requested by the person submitting information pursuant to this chapter, the confidentiality of such information shall be preserved by the urban county government, consistent with the provisions of KRS 61.878(1)(b) of the Kentucky Open Records Act.

(2) Persons submitting information pursuant to this chapter shall be responsible and reasonable in requesting protection from disclosure of submitted information. The urban county government shall protect from disclosure any and all trade secrets which come into the government's possession because of compliance with this chapter, provided the government is notified in writing that submitted materials contain trade secrets. If submitted materials are identified as containing trade secrets but it appears questionable that such materials are proprietary, the HMC, in conjunction with the commissioner of law, shall request further information from the person submitting the information.

(3) If a request under the Kentucky Open Records Act is made to the urban county government for information obtained pursuant to this chapter, the urban county government shall notify the person or persons whose submitted information has been requested, but shall proceed to respond to the request as required by law.

(Ord. No. 23-2013, § 16, 3-7-13)

Sec. 16A-12. Hazardous materials emergency response management program.

The division of fire and emergency services' Hazardous Materials Team will function under the NIMS, ICS and Unified command system for coordination of efforts at the local level with those at the state and federal level in responding to issues affecting life, safety, property, environmental emergencies, or weapons of mass destruction, which result from the transportation or handling of hazardous materials within the county.

(Ord. No. 23-2013, § 17, 3-7-13)

Sec. 16A-13. Affirmative defenses.

It shall be an affirmative defense to any enforcement action, including collection of abatement and/or cleanup expenses, pursuant to this chapter, if a person can prove that a discharge of hazardous materials was caused solely by:

(a) An act of God;

(b) An act of war;

(c) Negligence on the part of the urban county government;

(d) An act or omission of a third party without regard to whether any such act or omission was or was not negligent; or

(e) Any combination of the foregoing causes.

(Ord. No. 23-2013, § 20, 3-7-13)

Sec. 16A-14. Disclaimer of liability.

The degree of protection required by this chapter is considered reasonable for regulatory purposes. The standards set forth herein are minimal standards, and this chapter does not imply that compliance will ensure that there will be no unauthorized discharge of any hazardous material. This chapter shall not create liability on the part of the urban county government, or any officer or employee thereof, for any damages that result from reliance on this chapter or any administrative decision lawfully made thereunder. All persons handling, storing, using, processing or disposing of hazardous materials within the county should be and are advised to determine to their own satisfaction the level of protection in addition to that required by this chapter necessary or desirable to ensure that there is no unauthorized discharge of hazardous materials.

(Ord. No. 23-2013, § 21, 3-7-13)

Sec. 16A-15. Enforcement; notice of violations.

(1) The Fire Chief of division of fire and emergency services, or his or her designee from within the Special Operations Division, shall have primary responsibility for enforcement of the provisions of this chapter.

(2) Any person, including private citizens, may initiate action against any person who is violating the provisions of this chapter by notifying the division of fire and emergency services' Special Operations Division.

(3) Upon notification or discovery of any violation of the provisions of this chapter, a member of the HMT shall immediately investigate the site upon which the violation is located. If a violation exists, a notice describing the violation shall be served upon the person who is responsible for the premises upon which the violation has occurred, if the identity of the responsible person is known. If appropriate, the notice shall demand abatement of the violation within twenty-four (24) hours unless the violation constitutes an immediate danger to the health and well-being of the community, in which case the notice shall demand that abatement procedures begin immediately. If the violation resulted in hazardous materials being discharged, cleanup procedures shall commence immediately following abatement and shall be completed with all deliberate speed. The notice shall also include the following where appropriate:

   (a) A statement that if the situation is not remedied within the prescribed time, the urban county government will proceed to correct the violation, if it is of the type which may be so corrected.

   (b) A statement that the person shall be liable for any costs to the urban county government incurred in correcting the violation. The cost shall be incurred by the person or entity when any division of fire and emergency services HazMat team member, any member of the division of fire and emergency services, or any agent of the urban county government spends public funds for the response to the release, its abatement, cleanup or removal and such cost shall include the urban county government's actual

and necessary costs, including but not limited to the cost of urban county government personnel and equipment utilized, expended in response to the discharge or the cost of contracting for the same. The total amount of cost to be charged to the person or entity shall be determined by the HMC or HMPL.

(c) A statement that after the urban county government has corrected the violation, the commissioner of finance will send a bill for the cost of the measures taken to correct the violation, including any administrative cost, to the person responsible; and if the bill is not paid within three (3) months, the urban county government, through its law department, shall have authority to initiate action in any court having jurisdiction over such matter, to recover the government's costs incurred in correcting the violation.

(4) In cases where the identity of a person who is responsible for premises upon which a violation has occurred is not known at the time a violation is reported, the urban county government, pursuant to this chapter, shall take reasonable steps to abate any problem and shall take reasonable steps to clean up the area affected to assure continuing safety of the public and the environment. When the identity of the responsible person is determined, a bill for the cost of measures taken to correct the violation shall be sent to the person and pursued according to the provisions of subsection (3) above.

(Ord. No. 23-2013, § 22, 3-7-13)

Sec. 16A-16. Penalties.

(1) Any person failing to comply with the inventory provisions of this chapter as specified in section 16A-7 shall be guilty of a violation and fined up to two hundred and fifty dollars ($250.00) if the violator is an individual or five hundred dollars ($500.00) if the violator is a corporation after having received notification from the urban county government of their failure to comply. Each day's failure to comply shall be deemed a separate violation.

(2) Any person failing to perform the duties required by the provisions of section 16A-8 relating to SPC plans, section 16A-5 relating to restoration, or section 16A-6 relating to closure shall be guilty of a violation and for every offense be fined not less than up to two hundred and fifty dollars ($250.00) if the violator is an individual or five hundred dollars ($500.00) if the violator is a corporation. Each day's continuance of any such failure or violation shall be a separate violation.

(3) Any person violating the provisions of section 16A-3 relating to discharges shall for every offense be sentenced to a term of imprisonment not to exceed twelve (12) months in the county detention center, or fined up to five hundred dollars ($500.00) if the violator is an individual or ten thousand dollars ($10,000.00) if the violator is a corporation, or both. Each day's continuance of any such failure or violation shall be a separate offense.

(4) Any person failing to perform the duties required by the provisions of section 16A-4 relating to the reporting of discharges shall for every offense be sentenced to a term of imprisonment of not to exceed twelve (12)

months in the county detention center, or fined in an amount not less than two hundred fifty dollars ($250.00) nor more than ten thousand dollars ($10,000.00), or both. Each day's continuance of any such failure or violation shall be a separate offense.

(5) Any person violating any of the provisions of this chapter shall become liable to the urban county government for any expense, loss or damage caused to the urban county government by reason of such violation, including but not limited to any cleanup, evacuation, administrative or other expenses, including legal expenses, incurred. The commissioner of law is hereby authorized and directed to initiate such proceedings, in the name of the urban county government, in any court having jurisdiction over such matter, as are necessary to recover costs to the urban county government caused by the violation.

(Ord. No. 23-2013, § 23, 3-7-13)

Sec. 16A-17. Preemption.

Nothing contained in this chapter is intended to conflict with existing laws at either the federal or state level. Where any area has been specifically preempted by federal regulation or law, compliance with such federal authority shall be considered compliance with the provisions of this chapter which are specifically preempted. All provisions of this chapter not specifically preempted shall remain applicable. This chapter is enacted to protect the natural environment of the county and, consequently, the health and welfare of the general public within the county and surrounding areas.

(Ord. No. 23-2013, § 25, 3-7-13)

Chapter 17

Streets and Sidewalks[1]

Article I. In General

Section 17-1. Definitions.
Section 17-1.1. Barkers prohibited.
Section 17-2. Numbering property, buildings and fire gates; display of numbers.
Section 17-2.1. Addressing.
Section 17-3. Renumbering.
Section 17-4. Maintenance of number display; defacement; noncompliance, penalties.
Section 17-4.1. Notice of violation; fines.
Section 17-4.2. Appealing fines or penalties.
Section 17-4.3. Reserved.
Sections 17-4.4—17-4.7. Reserved.
Section 17-4.8. Lien(s).
Section 17-5. Congregating so as to obstruct sidewalk.
Section 17-6. Encroachment on alley, removal.
Section 17-7. Excavations—Subject to regulations.
Section 17-8. Same—Permit required, issuance, fees; repair.
Section 17-9. Same—Barricades, lights, etc.; liability for damages.
Section 17-10. Same—Restoration of surface.
Section 17-11. Same—Fencing.
Section 17-12. Same—Provisions of franchise or contracts.
Section 17-13. Same—Penalties.
Section 17-14. Gasoline pumps, etc., on sidewalks.
Section 17-15. Injuring sidewalk or curb.
Section 17-16. Reserved.
Section 17-17. Newspaper stands—Permit required.
Section 17-18. Same—General requirements.
Sections 17-19—17-20. Reserved.
Section 17-21. Obstructing thoroughfares with material—When permitted.
Section 17-22. Same—In connection with construction.
Section 17-23. Same—Loading or unloading.

1. **Charter reference(s)**—Authority to improve and regulate the use of streets, § 3.02(7).
Cross reference(s)—Roadways review committee, § 2-290 et seq.; horse-drawn vehicles, § 4-24 et seq.; street trees, ch. 17B; snow emergencies, ch. 18B.
State law reference(s)—Highways and roads, KRS ch. 177 et seq.

Section 17-24. Same—Penalties.
Section 17-25. Openings in sidewalks—Regulations.
Section 17-26. Same—Penalties.
Section 17-27. Playing ball in street.
Section 17-28. Protection from falling material.
Section 17-29. Definitions.
Section 17-29.1. Permit; required.
Section 17-29.2. Permit application.
Section 17-29.3. Prohibited conduct.
Section 17-29.4. Form and conditions of permits.
Section 17-29.45. Promulgation of regulations.
Section 17-29.5. Denial, revocation or suspension of permit; removal and storage fees; emergencies.
Sections 17-29.6. Street entertainers—Definitions
Sections 17-29.7. Same—General regulations
Sections 17-29.8. Same—Prohibitions
Sections 17-29.9. Same—Entertainers subject to §§ 17-29.6—17-29.10
Sections 17-29.10. Same—Violation; penalty
Section 17-30. Signs on poles and sidewalks; penalty.
Section 17-31. Snow, ice, grass and weeds; removal; penalty.
Section 17-32. Sweepings or vegetable matter on streets; burning leaves, etc.
Section 17-33. Throwing glass, nails, cans or wire into streets.
Section 17-34. Reserved.
Section 17-35. Utility poles and wires—Electric; guard wires; pole sizes; electricity cut-offs.
Section 17-36. Same—Poles to have "T" for fire alarm wires.
Section 17-37. Same—Permit to erect poles.
Section 17-38. Water draining on sidewalks.
Sections 17-38.1. Telephone booths on streets—Permits, construction, revocation.
Sections 17-38.2. Telephone booths on streets—Permits, construction, revocation.
Sections 17-38.3. Telephone booths on streets—Permits, construction, revocation.
Section 17-38.4. Overhanging signs on Vine Street.

Article II. Street Construction and Improvement

Section 17-39. Definitions.
Section 17-40. Application of article.
Section 17-41. Rights of urban county government preserved.
Section 17-42. Assessment of cost—Payment.
Section 17-43. Same—Tax bills.

Section 17-44. Bids—Advertisement for.
Section 17-45. Same—Form, opening.
Section 17-46. Same—Acceptance; contract and bond.
Section 17-47. Plans and specifications as approved.
Section 17-48. Grade of street as set.
Section 17-49. Reserved.
Section 17-50. Prosecution of work.
Section 17-51. Use not deemed acceptance.
Section 17-52. Travel not to be impeded.
Section 17-53. Work on gas, water or sewer lines.
Section 17-54. Quality and type of materials.
Section 17-55. Measurements.
Section 17-56. Reserved.
Section 17-57. Precautions.
Section 17-58. Extra work.
Section 17-59. Excavations.
Section 17-60. Filling subgrade.
Section 17-61. Protection of subgrade.
Section 17-62. Concrete foundation.
Sections 17-63—17-68. Reserved.
Section 17-69. Concrete paving—General provisions.
Section 17-70. Same—Subgrade.
Section 17-71. Same—Foundation.
Section 17-72. Same—Thickness.
Section 17-73. Same—Sand.
Section 17-74. Same—Coarse aggregate.
Section 17-75. Same—Cement.
Section 17-76. Same—Water.
Section 17-77. Same—Measuring materials.
Section 17-78. Same—Reinforcing.
Section 17-79. Same—Mixing.
Section 17-80. Same—Laying.
Section 17-81. Same—Expansion joints.
Section 17-82. Same—Protection and curing of concrete.
Section 17-83. Sheet asphalt paving—General provisions.
Section 17-84. Same—Subgrade.
Section 17-85. Same—Foundation.
Section 17-86. Reserved.
Section 17-87. Same—Thickness.

Section 17-88. Same—Binder course.
Section 17-89. Same—Asphalt surface.
Section 17-90. Same—Asphalt cement, composition.
Section 17-91. Same—Properties.
Section 17-92. Same—Oil asphalt.
Section 17-93. Same—Combining, laying and rolling binder.
Section 17-94. Same—Preparation, laying and rolling of surface.
Section 17-95. Asphalt macadam—General provisions.
Section 17-96. Same—Subgrade.
Section 17-97. Same—Foundation.
Section 17-98. Same—Surface composition.
Section 17-99. Same—Combining material.
Section 17-100. Same—Laying and wearing surface.
Section 17-101. Same—Surface treatment.
Sections 17-102—17-124. Reserved.

Article III. Sidewalk, Curb and Gutter Construction and Improvement

Section 17-125. Application of article.
Section 17-126. Grading.
Section 17-127. Protection.
Section 17-128. Grading.
Section 17-129. Monolithic concrete curb—Dimensions.
Section 17-130. Same—Mixing, laying, etc.
Section 17-131. Combined monolithic concrete curb and gutter.
Section 17-132. Grading.
Section 17-133. Materials and mixing.
Section 17-134. One-course pavement.
Section 17-135. Cement gutters.
Section 17-136. Grade—Fixing.
Section 17-137. Same—Changing, penalty.
Section 17-138. Cost, how paid.
Section 17-139. Plans and profiles.
Section 17-140. Owner of material.
Section 17-141. Contractor to clean up.
Section 17-142. Inspection; when made.
Section 17-143. Reserved.
Section 17-144. Effect of noncompliance by officials.
Section 17-145. Grass plots permitted.
Section 17-146. Reconstruction may be ordered.

Section 17-146.1. Ramps for persons using wheelchairs.

Article IV. Sidewalk Repair

Section 17-147. Required, who is responsible.
Section 17-148. Notice; appeal.
Section 17-149. Time for doing work.
Section 17-150. Retaining walls for earth embankments.
Section 17-151. Reconstruction may be ordered.
Section 17-152. Penalty, lien.

Article V. Driveway Construction

Section 17-153. Definitions.
Section 17-154. Permit.
Section 17-155. Residential, specifications.
Section 17-156. Nonresidential, specifications.
Section 17-157. Use.
Section 17-158. Abandonment.
Section 17-159. Utilities.
Section 17-160. Barricades, etc.
Section 17-161. Penalties.

Article VI. Sidewalk Replacement Financial Assistance

Section 17-162. Definitions.
Section 17-163. Purpose.
Section 17-164. Sidewalk replacement grant program.
Section 17-165. Administration.

Article I

In General

Sec. 17-1. Definitions.

The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section:

Commissioner of public works: The person appointed to direct the department of public works of the urban county government or his authorized deputy, agent or representative.

Contractor: The person having the contract for the work in question.

Engineering manuals: That set of seven (7) documents used to provide the standards for the design, review, construction and inspection of infrastructure in Lexington-Fayette County. These are also known as the division of engineering manuals or as the manuals. The division of engineering manuals consist of the *Procedures Manual for Infrastructure Development* (also known as the procedures manual), the *Construction Inspection Manual* (also known as the inspection manual), *Geotechnical Manual*, the *Roadway Manual*, *Structures Manual*, *Stormwater Manual*, and the *Sanitary Sewer and Pumping Station Manual* (also known as the sewer manual). These manuals, including the definitions therein, are hereby adopted and incorporated into this Code by reference. From time to time, the urban county government may revise, modify, or amend the manuals in conformance with the procedures established in the procedures manual. When any manual is cited by this Code, the current edition, latest revision shall be referenced.

Manual of Uniform Traffic Control Devices for Traffic Control in Work Zones: The manual published and promulgated by the Federal Highway Administration to provide consistent and standard traffic control signage in communities throughout the United States. When this manual is cited, the current edition, latest revision shall be referenced.

Standard drawings: The current edition, latest revision of the division of engineering standard drawings which are promulgated by the division of engineering to provide design standards for public (or when appropriate, private) infrastructure.

Urban county engineer: The director of the division of engineering or his duly appointed assistants.

(Ord. No. 174-2001, § 15, 7-5-01)

Sec. 17-1.1. Barkers prohibited.

It shall be unlawful for any property owner, merchant, storekeeper or person whatsoever to stand, or cause to permit to stand, on the sidewalk or street in front of, or in the entrance or hallway of, any store or building in the

urban county for the purpose of calling the attention of passersby to goods, wares or merchandise displayed or on sale within it, or any store or building; or attempt by word of mouth or gesture, or by the use of mechanical or sound-making devices, to entice passersby into such store or building, or any other store or building.

Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and, upon conviction, shall be fined not less than five dollars ($5.00) nor more than fifty dollars ($50.00). Each day's continuance of a violation of the provisions of this section shall constitute a separate offense.

(Ord. No. 174-2001, § 16, 7-5-01)

Sec. 17-2. Numbering property, buildings and fire gates; display of numbers.

(a) For purposes of sections 17-2 through 17-4, the following definitions shall apply:

Address: A unique identification of a location which may consist of a street number, street direction, street name, street type, and unit, at a minimum, a number and a name is required.

Property number: The numeric part of an address.

Site number: The street number component, or any part thereof, of an address. This number may or may not be the same as the property number.

Building number: The number, or any part thereof, assigned to a principal building or structure. Where there is more than one (1) principal building or structure on a property, each principal building or structure will be assigned either a building number or other site number.

Principal building or structure: A structure such as an office building, apartment building, retail structure or other similar structure wherein the primary or major activity on the property takes place. The term as used in this section does not include accessory or incidental structures such as garages, storage sheds or similar structures. The Division of Enhanced 911, Office of Addressing shall determine whether, for purposes of this section only, a structure constitutes a principal building or structure.

Private access easement: The right of a land owner to ingress and egress to his property over any adjoining property of another for the purpose of accessing the public right-of-way.

(b) All properties within the urban county shall be assigned an address by the Division of Enhanced 911, Office of Addressing for the purposes of taxation, public safety and provision of services.

(c) All principal buildings and leasable/salable portions of such buildings which have separate and direct outside entrances shall have the site number and assigned unit number permanently and prominently displayed at the expense of the owners thereof.

(d) **Minimum criteria.** Unless otherwise provided herein, any site number that is required to be posted pursuant to sections 17-2 through 17-4 shall comply with the following minimum criteria or standards of visibility:

(1) It shall be made up of numbers, contrasting in color with the background on which they are affixed, which clearly identify the correct building or structure and which are clearly visible and identifiable at all times during daylight hours to persons in vehicles traveling in both directions of all streets or named easements from which the structure is accessed;

(2) Unless determined otherwise by the Division of Enhanced 911, Office of Addressing, it shall be a minimum of four (4) inches in height, except for industrial or commercial buildings or structures from which such numbers are not readily visible from the street or named easement, which shall be a minimum of ten (10) inches in height, with a minimum width of one and three-quarter (1.75) inches, and which shall be affixed above or beside the main entrance of such industrial or commercial building or structure whenever possible;

(3) It shall be affixed to the structure and at least three (3) feet above ground level.

(4) It shall be affixed to the structure or displayed not more than four (4) feet from the street or named easement upon which the structure is located and addressed (i.e., on both sides of a single mailbox); however, postings will only be satisfactory if they clearly indicate the correct structure.

Notwithstanding the above, where more than one (1) principal building or structure is located upon a property and where the site number is clearly displayed at the street entrance to the property, each principal building or structure shall not be required to display the site number so long as each building or structure is clearly identified by a building number.

(e) The Division of Enhanced 911, Office of Addressing shall be the only department of the urban county government authorized to assign or cause to be assigned, delete, or change a property number, site number, unit number, and/or a building number where appropriate so as to ensure no duplication of numbers or street names. The Division of Enhanced 911, Office of Addressing shall maintain a street index file containing the official list of valid street names. No other government entity, agency, department or division is authorized to assign site, unit, property or building numbers or street names. All such actions are to be reviewed and approved by the addressing committee, which is comprised of members of the divisions of enhanced 911 and its addressing office, fire and emergency services, police, planning, and GIS; the Fayette County Property Valuation Administrator's Office, and the United States Post Office, as further provided in The Addressing Guide for Lexington-Fayette Urban County Government, which is attached hereto and incorporated herein by reference as additional guidance in numbering and addressing properties, and filed with the urban county council clerk as a part of the public records of this government. In addition, the commissioner of public safety is hereby empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter or thing pertaining to the administration and enforcement of the provisions of sections 17-2 through 17-4, and which are not otherwise inconsistent with this section.

(f) The Division of Enhanced 911, Office of Addressing shall be the only department of the urban county government authorized to assign or cause to be assigned, delete, or change a property number, site number, unit number, and/or a building number where appropriate. The Division of Enhanced 911, Office of Address-

ing shall maintain a street index file containing the official list of valid street names. No other government entity, agency, department or division, other than Division of Enhanced 911, Office of Addressing, is authorized to assign site, unit, property or building numbers or street names. All such actions are to be reviewed and approved by the addressing committee, which is comprised of members of the divisions of enhanced 911 and its addressing office, fire and emergency services, police, planning, and GIS; the Fayette County Property Valuation Administrator's Office, and the United States Post Office, as further provided in The Addressing Guide for Lexington-Fayette Urban County Government, which is attached hereto and incorporated herein by reference as additional guidance in numbering and addressing properties, and filed with the urban county council clerk as a part of the public records of this government. In addition, the commissioner of public safety is hereby empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter or thing pertaining to the administration and enforcement of the provisions of sections 17-2 through 17-4, and which are not otherwise inconsistent with this section.

(g) No private access easement shall be named without the prior approval of the Division of Enhanced 911, Office of Addressing. All private access easements that are named with the approval of the Division of Enhanced 911, Office of Addressing shall have a regulation street sign placed at each intersection of the named easement and any other named easement or street. The regulation street sign shall be purchased and erected at the expense of the owner of the private access easement unless the street sign is located at the intersection of a private access easement and the public right-of-way.

(Ord. No. 231-89, § 1, 12-7-89; Ord. No. 3-96, § 1, 1-11-96; Ord. No. 329-2002, § 1, 12-5-02; Ord. No. 374-2006, §§ 1, 2, 12-12-06; Ord. No. 8-2010, § 1, 1-14-10; Ord. No. 92-2017, § 1, 5-25-17)

Cross reference(s)—Similar provisions, § 21-1(PM 302.2).

Sec. 17-2.1. Addressing.

(a) **Street number.** All addresses must contain a street number. No street number may contain more than four (4) digits or less than two (2) digits. Only whole numbers may be used in addresses. There shall be no non-sequencing of street numbers contained in addresses on either side of street. Street number ranges shall be based on the Lyman Uniform Street Numbering System. The properties on Main Street, its extensions, and all thoroughfares parallel therewith shall be numbered east and west from Limestone and the properties on Limestone, its extensions, and all thoroughfares parallel therewith shall be numbered north and south from Main Street and shall be so numbered that the even numbers shall be on the south and east sides of the street and the uneven numbers shall be on the north and west sides of the street.

(b) **Street direction.** The directional terms of "north," "south," "east" and "west" shall only be used for addresses along streets crossing Main Street or Limestone as they extend to the Fayette County line. Such directional terms shall only be used as a prefix to the name of the street.

(c) **Street name.** All addresses must contain a street name. Such names may contain a maximum of twenty (20) letters, however, such names shall not contain fewer than two (2) letters. The following are prohibited in street names:

(1) Punctuation;

(2) Numerical digits or numerical names;

(3) Leading single letter phrases or articles;

(4) Initiating a street name with a directional term;

(5) Confusing, obscene or irregularly spelled words;

(6) Duplicate or closely approximate names of existing streets;

(7) Abbreviations, except for the following which may be abbreviated: (a) Fort shall be abbreviated as "FT"; (b) Mount shall be abbreviated as "MT"; and (c) Saint shall be abbreviated as "ST"; and

(8) Use of the words "service", "street", "drive", "avenue", or "court."

(d) **Street type.** An address may contain the following street type, abbreviated as stated:

Alley	ALY	Pass	PASS
Avenue	AVE	Path	PATH
Bayou	BYU	Pike	PIKE
Bluff	BLF	Place	PL
Bottom	BTM	Plaza	PLZ
Boulevard	BLVD	Point	PT
Canyon	CYN	Rest	RST
Causeway	CSWY	Road	RD
Circle	CIR	Row	ROW
Court	CT	Service Road	SRD
Cove	CV	Spur	SPUR
Drive	DR	Square	SQ
Flat	FLT	Street	ST
Fork	FRK	Terrace	TER
Gateway	GTWY	Trace	TRCE
Lane	LN	Trail	TRL

Loop	LOOP	Viaduct	VIA
Oval	OVAL	Walk	WALK
Park	PARK	Way	WAY
Parkway	PKWY		

(1) The term "SRD" is reserved for service road designation and shall only be assigned to streets by the urban county government.

(2) An address shall not contain a duplication of the type of street within its name (e.g., James Street Street). Street names shall never include a "type" (e.g. Avenue of Winners Street).

(3) Streets having the same name, yet designated as different types of streets, are acceptable only when the streets are contiguous and have unique number sequences.

(4) Structures must have an entrance easement to the street on which their address is assigned.

(5) Name and number sequence continuation across intersecting roadways shall also result in continuation of the type of street.

(6) Incomplete yet separate streets shall maintain duplicate names until it is determined that their connection is not applicable. If no connections have been proposed within five (5) years, then the addressing committee will reassess the disconnected streets. Once the roadways are assessed as being unable to connect to on another, the addresses shall be changed to assign unique addresses for all affected segments.

(e) **Unit.** Structures with multiple units shall have each major doorway labeled with a range of numbers or other approved designations when said doorways lead to groups of leasable/salable portions of a building. Unit designations shall be required for addresses of multi-divided structures. Such designations shall be used to distinguish individual suites, units, rooms, or apartments within the same building or structure. No more than five (5) characters may be used in such unit designations. Such designations shall contain only letters or numbers. If abbreviations are used, they must follow the United States Postal Service's Standards for Secondary Address Unit Designators.

(Ord. No. 3-96, § 2, 1-11-96; Ord. No. 73-96, § 1, 5-16-96; Ord. No. 374-2006, § 3, 12-12-06; Ord. No. 8-2010, §§ 2—5, 1-14-10; Ord. No 9.2-2017, § 2, 5-25-17)

Sec. 17-3. Renumbering.

(a) Whenever, in the opinion of the Addressing Committee, it shall become necessary or advisable to readdress any or all properties and/or sites on a street, the Division of Enhanced 911, Office of Addressing shall make a list of all properties and/or sites on such street and designate the address for all such properties or sites, and

thereupon notify the owners, and occupants, if the owner be a nonresident thereof, to have the designated number properly displayed on such property or site. Once identified, all properties that are to be readdressed shall be presented to and approved by the urban county council through resolutions.

(b) Any changes, updates or modifications to a property address will require the submittal of a new, updated or amended plat or such other documentation as is required by the department of public safety or the Fayette County Clerk to give notice of such change, update or modification.

(c) Any property owner requesting a change or modification to a property or site address shall be responsible for the payment of all costs incurred as a result of the change or modification. All such requests shall be submitted in writing to the addressing office of the division of enhanced 911, and shall be reviewable and subject to a determination by the address committee, which determination may be appealed to the board established in section 12-6 of the Lexington-Fayette Urban County Code of Ordinances.

(Ord. No. 231-89, § 2, 12-7-89; Ord. No. 3-96, § 3, 1-11-96; Ord. No. 73-96, § 2, 5-16-96; Ord. No. 329-2002, § 2, 12-5-02; Ord. No. 8-2010, § 6, 1-14-10; Ord. No. 92-2017, § 3, 5-25-17; Ord. No.94-2019, § 1, 11-14-19)

Sec. 17-4. Maintenance of number display; defacement; noncompliance, penalties.

(a) The Division of Enhanced 911, Office of Addressing is authorized to require the owner of any business or residential structure within the urban county from which the address, or any part thereof, has been removed or damaged to cause the same to be replaced at the expense of the owners thereof. The Division of Enhanced 911, Office of Addressing shall also have the power to require the owner of any business or residential structure within the urban county to affix an address and/or building, site and/or property numbers, or any part thereof, as required in sections 17-2 through 17-4. The commissioner of public safety and citation officers authorized by ordinance may issue notices of violations and citations to enforce sections 17-2 through 17-4 and subsection 6-8(k) of the Land Subdivision Regulations and such citations may be enforced as civil offenses pursuant to the procedure set forth in this section and section 17-4.1.

(b) **Violations.** The following shall constitute violations:

(1) The failure of any owner of a business or residential structure to affix an address and/or building, site and/or property numbers, or any part thereof, upon a structure or other device, within ten (10) business days of notification by the Division of Enhanced 911, Office of Addressing;

(2) The failure of any owner of a private access easement to erect regulation street signs in accordance with this section within thirty (30) days from the date the Division of Enhanced 911, Office of Addressing approves said request;

(3) The maintenance, by any person, of an address and/or a building, site or property number, or any part thereof, in such a way that it is not clearly visible and identifiable at all times during daylight hours, including, but not limited to, the removal of anything that obstructs such visibility;

(4) Defacing, moving, removing, or causing to be moved or removed any address and/or building, site or property number, or any part thereof, affixed upon a structure or other device, or any part thereof, placed by lawful authority;

(5) Naming a private access easement without the prior approval of the Division of Enhanced 911, Office of Addressing; or

(6) Placing or causing to be placed any sign bearing a name not approved by the Division of Enhanced 911, Office of Addressing upon any private access easement.

(7) Once the appropriate building permit(s) is issued, the owner of the property is required to post the assigned numbers for the site on a temporary sign that is conspicuously posted and visible, until such time as the permanent numbers can be displayed in accordance with the requirements of this section, which is to be done prior to any final inspection for occupancy.

(c) **Criminal penalty.** Every person failing to perform the duties required of him by or to comply with the provisions of sections 17-2 through 17-4, or subsection 6-8(k) of the Land Subdivision Regulations, shall for every offense be fined not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00), and each day's continuance of any such violation shall be a separate offense.

(d) **Alternative civil enforcement.** Except as otherwise specified herein, the provisions of chapter 2B of the Code of Ordinances shall apply to all civil enforcement actions. As an alternative remedy to the criminal penalties contained in this section, any person who violates any provision of sections 17-2 through 17-4, or subsection 6-8(k) of the Land Subdivision Regulations, may be assessed civil fines of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00), pursuant to the civil fine guidelines in section 17-4.1.

(e) Nothing contained in sections 17-2 through 17-4.8 of the Code shall prohibit the urban county government from taking any action permitted by law to remedy a violation of its ordinances when there is reason to believe that the existence of the violation presents a serious threat to the public health, safety and welfare, or if in the absence of immediate action, the effects of the violation will be irreparable or irreversible.

(Ord. No. 231-89, § 3, 12-7-89; Ord. No. 3-96, § 4, 1-11-96; Ord. No. 329-2002, § 3, 12-5-02; Ord. No. 374-2006, § 4, 12-12-06; Ord. No. 8-2010, § 7, 1-14-10; Ord. No. 221-2016, § 21, 12-6-16; Ord. No.92-2017, § 4, 5-25-17)

Sec. 17-4.1. Notice of violation; fines.

(a) **Notice of violation.** Prior to issuing the initial civil citation for any violation, the director, enhanced 911 or his representative, who shall be referred to hereinafter as the "code enforcement officer", may first issue a written notice of violation. The notice of violation shall provide the following:

(1) The date and time of issuance;

(2) The name and address of the person to whom the notice of violation is issued;

(3) The date and time the offense was committed;

(4) The facts constituting the offense;

(5) The section of the Code of Ordinances or zoning ordinance violated;

(6) The name of the code enforcement officer issuing the notice of violation;

(7) The period of time within which the violation must be corrected in order to avoid the issuance of a citation; and

(8) A statement to the effect that the failure to abate or correct the violation may result in the issuance of a citation and civil fine in the amounts set forth in this section.

(b) The provisions of chapter 2B of the Code shall apply to the issuance of all civil citations and the administrative hearing process.

(c) Notices of violation shall be served upon the person in violation, which in most instances shall be the owner of the property where the violation(s) exists. The following methods of service are deemed to be sufficient: any method of personal service recognized under Kentucky law and/or the Kentucky Rules of Civil Procedures; mailing the notice via regular U.S. mail to the last known address of that person as it appears on the current tax assessment roll; delivery of the notice by certified mail, return receipt requested; or in the event that the address of the person in violation cannot readily be ascertained from the tax rolls in the exercise of reasonable diligence, publication in a newspaper of general circulation for two (2) consecutive days upon the code enforcement officer making an affidavit to that effect. If notice is made by publication, a copy of such notice shall also be posted in a conspicuous place on the premises affected by the notice. All costs incurred in serving a person are recoverable. Any person may designate, in writing on a form provided by and filed with the division of enhanced 911, the name and address to where any notice or citations can be provided, and service to said name and address shall be sufficient. However, such designation does not shift or change the responsibility for compliance with the provisions of sections 17-2 to 17-4 to the designee, instead of the designating person. All citations shall be served in the manner specified in section 2B-6 of the Code.

(d) Civil fines assessed for violations of sections 17-2 through 17-4 or subsection 6-8(k) of the Land Subdivision Regulations of the Zoning Ordinance shall be based on the number of citations issued within a twelve-month period as follows:

(1) The civil fine imposed upon the issuance of the first citation within any twelve-month period shall be a maximum of one hundred dollars ($100.00);

(2) The civil fine imposed upon the issuance of the second citation within any twelve-month period shall be a maximum of two hundred dollars ($200.00);

(3) The civil fine imposed upon the issuance of the third citation within any twelve-month period shall be a maximum of three hundred dollars ($300.00);

(4) The civil fine imposed upon issuance of the fourth or more citation of the same nature within any twelve-month period shall be a maximum of five hundred dollars ($500.00); and

(5) All fines may also include all charges and fees incurred by the government in connection with enforcement, including but not limited to an administrative fee of seventy-five dollars ($75.00) and the costs of service, publication, and recording.

(Ord. No. 374-2006, § 5, 12-12-06; Ord. No. 77-2011, § 22, 6-23-11; Ord. No.221-2016, § 22, 12-6-16)

Sec. 17-4.2. Appealing fines or penalties.

Any fine or penalty issued under sections 17-2 through 17-4 of the Lexington-Fayette Urban County Code of Ordinances may be appealed to the administrative hearing board established in section 12-6 of the Code in accordance with the process and procedures established in chapter 2B of the Code.

(Ord. No. 94-2019, § 2, 11-14-19)

Editor's note(s)—Ord. No. 94-2019, § 2, adopted November 14, 2019, in effect, repealed § 17-4.2 and enacted a new § 17-4.2 as set out herein. Former § 17-4.2 pertained to address enforcement administrative hearing board and derived from Ord. No. 374-2006, § 6, adopted December 12, 2006; Ord. No. 77-2011, § 23, adopted June 23, 2011; and Ord. No. 221-2016, § 23, adopted December 6, 2016.

Sec. 17-4.3. Reserved.

Editor's note(s)—Ord. No. 94-2019, § 3, adopted November 14, 2019, repealed § 17-4.3. Former § 17-4.3 pertained to meetings and derived from Ord. No. 374-2006, § 8, adopted December 12, 2006; Ord. No. 77-2011, § 25, adopted June 23, 2011; and Ord. No. 221-2016, § 24, adopted December 6, 2016.

Secs. 17-4.4—17-4.7. Reserved.

Editor's note(s)—Ord. No. 77-2011, § 26, adopted June 23, 2011, deleted §§ 17-4.5—17-4.7, which pertained to right to appeal, notice of hearing; hearing; and appeal, respectively, and derived from Ord. No. 374-2006, §§ 9—11, adopted Dec. 12, 2006; and Ord. No. 8-2010, § 9, adopted Jan. 14, 2010.

Sec. 17-4.8. Lien(s).

Section 2B-9 of the Code shall apply to all liens recorded for violations of sections 17-2 through 17-4 of the Code or subsection 6-8(k) of the Land Subdivision Regulations of the Zoning Ordinance.

(Ord. No. 374-2006, § 12, 12-12-06; Ord. No.221-2016, § 25, 12-6-16)

Sec. 17-5. Congregating so as to obstruct sidewalk.

If two (2) or more persons congregate or stop upon any sidewalk in such a manner as to obstruct or partially obstruct the free passage of same, and refuse to disperse or move on when directed by a member of the police force, they shall be subject to a fine of not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) or imprisonment for not more than thirty (30) days, or both, upon conviction.

(Ord. No. 244-87, § 1, 10-15-87)

Sec. 17-6. Encroachment on alley, removal.

The owners and controllers of all buildings, fencing or improvements of any kind encroaching the public alleys of the urban county, and of all obstructions of any kind or description on such alleys and of all obstructions overhanging or projecting over the alleys, shall remove the same at once. Should the owner or controllers of such obstructions or encroachments fail or refuse to remove the same at once, the urban county engineer shall remove the same.

The owners or controllers of any obstruction or encroachment required to be removed by the provisions of this section shall be subject to a fine of five dollars ($5.00) for each day any such obstruction or encroachment is permitted to remain.

Sec. 17-7. Excavations—Subject to regulations.

It shall be unlawful for any person to dig into, disturb or excavate any portion of any public street, alley, sidewalk or other public place within the urban county except in accordance with the provisions of sections 17-8 through 17-13, 17-25 and all applicable portions of chapter 17C.

(Ord. No. 134-2005, § 10, 6-9-05)

Sec. 17-8. Same—Permit required, issuance, fees; repair.

(a) Any person desiring permission to dig into, disturb or excavate any public street, alley, sidewalk or other public place of the urban county, and having reasonable or sufficient cause for so doing, shall make application for such permission to the urban county engineer through the government website or on an appropriate printed form to be prepared and furnished by him for that purpose, showing the place of the proposed excavation, the purpose thereof and the time when it is expected to be done.

(b) If, in the opinion of the urban county engineer or his representative the applicant has reasonable and sufficient cause for making such excavation, he will issue a permit therefore in which he will specify the bonding rates and charges to be made for each type of cut: street cut per square yard; sidewalk and apron cut per square yard; and curb and gutter cut per linear foot. Applicable rates will be provided by the division of engineering upon request. The bonding of street cuts shall be consistent with section 17C-23. The government shall be in receipt of any required bond prior to the issuance of any associated permit. Bonds may take the form of either cash or surety. Registrants may place a comprehensive standing bond in an amount deter-

mined to be sufficient by the urban county engineer or his representative in lieu of posting bonds on a job by job basis. The applicant, in order to recover the full face value of any bond posted, shall restore the excavation to meet the specifications issued by the urban county engineer or his representative.

(c) The urban county engineer shall cause a sufficient number of appropriate applications and permit blanks to be printed, which blanks shall set out in substance the requirements of sections 17-7 through 17-12, 17-25 and all applicable portions of chapter 17C.

(Ord. No. 61-71, § 1, 4-15-71; Ord. No. 198-95, § 1, 9-7-95; Ord. No. 134-2005, § 11, 6-9-05)

Sec. 17-9. Same—Barricades, lights, etc.; liability for damages.

(a) It shall be the duty of any person excavating any street or other public place in the urban county to put sufficient barricades around the work during the day and night in conformance with the current edition of the Manual on Uniform Traffic Control Devices for Traffic Control in Work Zones.

(b) Such person shall be liable for damages which may result to any person or property by reason of such excavation and nothing herein shall be construed to make the urban county government liable for any such damage or to impose upon the urban county government the duty of guarding and protecting persons and property from injury by reason of such excavation.

(Ord. No. 174-2001, § 17, 7-5-01; Ord. No. 134-2005, § 12, 6-9-05)

Sec. 17-10. Same—Restoration of surface.

Upon completion of the work for which the excavation was required, it shall be the duty of the person having performed the excavation to refill the trench and to restore the surface consistent with section 17-15 and in accordance with details and specifications provided in the standard drawings. All work shall meet the approval of the urban county engineer or his representative. Upon completion, non-registrants shall notify the division of engineering for final inspection and refund of deposits when applicable.

(Ord. No. 198-95, § 2, 9-7-95; Ord. No. 174-2001, § 18, 7-5-01; Ord. No. 134-2005, § 13, 6-9-05)

Sec. 17-11. Same—Fencing.

Whoever shall dig, or cause to be dug, an excavation in or adjoining any street, sidewalk, alley or any other location within the right-of-way as defined in section 17C-3 shall at all times other than periods of active construction cause the same to be fenced with a fence at least three (3) feet high of strong construction and shall utilize lighted barricades with flashing beacons for nighttime warning, or cause the same to be made fit and secure for its intended purpose of accommodating pedestrian or vehicular traffic through temporary measures as may be approved by the director or his designate.

(Ord. No. 174-2001, § 19, 7-5-01; Ord. No. 134-2005, § 14, 6-9-05)

Sec. 17-12. Same—Provisions of franchise or contracts.

The holder of any public service franchise in the urban county or any person who is bound by contract with the urban county government under the terms of which franchise or contract such person is bound to protect and save harmless or to indemnify the urban county government from claims or causes of action arising out of injuries or damage resulting from or occurring in or around excavations or other construction done by such person shall be bound by the provisions of such franchise or contract when making any excavation regulated by this article.

Cross reference(s)—Injury to public property, § 14-27.

Sec. 17-13. Same—Penalties.

Any person who shall dig into, disturb or excavate any public street, sidewalk or other public place of the urban county without a permit to do so as provided in sections 17-8, 17C-21 and 17C-22; or who shall fail to provide adequate protective measures for any such excavation as provided in section 17-9, or who shall violate any of the other provisions of sections 17-7 through 17-12 shall be fined not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) for each offense; however, the penalty for violation of section 17-11 shall be a fine of one hundred dollars ($100.00) for each night an excavation shall remain unprotected. Fines for failure to obtain a permit as required in sections 17-8, 17C-21 and 17C-22 shall be assessed at a rate twice the standard cost for the applicable permit.

(Ord. No. 174-2001, § 20, 7-5-01; Ord. No. 134-2005, § 15, 6-9-05)

Sec. 17-14. Gasoline pumps, etc., on sidewalks.

Gasoline filling stations, gasoline pumps and other automotive services which are suffered or permitted to be operated on the sidewalks or at the curb are hereby declared a nuisance; and each of such filling stations, gasoline pumps and other automotive service shall be removed upon the change of ownership thereof. No gasoline tank or receptacle under the sidewalk used for commercial sales of gasoline or other automotive service shall be repaired or replaced, and no existing pump on a sidewalk or curb shall be replaced.

Any person violating this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00), and each day's continuance shall be a separate offense.

Cross reference(s)—Fire prevention, § 9-10.

Sec. 17-15. Injuring sidewalk or curb.

(a) It shall be unlawful for any person to dig, break, displace or injure in any manner any pavement, curbing, sidewalk or any other portion of the right-of-way. Whoever shall dig, displace or injure any pavement, sidewalk, curb or any other portion of the right-of-way shall replace the same according to specifications established in the engineering manuals and the standard drawings within twenty-one (21) days after the completion of the work unless such time should be extended by the urban county engineer or his representative.

(b) Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor and shall be fined not less than one hundred dollars ($100.00). Each day's continuance of a violation shall be a separate offense.

(Ord. No. 198-95, § 3, 9-7-95; Ord. No. 174-2001, § 21, 7-5-01; Ord. No. 134-2005, § 16, 6-9-05)

Cross reference(s)—Injury to public property, § 14-27.

Sec. 17-16. Reserved.

Editor's note(s)—Ord. No. 174-2001, § 22, adopted July 5, 2001, repealed former § 17-16, which pertained to dirt or rubbish in manholes, and derived unamended from this Code as republished in 1999.

Sec. 17-17. Newspaper stands—Permit required.

(a) It shall be unlawful for any person to erect, locate, construct or maintain any newspaper stand on any street, alley or other public place without obtaining a permit therefor from the police chief, as hereinafter provided. Such permit shall state thereon the name and address of the permittee and the location for which such permit is granted. It shall provide that the permittee therein named shall indemnify and save harmless the urban county government against all liabilities, judgments, costs, damages and expenses which may in any way come against or accrue against or be charged to or be recovered from the urban county government from or on account of any act or thing done by the permittee by virtue of the authority given in such permit.

(b) Application for permit for a newspaper stand shall be made to the police chief upon such form as shall be provided by him and shall contain the name and address of the person making application and the proposed location of such newspaper stand. Such application shall recite that the applicant will faithfully keep all conditions and provisions of such permit and all laws and ordinances now in force and effect, and that such permit will be accepted by the permittee subject to the conditions and provisions of such permit and subject to the conditions and provisions of all laws and ordinances affecting the maintenance of such newspaper stands now or hereinafter in effect. Such application shall be signed by the applicant.

Sec. 17-18. Same—General requirements.

The maintenance of newspaper stands upon the public streets shall be under the direction and supervision of the police chief. The construction of such newspaper stands shall be in accordance with the general design therefor, to be approved by the police chief; and it shall be uniform throughout the urban county. The dimensions of such stands shall be as follows:

(1) Height of stand from sidewalk to top, in inches: 30

(2) Height of stand from top to shelf, in inches: 7

(3) Height of stand from shelf to top of blackboard, in inches: 12

(4) Length of stand overall, in inches: 50

(5) Width of stand overall, in inches: 24

(6) Length of shelf, in inches: 50

(7) Width of shelf, in inches: 16

Such stands shall be constructed of steel with rounded corners and shall be built in accordance with general specifications therefor approved by the police chief. Such stands shall be maintained in condition satisfactory to the director, division of building inspection. Nothing shall be exhibited, offered or sold therefrom except daily newspapers. No advertising bills, posters, cards or other advertising matter of any kind whatsoever shall be exhibited, displayed or affixed to any such stand.

Secs. 17-19—17-20. Reserved.

Editor's note(s)—Ord. No. 97-2004, § 1, adopted May 13, 2004, repealed § 17-19 in its entirety. Former § 17-19 pertained to newspaper stands—revocation of permit. Section 17-20, relating to noises in streets, was repealed by § 4 of Ord. No. 23-83, adopted Feb. 24, 1983. Specific prohibitions are found in § 14-72.

Sec. 17-21. Obstructing thoroughfares with material—When permitted.

(a) It shall be unlawful for any person to erect or maintain any building or other structure on any portion of a public right-of-way or to enclose any portion of a public right-of-way with a fence or wall or in any manner whatsoever, except as provided in sections 17-22 and 17-23.

(b) It shall be unlawful for any person to obstruct any portion of the public right-of-way by placing or depositing thereon or causing to be placed or deposited thereon any vehicles, barrels, boxes, shelves, stands, merchandise, cross-ties, concrete blocks, spikes, basketball goals, decorative tree wells or other articles of any kind, except as provided in sections 17-22 and 17-23.

(Ord. No. 198-95, § 4, 9-7-95; Ord. No. 174-2001, § 23, 7-5-01)

Sec. 17-22. Same—In connection with construction.

(a) Any person engaged in constructing a building, sidewalk or other structure shall be permitted, upon obtaining a right-of-way blockage permit, to use that portion of the sidewalk or street as may be reasonably necessary for the deposit of materials to be used in such work; however, a sufficient portion of the sidewalk and street shall be unobstructed so as to permit the free passage of pedestrians and vehicles; and further, the space so occupied shall at no time exceed half the sidewalk unless a safe temporary walk is provided in the street. If the blockage is within the area between the pavement edge and the property line, a blockage permit must be obtained from the division of engineering. If the blockage is within the street, the blockage permit must be obtained from the division of traffic engineering.

(b) Materials shall not be deposited so that they will obstruct any gutter; and it shall be the duty of the person having such work done, and the contractor performing the same, to place signals at both ends of such deposit of material and to keep the same lighted at dusk and during the night.

(c) The deposit of materials and the use of the sidewalks and streets as herein provided shall be subject to the supervision of the urban county engineer and the director, division of building inspection, who may require such materials to be surrounded by a fence or other enclosure.

(d) Within three (3) days after the completion of the construction work, all remaining materials and rubbish shall be removed from the sidewalk and street; and if any injury or damage has been done to the sidewalks or street, it shall at once be repaired by the owner and the contractor to the satisfaction of the urban county engineer.

(Ord. No. 198-95, § 5, 9-7-95; Ord. No. 174-2001, § 24, 7-5-01)

Sec. 17-23. Same—Loading or unloading.

In loading or unloading goods, materials and other such articles on the sidewalks or streets, such goods, materials and other such articles shall not be permitted to remain thereon for a longer period than is absolutely necessary for the purpose of receiving and delivering the same; and no more of the sidewalk or street shall be occupied than is absolutely necessary; and a sufficient passageway for pedestrians and vehicles shall always be kept open and clear of obstruction.

Sec. 17-24. Same—Penalties.

Any person violating any of the provisions of sections 17-21, 17-22 or 17-23 shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00) and each day's continuance of a violation shall be a separate offense.

(Ord. No. 174-2001, § 25, 7-5-01)

Sec. 17-25. Openings in sidewalks—Regulations.

(a) It shall be unlawful for any person to permit any cellar door, cellarway or grating to any vault in any public way in the urban county, belonging to premises owned or occupied by him, to be in an insecure condition so as to endanger passersby.

(b) It shall be unlawful for any person to place or maintain on any sidewalk, street or alley any cellar door, cellarway or steps leading into any cellar door or cellarway that is otherwise than level with the adjacent pavement or that extends more than four (4) feet from the line of the adjoining lot.

(c) It shall be unlawful for any person to permit any grating, cellar door, areaway or passageway in any sidewalk to remain open except when in actual use as provided in subsection (d) of this section.

(d) It shall be unlawful for any person to prevent the free and unobstructed use by pedestrians of the entire sidewalk from the property line abutting on such sidewalk to the curb, except for the time such openings in the sidewalk are being actually used for ingress or egress from the cellar or basement with which such openings communicate or connect; and when such actual use ceases, the grating or cellar door or areaway or passage-

way in the sidewalk shall be closed on a level with the sidewalk, and securely fastened, so that pedestrians may safely and without obstruction use the full width of the sidewalk, including the space therein consumed by such grating, cellar door, areaway or passageway.

(e) All sidewalk gratings shall be protected on the under side with a quarter-inch wire mesh screen.

Sec. 17-26. Same—Penalties.

Any person violating any of the provisions of subsections (a) or (b) of section 17-25 shall be fined not less than five dollars ($5.00) nor more than twenty-five dollars ($25.00) for each offense. Each day's continuance of a violation shall be a separate offense.

Any person violating any of the provisions of subsections (c), (d) or (e) of section 17-25 shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00). Each day's continuance of a violation shall be a separate offense.

(Ord. No. 198-95, § 6, 9-7-95)

Sec. 17-27. Playing ball in street.

No person shall play baseball, football or any other game of ball upon any street within the urban county; and any person violating this section shall be deemed guilty of a misdemeanor and shall be fined not more than ten dollars ($10.00) nor less than one dollar ($1.00) for each offense.

Cross reference(s)—Ball playing on college or school grounds, § 14-57.

Sec. 17-28. Protection from falling material.

All sidewalks abutting on buildings or other structures which are in the course of erection shall be protected against falling material therefrom.

Any person violating any of the provisions of this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00) and each day's continuance shall be a separate offense.

Sec. 17-29. Definitions.

For the purpose of this article, the following words shall have the meanings respectively ascribed in this section.

Administrator: The director of the division of building inspection or their designee authorized to enforce this section.

Clear zone: That portion of the public right-of-way that is intended for pedestrian traffic along the sidewalk. The minimum width and location of the clear zone shall be determined by the administrator, however in all instances it must be a minimum of four (4) feet in width and otherwise compliant with the Americans with Disabilities Act. In areas of congested pedestrian activity, a wider minimum portion of the sidewalk may be required. The location

of the clear zone shall be consistent for the entire block, and, in most instances, it shall be required to be located immediately adjacent to the facade of the permitted establishment. The clear zone must be free from any items, obstacles, or barriers, at all times, so as to allow clear movement for pedestrians along the public right-of-way.

On-street parking: That portion of the public right-of-way that is intended for vehicular parking along roadways with speed limits of twenty-five (25) miles per hour or less.

Encroachment: Furnishings, which include, tables, umbrellas, chairs, and other objects directly related to the business of food and/or refreshment service on the public right-of-way, sidewalk or common area on public property.

Outdoor cafe: The placing, locating, or permitting of the placing or locating of encroachments or other furnishings on adjacent right-of-way, such as sidewalks and on-street parking, or public property, by a business appropriately licensed to operate as an establishment where food and/or other refreshments are served and that possess a valid permit under sections 17-29 to 17-29.5 of the Code. Appropriately licensed restaurants and bars are generally qualified to apply for an outdoor cafe permit.

Permittee: The recipient of an encroachment permit under the terms and provisions of this article.

Permitted area: The area in which the encroachment of the outdoor cafe into or onto the public right-of-way is lawfully permitted pursuant to the encroachment permit.

Sidewalk: That portion of the public right-of-way intended for the use of pedestrians extending up to twenty-five (25) feet in front of the facade of the permitted establishment.

(Ord. No. 115-96, § 1, 6-27-96; Ord. No. 48-2010, § 1, 3-25-10; Ord. No. 98-2010, § 1, 6-10-10; Ord. No1. 35-2021, § 1, 12-7-21; Ord. No.118-2022, § 1, 10-27-22)

Sec. 17-29.1. Permit; required.

(a) It shall be unlawful for any person to create, establish, operate, maintain or otherwise be engaged in the business of running an outdoor cafe or place any items upon the sidewalks, on-street parking locations, or public property in the urban county unless they shall hold a currently valid permit issued under the terms of this article.

(b) A permit is intended to allow:

(1) An establishment to encroach into the sidewalk area located immediately in front of that establishment and up to twenty-five (25) feet in either direction with appropriate permission and approval as provided herein; and/or

(2) An establishment to encroach into up to two (2) on-street parking spaces located immediately in front of that establishment with appropriate permission and approval as provided herein. A permittee shall not be allowed to encroach upon or otherwise interfere with on-street handicapped or disabled parking locations.

(c) A permit does not authorize the permittee to conduct activities within the permitted area not directly related to the operation of an outdoor cafe. Unless authorized or directed by the urban county government, the furnishings and other objects must not be moved around or removed during the hours of operation of the outdoor cafe such that activities inconsistent with the operation of the outdoor cafe can take place.

(d) Permits shall be issued on annual basis effective January 1, and only to validly licensed businesses that wish to provide furnishings or other objects directly related to their business of food and/or refreshment service on the public property adjacent to their businesses for use by the general public. If an establishment is not located on the ground floor of a building, or if it intends to encroach beyond the area immediately in front of its establishment it must provide written consent from the owners of the other building(s) and the ground floor tenant(s) in order to apply for the permit.

(e) Although a permit is valid for a calendar year, a permittee is not required to utilize the permitted area for that entire period. The permittee may be required by the administrator to remove some or all objects from the permitted area and return the area to public use during the times of year within which the outdoor cafe is not regularly operating.

(f) A permitted area which is contiguously located to a premises licensed to sell alcoholic beverages shall be considered as part of that licensed premises for the purpose of the sale and consumption of alcoholic beverages. All alcoholic beverages within the permitted area must have been obtained from that ABC licensee.

(g) Nothing in this article shall be construed to permit conduct prohibited by any other statute, ordinance or regulation, or to prohibit the enforcement thereof. If applicable, the permittee must also obtain any necessary approvals from the state and local alcohol beverage control authorities, the courthouse area design review board, the historical preservation commission, and other boards or approval authorities that have a regulatory interest in the property.

(h) Any furnishings or other objects utilized by the permittee must be removable and must not damage the sidewalk, on-street parking location, or other public property. Any necessary permits and approvals must be obtained in the event the permittee wishes to affix any object to the sidewalk, on-street parking location, or public property.

(i) A means of clearly identifying the permitted area for enforcement and safety purposes to the satisfaction of the administrator must be provided by the permittee, whether through barriers, markings, or other like methods. This shall include the use of approved barriers to protect patrons from motor vehicles if the permittee is utilizing on-street parking as part of its outdoor cafe.

(j) In the event that a business is operating an outdoor cafe without a permit the urban county government may, in addition to any other enforcement remedy that it may have available, remove any and all furnishings and other vestiges of said business upon providing written notice to the business. The written notice shall provide the business with at least twenty-four (24) hours to comply, absent emergency circumstances. It shall not be necessary to issue an additional notice of violation prior to the urban county government's removal of said encroaching items should the operation of the outdoor cafe re-commence after initial compliance with

the notice by the business and a failure of the business to obtain a permit. The business shall be required to reimburse the urban county government for all reasonable costs associated with the removal and storage of the items prior to their return by the urban county government.

(Ord. No. 115-96, § 2, 6-27-96; Ord. No. 90-2008, § 1, 5-8-08; Ord. No. 48-2010, § 2, 3-25-10; Ord. No1. 35-2021, § 2, 12-7-21)

Sec. 17-29.2. Permit application.

(a) Application for a permit shall be made at the division of building inspection in a form deemed appropriate by the administrator. Such application shall include, but not be limited to, the following information:

(1) Name, home and business address, and telephone number of the applicant, and the name and address of the owner, if other than the applicant, of the business.

(2) Name, home address, and telephone number of a responsible person whom the urban county government may notify or contact at any time concerning the applicant's permitted area or encroachment permit.

(3) A copy of a valid business license to operate a business establishment adjacent to the public property which is the subject of the application.

(4) Proof of current liability insurance, issued by an insurance company licensed to do business in the Commonwealth of Kentucky, protecting the licensee and the urban county government from all claims for damage to property and bodily injury, including death, which may arise from operation under or in connection with the encroachment permit and the permitted area. Such insurance shall name the urban county government as an additional insured and shall provide that the policy shall not terminate or be cancelled prior to the expiration date without thirty (30) days' advance written notice to the urban county government. The policy shall be a minimum of one million dollars ($1,000,000.00) per occurrence, two million dollars ($2,000,000.00) aggregate, or higher if deemed necessary by the division of risk management.

(5) A scaled drawing or plan of the proposed location showing the layout and dimensions of the existing public and adjacent private property and showing the clear zone; the proposed location of all furnishings and other objects within the permitted area; a depiction of the cafe seating delineators; a written operations and maintenance plan for the cafe seating; and the written consent of adjacent property owners and tenants if otherwise required. This plan will be kept on file with the permitting office.

(6) Proof of any required ABC license(s), health permits or other permits for the business involved.

(7) Proof of approval by the Lexington and Fayette County Parking Authority, if requesting to use on-street parking controlled by the authority.

(8) A listing fully describing the proposed furnishings and other objects directly related to the business.

(9) Any other information or documentation required in order to comply with state or local alcoholic beverage control laws or regulations.

(b) The administrator may request review of submitted applications by those divisions it deems necessary to carry out the requirements of this article.

(c) The administrator may issue the permit with any necessary conditions, require that the application be amended or modified, or deny it. The administrator shall determine the maximum number of persons lawfully allowed within the permitted area based upon the final approved permit plan in accordance with the provisions of the Kentucky Building Code. Not later than fifteen (15) days after the filing of a completed application for a temporary encroachment permit, the applicant shall be notified in writing by the administrator of the decision on the issuance or denial of the permit.

(d) Each permittee shall also be required to submit an application for renewal of its permit on an annual basis prior to December 1 on a form deemed appropriate by the administrator. Any information that has changed from the previous year's application must be provided in the renewal application.

(e) Application for a permit shall be made at the division of building inspection within forty-eight (48) hours of written notice for failure to obtain a permit. Where the same owner, occupant, or person responsible has been given notice for the same violation at the same location within the previous one hundred eighty (180) days, such requirements of written notice may be waived and legal proceedings commenced immediately.

(f) Prior to the issuance of a permit utilizing the sidewalk or a permit utilizing on-street parking, an annual fee shall be due and payable to the administrator in the amount of one hundred dollars ($100.00). To obtain a permit for both, payment of an annual fee in the amount of one hundred and fifty dollars ($150.00) shall be required. This fee is in addition to any business license for operation in Fayette County or other required fees.

(Ord. No. 115-96, § 3, 6-27-96; Ord. No. 48-2010, § 3, 3-25-10; Ord. No.135-2021, § 3, 12-7-21; Ord. No.118-2022, § 2, 10-27-22)

Sec. 17-29.3. Prohibited conduct.

(a) No merchant, vendor, business or property owner shall:

(1) Place any items for sale or other equipment, or furnishings on any portion of the public property other than the permitted area. In no event shall such items be placed in the landscaped areas or extend beyond the sidewalk or on-street parking locations authorized as provided herein;

(2) Block or restrict the clear zone or block the ingress/egress to any building. Also, no items shall be placed so as to block any driveway, crosswalk, bus stop, or counter service window or in a manner that conflicts with the Americans with Disabilities Act;

(3) Sublicense the permitted area separately to non-occupants of the premises;

(4) Except for a barrier as required by this article, place objects around or in the permitted area, such as walls, which would have the effect of forming a visual barrier;

(5) Use of any furnishings or other objects which are not authorized by the administrator and any other necessary approval entity;

(6) Use umbrellas or other decorative material which is not fire retardant, pressure treated, or manufactured of fire resistive material;

(7) Fail to secure permission of the landlord where a building has multiple occupants;

(8) Operate without the insurance coverage specified;

(9) Allow or permit any activity within the permitted area that violates any noise or sound ordinance adopted by the urban county government, including sections 14-70 through 14-80 of the Code;

(10) Fail to pick up, remove and dispose of all trash or refuse left by the business on the public right-of-way;

(11) Fail to keep storm water inlets cleared of debris, trash, or refuse, if utilizing on-street parking as part of its outdoor cafe;

(12) Store, park, or leave any items overnight on any street or sidewalk except for furnishings which may be kept in the permitted area at the permittee's risk;

(13) Store, park, or leave any vehicle, truck, or trailer within the permitted area;

(14) Conduct activities within the permitted area which are not directly related to the operation of an outdoor cafe;

(15) Move or remove the furnishings or other objects located within the permitted area so that other activities or events can take place within that area without prior authorization;

(16) Allow a number of persons within the permitted area in excess of that approved by the administrator or the Kentucky Building Code;

(17) Fail to erect crashworthy barriers to protect patrons from motor vehicles, if utilizing on-street parking as part of its outdoor cafe;

(18) Fail to pay any fees required by Lexington and Fayette County Parking Authority for the use of on-street parking locations, which shall be in addition to any permit fees required herein.

(b) The encroachment permit is a temporary license which may be denied, suspended, or revoked for any conduct which is contrary to the provisions of the section or for conduct of the business in such a manner as

to create a public nuisance, or constitute a danger to the operator's or public's health, safety, or welfare. No property right is created by this article and the decision of the commissioner of the department of environmental quality and public works shall be final.

(Ord. No. 115-96, § 4, 6-27-96; Ord. No. 90-2008, § 2, 5-8-08; Ord. No. 48-2010, § 4, 3-25-10; Ord. No1. 35-2021, § 4, 12-7-21)

Sec. 17-29.4. Form and conditions of permits.

All permits shall be issued on a form deemed suitable by the administrator. In addition to naming the permittee and any other information deemed appropriate by the administrator, the permit shall contain the following conditions:

(1) Each permit shall be effective for one (1) year, from January 1 to December 31, subject to annual renewal, unless revoked or suspended prior to expiration. No fees will be refunded for revocations or periods of suspension.

(2) The permit issued shall be personal to the permittee only and shall not be transferable in any manner.

(3) The urban county government may suspend the permit or modify its terms as to the size or location of the permitted area, the approved plan, or activities taking place within the permitted area when necessary to clear the public property for public safety or for a festival or special event approved by the office of the mayor. Unless there is an emergency circumstance any such suspension or modification shall be communicated to the permittee by either the administrator or the urban county government's director of special events a reasonable time in advance of the need for the suspension or modification.

(4) The administrator may require the temporary removal of items within the permitted area when street, sidewalk, common areas, or utility repairs necessitate such action.

(5) The permit shall be specifically limited to the area shown on the "exhibit" attached to and made part of the permit and shall indicate the maximum number of persons lawfully allowed within the permitted area.

(6) The permitted area shall be maintained in a neat and orderly appearance at all times and the area shall be cleared of all debris on a periodic basis during the day, and again at the close of each business day. The clear zone must at all times be free from any items, obstacles, or barriers so as to allow clear movement for pedestrians along the right-of-way, and must comply with the requirements of the Americans with Disabilities Act.

(7) No advertising, except for signs which comply with sign regulations in Article 17 of the zoning ordinance.

(8) No furnishings, objects nor any other parts of the business shall be attached, chained, or in any manner affixed to any tree, post, sign, or other fixtures, curb, or sidewalk within or near the permitted area. No

additional outdoor seating authorized herein shall be used for calculating seating requirements pertaining to location of, applications for, or issuance of an ABC license for any establishment; or, be used as the basis for computing required off-street parking.

(9) The issuance of a permit does not grant or infer vested rights to use of the area by the permittee. The urban county government retains the right to deny the issuance of a permit or the renewal of a permit for any reason.

(10) Furnishings and any other objects provided shall be maintained and shall be kept safe and in good repair at all times.

(11) The urban county government retains the right to suspend the privilege of using glass containers within the permitted area during festivals and events and when streets are closed. The use of glass containers will be revoked if an incident jeopardizes the health, safety, and welfare of customers or the general public. Any violation of state or local laws will also result in a revocation of this privilege. Repeated offenses may result in revocation or denial of the encroachment permit.

(12) The serving and consumption of alcoholic beverages within the permitted area will be limited to those customers clearly located within the permitted area.

(13) The outdoor cafe permit shall be posted or visibly displayed on the premises.

(Ord. No. 115-96, § 5, 5-27-96; Ord. No. 48-2010, § 5, 3-25-10; Ord. No.135-2021, § 5, 12-7-21; Ord. No.080-2024, § 4, 7-9-24)

Sec. 17-29.45. Promulgation of regulations.

The administrator shall promulgate regulations, not inconsistent with sections 17-29—17-29.5, which may be necessary to carry out and effectuate the provisions of this article. The administrator shall post these regulations online and within the division, and shall provide a copy of the regulations to prospective permittees.

(Ord. No. 135-2021, § 6, 12-7-21)

Sec. 17-29.5. Denial, revocation or suspension of permit; removal and storage fees; emergencies.

(a) The administrator or designee may deny, revoke, suspend, modify, or condition a permit at any time for any business authorized in the urban county if it is found that:

(1) Any necessary business or health permit has been suspended, revoked, or cancelled.

(2) The permittee does not have insurance in force which is correct and effective in the minimum amount described in section 17-29.2(a)(4).

(3) The permittee has failed to pay any fees required by Lexington and Fayette County Parking Authority for the use of on-street parking locations controlled by the authority.

(4) A legitimate health, safety, or general welfare purpose exists, including, but not limited to, pedestrian or vehicle traffic congestion.

(5) The permittee has failed to erect barriers to the satisfaction of the administrator in order to protect patrons from motor vehicles, if utilizing on-street parking as part of its outdoor cafe.

(6) The permittee has failed to abide by the regulations promulgated by the division of building inspection.

(7) The permittee has failed to correct violations of this article or conditions of their permit upon receipt of the administrator's notice of same delivered in writing to the permittee.

(8) The permittee has failed to take positive actions to prohibit violations from reoccurring.

(9) The permittee has failed to make modifications upon receipt of the administrator's notice of same delivered in writing to the permittee.

(b) Upon denial or revocation, the administrator shall give notice of such action to the applicant or the permittee in writing stating the action which has been taken and the reason thereof. The action shall be effective upon giving such notice to permittees.

(c) Furnishings and other vestiges of said business may be removed by the urban county government, and a reasonable fee charged for labor, transportation, and storage, should the permittee fail to remove said items within thirty-six (36) hours of receipt of the administrator's final notice to do so for any reason provided for under this article. If the action is taken based on subsection (a)(1), (2), (3), (4), (5), or (6) of this section, the action shall become effective upon the receipt of such notice and the permittee shall have four (4) hours to remove said items.

(d) In the event a permittee is noticed for three (3) or more violations based upon subsection (a)(7) of this section within any thirty-day period, the permit shall automatically be revoked, and, in addition to any other enforcement remedy available to the urban county government, the business shall be subject to having any encroaching vestiges of an outdoor cafe removed pursuant to section 17-29.5(c) without any further notice.

(e) The permittee shall have the right to appeal the decision of the administrator to the commissioner of the department of environmental quality and public works within five (5) working days from receipt of notice. An appeal does not stay the denial or revocation of the encroachment permit. The hearing shall be held by the commissioner or their designee within ten (10) working days from the date of notice of request. The permittee or applicant may be represented by an attorney and may present witnesses, affidavits, and any relevant documentary evidence. Formal rules of evidence shall not apply. The commissioner of the department of environmental quality and public works shall notify the permittee or applicant of the determination in writing.

(f) Any person violating any provision of sections 17-29 through 17-29.5 or any condition or provision of a permit issued thereunder shall be fined not less than two hundred fifty dollars ($250.00) nor more than five hundred dollars ($500.00), and each day's continuance of any such violation shall be a separate offense.

(Ord. No. 115-96, § 6, 5-27-96; Ord. No. 90-2008, § 3, 5-8-08; Ord. No. 48-2010, § 6, 3-25-10; Ord. No 1 35-2021, § 7, 12-7-21; Ord. No. 118-2022, § 3, 10-27-22)

Secs. 17-29.6. Street entertainers—Definitions

Downtown: The area bounded by the south right-of-way line of High Street, the west right-of-way line of Jefferson Street, the north right-of-way line of Third Street, the east right-of-way line of Midland Avenue, the east right-of-way line of East Vine Street between Main Street and Rose Street, and the east right-of-way line of Rose Street between East Vine Street and East High Street.

Special Event: All of the public right-of-way, including the sidewalks, of any area designated by the office of the mayor to be the site of a festival or event approved by the office of the mayor.

Street entertainer: A person who, on a public sidewalk, public square or other outdoor public property, performs in order to provide amusement and includes, without limiting the generality of this definition, a street musician.

(Ord. No. 162-2001, § 1, 6-28-01; Ord. No. 080-2024, § 5, 7-9-24)

Secs. 17-29.7. Same—General regulations

(1) Notwithstanding any contrary provision of this Code, a street entertainer may perform upon the public sidewalks, public squares, and other outdoor public property in the downtown, subject to the terms and conditions of sections 17-29.6 through 17-29.10.

(2) A street entertainer may also perform upon a public street in the downtown, if a temporary permit closing the street has been issued pursuant to section 18-14.

(3) A street entertainer may perform in the downtown only between the hours of 10:00 a.m. and 11:00 p.m. of the same day.

(4) Notwithstanding the provisions of any other sections, no street entertainer in the downtown may use any amplification, recorded or broadcast music or any other means of increasing the volume of his performance at any time.

(5) A street entertainer in the downtown may offer for sale recordings of his own work, in the form of records, cassettes, videotapes or compact discs, provided that his display of recordings may not obstruct pedestrian traffic and that the display must be removed as soon as his performance ends.

Secs. 17-29.8. Same—Prohibitions

(1) While performing in the downtown, a street entertainer must:

(a) Not be located so closely to another street entertainer so as to interfere with that other street entertainer's performance;

(b) Not obstruct pedestrian traffic;

(c) Not cause or allow the obstruction of pedestrian traffic by the street entertainer's audience; and

(d) Not excessively or unreasonably disturb the operation of another business to which the street entertainer is adjacent.

(2) No street entertainer may perform in any one (1) location in the downtown for more than two (2) continuous hours.

(3) No street entertainer may perform in downtown during a special event, as that term is defined in section 17-29.6(3), unless he receives permission from the event organizer. No street entertainer may perform along the route of a parade for which a permit has been issued pursuant to section 18-29, unless he has permission from the organizer of the parade. The provisions of sections 17-29.6 through 17-29.8, 17-29.10 shall not apply to any street entertainer who is performing during a special event or a parade and who has such a permit or permission.

(4) No street entertainer in the downtown shall use any knife, sword, torch, flame, axe, saw or other object that can cause serious bodily injury to any person, or engage in any activity, including but not limited to, acrobatics, tumbling or unicycling, that can cause serious bodily injury as a part of his performance.

(5) No street entertainer in the downtown shall use any generator, wet cell battery with removable fill caps, or any other power source that poses a fire source or public safety hazard, nor shall he connect or maintain an electrical cord to an adjacent building or urban county government power source without written permission from the property owner or the urban county government, respectively.

(Ord. No. 162-2001, § 1, 6-28-01; Ord. No.080-2024, § 6, 7-9-24)

Secs. 17-29.9. Same—Entertainers subject to §§ 17-29.6—17-29.10

A street entertainer who performs upon the public sidewalks, public squares and other public property outside of the downtown shall be subject to and comply with all terms and conditions of the Code of Ordinances, other than the provisions of sections 17-29.6—17-29.8, 17-29.10.

(Ord. No. 162-2001, § 1, 6-28-01)

Secs. 17-29.10. Same—Violation; penalty

Any person violating any of the provisions of sections 17-29.6 through 17-29.8 shall be fined, not to exceed one hundred dollars ($100.00) for each offense.

(Ord. No. 162-2001, § 1, 6-28-01)

Sec. 17-30. Signs on poles and sidewalks; penalty.

It shall be unlawful for any person to place any billboard or sign upon any sidewalk of the urban county or to nail or otherwise fasten such billboard or sign to any telephone, telegraph or other pole upon such sidewalk.

Any person violating this section shall be fined not less than one dollar ($1.00) nor more than ten dollars ($10.00).

Sec. 17-31. Snow, ice, grass and weeds; removal; penalty.

(a) The owner or occupant or any person having the care of any building or lot abutting in any sidewalk shall remove all snow therefrom within four (4) hours after daylight and after the falling of snow has ceased, and the provisions of this section shall apply to the falling of snow or ice from any building or structure. Whenever the sidewalk, or any portion thereof, adjoining any building or lot on any street shall be encumbered with ice it shall be the duty of the owner or occupant or any person having the care of any such building or lot to cause such sidewalk to be made safe and convenient by removing the ice therefrom or by covering the same with sand or some other suitable substance.

(b) Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor and upon conviction shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00). Each day's continuance of a violation shall be a separate offense.

(Ord. No. 176-79, § 1, 7-12-79)

Cross reference(s)—Weeds on property, § 16-22 et seq.

Sec. 17-32. Sweepings or vegetable matter on streets; burning leaves, etc.

(a) It shall be unlawful for any person, or any employee thereof, to sweep or deposit, or cause to be swept or deposited, upon any public street, sidewalk or other public place in the urban county, any paper, scraps, house or store sweepings, garbage, meats, melons, fruits or vegetable matter of any kind or any other trash or matter which may tend to clog up the gutters or dirty the streets, sidewalks and public places; or to burn any paper, straw or other material on any street or sidewalk of the urban county; or to sweep or clean, or cause to be swept or cleaned, between the hours of 6:30 a.m., prevailing time, and 4:30 p.m., prevailing time, any sidewalk within the territory bounded on the north by Short Street, on the west by Jefferson Street, on the south by Vine Street and on the east by the Chesapeake and Ohio Railway crossings at Midland Boulevard and Main Street, and including both sides of the portions of such streets constituting such boundary lines.

(b) Nothing in this section shall be construed to prevent the sweeping of ordinary street dust from the sidewalks into the street except during the hours and within the territory described in subsection (a).

(c) Any violation of any provision of this section shall be punishable by a fine of not less than three dollars ($3.00) nor more than ten dollars ($10.00) for each offense; and each day any material is allowed to remain on any street, sidewalk or other public place contrary to the provisions of this section shall constitute a separate offense.

Cross reference(s)—Waste declared a nuisance, § 16-76.

Sec. 17-33. Throwing glass, nails, cans or wire into streets.

It shall be unlawful for any person to throw, drop or place or deposit upon any of the streets, sidewalks, or public ways of the urban county any glass bottles, glass, wire, tacks, nails, hoops or cans, or any other substance likely to injure any person, animal or vehicle or to damage any rubber tire of any vehicle operating on any of the streets of this urban county. In the event any person shall unintentionally deposit or drop any such substances on any street, sidewalk or public way, such person shall immediately remove all substances from such street, sidewalk or public way.

Any person violating any of the provisions of this section shall be fined not less than one dollar ($1.00) nor more than one hundred dollars ($100.00) for each offense.

Sec. 17-34. Reserved.

Editor's note(s)—Section 17-34, relating to trees between sidewalks and curbs, derived from the original codification, was repealed by § 1 of Ord. No. 1-79, adopted Jan. 11, 1979. Cross reference(s)—Street trees, ch. 17B.

Sec. 17-35. Utility poles and wires—Electric; guard wires; pole sizes; electricity cutoffs.

(a) Any person putting up and operating wires carrying heavy currents of electricity, when the same are not properly insulated, shall, at all crossings made by other lines of electric wires, place guard wires of suitable material and strength to protect such wires carrying heavy currents from contact with the falling wires of the telegraph, telephone or other wires passing over same.

(b) Such person shall use the best quality of sound straight poles, of sufficient size and length, to carry out the requirements of this section. Poles of sixty (60) feet and over in length shall not be less than seven (7) inches in diameter at the small end; fifty-foot poles shall not be less than six (6) inches in diameter at the small end. Fifty-foot poles and over shall be placed six (6) feet in the ground; poles under fifty (50) feet shall be placed five (5) feet in the ground.

(c) All parties using electrical wires for any purpose whatever, shall use a cutoff fuse safety wire in making connection with private property.

(d) All violations of this section shall be punished by a fine of not less than ten dollars ($10.00) nor more than fifty dollars ($50.00) and each day that such violation continues shall be a separate offense.

Sec. 17-36. Same—Poles to have "T" for fire alarm wires.

(a) All poles erected upon the streets, sidewalks, alleys or elsewhere in the urban county, for the support of telegraph, telephone or electric wires, shall have placed upon the top thereof, by the erectors thereof, a cross-bar or "T" for the exclusive use and control of the division of fire and emergency services for the support of the fire alarm wires of such division. Such cross-bar "T" shall be constructed and erected under the supervision and direction of the fire alarm and signal supervisor of the division of fire and emergency services, who, with his assistants, shall adjust the fire alarm wires thereon and shall have, at all times, access to such cross-bar for the purpose of constructing, altering and repairing such wires.

(b) All consents hereafter given by the urban county authorities for the erection of any such poles shall be conditioned upon compliance with this section by the erector of such poles.

(c) Any person violating the provisions of this section shall be fined not less than twenty-five dollars ($25.00) nor more than one hundred dollars ($100.00).

Sec. 17-37. Same—Permit to erect poles.

It shall be unlawful for any person in any street, alley or sidewalk to erect or use within the urban county any post or pole for the use of any telephone, telegraph or electric light company without first having obtained the permission of the mayor to so erect and use such pole; and any permission to erect and use such posts or poles within the urban county shall be void unless the place where such posts and poles are erected is designated in the order giving such permission.

Any person erecting or using such posts or poles without having first obtained permission as aforesaid shall be fined ten dollars ($10.00) for each offense, and each day during which any one of such posts or poles is erected or used shall be deemed a separate offense.

Sec. 17-38. Water draining on sidewalks.

Water gathered or accumulated on roofs or in basements shall be so drained that it will not flow across or upon any sidewalk.

Any person violating any of the provisions of this section shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00). Each day's continuance of a violation shall be a separate offense.

(Ord. No. 264-78, § 1, 10-19-78)

Secs. 17-38.1. Telephone booths on streets—Permits, construction, revocation.

It shall be unlawful for any person to erect, locate or construct any telephone booth on any street or other public place without obtaining a permit therefor from the mayor. Application for a permit shall be made upon forms provided by the mayor and shall contain the name and address of the person making the application and the proposed location of the telephone booth. The applicant shall indemnify and save the urban county government harmless against all liabilities, judgments, costs, damages and expenses which may arise by virtue of the permit.

The applicant shall faithfully keep all conditions and provisions of this and the following sections; and such permit shall be accepted by the applicant subject to the conditions and provisions of such sections, and subject to the laws and ordinances affecting such telephone booths now or hereafter in effect. Such application shall be signed by the applicant.

(Ord. No. 4013, § 1, 2-18-60)

Secs. 17-38.2. Telephone booths on streets—Permits, construction, revocation.

The construction of a telephone booth for which a permit is required by section 17-38.1 shall be in accordance with the general design therefor, to be approved by the director, division of building inspection and shall be uniform throughout the urban county. The maintenance of such telephone booths shall be under the direction and supervision of the director, division of building inspection. Nothing shall be exhibited, offered or sold therefrom. No advertising bills, posters, cards or other advertising matter of any kind shall be exhibited, displayed or affixed to any such booth.

(Ord. No. 4013, § 1, 2-18-60)

Secs. 17-38.3. Telephone booths on streets—Permits, construction, revocation.

Any permit for the erection, location or construction of a telephone booth on any street, alley or other public place may at any time be revoked by the mayor at his discretion.

(Ord. No. 4013, § 1, 2-18-60)

Sec. 17-38.4. Overhanging signs on Vine Street.

(a) The provisions of other ordinances notwithstanding, no sign shall project perpendicularly from any building or other structure so as to overhang the sidewalk or public right-of-way of Vine Street. No horizontal or flush sign shall overhang said right-of-way or sidewalk more than one (1) foot.

(b) This section shall not affect theater or hotel marquees, nor existing marquees.

(c) Any person violating the provisions of subsection (a) hereof shall be fined ten dollars ($10.00) for each day said violation exists.

(Ord. No. 159-71, §§ 1—3, 9-9-71)

Article II

Street Construction and Improvement

Sec. 17-39. Definitions.

Where used in articles II and III, the following terms shall have the following meanings:

Commissioner of public works shall mean the person appointed to direct the department of public works of the urban county government.

Contractor shall mean the person having the contract for the work in question.

Urban county engineer shall mean the director of the division of engineering or his duly appointed assistants.

(Ord. No. 198-95, § 7, 9-7-95)

Sec. 17-40. Application of article.

The improvement of any street, avenue or public way shall be done in strict accordance with the provisions of this article and the specifications prescribed herein for materials used, unless otherwise provided in the ordinance ordering such improvements.

Sec. 17-41. Rights of urban county government preserved.

Any enumeration of rights, privileges and remedies of the urban county government shall not be construed as excluding the urban county government from any other right or remedy at law or in equity which it may have in case of failure of any contractor to comply with the terms of any contracts made under the provisions of this article regulating the improvement of streets, avenues and public ways.

Sec. 17-42. Assessment of cost—Payment.

The cost of a street improvement shall be paid by assessment of a special or local tax on the abutting lots and parcels of land in the manner provided by law, the urban county government paying for the improvements of intersections with other streets; but mere repairs, not amounting to a reconstruction or resurfacing, shall be paid for by the urban county government out of its general fund. If any improvement is made on the ten-year or other annual payment plan, the urban county government will, upon completion and acceptance of the work, issue bonds for such part of the cost thereof as may not be paid in cash and for the payment of which agreements are signed as provided by law, and will apply the proceeds of such bonds, when sold, or deliver them to the contractor as provided by statute in payment of such work. Such bonds will be exempt from taxation by the urban county government.

Sec. 17-43. Same—Tax bills.

Upon passage of an ordinance making an assessment and levying a special tax for a local improvement, the director, division of computer services shall make out the proper tax bills for the tax so assessed and levied, and place them in the hands of the director, division of revenue for collection. The director, division of revenue will thereupon publish in a newspaper a notice requiring all owners of property fronting or abutting on such improvement to pay the taxes so assessed and levied upon their property within the thirty (30) days after the publication of the ordinance assessing and levying the same. At the expiration of such thirty (30) days, all unpaid tax bills shall be returned to the director, division of revenue who shall hold them until paid or withdrawn for the purpose of suit thereon.

Sec. 17-44. Bids—Advertisement for.

After the passage of an ordinance ordering the improvement of any street by local assessment, the mayor shall advertise, in a newspaper for not less than the time specified by state law, for sealed bids for the work, stating time and place when bids will be opened.

Sec. 17-45. Same—Form, opening.

Each bid shall be on a form to be prescribed by the chief administrative officer, under direction of the mayor, and shall be accompanied by such cash deposit, certified check or bond as may be prescribed for the purpose of insuring the bidder's entering upon performance of the work in case his bid is accepted. Bids shall be opened publicly at the time and place fixed in the advertisement. Bidders whose bids are rejected shall be promptly notified and their cash deposits, checks or bonds thereupon returned to them. The bidder whose bid is accepted shall be promptly notified of the acceptance. The urban county council may reject any and all bids.

Sec. 17-46. Same—Acceptance; contract and bond.

Upon the acceptance of a bid for any such improvement, the bidder shall, without unnecessary delay, and within thirty (30) days from the acceptance of his bid, enter into contract with the urban county government for such work in accordance with the ordinances and specifications therefor, and shall execute to the urban county government a bond in a sum equal to thirty (30) percent of the total amount of his bid as estimated by the urban county engineer, with some solvent guarantee company authorized to do business in the state as surety, for the full, complete and faithful performance of the contract in every respect, and that the bidder will indemnify the urban county government against any and all loss or damage it may sustain by reason of any injury to persons or property resulting from negligence, carelessness or other act of the contractor, his agent or employees, in the execution of the work as required by the ordinance therefor. If any damage suits are brought against the urban county government for any such injury to persons or property, the contractor shall, immediately upon receipt of notice from the urban county government of such suit, assume the defense of same and bear all expense thereof and satisfy any judgment which may be obtained therein against the urban county government. Such bond shall guarantee the work for a period of five (5) years from completion and acceptance thereof against all defects occurring therein by reason of defective workmanship or material, and that the contractor will at his own expense repair all such defects occurring in such work within such periods; and it shall be a further condition of the contract and bond that if the contractor fails to make any such repairs within twenty (20) days after notice from the urban county government, delivered to him at his last-known address, the urban county government may make such repairs and charge the cost of same to the contractor; and his bondsmen shall be liable to the urban county government for the cost of such repairs.

Sec. 17-47. Plans and specifications as approved.

Improvements shall be constructed in accordance with plans and specifications prepared or approved by the urban county engineer.

Sec. 17-48. Grade of street as set.

The grade of a street ordered to be improved shall be set as fixed by the urban county engineer and set forth in the plans and profiles on file in his office.

Sec. 17-49. Reserved.

Sec. 17-50. Prosecution of work.

(a) The contractor shall begin work within thirty (30) days from the acceptance of his bid and shall use all reasonable and proper diligence in prosecuting the same to completion with an adequate force of men and trucks and the necessary appliances and machinery to carry on the work without interruption, in a manner and with such speed and progress as will be commensurate and in keeping with the character, extent and magnitude of the work to be done.

(b) For any reason satisfactory to him the urban county engineer may postpone the date for the commencement of work upon any street, alley or public way for a reasonable time, and may suspend such work when commenced for a reasonable time; but, in the event of such postponement or suspension, a corresponding period of time of fair working weather shall be added to the time for the completion of the work.

(c) The work shall be done in a proper and first class manner in every respect and shall conform strictly to the prescribed plans and specifications. If any contractor abandons such work for ten (10) days or fails to prosecute the same with the required diligence for such period, except for causes beyond his control, the urban county government may, after ten (10) days written notice, delivered to the contractor or mailed to him at his last-known address, let the work to another contractor, or may have such work done and, in either case, charge the cost of the completion thereof to the original contractor and pay the same out of the contract price; and if such contract price be insufficient, the excess shall be paid by the original contractor, and his bondsmen shall be liable therefor; but nothing herein shall be construed as excluding the urban county government from exercising any other right or remedy at law which it may have against any contractor failing to comply with his contract.

Sec. 17-51. Use not deemed acceptance.

The work shall be prosecuted on such section as the urban county engineer may from time to time direct. Each section as soon as completed (allowing sufficient time for such work to set) shall be thrown open to the public, but such opening or the using of same shall not be deemed or held to be an acceptance of that part of the work.

Sec. 17-52. Travel not to be impeded.

Upon any stoppage of the work, all material shall be piled up neatly by the contractor, so as not to impede the travel on the sidewalks, or at the intersection of streets, or the use of fire plugs. Upon completion of the work, all rubbish or surplus material must be removed immediately from the street by the contractor.

Sec. 17-53. Work on gas, water or sewer lines.

The urban county government expressly reserves the right to construct sewers and connections; to permit connection of private sewers with main sewers; to lay water or gas mains; and to grant permits for water or gas pipes at any time prior to the completion of the subgrade, or the urban county engineer may order the contractor to do the same; and the urban county government reserves the right to suspend work on any section at any time during the improvement of same for the purpose above stated; and the contractor shall not interfere with or place any impediment in the way of any person who may be engaged in the construction of such sewer, or in laying such gas or water mains, or making connections therewith, or doing other work above specified. In any such case the contractor shall not be entitled to any damage for the digging up of the streets, or for the delay, but shall be allowed and paid by the urban county government for any work and material made necessary on his part at the actual cost thereof plus fifteen (15) percent; and no part of such cost shall be estimated in the cost of improvement of such street, nor shall the contractor be held responsible for damage to any pipes, sewers, conduits or other such installations that are above subgrade, but he shall use all reasonable care in preventing damage thereto. The contractor's time for completing his contract shall be extended as many days as he is thus delayed.

If, in the improvement of a street, it becomes necessary to change the grade or location of any water pipe, gas pipe or conduit, or any other like thing, and if the person or company owning same shall fail upon notice to change same, such change shall be made to the proper line, grade or location by the contractor, and the urban county government shall pay him therefor; and such person or company shall be held liable to reimburse the urban county government.

Sec. 17-54. Quality and type of materials.

All materials furnished, unless otherwise specified, must be of a quality equal to the best of its respective kind and any must meet with the approval of the urban county engineer; and any work or material not in accordance with the specifications, or damages from any cause before the completion or acceptance, shall be rejected by the engineer and ordered acceptably replaced.

In case the contractor shall refuse to begin, after written notice from the urban county engineer to remove such material or repair such rejected work within twenty-four (24) hours, the same may be removed and replaced by the urban county government at the contractor's expense.

The contractor shall, whenever required, furnish to the urban county engineer samples of any materials proposed to be used by him. Where samples fail to stand required tests, cost of same must be borne by the contractor; otherwise they shall be included in the cost of such construction and charged to abutting property.

Sec. 17-55. Measurements.

During the construction period of any public works job, the urban county engineer or his assistant assigned to lay out, supervise and inspect such construction work shall measure and determine the accurate quantities of all items of construction which may not be seen or accurately measured at a later date; and a record of such measurements and quantities shall be kept on file in the office of the urban county engineer for use in calculating quantities to

be used in the final estimate. Promptly upon the completion of any public works job, the urban county engineer or his assistant in charge of such work shall measure and determine the actual quantities of all items comprising such job according to methods and standards employed in good engineering practice and shall incorporate all such items and quantities in the final estimate.

Sec. 17-56. Reserved.

Sec. 17-57. Precautions.

All necessary night and day guardsmen, barricades and lights shall be employed, erected and maintained on the work by the contractor to protect persons and property from injury.

Sec. 17-58. Extra work.

(a) The contractor shall do any extra work and furnish any extra materials not provided for in his contract, which, in the opinion of the urban county engineer, may be found necessary or advisable for the proper completion of the work or the purposes thereof.

(b) All extra work and materials shall be ordered in writing by the urban county engineer and agreed to in writing by the contractor. Wherever unit prices for items included in such extra work are set forth in his contract, the contractor shall accept the unit price bid, as full compensation for such work; and for such items as are not covered by unit prices, he will accept, as full compensation, the actual cost of such material and necessary labor, plus fifteen (15) percent for superintendence, use of tools and plant and overhead expenses, unless otherwise agreed upon in writing.

(c) Upon completion of each separate job of work, the contractor shall furnish the urban county engineer with an itemized statement of all such items of cost for which there is no unit price provided in the contract.

(d) The cost of same shall be included in the cost of the improvement if properly chargeable thereto, otherwise it shall be paid by the urban county government.

Sec. 17-59. Excavations.

(a) The subsoil and other material must be excavated to such a depth as will allow for the required amount of material necessary for the construction of the street. After excavations have been made to the proper depth for laying the roadway, all places in the subsoil that are soft and spongy, or ditches that have not been refilled long enough to be thoroughly compact, if not compact when refilling, shall be filled with satisfactory material and tamped and rolled until they meet the approval of the urban county engineer.

(b) All portions of the roadway not compacted by the roller, such as along the curb, around manhole covers, valve covers, and other such obstructions, shall be thoroughly compacted by use of an approved type air-driven backfill tamper. Every precaution deemed necessary by the urban county engineer to protect the sewer, water and gas appurtenances, such as manholes and valve boxes, shall be taken by the contractor; and any injury to any portion of same shall be fully repaired by him, except as otherwise provided in section 17-53.

Sec. 17-60. Filling subgrade.

Whenever the elevation of the subgrade is above the existing surface, the materials required to make the necessary fill shall be deposited and spread to layers or courses of not more than six (6) inches in thickness over the entire area to be thus filled. Each layer or course shall be thoroughly compacted by use of a sheepfoot roller propelled by a tractor or by rolling with a self propelled steam or gas roller of not less than eight (8) tons.

Sec. 17-61. Protection of subgrade.

All hauling upon the subgrade while the same is wet and soft from rain or any cause will be done at the contractor's risk. No foundation material will be placed upon the subgrade while it is cut up by ridges or ruts, and all ruts and ridges must be smoothed off and rammed or rolled to the entire satisfaction of the urban county engineer before any material is dumped upon the same.

Sec. 17-62. Concrete foundation.

(a) Upon the subgrade, there shall be laid a bed of concrete, of the depth specified in the ordinance ordering the work, composed of cement and stone fixed as follows; provided that, if the ordering ordinance does not specify the depth of concrete, then it shall be six (6) inches in depth.

(b) The cement used must be a standard brand portland cement meeting the requirements and specifications as adopted by the American Society for Testing Materials.

(c) The sand must be coarse, clean and sharp, and equal in all respects to the Ohio River Washed Sand.

(d) The stones shall be equal to the native gray limestone or river gravel and must be free from clay, earth or other foreign substances. They shall be of a size that will pass a 2½ screen and be retained on a ½ screen. The stone preferable for use shall be a combination of the ¾-inch stone in equal proportions with the 1½-inch stone.

(e) Cement and aggregates shall be accurately measured by volume or weight. The cement shall be measured as packed by the manufacturer in sacks containing not less than ninety-four (94) pounds, being considered one (1) cubic foot. When volume measurements are used, the fine and coarse aggregates shall be measured in specifically prepared measuring boxes. Such boxes shall be accurately constructed to specific cubic content and of uniform size. If aggregates are measured by weight, an approved type of modern aggregates measuring device, equipped with measuring lines and built-in scales, designed specifically for such purpose, shall be used.

(f) Concrete delivered from a central mixing plant shall be measured by weight in accordance with the provisions as above stated. The urban county engineer shall have free access to the mixing plant and the right to inspect the plant loading hopper and the materials at any and all times. No materials shall be measured in wheel barrows. All empty cement sacks shall be handled under the supervision of the urban county engineer. If concrete is mixed at the scene of the work, an approved batch mixer, having means of measuring water supplied to each batch, shall be used. If concrete is delivered from a central plant in batch mixers, sufficient units must be used to ensure steady delivery of concrete to the job. Not more than six (6) gallons of water per bag of

cement shall be used. (For concrete paving, not more than five (5) gallons of water per bag of cement shall be used.) Concrete shall be mixed for at least one (1) minute after all materials have been placed in the mixer drum, during which time, the drum shall make from fifteen (15) to twenty (20) revolutions. Overloading the mixer drum will not be permitted. The concrete shall be finished to conform to a line parallel to and the required distance below the surface of the proposed brick or asphalt surface, by use of a template or strike-off board conforming to the proper curvature of the proposed surface and of such weight and design as commonly used for the purpose of finishing concrete paving. After the concrete has been struck-off as specified, the entire surface shall be roughened by use of coarse stiff brooms, sufficiently to eliminate smooth or slick spots. Concrete shall consist of one (1) part cement, two (2) parts sand and three and one-half (3½) parts crushed limestone or gravel. Reinforcing center strips and expansion joints will be specified upon the plans or written into the contract and specifications for the particular job.

(g) No concrete job is to be laid when the temperature is below thirty-five (35) degrees Fahrenheit without the written consent of the urban county engineer; and in the event of laying below thirty-five (35) degrees Fahrenheit, the contractor must protect the concrete from freezing. The contractor will be held liable for all damages to the concrete base, and he must protect same from travel for a period of ten (10) days after it is laid and must at all times protect it from use unless granted permission by the urban county engineer.

Secs. 17-63—17-68. Reserved.

Sec. 17-69. Concrete paving—General provisions.

The general provisions set forth in sections 17-39 through 17-58 shall apply.

Sec. 17-70. Same—Subgrade.

The provisions as to subgrade set forth in sections17-59, 17-60 and 17-61 shall apply.

Sec. 17-71. Same—Foundation.

The provisions as to foundation set forth in section 17-62 shall apply.

Sec. 17-72. Same—Thickness.

The depth of the concrete paving shall be six (6) inches unless specified in the ordinance ordering the work.

Sec. 17-73. Same—Sand.

The sand aggregate must be coarse, clean, sharp sand, equal to Ohio River Wash Sand. When dry, eighty-five (85) percent shall pass a one-eighth-inch screen, and not more than two (2) percent by weight of hundred-mesh sieve. It shall contain not more than five (5) percent by weight of lime or other foreign substance. When three (3) parts of the sand are mixed with one (1) part of cement, the tensile strength at the age of seven (7) and twenty-eight (28) days shall be not less than one hundred (100) percent of the strength of the same cement and Ottowa sand.

Sec. 17-74. Same—Coarse aggregate.

The coarse aggregate may consist of gravel or crushed limestone. When gravel is used, it shall be graded uniformly from coarse to fine, meeting the following requirements: It shall all pass a two-inch mesh screen; twenty-five (25) percent must be retained on a one-inch screen and not more than ten (10) percent shall pass a quarter-inch screen. When crushed limestone is used, it shall be of the quality equal to a Tyrone or High Bridge variety. It must be crushed so that one hundred (100) percent will pass a 2½-inch screen, fifty (50) percent to seventy-five (75) percent to pass a 1¼-inch screen, and not more than five (5) percent to pass through a quarter-inch screen. It must be free from clay, soft or disintegrated stone or other foreign substance.

Sec. 17-75. Same—Cement.

All cement shall be portland cement and must conform to the requirements of the American Society for Testing Materials.

Sec. 17-76. Same—Water.

All water used must be reasonably clear and clean, and free from oil, acids or other foreign matter.

Sec. 17-77. Same—Measuring materials.

The provisions as set forth in section 17-62(e) shall apply to measuring materials.

Sec. 17-78. Same—Reinforcing.

(a) The reinforcement shall consist of flat sheets of specially manufactured steel fabrics for use in concrete street and road construction. The fabric reinforcement shall have an effective weight of not less than forty-two (42) pounds per one hundred (100) square feet and shall be equal to the Kentucky State Highway Standard 6X12—66-80 wire mesh. The main members of the fabric shall be spaced not more than six (6) inches apart, and the secondary members shall be placed not more than twelve (12) inches apart.

(b) The fabric shall be placed in flat sheets of a length equal to four (4) inches less than the width of the paving section, unless otherwise directed by the urban county engineer.

(c) All reinforcing material shall be free from rust and scale and shall be placed as directed by the urban county engineer. Immediately after the lower portion of the concrete has been placed and leveled-off sufficiently to permit the placing of a section of reinforcement fabric, it shall be placed in an accurate and workmanlike manner. The upper portion of the concrete shall be placed over the reinforcing and struck off, allowing sufficient space to provide proper lap for the next succeeding sheet of reinforcement. The procedure shall be carried on in an orderly and uninterrupted manner so as to insure a homogeneous and solid mass of concrete. Kentucky State Standard steel center strips or joints or their equal with half-inch round steel bars four (4) feet in length at five-foot intervals shall be placed as shown upon the plans or as directed by the urban county engineer.

Sec. 17-79. Same—Mixing.

The provisions as set forth in section 17-62(e) shall apply to mixing.

Sec. 17-80. Same—Laying.

The subgrade must be prepared and finished uniformly and even, and check with the template. This must be done immediately in advance of laying the concrete. All excess material must be removed and the entire surface of the subgrade sprinkled, until it is moist. After the concrete and steel has been placed, the surface must be struck off by the use of template, made to conform to contour or curve of the street. This must be done by dragging the template forward with a slight zig-zag motion, as it is being moved. The template may rest on the curb or specially prepared form. This template must pass over the surface as many times as necessary to bring the entire surface to an even finish. Hand lutes must then be used to remove any porous or uneven places.

The concrete shall be finished as stated in section 17-62(e); except that all edges along expansion joints and center strips shall be edged in a careful workmanlike manner by use of concrete edging tool. The grooves along the center strips shall be filled with an approved type of crack filler.

Sec. 17-81. Same—Expansion joints.

(a) Expansion joints shall be placed along and adjacent to each curbline or along each gutter line and transversely at thirty-foot intervals or as shown upon the plans, unless otherwise directed by the urban county engineer.

(b) Expansion joints shall be of an approved type of asphaltic nature, having a thickness of one-half inch, and a width of one (1) inch greater than the concrete thickness. The length of the joints shall be not less than six (6) feet except where shorter pieces are required to meet conditions. Three-quarter-inch smooth steel bars two (2) feet in length shall be placed through the expansion joints at two-foot intervals or as shown upon the plans. Half of each bar shall be painted with an approved type of paint at least twenty-four (24) hours before being used. An approved type of sleeve shall be placed on the painted end of each bar. The sleeve end of the bar shall alternate through the expansion joint.

Sec. 17-82. Same—Protection and curing of concrete.

(a) The contractor shall erect and maintain suitable barricades and employ watchmen, if required by the urban county engineer, to exclude traffic from the newly constructed pavement. When it is necessary to provide for traffic across the pavement, the contractor shall, at his expense, construct suitable and substantial crossings to bridge over the concrete, which will be adequate for traffic and satisfactory to the urban county engineer. Any part of the pavement damaged by traffic or other causes occurring prior to its final acceptance shall be repaired or replaced by and at the expense of the contractor, in a manner satisfactory to the urban county engineer.

(b) Curing shall continue for a period of ten (10) days; except that under extremely dry or cold weather conditions, the urban county engineer may require additional curing periods, additional covering or both.

(c) Immediately after the finishing operations have been completed and regardless of the method of final curing, the entire surface of the newly laid concrete shall be covered with wetted burlap or cotton maps laid directly upon the finished surface. The burlap or cotton mats shall be of good quality, free from dirt and other foreign matter. Burlap shall be of ten- to eighteen-ounce weight per ten (10) square feet. Cotton mats shall be composed of a single layer of mat and completely enclosed in covers of cotton cloth or burlap, securely stitched to retain its shape and effectiveness. This covering shall be kept continuously saturated until removed. It shall not be removed earlier than the morning of the day following the application.

(d) Immediately after the removal of the burlap or cotton mats, the curing shall be continued by the use of modern chemical methods approved by the urban county engineer or by the wet-earth or straw-curing method, in the following manner:

The exposed edges of the concrete shall be banked with a substantial berm of earth, and the entire surface of the paving shall be covered with earth of not less than one and one-half (1½) inches in depth or by the use of clean loose straw at the rate of three (3) pounds per square yard. In either case the entire surface and exposed edges shall be kept saturated four (4) days, dating from the removal of the burlap. If the wet earth or straw becomes disturbed or displaced, it shall be replaced immediately. The covering shall remain on the pavement until permission is given by the urban county engineer to open the pavement to traffic, at which time the covering shall be removed and the pavement cleaned and swept.

(e) Upon the approval of the urban county engineer, the contractor may substitute the ponding method of curing or he may use a modern and satisfactory sprinkling system designed for the purpose. If either of the substitute methods fail to meet the approval of the urban county engineer, they shall be discontinued and replaced by one of the above-mentioned methods.

(f) The contractor shall submit the trade name of any chemical concrete curing compound to the urban county engineer and obtain his approval before using same on any part of the work in question.

Sec. 17-83. Sheet asphalt paving—General provisions.

The general provisions set forth in sections 17-39 through 17-58 shall apply as to sheet asphalt paving.

Sec. 17-84. Same—Subgrade.

The provisions as to subgrade set forth in sections17-59, 17-60 and 17-61 shall apply.

Sec. 17-85. Same—Foundation.

The provisions as to foundation set forth in section 17-62 shall apply.

Sec. 17-86. Reserved.

Sec. 17-87. Same—Thickness.

The asphalt pavement shall consist of one and one-half (1½) inches of binder after being compressed, and one and one-half (1½) inches of sheet asphalt wearing surface after compression.

Sec. 17-88. Same—Binder course.

The ingredients for the binder course shall consist of asphalt, cement, portland cement or stone, dust, sand and gravel, or crushed stone mixed in the following proportions:

Bitumen, 4 to 7 percent.

Crushed stone or gravel passing 1¼-inch mesh, and retained on 1½-inch mesh, 30 to 50 percent. Crushed stone or gravel passing a ¼-inch screen and retained on 10-mesh, 30 to 60 percent.

The balance of the aggregates from 10 to 20 percent, to be composed of sand and fine material of various sizes, from 10-mesh down to dust.

Sec. 17-89. Same—Asphalt surface.

(a) The ingredients for the asphalt wearing surface shall be asphalt cement, sand, portland cement or dust in the following proportions: Bitumen, 8 to 11 percent.

(b) The minimum amount of bitumen shall be used only in mixtures containing the minimum total, passing the 80-mesh sieve. The percentage of bitumen must be increased above the minimum as the total passing the 80-mesh sieve increases.

(c) The above limits as to mesh composition and percentage of bitumen are intended to provide for such permissible variations as may be deemed necessary by the character and location of the work to be done. When the materials which are to be used have been tested, and the proper grading secured, no variation is to be made, except with the consent of, or at the direction of the urban county engineer.

Sec. 17-90. Same—Asphalt cement, composition.

(a) The asphaltic cement shall consist essentially of a refined, solid-native lake asphalt softened with a liquid petroleum flux.

(b) Refined, solid-native lake asphalt shall be construed to signify any native mineral bitumen produced by refining a crude native lake asphalt which through natural causes, in the process of time, has been reduced to consistency harder then 10 millimeters in penetration, and which, without the addition of any other material has the following characteristics:

Water, none.

Penetration at 77 degrees Fahrenheit, number 2 needle, 100 grams, 5 seconds, not over 3 millimeters. Percentage total bitumen soluble in carbon tetrachloride, not less than 99 percent.

Residual coke (ash free), not more than 15 percent. Paraffin scale, not more than 0.1 percent.

Sulphur, not less than 3 percent.

(c) Liquid petroleum flux shall be construed to signify any residuum consisting of the heavier and higher boiling portions of petroleum, free from decomposition products, which has the following characteristics:

Water, none.

Specific gravity at 77 degrees Fahrenheit, between .92 and 1.02.

Penetration at 77 degrees Fahrenheit, number 2 needle, 50 grams, 1 second, not less than 35 millimeters. Bitumen soluble in carbon disulfide not less than 99.5 percent.

Flash test not less than 350 degrees Fahrenheit.

Sec. 17-91. Same—Properties.

(1) The asphalt cements as used must have a ductility of not less than 40 centimeters at 77 degrees Fahrenheit, according to the District of Columbia standard. Its specific gravity shall be not less than 1.04 at 77, degrees Fahrenheit.

(2) The asphalt cement must not contain more than 1 percents of paraffin scale, as determined by the Holde Method.

(3) A number 2 needle, weighted 100 grams, shall penetrate in 5 seconds at 77 degrees Fahrenheit, a distance of 35 to 60 on a Dow machine.

Sec. 17-92. Same—Oil asphalt.

(a) The asphalt cement shall be prepared by the careful distillation of petroleum with steam agitation, at a temperature not exceeding 700 degrees Fahrenheit until its consistency is reduced to between 35 and 60, with a number 2 needle weighted to 100 grams. All shipments shall be marked with a lot number and 10 samples taken at random from each lot shall not vary more than 5 on a Dow machine, above or below the penetration established by the urban county engineer, nor more than 10 percent from the average of ductility.

(b) It shall be in addition thereto comply with the following practical and established tests:

(1) It shall be thoroughly homogeneous.

(2) The specific gravity at 77 degrees Fahrenheit shall be not less than unity nor more than 1.435.

(3) The melting point (B. and R. Method) shall not be less than 130 degrees Fahrenheit nor more than 150 degrees Fahrenheit.

(4) The flash point (Cleveland open cup) shall not be less than 460 degrees Fahrenheit.

(5) The penetration at 77 degrees Fahrenheit (100 grams, 5 seconds) shall not be less than 40 nor more than 60 M.

(6) The penetration at 32 degrees Fahrenheit (200 grams, 1 minute) shall not be less than 20 M.

(7) The penetration at 115 degrees Fahrenheit (50 grams, 5 seconds) shall not be more than 200 M.

(8) The loss upon heating a 50-gram sample of the material in a cylindrical dish 2 3/16inches in diameter, and 1 3/8 inches high for 5 hours at 325 degrees Fahrenheit shall not exceed 1 percent by weight and the reduction in penetration at 77 degrees Fahrenheit due to such heating shall not exceed 40 percent.

(9) The ductility at 77 degrees Fahrenheit (5 cm per min. Dow mold) shall not be less than 40 cm nor more than 85 cm.

(10) The fixed carbon content shall not exceed 15.5 percent.

(11) The asphaltic cement shall be soluble in carbon bisulfide and carbon tetrachloride to the extent of not less than 99.5 percent.

Sec. 17-93. Same—Combining, laying and rolling binder.

(a) The stone, sand and asphalt cement shall be heated separately to such a temperature as will give after mixing, a homogeneous mixture with a temperature of between 225 and 350 degrees Fahrenheit. The mixture must be held in the mixer until all particles of stone and sand are coated.

(b) While in transit to the site of the work, the mixture must be protected from unfavorable weather conditions by the use of tarpaulins or canvas cover. When ready to be dumped for spreading, it shall have a temperature of between 200 and 325 degrees Fahrenheit.

(c) On reaching the street, it shall at once be dumped on the foundation and deposited in place by the use of hot shovels, and then raked to a uniform and even surface, or by use of an approved asphalt spreading device, when it shall be immediately rolled with a tandem roller weighing from 5 to 8 tons. After a thorough compression by rolling, the binder shall have a depth of approximately 1¼ inches. The upper surface of the finished binder shall be parallel to the finished surface of the pavement and shall show at no place an excess of asphalt cement. All binder that shows lack of bond, or that is in any way defective, or which may become broken up before it is covered with the wearing surface must be taken up and removed from the street and replaced by good material and rerolled. No more binder shall be laid at any one time than can be covered by one day's run of the paving plant on surface mixture. The surface of the binder shall be kept as clean and free from dust or traffic as is possible under working conditions. If necessary, it may be swept carefully with hand brooms before laying the finished surface. No binder shall be permitted to be laid on a wet or damp concrete foundation, or when the surface of the concrete has not been swept carefully or is not free from all loose particles of dirt.

Sec. 17-94. Same—Preparation, laying and rolling of surface.

(a) The sand and asphaltic cement, after being heated separately, are to be measured or weighed with suitable appliances at the mixer. The sand, when being weighed and dumped into the mixer, must have a temperature of between 240 and 350 degrees Fahrenheit, and the asphaltic cement a temperature of between 250 and 350 degrees Fahrenheit.

(b) While being dumped into the mixer, the required amount of filler shall be added and the entire mass mixed for at least one minute, until a homogeneous mixture is produced in which all the particles are thoroughly coated with asphaltic cement. The weights or measurements of all materials shall be verified in the presence of the urban county engineer or inspector as often as may be required, and the urban county engineer or inspector shall have access to all parts of the plant at any time.

(c) The above mixture while in transit to the site of the work shall be protected by a tarpaulin of canvas covering against unfavorable weather conditions, and when being dumped for spreading it shall have a temperature of from 225 to 350 degrees Fahrenheit. The edges of all gutters, manhole covers, etc., must be painted with asphalt cement.

(d) After being dumped, it shall be immediately deposited in place and raked to a true and even surface, or applied by an approved spreading device. It must be rolled with a tandem roller, traveling parallel to the curbline.

(e) The rolling of the surface must be continued by the roller traveling obliquely from each curb, so as to cover the entire surface with 3 different directions of operation. The rolling of the surface must be reasonably continuous, as it is the intent of these specifications that one roller under continuous operation shall roll not more than 200 square yards per hour. If, after rolling, depressions or other defects are apparent in the surface, they shall be removed and remade until the surface is uniform and even. No asphalt surface shall be laid on the binder unless it is dry and clean. Immediately after the rolling of the surface, cement or stone dust must be swept over the surface, but not excess left on the surface.

Sec. 17-95. Asphalt macadam—General provisions.

The general provisions set forth in sections 17-39 through 17-58 shall apply.

Sec. 17-96. Same—Subgrade.

The provisions as to subgrade set forth in sections 17-59 and 17-60 shall apply.

Sec. 17-97. Same—Foundation.

After the subgrade has been finished to a uniform surface and rolled until thoroughly compact, a course of stone to be approximately six (6) inches in depth, is to be placed or spread. This base course of stone may be large stone, placed and then broken on the street so that no stone will be larger than five (5) inches in size. This base course of stone must be so placed and graded that it will be reasonably true and uniform with reference to the finished sur-

face of the pavement. After being placed it must be rolled, with a heavy three-wheel roller, until thoroughly compact and solid. Over this surface of large stone there must be spread a course of crushed limestone from one and one-quarter (1¼) to two and one-half (2½) inches in size to a depth sufficient to fill all the voids in the larger stone. This course of stone must be rolled until it is well incorporated with the larger stone. A light course of screenings must then be applied by being distributed over the surface uniformly with a sand spreader. No screenings are to be applied, except when they are dry, and only in sufficient quantities to partly fill the voids in the surface stone. The top course of crushed stone must be rolled to assist in working them down into the stone; and where the stones do not show, and are covered by the screenings, the screenings must be swept therefrom.

Sec. 17-98. Same—Surface composition.

(a) The asphalt wearing surface shall be composed of gravel or crushed stone, sand and asphalt cement.

(b) The stone or gravel must be hard and durable and free from inorganic or foreign substance.

(c) The sand must be of good quality, bank or river sand.

(d) The asphalt cement shall meet the requirements for oil or native asphalt as prescribed in sections 17-81 through 17-91. Bidders must state which sections they are bidding under.

Sec. 17-99. Same—Combining material.

(a) An analysis of the combined materials must come within the following limits:

Bitumen, six (6) to nine (9) percent.

Crushed stone or gravel passing 1¼-inch mesh and retained on ¼-inch mesh, thirty-five (35) to forty-five (45) percent. Crushed stone or gravel passing a ½-inch screen and retained on 10-inch mesh, twenty-five (25) to forty (40) percent.

The balance of the aggregates, from twenty (20) to thirty-five (35) percent, must be composed of sand and fine material, graded approximately as specified in section 17-89.

(b) The stone and sand shall be dried and heated in properly designed driers before mixing with the asphaltic cement. They shall be of the revolving type, turning the materials during the process of drying.

(c) When the aggregates are thoroughly dried and heated to a temperature of from 250 to 350 degrees Fahrenheit, arranged so the heat can be properly and easily controlled and regulated, the stone and sand aggregates and asphaltic cement must be weighed carefully and dumped directly from weighing boxes into the mixing hopper and mixed until the asphaltic cement is thoroughly and uniformly distributed, so that each particle of sand and stone is thoroughly and uniformly distributed, and so that each particle of sand and stone is thoroughly coated with the asphaltic cement.

Sec. 17-100. Same—Laying and wearing surface.

(a) The mixing material as specified in section 17-99 must be hauled immediately to the street and protected while in transit by tarpaulins from moisture or temperature when it is below 50 degrees Fahrenheit. Upon reaching the street, the temperature of the material must be not less than 250 degrees or more than 350 degrees Fahrenheit.

(b) The mixing material must then be dumped upon the macadam foundation, so that it can be raked or shoveled into place. After being spread uniformly and evenly by being raked, the depth of the loose mixture must be not less than three (3) inches. The surface must then be rolled with a tandem roller weighing not less than five (5) tons until it is thoroughly compact. The rolling must be done by first operating parallel with the curb and then at an angle of about forty-five (45) degrees with each curb. After being thoroughly compacted, the surface must be uniform and even and but slightly honey-comb in appearance.

Sec. 17-101. Same—Surface treatment.

Before the street is open to traffic, the surface must be treated with a coat of asphaltic cement, applied by hand or machinery, so that the entire surface is covered with at least one-third of a gallon of asphaltic cement to the square yard. The asphaltic cement used for the surface treatment must be the product of a standard asphaltic oil or native liquid asphalt. The entire surface must then be covered with sand, gravel or limestone screenings. If limestone screenings are used they must not contain more than five (5) percent of material that will pass an 80-mesh screen. If after the street has been opened to traffic there occurs a deficiency of sand during the period of the first six (6) months, the contractor upon notification must resand same.

Secs. 17-102—17-124. Reserved.

Article III

Sidewalk, Curb and Gutter Construction and Improvement

Sec. 17-125. Application of article.

The provisions of this article shall govern the construction of sidewalks, curbs and gutters, and the duties of the urban county officials named herein with reference thereto, unless otherwise provided in the ordinance ordering such construction. The word "construction" shall include "reconstruction."

Sec. 17-126. Grading.

The excavation must be done for the full width of the pavement, and the necessary space on each side to allow for easy setting of one-inch strips, which must be five (5) inches in depth. The depth of the excavation must be four and one-half (4½) inches below the finished surface of the pavement. Where necessary, this soil or foundation must be tamped until it is firm and solid.

The subgrade must be sprinkled just prior to the laying of the concrete. A sufficient number of pegs must be used to hold the strips to a straight and true line. No warped or inferior strips will be used.

Sec. 17-127. Protection.

(a) No construction of concrete sidewalks will be permitted when the temperature is below thirty-five (35) degrees; and during cold or rainy weather, all work must be protected.

(b) Sufficient barricades and other traffic control devices complying with Part IV of the Manual on Uniform Traffic Control Devices must be used to protect the work from traffic, or injury otherwise.

(Ord. No. 198-95, § 8, 9-7-95)

Sec. 17-128. Grading.

Excavation shall be of such width as to allow for the necessary space on each side for setting of strips, which must be of steel or wood. If wood is used for forms, the boards must be true and even and not less than one and one-half (1½) inches in thickness, and twelve (12) inches in width for the top boards and six (6) inches in width for the bottom boards if used. A sufficient number of pegs must be used to hold the strips to a straight and true line and to the proper grade. The excavation must be made eighteen (18) inches in depth. In the event the foundation is soft or spongy, it must be tamped until thoroughly compact.

Sec. 17-129. Monolithic concrete curb—Dimensions.

The curb must be six (6) inches in width and eighteen (18) inches in depth. The width of six (6) inches must be uniform from the top down for twelve (12) inches, and not less than six (6) inches in width for the remaining six (6) inches.

Sec. 17-130. Same—Mixing, laying, etc.

(a) The materials for the curb must be mixed in the ratio of one (1) part cement, two (2) parts of sand and three and one-half (3½) parts of crushed stone, which shall meet all the requirements of and shall be mixed as specified in sections 17-73 through 17-82.

(b) After being thoroughly tamped in the forms, the top surface of the curb must be finished true and even with a wooden float and then brushed, with the markings of the brush uniform and parallel to the line of the curb. At intervals of every thirty (30) feet, a specially prepared asphalt joint, one-half inch in width, must be placed so as to extend entirely through the curb. After the curb has hardened, this joint must be trimmed even with the curb. When the concrete is placed in the form, it must be spaded down on the back and front side so that no honeycomb concrete will show; and the forms must be removed as soon as the concrete has hardened sufficiently to stand.

(c) The face of the curb must be finished off by the use of wooden float and brush. The corner of the curb next to the street must be rounded off with a special steel trowel.

(d) All the joints and markings of the curb must be done with a steel marker and must be finished in a uniform and even manner.

Sec. 17-131. Combined monolithic concrete curb and gutter.

The dimensions of the combined concrete curb and gutter shall be as follows:

> Across the top of the curb, six (6) inches in width; back side of the curb from top to base, twelve (12) inches; the depth of the concrete in the gutter, five and one-half (5½) inches at the line of the curb; and six and one-half (6½) inches on the face of the gutter, fourteen (14) inches from the curb.

Sec. 17-132. Grading.

The grading shall be done for the full width and depth as will permit of easy setting of strips and forms. If wooden forms are used they shall not be less than one and one-half (1½) inches thick. Where the soil foundation is soft, it must be tamped. When the weather is hot and dry, the subgrade must be sprinkled just prior to the laying of the concrete.

Sec. 17-133. Materials and mixing.

The concrete shall be composed of one (1) part of cement, two (2) parts of sand and three and one-half (3½) parts of crushed stone or gravel, which shall meet the requirements for materials and mixing as specified in sections 17-73 through 17-82, as approved by the urban county engineer.

After being thoroughly mixed, it shall be placed in the forms; and all joints shall be finished the same as specified in section 17-130.

Sec. 17-134. One-course pavement.

Over the clay there shall be spread a course of concrete, to be four and one-half (4½) inches in depth after compression. The material and mixing for this concrete shall be done as specified in section 17-73 et seq.

After being laid, the surface must be struck off and trowelled with a wooden trowel until the sand and cement mortar appears on top. After the surface has been trowelled until it is uniform and even, it shall be brushed with a large size paint brush by swinging the brush parallel to the strips, so that all markings of the brush shall be reasonably uniform and even and in the same direction.

All joints and edges shall be finished the same as for two-course pavement.

Sec. 17-135. Cement gutters.

Concrete cement gutters shall be twenty-four (24) inches wide, extending from the curb with the concrete uniformly six (6) inches in depth. The materials, mixing and laying of the concrete shall meet all requirements as specified for concrete paving in sections 17-69 through 17-82, or as approved by the urban county engineer, except expansion joints shall not be placed along the curb and shall be placed only at intervals of every one hundred (100) feet at right angles to the curb. Reinforcing shall also be eliminated in the gutters.

Sec. 17-136. Grade—Fixing.

The grade of any sidewalk, curb or gutter ordered to be constructed shall be as fixed by the urban county engineer and set forth on the plan and profile in his office.

Sec. 17-137. Same—Changing, penalty.

Any person who shall change the grade of a sidewalk by elevating or depressing the curbing or paving shall restore the grade and make all proper changes under the supervision of the urban county engineer, and shall be subjected to a fine of not less than five dollars ($5.00) nor more than fifty dollars ($50.00) for his failure to restore the grade and make such changes within sixty (60) days after being notified to do so.

(Ord. No. 198-95, § 9, 9-7-95)

Sec. 17-138. Cost, how paid.

(a) The cost of the construction of sidewalks, curbs and gutters shall be paid by assessment of a special and local tax on the property abutting thereon, in the manner provided by law; and the urban county government shall not be liable for any part of such cost. The contractor may, by suit in his own name or in the name of the urban county government, enforce collection of such local and special tax and foreclose the lien therefor; but all such suits shall be at the sole cost and expense, both ordinary and extraordinary, of the contractor, and the urban county government shall not be liable therefor.

(b) All special assessments and taxes for the construction of sidewalks, curbs and gutters shall be due and payable at the office of the director, division of revenue immediately upon the publication of the ordinance assessing such taxes. The commissioner of finance shall keep a record of all such special taxes and assessments in his office in a book to be provided for that purpose, and upon the payment of any tax to the director, division of revenue he will report the same to the commissioner of finance, who will make proper entry thereof on such record, whereupon the lien created by such tax shall stand released.

Sec. 17-139. Plans and profiles.

Upon passage of a resolution for the construction of any sidewalk, curb or gutter, the urban county engineer will direct the preparation of all necessary plans and profiles thereof, showing the grade of same, the part already constructed, if any, and of the new work to be done, and keep the same on file in the division of engineering, subject to inspection by anyone desiring to inspect the same.

(Ord. No. 198-95, § 10, 9-7-95)

Sec. 17-140. Owner of material.

All old brick and curbing which may be removed from the street shall be the property of the property owner who may be liable for the cost of the new work, and he shall be allowed forty-eight (48) hours from the time same is taken up by the contractor within which to remove the same. If he does not remove the same within forty-eight hours, the contractor shall remove and dispose of same.

Sec. 17-141. Contractor to clean up.

Upon completion of the work, the contractor shall thoroughly clean up the street and remove all rubbish before the work will be accepted by the urban county engineer.

Sec. 17-142. Inspection; when made.

Upon the completion of the work in accordance with the contract, the same will be inspected by the urban county engineer in the manner provided by law.

(Ord. No. 198-95, § 11, 9-7-95)

Sec. 17-143. Reserved.

Sec. 17-144. Effect of noncompliance by officials.

A failure of the urban county council, the commissioner of public works, or any other urban county official to comply with any provisions of this article shall not affect or invalidate any ordinance for the construction or reconstruction of any sidewalk, curb or gutter, nor the assessment or any levy of any tax to pay for such improvement, unless such failure or omission shall violate the state laws relating thereto.

Sec. 17-145. Grass plots permitted.

The urban county government shall have the right, in cases of concrete sidewalks, of laying a grass plot between the outside edge of the concrete and the curbline where there is already a concrete sidewalk and grass plot along a portion of the block, or where the proposed sidewalk is the first to be built of concrete, so that the sidewalk shall in all cases be uniform on each block.

Sec. 17-146. Reconstruction may be ordered.

The provisions of sections 17-125 through 17-145 shall not waive or affect the right of the urban county or its council to order the reconstruction of any such sidewalks, in the manner now provided by law, at any time it may be found proper and necessary to do so.

Sec. 17-146.1. Ramps for persons using wheelchairs.

(a) All new curbs and all existing curbs which are a part of any construction or reconstruction shall comply with the provisions of subsection (b).

(b) In order to enable persons using wheelchairs to travel freely and without assistance at each crosswalk, a ramp with nonslip surface shall be built into the curb so that the sidewalk and street blend to a common level. The bottom of the ramp and the street shall be at the same elevation and there shall be no lip permitted at the

ramp bottom. Such ramp shall not be less than thirty-two (32) inches wide and shall not have a slope greater than one (1) inch rise per twelve (12) inches length, where practicable, in all ramps there shall be a gradual rounding at the bottom of the slope.

(Ord. No. 66-74, § 1, 4-25-74; Ord. No. 131-75, § 1, 5-29-75)

Article IV

Sidewalk Repair

Sec. 17-147. Required, who is responsible.

It shall be the duty of each owner of real estate abutting on any sidewalk to repair, at his own expense, all holes, uneven surfaces and other defects in the sidewalk upon which his property abuts; reconstruction shall comply with the standard drawings and technical manuals. If such owner be a nonresident of the urban county, or if he cannot be found, it shall be the duty of his agent in charge of the property to make the repairs as herein required, or if there be no such agent, then it shall be the duty of the occupant of the property to make such repairs.

(Ord. No. 185-99, § 1, 7-8-99; Ord. No. 174-2001, § 26, 7-5-01)

Sec. 17-148. Notice; appeal.

(a) Whenever the urban county engineer or any code enforcement officer in the division of code enforcement ascertains the existence of holes or other defects in sidewalks of the urban county which create a hazard to public safety, it shall be the duty of the urban county engineer or the code enforcement officer, as appropriate, to notify forthwith, in writing, the owner of the property abutting upon such defective sidewalk to repair or replace the same at his own expense within a reasonable period of time as stated in such notice. This notice shall be personally served upon the owner or shall be mailed via regular mail to the last known address of the owner of the property as it appears on the current tax assessment roll. If such owner be a nonresident of the urban county, or cannot be found, the notice may be delivered to his agent having charge of the property; and if there be no such agent, it may be delivered to the occupant of the property. The urban county council shall adopt regulations for the enforcement of sidewalk violations pursuant to this section.

(b) Any person affected by a civil penalty assessed pursuant to section 17-152 shall have the right to appeal to an assigned hearing officer acting on behalf of the administrative hearing board created by Chapter 12 of the Code; provided that a written application for appeal is filed within seven (7) days after the notice to repair or the notice of civil penalty was served as further provided in Chapter 2B of the Code. The proceeding before

the administrative hearing board shall be governed by Chapter 2B of the Code and the board's rules, regulations and bylaws and shall include the right to appeal the decision of the board to a court of competent jurisdiction.

(Ord. No. 63-89, § 1, 4-20-89; Ord. No. 221-96, § 1, 11-14-96; Ord. No. 185-99, § 2, 7-8-99; Ord. No. 164-2000, § 1, 6-15-00; Ord. No. 139-2011, § 1, 11-3-11; Ord. No. 56-2017, § 7, 4-27-17)

Sec. 17-149. Time for doing work.

It shall be the duty of each owner of property in the urban county, within the period of time stated in the notice provided for in section 17-148, to repair, at his own expense, all holes, uneven surfaces and other defects in the sidewalk, using therefor materials as nearly similar as possible to that of which such sidewalk is constructed. If such owner be a nonresident of the urban county, or cannot be found, it shall be the duty of his agent in charge of the property, upon receipt of such notice, to make the repairs as herein required, and if there be no such agent, it shall be the duty of the occupant of the property, upon receipt of such notice, to make such repairs as herein required.

(Ord. No. 63-89, § 1, 4-20-89)

Sec. 17-150. Retaining walls for earth embankments.

Whenever unsecured earth embankments abut on a sidewalk or street, it shall be the duty of the owner of such property to erect suitable barriers or retaining walls to prevent loose earth from falling on such sidewalk or street. Barriers or retaining walls located on private property, shall be designed by a professional engineer licensed in Kentucky and shall be submitted to the division of building inspection with the application for a building permit.

(Ord. No. 174-2001, § 27, 7-5-01)

Sec. 17-151. Reconstruction may be ordered.

The provisions of this article shall in no way waive or affect the right of the urban county or its council to order the reconstruction of any sidewalk, in the manner now provided by law, at any time it may be found proper and necessary to do so.

Sec. 17-152. Penalty, lien.

(a) Any owner, or agent of such owner, or occupant of property who shall fail to make the repairs in defective sidewalks as provided in sections 17-148 and 17-149 within the period of time stated in the notice provided for therein may be fined up to twenty-five dollars ($25.00) for each offense; and each day such work remains undone after such period shall be deemed a separate offense.

(b) In the alternative, any owner or agent of such owner, or occupant of property who shall fail to make the repairs in defective sidewalks as provided in sections 17-148 and 17-149 within the period of time stated in the notice provided for therein may be assessed a civil penalty of ten dollars ($10.00) per square foot of unrepaired sidewalk panel, up to a maximum civil penalty of five hundred dollars ($500.00), for each thirty-day period such work remains undone after the time stated in the notice elapses.

(c) The urban county government shall have a lien against property for any unpaid civil penalty (fine) if it has not been appealed within seven (7) days or is otherwise final as further provided in Chapter 2B of the Code of Ordinances. The lien shall operate and be served in the manner provided in Section 2B-9 of the Code.

(d) The commissioner of law is hereby authorized to make the determination that liens shall not be filed when intervening in existing litigation is not cost effective, or when the lien would not be enforceable as a matter of law.

(e) The mayor is hereby authorized and directed to execute a release of the lien provided for in subsection (c) upon payment in full of the civil penalty evidenced by the lien or upon conclusion of any court proceedings resulting in the sale of the property regardless of whether any portion of the civil penalty were paid from the proceeds of the sale. The lien release shall be filed in the county clerk's office.

(f) The department of law is hereby authorized to assert the urban county government's lien rights in any litigation filed by a third party involving a property against which the government possesses a lien.

(Ord. No. 63-89, § 1, 4-20-89; Ord. No. 221-96, § 2, 11-14-96; Ord. No. 185-99, § 3, 7-8-99; Ord. No. 164-2000, § 2, 6-15-00; Ord. No. 139-2011, § 2, 11-3-11; Ord. No. 56-2017, § 8, 4-27-17)

Article V

Driveway Construction

Sec. 17-153. Definitions.

The following words and phrases when used in this article shall, for the purpose of this article, have the meanings respectively ascribed to them in this section:

Apron: That portion of a passageway that lies between the street side of the sidewalk and the curbline or edge of roadway surface.

Commissioner of public works: Commissioner of sanitation and public works of the urban county.

Driveway (residential): A passageway for vehicle ingress and egress to private property meeting one (1) or more of the following criteria:

(i) Must extend into an enclosed area such as a garage or carport.

(ii) Must extend a sufficient distance beyond the front building line for a parked vehicle to completely clear such front building line.

(iii) In the event of a corner lot, where the passageway leads from the street side lot line, such passageway must extend a sufficient distance beyond the street side building line for a parked vehicle to completely clear such street side building line.

(iv) In the event of a lot located in the townhouse residential (R-1T) zoning category as shown on the official zone map atlas on file at the division of planning, the passageway may be constructed so as to allow for parking between the street and the front building line (in the front yard); provided, however, that this provision shall not affect any lot located in the R-1T zone when that lot contains frontage on or abuts any arterial street or major collector street (federal aid primary, secondary, or federal aid urban) as shown on the highway classification map for Fayette County as adopted by the department of transportation by the Commonwealth of Kentucky.

Driveway (nonresidential): A passageway for vehicle ingress or egress to private property meeting one (1) or more of the following criteria:

(i) Must extend into an enclosed area such as a garage or carport.

(ii) Must extend a sufficient distance beyond the front building line for a parked vehicle to completely clear such front building line.

(iii) In the event of a corner lot, where the passageway leads from the street side lot line, such passageway must extend a sufficient distance beyond the street side building line for a parked vehicle to completely clear such street side building line.

(iv) Must be for the purpose of passageway to an area of sufficient size between the street right-of-way line and the building line to permit storage and maneuvering of a vehicle in such a manner as not to encroach upon the street right-of-way except at an approved driveway.

Joint driveway: A passageway for vehicle ingress or egress to two (2) or more parcels of property.

Sidewalk: That portion of the street right-of-way between the curblines or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians and generally separated from the curb or roadway surface by a utility strip or grass plot.

(Ord. No. 3511, § 1, 3-24-56; Ord. No. 29-82, § 1, 3-25-82)

Sec. 17-154. Permit.

Any person desiring to depress the curb or change the grade of any public sidewalk for the purpose of constructing or reconstructing or altering a driveway, either residential or nonresidential, to provide ingress to and egress from property owned by them or under their control shall apply for a permit for such work from the commission of public works. It shall be the duty of the commissioner of public works before issuing such permit to first determine the type of driveway proposed, its width and location, and if in his opinion it will not create a hazardous condition, to grant such permit; however, final approval shall be contingent on the work's being done so as to conform to all other requirements of this article.

(Ord. No. 3511, § 2, 3-24-56)

Sec. 17-155. Residential, specifications.

When application for a permit is made to the commissioner of public works to construct, reconstruct or alter a driveway to provide ingress and egress from residential property, it shall be the duty of the commissioner of public works before issuing such permit to first determine the type of driveway proposed, its width and location, and if in his opinion it will not create a hazardous condition to grant such permit; however, final approval shall be contingent on the work being done in conformance with the following specifications:

(1) The driveway width measured at any point on the sidewalk shall not exceed twelve (12) feet for a single driveway or twenty (20) feet for a double or joint driveway. In the event the sidewalk is not separated from the curb by a utility strip or grass plot at any point along the frontage of the property, the point at which the above measurement is made will be determined by the commissioner of sanitation and public works in accord with good engineering practices.

(2) The width of the driveway apron measured at the curbline shall not exceed eighteen (18) feet for a single driveway or twenty-six (26) feet for a double driveway.

(3) The sidewalk portion of the driveway shall be of portland cement concrete with a minimum thickness of six (6) inches.

(4) The apron shall be either six (6) inches of rock base with a one and one-half (1½) inch bituminous surface or a six-inch thickness of portland cement concrete.

(Ord. No. 3511, § 3, 3-24-56; Ord. No. 174-2001, § 28, 7-5-01)

Sec. 17-156. Nonresidential, specifications.

When application for a permit is made to the commissioner of public works to construct, reconstruct or alter a driveway to provide ingress and egress from property other than residential property, it shall be the duty of the commissioner of public works before issuing such permit to first determine the type of driveways proposed, its width and location, and if in his opinion it will not create a hazardous condition, to grant such permit; however, final approval shall be contingent on the work's being done in conformance with the following specifications:

(1) At the time a request is made for a permit, there shall be submitted to the commissioner of public works a plat and plan of the area to be improved. Such plat shall be drawn to a scale of not less than one-eighth inch to one (1) foot and with all principal dimensions shown. Such plans shall show the location of all existing walks, curbs and the relative elevation of the gutters, the top of the curb, and the sidewalk; all existing trees, their size and kind, fire hydrants, mailboxes, traffic signs, water shutoff boxes, storm sewer inlets, utility poles and conduits, and any other structure existing on or in the street adjacent to the property; and shall also show the proposed location of tanks, buildings, air hose, wash racks, oil pits, pump islands, and all other equipment which the applicant proposed to install on the property, together with the distance from such equipment to the street property line.

(2) Where the property line on any one (1) street extends for a distance of one hundred fifty (150) feet or less, there shall not be more than two (2) driveways constructed.

(3) Where the property line on any street extends for a distance greater than one hundred fifty (150) feet, there shall not be more than three (3) driveways; except that the commissioner of public works may issue a permit for more than three (3) driveways if said driveways are shown on a plat approved by the planning commission of the urban county. Said approval must have been given subsequent to January 1, 1956.

(4) Where two (2) or more driveways are constructed on any one property, there shall be a curb between each driveway not less than six (6) feet in length measured at and parallel to the curbline.

(5) The curb for the driveway shall not be cut except in front of the property for which the driveway is to be used, and in no event shall it be cut to a point closer than three (3) feet from the side property line as projected to the street.

(6) When property used for nonresidential purposes is located at an intersection of two (2) streets, no driveway or any part thereof which is intended to serve such property shall be closer than five (5) feet to the intersection of the street right-of-way lines but in no event shall be closer than twenty-five (25) feet from the point of intersection of a projection of the face of the curbline or edge of the pavement surface.

(7) The apron shall be of portland cement concrete of a minimum depth of six (6) inches and where it adjoins the gutter line shall be faced with a raised vertical lip of not less than one and five-eighths (1 5/8) inch.

(8) The sidewalk portion of the driveway shall be of portland cement concrete with a minimum thickness of six (6) inches and shall be constructed in accordance with LFUCG standard drawings.

(9) To prevent any part of any vehicle using the driveway from projecting over or crossing the public sidewalk except at points designated, there shall be installed on the property six (6) inches inside the property line a curb or other suitable barrier to be approved by the commissioner of public works.

(Ord. No. 3511, § 4, 3-24-56; Ord. No. 174-2001, § 29, 7-5-01)

Sec. 17-157. Use.

(a) It shall be unlawful for the owner of any property to use or permit to be used any part of any public sidewalk abutting his property for vehicle ingress or egress to same, except over an approved driveway.

(b) It shall be unlawful for any owner or occupant of any property to erect or permit to be erected any wooden or metal ramp from gutter line to the top of the curb.

(c) It shall be unlawful for any person to place dirt, ashes, drainpipes or other material in the gutter for the purpose of building up an approach for a driveway.

(d) It shall be unlawful, in the case of nonresidential driveways to permit surface or roof drainage water to flow over that portion of the driveway that is on the public right-of-way.

(Ord. No. 3511, § 5, 3-24-56)

Sec. 17-158. Abandonment.

Whenever a driveway has been abandoned, either by closing the entrance to the property, or by changing the use of the property, in such a way as to no longer make the driveway necessary, it shall be the duty of the property owner to have the driveway removed, and the sidewalk and curb restored to the line and grade of the adjoining sidewalk and curb. The commissioner of public works is hereby authorized to order the removal of such driveway, and any property owner shall comply with such order within ten (10) days after receipt of same.

(Ord. No. 3511, § 6, 3-24-56)

Sec. 17-159. Utilities.

Wherever there are encountered, within the right-of-way, cables, poles, guys, water mains or other utilities, that interfere with the proposed driveway location, the applicant shall obtain the consent of the utility company involved; and the reasonable expense and cost of such changes shall be a matter between the two (2) parties.

(Ord. No. 3511, § 7, 3-24-56)

Sec. 17-160. Barricades, etc.

Applicants for a driveway permit shall, during construction, reconstruction or alteration, maintain the premises in a safe manner and shall provide adequate barricades and lights at his own expense to protect the safety of the public using the adjacent streets and sidewalks and shall hold the urban county government free from any damages incurred by his operations. All debris and surplus material shall be removed immediately.

(Ord. No. 3511, § 8, 3-24-56)

Sec. 17-161. Penalties.

Any person violating any provisions of this article shall be fined not less than fifty dollars ($50.00) nor more than one hundred dollars ($100.00) and each day during which any violation continues shall be considered a separate offense.

(Ord. No. 3511, § 9, 3-24-56)

Article VI

Sidewalk Replacement Financial Assistance

Sec. 17-162. Definitions.

With relation to this article:

Assets test means that any person having assets in excess of either:

Income means the total cash receipts to the residential property owner and spouse after taxes from all sources. These sources include money, wages and salaries after any deductions required by law, but not including food or rent in lieu of wages. They include receipts from self-employment or from one's own farm or business after deductions for business or farm expenses. They include regular payments from public assistance, social security, unemployment and workmen's compensation, strike benefits from union funds, veterans benefits, training stipends, alimony and military family allotments or other regular support from an absent family member or someone not living in the household; government employee pensions, private pensions and regular insurance or annuity payments; and income from dividends, interest, rents, royalties or income from estates and trusts. For eligibility purposes, income does not refer to the following money receipts: any assets drawn down as withdrawals from a bank, sale of property, house or car, tax refunds, gifts, one-time insurance payments or compensation for injury; also to be disregarded is noncash income, such as the bonus value of food and fuel produced and consumed on farms and the imputed value of rent from owner occupied farm or nonfarm housing.

Qualified property owner means any person owning residential property who meets the assets test and has an annual income equal to or less than eighty (80) percent of the poverty income levels set forth in the poverty guidelines chart established by the Community Services Administration, annually published in the Federal Register, in effect at the time of application. However, income itself shall be measured by the definition contained in subsection (b) of this section. Any person having a beneficial interest in benefited property may qualify for the sidewalk replacement financial assistance program.

(i) Five thousand dollars ($5,000.00) in liquid assets such as bank accounts, savings, certificates of deposits, stocks, bonds, etc.; or

(ii) Five thousand dollars ($5,000.00) in equity in assessed value of nonhomestead property;

shall be ineligible to participate in the sidewalk replacement financial assistance program, notwithstanding that he meets the income level qualifications set forth in this section. However, motor vehicles for personal use, household furnishing and the benefited property itself, as well as buildings located thereon, shall not be included in computing assets.

(Ord. No. 252-90, § 1, 11-29-90; Ord. No. 20-98, § 1, 1-22-98; Ord. No.101-2022, § 4, 9-22-22)

Sec. 17-163. Purpose.

It is the purpose of the sidewalk replacement grant program to enable the urban county government to assist residential property owners notified pursuant to section 17-148(a) to comply with their sidewalk repair and replacement duties and responsibilities as set forth in section 17-147.

(Ord. No. 252-90, § 1, 11-29-90; Ord. No. 221-96, § 3, 11-14-96)

Sec. 17-164. Sidewalk replacement grant program.

(a) The sidewalk replacement grant program is hereby established, subject to annual appropriations by the urban county council, to provide sidewalk replacement grants to owners of owner-occupied residential properties notified pursuant to section 17-148(a). The program will continue each fiscal year as long as appropriated funds remain available.

(b) Qualified property owners notified pursuant to section 17-148(a) may receive a grant for one hundred (100) percent of the reasonable cost of sidewalk replacement for their owner-occupied residential property as required by section 17-147. In order to be eligible for a one hundred (100) percent grant, an owner must submit a bid from a licensed contractor to and receive the approval of the division of code enforcement prior to the sidewalk replacement.

(c) Other property owners notified pursuant to section 17-148(a) may receive a grant for up to fifty (50) percent of the reasonable cost of sidewalk replacement for their owner-occupied residential property as required by section 17-147.

(d) Grants shall only be awarded for sidewalk replacement projects that have been or shall be completed within the fiscal year the grant is awarded. Approval shall be granted based upon the availability of funds and the reasonableness of the submitted bid, as considered in light of prevailing regional market rates per square foot.

(Ord. No. 252-90, § 1, 11-29-90; Ord. No. 221-96, § 3, 11-14-96; Ord. No.97-2019, § 1, 11-21-19)

Sec. 17-165. Administration.

No less than twenty (20) percent of the funds appropriated for the sidewalk replacement grant program shall be reserved for grants to qualified property owners with the remainder of the appropriated funds available for grants to all residential property owners. In the final thirty (30) days of each fiscal year, any funds reserved pursuant hereto that have not been dispersed and are not expected to be disbursed before the new fiscal year may be made available for grants to all residential property owners. The departments of finance and social services shall be responsible for administration of the program consistent with all provisions of this article.

(Ord. No. 252-90, § 1, 11-29-90; Ord. No. 221-96, § 3, 11-14-96; Ord. No.97-2019, § 2, 11-21-19)

Chapter 17A

Subdivisions[1]

1. **Editor's note(s)**—At the direction of the urban county government, the editors deleted the former provisions of chapter 17A, pertaining to subdivisions, derived from Ord. No. 5614, enacted Aug. 11, 1966, as amended. The urban county government has, by Ord. No. 179-69 passed Aug. 3, 1966, adopted new subdivision regulations which are on file in the urban county clerk's office.

Chapter 17B

Street Trees

Article I. General Provisions

Section 17B-1. Definitions.
Section 17B-2. Tree planting.
Section 17B-3. Tree removal.
Section 17B-4. Abuse or damage of street trees.
Section 17B-5. Appeals.
Section 17B-6. Tree board.
Section 17B-7. Tree topping.
Section 17B-8. Tree maintenance, public rights-of-way or designated tree planting easement.
Section 17B-9. Tree protection.
Section 17B-10. Suggested and unacceptable tree species.
Section 17B-11. Reserved.
Section 17B-12. Violation.

Article I

General Provisions

Sec. 17B-1. Definitions.

(a) The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section:

Hazardous tree shall mean any street tree that is dead, diseased, or insect infested such that it poses a health threat to neighboring trees or creates a threat to the public safety or to property.

Large tree shall mean any tree species which normally attains a height in excess of fifty (50) feet at maturity.

Medium tree shall mean any tree species which normally attains a height between fifteen (15) feet and fifty (50) feet at maturity.

Person shall mean any person, corporation, partnership, company, contracting firm or other entity, including those employed under a contract with the urban county government.

Root zone shall mean the circular area on the ground around the trunk of the tree extending to or just outside the dripline or the edge of the canopy that contains the majority of the tree's roots.

Small tree shall mean any tree species which normally attains a height between ten (10) feet and fifteen (15) feet at maturity.

Street tree shall mean any tree within the urban county government right-of-way or designated tree planting easement, excepting those trees regulated pursuant to article 18 of the Zoning Ordinance or the Downtown Street Tree Ordinance.

Tree planting easement shall mean a planting area with a minimum width of ten (10) feet located immediately adjacent and parallel to the curb or edge of pavement or in a designated easement per an approved development plan.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 30-2005, § 1, 2-10-05; Ord. No. 44-2023, § 1, 4-27-23; Ord. No. 68-2024, § 1, 7-2-24)

Sec. 17B-2. Tree planting.

(a) Any person may plant a tree within the urban county government right-of-way immediately adjacent to their property upon obtaining a permit from the division of environmental services.

(b) The permit shall be granted providing the following conditions are met:

(1) The tree to be planted is not an unacceptable tree species, as provided in section 17B-10 of this chapter.

(2) The minimum size of the planting area complies with the requirements of Article 6-10 of the Land Subdivision Regulations.

(3) If installed between the sidewalk and the street, the tree location is to be at least fifty (50) feet in advance of stop or yield signs, twenty-five (25) feet in advance of any other standard regulatory or warning signs, and ten (10) feet from fire hydrants or utility poles.

(4) Only small trees shall be permitted for planting in areas where overhead utility wires are located or where utility easements for overhead utility wires have been dedicated.

(5) The property owner shall call Kentucky 811 to locate utilities and check proposed planting sites for compliance with requirements relating to utilities, obstructions and potential interference with future construction, including, but not limited to, compliance with KRS 367.4901 et seq.

(6) The property owner shall maintain the tree after the tree is planted. Maintenance shall include watering, pruning, removal of dead or diseased limbs and insect control, as necessary. The property owner also shall be responsible for any damage to existing utilities caused by the tree installation.

(c) The division of environmental services may waive any of the conditions in granting a permit where such action would promote the preservation of the health, integrity or appearance of an area's tree population. Further, where such action would promote the public welfare, the urban forester or his designee may condition the granting of a permit upon the applicant's agreement to plant only a certain species of tree.

(d) The division of environmental services may deny a permit although all conditions have been met, but only for just cause based on circumstances unique to the property affected which would create a threat to public welfare and/or safety if the proposed planting were permitted.

(e) The decision of the division of environmental services shall be made within fourteen (14) days after an application is filed. Failure to issue such decision within said time period shall have the same effect as approval of the application.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 113-2000, § 1, 4-20-00; Ord. No. 328-2001, § 1, 12-13-01; Ord. No. 30-2005, § 1, 2-10-05; Ord. No. 44-2023, § 2, 4-27-23; Ord. No. 068-2024, § 2, 7-2-24)

Sec. 17B-3. Tree removal.

(a) No person shall remove a tree larger than three (3) inches in diameter, measured at a point four and one-half (4½) feet above the ground within the urban county government right-of-way without obtaining a permit from the division of environmental services.

(b) The permit shall be granted provided the tree to be removed is dead or dying.

(c) The division of environmental services may issue permits for the removal of live trees only in special circumstances. Instances where a permit for the removal of a live tree may be issued include, but are not limited to, the following:

(1) The tree is a threat to the public safety;

(2) The tree is a threat to the health of other trees in the community; or

(3) The tree is to be replaced by a more desirable tree.

(d) If the division of environmental services determines that a street tree is a hazardous tree, the division can order the property owner to remove the hazardous tree, including the associated stump, in a timely manner, as determined by the division of environmental services at the property owner's expense.

(e) The division of environmental services can order the property owner to remove any street tree, including the associated stump, planted without a permit, or in violation of permit conditions.

(f) Nothing contained in this chapter is intended to infringe on the authority of the urban county engineer, pursuant to KRS 179.070, to remove trees from the right-of-way of any publicly dedicated road when the trees become a hazard to traffic. If a tree is removed from the right-of-way under the authority of the urban county engineer as provided in KRS 179.070, the adjacent property owner shall bear the cost and responsibility of removing any associated stump.

(g) Except as provided in subsection (e) above, any person who removes a tree within the urban county government right-of-way shall replace the removed tree in accordance with the requirements set forth in section 17B-2(b). This requirement may be waived by the division of environmental services where replacement would be inappropriate under the standards set forth in section 17B-2(b).

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 113-2000, § 2, 4-20-00; Ord. No. 328-2001, § 2, 12-13-01; Ord. No. 30-2005, § 1, 2-10-05; Ord. No. 44-2023, § 3, 4-27-23; Ord. No. 068-2024, § 3, 7-2-24)

Sec. 17B-4. Abuse or damage of street trees.

No person shall:

(a) Intentionally damage, cut, poison, carve, transplant or remove any tree without a permit as required by section 17B-3 of this chapter;

(b) Park any motor vehicle or otherwise store materials of any kind, that may compact the soil in the root zone;

(c) Attach any rope, wire, nails, advertising posters or other contrivance to any street tree;

(d) Allow any gaseous liquid, herbicide or solid substance which is harmful to trees to come in contact with them; or

(e) Set fire or permit any fire to burn when such fire or the heat thereof will injure any portion of any tree.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 44-2023, § 4, 4-27-23; Ord. No. 68-2024, § 4, 7-2-24)

Sec. 17B-5. Appeals.

Except as otherwise provided herein, any person adversely affected by any decision of the division of environmental services in the application or interpretation of any of the provisions of this chapter may appeal the decision of the division of environmental services to the tree board established by this chapter.

(a) The appeal provided herein shall be taken by filing written notice thereof with the clerk of the urban county council, with a copy thereof to be filed with the urban forester within ten (10) days from notification of the decision. The written notice provided for herein shall recite the reasons why the appeal is being taken.

(b) The appeal provided herein shall be heard at the first tree board meeting following the filing of this appeal. The urban forester, as a member of the tree board, shall abstain from voting on the appeal.

(c) Notwithstanding the foregoing, all appeals from civil citations issued pursuant to Section 17B-12 of the Code of Ordinances shall be taken by filing an appeal with the infrastructure hearing board, with the citations and civil process to conform to Section 17B-12 and Chapter 2B of the Code of Ordinances.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 113-2000, § 3, 4-20-00; Ord. No. 328-2001, § 3, 12-13-01; Ord. No. 30-2005, § 1, 2-10-05; Ord. No. 44-2023, § 5, 4-27-23)

Sec. 17B-6. Tree board.

(a) A tree board, appointed by the mayor, shall be established. The tree board shall consist of fifteen (15) members including the following:

(1) Eight (8) concerned and interested residents of Lexington, Fayette County, two (2) of whom shall be professionals in arboriculture;

(2) The commissioner of environmental quality and public works, or their representative;

(3) The director of parks and recreation, or their representative;

(4) The director of engineering, or their representative;

(5) A member of the urban county council, or their representative;

(6) The director of planning or their representative;

(7) The urban forester; and

(8) The director of streets and roads or their representative.

(b) The membership of the commissioner of environmental quality and public works, the director of parks and recreation, the director of engineering, the director of planning, the urban forester, and the director of streets and roads, or their respective representatives shall serve ex officio. The urban county council member or their

representative shall serve for the duration of their term in office. All other tree board members shall serve terms of four (4) years. All tree board members may only serve two (2) consecutive full terms. Members who have served two (2) consecutive full terms shall not be eligible for re-appointment to the tree board until the lapse of twelve (12) months from the end of their second consecutive full term.

(c) In the event a vacancy shall occur during the term of any appointed member, a successor shall be appointed for the unexpired portion of the term. All members of the tree board shall serve without pay.

(d) The tree board shall establish the board's rules, regulations and procedures and arrange for the holding of meetings on a regular basis, with not less than ten (10) meetings per calendar year.

(e) The duties of the tree board shall be as follows:

(1) To promote urban forestry and advise appropriate municipal agencies on arboricultural matters.

(2) To hear all appeals from any decision of the division of environmental services in the application or interpretation of any of the provisions of this chapter as authorized herein, notwithstanding appeals from civil citations issued pursuant to Section 17B-12 of the Code of Ordinances, and to adopt rules for the conduct of such hearings, which rules shall uniformly apply to all such appeals and shall provide that both the appellant and the appellee shall have the right to:

(i) Offer and examine witnesses and present evidence in support of their cases;

(ii) Cross-examine witnesses and offer evidence to refute evidence offered in opposition; and

(iii) Following the hearing of such appeals, receive the board's decision reduced to writing, such decision to contain the findings of fact based upon evidence produced at the hearing.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 113-2000, § 4, 4-20-00; Ord. No. 328-2001, § 4, 12-13-01; Ord. No. 30-2005, § 1, 2-10-05; Ord. No. 44-023, § 6, 4-27-23; Ord. No. 068-2024, § 5, 7-2-24)

Sec. 17B-7. Tree topping.

(a) It shall be unlawful as a normal practice for any person to top any tree within the urban county right-of-way or designated tree planting easement. "Topping" is defined as the severe cutting back of limbs to stubs larger than three (3) inches in diameter within the tree's crown to such a degree so as to remove the normal canopy and disfigure the tree. Trees severely damaged by storms or other causes, or trees under utility wires or other obstruction where other pruning practices are impractical, can be exempted from this section only by written approval of the urban forester or their designee.

(b) It shall be unlawful to prune any tree within the urban county right-of-way or designated tree planting easement in such a way as to remove the normal canopy or twenty-five (25) percent or more of the crown for the purpose of increasing visibility of outdoor signs or building facades.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 79-2004, § 1, 4-22-04; Ord. No. 110-2005, § 1, 5-5-05; Ord. No. 44-2023, § 7, 4-27-23)

Sec. 17B-8. Tree maintenance, public rights-of-way or designated tree planting easement.

Owners of street trees shall provide reasonable care and maintenance to trees within the urban county government right-of-way or tree planting easement, including as appropriate, watering, pruning, insect control and removal of dead or diseased limbs, and removal of any vine or other invasive plant or growth that masks potential defects of the tree.

It shall be unlawful for the owner or occupant of any building or lot to permit any tree, including street trees, to grow in a manner which interferes with a normal sidewalk located on such lot or within an urban county government right-of-way adjoining such lot, or street traffic, or to grow so as to pose a threat to safety or public rights-of-way due to obstruction of view, obstruction of passage, or in any other manner.

The minimum clearance of any overhanging portion thereof shall be seven (7) feet over sidewalks and twelve (12) feet over all streets except truck routes which shall have a clearance of fourteen (14) feet.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 30-2005, § 1, 2-10-05; Ord. No. 194-2010, § 2, 11-18-10)

Sec. 17B-9. Tree protection.

All street trees within ten (10) feet of any excavation or construction of any building, structure, street work, or sidewalk, shall be guarded with a protective barrier of at least eight (8) feet square. All building materials, dirt or other debris shall be kept outside the barrier. Any trees damaged or removed due to excavation or construction shall be replaced in the original location or as close to the original location as possible by the person doing the excavation or construction.

Replacement trees shall at a minimum meet original street tree requirements.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 44-2023, § 8, 4-27-23)

Sec. 17B-10. Suggested and unacceptable tree species.

Trees with characteristics that make them appropriate for use in the public right-of-way and which are recommended as suggested street trees can be found in the Planting Manual for the Lexington-Fayette Urban County Government. Characteristics that make trees unacceptable for use in public rights-of-way and are not permitted for street trees include, but are not limited to:

(1) Disease or insect problems;

(2) Dirty, drooping branches, objectionable fruit or bark;

(3) Weak-wooded, apt to lose large branches in wind or with age;

(4) Unpredictable or irregular habits that may develop;

(5) Root problems, shallow and destructive roots; or

(6) Unsafe, dangerously thorny or poisonous.

(Ord. No. 70-94, § 1, 5-5-94; Ord. No. 44-2023, § 9, 4-27-23)

Sec. 17B-11. Reserved.

Sec. 17B-12. Violation.

Any violation of this chapter may be enforced through the issuance of a civil citation. Such civil citations shall be construed to provide an additional or supplemental means of obtaining compliance with this chapter. All citations issued pursuant to this chapter shall be issued by the citation officers authorized to issue such citations by section 14-10 of the Code of Ordinances and shall be referred to the infrastructure hearing board with the citations and the civil process to conform to Chapter 2B of the Code of Ordinances.

(a) Prior to the issuance of the first civil citation for a violation of a section of this chapter, the urban county government shall issue a notice of violation, which shall specify a time period of at least twenty-four (24) hours for the correction of the violation. The time period specified shall not impose unrealistic requirements under prevailing weather and site conditions. If the violation is not corrected as specified in the written notice, the urban county government may issue a civil citation. A notice of violation shall precede the issuance of the first civil citation for such offense unless the violation is deemed to be a serious threat to the public health, safety and welfare; or, if in the absence of immediate action, the effects of the continuation of the violation would be irreparable or irreversible. No notice of violation shall be required prior to the issuance of a citation for any offense which occurs after the first citation is issued to a person or entity.

(b) Appeal of the civil citation may be made to the infrastructure hearing board, as provided in sections17B-5 and 16-76 of the Code of Ordinances.

(c) The maximum civil fine that may be imposed for a violation of this chapter is two thousand five hundred dollars ($2,500.00), and each day on which any such violation shall continue shall be deemed a separate offense. The amount of the maximum civil fine for each violation shall be specified in a civil citation issued pursuant to this section.

(d) The compliance history of the violator, the degree of environmental harm caused by the violation, and whether the violation demonstrates a willful and knowing disregard for the environment or the requirements of chapter 17B shall be considered when determining the amount of the civil fine. The division of environmental services may consider a reduction in the assessed civil penalty amount considering the violator's good faith efforts to correct the violation as stipulated in the citation.

(e) When there is reason to believe that the violation poses a serious threat to the public health, safety or welfare; or in situations where continuation of the violation would be irreparable or irreversible, the government may, without further notice, proceed to abate the conditions. In such cases, the government may, in addition to any fine imposed herein, charge the responsible person, persons or entities with the cost of the abatement, including equipment expense, disposal fee, if any, and an administrative fee of one hundred fifty dollars ($150.00). Citations, if issued, shall not preclude the government from abating the conditions and billing the responsible person, persons or entities for the cost of abatement.

(f) The urban county government may file a lien for civil fines, administrative fees, and abatements, in accordance with section 2B-9 of the Code of Ordinances and KRS 65.8835.

(g) Nothing contained herein shall prohibit the urban county government from enforcement of this chapter by any means authorized by law.

(Ord. No. 247-2007, § 1, 11-1-07; Ord. No. 221-2016, § 26, 12-6-16; Ord. No. 44-2023, § 12, 4-27-23; Ord. No. 068-2024, § 7,7-2-24)

Chapter 17C

Public Rights-of-Way

Section 17C-1. Title.

Section 17C-2. Purpose; not in lieu of franchise; not intended to impair existing contracts; reservation of regulatory powers.

Section 17C-3. Definitions.

Section 17C-4. Incorporated documents.

Section 17C-5. Rules of construction.

Section 17C-6. Administration; enforcement.

Section 17C-7. General conditions related to facilities located in the rights-of-way.

Section 17C-8. Existing facilities.

Section 17C-9. Requirement to register and pay fees; registration required; effect of registration; exceptions.

Section 17C-10. Registration statement.

Section 17C-11. Rejection or cancellation of registration.

Section 17C-12. Reconsideration of rejection or cancellation.

Section 17C-13. Term of registration.

Section 17C-14. Registration fee.

Section 17C-15. Emergencies; power to order repairs.

Section 17C-16. Insurance.

Section 17C-17. Indemnification; hold harmless.

Section 17C-18. Joint planning and construction; coordination of excavation.

Section 17C-19. Installation, relocation or removal of facilities.

Section 17C-19.2. Aesthetic standards.

Section 17C-20. Poles, towers, and support structures.

Section 17C-21. Permits required; notice of activities; exceptions; denials.

Section 17C-22. Permit fees; credits; display.

Section 17C-23. Performance bond.

Section 17C-24. Patching and restoration standards.

Section 17C-25. Inspection.

Section 17C-26. Appeal.

Section 17C-27. Right-of-way maintenance fund.

Section 17C-28. Right-of-way vacation.

Section 17C-29. Town Branch Commons.

Sec. 17C-1. Title.

This chapter shall be known as the "Lexington-Fayette Urban County Government Public Right-of-Way Ordinance", hereinafter the "chapter".

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-2. Purpose; not in lieu of franchise; not intended to impair existing contracts; reservation of regulatory powers.

(a) **Purpose.** The purpose and intent of this chapter is to establish and promote a policy and regulations specifically pertaining to the rights-of-way that:

(1) Govern the placement and maintenance of certain facilities that are used to provide utility or similar services;

(2) Promote their conservation;

(3) Provide for the granting and management of reasonable access thereto;

(4) Ensure that the government's current and ongoing costs of granting and regulating private access thereto and use thereof are borne by the party seeking such access and causing such cost;

(5) Provide for the payment of fair and reasonable fees to the government to ensure that this chapter is properly administered and enforced;

(6) Minimize street cuts, damages to persons or property, and hardship to the general public;

(7) Promote cooperation among parties using the rights-of-way;

(8) Prescribe reasonable requirements regarding the placement and management of facilities therein consistent with federal and state law.

(b) **Chapter not in lieu of franchise.** Compliance with the requirements of this chapter shall not excuse any person from complying with all other requirements of law, including holding a valid franchise, contract or easement of the government. Any franchise, contract or easement may include additional regulations, obligations, fees and costs.

(c) **Chapter not intended to impair existing contracts.** Nothing in this chapter is intended to impair the legal right or obligation of any contract, franchise, or easement previously granted by the government.

(d) **Reservation of regulatory and police powers.** The government does not diminish or to any extent lose, waive, impair or lessen the lawful powers and rights which it now or may have hereafter to regulate the use of the rights-of-way or charge reasonable compensation for such use.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-3. Definitions.

The following definitions apply to this chapter. References herein to "sections" are, unless otherwise specified, references to sections of this chapter.

Annual general permit means a permit issued annually by the division to perform the following types of activities within the right-of-way in locations other than high density utility areas:

(1) Installation or replacement of wiring on existing poles, towers, and support structures;

(2) Repair, replacement or maintenance of existing above-ground facilities, including poles, towers, and support structures, in the same location with no street, curb, apron, or sidewalk cuts, provided any replacement facilities are not more than twenty (20) percent larger in size than the existing facilities;

(3) Excavations of existing facilities of up to twenty-five (25) square feet with no street, curb, apron or sidewalk cuts, with the exception of subsections (4) and (5) immediately following;

(4) Installation of new underground lines in trenches of less than two hundred fifty (250) linear feet with a width of six (6) inches or less and with no street, curb, apron or sidewalk cuts;

(5) Installation of new underground lines in trenches of less than fifty (50) linear feet with a width of twenty-four (24) inches or less and with no street, curb, apron or sidewalk cuts;

(6) Any underground boring, except borings larger than three (3) inches in diameter which are performed in locations under a street, curb, apron or sidewalk; or

(7) Any work performed inside existing conduits.

The annual general permit does not cover the installation of any facility that is not listed above. The permittee shall be required to provide daily notifications to the division as further provided in subsection 17C-21(a). Any activity with respect to facilities in the right-of-way that is not listed above or otherwise exempted under this chapter shall require that either an installation permit or surface cut permit, as appropriate, be obtained prior to performing the activity.

Communications facility means, collectively, the equipment at a fixed location or locations within the public right-of-way that enables communication between user equipment and a communications network, including:

(1) Radio transceivers, antennas, coaxial, fiber-optic or other cabling, power supply (including backup battery), and comparable equipment, regardless of technological configuration; and

(2) All other equipment associated with the foregoing. The term does not include the pole, tower, or support structure to which the equipment is attached.

Council means the legislative body of the Lexington-Fayette Urban County Government.

Degradation means a decrease in the useful life of the right-of-way caused by excavation in or disturbance of the right-of-way, resulting in the need to reconstruct such right-of-way earlier than would be required if the excavation did not occur.

Director means the director of the government's division of engineering, or his designee, unless otherwise specified.

Division means the Lexington-Fayette Urban County Government's division of engineering.

Emergency means a situation when placement or maintenance of facilities is needed to be undertaken immediately because of a danger to human life or health or of significant damage to property, including, but not limited to, unanticipated leaks interruptions or reductions in existing services, or other situations defined as being emergency or dangerous conditions pursuant to federal, state or local law. The installation of facilities that only serve to expand existing service or provide new service shall not be considered an emergency.

Excavate or excavation means to dig into or in any way remove or physically cut, disturb or penetrate any part of a right-of-way.

Facility or facilities means any tangible asset in the right-of-way, including, but not limited to, equipment and apparatus such as pipes, conduits, wires, cables, amplifiers, transformers, fiber optic lines, antennae, pole, tower, or support structure, or ducts, required, necessary, used or useful in the provision of utility or other services.

Government means the Lexington-Fayette Urban County Government, an urban county government and political subdivision of the Commonwealth of Kentucky created pursuant to Chapter 67A of the Kentucky Revised Statutes.

Greenway means any area designated as a greenway in the comprehensive plan, as amended.

High density utility areas means geographic areas in which significant issues exist with respect to the location of facilities because of space or density issues in the right-of-way. The following geographic areas are currently identified as high density utility areas:

(1) The area located inside and abutting to Third Street on the northeast, Midland Avenue and Rose Street on the south, Maxwell Street on the southwest and Cox Street and Newtown Pike on the northwest;

(2) The area abutting Corporate Drive;

The council, through the adoption of a resolution or ordinance, may add or delete geographic areas that constitute high density utility areas upon the recommendation of the director. Prior to the consideration of change in the scope of the high density utility areas by the council, all registrants shall be notified by the government, and an attempt to reach a consensus on the scope of the change shall be made.

Installation permit means a permit issued by the division to perform any construction, installation, repair, replacement or maintenance of facilities in the right-of-way that is not covered by an annual general permit or a surface cut permit.

Lessee means a person who provides services within Fayette County solely by leasing facilities and who has no control over what or where or how any facilities are erected, installed, maintained, operated, repaired, removed, restored, or otherwise used.

Party or person means any natural or corporate person, business association or other business entity including, but not limited to, a partnership, a sole proprietorship, a political subdivision, a public or private agency of any kind, a utility, a successor or assign of any of the foregoing, or any other legal entity.

Pole means a utility, lighting, or similar pole made of wood, concrete, metal, or other material, located or to be located within a public right-of-way. The term does not include a tower or support structure.

Public utility or utility means a party that is defined in KRS ch. 278 as a utility and (i) is subject to the jurisdiction of the Kentucky Public Service Commission, the FCC, or the Federal Energy Regulatory Commission, or (ii) is required to obtain a franchise from the government to use and occupy the right-of-way pursuant to Sections 163 and 164 of the Kentucky Constitution.

Registrant means any party filing a registration statement required by this chapter.

Reseller service provider means person who provides services within Fayette County solely by reselling services and who has no control over what, where or how any facilities are erected, installed, maintained, operated, repaired, removed, restored or otherwise used.

Right-of-way means the surface of and the space above and below a public roadway, highway, street, freeway, lane, path, sidewalk, alley, court, boulevard, avenue, parkway, cartway, bicycle lane or path, public sidewalk, or easement held by the government for the purpose of public travel and shall include rights-of-way as shall be now held or hereafter held by the government. A right-of-way does not include the airwaves above a right-of-way with regard to cellular or other non-wire telecommunications or broadcast service. The right-of-way shall not include greenways, and the ability to install facilities in a greenway shall require separate approval pursuant to the appropriate governmental legislation or regulation.

Small wireless facilities are wireless facilities that meet each of the following conditions:

(1) The facilities are mounted on poles, towers, or support structures fifty-five (55) feet or less in height including their antennas;

(2) Each antenna associated with the deployment, excluding associated antenna equipment, is no more than three (3) cubic feet in volume;

(3) All other wireless equipment associated with the structure, including the wireless equipment associated with the antenna and any associated equipment on the structure, including collations, is no more than fifteen (15) cubic feet in volume, cumulatively. The following types of associated, ancillary equipment are not included in the calculation of equipment volume: electric meter, telecommunications demarcation box, grounding equipment, power transfer switch, cut-off switch, and vertical cable runs for connection of power and other services;

(4) The facilities do not require antenna structure registration under federal law;

(5) The facilities do not result in human exposure to radio frequency radiation in excess of the applicable safety standards provided in federal law; and

(6) Small wireless facilities do not include poles, towers, or support structures.

Support structure means a structure in the public right-of-way other than a pole or a tower to which a wireless facility is attached at the time of the application for an installation permit.

Surface cut permit means a permit issued by the division to excavate, dig or cut into and through a paved street surface within the rights-of-way or to bore, dig or tunnel under such a paved street surface except as authorized by an annual general permit.

Tariff means the internal regulations or guidelines of the utility industry as promulgated or adopted by the Kentucky Public Service Commission or the Federal Communications Commission.

Tower means any structure in the public right-of-way built for the sole or primary purpose of supporting a wireless facility. A tower does not include a pole or a support structure.

Town Branch Commons includes:

(1) The portion of multi-use path that runs from West Main Street (US 25) at Tucker Street to the slip lane at the northwest corner of Triangle Park, via the southern side of West Vine Street.

(2) The bicycle facility and pedestrian path from the southern side of West Main Street (US 25) at the northwest corner of Triangle Park via the southern side of West Vine Street, crossing to the north side of West and East Vine Street (US 25) at Broadway for the full length of Vine Street until Vine Street intersects with Main Street.

(3) The multi-use path from the northwest corner of Main Street and Vine Street to the corner of East Third Street, via the western side of Midland Avenue (US 60).

Wireless facility means a communications facility that enables wireless services, but does not include: (i) the support structure, tower, or pole on, under, or within which the equipment is located or collocated; or (ii) coaxial, fiber-optic or other cabling that is between communications facilities or poles or that is otherwise not immediately adjacent to or directly associated with a particular antenna. A small wireless facility is one (1) example of a wireless facility.

Wireless services means any wireless services using licensed or unlicensed spectrum, whether at a fixed location or mobile, provided to the public.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 1, 6-9-05; Ord. No.18-2019, § 1, 3-21-19)

Sec. 17C-4. Incorporated documents.

A number of documents are incorporated herein by reference, including, but not limited to, certain other written and published ordinances, resolutions, regulations, requirements and standards. All such references are to have the same effect as if the documents were reproduced verbatim herein, and all such documents automatically include any and all subsequent amendments thereto as long as the parties that will be effected by such amendments have the ability to meaningfully participate in the process that is utilized to amend such document, or unless expressly indicated otherwise by a provision of this chapter. This provision shall not be interpreted to require that work performed prior to the adoption or amendment of such a document be subject to any newly created standard.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-5. Rules of construction.

(a) Shall is mandatory, not merely directive.

(b) **Applicable law.** The law of the Commonwealth of Kentucky, and the United States of America, if applicable, governs any construction, enforcement and performance of this chapter.

(c) **Severability.** If any section, subsection, sentence, clause, phrase, or portion of this chapter is for any reason held invalid or unconstitutional by any court or administrative agency of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions thereof.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-6. Administration; enforcement.

(a) The director or the person designated as the director in his absence is the principal government official responsible for the administration of this chapter and he or she may delegate any or all of the duties hereunder, except those duties set forth in sections 17C-11, 17C-12 and 17C-15.

(b) The division shall be responsible for enforcing compliance with this chapter and may adopt procedures consistent with this chapter that are necessary for its administration or enforcement.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-7. General conditions related to facilities located in the rights-of-way.

(a) **Responsibility for costs.** Any act that a party is required to perform under this chapter shall be performed at that party's cost, unless expressly provided for otherwise in this chapter.

(b) **Construction procedures and placement of facilities; obligation to minimize interference with the rights-of-way:**

(1) All activities in the rights-of-way that are subject to this chapter performed in compliance with all applicable laws, ordinances, departmental rules and regulations. Each party subject to this chapter must obtain all other necessary permits, licenses, and authority and pay all fees required by this chapter or other applicable rule, law or regulation.

(2) The government may require that facilities be installed at a particular time, at a specific place or location, or in a particular manner as a condition of access to a particular right-of-way; may deny access if a party is not willing to comply with the government's reasonable requirements; and may remove, or require removal of, any facility that is not installed in compliance with the requirements of this chapter and charge that party for all the costs associated with removal. The criteria to be utilized in making determinations regarding installation, relocation or removal of facilities are contained in section 17C-19. Regardless of any other criteria, in the event the placement or location of a facility in a particular area of the right-of-way would constitute a public safety concern, the director may deny the placement of that facility in that area or order its relocation or removal.

(3) In order to minimize interference with the use of the rights-of-way by others, each party subject to this chapter will make reasonable efforts to minimize the number of surface cuts made, will make reasonable efforts to coordinate such surface cuts with the government's paving schedule, and, if appropriate, enter into joint trenching and other arrangements with other parties.

(4) Any right-of-way or public property that is disturbed or damaged during the construction, excavation, installation, operation, maintenance or repair of a facility shall be repaired within twenty-one (21) calendar days of the completion of those activities which caused the disturbance or damage by the party that disturbed or damaged the rights-of-way or public property. This time may be extended by the urban county engineer or his representative upon demonstration of reasonable cause by the subject party. A party's failure to take reasonable steps to complete all restoration work due under a surface cut permit within the time period stated above will result in the cost of the permit fee required pursuant to Subsection 17C-22(d) being re-assessed as an additional fee each time there is a failure to meet the time limit. Any additional fee(s) shall be assessed at the time of inspection or re-inspection and payable to the Director upon permit renewal pursuant to Subsection 17C-22(e) in addition to the amount of the original fee(s) provided for in Subsections 17C-22(c) and 17C-22(d) of this Chapter.

(5) Parties subject to this chapter shall make every reasonable effort to stack or bundle conduit where feasible so as to occupy as little space as possible in the right-of-way. Consistent with state law, or in the absence of state law the current edition of the National Electrical Safety Code.

(6) The minimum clearance of wires and cables above the rights-of-way, and also the placement of underground facilities shall conform to the standards established by state law, or in the absence of state law the current edition of the National Electrical Safety Code.

(c) **Duty to maintain all property in right-of-way.** All parties subject to this chapter must maintain all of their facilities located in the right-of-way in a manner that promotes the public safety. By way of example, but

not limitation, all facilities, including, but not limited to, poles, towers, support structures, and manholes, must be maintained in a safe condition at all times. In the event any facility in the right-of-way is endangering the public safety, the party responsible for such facility shall take steps to rectify the situation immediately upon notification and in accordance with section 17C-15.

(d) **Street trees.** The removal or trimming of existing trees in the right-of-way shall comply with the government's street tree ordinance, tree protection ordinance, or the provisions of article 6-10, subdivision regulations, concerning street trees, as applicable.

(e) **Standards.** All parties subject to this chapter shall at all times use ordinary care and shall install and maintain in use commonly accepted methods and devices and utilize due diligence in performing any installation, construction, maintenance or other work in the right-of-way.

(f) **Relocation or removal.** Pursuant to section 17C-19 and consistent with the procedures and criteria contained therein, all parties subject to this chapter shall, upon the provision of reasonable written notice of, and at the direction of the director, promptly relocate or remove facilities, or rearrange aerial facilities, if required by a tariff, state or federal law, a franchise agreement with the government, or the director in exercising his authority under section 17C-19.

(g) **Other requirements specific to registrants.** In addition to the other requirements set forth herein, each registrant shall use its best efforts to:

(1) Cooperate with other registrants and the government for the best, most efficient, most aesthetic and least obtrusive use of the rights-of-way, consistent with safety, and to minimize traffic and other disruptions including surface cuts;

(2) Participate in such joint planning, construction and advance notification of right-of-way work, including coordination and consolidation of surface cut work;

(3) Cooperate with the government in any emergencies involving the rights-of-way as further provided in section 17C-15, including the maintenance of a twenty-four (24) hour emergency contact;

(4) Designate a single point of contact for all purposes hereunder, as well as comply with such other contact and notice protocols as required by this chapter or as promulgated by the director pursuant to this chapter;

(5) Require that any party performing any work or service in the right-of-way on behalf of said registrant will comply with all applicable provisions of this chapter as well any other additional local regulation pertaining to the performance of such work, and will identify the registrant for whom such contractor is working. Said registrant shall be responsible and liable hereunder only to the government for any damage to the right-of-way caused by the actions of any such subcontractor or others as if said registrant had performed or failed to perform any such obligation;

(6) Comply in all respects with the requirements of KRS 367.4901, et seq., regarding an excavator's responsibilities pertaining to the location of facilities; and

(7) Take reasonable steps to provide advance notice to all persons who reside on property where any work or service in the right-of-way is to be performed and attempt to notify such persons prior to entering private property.

(h) **Utility coordinating committee.** Each registrant that provides utility services shall assign, on an annual basis, a representative to serve on the utility coordinating committee (the "committee"), which shall be established by the director. The membership of the committee shall consist of each registrant's representative and the director, and it shall meet on at least a quarterly basis, and otherwise as often as the director deems necessary. It shall be deemed a violation of this chapter if such a registrant fails to attend more than two (2) consecutive quarterly meetings or more than three (3) quarterly meetings in any calendar year. The committee shall:

(1) Make technical recommendations to the director for the efficient implementation of this chapter and discuss general issues pertaining to the management of the rights-of-way, including but not limited to coordination of utility activity in the rights-of-way, patching and restoration standards, permitting processes and inspections, the government's annual pavement ratings and plan, and other matters pertaining to this chapter and the management of the rights-of-way; and

(2) Review annual work plans of each utility that involve substantial activity in the rights-of-way and the right-of-way management and maintenance fund created under section 17C-27.

The committee shall make any formal recommendation by a simple majority vote of its members, and may elect officers annually, including a chairperson. The director shall create an agenda for each quarterly meeting and distribute it to the members of the committee along with any necessary supporting documentation at least five (5) days prior to the meeting.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 2, 6-9-05; Ord. No.144-2017, § 2, 10-12-17; Ord. No.18-2019, § 2, 3-21-19)

Sec. 17C-8. Existing facilities.

Facilities located in the rights-of-way prior to the effective date of this chapter may remain in the rights-of-way and shall not be considered in violation of this chapter provided the party responsible for such facilities under this chapter complies with the provisions of this chapter, including the filing of a registration statement and the payment of any applicable registration or franchise fee within one hundred twenty (120) days of its effective date. The registration statement of each party having any facilities within the rights-of-way as of the date this chapter is adopted shall contain a general description of such registrant's facilities to include the types of services offered and the locations within Fayette County in which such services are offered and a map of the registrant's general service

area within Fayette County. In addition, upon the request of the division and in order to assist the division with implementing or enforcing the provisions of this chapter, each registrant shall make available for inspection on a timely basis more detailed information, if available, regarding the location of its facilities.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-9. Requirement to register and pay fees; registration required; effect of registration; exceptions.

(a) **Requirement to register and pay fees.** Unless otherwise excepted by this chapter, it shall be unlawful for any party to install, operate, construct or maintain any facilities within the rights-of-way unless such facilities are registered with the government by filing the registration statement required herein and all applicable registration, annual general permit and franchise fees are paid to the government. Any person who installs, operates, constructs, or maintains any facilities within the rights-of-way before registering such facilities or obtaining the necessary permits, certificates, letters, or other documentation required pursuant to this chapter shall not only be required to pay the initial installation permit fee or surface cut permit fee required pursuant to subsection 17C-22, but shall also be subject to a reassessment of the installation permit fee or surface cut permit fee upon discovery that such work has commenced.

(b) **Registration.** Any party who owns any facilities within the right-of-way or who seeks to occupy the right-of-way to install, construct or maintain any facilities within the rights-of-way shall file a registration statement as further described herein.

(c) **Exceptions for reseller service providers and lessees.** A reseller service provider or a lessee shall not be required to register those facilities it utilizes solely for the purpose of reselling, or those facilities it utilizes as a lessee.

(d) **Effect of registration.** Registration does not convey legal or equitable title to the rights-of-way nor does it place a registrant in a position of priority with respect to other registrants. Registration does not excuse a party from having to obtain a franchise, lease or other agreement, if otherwise required; or from obtaining any required or necessary agreement with the government or other party with respect to the placement of facilities on the government's or another party's facilities.

(e) **Exceptions.** The following types of facilities are not required to be registered pursuant to this chapter and the party responsible for such facilities is not otherwise required to comply with the provisions of this chapter expressly pertaining to registrants. However the party responsible for such facilities is required to comply with all remaining provisions of this chapter that are not expressly limited to registrants, unless otherwise exempted.

(1) Newspaper stands;

(2) Signage;

(3) Facilities associated with sidewalk cafes or the sale of goods or merchandise;

(4) Facilities owned by the Commonwealth of Kentucky, including the University of Kentucky;

(5) Facilities installed to provide new development with connections to utility service and for which the government is provided performance and warranty surety protection under its land development regulations; and

(6) Facilities installed by the government that are not used to provide competitive utility services to customers in Fayette County, provided that such facilities are not used at any future time for the provision of competitive utility services. The government's division of sanitary sewers is not exempt from having to register its facilities or from complying with the remaining provisions of this chapter, unless otherwise exempted.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 3, 6-9-05; Ord. No.144-2017, § 3, 10-12-17)

Sec. 17C-10. Registration statement.

The registration statement required by subsection 17C-9(b) filed with the division and shall be in a form to be promulgated by the division, which shall include the following information:

(1) The identity and legal status of the registrant, including any affiliates who own or operate any facilities in the rights-of-way and the name, title, address, and telephone number of the individual responsible for the accuracy of the registration statement.

(2) The registrant's address, telephone number, facsimile number, e-mail address, as well as a local point of contact available to be contacted in the event of an emergency.

(3) A general description of all services that the registrant currently provides or offers to provide (i.e. water, sewer, gas, electric, telephony, internet, cable, video or other utility services) through the utilization of its facilities.

(4) A statement of the authority pursuant to which the registrant occupies the rights-of-way.

(5) A statement of the amount, if any, of any fee to which the registrant is subject pursuant to any franchise agreement, lease, or other agreement between the registrant and the government.

(6) Proof that the registrant is insured in the form of a copy of a certificate of insurance or self-insurance that is in compliance with the insurance requirements of section 17C-16 or its franchise agreement.

(7) If the registrant is a utility, the number of the registrant's certificate of authorization or license to provide utility service issued by the Kentucky Public Service Commission, or other state or federal authority, if any.

(8) **Notice of changes.** The registrant shall notify the division within thirty (30) days of any change in information contained in the registration statement. (Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-11. Rejection or cancellation of registration.

(a) Within ten (10) working days of the filing of the registration statement or the discovery of the inaccuracy of the registration statement by the division, the director shall provide written notice to any party who (1) does not possess proper authorization to occupy the rights-of-way with facilities, (2) fails to pay the appropriate registration fee, or (3) fails to accurately complete the registration statement. Such written notice shall specify the deficiency and shall notify the party what corrective action must be taken. If the party fails to correct the deficiency within ten (10) days, the director shall reject or cancel the registration unless it can be shown by the party that significant steps have been taken to correct the deficiency, upon which showing the director may provide an additional reasonable extension of time, or provide approval of the registration contingent upon the party's ability to correct the deficiency to the satisfaction of the director.

(b) A registrant who no longer continues to place, maintain, or own any facilities in the rights-of-way may cancel its registration upon providing the division with written notice of at least thirty (30) days.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-12. Reconsideration of rejection or cancellation.

(a) If the director rejects or cancels a registration statement pursuant to section 17C-11, the registrant may file with the director within ten (10) days of receipt of the notice of rejection or cancellation a written request for reconsideration, which must include the basis for the registrant's position.

(b) The director may hear any relevant evidence in deciding the reconsideration and will notify the registrant in the event that further information is required. The director shall render a final decision in writing within ten (10) days of receipt of the registrant's written request for reconsideration or the receipt of any further evidence, whichever is later, and will provide the registrant the basis for his decision.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-13. Term of registration.

A registration made pursuant to this chapter effective for a period of one (1) year beginning January 1 of each year. By no later than January 1 of each year, each registrant shall file with the division a new registration statement or a renewal of such registrant's registration on such form as shall be required by the division.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-14. Registration fee.

Each registrant that is not otherwise exempted under this chapter at the time of filing any registration statement and that does not have a valid current annual general permit from the government, shall pay an annual registration fee in the amount of two hundred fifty dollars ($250.00). Registrants having a valid current annual general permit from the government shall pay annually an amount intended to accurately capture their level of permitted activ-

ity in the right-of-way, as required in section 17C-22. Franchisees may elect to pay these fees as either a portion of their franchise fees, or in addition to their franchise fees, as so allowed by their franchise agreement and applicable state law.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 4, 6-9-05)

Sec. 17C-15. Emergencies; power to order repairs.

(a) A registrant shall notify the division by no later than noon the next business day, via website, facsimile or e-mail, of any event regarding its facilities already located within the right-of-way that it considers to be an emergency. The registrant may proceed to take whatever actions are necessary to respond to an emergency. Within five (5) business days of the discovery of the emergency, the registrant shall have applied for any necessary permit and provided the division with a written notification of said emergency, which notice shall include, at a minimum the time, date, location and extent of any excavation or other work performed. If the division becomes aware of an emergency regarding a registrant's facilities, the director will attempt to contact that registrant immediately.

(b) If the division determines that the right-of-way associated with a surface cut has degraded or caved-in more than one-half (½) inches below grade, and within two (2) years after any surface cut, it shall notify the party or parties responsible for making the surface cut of this determination and:

(1) In the case of a clear and immediate danger or hazard to vehicular or pedestrian traffic, the government shall order the party or parties responsible to take immediate precautionary measures to direct vehicular or pedestrian traffic around and away from the degradation or cave-in. In addition, the government shall order the party or parties responsible to make all necessary corrections and repairs to cure the immediate danger or hazard within five (5) days and perform any additional work consistent with the issuance of any necessary permit.

(2) In all other cases of degradation or cave-in the government shall order the party or parties responsible to take immediate precautionary measures to direct vehicular or pedestrian traffic around and away from the degradation or cave-in, and shall order the party or parties responsible to make all necessary corrections and repairs within thirty (30) days.

(3) In the event the division orders corrections or repairs and the party responsible fails to respond to reasonable deadlines set forth in said order, the division shall cause the necessary corrections and repairs to be made, and shall submit a statement for the costs incurred by the government in making such corrections and repairs to the responsible party, which statement shall include an additional administrative fee not to exceed five hundred dollars ($500.00). In that event, and if the said statement of costs and fees is not paid by the said responsible party within forty-five (45) days, the director shall suspend the issuance of all future permits to the said responsible party until such time as the said costs are paid.

(4) This section shall not be interpreted to preclude the government from taking any and all reasonable protective measures with respect to the right-of-way and the health and safety of the general public,

including but not limited to blocking the general public's access to the area, temporarily repairing the right-of-way or removing any facility that constitutes an immediate health or safety concern. The government shall not undertake to repair or remove a facility unless all other reasonable methods of response to the emergency have been exercised.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 5, 6-9-05)

Sec. 17C-16. Insurance.

Each registrant shall maintain in full force and effect a commercial general liability insurance policy reasonably acceptable to the government's division of risk management with a minimum policy limit of one million dollars ($1,000,000.00) per occurrence and shall provide the government with a certificate of insurance evidencing the insurance policy required by this section. The certificate shall state that the insurance policy shall not be canceled, materially changed or non-renewed until after thirty (30) days' notice has been provided to the government; however, insurance may be canceled and replaced with a policy that continues to meet the requirements of this section. A registrant may satisfy the insurance requirements and conditions of this section under a self-insurance plan that is acceptable to the government's division of risk management. The government reserves the right to impose additional insurance requirements as part of a franchise agreement.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-17. Indemnification; hold harmless.

(a) Each registrant shall defend, indemnify, and hold harmless the government, its officials, boards, members, agents and employees against any and all claims, suits, causes of action, proceedings, judgments for damages or equitable relief, and costs and expenses, including reasonable attorney's fees, arising from liability or claims of liability for bodily injury or death to persons or property damage in which the claim arises out of the installation, construction, repair, maintenance or operation of its facilities, and in the event of a final judgment being obtained against the government either independently or jointly with the registrant, the registrant shall pay such judgment with all costs and hold the government harmless thereon.

(b) The government shall notify the registrant in writing within a reasonable time of receiving notice of any issue it determines may require indemnification and the registrant shall defend the government at the cost of the registrant.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-18. Joint planning and construction; coordination of excavation.

(a) Any registrant owning, operating or installing facilities in the rights-of-way that provide water, sewer, gas, electric, telephony, internet, cable, video or other utility services, shall prepare and submit to the director a master plan. Registrants shall submit an initial master plan no later than one hundred eighty (180) days after the effective date of the chapter. Thereafter, each such registrant shall submit semi-annually, as required by

the director, a revised and updated master plan. As used in this subsection, the term "master plan" refers to a document reflecting any known future activity planned by the registrant to occur within one (1) year of its submission that would also require the issuance of a surface cut permit.

(b) The director shall keep all master plans confidential in accordance with the provisions of the Kentucky Open Records Act, KRS §§ 61.870, et seq., if directed by the registrant, and shall establish procedures to ensure that said master plans are utilized and inspected only for the purposes intended by this chapter.

(c) The government shall annually prepare a listing of streets that are to be repaved in the current government fiscal year, as well as an annual list of all streets eligible for resurfacing based on their pavement condition. The government shall provide each registrant with a proposed annual repaving list by no later than May 1 of each year, and the annual repaving list shall be made available for public inspection, including posting on the government's web-site by no later than July 1 of each year, and the annual eligibility list available by no later than January 15 of each year. These lists shall be kept on file with the director for review by the registrants. The final annual repaving list is contingent upon the approval of the council.

(d) Prior to applying for a surface cut permit, a party shall review the lists referenced above and shall coordinate, to the extent practicable, with each registrant, utility and street work shown on such plan to minimize damage to, and avoid undue disruption and interference with the public use of the rights-of-way.

(e) The issue of joint planning and coordination discussed at each regularly scheduled meeting of the utility coordinating committee pursuant to section 17C-7(h).

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-19. Installation, relocation or removal of facilities.

(a) **Provisions apply unless direct conflict exists.** The provisions of this section shall apply unless they directly conflict with a tariff, state or federal law, or the provisions of the applicant's franchise agreement with the government. This section shall not be interpreted to impair the ability of a party using an annual general permit to perform work under such a permit unless a public safety concern would arise if such work were to be performed.

(b) **General application.** Upon the written notice of and at the direction of the director, a registrant shall relocate or remove facilities, or rearrange aerial facilities, if required by a tariff, state or federal law, a franchise agreement with the government, or the director in exercising his authority under this section.

(c) **Coordination.** Registrants are encouraged to coordinate the installation, relocation or removal of their facilities with each other in order to avoid issues with respect to the location of facilities within the right-of-way.

(d) **Appeal.** Any party aggrieved by a determination of the director with respect to the installation, relocation, or removal of a facility may appeal such decision pursuant to section 17C-26.

(e) **Installation.**

(1) **Definition.** For purposes of this section, the term **install**, **installed** or **installation** shall mean placement of new facilities within the rights-of-way, including the replacement of existing facilities not covered under an annual general permit and the installation and collocation of small wireless facilities. An installation requires the issuance of an installation permit or surface cut permit.

(2) **Procedure.** The director shall notify the applicant if the director determines that a facility may not be installed as requested by the applicant. Upon determining that a facility may not be installed as requested, the director shall provide written notice to the applicant as early as practicable and in conformity with any specific applicable notice requirement. The notice shall contain a description of the area affected as well as the reason for the director's determination. The director may issue a permit that is contingent upon certain condition(s) being fulfilled with respect to the criteria contained below.

(3) **Criteria.** A decision by the government to deny an installation permit or surface cut permit application must be based on at least one (1) of the following criteria:

a. It significantly conflicts with the location of existing facilities or facilities that are planned or permitted for installation, or government improvements or facilities that are planned in that area;

b. It significantly conflicts with the timing of other ongoing activity taking place in the same area of the right-of-way, or with a previously scheduled activity;

c. It conflicts with the planned grading, re-grading, construction, reconstruction, widening or altering of any right-of-way or the construction, reconstruction, repair, maintenance or alteration of a public improvement, including, but not limited to, storm sewers, sanitary sewers and street lights;

d. It conflicts with an approved development plan in that geographic area that requires all or certain types of facilities to be located in certain locations, areas, or parts of the rights-of-way, including in the Town Branch Commons corridor, or is located in a high density utility area;

e. It is an above-ground facility other than a fire hydrant or other government-owned facility, that because of its size presents significant public safety concerns or violates guidelines or procedures pertaining to aesthetics found in section 17C-19.2 or as otherwise duly authorized by council or the director;

f. It fails to take reasonable measures to disguise or cover the facility as required by the government pursuant to guidelines or procedures pertaining to aesthetics found in section 17C-19.2 or as otherwise duly authorized by council or the director;

g. It conflicts with a requirement contained in the applicant's franchise agreement;

h. It is located in a type of right-of-way, such as a bicycle lane or path, in which the government has made a determination that facilities are not to be installed;

i. It would threaten public health, safety, or welfare or otherwise constitute a violation of the provisions of this chapter; or

j. The applicant is not otherwise in material compliance with the provisions of this chapter.

(4) **Reservation of rights.** Notwithstanding any other provision in this chapter, the government specifically reserves the right to order the removal or relocation of any facility installed after the effective date of this chapter, at no cost to the government, for which an installation permit or surface cut permit was not obtained.

(5) **Preclusion on cutting newly paved surfaces.** If any street is about to be resurfaced by the government, on advance written notice from the director pursuant to section 17C-18(c), the registrant shall make any extensions, changes, or installations of or to its facilities ahead of such activity. Registrant shall notify director by July 15 of its desire to perform such extensions, changes, or installations, and may be allowed up to ninety (90) additional days to complete the work. If any street is about to be constructed, reconstructed, widened, altered, or paved by the government, upon receipt of final plans from the director, the registrant shall make any extensions, changes, or installations of or to its facilities ahead of such activity. Depending on the amount of such extensions, changes, or installations to be performed, the registrant may be allowed up to one hundred twenty (120) days to complete the work. If the registrant fails to do such extensions, changes, or installations, it shall be precluded for a period of one (1) year from disturbing such paving without the express permission of the director. The director shall only grant such permission upon a sufficient showing by the registrant that undue hardship would be caused if the registrant were not allowed to disturb the pavement and that it shall satisfactorily comply with all other relevant provisions of this chapter, including the requirements contained in section 17C-24(a) pertaining to resurfacing.

(f) **Relocations.** The government shall have the ability to order the relocation of any facility located within the rights-of-way. The government shall not normally direct the exact location that the facility is to be relocated to, but instead shall work with the registrant or permittee as part of the permitting process. There shall be no fee associated with a permit required as a result of a relocation ordered by the government.

(1) **Public projects.** Whenever the government shall grade, regrade, construct, reconstruct, widen or alter any right-of-way or shall construct, reconstruct, repair, maintain or alter a public improvement, including, but not limited to, storm sewers, sanitary sewers and street lights therein, it shall be the duty of the registrant, when so ordered by the government, to change, relay and relocate its facilities in the right-of-way at no cost to the government so as to conform to the established grade or line of such right-of-way and so as not to interfere with such public improvements so constructed, reconstructed or altered. However, notwithstanding the above, if as part of said public improvement the government orders that facilities that were previously and lawfully located above-ground, to be relocated to

underground, the government shall bear the cost for the difference in cost between an aerial and underground facility of the same type, unless an agreement to the contrary is otherwise entered into by the appropriate parties.

(2) **Relocation for public safety reasons.** If the basis for the government ordering the relocation of a facility is a public safety concern, the registrant shall relocate the facility at no cost to the government.

(3) **Relocations to assist in the placement of other facilities.** If the reason the government is ordering the relocation is to assist in the installation of facilities by another registrant or permittee, the party seeking to install the facilities shall bear the costs of said relocation, unless an agreement is otherwise reached.

(4) **Relocations where the cost is borne by the government.** Notwithstanding any language in this chapter to the contrary, unless an agreement to the contrary is otherwise entered into by the appropriate parties, the cost of the following types of relocations shall be borne by the government:

a. If the reason the government is ordering the relocation is that it has adopted a plan or policy requiring that facilities be placed underground in that location, if, at the time the facility was installed, such a plan was not in place;

b. If, at the time the facility was installed, the location in which the facility is currently sited was not a part of the right-of-way or was not otherwise owned or controlled by the government;

c. If the government has already ordered that the facility be relocated to comply with a public improvement project, the registrant or party has substantially complied with such order, and the government then orders the registrant or party to relocate that facility to a different area as part of the same project; or

d. If the government orders the relocation of a facility to accommodate a public improvement project and the construction of such project is subsequently terminated by the council.

(g) **Removal.**

(1) If the government requires a facility that is no longer being used to provide service, as defined below, to be taken out of the right-of-way, such removal shall be pursuant to the requirements of this subsection.

(2) **Definition.** A facility shall be considered to be "no longer in use" if such facility has not been used to provide service for a period of one (1) year, or the registrant or the party responsible for the facility has notified the director that it no longer intends to use the facility. If the government determines that a facility is "no longer in use" based on the fact that it has not been used for a period of more than one (1) year, the responsible party may petition the director for a reasonable extension of time based on that party's desire to use the facility to provide service or to sell or transfer such facility within a reasonable amount of time. Such an extension of time shall not be unreasonably withheld.

(3) **Procedure for notification.** Any party discontinuing use of a facility shall notify the director in writing of such discontinued use within thirty (30) days. Said notice shall describe the facilities for which the use is to be discontinued and include a statement as to whether the registrant intends to leave the facilities in place for potential future use, remove the facilities, or abandon the facilities in place. The registrant shall remain responsible for the maintenance, repair and condition of discontinued facilities at all times.

(4) **Criteria and procedure for removal.** Upon providing reasonable advanced written notice to the registrant or other responsible party, the director may order the removal of any facility that has been determined to be "no longer in use", if any of the following arise with respect to that facility:

a. It significantly conflicts with the location of existing facilities or facilities that are planned or permitted for installation, or government improvements or facilities that are planned in that area;

b. It conflicts with the planned grading, re-grading, construction, reconstruction, widening or altering of any right-of-way or the construction, reconstruction, repair, maintenance or alteration of a public improvement, including, but not limited to, storm sewers, sanitary sewers and street lights;

c. It conflicts with an approved development plan in that geographic area that requires all or certain types of facilities to be located in certain locations, areas, or parts of the rights-of-way, or is located in a high density utility area;

d. It conflicts with a requirement contained in that party's franchise agreement;

e. The current location of the facility threatens public health, safety, or welfare or otherwise constitutes a violation of the provisions of this chapter; or

f. It is an above-ground facility that has been determined to be "no longer in use" for a period of more than ninety (90) days.

(5) **Facilities located underground.** Notwithstanding the foregoing, the government shall not order the removal of any underground facility unless the surface above the facility is currently being, or will be, substantially excavated, or the presence of that facility causes an emergency or threatens public health, safety, or welfare. In any event, the removal of such a facility shall be limited to that portion of the facility that actually presents an issue.

(6) **Cost of removal.** The government shall not normally bear any portion of the cost of the removal of any facility, unless it is part of a government project and the costs of such removal are minimal. Depending on the circumstances, the director may order that the party responsible for such facility, the party seeking a permit, or both, bear the costs and the responsibility of such removal. However, in the event that the facility is being removed to accommodate the placement of a non-government facility, the cost of such removal shall be the responsibility of the party or parties applying for the permit,

so long as the existing facility was lawfully installed. The council may agree, upon a recommendation from the director, that the government will share in the costs of removal or limit the scope of removal based on extenuating circumstances.

(7) In the event the registrant or other responsible party elects to abandon the facility in place and the council approves such abandonment, the registrant or party shall convey full title and ownership of such abandoned facility to the government in consideration of the abandonment in place and without the need of the government to pay compensation to the registrant. The registrant shall, however, continue to be responsible for all taxes on such facilities or other liabilities associated therewith, until the date the same is conveyed to the government.

(8) Should any registrant or other responsible party fail, after notice, to remove a facility upon the order of the director as specified in this section, the government may, at its option and in addition to the imposition of any other remedies hereunder or in a franchise agreement with that party, undertake or cause to be undertaken, such necessary removal. The government shall have no liability for any damage caused by such removal and the registrant or other responsible party shall be liable to the government for all reasonable costs incurred by the government in such removal.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No.18-2019, § 3, 3-21-19)

Sec. 17C-19.2. Aesthetic standards.

Unless otherwise approved by the Lexington-Fayette Urban County Government in order to prevent an effective prohibition of service in accordance with federal regulations, as applicable, no person shall locate or maintain a facility, pole, tower, or support structure, except in accordance with the following design standards:

(1) All facilities located and designed so as to minimize visual impact on surrounding properties and from public rights-of-way.

(2) All new or replacement poles, towers, or support structures placed in the right-of-way shall be the same color, shape, material, and general height as those existing poles or towers adjacent to the location of the new or replacement pole, tower, or support structure.

(3) All coaxial, fiber-optic, or other cabling and wires shall be contained inside any new or replacement tower, pole, or other support structure. On existing poles or support structures, or new wooden poles, where it is impossible to place wiring inside the pole or support structure, all coaxial, fiber-optic, or other cabling and wires shall be flush-mounted and covered with a metal, plastic, or similar material matching the color of the pole or support structure. All coaxial, fiber-optic, or other cabling and wires shall be contained inside any new tower or pole placed in the right-of-way.

(4) No tower placed in the right-of-way within two hundred fifty (250) feet on the same street of an existing tower. Replacing an existing tower with a tower, or a lighted pole with another lighted pole housing wireless facilities, in the same location shall not violate this provision.

(5) All new towers and poles should be located on the same side of the street as existing towers, poles, or support structures. However, this does not preclude an applicant from locating its wireless facilities on existing lighted poles under a decommissioning agreement in which the applicant takes ownership of the lighted pole.

(6) The centerline of any new pole or tower aligned with the centerline of adjacent poles or trees, unless the new structure's height conflicts with overhead power utility lines. Replacing an existing pole, support structure, or tower with another pole, support structure, or tower in the same location shall not violate this provision.

(7) All new poles, towers, or facilities proposed to be fronting a dwelling shall be placed on property lines, unless it would obstruct sight distance at driveways or other accesses to roadways. In those instances where placement of a new pole or tower, or facilities on the property line would obstruct sight distance, the pole or tower, or facilities shall be placed in such a location as to prevent the obstruction of sight distance at driveways or other accesses to roadways. Replacing an existing pole, support structure, tower or facility with a pole, support structure, tower, or facility in the same location shall not violate this provision.

(8) New poles, towers, or facilities shall not be placed in front of store front windows, walkways, entrances or exits, or in such a way that would impede deliveries. Replacing an existing pole, support structure, tower, or facility with a pole, support structure, tower, or facility in the same location shall not violate this provision.

(9) No new poles or towers placed in front of driveways, entrances, or walkways. Replacing an existing pole, support structure, or tower with a pole, support structure, or tower in the same location shall not violate this provision.

(10) No applicant shall locate or maintain a pole, support structure, tower, or equipment associated with a wireless facility, as to interfere with the health of a tree.

(11) In areas where the undergrounding of utilities has occurred but lighted poles are present, the applicant shall locate its wireless facilities on existing lighted poles or seek to decommission the lighted pole to replace it with a lighted pole to house its wireless facilities.

(12) If the applicant elects to decommission an existing lighted pole in order to install a wireless facility in its location, the applicant shall comply with chapter 17C, including these aesthetic standards, and any decommissioning agreement between the applicant, the Lexington-Fayette Urban County Government, and Kentucky Utilities, or its equivalent.

(13) In those locations where the undergrounding of utilities has occurred, all facilities shall be placed underground.

(14) No equipment associated with any facility shall impede, obstruct, or hinder ADA access, or pedestrian or vehicular access, or block driveways, entrances, or walkways. The installation of new ground furniture is prohibited.

(15) To protect the health and safety of the public from the harms of noise pollution, all facilities shall have a low noise profile.

(16) Within twenty-one (21) calendar days from the date the operator receives notice thereof, operator shall remove all graffiti on any of its facilities located in the right-of-way.

(17) All facilities, poles, towers, and support structures shall comply with such additional design standards as may be set forth in any written policies or guidelines issued by the Lexington-Fayette Urban County Division of Engineering.

(Ord. No. 18-2019, § 4, 3-21-19)

Sec. 17C-20. Poles, towers, and support structures.

(a) To the extent possible, registrants shall use existing poles, towers, support structures, and conduit existing at the time of permitting in installing their facilities.

(b) All poles, towers, support structures, or wire holding structures are subject to any applicable, duly adopted regulations regarding location, height, type, or other pertinent aspect, including those found in 17C-19.2.

(c) All transmission and distribution structures, poles, towers, support structures, and other lines and equipment installed or erected by registrant under this chapter shall be located so as to minimize any interference with the proper use of the right-of-way with the rights and reasonable convenience of property owners whose property adjoins or abuts any affected right-of-way. Subject to applicable codes, overhead drops shall be as close as possible to other utility drops in order to concentrate the drops in as small an area as possible to minimize visual clutter and interference with the use of private property.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No.18-2019, § 5, 3-21-19)

Editor's note(s)—Ord. No. 18-2019, § 5, adopted March 21, 2019, renamed § 17C-20 from "utility poles" to "poles, towers and structures."

Sec. 17C-21. Permits required; notice of activities; exceptions; denials.

Unless otherwise exempted by this chapter, any party performing an activity within the rights-of-way that requires a permit pursuant to this chapter must obtain the applicable permit prior to the performance of such activity and pay any applicable permit fee.

(1) An annual general permit obtained at the time of the submission of the registration statement or immediately upon the registrant or the division determining that the registrant is performing activity within the right-of-way that requires the issuance of such a permit. Each time that a registrant is performing any of the

activities listed below, it shall provide the government notification via the government's website. Any work performed without proper notification shall constitute work being done without a permit, and as such subject to the levy of fines.

a. Installation or replacement of wiring on existing towers, support structures, or poles when the work (a) necessitates presence in the right-of-way for more than one (1) day or (b) involves more than one thousand (1,000) line feet of cable or wire;

b. Replacement of existing towers, support structures, or poles when the work (a) necessitates presence in the right-of-way for more than two (2) days or (b) involves more than one thousand (1,000) line feet of cable or wire;

c. Excavations of existing facilities from ten (10) to twenty-five (25) square feet with no street or sidewalk cuts;

d. Installation of new underground lines in trenches of less than two hundred fifty (250) linear feet with a width of six (6) inches or less and with no street, curb, apron or sidewalk cuts;

e. Installation of new underground lines in trenches of fifty (50) linear feet or less with a width of twenty-four (24) inches or less and with no street, curb, apron or sidewalk cuts;

f. An underground boring larger than three (3) inches in diameter; or

g. Any underground boring located under a paved street. Any other activity performed pursuant to an annual general permit need not be reported to the government unless otherwise required under this chapter. The notification shall consist of, at a minimum, the name of the registrant, a general description of the location (by address(es) or street(s)) and the nature or type of the activity performed (e.g. installation of wiring, boring, tower/support structure/pole replacement, etc.). In the event that the notification cannot be provided to the government's website said notification may be provided in writing via e-mail or facsimile transmission.

(2) An installation permit or a surface cut permit for the performance of non-emergency work applied for at least ten (10) days prior to such planned activity. Notwithstanding the foregoing, the director may waive said time period for good cause shown. The division must approve, deny, or conditionally approve a permit application within five (5) business days of the receipt of the application and in the case of a conditional approval or denial, state in writing the basis for such determination and what conditions must be met by the applicant in order to obtain a permit. Any work performed without proper notification shall constitute work being done without a permit, and as such subject to the levy of fines.

(3) A permit issued pursuant to an emergency applied for no later than five (5) business days after the discovery of the emergency.

(4) All applications for permits shall contain the following information:

a. The identity and legal status of the applicant (the party to whom the permit is issued).

b. The name, address and telephone number of the officer, agent or employee requesting the permit.

c. A description of all activities covered by the permit, and in the case of an installation permit or a surface cut permit the locations and estimated dates and times of commencement and completion thereof.

d. The number of all surface cuts covered by the surface cut permit, and the number of square feet of right-of-way surface to be removed; or the number of linear feet included in the installation.

(5) A single permit may be issued for multiple surface cuts or installations; provided that no such surface cut or installation covered in a single permit shall be more than three hundred (300) feet apart. Notwithstanding the foregoing, the director may grant a single permit for multiple surface cuts or installations that are more than three hundred (300) feet upon a showing by the permit applicant that such an expansion of activity shall not significantly affect the division's ability to efficiently administer this chapter.

(6) **Notification of inspections.** If the division knows at the time of the issuance of the permit that it shall require an inspection(s), it will notify the permittee that such an inspection(s) is required.

(7) **Denial or revocation.** The director, in his reasonable discretion, may deny or revoke a permit for failure to satisfy the material requirements and conditions of this chapter, including but not limited to the criteria contained in section 17C-19, or if the denial is otherwise necessary to protect the health, safety, and welfare of the citizens of Fayette County. In addition, the director may issue a permit that is contingent upon the applicant performing certain requirements that shall be specified in the permit.

(8) **Exceptions.** Permits are not required to be obtained pursuant to this chapter if the facilities involved are of the following nature. However, the party responsible for such facilities is required to comply with all remaining provisions of this chapter as well as any other chapter that may apply, unless otherwise exempted.

a. Newspaper stands;

b. Signage;

c. Facilities associated with sidewalk cafes or the sale of goods or merchandise;

d. Facilities owned by the Commonwealth of Kentucky, including the University of Kentucky;

e. Facilities installed to provide new development with connections to utility service and for which the government is provided performance and warranty surety protection under its land development regulations;

f. Facilities installed by the government that are not used to provide competitive utility services to customers in Fayette County, provided that such facilities are not used at any future time for the provision of competitive utility services. The government's division of sanitary sewers is not exempt from having to obtain permits or from complying with the remaining provisions of this chapter, unless otherwise exempted.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No.18-2019, § 3, 3-21-19)

Sec. 17C-22. Permit fees; credits; display.

(a) Every registrant shall pay the fees associated with permitting under this chapter annually based upon the provisions of this chapter so as to equitably assess the impact of the activities performed in the rights-of-way by all registrants and permittees. Franchisees may elect to pay these fees as either a portion of their franchise fees, or in addition to their franchise fees, as so allowed by their franchise agreement and consistent with state laws.

(b) **Annual general permit.** Unless otherwise prohibited by law, or otherwise exempted, each registrant that occupies the right-of-way shall obtain an annual general permit. The type of annual general permit that the registrant shall be required to obtain shall be based upon the level of both documented and undocumented maintenance and repair activities the registrant would be anticipated to perform within the rights-of-way; and, as a corollary for such, the extent to which the registrant's facilities occupied the rights-of-way as it existed at the end of the preceding calendar year. The extent of occupation of the registrant's facilities shall be determined by measuring the enclosed surface of the registrant's existing service area as defined by mapping provided annually by the registrant. Registrants with facilities occupying eighteen thousand two hundred seventy-six and three-tenths (18,276.30) acres, the equivalent of ten (10) percent of the area of Fayette County, or less shall pay an annual fee of three thousand dollars ($3,000.00) in order to obtain a Type I annual general permit. Registrants with facilities occupying more than eighteen thousand two hundred seventy-six and three-tenths (18,276.30) acres, the equivalent of more than ten (10) percent of the area of Fayette County, shall pay an annual fee of fifteen thousand dollars ($15,000.00) in order to obtain a Type II annual general permit. Any registrant, as determined by the government, with facilities occupying less than one hundred eighty-two and seventy-six one hundredths (182.76) acres, the equivalent of less than one tenth of one (0.10) percent of the area of Fayette County, shall be, if so requested, exempt from obtaining an annual general permit and shall only be required to pay a registration fee annually. Any registrant exempted from obtaining an annual general permit shall be required to obtain either a surface cut permit or an installation permit for each and every occupation of the right-of-way regardless of the scope of the occupation. Facility installation by a non-registrant for a property owner pursuant to a contractual agreement shall not require possession of an annual general permit by either the non-registrant contractor or the property owner.

It is the intent of the government that its permit fees in compliance with the applicable federal law or regulation as it may be amended from time to time. The annual fee for the annual general permit shall be no greater

than the annual fees presumed reasonable by the Federal Communications Commission, per small wireless facility installed during the applicable calendar year. The government reserves the right to require payment of the full amount if the results of a cost study, or similar administrative review, show that the additional cost is necessary to recoup the costs of maintaining the ROW, maintaining the structures within the ROW, and the administrative costs associated with the issuance and regulation of annual general permits and the activities allowed by the permits, or the federal regulations relating to the "reasonable" governmental fees for small wireless facilities are amended by the federal government or invalidated by a valid court order.

(c) **Installation permit.** Unless otherwise prohibited by law, every party obtaining an installation permit shall pay a fee of one hundred dollars ($100.00) for each installation permit. Any immediately adjoining real property owner cited to replace, repair, restore, or otherwise maintain any sidewalk, curb, apron, or utility strip for which that real property owner is legally responsible shall be exempt from paying and fees for obtaining an installation permit for these activities. This fee shall be re-assessed in the event that at any work commences without approval as provided in Subsection 17C-9(a).

(d) **Surface cut permit.** Unless otherwise prohibited by law, every party obtaining a surface cut permit shall pay a fee of two hundred fifty dollars ($250.00) for each surface cut permit. This fee shall be re-assessed each time a party fails to comply with Subsection 17C-7(b)(4), or in the event that any work commences without approval as provided in Subsection 17C-9(a).

(e) The installation and surface cut permit fees required by this section paid at the time of application for the permit unless such fees have been paid in accordance with Subsection 17C-22(a).

(f) **Permit display.** Permits issued pursuant to this chapter shall be conspicuously displayed or otherwise available at all times at the indicated work site and shall be available for inspection by the director or other government employees or officials upon request.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 7, 6-9-05; Ord. No.144-2017, § 4, 5, 10-12-17; Ord. No.18-2019, § 7, 3-21-19)

Sec. 17C-23. Performance bond.

In order to ensure performance, each registrant seeking a surface cut permit must establish a performance bond in favor of the government to be issued by an entity subject to jurisdiction and venue in Fayette County, Kentucky, in an amount to be determined by the division, which shall be in effect for and cover all surface cuts made by that party for a period of two (2) years after the final inspection and approval of the surface cut by the division. In no event shall the amount required by the division for the performance bond exceed the reasonable costs of repairing the activity affiliated with the surface cut permits. This provision shall not apply to the government. In lieu of a performance bond, the director may allow the applicant for a surface cut permit to deposit with the division an

amount appropriate to cover the government's cost of repairing the surface cut; to be held for a similar period. The government reserves the right to impose additional security requirements as part of any surface cut permit or franchise agreement.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 8, 6-9-05)

Sec. 17C-24. Patching and restoration standards.

(a) **Standards.** Patching and restoration of the rights-of-way shall be performed according to the applicable standards and with the materials specified by the division, and at a minimum shall comply with the applicable standard engineering drawing. The director shall have the authority to prescribe the manner and extent of the restoration, and may do so in written procedures of general application or on a case-by-case basis in accordance with the criteria listed below. All edges of a surface cut made to a paved street must be sawed and such surface cuts must be sealed with a sealant approved by the division. In addition, the division must approve all backfill material utilized. In developing any additional procedures, the director shall seek input and participation from the registrants as part of the utility coordinating committee process. In most instances, the minimum standards will apply. However, in certain limited instances, the director may determine that the minimum standards do not adequately protect the government because of at least one (1) of the following considerations:

(1) The number, size, depth and duration of the excavations, disruptions or damage to the right-of-way;

(2) The traffic volume carried by the right-of-way;

(3) The pre-excavation condition of the right-of-way;

(4) The remaining life-expectancy of the right-of-way affected by the excavation; or

(5) The surface cut was made in violation of section 17C-19(e)(5).

(b) **Guarantees.** Each party performing excavations pursuant to a permit required by this chapter guarantees its restoration work and shall maintain it for two (2) years following its completion. During this period it shall, upon notification from the director, correct all restoration work to the extent necessary, using the method required by the director.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-25. Inspection.

(a) **Site inspection.** Any party issued a permit pursuant to this chapter shall make the work-site available to the division and to all others as authorized by law for inspection at all reasonable times during the execution of and upon completion of the work. No excavation shall be covered until it has been inspected and approved by the division, if the division has given that party notice of its intent to inspect the excavation. The permittee shall provide the division with advance notice of at least one (1) day when the appropriate portion of the activity is ready for inspection, and if the division fails to inspect after being provided such notice, the

permittee may continue to perform the permitted activity. Any excavation that has been covered without a required approval or inspection shall be uncovered for inspection at that party's expense, upon request of the division. If the construction or restoration does not meet the standards under this chapter, the division may order corrective measures.

(b) **Authority of the director and the division.**

(1) At the time of inspection the division may order the immediate cessation of any work that it in good faith believes poses a serious threat to the life, health, safety or well-being of the public.

(2) The director may issue an order to the permittee for any work that does not conform to the terms of the permit or other applicable ordinance, resolution, regulation, standard, condition, or code. The order shall state that failure to correct the violation will be cause for revocation of the permit. The permittee shall proceed with the corrective work before undertaking any additional work under the permit. Within ten (10) days after issuance of the order, the permittee shall present proof to the director that the violation has been corrected. If such proof has not been presented within the required time, the director may revoke the permit, or for good cause shown, extend the period of time allowed for the corrective work to be completed.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-26. Appeal.

Any party that:

(1) Has been denied registration after the reconsideration process provided for in section 17C-12;

(2) Has been denied a permit or has been issued a conditional permit for which the party disagrees with certain of the conditions(s) imposed;

(3) Is aggrieved by a decision pertaining to installation, relocation, or removal of a facility pursuant to section 17C-19;

(4) Has had a permit revoked; or

(5) Believes that the fees imposed are invalid;

may have such action reviewed, upon written request, by the government's chief administrative officer ("CAO"), or his designee, who shall act within a period of ten (10) days from the receipt of the written request. The appealing party shall be afforded the opportunity to be heard and present relevant evidence to the CAO should it desire to do so, and the decision by the CAO, which shall be the final administrative decision on the request subject to appeal to court, shall be in writing and provide the basis for the decision.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-27. Right-of-way maintenance fund.

(a) There is hereby established the right-of-way maintenance fund as a non-reverting operating fund of the government.

(b) The revenues received by the division from all registration fees, permit fees, and the portion of any franchise fee attributable to permitting shall be deposited into the right-of-way maintenance fund to be used exclusively for the repair and resurfacing (but not new construction or reconstruction) of streets, roads and other rights-of-way within the urban county, the employment of such administrative and inspection personnel necessary to enable the division to carry out its responsibilities under this chapter, and the administrative costs of implementing this chapter.

(c) Amounts paid from such fund only pursuant to appropriations authorized by the council.

(Ord. No. 166-2002, § 1, 7-11-02; Ord. No. 134-2005, § 9, 6-9-05)

Sec. 17C-28. Right-of-way vacation.

(a) If the government vacates a right-of-way which contains the facilities of a registrant and if the vacation does not require the relocation of registrant's facilities, the government shall reserve, to and for itself and all registrants having facilities in the vacated right-of-way, the right to install, maintain and operate any facilities in the vacated right-of-way and to enter upon such right-of-way at any time for the purpose of adding additional facilities, expanding existing service, or replacing, reconstructing, inspecting, maintaining or repairing the same.

(Ord. No. 166-2002, § 1, 7-11-02)

Sec. 17C-29. Town Branch Commons.

(a) **Intent.**

(1) The intent of this section is to support the following three (3) major policies as it applies to any installation, construction, maintenance or other work in the right-of-way, recognizing that Town Branch Commons is a distinct park and trail system, and as such has a unique identity and an established set of design standards that must be maintained.

(b) **Incorporation by reference.**

(1) The Town Branch Commons masterplan and design standards, as amended now or in the future, is incorporated herein by reference. All references to the Town Branch Commons masterplan and design standards are to have the same effect as if the documents were reproduced verbatim herein, and all such documents automatically include any and all subsequent amendments thereto as long as the parties that will be effected by such amendments have the ability to meaningfully participate in the process

that is utilized to amend such document, or unless expressly indicated otherwise by a provision of this chapter. This provision shall not be interpreted to require that work performed prior to the adoption or amendment of such a document be subject to any newly created standard.

(c) **Additional definitions.** In addition to the definitions that apply for this chapter, the following definitions also apply to this section:

Bicycle facility or bicycle path shall mean the path used exclusively for bicycles that runs from West Main Street (US 25) at Tucker Street via the southern side of West Vine Street, crossing to the north side of West and East Vine Street (US 25) at Broadway for the full length of Vine Street until it intersects with Main Street. The bicycle facility or bicycle path is located closer to the street than the pedestrian path.

Bioswale shall mean landscape elements designed to concentrate or remove debris and pollution out of surface runoff water. Bioswales consist of a swaled drainage course with sloped sides and filled with vegetation. Bioswales are referenced in the Town Branch Commons masterplan and design standards as the Karst Streambed, Karst Cascade, and Karst Embankment.

Multi-use path shall mean 1) the path used for both bicycles and pedestrians that runs from West Main Street (US 25) at Tucker Street to the slip lane at the northwest corner of Triangle Park, via the southern side of West Vine Street; and 2) the path used for both bicycles and pedestrians that begins at the northwest corner of Main Street and Vine Street and runs along the western side of Midland Avenue in its entirety, to the corner of Third Street.

Pedestrian path shall mean the path used for the exclusive use of pedestrians that runs from West Main Street (US 25) at Tucker Street via the southern side of West Vine Street, crossing to the north side of West and East Vine Street (US 25) at Broadway for the full length of Vine Street until it intersects with Main Street.

(d) **Limits on new underground facilities.**

(1) New underground facilities placed directly under the pedestrian paths, bicycle paths, or multi-use paths, at least eighteen (18) inches below the subbase, wall foundation, or soil cell (whichever is deeper).

(2) Utility and construction work prohibited from the bioswale portions of the Town Branch Commons. These areas are referenced in the Town Branch Commons masterplan and design standards. If boring is required under plant beds, trees, bioswales, or similar feature, there shall be a minimum of eighteen (18) inch clearance below the underdrain or soil media (whichever is deeper) or as otherwise required by the director.

(3) Existing utilities located directly beneath a bioswale shall provide justification as to why it cannot be accessed elsewhere, as well as a construction and restoration plan. Any such plan must be created in

conjunction with a licensed professional engineer and a registered landscape architect to ensure the functionality of the storm water system is retained per the Town Branch commons masterplan and design standards.

(e) **Limits on aboveground facilities.**

(1) New aboveground facilities prohibited from portions of Town Branch Commons that contain bioswales. However, overhead utility lines that pass at least thirty-five (35) feet overhead are acceptable.

(2) Existing facilities located directly on or above a bioswale shall provide justification as to why it cannot be accessed elsewhere, as well as a construction and restoration plan. Any such plan must be created in conjunction with a licensed professional engineer and a registered landscape architect to ensure the functionality of the storm water system is retained per the Town Branch Commons masterplan and design standards.

(3) **Aesthetics.**

a. Any installation of new facilities, including poles and street lights, that are visible to the public must be an approved detail from, or meet the aesthetic standards of the Town Branch commons masterplan and design standards and Chapter 17C.

b. New facilities may be integrated within existing street lights. However, the quantity of communication facilities allowed on a street light shall be limited to the quantity the street light was designed to hold.

c. A clear vertical zone of 8.3 feet above ground must remain clear of all obstructions, including, but not limited to, overhead signs, banners, etc. on all pedestrian paths, bicycle paths, or multi-use paths, per the AASHTO Bike Guide.

d. Nothing in this section shall limit the installation of new facilities on those sides of the affected streets not containing Town Branch Commons.

(f) **Construction.**

(1) All bicycle facilities and paths, pedestrian paths, and multi-use paths shall remain clear and passable during any construction, excavation, installation, operation, maintenance, or repair within Town Branch Commons. If a partial or complete closure is required, plans must be submitted and approved for rerouting pedestrian and bicycle traffic in a safe manner prior to construction.

(2) Any right-of-way or public property that is disturbed or damaged during the construction, excavation, installation, operation, maintenance, or repair of a facility shall be repaired within twenty-one (21) calendar days of the completion of those activities that caused the disturbance or damage.

(g) **Restoration and maintenance.**

(1) All projects occurring within the Town Branch Commons corridor must comply with the applicable restoration and maintenance standards found in the Town Branch Commons masterplan and design standards.

(2) In addition, any disturbance to any of the following areas of Town Branch Commons shall be returned to its previous and intended condition as outlined below:

a. Multi-use paths, pedestrian paths, bicycle facilities, and intersections with specialty paving shall be restored in accordance with the Town Branch Commons masterplan and design standards.

b. Landscaping: The landscaped areas of Town Branch Commons shall be restored in accordance with the Town Branch Commons masterplan and design standards. Any vegetation damaged during construction must be replaced with the same plant species. The removal or trimming of existing trees in the right-of-way shall comply with the government's street tree ordinance, tree protection ordinance, the provisions of article 6-10, or subdivision regulations concerning street trees, as applicable. All trees must be replaced by a minimum of four (4) inch caliper.

c. Bioswales: Bioswales located within Town Branch Commons shall be restored in accordance with the Town Branch Commons masterplan and design standards. Any vegetation damaged during construction must be replaced with the same plant species. The removal or trimming of existing trees in the right-of-way shall comply with the government's street tree ordinance, tree protection ordinance, the provisions of article 6-10, or subdivision regulations concerning street trees, as applicable. All trees must be replaced by a minimum of four (4) inch caliper. Due to the performative nature of the bioswale system, a construction and restoration plan must be created and submitted for approval by the director. The plan must be created in conjunction with a licensed professional engineer and registered landscape architect to ensure the functionality of the bioswale system is retained per the Town Branch Commons masterplan and design standards. After restoration of the affected bioswale(s) is complete, a licensed professional engineer and registered landscape architect shall sign off on the condition of the bioswale(s) to ensure the restoration was performed properly on this sensitive feature.

(3) **Guarantees.** Each party performing work required by this subsection guarantees its work conforms to the requirements of the Town Branch Commons masterplan and design standards and shall maintain it for two (2) years following its completion. During this period it shall, upon notification from the director, correct all restoration work to the extent necessary, using the method required by the director.

(Ord. No. 18-2019, § 8, 3-21-19)

Chapter 17D

Dockless Vehicles

Section 17D-1. Definitions.

Section 17D-2. Administration; enforcement.

Section 17D-3. Prohibitions.

Section 17D-4. Application for operating authority license.

Section 17D-5. Operating authority license.

Section 17D-6. Equipment standards.

Section 17D-7. Operating zone and fleet size.

Section 17D-8. Parking, rebalancing, and relocation of dockless vehicles.

Section 17D-9. Designated group parking areas.

Section 17D-10. Licensee requirements.

Section 17D-11. Equitable distribution of dockless vehicles.

Section 17D-12. Data collection and reporting.

Section 17D-13. Fees.

Section 17D-14. Insurance.

Section 17D-15. Indemnification; hold harmless.

Section 17D-16. Reconsideration and appeal.

Sec. 17D-1. Definitions.

The following definitions apply to this chapter:

Bicycle shall have the same meaning as provided in section 18-1 of the Code of Ordinances.

Commissioner means the commissioner of the department.

Department means the department of environmental quality and public works.

Designated group parking area means an improvement on the public right-of-way which shall occur in a designated area, to be approved by the department, specifically for group placement of the licensee's dockless vehicles.

Dockless vehicle means a bicycle, an electric bicycle, or an electric motor-assisted scooter which can be located and checked-out without interacting with a human, placed into Lexington-Fayette County for rent by a licensee.

Electric bicycle means a bicycle containing an electric motor that is capable of propelling the device with or without human propulsion at a speed no greater than fifteen (15) miles per hour.

Electric motor-assisted scooter means a vehicle designed to be stood upon and powered by an electric motor that is capable of propelling the device with or without human propulsion at a speed no greater than fifteen (15) miles per hour, which contains no more than two (2) ten-inch or smaller diameter wheels and handlebars.

Licensee means an individual or entity that has been issued an operating authority license under this chapter.

Preferred parking location means any unmarked parking location established by the licensee for the deployment and/or relocation and/or rebalancing of the licensee's dockless vehicles.

Rebalance means 1) moving dockless vehicles from an area of low demand to an area of high demand or 2) moving dockless vehicles from an area of high dockless vehicle concentration to areas of lower concentration.

Relocation means the movement of dockless vehicles from one (1) area to another by the licensee.

Residential area means any area primarily consisting of residential land uses.

Right-of-way means the surface of and the space above and below a public roadway, highway, street, freeway, lane, path, sidewalk, alley, court, boulevard, avenue, parkway, cartway, bicycle lane or path, public sidewalk, or easement held by the LFUCG for the purpose of public travel and shall include rights-of-way as

presently held or hereafter held by the LFUCG. The right-of-way shall not include greenways. The ability to install a designated group parking area in a greenway shall require separate approval pursuant to the appropriate LFUCG ordinance or regulation.

(Ord. No. 42-2019, § 4, 6-20-19)

Sec. 17D-2. Administration; enforcement.

(1) The commissioner, or his or her designee, is the principal LFUCG official responsible for the administration of this chapter, and he or she may delegate any or all of the duties hereunder, including to the division of planning.

(2) Unless otherwise specified, the department shall be responsible for enforcing compliance with this chapter through the issuance of suspensions, revocations, or fleet reductions, as provided herein.

(3) The division of police and the Lexington-Fayette County Parking Authority (LexPark) shall be responsible for the issuance of any fine levied under this chapter. Any fine issued by the division of police shall be collected by the division of revenue, while LexPark shall be responsible for the collection of any fine issued by that entity.

(4) All LFUCG divisions and departments tasked with administration and enforcement of this chapter may adopt procedures and regulations consistent with this chapter.

(Ord. No. 42-2019, § 5, 6-20-19)

Sec. 17D-3. Prohibitions.

(1) No person or company shall operate, cause, or permit the operation of a dockless vehicle service within Lexington-Fayette County without a valid operating authority license.

(2) Any person operating an electric bicycle or electric motor-assisted scooter shall abide by all ordinances applicable to bicycles.

(3) Any person operating an electric bicycle or electric motor-assisted scooter shall abide by all applicable state and federal laws.

(4) Violations of subsection (1) of this section shall be enforced by the division of police and LexPark and shall result in a fine of five hundred dollars ($500.00) per dockless vehicle and the dockless vehicles being impounded, with all costs for removal and storage being paid by the violator.

(5) Violations of subsections (2) and (3) of this section shall be enforced by the division of police and carry a penalty consistent with the relevant ordinance, state law, or federal law.

(Ord. No. 42-2019, § 6, 6-20-19)

Sec. 17D-4. Application for operating authority license.

(1) To obtain or renew an operating authority license, a licensee shall make an application in the manner and form as is prescribed by the division of planning. The applicant shall be the business or entity that will own, control, or operate the proposed dockless vehicles. All licenses issued shall be considered full operating licenses and will expire twelve (12) months from the date of issue.

(2) An application for an operating authority license shall, at a minimum, contain the following:

a. The form of business of the applicant and, if the business is a corporation or association, a copy of the documents establishing the business and the name and address of each person with a twenty (20) percent or greater ownership interest in the business;

b. The address of the fixed facilities to be used in the operation, and the address of the applicant's corporate headquarters, if different from the address of the fixed facilities;

c. The name of the person designated by the applicant to receive on behalf of the applicant any future notices sent by LFUCG to the licensee, and that person's contact information, including a mailing address, telephone number, and email or other electronic address;

d. The name of the non-contract or W-2 full time employee physically located within Lexington-Fayette County that will serve as the primary point of contact for the management of operations for that licensee, including a mailing address, telephone number, and email or other electronic address;

e. Evidence from an insurance company indicating that such insurance company has bound itself to provide the applicant with the liability insurance required by this chapter;

f. Evidence from a bonding or insurance company or a bank indicating that the bonding or insurance company or bank has bound itself to provide the applicant with the performance bond or irrevocable letter of credit required by this chapter;

g. The applicant's plan to launch dockless vehicles into Lexington-Fayette County, including the number of dockless vehicles and all parking and rebalancing locations;

h. The verified signature of the applicant.

(3) Any changes to the information provided in the operating authority license application shall be reported in writing to LFUCG within ten (10) days of the change. Any changes to the fleet size may occur only after approval by LFUCG in writing and prior to placing the additional dockless vehicles in the right-of-way.

(4) The division of planning shall review all applications required under this section, and provide a determination to the commissioner whether such applications should be approved.

(Ord. No. 42-2019, § 7, 6-20-19)

Sec. 17D-5. Operating authority license.

(1) An operating authority license shall allow a licensee to operate, cause, or permit the operation of a dockless vehicle service within Lexington-Fayette County, subject to the requirements of chapter 17D.

(2) Up to five (5) applicants may be granted an operating authority license to operate within the operating zone at any given time.

(3) An operating authority license is not transferable, but the continuing use of trade names is acceptable.

(4) An operating authority license shall expire one (1) year from the date of issue, but may be renewed after submittal of an application as provided in section 17D-4.

(5) The issuance or renewal of an operating authority license may be denied if the applicant:

a. Intentionally or knowingly makes a false statement as to a material matter in an application; or

b. Has violated this chapter, or a rule or regulation adopted under this ordinance, twice within a twelve-month period, or has had an operating authority license revoked within two (2) years of the date of application.

(6) LFUCG reserves the right, for cause or convenience, to terminate the licensing program at any time. If a license is terminated, licensees shall remove all dockless vehicles from the right-of-way within seven (7) days of receiving notice. If all dockless vehicles are not removed within seven (7) days, the remaining dockless vehicles may be impounded, and all costs incurred for removal and storage shall be paid by the licensee.

(7) An operating authority license may be suspended at the discretion of the commissioner for any violation of this chapter. Suspension of the operating authority license does not affect the expiration date of the license. The duration of any suspension shall be at the discretion of the commissioner but will be no less than six (6) months, nor more than one (1) year. A licensee may not reapply for an operating authority license while suspended.

(8) An operating, authority license may be revoked if the commissioner determines that the licensee has:

a. Made a false statement in the application for an operating authority license;

b. Failed to maintain the insurance required by the LFUCG;

c. Failed to maintain the performance bond or irrevocable letter of credit required by the LFUCG;

d. Operated dockless vehicles in Lexington-Fayette County that were not authorized under this chapter;

e. Failed to pay a fee or fine required under chapter 17D; or

f. Otherwise committed multiple violations of chapter 17D.

(9) If an operating authority license has been suspended or revoked, the offending licensee shall remove all dockless vehicles from the right-of-way within eleven (11) days of receiving notice of revocation. If all dockless vehicles are not removed within eleven (11) days, the remaining dockless vehicles may be impounded, and all costs incurred for removal and storage shall be paid by the licensee. A licensee is not eligible to apply for another operating authority license for a period of two (2) years after having a previous license revoked.

(10) A reduction in fleet size may occur in lieu of a suspension of a licensee's operating authority license under this section, at the discretion of the commissioner.

(Ord. No. 42-2019, § 8, 6-20-19)

Sec. 17D-6. Equipment standards.

(1) Each dockless vehicle permitted under this chapter shall display the emblem of the licensee along with a unique identification number that is easily visible while the vehicle is in a standard upright position.

(2) Each dockless vehicle permitted under this chapter shall be equipped with active global positioning system technology, which shall ping its location at a minimum of every sixty (60) seconds while the dockless vehicle is being ridden.

(3) Dockless vehicles shall meet all the requirements of local, state, and federal law.

(4) Each dockless vehicle permitted under this chapter shall meet all other equipment standards required by the commissioner.

(5) LFUCG may, with or without notice, inspect any dockless vehicle to determine whether the dockless vehicle complies with the standards outlined in this section.

(6) Observed or reported violations of this section may result in the offending dockless vehicle being impounded, with all costs of removal and storage being paid by the licensee, and may also result in a reduction in fleet size, suspension, or revocation of the operating authority license.

(Ord. No. 42-2019, § 9, 6-20-19)

Sec. 17D-7. Operating zone and fleet size.

(1) LFUCG reserves the right to limit operations of dockless vehicles to zones established by LFUCG and to restrict areas within the designated operating zone. A map of the designated operating zone and a list of restricted zones shall be kept and updated from time to time by the department.

(2) A licensee found to have vehicles outside the designated operating zone, or inside a restricted zone, shall be found to have violated this section and shall pay one hundred dollars ($100.00) per vehicle, and offending vehicles may be impounded by LFUCG. The licensee shall be responsible for all costs associated with removal and storage.

(3) Subject to approval by the commissioner, licensees may provide a maximum of four hundred (400) electric motor-assisted scooters each, with possible incremental increases of no greater than two hundred (200) electric motor-assisted scooters per month thereafter, provided:

a. Ridership exceeds four (4) rides per electric motor-assisted scooter per day on those owned or operated by licensee;

b. Issues identified by the department are being adequately addressed to the department's satisfaction.

c. A licensee may not operate more than one thousand (1,000) electric motor-assisted scooters in Lexington-Fayette County.

(4) No cap shall be placed on the number of bicycles and electric bicycles provided by the licensee. Notwithstanding the above, the number of bicycles and electric bicycles provided by a licensee shall be reviewed periodically and may be reduced by the commissioner for public safety reasons.

(5) Caps on the number of dockless vehicles provided in this section may be raised at the discretion of the commissioner if ridership exceeds five (5) rides per dockless vehicle per day on average over the preceding month and issues identified by the department are being adequately addressed to the department's satisfaction.

(6) The licensee shall remove a number of dockless vehicles determined by the commissioner if ridership falls below an average of two and one-half (2.5) rides per dockless vehicle per day in the preceding month.

(Ord. No. 42-2019, § 10, 6-20-19)

Sec. 17D-8. Parking, rebalancing, and relocation of dockless vehicles.

(1) The licensee shall provide a map and coordinates of all parking locations, which shall accompany each monthly report.

(2) All preferred parking locations of dockless vehicles on the public right-of-way are subject to review and modification at the department's request. Each preferred parking location shall be within the operating zone, be limited to no more than ten (10) dockless vehicles per location, as required by the commissioner, and shall comply with the parking restrictions provided herein.

(3) To the extent the licensee desires to park dockless vehicles in areas other than the public right-of-way (e.g. parks, plazas, parking lots, private property, or transit stations), the licensee shall first obtain permission to do so from the appropriate LFUCG division or department, property owner, or public agency and shall communicate this right to users through signage approved by the respective entity and/or through a mobile or web application.

(4) Whenever a dockless vehicle is deployed, relocated, or rebalanced, the licensee shall place the vehicle in question in a preferred parking location or a designation group parking area. Nothing in this section shall require individual riders to end their rides at a preferred parking location or designated group parking location; however, placement at such facilities shall be recommended to users prior to starting each ride.

(5) Dockless vehicles shall be relocated or removed by the licensee within two (2) hours of receiving notice of any vehicles that are parked in any manner described below:

a. Parked in a manner that would impede normal and reasonable pedestrian access on a sidewalk or in any manner that would reduce the minimum clear width of a sidewalk to less than forty-eight (48) inches—the minimum clear width allowed under the Americans with Disabilities Act (ADA).

b. Not standing upright.

c. Parked in any way that blocks:

1. Access to or from any building.
2. Transit stops, shelters, or platforms.
3. Commercial loading zones.
4. Railroad tracks or crossings.
5. Passenger loading zones or valet parking service areas.
6. Disabled parking zones.
7. Street furniture that requires pedestrian access (for example, benches or parking meters).
8. Building entryways.
9. Vehicular driveways.
10. Utility access points such as manholes or other doors or hatches on the ground.
11. The reasonable use of any commercial window display.
12. Bicycle rack unless the dockless vehicle is a bicycle or electric bicycle.
13. News rack.
14. That impedes crosswalks or crosswalk landing areas.
15. In areas including right-of-way that has been closed or permitted for events.
16. The travel lane and six-foot pedestrian clear zone in areas without sidewalks.

(6) Nothing in this section shall prevent the division of police or LexPark from immediately moving or impounding a dockless vehicle that is parked in such a way to impede vehicular traffic or otherwise impose a threat to public safety. The licensee shall be responsible for the costs of removal and storage.

(7) Dockless vehicles left at the same location for at least twenty-four (24) hours despite notification to the licensee to relocate the dockless vehicle may be impounded. The licensee shall be responsible for the costs of removal and storage.

(8) The division of police or LexPark may, with or without notice, inspect the manner of parking of dockless vehicles to determine whether the dockless vehicle complies with this section. Observed or reported violations may be subject to a five hundred dollars ($500.00) fine per occurrence, impoundment with all costs of removal and storage being paid by the licensee, and a potential reduction in fleet size to be determined by the department.

(Ord. No. 42-2019, § 11, 6-20-19)

Sec. 17D-9. Designated group parking areas.

(1) Plans for designated group parking areas shall be approved by the department and installed by the licensee. These areas may be required at a rate of no more than one (1) designated group parking area for every ten (10) dockless vehicles and shall be located in areas of high demand.

(2) Any changes in the location of any designated group parking area shall be approved by the department. Updated lists of locations shall be provided to the department and the councilmember of the district in which the designated parking areas are located within five (5) working days of approval by the department.

(3) Each licensee shall be responsible for the maintenance and potential removal of their designated group parking areas, as well as any related costs.

(4) The department may review and require modification to the size and placement of all preferred parking locations and designated group parking areas. The department may establish parking review areas where prior approval for parking locations is required.

(5) Failure to comply with this section shall result in the removal of the offending designated group parking area from the public right-of-way, with all costs incurred being paid by the licensee.

(Ord. No. 42-2019, § 12, 6-20-19)

Sec. 17D-10. Licensee requirements.

(1) The licensee shall provide dockless vehicles at rates that are clearly and understandably communicated to the customer prior to use.

(2) Dockless vehicles located outside preferred parking locations or designated parking areas or removed from service for charging purposes shall be deployed, rebalanced, or relocated to preferred parking locations or designated parking areas by 7:00 a.m. local time, daily. Failure to perform these duties shall be considered as non-compliance with this chapter and shall be subject to a five hundred dollars ($500.00) fine per documented occurrence plus any cost for removal and storage being paid by licensee.

(3) The licensee shall maintain a staffed operations center and shall maintain a 24-hour customer service phone number posted on the vehicle and within the licensee's mobile application for customers and members of the public to report safety concerns, complaints, or to ask questions of the company.

(4) The licensee shall provide the department a designated contact whose location of employment with the licensee is within Lexington who will be responsible for relocation of dockless vehicles and to receive customer complaints forwarded by LFUCG. Any changes in the contact information shall be provided to the department within twenty-four (24) hours.

(5) The licensee shall create and maintain city-specific information outlining all locally relevant terms and conditions on the company's websites or social media platforms. Such information shall include the terms of service, including user instructions, impermissible riding locations, privacy policies, and outline all fees, costs, penalties, unexpected charges, and any other information required by the department in ail languages required by the department.

(6) The licensee shall provide users all information required by the department by means of signage and through a mobile, web, or social media application.

(7) Education and marketing materials, as well as engagement with, low income, minority, non-English speaking, and zero-car populations is strongly encouraged and preferred.

(8) Licensees shall make a good-faith effort to provide non-smart phone and bankless payment options to access the system.

(9) Licensees shall make periodic efforts to inform non-users about proper behavior around the licensee's product, including providing information on how a non-user may report parking or operations related issues to the company. The licensee shall document all information campaigns and provide a summary to the department in their monthly reports. Licensees shall conduct information outreach efforts at least twice a year. Public safety information campaigns shall occur each time the licensee's fleet is notably expanded, to be determined by the department.

(10) Licensees shall remove from service any inoperable dockless vehicle, or a dockless vehicle that is not safe to operate, from the right-of-way within two (2) hours if, between 7:00 a.m. and 10:00 p.m., the licensee receives notice or otherwise becoming aware that the vehicle is inoperable. Otherwise, inoperable or unsafe dockless vehicles shall be removed within twenty-four (24) hours after receiving notice or otherwise becoming aware that the vehicle is inoperable. The inoperable or unsafe dockless vehicle shall also be removed from the user interface that allows the public to locate said vehicle and the vehicle shall not be able to be unlocked by potential users. A dockless vehicle removed from the right-of-way in accordance with this subsection shall be repaired before it is returned to service.

(11) Licensees shall adopt policies and procedures to reasonably ensure customer data privacy. Customers shall not be required to share personal data with 3rd parties to use the mobility services.

(12) Licensees shall provide clear notification about what data will be accessed and explain how and why data will be used. Affirmative confirmation by the customer shall be required.

(13) All digital applications or consent forms shall provide customers with the option to opt-in to providing access to their contacts, camera, photos, files, other private data and third party data sharing. This opt-in shall not be the default setting and digital applications and consent forms shall not require customers to opt-out of providing access.

(14) Licensees shall not require customers to provide access to their contacts, camera, photos, files and other private data to use the dockless vehicles. Location services may be required to use the service for locating nearby vehicles, but not for providing trip-level data.

(Ord. No. 42-2019, § 13, 6-20-19)

Sec. 17D-11. Equitable distribution of dockless vehicles.

(1) To ensure access to shared mobility transportation options throughout the community, licensees shall comply with this section.

(2) Equitable distribution zones are intended to ensure that no singular zone is intentionally over-served or under-served. These equitable distribution zones are illustrated on the equity analysis map, which shall be kept by the department and updated from time to time.

(3) For fleets of less than two hundred (200) dockless vehicles, there are no distributional requirements.

(4) For fleets of two hundred (200) or more dockless vehicles, thirty (30) percent of each licensee's vehicles shall be located within zones identified as the highest concentration of need.

(5) The licensee shall submit distribution plans within areas labeled as highest concentration of need to the department for approval to ensure adequate accessibility for residents of each zone has been achieved.

(Ord. No. 42-2019, § 14, 6-20-19)

Sec. 17D-12. Data collection and reporting.

(1) The licensee shall provide the department with all real time anonymized information and data required by the department in a format acceptable to the department.

(2) All GPS data shall come from the active GPS that is affixed to each vehicle and shall not be collected from users' mobile devices.

(3) The licensee shall provide a monthly report in a format acceptable to the department that includes the following:

a. Total number of rides for the previous month and total miles ridden;

b. Total number of vehicles in service for the previous month;

c. Number of rides;

d. Location and performance of all preferred and designated parking areas;

e. Number of vehicles removed from service;

f. Licensee staffing levels;

g. Customer service cases, including complaints registered;

h. Incidents of vandalism;

i. Crash reports, including injury, fatalities, or property damage;

j. Location and number of dockless vehicles located in each designated group parking area.

(4) The licensee shall comply with any requests from the department for additional reports, additional data or change in the frequency of the reports.

(5) The licensee shall attend any meeting scheduled by the department to discuss operations, issues, and any corrective actions as may be necessary.

(Ord. No. 42-2019, § 15, 6-20-19)

Sec. 17D-13. Fees.

(1) The licensee shall pay $5,000.00 for the operating authority license prior to issuance of the license.

(2) The licensee shall pay twenty-five cents ($0.25) per trip taken by a customer on an electric motor-assisted scooter, payable on a monthly basis with the monthly report required in section 17D-12.

(3) The licensee shall pay fifty dollars ($50.00) per designated group parking area, payable at the time the designated group parking area is approved by the department.

(4) In order to ensure performance, each applicant seeking an operating authority license shall establish a performance bond in favor of the LFUCG to be issued by an entity subject to the jurisdiction and venue in Fayette County, Kentucky, in the amount of ten thousand dollars ($10,000.00). The department may impose additional security requirements.

(5) In addition to the fees provided above, the licensee shall also be responsible for:

a. All costs associated with relocation or removal of vehicles from the right-of-way;

b. All costs incurred by any source for relocating or removing vehicles left outside the designated operating zone;

c. All costs incurred relating to abatement of any violations of chapter 17D or any conditions of the operating authority license or repair or maintenance of public property or right-of-way due to the dockless vehicles or use thereof.

(6) The licensee shall provide reimbursement for these costs within thirty (30) days of receiving notice.

(7) As a significant number of trips on dockless vehicles are anticipated to occur on the University of Kentucky's campus, the University of Kentucky shall receive a share of the fees collected under subsection (2) on a pro rata basis of trips generated on the University of Kentucky campus, not to exceed fifty (50) percent of the amount of fees collected thereunder.

(Ord. No. 42-2019, § 16, 6-20-19)

Sec. 17D-14. Insurance.

Each licensee shall maintain in full force and effect a commercial general liability insurance policy reasonably acceptable to the LFUCG's Division of Risk Management with a minimum policy limit of one million dollars ($1,000,000.00) per occurrence and two million dollars ($2,000,000.00) aggregate, and shall provide the department with a certificate of insurance evidencing the insurance policy required by this section upon submission of the application for the issuance or renewal of an operating authority license, as well as upon renewal or change in the insurance policy.

The certificate shall state that the insurance policy shall not be canceled, materially changed or non-renewed until after thirty (30) days' notice has been provided to the department; however, insurance may be canceled and replaced with a policy that continues to meet the requirements of this section. An applicant may satisfy the insurance requirements and conditions of this section under a self-insurance plan that is acceptable to the LFUCG's Division of Risk Management. The LFUCG's Division of Risk Management may impose additional insurance requirements.

Approval of the insurance by LFUCG shall not in any way relieve or decrease the liability of the licensee hereunder. It is expressly understood that LFUCG does not in any way represent that the specified limits of liability or coverage or policy forms are sufficient or adequate to protect the interest or liabilities of the licensee.

(Ord. No. 42-2019, § 17, 6-20-19)

Sec. 17D-15. Indemnification; hold harmless.

(1) Each licensee shall indemnify, hold harmless, and defend the LFUCG, its representatives, employees, and elected and appointed officials, from and against all liability, claims, damages, suits, losses, and expenses of any kind, including reasonable attorney's fees and costs for appeal, associated with or arising out of or from 1) the operating authority license; 2) the use of the right-of-way or city-owned property for the licensee's operations; or 3) from any negligent act, omission, or error of the licensee, its agents, or its employees, to comply with each and every requirement of this chapter or with any other federal, state, or local traffic law, or any combination of same.

(2) The LFUCG shall notify the licensee in writing within a reasonable time of receiving notice of any issue it determines may require indemnification and the licensee shall defend the government at the cost of the licensee.

(3) The licensee shall require dockless vehicle users, in its vehicle use agreement, to release and forever discharge Lexington Fayette Urban County LFUCG, its elected and appointed officials, employees, agents and successors in interest from all claims, damages, losses and expenses including attorneys' fees, arising out of or resulting, directly or indirectly, from the user's use of the dockless vehicle. Company shall provide to LFUCG a copy of the vehicle use agreement.

(Ord. No. 42-2019, § 18, 6-20-19)

Sec. 17D-16. Reconsideration and appeal.

Any licensee or applicant that:

(1) Has been denied an operating authority license;

(2) Has had an operating authority license suspended or revoked; or

(3) Has its fleet reduced by the department due to a violation of chapter 17D may file with the commissioner within ten (10) days of receipt of notice, a written request for reconsideration, which shall include the basis for the party's position. The commissioner may hear any relevant evidence in deciding the reconsideration and will notify the licensee or applicant in the event that further information is required. The commissioner shall render a final decision in writing within ten (10) days of receipt of the licensee's or applicant's written request for reconsideration or the receipt of any further evidence, whichever is later, and will provide the licensee or applicant the basis for his decision. After reconsideration, the party may have such action reviewed, upon written request, by the chief administrative officer, or its designee, who shall act within a period of ten (10) days from the receipt of the written request. The appealing party shall be afforded the opportunity to be heard and present relevant evidence to the chief administrative officer should it desire to do so, and the decision by the chief administrative officer, which shall be the final administrative decision, on the request shall be in writing and provide the basis for the decision.

Any fine issued under this chapter may be appealed in accordance with article XII of chapter 18 of the Code.

(Ord. No. 42-2019, § 19, 6-20-19)

Chapter 18

Traffic[1]

Article I. In General

Section 18-1. Definitions.

Section 18-2. Traffic enforcement.

Section 18-2.1. Parking control officer.

Section 18-3. Director, division of traffic engineering.

Section 18-4. Emergency and experimental regulations.

Section 18-5. Traffic school guards.

Section 18-6. Authority of police and fire officials.

Section 18-7. Obedience to regulations—Directions of officials.

Section 18-8. Same—By public employees.

Section 18-9. Same—By persons propelling pushcarts, riding animals and riding bicycles.

Section 18-10. Same—Exemptions to authorized emergency vehicles.

Section 18-11. Same—Use of coasters, roller skates and similar devices restricted.

Section 18-12. Accidents—Reports required.

Section 18-13. Same—When driver unable to report.

Section 18-14. Play streets—Authority to establish.

Section 18-15. Same—Driving thereon.

Section 18-16. Quiet zones—Authority to establish.

Section 18-17. Same—Driving therein.

Section 18-18. Following fire apparatus prohibited.

Section 18-19. Crossing fire hose.

Section 18-20. Driving through funeral or other procession.

Section 18-21. Obstruction to driver's view or driving mechanism.

Section 18-22. Automobile outside parts not to be ridden on.

Section 18-23. Clinging to moving vehicles.

Section 18-23.1. Reserved.

Section 18-24. Transportation of explosives through streets.

Section 18-25. Driving on sidewalk.

Section 18-26. Limitations on backing.

1. **Charter reference(s)**—Authority to regulate operation of vehicles and exercise control over traffic, § 3.02(17).
Cross reference(s)—Horse-drawn vehicles, § 4-24 et seq.; drunk driving, § 14-16; use of streets, § 17-1 et seq.; excavations, §§ 17-7 et seq., 17-59; traffic school guards, § 22-53.
State law reference(s)—Traffic regulations, KRS ch. 189.

Section 18-27. Riding on motorcycles.
Section 18-28. Restricted access.
Section 18-29. Parades and processions.
Section 18-30. Hauling on and littering streets.
Section 18-31. Load sifting or leaking.
Section 18-32. Use of vehicle for primary purpose of advertising prohibited.
Section 18-33. Driving over new pavement.
Section 18-34. Waste carts in congested districts.
Section 18-35. Reserved.
Section 18-36. Reserved.
Section 18-37. Boarding or alighting from vehicles.
Section 18-38. Jumping on or off moving train.
Section 18-39. Mufflers, prevention of annoying smoke.
Section 18-40. Use or operation of any engine brake, compression brake or mechanical exhaust device.
Section 18-41. Railroads; time engine or train allowed to stand at or near street crossing.
Section 18-42. Driving in public parks.
Section 18-43. Funeral and other processions.
Section 18-44. Truck routes.
Section 18-45. Front lights; flashing lights; penalty.
Section 18-45.1. Rear, side and clearance lights; penalty.
Section 18-45.2. Brake lights; penalty.
Section 18-46. Trucks; restricted travel on certain streets.
Section 18-47. Safety officers; qualifications, supervision, duties and limitations.
Sections 18-48, 18-49. Reserved.
Section 18-50. Placing signs and markings.

Article II. Traffic-Control Devices

Section 18-51. Authority to install.
Section 18-52. Specifications.
Section 18-53. Obedience.
Section 18-54. Interference with.
Section 18-55. When required for enforcement purposes.
Section 18-56. Signal legend.
Section 18-57. Pedestrian walk and don't walk signals.
Section 18-58. Flashing signals.
Section 18-59. Display of unauthorized signs, signals or markings.

Article III. Parking Meters

Section 18-60. Authority to install.

Section 18-60.1. Authorization to install parking meters.
Section 18-61. Parking space markings.
Section 18-62. Maintenance and marking of meters.
Section 18-63. Time limitations.
Section 18-64. Parking fees; depositing slugs; tampering.
Section 18-65. Proceeds from meter operation.
Section 18-65.1. Covering meters authorized.

Article IV. Speed Regulations

Section 18-66. State speed laws applicable.
Section 18-67. Generally.
Section 18-68. School zone.
Section 18-69. Reckless driving.
Section 18-70. Regulation by traffic signals.
Section 18-71. Reserved.
Section 18-71.1. Garbage truck zones.

Article V. Turning and Passing Movements

Section 18-72. Authority to place and obedience to turning markers.
Section 18-73. Authority to place restricted turn signs.
Section 18-74. Required position and method of turning at intersections.
Section 18-75. Signals.
Section 18-76. Reserved.
Section 18-77. Obedience to a no-turn sign.
Section 18-78. Driving on roadways laned for traffic.
Section 18-79. Passing vehicles proceeding in opposite directions.
Section 18-80. Passing a vehicle on the left.
Section 18-81. When passing on the right is permitted.
Section 18-82. Slowly moving vehicles.

Article VI. One-Way Streets and Alleys

Section 18-83. Authority to designate one-way.
Section 18-84. Obedience to one-way signs.
Section 18-85. Reserved.

Article VII. Special Stops and Yields

Section 18-86. Authority to designate stops or yields.
Section 18-87. Obedience to stop sign.
Section 18-88. Obedience to yield sign.
Section 18-89. Emerging from alley or private driveway.

Section 18-90. Stop when intersection blocked.
Section 18-91. Obedience to sign indicating approach of railroad train.
Sections 18-92, 18-93. Reserved.

Article VIII. Pedestrians

Section 18-94. Pedestrians approaching vehicles or being upon median, prohibited.
Section 18-95. Subject to traffic-control signals.
Section 18-96. Right-of-way in crosswalk.
Section 18-97. Use right half of crosswalk.
Section 18-98. Crossing at right angles.
Section 18-99. When pedestrians shall yield.
Section 18-100. Prohibited crossing.
Section 18-101. Walking along roadways.
Section 18-102. Drivers to exercise due care.
Section 18-103. Demonstrations on or near sidewalk.
Section 18-104. Pedestrian assemblies.
Section 18-105. Blind pedestrians.

Article IX. Stopping, Standing, Parking

Division 1. Generally

Section 18-106. Standing or parking close to the curb.
Section 18-107. Lights on parked vehicles.
Section 18-108. Setting brakes on parked vehicles.
Section 18-109. Authority to indicate angle parking.
Section 18-110. Obedience to angle parking signs or markings.
Section 18-111. Opening doors of parked vehicles.
Section 18-111.1. Leaving keys in the ignition of parked, etc., motor vehicles.
Section 18-112. Impounding of vehicles.

Division 2. Prohibited or Restricted

Section 18-113. Authority to prohibit or regulate parking.
Section 18-113.1. Reserved.
Section 18-113.2. Reserved.
Section 18-113.3. Parking in handicapped parking spaces.
Section 18-113.4. Accessible parking space sign.
Section 18-114. Obedience to no-parking regulations.
Section 18-114.1. Parking in residential parking permit area; permit required.
Section 18-115. Double parking.
Section 18-116. Parking exceptions, funeral cars.
Section 18-117. Authority to establish and eliminate fire lanes.

Section 18-118. Obedience to fire lane restrictions.
Section 18-119. Stopping, standing or parking prohibited.
Section 18-119.1. Reserved.
Section 18-120. Parking not to obstruct traffic.
Section 18-121. Parking in alleys.
Section 18-122. Twenty-four-hour parking.
Section 18-123. All-night parking.
Section 18-124. Parking for certain purposes prohibited.
Section 18-124.1. Parking for government officials generally.
Section 18-125. Parking for urban county government officials and employees.
Section 18-126. Parking on parade route.
Section 18-127. Parking on one-way roadways.
Section 18-128. Parking of trucks or other vehicles carrying cattle, other livestock, offal, manure, etc.
Section 18-129. Parking of vehicles in any residential section.
Section 18-130. Application of division.
Section 18-131. Regulations not exclusive.

Division 3. Loading and Unloading

Section 18-132. Authority to designate loading zones.
Section 18-133. Obedience to loading zone signs.
Section 18-134. Permit for loading or unloading at an angle to the curb.
Section 18-135. Loading and unloading of materials prohibited in central traffic district during certain hours.
Section 18-136. Size of trucks limited in loading zones.
Section 18-137. Identification of passenger vehicles using loading zones.
Section 18-138. Hours of delivery; residential areas.
Section 18-139. Authority to designate public carrier stands.
Section 18-140. Installation and maintenance of public carrier stands.
Section 18-141. Stopping, standing and parking of buses and taxicabs regulated.
Section 18-142. Restricted use of bus and taxicab stands.
Section 18-143. Citations for violations by bus drivers.

Article X. Bicycles

Sections 18-144—18-144.7. Reserved.
Section 18-145. Traffic laws apply.
Section 18-146. Obedience to traffic-control devices.
Section 18-147. Method of riding.
Section 18-148. Riding on roadways and bicycle paths.
Section 18-149. Operation of bicycle.

Section 18-150. Speed.
Section 18-151. Emerging from alley or driveway.
Section 18-152. Carrying articles.
Section 18-153. Clinging to vehicles.
Section 18-154. Parking.
Section 18-155. Riding on sidewalks.
Section 18-156. Equipment.

Article XI. Violations, Penalties

Sections 18-157—18-159. Reserved.
Section 18-160. Traffic violation bureau—Citation to appear before.
Sections 18-161, 18-162. Reserved.
Section 18-163. Disposition of fines and forfeitures.
Section 18-164. Penalty—General.
Section 18-165. Same—Violation of regulations relevant to minors.
Section 18-166. Same—Violations of specific sections.
Section 18-167. Assessment of costs in district court for violations of sections18-64(a) and 18-114(a).

Article XII. Parking Citation Enforcement

Section 18-168. Title.
Section 18-169. Enforcement.
Section 18-170. Establishment of hearing board.
Section 18-171. Citation procedure.
Section 18-172. Information to be included in notice of parking violation.
Section 18-173. Responsibilities of person who receives notice; liability of vehicle owner.
Section 18-174. Hearing.
Section 18-175. Appeal.
Section 18-176. Impoundment of vehicles.
Section 18-177. Hearing to challenge validity of impoundment.
Section 18-178. Appeal of impoundment determination.
Section 18-179. Unclaimed vehicles to be deemed abandoned.
Section 18-180. Disposition of abandoned vehicles.
Section 18-181. Lien upon impounded vehicles.
Section 18-182. Article not to otherwise effect rights or obligations of owner.
Section 18-183. Responsibilities of division of revenue.

Article XIII. Pedestrian-Oriented Business Districts; Off-Street Parking Requirements.

Section 18-184. [Property description/boundaries.]

Section 18-185. [Residential uses or tracts within the district.]
Section 18-186. [Character of the business area.]
Section 18-187. [Impact on nearby residential areas.]
Section 18-188. [Alternative requirements.]
Section 18-189. [Written notice.]
Section 18-190. [Precedence.]

Article I

In General

Sec. 18-1. Definitions.

The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section:

Alley: Any public way not more than twenty (20) feet wide affording generally a secondary means of vehicular access to abutting properties.

Authorized emergency vehicle: Vehicles of the division of fire and emergency services, fire patrol, police vehicles, and such ambulances and emergency vehicles of municipal departments as are designated or authorized by the police chief.

Bicycle: Every device propelled by human power upon which any person may ride, having two (2) tandem wheels, either of which is over twenty (20) inches in diameter, and including any device generally recognized as a bicycle though equipped with two (2) front or two (2) rear wheels.

Business district: The territory contiguous to and including a highway or roadway when fifty (50) percent or more of the frontage thereon for a distance of three hundred (300) feet or more is occupied by buildings used for business.

Bus stop: That part of any roadway officially set apart and reserved exclusively for the loading and unloading of passengers by buses or passenger vehicles.

Central traffic district: All streets and portions of streets within the area described as follows:

Beginning at a point on the northwest corner of Short and Jefferson streets; thence proceeding in an easterly direction along the north curbline of Short Street to the west curbline of North Broadway; thence in a northerly direction along the west curbline of North Broadway to the north curbline of West Third Street; thence in an easterly direction along the north curbline of West and East Third Street to the east curbline of Deweese Street; thence in a southerly direction along the east line of Deweese Street to the north curbline of Main Street; thence in an easterly direction along the north curbline of Main Street to the east curbline of Northeastern Avenue; thence in a southerly direction across Main Street to a point on the south curbline of Main Street; thence in a westerly direction along the south curbline of Main Street to the east line of Rose Street; thence in a southerly direction along the east curbline of Rose Street to the south curbline of High Street; thence in a westerly direction along the south curbline of High Street to the east curbline of Lexington Avenue; thence in a southerly direction along the east curbline of Lexington Avenue to the south curbline of East Maxwell Street; thence in a westerly direction along the south curbline of East and West Maxwell Street to the west curbline of South Broadway; thence in a northerly direction along the west cur-

bline of South Broadway to the south curbline of Main Street; thence in a westerly direction along the south curbline of Main Street to the west curbline of Jefferson Street Viaduct; thence in a northerly direction along the west curbline of Jefferson Street to the point of beginning.

Crosswalk: That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs, or in the absence of curbs from the edges of the traversable roadway; any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Driver: Every person who drives or is in actual physical control of a vehicle.

Front yard: An open space extending the full width of the lot between a building and the front lot line.

Intersection: The area embraced within the prolongation or connection of the lateral curblines, or, if none, the lateral boundary lines of the roadways of two (2) highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon the different highways joining at any other angle may come in conflict. When a highway includes two (2) roadways thirty (30) feet or more apart, every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection in the event such intersecting highway also includes two (2) roadways thirty (30) feet apart, every crossing of two (2) roadways of such highways shall be regarded as a separate intersection.

Laned roadway: A roadway which is divided into two (2) or more clearly marked lanes for vehicular traffic.

Limited-access highway: Every street, highway or roadway in respect to which owners or occupants of abutting property or lands and other persons have no legal right of access to or from the same, except at such points and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Loading zone: A space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Motorcycle: Every motor vehicle having a seat and designed to travel on not more than three (3) wheels in contact with the ground, but excluding a tractor.

Motor vehicle: Every vehicle which is self-propelled.

Official time: Whenever certain hours are named herein, they shall mean the prevailing time as may be in current use in the urban county.

Official traffic-control devices: All signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

Park: When prohibited, means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading passengers.

Pedestrian: Any person afoot or in a wheelchair.

Police officer: Every officer of the urban county division of police or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private road or driveway: Every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Railroad: A carrier of persons or property upon cars, operated upon rails.

Railroad train: A steam engine, electric or other motor, with or without cars coupled thereto, operated upon rails.

Residence district: The territory contiguous to and including a highway or roadway when the property on such highway or roadway for a distance of three hundred (300) feet or more is in the main improved with dwellings or dwellings and buildings in use for business.

Right-of-way: The privilege of the immediate use of the roadway.

Roadway: That portion of a street or highway improved, designed or ordinarily used for vehicular travel. In the event a highway includes two (2) or more separate roadways, the term "roadway" as used in this chapter shall refer to any such roadways separately but not to all such roadways collectively.

Sidewalk: That portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians, including any strip of ground between curb and paved sidewalk.

Side street side yard: An open space abutting the side street of a corner lot and extending the full length of the lot between a building and the side lot line.

Stop: When required, means completed cessation of movement.

Stop, stopping or standing: When prohibited, means any stopping or standing of a vehicle whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street or highway: The entire width between the boundary lines of every way or place of whatever nature when any part thereof is open to the use of the public, as a matter of right, for the purpose of vehicular traffic.

Through highway: Every street or highway or portion thereto at the entrances to which vehicular traffic from intersecting streets or highways is required by law to stop before entering or crossing the same and when stop signs are erected as provided in this chapter.

Traffic: Pedestrians, ridden animals, vehicles and other conveyances either singly or together while using any street for purposes of travel.

Traffic-control signal: Any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Vehicle: Every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, including boats, personal watercraft, and trailers or similar devices used to transport such property, except devices moved by human power or used exclusively upon stationary rails or tracks.

(Ord. No. 87-85, § 1, 5-2-85; Ord. No. 245-98, § 1, 9-3-98; Ord. No.81-2017, § 2, 5-25-17)

Sec. 18-2. Traffic enforcement.

(a) It shall be the duty of the division of police to enforce the street traffic regulations of the urban county government and all state vehicle laws applicable to street traffic in the urban county; to make arrests for traffic violations, to investigate accidents and to cooperate with the director, division of traffic engineering and the police chief and other officers of the urban county government in administration of traffic laws, and in developing ways and means to improve traffic conditions and to carry out those duties specifically imposed upon such division by this chapter.

(b) The division of police shall keep a record of all violations of this chapter or of the state vehicle laws of which any person has been charged, together with the record of the final disposition of all such offenses. Such record shall be so maintained as to show all types of violations and the total of each. Such record shall accumulate during at least a five-year period; and from that time on, the record shall be maintained complete for at least the most recent five-year period. All forms for records of violations and notices of violations shall be serially numbered. For each month and year, a written record shall be kept available to the public showing the disposal of all such forms. All such records and reports shall be public records.

The parking authority shall keep a record of all non-moving traffic violations with respect to which the parking authority has enforcement capability of which any person has been charged by any parking control officer employed or otherwise under the control of the parking authority, together with the record of the final disposition of all such offenses. Such record shall be so maintained as to show all types of violations and the total of each. Such record for each calendar month shall be furnished to the division of police no later than the end of the following calendar month. Such record shall accumulate during at least a five-year period; and from that time on, the record shall be maintained complete for at least the most recent five-year period. All forms for records of violations and notices of violations shall be serially numbered.

(c) It shall be the duty of the division of police to investigate traffic accidents, to arrest and to assist in the prosecution of those persons charged with violations of law causing or contributing to such accidents.

Whenever the accidents at any particular location become numerous, the division of police shall cooperate with the director, division of traffic engineering and the police chief in conducting studies of such accidents and determine remedial measures.

The division of police shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically by location. Such reports shall be available for the use and information of the officer in charge.

The division of police shall receive and properly file all accident reports made to it under state law or under this chapter, but all such accident reports made by drivers shall be for the confidential use of the division of police and the director, division of traffic engineering; and no such report shall be admissible in any civil or criminal proceeding other than upon request of any person making such report or upon the request of the court having jurisdiction to prove a compliance with the law requiring the making of any such report.

The division of police shall maintain a suitable record of all traffic accidents, warnings, arrests, convictions and complaints reported for each driver, which shall be filed alphabetically under the name of the driver concerned. Such division shall study the cases of all the drivers charged with frequent or serious violations of the traffic laws or involved in frequent traffic accidents, and shall attempt to discovers the reasons therefor, and shall take whatever steps are lawful and reasonable to prevent the same or to have the licenses of such persons suspended or revoked. Such records shall accumulate during at least a five-year period, and from that time on such records shall be maintained complete for at least the most recent five-year period.

(d) The division of police shall annually prepare a traffic report, which shall be filed with the mayor. Such report shall contain information on traffic matters in the urban county as follows:

(1) The number of traffic accidents, the number of persons killed, the number of persons injured and other pertinent traffic accident data.

(2) The number of traffic accidents investigated and pertinent data on the safety activities of the police.

(3) The plans and recommendations of the division for future traffic safety activities.

(e) The division of police shall designate a type of pennant to be employed to identify the vehicles in funeral processions.

(Ord. No. 329-2005, § 2, 12-13-05)

Sec. 18-2.1. Parking control officer.

(a) The position of parking control officer shall be filled by individuals whose qualifications, both physical and educational, will permit the performance of the duties of parking control officer hereinafter defined, and in accordance with such requirements as may be established from time to time by the mayor. All parking control officers shall be employed by or shall otherwise be under the control of the Lexington and Fayette County Parking Authority. They shall not be members of the division of police, nor entitled to share in the policemen's and firemen's retirement fund.

(b) The duties of a parking control officer shall be the following:

(1) Issuance of citations for violations of the following sections of this Code:18-63, 18-64, 18-106, 18-107, 18-108, 18-110, 18-111, 18-111.1, 18-112, 18-113.3, 18-113.4, 18-114, 18-114.1, 18-115, 18-118, 18-119, 18-120, 18-121, 18-122, 18-123, 18-124, 18-124.1, 18-125, 18-126, 18-127, 18-128, 18-129, 18-130, 18-131, 18-133, 18-135, 18-136, 18-137, 18-138, 18-141, 18-142; and

(2) Issuance of citations to motor vehicles illegally parked in designated fire lanes pursuant to KRS 227.320.

(c) This section shall not be construed as granting to said parking control officers the powers or authority of a peace officer, and such parking control officers shall be strictly prohibited and limited to the exercise and performance of the duties herein provided.

(d) The provisions of this section shall not be construed to restrict or prohibit any member of the police force from enforcing parking violations in Fayette County, but shall be cumulative in the provisions of other ordinances of the urban county government.

(Ord. No. 135-82, § 6, 7-29-82; Ord. No. 329-2005, § 3, 12-13-05)

Sec. 18-3. Director, division of traffic engineering.

Where any duty is imposed or where any authority is given the traffic engineer under the provisions of this chapter, the traffic engineer is deemed to be an administrative department director as the term is used in the provisions of KRS 89.580 and he is hereby authorized to:

(1) Test traffic-control devices under actual conditions of traffic.

(2) Designate and maintain, by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections, where, in his opinion, there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary.

(3) Establish safety zones of such kind and character and at such places as he may deem necessary for the protection of the pedestrians.

(4) Mark lanes for traffic on street pavements at such places as he may deem necessary, consistent with other regulations of this chapter.

(5) Determine the location and installation of traffic-control devices and to maintain traffic-control devices.

(6) Conduct engineering investigations of traffic conditions and to cooperate with other urban county officials in the development of ways and means to improve traffic conditions.

(7) Maintain and supervise bridges and viaducts within the urban county.

(8) Perform such other duties as are imposed upon the traffic engineer in other sections of this chapter. (Ord. No. 329-2005, § 4, 12-13-05)

Sec. 18-4. Emergency and experimental regulations.

The police chief, by and with the approval of the division of traffic engineering, is hereby empowered to make regulations necessary to make effective the provisions of this chapter and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulation shall remain in effect for more than ninety (90) days.

Sec. 18-5. Traffic school guards.

It shall be the duty of the traffic school guards to direct traffic in and near the vicinity of schools in the urban county where there are conducted classes for elementary and high school pupils and such other and further duties as shall be assigned by the mayor commensurate with the authority herein granted. The employees of the division of traffic school guards shall be under the direct supervision of the division of police.

Sec. 18-6. Authority of police and fire officials.

It shall be the duty of the officers of the division of police, and such officers as are assigned by the police chief to enforce all street traffic laws of the urban county government and all of the state vehicle laws applicable to street traffic in the urban county. Officers of the division of police and such officers as are assigned by the police chief are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the division of police may direct traffic as conditions may require, notwithstanding the provisions of the traffic laws. Officers of the division of fire and emergency services, when at the scene of a fire, or when enroute to the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.

Sec. 18-7. Obedience to regulations—Directions of officials.

No person shall willfully fail or refuse to comply with any lawful order or direction of a police officer or division of fire and emergency services official.

Cross reference(s)—See also §§ 18-46, 15-53, 18-72, 18-73, 18-77, 18-84, 18-87, 18-88, 18-91, 18-110, 18-114, 18-118, 18-133.

Sec. 18-8. Same—By public employees.

The provisions of this chapter shall apply to the driver of any vehicle owned by or used in the service of the United States government, or of this state, or of the urban county government; and it shall be unlawful for any such driver to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by federal or state statutes.

Sec. 18-9. Same—By persons propelling pushcarts, riding animals and riding bicycles.

Every person propelling any pushcart or riding an animal upon a roadway, and every person driving any animal-drawn vehicle, and any person riding a bicycle shall be subject to the provisions of this chapter applicable to the driver of any vehicle, except those provisions of this chapter which by their very nature can have no application.

Sec. 18-10. Same—Exemptions to authorized emergency vehicles.

The provisions of this chapter regulating the operation, parking and standing of vehicles shall apply to authorized emergency vehicles, as defined in this chapter, except as follows: A driver when operating any such vehicle in an emergency, except when otherwise directed by a police officer,

(1) Park or stand notwithstanding the provisions of this chapter;

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

(3) Exceed the prima facie speed limits so long as he does not endanger life or property;

(4) Disregard regulations governing direction of movement or turning in specified directions so long as he does not endanger life or property.

Those exemptions hereinbefore granted in reference to the movement of an authorized emergency vehicle shall apply only when the driver of such vehicle shall sound a siren, bell or exhaust whistle as may be reasonably necessary, and the vehicle displays a lighted red lamp visible from the front as a warning to others. The foregoing examples shall not, however, protect the driver of any such vehicle from the consequences of his reckless disregard for the safety of others.

Cross reference(s)—Emergency medical ambulances exempt from traffic regulations, § 18C-7.

Sec. 18-11. Same—Use of coasters, roller skates and similar devices restricted.

No person upon roller skates, or riding in or by means of any coaster, toy vehicle or similar device, shall go upon any roadway except while crossing a street at a crosswalk; and when so crossing such person shall be granted all of the rights and be subject to all of the duties applicable to pedestrians. This section shall not apply on any street while set aside as a play street as authorized by this chapter.

Sec. 18-12. Accidents—Reports required.

The driver of a vehicle involved in an accident resulting in injury to or death of any person or property damage shall immediately by the quickest means of communication, either verbal or written, give notice of such accident to the division of police if such accident occurs within the urban county. The division of police may require any driver of a vehicle involved in an accident of which report must be made as provided in this section to file supplemental reports whenever the original report is insufficient in the opinion of such division, and may require witnesses of accidents to render reports to such division.

Sec. 18-13. Same—When driver unable to report.

Whenever the driver of a vehicle is physically unable to make the required accident report and there was another occupant in the vehicle at the time of the accident capable of making the report, such occupant shall make or cause to be made such report.

Sec. 18-14. Play streets—Authority to establish.

The director, division of traffic engineering shall have the authority to declare any street or part thereof a play street and to place appropriate signs or devices in the roadway indicating and helping to protect the same.

Sec. 18-15. Same—Driving thereon.

Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such closed areas; and then any such driver shall exercise the greatest care in driving upon any such street or portion thereof.

Sec. 18-16. Quiet zones—Authority to establish.

(a) **Hospitals.** The director, division of traffic engineering shall have the authority to establish a zone of quiet upon any streets in or around hospitals located within the limits of the urban county and shall place at a conspicuous place on or near the street signs sufficiently large to give notice to drivers of vehicles that they are in a zone of quiet.

(b) **Where Illness Exists.** The director, division of traffic engineering, shall have the authority to establish a temporary zone of quiet upon a street where a person is seriously ill if requested to do so by the written statement of at least one (1) registered physician certifying to its necessity. Such temporary zone of quiet shall embrace all territory within one hundred (100) feet of the building occupied by persons named in the request of the physician. Such temporary zone of quiet and any other zone of quiet declared by any ordinance of the urban county government shall be designated by the director, division of traffic engineering by placing at a conspicuous place in the street a sign or marking bearing the words "Quiet Zone."

Sec. 18-17. Same—Driving therein.

Whenever authorized signs are erected indicating any street or part thereof as a zone of quiet, no person shall make or cause to be made any unnecessary noise in the operation of any vehicle within such zone.

Sec. 18-18. Following fire apparatus prohibited.

The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred (500) feet or drive into or park such vehicle within the block where fire-apparatus has stopped in answer to a fire alarm.

Sec. 18-19. Crossing fire hose.

No vehicle shall be driven over any unprotected hose of the division of fire and emergency services when laid down on any street or private driveway to be used at any fire or alarm of fire, without the consent of the division of fire and emergency services official in command.

Sec. 18-20. Driving through funeral or other procession.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this chapter.

Sec. 18-21. Obstruction to driver's view or driving mechanism.

No person shall drive a vehicle when it is so loaded, or when there are in the front seat such number of persons, exceeding three (3), as to obstruct the view of the driver to the front or sides of the vehicle, or as to interfere with the driver's control over the driving mechanism of the vehicle, or to have any poster, sign or advertisement affixed to or placed so as to obstruct the view through the glass of the windshield or window. No passenger in a vehicle shall ride in such a position as to interfere with the driver's view ahead or to the sides, or to interfere with his control over the driving mechanism of the vehicle.

Sec. 18-22. Automobile outside parts not to be ridden on.

(a) It shall be unlawful for any person to ride on a running board, or hood, or fender, or other outside part of any vehicle; however, this shall not apply to employees while engaged in the necessary or proper course of their employment.

(b) It shall be unlawful for any owner or operator or driver of any vehicle to permit any person to ride on the outside thereof in violation of subsection (a).

Sec. 18-23. Clinging to moving vehicles.

Any person riding upon any bicycle, motorcycle, coaster, sled, roller skates or any toy vehicle shall not attach the same or himself to any moving vehicle upon any roadway.

Sec. 18-23.1. Reserved.

Editor's note(s)—Ord. No. 115-94, § 1, adopted June 30, 1994, repealed former section 15-23.1 in its entirety which pertained to the use of automobile safety belts and child safety restraints and derived from Ord. No. 11-90, § 1, 1-25-90. Section 2 of Ord. No. 115-94 provided for an effective date of July 15, 1994.

Sec. 18-24. Transportation of explosives through streets.

It shall be unlawful for any person to transport any explosive in quantities of more than fifty (50) pounds into or through that portion of the urban county which is bounded by Deweese Street and Rose Street on the east, Spring Street on the west, Second Street on the north and High Street on the south, without a separate written permit to be obtained from the police chief for each such transporting; and it shall be unlawful to transport any explosive in quantities of more than fifty (50) pounds anywhere in the urban county except in a vehicle with springs and with a top and with the sign "Explosive—Dangerous" painted on each of its four (4) sides or carried upon a vertical pole at the front of such vehicle high enough and large enough to be readily readable from both front and rear at a distance of one hundred (100) feet; moreover, if the transportation be at night, such sign shall be illuminated so as to be readily readable from both front and rear for a distance of one hundred (100) feet.

Sec. 18-25. Driving on sidewalk.

The driver of a vehicle, electric bicycle, or electric motor-assisted scooter as defined inchapter 17D of this Code, shall not drive within any sidewalk area except at a permanent or temporary driveway.

(Ord. No. 42-2019, § 2, 6-20-19)

Sec. 18-26. Limitations on backing.

The driver of a vehicle shall not back the same unless such movement can be made with reasonable safety and without interfering with other traffic.

Sec. 18-27. Riding on motorcycles.

A person operating a motorcycle shall not ride other than upon the permanent and regular seat attached thereto or carry any other person, nor shall any person ride upon such motorcycle other than upon a firmly attached seat to the rear or side of the operator.

Sec. 18-28. Restricted access.

No person shall drive a vehicle onto or from any limited-access roadway except at such entrances and exits as are established by public authority.

Sec. 18-29. Parades and processions.

(a) No parade or procession upon any public street or way in the urban county shall be permitted unless a special license therefor shall first be obtained from the police chief. A "parade" or "procession" is hereby defined as a march in formation, proceeding in an ordered and close file as a collective body of persons on the urban county streets or public ways. Funeral processions are not covered by this section.

(b) Upon application being made to the police chief of the urban county for such special license, such application being in writing and specifying the day and hour requested for the parade or procession, and specifying the route to be taken and the approximate number of participants, the police chief shall consider the application and hold an investigation thereon and if, after such consideration and investigation, the police chief finds, with the concurrence of the fire chief and the director, division of traffic engineering that the convenience of the public in the use of the urban county's streets and public ways would not thereby be unduly disturbed, upon such condition or changes in time, place and manner as would avoid disturbance, the police chief must issue such special license for the parade or procession applied for. Every such special license shall be in writing and shall specify the day and hour of the parade or procession, the specific route to be taken and the approximate number of participants permitted, as limited by the special license application; but the police chief shall not have the power to reduce the number of participants as applied for.

(c) Any person violating any provision of this section shall, upon conviction, be punished by a fine of not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00).

(Ord. No. 149-69, §§ 1—4, 6-12-69; Ord. No. 102-85, § 11, 5-30-85)

Sec. 18-30. Hauling on and littering streets.

No person shall haul, carry or transport hay, straw, ashes, garbage, dirt, coal, rock, sand, brick, offal or any material whatever that is likely to fall upon and litter the streets, without covering the load in such a manner so as to prevent its contents from dropping, blowing, sifting, or otherwise escaping from the vehicle.

(Ord. No. 350-99, § 1, 12-9-99)

Sec. 18-31. Load sifting or leaking.

No person shall operate any vehicle upon a highway or street within the urban county unless such vehicle is constructed or laden as to prevent its contents from dropping, sifting or otherwise escaping therefrom. In no event shall any material described in section 18-30 be hauled, carried or transported without cover, regardless of the construction of the vehicle or lading of the load.

(Ord. No. 350-99, § 2, 12-9-99)

Sec. 18-32. Use of vehicle for primary purpose of advertising prohibited.

No person shall operate or park any vehicle on any street for the primary purpose of advertising. It shall be unlawful for any person to operate any sound truck or public address system for any purpose on any urban county street except with the written permission from the police chief or his authorized agent.

Sec. 18-33. Driving over new pavement.

No person shall operate any vehicle over or across any newly made pavement at which there is a barrier, a person or a sign giving warning to such effect.

Sec. 18-34. Waste carts in congested districts.

No person shall operate or push any scavenger waste cart within the congested district of the urban county between the hours of 9:00 a.m. and 6:00 p.m.

Sec. 18-35. Reserved.

Editor's note(s)—Section 18-35, relating to peddlers selling goods within the central district or business districts, was repealed by § 6 of Ord. No. 70-83, adopted May 5, 1983.

Sec. 18-36. Reserved.

Sec. 18-37. Boarding or alighting from vehicles.

No person shall board or alight from a vehicle while such vehicle is in motion.

Sec. 18-38. Jumping on or off moving train.

It shall be unlawful for any person to jump on or off any moving train while the same is in motion in the urban county limits.

Sec. 18-39. Mufflers, prevention of annoying smoke.

(a) Every motor vehicle shall at all times be equipped with a muffler in good working order and in constant operation to prevent annoying smoke; and no person shall use a muffler cutout, bypass or similar device upon a motor vehicle on a highway.

(b) The engine and power mechanism of every motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke.

(Ord. No. 23-83, § 3, 2-24-83)

Sec. 18-40. Use or operation of any engine brake, compression brake or mechanical exhaust device.

(a) It shall be unlawful for the driver of any vehicle to use or operate or cause to be used or operated any engine brake, compression brake or mechanical exhaust device designed to aid in the braking or deceleration of any vehicle which results in a noise disturbance, except on limited-access highways. This prohibition shall not apply to personnel of the urban county government who are driving vehicles related to providing emergency services or any driver of a vehicle who is responding to an emergency event.

(b) A noise disturbance means any sound which:

(1) Endangers or injures the safety or health of humans or animals;

(2) Annoys or disturbs a reasonable person of normal sensitivities; or

(3) Endangers or injures personal or real property.

(c) Any person who violates any provision of this section shall be subject to a fine of not less than fifty dollars ($50.00), nor more than five hundred dollars ($500.00) for each offense.

(Ord. No. 57-2012, § 1, 5-10-12)

Sec. 18-41. Railroads; time engine or train allowed to stand at or near street crossing.

No locomotive, railroad or train of cars shall stand longer than five (5) minutes at any one time across any street or highway in the urban county, nor shall any locomotive stand within fifty (50) feet of any street crossing longer than ten (10) minutes at any one time. It shall be unlawful for any railroad train to stop within an intersection or on a crosswalk for the purpose of receiving or discharging passengers.

Sec. 18-42. Driving in public parks.

No person shall obstruct any of the driveways in any park in the urban county. No person shall operate any motor vehicle or any truck or wagon in any park except on driveways of such parks or in such other parking space that may be designated as a parking space for any such vehicle.

Sec. 18-43. Funeral and other processions.

(a) All funeral processions shall move upon and through the public streets of the urban county as expeditiously as possible, with due regard to custom and traffic conditions, and shall be led or piloted by the undertaker or his duly authorized agent or representative; and there shall be displayed in a conspicuous manner on the vehicle leading or piloting such procession a flag the type and description of which shall be designated by the police chief. Such flags shall be displayed by the lead or pilot car from the starting point of such procession until the same has arrived at the cemetery, if in the urban county, or until the urban county limits are passed.

(b) Every automobile in a funeral procession, including the lead or pilot car, shall have its headlights burning from the starting point of such procession, continuously until the same has reached the cemetery or the urban county limits.

(c) When the traffic signal changes to red while a funeral procession is passing the same, the procession shall continue moving; and cross traffic shall stop until the entire procession has passed such signal.

Sec. 18-44. Truck routes.

Ky. 4—New Circle Road is hereby designated as the truck route for through traffic, and no truck without a local destination shall use any other route except to gain ingress and egress to Ky. 4.

(Ord. No. 3909, § 1, 7-2-59; Ord. No. 4665, § 1, 6-13-63; Ord. No. 254-67, § 1, 10-13-67; Ord. No. 298-69, § 1, 12-11-69; Ord. No. 122-87, § 4, 6-25-87)

Sec. 18-45. Front lights; flashing lights; penalty.

(a) Every motor vehicle other than a motorcycle or motordriven cycle shall be equipped with at least two (2) headlamps with at least one (1) on each side of the front of the motor vehicle, which head lamps shall comply with the requirements and limitations set forth in this section.

(b) Every motorcycle and every motor-driven cycle shall be equipped with at least one (1) and not more than two (2) head lamps which shall comply with the requirements and limitations of this section.

(c) Except as hereinafter provided, the head lamps or the auxiliary passing lamp or combinations thereof on motor vehicles other than a motorcycle or motor-driven cycle shall be so arranged that the driver may control the selection between distribution of light projected to different elevations, subject to the following requirements and limitations:

(1) There shall be an uppermost distribution of light or composite beam so aimed and of such intensity as to reveal persons and vehicles at a distance of at least three hundred fifty (350) feet ahead for all conditions of loading.

(2) There shall be a lowermost distribution of light, or composite beam so aimed and of sufficient intensity to reveal persons and vehicles at a distance of at least one hundred (100) feet ahead; and on a straight level road under any condition of loading, none of the high-intensity portion of the beam shall be directed to strike the eyes of an approaching driver.

(3) Every new motor vehicle, other than a motorcycle or motor-driven cycle, registered in this state after January 1, 1956, which has multiple-beam road-lighting equipment shall be equipped with a beam indicator, which shall be lighted whenever the uppermost distribution of light from the head lamps is in use, and shall not otherwise be lighted. Said indicator shall be so designed and located that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.

(d) Whenever a motor vehicle is being operated on a roadway or shoulder adjacent thereto during the period from one-half hour after sunset to one-half hour before sunrise, and at such other times as atmospheric conditions render visibility as low as or lower than is ordinarily the case during that period, the driver shall use a distribution of light, or composite beam, directed high enough and of sufficient intensity to reveal persons and vehicles at a safe distance in advance of the vehicle, subject to the requirements and limitations hereinafter set forth.

(e) Whenever a driver of a vehicle approaches an oncoming vehicle within five hundred (500) feet, such driver shall use a distribution of light, or composite beam, so aimed that the glaring rays are not projected into the eyes of the oncoming driver. The lowermost distribution of light, or composite beam, specified in paragraph (2) of subsection (c) of this section shall be deemed to avoid glare at all times, regardless of road contour and loading.

(f) Whenever the driver of a vehicle follows another vehicle within two hundred (200) feet to the rear, except when engaged in the act of overtaking and passing, such driver shall use a distribution of light other than the uppermost distribution of light specified in paragraph (1) of subsection (c) of this section.

(g) Headlights arranged to provide a single distribution of light not supplemented by auxiliary driving lights shall be permitted on motor vehicles manufactured and sold prior to May 30, 1939, in lieu of multiple-beam road-lighting equipment, if the single distribution of light complies with the following requirements and limitations:

(1) The headlights shall be so aimed that when the vehicle is not loaded, none of the high-intensity portion of the light shall, at a distance of twenty-five (25) feet ahead, project higher than a level of five (5) inches below the level of the center of the light from which it comes, and in no case higher than forty-two (42) inches above the level on which the vehicle stands, at a distance of seventy-five (75) feet ahead.

(2) The intensity shall be sufficient to reveal persons and vehicles at a distance of at least two hundred (200) feet.

(3) Whenever the operator of a motor vehicle approaches an oncoming vehicle within five hundred (500) feet, he shall use a distribution of light or composite beam so aimed that the glaring rays are not projected into the eyes of the oncoming driver. In no case shall the high-intensity portion which is projected to the left of the prolongation of the extreme left side of the vehicle be aimed higher than the center of the lamp from which it comes at a distance of twenty-five (25) feet ahead, and in no case higher than a level of forty-two (42) inches above the level upon which the vehicle stands at a distance of seventy-five (75) feet ahead.

(h) Flashing lights are prohibited on all motor vehicles except as a means for indicating a right or left turn or for the purpose of warning the operators of other vehicles of the presence of a vehicular traffic hazard requiring the exercise of unusual care in approaching, overtaking or passing.

(i) Any person who violates any of the provisions of this section shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(Ord. No. 214-74, § 1, 11-7-74)

Sec. 18-45.1. Rear, side and clearance lights; penalty.

(a) All motor vehicles shall display at the rear one (1) red light visible when lighted for at least five hundred (500) feet. A red reflector meeting the requirements may be used in lieu of a red light.

(b) Every motor bus used for the transportation of persons for hire shall be equipped with at least one (1) red light with the word "stop" on it which can be seen for one hundred fifty (150) feet when illuminated. This subsection shall not apply to school buses or church buses.

(c) No person shall operate any motor truck or semitrailer truck on any highway unless it is equipped with a yellow or red light that automatically indicates the application of brakes and is visible from the rear a distance of not less than two hundred (200) feet.

(d) No person shall operate on any highway a motor truck or semitrailer truck having a width of any part in excess of eighty-four (84) inches, unless it carries at least two (2) clearance lights to indicate the outside left limit of the motortruck or semitrailer truck, one (1) light, colored white or green, to be attached to and be visible from the front of the motor truck or semitrailer truck, and one (1) light, colored red, to be attached to and be visible from the rear, in each case a distance of not less than five hundred (500) feet.

(e) When in operation on any highway, slow-moving or motorless vehicles, except bicycles, shall have at least one (1) lamp on the left side of the vehicle, whether from the front or rear, showing white and of sufficient power to reveal clearly the outline of the left side of the vehicle and in such a manner that the outline may be observed clearly by approaching vehicles from a distance of at least one hundred (100) feet.

(f) Any person who violates any of the provisions of this section shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(Ord. No. 214-74, § 2, 11-7-74)

Sec. 18-45.2. Brake lights; penalty.

(a) No person shall operate any vehicle required by law to be licensed upon a highway unless it is equipped with a mechanical signal device which would indicate an intention to stop or suddenly decrease speed by illuminating at least one (1) red light on the rear of the vehicle.

(b) Any person who violates any of the provisions of this section shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(Ord. No. 214-74, § 3, 11-7-74)

Sec. 18-46. Trucks; restricted travel on certain streets.

(a) No truck shall travel on any street or on any portion of any street which is designated by the director of the division of traffic engineering, subject to approval by the urban county council, as being prohibited to through trucks and is properly signed in accordance with that designation. This prohibition shall not apply to trucks which have a destination on the designated street or on the designated portion of any street, non-commercial vehicles, vans, step-vans, recreational vehicles, pickup trucks, or trucks which are owned or operated by the urban county government.

(b) Any person who violates any provisions of this section shall be subject to a fine of not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each offense.

(Ord. No. 135-78, § 1, 6-15-78; Ord. No. 94-82, § 1, 6-17-82)

Sec. 18-47. Safety officers; qualifications, supervision, duties and limitations.

(a) All persons appointed to the classified civil service position of safety officer, established in section 21-5 of this Code, shall have such qualifications, both physical and educational, which will permit the performance of the duties of safety officers, both as hereinafter defined and in accordance with such requirements as may be established from time to time by the mayor. Safety officers shall be at least twenty-one (21) years of age. Safety officers shall successfully complete at least one hundred twenty (120) hours of appropriate training, certified by the Kentucky Law Enforcement Council prior to being appointed. Safety officers shall not be members of the police department within the meaning of KRS 95.010(2), nor entitled to share in the policemen's and firemen's retirement fund.

(b) The duties of a safety officer shall be the following:

(1) Issuance of citations for violations of the following motor vehicle offenses: KRS 186.020, 186.030, 186.040, 186.045(5), 186.050, 186.056, 186.060, 186.130, 186.140, 186.150, 186.160, 186.170, 186.180, 186.230, 186.655 to 186.680, 189.043, 189.287, 189.390(4)(c), 189.456(5), 189.751, 189.753 and 304.39-080, provided that, except as set out in subsection (b)(3) of this section, the safety officer shall not have the authority to issue citations for moving violations.

(2) Issuance of citations for violations of the following sections of this Code:15-9, 18-9, 18-11, 18-34, 18-38, 18-42, 18-54, 18-57, 18-59, 18-61, 18-64, 18-95, 18-96, 18-97, 18-98, 18-99, 18-100, 18-101, 18-103, 18-104, 18-105, 18-106, 18-107, 18-108, 18-110, 18-111, 18-113.3, 18-114, 18-114.1,18-115, 18-118, 18-119, 18-120, 18-121, 18-122, 18-123, 18-124, 18-124.1, 18-125, 18-126, 18-127, 18-128, 18-129, 18-133, 18-134, 18-135, 18-136, 18-137, 18-138, 18-141, 18-142, 18-144 to 18-156, 18A-1 to 18A-24.

(3) Investigation and reporting of vehicle accidents, where a fatality is not involved, as provided for in KRS 189.630. Additionally, while in the process of securing information to complete accident reports and notwithstanding any statute to the contrary, a safety officer may issue citations for violations of KRS 186.430, 186.450, 186.510 and 186.540.

(4) Control and direction of traffic on public thoroughfares.

(5) Removal of vehicles in violation of state or local law consistent with such laws.

(6) Patrol designated areas in order to assist in preserving law and order, to prevent and discover the commission of crime and to improve the safety and security of residents in the assigned area.

(7) Interview persons with complaints and inquiries and attempt to provide assistance or direct them to the proper authorities.

(8) Assist in emergency areas and at disaster scenes.

(9) Patrol governmental park areas.

(10) Assist at special events controlling traffic and providing citizens assistance.

(11) Issuance of citations to motor vehicles illegally parked in designated fire lanes pursuant to KRS 227.320.

(c) Safety officers may issue a citation for a misdemeanor or a violation committed in his presence as provided for in this section. The procedure for such citations shall be as provided in KRS 431.015.

(d) Safety officers appointed by authority of this section shall have only the limited powers as provided by this section and shall not have the powers of peace officers to make arrests or carry deadly weapons.

(Ord. No. 304-78, § 1, 11-30-78; Ord. No. 251-79, § 1, 10-18-79; Ord. No. 32-86, § 1, 3-6-86; Ord. No. 230-91, § 1, 11-14-91; Ord. No. 68-93, § 1, 5-6-93; Ord. No. 129-94, §§ 1, 2, 7-7-94)

Editor's note(s)—Ord. No. 304-78, § 1, adopted Nov. 30, 1978, amended this Code by adding section 18-46, which the editor has redesignated § 18-47 inasmuch as Ord. No. 135-78, § 1, adopted June 15, 1978, had previously added § 18-46.

Secs. 18-48, 18-49. Reserved.

Sec. 18-50. Placing signs and markings.

The director, division of traffic engineering shall prepare and have erected proper signs or markings as will clearly mark the truck routes as hereinbefore designated.

Article II

Traffic-Control Devices

Sec. 18-51. Authority to install.

The director, division of traffic engineering shall place and maintain traffic-control signs, signals and devices when and as required under this chapter to make effective the provisions of the chapter, and may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under this chapter or under state law or to guide or warn traffic.

Sec. 18-52. Specifications.

All traffic-control devices, signs and signals shall conform to specifications approved by ordinances or resolutions adopted by the urban county government. All signs and signals required hereunder for a particular purpose shall so far as practicable be uniform as to type and location through the urban county. All traffic-control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic-control devices.

Sec. 18-53. Obedience.

The driver of any vehicle shall obey the instruction of any official traffic-control device applicable thereto placed in accordance with this chapter, unless otherwise directed by a police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this chapter.

Cross reference(s)—Exceptions, § 18-10.

Sec. 18-54. Interference with.

No person shall without lawful authority attempt to or in fact alter, deface, injure, knock down or remove any official traffic-control device, parking meter or railroad sign or signal or any inscription, shield or insignia thereon or any part thereof.

Sec. 18-55. When required for enforcement purposes.

No provision of this chapter for which signs are required shall be enforced against an alleged violator if, at the time and place of the alleged violation, an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.

Sec. 18-56. Signal legend.

Whenever traffic is controlled by traffic-control signals exhibiting the word "Go," "Caution" or "Stop" or exhibiting different colored lights successively one at a time, or with arrows, only the following colors shall be used; and such terms and lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) **Green alone or "Go":**

(i) Vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

(ii) Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk.

(2) **Yellow alone or "Caution" when shown following or simultaneous with the green or "Go" signal:**

(i) Vehicular traffic facing the signal is thereby warned that the red or "Stop" signal will be exhibited immediately thereafter, and such vehicular traffic shall not enter or be crossing the intersection when the red or "Stop" signal is exhibited.

(ii) Vehicular traffic facing the signal shall stop before entering the nearest crosswalk at the intersection, but if such stop cannot be made in safety a vehicle may be driven cautiously through the intersection.

(iii) Pedestrians facing such signal are thereby advised that there is insufficient time to cross the roadway and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

(3) **Red alone or "Stop":**

(i) Vehicular traffic facing the signal shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain standing until green or "Go" is shown alone.

(ii) No pedestrian facing such signal shall enter the roadway until the green or "Go" is shown alone.

(4) In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

Sec. 18-57. Pedestrian walk and don't walk signals.

Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" are in place, such signals shall indicate as follows:

(1) **Walk:** Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

(2) **Don't walk:** No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the walk signal shall proceed to a sidewalk or safety zone while the "Don't Walk" signal is showing.

(Ord. No. 4697, § 1, 8-1-63)

Sec. 18-58. Flashing signals.

Whenever flashing red or yellow signals are used, they shall require obedience by vehicular traffic as follows:

(1) **Flashing red (stop signal).** When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a stop line when marked, or, if none, then before entering the intersection; and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) **Flashing yellow (caution signal).** When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past the signal only after slowing down and proceeding with caution.

Sec. 18-59. Display of unauthorized signs, signals or markings.

(a) No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal; and no per-

son shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(b) Every such prohibited sign, signal or marking is hereby declared to be a public nuisance; and the director, division of traffic engineering is hereby empowered to remove the same or cause it to be removed without notice.

Article III

Parking Meters

Sec. 18-60. Authority to install.

Parking meter(s) shall mean any mechanical or electronic device or pay and display station or other meter or device not inconsistent with this section used, placed, installed or erected at or near the curb adjacent to the street area, or on Lexington-Fayette County owned or operated property authorized, operated or maintained by the Lexington and Fayette County Parking Authority and designated to register the duration of the parking time and limit thereof, upon payment by

U.S. coin, payment card or alternative payment capability. (Ord. No. 329-2005, § 6, 12-13-05)

Sec. 18-60.1. Authorization to install parking meters.

The Lexington and Fayette County Parking Authority is hereby authorized and directed to install parking meters on any street or portion thereof in the urban county where it determines there is a need and that such parking will not impede a reasonable flow of traffic.

(Ord. No. 329-2005, § 6, 12-13-05)

Sec. 18-61. Parking space markings.

The Lexington and Fayette County Parking Authority shall place and maintain painted lines or marks on the street to designate the parking space for which such meter is to be used, and each vehicle parked alongside of or contiguous to any parking meter shall park within the lines or marks so established. It shall be unlawful to park any vehicle across any such line or mark or to park any vehicle in such a way that the same shall not be within the area so designated by the lines or marks.

(Ord. No. 329-2005, § 6, 12-13-05)

Sec. 18-62. Maintenance and marking of meters.

When parking meters have been so installed, the regulation, control, operation, maintenance, replacement and removal of such parking meters shall be handled by the Lexington and Fayette County Parking Authority.

(Ord. No. 62-87, § 1, 4-16-87; Ord. No. 329-2005, § 6, 12-13-05)

Sec. 18-63. Time limitations.

Where parking spaces are indicated by painted lines upon the surface of streets and when parking meters are installed contiguous to and adjoining such respective parking spaces, no vehicle shall remain parked in such parking spaces longer than the maximum amount of time allowed for parking in such parking spaces, as indicated by appropriate markings or signs or as indicated by such parking meters. The provisions of this section shall apply during such hours and on such dates as established from time to time by the Lexington and Fayette County Parking Authority.

(Ord. No. 79-68, § 1, 4-11-68; Ord. No. 129-72, § 2, 6-22-72; Ord. No. 62-87, § 1, 4-16-87; Ord. No. 194-88, § 1, 8-25-88; Ord. No. 46-89, §§ 1, 2, 3-7-89; Ord. No. 226-89, § 1, 11-30-89; Ord. No. 33-90, § 1, 2-22-90; Ord. No. 329-2005, § 6, 12-13-05)

Sec. 18-64. Parking fees; depositing slugs; tampering.

(a) The fee for parking vehicles in the spaces adjacent to parking meters shall be established by the Lexington and Fayette County Parking Authority from time to time. The person driving a vehicle shall upon occupying such parking space immediately render the proper method of payment to such parking meter, and the parking space may then be used by such vehicle for a period of time not exceeding the limit indicated by the parking meter. If the vehicle shall remain parked within such parking space for a period of time longer than for which payment is made or the parking meter displays a signal indicating illegal parking or violation, or the vehicle remains in such parking space for longer than the time limit indicated on the parking meter, such vehicle shall be considered as parking overtime; and either police officers of the urban county or parking control officers of the Lexington and Fayette County Parking Authority shall issue in writing a notice to answer to the charge of overtime parking.

(b) It shall be unlawful to deposit or cause to be deposited in any parking meter any defaced or bent coin, or any slug, device or metallic substitute for any coin of the United States, or to otherwise use any card or other device in a parking meter in lieu of a card or device lawful and appropriate to an alternative payment process at such parking meter.

(c) It shall be unlawful for any unauthorized person to deface, injure, tamper with, open or willfully break or destroy or impair the usefulness of any parking meter so installed.

(Ord. No. 34-83, § 1, 3-10-83; Ord. No. 194-88, § 2, 8-25-88; Ord. No. 46-89, § 2, 3-7-89; Ord. No. 226-89, § 2, 11-30-89; Ord. No. 33-90, § 2, 2-22-90; Ord. No.

329-2005, § 6, 12-13-05)

Sec. 18-65. Proceeds from meter operation.

(a) It shall be the duty of employees designated by the Lexington and Fayette County Parking Authority, to make collections of the money deposited for the parking meters.

(b) It shall be the duty of such persons so designated to remove from the parking meters the coins deposited in such meters and to deliver such coins to the Lexington and Fayette County Parking Authority as soon as practicable thereafter. It shall be the duty of the Lexington and Fayette County Parking Authority to count the funds and deposit such funds in a separate account dedicated for such funds, keeping strict account thereof. Subject and subordinate to any existing collateral security pledge for bond issues of the Lexington Fayette Urban County Government or any of its agencies or instrumentalities, any and all such money deposited in such account shall be used exclusively by the Lexington and Fayette County Parking Authority for the following purposes:

(1) For the purpose of rental, acquisition, establishment, erection, maintenance and operation of all parking meters used by the Lexington and Fayette County Parking Authority.

(2) For the purpose of making the system effective.

(3) For the expense incurred by and through the Lexington and Fayette County Parking Authority in the regulation and limitation of vehicular parking.

(Ord. No. 62-87, § 1, 4-16-87; Ord. No. 329-2005, § 6, 12-13-05)

Sec. 18-65.1. Covering meters authorized.

(a) Upon the authorization by the Lexington and Fayette County Parking Authority, bags shall be issued for the purpose of covering designated parking meters for specified periods during construction projects, lengthy loading and unloading by moving companies, and other planned activities which will of necessity require use of parking meter spaces in order to avoid impeding traffic flow on adjacent streets.

(b) Such bags shall be imprinted "Reserved Parking by Order of the Lexington and Fayette County Parking Authority - Tow Zone," and a fee to be established by the Lexington and Fayette County Parking Authority from time to time shall be paid per bag per day to the Lexington and Fayette County Parking Authority by the individual requesting the bags. The revenue from such fees shall be deposited and used in accordance with section 18-65.

(c) Notwithstanding the provisions of this section, the division of police shall be empowered to cover parking meters with red plastic bags or post signage labeled "No Parking by Order of LFUCG Police - Tow Zone" for impromptu or brief events such as parades, large funerals, emergencies and similar situations where the public safety and convenience require that the parking meter spaces be reserved.

(d) Any vehicle parked at a meter or other designated paid parking space, bagged or posted as restricted parking pursuant to subsections (a), (b) and (c) of this section may be immediately towed. Any vehicle parked at a meter or other designated paid parking space that is bagged or posted as restricted parking subsequent to the vehicle being parked at the meter or other designated paid parking space may be towed four (4) hours after the bagging of the meter or posting of a notice restricted parking.

(Ord. No. 62-87, § 2, 4-16-87; Ord. No. 329-2005, § 6, 12-13-05; Ord. No. 162-2010, §§ 1, 2, 9-23-10)

Editor's note(s)—Section 2 of Ord. No. 62-87, adopted Apr. 16, 1987, added § 18-66, which the editor has redesignated § 18-65.1 to avoid duplication of section numbers.

Article IV

Speed Regulations

Sec. 18-66. State speed laws applicable.

The state traffic laws regulating the speed of vehicles shall be applicable upon all streets within the urban county, except as the council, as authorized by state law, declares and determines that certain speed regulations shall be applicable upon specified streets or in certain areas, in which event it shall be unlawful for any person to drive a vehicle at a speed in excess of any speed so declared in this chapter when signs are in place giving notice thereof.

(Ord. No. 88-92, § 1, 6-11-92; Ord. No. 318-98, § 1, 11-19-98)

Sec. 18-67. Generally.

(a) No operator of a vehicle upon a public highway shall drive at a greater speed than is reasonable and prudent, having regard for the traffic and for the condition and use of the highway, and in no event a speed in excess of twenty-five (25) miles an hour unless otherwise marked.

(b) Unless directed otherwise by the council, all collector streets in the urban county and all streets not located in the urban services area of the urban county shall be marked to permit a speed not in excess of thirty-five (35) miles an hour unless a higher speed is required by state law. The term "collector" is defined by section 1-11 of the Lexington-Fayette Urban County Zoning Ordinance.

(Ord. No. 318-98, § 2, 11-19-98)

Sec. 18-68. School zone.

Drivers of vehicles when operating in and around a school will operate their vehicles in a reasonable and most prudent manner.

Sec. 18-69. Reckless driving.

Any person who drives any vehicle in such a manner as to indicate either a willful or a wanton disregard for the safety of persons or property is guilty of reckless driving.

Sec. 18-70. Regulation by traffic signals.

The director, division of traffic engineering, is authorized to regulate the timing of traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and may erect appropriate signs giving notice thereof, but in no event to permit vehicles to exceed twenty-five (25) miles per hour unless otherwise marked.

(Ord. No. 318-98, § 3, 11-19-98)

Sec. 18-71. Reserved.

Editor's note(s)—Section 18-71, regulating speed of trains, was repealed by § 1 of Ord. No. 241-88, adopted Oct. 20, 1988.

Sec. 18-71.1. Garbage truck zones.

Drivers of vehicles in the vicinity of urban county refuse trucks shall operate their vehicles in a reasonable and most prudent manner and shall not, when said trucks display a flashing, strobelight assembly, exceed a speed of twenty-five (25) miles per hour.

(Ord. No. 214-92, § 1, 12-3-92)

Article V

Turning and Passing Movements

Sec. 18-72. Authority to place and obedience to turning markers.

(a) The director, division of traffic engineering is authorized to place markers, buttons, or signs within or adjacent to intersections, indicating the course to be traveled by vehicles turning at such intersections; and such course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.

(b) When authorized markers, buttons or other indications are placed within and adjacent to an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.

Sec. 18-73. Authority to place restricted turn signs.

The director, division of traffic engineering is hereby authorized to determine those intersections at which drivers shall not make a right or left turn or both and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted.

Sec. 18-74. Required position and method of turning at intersections.

The driver of a vehicle intending to turn at an intersection shall do so as follows:

(1) **Right turns.** Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(2) **Left turns on two-way roadways.** At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line thereof and by passing to the right of such center line where it enters the intersection; and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the center of the intersection.

(3) **Left turns on other than two-way roadways.** At any intersection where traffic is restricted to one (1) direction on one (1) or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle; and after entering the intersection, the left turn shall be made so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

Sec. 18-75. Signals.

Persons operating vehicles, when turning; shall use the signals prescribed by KRS chapter 189.

Sec. 18-76. Reserved.

Editor's note(s)—Section 1 of Ord. No. 121-96, adopted June 27, 1996, repealed § 18-76, which prohibited U-turns in any business district or at an intersection.

Sec. 18-77. Obedience to a no-turn sign.

Whenever authorized signs are erected indicating that no right or left turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.

Sec. 18-78. Driving on roadways laned for traffic.

The director, division of traffic engineering is hereby authorized to mark traffic lanes near intersections, between safety zones and the nearest curb, and on any other portion of the roadway where the regular alignment of traffic is deemed necessary. Whenever any roadway has been divided into two (2) or more clearly marked lanes for traffic, the following rules in addition to all others consistent herewith shall apply:

(1) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(2) Upon a roadway which is divided into three (3) lanes, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle where the roadway is clearly visible and such center lane is clear of traffic within a safe distance, or in preparation for a left turn or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation.

(3) Official signs may be erected directing slow-moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway, and drivers of vehicles shall obey the directions of every such sign.

(4) Whenever the center line of a street is marked by a double yellow line, it shall be unlawful to drive to the left thereof. (Ord. No. 255-67, § 1, 10-13-67)

Sec. 18-79. Passing vehicles proceeding in opposite directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right; and upon roadways having width for not more than one (1) line of traffic in each direction, each driver shall give to the other at least half of the main portion of the roadway as nearly as possible.

Sec. 18-80. Passing a vehicle on the left.

The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the highway until safely clear of such vehicle which has been passed. The driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on suitable and audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

Sec. 18-81. When passing on the right is permitted.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle which is making or about to make a left turn.

(b) Whenever there are two (2) or more lanes of travel on a one-way street and whenever there are two (2) or more lanes of travel in the same direction on a two-way street, driver of vehicles proceeding in the right lanes on such streets may pass other vehicles to the right of such vehicles between intersections when the passed vehicle is proceeding in the left lane of travel and it is safe to do so without danger to others.

Sec. 18-82. Slowly moving vehicles.

Slowly moving vehicles shall be driven in single file and shall keep as near to the right-hand curb as possible. Vehicles will keep to the right of the center of the street, except that a vehicle may cross to the left-hand side for the purpose of passing an overtaken vehicle if it can be done without danger to other vehicles and pedestrians. Drivers of vehicles may not cross a line for the purpose of passing when such line is in their lane of traffic.

Article VI

One-Way Streets and Alleys

Sec. 18-83. Authority to designate one-way.

Whenever a one-way street or alley is designated by ordinance or by the director, division of traffic engineering, the director, division of traffic engineering shall place and maintain signs giving notice thereof; and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every public intersection where movement of traffic in the opposite direction is prohibited.

Sec. 18-84. Obedience to one-way signs.

Upon those streets and parts of streets and in those alleys designated by the director, division of traffic engineering, vehicular traffic shall move only in the indicated direction of traffic when signs indicating the direction of traffic are erected and maintained at every public intersection where movement in the opposite direction is prohibited.

Sec. 18-85. Reserved.

Article VII

Special Stops and Yields

Sec. 18-86. Authority to designate stops or yields.

The director, division of traffic engineering is hereby authorized to determine and designate intersections where particular hazards exist and to determine whether vehicles shall stop or yield at one (1) or more entrances to any such intersections, and shall erect a stop or yield sign at every such place where a stop or yield is required. Every stop sign erected pursuant to this article shall bear the word "STOP" in letters not less than six (6) inches in height. Every stop or yield sign shall be located as near as practicable at the nearest line of the crosswalk on the near side

of the intersection or, if none, at the nearest line of the roadway; however, in the case of a "T" intersection, where there is no feasible location for a stop or yield sign on the near side, the stop or yield sign for the none-through street may be located on the far side.

(Ord. No. 3814, § 1, 8-7-58)

Sec. 18-87. Obedience to stop sign.

When stop signs are erected as herein provided at or near the entrance of any intersection, every driver of a vehicle shall stop such vehicle at such sign or at a clearly marked stop line and then shall proceed cautiously, yielding the right-of-way to vehicles not so obliged to stop which are within the intersection or approaching so closely as to constitute an immediate hazard, but then may proceed.

(Ord. No. 3814, § 2, 8-7-58)

Sec. 18-88. Obedience to yield sign.

The driver of any vehicle approaching a "Yield" sign shall slow to a speed of not more than ten (10) miles per hour and yield the right-of-way to all vehicles approaching from the right or left on the intersecting street when such vehicles are so close as to constitute an immediate hazard. If a driver is involved in a collision at an intersection or interferes with the movement of other vehicles after driving past a yield sign, such collision or interference shall be deemed prima facie evidence of the driver's failure to yield the right-of-way.

(Ord. No. 3814, § 3, 8-7-58)

Sec. 18-89. Emerging from alley or private driveway.

The driver of a vehicle emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway, yielding the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway.

Sec. 18-90. Stop when intersection blocked.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.

Sec. 18-91. Obedience to sign indicating approach of railroad train.

(a) Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad, and shall not proceed until he can safely do so. The foregoing requirements shall apply when:

(1) A clearly visible electric or mechanical signal device gives warning of the immediate approach or passage of a railroad train.

(2) A railroad train approaching within approximately fifteen hundred (1,500) feet of the highway crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard.

(3) An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

(b) No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad grade crossing while such gate or barrier is closed or is being opened or closed.

Secs. 18-92, 18-93. Reserved.

Article VIII

Pedestrians

Sec. 18-94. Pedestrians approaching vehicles or being upon median, prohibited.

(1) **Definitions.** As used in this section.

Arterial roadway shall mean any arterial roadways listed in subsection (4) of this section.

(2) **Prohibitions** :

(a) No person shall cross an arterial roadway at any place except in a crosswalk. Where there is no crosswalk, a person shall cross only at an intersection in which traffic control signals or other devices are in place. Where there is no crosswalk nor traffic control signals or devices, a person shall cross an arterial roadway only at an intersection.

(b) No person, other than a person in or on a vehicle, shall be upon an arterial roadway or, while upon an arterial roadway, approach a vehicle, except one (1) that is legally parked at the curb or shoulder.

(c) No person shall be upon a median of an arterial roadway unless in the process of legally crossing the roadway in a crosswalk. It is prima facie evidence of a violation of this subsection if a person stays on the median through two (2) consecutive opportunities to cross the roadway in a legal manner under this chapter and the traffic laws of the Commonwealth [of] Kentucky. The exception found in (3)(a) shall not apply to those pedestrians who stay on the median through two (2) consecutive opportunities to cross.

(3) **Exceptions.** Sections (2)(b) and (2)(c) of this section shall not apply to:

(a) Any person legally crossing the roadway;

(b) Any person engaged in law enforcement or rescue activities, including providing assistance to an injured or disabled vehicle or person;

(c) Any person entering a stopped vehicle as an invited passenger where it is lawful to do so, including accessing taxicabs or public transportation; and

(d) Any person engaged in emergency repair or maintenance activities of a vehicle.

(4) The following roadways, which carry the most traffic within Lexington Fayette County, are arterial roadways for the purposes of this section.

Albany Road

Alexandria Drive Alumni Drive Armstrong Mill Road

Athens Boonesboro Road Avenue of Champions Bolivar Street

Briar Hill Road Bryan Avenue Bryan Station Road Chinoe Road Citation Boulevard Clays Mill Road Cooper Drive Crestwood Drive

East and West Fourth Street East and West High Street East and West Loudon Street East and West Main Street East and West Maxwell Street

East and West New Cicle Ramps East and West New Circle Road East and West Short Street

East and West Third Street East and West Vine Street Elm Tree Lane

Euclid Avenue Fairway Drive Fontaine Road Georgetown Road Georgetown Street Harrodsburg Road Henry Clay Boulevard Holiday Road Huguelet Drive Jefferson Street Jesselin Drive Keithshire Way

Lane Allen Road Leestown Road Liberty Road

Man O' War Boulevard Manchester Street Mason Headley Road Midland Avenue Newtown Pike Nicholasville Road

North and South Broadway North and South Limestone Old Frankfort Pike

Old Richmond Road Oliver Lewis Way Paris Pike

Race Street Red Mile Road Richmond Road Rose Street

Rosemont Garden Russell Cave Road Sir Barton Way

South Ashland Avenue South Forbes Road

South Upper Street Southland Drive Tates Creek Road Todds Road Versailles Road Virginia Avenue Waller Avenue Walton Avenue Wellington Way West Reynolds Road

Wilson Downing Road Winchester Road Winslow Street

This section shall also apply to the first two hundred (200) feet of any roadway that intersects with an arterial roadway, as measured from the point where the roadway and the arterial roadway intersect.

(Ord. No. 81-2017, § 3, 5-25-17)

Sec. 18-95. Subject to traffic-control signals.

Pedestrians shall be subject to traffic-control signals as provided in this chapter, but at all places where there are no such signals pedestrians shall be granted those rights and be subject to those restrictions stated in sections 18-96 through 18-105.

Sec. 18-96. Right-of-way in crosswalk.

(a) When traffic-control signals are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger; but no pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle, which is so close that it is impossible for the driver to yield.

(b) When any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.

Sec. 18-97. Use right half of crosswalk.

Pedestrians shall move, whenever practicable, upon the right half of the crosswalk.

Sec. 18-98. Crossing at right angles.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb except in a crosswalk.

Sec. 18-99. When pedestrians shall yield.

Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway. The foregoing rules in sections 18-96 through 18-99 have no application under the conditions stated in section 18-100 when pedestrians are prohibited from crossing at certain designated places.

Sec. 18-100. Prohibited crossing.

(a) Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except in a crosswalk.

(b) No pedestrian shall cross a roadway other than in a crosswalk in the central traffic district or in any business district.

Sec. 18-101. Walking along roadways.

Where sidewalks are provided, it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway. Where sidewalks are not provided, any pedestrian walking along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction. No person shall stand in the roadway for the purpose of soliciting a ride from the driver of any vehicle.

Sec. 18-102. Drivers to exercise due care.

Notwithstanding the foregoing provisions of this article, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.

Sec. 18-103. Demonstrations on or near sidewalk.

No person shall, on any sidewalk or any premises abutting thereon, make a speech or harangue, or demonstrate, sell or offer for sale goods, wares and merchandise or display any sign, device, information or exhibition, in consequence of which there is caused such a gathering of persons on such sidewalk as to interfere with pedestrian traffic thereon.

Sec. 18-104. Pedestrian assemblies.

No person shall gather and remain in crowds or assemblies at or about any point or place, or move in crowds in such numbers and in such manner as to interfere with vehicular or pedestrian traffic.

Sec. 18-105. Blind pedestrians.

Blind pedestrians, by holding out horizontally a white cane in the direction they desire to travel over crosswalks on any street, avenue, alley or other public highway, shall be given the right-of-way over all other pedestrians and over all vehicles, except the vehicles of the division of police, division of fire and emergency services, and excepting those other vehicles classified as emergency vehicles.

Article IX

Stopping, Standing, Parking

Division 1

Generally

Sec. 18-106. Standing or parking close to the curb.

No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement and with the right-hand wheels of the vehicle within twelve (12) inches of the curb or edge of the roadway except as otherwise provided in this chapter.

Sec. 18-107. Lights on parked vehicles.

(a) Whenever a vehicle is lawfully parked at nighttime upon any street within a business or residence district, no lights need be displayed upon such parked vehicle.

(b) Any lighted headlamps upon a parked vehicle shall be depressed or dimmed.

Sec. 18-108. Setting brakes on parked vehicles.

No vehicle shall be parked on any highway without first setting the brakes thereon and stopping the motor thereof, and without turning the wheels of such vehicle to the curb or side of the highway if it is standing upon a slope.

Sec. 18-109. Authority to indicate angle parking.

(a) The director, division of traffic engineering shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets; but such angle parking shall not be indicated upon any federal-aid or state highway within the urban county unless the state highway department has determined that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic.

(b) Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street.

Sec. 18-110. Obedience to angle parking signs or markings.

Upon those streets which have been signed or marked by the director, division of traffic engineering for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.

Sec. 18-111. Opening doors of parked vehicles.

No person shall open the doors of any parked vehicle, which doors open on the street side of such vehicle when any other vehicle or bicycle is approaching such parked vehicle and is within fifty (50) feet thereof on the side of the street on which the parked vehicle is standing.

Sec. 18-111.1. Leaving keys in the ignition of parked, etc., motor vehicles.

(a) It shall be unlawful to leave the key in the ignition of a motor vehicle while said vehicle is left parked, standing or otherwise unattended on the streets or public thoroughfares within the urban county limits.

(b) For any and all violations of subsection (a) herein, there shall be imposed a fine of not less than ten dollars ($10.00), nor more than one hundred dollars ($100.00).

(Ord. No. 113-70, § 2, 5-28-70)

Sec. 18-112. Impounding of vehicles.

(a) Any vehicle parked upon the streets of the urban county at a place, in a manner or for a length of time prohibited by this chapter or any vehicle parked in a designated fire lane on private property in violation of KRS 227.300 and KRS 227.320 is, if unoccupied, declared to be an obstruction in such streets or fire lanes and a public nuisance; and any police officer or safety officer of the urban county government or any parking control officer employed by or otherwise under the control of the Lexington and Fayette County Parking Authority is authorized to cause the same to be removed to and impounded in the depository provided by the urban county government for such purpose. Any firefighter assigned to the division of fire and emergency services office of the fire marshal is authorized to cause any vehicle parked in a designated fire lane on private property in violation of KRS 227.300 and KRS 227.320, if unoccupied, or any vehicle parked in violation of section 18-118 of the Code, if unoccupied, to be removed and impounded.

(b) The owner of a motor vehicle which has been impounded may challenge the validity of such impoundment in accordance with the procedures set forth in article XII of this chapter.

(c) Whenever a vehicle is removed from a private parking lot pursuant to KRS 189.725, the person engaged to remove such vehicle shall within one (1) hour of the removal provide the division of police reports desk with the following information:

(i) Make, model, color, year, license plate number and state of issuance and, if known, the vehicle identification number of the vehicle;

(ii) Location of where the vehicle was removed from and its present location;

(iii) Date and time of the removal; and

(iv) Name, address and telephone number of the person who can authorize the release of the vehicle.

Failure to comply with the requirements of this subsection will subject the violator to a fine of not less than twenty dollars ($20.00) nor more than five hundred dollars ($500.00), and each day's continuance of any such violation shall be a separate offense for which a fine not less than twenty dollars ($20.00) nor more than five hundred dollars ($500.00), shall be imposed.

(Ord. No. 207-82, § 1, 11-18-82; Ord. No. 32-86, § 2, 3-6-86; Ord. No. 192-92, § 1, 10-29-92; Ord. No. 304-98, § 3, 10-29-98; Ord. No. 188-2003, § 1, 7-10-03;Ord. No. 121-2005, § 2, 5-19-05; Ord. No. 329-2005, § 7, 12-13-05)

Division 2

Prohibited or Restricted

Sec. 18-113. Authority to prohibit or regulate parking.

The director, division of traffic engineering is hereby authorized to erect signs or place signs on parking meters indicating no stopping, no parking, or time-limit parking, upon any street in the urban county where he determines particular hazards exist or where unusual delay in traffic exists.

Sec. 18-113.1. Reserved.

Editor's note(s)—Section 18-113.1, relating to a handicapped parking permit program, derived from Ord. No. 78-77, § 1, adopted Apr. 7, 1977, was repealed by § 1 of Ord. No. 214-83, adopted Nov. 17, 1983.

Sec. 18-113.2. Reserved.

Editor's note(s)—Section 18-113.2, prohibiting parking in spaces reserved for the handicapped derived from Ord. No. 235-78, § 1, adopted Sept. 21, 1978, was repealed by § 1 of Ord. No. 188-83, adopted Oct. 6, 1983.

Sec. 18-113.3. Parking in handicapped parking spaces.

(1) Any vehicle parked in a designated handicapped parking slot on a public street or in an off-street parking facility offered for public use as defined in KRS 189.396 in violation of KRS 189.456 is, if unoccupied, declared to be a hazard which endangers the safety of handicapped individuals.

(2) Any police officer or safety officer of the urban county government or any parking control officer employed by or otherwise under the control of the Lexington and Fayette County Parking Authority is authorized to cause such illegally parked vehicle to be removed and impounded as provided in section 18-112 herein.

(Ord. No. 70-86, § 1, 5-1-86; Ord. No. 329-2005, § 8, 12-13-05)

Sec. 18-113.4. Accessible parking space sign.

(1) For purposes of this section, the following terms shall have the following meanings unless the context requires otherwise:

(a) International symbol of accessibility shall mean the stylized wheelchair stick figure drawn in white on a blue background or in blue on a white background as adopted by the 1969 Eleventh World Congress on Rehabilitation of the Disabled in Helsinki, Finland, and copies of which are available in the division of building inspection.

(b) Person shall mean the owner, developer, or manager of any building described in the current Kentucky Building Code.

(2) A designated accessible parking space in any parking area other than a public street shall be marked permanently with a metal, vinyl, or durable wood sign the dimensions of which are at least twelve (12) inches by eighteen (18) inches and which is attached to a pole at least sixty (60) inches, measured from the bottom of the sign, above the ground; provided, however, that the sign may be affixed to any wall immediately adjacent to a sidewalk which abuts a handicapped parking space. All accessible parking space signs shall be marked with the international symbol of accessibility.

(a) In area with "van accessible space," the additional space or aisle located beside the accessible parking space shall be painted with yellow, white, or blue hash lines and No Parking Anytime.

(b) Compliance with section (2)(a) will be required of all new development and subsequent re-developments. For all existing parking lots and structures, compliance will be required at the time that they are resurfaced, restriped, or remodeled/reconfigured.

(3) This section shall apply to all buildings described in the current Kentucky Building Code. Regulations regarding number and size of designated accessible parking spaces and their dimensions are set out in the current Kentucky Building Code.

(4) Any person failing to provide or maintain required accessible parking space signs or any person failing to provide or maintain the required van accessible parking additional space or aisle painting shall be fined not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00) for each missing or non-maintained sign or aisle painting; any person failing to provide the number of accessible parking spaces required in the current Kentucky Building Code shall be fined as required in KRS 198B.990(1). Appeal of a citation for missing or nonmaintained accessible parking signs or aisle painting shall be taken pursuant to sections 18-174 and 18-175 of the Revised Code of Ordinances.

(5) Parking in an accessible aisle designated as No Parking Anytime is prohibited. Any person who shall violate this section shall be subject to the fine in section 18-166(i).

(Ord. No. 75-87, § 1, 4-30-87; Ord. No. 146-88, § 1, 6-30-88; Ord. No. 14-2014, § 1, 2-20-14; Ord. No. 58-2014, § 1, 5-22-14; Ord. No2.5-2016, § 1, 2-18-16 ; Ord. No. 31-2017, §§ 1, 2, 3-2-17)

Sec. 18-114. Obedience to no-parking regulations.

(a) When signs, permanent or temporary, are erected or placed, or otherwise designated giving notice of restricted parking within the limits of the urban county, no person shall park a vehicle in any such place so designated.

(b) Any vehicle parked in violation of subsection (a) above is declared to be a public nuisance and any police officer of the urban county government or any parking control officer employed by or otherwise under the control of the Lexington and Fayette County Parking Authority is authorized to cause the same to be removed to and impounded in a depository named by the urban county government for such purpose.

(c) A charge of three dollars ($3.00) shall be paid to the urban county government in addition to any fine which may be imposed, and all storage and hauling charges must be paid for the release of such impounded vehicle. If the vehicle was towed and impounded due to outstanding unpaid parking citations, the procedures for such impoundments set forth in article XII of this chapter shall apply.

(Ord. No. 48-70, § 1, 3-26-70; Ord. No. 50-2002, §§ 1, 2, 3-7-02; Ord. No. 188-2003, §§ 2, 3, 7-10-03; Ord. No. 329-2005, § 9, 12-13-05)

Sec. 18-114.1. Parking in residential parking permit area; permit required.

(1) When signs are erected or placed giving notice that a residential parking permit area has been established pursuant to resolution of the urban county council, no person shall park a vehicle in any such space so designated for more than the time period specified on such signs, unless the vehicle displays a parking permit authorized by that resolution.

(2) Any vehicle parked in violation of subsection (1) above is declared to be a public nuisance, and any police officer or safety officer of the urban county government or any parking control officer employed by or otherwise under the control of the Lexington and Fayette County Parking Authority is authorized to cause the same to be removed to and impounded in a depository named by the urban county government for such purpose.

(3) No person shall fail to surrender a residential parking permit when directed to do so.

(4) No person shall represent in any fashion that a vehicle is entitled to a residential parking permit authorized by resolution of the urban county council when it is not so entitled. The display of a residential parking permit on a vehicle not entitled to such a residential parking permit shall constitute such a representation.

(5) No person shall duplicate, or attempt to duplicate, by any means, a residential parking permit authorized by resolution of the urban county council. The display of such a duplicate residential parking permit on a vehicle shall constitute such a duplication.

(6) Any person violating any provision of this section shall, upon conviction thereof by a court of competent jurisdiction, be fined not more than fifty dollars ($50.00) for each violation. Persons violating any of the

provisions shall be fined not less than eight dollars ($8.00); however, if any citation for violation of this section remains unpaid for thirty (30) days from the date thereof, the fine shall not be less than sixteen dollars ($16.00).

(Ord. No. 57-90, § 1, 4-5-90; Ord. No. 101-90, § 1, 5-31-90; Ord. No. 230-91, § 2, 11-14-91; Ord. No. 329-2005, § 10, 12-13-05)

Sec. 18-115. Double parking.

No person shall at any time double park any vehicle on any street for any purpose.

Sec. 18-116. Parking exceptions, funeral cars.

The provisions of any of the sections restricting the time during which parking is prohibited shall not apply to funeral cars parked in the vicinity of a church, chapel or residence while a funeral is in progress therein.

Sec. 18-117. Authority to establish and eliminate fire lanes.

The director, division of traffic engineering, after proper traffic survey and with the approval of the mayor, police chief and fire chief, may establish fire lanes on any street in the urban county where he determines particular hazard exists, or eliminate existing fire lanes which he deems no longer necessary.

Sec. 18-118. Obedience to fire lane restrictions.

On a street where the curb is properly signed as a fire lane, it shall be a violation for anyone to park a vehicle at any time.

Sec. 18-119. Stopping, standing or parking prohibited.

(a) No person shall stop, stand or park a vehicle except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer or traffic-control device, in any of the following places:

(1) In front of a public or private driveway.

(2) Within fifteen (15) feet of a fire hydrant.

(3) On a sidewalk.

(4) Within an intersection.

(5) On a crosswalk.

(6) Within twenty (20) feet of a crosswalk at an intersection.

(7) Within thirty (30) feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of the roadway.

(8) In any park area in any street, or in any parkway dividing two (2) streets.

(9) Within twenty (20) feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five (75) feet of such entrance (when properly sign-posted).

(10) Alongside or opposite any street excavation or obstruction when such stopping, standing or parking would obstruct traffic.

(11) On the roadway side of any vehicle stopped or parked at the edge or curb of a street.

(12) Upon any bridge or other elevated structure.

(13) At any place where official signs or marking prohibit stopping, standing and parking or parking.

(14) At any place where the curb is painted yellow.

(b) No person shall move a vehicle not owned by such person into any such prohibited area or away from a curb such distance as is unlawful.

Sec. 18-119.1. Reserved.

Editor's note(s)—This § 18-119.1 expired at twelve o'clock (12:00 a.m.) midnight on October 10, 2010, and was not earlier modified, amended or repealed. Former § 18-119.1 pertained to no parking zones during 2010 World Equestrian Games and derived from Ord. No. 111-2010, §§ 1—3, adopted June 24, 2010.

Sec. 18-120. Parking not to obstruct traffic.

No person shall park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway for free movement of vehicular traffic.

Sec. 18-121. Parking in alleys.

No person shall park a vehicle within an alley in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway for the free movement of vehicular traffic; and no person shall stop, stand or park a vehicle within an alley in such a position as to block the driveway entrance to any abutting property.

Sec. 18-122. Twenty-four-hour parking.

(1) The parking of any vehicle on any street for more than twenty-four (24) hours is hereby prohibited. Any vehicle parked for more than twenty-four (24) hours is hereby declared to be a public nuisance.

(2) Any safety officer, parking control officer or peace officer is authorized to attach notice to such vehicle demanding that the owner or user of such vehicle abate such public nuisance within twenty-four (24) hours after such notice has been attached to the vehicle.

(3) If the vehicle has not been moved for twenty-four (24) hours after the notice to abate has been attached to the vehicle, the public nuisance may be abated by impounding the vehicle.

(Ord. No. 15-83, § 1, 2-10-83; Ord. No. 96-2004, § 1, 5-13-04; Ord. No. 6-2005, § 1, 1-13-05; Ord. No. 329-2005, § 11, 12-13-05)

Sec. 18-123. All-night parking.

No person shall park a vehicle between the hours of 2:00 a.m. and 6:00 a.m., except in emergency situations, on the following paved streets of the urban county within the described boundary, when indicated by appropriate signs:

East and west direction:

Vine Street to Main to Main.

Main Street from Jefferson to Midland. Short Street from Spring to Esplanade.

Barr Street from North Limestone to Walnut.

Pleasant Stone Street from North Limestone to Walnut. North and south direction:

Broadway from High to Second. Mill Street from High to Second. Cheapside from Short to Main. Market Street from Short to Church. Upper Street from High to Second.

Limestone Street from High to Third. Walnut Street from Main to Pleasant Stone. Quality Street from Main to Vine.

Deweese Street from Main to Short.

(Ord. No. 146-76, § 1, 7-22-76; Ord. No. 34-87, § 1, 3-5-87; Ord. No. 166-94, § 1, 8-25-94)

Sec. 18-124. Parking for certain purposes prohibited.

(1) No person shall park a vehicle or boat upon any street for the principal purpose of:

(a) Displaying such vehicle or boat for sale, lease, advertisement, or other promotional purpose;

(b) Washing, greasing, or repairing such vehicle or boat, except any repairs which may be necessitated by an emergency.

(2) It shall be unlawful for any vehicle sales facility, automobile repair shop, tire shop, accessory store, filling station, or any other establishment whatsoever, to use any part of any street for the storage, repair, adjustment, or equipment of vehicles or accessories therefor.

(3) It shall be unlawful to park any vehicle or boat within the front yard of any premises that is adjacent to a street or thoroughfare of three (3) or more lanes or side street side yard of any premises that is adjacent to a street or thoroughfare of three (3) or more lanes which have been landscaped in accordance with the requirements of article 18 of the zoning ordinance unless any such vehicle is parked on a paved surface behind the

required landscaping or alternative parking is approved by a permit issued by the division of building inspection. Notwithstanding the foregoing, adjacent access or service roads of any such premises shall be included in the requirement that parking occur on a paved surface behind the required landscaping or be approved by a permit issued by the division of building inspection.

(4) It shall be unlawful for any person to park a vehicle within any detention/retention basin unless said detention/retention basin has been incorporated within the confines of a vehicular use area as defined by and landscaped in accordance with the requirements of article 18 of the zoning ordinance.

(Ord. No. 240-89, § 1, 12-14-89; Ord. No. 252-97, § 1, 12-11-97)

Sec. 18-124.1. Parking for government officials generally.

The director, division of traffic engineering is hereby authorized, upon the direction of the mayor, to designate and set apart vehicle parking spaces upon the public streets and other public places specifically for the use of federal, state or urban county government officials and employees. Such parking spaces and the vehicles for which the spaces are designated shall be appropriately marked; and it shall be unlawful for any person, except the duly designated officials or employees, to use or occupy such parking spaces.

(Ord. No. 4014, § 1, 2-18-60; Ord. No. 157-85, § 1, 7-25-85)

Sec. 18-125. Parking for urban county government officials and employees.

Spaces on urban county streets in the vicinity of the Courthouse, with the exception of that space which is prohibited to parking by other sections of these regulations, may be designated and set apart as vehicle parking spaces for urban county government officials and employees. The director, division of traffic engineering shall designate the assignment of such spaces, which shall be indicated by appropriate markings. It shall be unlawful for any person except the duly designated officials or employees of the urban county government to use or occupy such spaces.

Sec. 18-126. Parking on parade route.

The police chief is hereby authorized, whenever in his judgment it is necessary or proper, to prohibit or restrict the parking of vehicles along a street, or part thereof, constituting the route or part of a route, of a parade; and he shall erect temporary traffic signs to that effect. It shall be unlawful to park or leave unattended any vehicle in violation of such signs.

Sec. 18-127. Parking on one-way roadways.

In the event a highway includes two (2) or more separate roadways and traffic is restricted to one (1) direction upon any such roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit standing or parking. The director, department of traffic engineering is authorized to determine when standing or parking may be permitted upon the left-hand side of any such one-way roadway and to erect signs giving notice thereof.

Sec. 18-128. Parking of trucks or other vehicles carrying cattle, other livestock, offal, manure, etc.

It shall be unlawful for any person to park any vehicle that is carrying or has carried cattle, other livestock, offal, manure or any other offensive material at any time when such vehicle by reason thereof gives off offensive odors or attracts flies or other insects on any street in the urban county excepting within one hundred (100) yards in either direction from the entrance to any licensed stockyard in the urban county.

Sec. 18-129. Parking of vehicles in any residential section.

(1) (a) It shall be unlawful for any person to park a vehicle exceeding seven (7) feet in overall width (excluding mirrors) or twenty (20) feet in overall length or seven and one-half (7½) feet in overall height, upon any street or highway in any residence district for longer than two (2) hours except when loading or unloading.

(b) As used in this section, the terms "loading" and "unloading" shall include, in addition to active loading and unloading of a vehicle, any time not exceeding twenty-four (24) hours that a recreational vehicle is being leveled for the purpose of preparing its heating or cooling system for use.

(c) However, any person may secure from the urban county government office designated by the mayor a visitor's permit which, when affixed to the driver's side of the front windshield, shall permit an out-of-county visitor's recreational vehicle exceeding the size limitations of this subsection to park upon a street or highway in a residence district for a specified twenty-four-hour period.

(2) It shall be unlawful for any person to park a vehicle within the front yard, side yard, or back yard of any residential structure except upon an approved residential driveway as defined in article V of chapter 17. For purposes of this subsection, it shall also be unlawful for a person owning, possessing, managing or controlling residential property to allow the parking of vehicles within the front yard, side yard or back yard of such premises except upon an approved residential driveway as defined in article V of chapter 17.

(3) It shall be unlawful for any person to park a vehicle upon a sidewalk. As used in this subsection, the term "sidewalk" shall mean that portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians, including any strip of ground between curb and paved sidewalk.

(4) Citation officer as authorized in section 14-10 of the Code of Ordinances or any safety officer, parking officer, peace officer is authorized to issue citations for violations of this section.

(Ord. No. 87-85, § 2, 5-2-85; Ord. No. 209-86, § 1, 10-2-86; Ord. No. 89-98, § 1, 4-16-98; Ord. No. 329-2005, § 12, 12-13-05; Ord. No. 82-2011, § 1, 6-23-11; Ord. No. 61-2018, § 1, 9-13-18)

Sec. 18-130. Application of division.

The provisions of this division prohibiting the standing or parking of a vehicle shall apply at all times, or at those times specified, or as indicated on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device.

Sec. 18-131. Regulations not exclusive.

The provisions of this division imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.

Division 3

Loading and Unloading

Sec. 18-132. Authority to designate loading zones.

The director, division of traffic engineering, is hereby authorized and directed to determine exact locations and lengths and to establish loading zones as defined in section 18-1(12), and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of sections18-133 and 18-135 through 18-140 are applicable. The director, division of traffic engineering shall have the power to issue or refuse permits for such loading zones and in deciding all such applications shall consider primarily the relationship of the loadings zones applied for and the public safety and convenience. No person other than authorized by the director, division of traffic engineering shall erect any such sign or place any such marking.

Sec. 18-133. Obedience to loading zone signs.

(a) No person shall stop, stand or park a vehicle for any purpose or length of time other than for the expeditious unloading and delivery or pickup and loading of materials in any place marked as a loading zone during hours when the provisions applicable to such zones are in effect. In no case shall there be a lapse in the loading or unloading of materials in excess of thirty (30) minutes except when so marked by appropriate signs. This permitted lapse in loading and unloading operations is for the sole purpose of accumulating loads, signing of material receipts and incidental necessary activities.

(b) The driver of a passenger motor vehicle (as described in section 18-137 of this Code) may stop temporarily at the place marked as a loading zone for the purpose of and while actually engaged in loading or unloading.

(c) Where loading zones or other public parking spaces are not available in the near vicinity, any passenger motor vehicle (as described in section 18-137 of this Code) engaged in loading and unloading may park for the expeditious loading or unloading of materials in any place otherwise prohibited for parking as long as such loading or unloading does not exceed thirty (30) minutes. The above exceptions do not permit double parking.

(Ord. No. 191-70, § 1, 8-13-70)

Sec. 18-134. Permit for loading or unloading at an angle to the curb.

The police chief or administrator of the traffic bureau is authorized to issue special written permits with the approval of the director, division of traffic engineering to permit the backing of a vehicle to the curb or over the sidewalk for the purpose of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized herein, and it shall be unlawful for any permittee or other person to violate any of the special terms or conditions of such a permit.

Sec. 18-135. Loading and unloading of materials prohibited in central traffic district during certain hours.

No truck parking shall be permitted in loading zones in the central traffic district for any purpose between the hours of 4:00 p.m. and 6:00 p.m. except where indicated by appropriate signs.

Sec. 18-136. Size of trucks limited in loading zones.

No person shall park a truck in a loading zone in the central traffic district for the purpose of loading or unloading, if such truck is longer than twenty-four (24) feet unless by special permission of the police chief or his authorized agent, except in the following areas:

(1) Vine Street from Broadway Street to Rose Street.

(2) Water Street from Broadway Street to Limestone Street.

Sec. 18-137. Identification of passenger vehicles using loading zones.

All passenger motor vehicles used by any person in business to deliver goods, wares and merchandise and having need to use loading zones shall bear identical business signs on both side door panels which contain the name of the business in letters three (3) inches in height and in contrasting colors. The lettering of the signs may include abbreviations so long as the identity of the business is readily ascertainable from the information given.

(Ord. No. 132-91, § 1, 7-2-91)

Sec. 18-138. Hours of delivery; residential areas.

It shall be unlawful for any seller and for any driver, or handler, or for any agent or employee, of any seller to deliver or to transport for delivery, to any purchaser in a residential district any commodity at any time on Sunday or between the hours of 6:30 p.m. and 6:00 a.m. on other days; but in case of emergency, the police chief may issue a permit for transportation and delivery on Sunday or between the hours above named on other days.

Sec. 18-139. Authority to designate public carrier stands.

The director, division of traffic engineering is hereby authorized and directed to establish bus stops and taxicab stands and stands for other passenger common carrier motor vehicles on such public streets in such places and in such number as he shall determine to be of the greatest benefit to the public; and every such bus stop, taxicab stand or other stand shall be designated by appropriate signs, where deemed necessary.

Sec. 18-140. Installation and maintenance of public carrier stands.

All bus stops, taxicab stands, or other stands, which have been approved by the director, division of traffic engineering shall be installed, marked and maintained by the person operating motor buses at the stands and, where deemed necessary by the director, division of traffic engineering, shall be marked by signs specifying "bus stop," "taxicab stands" or other such designation, which shall be uniform in size, shape and color.

Sec. 18-141. Stopping, standing and parking of buses and taxicabs regulated.

(a) The operator of a bus shall not stand or park such vehicle upon any street at any place other than at a bus stand so designated as provided herein.

(b) The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop so designated as provided herein, except in case of an emergency.

(c) The operator of a bus shall enter a bus stop on a public street in such a manner that the bus, when stopped to load or unload passengers or baggage, shall be in a position with the right wheels of such vehicle not farther than twelve (12) inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.

(d) The operator of a taxicab shall not stand or park such vehicle upon any street in the central traffic district at any place other than in a taxicab stand designated as provided in sections 18-139 and 18-140. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers.

Sec. 18-142. Restricted use of bus and taxicab stands.

No person shall stop, stand or park a vehicle other than a bus in a bus stop, or other than a taxicab in a taxicab stand, when any such stop or stand has been officially designated and appropriately signed; except that the driver of a passenger vehicle may stop therein temporarily for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to leave such zone.

Sec. 18-143. Citations for violations by bus drivers.

Whenever a police officer observes a bus violating any traffic regulations, it shall not be necessary for the officer to stop the bus; but he shall take the number of the bus, write a ticket against the number of the bus and mail such ticket to the company concerned.

Article X

Bicycles

Secs. 18-144—18-144.7. Reserved.

Editor's note(s)—Sections 18-144—18.144.7, derived from Ord. No. 219-73, § 1, adopted Sept. 13, 1973, were repealed by §§ 1—8 of Ord. No. 183-92, adopted Oct. 15, 1992, thus eliminating sections pertaining to mandatory licensing and reporting the purchase and sale of bicycles.

Sec. 18-145. Traffic laws apply.

Every person riding a bicycle upon a roadway shall be granted all the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by this chapter made applicable to the driver of a vehicle, except as to special regulations in section 18-165 and this article and except as to those provisions of laws which, by their nature, can have no application.

Sec. 18-146. Obedience to traffic-control devices.

Any person operating a bicycle shall obey the instructions of official traffic-control signals, signs and other control devices applicable to vehicles, unless otherwise directed by a police officer.

Sec. 18-147. Method of riding.

A person propelling a bicycle shall not ride other than astride a permanent and regular seat attached thereto. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.

Sec. 18-148. Riding on roadways and bicycle paths.

(a) Every person operating a bicycle, or an electronic bicycle or electric motor-assisted scooter as those devices are defined inchapter 17D, upon a roadway shall ride as near to the right-hand side of the roadway as practicable, exercising due care when passing a standing vehicle or one (1) proceeding in the same direction.

(b) Persons riding or pushing bicycles, or an electronic bicycle or electric motor-assisted scooter as those devices are defined inchapter 17D, upon a roadway shall not ride or push two (2) abreast in any business district or more than two (2) abreast in any other district.

(c) Whenever a designated bicycle path has been provided adjacent to a roadway, bicycle riders shall use such path and shall not use the roadway.

(d) No person shall ride a bicycle, or an electronic bicycle or electric motor-assisted scooter as those devices are defined inchapter 17D, on any designated limited-access highway.

(e) No motorized vehicles shall be allowed on any designated bicycle path, except electric bicycles and electric motor-assisted scooters as those devices are defined in chapter 17D of this Code.

(Ord. No. 219-73, § 1, 9-13-73; Ord. No. 154-83, § 1, 9-8-83; Ord. No.42-2019, § 2, 6-20-19)

Sec. 18-149. Operation of bicycle.

No person shall ride a bicycle at a distance of more than five (5) feet from the curb or edge of a roadway except when passing another vehicle.

Sec. 18-150. Speed.

No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.

Sec. 18-151. Emerging from alley or driveway.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on such sidewalk or sidewalk area, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway.

Sec. 18-152. Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the rider from keeping at least one (1) hand on the handlebars.

Sec. 18-153. Clinging to vehicles.

No person riding upon any bicycle shall attach the same or himself to any vehicle upon a roadway.

Sec. 18-154. Parking.

No person shall park a bicycle upon a street other than upon the roadway against the curb or upon the sidewalk in a rack to support the bicycle or against a building or at the curb, in such manner as to afford the least obstruction to pedestrian traffic.

Sec. 18-155. Riding on sidewalks.

(a) No person shall ride a bicycle upon a sidewalk within the business district, except for members of the division of police and the sheriff's office. The business district shall be from the corner of Jefferson and West Vine Street east along; West Vine Street to Ransom Street, north along Ransom to East Main Street, then west on East Main Street to DeWeese Street, then north on DeWeese Street to East Short Street, then west on East Short Street to Walnut Street, then north on Walnut Street to Barr Street, then west on Barr Street and

Church Street to North Broadway, then south on North Broadway to West Short Street, then west on West Short Street to Spring Street, then south on Spring Street to West Main Street, then west on West Main Street to Jefferson Street.

(b) The director, division of traffic engineering is authorized to erect signs on any sidewalk or roadway prohibiting the riding of bicycles thereon by any person, when in his opinion the riding of bicycles would constitute a danger either to the riders or to pedestrians. When such signs are in place only members of the division of police or the sheriff's office can disregard the same.

(c) Whenever any person is riding a bicycle upon a sidewalk, such person shall yield right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian.

(d) Members of the division of police and the sheriff's office are authorized to ride bicycles, horses and Segways on any sidewalk or roadway including those within the business district.

(Ord. No. 4753, § 1, 10-3-63; Ord. No. 95-73, § 1, 4-12-73; Ord. No. 71-2005, § 1, 3-24-05)

Sec. 18-156. Equipment.

(a) Every bicycle when in use at nighttime shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred (500) feet to the front and with a red reflector on the rear of a type which shall be visible from all distances from fifty (50) feet to three hundred (300) feet to the rear when directly in front of a lawful upper beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred (500) feet to the rear may be used in addition to the red reflector.

(b) Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.

(c) Every bicycle shall be equipped with good tires, safe steering, pedals and tight fittings.

(Ord. No. 155-71, § 1, 9-9-71; Ord. No. 219-73, § 1, 9-13-73)

Article XI

Violations, Penalties

Secs. 18-157—18-159. Reserved.

Sec. 18-160. Traffic violation bureau—Citation to appear before.

(a) Except when authorized or directed by the laws of this state to immediately take a person arrested for a violation of any traffic laws before the district court or any court, upon making an arrest for the violation of any of the traffic regulations of the urban county government, the arresting officer shall take the violator's name, address, operator's license number and the registration number of the vehicle involved and shall cite viola-

tor to appear before the district court to answer the charge against him within twenty-four (24) hours after being cited, or to comply with the procedures of the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board as set forth in article XII of this chapter, whichever is applicable.

(b) When any motor vehicle, without driver, is found parked or stropped in violation of any of the restrictions imposed by the traffic regulations of the urban county government, the safety or peace officer or parking control officer finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its user, and shall conspicuously affix to such vehicle a notice in writing, on a form provided by the urban county government, for the driver to answer to the charge with twenty-four (24) hours and at a place specified in the notice.

(Ord. No. 188-2003, § 4, 7-10-03; Ord. No. 329-2005, § 13, 12-13-05)

Secs. 18-161, 18-162. Reserved.

Sec. 18-163. Disposition of fines and forfeitures.

All fines or forfeitures collected upon conviction or upon the forfeiture of bail of any person charged with a violation of any of the provisions of this chapter shall be paid to the division of revenue, except that any fine or forfeiture arising from a violation of any provision of this chapter with respect to which the Lexington and Fayette County Parking Authority has enforcement power shall be paid to the Lexington and Fayette County Parking Authority.

(Ord. No. 329-2005, § 14, 12-13-05)

Sec. 18-164. Penalty—General.

It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter. Unless another penalty is expressly provided by law or in section 18-166, every person convicted of a violation of any provision of the traffic regulations shall be subject to a fine of not less than twenty-five dollars ($25.00) nor more than two hundred dollars ($200.00).

(Ord. No. 81-2017, § 5, 5-25-17)

Sec. 18-165. Same—Violation of regulations relevant to minors.

(a) It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in sections18-144 through 18-156.

(b) The parent of any child or guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of such sections.

(c) Such sections applicable to bicycles shall apply whenever a bicycle is operated upon any public path set aside for the exclusive use of bicycles, subject to exceptions stated.

Sec. 18-166. Same—Violations of specific sections.

(a) Any person who shall violate any of the provisions of the following sections of this chapter:

18-12, 18-13, 18-43, 18-97, 18-98, 18-107, 18-154 and 18-155 shall be fined not less than fifteen dollars ($15.00) nor more than two hundred dollars ($200.00).

(b) Any person who shall violate any of the provisions of the following sections of this chapter:

18-7, 18-10, 18-11, 18-19, 18-20, 18-21, 18-26, 18-27, 18-28, 18-29, 18-30, 18-31, 18-32, 18-34, 18-37, 18-38, 18-39, 18-41, 18-42, 18-53, 18-56, 18-57, 18-58, 18-72, 18-74, 18-75, 18-76, 18-77, 18-78, 18-84, 18-87, 18-88, 18-89, 18-90, 18-91, 18-96, 18-99, 18-100, 18-101, 18-102, 18-103, 18-105, 18-111, 18-118, 18-124, 18-125, 18-128, 18-132, 18-134, 18-136, 18-137, 18-138, 18-141, 18-142, 18-144, 18-146, 18-147, 18-148, 18-149, 18-151, 18-152, 18-153,18-164 and 18-165

shall be fined not less than twenty-five dollars ($25.00) nor more than two hundred dollars ($200.00).

(c) Any person who shall violate any of the provisions of the following sections of this chapter:

18-94, 18-54, 18-59, 18-15, 18-17, 18-67, 18-68, 18-79, 18-80, 18-82, 18-18, 18-22, 18-23, 18-24, 18-25, 18-104, 18-33, 18-36, 18-150 and 18-156

shall be fined not less than fifty dollars ($50.00) nor more than two hundred dollars ($200.00).

(d) Any person who shall violate the provisions of section 18-69 of this chapter shall be fined not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00), or imprisoned for not less than three (3) days nor more than six (6) months, or both so fined and imprisoned.

(e) Any person who shall violate the provisions of section 18-44 of this chapter shall be fined not less than fifty dollars ($50.00) nor more than two hundred dollars ($200.00);

(f) Any person who shall violate any provision of section 18-64(a) shall be fined not less than four dollars ($4.00) nor more than one hundred dollars ($100.00); however, if any parking citation remains unpaid for more than thirty (30) days from the date thereof, the fine shall be not less than eight dollars ($8.00) nor more than one hundred dollars ($100.00).

(g) Any person who shall violate any provision of section 18-66 shall be fined not less than eight dollars ($8.00) nor more than one hundred dollars ($100.00); however, if any parking citation remains unpaid for more than thirty (30) days from the date thereof, the fine shall be not less than sixteen dollars ($16.00) nor more than one hundred dollars ($100.00).

(h) Any person who shall violate any provisions of sections18-61, 18-63, 18-64(b), 18-64(c), 18-106, 18-108, 18-110, 18-115, 18-119, 18-120, 18-121, 18-122, 18-123, 18-126, 18-127, 18-129, 18-133, and 18-135 shall be fined not less than fifteen dollars ($15.00) nor more than one hundred dollars ($100.00); however, if any

parking citation remains unpaid for more than ten (10) working days (excluding Saturdays, Sundays and holidays) from the date thereof, the fine shall be not less than thirty dollars ($30.00) nor more than one hundred dollars ($100.00).

(i) Any person who shall violate any provision of section 18-113.3 shall be fined two hundred fifty dollars ($250.00).

(j) Any person who shall violate any provision of section 18-94 shall be fined one hundred dollars ($100.00). Nothing contained herein shall prohibit the issuance of a warning citation.

(Ord. No. 3814, § 4, 8-7-58; Ord. No. 4355, § 1, 2-1-62; Ord. No. 254-67, § 2, 10-13-67; Ord. No. 33-72, § 1, 2-24-72; Ord. No. 235-78, § 2, 9-21-78; Ord. No. 67-80, § 1, 6-12-80; Ord. No. 70-83, § 5, 5-5-83; Ord. No. 249-86, § 1, 11-20-86; Ord. No. 62-87, § 1, 4-16-87; Ord. No. 114-2000, §§ 1—4, 4-20-00; Ord. No. 176-2000, § 1, 6-29-00; Ord. No. 13-2014, § 1, 2-20-14; Ord. No. 81-2017, § 6, 5-25-17)

Sec. 18-167. Assessment of costs in district court for violations of sections18-64(a) and 18-114(a).

No costs shall be assessed by the parking citation enforcement hearing board for violations of section 18-64(a), overtime parking, and section 18-114(a), improper parking, upon voluntary payment of the prescribed fine without issuance of process.

(Ord. No. 101-74, § 1, 6-13-74; Ord. No. 122-87, § 5, 6-25-87; Ord. No. 188-2003, § 5, 7-10-03)

Article XII

Parking Citation Enforcement

Sec. 18-168. Title.

This article may be cited as the "Lexington-Fayette Urban County Government Citation Enforcement Ordinance."

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-169. Enforcement.

(a) The Lexington-Fayette Urban County Government hereby elects to enforce its parking ordinances as civil violations, pursuant to the provisions of KRS 82.605.

(b) The urban county government's parking ordinances shall be enforced pursuant to the procedures set forth in KRS 82.600 through 82.640.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-170. Establishment of hearing board.

There is established the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board; said board shall be composed of one (1) or more persons who shall serve a term of one (1) year and shall be appointed by a majority of the Board of Commissioners of the Lexington and Fayette County Parking Authority.

(Ord. No. 188-2003, § 6, 7-10-03; Ord. No. 329-2005, § 15, 12-13-05)

Sec. 18-171. Citation procedure.

If any motor vehicle is found parked, standing or stopped in violation of parking ordinances enacted by the urban county government, the vehicle may be cited for the appropriate parking violation. The citing officer shall note the vehicle's registration number and any other information concerning the vehicle which will identify it and, if the driver is not present, shall conspicuously affix to the vehicle a notice of the parking violation.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-172. Information to be included in notice of parking violation.

(a) The form of the notice of the parking violation shall be designated by the urban county government, but shall contain in substance the following information:

(1) A statement that the notice represents a determination that a parking violation has been committed by the owner of the vehicle and that the determination shall be final unless contested as provided herein;

(2) A statement that a parking violation may result in impoundment of the vehicle for which the owner may be liable for a fine and towing, handling and storage charges or fees;

(3) A statement of the specific parking violation for which the citation was issued;

(4) A statement of the monetary penalty established for the parking violation; and

(5) A statement of the options provided herein for responding to the notice and the procedures necessary to exercise these options.

(b) The notice of parking violation represents a determination that a parking violation has been committed, and such determination shall be final unless contested as provided herein.

(c) "Parking ordinance" means an ordinance regulating parking, standing, or stopping upon the public streets or ways within the urban county.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-173. Responsibilities of person who receives notice; liability of vehicle owner.

(a) Any person who receives notice of a parking violation shall respond to such notice as provided in this section within seven (7) days of the date of the notice, by either paying the fine set forth in the notice or requesting a hearing pursuant to these procedures.

(b) If the owner of a vehicle cited for a parking violation has not responded to the notice within seven (7) days as provided in subsection (a) of this section, the owner shall be deemed to have waived his right to a hearing and the determination that a violation was committed shall be considered final. Any person who fails to request a hearing or pay the fine within the seven (7) days shall be deemed to have refused to pay the fine levied by the citation.

(c) The registered owner of a vehicle at the time the violation occurred shall be liable for all fines, fees and penalties which he has refused to pay. (Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-174. Hearing.

(a) Except as otherwise set forth in sections18-177 and 18-178, any person cited for a parking violation may contest the determination that a violation occurred by requesting in writing a hearing before the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board. Such hearing shall be held no later than thirty (30) days from the date of receipt of the request, unless prior to the hearing the person requesting such a hearing requests an extension of time not to exceed fourteen (14) days. No less than seven (7) days prior to the date set for the hearing, the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board shall notify the registered owner of the vehicle of the date, time and place of the hearing. Any person requesting a hearing who fails to appear at the time and place set for the hearing shall be deemed to have refused to pay the fine levied by the citation.

(b) The Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board may consider the parking citation and any other written report made under oath by the officer who issued the citation in lieu of the officer's personal appearance at the hearing.

(c) At the hearing, after consideration of the evidence, the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board shall determine whether a violation was committed. Where it has not been established that the violation was committed, an order dismissing the citation shall be entered. Where it has been established that a violation was committed, the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board shall uphold the citation and order the owner to pay the citation within seven (7) days. A copy of such order shall be furnished the owner. Any person ordered to pay the fine who fails to do so within seven (7) days shall be deemed to have refused to pay the fine levied by the citation.

(Ord. No. 188-2003, § 6, 7-10-03; Ord. No. 329-2005, § 16, 12-13-05)

Sec. 18-175. Appeal.

(a) An appeal from the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board's determination may be made to the Civil Division of Fayette District Court within seven (7) days of the board's determination. The appeal shall be initiated by the filing of a complaint and a copy of the board's order in the same manner as any civil action under the Rules of Civil Procedure. The action shall be tried de novo and the burden shall be upon the urban county government to establish that a violation occurred. If the court finds that a violation occurred, the owner shall be ordered to pay to the Lexington-Fayette Urban County Government all fines, fees and penalties occurring as of the date of the judgment. If the court finds that a violation did not occur, the urban county government shall be ordered to dismiss the citation and the plaintiff shall be authorized to recover his costs.

(b) The judgment of the Fayette District Court may be appealed to the Fayette Circuit Court, in accordance with the Rules of Civil Procedure. (Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-176. Impoundment of vehicles.

(a) The urban county government may impound a motor vehicle parked, stopped or standing upon a street or public way within its jurisdiction in violation of an ordinance or statute prohibiting parking, stopping or standing in the location, manner or at the time the vehicle is cited if such vehicle has a record of currently outstanding delinquent parking citations. Such power is in addition to the authority granted pursuant to section 18-112 to remove and impound vehicles declared to be a public nuisance.

(b) The urban county government, in addition to the fines levied for parking or traffic offenses, may by ordinance impose reasonable towing, handling and storage charges upon such impounded vehicle.

(c) The urban county government may condition the release of an impounded vehicle upon the payment of all outstanding fines levied for parking or traffic offenses and the towing, handling and storage charges imposed thereon, unless the owner or other person entitled to possession challenges the validity of the impoundment pursuant to section 18-177. A vehicle may be released to the owner or other person entitled to possession only upon proof of ownership or right to possession. The urban county government may require reasonable security, bond or other assurances of indemnification from a person who is not the registered owner of the vehicle prior to releasing the vehicle to such person.

(d) For purposes of this article XII, "impoundment" shall mean either removal to a secure location or immobilization of the vehicle at the site of the violation by a device attached to the vehicle.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-177. Hearing to challenge validity of impoundment.

(a) The owner of a motor vehicle which has been impounded for parking violations pursuant to this chapter, or other person entitled to possession, may challenge the validity of such impoundment and request in writing a hearing before the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing

Board. The hearing shall be conducted within ten (10) business days of the date of the request, unless the owner or other person entitled to possession waives the limitation or the urban county government shows good cause for such delay. The urban county government shall retain possession of the vehicle pending the hearing, unless the owner or other person claiming right of possession posts a bond in an amount equal to the fines and fees accrued as of the date of the hearing request, or one hundred fifty dollars ($150.00), whichever is less. If the owner or person claiming possession of the vehicle is unable to pay the amount of the bond, the hearing shall be held within seventy-two (72) hours of the date the request for hearing is received, unless such person requests or agrees to a continuance.

(b) No less than five (5) days prior to the date set for the hearing, the urban county government shall notify the person requesting the hearing of the date, time and place of the hearing. In the case of a hearing required to be held within seventy-two (72) hours of the date of the request as provided in this section, the person requesting the hearing shall be informed at the time of his request, or as soon thereafter as practicable, of the date, time and place of the hearing.

(c) Any person who refuses or, except for good cause, fails to appear at the time and place set for the hearing shall be deemed to have conceded on his and the owner's behalf the validity of the impoundment.

(d) At the hearing, after consideration of the evidence, the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board shall determine whether the impoundment was valid and reasonable. Where it has not been established that the impoundment was justified, an order releasing the vehicle shall be entered. All fines and fees paid or amounts posted as bond because of the impoundment of the vehicle shall be returned. Where it has been established that the impoundment was justified, the board shall uphold the impoundment and condition the release of the vehicle upon payment of all fines and fees accruing thereto. If bond has been posted as security for release of the vehicle, said bond shall be forfeited to the urban county government. Any fines or fees in excess of the amount of the bond posted shall be ordered to be paid by the owner of the vehicle to the urban county government. The Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board shall furnish the owner or person appearing on the owner's behalf with a copy of its order.

(e) The Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board may consider a parking citation and any other written report made under oath by the issuing officer in lieu of the officer's personal appearance at the hearing.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-178. Appeal of impoundment determination.

(a) An appeal from the Lexington-Fayette Urban County Government Parking Citation Enforcement Hearing Board's determination may be made to the Civil Division of Fayette District Court within seven (7) days of the board's determination. The appeal shall be initiated by the filing of a complaint and a copy of the board's order in the same manner as any civil action. The action shall be tried de novo and the burden shall be on the

urban county government to establish that impoundment was justified. If the court finds that the impoundment was justified, the owner shall be ordered to pay all fees and fines accruing as of the date of judgment. If the court finds that the impoundment was not justified, the urban county government shall be ordered to release the vehicle, if applicable, and to return all fines and fees paid as a result of the impoundment and the plaintiff shall be authorized to recover his costs.

(b) The judgment of the Fayette District Court may be appealed to the Fayette Circuit Court, in accordance with the Rules of Civil Procedure.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-179. Unclaimed vehicles to be deemed abandoned.

If within ten (10) business days of impoundment a motor vehicle impounded by the urban county government has not been claimed, or a hearing has not been requested pursuant to these procedures, notice shall be mailed by certified mail to the registered owner, if known, and lien holders of record, if any, affording the parties the right within ten (10) days from the date of the notice to claim the vehicle or request a hearing pursuant to KRS 82.625. The notice shall state that, if no hearing is requested, the vehicle shall be deemed abandoned unless the charges thereon are paid within forty-five (45) days of receipt of notice.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-180. Disposition of abandoned vehicles.

(a) After forty-five (45) days from the date of notice required by section 18-177 an impounded motor vehicle shall be deemed abandoned and the vehicle shall escheat to the urban county government.

(b) If the vehicle is judged suitable for use, the urban county government may obtain a certificate of registration and ownership from the county clerk, pursuant to KRS 186.020 and either use the vehicle for governmental purposes of sell the vehicle at public auction to the highest bidder. If the vehicle is not suitable for use it may be sold for its scrap or junk value.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-181. Lien upon impounded vehicles.

The urban county government shall possess a lien on a motor vehicle impounded, pursuant to KRS 82.625 for all fines, penalties, and towing, handling and storage charges and fees imposed thereupon. Such lien shall be superior to and have priority over all other liens thereupon.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-182. Article not to otherwise effect rights or obligations of owner.

Nothing in these provisions shall otherwise affect the rights or obligations between the owner of the motor vehicle and those persons who claim a security interest therein.

(Ord. No. 188-2003, § 6, 7-10-03)

Sec. 18-183. Responsibilities of division of revenue.

The Lexington and Fayette County Parking Authority shall promulgate administrative regulations as necessary, issue forms and instructions, and take all actions necessary to implement the provisions of this article XII.

(Ord. No. 188-2003, § 6, 7-10-03; Ord. No. 329-2005, § 17, 12-13-05)

Article XIII

Council Designation of Pedestrian Oriented Business Districts; Elimination or Modification of Off-Street Parking Requirements

Within the defined infill and redevelopment area, the urban county council may through passage of an ordinance define certain specific areas as a pedestrian-oriented business district. In any such designated area, the council may waive up to one hundred (100) percent of all required off-street parking. The following requirements and procedures shall be applicable:

Sec. 18-184. [Property description/boundaries.]

Any such district shall contain contiguous properties of at least six hundred (600) feet of continuous frontage along a public street. Boundaries should terminate at each end at an intersecting public street. Although the district may include residential properties, eligible properties for the parking reduction shall only be those properties zoned in non-residential or mixed-use zoning categories.

(Ord. No. 53-2012, § 1, 4-26-12)

Sec. 18-185. [Residential uses or tracts within the district.]

Residential uses or tracts within the district will not be eligible for reduction or waiver of required off-street parking.

(Ord. No. 53-2012, § 1, 4-26-12)

Sec. 18-186. [Character of the business area.]

The council shall find that the predominant character of the area is of a pedestrian nature and that the strict application of minimum parking would be detrimental to maintaining the unique character of the business area.

(Ord. No. 53-2012, § 1, 4-26-12)

Sec. 18-187. [Impact on nearby residential areas.]

The council shall consider the impact of the creation of such a district on nearby residential areas, and shall be required to find that the creation of the district, in conjunction with any restriction applied under section 18-188 below, will not unduly harm the character of nearby residential areas.

(Ord. No. 53-2012, § 1, 4-26-12)

Sec. 18-188. [Alternative requirements.]

The council may establish alternative minimum off-street parking requirements in the district as deemed necessary to mitigate any negative impact.

(Ord. No. 53-2012, § 1, 4-26-12)

Sec. 18-189. [Written notice.]

In conjunction with the creation of a district, written notice shall be provided to nearby residents and neighborhood associations as required for a zone map amendment.

(Ord. No. 53-2012, § 1, 4-26-12)

Sec. 18-190. [Precedence.]

In any such district, the parking provisions of the district as approved will take precedence over any parking-related provisions of the zoning ordinance.

(Ord. No. 53-2012, § 1, 4-26-12)

Chapter 18B

Snow Emergencies[1]

Section 18B-1. Definitions.

Section 18B-2. Parking—Snow emergency routes.

Section 18B-3. Same—Secondary routes.

Section 18B-4. Travel on snow emergency routes.

Section 18B-5. Snow emergency declaration.

Section 18B-6. Emergency removal of parked or disabled vehicles.

Section 18B-7. Penalties.

Section 18B-8. Other regulations.

1. **Cross reference(s)**—Streets and sidewalks generally, ch. 17; traffic generally, ch. 18. State law reference(s)—Removal of snow from certain state roads by county plows, KRS 177.025.

Sec. 18B-1. Definitions.

Secondary street shall mean any public street, highway or thoroughfare which is not designated and signed as a "Snow Emergency Route."

Snow emergency route shall mean any public street, highway or thoroughfare designated by the urban county division of traffic engineering as a snow emergency route and posted with special signs properly identifying it as such a route. The special signs on the route shall be posted at intervals not exceeding one thousand (1,000) feet and shall be posted on both sides of the route.

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-2. Parking—Snow emergency routes.

No vehicle is authorized to park in any public way designated as a snow emergency route when a Stage 3 snow emergency has been declared by the mayor.

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-3. Same—Secondary routes.

No vehicle is authorized to park on any public way defined by section 18B-1 as a secondary street when a Stage 2 snow emergency has been declared by the mayor except:

(1) On the even-numbered side of the secondary street from 8:00 a.m., prevailing time, on any even-numbered day until 8:00 a.m., prevailing time, the following day; and

(2) On the odd-numbered side of the secondary street from 8:00 a.m., prevailing time, of any odd-numbered day, until 8:00 a.m., prevailing time, the following day.

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-4. Travel on snow emergency routes.

No vehicle is authorized to travel on any public way designated as a snow emergency route when a Stage 3 snow emergency has been declared by the mayor unless such vehicle is:

(1) Equipped with snow tires; or

(2) Equipped with snow chains; or

(3) Equipped with four-wheel drive; or

(4) An emergency vehicle as defined by Kentucky Revised Statutes; or

(5) A vehicle approved by the mayor for travel during the snow emergency.

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-5. Snow emergency declaration.

Whenever the mayor decides, on the basis of falling snow, sleet or freezing rain, or on the basis of a firm forecast by the U.S. Weather Bureau of snow, sleet or freezing rain, that weather conditions will make it necessary that motor vehicle traffic be expedited and that parking on public ways within the urban county be prohibited or restricted for snow plowing or other purposes, the mayor, with the approval of the commissioner of highways of the Commonwealth of Kentucky, shall put into effect, as necessary, parking prohibitions on parts or all of snow emergency routes (Stage 1 emergency), parking restrictions on public ways not designated snow emergency routes (Stage 2 emergency), and travel restrictions on public ways designated as snow emergency routes (Stage 3 emergency), by declaring and announcing a snow emergency in the manner prescribed by this chapter.

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-6. Emergency removal of parked or disabled vehicles.

During any snow emergency declared by the mayor, the division of police is authorized to remove, or have removed, a vehicle from a public way to the nearest place of safety.

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-7. Penalties.

Every person convicted of a violation of any provision of this chapter shall be punished by a fine of not more than fifty dollars ($50.00) or less than ten dollars ($10.00).

(Ord. No. 274-78, § 1, 11-7-78)

Sec. 18B-8. Other regulations.

Nothing in this chapter shall be construed to permit parking at any time or place where it is forbidden by any other section of this Code.

(Ord. No. 274-78, § 1, 11-7-78)

Chapter 18C

Emergency Ambulance, Transportation Ambulance Licensing, Regulations[1]

Section 18C-1. Definitions.

Section 18C-2. Standards.

Section 18C-3. Provider.

Section 18C-4. Agreement; services.

Section 18C-5. Use of lights.

Section 18C-6. Equipment and supplies.

Section 18C-7. Protocols/standing orders.

Section 18C-8. Reserved.

Section 18C-9. Complaints.

Section 18C-10. Availability of records.

Section 18C-11. Violations.

Section 18C-12. Emergency medical advisory board (EMAB).

Section 18C-13. Same§Membership.

Section 18C-14. Same--Officers.

Section 18C-15. Same--Duties.

1. **Editor's note(s)**—Ord. No. 308-2005, § 1, adopted Nov. 17, 2005, amended Ch. 18C, §§ 18C-1§18C-31, in its entirety and supplied provisions for a new Ch. 18C, §§ 18C-1§18C-15. Former Ch. 18C, §§ 18C-1§18C-31, pertained to similar subject matter and derived from Ord. No. 144-83, § 1, adopted Aug. 25, 1983; Ord. No. 206-84, § 1, adopted Nov. 1, 1984; Ord. No. 258-2002, § 1, adopted Oct. 10, 2002; and Ord. No. 126-2005, §§ 1, 2, adopted May 19, 2005.
State law reference(s)—Emergency medical services, KRS 211.950 et seq.

Sec. 18C-1. Definitions.

All terms shall have the same meaning provided under the law and/or regulations adopted and promulgated by Commonwealth of Kentucky and the agency(s) it has designated to regulate ambulances unless otherwise specified.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-2. Standards.

(1) At a minimum, all ambulances shall comply with any and all applicable federal, state, and local laws, regulations, and standards, including, but not limited to those found in this chapter and those pertaining to:

   (a) The Federal Highway Safety Act of 1966, as amended;

   (b) The staffing and manning of the particular type of ambulance at issue;

   (c) The availability of the particular type of ambulance at issue;

   (d) The maintenance, care and operation of equipment and devices; and

   (e) The required communications equipment and devices and their operation.

(2) All protocols and procedures utilized shall fully comply with all applicable federal, state, and local laws, regulations, and standards and must be approved and/or specified by a medical director. If required, certain procedures shall only be performed under the direction and supervision of a medical director.

(3) All personnel shall carry a current identification card which specifies their level of training.

(4) The provisions of this chapter shall not apply to the Lexington-Fayette Urban County Government and its Division of Fire and Emergency Services.

(Ord. No. 308-2005, § 1, 11-17-05; Ord. No. 139-2009, § 1, 7-7-09)

Sec. 18C-3. Provider.

Any provider of ambulance service in Fayette County shall maintain the minimum insurance coverage required by law.

(Ord. No. 308-2005, § 1, 11-17-05; Ord. No. 139-2009, § 2, 7-7-09)

Sec. 18C-4. Agreement; services.

(1) Each ambulance service provider that has been appropriately authorized by the Commonwealth of Kentucky to provide service within Fayette County shall enter into a mutual aid agreement with the urban county government's division of fire and emergency services prior to providing any service in Fayette County. Once

such an agreement is in place, each service shall accept all nonemergency requests, including nonemergency advanced life support ("ALS") requests if so qualified, regardless of pickup location address and any additional ALS requests made pursuant to the agreement.

(2) No ambulance service provider shall be given access to the urban county government's E-911 system. The division of fire and emergency services has primacy for event coverage. Whenever the division of fire and emergency services is on the scene, its personnel are in charge of on-scene medical care.

(3) All ALS ambulance services shall be available for the following:

(a) ALS interhospital transfers.

(b) ALS helicopter-to-hospital and hospital-to-helicopter transports.

(c) ALS health care facility interfacility patient transfers.

(d) ALS hospice calls.

(e) ALS coverage for scheduled events which the division of fire and emergency services does not cover. The division of fire and emergency services has primacy for event coverage.

(Ord. No. 308-2005, § 1, 11-17-05; Ord. No. 139-2009, § 3, 7-7-09)

Sec. 18C-5. Use of lights.

(1) If otherwise permitted or authorized by state law or regulation, an ambulance shall be permitted to use warning lights and/or sirens while making transportation runs within Fayette County. Unless required by law or regulation to use warning lights and/or sirens, the decision to use them is within the discretion of the ambulance service provider.

(2) Emergency medical ambulances which meet the provisions of this chapter shall be exempt from certain traffic ordinances contained in chapter 18 of the Code of Ordinances to the same extent as authorized emergency vehicles therein.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-6. Equipment and supplies.

(1) All advanced life supports equipment shall meet or exceed the following minimum requirements:

(a) All federal, state and county basic life support ("BLS") and ALS requirements.

(b) All federal, state or county ALS drug and supply requirements.

(c) Maintain state and local basic life support and ALS ambulance service certification.

(2) All specified equipment and supplies shall be immediately available at all times to the specified ambulance crew.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-7. Protocols/standing orders.

Copies of all current protocols/standing orders shall be provided to all county hospitals receiving patients or transporting patients by private ALS ambulance prior to beginning service. It shall be the responsibility of the service to keep all copies at these hospitals updated and current. Current updated copy of protocols/standing orders shall be maintained and available on each ambulance at all times.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-8. Reserved.

Editor's note(s)—Ord. No. 139-2009, § 4, adopted July 7, 2009, repealed § 18C-8. Former § 18C-8 pertained to permit registration, and derived from Ord. No. 308-2005, § 1, adopted Nov. 17, 2005.

Sec. 18C-9. Complaints.

Any complaint regarding ambulance service in Fayette County may be made to the Kentucky Board of Emergency Medical Services or any other state agency tasked with regulating these services or to the emergency medical advisory board for review and any appropriate further action.

(Ord. No. 308-2005, § 1, 11-17-05; Ord. No. 139-2009, § 5, 7-7-09)

Sec. 18C-10. Availability of records.

All ambulance services shall make available for inspection by the commissioner of public safety or his designee, or the emergency medical advisory board, upon request, any all records or documents pertaining to the provision of ambulance service required to be kept or maintained by the Commonwealth of Kentucky and its designated regulatory agency. Upon request by the commissioner of public safety or his designee, or the emergency medical advisory board, an ambulance service provider shall also keep and make available for inspection and review any documents or records reasonably related to its performance in providing such service in Fayette County, including but not limited to completed run sheets.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-11. Violations.

Violation of the provisions of this chapter shall constitute a violation. Any person who so violates this chapter or fails to comply with any of its requirements shall upon conviction thereof be fined no more than one thousand dollars ($1,000.00). Each day shall constitute a separate violation.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-12. Emergency medical advisory board (EMAB).

A permanent board, to serve as an advisory board to the urban county government on all matters pertaining to emergency medical and transportation ambulance service and care in the county, is hereby created, which shall be known as the "Emergency Medical Advisory Board of the Lexington-Fayette Urban County Government," sometimes referred to as the "Emergency Medical Advisory Board," and hereinafter referred to as "EMAB."

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-13. Same§Membership.

(1) The EMAB shall consist of twenty (20) members. Except as otherwise provided, all members shall be voting members of the board. However, its chairman shall only be allowed to vote in the event of a tie.

(2) For the members of the EMAB appointed by the mayor or by a designated organization, the terms of appointment shall be four (4) years from the date of appointment, provided the terms shall be staggered in the manner required by section 7.02 of the Urban County Charter. The members identified in subsection (3)(b) below shall serve an initial term of two (2) years. Vacancies shall be filled for the unexpired terms in the manner prescribed for the original appointment. Any member may be reappointed for an additional term.

(3) The membership of the EMAB shall include the following:

(a) The Commissioner of the Lexington-Fayette Urban County Health Department;

(b) One (1) member from each of the six (6) hospitals located in Fayette County who has been designated by the hospital to hold the position of "EMAB representative", which member shall be a physician who is a regular, full-time staff member in the hospital's emergency department;

(c) One (1) member designated by the Bluegrass Chapter of the Emergency Nurses Association;

(d) One (1) member of the urban county council who shall be appointed by the mayor, subject to confirmation by a majority of the urban county councilmembers;

(e) The medical director for the division of fire and emergency services;

(f) Two (2) interested citizens from the community who shall be appointed by the mayor, subject to confirmation by a majority of the urban county councilmembers, who shall not be considered for purposes of determining the presence of a quorum and shall not be voting members of the EMAB;

(g) One (1) person designated by the Lexington Medical Society;

(h) One (1) former member of the EMAB, who shall not be considered for purposes of determining the presence of a quorum and shall not be a voting member of the EMAB;

(i) The fire chief of the division of fire and emergency services or his designee;

(j) One (1) member of the division of fire and emergency services who shall be appointed by the fire chief;

(k) One (1) paramedic member of the division of fire and emergency services who has successfully graduated from the division's paramedic training and education program (the "Paramedic Program") who shall be appointed by the fire chief;

(l) One (1) member of the faculty of the Paramedic Program who shall be appointed by the fire chief; and

(m) One (1) student member of the Paramedic Program who shall be appointed by the fire chief.

(n) The Paramedic Program Director.

(Ord. No. 308-2005, § 1, 11-17-05; Ord. No. 139-2013, §§ 1, 2, 11-21-13; Ord. No. 79-2018, § 1, 10-25-18)

Sec. 18C-14. Same--Officers.

The officers of the EMAB shall consist of a chairman, vice-chairman and other officers as set forth in the bylaws. The chairman shall be the director of the Lexington-Fayette Urban County Health Department. The vice-chairman and other officers shall be elected from the membership as set forth in the bylaws. The duties of the officers shall be implied by their respective titles and as may be specified in the bylaws. The EMAB shall determine its own rules and order of business and shall provide for keeping a record of its procedures. Other officers may be elected from the membership as set forth in the bylaws as the need arises.

(Ord. No. 308-2005, § 1, 11-17-05)

Sec. 18C-15. Same--Duties.

The EMAB shall, as permitted by law:

(1) Enact bylaws to govern the EMAB.

(2) Review the proposed protocols and procedures for the advanced life support unit in the division of fire and emergency services.

(3) Make recommendations to the mayor and public safety commissioner regarding:

(a) Private ambulance services in the county, and amendments to chapter 18C of this Code of Ordinances as circumstances merit such changes.

(b) The continuing education and training of paramedics and emergency medical technicians in the county.

(c) The quality of emergency and transportation ambulance care in the county.

(d) All complaints concerning emergency medical and transportation ambulance services in the county.

(4) Prepare surveys and studies.

(5) Have the power to review all emergency medical and transportation ambulance runs in the county and make recommendations or reports regarding the same.

(6) Establish committees, which may include nonmembers of the EMAB, for the purpose of carrying out the duties as set forth herein.

(7) Perform all other acts necessary and appropriate to carry out these purposes.

(Ord. No. 308-2005, § 1, 11-17-05)

Chapter 19

Reserved

Chapter 20

Zoning[1]

1. **Editor's note(s)**—At the direction of the urban county government, the editor deleted the former provisions of Chapter 20, Zoning, derived from Ord. No. 5349, enacted Oct. 28, 1965, as amended. The urban county government has, by ordinance, adopted new zoning regulations which are on file in the council clerk's office.
   Charter reference(s)—Authority to make and enforce zoning regulations, § 3.02(21).

Chapter 21

Comprehensive Plan for Classified Civil Service System[1]

Section 21-1. Definitions.

Section 21-2. Adoption and amendment of the plan.

Section 21-3. Administration and maintenance of the plan.

Section 21-4. Reserved.

Section 21-5. Reserved.

Section 21-6. Employee qualifications.

Section 21-7. - Employee duties; job descriptions.

Section 21-8. Recruitment.

Section 21-9. Applications.

Section 21-10. Examinations.

Section 21-11. Military and seniority preference.

Section 21-12. Eligibility lists.

Section 21-13. Requisition and certification.

Section 21-14. Appointments.

Section 21-15. Temporary appointments.

Section 21-16. Acting assignments.

Section 21-17. Transfers or lateral movement.

Section 21-18. Promotions.

Section 21-19. Hours of work.

Section 21-20. Layoff.

1. **Charter reference(s)**—Division of personnel under office of administrative services, § 6.04; personnel and pension systems, art. 9. **State law reference(s)**—Merit systems, KRS 67A.210 et seq.

Section 21-21. Recall.

Section 21-22. Resignation.

Section 21-23. Reinstatement.

Section 21-24. In-service training.

Section 21-25. Reserved.

Section 21-26. Entrance rates.

Section 21-26.1. - Demotion.

Section 21-27. Computation of salaries.

Section 21-28. Overtime.

Section 21-29. Within-grade salary increases.

Sections 21-29.1—21-29.3. Reserved.

Section 21-30. Reclassification or reallocation.

Section 21-31. Longevity pay.

Section 21-32. Automobile and maintenance allowances.

Section 21-33. Vacation leave.

Section 21-34. Sick leave.

Section 21-34.2. - Organ donor and bone marrow donation leave.

Section 21-35. Bereavement leave.

Section 21-36. Payment of accumulated sick leave upon retirement or death.

Section 21-36.1. - Lump sum payout.

Section 21-37. Leave of absence.

Section 21-37.1. - Compensatory time leave program.

Section 21-37.2. - Sick leave transfer program.

Section 21-37.3. - Paid parental leave.

Section 21-37.4. Leave for victims of crime and domestic violence.

Section 21-38. Holidays and holiday compensation.

Section 21-39. Disability leave.

Section 21-40. Reservist military service leave.

Section 21-41. Regular military leave.

Section 21-42. Health and life insurance.

Section 21-42.1. - Cash awards for employee suggestions.

Section 21-43. Absence without permission.

Section 21-44. - Dismissal and other punishments; causes, charges, proceedings.

Section 21-45. - Suspension and reprimand; appeal.

Section 21-46. Appeal to circuit court and court of appeals.

Section 21-47. Continuity of service requirements.

Section 21-48. Employee performance evaluation.

Section 21-49. Grievance procedure.

Section 21-50. Secretary of the civil service commission.

Section 21-51. Political activity.

Section 21-52. Drug free workplace policy.

Section 21-53. Special duty assignments.

Sec. 21-1. Definitions.

In this chapter, unless the context requires otherwise:

Appointing authority means,for the classified civil service employees in the office of the urban county council, the urban county council, and for all other classified civil service employees, the mayor.

Authorized strength means the list of positions that have been approved by the Urban County Council.

Classification or class means a group of one (1) or more positions sufficiently similar that the same descriptive title may be used with clarity to designate each position allocated to the classification. Positions are grouped into classifications in regard to:

(i) Duties performed and responsibilities;

(ii) Minimum qualification requirements of education, experience, licenses, and certifications;

(iii) Tests of knowledge, skills and abilities used to recruit employees;

(iv) Pay grades; and

(v) Job title.

Commission means the civil service commission as established under KRS 67A.230.

Director means the director of human resources.

Executive unit means a division, department or office of the urban county government, as the context of this chapter indicates.

First day of the fiscal year, for purposes of salary and benefit matters, unless the context dictates otherwise, shall mean the first day of the pay period for which pay is received on or after July 1 of the new fiscal year.

Qualified adult means a person of the same or opposite sex who meets the following criteria:

(a) Age eighteen (18) or older;

(b) Not related to the employee;

(c) Resides with employee for a least twelve (12) months prior to applying for the use of sick leave or bereavement leave as set forth in this chapter;

(d) Unmarried; and

(e) Financially interdependent with the employee for at least twelve (12) months, and shall certify by affidavit signed by the qualified adult and the employee that at least two (2) of the following conditions have been met in the last twelve months (one (1) from e.i-e.v and one (1) from e.vi-e.ix):

(i) Joint ownership of real estate property or joint tenancy on a residential lease;

(ii) Joint ownership of an automobile;

(iii) Joint bank or credit account;

(iv) Joint liabilities;

(v) Joint utility account;

(vi) Will designating the eligible qualified adult as primary beneficiary;

(vii) Retirement plan or life insurance policy beneficiary destination form designating the eligible qualified adult as primary beneficiary;

(viii) Durable power of attorney signed to the effect that the employee and eligible qualified adult have granted powers to one another; and

(ix) Adoption papers or legal guardianship identifying the employee and Qualified Adult as the joint adopting individuals or joint legal guardians.

Supervisor means the director of the division in which a classified civil service employee serves; or, in the case of a classified civil service employee either not serving within a division or division directors themselves, the commissioner of his department; or, in the case of either directors of the divisions within the office of administrative services or employees in the office of the chief administrative officer, the chief administrative officer.

When a classified civil service employee does not serve directly under a division director or a department commissioner or the chief administrative officer, the supervisor is the urban county government officer or employee responsible for assigning his duties and overseeing his performance.

Unified Pay Plan means classifications within pay grades in the five hundred (500) series.

(Ord. No. 139-78, § 1(21-1), 6-29-78; Ord. No. 116-96, § 1, 6-27-96; Ord. No. 059-2022, § 1, 7-5-2022)

Sec. 21-2. Adoption and amendment of the plan.

(a) All positions in the urban county government, except those exempted from the "civil service" by KRS 67A.210 and from the "classified civil service" by Charter section 9.02, shall be in the classified civil service, and shall be grouped into classifications as defined in 21-1(3).

(b) The urban county council shall fix, by ordinance, the number and classification of the urban county classified civil service positions and the salaries for each classification. This shall be known as the "classified civil service authorized strength."

(c) All subsequent additions, revisions or amendments affecting the classified civil service plan shall be made by ordinance. The council shall not initiate or enact any such change without first securing the written recom-

mendations of the mayor, the chief administrative officer and the director. The director shall consult with and seek the advice of the commission on all matters pertaining to the subsequent revision of the classified civil service plan.

(d) The director shall, under the direction of the chief administrative officer, periodically review the positions in the classified civil service and recommend to the urban county council the reallocation of positions from one pay grade to another pay grade or reclassification from one class to another class when it is determined, subject to review by the commission, that the classification and/or pay grade is no longer consistent with the actual work performed; however, no civil service employee shall be dismissed, suspended or reduced in grade or pay for reason except as set out in KRS 67A.280 and sections 21-44 and 21-45 hereof.

(e) This chapter shall be construed in conformity with 29 U.S.C. sections 201—219. The director shall make reasonable and necessary rules and regulations to ensure that 29 U.S.C. sections 201—219 and regulations adopted thereunder are properly applied.

(Ord. No. 139-78, § 1(21-2), 6-29-78; Ord. No. 231-93, § 2, 12-9-93; Ord. No. 059-2022, § 1, 7-5-2022)

Charter reference(s)—Division of personnel under office of administrative services, § 6.04; classified civil service, § 9.02.

Cross reference(s)—Adoption and amendment of unclassified civil service plan, § 22-2; adoption and amendment of division of fire and emergency services and police division classification plan, § 23-2.

Sec. 21-3. Administration and maintenance of the plan.

(a) With the advice and assistance of the commission, the director shall be responsible for the administration of all ordinances and regulations pertaining to the classified civil service, including recruitment, examination, classification, probation, promotion and compensation programs affecting the classified civil service. The director shall make and enforce culture-fair rules pursuant thereto. Except in the case of the certification of lists of eligible applicants for employment, he shall initially perform all of the functions arising out of the management of the classified civil service plan, subject to review, amendment, or change by the commission. In respect of all matters delegated, periodic reports shall be made by the director to the commission, not less than monthly.

(b) Any direction of the commission or any proposed alterations or changes in the action of the director shall be promptly complied with by the director. However, in the event that the commission amends, alters or changes any actions of the director, or in the event the commission gives any directions to the director, or in any way acts to control the director, such amendment, change, alteration, direction or control shall be in writing to the director and the urban county council and shall be supported by findings, which findings shall be supported by substantial evidence of the error of the director.

(c) Lists of eligible applicants for employment may be prepared by the director, but the commission shall officially certify all applicants to be placed on the list of qualified persons eligible for positions in the classified civil service before submission to the appointing authority. Written notice shall be given to the urban county council whenever the commission preempts the director in the preparation of the lists of eligible applicants.

(Ord. No. 139-78, § 1(21-3), 6-29-78; Ord. No. 059-2022, § 3, 7-5-2022)

Charter reference(s)—Office of administrative services, § 6.04; classified service, § 9.02.

Cross reference(s)—Administration and maintenance of unclassified civil service plan, § 22-3; administration and maintenance of plan for employees of division of fire and emergency services and police division, § 23-3.

Sec. 21-4. Reserved.

Editor's note(s)—Ord. No. 120-2014, § 3, adopted Sept. 25, 2014, deleted § 21-4, which pertained to classification categories and derived from Ord. No. 139-78, § 1(21-4), adopted June 29, 1978.

Sec. 21-5. Reserved.

Editor's note(s)—Ord. No. 120-2014, § 3, adopted Sept. 25, 2014, deleted § 21-5, which pertained to classified civil service positions. For a complete history of former § 21-5 see the Code Comparative Table.

Sec. 21-6. Employee qualifications.

(a) In addition to the qualifications for each class as set forth in the job descriptions, it shall be understood that to be eligible for classified civil service appointment an applicant must:

(1) Be not less than eighteen (18) years of age and meet all applicable mental, physical or statutory requirements of the positions.

(2) Be able to understand the English language and follow instructions, provided that ability to read and/or write shall be required only where it is a bona fide occupational requirement.

(3) Have, in the case of positions involving the operation of a motor vehicle, a driver's license or, for those positions which require it, a commercial driver's license (CDL).

(4) Not have been, in the twelve (12) months preceding the application deadline date or during the application process, suspended, or dismissed or forced to resign from employment with the Lexington-Fayette Urban County Government. However, this subsection shall not apply to any employee terminated as a result of excessive absences due to a serious health condition or illness. Applicants terminated meeting the above criteria may request approval to apply for a position from the mayor or his designee who shall request that the potential applicant provide medical documentation from a health care provider to substantiate the serious medical condition or illness which led to the excessive absences.

(b) There shall be no residency requirements for appointment to the classified civil service, but all members thereof shall reside in such proximity to the urban county as to be able to respond for on-call or emergency duty within a reasonable time.

(c) (1) As used in this subsection:

(a) Child mean any person under the age of eighteen (18) years.

(b) Sex crime means a criminal conviction for a violation or attempted violation of Kentucky Revised Statutes Chapters 510, 529, 530, 531 and any other applicable chapters or Kentucky Administrative Regulations. Conviction for a violation or an attempted violation of an offense committed outside Kentucky is a sex crime if such offense would have been a crime as defined in Kentucky statutes or regulations.

(c) Central criminal records file check means a check of criminal records pursuant to KRS 17.160 or any other applicable Kentucky Revised Statutes or Kentucky Administrative Regulations.

(2) All applicants for appointment to a classified civil service position which would be required to exercise supervisory or disciplinary control over children as a condition of employment shall submit to a central criminal records file check for prior sex crime convictions. Any prospective employee who has a prior sex crime conviction shall not be hired by the urban county government in any capacity which would place the prospective employee in a position of supervisory or disciplinary control over children.

(3) The director shall be responsible for administering the records check program.

(d) In addition to all other qualifications, applicants for positions in the division of community corrections shall not have been convicted of a felony and shall be orderly and law-abiding persons. Appointees to security positions in the division of community corrections shall be at least twenty-one (21) years of age.

(Ord. No. 139-78, § 1(21-6), 6-29-78; Ord. No. 30-83, § 1, 3-10-83; Ord. No. 238-85, § 1, 11-12-85; Ord. No. 105-88, § 1, 5-19-88; Ord. No. 92-92, § 1, 6-25-92; Ord. No. 238-93, § 7, 12-9-93; Ord. No. 59-95, § 1, 3-23-95; Ord. No. 333-99, § 5, 12-7-99; Ord. No. 129-2010, § 1, 7-6-10; Ord. No. 059-2022, § 4, 7-5-2022)

Cross reference(s)—Central criminal record file check required, § 14-57.1; qualifications in the unclassified civil service system, § 22-6; division of fire and emergency services and division of police qualifications, § 23-6.

Sec. 21-7. - Employee duties; job descriptions.

(a) Subject only to any specific assignments of duties made by law or ordinance and limitations of law, supervisors shall prescribe and assign the duties for all classified civil service positions within their respective executive unit in such manner as they shall deem necessary or advisable for the efficient, orderly and economical administration of the affairs of the urban county government.

(b) The director shall prescribe and propound job descriptions which reasonably establish minimum qualifications and standards for eligibility within each class. The statement of qualifications in any job description is intended to be a guide for determining the eligibility of candidates.

(c) Based on duties assigned to each position under subsection (a) herein, the job descriptions shall contain examples of the duties employees holding such positions may properly be required to perform. Such examples are descriptive and explanatory but are not restrictive. The listing of particular duties does not preclude the assignment of other tasks.

(Ord. No. 139-78, § 1(21-7), § 6-29-78; Ord. No. 059-2022, § 5, 7-5-2022)

Cross reference(s)—Duties and job description of employees in unclassified civil service, § 22-7; duties and job description of employees of division of fire and emergency services and division of police, § 23-7.

Sec. 21-8. Recruitment.

The director, or a designee, in consultation with the supervisor in whose executive unit a vacancy occurs, shall determine the minimum specific recruiting methods to be used; but at a minimum the director, or a designee, will prepare recruitment announcements which shall be used to give public notice of vacancies by publication pursuant to KRS chapter 424. Recruitment announcements will contain, but not be limited to, position title, specific minimum qualifications, salary, closing date for applications, and such other information as the director deems appropriate.

(Ord. No. 139-78, § 1(21-8), 6-29-78; Ord. No. 222-2001, § 1, 8-30-01; Ord. No. 059-2022, § 6, 7-5-2022)

Cross reference(s)—Recruitment of unclassified civil service employees, § 22-8; recruitment of employees of division of fire and emergency services and division of police, § 23-10.

Sec. 21-9. Applications.

(a) All applications must be made in the official format on or before the closing date specified in the recruitment announcement. Incomplete applications may be disqualified from consideration. Applications which are submitted become the property of the urban county government.

(b) Applicants must satisfy the minimum requirements stated in the job description and the recruitment announcement, or otherwise established by law or ordinance. Supporting documentation may be required and shall be furnished upon request.

(c) No applicant shall proceed in the recruiting process for any position in the classified civil service who has made false statements of material fact in his application; has used, or attempted to use, any unfair method to obtain an advantage in an examination or appointment to which he is not rightfully entitled; has directly or indirectly obtained knowledge of the contents of the examination to which, as an applicant, he was not enti-

tled, or who has taken part in compiling, administering or scoring the examination; has used or threatened to use or attempted to use political influence in securing employment, reemployment or promotion or has failed to submit his application correctly and fully or within the prescribed time limit.

(Ord. No. 139-78, § 1(21-9), 6-29-78; Ord. No. 059-2022, § 7, 7-5-2022)

Cross reference(s)—Applications, §§ 22-9, 23-11.

Sec. 21-10. Examinations.

(a) Culture-fair, job-related and open examinations or evaluations will be used to determine the eligibility of applicants for employment and their rankings on the eligible list.

(b) The content and combination of tests to be used shall be determined by the director, who shall provide for examination of all eligible applicants as to their physical and mental qualification for the particular classification wherein they seek employment.

(c) Examinations or evaluations may consist of any one or more of the following: Written tests, interviews, appraisals of experience and training, appraisals of past job performance based on performance evaluation, physical agility tests, job performance tests, or other relevant selection criteria. Members of examination or evaluation boards who are not urban county government officers or employees and who have been approved as raters by the director shall be compensated at the rate of forty dollars ($40.00) for each day of service as a rater.

(d) The director, or a designee, shall be responsible for the scheduling of all examinations and publishing notices thereof. Actual notice of the time and place of examinations shall be given to all eligible applicants.

(e) The passing score for each exam shall be determined in accord with criteria established by the American Psychological Association Standards for Testing and Examination Procedures.

(f) After examinations have been scored, a list of qualified eligible applicants in order of their earned rating will be compiled from those who have achieved passing scores. After compilation of the eligible list, it shall be submitted to the commission for approval. If the commission approves the same, the list shall be officially certified to the appointing authority. The director may provide for further, substantially identical examinations, given on the same basis as the original examination, to supplement a list so compiled. The results of each such subsequent examination shall be consolidated, upon approval of the commission, with the results of the prior examinations to provide an eligible list from among all of those who have taken such several examinations.

(g) In case of a vacancy in the classified civil service where peculiar and exceptional qualifications of a particular professional or educational character are required, upon satisfactory evidence of reasons stated in writing by the appointing authority, the director may suspend the provisions requiring competitive examination under classified civil service.

(h) The graded test paper of each person examined shall be available for the individual's own inspection in the division of human resources during business hours for a ten-day period, exclusive of Saturday, Sunday and holidays, following the posting of the list. A manifest error in the grading of any examination paper, if called to the attention of the director within this ten-day period, shall be corrected if certification has not occurred within this period, or if after certification, the director shall call the error to the attention of the commission.

(Ord. No. 139-78, § 1 (21-10), 6-29-78; Ord. No. 90-95, § 1, 5-4-95; Ord. No. 059-2022, § 8, 7-5-2022)

Cross reference(s)—Examinations, § 22-10; examinations, § 23-12.

Sec. 21-11. Military and seniority preference.

(a) Every soldier, sailor, marine, members of the Air Forces, Army Nurses Corp., and members of other branches of the military services and Red Cross nurses who served during a period of hostilities between the United States and another power in World War II, the Korean or Vietnam conflict, the Persian Gulf War, Operation Iraqi Freedom, or Operation Enduring Freedom, who has not been dishonorably discharged and who is an applicant for any classified civil service position shall be entitled to five (5) percent increase on his examination mark on entrance into classified civil service employment.

(b) Seniority shall be given material consideration in filling a vacancy in the classified civil service of the urban county government as follows:

(1) One (1) year for each complete year served in good standing in the level or rank nearest the level or rank in which the vacancy exists up to a maximum of ten (10) years, and one (1) year for each complete year served in good standing in the division in which the vacancy exists, exclusive of "acting service time" or temporary appointment, up to a maximum of ten (10) years, shall be added to the evaluation/examination score of any present employee who applies for a classified civil service position; and the resulting number of points shall be added to the applicant's examination score.

(2) Seniority shall be measured from the date of entrance into classified civil service employment, but it shall not be earned during any leave of absence without pay or absence without leave. All seniority credit shall be extinguished upon dismissal or upon acceptance of resignation.

(3) Classified civil service employees in the division of community corrections, who were employees of the jailer prior to the consolidation of the offices of jailer and sheriff on January 3, 1994, shall be eligible to receive seniority credit as described in this subsection (b) for all years served as employees of the jailer; however, such seniority shall only be credited when these employees compete for positions within the division of community corrections.

(c) In no case shall the application of the seniority or military preference consideration contained in this section operate to raise an applicant's unadjusted evaluation score if such score is below the minimum score set for qualification for appointment to the position for which application is made.

(Ord. No. 139-78, § 1(21-11), 6-29-78; Ord. No. 200-94, § 1, 10-6-94; Ord. No. 135-96, § 1, 7-18-96; Ord. No. 333-99, §12-7-99; Ord. No. 059-2022, § 9, 7-5-

(2022)

Cross reference(s)—Preference points, § 23-13.

Sec. 21-12. Eligibility lists.

(a) The commission shall, as soon after examination as is practicable, certify to the appointing authority a list of the applicants so examined, with the one (1) having the highest average ranked first and all others ranked numerically according to the results of the examination.

(b) The director shall maintain an eligible list of all applicants who meet the minimum qualifications for each position to be filled.

(c) The eligible list shall remain in existence for the time limit established by the director. In no case, however, may a list remain in effect beyond one (1) year from the time of the first interview from the list or beyond two (2) years from the time of certification. The eligible list shall be in effect from the date it is certified by the commission.

(d) The name of an applicant shall be removed from the eligible list if the applicant has been certified by the commission from an eligible list more than five (5) times to the same division for the same or similar positions; however, certification for temporary appointment shall not be counted as one (1) of such certifications.

(e) The name of an applicant shall be removed from the eligible list at the expiration of such list, unless extended. In the latter case, the name shall be removed at the end of the extension; but in no case may a name remain in effect beyond one (1) year from the time of the first interview from the list or beyond two (2) years from the time of the certification of the list.

(f) A person who refuses more than one (1) appointment or accepts appointment to a position in the class for which he is certified shall have his name removed from the eligible list.

(g) A person who has engaged in fraud or made a misstatement of material fact in his application and/or examination shall have his name removed from the eligible list.

(Ord. No. 139-78, § 1(21-12), 6-29-78; Ord. No. 116-93, § 1, 6-17-93; Ord. No. 135-96, § 2, 7-18-96; Ord. No. 59-2022, § 10, 7-5-2022)

Cross reference(s)—Eligibility lists for employees in unclassified civil service, § 22-11; eligibility lists in divisions of fire and emergency services and police, § 23-14.

Sec. 21-13. Requisition and certification.

(a) Whenever a vacancy in a classified civil service position is to be filled, other than by transfer, the supervisor in whose unit the vacancy occurs will notify the appointing authority and the director as far in advance as possible. The appointing authority may request, on a form prescribed by the director, a current list of eligible applicants.

(b) In cases where selective certification based on a bona fide occupational qualification is desired, the request for personnel will include complete justification for these qualifications.

(c) At the time of certification to the appointing authority, the director will notify the supervisor in whose executive unit the vacancy exists of the current list of eligible applicants. However, it shall be the responsibility of the appointing authority, or if he delegates, the supervisor, to schedule a pre-employment interview with a minimum of five (5) candidates for all positions in which there are five (5) or more applicants on the list certified by the commission.

(d) If the number of applicants with military preference points equals or exceeds three (3), the hiring manager shall interview no less than three (3) military applicants.

(e) If the number of applicants with internal preference points (as defined by KRS 67A.270(6)) equals or exceeds three (3), the hiring manager shall interview no less than three (3) internal applicants.

(f) Failure to appear at the pre-employment interview without furnishing satisfactory explanation to the supervisor shall warrant the director's removal of an individual from the eligible list.

(g) When a vacancy is to be filled and a request for a new list has been refused by the director, appointment shall be made by selection of one (1) of the applicants from the current list of eligible applicants.

(Ord. No. 139-78, § 1(21-13), 6-29-78; Ord. No. 135-96, § 3, 7-18-96; Ord. No. 059-2022, § 11, 7-5-2022)

Cross reference(s)—Requisition and certification of unclassified civil service employees, § 22-12; requisition and certification of employees of division of fire and emergency services and division of police, § 23-15.

Sec. 21-14. Appointments.

(a) The appointing authority shall make all classified civil service appointments, probationary and permanent. Prior to appointment, the appointing authority shall receive recommendations from the supervisor in whose executive unit the vacancy exists. In all cases the appointing authority shall receive the recommendation of the chief administrative officer prior to a conditional offer being made. After recommendations are submitted to the appointing authority, the individual may authorize the division of human resources to make conditional offers. The division of human resources shall submit a report of all classified civil service appointments to the urban county council within thirty (30) days after the appointment is made.

(b) All classified civil service appointments shall be made only from the list of applicants certified by the commission after examination. Appointments shall be made only by the selection of one (1) of the applicants from

the current list of eligible applicants. All such appointments will be probationary pending completion of the probationary period. No employee appointed to a position requiring a physical examination or medical examination, as specified by the director, shall begin work until he has passed the required physical or medical examination. No employee shall be subject to a physical examination or medical examination until after a conditional offer has been made and accepted. If an employee successfully passes his physical examination or medical examination, he may begin his probationary period.

(c) Before permanent appointment, employees shall serve a six (6) month probationary period.

(d) The probationary period shall be used for the effective adjustment of new employees through supervision, counseling and evaluation, as well as for the elimination of any probationary employees who do not meet the required standards of work. The appointing authority may terminate a probationary employee at any time during the probationary period without the right of a hearing before the commission.

(e) No later than two (2) weeks prior to the conclusion of the probationary period, the employee's supervisor shall recommend in writing to the appointing authority the release or permanent appointment of the employee. The supervisor's recommendation shall not be binding on the appointing authority. A recommendation for permanent appointment shall be accompanied by a certification by the supervisor that the employee's probationary period has been successfully completed.

(f) Prior to the conclusion of the probationary period, the appointing authority shall either terminate the employee under the same conditions as in subsection (d) or make a permanent appointment as provided in subsection (a). An employee who is not released prior to service of six (6) months in probationary status shall acquire permanent status automatically.

(Ord. No. 139-78, § 1(21-14), 6-29-78; Ord. No. 135-96, § 4, 7-18-96; Ord. No. 93-2009, § 1, 6-11-09; Ord. No. 227-2010, § 1, 12-9-10; Ord. No. 90-2021, § 1, 9-16-21; Ord. No. 059-2022, § 12, 7-5-2022)

Cross reference(s)—Appointments in unclassified civil service, § 22-13; appointments in divisions of fire and emergency services and police, § 23-16.

Sec. 21-15. Temporary appointments.

(a) In the event there is no appointee occupying a particular classified civil service position, a vacancy exists in such position. No person except a probationary or permanent appointee within the meaning of section 21-12 or an acting appointee within the meaning of section 21-16 shall assume the duties of a vacant classified civil service position unless a temporary appointment is made under these provisions. A temporary appointee shall be salaried at the entrance rate of pay of the grade salary range of the vacant position, except that any existing urban county government employee temporarily appointed shall be paid at the point in the higher grade salary range that will provide a total increase of seven (7) percent over the salary he received immediately prior to the temporary appointment if the appointment is one (1) grade higher than that occupied by the employee, three (3) percent for the next grade higher than that occupied by the employee and two (2) percent for each additional pay grade thereafter not to exceed the maximum of the assigned range; pro-

vided, however, the appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate of pay in recognition of market demands or in recognition of the experience or exceptional qualifications of the employee. A classified civil service employee of the urban county government who is temporarily appointed to another classified civil service position shall be credited with time of service in his own position for time spent in a temporary appointment.

(b) Where it is imperative to fill a vacancy in the classified civil service, the appointing authority may make a temporary appointment, not to exceed ninety (90) days, from the list of those eligible for permanent appointment, if the person selected accepts such temporary appointment. Successive temporary appointments to the same position shall not be made under this provision. The acceptance or refusal by an eligible applicant of a temporary appointment shall not affect his standing on the register for permanent appointment, nor shall temporary service be counted as part of the probationary service in case of subsequent appointment to a permanent position.

(c) Whenever it is imperative to fill a vacancy in the classified civil service before the commission can certify a list of persons eligible for appointment after competitive examination, the appointing authority shall nominate a competent person from the same class or the next lower rank to the commission; and if certified by the commission as qualified he may be appointed temporarily to fill the vacancy until an appointment can be made after competitive examination. Temporary appointments hereunder shall continue only until a regular appointment can be made from the eligible list prepared by the commission. In no case shall appointments hereunder continue longer than ninety (90) days; and in no case shall successive appointments be made of the same person or other persons to such vacancy, except as provided herein.

(d) Where it is imperative to fill a vacancy in the classified civil service and where no one on the eligible list or by promotion from the same class or the next lower rank is available, competent and qualified, the temporary appointment may be made by the appointing authority without examination. Temporary appointments hereunder shall continue only until the regular appointment can be made from the eligible list prepared by the commission. In no case shall appointments hereunder continue longer than ninety (90) days; and in no case shall successive appointments be made of the same person or other persons, to such vacancies, except as provided herein.

(e) Notwithstanding the ninety (90) day limit for temporary appointments established under the preceding subsections, temporary appointments made by reasons of these provisions, made necessary solely by reason of illness or disability of regular employees, may continue during such period of disability, but in no case longer than nine (9) months.

(f) Subject to the statutes and urban county government Charter, and except as otherwise provided by law, classified civil service employees may be temporarily appointed to positions in the urban county government which are excluded from the classified civil service. Salary and service credit provisions shall be the same as in subsection (a) hereof.

(g) An employee receiving a temporary appointment shall sign an agreement acknowledging the understanding that the appointment and pay are temporary and shall end when the position is filled or the employee is removed from the temporary position.

(Ord. No. 139-78, § 1(21-15), 6-29-78; Ord. No. 214-86, § 8, 10-7-86; Ord. No. 116-96, § 3, 6-27-96; Ord. No. 135-96, § 5, 7-18-96; Ord. No. 60-98, § 1, 3-5-98; Ord. No. 117-2014, § 2, 9-25-14; Ord. No. 059-2022, § 13, 7-5-2022)

Cross reference(s)—Temporary appointments in the unclassified civil service, § 22-14.

Sec. 21-16. Acting assignments.

(a) In the event of the absence of an employee from any position in the urban county government, the director, on the recommendation of the supervisor or supervisors, involved, and with the approval of the chief administrative officer, may assign a classified civil service employee in an acting capacity to perform the duties of the position so absented. No employee so assigned shall receive any additional compensation by reason of said assignment but shall be credited with time of service in his own position for time spent in any position in which the employee is assigned in an acting capacity. If the absence of the employee, for which position a classified civil service employee has been assigned in an acting capacity, becomes vacant within the meaning of section 21-15, the procedures for making a temporary appointment thereunder must be initiated immediately.

(b) If the absence of the employee exceeds fifteen (15) working days, the employee in the acting assignment shall receive pay at the point in the grade salary range of the absent employee that will provide a total increase of seven (7) percent over the salary he received immediately prior to the acting assignment if the assignment is to a grade one (1) grade higher than that occupied by the employee, three (3) percent for the next grade higher than that occupied by the employee and two (2) percent for each additional pay grade thereafter not to exceed the maximum of the assigned range; provided, however, the appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate of pay in recognition of market demands or in recognition of the experience or exceptional qualifications of the employee. In no case shall the employee receive a salary lower than the entrance rate of pay of the grade salary range of the higher position. However, all employees so assigned whether entitled to a pay increase or not, shall receive credit for time of service in their own position for time spent in any position in which the employee is assigned in an acting capacity.

(c) In the event a vacancy within the meaning of section 21-15 arises, which vacancy must, owing to a bona fide emergency, be immediately filled by an employee, the mayor, the chief administrative officer or the supervisor or supervisors involved may assign a classified civil service employee to such position in an acting capacity. Such assignment shall be valid only until the provisions of section 21-15, relating to temporary appointments, can be initiated and completed.

(d) In the event there is no qualified person in the classified civil service to assume the duties of the position, appointments shall be made in accord with subsections (b) through (f) of section 21-15.

(e) An employee receiving an acting assignment shall sign an agreement acknowledging the understanding that the assignment and pay are for filling an absented position and shall end when the absent employee returns or; the assigned employee is removed from the acting position or pursuant to subsection (c) above.

(Ord. No. 139-78, § 1(21-16), 6-29-78; Ord. No. 214-86, § 9, 10-7-86; Ord. No. 116-96, § 4, 6-27-96; Ord. No. 60-98, § 2, 3-5-98; Ord. No. 117-2014, § 3, 9-25-14; Ord. No. 059-2022, § 14, 7-5-2022)

Cross reference(s)—Acting assignments in unclassified civil service, § 22-15.

Sec. 21-17. Transfers or lateral movement.

(a) The director, subject to the approval of the chief administrative officer, may approve an interdepartmental or intradepartmental transfer in the same class without examination or certification if an employee initiates a request and secures the approval of the supervisor into whose unit the transfer is to be made.

(b) The director, subject to the approval of the chief administrative officer and affected supervisors, may approve, without examination or certification, involuntary interdepartmental or intradepartmental transfer of employees in the same classification because of reorganizations or changes in workload. Employees so affected shall be given reasonable written advance notice.

(c) Permanent employees who are transferred to another position in the same classification shall not be required to undergo a probationary period in the position into which they have been transferred.

(d) The director, subject to the approval of the chief administrative officer, may approve one (1) intradivisional transfer in the same class without examination for any employee during his probationary period. Upon written request of the employee after at least four (4) weeks of employment, the director shall verify that the supervisor involved concurs and that the employee has received orientation in the new position. Probationary employees shall not be eligible for transfer more than once nor to positions outside their division. Time spent by the probationary employee in his original position shall be counted as part of his six-month probationary period.

(e) If an employee is selected for a position in a new job class that has the same pay grade as the current job class, the employee shall not receive a new salary recommendation and shall move to the new job class at the current salary. The employee shall be required to undergo a probationary period in the position in the new job class.

(Ord. No. 139-78, § 1(21-17), 6-29-78; Ord. No. 116-88, § 1, 6-2-88; Ord. No. 117-2014, § 4, 9-25-14; Ord. No. 59-2022, § 15, 7-5-2022)

Editor's note(s)—Ord. No. 117-2014, § 4, adopted Sept. 25, 2014, changed the title of § 21-17 from "Transfers" to read as set out herein.

Sec. 21-18. Promotions.

(a) All vacancies in the classified civil service shall be filled through open, competitive examination unless the urban county council shall designate by ordinance positions for which examinations, shall first be given exclusively to current employees. The certification of applicants for all appointments and promotions shall be based on an evaluation of examination, qualification, seniority, and military preference, as provided in the statutes and ordinances.

(b) Any urban county government employee who obtains a position within the classified civil service having a higher grade than his former position shall have his salary placed at the point in the higher grade salary range that will provide a total increase of seven (7) percent if the promotion is to a grade one (1) grade higher than that occupied by the employee, three (3) percent for the next grade higher than the employee's current position and two (2) percent for each additional pay grade thereafter. The resulting pay shall be no less than the entrance rate of pay of the new pay grade and shall be no less than a seven (7) percent increase. The new salary shall not be more than the maximum salary of the assigned pay grade; provided, however, that the appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate of pay in recognition of market demands or in recognition of the experience or exceptional qualifications of the employee. In no case, however, shall the employee receive a salary lower than the entrance rate of pay of the grade salary range of the higher position.

(Ord. No. 139-78, § 1(21-18), 6-29-78; Ord. No. 117-2014, § 5, 9-25-14; Ord. No. 059-2022, § 16, 7-5-2022)

Sec. 21-19. Hours of work.

Forty (40) hours of work per week shall constitute a full-time workweek for all positions in the classified civil service. (Ord. No. 139-19, § 1(21-19), 6-29-78)

Sec. 21-20. Layoff.

(a) The urban county council shall in the exercise of reasonable discretion have the authority to abolish any classified civil service position when economic necessity requires it or there is no longer a need for a particular position to exist. Any employee occupying said position may be laid off or suspended until and if such position is recreated or reestablished. The abolition of any position shall not be a subterfuge to effect another purpose but shall be actual and bona fide, and shall not amount to the mere alteration, modification or abolition of title only.

(b) When employees in a designated class within an executive unit are to be laid off, such employees shall be determined in the following order of succession:

(1) Part-time employees;

(2) Temporary employees who are filling classified positions;

(3) Probationary employees;

(4) Permanent employees.

(c) Any reduction in the number of employees of any executive unit shall to the extent that it requires the layoff of any permanent employees be made in the reverse order of their seniority, computed the same as under section 21-11(b) for original appointments. In case of equal service, regular employees in the class involved shall be laid off in order of the lowest average performance rating for the last two (2) years of service.

(d) Should any employee contend that he has been aggrieved by the abolition or proposed abolition of his position, he may at any time within ninety (90) days file a petition in the Fayette Circuit Court, stating his reason why it should not be abolished; and upon issue joined thereon, by the urban county government, the burden shall be on the latter to establish the necessity for and the good faith of the urban county government in abolishing said office or position.

(Ord. No. 139-78, § 1(21-20), 6-29-78)

Sec. 21-21. Recall.

(a) If any abolished position is recreated or reestablished within one (1) year, then any former classified civil service employee who was deprived of his position shall be restored to the position he formerly held or occupied in the order of his seniority as provided in section 21-11(b), if he shall elect to do so.

(b) The director shall simultaneously advise any such employee at his last-known address and advertise pursuant to KRS chapter 424 that the position has been recreated or reestablished.

(c) All classified civil service employees who are recalled must report within thirty (30) calendar days from the date of recall. Employees who fail to report within the prescribed time limits will be considered to have declined reemployment.

(d) Probationary employees who are recalled must complete their remaining time in probationary status before they can be permanently appointed. Time spent in layoff status will not be counted toward the required probationary period.

(e) Prior service time shall be counted for purposes of determining a recalled employee's seniority as well as entitlement to vacation leave, sick leave and, for employees hired before June 24, 1996, longevity pay.

(Ord. No. 139-78, § 1(21-21), 6-29-78)

Sec. 21-22. Resignation.

(a) In order to resign in good standing, permanent or probationary classified civil service employees shall, at least fourteen (14) days in advance, submit to the appointing authority written notice of resignation. The advance notice requirement for resignation in good standing may, for good cause shown, be waived by the appointing authority. Except as otherwise provided by law or in the ordinances, all seniority, service credit, and employment rights and duties shall be extinguished upon the appointing authority's acceptance of a resignation.

(b) The director shall make all resignation notices as well as the date and, if applicable, circumstances of their acceptance by the appointing authority, a part of the employee's personnel file.

(Ord. No. 139-78, § 1(21-22), 6-29-78)

Sec. 21-23. Reinstatement.

(a) Any former classified civil service employee who, after completing his probationary period, separates from his position other than by dismissal shall be eligible for reinstatement to his former position or another position in the same classification for a period of one (1) calendar year following the date of (separation).

(b) Any employee may be reinstated to his former position only upon completion of the following requirements:

(1) A written request for reinstatement is made by the employee to the appointing authority within one (1) calendar year from the date of separation from service.

(2) The employee received at least a two (2) rating on his last job performance evaluation prior to separation from service.

(3) The director, or a designee, determines that the employee meets the current requirements for the position.

(4) The appointing authority approves the employee's reinstatement.

The recommendation of the employee's former supervisor shall be submitted for consideration by the appointing authority.

(c) Any employee may be reinstated in accord with the requirements contained in subsection (b) only if a vacancy exists in his former position or in another position in the same classification.

(d) The rate of pay for an employee upon reinstatement shall be set at the current pay grade assigned to his former position at the same salary as the employee received when he separated from service, provided, however, that he shall not receive a salary lower than the minimum for the grade salary range.

(e) Prior service time shall not be counted for purposes of determining a reinstated employee's seniority or entitlement to vacation leave, sick leave or for employees hired before June 24, 1996, longevity pay.

(Ord. No. 139-78, § 1(21-23), 6-29-78; Ord. No. 116-96, § 5, 6-27-96; Ord. No. 059-2022, § 17, 7-5-2022)

Sec. 21-24. In-service training.

Notwithstanding the fact that all classified civil service employees must be fully capable of performing the duties prescribed for their classification, supervisors may, in conjunction with the division of human resources and subject to budgetary limitation, develop and conduct training programs designed to improve the quality of service rendered by the urban county government.

(Ord. No. 139-78, § 1(21-24), 6-29-78)

Cross reference(s)—In-service training for unclassified civil service, § 22-21; in-service training for employees of division of fire and emergency services and division of police, § 23-27.

Sec. 21-25. Reserved.

Editor's note(s)—Ord. No. 120-2014, § 3, adopted Sept. 25, 2014, deleted § 21-25, which pertained to salary schedules. For a complete history of former § 21-25 see the Code Comparative Table.

Sec. 21-26. Entrance rates.

(a) The rate of pay for an employee with no equivalent and relevant verified qualifications beyond the minimum requirements shall be the entry rate of pay of the grade salary range specified for this class. The appointing authority may recommend and the urban county council may approve a rate of pay above the entry rate of pay for the grade when it is found to be difficult to recruit qualified persons at the entry rate of pay or in recognition of the experience or exceptional qualifications of a candidate.

(b) The rate of pay for new employees, whose qualifications can be verified, may be placed in the range according to their qualifications.

(c) The appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate when it is found to be difficult to recruit qualified persons at the recommended rate of pay or in recognition of the experience or exceptional qualifications of a candidate.

(d) Before a salary offer is made, the division of human resources shall consider the current salaries and length of service in the same job class of the incumbents within the same division.

(Ord. No. 139-78, § 1(21-26), 6-29-78; Ord. No. 238-93, § 8, 12-9-93; Ord. No. 116-96, § 7, 6-27-96; Ord. No. 129-99, § 1, 5-11-99; Ord. No. 117-2014, § 6, 9-25-14; Ord. No. 059-2022, § 18, 7-5-2022)

Cross reference(s)—Entrance rates for employees in the unclassified civil service, § 22-23; entrance rates for employees of division of fire and emergency services and division of police, § 23-29.

Sec. 21-26.1. - Demotion

(a) The appointing authority, upon the recommendation of the director and approval of the urban county council, may grant voluntary demotion to an employee who meets the following criteria:

(1) The employee must apply in writing to his division director for voluntary demotion to an existing vacant position, and the division director shall forward the completed application to the director.

(2) The employee must have previously held a position in the class to which he is requesting demotion or have been on an eligibility list for the position or have performed a majority of the duties of the position even if the class title may have changed after he left the position.

(3) The employee must secure the approval of the supervisor into whose division the demotion is to be made.

(4) The employee must have received a rating of at least two (2) on one (1) of his last two (2) performance evaluations.

(5) An employee who seeks voluntary demotion because of physical inability to perform job duties must provide appropriate medical documentation to support the request. Said documentation shall be attached to the employee's written request for voluntary demotion.

(6) Any employee who is granted a voluntary demotion shall be placed in the grade salary range of the position to which he is being demoted with a total reduction in salary of seven (7) percent for the first pay grade below the employee's current pay grade, three (3) percent for the next pay grade and a two (2) percent for each additional pay grade thereafter, provided, however, that no employee shall be paid below the entrance rate of pay or above the maximum for the grade.

(7) The director shall make reasonable rules and regulations necessary to implement this section.

(b) If an employee is selected for a position in a new job class that has a lower pay grade than the current job class, the employee shall be placed in the grade salary range of the job class to which he is being demoted with a total reduction in salary of seven (7) percent for the first pay grade below the employee's current pay grade, three (3) percent for the next pay grade and a two (2) percent for each additional pay grade thereafter; provided, however, that no employee shall be paid below the entrance rate of pay or above the maximum for the grade.

(Ord. No. 32-83, § 4, 3-10-83; Ord. No. 214-86, § 10, 10-7-86; Ord. No. 82-87, § 1, 5-5-87; Ord. No. 265-88, § 4, 11-17-88; Ord. No. 116-96, § 8, 6-27-96; Ord. No. 60-98, § 3, 3-5-98; Ord. No. 117-2014, § 7, 9-25-14; Ord. No. 059-2022, § 19, 7-5-2022)

Editor's note(s)—Ord. No. 117-2014, § 7, adopted Sept. 25, 2014, changed the title of § 21-26.1 from "Rates upon promotion, demotion" to read as set out herein.

Sec. 21-27. Computation of salaries.

(a) The biweekly salary rates described in the salary schedules are fixed on the basis of full-time service as defined in section 21-19. In any case listed below, the salary prescribed for full-time employment for any classified

civil service employee shall be adjusted by multiplying same by a fraction of the hours actually worked during the pay period as the numerator and the regular number of hours required for full-time employment as the denominator:

(1) Where a classified civil service employee is absent from duty without permission within the meaning of section 21-43;

(2) Where the inception of termination of employment occurs during the pay period;

(3) Where a classified civil service employee is on authorized leave without pay.

(b) The salary of an employee in the division of computer services, the division of police, the division of fire and emergency services, the division of community corrections, the office of the chief information officer, and the division of enterprise solutions, who is exempted from statutory overtime requirements shall be computed as in subsection (a) of this section, except that there shall be a ten (10) percent increment to the biweekly salary rate for any pay period during which said employee is required to be on twenty-four-hour standby status for the emergency servicing of computer equipment. By July 1 of each fiscal year, each affected division shall submit to the director of human resources a listing of employees and the specific pay periods they will be required to serve on the twenty-four-hour standby status.

(c) Nonexempt employees required by their job duties to hold a commercial driver's license (CDL) shall receive a one dollar and eight cents ($1.08) per hour supplement to their hourly rate so long as they hold a position requiring the commercial driver's license (CDL). Exempt employees required by their job duties to hold a commercial driver's license (CDL) shall receive a forty-three dollar and twenty cents ($43.20) weekly supplement so long as they hold a position requiring the commercial driver's license (CDL). These supplements reflect the additional responsibility and scrutiny required to qualify for and maintain the commercial driver's license (CDL). The director shall make reasonable rules and regulations necessary to implement this section.

(d) The urban county council may, on the recommendation of the director and with the approval of the chief administrative officer, authorize a salary supplement to classifications in the classified civil service under the following terms and conditions:

(1) Employment market conditions must make it exceptionally difficult to recruit and retain qualified employees in the classifications as reflected by multiple unsuccessful recruitment processes, excessively high turnover rates and evidence from outside sources that employment market conditions warrant such a supplement.

(2) When the employment market conditions supporting the salary supplements change so as to make the salary supplement unnecessary for a given classification, the director, with the approval of the chief administrative officer, shall recommend to the urban county council that the supplement be discontinued.

(3) The salary supplements shall not be included in the computation of salary increases; such increases are based on a percent of each employee's base salary without the supplement.

(4) The director shall make reasonable rules and regulations to implement this section.

(e) Reserved.

(f) Any classified civil service employee who is officially designated as "on-call" shall receive additional compensation at the rate of ten dollars ($10.00) per day, Monday through Friday, and fifteen dollars ($15.00) per day on weekends and holidays. On-call employees who are called back to work shall be compensated for a minimum of two (2) hours. The CAO may adopt an administrative policy by which the director shall implement the provisions of this subsection.

(g) The director may, with the approval of the chief administrative officer and subject to sufficient funding, authorize a salary supplement of ninety dollars ($90.00) per month to full time, non-sworn employees holding positions in the classified civil service under the following terms and conditions:

(1) A full time, non-sworn employee shall be deemed to be in a high risk position when, cumulatively, the majority of the employee's work and duties are performed under conditions which could result in serious illness, severe personal injury or a substantial endangerment to health when exposed to minimally controllable or hazardous conditions, notwithstanding preventative efforts such as training, skills, abilities, protective equipment or engineered controls as required by OSHA.

(2) The director, after desk audits of positions identified as having high physical demands or hazardous working conditions in the current position classification system, shall identify those employees whose positions qualify them for the high risk job pay supplement.

(3) A position identified as high risk must, for a majority of the employee's work time, either singly or cumulatively, expose the employee to: lifting, carrying, pushing or pulling; heavy equipment; falling; machinery with moving parts; confined spaces; traffic; excavation; ladders or scaffolding; hazardous materials and chemicals; falling objects; or biological or infectious diseases.

(4) If a given position is not identified as a high risk position, the employee holding the position may appeal to a committee comprised of the director, the director of the division in which the position is located, the commissioner of the department in which the division is located, and representatives from the division of human resources and the office of the urban county council. The decision of the appeal committee shall be final.

(5) The directors of the divisions in which these positions are identified shall be responsible for tracking employees who qualify for this supplement. (Ord. No. 139-78, § 1(21-27), 6-29-78; Ord. No. 253-78, § 1, 10-5-78; Ord. No. 40-89, § 1, 2-23-89; Ord. No. 116-96, § 9, 6-27-96; Ord. No. 147-96, § 2, 7-18-96; Ord. No. 229-97, § 1, 11-13-97; Ord. No. 190-2000, § 1, 6-29-00; Ord. No. 195-2000, § 1, 6-29-00; Ord. No. 82-2003, § 1, 4-24-03; Ord. No.

157-2004, § 1, 7-1-04; Ord. No. 138-2007, § 1, 6-21-07; Ord. No. 160-2010, § 1, 9-23-10; Ord. No. 106-2019, § 1, 12-5-19; Ord. No. 014-2020, § 1, 2-20-20; Ord. No.107-2021, § 1, 10-28-21; Ord. No. 108-2021, § 1, 10-28-21; Ord. No. 059-2022, § 20, 7-5-2022)

Editor's note(s)—Ord. No. 059-2022, § 20, adopted July 5, 2022, amended §21-27 as set out herein. Subsection (e) was omitted and is reserved for future use.

Cross reference(s)—Computation of salaries of unclassified civil service employees, § 22-24; computation of salaries of employees in division of fire and emergency services and division of police, § 23-30.

Sec. 21-28. Overtime.

(a) As used in this section:

(1) Employee is any classified civil service employee, but shall not include any individual employed in a Fair Labor Standards Act (FLSA) exempt position.

(2) Workweek is the period of time beginning at 12:00 a.m. each Monday and ending at 11:59 p.m. each Sunday.

(b) Any supervisor may, with approval of his supervisor, direct any member of the classified civil service to work reasonable hours in addition to the normal work schedule when essential to meet operating needs. A member's refusal to comply with such a request shall be grounds for disciplinary action.

(c) Any employee who is not exempted by subsection (a)(1) and who is employed for a workweek longer than forty (40) hours shall receive compensation for this employment in excess of forty (40) hours in a workweek at a rate of one and one-half (1½) times the hourly wage at which he is employed. Each individual workweek shall serve as the standard for determining entitlement to overtime compensation and, accordingly, averaging of hours over a two (2) workweek payroll period shall not be permitted.

(d) Overtime compensation shall only be paid for more than forty (40) hours actually worked within a workweek. Accordingly, no employee shall be paid overtime compensation solely for working in excess of eight (8) hours per day or for work on Saturdays, Sundays, holidays or regular days of rest; and time spent on vacation leave, sick leave, bereavement leave, leave of absence, holiday leave, disability leave, military leave or any other approved leave shall be excluded in computing entitlement to overtime compensation under this section.

(e) Where an employee in a single workweek works at two (2) or more different types of urban county government work for which different non-overtime rates of pay have been established, his hourly rate for that week is the weighted average of such rates. That is, his total earnings are computed to include his compensation during the workweek from all such rates, and are, then divided by the total number of hours worked, at all jobs.

(f) At the time the payroll report is submitted to the division of accounting, the supervisor shall submit to the chief administrative officer a report stating which employees worked overtime and the necessity therefor. Except as provided in section 21-27(b), no member of the classified civil service exempted by subsection (a)(1) shall receive overtime compensation.

(Ord. No. 139-78, § 1(21-28), 6-29-78; Ord. No. 56-83, § 2, 4-7-83; Ord. No. 059-2022, § 21, 7-5-2022)

Cross reference(s)—Overtime for unclassified civil service employees, § 22-25; overtime for employees of division of fire and emergency services and division of police, § 23-31.

Sec. 21-29. Within-grade salary increases.

(a) On the first day of each fiscal year, all employees in the unified pay plan with a satisfactory score on their performance evaluation be eligible for a salary increase provided funds are appropriated in the budget. A satisfactory score shall be a score of two (2) or above.

(b) When an employee enters a class at the maximum amount of the grade salary range or when he reaches the maximum for his classification, no salary advancements shall be made.

(c) Notwithstanding anything to the contrary in this section, all employees in the unified pay plan who receive a satisfactory score of two (2) or above on their performance evaluation shall receive a one (1) percent increase in pay, not to exceed the maximum amount of the pay grade or salary. In the event there are insufficient funds to provide this increase, all employees shall receive an amount equal to the "structure" percentage change in the World at Work index, provided, however, that if sufficient funds are not available for this increase, the urban county council shall, by ordinance, establish a substitute percentage increase. It is the intent of this section that employee salaries shall have first priority in the budget process except for any debt obligations.

(Ord. No. 139-78, § 1(21-29), 6-29-78; Ord. No. 157-79, § 1, 6-28-79; Ord. No. 116-96, § 10, 6-27-96; Ord. No. 75-99, § 1, 4-15-99; Ord. No. 203-2000, § 6, 6-29-00; Ord. No. 160-2002, § 7, 6-27-02; Ord. No. 231-2003, § 1, 9-25-03; Ord. No. 166-2007, § 5, 7-5-07; Ord. No. 180-2008, § 5, 7-8-08; Ord. No. 141-2009, § 5, 7-7-09; Ord. No. 059-2022, § 22, 7-5-2022)

Cross reference(s)—Within-grade salary step increases for unclassified civil service employees, § 22-26; within-grade salary step increases for employees of division of fire and emergency services and division of police, § 23-32.

Secs. 21-29.1—21-29.3. Reserved.

Sec. 21-30. Reclassification or reallocation.

(a) An employee whose pay grade is changed to a higher grade through a reclassification or reallocation of his position shall have his salary placed at the point in the higher grade salary range that will provide a total increase of seven (7) percent if the reclassification or reallocation is to a grade one (1) grade higher than that existing prior to the reclassification or reallocation, an additional three (3) percent if the reclassification or reallocation is to a grade two (2) grades higher and two (2) percent for each additional grade thereafter; pro-

vided, however, the appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate of pay in recognition of market demands or in recognition of the experience or exceptional qualifications of the employee. In no case, however, shall the employee receive a salary lower than the entrance rate of pay for the grade salary range.

(b) An employee whose pay grade is changed to a lower grade through a reclassification or reallocation shall retain his salary at the higher level. All employees receiving a rate of pay above the maximum rate prescribed for the class to which their position was reclassified or reallocated shall continue to receive such pay without further increase so long as their positions remain in a class having a rate below the rate now being paid the employee.

(c) An employee shall be eligible for a salary increase or cost of living adjustment in the position to which he has been reclassified or reallocated on the first day of the fiscal year after the reclassification or reallocation.

(d) The effective date of all reclassifications or reallocations shall be the beginning of the next pay period following approval by the Urban County Council.

(Ord. No. 139-78, § 1(21-30), 6-29-78; Ord. No. 32-83, § 1, 3-10-83; Ord. No. 214-86, § 11, 10-7-86; Ord. No. 265-88, § 5, 11-17-88; Ord. No. 116-96, § 11, 6-27-96; Ord. No. 60-98, § 4, 3-5-98; Ord. No. 117-2014, § 8, 9-25-14; Ord. No. 059-2022, § 23, 7-5-2022)

Editor's note(s)—Ord. No. 117-2014, § 8, adopted Sept. 25, 2014, changed the title of § 21-30 from "Salary adjustment on change of classification plan" to read as set out herein. Cross reference(s)—Salary adjustment for unclassified civil service employees, § 22-27; salary adjustment for employees of divisions of fire and emergency services and police § 23-33.

Sec. 21-31. Longevity pay.

All classified civil service employees hired before June 24, 1996, in addition to compensation regularly provided, and in addition to any longevity pay earned prior to June 24, 1996 pursuant to Ordinance No. 214-86 as amended by Ordinance No. 281-86, shall be paid two dollars ($2.00) per month for each year in service in excess of fifty-four (54) months. Classified civil service employees hired on or after June 24, 1996 shall not receive longevity pay.

(Ord. No. 139-78, § 1(21-31), 6-29-78; Ord. No. 214-86, § 6, 10-7-86; Ord. No. 281-86, § 1, 12-18-86; Ord. No. 116-96, § 12, 6-27-96)

Sec. 21-32. Automobile and maintenance allowances.

(a) The following automobile allowances shall be allowed:

(1) Any classified civil service employee who would otherwise be required to use an urban county government vehicle on a regular and consistent basis may voluntarily choose to operate his own automobile in the authorized conduct of urban county government business, and in lieu of using an urban county government vehicle, shall be reimbursed for such travel at a rate which corresponds with the current standard mileage rate established by the Internal Revenue Service for income tax purposes, as

amended, per mile. Any employee so authorized by his commissioner and the commissioner of general services shall abide by the record keeping and insurance requirements established by the commissioner of general services.

(2) Any classified civil service employee who is specifically authorized by his supervisor on a periodic basis to operate his own automobile on duly authorized conduct of urban county government business shall be reimbursed for such travel upon proper certification of distance traveled. The rate of reimbursement per mile shall not exceed the rate established by the Commonwealth of Kentucky for similar use of privately owned vehicles and shall be set administratively by the chief administrative officer so as not to exceed the annual appropriations for such reimbursement established by the urban county government budget ordinance and amendments thereto.

(b) Persons occupying positions assigned to the detention facilities and all personnel in the division of youth services whose presence is required to continuously supervise juveniles shall receive meals when appropriate during their assigned shift. Living quarters for self and family shall be provided to the director of the division of water quality and the plant operations supervisor seniors.

(c) Two (2) houses may be rented to classified civil service employees in the division of water quality at the discretion of the director of the division of water quality. Houses, apartments and other living quarters managed by the division of parks and recreation may be rented to individuals in accordance with written criteria approved by the commissioner of the department of general services. Rental arrangements for these houses, apartments and living quarters shall be subject to the review and approval of the chief administrative officer.

(d) Any permanent classified civil service employee holding the position of heavy equipment technician, heavy equipment technician senior, heavy equipment technician principal, vehicle and equipment technician, vehicle and equipment technician senior, vehicle and equipment technician principal or fleet operations supervisor who is specifically required by his supervisor to provide the tools necessary to perform the duties of the above-listed positions shall receive a tool maintenance allowance of six hundred dollars ($600.00) at the beginning of each fiscal year.

(e) Reserved.

(f) Any permanent classified civil service employee holding the position of vehicle and equipment mechanic-apprentice, or heavy equipment mechanic-apprentice who is specifically required by his supervisor to provide the tools necessary to perform the duties of the above-listed positions shall receive a tool maintenance allowance of three hundred dollars ($300.00) at the beginning of each fiscal year.

(g) Each safety officer shall receive a uniform allowance of sixty dollars ($60.00) per month.

(Ord. No. 139-78, § 1(21-32), 6-29-78; Ord. No. 210-76, § 1, 11-4-76; Ord. No. 161-88, § 1, 7-7-88; Ord. No. 86-91, § 1, 5-2-91; Ord. No. 124-92, § 1, 7-9-92; Ord. No. 126-96, § 1, 7-11-96; Ord. No. 21-98, § 1, 1-22-98; Ord. No. 152-98, § 1, 6-11-98; Ord. No. 329-2000, § 1, 11-9-00; Ord. No. 299-2002, § 1, 11-21-02; Ord. No. 64-2020, § 1, 7-9-20; Ord. No. 059-2022, § 24, 7-5-22; Ord. No.142-2023, § 1, 12-5-23)

Sec. 21-33. Vacation leave.

(a) Every classified civil service employee shall earn vacation leave at the rate of ten (10) hours per month of service for the first ten (10) years of service. Newly hired employees, however, shall, for the first month of employment only, earn vacation leave at the prorated rate of two and one-half (2½) hours for each full week of service. Every employee with more than ten (10) years of service shall earn vacation leave at the rate of fourteen (14) hours per month of service for the duration of employment. Employees may accumulate vacation leave but may not carry forward after the later of December 31 or the end of the first payroll period of each calendar year in which December 31 of the previous calendar year falls more than forty-two (42) working days (three hundred and thirty-six (336) hours).

(b) Vacation leave may only be utilized upon the supervisor's approval of the prior written request of the employee. It may be used in any increment. Vacation leave will not be granted in excess of vacation credit earned by service prior to the starting date of leave. It shall be scheduled with regard to operating requirements, seniority of the employee, and, insofar as possible, with the written request of the employee.

In situations where an employee is unable to obtain prior written approval, the employee may contact his supervisor and obtain verbal approval prior to using vacation leave. A leave form shall be submitted once the employee returns to work to document the verbal approval.

(c) Employees shall earn vacation leave during their probationary periods, but shall not be authorized to use it until they complete their probation; provided, however, that the following probationary employees may use vacation leave:

(1) Those with immediate prior urban county government service and no break in service.

(2) Those who exhaust sick leave and who can provide a doctor's excuse substantiating the need for leave.

(3) Those who are appointed to new positions during their probationary periods after six (6) months of urban county government service so long as the supervisor certifies to the director that the employee's service is satisfactory.

(d) Absences on account of sickness, injury or disability in excess of sick leave authorized in this chapter, for sick purposes may, at the written request of the employee and with the written consent of the supervisor and the approval of the director, be charged to vacation leave credit. No refund of vacation time shall be allowed for illness incurred while on vacation leave.

(e) Upon separation from service, all employees shall be paid for accumulated vacation leave at their then current pay rate computed on an hourly basis, which payment shall be capped in an amount not to exceed forty-two (42) working days (three hundred and thirty-six (336) hours) of accumulated vacation leave.

(f) The vacation leave provided by this section is personal in nature and shall not be transferable from one (1) employee to another for any purpose.

(g) The chief administrative officer, may, upon request, extend the deadline for vacation carryover to the end of a fiscal year. Said extension shall only be granted in cases where employees are unable to use their leave time due to weather, work demands, or other extenuating circumstances as determined by the chief administrative officer. Approved extensions shall be submitted in writing to the division of accounting with a copy of same to the council administrator.

(h) An employee who is granted an extension but separates from service prior to the end of the fiscal year shall be paid pursuant to sectio2n1-33(e) of the Code of Ordinances for not more than three hundred and thirty-six (336) hours of accumulated vacation leave.

(Ord. No. 139-78, § 1(23-33), 6-29-78; Ord. No. 75-88, § 2, 4-21-88; Ord. No. 22-91, §§ 1, 2, 2-21-91; Ord. No. 33-2001, § 1, 2-22-01; Ord. No. 69-2009, § 1, 5-7-09; Ord. No. 133-2015, § 3, 12-1-15 ; Ord. No. 059-2022, § 25, 7-5-2022; 030-2023, §§ 1—3, 3-23-2023)

Sec. 21-34. Sick leave.

(a) Effective with the initial date of employment or January 1, 1949, whichever is later, every classified civil service employee shall be granted ten (10) hours of sick leave credit for each completed calendar month of service. Newly hired employees, however, shall, for the first month of employment only, be granted sick leave credit at the prorated rate of two and one-half (2½) hours for each full week of service. Such sick leave may be accumulated to a maximum of seventy-five (75) working days (six hundred (600) hours).

(1) Employees hired before July 1, 2025, who have accumulated the maximum of sick leave credit shall continue to accumulate such credit, but shall be paid for such excess accumulation, each calendar year, at the employee's then current pay rate computed on an hourly basis.

(2) Employees hired on or after July 1, 2025 who have accumulated the maximum of sick leave credit shall continue to accumulate such credit, but shall not be paid for such excess accumulation and any accumulation in excess of seventy-five (75) working days (six hundred (600) hours) shall not be carried over to the next calendar year.

(b) Sick leave credit may be utilized by employees in any increment when they are incapacitated for the performance of duty due to sickness or injury, when they are quarantined, for doctor's appointments, and for a period not to exceed three (3) days in the case of death in the employee's immediate family, whenever the bereavement leave provided for in section 21-35 is exhausted. The immediate family for this purpose shall be deemed to include the parents, spouse, qualified adult, spouse's parents, children, brothers, sisters, grandparents and grandchildren. Employees may also utilize sick leave in the event of serious illness of parents, spouses, qualified adults, children, grandparents, spouse's or qualified adult's children, parents and grandparents, any relative for whom an employee is legally responsible or relatives who are residing with and are under the care of an employee during the relative's prolonged illness or incapacitation. However, sick leave will not be granted in excess of sick leave credit earned by service prior to the starting date of leave.

(c) All foreseeable leave for such purposes shall require specific prior approval of the supervisor and, except in extenuating circumstances, sick leave shall be requested prior to the beginning of the work shift on the day of the absence. No sick leave compensation may commence until or unless the employee, either personally or through some member of his family or other person, gives such notice including the reasons for the absence (i.e. ill or injured) from duty and where the employee can be located, subject to the approval of the supervisor.

(d) When a sick leave absence exceeds three (3) consecutive working days or where there is a suspected abuse of sick leave, such as in the case of chronic absenteeism, the supervisor or director shall notify the employee of their rights and responsibilities under the Family and Medical Leave Act, as required by the Act. Failure of the employee to comply with any such request shall authorize disallowance of sick leave compensation and may be deemed to be absence without permission within the meaning of section 21-43.

(e) In the case of long-term sick leave absences, medical certification may also be required both periodically and again when the employee returns to work under the same terms and conditions as set forth in subsection (d). The employee is under a duty to notify the supervisor of his intention to return to work as soon as his recovery is foreseeable.

(f) Except as provided in the leave bank program created in section 21-37.2, the sick leave provided by this section is personal in nature and shall not be transferable from one (1) employee to another for any purpose.

(Ord. No. 139-78, § 1(21-34), 6-29-78; Ord. No. 22-91, § 3, 2-21-91; Ord. No. 138-97, §§ 1, 2, 6-26-97; Ord. No. 33-2001, § 2, 2-22-01; Ord. No. 70-2006, §§ 1, 2, 3-23-06; Ord. No. 69-2009, § 2, 5-7-09; Ord. No. 059-2022, § 26, 7-5-22; Ord. No. 044-2025, § 1, 6-26-25)

Sec. 21-34.2. - Organ donor and bone marrow donation leave

(a) As used in this section:

Human organ means any part of a human intestine, kidney, liver, lung, or pancreas;

Living donor means a full-time employee of the Lexington-Fayette Urban County Government who is absent from work due to medical reasons associated with donating a human organ or bone marrow; and

Living organ donor leave means a paid leave of absence provided to a living donor for time off work from the donation of a human organ or bone marrow and the recovery time associated with the donation; and

Living organ donor leave does not include any other form of paid leave that has been granted by the living donor's employer.

(b) Any classified civil service employee, shall be granted living organ donor leave for time off work for the donation of a human organ or bone marrow and the recovery time associated with the donation for each organ donation, upon approval from the employee's supervisor and the Division of Human Resources.

(c) Before being approved to receive any amount of living organ donor leave, the living donor shall submit verification of the human organ or bone marrow donation procedure to the Division of Human Resources.

(d) Once approved, a living donor shall be granted living organ donor leave in an amount of;

(1) Two hundred forty (240) hours for each human organ donation; and

(2) Forty (40) hours for each bone marrow donation.

(e) A living donor may be approved to receive living organ donor leave each time the living donor donates a human organ or bone marrow.

(f) A living donor shall not be required to use compensatory time, sick leave, or vacation leave before being eligible to receive living organ donor leave.

(g) While a living donor is on living organ donor leave, he or she shall be at all times deemed a classified civil service employee and shall receive the same treatment with respect to salary, wages, and employee benefits.

(h) For purposes of determining seniority, pay or pay advancement, performance awards, and the receipt of any benefit that may be affected by a leave of absence, the service of the living donor shall be considered uninterrupted by the leave of absence.

(Ord. No. 79-2020, § 1, 8-27-20)

Sec. 21-35. Bereavement leave.

(a) In the case of death in the employee's immediate family, up to ten (10) days bereavement leave may be utilized by any probationary or permanent classified civil service employee. Such leave shall be treated as permitted absence without loss of pay so long as notice is given and, if requested, substantiation of death later provided. The immediate family for this purpose shall be deemed to include: spouse, qualified adult, children, foster children, parents/legal guardians, brothers/sisters, half-siblings, grandchildren, grandparents, great-grandparents (includes "in-laws", "step" and "qualified adult" relationships).

(b) In the case of death in the employee's extended family, up to one (1) day bereavement leave may be utilized by any probationary or permanent classified civil service employee. Such leave shall be treated as permitted absence without loss of pay so long as notice is given, and if requested, substantiation of death later provided. The extended family for this purpose shall be deemed to include: aunt, uncle, first cousin, niece, or nephew (this does not include "in-law", "step" or "qualified adult" relationships).

(c) Three (3) days of sick leave, authorized in subsection 21-34(b), may be utilized in addition to the bereavement leave.

(Ord. No. 139-78, § 1(21-35), 6-29-78; Ord. No. 263-90, § 1, 12-6-90; Ord. No. 18-94, § 1, 1-27-94; Ord. No. 242-2005, § 1, 8-25-05; Ord. No. 59-2022, § 27, 7-5-2022; Ord. No. 110-2023, § 1, 9-28-23)

Sec. 21-36. Payment of accumulated sick leave upon retirement or death.

(a) Upon service retirement under the county employees retirement system, city employees pension fund, or the policemen and firemen's retirement fund, or upon retirement under social security after completion of five (5) years of service with the urban county government, or upon death, all classified civil service employees shall be compensated for all accumulated sick leave in a lump sum payment. However, when a classified civil service employee who has a minimum of twenty (20) years of service with the urban county government withdraws from service for any reason, including disability retirement, he shall be compensated for all accumulated sick leave in a lump sum payment.

(b) Upon disability retirement, all classified civil service employees who have less than twenty (20) years of service with the urban county government shall be compensated for all accumulated sick leave as follows:

(1) An employee otherwise eligible for service retirement at the time of disability retirement may elect to supplement his or her disability pension with any accrued sick leave so that the total biweekly income of both equals the biweekly income, for federal and state income tax purposes, received by the employee immediately prior to the injury or disability which prompted retirement, or may elect to be compensated in a lump sum as in subsection (a), above.

(2) An employee not otherwise eligible for service retirement at the time of disability retirement shall be compensated for accumulated sick leave as a supplement to his or her disability pension so that the biweekly total of disability retirement benefits plus sick leave payment equals the biweekly income, for federal and state income tax purposes, received by the employee immediately prior to the injury or disability which prompted retirement.

(c) All compensation for accumulated sick leave shall be computed on the basis of accumulated hours at an hourly rate which reflects base salary and, if applicable, longevity pay and specialist pay, but which shall not include educational or training incentive payments, uniform allowances or other payments not enumerated above.

(Ord. No. 139-78, § 1(21-36), 6-29-78; Ord. No. 339-78, § 1, 12-21-78; Ord. No. 210-79, § 1, 9-6-79; Ord. No. 116-96, § 13, 6-27-96)

Sec. 21-36.1. - Lump sum payout

Prior to their retirement date, or date of withdrawal from service, employees eligible to receive a lump sum payout may elect to pay into any deferred income account the value of the vacation, holiday, and sick leave payouts they are entitled to receive under this chapter and pursuant to the rules, if any, of the deferred income accounts and the Internal Revenue Service. Employees must notify the director at least four (4) weeks prior to the date of their retirement date or withdrawal from service if they wish to exercise this option.

(Ord. No. 25-2005, § 1, 1-20-05)

Sec. 21-37. Leave of absence.

(a) In addition to other leaves authorized in this chapter, a supervisor may authorize an employee to be absent without pay for personal reasons for a period or periods not to exceed ten (10) working days in any calendar year.

(b) The chief administrative officer may, with the approval of the urban county council, authorize special leaves of absence with or without pay for permanent employees for any period or periods not to exceed three (3) calendar months in any one calendar year for the following purposes: attendance at college, university or business school for the purpose of training in subjects related to the work of the employee and which will benefit the employee and the urban county government; urgent personal business for an extended period, such as illness of the employee or illness or death of a relative, settling estates, liquidating businesses, attending court as a witness, or for such other purposes as may be deemed beneficial to the service.

(c) The chief administrative officer may recommend, and the urban county council may grant, leaves of absence with or without pay in excess of the limitations above for the purpose of permitting the attending of courses in training at recognized universities or colleges and for other purposes that are deemed to be beneficial to the urban county government.

(d) A supervisor may authorize up to four (4) hours personal leave annually per employee with pay for participation in community projects which are not directly work-related.

(1) Prior to the granting of leave by a supervisor, the event or program for which the leave is requested must be approved in writing by the mayor, and a copy of the request must be forwarded to the director.

(2) Such projects shall include but shall not be limited to canvassing for donations to recognized charitable organizations, participation of parents and guardians in school events, and participation in and organization of authorized community events which contribute to the support and enhancement of good stewards of the community.

(3) There shall be no accumulations of community projects leave at any time nor compensation for the same upon resignation, retirement or termination. Such leave may not be used in lieu of vacation leave.

(e) An employee may be granted leave with pay, not to exceed three (3) calendar months in any one (1) calendar year, by his supervisor for the purpose of serving on a duly impaneled jury of any court under the following terms and conditions:

(1) An employee serving on a jury shall be paid, at his current hourly rate, for each hour of jury duty up to a maximum of eight (8) hours per court day and shall be marked absent with leave (AWL) for such court time.

(2) As soon as the employee receives a summons to jury duty, he shall provide a copy of the summons to his supervisor along with a written request for jury duty leave; however, the employee shall request such leave no later than two (2) weeks prior to the beginning of his term of duty. The supervisor shall forward copies of the employee's summons and request for jury duty leave to the director.

(3) Employees on jury duty leave shall report for work when excused by the court for part of a day or for one (1) or more whole days. Failure to report for work when excused by the court shall result in termination of jury duty leave and may expose the employee to disciplinary action.

(4) An employee on jury duty leave shall accrue vacation and sick leave as defined in sections21-33 and 21-34 for all time served on the jury up to the maximum of three (3) months in any one (1) calendar year.

(5) Time served on jury duty shall not be considered hours worked for purposes of computing overtime pursuant to section 21-28

(f) Pursuant to KRS 337.015, upon written request, every employee shall be granted reasonable personal leave not to exceed six (6) weeks when the reception of an adoptive child under the age of ten (10) is the reason for such request.

(1) Personal leave for purposes of this section shall mean accrued vacation leave as defined in section 21-33, accumulated holiday leave as defined in section 21-38 or leave of absence without pay as defined in section 21-37.

(2) This section shall not apply to an adoption by a fictive kin, stepparent, stepsibling, blood relative, including a relative of half-blood, first cousin, aunt, uncle, nephew, niece, and a person of a preceding generation as denoted by prefixed grand, great, or great-great, or a foster parent who adopts a foster child in already in his care.

(3) The director shall establish reasonable rules and procedures necessary to implement this section.

(g) (1) A classified civil service employee may receive up to four (4) hours of leave with pay to donate blood at any licensed blood center certified by the Food and Drug Administration, during the employee's work hours.

(2) No leave time shall be granted to employees who donate on their own time, including lunch times.

(3) Employees must obtain approval for leave prior to the donation and must submit verification of blood donation or deferral upon their return to work.

(4) Employees deferred from donation shall not be charged for the time used in attempting to donate, but will not receive the four (4) hours leave time granted to those who donate.

(5) There is no limitation on the number of times an employee may donate blood pursuant to this section other than those imposed by the blood centers.

(h) (1) A classified civil service employee who is eligible to vote and who is registered to vote may, upon prior request and approval, receive up to four (4) hours of leave with pay for the purpose of voting on Election Day or in person on an early alternate voting day. In order to be eligible for voting leave under this subsection, an employee shall meet the following requirements:

(a) The employee shall be registered to vote in the county holding the election;

(b) The employee shall be scheduled to work on Election Day during the hours of 6:00 am to 6:00 pm local time or on the early alternate voting day that the vote is cast; and

(c) The employee shall request voting leave in advance and shall be required to receive approval for the use of voting leave.

In addition to being eligible to vote in the county holding the election, the employee shall be required to vote in order to receive voting leave under this subsection. In order to ensure that services are not impaired, the employee's supervisor or the division director may specify the hours an employee may be absent to vote. The employee shall record the leave for the day that the employee's vote is cast, whether on Election Day or in person on an early alternate voting day.

(2) Nothing herein is intended to modify, repeal, or otherwise affect any collective bargaining agreement between the Urban County Government and any collective bargaining unit as authorized by state law.

(Ord. No. 139-78, § 1(21-37), 6-29-78; Ord. No. 167-82, § 1, 7-23-82; Ord. No. 31-83, § 1, 3-10-83; Ord. No. 42-83, § 1, 3-24-83; Ord. No. 140-83, § 2, 7-21-83; Ord. No. 238-86, § 1, 11-13-86; Ord. No. 45-93, § 1, 3-25-93; Ord. No. 18-94, § 2, 1-27-94; Ord. No. 132-2001, §§ 1, 2, 5-29-01; Ord. No. 14-2017, § 1, 2-9-17; Ord. No. 059-2022, § 28, 7-5-22; Ord. No.107-2022, § 1, 9-22-22; Ord. No. 086-2024, § 1, 8-29-24)

Sec. 21-37.1. - Compensatory time leave program

(a) Classified civil service employees exempted from overtime payments by subsection 21-28(a)(1) shall accumulate and use compensatory time under the following terms and conditions:

(1) Compensatory time shall mean leave time granted for hours worked by a classified civil service employee in excess of forty (40) hours per week.

(2) Employees may accumulate up to one hundred twenty (120) hours of compensatory time and may use accumulated compensatory time in any increment.

(3) Vacation, sick and bereavement leave hours shall not count as hours worked for purposes of computing compensatory time earned in a week.

(4) Compensatory time may only be accrued and utilized upon the supervisor's prior approval of an employee's written request. In situations where an employee is unable to obtain prior written approval, the employee may contact his supervisor and obtain verbal approval prior to using compensatory time. A leave form shall be submitted once the employee returns to work to document the verbal approval.

(5) No employee shall be paid for accumulated compensatory time upon separation from urban county government employment.

(6) Once maximum accumulations have been reached, employees may not count hours worked in excess of their regular hours as compensatory time. Once their hours drop below maximum accumulation, only hours worked subsequent to the reduction shall be credited as compensatory time.

Compensatory time hours shall be posted at the end of each pay period; and, in no event, shall any compensatory time hours be credited retroactively.

(Ord. No. 97-85, § 1, 5-16-85; Ord. No. 122-87, § 6, 6-25-87; Ord. No. 216-92, § 1, 12-3-92; Ord. No. 280-2008, § 1, 12-9-08; Ord. No. 69-2009, § 3, 5-7-09; Ord. No. 031-2021, § 1, 4-22-21; Ord. No. 059-2022, § 29, 7-5-2022)

Sec. 21-37.2. - Sick leave transfer program

(a) A sick leave transfer program for classified and unclassified employees shall be established to provide that any eligible employee may transfer unused accrued sick leave hours to another eligible employee experiencing disabling illness or injury or a death in the immediate family. The program shall be administered by the division of human resources.

(b) The following definitions shall apply to this section:

Employee means a civil service or unclassified civil service employee with more than six (6) months employment.

Recipient means an employee who is eligible to receive sick leave benefits under this program.

Donor means an employee who meets the requirements to transfer leave under this program.

Disabling illness or injury means a medically certified illness or injury of an employee or an employee's family member, which will result in the employee being absent from duty for at least ten (10) consecutive working days, for which the employee does not have available paid leave and which may result in the employee incurring a substantial loss of income.

(i) "Disabling illness or injury" does not include self-inflicted injuries, job related illnesses or injuries covered by workers compensation, illnesses or injuries covered by automobile insurance benefits, and/or illnesses or injuries suffered as a result of secondary employment.

Family member means a parent or step-parent, spouse, child (including step or adopted children), grandparent, spouse's parent, spouse's grandparent, qualified adult as defined in CAO Policy No. 46, any relative for whom an employee is legally responsible, or relatives who are residing with and are under the care of an employee during the relative's disabling illness or injury.

(c) In order to participate in this program, the donor and recipient must meet the following criteria:

(1) A recipient must complete the sick leave sharing application and submit the application to the division of human resources. To be eligible to participate in this program, the recipient must have exhausted all available paid leave, including sick leave, vacation, holiday and compensation time;

(2) A donor wishing to transfer unused accrued sick leave to a qualified recipient must file the sick leave sharing donation form with the division of human resources requesting that a specified number of hours of accrued sick leave be transferred to another eligible named employee. However, only employees with a sick leave balance of over one hundred sixty (160) hours are eligible to be donors. And an employee's requested transfer of sick leave may not result in that employee's sick leave balance dropping below one hundred sixty (160).

(3) The minimum number of sick leave hours that an employee may transfer annually is eight (8).

(d) Once the proper documentation has been submitted by both the proposed recipient and donor employees, the human resources department shall within five (5) days of receipt review the documentation and notify the donor and recipient, in writing, if they meet the eligibility requirements of this program. If so, the recipient shall be entitled to use the transferred sick leave under this program.

(1) Benefits to an employee on maternity/paternity leave shall be available only if the employee's newborn child suffers from a serious medical condition that requires an absence longer than the employee's original request for maternity/paternity leave.

(e) [Reserved.]

(f) Transferred sick leave will be paid at the recipient's regular rate of pay and on the government's regular pay periods.

(g) Transferred sick leave may only be used by a recipient while he or a family member is experiencing a disabling illness or injury. It is the responsibility of the recipient employee to notify the division of human resources, in writing, within five (5) days from the date that his disabling injury or illness no longer exists. Further, in the event of the recipient's death or retirement, or if his employment is terminated, the recipient is no longer eligible to receive sick leave transfer benefits.

(h) While receiving sick leave transfer benefits, a recipient employee shall accrue sick and vacation leave. A paid holiday occurring during an approved benefit period shall be paid as a holiday, and not paid as transferred sick leave.

(i) An employee receiving sick leave transfer benefits must comply with the provisions of the sick leave policy, section 21-34.

(j) Any sick leave transfer benefits received under this program will run concurrently with all other leaves set forth by chapter 21.

(k) Once sick leave has been transferred under this program, it cannot be restored to the donor for any reason.

(l) No employee shall directly or indirectly intimidate, threaten or coerce or attempt to intimidate, threaten or coerce any other employee for the purpose of interfering with that employees right to participate in this program, including the donation, receipt, or use of transferred sick leave. For the purposes of this section, "intimidate, threaten or coerce" shall include, but not be limited to, the promise to confer or conferring any benefit related to employment or affecting or threatening to affect any reprisal against any other employee.

(m) The director of human resources shall make reasonable rules and regulations to implement this section and a copy of the sick leave transfer program shall be on file in the division of human resources.

(Ord. No. 139-97, § 1, 6-26-97; Ord. No. 190-2006, § 1, 6-22-06; Ord. No. 83-2015, § 1, 7-7-15; Ord. No. 59-2022, § 30, 7-5-2022)

Editor's note(s)—Ord. No. 83-2015, § 1, adopted July 7, 2015, changed the title of § 21-37.2 from "Sick leave bank program" to read as set out herein.

Sec. 21-37.3. - Paid parental leave

(a) **Definitions.** The following definitions shall apply to this section:

Family and medical leave (FML) means leave provided to eligible employees for qualifying family and medical reasons and shall have the same meaning and be afforded under the same terms and conditions set forth under the Family and Medical Leave Act (FMLA).

Foster care placement means a new, temporary living arrangement in the employee's home for a minor child provided through a state-certified foster care program, whereby a minor child in the legal or physical custody and care of the state is placed in the employee's home by or with the agreement of the state.

Kinship placement means a new, temporary placement of a minor child with a relative or fictive kin by a court order.

Paid parental leave means paid leave from an employee's job duties during a period of family and medical leave (FML) due to a qualifying event under this section.

Qualifying event means the birth of an employee's child, the placement for adoption of a newly adopted child with an employee, or the foster care or kinship placement of a newly placed child by an employee.

(b) **Paid parental leave.** LFUCG employees shall be eligible to receive paid parental leave due to the birth of the employee's child, the placement for adoption of a newly adopted child, or the foster care of a newly placed child, in accordance with the following provisions:

(1) To be eligible for paid parental leave, employees must be full-time or part-time employees who have been employed for at least twelve (12) months by the date the leave is to commence and have worked at least 1,250 hours during the twelve (12) month period immediately preceding the beginning of the leave.

(2) Employees shall have experienced a qualifying event as defined by this section and must be the parent of a newly born child, or have accepted the placement of a child for adoption and reside in the same household as the newly adopted child, or have received a child by foster care or kinship placement.

(3) An eligible employee may utilize up to four (4) weeks of paid parental leave at one hundred (100) percent of the employee's base pay per birth, upon placement for adoption of a newly adopted child with the employee, or upon placement of a child in foster care or kinship placement with the employee. Paid parental leave will be based on the employee's normal rate of pay, not including premiums or overtime.

(4) Multiple births, adoptions, or foster care or kinship placements do not extend the amount of leave available.

(5) If both parents work for LFUCG, both parents are eligible for up to four (4) weeks of paid parental leave. Such leave may be taken either concurrently or consecutively.

(6) Paid parental leave must be utilized within six (6) months following a qualifying event as defined by this section. If the leave is not used by the employee before the end of the six (6) month period, it shall not accumulate.

(7) Paid parental leave shall be taken for a consecutive period of up to four (4) weeks without interruption during the period of family and medical leave (FML); in no event shall paid parental leave be used for intermittent absences. Paid parental leave will not reduce eligibility for other types of paid and unpaid leaves. An employee is eligible for this benefit no more than one time in a calendar year.

(c) **Requesting paid parental leave.** In order to be eligible to receive paid parental leave, an employee must comply with the following:

(1) An eligible employee is required to submit a completed request for family and medical leave to the division of human resources, requesting family and medical leave (FML) at least thirty (30) days prior to the anticipated date of the leave. To the extent that 30-day notice is not possible, the employee shall submit a completed request for family and medical leave as soon as possible.

(2) An eligible employee will be required to furnish the following documentation to support paid parental leave:

(a) In the case of a newly born child, the employee shall furnish appropriate medical documentation for the birth of the child. If applicable, the medical certification requirements for FML leave will control.

(b) In the case of placement for adoption of a newly adopted child, the employee shall furnish appropriate documentation.

(c) In the case of a newly placed child by foster care or kinship placement, the employee shall furnish appropriate foster care or kinship placement documentation.

(3) A fraudulent request for paid parental leave shall be grounds for disciplinary action, up to and including termination of employment.

(d) **Special circumstances.** Consistent with the goals and objectives of paid parental leave, the director may, on recommendation to and with approval of the chief administrative officer, find that special circumstances exist in an individual situation and may authorize the employee's use of paid parental leave.

(Ord. No. 128-2022, § 1, 11-17-22; Ord. No.115-2024, §§ 1-4, 11-14-24)

Sec. 21-37.4. Leave for victims of crime and domestic violence

(a) **Definitions.** The following definitions shall apply to this section:

Crime means any offense punishable as a criminal offense under the Kentucky Revised Statutes or the Code of Ordinances of the Lexington-Fayette Urban County Government.

Domestic violence includes any physical injury, serious physical injury, stalking, sexual abuse, strangulation, and/or assault, or the infliction of fear of imminent physical injury, serious physical injury, sexual abuse, strangulation, and/or assault, or abuse in the form of purposeful use of coercive behaviors designed to exercise power or coercive control, between family members or members of an unmarried couple.

Family member means a spouse, including a former spouse, a qualified adult, a grandparent, a grandchild, a parent, a child, a stepchild, an adult sibling, or any other person living in the same household.

(b) Classified civil service employees shall be eligible to use up to fifty-six (56) hours of paid leave per calendar year if the employee is a victim of domestic violence or a crime for the following purposes related to or resulting from domestic violence or the crime:

(1) To seek medical attention for the employee to recover from physical or psychological injury caused by domestic violence or the crime;

(2) To obtain services from a victim services organization;

(3) To obtain psychological or other counseling;

(4) To temporarily or permanently relocate;

(5) To take legal action, including preparing for or participating in a civil or criminal legal proceeding related to or resulting from the domestic violence or crime; or

(6) To take any other action to meet needs reasonably resulting from the domestic violence or a crime.

(c) If the employee has exhausted the paid leave provided for in subsection (b), and has exhausted any other accrued paid leave specifically including but not limited to sick leave and vacation leave, then the employee shall be eligible to use an additional amount of unpaid leave in an amount up to but not greater than two hundred forty (240) hours per calendar year for one or more of the purposes described in subsection (b).

(d) Both the paid leave authorized under subsection (b) and the unpaid leave authorized under subsection (c) are available on an annual basis. Any portion of the leave that remains unused at the end of a calendar year does not accumulate or carry forward to the following calendar year.

(e) In order to be eligible to receive leave under this section, an employee shall comply with the following requirements:

(1) An eligible employee shall give reasonable notice to LFUCG, provided such notice is feasible;

(2) An eligible employee shall be required to furnish documentation to support the taking of leave under this section, certifying that the employee is a victim of domestic violence or a crime, which shall be furnished no later than two (2) business days after the employee has taken leave under this section; and

(3) An eligible employee shall be required to furnish documentation to support the use of leave for one or more of the purposes described in subsection (b). Examples of appropriate documentation for this purpose include, but are not limited to, the following:

(i) A copy of a criminal complaint;

(ii) A copy of an emergency protective order/domestic violence protective order;

(iii) Documentation from a victim services organization indicating that the employee utilized its services;

(iv) Documentation that the employee received medical or psychological care resulting from the crime or domestic violence; or

(v) Other documentation reasonably demonstrating the occurrence of domestic violence or a crime or that the employee took actions related to the occurrence of the domestic violence or a crime.

(f) A fraudulent request for leave under this section shall be grounds for disciplinary action, up to and including termination of employment.

(g) To the extent permitted by law, LFUCG shall maintain the confidentiality of any verbal communication, written document, or record submitted by an employee relative to the employee's request for leave pursuant to this section, except when disclosure is required by law.

(h) LFUCG shall not discharge or in any manner discriminate or retaliate against an employee who is a victim of a domestic violence or a crime because the employee takes leave from work under this section.

(i) Leave granted under this section shall run concurrently with protected leave under the Family and Medical Leave Act ("FMLA"), to the extent that the leave is taken for an FMLA-qualifying condition.

(j) Notwithstanding the foregoing, leave granted under this section is not available for (1) work-related incidents; or (2) work-related injuries.

(Ord. 077-2024, § 1, 7-9-24)

Sec. 21-38. Holidays and holiday compensation.

(a) The following days are declared holidays for all classified civil service employees:

(1) The first day of January (New Year's Day).

(2) The third Monday in January (Martin Luther King, Jr. Day).

(3) The third Monday in February (Washington's Birthday).

(4) The last Monday in May (Memorial Day).

(5) The nineteenth day of June (Juneteenth Day).

(6) The fourth day of July (Independence Day).

(7) The first Monday in September (Labor Day).

(8) The eleventh day of November (Veterans Day).

(9) The fourth Thursday (Thanksgiving Day) and Friday in November.

(10) The twenty-fourth day of December (Christmas Eve).

(11) The twenty-fifth day of December (Christmas Day).

(b) (1) When any holiday listed above falls on a Saturday or Sunday, the preceding Friday or following Monday may be designated as a holiday by a proclamation of the mayor.

(2) In addition, on January 1 of each calendar year, each employee shall be granted two (2) swing holidays which may be taken by employees at any time during the calendar year in accordance with the requirements of subsections (c) and (d) of this section.

(c) No employee shall lose any pay as a result of the advent of a designated holiday. Employees required to work on a holiday shall be compensated by equal time off at the earliest opportunity instead of by additional pay. Holiday leave may only be utilized upon the supervisor's prior approval of the written request of the employee. Holiday leave time may be used in any increment; provided that holiday leave will not be granted in excess of holiday credit earned by service prior to the starting date of leave. It shall be scheduled with regard to operating requirements, seniority of the employees, and insofar as possible, as requested by the employee. An employee may not carry forward more than ten (10) working days (eighty (80) hours) of holiday leave past January 1 of any calendar year. Upon separation from service, all employees shall be paid for accumulated holiday leave at their then current pay rate computed on an hourly basis.

In situations where an employee is unable to obtain prior written approval, the employee may contact his supervisor and obtain verbal approval prior to using holiday leave. A leave form shall be submitted once the employee returns to work to document the verbal approval.

(d) In the event that a supervisor certifies and the chief administrative officer approves, with justification, that it is not practical to give equal time off because of shortages of personnel or otherwise, then employees required to work on holidays because of the continuous nature of the operation or scheduling difficulties shall be paid in addition to their holiday pay for each hour worked between the hours of midnight and midnight on the holiday, at their then current pay rate computed on an hourly basis.

(Ord. No. 139-78, § 1(21-38), 6-29-78: Ord. No. 184-82, § 1, 10-7-82: Ord. No. 115-85, § 1, 6-27-85: Ord. No. 86-88, § 1, 5-5-88; Ord. No. 110-89, § 1, 6-15-89; Ord. No. 133-2001, § 1, 5-29-01; Ord. No. 201-2007, § 1, 9-13-07; Ord. No. 280-2008, § 2, 12-9-08; Ord. No. 69-2009, § 4, 5-7-09; Ord. No. 106-2021, § 1, 10-28-21, eff. 1-1-22; Ord. No. 059-2022, § 31, 7-5-2022)

Sec. 21-39. Disability leave.

(a) Any classified civil service employee who suffers injury or illness as a result of service-connected accident or illness shall be granted, upon proper investigation and authentication, leave equal to full pay for a period up to twelve (12) months for each incident. At the end of the first thirty (30) days and again following each thirty-day period thereafter, the director may require the employee to be examined by competent medical authority to determine the employee's entitlement to full disability leave.

(b) As soon as possible after a service-related injury or illness, but no later than ninety-six (96) hours after the occurrence, the employee, through his supervisor, shall submit the disability leave request and light-duty/substitute work form to the director. Failure to submit the appropriate paperwork will void an employee's eligibility for disability leave except in unusual or exceptional circumstances where an injury or illness is not immediately apparent, but one is subsequently substantiated by appropriate medical authority and documentation submitted to the director within one (1) calendar month of the work-related incident. An employee's immediate supervisor or a supervisor designated by the division director shall submit the paperwork in the event that the employee is incapacitated. The employee may be placed on accumulated sick leave or vacation leave until a determination is made by the director that the injury or illness is service-connected and a determination of disability is made by competent medical authority. Once such determinations are made, sick days and vacation days shall be restored and the employee placed on workers' compensation and disability leave. If the employee has insufficient sick leave or vacation leave accumulated, he may be placed on workers' compensation and disability leave immediately upon injury or illness. Time spent on workers' compensation or disability leave status over ninety (90) consecutive calendar days shall not be included in computing months of service under sections 21-33 and 21-34, and neither sick leave nor vacation leave may be accumulated during absence from duty in excess of ninety (90) consecutive calendar days.

(c) The disability leave payable under the foregoing sections shall be supplementary to any workers' compensation income benefits to which the employee is eligible. In the event that any supplemental payment is

made under the foregoing sections and a subsequent workers' compensation income benefit is paid to the employee for the period for which payment under this chapter has been made, the employee shall refund to the urban county government an amount equal to any workers' compensation income benefits received for a period for which the salary of the subject employee has been paid by the urban county government under the foregoing provisions. In no case shall payments under this section exceed the difference between the employee's workers' compensation benefits and his average weekly earnings as, defined in KRS 342.140.

(d) Upon a determination of permanent disability by competent medical authority, the employee will be instructed to apply to the appropriate pension fund for disability retirement benefits. Failure to so apply or commencement of disability retirement benefits will terminate disability leave short of the twelve (12) months. Disability leave shall also be terminated early if such medical authority determines that the employee is able to return to duty and perform the same or substitute work at the same salary.

(e) Disability leave shall terminate at the end of the twelve-month period. If the employee is not then, in the opinion of competent medical authority, able to return to duty, he shall receive a lump sum payment for accrued vacation leave as provided by section 21-33. An employee placed on disability retirement may elect to supplement his disability retirement as provided in section 21-36, but in no case shall the total weekly income from the pension and sick leave exceed his average weekly wage as defined in KRS 342.140. On the recommendation of the chief administrative officer, with approval of the urban county council, an employee who fails to qualify for disability retirement at the end of twelve (12) months may be continued on disability leave; but no payment for accrued vacation leave or sick days shall be made until termination of disability leave benefits.

(Ord. No. 139-78, § 1(21-39), 6-29-78; Ord. No. 63-91, § 1, 4-4-91; Ord. No. 78-91, § 1, 4-18-91; Ord. No. 249-91, § 1, 12-5-91; Ord. No. 199-92, § 1, 11-12-92; Ord. No. 70-2006, §§ 3—6, 3-23-06; Ord. No. 131-2012, § 1, 10-25-12; Ord. No. 059-2022, § 32, 7-5-2022)

Sec. 21-40. Reservist military service leave.

(a) Any classified civil service employee, including a probationary employee, who is a member of the National Guard or of any reserve component of the Armed Forces shall have such employment rights and benefits to which he is entitled under 38 U.S.C. 4301 et seq., including, but not limited to, an unpaid leave of absence for which an employee may elect, but may not be required, to use vacation or sick leave; reemployment rights dependent on length of military service; benefits and rights based on seniority that an employee would have attained had he or she remained continuously employed; and any non-seniority benefits or rights that are available to employees on comparable nonmilitary leaves of absence, all subject to the terms, limitations, and requirements under applicable law.

(b) In addition to the benefits provided under subsection (a), every classified civil service employee, including a probationary employee, who is a member of the National Guard or of any reserve component of the Armed Forces of the United States shall be entitled, while in the performance of duty or training in the service of this state or the United States, to reservist military service leave, with pay for a period of twenty-one (21) calen-

dar days in any one (1) federal fiscal year (October 1—September 30). Any unused military leave in a federal fiscal year shall be carried over to the next federal fiscal year. Any unused reservist military leave shall expire two (2) federal fiscal years after it has accrued.

(c) Reservist military service leave provided for in this section shall be in addition to regular vacation.

(Ord. No. 139-78, § 1(21-40), 6-29-78; Ord. No. 212-81, § 1, 11-24-81; Ord. No. 225-86, § 1, 10-21-86; Ord. No. 122-2007, § 1, 6-7-07; Ord. No. 59-2022, § 33, 7-5-2022)

Sec. 21-41. Regular military leave.

(a) Any classified civil service employee who is inducted or enlists in the Armed Forces of the United States shall have all such reemployment rights and benefits to which he in entitled under 38 U.S.C. section 4301 et seq. including, but not limited to, an unpaid leave of absence for which an employee may elect, but may not be required, to use vacation or sick leave; reemployment rights dependent on length of military service; benefits and rights based on seniority that an employee would have attained had he or she remained continuously employed; and any non-seniority benefits or rights that are available to employees on comparable nonmilitary leaves of absence, all subject to the terms, limitations, and requirements under applicable law.

(b) In addition to the benefits provided under subsection (a), all classified civil service employees called by the United States government for an extended period of service in the Armed Forces of the United States during a national emergency, whether volunteering for or inducted or ordered into such service, shall be given regular military service leave with pay for a period of fourteen (14) calendar days.

(Ord. No. 139-78, § 1(21-41), 6-29-78; Ord. No. 225-86, § 2, 10-21-86; Ord. No. 059-2022, § 34, 7-5-2022)

Sec. 21-42. Health and life insurance.

(a) All classified civil service employees and their dependents shall be eligible to participate in any group life insurance and dismemberment coverage approved by the urban county council.

(b) Classified civil service employees who, as part of their duties, drive urban county government vehicles or operate high-risk heavy equipment may participate in the "Employee Safety Reward Program." The director is authorized to implement the "Employee Safety Reward Program."

(Ord. No. 139-78, § 1(21-42), 6-29-78; Ord. No. 64-83, § 1, 4-21-83; Ord. No. 059-2022, § 35, 7-5-2022)

Sec. 21-42.1. - Cash awards for employee suggestions

(a) Classified civil service employees, except as specified in subsection (d), shall be eligible to compete for any cash awards, prizes and commendations that are established through the Lexington-Fayette Urban County Government Employee Suggestion Program. This program shall be administered by the mayor, and he is given authority to establish rules and regulations relating thereto.

(b) Any cash awards or prizes made by the mayor under this program shall be made upon the amount of savings that will be realized by the government from the suggestion. At any time, the availability of cash awards or prizes shall be subject either to the annual appropriation of funds, if any, by the urban county council for that purpose or private donations, if any, for that purpose.

(c) No classified civil service employee shall work on suggestions that he intends to submit to the program during on-duty hours, nor shall he seek to utilize the services of any other urban county government officer or employee for such purpose while the latter is on duty. No classified civil service employee shall be eligible for a cash award or a prize for a suggestion which is of the type which the officer or employee is expected or required to make as a part of his assigned duties and responsibilities.

(d) No classified civil service employee who is employed in the office of the mayor, the office of the chief administrative officer, the office of the urban county council, or the office of the citizens' advocate shall be eligible for a cash award or a prize but shall be eligible for a commendation. No classified civil service employee who is actively participating in the administration of the program at the time of tendering his suggestion shall be eligible in any respect to compete in the program.

(Ord. No. 180-80, § 1, 11-25-80)

Sec. 21-43. Absence without permission.

(a) No classified civil service employee shall be absent from duty except while on a duly granted leave; or upon sudden serious emergency, in which event the employee notifies his supervisor as soon as possible; or in the case of one having no accumulated leave, with permission of the supervisor under the circumstances for which such leave is authorized in this Code, but without pay therefor.

(b) If absence from duty is not either authorized by the supervisor or both occasioned by genuine emergency and reported as soon as possible, it shall be treated as absence without permission. Pay shall be deducted for the period of such absence, and it may be grounds for disciplinary action.

(Ord. No. 139-78, § 1(21-43), 6-29-78)

Cross reference(s)—Absence without permission by employees of unclassified civil service, § 22-28; absence without permission by employees of divisions of fire and emergency services and police, § 23-40.

Sec. 21-44. - Dismissal and other punishments; causes, charges, proceedings.

(a) No employee in the classified civil service after serving a probationary period of six (6) months shall be dismissed, suspended or reduced in grade or pay for any reason except inefficiency, misconduct, insubordination or violation of law involving moral turpitude.

(b) Any person may prefer charges in writing against any employee by filing them with the appointing authority, who shall communicate the charges without delay to the director and the commission. The charges must be signed by the person making them and must set out clearly each charge. The appointing authority shall,

whenever probable cause appears, prefer charges against any employee whom he believes guilty of conduct justifying his removal or disciplinary action. Upon the filing of charges, the secretary of the commission shall notify its members and serve a copy of the charges upon the accused employee, with a statement of the date, place and hour at which the hearing of charges will begin, this hearing not to be held within three (3) days of the date of the service of charges upon the accused employee. The day on which the charges are served on the accused employee shall count as one of the days of notice. The person accused may in writing waive the service of charges and demand trial within three (3) days after they have been filed with the secretary of the commission.

(c) Upon the hearing, the charges shall be considered traversed and put in issue, and the trial shall be limited to the issues presented by the written charges; however, the charges may be amended prior to trial, in which event the notice procedures hereinabove described shall be again complied with and reasonable opportunity given for the preparation for trial on the amended charges.

(d) The commission shall have the power to summon and compel attendance of witnesses at all hearings by subpoena issued by the secretary of that body and served upon the witnesses by members of the division of police or any officer authorized to serve subpoenas. If any witness fails to appear in response to a summons or refuses to testify concerning any matter on which he may lawfully be interrogated, any district court judge, on application of the commission, may compel obedience by proceedings for contempt as in the case of disobedience of a subpoena issued from the district court. The accused employee shall have the right to have subpoenaed any witnesses he may desire, upon furnishing their names to the secretary. Subpoenas may be served on the request of the accused employee without charge. They shall be issued by the secretary and served by the division of police. The action and decision of the commission on the charges shall be reduced to writing and kept in a book for that purpose, and the written charge shall be attached to the book containing the body's decision.

(e) In cases where the supervisor or the appointing authority has probable cause to believe an employee has been guilty of conduct justifying his removal or punishment, he shall immediately suspend that employee from duty or from both pay and duty pending trial; and the employee shall not be placed on duty or allowed pay thereafter until the charges are heard by the commission.

(f) The commission shall punish any employee found guilty by reprimand or a suspension for any length of time not to exceed six (6) months, or by reducing the grade, if the employee's classification warrants, or by combining any two (2) or more of these punishments, or by dismissal. No employee shall be reprimanded, removed, suspended or dismissed except as provided in this section or in section 21-45.

(Ord. No. 139-78, § 1 (21-44), 6-29-78)

Cross reference(s)—Dismissal of unclassified civil service employees, § 22-29; dismissal of fire and emergency services or division of police employees, § 23-42.

Sec. 21-45. - Suspension and reprimand; appeal.

(a) Irrespective of other sections of this Code, a classified civil service employee may be suspended or reprimanded pursuant to this section by the appointing authority or by his supervisor.

(b) No employee may be suspended hereunder for more than thirty (30) days in any twelve-month period or reprimanded hereunder more than twice in any twelve-month period.

(c) No employee shall be reprimanded or suspended hereunder for any reason except inefficiency, misconduct, insubordination or violation of law involving moral turpitude.

(d) Any action under this section shall be in writing, shall set out the grounds therefor and the nature of the reprimand or extent of suspension, and shall state that the employee may appeal to the commission by filing such appeal with the secretary to the commission in the division of human resources within ten (10) days of such action.

(e) At the time any action is taken under this section, the person taking such action shall file a copy thereof with the division of human resources for placement in the personnel file of the employee affected and shall furnish a copy to the chief administrative officer.

(f) Any employee suspended or reprimanded under this section may appeal to the commission by filing such appeal with the secretary to the commission in the division of human resources within ten (10) days of such action. The action appealed from shall not be suspended pending action of the commission.

(g) The suspension or reprimand appealed from may be reviewed, reduced or revoked by the commission after a hearing in which the person taking the disciplinary action shall have reasonable opportunity under rules established by the commission to support his charges. The commission shall have the power, in the event it finds any suspension or reprimand hereunder in error, to take such action as shall be necessary to compensate the appealing employee for such error.

(h) The director shall, by July 14, 1983, develop and implement a uniform disciplinary code for all employees, except probationary employees, and shall administer and monitor the uniform disciplinary code. After implementation, changes to the uniform disciplinary code shall be, after notice to the commission, approved by the appropriate urban county council committee.

(Ord. No. 139-78, § 1(21-45), 6-29-78; Ord. No. 121-83, § 1, 7-14-83; Ord. No. 059-2022, § 36, 7-5-2022)

Sec. 21-46. Appeal to circuit court and court of appeals.

(a) Any classified civil service employee found guilty by the commission of any charge as provided by section 21-44, or any action upheld under section 21-45, may appeal to the Fayette Circuit Court within thirty (30) days after such action becomes final; but the enforcement of the judgment of the commission shall not be suspended pending appeal.

(b) Upon request in writing by the accused and the payment of costs therefor, the secretary of the commission shall file a certified copy of the charges and the judgment of that body in the circuit court. Upon the transcript's being filed, the case shall be docketed in the circuit court and tried de novo.

(c) If the secretary fails to certify the transcript to the circuit court within five (5) days, after the request is made, the aggrieved person may file an affidavit in that court setting out as fully as possible the charges made at the time of trial and judgment, together with a statement that demand for the transcript has been made of the secretary more than five (5) days prior to the filing of the affidavit. Upon the filing of this affidavit in the circuit court, the case shall be docketed in that court; and the court may compel the filing of the transcript by the secretary by entering proper mandatory order; and upon failure of the secretary to do so, he shall be liable to fine and imprisonment for contempt. Such appeal shall have precedence over other business and be determined speedily.

(d) An appeal will lie from the judgment of the circuit court to the court of appeals as in other cases if the original punishment fixed by the commission was dismissal of the accused. An appeal will also lie from the judgment of a circuit court in any controversy arising under KRS 67A.290 or any other section of the statutes relating to civil service for urban county governments.

(Ord. No. 139-78, § 1(21-46), 6-29-78)

Sec. 21-47. Continuity of service requirements.

(a) Except as applied to sections 21-10(b), 21-18 and 21-20, service credit required for the purposes of this article shall mean continuous service in the employment of the urban county government or the governments of the City of Lexington or County of Fayette immediately prior to merger, without break or interruption. However, absence on authorized leave of absence with pay, absence authorized to compensate for overtime work, and absence on authorized leave of absence without pay for periods not in excess of thirty (30) calendar days shall not affect the continuity of service. All periods of absence without leave and leave without pay for periods in excess of thirty (30) calendar days shall be deducted in computing total service credit.

(b) All service credit shall be extinguished upon dismissal or upon acceptance of resignation. As provided in section 21-23, service credit shall not be restored upon reinstatement.

(Ord. No. 139-78, § 1(21-47), 6-29-78)

Cross reference(s)—Continuity of service requirement for unclassified civil service employees, § 22-30; continuity of service requirement for members of the division of fire and emergency services or division of police, § 23-46.

Sec. 21-48. Employee performance evaluation.

(a) The director shall establish a criterion for the supervisor's use in measuring, reporting and recording the job performance of all classified civil service employees, including those on probationary status.

(b) Job performance evaluations shall be used for determinations made regarding salary increases, permanent appointments, transfers, disciplinary actions and, in the case of equal seniority, the order of layoff.

(c) In preparing job performance evaluations, supervisors shall discuss evaluations with their employees. Employees shall be given a copy of the completed evaluation.

(d) Employees may appeal decisions made with respect to their job performance evaluation through the grievance procedure outlined in section 21-49.

(Ord. No. 139-78, § 1(21-48), 6-29-78)

Cross reference(s)—Employee performance evaluation for unclassified civil service employees, § 22-31; employee performance evaluation for members of the division of fire and emergency services and division of police, § 23-47.

Sec. 21-49. Grievance procedure.

(a) If, at any time, any classified civil service employee considers himself aggrieved (hereinafter "aggrieved employee") by another urban county government employee's alleged abuse of discretion in his treatment of the former (hereinafter "accused employee"), the aggrieved employee may seek to rectify the situation through the following grievance procedure:

(1) The aggrieved employee shall orally discuss his grievance with the accused employee or with the employee designated by his supervisor to handle grievances within ten (10) working days of the event or occurrence giving rise to the grievance. Every effort shall be made to reach a satisfactory settlement by informal adjustment. If the grievance is not settled in the initial discussion, the aggrieved employee may in writing, on the form designated by the chief administrative officer, formally present the grievance to the accused employee within five (5) working days after receiving the accused employee's oral answer. The written grievance shall set forth the nature of the alleged wrong, the date of the occurrence and the remedy sought. An employee who is presented with a written grievance shall give his written answer to the aggrieved employee within five (5) working days after receiving the grievance. If the grievance is not resolved at this stage, a copy of the grievance may be referred by the aggrieved employee in writing within five (5) working days after receipt of the accused employee's answer to his supervisor.

(2) Upon receipt of the written grievance, the supervisor shall notify his own supervisor of the grievance. The aggrieved employee's supervisor or his designated representative shall discuss the grievance with the aggrieved employee within ten (10) working days after receiving the appeal. If no settlement is reached at this meeting, the supervisor or his designated representative shall give a written answer to the employee within ten (10) working days following the meeting; however, this answer shall receive the prior written approval of his own supervisor. If the grievance is not settled at this stage of the proceedings, the aggrieved employee may refer the written grievance to the chief administrative officer within ten (10) working days after receipt of the answer from the supervisor or his designated representative.

(3) The chief administrative officer or his designated representative shall discuss the grievance with the aggrieved employee within ten (10) calendar days after receiving the appeal at a time and place designated by the chief administrative officer or his representative. The chief administrative officer's decision is final and shall be placed in writing within five (5) working days from the date of the meeting. A copy shall be sent to both the aggrieved and accused employees and the appropriate supervisors. If the accused employee is found to have abused his discretion, appropriate action will be taken to correct the error.

(b) The provisions of this section shall apply to all classified civil service employees below the level of division director. However, probationary employees shall have the right to appeal any grievances only through the second stage of this procedure; an in no case shall they have the right of appeal to the chief administrative officer.

(c) If at any time in this procedure the time limit imposed on the appropriate employee or supervisor is exceeded, the aggrieved employee may automatically appeal to the next level.

(d) Disputes concerning matters vested in the director and the commission by KRS 67A.210 et seq. and section 21-3 shall not be heard through the grievance procedure described herein. Employees may first consult the director and, if not satisfied, the commission concerning those matters.

(Ord. No. 139-78, § 1(21-49), 6-29-78)

Cross reference(s)—Grievances procedure for unclassified civil service employees, § 22-32; grievance procedure for employees of divisions of fire and emergency services and police, § 23-48.

Sec. 21-50. Secretary of the civil service commission.

The director shall recommend a secretary within his division to serve as secretary to the commission, subject to the commission's approval.

(Ord. No. 139-78, § 1(21-50), 6-29-78)

Sec. 21-51. Political activity.

(1) No person shall be appointed to any position because of political, partisan service rendered by him or his family, or because of political sentiment or affiliation; nor shall any person be dismissed, suspended or reduced in grade or pay because of any political opinion.

(2) The appointment and continuance of employment of all persons shall depend solely upon their ability and willingness to perform their duties and shall not be a reward for political activity or contribution to campaign funds.

(3) No employee shall be forced to pay or collect any assessments made by political organizations, contributions to political campaign funds, or be active in politics.

(4) No employee shall be active in politics or work for the election of candidates while on duty.

(Ord. No. 139-78, § 1(21-51), 6-9-78; Ord. No. 98-84, § 5, 6-28-84)

Cross reference(s)—Political and other activities by members of divisions of fire and emergency services and police, § 23-49.

Sec. 21-52. Drug free workplace policy.

(a) It is the policy of the urban county government to maintain an alcohol and drug free workplace. This policy provides for drug and alcohol screening of certain employees to protect employees and the general public from injury and damage caused by the actions of employees impaired by drugs or alcohol.

(b) The alcohol and drug free workplace policy, as it exists on May 16, 1996, is hereby adopted and incorporated herein by reference, as the instrument by which the above policy shall be implemented, monitored and enforced. True copies of said alcohol and drug free workplace policy, including any amendments, shall be lodged in the office of the clerk of the urban county council and in the division of human resources for inspection by the public.

(c) Current classified civil service employees shall receive a copy of the alcohol and drug free workplace policy as soon as the policy is implemented. New employees shall receive a copy upon employment.

(Ord. No. 212-94, § 1, 10-20-94; Ord. No. 269-95, § 2, 11-30-95; Ord. No. 89-96, § 2, 5-30-96; Ord. No. 59-2022, § 37, 7-5-2022)

Cross reference(s)—Drug free workplace policy for unclassified civil services employees, § 22-34; drug free workplace policy for fire and emergency services employees, § 23-50.

Sec. 21-53. Special duty assignments.

(a) The Director of the Division of Community Corrections shall have the authority to make special duty assignments.

(b) Those employees appointed to a special duty assignment shall serve at the pleasure of the Director of Community Corrections and shall receive a bi-weekly stipend in an amount set by the urban county council.

(c) Any employee in the Division of Community Corrections who accepts a special duty assignment shall be deemed to have received a leave of absence from his permanent rank for and during the incumbency of any special duty assignment. If an individual should cease to serve in a special duty assignment there shall be restored to him the same, rank and pay grade which he held prior to his appointment.

(Ord. No. 5-2009, § 4, 1-22-09)

Chapter 22

Unclassified Civic Service[1]

Article I. In General

Section 22-1. Definitions.
Section 22-2. Adoption and amendment of the plan.
Section 22-3. Administration and maintenance of plan.
Section 22-4. Reserved.
Section 22-5. Reserved.
Section 22-6. Employee qualifications.
Section 22-7. Employee duties; job descriptions.
Section 22-8. Recruitment.
Section 22-9. Applications.
Section 22-10. Examinations.
Section 22-11. Eligibility lists.
Section 22-12. Requisition and certification.
Section 22-13. Appointments.
Section 22-14. Temporary appointments to the classified civil service.
Section 22-15. Acting assignments to the classified civil service.
Section 22-16. Transfers.
Section 22-17. Hours of work.
Section 22-18. Layoff.
Section 22-19. Resignation.
Section 22-20. Reinstatement.
Section 22-21. In-service training.
Section 22-22. Reserved.
Section 22-23. Entrance rates.
Section 22-24. Computation of salaries.
Section 22-25. Overtime.
Section 22-26. Within-grade salary increases.
Section 22-27. Reclassification or reallocation.
Section 22-28. Absence without permission.
Section 22-29. Dismissal.
Section 22-30. Continuity of service requirements.

1. **Editor's note(s)—**Chapter 22, §§ 22-1—22-58, is derived from §§ 1 and 4 of Ord. No. 230-83, adopted Nov. 22, 1983, effective Nov. 28, 1983.

Section 22-31. Employee performance evaluation.
Section 22-32. Grievance procedure.
Section 22-33. Reserved.
Section 22-34. Drug free workplace policy.
Sections 22-35—22-39. Reserved.

Article II. Officers

Section 22-40. Office of the mayor—Mayor.
Section 22-41. Same—Chief administrative officer.
Section 22-42. Same—Staff.
Section 22-43. Office of urban county council—Council members and vice-mayor.
Section 22-44. Same—Citizens' advocate.
Section 22-45. Same—Other staff.
Section 22-46. Department commissioners.
Section 22-47. Alcoholic beverage control administrator.
Section 22-48. Friend of the court.
Section 22-49. Juvenile division of district court.
Section 22-50. Adult probation and court services.
Section 22-51. Office of the coroner.
Section 22-52. County judge executive and fiscal court commissioners.
Section 22-52.1. Constables.
Section 22-53. Police academy.
Section 22-53.1. Police academy examination for appointment.
Section 22-53.2. Traffic school guards.
Section 22-54. County board of elections.
Section 22-55. Secretary to board of trustees of police and fire fighters pension fund.
Section 22-55.1. Local constitutional officers.

Article III. Temporary, Part-Time and Seasonal Positions

Section 22-56. Temporary positions.
Section 22-57. Part-Time positions.
Section 22-58. Seasonal positions.
Section 22-59. Benefits.

Article I

In General

Sec. 22-1. Definitions.

In this chapter, unless the context requires otherwise:

Appointing authority means the person or persons having the power to make or recommend appointments as specified in articles II and III, but does not include any ratifying authority entitled to approve or disapprove appointments.

Authorized strength means the list of positions that have been approved by the Urban County Council.

Classification or **class** means a group of one (1) or more positions sufficiently similar that the same descriptive title may be used with clarity to designate each position allocated to the classification. Positions are grouped into classifications in regard to:

a. Duties performed and responsibilities;

b. Minimum qualification requirements of education, experience, licenses, and certifications;

c. Tests of knowledge, skills and abilities used to recruit employees;

d. Pay grades;

e. Job title.

Director means the director of human resources.

Executive unit means a division, department or office of the urban county government, as the context of the ordinance indicates.

First day of the fiscal year, for purposes of salary and benefit matters, unless the context dictates otherwise, shall mean the first day of the pay period for which pay is received on or after July 1 of the new fiscal year.

Qualified adult means a person of the same or opposite sex who meets the following criteria;

a. Age eighteen (18) or older;

b. Not related to the employee;

c. Resides with employee for a least twelve (12) months prior to applying for the use of sick leave or bereavement leave as set forth in this chapter;

d. Unmarried; and

e. Financially interdependent with the employee for at least twelve (12) months, and shall certify by affidavit signed by the qualified adult and the employee that at least two (2) of the following conditions have been met in the last twelve months (one (1) from e.i-e.v and one (1) from e.vi-e.ix):

i. Joint ownership of real estate property or joint tenancy on a residential lease;

ii. Joint ownership of an automobile;

iii. Joint bank or credit account;

iv. Joint liabilities;

v. Joint utility account;

vi. Will designating the eligible qualified adult as primary beneficiary;

vii. Retirement plan or life insurance policy beneficiary destination form designating the eligible Qualified Adult as primary beneficiary;

viii. Durable power of attorney signed to the effect that the employee and eligible Qualified Adult have granted powers to one another; and

ix. Adoption papers or legal guardianship identifying the employee and Qualified Adult as the joint adopting individuals or joint legal guardians.

Supervisor means the director of the division to which a position is assigned; or, in the case of a position not assigned to a division but to a department, the commissioner of the department; or, in the case of a position in the office of the chief administrative officer, the chief administrative officer; or, in the case of a position in the office of the mayor, the mayor.

When a position is not directly under a division director, a department commissioner, the chief administrative officer, or the mayor, the supervisor is the urban county government officer or employee responsible for assigning the duties and overseeing the performance of them.

Unified Pay Plan means classifications within pay grades in the 500 series.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 116-96, § 14, 6-27-96; Ord. No.060-2022, § 1, 7-5-22)

Cross reference(s)—Definitions for classified civil service, § 21-1; definitions regarding employees of division of fire and emergency services and division of police, § 23-1.

Sec. 22-2. Adoption and amendment of the plan.

(a) All positions in the urban county government, except those within the classified civil service provided for inchapter 21 and those within the division of police and division of fire and emergency services provided for in chapter 23, shall be covered by this chapter and shall be grouped into classifications as defined in 22-1.

(b) Except as otherwise provided by law, the urban county council shall fix, by ordinance, the number and classification of the positions covered by this chapter and the salaries for each classification.

(c) All subsequent additions, revisions or amendments affecting this chapter shall be made by ordinance.

(d) The director shall, under the direction of the chief administrative officer, periodically review the positions covered by this chapter and recommend to the urban county council the reallocation of positions from one pay grade to another pay grade or reclassification from one class to another class when it is determined that the classification and/or pay grade is no longer consistent with the actual work performed.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 2, 7-5-22)

Charter reference(s)—Division of personnel under office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Adoption and amendment of classified civil service plan, § 21-2; adoption and amendment of division of fire and emergency services and police division classification plan, § 23-2.

Sec. 22-3. Administration and maintenance of plan.

(a) The director shall administer all ordinances and regulations pertaining to the employment and compensation of persons covered by this chapter. The director shall be responsible for the administration of all personnel programs relating thereto.

(b) This chapter shall be construed in conformity with 29 U.S.C. sections 201—219. The director shall make reasonable and necessary rules and regulations to ensure that 29 U.S.C. sections 201—219 and regulations adopted thereunder are properly applied.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 231-93, § 2, 12-9-93; Ord. No.060-2022, § 3, 7-5-22)

Charter reference(s)—Office of administrative services, § 6.04; unclassified service, § 9.06.

Cross reference(s)—Administration and maintenance of civil service plan, § 21-3; administration and maintenance of plan for employees of division of fire and emergency services and police division, § 23-3.

Sec. 22-4. Reserved.

Editor's note(s)—Ord. No. 120-2014, § 3, adopted Sept. 25, 2014, repealed § 22-4, which pertained to classification categories and derived from Ord. No. 230-83, § 1, adopted Nov. 22, 1983.

Sec. 22-5. Reserved.

Editor's note(s)—Ord. No. 120-2014, § 3, adopted Sept. 25, 2014, repealed § 22-5, which pertained to positions. For a complete history of former § 22-5 see the Code Comparative Table.

Sec. 22-6. Employee qualifications.

(a) In addition to the qualifications for each class established by the respective appointing authority, except as provided in subsection (c) of this section or otherwise provided by law, it shall be understood that to be eligible for appointment to a position provided for in article III, an applicant must:

(1) Be not less than eighteen (18) years of age;

(2) Be able to understand the English language and follow instructions, provided that ability to read and/or write shall be required only where it is a bona fide occupational requirement;

(3) Have, in the case of positions involving the operation of a motor vehicle, a driver's license, or for those positions which require it, a commercial driver's license (CDL); and

(4) Pass the required medical examination as specified by the director if being appointed to a position requiring a medical examination.

(b) There shall be no residency requirements for appointment to a position provided for in Article III provided that all such appointees shall reside in such proximity to Fayette County as to be able to respond for on-call or emergency duty within a reasonable time.

(c) (1) As used in this subsection:

Central criminal records file check means a check of criminal records pursuant to KRS 17.160 or any other applicable Kentucky Revised Statutes or Kentucky Administrative Regulations.

Child means any person under the age of eighteen (18) years.

Sex crime means a criminal conviction for a violation or attempted violation of Kentucky Revised Statutes Chapters 510, 529, 530, 531 and any other applicable chapters or Kentucky Administrative Regulations. Conviction for a violation or an attempted violation of an offense committed outside Kentucky is a sex crime if such offense would have been a crime as defined in Kentucky statutes or regulations.

(2) All applicants for appointment to an unclassified civil service position which would be required to exercise supervisory or disciplinary control over children as a condition of employment shall submit to a central criminal records file check for prior sex crime convictions. Any prospective employee who has a prior sex crime conviction shall not be hired by the urban county government in any capacity which would place the prospective employee in a position of supervisory or disciplinary control over children.

(3) The director shall be responsible for administering the records check program.

(d) In addition to the qualifications for each class as set forth in the job descriptions, it shall be understood that to be eligible for initial appointment to the police academy, an applicant must satisfy all of the following requirements:

(1) Be able to read, write and understand the English language and follow instructions.

(2) Be a person of sobriety and integrity and is and has been an orderly, law abiding citizen.

(3) Be a citizen of the United States.

(4) Never have been convicted of a crime involving moral turpitude.

(5) Must not have within a period of two (2) years hired himself out, performed any service, or received any compensation from any private source for acting, as a privately paid detective, policeman, guard, peace officer or otherwise as an active participant in any labor dispute, or conducted the business of a private detective agency or of any agency supplying private detectives, private policemen or private guards, or advertised or solicited any such business in connection with any labor dispute.

(6) Be at least twenty-one (21) years of age and shall not have reached their forty-first birthday by the application filing deadline date.

(7) Have a driver's license, or for those positions which require it, a commercial driver's license (CDL).

(8) Be a graduate of an accredited high school or have been awarded a governmental educational diploma.

(9) Not have been, in the twelve (12) months preceding application, suspended for cause, or dismissed or forced to resign from any previous employment for cause. The director shall establish reasonable rules necessary to implement this subsection.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 238-85, § 2, 11-12-85; Ord. No. 97-96, § 4, 6-13-96; Ord. No. 93-2009, § 2, 6-11-09; Ord. No. 60-2022, § 4, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Central criminal records file check required, § 14-57.1; employee qualifications in the classified civil service system, § 21-6; division of fire and emergency services and police division qualifications, § 23-6.

Sec. 22-7. Employee duties; job descriptions.

(a) Subject only to any specific assignments of duties made by law or ordinance, and limitations of law, supervisors shall prescribe and assign the duties for all unclassified civil service positions within their respective executive unit in such manner as they shall deem necessary or advisable for the efficient, orderly and economical administration of the affairs of the urban county government.

(b) If requested by the respective appointing authority, the director shall prescribe and propound job descriptions which reasonably establish minimum qualifications and standards for eligibility within each class. The statement of qualifications in any job description is intended to be a guide for determining the eligibility of candidates.

(c) Based on the duties assigned to each position under subsection (a) herein, the job descriptions shall contain examples of the duties persons holding such positions may properly be required to perform. Such examples are descriptive and explanatory but are not restrictive. The listing of particular duties does not preclude the assignment of other tasks.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 5, 7-5-22)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Duties and job description of classified civil service employees, § 21-7; duties and job description of employees of division of fire and emergency services and division of police, § 23-7.

Sec. 22-8. Recruitment.

Except as otherwise provided by law, the respective appointing authority shall determine the specific recruiting methods to be used in filling any vacancy in a position covered by this chapter. If requested by the respective appointing authority, the director shall provide assistance in recruiting applicants for any vacant position.

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Recruitment of classified civil service employees, § 21-8; recruitment of employees of division of fire and emergency services and division of police, § 23-10.

Sec. 22-9. Applications.

All persons holding positions provided for in article III shall complete an official urban county government application form and submit it to the division of human resources.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 6, 7-5-22)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Applications for members of classified civil service system, § 21-9; applications for employees of division of fire and emergency services and division of police, § 23-11.

Sec. 22-10. Examinations.

Except as otherwise provided by law, the respective appointing authority shall determine whether an examination is to be used in filling any vacancy in a position covered by this chapter. If requested by the appointing authority,

the director shall provide assistance in examining applicants for any vacant position. Members of examination or evaluation boards who are not urban county government officers or employees and who have been approved as raters by the director, shall be compensated at the rate of forty dollars ($40.00) for each day of service as a rater.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 90-95, § 2, 5-4-95)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Examinations for classified civil service employees, § 21-10; examinations for employees of division of fire and emergency services and division of police, § 23-12.

Sec. 22-11. Eligibility lists.

If the respective appointing authority has requested the director to examine applicants for any vacant position, the director shall, as soon after examination as is practicable; certify to the appointing authority a list of the applicants so examined with the one having the highest average ranked first, and all others ranked numerically according to the results of the examination. However, except as otherwise provided by law, the appointing authority shall not be required to make the appointment in any particular order from this list and may even choose to appoint a person not on the list.

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Eligibility lists for employees in classified civil service, § 21-12; eligibility lists for employees of division of fire and emergency services and division of police, § 23-14.

Sec. 22-12. Requisition and certification.

Whenever the respective appointing authority determines to utilize the services of the division of human resources in filling any position covered by this chapter, he shall notify the director as far in advance as possible. The director shall prescribe a form to be used for this purpose.

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Requisition and certification of classified civil serve employees, § 21-13; requisition and certification of employees of division of fire and emergency services and division of police, § 23-15.

Sec. 22-13. Appointments.

The appointing authorities set forth in articles II and III shall make or recommend all appointments to positions covered by this chapter. The division of human resources is authorized to make conditional offers, as requested by the appointing authorities, and shall submit a report of all appointments made to the unclassified civil service to the urban county council within thirty (30) days after the appointment is made. No employee appointed to a

position requiring a physical examination or medical examination, as specified by the director, shall begin work until he or she has passed the required physical examination or medical examination. No employee shall be subject to a physical examination or medical examination until after a conditional offer has been made and accepted. If an employee successfully passes his or her physical examination or medical examination, he or she may begin his or her probationary period.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 227-2010, § 2, 12-9-10; Ord. No.090-2021, § 2, 9-16-21)

Cross reference(s)—Appointments of classified civil service employees, § 21-14; appointment of employees of division of fire and emergency services and division of police, § 23-16.

Sec. 22-14. Temporary appointments to the classified civil service.

Except as otherwise provided by law, persons holding positions covered by this chapter may be temporarily appointed to positions in the urban county government which are included within the classified civil service. Salary provisions shall be the same as in section 21-15(a).

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Temporary appointments in classified civil service, § 21-15.

Sec. 22-15. Acting assignments to the classified civil service.

Except as otherwise provided by law, persons holding positions covered by this chapter may be assigned in an acting capacity to positions in the urban county government which are included within the classified civil service. Salary provisions shall be the same as in section 21-16(b).

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Acting assignments in classified civil service system, § 21-16.

Sec. 22-16. Transfers.

Except as otherwise provided by law, the respective appointing authorities may approve interdepartmental or intradepartmental transfers of individuals between any positions covered by this chapter. The appointing authorities shall notify the division of human resources of any such transfer, and the same must be ratified by the urban county council in any case where council ratification is required for an initial appointment.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 60-2022, § 7, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Transfers within classified civil service system, § 21-17.

Sec. 22-17. Hours of work.

Forty (40) hours of work per week shall constitute a full-time workweek for all positions covered by this chapter.

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Hours of classified civil service employees, § 21-19; hours of work of employees of division of fire and emergency services and division of police, § 23-23.

Sec. 22-18. Layoff.

(a) Except as otherwise provided by law, the urban county council shall, in the exercise of reasonable discretion, have the authority to abolish any position covered by this chapter when economic necessity requires it or there is no longer a need for a particular position to exist. Any person occupying said position shall be laid off.

(b) When there is to be a layoff in a designated class within an executive unit, the termination shall be in the following order of succession:

1. Section 22-58 seasonal positions;
2. Section 22-57 part-time positions;
3. Section 22-56 temporary positions.

(c) Any reduction in the number of positions provided for in Article III, within any executive unit, shall be made in the reverse order of the seniority of the incumbents, computed the same as under section 21-11(b). In case of equal service, regular employees in the class involved shall be laid off in order of the lowest average performance rating for the last two (2) years of service.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 102-85, § 12, 5-30-85; Ord. No.060-2022, § 8, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Layoff of classified civil service employees, § 21-20; layoff of employees of division of fire and emergency services and division of police, § 23-24.

Sec. 22-19. Resignation.

(a) Except as otherwise provided by law, in order to resign in good standing, written notice of resignation shall be submitted at least fourteen (14) days in advance to the respective appointing authority. The advance notice requirement for resignation in good standing may, for good cause shown, be waived by the appointing authority. Except as otherwise provided by law, all seniority, service credit, and employment rights and duties shall be extinguished upon the appointing authority's acceptance of a resignation.

(b) The director shall make all resignation notices as well as the date, and if applicable, circumstances of their acceptance by the appointing authority, a part of the individual's personnel file.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 9, 7-5-22)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Resignation of employees in classified civil service, § 21-22; resignation of employees of division of fire and emergency services and division of police, § 23-25.

Sec. 22-20. Reinstatement.

(a) Except as otherwise provided by law, any individual who separates from a position shall be eligible for reinstatement to the former position or another position in the same classification for a period of one (1) calendar year following the date of separation.

(b) Any individual may be reinstated to his former position only upon completion of the following requirements:

(1) A written request for reinstatement is made by the individual to the appointing authority within one (1) calendar year from the date of separation from service;

(2) The individual received at least a rating of two (2) on his last job performance evaluation prior to separation from service, if any was performed;

(3) The director of human resources determines that the individual meets the current requirements for the position, if any; and

(4) The appointing authority approves the individual's reinstatement. The recommendation of the individual's former supervisor shall be submitted for consideration by the appointing authority.

(c) Any individual may be reinstated in accord with the requirements contained in subsection (b) only if a vacancy exists in his former position or in another position in the same classification.

(d) The rate of pay for an individual upon reinstatement shall be set at the current pay grade assigned to his former position at the same salary as the individual received when he separated from service, provided, however, that he shall not receive a salary lower than the minimum for the grade salary range.

(e) Prior service time shall not be counted for purposes of determining a reinstated individual's seniority or entitlement to vacation leave, sick leave or longevity pay.

(f) Nothing in this section shall prohibit an appointing authority from appointing or recommending the appointment of an individual to a position he formerly held, under the procedures established by law for a new appointment.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 116-96, § 16, 6-27-96; Ord. No.060-2022, § 10, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Reinstatement of classified civil service employees, § 21-23; reinstatement of employees of division of fire and emergency services and division of police, § 23-26.

Sec. 22-21. In-service training.

Notwithstanding the fact that all officers and employees must be fully capable of performing the duties prescribed for their classification, supervisors may, in conjunction with the division of human resources and subject to budgetary limitation, develop and conduct training programs designed to improve the quality of service rendered by the urban county government.

(Ord. No. 230-83, § 1, 11-22-83)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—In-service training for classified civil service employees, § 21-24; in-service training for employees of division of fire and emergency services and division of police, § 23-27.

Sec. 22-22. Reserved.

Editor's note(s)—Ord. No. 120-2014, § 3, adopted Sept. 25, 2014, repealed § 22-22, which pertained to salary schedules. For a complete history of former § 22-22 see the Code Comparative Table.

Sec. 22-23. Entrance rates.

(a) The rate of pay for an employee with no equivalent and relevant verified qualifications beyond the minimum requirements shall be the entry rate of pay of the grade salary range specified for his class. The appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate when it is found to be difficult to recruit qualified persons at the recommended rate of pay or in recognition of the experience or exceptional qualifications of a candidate.

(b) For those positions covered by this chapter which are not assigned to a grade, the compensation shall be as provided by ordinance.

(c) The rate of pay for new employees who qualifications can be verified, may be placed in the rage according to their qualifications.

(d) The appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate when it is found to be difficult to recruit qualified persons at the recommended rate of pay or in recognition of the experience or exceptional qualifications of a candidate.

(e) Before a salary offer is made, the division of human resources shall consider the current salaries and length of service in the same job class of the incumbents within the same division.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 116-96, § 18, 6-27-96; Ord. No. 305-99, § 3, 11-4-99; Ord. No. 117-2014, § 9, 9-25-14; Ord. No. 60-2022, § 11, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Entrance rates for employees in classified civil service, § 21-26; entrance rates for employees of division of fire and emergency services and division of police, § 23-29.

Sec. 22-24. Computation of salaries.

(a) The compensation rates established by ordinance for full-time positions are fixed on the basis of full-time service as defined in section 22-17. In any case listed below, the salary prescribed for full-time employment shall be adjusted by multiplying same by a fraction of the hours actually worked during the pay period as the numerator and the regular number of hours required for full-time employment as the denominator:

(1) Where there is absence from duty without permission within the meaning of section 22-28.

(2) Where the inception or termination of employment occurs during the pay period.

(3) Where there is authorized leave without pay.

(b) Any unclassified civil service employee in a classification which receives a salary supplement pursuant to section 21-27(d) of the Code shall receive the same salary supplement under the same terms and conditions.

(c) Any full-time non-sworn unclassified civil service employee who meets the criteria set forth in section 21-27(f) of the Code shall receive the same salary supplement under the same terms and conditions. This subsection shall also apply to deputies in the Office of the Coroner.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 190-2000, § 2, 6-29-00; Ord. No. 195-2000, § 2, 6-29-00; Ord. No. 82-2003, § 2, 4-24-03; Ord. No. 135-2014, § 1, 11-13-14; Ord. No. 060-2022, § 12, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Computation of salaries of employees in classified civil service, § 21-27; computation of salaries of employees of division of fire and emergency services and division of police, § 23-30.

Sec. 22-25. Overtime.

(a) As used in this section:

(1) Employee is any unclassified civil service employee, but shall not include any individual employed in Fair Labor Standards Act (FLSA) exempt position.

(2) Work week is the period of time beginning at 12:00 a.m. each Monday and ending at 11:59 p.m. each Sunday.

(b) Any supervisor may, with approval of his supervisor, direct any unclassified civil service employee to work reasonable hours in addition to the normal work schedule when essential to meet operating needs.

(c) Any employee who is not exempted by subsection (a)(1) and who is employed for a workweek longer than forty (40) hours shall receive compensation for this employment in excess of forty (40) hours in a workweek at a rate of one and one-half (1½) times the hourly wage at which he is employed. Each individual workweek shall serve as the standard for determining entitlement to overtime compensation and, accordingly, averaging of hours over a two (2) workweek payroll period shall not be permitted.

(d) Overtime compensation shall only be paid for more than forty (40) hours actually worked within a workweek. Accordingly, no employee shall be paid overtime compensation solely for working in excess of eight (8) hours per day or for work on Saturdays, Sundays, holidays or regular days of rest; and time spent on vacation leave, sick leave, bereavement, leave of absence, holiday leave, disability leave, military leave or any other approved leave shall be excluded in computing entitlement to overtime compensation under this section.

(e) Where an employee in a single workweek works at two (2) or more different types of urban county government work for which different non-overtime rates of pay have been established, his hourly rate for that week is the weighted average of such rates. That is, his total earnings are computed to include his compensation during the workweek from all such rates, and are then divided by the total number of hours worked at all jobs.

(f) At the time that the payroll report is submitted to the division of accounting, the supervisor shall submit to the chief administrative officer a report stating which employees worked overtime and the necessity therefor. No individual exempted by subsection (a)(1) shall receive overtime compensation.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 13, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Overtime for classified civil service employees, § 21-28; overtime for employees of division of fire and emergency services and division of police, § 23-31.

Sec. 22-26. Within-grade salary increases.

(a) On the first day of each fiscal year, all employees with a satisfactory score on their performance evaluation shall be eligible for a salary increase provided funds are appropriated in the budget. A satisfactory score shall be a score of two (2.0) or above.

(b) When an individual enters a class at the maximum amount of the grade salary range or when he reaches the maximum for his classification, no salary advancements shall be made.

(c) Notwithstanding anything to the contrary in this section, all employees in the unified pay plan, who receive a satisfactory score of two (2) or above on their performance evaluation shall receive a one (1) percent increase in pay, not to exceed the maximum amount of the pay grade or salary. In the event there are insufficient funds to provide this increase, all employees shall receive an amount equal to the "structure" percentage change in the World at Work Index, provided, however, that if sufficient funds are not available for this increase, the urban county council shall, by ordinance, establish a substitute percentage increase. It is the intent of this section that employee salaries shall have first priority in the budget process except for any debt obligations.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 116-96, § 19, 6-27-96; Ord. No. 75-99, § 2, 4-15-99; Ord. No. 203-2000, § 7, 6-29-00; Ord. No. 160-2002, § 8, 6-27-02; Ord. No. 231-2003, § 2, 9-25-03; Ord. No. 166-2007, § 5, 7-5-07; Ord. No. 180-2008, § 5, 7-8-08; Ord. No. 141-2009, § 5, 7-7-09; Ord. No. 060-2022, § 14, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Within-grade salary step increases for classified civil service employees, § 21-29; within-grade salary step increases for employees of division of fire and emergency services and division of police, § 23-32.

Sec. 22-27. Reclassification or reallocation.

For those positions covered by this chapter which are assigned a grade:

(a) An employee whose pay grade is changed to a higher grade through a reclassification or reallocation of his position shall have his salary placed at the point in the higher grade salary range that will provide a total increase of seven (7) percent if the reclassification or reallocation is to a grade one (1) grade higher than that existing prior to the reclassification or reallocation, an additional three (3) percent if the reclassification or reallocation is to a grade two (2) grades higher and two (2) percent for each additional grade thereafter; provided, however, the appointing authority may recommend and the urban county council may approve a rate of pay above the recommended rate of pay in recognition of market demands or in recognition of the experience or exceptional qualifications of the employee. In no case, however, shall the employee receive a salary lower than the entrance rate of pay for the grade salary range.

(b) An employee whose pay grade is changed to a lower grade through a reclassification or reallocation shall retain his salary at the higher level. All employees receiving a salary above the maximum rate prescribed for the class to which their position was reclassified or reallocated shall continue to receive such pay without further increase so long as their positions remain in a class having a rate below the rate being paid the employee.

(c) An employee shall be eligible for a salary increase or a cost of living adjustment in the position to which he has been reclassified or reallocated on the first day of the fiscal year after the reclassification or reallocation.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 214-86, § 12, 10-7-86; Ord. No. 116-96, § 20, 6-27-96; Ord. No. 60-98, § 5, 3-5-98; Ord. No. 117-2014, § 10, 9-25-14; Ord. No. 060-2022, § 15, 7-5-22)

Editor's note(s)—Ord. No. 117-2014, § 10, adopted Sept. 25, 2014, changed the title of § 22-27 from "Salary adjustment on change of classification plan" to read as set out herein.

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Salary adjustment for classified civil service employees, § 21-30; salary adjustment for employees of division of fire and emergency services and division of police, § 23-33.

Sec. 22-28. Absence without permission.

(a) No individual holding a position covered by this chapter, except an elected official, shall be absent from duty except while on duly granted leave; or upon sudden serious emergency, in which event the employee shall notify his supervisor as soon as possible, or in the case of one having no accumulated leave, with permission of the supervisor under the circumstances for which such leave is authorized in this Code of Ordinances, but without pay therefor.

(b) If absence from duty is not either authorized by the supervisor or both occasioned by genuine emergency and reported as soon as possible, it shall be treated as absence without permission. Except as otherwise provided by law, pay shall be deducted for the period of such absence.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 16, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Absence without permission by classified civil service employees, § 21-43; absence without permission by employees of division of fire and emergency services and division of police, § 23-40.

Sec. 22-29. Dismissal.

Except as otherwise provided by law, any individual holding a position covered by this chapter shall serve at the pleasure of the respective appointing authority and may be dismissed at any time.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 17, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Dismissal of classified civil service employees, § 21-44; dismissal of employees of division of fire and emergency services and division of police, § 23-42.

Sec. 22-30. Continuity of service requirements.

(a) Except as applied to section 22-18, service credit required for the purposes of this chapter shall mean continuous service in the employment of the urban county government; or the governments of the City of Lexington or County of Fayette immediately prior to merger, without break or interruption. However, absence on authorized leave of absence with pay, absence authorized to compensate for overtime work, and absence on authorized leave of absence without pay for periods not in excess of thirty (30) calendar days shall not affect the continuity of service. All periods of absence without leave, disability leave, and leave without pay for periods in excess of thirty (30) calendar days shall be deducted in computing total service credit.

(b) All service credit shall be extinguished upon dismissal or upon acceptance of resignation. As provided in section 22-20, service credit shall not be restored upon reinstatement.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 18, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Continuity of service requirements for classified civil service employees, § 21-47; continuity of service requirements for employees of division of fire and emergency services and division of police § 23-46.

Sec. 22-31. Employee performance evaluation.

For those positions covered by this chapter in the unified pay plan:

(a) The director shall establish criteria for the supervisor's use in measuring, reporting and recording the job performance of individuals holding such positions.

(b) Job performance evaluations shall be used for determinations made regarding salary increases, transfers, and, in the case of equal seniority, the order of layoff.

(c) In preparing job performance evaluations, supervisors shall discuss evaluations with the person being evaluated. Individuals shall be given a copy of the completed evaluation.

(d) Individuals may appeal decisions made with respect to their job performance evaluation through the grievance procedure outlined in section 22-32. (Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 19, 7-5-22)

Charter reference(s)—Office of administrative services, § 6.04; unclassified civil service, § 9.06.

Cross reference(s)—Employee performance evaluation of classified civil service employees, § 21-48; employee performance evaluation of employees of divisions of fire and emergency services and division of police, § 23-47.

Sec. 22-32. Grievance procedure.

(a) If at any time, any individual holding a position covered by this chapter considers himself aggrieved (hereinafter "aggrieved individual") by another urban county government officer or employee's alleged abuse of discretion in his treatment of the former (hereinafter "accused individual"), the aggrieved individual may seek to rectify the situation through the following grievance procedure:

(1) The aggrieved individual shall orally discuss his grievance with the accused individual or with the individual designated by his supervisor to handle grievances within ten (10) working days of the event or occurrence giving rise to the grievance. Every effort shall be made to reach a satisfactory settlement by informal adjustment. If the grievance is not settled in the initial discussion, the aggrieved individual may, in writing, on the form designated by the chief administrative officer, formally present the grievance to the accused individual within five (5) working days after receiving the accused individual's oral answer. The written grievance shall set forth the nature of the alleged wrong, the date of the occurrence, and the remedy sought. An individual who is presented with a written grievance shall give his answer to the aggrieved individual within five (5) working days after receiving the grievance. If the grievance is not resolved at this stage, a copy of the grievance may be referred by the aggrieved individual, in writing, within five (5) working days after receipt of the accused individual's answer to his supervisor.

(2) Upon receipt of the written grievance, the supervisor shall notify his own supervisor of the grievance. The aggrieved individual's supervisor or his designated representative shall discuss the grievance with the aggrieved individual within ten (10) working days after receiving the appeal. If no settlement is reached at this meeting, the supervisor or his designated representative shall give a written answer to the individual within ten (10) working days following the meeting; however, this answer shall receive the prior written approval of his own supervisor. If the grievance is not settled at this stage of the proceedings, the aggrieved individual may refer the written grievance to the chief administrative officer within ten (10) working days after receipt of the answer from the supervisor or his designated representative.

(3) The chief administrative officer or his designated representative shall discuss the grievance with the aggrieved individual within ten (10) calendar days after receiving the appeal at a time and place designated by the chief administrative officer or his representative. The chief administrative officer's decision is final and shall be placed in writing within five (5) working days from the date of the meeting. A copy shall be sent to both the aggrieved and accused individuals and the appropriate supervisors. If the accused individual is found to have abused his discretion, appropriate action will be taken to correct the error.

(b) The provisions of this section shall apply to all individuals below the level of division director.

(c) If at any time in this procedure the time limit imposed on the appropriate individual or supervisor is exceeded, the aggrieved individual may automatically appeal to the next level.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 20, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Grievance procedure for classified civil service employees, § 21-49; grievance procedure for employees of division of fire and emergency services and division of police, § 23-48.

Sec. 22-33. Reserved.

Sec. 22-34. Drug free workplace policy.

(a) It is the policy of the urban county government to maintain an alcohol and drug free workplace. This policy provides for drug and alcohol screening of certain employees to protect employees and the general public from injury and damage caused by the actions of employees impaired by drugs or alcohol.

(b) The alcohol and drug free workplace policy, as it exists on May 16, 1996, is hereby adopted and incorporated herein by reference, as the instrument by which the above policy shall be implemented, monitored and enforced. True copies of said alcohol and drug free workplace policy, including any amendments, shall be lodged in the office of the clerk of the urban county council and in the division of human resources for inspection by the public.

(c) Current unclassified civil service employees shall receive a copy of the alcohol and drug free workplace policy as soon as the policy is implemented. New employees shall receive a copy upon employment.

(Ord. No. 212-94, § 2, 10-20-94; Ord. No. 269-95, § 3, 11-30-95; Ord. No. 89-96, § 3, 5-30-96; Ord. No. 60-2022, § 21, 7-5-22)

Cross reference(s)—Drug free workplace policy for civil services employees, § 21-52; drug free workplace policy for fire and emergency services employees, § 23-50.

Secs. 22-35—22-39. Reserved.

Article II

Officers

Sec. 22-40. Office of the mayor—Mayor.

(a) The mayor shall be elected.

(b) In order to equate the compensation of the mayor with the purchasing power of the dollar, the commissioner of finance shall compute by the second Friday in February of every year, beginning in 1999, the annual

increase or decrease in the consumer price index of the preceding year by using 1972 as the base year in accordance with the authorized strength which sets the base salary of the mayor at twenty-five thousand dollars ($25,000.00) per annum and with section 5.03 of the Charter of the Urban County Government which provides that the council shall set the same by ordinance. The commissioner of finance shall notify the director of the division of accounting of the annual rate of compensation to which the mayor is entitled pursuant to the increase or decrease in the consumer price index. Upon notification from the commissioner of finance, the mayor shall be salaried at the rate stipulated by the commissioner of finance, but the salary shall in no case be set below the base salary.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 238-89, § 2, 12-14-89; Ord. No. 112-97, § 2, 6-12-97; Ord. No. 60-2022, § 22, 7-5-22)

Editor's note(s)—Section 3 of Ord. No. 112-97, adopted June 12, 1997, provides for the provisions of § 22-40(2) to become effective January 4, 1999. Charter references(s)—Election, term of office, qualifications of mayor, § 5.02; unclassified civil service, § 9.06.

Sec. 22-41. Same—Chief administrative officer.

(a) The chief administrative officer shall be appointed by the mayor subject to confirmation by a vote of three-fifths of the urban county council.

(b) The salary of the chief administrative officer shall be as established by the council in the authorized strength; and the chief administrative officer shall be eligible for the benefits provided in sections 21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for his position.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 60-2022, § 23, 7-5-22)

Charter reference(s)—Chief administrative officer, § 5.09; unclassified civil service, § 9.06. State law references(s)—Chief administrative officer, KRS 67A.025.

Sec. 22-42. Same—Staff.

(a) The mayor shall appoint his administrative aides and other staff. Such positions shall be as established by the urban county council in the authorized strength.

(b) The salaries of administrative aides and other unclassified civil service staff appointed under this section shall be as established by the council in the authorized strength; and such administrative aides and secretaries shall be eligible for the benefits provided in sections 21-31 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 24, 7-5-22)

Charter reference(s)—Mayor's staff, § 5.08; unclassified civil service, § 9.06.

Sec. 22-43. Office of urban county council—Council members and vice-mayor.

(a) The council members and the vice-mayor shall be elected according to the procedures established by law.

(b) In order to equate the compensation of the councilmembers with the purchasing power of the dollar, the commissioner of finance shall compute by the second Friday in February of every year, beginning in 1999, the annual increase or decrease in the consumer price index of the preceding year by using 1972 as the base year in accordance with the authorized strength which sets the base salary of each councilmember at six thousand dollars ($6,000.00) per annum and with section 4.05 of the Charter of the Urban County Government which provides that the council shall set the same. The commissioner of finance shall notify the director of the division of accounting of the annual rate of compensation to which the councilmembers are entitled pursuant to the increase or decrease in the consumer price index. Upon notification from the commissioner of finance, the councilmembers shall be salaried at the rate stipulated by the commissioner of finance, but any upward adjustment in the case of councilmembers other than the vice-mayor shall not exceed ninety (90) percent of the amount of such increase in the consumer price index and the salaries shall not be set below the base salary.

(c) The councilmembers and the vice-mayor shall be eligible for the benefits provided in sections 21-32 and 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 280-85, § 2, 12-19-85; Ord. No. 239-89, § 2, 12-14-89; Ord. No. 192-92, § 8, 10-29-92; Ord. No. 95-97, § 3, 6-12-97; Ord. No. 060-2022, § 25, 7-5-22)

Editor's note(s)—Section 4 of Ord. No. 95-97, adopted June 12, 1997, provides for the provisions of § 22-43(2) to become effective January 4, 1999.

Charter reference(s)—Urban county council created, number of members, § 4.01; presiding officer, rules of procedure, meetings of urban county council, § 4.07; unclassified civil service, § 9.06.

Sec. 22-44. Same—Citizens' advocate.

(a) The citizens' advocate shall be appointed by the urban county council according to the procedures established by law.

(b) The salary of the citizens' advocate shall be as established by the council in the authorized strength; and the citizens' advocate shall be eligible for the benefits provided in sections 21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for his position.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 26, 7-5-22)

Charter reference(s)—Citizens' advocate, § 4.11; unclassified civil service, § 9.06.

Sec. 22-45. Same—Other staff.

(a) The urban county council shall appoint the council administrator to the unclassified civil service system by a majority vote.

(b) The salary of the council administrator shall be as established by the council in the authorized strength; and the employee holding the position of council administrator shall be eligible for the benefits provided in sections 21-31 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for this position.

(c) The employee holding the position of council administrator shall serve for four (4) years corresponding with the terms of the at-large councilmembers. The term of the initial appointment of council administrator shall terminate on December 31, 2008 to correspond with the current terms of the district councilmembers. The council administrator may be reemployed for additional four (4) year terms, corresponding to the terms of the at-large councilmembers, by majority vote of the council. The accrual of benefits by the council administrator shall continue as established herein. If the employee holding the position of council administrator is not reemployed by the council, by majority vote for an additional term, then the employee's position is terminated at the end of the term.

(d) The appointment, dismissal prior to the expiration of the term, or discipline of the council administrator shall be by a majority vote of the urban county council.

(e) The director shall monitor and provide advice to councilmembers concerning the appointment, dismissal prior to the expiration of the term or discipline of the council administrator.

(f) Urban county council members shall appoint their aides to council to the unclassified civil service, and the council must ratify same. Such positions shall be established by the council in the authorized strength.

(g) The salaries of such aides shall be as established by the council in the authorized strength; and employees holding the position of aides to council shall be eligible for the benefits provided in sections 21-31 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions. Employees holding the position of aide to council shall serve for two (2) years and may be reemployed by any councilmember. The accrual of benefits by the aide to council shall continue as established herein. The director shall monitor and provide advice to councilmembers concerning these appointments.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 403-2006, § 5, 12-14-06; Ord. No. 68-2007, § 2, 4-12-07; Ord. No. 60-2022, § 27, 7-5-22)

Cross reference(s)—Definition of "appointing authority," § 21-1(1).

Sec. 22-46. Department commissioners.

(a) All department commissioners shall be appointed by the mayor, subject to confirmation by vote of the majority of the urban county council and according to the procedures established by law.

(b) The salaries of the department commissioners shall be as established by the council in the authorized strength; and the department commissioners shall be eligible for the benefits provided in sections 21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 28, 7-5-22)

Charter reference(s)—Power and authority of mayor, § 5.04; powers and duties of chief administrative officer, § 5.10; principal officers of the executive branch, § 6.02; unclassified civil service, § 9.06.

Sec. 22-47. Alcoholic beverage control administrator.

(a) The alcoholic beverage control administrator shall be appointed by the mayor.

(b) The salary for the alcoholic beverage control administrator, shall be as established by the council in the authorized strength; and, as a part-time employee, the alcoholic beverage control administrator shall receive only those benefits provided for part-time employees in this chapter.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 195-84, § 2, 11-1-84; Ord. No.060-2022, § 29, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Cross reference(s)—Office of urban county alcoholic beverage control administrator, § 3-2 et seq. State law references(s)—Appointment of alcoholic beverage control administrator, KRS 241.230(1).

Sec. 22-48. Friend of the court.

(a) The friend of the court shall be appointed by joint action of the Fayette Circuit Court judges at the general term.

(b) The salary of the friend of the court shall be as established by the urban county council in the authorized strength; and the friend of the court shall be eligible for the benefits provided in sections 21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for his position.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 30, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06. State law references(s)—Friend of the court, KRS 403.090.

Sec. 22-49. Juvenile division of district court.

(a) The mayor shall appoint the probation officers and professional and clerical personnel of the juvenile division of the district court. Such positions shall be as established by the urban county council in the authorized strength.

(b) The salaries of such officers shall be as established by the urban county council; and they shall be eligible for the benefits provided in sections21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions.

(Ord. No. 63-99, § 1, 3-25-99; Ord. No. 87-2001, § 1, 4-19-01; Ord. No.060-2022, § 31, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

State law reference(s)—Mayor authorized to appoint chief probation officer of juvenile session of district court, § KRS 605.050.

Sec. 22-50. Adult probation and court services.

(a) The mayor shall appoint the probation officers and professional and clerical personnel of the adult probation and court services agency of the district court, but the employees of the agency shall be subject to the direction and control of the judges of the district court in the performance of their duties. Such positions shall be as established by the urban county council in the authorized strength.

(b) The salaries of the employees of the agency shall be as established by the urban county council in the authorized strength; and they shall be eligible for the benefits provided in sections 21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 32, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

State law reference(s)—Supervision of persons on probation by adult misdemeanant probation and work release agency of urban county government, KRS 439.550(2).

Sec. 22-51. Office of the coroner.

(a) The coroner shall be elected. The coroner shall appoint the deputy coroners and clerical personnel. Such positions shall be as established by the urban county council in the authorized strength.

(b) The salaries of the coroner, deputy coroner and clerical personnel shall be as established by the council in the authorized strength. The coroner shall be eligible for the benefits provided in sections 21-32 and 21-42; and any full-time deputy coroners and clerical personnel shall be eligible for the benefits provided in sections

21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions. Any part-time deputy coroners and clerical personnel shall receive only those benefits provided for part-time employees in this chapter.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 195-84, § 3, 11-1-84; Ord. No.060-2022, § 33, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

State law reference(s)—County officers, Ky. Const. § 99; coroner and deputies, KRS 64.185; annual computation of Consumer Price Index for determination of rate of adjustment of compensation of elected county officials, KRS 64.527; compensation of county officers and employees and members of fiscal court, KRS 64.530; appointment of deputy coroners, KRS 72.010.

Sec. 22-52. County judge executive and fiscal court commissioners.

(1) The county judge executive and fiscal court commissioners shall be elected.

(2) In order to equate the compensation of the county judge/executive with the purchasing power of the dollar, the commissioner of finance shall compute by the second Friday in February of every year, beginning in 2003, the annual increase or decrease in the consumer price index of the preceding year by using 2002 as the base year in which the base salary of the county judge/executive was set at seven thousand five hundred dollars ($7,500.00) per annum. The commissioner of finance shall notify the director of the division of accounting of the annual rate of compensation to which the county judge/executive is entitled pursuant to the increase or decrease in the consumer price index. Upon notification from the commissioner of finance, the county judge/executive shall be salaried at the rate stipulated by the commissioner of finance, but the salary shall in no case be set below the base salary.

The county judge/executive shall be eligible for the benefits provided in sections21-32 and 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for his position.

(3) The salaries of the fiscal court commissioners shall be as established by the urban county council in the authorized strength. They shall not receive any of the benefits provided for in chapter 21.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 156-2002, § 2, 6-27-02; Ord. No.060-2022, § 34, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

State law reference(s)—Qualifications, vacancy, salary, minimum annual compensation, exception, KRS 67.705.

Sec. 22-52.1. Constables.

(a) The constables shall be elected.

(b) The total personal compensation a constable may receive per annum from both salary and fees may not exceed the amount annually stipulated by the state department of local government pursuant to KRS 64.527. The constables shall not receive any of the benefits provided for in chapter 21 or a salary.

(c) Each constable and deputy constable shall execute a bond, to be renewed biennially, in the amount of twenty-five thousand dollars ($25,000.00) and ten thousand dollars ($10,000.00), respectively. The bond shall be executed and recorded in accordance with section 22-55.1 of the Lexington-Fayette Urban County Government Code of Ordinances and KRS 70.310.

(d) Constables do not have authority to appoint deputy constables in Fayette County unless approved by, and subject to any standards established by, the mayor of the Urban County Government in accordance with KRS 70.320. Deputy constables may be appointed to a term concurrent with that of the constable, or for a term otherwise established by the mayor of the Urban County Government, in accordance with the provisions and subject to the qualifications set forth in KRS 70.320(2) through KRS 70.320(4). Deputy constables may also be removed from office by the mayor in accordance with the provisions of KRS 70.320(2). The appointment of any deputy constable terminates at the end of the term of appointment unless renewed by the mayor.

(e) By the tenth day of each calendar month, each constable shall present to the Fayette County Clerk a report, in the standard form approved by the clerk, concerning performance of the duties of the office of constable, by the constable and deputy constables, required by KRS 70.430. Each constable shall provide a copy of the report to the Urban County Government Department of Public Safety.

(f) **Emergency vehicle equipment.**

(i) Constables and deputy constables shall not equip with or use upon their vehicles any siren, whistle, or bell; or any flashing, revolving, or oscillating light of any color, except for such purposes expressly authorized by law and to the extent expressly authorized by law, with the concurrence of the urban county government. In accordance with KRS 189.950, the Urban County Council hereby determines, as a matter of public safety, that constables and deputy constables shall not equip their vehicles with emergency equipment contemplated under KRS 189.910 to KRS 189.950, and hereby revokes the authorization for same provided in KRS 189.950. Nothing contained herein shall be construed as the granting of permission or acquiescence by the urban county government for the use of any siren, whistle, bell, or a flashing, revolving or oscillating light of any color by a constable or deputy constable for public law enforcement related activities, including causing motorists to stop or yield the right-of-way.

(ii) Any constable or deputy constable who violates subsection (f)(i) above shall be subject to the penalties provided in KRS 189.993. (Ord. No. 24-99, § 1, 2-11-99; Ord. No.060-2022, § 35, 7-5-22; Ord. No.140-2022, § 1, 12-6-22)

Sec. 22-53. Police academy.

(a) A police academy shall be created in the division of police to which candidates for the position of police officer shall be assigned for initial classroom instruction.

(b) The academy appointment shall last for the Kentucky Law Enforcement Council certified training portion of the classroom period.

(c) A candidate may be removed from the academy with or without cause prior to completion of the classroom instruction period.

(d) During the term of the academy, the salary of the candidates shall be the minimum established for pay grade 311; and the employees shall be eligible for the benefits provided in sections 21-31 through 21-42 and section 23-35(b) and (d), under the same terms and conditions as specified in those sections, and for any benefits approved by the council for these positions.

(Ord. No. 97-96, § 2, 6-13-96; Ord. No. 168-96, § 1, 8-29-96; Ord. No. 56-99, § 1, 3-11-99)

Sec. 22-53.1. Police academy examination for appointment.

(a) The division of human resources shall create a register for appointment to positions in the police academy.

(b) The examination for appointment to the police academy shall be comprised of a written examination, a physical fitness test, an oral examination, polygraph examination, background investigation, and psychological suitability screening.

(c) Any candidate who is at least twenty (20) years of age shall be eligible if they will be twenty-one (21) years of age at the time of becoming certified, and if they shall not have reached their forty-first birthday by the application filing deadline date.

(d) Prior to the academy class, the director shall close the date for applications for each class to be published as required by KRS Ch. 424.

(e) The examination components shall be approved by the Kentucky Law Enforcement Council (KLEC) and validated by the division of human resources.

(f) **Conditional Offers of Employment.** Prior to receiving a conditional offer of employment, all candidates shall successfully complete the following requirements:

(1) **Written Examination.** A job-related written examination shall be prepared by the division of human resources. The test administrator shall provide each candidate with his or her score on the written examination and shall indicate to each candidate whether he or she is eligible to proceed.

a. A different version of the written test shall be given for each hiring process.

(2) **Physical Fitness Testing.** Each candidate shall complete and pass the state required, certified physical fitness standard, Kentucky Peace Officer Professional Standards (POPS).

(3) **Oral Examination.** An oral examination shall be prepared and administered by the division of police.

a. The oral examination board shall consist of the following five (5) members:

1. A police sergeant, or above, and the police chief or a designated representative;

2. Two (2) police officers appointed by the police chief;

3. A professional member of the community agreed upon by the director, the commissioner of public safety, and the chief of police; and

4. At least one (1) African-American and one (1) female. One (1) individual may not satisfy both requirements.

5. The director, or his designated representative, shall attend all sessions of the oral examination board as a neutral adviser and shall have no vote in any of the proceedings.

b. A member of the urban county council, to be appointed by the vice mayor, may attend all sessions as a neutral observer and shall have no vote in any of the proceedings.

(4) After the written and oral examination process, the representative/test administrator shall compute the scores of the candidates, with preference points equaling a two (2) percent upgrade applied to any candidate's score who has demonstrated they served in any branch of the United States military and has received anything other than dishonorable discharge.

(5) The chief shall establish the maximum number of candidates who shall receive conditional offers. All components shall be reviewed and taken into consideration when recommending candidates for selection.

(6) After all requirements to make a conditional offer have been satisfied, the chief shall forward his recommendations for conditional offers through the urban county government chain of command to the mayor. The mayor may accept or reject any recommendation made through the chain of command and authorize the division of human resources to make conditional offers. The division of human resources shall submit a report of all probationary appointments to the urban county council within thirty (30) days after the appointment is made.

(g) **Examinations Subsequent to Conditional Offer; Final Offer.** Following a selected candidate's acceptance of a conditional offer of employment, the selected candidate shall be required to submit to the following examinations, upon which the offer of employment is expressly, but not exclusively, conditioned:

(1) A psychological suitability screening test.

(2) A polygraph examination.

(3) A background investigation.

(4) A physical examination and/or medical examination.

(5) Drug screening.

Following completion of a psychological suitability screening test, a polygraph examination, and a background investigation, but prior to a physical examination and/or medical examination and drug screening, the division of police shall supply the director with a list of those candidates whom the division recommends be eliminated from the current and future hiring processes. The director shall accept the recommendation for elimination if the circumstances satisfy the requirements of KRS 95.440 and applicable sections of this Code.

All candidates who successfully complete the psychological suitability screening, polygraph examination, background investigation, physical examination or medical examination, and drug screening shall be eligible for final offer. The aforementioned examinations, tests, and reports may also be used as a basis to remove a candidate at any point in the process.

(h) If a candidate is selected for an academy and is unable to attend or complete the academy due to unforeseen circumstances, the director and chief of police will review the situation and decide if the candidate will be allowed deferral to the next academy. Any candidate who is allowed to defer to the next academy must comply with all KLEC-POPS requirements.

(i) Upon the completion of the orientation section of the academy class, the list may be expired; however, the director and chief shall have the discretion to exhaust or maintain the register.

(Ord. No. 97-96, § 3, 6-13-96; Ord. No. 296-2000, § 1, 9-28-00; Ord. No. 397-2000, §§ 1—7, 12-14-00; Ord. No. 285-2003, §§ 1—6, 12-4-03; Ord. No. 219-2004, § 1, 8-26-04; Ord. No. 89-2006, §§ 1—5, 4-13-06; Ord. No. 39-2009, § 1, 3-26-09; Ord. No. 74-2010, § 1, 4-22-10; Ord. No. 227-2010, § 3, 12-9-10; Ord. No. 027-2022, § 1, 3-17-22; Ord. No. 60-2022, § 36, 7-5-22; Ord. No. 119-2023, § 1, 10-12-23; Ord. No. 29-2025, § 1, 5-8-25)

Sec. 22-53.2. Traffic school guards.

(a) All traffic school guards shall be appointed by the mayor.

(b) The salaries of the traffic school guards shall be sixteen dollars and seventy-one cents ($16.71) per hour.

As part-time employees, the traffic school guards shall receive only benefits provided for part-time employees in this chapter.

(Ord. No. 230-83, § 4, 11-22-83; Ord. No. 103-84, § 3, 6-28-84; Ord. No. 195-84, § 4, 11-1-84; Ord. No. 279-85, § 3, 12-19-85; Ord. No. 214-86, § 3, 10-7-86; Ord. No. 133-87, § 3, 6-30-87; Ord. No. 264-88, § 6, 11-17-88; Ord. No. 139-90, § 3, 6-28-90; Ord. No. 112-91, § 3, 6-13-91; Ord. No. 135-91, § 3, 7-2-91; Ord. No. 229-94, § 3, 11-17-94; Ord. No. 152-95, § 3, 6-29-95; Ord. No. 97-96, § 1, 6-13-96; Ord. No. 23-97, § 3, 2-20-97; Ord. No. 209-98, § 2, 7-9-98; Ord. No. 171-99, §4, 6-22-99; Ord. No. 203-2000, § 4, 6-29-00; Ord. No. 306-2001, § 3,

12-6-01; Ord. No. 160-2002, § 4, 6-27-02; Ord. No. 166-2003, § 4, 6-26-03; Ord. No. 304-2003, § 4, 12-4-03; Ord. No. 173-2004, § 4, 7-1-04; Ord. No. 195-2005, § 4, 7-12-05; Ord. No. 203-2006, § 4, 6-6-06; Ord. No. 166-2007, § 4, 7-5-07; Ord. No.180-2008, § 4, 7-8-08; Ord. No. 141-2009, § 4, 7-7-09; Ord. No. 91-2012, § 4, 7-10-12; Ord. No. 102-2012, § 1, 8-30-12; Ord. No. 105-2012, § 1, 8-30-12; Ord. No. 77-2013, § 4, 7-9-13; Ord. No. 75-2015, § 3, 6-18-15; Ord. No. 142-2021, § 1, 12-7-21; Ord. No.060-2022, § 37, 7-5-22; Ord. No. 63-2023, § 5, 6-15-23; Ord. No. 089-2024, § 1, 8-29-24; Ord. No. 045-2025, § 6, 6-26-25)

Charter reference(s)—Unclassified civil service, § 9.06. Note(s)—Formerly section 22-53.

Sec. 22-54. County board of elections.

(a) The county board of elections shall be constituted as provided in KRS 117.035.

(b) The salaries of those members of the board appointed by the state board of elections to four-year terms or to fill permanent vacancies in the same, shall be according to the following schedule;

(1) The basic salary for administering the election laws and the registration and purgation of voters within Fayette County shall be forty-eight hundred dollars ($4,800.00) per annum from July 1 of one (1) year until June 30 of the following year. This salary shall compensate the member for all duties with respect to the primary and the regular general elections. In any case where a member serves pursuant to KRS 117.085(1)(e) as a precinct election officer for absentee voting, he shall receive no additional compensation.

(2) In any year in which there are more than two (2) elections, the forty-eight hundred dollars ($4,800.00) annual salary shall be increased by twelve hundred dollars ($1,200.00) for each additional countywide election (one including all county precincts) and six hundred dollars ($600.00) for each additional non-countywide election.

(3) In any case where a member is unable to act for the full year, his salary shall be prorated so that he receives that portion of total salary authorized in this section as the service in office bears to the year.

(4) The salaries of commissioners serving in place of the county clerk or sheriff on the board and temporary appointees to the board, shall be one hundred dollars ($100.00) per day for each nonelection day the board meets and three hundred dollars ($300.00) per day for each Election Day.

(c) They shall not receive any of the benefits provided for in chapter 21.

(Ord. No. 170-88, § 1, 7-14-88; Ord. No. 203-90, § 1, 9-20-90; Ord. No. 18-93, § 1, 2-11-93; Ord. No. 98-95, § 1, 5-4-95; Ord. No. 119-99, § 1, 4-22-99; Ord. No. 060-2022, § 38, 7-5-22)

Sec. 22-55. Secretary to board of trustees of police and fire fighters pension fund.

(a) **Pursuant to KRS 67A.** 560(2), the board of trustees of the police and fire fighters pension fund shall appoint the employee in the office of the commissioner of finance designated as secretary to the board of trustees of the police and fire fighters pension fund.

(b) The salary of such employee shall be as established by the urban county council in the authorized strength; and he shall be eligible for the benefits provided in sections 21-32 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for this position.

(Ord. No. 186-92, § 2, 10-15-92; Ord. No.060-2022, § 39, 7-5-22)

Sec. 22-55.1. Local constitutional officers.

(a) Every local constitutional officer listed below shall execute a bond for the faithful performance of the duties of his office in the amount specified below:

County judge/executive	$ 10,000
County clerk	400,000
Sheriff (KRS 70.020)	1,000,000
Sheriff (KRS 134.250)	5,000,000
County surveyor	10,000
Coroner	10,000
Deputy coroners	10,000
Constables	25,000

(b) Each elected officer listed in subsection (a) of this section shall present a bond with sureties to the department of law for approval by the urban county council before the day the term of office to which the officer has been elected begins. Each appointed officer listed in subsection (a) of this section shall present a bond with sureties to the department of law for approval by the urban county council within thirty (30) days after receiving notice of appointment.

(c) Whenever the urban county council approves a bond with sureties pursuant to this section, the clerk of the urban county council shall record the approval of the bonds and sureties in the council's minutes.

(d) The department of law shall record bonds approved pursuant to this section in the Fayette County Clerk's records.

(e) The department of law shall reimburse the premiums on the bonds of the local constitutional officers approved pursuant to this section from urban county government funds appropriated by the urban county council for that purpose, if a claim is made with a supporting affidavit by a local constitutional officer. However, pursuant to KRS 62.155, the premium on the sheriffs KRS 70.020 bond shall be paid or reimbursed by the Commonwealth of Kentucky and not by the department of law.

(f) The KRS 70.020 bond of the sheriff shall be renewed annually and the KRS 70.310 bond of each constable shall be renewed biennially. All other bonds of the local constitutional officers listed in subsection (a) of this

section shall be renewed for the term of any person elected or appointed to that office. However, the urban county council may at any time authorized by law require additional sureties of any local constitutional officers listed in subsection (a) of this section.

(Ord. No. 253-97, § 1, 12-11-97; Ord. No. 113-98, § 1, 4-30-98; Ord. No.060-2022, § 40, 7-5-22; Ord. No.140-2022, § 2, 12-6-22)

Article III

Temporary, Part-Time and Seasonal Positions

Sec. 22-56. Temporary positions.

(a) From time to time, the urban county council may authorize the establishment of temporary positions, other than those provided for in Article II, including positions for the conduct of special inquiries, investigations or studies for the urban county government. Such temporary positions shall be for a fixed, definite period of time and in no case for an indefinite period of time. Unless otherwise provided by law, the mayor shall make appointments to all temporary positions, subject to ratification by the council.

(b) The salaries of individuals holding such temporary positions shall be as established by the council in the authorized strength, or as otherwise provided by law. Individuals holding such temporary positions shall be eligible for the benefits provided in sections 21-31 through 21-42, under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No.060-2022, § 41, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Sec. 22-57. Part-Time positions.

(a) From time to time, the urban county council may authorize the establishment of part-time positions, other than those provided for in Article II. Unless otherwise provided by law, the mayor shall make appointments to all part-time positions.

(b) The salaries of individuals holding such part-time positions shall be as established by the council, or as otherwise provided by law. They shall receive only those benefits provided for part-time employees in this chapter.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 195-84, § 5, 11-1-84; Ord. No.060-2022, § 42, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Sec. 22-58. Seasonal positions.

(a) From time to time, the urban county council may authorize the establishment of seasonal positions. Such seasonal positions shall be for periods not in excess of nine (9) months. Unless otherwise provided by law, the mayor shall make appointments to all seasonal positions.

(b) The salaries of individuals holding such seasonal positions shall be as established by the council in the authorized strength, or as otherwise provided by law. They shall receive only those benefits provided for seasonal employees in this chapter.

(Ord. No. 230-83, § 1, 11-22-83; Ord. No. 195-84, § 6, 11-1-84; Ord. No.060-2022, § 43, 7-5-22)

Charter reference(s)—Unclassified civil service, § 9.06.

Sec. 22-59. Benefits.

(a) Part-time employees who have worked for the urban county government for twenty-four (24) continuous months shall earn vacation leave and sick leave at a rate of five (5) hours per month. Vacation and sick leave shall be credited on the first pay period of each month for the prior month.

(1) Vacation leave may only be utilized upon the supervisor's approval of the prior written request of the employee and may be used in any increment. Vacation leave will not be granted in excess of vacation credit earned by service prior to the starting date of leave. It shall be scheduled with regard to operating requirements, seniority of the employee, and, insofar as possible, with the written request of the employee. Absences due to sickness, injury or disability in excess of sick leave authorized in this chapter, for sick purposes, may, at the written request of the employee and with the written consent of the supervisor and the approval of the director, be charged to vacation leave credit. No refund of vacation time shall be allowed for illness incurred while on vacation leave. The vacation leave provided by this section is personal in nature and shall not be transferable from one (1) employee to another for any purpose. No vacation leave may be carried over from one (1) calendar year to the next, and employees shall not be paid for any accumulated vacation at the time of separation from government service. In situations where an employee is unable to obtain prior written approval, the employee may contact his supervisor and obtain verbal approval prior to using vacation leave. A leave form shall be submitted once the employee returns to work to document the verbal approval.

(2) Sick leave credit may be utilized by employees in any increment when they are incapacitated for the performance of duty due to sickness or injury, when they are quarantined, for doctor's appointments, and for a period not to exceed three (3) days in the case of death in the employee's immediate family. The immediate family for this purpose shall be deemed to include the parents, spouse or qualified adult, spouse's or qualified adult's parents, children or qualified adult's children, brothers, sisters, grandparents and grandchildren. Employees may also utilize sick leave in the event of serious illness of parents, spouse or qualified adult or children. However, sick leave will not be granted in excess of sick leave credit earned by service prior to the starting date of leave. All foreseeable leave for such purposes shall

require specific prior approval of the supervisor; and, except in extenuating circumstances, sick leave shall be requested prior to the beginning of the work shift on the date of the absence. No sick leave compensation may commence until or unless the employee, either personally or through some member of his family or other person, gives such notice, including the reasons for the absence from duty and where the employee can be located, subject to the approval of the supervisor. When a sick leave absence exceeds three (3) consecutive working days, the employee shall provide the supervisor with a medical certificate which indicates the nature and extent of the illness. The sick leave provided by this section is personal in nature and shall not be transferable from one (1) employee to another for any purpose. At the end of a calendar year, employees may carry over forty (40) hours of sick leave; however, employees shall not be paid for any accumulated sick leave upon separation from government service.

(Ord. No. 195-84, § 1, 11-1-84; Ord. No. 41-2001, § 1, 3-8-01; Ord. No. 70-2009, § 1, 5-7-09; Ord. No 60-2022, § 44, 7-5-22)

Chapter 23

Divisions of Fire and Emergency Services and Police

Section 23-1. Definitions.

Section 23-2. Adoption and amendment of the plan.

Section 23-3. Administration and maintenance of the plan.

Section 23-4. Classification categories.

Section 23-5. Positions.

Section 23-6. Qualifications.

Section 23-7. General duties; job descriptions.

Section 23-8. Powers and duties—Division of fire and emergency services.

Section 23-9. Same—Division of police.

Section 23-10. Recruitment.

Section 23-11. Applications.

Section 23-12. Examinations.

Section 23-13. Preference points.

Section 23-14. Eligibility lists.

Section 23-15. Requisition and certification.

Section 23-16. Appointments.

Section 23-17. Police chief and fire chief.

Section 23-18. Firefighter recruitment.

Section 23-19. Oath and bond for police.

Section 23-20. Promotions—Division of fire and emergency services.

Section 23-21. Same—Division of police.

Section 23-22. Annual physical examination.

Section 23-23. Hours of work.

Section 23-24. Layoff.

Section 23-25. Resignation.

Section 23-26. Reinstatement.

Section 23-27. In-service training.

Section 23-28. Salary schedules.

Section 23-29. Entrance rates.

Section 23-30. Computation of salaries.

Section 23-31. Overtime.

Section 23-32. Within-grade salary step increases.

Section 23-33. Salary adjustment on change of classification plan.

Section 23-34. Benefits generally.

Section 23-35. Maintenance allowance.

Section 23-36. Annual training incentive.

Section 23-36.5. Policemen's and Firefighters' Retirement Fund—Members retiring on or after July 1, 1999.

Section 23-36.6. Policemen's and Firefighters' Retirement Fund—Members retiring prior to July 1, 1999.

Section 23-36.7. Same—Payment of group health insurance premiums for surviving spouses and dependent children.

Section 23-37. Medical expenses.

Section 23-38. Additional leave.

Section 23-39. Trading time, division of fire and emergency services.

Section 23-40. Absence without permission.

Section 23-41. Reprimand or suspension; causes.

Section 23-42. Dismissal; causes.

Section 23-43. Complaint procedures; police rights.

Section 23-44. Dismissal and other punishments; causes, charges, proceedings.

Section 23-45. Appeal to circuit court and court of appeals.

Section 23-46. Continuity of service requirements.

Section 23-47. Employee performance evaluation.

Section 23-48. Grievance procedure.

Section 23-49. Political and other activities.

Section 23-50. Drug free workplace policy.

Section 23-51. No-knock warrants.

Sec. 23-1. Definitions.

In this chapter, unless the context requires otherwise:

Appointing authority means the mayor.

Class means one (1) or more positions sufficiently similar within respect to duties and responsibilities that the same descriptive title may be used with clarity to designate each position allocated to the class, that the same general qualifications are needed for the performance of the duties of the same class, that the same tests of fitness may be used to recruit applicants, and that the same schedule of pay may be applied with equity to all positions in the class under the same or substantially the same employment conditions. The term "class" shall be interchangeable with the term "rank."

Classification means the grouping of positions in regard to:

(i) Duties performed and responsibilities;

(ii) Requirements as to education, knowledge, experience and ability;

(iii) Tests of fitness;

(iv) Ranges of pay; and

(v) Title description.

Director means the director of human resources.

Division of fire and emergency services means and includes all members of the division of fire and emergency services.

Division of police means and includes all members of the division of police.

Fire fighter means the recruit or entry-level position in the division of fire and emergency services as established at section 23-5.

First day of the fiscal year, for purposes of salary and benefit matters, unless the context dictates otherwise, shall mean the first day of the pay period for which pay is received on or after July 1 of the new fiscal year.

Member means a person holding any position in the division of fire and emergency services or division of police which is established at section 23-5, except that as used in subsection (a) of section 23-24, and sections 23-44 and 23-45, and subsection (c) of section 23-49, it shall not include the police chief.

Police force means and includes all members of the division of police, excluding clerical or maintenance employees.

Police officer means the recruit or entry-level position in the division of police as established at section 23-5.

Supervisor means the chief of the division in which a member serves, or, in the case of the chiefs themselves, the commissioner of public safety.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 116-96, § 21, 6-27-96)

Cross reference(s)—Definitions regarding classified civil service, § 21-1; definitions regarding unclassified civil service, § 22-2.

State law reference(s)—Definitions regarding city police and fire departments, KRS 95.010.

Sec. 23-2. Adoption and amendment of the plan.

(a) All positions in the urban county government division of fire and emergency services and division of police established at section 23-5 shall be covered by this chapter and shall be grouped into classes for the purpose of including in each class those positions sufficiently similar in respect to their duties and responsibilities so that substantially similar requirements as to training, experience, knowledge, skill and personal qualities and the same rates of compensation may be applicable thereto.

(b) The urban county council shall fix, by ordinance, the number and classification of the members of the urban county division of fire and emergency services and division of police, and the salaries for each classification. The classes, grades and titles of positions as set forth in sections 23-4 and 23-5 shall constitute the classification of positions of the urban county division of fire and emergency services and division of police.

(c) All subsequent additions, revisions or amendments affecting this chapter shall be made by ordinance. The council shall not initiate or enact any such change without first securing the written recommendations of the mayor and the director.

(d) The director shall, under the direction of the mayor, periodically review the positions in the division of fire and emergency services and division of police and recommend to the urban county council the reallocation of positions from one class to another class whenever he determines that the classification is no longer consistent with the actual work performed. Provided, that no member shall be dismissed, suspended, or reduced in grade or pay for any reason except as set out in KRS 95.450 and sections 23-40 through 23-44 hereof.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Sec. 23-3. Administration and maintenance of the plan.

(a) Under the supervision of the mayor, the director shall be responsible for the administration of all personnel ordinances and regulations pertaining to the division of fire and emergency services and division of police, including recruitment, examination, classification, probation, promotion and compensation programs. He shall make and enforce culture-fair pursuant thereto.

(b) Lists of eligible applicants shall be prepared by the director, and he shall officially certify all applicants to be placed on the list of qualified persons eligible for positions in the division of fire and emergency services and division of police.

(c) This chapter shall be construed in conformity with 29 U.S.C. sections 201—219. The director shall make reasonable and necessary rules and regulations to ensure that 29 U.S.C. sections 201—219 and regulations adopted thereunder are properly applied.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 231-93, § 3, 12-9-93)

Charter reference(s)—Administration of classified civil service, § 9.05.

Cross reference(s)—Administration and maintenance of unclassified civil service plan, § 22-3.

Sec. 23-4. Classification categories.

All division of fire and emergency services and division of police positions are classified and given classification codes based on the following categories of service.

Classification Codes	Classification
100—149	General clerical, typing and office machine series
900—999	Public safety series

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Classified civil service classifications, § 21-4; unclassified civil service classifications, § 22-4.

Sec. 23-5. Positions.

(a) The class title of each position as classified herein shall be used to designate such positions on all budget estimates, payrolls, and other official records, documents, vouchers and communications, and in all personnel processes.

(b) The following positions shall constitute the division of fire and emergency services and division of police, respectively, of the urban county government:

Subsection/ Line	Number of Positions	Class Code	Pay Grade	Title
Div. 540:				Division of Community Corrections
540. 95	263	981	110N	Community Corrections Officer
Total	263*			
Div. 550:				Division of Police
550. 10	1	929	324E	Police Chief

Subsection/ Line	Number of Positions	Class Code	Pay Grade	Title
550. 50	1	924	318E	Police Captain
550. 60	40	923	317E	Police Lieutenant
550. 80	66	922	315N	Police Sergeant
550.100	522	921	311N	Police Officer
Total	619*			
Div. 570:				Division of Fire and Emergency Services
570. 10	1	959	324E	Fire Chief
570. 70	33	954	318E	Fire Major
570. 80	62	953	316N	Fire Captain
570. 90	66	952	N/A	Fire Lieutenant
570.110	411	951	311N	Firefighter
Total	573*			
Grand Total	1394*			

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 188-82, § 2, 10-21-82; Ord. No. 28-83, § 2, 3-10-83; Ord. No. 139-83, § 7, 7-21-83; Ord. No. 205-83, §§ 1, 2, 11-3-83; Ord. No. 77-84, § 3, 5-31-84; Ord. No. 119-84, § 2, 7-12-84; Ord. No. 198-84, § 2, 11-1-84; Ord. No. 199-84, § 2, 11-1-84; Ord. No. 21-85, § 1, 2-7-85; Ord. No. 154-85, §§ 1, 2, 7-25-85; Ord. No. 188-85, § 1, 9-19-85; Ord. No. 197-85, § 1, 10-3-85; Ord. No. 236-85, § 1, 11-12-85; Ord. No. 249-85, § 1, 12-5-85; Ord. No. 276-85, § 2, 12-19-85; Ord. No. 284-85, §§ 3, 4, 12-19-85; Ord. No. 19-86, §§ 1, 2, 2-20-86; Ord. No. 46-86, § 1, 3-20-86; Ord. No. 142-86, § 4, 7-24-86; Ord. No. 143-86, § 1, 7-24-86; Ord. No. 196-86, § 1, 9-18-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 48-88, § 1, 3-10-88; Ord. No. 178-88, § 2, 7-14-88; Ord. No. 264-88, § 3,11-17-88; Ord. No. 65-89, § 1, 4-20-89; Ord. No. 139-89, § 1, 7-6-89; Ord. No. 65-90, § 1, 4-5-90; Ord. No. 136-90, § 2, 6-28-90; Ord. No. 164-90, § 1, 8-23-90; Ord. No. 240-90, §§ 1, 2, 11-15-90; Ord. No. 28-91, § 3, 2-21-91; Ord. No. 156-91, § 1, 7-18-91; Ord. No. 170-91, § 3, 7-18-91; Ord. No. 42-93, § 1, 3-11-93; Ord. No. 227-93, § 1, 12-2-93; Ord. No. 263-94, § 2, 12-13-94; Ord. No. 4-95, §§ 1, 2, 1-12-95; Ord. No. 16-95, § 1, 1-26-95; Ord. No. 17-95, § 1, 1-26-95; Ord. No. 36- 95, § 2, 2-23-95; Ord. No. 71-95, § 4, 4-6-95; Ord. No. 102-95, § 2, 5-18-95; Ord. No. 148-95, § 4, 6-29-95; Ord. No. 169-95, § 4, 7-13-95; Ord. No. 190-95, § 3, 8- 31-95; Ord. No. 220-95, §§ 1, 2, 10-5-95; Ord. No. 293-95, § 2, 12-7-95; Ord. No. 15-96, § 4, 1-25-96; Ord. No. 95-96, § 1, 6-13-96; Ord. No. 116-96, § 22, 6-27- 96; Ord. No. 169-96, § 1, 8-29-96; Ord. No. 175-96, § 6, 9-5-96; Ord. No. 16-97, § 1, 2-6-97; Ord. No. 23-97, § 2, 2-20-97; Ord. No. 24-97, § 1, 2-20-97; Ord. No. 110-97, § 4, 6-12-97; Ord. No. 156-97, § 2, 7-10-97; Ord. No. 235-97, § 1, 11-13-97; Ord. No. 264-97, § 2, 12-11-97; Ord. No. 24-98, § 3, 1-22-98; Ord. No. 41-98, § 1, 2-9-98; Ord. No. 106-98, § 1, 4-30-98; Ord. No.

208-98, § 2, 7-9-98; Ord. No. 289-98, § 1, 10-15-98; Ord. No. 22-99, § 2, 1-28-99; Ord. No. 29-99 § 2, 2-11- 99; Ord. No. 199-99, § 2, 7-8-99; Ord. No. 241-99, § 2, 8-26-99; Ord. No. 284-99, § 1, 10-7-99; Ord. No. 287-99, § 1, 10-21-99; Ord. No. 298-99, § 2, 10-21-99; Ord. No. 24-2000, § 1, 1-27-00; Ord. No. 27-2000, § 1, 1-27-00; Ord. No. 42-2000, §§ 2, 3, 2-24-00; Ord. No. 49-2000, § 2, 2-24-00; Ord. No. 80-2000, § 1, 3-23- 00; Ord. No. 116-2000, § 2, 4-20-00; Ord. No. 134-2000, § 2, 5-18-00; Ord. No. 213-2000, § 5, 7-6-00; Ord. No. 222-2000, §§ 1, 2, 7-13-00; Ord. No. 247-2000, §§ 1, 2, 7-13-00; Ord. No. 249-2000, § 1, 7-13-00; Ord. No. 259-2000, § 1, 8-31-00; Ord. No. 267-2000, §§ 1, 2, 8-31-00; Ord. No. 398-2000, §§ 1, 2, 12-14-00; Ord. No. 36-2001, § 1, 2-22-01; Ord. No. 107-2001, §§ 3, 4, 5-3-01; Ord. No. 266-2001, § 1, 10-25-01; Ord. No. 273-2001, §§ 1—3, 10-25-01; Ord. No. 279-2001, § 2, 11-8-01; Ord. No. 285-2001, § 2, 11-8-01; Ord. No. 317-2001, §§ 1, 2, 12-13-01; Ord. No. 22-2002, §§ 1, 2, 1-24-02; Ord. No. 24-2002, §§ 1, 2, 1-24-02; Ord. No. 25-2002, §§ 1, 2, 1-24-02; Ord. No. 26-2002, §§ 1, 2, 1-24-02; Ord. No. 39-2002, §§ 1, 2, 2-21-02; Ord. No. 162-2002, § 2, 6-27-02; Ord. No. 164-2002, §§ 1, 2, 6- 27-02; Ord. No. 196-2002, §§ 1, 2, 7-16-02; Ord. No. 220-2002, §§ 1, 2, 8-29-02; Ord. No. 260-2002, §§ 1—3, 10-10-02; Ord. No. 264-2002, § 2, 10-10-02; Ord. No. 267-2002, § 1, 10-24-02; Ord. No. 298-2002, §§ 3, 4, 11-21-02; Ord. No. 330-2002, §§ 1—5, 12-5-02; Ord. No. 16-2003, § 2, 1-23-03; Ord. No. 23-2003, § 1, 1-23-03; Ord. No. 31-2003, §§ 2, 3, 2-6-03; Ord. No. 32-2003, §§ 1—3, 2-6-03; Ord. No. 248-2003, §§ 1, 2, 10-9-03; Ord. No. 261-2003, § 1, 10-23-03; Ord. No. 39-2004, § 1, 2-19-04; Ord. No. 174-2004, § 1, 7-1-04; Ord. No. 253-2004, §§ 1, 2, 10-7-04; Ord. No. 274-2004, § 1, 11-4-04; Ord. No. 11-2005, § 1, 1-13-05; Ord. No. 52-2005, § 2, 2-24-05; Ord. No. 54-2005, §§ 1, 2, 2-24-05 ; Ord. No. 153-2005, §§ 1, 2, 6-23-05; Ord. No. 181-2005, § 1, 7-7-05; Ord. No. 199-2005, § 2, 7- 12-05; Ord. No. 207-2005, §§ 1, 2, 7-12-05; Ord. No. 238-2005, §§ 1, 2, 8-25-05; Ord. No. 64-2006, § 1, 3-9-06; Ord. No. 73-2006, § 1, 3-23-06; Ord. No. 198- 2006, § 1, 7-6-06; Ord. No. 302-2006, § 1, 10-19-06; Ord. No. 26-2008, §§ 2—5, 2-7-08; Ord. No. 68-2008, § 1, 4-10-08; Ord. No. 145-2008, § 1, 6-26-08; Ord. No. 17-2009, § 1, 2-12-09; Ord. No. 147-2010, § 1, 8-26-10; Ord. No. 17-2011, § 1, 2-17-11; Ord. No. 119-2011, § 1, 9-15-11; Ord. No. 25-2012, §§ 5, 6, 3-8-12; Ord. No. 41-2012, § 1, 4-12-12; Ord. No. 46-2012, § 1, 4-26-12; Ord. No. 60-2012, § 1, 5-17-12; Ord. No. 79-2013, § 3, 7-9-13; Ord. No. 126-2013, § 1, 10-24-13; Ord. No. 15-2014, § 1, 2-20-14; Ord. No. 33-2014, § 1, 4-10-14; Ord. No. 82-2014, § 2, 7-8-14; Ord. No. 122-2017, § 1, 7-11-17)

Editor's note(s)—At the city's instruction, line number 550.100 was amended to reflect the current police officer strength as directed in memorandum of Aug. 21, 2007.

Cross reference(s)—Classified civil service positions, § 21-5; unclassified civil service positions, § 22-5.

Sec. 23-6. Qualifications.

(a) In addition to the qualifications for each class as set forth in the job descriptions, it shall be understood that to be eligible for initial appointment to the division of fire and emergency services or to the office of the chief of police, in the division of police, an applicant must satisfy all of the following requirements; provided, that subsections (3) and (5) shall apply to applicants for the position of chief of police only.

(1) Be able to read, write and understand the English language and follow instructions.

(2) Be a person of sobriety and integrity and is and has been an orderly, law-abiding citizen.

(3) Be a citizen of the United States.

(4) Never have been convicted of a crime involving moral turpitude.

(5) Must not have within a period of two (2) years hired himself out, performed any service, or received any compensation from any private source for acting, as a privately paid detective, policeman, guard, peace officer or otherwise as an active participant in any labor dispute, or conducted the business of a private detective agency or of any agency supplying private detectives, private policemen or private guards, or advertised or solicited any such business in connection with any labor dispute.

(6) Be over twenty-one (21) years of age to be eligible to be an applicant for the position of chief of police and be over nineteen (19) years of age to be eligible for initial appointment to the division of fire and emergency services.

(7) Have, in the case of positions involving the operation of a motor vehicle, a driver's license, or for those positions which require it, a chauffeur's license.

(8) Be a graduate of an accredited high school or have been awarded a governmental educational diploma.

(9) Not have been, in the twelve (12) months preceding application, suspended for cause or dismissed or forced to resign from any previous employment for cause. The director shall establish reasonable rules necessary to implement this subsection.

(b) In addition to the qualifications set forth in the job description, to be eligible for appointment to the position of police officer in the division of police, an applicant must successfully complete the course of study presented at the police academy established in sections 22-53 and 22-53.1 of the code of ordinances.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 32-85, § 1, 2-21-85; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 56-90, § 1, 4-5-90; Ord. No. 61-94; § 1, 4-14-94; Ord. No. 97-96, § 5, 6-13-96; Ord. No. 152-96, § 1, 8-22-96; Ord. No. 122-2014, § 1, 9-25-14)

Cross reference(s)—Classified civil service employee qualifications, § 21-6; unclassified civil service employee qualifications, § 22-6.

State law reference(s)—Residence or voting eligibility not to disqualify peace officer, KRS 15.335; qualifications of nonelective peace officer or deputy, KRS 61.300; qualifications and examination of police and fire department members, KRS 95.440(1), (2).

Sec. 23-7. General duties; job descriptions.

(a) Subject only to any specific assignments of duties made by law or ordinance, such as in sections23-8 and 23-9, and limitations of law, each supervisor shall prescribe and assign the duties for all positions under him in such manner as he shall deem necessary or advisable for the efficient, orderly and economical administration of the affairs of the urban county government.

(b) The director shall prescribe and propound job descriptions to be known as "class specifications" which reasonably establish minimum qualifications and standards for eligibility within each class. The statement of qualifications in any class specification is intended to be a guide for determining the eligibility of candidates for competitive examinations and for the preparation of such examination.

(c) Based on the duties assigned to each position under subsection (a) herein, the class specification shall also contain examples of the duties members of the division of fire and emergency services and division of police holding such positions may properly be required to perform. Such examples are descriptive and explanatory but are not restrictive. The listing of particular duties does not preclude the assignment of other tasks.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Duties and job description of classified civil service employees, §§ 21-7, 22-7.

Sec. 23-8. Powers and duties—Division of fire and emergency services.

(a) The fire chief shall be present at all fires and investigate their cause. He may examine witnesses, compel the production of testimony, administer oaths, make arrests, and enter any building for the purpose of examination that, in his opinion, is in danger from fires. He shall report his proceedings to the council when required.

(b) The chief shall direct and control the operation of the members of the division of fire and emergency services in the discharge of their duties. He shall have access to and use of all cisterns, fireplugs, the waters of the waterworks and the cisterns of private persons for the purpose of extinguishing fires. He shall have the right to examine all cisterns and all plugs and pipes of the waterworks to see that they are in condition for use in case of fire. He shall have control of all buildings, hose, engines and other equipment provided for the division of fire and emergency services. He shall perform such other duties as the council shall, by ordinance, prescribe.

(c) It shall be the further duty of the fire chief to command and supervise the division of fire and emergency services, under the direction of the mayor, and to see that its duties as prescribed by law and by the ordinances are properly performed.

(d) It shall be the duty of the members of the division of fire and emergency services, under the direction of the chief, to enforce all laws and ordinances of the state and urban county government, covering the matters and things set forth in chapter 9; and they shall have such powers and perform such other duties as are prescribed by the ordinances and as may be conferred and imposed from time to time by law. The chief may delegate any of his powers and duties to other members of the division.

(e) Each member of the division of fire and emergency services, under the supervision of the chief and the mayor, is authorized and empowered, and it shall be his duty to do and perform all acts and things required, by general law or by the ordinances, to be performed by such members; and he shall perform such other duties as may be required of him by the council.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

State law reference(s)—Powers, duties of fire chief, hours of work and annual leave of fire fighters in urban county governments, KRS 95.500.

Sec. 23-9. Same—Division of police.

(a) The police chief or other member of the police force acting under his discretion shall attend all sessions of the council, execute their orders, and preserve order at their sessions.

(b) The chief may receive the same fees, for the use of the urban county government, that sheriffs are entitled to receive for like services, and have the same power to collect them.

(c) The chief, other members of the police force, and others to whom the process of a court is directed and comes for execution shall execute and return the process within the time prescribed by law for sheriffs to execute and return similar process; and on their failure they and their sureties shall be liable to the same penalties as sheriffs. They shall be subject to similar penalties for not paying over moneys collected on execution, making illegal charges, false returns and like illegal acts.

(d) The district court may hear and determine motions against them and their sureties for failure to pay over moneys collected, as the circuit court has jurisdiction to hear and determine motions against defaulting sheriffs, or may proceed by fines and imprisonment to enforce the execution and return of process.

(e) It shall be the further duty of the police chief to command and supervise the police force under the direction of the mayor and to see that the duties of the members as defined by law and by the ordinances are properly performed. The chief, under the supervision of the mayor, is authorized and empowered, and it shall be his duty, to do and perform all acts and things required by general law or by the ordinances to be performed by the chief; and he shall perform such other duties as may be required of him by the council.

(f) It shall be the duty of each member of the police force to acquire and have a general knowledge of the criminal laws of the state and of the ordinances and regulations of the urban county government, which he may be called upon to enforce; to use his best exertion to prevent the commission, within the police jurisdiction of Fayette County, of offenses against the laws of the state and the ordinances and regulations of the urban county government; to observe and enforce all such laws, ordinances and regulations; to detect and arrest offenders; to observe the good order of the urban county government, and to secure the inhabitants thereof and persons within Fayette County from violence and property from injury.

(g) Each member of the police force, under the supervision of the chief of police, is authorized and empowered, and it shall be his duty, to do and perform all acts and things required by general law or by the ordinances to be performed by policemen; and he shall perform such other duties as may be required of him by the council.

(h) Members of the police force, directly employed by the urban county government, shall be, and are hereby, authorized to carry concealed deadly weapons on or about their persons at all times while within the commonwealth.

(i) The following property procedure shall apply:

(1) The division of police shall take charge of property, within their jurisdiction, alleged to be or suspected of being the proceeds of crime, property taken from the person of a prisoner, lost or abandoned property taken into the custody of any member of the police force or criminal court, and property taken from persons supposed to be insane, intoxicated or otherwise incapable of taking care of themselves.The officer or court having custody of such property shall as soon as practicable deliver it into the custody of the division of police.

(2) All such property shall be particularly described and registered by the division of police in a book kept for that purpose, containing the name of the owner, if ascertained, the place where found, the name of the person from whom taken, with the general circumstances, the date of its receipt, the name of the officer recovering the property, the names of all claimants thereto, and any final disposition of the property. The division of police shall advertise the property pursuant to KRS chapter 424 for the information of the public as to the amount and disposition of the property.

(3) If any property in the custody of the division of police is desired as evidence in any criminal court, such property shall be delivered to any officer who presents an order to that effect from the court. Such property shall not be retained in the court but shall be returned to the division of police.

(4) All property except firearms that remains in the custody of the division of police for three (3) months, without any lawful claimant thereto, may be sold at public auction in a suitable room designated for that purpose, after having been advertised pursuant to KRS chapter 424. The proceeds of such sales shall be paid into the police and fire pension fund established at KRS 67A.360 et seq. Firearms shall be disposed of as provided by KRS 500.090.

(j) Pursuant to KRS 431.007, the division of police may respond to requests for assistance by law enforcement agencies outside Fayette County in conformity with the following regulations:

(1) In the event of a staffing or other emergency in any other county, members of the division of police may be assigned to duty in the other county when so requested by the law enforcement agency in that county. The division of police may also respond to counties when there are non-emergency situations which require special equipment or training which the other county does not possess. Unless other-

wise agreed between the agencies, when members of the division of police respond to such calls for assistance, the ranking law enforcement officer of the jurisdiction making the request shall be deemed the commander.

(2) In exercising the discretion to send members of the division of police out of Fayette County as above set out, the mayor and the police chief shall at all times ascertain to the best of their ability the necessity for such assistance and shall also give primary and due consideration to the requirements of adequate police protection for Fayette County.

(3) Pursuant to KRS 431.008, when a member of the division of police is lawfully conducting an assistance operation under this section, any insurance relative to the performance of his duties, including, but not limited to, workers' compensation, health, liability, and motor vehicle insurance, shall remain in force.

(4) The mayor shall have authority to sign agreements and memoranda of understanding with other law enforcement jurisdictions as necessary to effectuate the intent of KRS 431.007 and this section.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 307-2001, § 1, 12-6-01; Ord. No. 301-2002, § 1, 11-21-02)

State law reference(s)—Custody and disposition of property taken by the police department, KRS 95.435; duties and liabilities of chief of police and policemen, fees, in urban county government, KRS 95.480; carrying concealed deadly weapons, KRS 527.020(3).

Sec. 23-10. Recruitment.

The director, in consultation with the chief in whose division a vacancy occurs, shall determine the specific recruiting methods to be used; but, for appointments to the positions of police officer and fire fighter only, at a minimum he will prepare examination or recruitment announcements which shall be used to give public notice of vacancies by publication. Examination or recruitment announcements will describe the duties of the position, minimum qualifications, salary, closing date for filing applications (where applicable), testing or other selection procedures and such other information as the director deems appropriate.

(Ord. No. 135-82, § 1, 7-29-82)

Cross reference(s)—Recruitment of classified civil service employees, § 21-8; recruitment of unclassified civil service employees, § 22-8.

Sec. 23-11. Applications.

(a) All applications must be made on official forms prescribed by the director and filed in the division of human resources on or before the closing date specified in the examination or recruitment announcement. Mailed applications must be postmarked no later than midnight of the closing date for filing. Applications which are filed become the property of the urban county government and will not be returned.

(b) Applicants shall, on demand, furnish to the director proof of age, experience and educational qualifications, or such licenses or certificates as are required by law to practice a profession, art or trade where such is a bona fide requirement of the job or class.

(c) Applicants must satisfy the minimum requirements stated in the class specifications and the examination announcement, or otherwise established by law or ordinance.

(d) No applicant shall be admitted to examination for any position in the division of fire and emergency services or division of police who has made false statements of material fact in his application; has used, or attempted to use, any unfair method to obtain an advantage in an examination or appointment to which he is not rightfully entitled; has directly or indirectly obtained knowledge of the contents of the examination to which, as an applicant, he was not entitled, or who has taken part in compiling, administering or scoring the examination; has used or threatened to use or attempted to use political influence in securing employment, reemployment or promotion; or has failed to submit his application correctly and fully or within the prescribed time limit.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 296-2000, § 2, 9-28-00)

Cross reference(s)—Applications for classified civil service employees, § 21-9; applications for unclassified civil service employees, § 22-9.

State law reference(s)—Prohibition of political activity, KRS 95.470.

Sec. 23-12. Examinations.

(a) Culture-fair and job-related examinations will be used to determine the eligibility of applicants for appointment and their rankings on the eligible list. All applicants for appointments to positions in the division of fire and emergency services or division of police shall be examined as to their qualifications for office, including their knowledge of the English language and the law and rules governing the duties of the position applied for.

(b) The content and combination of tests to be used shall be as specified in sections23-18, 23-20 and 23-21 and, for recruit police officers, section 22-53.1, so that all eligible candidates shall be examined as to their physical and mental qualification for the particular classification wherein they seek appointment. The weights assigned to each subject shall represent its value in determining the general average.

(c) Examinations or evaluations may consist of any one (1) or more of the following: Written tests, oral examination, appraisals of experience and training, appraisals of past job performance based on performance evaluation, physical agility tests, job performance tests, or other relevant selection criteria, as established pursuant to sections 23-18, 23-20 and 23-21 and, for recruit police officers, section 22-53.1.

(d) The director shall be responsible for the scheduling of all examinations and publishing notices thereof, except as otherwise specified in this chapter. Actual notice of the time and place of examinations shall be given to all eligible applicants.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 285-2003, § 7, 12-4-03)

Cross reference(s)—Examinations for classified civil service employees, § 21-10, examinations for unclassified civil service employees, § 22-10.

Sec. 23-13. Preference points.

(a) The director shall apply preference points equivalent to a two (2) percent upgrade to the candidates' final score, after all required examinations are completed, for any candidate who has served in any branch of the United States Armed Forces and who has received an honorable discharge. The director shall also apply preference points equivalent to a two (2) percent upgrade to the candidates' final score for Fayette County residents and an equivalent one (1) percent upgrade to the candidates' final score for residents of the following contiguous counties: Bourbon, Clark, Jessamine, Madison, Scott, and Woodford.

(b) In no case shall the application of the military preference consideration contained in this section operate to raise an applicant's unadjusted evaluation score if such score is below the minimum score set for qualification for appointment to the position for which application is made.

(c) Prior service with the urban county government or with its predecessors shall not entitle any applicant to the position of fire fighter to any increase on his examination mark.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 96-83, § 1, 6-16-83; Ord. No. 97-96, § 6, 6-13-96; Ord. No. 68-2004, § 1, 4-8-04; Ord. No. 122-2014, § 2, 9-25-14)

Cross reference(s)—Military and seniority preference for classified civil service employees, § 21-11.

Sec. 23-14. Eligibility lists.

(a) The director shall, as soon after examination as is practicable, certify a list of the applicants so examined, with the one having the highest average ranked first and all others ranked numerically according to the results of the examination.

(b) Except as otherwise provided in this chapter, the director shall maintain an eligible list of not less than three (3) for each position to be filled.

(c) The eligible list shall remain in existence for the time limits established in sections23-18, 23-20 and 23-21, and, for recruit police officers, section 22-53.1. The eligible list shall be in effect from the date it is certified by the director.

(d) The name of an applicant shall be removed from the eligible list at the expiration of such list.

(e) A person who refuses more than one (1) appointment or accepts appointment to a position in the class for which he is certified shall have his name removed from the eligible list.

(f) A person who has engaged in fraud or made a misstatement of material fact in his application and/or examination shall have his name removed from the eligible list.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 285-2003, § 8, 12-4-03)

Cross reference(s)—Eligibility lists for classified civil service employees, § 21-12; eligibility lists for unclassified civil service employees, § 22-11.

Sec. 23-15. Requisition and certification.

(a) Whenever a vacancy in a division of fire and emergency services or division of police position is to be filled, the chief in whose division the vacancy occurs will notify the appointing authority and the director as far in advance as possible. The chief may request, on a form prescribed by the director, a certification to him of the eligibles in the particular class wherein the vacancy exists. Examinations may be scheduled in advance of future vacancies.

(b) The director shall certify to the chief in whose division the vacancy exists the eligibles who are ranked highest in the numerical rankings, and the chief may schedule a preemployment interview with those eligible for appointment. Failure to appear at a preemployment interview without furnishing satisfactory explanation to the chief shall warrant the director's removal of an individual from the eligible list.

(c) A person on any eligible list may waive consideration for appointment within four (4) working days after being notified of the certification, on a form prescribed by the director. If the reason for a waiver is deemed appropriate and sufficient by the director, it may be approved for a stipulated period not to exceed sixty (60) days. A waiver will count as a certification against the individual. No more than one (1) waiver per eligible will be permitted during the lifetime of the list.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Requisition and certification of classified civil service employees, § 21-13; requisition and certification of unclassified civil service employees, § 22-12.

Sec. 23-16. Appointments.

(a) The appointing authority shall make all appointments, probationary and permanent, subject to ratification by the urban county council. Prior to appointment, he shall receive recommendations from the chief in whose division the vacancy exists; and he may conduct a preemployment interview if desired. In all cases the appointing authority shall receive the recommendation of the chief administrative officer and commissioner of public safety prior to the submission of the appointment to the urban county council.

(b) All appointments shall be made only from the list of candidates certified by the director after examination. Appointments under sections23-18, 23-20 and 23-21, and, for recruit police officers, section 22-53.1 shall be

made only by the selection of one (1) of the five (5) holding the highest average in the particular class wherein the vacancy exists. Appointments made from the police academy shall include all individuals who successfully complete the academy process. All such appointments will be probationary pending completion of the probationary period. No employee shall begin work until he has passed any required medical examination specified by the director.

(c) Before permanent appointment, members of the division of fire and emergency services and division of police shall serve a six-month probationary period, except that police officers and fire fighters shall serve a twelve-month probationary period. Time spent in the police academy created pursuant to sections 22-53 and 22-53.1 of the code of ordinances shall not count toward the twelve-month probationary period for members of the division of police.

(d) The probationary period shall be used for the effective adjustment of new members through supervision, counseling and evaluation, as well as for the elimination of any probationary members who do not meet the required standards of work. The appointing authority may terminate a probationary member at any time during the probationary period without ratification by or a hearing before the council.

(e) No later than two (2) weeks prior to the conclusion of the probationary period, the chief shall recommend in writing to the appointing authority the release or permanent appointment of the member. However, his recommendation may at any time prior to the conclusion of the probationary period be changed and shall not in any event be binding on the appointing authority. Any recommendation for permanent appointment shall be accompanied by a certificate by the chief that the member's probationary period has been successfully completed.

(f) Prior to the conclusion of the probationary period, the appointing authority shall either terminate the member under the same conditions as in subsection (d) or make a permanent appointment as provided in subsection (a). A member who is not released prior to service of the specified time in probationary status shall acquire permanent status automatically.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 97-96, § 7, 6-13-96; Ord. No. 16-99, § 1, 1-28-99; Ord. No. 285-2003, § 9, 12-4-03)

Cross reference(s)—Appointments of classified civil service employees, § 21-14; appointment of unclassified civil service employees, § 22-13.

Sec. 23-17. Police chief and fire chief.

(a) Sections 23-3, 23-7 and 23-10 through 23-15 shall not apply to appointments to the positions of police chief and fire chief. Subsections (a), (b) and (e) of section 23-16 shall not apply to appointments to the position of fire chief; and no part of section 23-16 shall apply to appointments to the position of police chief.

(b) The appointing authority shall make all appointments to the positions of police chief and fire chief, subject to ratification by the urban county council.

(c) The council shall conduct or cause to be conducted suitable examinations into the qualifications of persons nominated by the appointing authority to the positions of police chief and fire chief.

(d) In the event there is no appointee occupying the position of police chief or fire chief, a vacancy exists in such position. The appointing authority may temporarily appoint a member of the division in which the vacancy exists to the vacancy until a new chief is appointed. A temporary appointee shall be salaried in the step in the higher grade that will provide an increase of at least seven (7) percent over the salary he received immediately prior to the temporary appointment if the appointment is to a grade one grade higher than that occupied by the member or at least ten (10) percent if the grade is two (2) or more grades higher than that occupied by the member. A member who is temporarily appointed to the vacant position shall be credited with time of service in his own position for time spent in a temporary appointment.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 4-95, § 3, 1-12-95; Ord. No. 2-97, § 1, 1-9-97; Ord. No. 18-2002, § 1, 1-24-02; Ord. No. 227-2004, § 1, 9-9-04)

Sec. 23-18. Firefighter recruitment.

(a) The division of human resources shall create a register for appointment to positions in the firefighter academy.

(b) The examination for appointment to the fire academy shall be comprised of a two (2) phase process. Phase I shall consist of a written examination, a physical fitness test, and an oral examination. Phase II shall consist of a polygraph examination and a background investigation.

(c) Candidates shall be nineteen (19) years of age by the application filing deadline and shall not have reached their thirty-fifth birthday by the application deadline.

(d) Prior to each academy class, the director of human resources shall close the date for applications for each class to be published as required by KRS Chapter 424.

(e) The examination process shall be validated by the division of human resources.

(f) Phase I shall consist of the following:

(1) A job-related written examination shall be prepared and validated by the division of human resources. The test administrator shall provide each candidate with his score on the written examinations and shall indicate to each candidate whether he/she is eligible to proceed.

a. A different version of the written test will be given for each recruitment cycles.

(2) Each candidate shall complete and pass a job related physical fitness test which has been approved by the division of human resources.

(3) An oral examination shall be prepared and administered by the division of fire and emergency services.

a. The oral board shall consist of the following six (6) members:

1. One (1) fire lieutenant, a fire captain, and the fire chief or a designated representative not below the rank of major, appointed by the fire chief.
2. A paramedic, appointed by the fire chief.
3. A firefighter, appointed by the fire chief.
4. A professional member of the community appointed by the fire chief with approval from the director and commissioner of public safety.
5. At least one (1) African-American and one (1) female. One (1) individual shall not satisfy both requirements.
6. The director, or his designated representative, shall attend all sessions of the oral examination boards as a neutral advisor. He or his designee shall have no vote in any of the proceedings.
7. A member of the urban county council, to be appointed by the vice-mayor, may attend all sessions as a neutral observer. He shall not have a vote in any of the proceedings.

(4) After the written and oral examination process, the representative/test administrator shall compute the scores of the candidates' preference points equaling a two (2) percent upgrade will be applied to any candidate's score who has served in any branch of the United States military and who has received an honorable discharge.

(g) Phase II shall consist of the following:

(1) The fire chief shall establish the maximum number of candidates from the testing procedure who will proceed to Phase II of the hiring process. Phase II shall consist of a polygraph examination and a background investigation.

(2) Upon completion of Phase II, all components of Phase I and II will be reviewed and taken into consideration when recommending candidates for selection.

a. The division of fire shall supply the director with a list of those applicants whom the division recommends be eliminated from current and future hiring processes. The director shall accept the recommendation for elimination if the circumstances satisfy the requirements of KRS 95.440 and applicable sections of the Code of Ordinances. The aforementioned examination, test, and reports may also be used as a basis to remove a candidate at any other point in the process.

(h) When vacancies arise in the division, the chief shall select names from the eligible list equal to the number of approved positions and a sufficient number of alternates.

(i) After all requirements have been met, the chief shall forward his recommendation through the urban county government chain of command to the mayor with a recommendation for appointment. The mayor may

accept or reject any recommendation made through the chain of command and shall have the sole prerogative to make the final selections. After the final selections are made, the mayor shall submit the recommendations to the urban county council for approval to make conditional offers. After conditional offers are made and accepted, each selected candidate shall undergo a physical examination or medical examination, psychological suitability screening test and drug screening. All candidates who successfully complete the physical examination or medical examination, psychological suitability screening test and drug screening shall begin their probationary period.

(j) If a candidate is selected for an academy and is unable to attend or complete the academy due to unforeseen circumstances, the director and chief will review the situation and decide if the candidate will be allowed deferral to the next academy. Any candidate who is allowed to defer to the next academy shall again pass applicable Phase I and Phase II requirements.

(k) Upon the completion of the orientation section of each academy class, the list shall be expired. However the director and fire chief shall have the discretion to exhaust or maintain the list.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 97-83, §§ 1—3, 6-16-83; Ord. No. 198-84, § 1, 11-1-84; Ord. No. 247-86, § 1, 11-20-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 317-87, § 1, 12-17-87; Ord. No. 34-88, § 1, 2-25-88; Ord. No. 187-88, § 1, 8-25-88; Ord. No. 17-90, § 1, 2-8-90; Ord. No. 27-91, § 1, 2-21-91; Ord. No. 64-91, §§ 1, 2, 4-4-91; Ord. No. 13-92, §§ 1, 2, 1-23-92; Ord. No. 135-93, §§ 1, 2, 7-8-93; Ord. No. 193-94, §§ 1, 2, 9-22-94; Ord. No. 60-95, § 1, 3-23-95; Ord. No. 90-95, §§ 3, 4, 5-4-95; Ord. No. 91-95, §§ 1—3, 5-4-95; Ord. No. 97-96, § 8, 6-13-96; Ord. No. 152-96, §§ 2—6, 8-22-96; Ord. No. 326-2005, § 1, 12-1-05; Ord. No. 73-2010, § 1, 4-22-10; Ord. No. 227-2010, § 4, 12-9-10; Ord. No. 26-2012, §

Sec. 23-19. Oath and bond for police.

(a) Each new member of the police force, before entering upon the discharge of his duties, shall take an oath before the mayor to faithfully discharge the duties of his office. The oath shall be subscribed by the person taking it and filed in the office of the commissioner of finance.

(b) The police chief and each other member of the police force shall give such bond to the urban county government, and with such surety as specified in subsection (c), conditioned that they will faithfully perform the duties of their office and pay over to the persons entitled thereto all moneys that may come into their hands. A lien shall exist on the lands of the chief and other members of the police force, and their sureties, from the time of executing bond, for all sums of money that come into their hands.

(c) The bond mentioned in subsection (b) shall be given in the amount of twenty-five hundred dollars ($2,500.00), with some solvent and reliable guaranty company authorized to do business in the state, as

surety thereon, for the faithful performance of the duties of their respective positions and employment, as required by general laws and ordinances governing and related thereto. No individual covered by this section shall perform any duty or act of employment until he shall have given bond as herein required.

(Ord. No. 135-82, § 1, 7-29-82)

State law reference(s)—Oath and bond members of police force of urban county governments, KRS 95.490.

Sec. 23-20. Promotions—Division of fire and emergency services.

(a) The promotional process for the division of fire and emergency services shall be administered according to the procedures established in sections23-3, 23-7 and 23-10 through 23-16 by the division of human resources at the direction of the director, who shall certify the promotion list. The director and the chief of the division of fire and emergency services shall maintain the promotion list of eligibles for each rank. All promotion process components, including all examinations, shall be job related.

(b) (1) Prior to the official date for filing applications:

a. An applicant for the position of fire lieutenant must have completed at least sixty (60) uninterrupted months of satisfactory service in the division of fire and emergency services. The last twenty-four (24) months of such service must be free of any suspensions. Service time shall be computed from the date of appointment as a recruit firefighter, shall be completed immediately prior to the official deadline for filing applications as set out in the examination announcement, and shall include any special assignment while on approved leave of absence.

b. An applicant for the position of fire captain must have completed at least seventy-two (72) uninterrupted months of satisfactory service in the division of fire and emergency services. The last twelve (12) months of such service must have been in the grade as fire lieutenant and the last twenty-four (24) months of such service must be free of any suspensions. Service time shall be computed from the date of appointment as a recruit firefighter, shall be completed immediately prior to the official deadline for filing applications as set out in the examination announcement, and shall include any special assignment while on approved leave of absence.

c. c. An applicant for the position of fire major must have completed at least one hundred and twenty (120) uninterrupted months of satisfactory service in the division of fire and emergency services. The last twelve (12) months of such service must have been in the grade as fire captain and the last twenty-four (24) months of such service must be free of any suspensions. Service time shall be computed from the date of appointment as a recruit firefighter, shall be completed immediately prior to the official deadline for filing applications as set out in the examination announcement, and shall include any special assignment while on approved leave of absence.

d. d. Each applicant for promotion shall receive a position interest form which must be returned to the division of human resources before the official filing date in order for the candidate to be considered for promotion.

(2) Time spent in an "acting capacity" shall not be considered in computing the "time in grade" requirements of this section.

(3) Each applicant shall receive seniority credit after six (6) years' service as a sworn member of the division of fire and emergency services at the rate of one (1) percent of his combined earned score for each completed year of service, with a maximum of five (5) percent. Seniority points shall be added to the applicant's final score before the candidates are ranked on the eligibility list.

(c) All written examinations shall be by tests compiled by the division of human resources from questions developed by an organization competent to prepare such questions, and shall be authorized by the director and approved by the commissioner of public safety. The source of testing material for all promotions shall be the division of fire and emergency services' standard operating procedures (SOPs) and policies, federal, state and local law pertaining to fire and emergency services, and not more than five (5) additional textbooks recommended by the fire chief and his staff in January of the promotion test year for authorization by the director and approval by the commissioner of public safety. Upon approval by the commissioner of public safety, the recommend textbooks may be posted in the division of human resources and all division of fire and emergency services locations. No additions or changes to the testing materials added to the reference library less than ninety (90) days prior to the examination shall serve as a source of questions for the examination. Test resources shall be available to all applicants at sites designated by the division of fire and emergency services.

(1) The written examination will be given to all eligible applicants at the same time for the rank of the position being tested. Written examination answer sheets shall be identified by number and the numbered control sheets shall be sealed. All answer sheets shall be electronically scored immediately after the written examinations.

(2) The specific examination score of an applicant shall not be disclosed until the examination process has been completed and the promotion list has been posted; provided, however, that any candidate who does not attain a raw score of seventy (70) percent on the written examination shall be eliminated from further testing.

(d) All practical performance examination elements shall be made by the fire chief and his staff, under the following guidelines and evaluation system.

(1) The fire chief and his staff shall formulate test scenarios using static photographic, video, diagram or other media. The scope and complexity of each scenario will be relevant to the rank of the position being tested. The practical test scenarios shall consist of one (1) of each of the following exercises: structure fire; emergency medical services incident; hazardous material incident; personnel issue or problem; and, a teaching/instructor skill. At least ninety (90) days prior to the examination date, the

fire chief or his designee shall create and post a list consisting of not more than fifteen (15) teaching/instructor skills. The teaching/instructor skill that will be included in the practical examination will be limited to one (1) skill randomly selected from the posted list at the time of the examination.

(2) The practical examination shall consist of one (1) scenario from each of the five (5) testing scenarios. During the examination, the applicant will be presented with each scenario and will have up to five (5) minutes to verbally describe his actions to manage the exercise at the level of complexity of the tested position. Each applicant's response shall be videotaped. The videotape shall include the applicant's testing number, for purposes of identification. Each test scenario of the practical examination will be administered to all eligible applicants on the same day. Applicants will be randomly selected to take the practical examination. All untested applicants shall be sequestered during the administration of each test scenario to prevent collusion between tested and untested applicants during the test administration process.

a. Each applicant's videotape will be presented to an evaluation board for assessment and scoring. The evaluation board shall consist of a minimum of three (3) evaluators who shall be of equal rank or higher than the level of the position being tested. The members of the evaluation board shall be from out-of-state fire departments with staffing at least three hundred (300) or greater.

b. The fire chief shall appoint a subject matter specialist, who shall assist the evaluation board. The subject matter specialist shall address any questions or discrepancies with the evaluation board, using the applicable testing material.

(3) All evaluation board grading forms shall be collected and tallied by the division of human resources and shall be recorded immediately after each applicant's assessment is completed.

(e) (1) All oral examinations shall be conducted by an interview board consisting of the following:

a. Two chief officers from the division of fire and emergency services.

b. Two fire service members of a comparable or higher rank of the position being tested from out of state departments.

c. A member of the community selected by the director and approved by the commissioner of public safety.

d. The director or designee from the division of human resources.

e. Members of oral examination and practical examination evaluation boards who are not urban county government employees shall be entitled to a per diem allowance of forty dollars ($40.00); except, however, that members of the boards who serve as representatives of out of state fire departments shall be reimbursed all reasonable expenses for food, lodging and travel directly related to service on the boards.

(2) The oral examination shall consist of the following matters weighted as noted:

a. Training grades received from the division of fire and emergency services' training bureau for the two (2) most recent calendar years, weighted at five (5) percent of the score; and

b. Questions developed by the division of human resources and approved by the commissioner of public safety and the candidate's absenteeism record for the two (2) year period prior to the application filing deadline, weighted at twelve and one-half (12 1/2) percent of the score. Absenteeism shall be considered as absent without approved leave (AWOL), late, suspended without pay and absence, all as defined in division of fire and emergency services' SOP #571.70.

c. The oral examination board shall ask each candidate the same questions and shall not discuss the candidates among themselves.

(f) (1) Each applicant's promotability shall be assessed by his chain of command. An assessment form, composed of (10) weighted performance standards, shall be completed by each applicant's chain of command. The performance standards shall be recommended by the fire chief and his staff, authorized by the director and approved by the commissioner of public safety. Each performance standard shall be weighted with a point value of between one (1) and five (5) points, with one (1) being minimally qualified and (5) being exceptionally qualified.

(2) The promotability assessment shall focus on the applicant's ability to lead and his past job performance.

(3) For any promotional process conducted prior to July 1, 2005, the applicant's score shall be the assessment for the one (1) year period prior to the filing deadline. For any promotion process conducted thereafter, the applicant's score shall be the average of the combined chain of command scores for the two (2) year period prior to the filing deadline.

(4) Applicants testing for the rank of fire lieutenant will have a minimum of three (3) chain of command evaluators (command members). Applicants testing for the rank of fire captain or fire major will have a minimum of two (2) chain of command evaluators (command members).

(5) Each chain of command member shall base his assessment on his personal knowledge and observation of the applicant's leadership qualities and job performance. A chain of command member shall not discuss an applicant's assessment with other members of the applicant's chain of command.

(6) The promotability assessment will be included in the annual appraisal for all sworn members of the division of fire and emergency services after they have completed three (3) years of employment with the division.

(g) (1) To fill a vacancy in the ranks of fire lieutenant, fire captain and fire major, the names of the five (5) top ranking candidates for each position shall be forwarded to the fire chief, who may interview the candidates.

The chief shall choose one (1) of the five (5), which candidate's name shall be forwarded through the urban county government chain of command to the appointing authority with a recommendation for appointment.

(2) Eligible applications may be certified to the fire chief five (5) times for consideration. Thereafter, if not selected, they shall be removed from the list of applicants eligible for promotion. Such removal does not prevent future examinations, eligibility and certification. The promotion lists shall be established on the basis of the highest numerical score computed under the following criteria, which shall be administered in the order set out below:

a. Thirty (30) percent on a written examination.

b. Forty (40) percent on a practical performance examination.

c. Twelve and one-half (12 1/2) percent on oral examination, which includes the absenteeism report.

d. Five (5) percent on training grades.

e. Twelve and one-half (12 1/2) percent on chain of command promotability assessments.

Following the completion of all five (5) phases of the examination criteria by all applicants, the applicants shall be ranked according to their combined numerical scores, as weighted above.

(h) All promotion lists shall continue to be in existence for two (2) years or until a new list is posted, whichever is later. A promotion list shall be developed at least thirty (30) days prior to the expiration date of the existing promotion list.

(i) The intent of this promotion process shall not be circumvented by acting appointments. Vacancies shall be filled or abolished within thirty (30) days of the beginning of the promotional process, which must begin within sixty (60) days of the vacancy.

(j) An applicant serving in an "acting" capacity shall not receive any special promotional consideration because of that assignment.

(k) Suspension for any reason of an applicant eligible for promotion shall be cause for automatic removal from any promotion list.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 31-87, § 1, 3-5-87; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 76-88, §§ 1, 2, 4-21-88; Ord. No. 90-96, § 1, 5-30-96; Ord. No.

127-98, § 1, 5-7-98; Ord. No. 16-99, §§ 2, 3, 1-28-99; Ord. No. 122-2004, § 1, 5-25-04; Ord. No. 245-2004, § 1, 9-23-04)

Sec. 23-21. Same—Division of police.

(a) The promotional process for the division of police shall be administered according to the procedures established in sections23-3, 23-7 and 23-10 through 23-16 by the division of human resources at the direction of the director, who shall certify and maintain the list of applicants eligible for promotion for each rank. All promotion process components, including all examinations, shall be job related.

(b) Applicants for promotion must satisfy the following requirements:

(1) An applicant for the position of police sergeant must have completed four (4) years of satisfactory, service as a member of the police force. The service shall be continuous within the division of police, and the last twelve (12) months of such service must be free of any suspensions. Service time shall be computed from the date of permanent appointment, shall be completed immediately prior to the official deadline for filing applications as set out in the examination announcement, and shall include any special assignment while on approved leave of absence.

(2) An applicant for the position of police lieutenant must have completed two (2) years of satisfactory service in grade as police sergeant. The service shall be continuous within the division of police, and the last twelve (12) months of such service must be free of all suspensions. Service time shall be computed from the date of appointment, shall be completed immediately prior to the date of the written examination as set out in the examination announcement, and shall include any special assignment while on approved leave of absence.

(3) An applicant for the position of police captain must have completed one (1) year of satisfactory service in grade as police lieutenant. The service shall be continuous within the division of police, and the last twelve (12) months of such service must be free of any suspensions. Service time shall be computed from the date of appointment, shall be completed immediately prior to the date of the written examination as set out in the examination announcement, and shall include any special assignment while on approved leave of absence.

(c) Promotions to police sergeant, police lieutenant and police captain shall consist of two (2) phases, the screening process and the assessment center process. In the event there are thirty (30) or fewer applicants for promotion to the position of sergeant or ten (10) or fewer applicants for promotion to the position of lieutenant or captain, however, no screening process shall be required and all applicants shall be eligible to proceed to the assessment center phase.

(1) The screening process shall consist of two (2) parts, a written and an oral examination. The written examination shall be pass/fail. Those applicants achieving a passing score on the written examination shall proceed to the oral examination.

(i) The written examination shall be administered by the division of human resources, and the following shall apply:

a. Written examinations sheets shall be identified by the application number given each applicant by the division of human resources. The numbered control sheet shall be sealed in an envelope in the custody of the division of human resources.

b. A passing score on the written examination shall be established at no less than one (1) but no more than two (2) standard deviations below the mean pursuant to American Psychological Association Standards. Prior to the examination, the director shall present each candidate with a written explanation of this process.

c. All written examinations shall be by tests compiled by the division of human resources from questions submitted by the division of police with the approval of the commissioner of public safety.

d. Sources of testing material shall be government regulations and textbooks recommended by the police chief and his staff, authorized by the director, and approved by the commissioner of public safety.

e. No materials added to the reference library less than ninety (90) days prior to the examination shall serve as a source of questions for the examination.

f. Test resources shall be identified by a reading list, maintained in the division, which shall include titles, authors and publishers, as well as editions, volumes or printing dates where applicable.

g. The reading list shall be available to all applicants at all times.

h. Test resources shall be made available to all applicants in a fair and equitable manner.

i. The monitors of the examination shall grade each applicant's examination before the applicant leaves the examination room. Applicants shall be given their raw scores after this grading is completed.

j. On the day after the examination, the raw scores shall be listed by application number and posted in a prominent location in the division of human resources and the division of police.

k. Within three (3) days after the examination, the division of human resources shall list, by application number, scores on the written examination converted in accordance with criteria established by American Psychological Association Standards and shall post those scores in a prominent location in the division of human resources and the division of police.

(ii) The oral examination shall be monitored by the division of human resources, and the following shall apply:

a. Members of oral examination boards shall be the same for all interviews for any one (1) rank.

b. Oral interview board members shall ask each applicant the same questions.

c. There shall be no discussion among board members of individual applicants, and each board member shall independently rate each applicant on forms supplied by the division of human resources. If the director observes any group discussion, he shall declare the oral interview section void, shall empanel a new oral examination board, and shall reschedule new interviews for all applicants.

d. The oral interview board shall consist of the following members:

1. The police chief or his designated representative from among command officers appointed pursuant to section 23-30(b)(3).

2. An officer from a municipal police department of another jurisdiction which is not smaller than the division of police, of a rank equal to the one for which the applicant is competing, to be selected by the director.

3. An instructor from an accredited law enforcement education program, selected by the director and approved by the commissioner of public safety.

4. A member of the urban county council, to be appointed by the vice-mayor, may attend all sessions as a neutral advisor, but shall have no vote in any of the proceedings.

5. A professional member of the community with experience in education, business or government but not associated with the urban county government, selected by the commissioner of public safety and approved by the director.

6. The director or his designated representative, who shall have no vote but shall serve as a neutral observer and adviser.

7. The oral interview boards shall include at least one (1) female member.

e. As soon as possible after the oral interview, the director shall list the interview scores by applicant identification number and post the scores in a prominent location in the division of human resources and the division of police.

(iii) Following completion of the written and oral examination process as specified in subsection (c)(1)(i), (ii), a composite numerical ranking of applicants for the ranks of police sergeant, police lieutenant and police captain shall be compiled by the division of human resources. The scores shall be listed by applicant identification number.

(iv) The applicants having the highest numerical scores, which shall not exceed thirty (30) applicants for the rank of police sergeant nor ten (10) applicants for the ranks of police lieutenant or police captain, shall be designated as those applicants who are eligible to compete in the second phase of the examination process.

(2) (i) An assessment center process shall be used to evaluate those applicants successfully completing the first phase of the promotional process or those applicants excepted for the first phase pursuant to (c) above.

a. The assessment center shall be chosen by the director and shall be staffed by professionals qualified to perform evaluations of this kind.

b. Candidates shall be rated in areas broadly defined as job knowledge, personality profile and management or supervisory traits.

c. Selection of professional evaluation methods shall be in the discretion of the assessment center personnel and may include role-playing situations and one (1) or more interview sessions.

(ii) At the end of the assessment center process, the center personnel shall rate each of the applicants.

(iii) The ratings assigned by the center personnel shall be sent to the director and shall be the final and only score used by the division of human resources in preparing an official promotional eligibility list.

(iv) Each candidate may request an interview with the assessment center personnel to review and discuss demonstrated strengths and weaknesses as revealed in the assessment process; provided that requests for such reviews shall be made within ten (10) days following the posting of the official eligibility list. Interviews will be scheduled by the assessment center personnel.

(3) (i) To fill a vacancy in the ranks of police sergeant, police lieutenant and police captain, the names of the five (5) top-ranking candidates for each position shall be forwarded to the police chief, who may interview the candidates. The chief shall choose one (1) of the five (5), which candidate's name shall be forwarded through the urban county government chain of command to the appointing authority with a recommendation for appointment.

(ii) Eligible applications may be certified to the police chief five (5) times for consideration. Thereafter, if not selected, they shall be removed from the list of applicants eligible for promotion. Such removal does not prevent future examinations, eligibility and certification.

(d) Suspension for any reason of an applicant eligible for promotion shall be cause for automatic removal from any promotion list.

(e) All lists of applicants eligible for promotion shall continue in existence for two (2) years or until a new list is posted, whichever is later. Upon determination of a new numerical ranking of applicants eligible for promotion, all previous ranking shall be null and void and no ranking may be carried over. A new promotion list shall be developed at least thirty (30) days prior to the expiration date of the existing promotion list.

(f) The intent of the promotional process shall not be circumvented by acting appointments or assignments. A position shall be filled or abolished within ten (10) days of a vacancy in that position.

(g) Any applicant serving in a "acting capacity" shall not receive any special promotional consideration because of that assignment or appointment.

(h) The following provisions shall apply to any applicants who become a member of the urban county police force after January 1, 1974:

(1) Effective September 1, 1976, an applicant for promotion to police sergeant must have at least sixty-three (63) semester hours of college credit from an accredited college or university, or an associate degree from an accredited college or university.

(2) Effective January 1, 1981, any applicant for promotion to police lieutenant must have one hundred twenty-six (126) semester hours of college credit from an accredited college or university, or a bachelor's degree from an accredited college or university.

(3) Effective January 1, 1974, forty (40) hours of approved training, including the required KLEFPF training, but excluding basic recruit training, may be substituted for three (3) college credit hours. This approved training must meet commonwealth training requirements as approved by the Kentucky Law Enforcement Council; and, additionally the training must be approved by the police chief.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 239-82, § 1, 12-16-82; Ord. No. 19-83, § 1, 2-10-83; Ord. No. 1-84, § 1, 1-12-84; Ord. No. 76-88, §§ 3, 4, 4-21-88; Ord. No. 36-90, § 1, 2-22-90; Ord. No. 65-90, § 4, 4-5-90; Ord. No. 47-91, § 1, 3-28-91; Ord. No. 13-92, §§ 3—6, 1-23-92; Ord. No. 21-92, § 1, 2-6-92; Ord. No. 136-92, § 1, 7-9-92; Ord. No. 154-92, § 1, 8-27-92; Ord. No. 65-96, § 1, 5-2-96; Ord. No. 127-98, § 2, 5-7-98; Ord. No. 16-99, § 4, 1-28-99)

Sec. 23-22. Annual physical examination.

(a) Every member of the division of fire and emergency services and of the police force shall submit to a biannual physical examination by a physician. Additional examinations may be required as necessary. The physician may, at the option of the member, either be selected by the member or by the urban county government. If a member chooses a physician other than the designated urban county government physician, he shall be reimbursed the sum of thirty-five dollars ($35.00).

(b) Every member of the police force hired on or after May 1, 1991, shall meet the fitness criteria developed by the director in consultation with fitness professionals. Fitness tests shall be conducted annually.

(c) The director is authorized and directed to make and issue such rules and regulations as are necessary to enforce the requirements of this section. Any member violating any of the terms of this section or rules and regulations issued hereunder shall be subject to disciplinary action in the manner provided in section 23-44.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 187-84, § 1, 10-18-84; Ord. No. 155-87, § 1, 7-9-37; Ord. No. 262-90, § 1, 12-6-90; Ord. No. 200-92, § 1, 12-12-92)

Sec. 23-23. Hours of work.

(a) The division of fire and emergency services shall be divided into three (3) platoons. Each platoon shall be on duty for twenty-four (24) consecutive hours, after which the platoon serving twenty-four (24) hours shall be allowed to remain off duty for forty-eight (48) consecutive hours, except in cases of dire emergency. The fire chief shall arrange the schedule of working hours to comply with the provisions of this subsection. The pay, rank or benefits of the members of the division of fire and emergency services shall not be reduced as a result of this subsection.

(b) Forty (40) hours of work per week shall constitute a full-time workweek for all positions in the division of police. The members of the division of police shall not be required to work more than eight (8) hours per day, for five (5) days each week, except in the event of an emergency.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 55-87, § 1, 7-9-87)

Cross reference(s)—Hours of work for classified civil service employees, § 21-19; hours of work for unclassified civil service employees, § 22-17. State law references(s)—Hours of work for members of urban county police departments, KRS 95.495; for fire fighters, KRS 95.500(3).

Sec. 23-24. Layoff.

(a) Members of the division of fire and emergency services and division of police qualified under section 23-16 shall hold their positions during good behavior, except that the council may decrease the number of police officers or fire fighters as it may deem proper.

(b) If the council decreases the number of police officers or fire fighters, the youngest members in point of service shall be the first to be released and returned to the eligible list of the division, there to advance according to the rules of the division. In case of equal service, members shall be laid off in order of the lowest average performance rating for the last two (2) years of service.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Layoff of classified civil service employees, § 21-20; layoff of unclassified civil service employees, § 22-18.

State law reference(s)—Tenure of police and fire department members, KRS 95.440(3), (4).

Sec. 23-25. Resignation.

(a) In order to resign in good standing, permanent or probationary members of the division of fire and emergency services or division of police shall, at least fourteen (14) days in advance, submit to the appointing authority written notice of resignation. The advance notice requirement for resignation in good standing may, for good cause shown, be waived by the appointment authority. Except as otherwise provided by law or in the ordinances, all seniority, service credit, and employment rights and duties shall be extinguished upon the appointing authority's acceptance of a resignation.

(b) The director shall make all resignation notices as well as the date and, if applicable, circumstances of their acceptance by the appointing authority a part of the member's personnel file.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Resignation of classified civil service employees, § 21-22; resignation of unclassified civil service employees, § 22-19.

Sec. 23-26. Reinstatement.

(a) Any person who has successfully completed his probationary period and subsequently ceased working for the division of fire and emergency services or division of police for reasons other than dismissal shall be eligible for reinstatement to the position, rank, or pay he formerly held or to an equivalent or lower position, rank or pay than that which he formerly held for a period of one (1) calendar year following the date of separation.

(b) Such a person may be reinstated only upon completion of the following requirements:

(1) A written request for reinstatement is made by the person to the appointing authority.

(2) The person received at least a "satisfactory" rating on his last job performance evaluation prior to separation from service.

(3) The director of human resources determines that the person meets the current requirements for the position.

(4) The appointing authority approves the person's reinstatement within one (1) calendar year following the date of separation from service. The recommendation of the person's former supervisor shall be submitted for consideration by the appointing authority.

(c) Any employee may be reinstated in accord with the requirements contained in subsection (b) only if a vacancy exists in the position and rank he formerly held or an equivalent or lower position or rank than that which he formerly held.

(d) The rate of pay for a member upon reinstatement shall be set at the current pay grade assigned to his former position at the same salary as the member received when he separated from service, provided, however, that

he shall not receive a salary lower than the minimum step for the grade. If appointed to a lower position or rank than that which he formerly held, he shall be appointed at the salary he earned when he separated from service.

(e) A reinstated member shall be eligible for a merit increase on the first day of the fiscal year beginning after he has completed six (6) months of service following reinstatement.

(f) Prior service time shall not be counted for purposes of determining a reinstated member's seniority or entitlement to vacation leave, sick leave or longevity pay.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 116-96, § 23, 6-27-96; Ord. No. 227-2004, § 2, 9-9-04)

Cross reference(s)—Reinstatement of former classified civil service employees, § 21-23; reinstatement of former unclassified civil service employees, § 22-20. State law references(s)—Reinstatement of members of police and fire department, KRS 95.440(5).

Sec. 23-27. In-service training.

Notwithstanding the fact that all members of the division of fire and emergency services and division of police must be fully capable of performing the duties prescribed for their classification, supervisors may, in conjunction with the division of personnel and subject to budgetary limitation, develop and conduct training programs designed to improve the quality of service rendered by the urban county government.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—In-service training for classified civil service employees, § 21-24; in-service training for unclassified civil service employees, § 22-21.

Sec. 23-28. Salary schedules.

(a) The following bi-weekly salary schedules are hereby adopted as the amounts to be paid Police Chief and Fire Chief as follows:

FY2026 Pay Scale - Appointed Positions - Police Chief and Fire Chief

	Grade	Step 1	Step 2	Step 3	Step 4	Step 5	Step 6	Step 7	Step 8	Step 9	Step 10 (Max)
Annual	324	134,004	$145,852.32	$151,702.72	$160,553.12	$169,401.44	$178,256	$187,093.92	$195,950.56	$204,792.64	$213,657.60
Bi-Weekly	324	$5,154	$5,494.32	$5,834.72	$6,175.12	$6,515.44	$6,856	$7,195.92	$7,536.56	$7,876.64	$8,217.60
Hourly	324	$64.425	$68.679	$72.934	$77.189	$81.443	$85.700	$89.949	$94.207	$98.458	$102.720

(b) The following bi-weekly salary schedules are hereby adopted as the amounts to be paid fire majors as follows:

Years in Grade	1	2	3	4	5
Annual	$87,915.84	$90,992.89	$94,177.65	$97,473.86	$100,885.45
Biweekly	3,381.38	3,499.73	3,622.22	3,748.99	3,880.21
Hourly	42.267	43.747	45.278	46.862	48.503

(c) The following biweekly salary schedules are hereby adopted as the amounts to be paid police lieutenants and captains:

		Years in grade					
		0—1	1—2	2—3	3—4	4—5	5+
Police lieutenant	Yearly	$71,563.89	$74,319.10	$77,180.39	$80,151.83	$83,237.68	$86,442.33
	Biweekly	2,752.46	2,858.43	2,968.48	3,082.76	3,201.45	3,324.70
	Hourly	34.41	35.73	37.11	38.53	40.02	41.56

		Years in grade			
		0—1	1—2	2—3	3+
Police captain	Yearly	87,939.10	90,577.27	93,294.59	96,093.43
	Biweekly	3,382.27	3,483.74	3,588.25	3,695.90
	Hourly	42.28	43.55	44.85	46.20

(d) The following biweekly salary schedules are hereby adopted as the amounts to be paid firefighters, fire lieutenants and fire captains who work forty (40) hours [per week]:

		0—1	1—2	2—3	3—4	4—5	5—6	6—7	7—8	8—9	9—10
Firefighter	Annual	$34,517.60	$36,171.20	$37,824.80	$39,478.40	$41,129.92	$42,783.52	$44,437.12	$46,092.80	$47,742.24	$49,395.84
	Training Incentive	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00
	Total Annual	37,617.60	39,271.20	40,924.80	42,578.40	44,229.92	45,883.52	47,537.12	49,192.80	50,842.24	52,495.84
	Biweekly	1,327.60	1,391.20	1,454.80	1,518.40	1,581.92	1,645.52	1,709.12	1,772.80	1,836.24	1,899.84
	Normal Hourly Rate	16.595	17.390	18.185	18.980	19.774	20.569	21.364	22.160	22.953	23.748
	Training Hourly	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49
	Total Hourly	18.085	18.880	19.675	20.470	21.264	22.059	22.854	23.650	24.443	25.238
	Unscheduled OT	27.128	28.320	29.513	30.705	31.896	33.089	34.281	35.475	36.665	37.857

		10—11	11—12	12—13	13—14	14—15	15+
Firefighter	Annual	$51,053.60	$51,883.52	$52,707.20	53,537.12	54,362.88	55,190.72
	Training Incentive	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00
	Total Annual	54,153.60	54,983.52	55,807.20	56,637.12	57,462.88	58,290.72
	Biweekly	1,963.60	1,995.52	2,027.20	2,059.12	2,090.88	2,122.72
	Normal Hourly Rate	24.545	24.944	25.340	25.739	26.136	26.534
	Training Hourly	1.49	1.49	1.49	1.49	1.49	1.49
	Total Hourly	26.035	26.434	26.830	27.229	27.626	28.024
	Unscheduled OT	39.053	39.651	40.245	40.844	41.439	42.036

		0—1	1—2	2—3	3—4	4—5	5—6	6—7	7—8	8—9	9—10
Lieutenant	Annual	55,976.96	58,524.96	61,075.04	63,623.04	66,173.12	68,723.20	69,996.16	71,271.20	72,546.24	
	Training Incentive	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00	
	Total Annual	59,076.96	61,624.96	64,175.04	66,723.04	69,273.12	71,823.20	73,096.16	74,371.20	75,646.24	
	Biweekly	2,152.96	2,250.96	2,349.04	2,447.04	2,545.12	2,643.20	2,692.16	2,741.20	2,790.24	
	Normal Hourly Rate	26.912	28.137	29.363	30.588	31.814	33.040	33.652	34.265	34.878	
	Training Hourly	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	
	Total Hourly	28.402	29.627	30.853	32.078	33.304	34.530	35.142	35.755	36.368	
	Unscheduled OT	42.603	44.441	46.280	48.117	49.956	51.795	52.713	53.633	54.552	
Captain	Annual	73,401.12	75,564.32	76,645.92	77,727.52	78,809.12					
	Training Incentive	3,100.00	3,100.00	3,100.00	3,100.00	3,100.00					
	Total Annual	76,501.12	78,664.32	79,745.92	80,827.52	81,909.12					
	Biweekly	2,823.12	2,906.32	2,947.92	2,989.52	3,031.12					
	Normal Hourly Rate	35.289	36.329	36.849	37.369	37.889					
	Training Hourly	1.49	1.49	1.49	1.49	1.49					
	Total Hourly	36.779	37.819	38.339	38.359	39.379					
	Unscheduled OT	55.169	56.729	57.509	58.289	59.069					

(e) The following biweekly salary schedules are hereby adopted as the amounts to be paid firefighters, lieutenants and captains who work fifty-six (56) hours:

		0—1	1—2	2—3	3—4	4—5	5—6	6—7	7—8	8—9	9—10
Firefighter	Annual	$32,657.66	$34,311.68	$35,965.70	$37,619.71	$39,270.40	$40,924.42	$42,578.43	$44,232.45	$45,883.14	$47,537.15
	Training Incentive	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72
	Total Annual	37,616.38	39,270.40	40,924.42	42,578.43	44,229.12	45,883.14	47,537.15	49,191.17	50,841.86	52,495.87
	Biweekly	785.04	824.80	864.56	904.32	944.00	983.76	1,023.52	1,063.28	1,102.96	1,142.72

		0—1	1—2	2—3	3—4	4—5	5—6	6—7	7—8	8—9	9—10
	Normal Hourly Rate	9.813	10.310	10.807	11.304	11.800	12.297	12.794	13.291	13.787	14.284
	Training Incentive [Hourly]	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49
	Total Hourly	11.303	11.800	12.297	12.794	13.291	13.787	14.284	14.782	15.277	15.774
	Scheduled OT	16.955	17.700	18.446	19.191	19.935	20.681	21.426	22.172	22.916	23.661
	Unscheduled OT	25.786	26.979	28.172	29.365	30.555	31.748	32.941	34.133	35.324	36.517

		10—11	11—12	12—13	13—14	14—15	15+
Firefighter	Annual	49,194.50	50,023.17	50,848.51	51,677.18	52,502.53	53,331.20
	Training Incentive	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72
	Total Annual	54,153.22	54,981.89	55,807.23	56,635.90	57,461.25	58,289.92
	Biweekly	1,182.56	1,202.48	1,222.32	1,242.24	1,262.08	1,282.00
	Normal Hourly Rate	14.782	15.031	15.279	15.528	15.776	16.025
	Training Incentive [Hourly]	1.49	1.49	1.49	1.49	1.49	1.49
	Total Hourly	16.272	16.521	16.769	17.018	17.266	17.515
	Scheduled OT	24.408	24.782	25.154	25.527	25.899	26.273
	Unscheduled OT	37.712	38.309	38.905	39.502	40.097	40.695

		0—1	1—2	2—3	3—4	4—5	5—6	6—7	7—8	8—9
Lieutenant	Annual	54,116.61	56,665.86	59,215.10	61,764.35	64,313.60	66,862.85	68,137.47	69,412.10	70,686.72
	Training Incentive	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72
	Total Annual	59,075.33	61,624.58	64,173.82	66,723.07	69,272.32	71,821.57	73,096.19	74,370.82	75,645.44
	Biweekly	1,300.88	1,362.16	1,423.44	1,484.72	1,546.00	1,607.28	1,637.92	1,668.56	1,699.20
	Normal Hourly Rate	16.261	17.027	17.793	18.559	19.325	20.091	20.474	20.857	21.240
	Training Incentive	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49	1.49
	Total Hourly	17.75	18.52	19.28	20.05	20.82	21.58	21.96	22.35	22.73
	Scheduled OT	26.627	27.776	28.925	30.074	31.223	32.372	32.946	33.521	34.095
	Unscheduled OT	41.261	43.100	44.938	46.777	48.615	50.453	51.373	52.292	53.211
Captain	Annual	71,542.02	73,705.22	74,786.82	75,868.42	76,950.02				
	Training Incentive	4,958.72	4,958.72	4,958.72	4,958.72	4,958.72				
	Total Annual	76,500.74	78,663.94	79,745.54	80,827.14	81,908.74				
	Biweekly	1,719.76	1,771.76	1,797.76	1,823.76	1,849.76				
	Normal Hourly Rate	21.497	22.147	22.472	22.797	23.122				
	Training Incentive	1.49	1.49	1.49	1.49	1.49				

		0—1	1—2	2—3	3—4	4—5	5—6	6—7	7—8	8—9
	Total Hourly	22.99	23.64	23.96	24.29	24.61				
	Scheduled OT	34.481	35.345	35.943	36.431	36.918				
	Unscheduled OT	53.828	55.388	56.168	56.948	57.728				

(f) The following biweekly salary schedules are hereby adopted as the amounts to be paid fire majors:

	Years in grade				
	1	2	3	4	5
Annual	87,915.84	90,992.89	94,177.65	97,473.86	100,885.45
Biweekly	3,381.38	3,499.73	3,622.22	3,748.99	3,880.21
Hourly	42.267	43.747	45.278	46.862	48.503

(g) [The following biweekly salary schedules are hereby adopted as the amounts to be paid to aide to council:

Grade		Grade Minimum	Grade Maximum
Aide to Council	Annual	40,358.24	57,655.52
	Monthly	3,363.19	4,804.63
	Biweekly	1,552.24	2,217.52
	Hourly	19.403	27.719

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 116-83, § 1, 6-30-83; Ord. No. 216-83, §§ 1, 3, 11-17-83; Ord. No. 103-84, § 4, 6-28-84; Ord. No. 279-85, §§ 1, 4, 12-19-85; Ord. No. 214-86, § 4, 10-7-86; Ord. No. 133-87, § 4, 6-30-87; Ord. No. 155-87, § 1, 7-9-87, § 1, 7-9-87; Ord. No. 264-88, § 7, 11-17-88; Ord. No. 264-89, § 1, 12-19-89; Ord. No. 139-90, § 4, 6-28-90; Ord. No. 112-91, § 4, 6-13-91; Ord. No. 229-94, § 4, 11-17-94; Ord. No. 71-95, § 6, 4-6-95; Ord. No. 152-95, § 4, 6-29-95; Ord. No. 157-95, § 2, 7-6-95; Ord. No. 267-95, § 1, 11-30-95; Ord. No. 116-96, § 24, 6-27-96; Ord. No. 191-98, § 3, 7-2-98; Ord. No. 171-99, § 3, 6-22-99; Ord. No. 203-2000, § 3, 6-29-00; Ord. No. 281-2000, § 3, 9-14-00; Ord. No. 160-2002, § 3, 6-27-02; Ord. No. 166-2003, § 5, 6-26-03; Ord. No. 304-2003, § 5, 12-4-03; Ord. No. 172-2004, § 1, 7-1-04; Ord. No. 244-2004, § 1, 9-23-04; Ord. No. 195-2005, § 5, 7-12-05; Ord. No. 203-2006, § 6, 6-6-06; Ord. No. 166-2007, § 6, 7-5-07; Ord. No. 180-2008, § 6, 7-8-08; Ord. No. 141-2009, § 6, 7-7-09; Ord. No. 91-2012, § 6, 7-10-12; Ord. No. 77-2013, § 6, 7-9-13; Ord. No. 80-2014, § 5, 7-1-14; Ord. No. 75-2015, § 3, 6-18-15; Ord. No. 125-2016, § 3, 6-23-16; Ord. No.114-2017, § 3, 7-16-17; Ord. No.38-2018, § 3, 6-21-18; Ord. No.110-2021, § 4, 10-28-21; Ord. No. 058-2022, § 4, 6-23-22; Ord. No. O-144-2022, § 3(Att.), 12-6-22; Ord. No.063-2023, § 4, 6-15-23; Ord. No. 070-2024, § 3, 7-2-24; Ord. No.045-2025, § 3, 6-26-25)

Cross reference(s)—Salary schedules for classified civil service employees, § 21-25; salary schedules for unclassified civil service employees, § 22-22.

Sec. 23-29. Entrance rates.

(a) Except as provided in subsection (c), the rate of pay for an individual upon initial appointment to a position in the division of fire and emergency services or division of police shall be made at the minimum step of the pay grade specified for his class. The appointing authority may recommend and the urban county council may approve a compensation rate above the minimum for the grade when it is found to be difficult to recruit qualified persons at the minimum pay or in recognition of the experience or exceptional qualifications of a candidate.

(b) In any case where a member is promoted, the beginning salary shall be set at the step in the higher grade that will provide an increase of at least seven (7) percent if the promotion is to a grade which is one grade higher than that occupied by the employee or at least ten (10) percent if the promotion is to a grade two (2) or more grades higher; provided, however, that no employee shall receive a salary lower than the minimum for his grade.

(c) Any urban county government employee who obtains a position within the division of fire and emergency services or division of police having a higher pay grade than his former position shall have his salary level placed at the point in the higher grade that will provide an increase of at least seven (7) percent, if the appointment is to a grade which is one (1) grade higher than that occupied by the employee, or at least ten (10) percent if the appointment is to a grade two (2) or more grades higher; provided, however, that no employee shall receive a salary lower than the minimum for his grade.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 32-83, § 5, 3-10-83; Ord. No. 214-86, § 13, 10-7-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 264-89, § 2, 12-19-89; Ord. No. 71-95, § 7, 4-6-95; Ord. No. 267-95, § 2, 11-30-95; Ord. No. 116-96, § 25, 6-27-96; Ord. No. 227-2004, § 3, 9-9-04)

Cross reference(s)—Entrance rates of pay for classified civil service employees, § 21-26; entrance rates of pay for unclassified civil service employees, § 22-23.

Sec. 23-30. Computation of salaries.

(a) The biweekly salary rates described in the salary schedules are fixed on the basis of full-time service as defined in section 23-23. In any case listed below, the salary prescribed for full-time employment for any member of the division of fire and emergency services or division of police shall be adjusted by multiplying same by a fraction of the hours actually worked during the pay period as the numerator and the regular number of hours required for full-time employment as the denominator.

(1) Where a member is absent from duty without permission within the meaning of section 23-40;

(2) Where the inception or termination of employment occurs during the pay period; and

(3) Where a member is on authorized leave without pay.

(b) Members of the division of fire and emergency services and police force detailed to special assignments shall be compensated according to a higher pay grade as indicated in this chapter. When so detailed, they shall be

paid at the rate appropriate to their total length of service as a member is qualified for and is required to serve in and accept full responsibility for work of a higher class; such member shall receive the pay of that class while so assigned in such class. A member may be temporarily assigned to work of any position in the same or lower grade without reduction to pay.

(1) Effective January 1, 1986, each police officer or police sergeant assigned to an animal-assisted patrol unit, assigned to motorcycle duty or assigned to the training unit shall, in addition to all other compensation provided for herein, receive the sum of fifty dollars ($50.00) per month.

(2) Each police officer or police sergeant assigned to the planning unit, to the inspector's unit, to the property and evidence unit, to the general services unit, to the central records unit, to the community services unit, to the communications unit, to the communications technical unit or as a detective prior to January 1, 1986, shall continue to receive, in addition to all other compensation provided for herein, the sum of fifty dollars ($50.00) per month until such time as he is transferred from his assignment to another unit in the division of police. The additional compensation shall cease upon transfer unless the police officer or police sergeant is transferred to a position in the units set out in subsection (b)(1) herein.

(3) Each police lieutenant, police captain or police major assigned to the office of the chief of police as assistant chief shall, in addition to all other compensation provided herein, receive a salary supplement equal to an increase of ten (10) percent of his salary or the minimum pay for grade 321, whichever is greater. Each police lieutenant or police captain assigned to the office of the chief of police as police major shall, in addition to all other compensation provided herein, receive a salary supplement equal to an increase of seven (7) percent of his salary if the appointment is to a grade one (1) grade higher than that occupied by the member, or ten (10) percent if the appointment is to a grade two (2) or more grades higher or the minimum pay for grade 319, whichever is greater. Merit increases shall be computed on the members' current salaries, including supplemental pay.

(4) There may be appointed qualified personnel from within the division of fire and emergency services to perform administrative duties or paramedic and emergency medical treatment duties.

a. Each fire battalion chief assigned to the office of the fire chief as assistant chief shall, in addition to all other compensation provided herein, receive a bi-weekly stipend in an amount set by the urban county council. Each fire major assigned to the office of the fire chief as fire battalion chief shall, in addition to all other compensation provided herein, receive a bi-weekly stipend in an amount set by the urban county council. Merit increases shall be computed on the members' current salaries, including supplemental pay.

b. In addition to their normal hourly rate of pay, the division of fire and emergency services personnel appointed to perform paramedic duties shall be compensated at ninety dollars ($90.00) per month for a maximum of one thousand eighty dollars ($1,080.00) per year, and all such personnel appointed to full-time paramedic duties shall further be compensated at a biweekly

rate of one hundred fifty dollars ($150.00) for a total of three thousand nine hundred dollars ($3,900.00) per year; division of fire and emergency services personnel appointed to perform full-time emergency medical technician duties, in addition to their normal rate of pay, shall further be compensated at a biweekly rate of one hundred dollars ($100.00) for a maximum of two thousand six hundred dollars ($2,600.00) per year.

c. Division of fire and emergency services personnel temporarily assigned for a short period of time to perform emergency medical technician and paramedic duties shall be compensated, in addition to their normal hourly rate for their grade and step, at the rate of eighty nine and two tenths cents ($0.892) per hour for emergency medical technician duties and at the rate of one dollar thirty-three and nine tenths cents ($1.339) per hour for paramedic duties.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 198-84, § 3, 11-1-84; Ord. No. 29-86, § 2, 3-6-86; Ord. No. 167-86, § 1, 8-28-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 76-88, § 5, 4-21-88; Ord. No. 293-88, § 1, 12-15-88, Ord. No. 49-89, § 1, 3-23-89; Ord. No. 65-89, § 2, 4-20-89; Ord. No. 65-90, § 5, 4-5-90; Ord. No. 90-96, § 2, 5-30-96; Ord. No. 116-96, § 26, 6-27-96; Ord. No. 72-2004, § 1, 4-22-04; Ord. No. 065-2024, § 1, 6-27-24)

Editor's note(s)—Section 1 of Ord. No. 29-86, adopted Mar. 6, 1986, declared the following, preamble to be part of the ordinance: "WHEREAS, it has been determined that special duty pay is no longer necessary in most Division of Police units; and "WHEREAS, members of the Division of Police have been assigned to units currently receiving special duty pay; and

"WHEREAS, the Urban County Government will not reduce the pay of police officers assigned to units which will not be eligible for special duty pay after January 1, 1986; and "WHEREAS, members of the Division of Fire Protection who are temporarily assigned to emergency service vehicles receive no additional salary; and

"WHEREAS, such temporary service should be compensated at an hourly rate."

Cross reference(s)—Computation of salaries for classified civil service employees, § 21-27; computation of salaries for unclassified civil service employees, § 22-24.

Sec. 23-31. Overtime.

(1) As used in this section:

Employee is any member of the division of fire and emergency services and division of police, but shall not include any individual employed in a bona fide executive, administrative, supervisory or professional capacity.

Workweek is the period of time beginning at 12:00 a.m. each Monday and ending at 11:59 p.m. each Sunday.

(2) Subject to the provisions of section 23-23(b), each chief may, with approval of the commissioner of public safety, direct members of the division of fire and emergency services and division of police and the commis-

sioner of public safety may, with approval of the mayor, direct each chief to work reasonable hours in addition to the normal work schedule when essential to meet operating needs. A member's refusal to comply with such a request shall be grounds for disciplinary action.

(3) Any employee who is not exempted by subsection (1)(a) and who is employed for a workweek longer than forty (40) hours shall receive compensation for this employment in excess of forty (40) hours in a workweek at a rate of one and one-half (1½) times the hourly wage at which he is employed. Each individual workweek shall serve as the standard for determining entitlement to overtime compensation and, accordingly, averaging of hours over a two (2) workweek payroll period shall not be permitted.

(4) Overtime compensation shall only be paid for more than forty (40) hours actually worked within a workweek. Accordingly, no employee shall be paid overtime compensation solely for working in excess of eight (8) hours per day or for work on Saturdays, Sundays, holidays or regular days of rest; and time spent on vacation leave, sick leave, funeral leave, leave of absence, holiday leave, disability leave, military leave or any other approved leave shall be excluded in computing entitlement to overtime compensation under this section.

(5) Notwithstanding subsection (4) above, vacation, sick or holiday leave hours shall be considered hours worked for overtime purposes for members of the division of fire and emergency services while working on regularly scheduled 24-hour-on/48-hour-off duty shifts.

In the event, however, a member of the division of fire and emergency services is called back to work on a scheduled day off, only those hours actually worked during the week, excluding sick, vacation or holiday leave hours, shall be counted, in determining the number of hours for which overtime wages shall be paid for the extra day or days.

(6) Where an employee in a single workweek works at two (2) or more different types of urban county government work for which different nonovertime rates of pay have been established, his hourly rate for that week is the weighted average of such rates. That is, his total earnings are computed to include his compensation during the workweek from all such rates, and are then divided by the total number of hours worked at all jobs.

(7) At the time the payroll report is submitted to the division of human resources, the chief shall submit to the chief administrative officer a report stating which employees worked overtime and the necessity therefor. No member of the division of fire and emergency services or division of police exempted by subsection (1)(a) shall receive overtime compensation.

(8) Those members in the division of fire and emergency services who are listed on the salary schedules set out in section 23-28(b), shall be paid an overtime premium rate for all hours of unscheduled overtime. As used in this section, unscheduled overtime shall mean any hours worked during one (1) week in excess of those

resulting from the regular twenty-four (24) hours on forty-eight (48) hours off schedule. The premium rate for each hour of unscheduled overtime shall be one point five (1.5) times the result of the member's hourly rate pursuant to section 23-28(b) being multiplied by 3328 hours and divided by 2080 hours.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 56-83, § 3, 4-7-83; Ord. No. 182-83, § 1, 10-6-83; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 116-96, § 27, 6-27-96)

Cross reference(s)—Overtime for employees of classified civil service, § 21-28; overtime for employees of unclassified civil service, § 22-25.

Sec. 23-32. Within-grade salary step increases.

(a) All salary advancements within a pay grade shall correspond with the pay steps of the grade as set forth in the salary schedules.

(b) A member shall be eligible for a one-step salary advancement within grade, up to step 10 of the grade, on the workday following twelve (12) months of service as a permanent appointee in one step level of the grade specified for his class, but only upon achieving a job performance evaluation score as authorized in section 23-47 and specified in the administrative regulations adopted pursuant thereto. The job performance evaluation shall be completed no later than thirty (30) days prior to his anniversary date.

(c) When a member enters a class at step 10 or when he reaches step 10 of his grade, no salary advancements within grade shall be made.

(d) Notwithstanding anything to the contrary in this section, all employees with scores above 1.99 on the annual performance evaluation shall receive a salary increase in an amount equal to or more than the annual "actual" percentage change in the world at work index. In the event there are insufficient funds to provide this increase, all employees shall receive an amount equal to the "structure" percentage change in the world at work index, provided, however, that if sufficient funds are not available for this increase, the Urban County Council shall, by ordinance, establish a substitute percentage increase. It is the intent of this section that employee salaries shall have first priority in the budget process except for any debt obligations.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 264-89, § 3, 12-19-89; Ord. No. 116-96, § 28, 6-27-96; Ord. No. 75-99, § 3, 4-15-99; Ord. No. 203-2000, § 8, 6-29-00; Ord. No. 160-2002, § 9, 6-27-02; Ord. No. 231-2003, §125-2016, § 3, 6-23-16)

Cross reference(s)—Within-grade salary step increases for classified civil service employees, § 21-29; within-grade salary step increases for unclassified civil service employees, § 22-26.

Sec. 23-33. Salary adjustment on change of classification plan.

(a) A member of the division of fire and emergency services or division of police whose pay grade is changed to a different grade through a reclassification or reallocation of his position shall have his salary level placed at the lowest step in the higher grade which will provide an increase of at least seven (7) percent above the salary

received immediately prior to the change; however, if his position is changed by two (2) grades, the employee shall have his salary level placed at the lowest step in the higher grade which will provide an increase of at least ten (10) percent above the salary received immediately prior to the change.

(b) An employee whose pay grade is changed to a lower grade through a reclassification or reallocation shall retain his salary at the higher level. All members receiving a rate of pay above the maximum rate prescribed for the class to which their position is allocated shall continue to receive such pay without further increase so long as their positions remain in a class having a rate below the pay rate now being paid said member.

(c) Upon reclassification, a member's anniversary date shall be adjusted to the effective date of the reclassification.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 32-83, § 2, 3-10-83; Ord. No. 214-86, § 14, 10-7-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 116-96, § 29, 6-27-96; Ord. No. 227-2004, § 5, 9-9-04)

Cross reference(s)—Salary adjustment for classified civil service employees, § 21-30; salary adjustment for unclassified civil service employees, § 22-27.

Sec. 23-34. Benefits generally.

The members of the division of fire and emergency services and division of police shall be eligible for the benefits provided in sections21-31 through 21-42.1 under the same terms and conditions as specified in those sections, and for any other benefits approved by the council for these positions. However, sworn employees shall be allowed to use vacation leave after serving six (6) months of their twelve-month probationary period, and the following exceptions shall apply to members of the division of fire and emergency services only:

(1) Every member of the division of fire and emergency services shall earn vacation leave at the rate of fourteen (14) hours per month of service for the first ten (10) years of service. Newly hired members, however, shall, for the first month of employment, only earn vacation leave at the prorated rate of three and one-half (3½) hours for each full week of service. Every member of the division of fire and emergency services with more than ten (10) years of service shall earn vacation leave at the rate of eighteen (18) hours per month of service for the duration of employment. Vacation leave credit may be accumulated to a maximum nine (9) working days, two hundred sixteen (216) hours.

(2) Effective with the initial date of employment or January 1, 1949, whichever is later, every member of the division of fire and emergency services shall be granted fourteen (14) hours' sick leave credit for each completed calendar month of service. Newly hired members, however, shall, for the first month of employment only, be granted sick leave credit at the prorated rate of three and one-half (3½) hours for each full week of service. Such sick leave may be accumulated to a maximum of thirty-five (35) working days, eight hundred forty (840) hours. Division of fire and emergency services members who have accumulated the maximum of sick leave shall continue to accumulate such credit but shall be paid for such excess accumulation each calendar year, at the member's then current pay rate, computed on an hourly basis.

(3) Members of the division of fire and emergency services may not carry forward after July 1 of any one (1) fiscal year more than one hundred twelve (112) hours of holiday leave.

(4) Members of the division of fire and emergency services shall be granted six (6) hours, of holiday leave on the twenty-fourth day of December.

(5) Members of the division of fire and emergency services may participate in the sick leave bank program created in section 21-37.2; provided, however, that they shall make annual donations of a minimum of twelve (12) hours and shall be paid benefits at their regular sick leave rates. These employees must have accumulated a sick leave balance of eight hundred forty (840) hours in order to make donations to the leave bank.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 184-82, § 3, 10-7-82; Ord. No. 115-85, § 2, 6-27-85; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 75-88, § 1, 4-21-88; Ord. No. 139-97, § 2, 6-26-97; Ord. No. 33-2001, §§ 3, 4, 2-22-01)

State law reference(s)—Hours of work and annual leave for members of urban county police department, KRS 95.495(1); leave of absence for urban county fire fighters, KRS 95.500(4).

Sec. 23-35. Maintenance allowance.

(a) Every member of the division of fire and emergency services shall receive a uniform allowance of eighty-five dollars ($85.00) per month.

(b) Every member of the division of police shall receive a uniform allowance of eighty-five dollars ($85.00) per month.

(c) Every member of the division of fire and emergency services and division of police who is presently required to maintain dress uniform shall receive the sum of four hundred dollars ($400.00) as compensation for such uniform. Any person now a member of either of the division of fire and emergency services or division of police who may hereafter be transferred to duty requiring the purchase of dress uniform as required by either of the divisions and who has not been compensated under the provisions of this subsection shall receive the sum of four hundred dollars ($400.00).

(d) Any person appointed as a member of the division of fire and emergency services or the police force shall, upon being so appointed, receive the sum of two thousand eight hundred fifty dollars ($2,850.00) to be applied to the purchase of uniform and equipment as required by the urban county government. Such uniforms and equipment shall be the property of the urban county government until such time as any such person may be permanently appointed as a member of either division.

(e) Members of the division of police and the division of fire and emergency services may be eligible to receive replacement uniforms, equipment and protective clothing, pursuant to the following criteria:

(i) The item in question must have been damaged or destroyed in the performance of the employee's duties and must cost more than two hundred fifty dollars ($250.00) to replace;

(ii) The replacement must be approved by the director of risk management as well as by the chief of the employee's division; and

(iii) The damage results from other than normal wear and tear.

(iv) No more than ten thousand dollars ($10,000.00) per year shall be spent on replacement uniforms, equipment or protective clothing.

(Ord. No. 69-86, § 1, 5-1-86; Ord. No. 155-87, § 1, 7-9-87; Ord. No. 264-89, § 4, 12-19-89; Ord. No. 147-91, § 1, 7-11-91; Ord. No. 215-94, § 1, 11-3-94; Ord. No. 210-95, § 1, 9-21-95; Ord. No. 69-98, § 1, 3-19-98; Ord. No. 55-2000, § 2, 3-9-00; Ord. No. 191-2000, § 1, 6-29-00)

Sec. 23-36. Annual training incentive.

(a) Sworn members of the division of police are entitled to receive an annual training incentive of six hundred dollars ($600.00) and an amount equal to either fourteen (14) percent of their current salary or to the amount of the training incentive provided by the Kentucky Law Enforcement Foundation Program Fund (KLEFPF), whichever is greater, subject to the training and other requirements of the program as established in KRS 15.410 to 15.510 and as the program may be amended from time to time. For purposes of this section, current salary shall not include annual sick leave payout paid pursuant to section 21-34(a), uniform allowance paid pursuant to section 23-35, mileage reimbursement paid pursuant to section 21-32, or education incentive paid pursuant to Ordinance No. 124-73.

(b) Sworn members of the division of fire and emergency services are entitled to receive an annual training incentive of six hundred dollars ($600.00) plus an amount equal to either fourteen (14) percent of their current salary or the amount of the training incentive provided by the Kentucky Professional Firefighters Foundation Program Fund (KPFFPF), whichever is greater, subject to the training and other requirements of the program as established in KRS 95A.210 to 95A.290 and as the program may be amended from time to time. For purposes of this section, current salary shall not include annual sick leave payout paid pursuant to section 21-34(a), uniform allowance paid pursuant to section 23-35, or mileage reimbursement paid pursuant to section 21-32.

(Ord. No. 173-99, § 1, 6-22-99; Ord. No. 192-2000, § 1, 6-29-00; Ord. No. 170-2001, § 1, 6-28-01; Ord. No. 250-2002, § 1, 10-10-02; Ord. No. 168-2003, § 1, 6-26-03)

Sec. 23-36.5. Policemen's and Firefighters' Retirement Fund—Members retiring on or after July 1, 1999.

(a) All members of the Policemen's and Firefighters' Retirement Fund of the Lexington-Fayette Urban County Government, operated pursuant to KRS 67A.360, et seq., who retire on or after July 1, 1999 or who withdraw from service on a certificate pursuant to KRS 67A.410(2), shall be eligible to participate in a group health insurance plan (providing hospital and medical or health maintenance organization health care coverage) approved by the urban county council for such retirees (the "plan").

(b) The urban county government shall provide, on behalf of all members of the Policemen's and Firefighters' Retirement Fund who retire on or after July 1, 1999 and who elect to participate in the group health insurance plan coverage provided pursuant to subsection (a) of this section, the following benefits:

(1) for the period from July 1, 1999 through June 30, 2000, a sum equal to fifty (50) percent of the urban county government's contribution to the health insurance component of the benefit pool for current urban county government employees (the "contribution"); and

(2) for the period from July 1, 2000 through June 30, 2001 and thereafter, a sum equal to the single premium for the plan coverage selected by the retiree, but not more than one hundred percent of the contribution. The benefits available under this subsection shall be made available to members who withdraw from service on a certificate when they attain the age of forty-six (46) years if they elect to participate in the group health insurance plan provided pursuant to subsection (a) of this section and continue such participation until attaining age forty-six (46).

(c) Except as provided in subsection (b) for members who withdraw from service on a certificate, no benefits shall be available under this section to retired members of the Policemen's and Firefighters' Retirement Fund who were not, prior to July 1, 1999, participants in the group health insurance plan coverage provided to urban county government employees and retirees.

(d) All payments shall be made to the approved provider of the group health insurance plan, not to the retiree, and the retiree shall not be entitled to receive any portion of the government contribution remaining after payment is made to the approved provider.

(e) Group rates under the group health insurance plan approved by the urban county council under subsection (a) shall be made available to the spouse, dependents, and disabled children, regardless of the disabled child's age, of a qualified and participating retiree or certificate holder, if the premium for the spouse, dependant, or disabled child is paid by payroll deduction or similar method.

(Ord. No. 198-99, § 2, 7-8-99; Ord. No. 4-2001, § 1, 1-11-01)

Sec. 23-36.6. Policemen's and Firefighters' Retirement Fund—Members retiring prior to July 1, 1999.

(a) All members of the Policemen's and Firefighters' Retirement Fund of the Lexington-Fayette Urban County Government, operated pursuant to KRS 67A.360, et seq., who retired prior to July 1, 1999 or who withdrew from service on a certificate pursuant to KRS 67A.410(2), and who did not terminate their participation in the group health insurance plan provided by the urban county government before that date, shall continue to be eligible to participate in a group health insurance plan (providing hospital and medical or health maintenance organization health care coverage) approved by the urban county council for such retirees (the "plan").

(b) The urban county government shall provide, on behalf of all members of the Policemen's and Firefighters' Retirement Fund who retired prior to July 1, 1999 or who withdrew from service on a certificate pursuant to

KRS 67A.410(2) and who were participants in the group health insurance plan coverage provided to urban county government employees and retirees immediately prior to July 1, 1999, the following benefits: (1) for the period from July 1, 1999 through June 30, 2000, a sum equal to fifty (50) percent of the urban county government's contribution to the health insurance component of the benefit pool for current urban county government employees (the "contribution"); and (2) for the period from July 1, 2000 through June 30, 2001 and thereafter, a sum equal to the single premium for the plan coverage selected by the retiree, but not more than one hundred (100) percent of the contribution. The benefits available under this subsection shall be made available to members who withdrew from service on a certificate when they attain the age of forty-six years if, at the time they withdrew from service, they elected to participate in the group health insurance plan provided pursuant to subsection (a) of this section upon attaining age forty-six (46).

(c) Except as provided in subsection (b) for members who withdrew from service on a certificate, no benefits shall be available under this section to retired members of the Policemen's and Firefighters' Retirement Fund who were not, immediately prior to July 1, 1999, participants in the group health insurance plan coverage provided to urban county government employees and retirees.

(d) All payments shall be made to the approved provider of the group health insurance plan, not to the retiree and the retiree shall not be entitled to receive any portion of the government contribution remaining after payment is made to the approved provider.

(e) Group rates under the group health insurance plan approved by the urban county council under subsection (a) shall be made available to the spouse, dependents, and disabled children, regardless of the disabled child's age, of a qualified and participating retiree or certificate holder, if the premium for the spouse, dependant, or disabled child is paid by payroll deduction or similar method.

(Ord. No. 217-99, § 2, 8-19-99; Ord. No. 366-2000, § 2, 12-5-00; Ord. No. 4-2001, § 2, 1-11-01)

Sec. 23-36.7. Same—Payment of group health insurance premiums for surviving spouses and dependent children.

(a) Upon the death of a member of the Policemen's and Firefighters' Retirement Fund of the Lexington-Fayette Urban County Government (the "retirement fund") due to occupational causes, the urban county government shall pay to the approved provider of the group health insurance plan (providing hospital and medical or health maintenance organization health care coverage) approved by the urban county council for retirees of the fund (the "plan") one hundred (100) percent of the cost of the family medical coverage for the member's surviving spouse and dependent children as long as they remain eligible for a monthly retirement allowance from the retirement fund, regardless of the member's date of death.

(b) No benefits shall be available under this section to surviving spouses or dependent children of members of the retirement fund who died prior to July 15, 2002 if they were not participants in the plan on July 15, 2002 or to surviving spouses or dependent children of members of the retirement fund who died on or after July 15, 2002 if they do not elect to participate in the plan or terminate their participation in the plan upon or after the death of the member.

(c) All payments shall be made to the approved provider of the group health insurance plan, not to the surviving spouse or dependent children.

(Ord. No. 367-2002, § 1, 12-12-02)

Sec. 23-37. Medical expenses.

(a) The police chief or the fire chief shall recommend to the mayor that the urban county government pay medical expenses incurred by a member of their respective divisions who is injured in the line of duty.

(b) The mayor shall, with the approval of the council, pay any and all medical expenses incurred by a member of the division of fire and emergency services or division of police injured in the line of duty.

(c) The injured member shall not be obligated to reimburse the urban county government for said medical payments unless the injured member recovers by way of legal action, settlement or contract the value of any or all of his medical expenses. The urban county government shall be subrogated to the rights of the member for any medical payments made by the urban county government. If said member does recover any or all of the value of the medical expenses incurred, he shall reimburse to the urban county government the value of the medical payments paid by the urban county government.

(d) The mayor shall continue, with the approval of the council, to pay medical expenses incurred by a member of the division of fire and emergency services or division of police injured in the line of duty, after said member has left the active service of the urban county government and even if said member is drawing disability or retirement benefits from the police and fire pension fund established at KRS 67A.360 et seq.

(e) An injury incurred in the line of duty is defined in this section as an injury received by a member when he is actively engaged in the duties of a member of the division of fire and emergency services or the police force.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Sec. 23-38. Additional leave.

(a) Two (2) days from duty without pay shall be allowed each member of the division of police every week, such leave to be arranged by the police chief, under the direction of the mayor, so that an adequate police force shall be maintained on duty at all times.

(b) The fire chief is authorized to grant to members of the division of fire and emergency services twenty-four (24) hours' additional leave without pay over and above the leaves provided by any law during each six-week period, provided that such additional leave shall be arranged by the chief under the direction of the mayor, so that an adequate force shall be maintained on duty at all times.

(c) Members of the division of fire and emergency services and division of police who are exempted from overtime payments by section 23-31 shall accumulate and use compensatory time as set out in section 21-37.1 with the following exceptions:

(1) Members of the division of police who work four (4) ten-hour shifts per week may use compensatory time in periods of not less than one (1) hour and not more than thirty (30) hours.

(2) Members of the division of fire and emergency services shall earn compensatory time for any hours worked in a week in excess of the hours required of them by their regular twenty-four (24) hours on and forty-eight (48) hours off shifts or in excess of fifty-six (56) hours if their regular shift requires fifty-six (56) hours per week. They may accumulate up to one hundred twelve (112) hours and may use it in periods of not less than one (1) hour and not more than forty-eight (48) hours.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 97-85, § 2, 5-16-85; Ord. No. 155-87, § 1, 7-9-87)

Sec. 23-39. Trading time, division of fire and emergency services.

(a) Pursuant to 803 K.A.R. 1:063, members of the division of fire and emergency services may agree among themselves to substitute for one another on regularly scheduled tours of duty (or some part thereof). This practice shall be known as "trading time."

(b) Trading time will be deemed to have no effect on hours of work if the following criteria are met:

(1) The trading of time is done voluntarily by members participating in the program and not at the behest of the division of fire and emergency services.

(2) The reason for trading time is due not to the operations of the division of fire and emergency services but to the members' desire or need to attend to personal matters.

(3) A record is maintained by the division of fire and emergency services for all time traded by its members.

(c) Regulations necessary for the implementation and operation of the trading time program shall be established by the chief of the division of fire and emergency services.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Sec. 23-40. Absence without permission.

(a) No member of the division of fire and emergency services or division of police shall be absent from duty except while on a duly granted leave; or upon sudden serious emergency, in which event the member notifies his supervisor as soon as possible; or in the case of one having no accumulated leave, with permission of the supervisor under the circumstances for which such leave is authorized in the Code of Ordinances, but without pay therefor.

(b) If absence from duty is not either authorized by the supervisor or both occasioned by genuine emergency and reported as soon as possible, it shall be treated as absence without permission. Pay shall be deducted for the period of such absence and it may be made the grounds for disciplinary action.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Absence without permission by classified civil service employees, § 21-43; absence without permission by unclassified civil service employees, § 22-28.

Sec. 23-41. Reprimand or suspension; causes.

Any member of the division of fire and emergency services or division of police may be reprimanded, suspended for any length of time not to exceed six (6) months, reduced in grade if the accused is above the rank of police officer or fire fighter, or may be subject to any two (2) or all of such punishments, for any of the causes set out in section 23-42 or for any of the following causes:

(1) Loitering in a saloon with or wearing any part of his uniform while off duty.

(2) Entering a house of prostitution, assignation or gambling house of any description, except in the discharge of duty.

(3) Using unnecessary force or brutality in making arrests or handling prisoners.

(4) Using indecent, profane or obscene language while on duty or in uniform.

(5) Conduct unbecoming an officer or prejudicial to the service.

(6) Assigning or attempting to assign his salary in advance without the approval of the mayor.

(7) Violating any rules of his division.

(8) Being tardy at any roll call or being absent from duty without proper permission.

(9) Impoliteness or rudeness in performance of duty.

(10) Untidiness in his person or uniform while on duty.

(11) Neglecting to pay just debt contracted for his uniforms, house rent or for necessities for himself and family.

(12) If his salary is attached twice for just debts contracted during his employment by the urban county government.

(13) Communicating information relating to police work without permission.

(14) Any other reason permitted by KRS 95.450.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Sec. 23-42. Dismissal; causes.

Any member of the division of fire and emergency services or division of police may be dismissed for any of the following causes:

(1) Being intoxicated whether on or off duty.

(2) Drinking intoxicating liquor while on duty or while he has on any part of his uniform.

(3) Insubordination or disrespect to a superior officer.

(4) Loitering in a saloon while on duty.

(5) Conviction in any court of a felony.

(6) Being active in politics or working for the election of candidates while on duty or in uniform.

(7) If his salary is garnished three (3) times for just debts contracted during his employment by the urban county government.

(8) Cowardice, inefficiency or neglect in the performance of duty or disobedience of proper orders of a superior.

(9) Such mental or physical incapacity or disability as renders him incapable of properly performing his duties.

(10) Abandonment or failure to support his family.

(11) Any immoral habits or improper conduct not herein enumerated which would render him an unfit and improper person for employment by the urban county government.

(12) Any other reason permitted by KRS 95.450.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Dismissal and other punishments for classified civil service employees, § 21-44; dismissal of unclassified civil service employees, § 22-29.

State law reference(s)—Prohibition of political activity, KRS 95.470.

Sec. 23-43. Complaint procedures; police rights.

(a) The standards of professional conduct for police established by the general assembly of the commonwealth are adopted to deal fairly and set administrative due process rights for members of the police force and at the same time provide a means of redress by the citizens of the commonwealth for wrongs allegedly done to them by members of the police force. These standards are as follows:

(1) Any complaint taken from any individual alleging misconduct on the part of any member of the police force, as defined herein, shall be taken as follows:

(i) If the complaint alleges criminal activity on behalf of a member of the police force, the allegations may be investigated without a signed, sworn complaint of the individual;

(ii) If the complaint alleges abuse of official authority or a violation of rules and regulations of the department, an affidavit, signed and sworn to by the complainant, shall be obtained;

(iii) If a complaint is required to be obtained and the individual upon request refuses to make allegations under oath in the form of an affidavit, signed and sworn to, the department may investigate the allegations, but shall bring charges against the member only if the department can independently substantiate the allegations absent the sworn statement of the complainant;

(iv) Nothing in this section shall preclude a department from investigating and charging a member both criminally and administratively.

(2) No threats, promises or coercions shall be used at any time against any member of the police force while he or she is a suspect in a criminal or departmental matter. Suspension from duty with or without pay or reassignment to other than a member's regular duties during such period shall not be deemed coercion. Prior to or within twenty-four (24) hours after suspending the member pending investigation or disposition of a complaint, the member shall be advised in writing of the reasons for the suspension.

(3) No member of the police force shall be subjected to interrogation in a departmental matter involving alleged misconduct on his or her part, until forty-eight (48) hours have expired from the time the request for interrogation is made to the accused member, in writing. The interrogation shall be conducted while the member is on duty. The member may be required to submit a written report of the alleged incident if the request is made by the department no later than the end of the subject member's next tour of duty after the tour of duty during which the department initially was made aware of the charges;

(4) If a member of the police force is under arrest, or likely to be arrested, or a suspect in any criminal investigation, he or she shall be afforded the same constitutional due process rights that are accorded to any civilian, including, but not limited to, the right to remain silent and the right to counsel, and shall be notified of those rights before any questioning commences. Nothing in this section shall prevent the suspension with or without pay or reassignment of such member pending disposition of the charges.

(5) Any charge involving violation of any urban county government rule or regulation shall be made in writing with sufficient specificity so as to fully inform the member of the police force of the nature and circumstances of the alleged violation in order that he or she may be able to properly defend himself or herself. Said charge shall be served on the member in writing.

(6) When a member of the police force has been charged with a violation of divisional rules or regulations, no public statements shall be made concerning the alleged violation by any person or persons of the urban county government or the member so charged until final disposition of the charges.

(7) No member of the police force as a condition of continued employment by the urban county government shall be compelled to speak or testify or be questioned by any person or body of a nongovernmental nature.

(8) When a hearing is to be conducted by the council, the following administrative due process rights shall be recognized; and these shall be the minimum rights afforded any member of the police force charged:

(i) The accused shall have been given at least seventy-two (72) hours' notice of any hearing.

(ii) Copies of any sworn statements or affidavits to be considered by the hearing authority and any exculpatory statements or affidavits shall be furnished to the member of the police force no less than seventy-two (72) hours prior to the time of any hearing.

(iii) If the hearing is based upon a complaint of an individual, the individual shall be notified to appear at the time and place of the hearing by certified mail, return receipt requested.

(iv) If the return receipt as hereinabove referred to has been returned unsigned, or the individual does not appear, except where due to circumstances beyond his control he cannot appear, at the time and place of the hearing, any charge made by that individual shall not be considered by the council and shall be dismissed with prejudice.

(v) The accused shall have the right and opportunity to obtain and have counsel present, and to be represented by the counsel.

(vi) The council shall subpoena and require the attendance of witnesses and the production by them of books, papers, records and other documentary evidence at the request of the accused member of the police force or the charging party. If any person fails or refuses to appear under the subpoena, or to testify, or to attend, or produce the books, papers, records, or other documentary evidence lawfully required, the council may report to the circuit court or any judge thereof, the failure or refusal, and apply for a rule. The circuit court, or any judge thereof, may on the application compel obedience by proceedings for contempt as in the case of disobedience of the requirements of a subpoena issued from the court;

(vii) The accused member of the police force shall be allowed to have presented, witnesses and any documentary evidence the member wishes to provide to the council, and may cross-examine all witnesses called by the charging party;

(viii) Any member of the police force suspended with or without pay who is not given a hearing as provided by this section within sixty (60) days of any charge being filed, the charge then shall be dismissed with prejudice and not be considered by any hearing authority and the member shall be reinstated with full back pay and benefits; and

(ix) The failure to provide any of the rights or to follow the provisions of this section may be raised by the member with the council. The council shall not exclude proffered evidence based on failure to follow the requirements of this section but shall consider whether, because of the failure, the proffered evidence lacks weight or credibility and whether the member has been materially prejudiced.

(b) Any member of the police force who shall be found guilty by the council of any charge may bring an action in the Fayette Circuit Court to contest the action of the council, and said action shall be tried as an original action by the court.

(c) The judgment of the Fayette Circuit Court shall be subject to appeal to the court of appeals. The procedure as to appeal to the court of appeals shall be the same as in any civil action. As the provisions of this section relate to a minimum system of professional conduct, nothing herein shall be construed as limiting or in any way affecting any rights previously afforded to members of the police force by statute, ordinance or working agreement.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 163-86, § 1, 7-24-86; Ord. No. 248-91, §§ 1—4, 12-5-91; Ord. No. 117-94, § 1, 6-30-94)

State law reference(s)—Manner of investigating and hearing complaints against police officers, KRS 15.520.

Sec. 23-44. Dismissal and other punishments; causes, charges, proceedings.

(a) Except as provided in subsection (e) of this section, no member of the division of fire and emergency services or division of police shall be reprimanded, dismissed, suspended or reduced in grade or pay for any reason except inefficiency, misconduct, insubordination or violation of law or of the rules adopted by the council, and only after charges are preferred and a hearing conducted as provided in this section.

(b) Any person may prefer charges against a member of the division of fire and emergency services or division of police by filing them with the clerk of the council, who shall immediately communicate the same to the council. The mayor shall, whenever probable cause appears, prefer charges against any member whom he believes guilty of conduct justifying his dismissal or punishment. The charges shall be written and shall set out clearly the charges made. The person preferring the charges may withdraw them at any time prior to the conclusion of the hearing. The charges may thereupon be dismissed.

(c) Upon the hearing, all charges shall be considered traversed and put in issue, and the trial shall be confined to matters related to the issues presented. Within three (3) days after the charges have been filed with the council, that body shall proceed to hear the charges. At least two (2) days before the hearing, the member accused

shall be served with a copy of the charges and a statement of the day, place and hour at which the hearing of the charges will begin. The person accused may, in writing, waive the service of charges and demand trial within three (3) days after the charges are filed with the clerk.

(d) The council may summon and compel attendance of witnesses at hearings by subpoena issued by the clerk of that body and served upon the witnesses by any officer authorized to serve court subpoenas. If any witness fails to appear in response to a summons or refuses to testify concerning any matter on which he may lawfully be interrogated, any district court judge, on application of the council, may compel obedience by proceeding for contempt as in the case of disobedience of a subpoena issued from the district court. The member accused may have subpoenaed any witnesses he may desire, upon furnishing their names to the clerk. The action and decision of the body on the charges shall be reduced to writing and entered in a book kept for that purpose, and the written charges filed in the matter shall be attached to the book containing the decision.

(e) When the appointing authority or the chief of the division has probable cause to believe a member of the division of fire and emergency services or division of police has been guilty of conduct justifying dismissal or punishment, he or it may suspend the member from duty or from both pay and duty, pending trial, and the member shall not be placed on duty or allowed pay until the charges are heard. If the member is suspended, there shall be no continuances granted without the consent of the member accused.

(f) The council shall fix the punishment of a member of the division of fire and emergency services or division of police found guilty, by a reprimand, suspension for any length of time not to exceed six (6) months, by reducing the grade if the accused is an officer, or by combining any two (2) or more of those punishments, or by dismissal from the service.

(g) Notwithstanding any other provisions of this chapter, a member of the division of fire and emergency services or division of police, who has been accused of conduct warranting disciplinary action, may execute a written waiver of his rights under KRS 95.450 and KRS 95.460 and the applicable sections of the Code of Ordinances, including his right to have formal charges preferred, notice given, a hearing conducted on those charges, and an appeal to circuit and appellate courts in any case where such member wishes to voluntarily accept any proposed disciplinary action by the chief. The validity of any such waiver shall be conditioned upon its ratification by the urban county council. In any case where the recommendation of the chief is rejected by the council, the member shall be so notified, in which case he may withdraw his waiver and shall be entitled to all rights of law, and the waiver shall not be used against him or by him in any hearing in determination of his guilt or punishment.

(h) The director shall, by July 14, 1983, develop and implement a uniform disciplinary code for all members of the division of police and division of fire and emergency services, except probationary members, and shall administer and monitor the uniform disciplinary code. After implementation, changes to the uniform disciplinary code shall be approved by the urban county council intergovernmental committee.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 121-83, § 2, 7-14-83; Ord. No. 155-87, § 1, 7-9-87)

Sec. 23-45. Appeal to circuit court and court of appeals.

(a) Any member of the division of fire and emergency services or division of police found guilty by the council of any charge, as provided by section 23-44, may appeal to the Circuit Court of Fayette County; but the enforcement of the judgment of the council shall not be suspended pending appeal.

(b) Upon request of the accused, the clerk of the council shall file a certified copy of the charges and the judgment of that body in the circuit court. Upon the transcript being filed, the case shall be docketed in the circuit court and tried as an original action.

(c) If the clerk fails to certify the transcript to the circuit court within five (5) days after the request is made, the party aggrieved may file an affidavit in the circuit court setting out as fully as possible the charges made, the time of the hearing, and the judgement of the council, together with a statement that demand for transcript was made upon the clerk more than five (5) days before the filing of the affidavit. Upon the filing of the affidavit in the circuit court, the case shall be docketed and the circuit court may compel the filing of the transcript by the clerk by entering the proper mandatory order, and by fine and imprisonment for contempt. The appeal shall have precedence over other business and be determined speedily.

(d) An appeal will lie from the judgment of the circuit court to the court of appeals as in other cases.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

State law reference(s)—Appeals to circuit court and court of appeals, KRS 95.460.

Sec. 23-46. Continuity of service requirements.

(a) Except as applied to sections 23-12(b), 23-20, 23-21 and 23-24, service credit required for the purposes of this chapter shall mean continuous service in the employment of the division of fire and emergency services or division of police of the urban county government or the governments of the City of Lexington or County of Fayette immediately prior to merger, without break or interruption. However, absence on authorized leave of absence with pay, absence authorized to compensate for overtime work, and absence on authorized leave of absence without pay for periods not in excess of thirty (30) calendar days shall not affect the continuity of service. All periods of absence without leave and leave without pay for periods in excess of thirty (30) calendar days shall be deducted in computing total service credit.

(b) All service credit shall be extinguished upon dismissal or upon acceptance of resignation. As provided in section 23-26, service credit shall not be restored upon reinstatement.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Continuity of service requirements of classified civil service employees, § 21-47; continuity of service requirements of unclassified civil service employees, § 22-30.

Sec. 23-47. Employee performance evaluation.

(a) The director shall establish a criterion for the supervisor's use in measuring, reporting and recording the job performance of all members of the division of fire and emergency services and division of police, including those on probationary status.

(b) Job performance evaluations shall be used for determinations made regarding salary increases, permanent appointments, transfers, disciplinary actions, reinstatements, and, in the case of equal seniority, the order of layoff.

(c) In preparing job performance evaluations, supervisors shall discuss evaluations with those members they supervise, who shall be given a copy of the completed evaluation.

(d) Members of the division of fire and emergency services and division of police may appeal decisions made with respect to their job performance evaluation through the grievance procedure outlined in section 23-48.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Performance evaluation for classified civil service employees, § 21-48; performance evaluation for unclassified civil service employees, § 22-31.

Sec. 23-48. Grievance procedure.

(a) If, at any time, any member of the division of fire and emergency services or division of police considers himself aggrieved (hereinafter "aggrieved member") by another urban county government officer or employee's alleged abuse of discretion in his treatment of the former (hereinafter "accused employee"), the aggrieved member may seek to rectify the situation through the following grievance procedure:

(1) The aggrieved member shall orally discuss his grievance with the accused employee or with the individual designated by his chief to handle grievances within ten (10) working days of the event or occurrence giving rise to the grievance. Every effort shall be made to reach a satisfactory settlement by informal adjustment. If the grievance is not settled in the initial discussion, the aggrieved member may in writing, on the form designated by the chief administrative officer, formally present the grievance to the accused employee within five (5) working days after receiving the accused employee's oral answer. The written grievance shall set forth the nature of the alleged wrong, the date of the occurrence, and the remedy sought. An employee who is presented with a written grievance shall give his written answer to the aggrieved member within five (5) working days after receiving the grievance. If the grievance is not resolved at this stage, a copy of the grievance may be referred by the aggrieved member in writing within five (5) working days after receipt of the accused employee's answer to his chief.

(2) Upon receipt of the written grievance, the chief shall notify the commissioner of public safety of the grievance. The aggrieved member's chief or his designated representative shall discuss the grievance with the aggrieved member within ten (10) working days after receiving the appeal. If no settlement is reached at this meeting, the chief or his designated representative shall give a written answer to the

member within ten (10) working days following the meeting; however, this answer shall receive the prior written approval of the commissioner of public safety. If the grievance is not settled at this stage of the proceedings, the aggrieved member may refer the written grievance to the chief administrative officer within ten (10) working days after receipt of the answer from the chief or his designated representative.

(3) The chief administrative officer or his designated representative shall discuss the grievance with the aggrieved member within ten (10) calendar days after receiving the appeal at a time and place designated by the chief administrative officer or his representative. The chief administrative officer's decision is final and shall be placed in writing within five (5) working days from the date of the meeting. A copy shall be sent to both the aggrieved member and accused employee and the appropriate supervisors. If the accused employee is found to have abused his discretion, appropriate action will be taken to correct the error.

(b) The provisions of this section shall apply to all members of the division of fire and emergency services and division of police below the level of chief. However, probationary police officers and fire fighters shall have the right to appeal any grievances only through the second stage of this procedure, and in no case shall they have the right of appeal to the chief administrative officer.

(c) If at any time in this procedure the time limit imposed on the appropriate employee or supervisor is exceeded, the aggrieved member may automatically appeal to the next level.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Grievance procedure for classified civil service employees, § 21-49; grievance procedure for unclassified civil service employees, § 22-32.

Sec. 23-49. Political and other activities.

(a) Members of the division of fire and emergency services and division of police shall abide by and adhere to the rules, regulations and laws set forth by the Kentucky Revised Statutes, and the council; provided, that no such rule, regulation or law shall apply that alters, abridges or otherwise restricts the constitutional rights of said members; and said members, except when on duty, shall not be restrained from exercising their rights and privileges or from entering into any endeavor enjoyed by all other citizens of the jurisdiction in which they reside.

(b) No person shall be appointed a member of the division of fire and emergency service or division of police on account of any political service, contribution, sentiment or affiliation. No member shall be dismissed, suspended or reduced in grade or pay for any political opinion.

(c) The appointment and continuance in office of members of the division of fire and emergency services or division of police shall depend solely upon their ability and willingness to enforce the law and comply with the rules of the division, and shall not be a reward for political activity or contribution to campaign funds.

(d) No member of either division shall be forced to pay or collect any assessments made by political organizations, contribute to political campaign funds, or be active in politics.

(e) No member of either division shall be active in politics or work for the election of candidates while on duty.

(Ord. No. 135-82, § 1, 7-29-82; Ord. No. 155-87, § 1, 7-9-87)

Cross reference(s)—Political activity by classified civil service employees, § 21-51.

State law reference(s)—Rights and duties of police and fire fighters, KRS 95.015; prohibition of political activity, KRS 95.470.

Sec. 23-50. Drug free workplace policy.

(a) It is the policy of the urban county government to maintain an alcohol and drug free workplace. This policy provides for drug and alcohol screening of certain employees to protect employees and the general public from injury and damage caused by the actions of employees impaired by drugs or alcohol.

(b) The alcohol and drug free workplace policy, as it exists on May 16, 1996, is hereby adopted and incorporated herein by reference, as the instrument by which the above policy shall be implemented, monitored and enforced. True copies of said alcohol and drug free workplace policy shall be lodged in the office of the clerk of the urban county council and in the division of human resources for inspection by the public.

(c) Current members of the division of police and division of fire and emergency services shall receive a copy of the alcohol and drug free workplace policy as soon as the policy is implemented. New employees shall receive a copy upon employment.

(Ord. No. 212-94, § 3, 10-20-94; Ord. No. 269-95, § 4, 11-30-95; Ord. No. 89-96, § 4, 5-30-96)

Cross reference(s)—Drug free workplace policy for civil services employees, § 21-52; drug free workplace policy for unclassified civil service employees, § 22-34.

Sec. 23-51. No-knock warrants.

(a) For purposes of this section, "no-knock warrant" means any arrest or search warrant issued by a judge and executed upon a premises that does not require those executing the warrant to knock and announce themselves and their purpose prior to executing the warrant.

(b) No police officer of the Lexington-Fayette Urban County Government Division of Police shall seek or execute no-knock warrant at any location within Lexington-Fayette County.

(c) Any Lexington police officer charged with execution of a warrant upon any premises in order to gain entry shall:

(1) Physically knock on an entry door to the premises in a manner and duration reasonably expected to be heard by the occupants;

(2) Clearly and verbally announce, in a manner reasonably expected to be heard by the occupants, as law enforcement having a warrant; and

(3) Absent exigent circumstances, wait a reasonable amount of time after knocking and announcing before entering the premises.

(d) All Lexington Police Officers present in the initial entry and securing of the scene of a warrant shall be equipped with and activate a body worn camera.

(Ord. No. 056-2021, § 1, 6-24-21)

Chapter 24

Detention Center[1]

Article I. Reserved

Article II. Operations

Section 24-50. Cost of board for prisoners with outside employment.
Section 24-51. Inmate booking and medical fees.

1. **Editor's note(s)**—Sections 1 and 2 of Ord. No. 199-88, adopted Sept. 8, 1988, effective retroactive to June 20, 1988, amended ch. 20 to read as set out in §§ 24-1—24-43, 24-50. The chapter formerly consisted of § 24-1 and was derived from Ord. No. 165-87, § 1, adopted July 16, 1987. Because of the expansion of the scope of the new chapter, the editor has changed the title from "jailer" to "Detention Center."
State law reference(s)—Jails and county prisoners, KRS ch. 441.

Article I

Reserved[1]

Article II

Operations

Sec. 24-50. Cost of board for prisoners with outside employment.

(1) Every prisoner gainfully employed is liable for the cost of his board in the detention center, for an amount up to twenty-five (25) percent of the prisoner's gross daily wages, not to exceed forty dollars ($40.00) per day. If transportation of prisoners employed under this section is provided to and/or from the place of employment by the detention center, such costs shall be repaid by the prisoner.

(2) All monies collected under KRS 439.179(4) and this section by the Fayette District Court shall be paid to the department of finance for use on the detention center as provided in KRS 441.206.

(Ord. No. 199-88, § 2, 9-8-88; Ord. No. 3-93, § 1, 1-28-93)

Sec. 24-51. Inmate booking and medical fees.

(1) Pursuant to KRS 441.265, unless contrary to law or contractual agreement:

(a) A booking fee of thirty-five dollars ($35.00) shall be paid by any inmate booked into the detention center;

(b) A medical co-payment of fifteen dollars ($15.00) shall be paid by any inmate who receives medical treatment or services while confined in the detention center; and

(c) A prescription co-payment of the actual cost of the prescription if it is fourteen dollars and ninety-nine cents ($14.99) or less and fifteen dollars ($15.00) if the cost is more than fourteen dollars and ninety-nine cents ($14.99) shall be paid by any inmate who receives prescription medication.

(2) No inmate confined in the detention center shall be denied any necessary medical care because of his inability to pay the medical co-payment.

(3) For purposes of this section, inmate shall mean any person confined in the detention center who is charged with or convicted of an offense; held for extradition or as a material witness; or confined for any other reason.

1. **Editor's note(s)**—Article I, §§ 24-1—24-43, was repealed by Ord. No. 238-93, § 2, adopted Dec. 9, 1993. The article related to detention center personnel and was derived from Ord. No. 199-88, 258-88, 264-88, 265-88, 296-88, 109-89, 152-89, 214-89, 139-90, 150-90, 241-90, 245-90, 6-91, 62-91, 140-91, 225-91, 84-92, 151-92, and 155-93. Section 4 of Ord. No. 238-93 appointed existing detention center employees to corresponding civil service positions in a newly created division of detention in the department of public safety.

(4) Amounts owed may be automatically deducted from the inmate's property or canteen account. A negative balance may be run in an inmate's account so that if funds become available or if the inmate reenters the detention center at a later date, the fees may be deducted from the inmate's property or canteen account.

(5) Any fees received under this section shall be forwarded to the department of finance for placement in the budget of the division of community corrections to help offset costs of operating the facility.

(Ord. No. 157-2001, § 1, 6-28-01; Ord. No. 81-2012, § 1, 7-5-12)

Chapter 25

Ethics Act

Section 25-1. Title.

Section 25-2. Declarations.

Section 25-3. Purpose and authority.

Section 25-4. Definitions.

Section 25-7. Receipt of gifts.

Section 25-8. Use of public property, equipment, and personnel.

Section 25-9. Representation of interests before the government.

Section 25-10. Misuse of confidential information.

Section 25-11. Post-employment restriction.

Section 25-12. Honoraria.

Section 25-13. Financial disclosure—Who must file.

Section 25-14. When to file statements; amended statements.

Section 25-15. Form of the statement of financial interests.

Section 25-16. Control and maintenance of the statements of financial interests.

Section 25-17. Contents of the financial interests statement.

Section 25-18. Noncompliance with filing requirement.

Section 25-19. Nepotism prohibited.

Section 25-20. LFUCG Ethics Commission created.

Section 25-21. Facilities and staff.

Section 25-22. Powers and duties of the ethics commission.

Section 25-23. Filing and investigation of complaints.

Section 25-24. Notice of hearings.

Section 25-25. Hearing procedure.

Section 25-26. Appeals.

Section 25-27. Limitation of actions.

Section 25-28. Advisory opinions.

Section 25-29. Reprisals against persons disclosing violations prohibited.

Section 25-30. Penalties.

Sec. 25-1. Title.

This chapter shall be known and may be cited as the "Lexington-Fayette Urban County Government Ethics Act."

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-2. Declarations.

The Council of the Lexington-Fayette Urban County Government finds and declares that:

(1) The proper operation of democratic government requires that public officials and employees be independent, impartial, and responsible to the people; that government decisions and policy be made in the best interests of the people, the community, and the government; that public office not be used for personal gain; and that the public have confidence in the integrity of its government. In recognition of these goals, the following code of ethics shall apply to all officers and employees of the merged government, whether elected or appointed, paid or unpaid, and to officers and employees of other independent agencies where so provided by special laws applicable to such other independent agencies.

(2) Public office and employment are public trusts.

(3) The vitality and stability of the government depends upon the public's confidence in the integrity of its elected and appointed officers and employees. Whenever the public perceives a conflict between the private interests and public duties of a public officer or employee, that confidence is imperiled.

(4) The government has a duty to provide its citizens with standards by which they may determine whether public duties are being faithfully performed, and to make its officers and employees aware of the standards which the citizenry rightfully expects them to comply with while conducting their public duties.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 140-2017, § 1, 9-28-17)

Sec. 25-3. Purpose and authority.

(1) It is the purpose of this chapter to provide a method of assuring that standards of ethical conduct and financial disclosure requirements for officers and employees shall be clearly established, uniform in their application, and enforceable, and to provide the officers and employees with advice and information concerning potential conflicts of interest which might arise in the conduct of their public duties.

(2) It is the further purpose of this chapter to meet the requirements of KRS 65.003.

(3) This chapter is enacted under the power vested in the urban county government by KRS 67A.060 and 67A.070 and pursuant to the requirements of KRS 65.003.

(4) This chapter is intended as a minimum standard of conduct for officers and employees. It does not abrogate any stricter or higher standard established either by federal, state or local law, including the common law of

the Commonwealth of Kentucky and the Code of Ethics of the Lexington-Fayette Urban County Government Charter; or by any rule or regulation established by the urban county government, an agency or a constitutional officer.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-4. Definitions.

As used in this chapter, unless the context clearly requires a different meaning:

Agency means the Lexington-Fayette Urban County Government Board of Adjustment, Ethics Commission, Planning Commission, the Downtown Lexington Management District Board, and any Special Purpose Governmental Entity as defined in KRS Chapter 65.

The Ethics Commission shall contact the organizations identified as Special Purpose Governmental Entities to request copies of their respective ethics codes. Special Purpose Governmental Entities that have adopted more stringent ethics provisions are exempt from the requirements of this chapter. Special Purpose Governmental Entities that have not adopted more stringent ethics provisions shall be subject to this chapter in its entirety.

Business means any corporation, partnership, sole proprietorship, firm, enterprise, franchise, association, organization, self-employed individual, holding company, joint stock company, receivership, trust, professional service corporation, or any legal entity through which business is conducted for profit.

Candidate means any individual who seeks nomination or election to an "office" listed in subsection (9)(a) of this section. An individual is a candidate when the individual files a notification and declaration for nomination for office with the county clerk or secretary of state, or is nominated for office by a political party, or files a declaration of intent to be a write-in candidate with the county clerk or secretary of state.

Constitutional officer means any person who is one of the following: County judge/executive, county clerk, county attorney, sheriff, coroner, surveyor or constable.

Employee means any person, whether full-time or part-time, and whether paid or unpaid, who is employed by or provides service to the urban county government or to any "constitutional officer," as the terms are defined in this section. The term "employee" shall include, but not be limited to, those employees occupying the classified civil service positions established at Code section 21-5, the unclassified civil service positions established at Code section 22-5, and the police and fire positions established at Code section 23-5. The term "employee" shall not include any contractor or subcontractor or any of their employees.

Ethics commission means the Lexington-Fayette Urban County Government Ethics Commission which is created and vested by this chapter with the responsibility for enforcing the requirements of the Lexington-Fayette Urban County Government Ethics Act.

Family member means a spouse, a qualified adult, parent, child, brother, sister, mother-in-law, father-in-law, son-in-law, daughter-in-law, grandparent or grandchild.

Financial interest means a right, title, legal or equitable share in an asset or transaction which (a) will result in an increase or decrease in the income or net worth of an officer or family member of an officer which does not arise from a primary or proximate action by an officer or a family member of an officer or (b) where either no or only a de minimis benefit accrues to an officer or a family member of an officer.

Reserved.

Immediate family member means a spouse, a qualified adult, an unemancipated child residing in the officer's or employee's household, or a person claimed by the officer or employee, or the officer's or employee's spouse or qualified adult, as a dependent for tax purposes.

Officer means any person, whether full-time or part-time, and whether paid or unpaid, who is one of the following:

(a) The mayor, county judge/executive, members of the urban county council, county clerk, county attorney, sheriff, coroner, surveyor or constable; or

(b) An appointee or a member of the governing body and chief executive officers, if any, of the urban county government board of adjustment, comprehensive plan update committee, ethics commission, or planning commission.

Private interest means employment, board membership, or participation in the management and/or operations of an entity by an officer or family member of an officer.

Qualified adult means a person of the same or opposite sex who:

Sec. 25-7. Receipt of gifts.

No officer, employee or immediate family member of an officer or employee shall knowingly accept any valuable gift, whether in the form of service, loan, thing, or promise, from any person, firm or corporation which to his knowledge is interested directly or indirectly in any manner whatsoever in business dealings with the urban county government, agency of the urban county government, or constitutional officer by which he is employed, under circumstances in which it could reasonably be inferred that the gift was intended to influence, or could reasonably be expected to influence the officer or employee in the performance of his public duties; provided, however, that any such officer, employee or immediate family member who is a candidate for public office may accept campaign contributions and services in connection with any such campaign. A valuable gift does not include ordinary social hospitality; a gift, bequest, favor, or loan from a relative; a wedding or engagement gift; a loan from a lending institution in its regular course of business on the same terms generally available to other persons; a scholarship or fellowship awarded on the same terms applied to other applicants; or items of a similar nature, as long as the benefit was not given under circumstances in which it could reasonably be inferred that the benefit was intended to influence, or could reasonably be expected to influence the officer or employee in the performance of his public

duties. In any instance in which an officer or employee has, or as a reasonable person should have, a question as to the propriety of a tendered gift, he shall seek an advisory opinion from the ethics commission pursuant to section 25-28.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 25-2000, § 2, 1-27-00)

Sec. 25-8. Use of public property, equipment, and personnel.

No officer or employee shall use or permit the use of any public time, funds, personnel, equipment, or other personal or real property for the private use of any person or political party, unless:

(1) The use is specifically authorized by a stated policy of the urban county government or the ethics commission; or

(2) The use is available to the general public, and then only to the extent and upon the terms that such use is available to the general public.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-9. Representation of interests before the government.

(1) No officer or employee shall represent, except as a part of his official duties, any person or business in connection with any cause, proceedings, application or other matter pending before the urban county government in the case of urban county government officers and employees; before the agency in the case of urban county government agencies; or before the office of the constitutional officer in the case of a constitutional officer.

(2) Nothing in this section shall prohibit an employee from representing another employee or employees where the representation is within the context of official labor union or similar representational responsibilities.

(3) Nothing in this section shall prohibit any officer or employee from representing himself in matters concerning his own interests.

(4) No elected officer shall be prohibited by this section from making any inquiry for information on behalf of a constituent, if no compensation, reward or other thing of value is promised to, given to, or accepted by the officer, whether directly or indirectly, in return for the inquiry.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-10. Misuse of confidential information.

No officer or employee shall intentionally use or disclose information acquired in the course of his official duties, if the primary purpose of the use or disclosure is to further his personal financial interest or that of another person or business. Information shall be deemed confidential, if it is not subject to disclosure pursuant to the Kentucky Open Records Act, KRS 61.872 to 61.884, at the time of its use or disclosure.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-11. Post-employment restriction.

No salaried officer or employee shall appear or practice for compensation before the government or the office in which he served, with respect to any matter for a period of one (1) year after the termination of an appointed officer's or employee's employment or for a period of two (2) years after the termination of an elected officer's term of office; provided, however, that nothing in this section shall prohibit any officer or employee from representing himself in matters concerning his own interests.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-12. Honoraria.

(1) No officer or employee shall accept any compensation or honorarium in consideration of an appearance, speech or article related to the officer's or employee's government service.

(2) Nothing in this section shall prohibit an officer or employee from accepting commemorative gifts of nominal value such as plaques, mugs, posters or photographs, provided that such commemorative gifts are given in consideration for an appearance, speech or article which is related to the officer's or employee's government service.

(3) Nothing in this section shall prohibit an officer or employee from receiving and retaining from any unit of government or from any nongovernmental unit, actual and reasonable out-of-pocket expenses incurred by the officer or employee in connection with an appearance, speech or article, provided that the officer or employee can show by clear and convincing evidence that the expenses were incurred or received in consideration of his official duties and not primarily for the benefit of the officer or employee or any other person. However, out-of-pocket expenses recoverable from any nongovernmental unit shall be limited to:

   (a) Actual and reasonable transportation costs;

   (b) Actual and reasonable lodging expenses; and

   (c) Actual and reasonable costs of meals not to exceed the actual cost of the meal.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-13. Financial disclosure—Who must file.

The following persons shall file an annual statement of financial interests with the ethics commission established at section 25-20:

(1) The mayor, county judge/executive, members of the urban county council, county clerk, county attorney, sheriff, coroner, surveyor and constables;

(2) Candidates for the offices enumerated in subsection (1) of this section;

(3) Members and chief executive officers, if any, of the urban county government board of adjustment, comprehensive plan update committee, ethics commission, and planning commission.

(4) Commissioners, division directors, and employees holding the positions of buyer and buyer senior of the urban county government; and

(5) All persons formerly occupying the positions identified in subsections (1—4) of this section for the first full calendar year following the end of their term of office or employment.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-14. When to file statements; amended statements.

Statements of financial interest shall be filed no later than 5:00 p.m. on April 15 of each year, provided that:

(a) An officer or employee newly-appointed to fill an office or position of employment, other than a commissioner of the urban county government, shall file his initial statement prior to confirmation.

(b) A person recommended by the mayor for confirmation as a commissioner of the urban county government shall file his initial statement at the same time his name is submitted to the urban county council by the mayor.

(c) A candidate for office shall file his initial statement no later than thirty (30) days after the date on which the person becomes a candidate for elected office.

The commission may grant a reasonable extension of time for filing a statement of financial interests for good cause shown.

In the event there is a material change in any information contained in a financial statement that has been filed with the commission, the officer or employee shall, no later than thirty (30) days after becoming aware of the material change, file an amended or supplementary statement with the commission.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No.140-2017, § 5, 9-28-17)

Sec. 25-15. Form of the statement of financial interests.

The statement of financial interests shall be filed on a form prescribed by the ethics commission, or the administrative official designated by the commission. The commission, or the designated administrative official, shall deliver a copy of the form to each officer and employee required to file the statement, by first class mail or hand delivery, no later than January 15 of each year. The failure of the commission, or the designated administrative official, to deliver a copy of the form to any officer or employee shall not relieve the officer or employee of the obligation to file the statement.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-16. Control and maintenance of the statements of financial interests.

(1) The council clerk, under direction of the ethics commission, shall be the "official custodian" of the statements of financial interests and shall have control over the maintenance of the statements of financial interests. The statements of financial interests shall be maintained by the council clerk, as public documents, available for public inspection immediately upon filing.

(2) A statement of financial interests shall be retained by the council clerk for a period of five (5) years after filing, provided that:

(a) Upon the expiration of three (3) years after a person ceases to be an officer or employee, the commission shall cause to be destroyed any statements of financial interests or copies of those statements filed by the person.

(b) Upon the expiration of three (3) years after any election at which a candidate was not elected or nominated, the commission shall cause to be destroyed any statements of financial interests or copies of those statements filed by the person.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-17. Contents of the financial interests statement.

(1) Nothing in this section shall be construed to require any officer or employee to disclose any specific dollar amounts nor the names of individual clients or customers of businesses listed as sources of income.

(2) The statement of financial interests shall include the following information for the preceding calendar year:

(a) The name, current work/business address, work/business telephone number, and home address of the filer.

(b) The title of the filer's office, office sought, or position or former office or position of employment.

(c) The occupation of the filer and the filer's spouse.

(d) Information that identifies each source of income of the filer and the filer's immediate family members exceeding five hundred dollars ($500.00) during the preceding calendar year, and the nature of the income (e.g., salary, commission, dividends, retirement fund distribution, etc.)

(e) The name and address of any business located within the state in which the filer or any member of the filer's immediate family had at any time during the preceding calendar year an interest of five thousand dollars ($5,000.00) or more at fair market value or ten (10) percent ownership interest or more, whichever is less.

(f) The name and address of any business located outside of the state, if the business has engaged in any business transactions with the urban county government during the past three (3) years or is anticipated to engage in any business transactions with the urban county government, in which the filer or

any member of the filer's immediate family had at any time during the preceding calendar year an interest of one thousand dollars ($1,000.00) or more at fair market value or ten (10) percent ownership interest or more, whichever is less, provided that this subsection shall only apply to the mayor, members of the urban county council, commissioners and division directors.

(g) A designation as commercial, residential, or rural, and the location of all real property within the county, other than the filer's primary residence, in which the filer or any member of the filer's immediate family had during the preceding calendar year an interest, having a value exceeding five thousand dollars ($5,000.00) at the close of the reporting period.

(h) A requirement that the filer answer, under penalty of perjury, the following question(s): "To your knowledge, do either you or any immediate family member of your family have any interest in property, tangible or intangible, or any other assets or business that may constitute or cause a conflict with your official duties? If yes, please explain."

(i) The name and address of any creditor of the filer and the filer's immediate family, who is owed more than ten thousand dollars ($10,000.00), except debts arising from the purchase of a primary residence or the purchase of consumer goods which are bought or used primarily for personal, family or household purposes.

(j) The name and address of any board, commission, non-profit or charitable organization in which the officer has a private or financial interest or is a member of the board of directors.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 49-96, § 1, 4-4-96; Ord. No. 140-2017, § 6, 9-28-17; Ord. No. 15-2019, § 1, 3-21-2019)

Sec. 25-18. Noncompliance with filing requirement.

The ethics commission, or the designated administrative official, shall notify by certified mail each person required to file a statement of financial interests who fails to file the statement by the due date, files an incomplete statement, or files a statement in a form other than that prescribed by the commission. The notice shall specify the type of failure or delinquency, shall establish a date by which the failure or delinquency shall be remedied, and shall advise the person of the penalties for a violation.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-19. Nepotism prohibited.

(1) As used in this section, the term "relative" shall mean and include an officer or employee's spouse, a qualified adult as defined in section 25-4(12), child, parents, siblings, grandparents, grandchildren, uncles, aunts, nephews, nieces, first cousins, step-mothers, step-fathers, step-brothers/sisters, half-brothers/sisters, sisters/brothers-in-law, or mothers/fathers-in-law.

(2) No officer or employee shall advocate, recommend, or cause the employment, appointment, promotion, transfer or advancement of his or her own relative to an office or position of employment in the urban county government in the case of urban county government officers and employees; in the agency in the case of urban county government agencies; or in the office of a constitutional officer in the case of a constitutional officer.

(3) No officer or employee shall supervise or manage the work of a relative.

(4) No officer or employee shall participate in any action relating to the employment or discipline of a relative.

(5) The prohibitions in this section shall not apply to any relationship or situation which would violate this prohibition, but which existed prior to six (6) months before the effective date of this chapter. Any officer covered by section 25-4(9)(a), who was serving a term of office and who had any relatives employed by his office prior to six (6) months before the effective date of this chapter, may continue the employment of those relatives during any consecutive terms of office in the same office.

(6) The prohibitions in this section shall not apply to any relationship or situation created by marriage or by a change in LFUCG policy governing qualified adults after the effective date of this section, provided, however, that such relationships shall be reported to the ethics commission which may recommend lateral transfer, substitute supervision, or other personnel action to eliminate or ameliorate the adverse effects of the relationship.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 64-99, § 1, 3-25-99; Ord. No. 64-99, § 1, 3-25-99; Ord. No. 140-2017, § 7, 9-28-17)

Sec. 25-20. LFUCG Ethics Commission created.

(1) There is hereby created a Lexington-Fayette Urban County Government Ethics Commission which shall have the authorities, duties, and responsibilities as set forth in this chapter to enforce the provisions of this chapter.

(2) The ethics commission shall consist of nine (9) members appointed by the mayor subject to confirmation by a majority of the council, from the following:

(a) One (1) member from a list of not less than three (3) names submitted by the Greater Lexington Chamber of Commerce, Inc.;

(b) One (1) member from a list of not less than three (3) names submitted by the League of Women Voters of Lexington, Inc.;

(c) One (1) member from a list of not less than three (3) names submitted by the Fayette County Bar Association;

(d) One (1) member from a list of not less than three (3) names submitted by the Better Business Bureau of Central and Eastern Kentucky, Inc.;

(e) One (1) member from a list of not less than three (3) names submitted by the John Rowe Chapter of the National Bar Association;

(f) One (1) member from a list of not less than three (3) names submitted by the Professional Women's Forum;

(g) One (1) member from a list of not less than three (3) names submitted by the Citizens for Ethical Government; and

(h) Two (2) members chosen at large, who are not members of any entities listed in subsection (2)(a)-(g) of this section.

(3) A nominating organization listed in subsections (2)(a)-(2)(g) of this section may nominate a person regardless of whether that person is a member of the organization.

(4) The initial members of the ethics commission shall be appointed within sixty (60) days of the effective date of this chapter. No member of the ethics commission shall hold any elected or appointed office, whether paid or unpaid, or any position of employment with the urban county government, any urban county government agency, or the office of any constitutional officer. The members shall serve for a term of four (4) years; except that with respect to the members initially appointed, four (4) members shall be appointed for a term of two (2) years, and five (5) members shall be appointed for a term of four (4) years. Thereafter, all appointments shall be for a term of four (4) years. No more than five (5) of the members shall be of the same political party. Each member of the ethics commission shall have been a resident and registered voter of Fayette County for at least one (1) year prior to the date of the appointment and shall reside in Fayette County throughout the term of office. The members may be re-appointed for one consecutive term.

(5) A member of the ethics commission shall be removed only by a majority vote of the council, and only for cause, except that a member of the ethics commission shall automatically be removed by operation of law in the event of three (3) unexcused absences, whether consecutive or non-consecutive, in a two (2) year period or in the event of absence from at least twenty-five (25) percent of the meetings in a two (2) year period, beginning after March 1, 1999. An unexcused absence is any absence in which the chair of the ethics commission or the clerk of the urban county council is not notified of the intended absence at least twenty-four (24) hours in advance of a regularly scheduled meeting. In the event of three (3) unexcused absences or the absence from at least twenty-five (25) percent of the meetings over a two (2) year period, within the meaning of this section, the clerk of the urban county council shall notify the mayor and council administrator that a vacancy exists on the ethics commission.

(6) The mayor shall notify a nominating organization promptly once a seat on the commission becomes vacant by rotation off the commission, by resignation, or otherwise. Upon receipt of such notice, the nominating organization shall submit to the mayor its list of three (3) nominees within sixty (60) days. If the nominations are not received within the prescribed time period, the mayor shall appoint, subject to confirmation by

a majority of the council, the member from a list of not less than three (3) names submitted by a majority vote of the remaining members of the ethics commission, to fill the vacancy for that full term or remaining term.

(7) Members of the ethics commission shall serve without compensation, but may be reimbursed for all actual and necessary expenses incurred within the limits of the funds appropriated by the council in the annual budget.

(8) The ethics commission shall, upon the initial appointment of its members, and annually thereafter, elect a chairperson from among the membership. The chairperson may be reelected for unlimited consecutive terms. The chairperson shall be the presiding officer and a full voting member of the commission.

(9) Beginning after February 1, 2000, all groups named as nominating organizations shall submit to the mayor the following information in writing:

(a) Name of the organization;

(b) Number of members in good standing;

(c) Copies of bylaws;

(d) Names of current officers and directors;

(e) Schedule of meetings;

(f) Mission statement if not contained within the bylaws; and

(g) Percent of the organization's funding provided by the Lexington-Fayette Urban County Government.

The information shall be updated on a rotating basis to coincide with the end of the term of each commission member nominated by one (1) of the nominating organizations. The chairperson of the ethics commission shall request the updated information no sooner than one (1) year and no later than six (6) months prior to the expiration of the relevant member's term. The nominating organization shall submit the updated information to the mayor within sixty (60) days of the request.

(10) The mayor shall consider the information submitted pursuant to subsection (9) and relevant other information and evaluate whether the nominating organization's continued participation by nominating members for the commission is consistent with this chapter's objectives. An organization's failure to submit the information within sixty (60) days of the request by the chairperson of the ethics commission shall be prima facie evidence that the organization's continued participation is not consistent with the chapter's objectives. After such consideration the mayor shall make a recommendation to the council that the organization's continued participation is or is not consistent with this chapter's objectives and whether the council should consider an amendment to this chapter to replace the nominating organization with another.

(11) The ethics commission shall provide for a schedule of regular meetings by resolution or bylaw. The schedule of regular meetings shall be made available to the public. Special meetings may be called pursuant to the provisions of KRS 61.823 of the Kentucky Open Meetings law.

(12) The presence of five (5) or more members shall constitute a quorum and the affirmative vote of five (5) or more members shall be necessary for any official action to be taken. For purposes of this subsection, **official action** is defined as any motion to adopt an order, issue a reprimand, make findings of fact, recommend discipline, fix a civil penalty, refer the matter for possible criminal prosecution, file charges against classified civil service employees or members of the division of fire and emergency services or the division of police, or make any other final determination of guilt following a hearing upon a complaint. A simple majority of those members present and voting shall be necessary for votes taken on all other matters, including, but not limited to, adoption of minutes, recommending that the urban county council adopt particular ordinances or resolutions, issuing advisory opinions, making determinations based on preliminary inquiries as to whether a complaint is within the commission's jurisdiction and, if so, whether it alleges a minimal factual basis to constitute a violation of this chapter. Any member of the ethics commission who has a conflict of interest with respect to any matter to be considered by the commission shall disclose the nature of the conflict, and shall disqualify himself or herself from voting on the matter, and shall not be counted for purposes of establishing a quorum.

(13) Minutes shall be kept for all proceedings of the ethics commission and the vote of each member on any issue decided by the commission shall be recorded in the minutes.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 75-95, § 1, 4-27-95; Ord. No. 73-99, § 1, 3-25-99; Ord. No. 25-2000, § 3, 1-27-00; Ord. No. 87-2001, § 2, 4-19-01; Ord. No. 88-2001, § 1, 4-19-01; Ord. No. 181-2009, § 1, 8-27-09)

Sec. 25-21. Facilities and staff.

(1) Within the limits of the funds appropriated by the council in the annual budget, the urban county government shall provide the ethics commission, either directly or by contract or agreement, with the facilities, materials, supplies, and staff needed for the conduct of its business.

(2) The department of law shall serve as counsel to the ethics commission, provided, however, that the ethics commission may, within the limits of the funds appropriated by the council in the annual budget, retain private counsel at the expense of the urban county government if the department of law has an actual or potential conflict.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-22. Powers and duties of the ethics commission.

The ethics commission shall have the following powers and duties:

(1) To initiate on its own motion, receive and investigate complaints, hold hearings, and make findings of fact and determinations with regard to alleged violations of the provisions of this chapter.

(2) To issue orders in connection with its investigations and hearings requiring officers and employees to submit in writing and under oath reports and answers to questions that are relevant to the proceedings and to order testimony to be taken by deposition before any individual designated by the commission who has the power to administer oaths.

(3) To administer oaths through any individual designated by the commission who has the power to administer oaths and to issue orders requiring the attendance and testimony of officers and employees and the production of documentary evidence relating to an investigation or hearing being conducted by the commission which is in the possession of any officer or employee.

(4) To refer any information concerning violations of this chapter to the executive authority of the urban county government, the council, the county attorney, or other appropriate person or body, as necessary.

(5) To render advisory opinions to officers, employees, candidates and the public regarding whether a given set of facts and circumstances would constitute a violation of any provision of this chapter.

(6) To enforce the provisions of this chapter with regard to all officers and employees who are subject to its terms by issuing appropriate orders and imposing penalties authorized by this chapter.

(7) To control and maintain all statements of financial interests that are required to be filed by this chapter and to insure that the statements are available for public inspection in accordance with the requirements of this chapter and the Kentucky Open Records Act.

(8) To develop and submit any reports regarding the conduct of its business that may be required by the mayor or council, and to recommend any necessary amendments to this chapter or to KRS 65.003, the Kentucky Local Government Ethics Act.

(9) To educate officers, employees, candidates and the general public regarding the requirements of federal, state and local ethics laws.

(10) To adopt rules and regulations and to take other actions, as necessary, to implement the provisions of this chapter, provided that the rules, regulations, and actions are not in conflict with the provisions of this chapter or any state or federal law.

(Ord. No. 255-94, § 1, 12-13-94)

State law reference(s)—Open records, KRS 61.870 et seq.

Sec. 25-23. Filing and investigation of complaints.

(1) Complaints alleging any violation of the provisions of this chapter may be submitted to the ethics commission, or the administrative official designated by the ethics commission, or may be filed as charges against individual officers or employees pursuant to sections 21-44, 23-43, and 23-44 of the Code of Ordinances. All complaints made to the commission shall be in writing, shall be signed by the complainant under penalty of

perjury, and shall meet any other requirements established by the ethics commission. The ethics commission shall acknowledge receipt of a complaint to the complainant within ten (10) working days from the date of receipt. The commission shall forward within ten (10) workings days to each officer or employee who is the subject of the complaint a copy of the complaint and a general statement of the applicable provisions of this chapter.

(2) Within thirty (30) days of the receipt of a proper complaint, the ethics commission shall conduct a preliminary inquiry concerning the allegations contained in the complaint. The commission shall afford a person who is the subject of the complaint an opportunity to respond to the allegations in the complaint. The person shall have the right to be represented by counsel, to appear and be heard under oath, and to offer evidence in response to the allegations.

(3) All proceedings and records relating to a preliminary inquiry being conducted by the ethics commission shall be confidential until a final determination is made by the commission, except:

(a) The commission may turn over to the commonwealth's attorney or county attorney evidence which may be used in criminal proceedings.

(b) If the complainant or alleged violator publicly discloses the existence of a preliminary inquiry, the commission may publicly confirm the existence of the inquiry, and, in its discretion, make public any documents which were issued to either party.

(4) The commission shall make a determination based on its preliminary inquiry whether the complaint is within its jurisdiction and, if so, whether it alleges a minimal factual basis to constitute a violation of this chapter. If the commission concludes that the complaint is outside of its jurisdiction, frivolous or without factual basis, the commission shall immediately terminate the inquiry, reduce the conclusion to writing, and transmit a copy of its decision to the complainant and to all officers or employees against whom the complaint was filed. The conclusion of the commission shall be a public record. Complaints against classified civil service employees and members of the division of fire and emergency services or division of police are pursuant to KRS 67A.280 and 95.450, respectively, outside the commission's jurisdiction, but the commission may after a preliminary inquiry choose to file charges against an employee who is covered by those provisions.

(5) If the commission concludes, based upon its preliminary inquiry, that the complaint is within its jurisdiction and contains allegations sufficient to establish a minimal factual basis to constitute a violation, the commission shall notify the officer or employee who is the subject of the complaint and shall initiate a hearing to determine whether there has been a violation.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-24. Notice of hearings.

If the ethics commission determines that a hearing regarding allegations contained in the complaint is necessary, the commission shall issue an order setting the matter for a hearing within thirty (30) days of the date the order is issued, unless the alleged violator petitions for and the commission consents to a later date. The order setting the matter for hearing, along with a copy of any pertinent regulations of the commission relating to the hearing shall be sent to the alleged violator within twenty-four (24) hours of the time the order setting a hearing is issued.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-25. Hearing procedure.

(1) The Kentucky Rules of Civil Procedure and the Kentucky Rules of Evidence shall not apply to hearings conducted by the ethics commission; however, the hearings shall be conducted in accordance with this section and in accordance with any additional rules and regulations adopted by the commission so as to afford all parties the full range of due process rights required by the nature of the proceedings.

(2) Prior to the commencement of the hearing, the alleged violator, or his or her representative, shall have a reasonable opportunity to examine all documents and records obtained or prepared by the commission in connection with the matter to be heard. The commission shall inform the alleged violator, or his or her representative, of any exculpatory evidence in its possession.

(3) All testimony in a commission hearing shall be taken under oath, administered by an individual designated by the commission who has the power to administer oaths. All parties shall have the right to call and examine witness, to introduce exhibits, to cross-examine witnesses, to submit evidence, and to be represented by counsel.

(4) Any person, other than a party to the proceeding, whose name is mentioned during the hearing and who may be adversely affected thereby may file a written statement regarding the adverse mention for incorporation into the record of the proceeding.

(5) All hearings of the ethics commission shall be public, unless the members vote to go into executive session in accordance with KRS 61.810.

(6) After the conclusion of the hearing, the ethics commission shall, as soon as practicable, begin deliberations in executive session for the purpose of reviewing the evidence before it and making a determination as to whether a violation of this chapter has been proven.

(7) Within thirty (30) days after completion of the hearing, the commission shall either:

   (a) Adopt by the affirmative vote of five (5) or more members who were present at the hearing a written report giving its findings and its conclusion that a violation of this chapter has occurred; or

   (b) Dismiss the complaint. Any vote on the merits of the complaint which results in less than five (5) members who were present at the hearing voting that a violation has occurred shall result in the automatic

dismissal of the complaint. In the event of such a dismissal, the complainant shall not be entitled to file a new complaint regarding the same subject matter unless a showing has been made that new evidence exists which was not presented at the previous hearing. The council clerk shall immediately send a copy of a written report adopted by the commission or written notice of the dismissal of a charge, as applicable, to the officer or employee who was the subject of the complaint and to the party who filed the complaint.

(8) If the commission concludes in its report that in consideration of the evidence produced at the hearing there is by a preponderance of the evidence proof of a violation of this chapter, the commission may impose one or more penalties as set forth in section 25-30 of this chapter.

(9) Findings of fact or final determinations by the commission that a violation of this chapter has been committed, or any testimony related to the commission's findings of fact or final determinations, shall not be admissible in criminal proceedings in the courts of the Commonwealth of Kentucky. Evidence collected by the commission may be used in a criminal proceeding if otherwise relevant.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 73-99, § 2, 3-25-99; Ord. No. 140-2017, § 8, 9-28-17)

Sec. 25-26. Appeals.

Any person who is found guilty of a violation of any provision of this chapter by the ethics commission may appeal the finding to the Fayette Circuit Court within thirty (30) days after the date of the final action by the ethics commission by filing a petition with the court against the commission. The commission shall transmit to the clerk of the court a certified copy of the charges, the exhibits admitted into evidence, its minutes, and the judgment of the commission. At the request of the appellant, the commission shall at the appellant's cost transmit to the clerk a certified transcript of the public hearing. The court shall hear the appeal upon the record as certified by the commission.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-27. Limitation of actions.

Except when the period of limitation is otherwise established by state law, an action for a violation of this chapter must be brought within one (1) year after the violation is discovered.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-28. Advisory opinions.

(1) The ethics commission may render advisory opinions concerning matters under its jurisdiction, based upon real or hypothetical facts and circumstances, upon its own initiative, or when requested by any officer, employee, candidate or member of the public in general whose activity is covered by this chapter.

(2) An advisory opinion shall be requested in writing and shall state relevant facts and answer specific questions. The request for an advisory opinion shall remain confidential unless confidentiality is waived, in writing, by the requestor.

(3) The commission may adopt regulations, consistent with the Kentucky Open Records Law, to establish criteria under which it will issue confidential advisory opinions. All other advisory opinions shall be public documents, except that before an advisory opinion is made public, it shall be modified so that the identity of any person associated with the opinion shall not be revealed.

(4) The confidentiality of an advisory opinion may be waived either:

(a) In writing by the person who requested the opinion; or

(b) By majority vote of the members of the commission, if a person makes or purports to make public the substance or any portion of an advisory opinion requested by or on behalf of the person. The commission may vote to make public the advisory opinion request and related materials.

(5) A written advisory opinion issued by the commission shall be binding on the commission in any subsequent proceeding concerning the facts and circumstances of the particular case if no intervening facts or circumstances arise which would change the opinion of the commission if they had existed at the time the opinion was rendered. However, if any fact determined by the commission to be material was omitted or misstated in the request for an opinion, the commission shall not be bound by the opinion.

(6) A written advisory opinion issued by the commission shall be admissible in the defense of any criminal prosecution or civil proceeding for violations of this chapter for actions taken in reliance on that opinion.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-29. Reprisals against persons disclosing violations prohibited.

(1) No officer or employee shall subject to reprisal, or directly or indirectly use, or threaten to use, any official authority or influence, in any manner whatsoever, which tends to discourage, restrain, depress, dissuade, deter, prevent, interfere with, coerce, or discriminate against any officer or employee who in good faith reports, discloses, divulges, or otherwise brings to the attention of the ethics commission, any law enforcement agency or its employees, or any other appropriate body or authority, any facts or information relative to an actual or suspected violation of any law, statute, executive order, administrative regulation, mandate, rule, or ordinance of the United States, the Commonwealth of Kentucky, or the urban county government, or any facts or information relative to actual or suspected mismanagement, waste, fraud, abuse of authority, or a substantial and specific danger to public health or safety. No officer or employee shall be required to give notice prior to making such a report, disclosure, or divulgence.

(2) No officer or employee shall subject to reprisal or discriminate against, or use any official authority or influence to cause reprisal or discrimination by others against, any person who supports, aids, or substantiates any officer or employee who makes public any wrongdoing set forth in subsection (1) of this section.

(3) This section shall not be construed as:

(a) Prohibiting a supervisor from requiring that an officer or employee inform him of an official request made to an office for information, or the substance of testimony made, or to be made, by the officer or employee to the council on behalf of an office;

(b) Permitting the officer or employee to leave his assigned work area during normal work hours without following applicable law, administrative regulations, rules, or policies pertaining to leave, unless the officer or employee is requested by the ethics commission to appear before the commission, or by a council committee to appear before a council committee;

(c) Authorizing an officer or employee to represent his personal opinions as the opinions of his supervisor; or

(d) Prohibiting disciplinary or punitive action if an officer or employee discloses information which he knows:

1. To be false or which he discloses with reckless disregard for its truth or falsity;

2. To be exempt from required disclosure under the provisions of KRS 61.870 to 61.884; or

3. Is confidential under any other provision of law.

(Ord. No. 255-94, § 1, 12-13-94)

Sec. 25-30. Penalties.

(1) Upon a determination by the ethics commission of a violation of any of the provisions of the Ethics Act by an officer or employee, the ethics commission shall impose one (1) or more of the following penalties:

(a) For any unintentional violation which has been voluntarily corrected by the officer or employee prior to any action by the ethics commission, a notice of mootness shall be issued by the commission;

(b) For any violation which is determined by the ethics commission to have been unintentional or the result of good faith misinterpretation of the requirements of the Ethics Act, a letter of technical violation or a letter of reprimand shall be issued by the ethics commission as the commission deems appropriate;

(c) For any intentional violation which is acknowledged and rectified by the officer or employee prior to any action by the ethics commission, the commission may take the following actions:

(i) Issue a letter to cease and desist;

(ii) Issue a letter of public reprimand;

(iii) Issue a letter of formal censure;

(iv) Issue a recommendation to the council, the mayor, or the civil service commission for removal, training or remediation.

(2) In addition to any penalties set forth under subsection (c), an intentional violation of the Ethics Act shall be subject to the criminal penalties imposed by a court of competent jurisdiction pursuant to KRS 522.020 and KRS 522.030.

(3) Any person who files with the ethics commission a false complaint under section 25-23, alleging a violation of any provision of this chapter which he does not believe, shall be subject to the criminal penalties imposed by a court of competent jurisdiction pursuant to KRS 523.040.

(4) Any officer or employee who willfully violates the provisions of section 25-29 shall be subject to the criminal penalties imposed by a court of competent jurisdiction pursuant to KRS 61.990(3).

(5) In addition to any of the penalties set forth under subsection (c), an intentional violation of the Ethics Act shall be subject to the civil penalties set forth below:

(a) Any person who is found by the ethics commission to have violated any provision of this chapter shall be deemed guilty of a civil offense and may be subject to a civil fine imposed by the ethics commission not to exceed five hundred dollars ($500.00), which may be recovered by the urban county government in a civil action in the nature of debt if the offender fails to pay the penalty within a prescribed period of time.

(b) In addition to all other penalties which may be imposed under this chapter, any person who is found by the ethics commission, the urban county council, or the civil service commission to have violated any provision of this chapter shall forfeit to the urban county government or the office of any constitutional officer, an amount equal to the economic benefit or gain which the person is determined by the commission to have realized as a result of the violation. The amount of any forfeiture may be recovered by the urban county government in a civil action in the nature of debt, if the offender fails to pay the amount of the forfeiture within a prescribed period of time.

(6) Nothing in this chapter is intended to, nor is to be construed as, repealing or modifying in any way the provisions of any of the criminal or penal laws of this state, but shall be held and construed as ancillary and supplemental thereto. The civil penalties provided in this chapter shall be levied in conjunction with, and not as an alternative to, the criminal penalties provided in this chapter and in state law.

(Ord. No. 255-94, § 1, 12-13-94; Ord. No. 140-2017, § 9, 9-28-17)

Chapter 26

Rural Land Management

Article I. In General

Section 26-1. Definitions.

Article II. Rural Land Board

Section 26-2. Board; organized; purposes.
Section 26-3. Board; membership.
Section 26-4. Board; terms; removal of members.
Section 26-5. Board; officers; quorum; staff.
Section 26-6. Board; powers and duties.
Section 26-7. Board; conflict of interest.

Article III. Conservation Easements

Section 26-8. Conservation easements; minimum criteria.
Section 26-9. Conservation easements; application procedures and preliminary review.
Section 26-10. Conservation easements; evaluation by staff.
Section 26-11. Conservation easement; evaluation by board.
Section 26-12. Conservation easements; negotiation.
Section 26-13. Conservation easements; appraisal.
Section 26-14. Conservation easements; purchase.
Section 26-15. conservation easements; recording.

Article IV. Miscellaneous

Section 26-16. Donations.
Section 26-17. Conservation easements; enforcement.
Section 26-18. Conservation easements; release.
Section 26-19. Planning commission duties.

Article I

In General

Sec. 26-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

Active farm shall mean a parcel of land which is currently being used for agricultural production.

Agricultural production shall mean the production for commercial purposes of crops, livestock and livestock products, and nursery and greenhouse products, including the processing or retail marketing of these crops, livestock and livestock products, and nursery and greenhouse products, if more than fifty (50) percent of those processed or merchandised products are produced by the farm operator and the raising and stabling of horses for commercial purposes, and shall also include any of the following: dairying, pasturage, growing crops, bee keeping, horticulture, floriculture, orchards, plant nurseries, viticulture, silviculture, aquaculture and animal and plant husbandry; the breeding, raising, training and general care of livestock for uses other than food, such as sport or show purposes; and construction and maintenance of barns, silos and other similar structures, the use of farm machinery, the primary processing of agricultural products and the sale of agricultural products produced on the land where the sales are made.

Application shall mean the documentation and information submitted to the rural land staff by a landowner on the approved application form offering to sell to the rural land board or the Lexington-Fayette Urban County Government a conservation easement in eligible land.

Comprehensive plan shall mean the land use plan, and amendments thereto, adopted by the Lexington-Fayette Urban County Government pursuant to KRS 100.197.

Conservation easement shall mean a non-possessory interest in real property, which is acquired in perpetuity for the purpose of retaining and enhancing agriculture; preserving natural, scenic or open space values of real property; preserving areas or structures of architectural or historical interest; restricting or preventing the development or improvement of the land for purposes other than agricultural production; or other like or similar purposes, but does not include any real property owned or leased by the government for the purpose of or devoted to parks and recreation.

Conservation easement value shall mean the value of a conservation easement on the parcel of land as determined by the difference between the unrestricted value of the tract and its value as restricted by a conservation easement.

Rural service area land management plan shall mean the element of the comprehensive plan adopted by the planning commission of the Lexington-Fayette Urban County Government on April 8, 1999, and shall include any future portions of the comprehensive plan, and amendments thereto, pertaining to the rural service area.

Rural land staff shall mean the personnel within the office of administrative services charged by the council with the duty to administer this chapter.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No. 272-2007, §§ 1, 2, 12-6-07; Ord. No.17-2019, § 1, 3-21-2019)

Article II

Rural Land Board

Sec. 26-2. Board; organized; purposes.

(1) Margaret Graves, William M. Lear, Jr., Frank Penn and Pamela G. Miller, all being residents of Fayette County, are hereby authorized and requested to serve as incorporators for and to organize a non-profit, non-stock Kentucky corporation under the provisions of Chapter 273 of the Kentucky Revised Statutes, to be named the "Fayette County Rural Land Management Board, Inc." and hereinafter referred to as the "rural land board."

(2) The rural land board shall be an agency and instrumentality of the urban county government. It is organized for the purpose of preserving and managing agricultural, rural and natural lands within Fayette County consistent with the Rural Service Area Land Management Plan.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-3. Board; membership.

(1) The rural land board shall consist of sixteen (16) members. Thirteen (13) members shall be voting members and three (3) shall be ex officio non-voting members.

(2) The thirteen (13) voting members shall be residents of Fayette County and shall have demonstrated an interest in farming, farmland preservation, conservation of natural areas, or other agricultural, rural and natural lands preservation and management issues. They shall be appointed by the mayor, subject to confirmation by a majority of the council, from the following:

   (a) Two (2) members from a list of not less than four (4) names submitted by the Fayette County Farm Bureau, provided that each nominee must be either a landowner or an operator of land, who manages the production of agricultural crops or livestock;

   (b) Two (2) members from a list of not less than four (4) names submitted by the Kentucky Thoroughbred Association, Inc., provided that each nominee must own a farm in Fayette County;

   (c) One (1) member from a list of not less than two (2) names submitted by the Home Builders Association of Lexington, Inc.;

(d) One (1) member from a list of not less than two (2) names submitted by the Lexington-Bluegrass Association of Realtors, Inc., provided that each nominee must be a licensed realtor;

(e) One (1) member from a list of not less than two (2) names submitted by the Greater Lexington Convention and Visitors Bureau established at section 2-170 of this Code;

(f) One (1) member from a list of not less than two (2) names submitted by the Fayette County Neighborhood Council, Inc.;

(g) One (1) member from names submitted by private non-profit organizations involved in land conservation, such as, but not limited to, the Nature Conservancy, the Bluegrass Land Conservancy, Inc., and the Sierra Club, Inc.;

(h) One (1) member from names submitted by governmental entities or private non-profit organizations involved in historic preservation, such as, but not limited to, the Historic Preservation Commission established at article 13-4 of the zoning ordinance, the Bluegrass Trust for Historic Preservation, Incorporated, and the Kentucky Heritage Council established at KRS 171.3801; and

(i) One (1) member from a list of not less than two (2) names submitted by Commerce Lexington, Inc., provided that each nominee must have a background in agricultural lending or agricultural finance.

(j) Two (2) members from a list of names submitted by the urban county council, with each council member submitting no more than one (1) name, provided that each nominee be a leader and meet the qualifications specified in section 26-3(2).

(3) Three (3) non-voting members shall be ex officio, members of the rural land board and shall consist of the following positions:

(a) The Fayette County extension agent appointed pursuant to KRS 164.605, et seq. or any successor position; and

(b) The supervisory resource manager, for Fayette County appointed by the Natural Resources Conservation Servicers of the United States Department of Agriculture pursuant to 7 C.F.R. Sec. 600.6, or any successor position; and

(c) One (1) member of the Lexington Fayette Urban County Council.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No.17-2019, §§ 2—7, 3-21-2019)

Sec. 26-4. Board; terms; removal of members.

(1) The voting members of the rural land board shall serve a term of four (4) years from the date of appointment, provided the terms of those originally appointed shall be staggered in the following manner: three (3) members shall be appointed for one (1) year; three (3) members shall be appointed for two (2) years; two (2) members shall be appointed for three (3) years; and three (3) members shall be appointed for four (4) years.

(2) Vacancies in the voting membership shall be filled for an unexpired term in the manner prescribed for the original appointment. The membership of the ex officio non-voting members shall be terminated upon leaving the specified offices.

(3) No voting member who was originally appointed to the rural land board for less than a four (4) year term and who has served three (3) consecutive full terms after his initial term may succeed himself until the lapse of twelve (12) months from the end of said consecutive term. No appointed voting member who has served three (3) consecutive full terms may succeed himself until the lapse of twelve (12) months from the end of said consecutive terms.

(4) A voting member of the rural land board shall be removed only by a majority vote of the council, and only for cause, except that a member of the board shall automatically be removed by operation of law in the event of three (3) unexcused absences, whether consecutive or non-consecutive, in any two (2) year period or in the event of absence from twenty-five (25) percent of the meetings in any two (2) year period. An unexcused absence is any absence in which the chair of the board or the rural land staff is not notified of the intended absence at least twenty-four (24) hours in advance of a regularly scheduled meeting. In the event of three (3) unexcused absences or the absence from twenty-five (25) percent of the meetings over any two (2) year period, within the meaning of this section, the rural land staff shall notify the mayor and council administrator that a vacancy exists on the rural land board.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No.035-2025, § 1, 5-29-25)

Sec. 26-5. Board; officers; quorum; staff.

(1) The officers of the rural land board shall consist of a chair, a vice-chair, and other officers elected from the membership as set forth in the bylaws. They shall take office at the first meeting of the rural land board after their election. The duties of the officers shall be as specified in the bylaws. The rural land board shall determine its own rules and order of business and so provide for keeping a record of its proceedings.

(2) A majority of the voting members of the rural land board, that is seven (7) voting members, shall constitute a quorum for transaction of business at any meeting of the rural land board. The acts of a majority of those voting members present at any regular or special meeting of the rural land board shall be the acts of the rural land board, except as provided below:

(a) It shall take a vote of eight (8) voting member to:

1. Propose to the urban county council that section 26-10, relating to criteria to be used to evaluate application for consideration of conservation easements, be changed or amended;

2. Approve, pursuant to section 26-14(2), the purchase of conservation easements;

3. Approve, pursuant to section 26-18(2)(a), the acceptance of payment for release of a conservation easement which has been included within the urban service area boundary; or

4. Approve, pursuant to section 26-18(3), the release of a conservation easement within the rural services area boundary.

(b) It shall take a vote of seven (7) voting members to adopt bylaws or regulations.

(3) The rural land board shall meet at a minimum on a quarterly basis at a date, place and time to be determined by the board.

(4) The rural land staff shall serve as staff to the rural land board and shall be responsible for coordinating agendas, preparing minutes and handling logistical matters in order to expedite the board's function. Within the limits of the funds appropriated by the council in the annual budget, the other offices and agencies of the government shall provide the rural land board, either directly or by contract or agreement, with the facilities, materials, supplies, and staff needed for the conduct of its business.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No.17-2019, § 8, 3-21-2019)

Sec. 26-6. Board; powers and duties.

The rural land board shall, as permitted by law:

(1) Adopt bylaws and regulations which are not inconsistent with this chapter.

(2) Enter into contracts and agreements with the urban county government, other governmental entities, and also private persons, firms and corporations in furtherance of the purposes of this chapter.

(3) Solicit, acquire and hold conservation easements pursuant to the provisions of this chapter.

(4) Enforce the terms and provisions of conservation easements pursuant to the provisions of this chapter.

(5) Expend funds appropriated to the rural land board by the council or donated or provided to the board from any other source.

(6) Release or terminate any conservation easement pursuant to the provisions of this chapter.

(7) Appoint standing and ad hoc committees, which may be comprised of rural land board members, employees of the urban county government, the public, or any combination of the foregoing.

(8) Hold public forums for the purpose of gauging the will of the public on agricultural, rural and natural lands matters.

(9) Solicit financial and other contributions to the urban county government or to the rural land board, including donations of conservation easements, for the purposes of agricultural, rural and natural lands preservation and management.

(10) Assist the government in the following areas:

(a) Promoting the preservation and management of agricultural, rural and natural lands in Fayette County;

(b) Implementing the specifics of the rural service area land management plan adopted by the planning commission of the urban county government;

(c) Implementing the specifics of any other plans adopted by the government or the planning commission relating to the rural service area;

(d) Evaluating current services and facilities of the government relating to agricultural, rural and natural lands preservation and management;

(e) Reviewing fees and charges and alternate sources of funding to the agricultural, rural and natural lands preservation and management program, such as grants, gifts, endowments, etc.; and

(f) Developing public relation strategies for stimulating public involvement, promoting services and achieving results;

(g) Preparing the agricultural, rural and natural lands preservation and management budget;

(h) Securing legislation that will promote the mission, goals, and objectives of this chapter.

(11) Establish application forms, filing and meeting schedules, and similar items as needed to carry out the provisions of this chapter.

(12) Prepare and present to the council and planning commission written reports on an annual basis each calendar year. The report shall contain, but not be limited to, the following:

(a) A listing of all parcels of land on which a conservation easement was purchased or donated during the year;

(b) A map or maps showing all parcels of land on which conservation easements have been purchased or donated, including the ones acquired during the preceding calendar year, and showing all parcels of land on which scenic easements, and other interests in land designed to preserve and manage agricultural, rural and natural lands, are to the knowledge of the rural land staff held by entities other than the rural land board; and

(c) A listing of all landowners who made unsuccessful applications for purchase or donation of a conservation easement during the preceding calendar year, including the acreage and location of the parcel of land which was the subject of each application, along with the general categories of reasons the applications were not accepted.

(13) Possess all the powers conferred upon a corporation organized under chapter 273 of the Kentucky Revised Statutes dealing with non-profit non-stock corporations and have all powers necessary, proper, convenient or desirable in order to fulfill and further the purposes of this chapter.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-7. Board; conflict of interest.

(1) All members of the rural land board shall be subject to the code of ethics contained in Article 16 of the Urban County Charter.

(2) No member of the board shall submit an application offering to sell conservation easement in eligible land while a member of the board or within one

(1) year of serving on the board.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No.17-2019, § 9, 3-21-2019)

Article III

Conservation Easements

Sec. 26-8. Conservation easements; minimum criteria.

(1) The rural land board shall administer any program funded by appropriations from the urban county government or by grant funds or donations from any source, which are appropriated or given for the purpose of acquiring conservation easements or other interests in land designed to preserve and manage agricultural, rural and natural lands. The rural land board shall adhere to any specialized procedures established by the state, federal, or local government or any grant award for a particular program and, to the extent not inconsistent therewith, to any procedures established in this chapter.

(2) In order for a conservation easement to be considered for purchase by the rural land board, it must meet the following minimum criteria:

(a) The applicant or applicants must have good, marketable, fee simple title to the parcel of land upon which the conservation easement is proposed to be imposed;

(b) The parcel of land upon which the conservation easement is proposed to be imposed must be located entirely within either the core agricultural and rural land category (CARL) or the natural areas category (NAT) land use categories as determined by the urban county government's comprehensive plan;

(c) The site of any non-conforming or non-agricultural use shall be excluded from the parcel of land upon which the conservation easement is proposed to be imposed;

(d) The parcel of land in question must be at least twenty (20) acres in size; and

(e) All landowners of the parcel shall agree for the duration of the conservation easement to maintain a land conservation plan and/or forest stewardship plan, approved by the local soil conservation district, and shall implement the plan according to the approved schedule.

(3) It shall not be necessary for an application to cover all land in common ownership in order to be considered for purchase of a conservation easement. Accordingly, a landowner may submit an application for only a portion of his or its land. In such a case, the minimum criteria in subsection (2) of this section shall only apply to the portion of the landowners' land upon which the conservation easement is proposed to be imposed.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No.17-2019, § 10, 3-21-2019)

Sec. 26-9. Conservation easements; application procedures and preliminary review.

(1) In order for a conservation easement to be considered for purchase by the rural land board, a completed application shall be submitted by the landowner on the approved application form by the deadline established by the board. The landowner or a duly authorized representative of the landowner may apply. All landowners shall sign the application. A separate application shall be required for each parcel of land offered for acquisition except for batch applications as provided for in section 26-10(3)(b). The board shall by regulation establish policies and procedures for the rural land staff to follow in assisting landowners with the application process. The following information shall be included in a completed application:

(a) Adequate identification by deed reference of the parcel of land to be considered for purchase.

(b) A map of the property at a scale of at least 1"=600' showing the land area to be considered for purchase, as well as any contiguous acreage under the same ownership to be excluded, or a copy of a recorded plat of record, if any.

(c) A United States Department of Agriculture (USDA) Natural Resources Conservation Services Soil Map and farm plan and/or forest stewardship plan, if any, for the parcel under consideration.

(d) A full description of the agricultural production carried out on the property including type and quality of crops, number of livestock, and acreage of land leased or used from others for agricultural production.

(e) A statement by the landowner of any contingencies which the landowner wishes to make the rural land board aware of such as death, health, or retirement of the owner, financial stress, estate settlement, or other circumstances which may affect the property in the future.

(f) The landowner's preferred method of payment for the acquisition, including but not limited to, lump sum payment or payout over time.

(g) A statement by the landowner agreeing to allow inspection and appraisal of the parcel of land.

(h) A list of any and all liens and encumbrances on the parcel of land and a letter from the holder of each evidencing willingness to subordinate his or its interests to the conservation easement.

(i) Existence of any surface or mineral leases or easements.

(j) A filing fee, in an amount established by regulation adopted by the rural land board.

(k) All other information requested on the approved application form.

(2) A member of the rural land staff shall review the application to determine if it is complete. If the application is complete, a member of the rural land staff shall make a preliminary evaluation of whether the parcel meets the minimum criteria established in section 26-8. If it is determined by the rural land staff that the parcel of land is eligible land, the staff shall notify the landowner in writing that the conservation easement will be considered for purchase or that, for reasons set forth in writing, the application is being rejected. A landowner who is dissatisfied with the staff's determination may appeal to the rural land board pursuant to section 26-11(3).

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-10. Conservation easements; evaluation by staff.

If the application is complete and the minimum criteria established in section 26-8 is met, the application shall be evaluated and scored by the rural land staff. For purposes of this section, less than one-half (½) acre shall be rounded down and one-half (½) acre or more shall be rounded up. This evaluation and scoring shall be done in accordance with the following criteria:

(1) **Size of Parcel (12 possible points plus 8 potential bonus points).** The purpose of this criterion is to assist in building a critical mass of agricultural land. These points shall be calculated as follows:

(a) **Basic:**

Over 350 acres	12 points
251-350 acres	10 points
121-250 acres	8 points
41-120 acres	6 points
20-40 acres	2 points

(b) **Bonus:** Additional points will be assigned to parcels of eighty (80) or more acres if the landowner agrees not to subdivide the parcel and build residences on those parcels. The property owner shall receive one (1) bonus point for each right to develop a forty (40) acre tract which is extinguished up to a maximum of eight (8) bonus points.

(2) **Length of public road frontage (5 possible points).** The purpose of this criterion is to encourage the preservation of parcels with significant road frontage. These points shall be calculated as follows:

1001 feet +	5 points
501 feet-1000 feet	3 points
350 feet-500 feet	1 point

(3) **Proximity and/or "batch" application (15 possible points).** The purpose of this criterion is to encourage the protection of large contiguous blocks of rural land. Distances shall be measured from the parcel's boundary lines and the points from Part B (part of "batch application") are in addition to any points from Part A (proximity to another property protected with conservation easement). These points shall be calculated as follows:

(a) **Proximity:**

Adjacent	10 points
Within ½ mile	5 points
Within 1 mile	3 points
More than 1 mile	0 points

(b) **Batch application:** The purpose of this criterion is to encourage landowners of contiguous parcels to apply to the program as a joint batch of applications. A "batch" of applications is defined as two (2) or more applications submitted by two (2) or more property owners of contiguous parcels with a total acreage of at least one hundred twenty (120) acres. Each application submitted as a "batch" application will be individually evaluated and the batch will be given five (5) additional points for being part of a batch application.

(4) **Quality of soils (30 possible points).** The purpose of this criterion is to examine the quality of soils on the property for agriculture. Soil information will be provided by the landowner in the application and verified by the rural land staff with the assistance of the Natural Resources Conservation Service (NRCS). The NRCS maps will be the basis to decide this question. These points shall be calculated as follows:

At least 80% prime farmland	30 points
At least 70% prime farmland	25 points
At least 60% prime farmland	20 points
At least 50% prime farmland	15 points

At least 50% statewide important	10 points
At least 25% prime farmland & less than 50% statewide important	5 points

(5) **Farm activity (5 possible points).** The purpose of this criterion is to evaluate whether the parcel is actively farmed. In evaluating whether the parcel is actively farmed, consideration will be given to the percentage of cropland and/or pasture and the tobacco base of the property. These points shall be calculated as follows:

Actively farmed more than five (5) of last ten (10) years	5 points
Not actively farmed more than five (5) of last ten (10) years	0 points
Potential to be farmed	1 point

(6) **Agricultural improvements (5 possible points).** The purpose of this criterion is to evaluate the owner's long term commitment to agriculture. It should be noted that the type and amount of on-farm investments will vary depending on the type of agriculture practiced. Each parcel shall be evaluated based on the type of agriculture involved on that particular parcel. There shall be no preference for one (1) type of agricultural operation over another. Factors to be considered would include the presence of substantial and well-maintained on-farm investments such as barns, other agricultural buildings and equipment, fencing, waterways or other conservation measures, and similar items. These points shall be calculated as follows:

High amount of on-farm investment (multiple permanent agricultural and agricultural related structures & equipment)	5 points
Moderate amount of on-farm investment (at least some agricultural structures & equipment)	2 points
No on-farm investment (zero (0) improvements or equipment)	0 points

(7) **Environmentally sensitive areas (5 possible points).** The purpose of this criterion is to protect environmentally sensitive areas. If the parcel includes environmentally sensitive areas (ESA) as determined by the rural service area land management plan, it will receive up to five (5) points. These points shall be calculated as follows:

At least 50% environmentally sensitive areas	5 points
Some, but under 50% environmentally sensitive areas	2 points
No environmentally sensitive areas	0 points

(8) **Designated rural greenway (5 possible points).** The purpose of this criterion is to protect designated rural greenways. If any part of the parcel is located within one (1) of the rural greenways, as determined by the rural service area land management plan, it will receive five (5) points.

(9) **Designated focus areas (10 possible points).** The purpose of this criterion is to protect the designated focus areas, as determined by the rural service area land management plan. If any part of the parcel is located within one (1) of the focus areas, the application receives ten (10) points.

(10) **Natural protection areas (5 possible points).** The purpose of this criterion is to protect the special natural protection areas. These points shall be calculated as follows:

Parcel is included in "A" list of special natural protection areas in the rural service area land management plan	5 points
Parcel is included in "B" list special natural protection areas in the rural service area land management plan	2 points

Alternatively, applicants will be eligible to demonstrate the parcel contains special natural protection areas not identified in the rural service area land management plan. The landowner who indicates on his or its application that the property includes rare or unusual flora or fauna, special indigenous plant sites, wildlife habitat or provides wildlife ecosystem linkages necessary to ensure biodiversity will need to provide background information relating to the existence of these resources on the property. The existence of these items should be independently verified by the rural land staff or an independent non-profit conservation organization such as the Nature Conservancy. If the landowner can document that the parcel includes special natural protection areas not identified in the rural land management plan, the application would receive not to exceed five (5) points.

(11) **Linkages (4 possible points).** The purpose of this criterion is to protect linkages within the rural areas. This criterion examines whether the parcel is located near or has the ability to be linked to parks, nature preserves, nature sanctuaries, historic sites or other lands that have been specifically designated for long term natural resource use, conservation or preservation purposes. Distance is measured from parcel boundaries. These points shall be calculated as follows:

Contiguous or provide direct linkage	4 points
Within 1/2 mile or provide a buffer	2 points
Within 1 mile	1 point

(12) **Historic/cultural resources (11 possible points).** The purpose of this criterion is to protect the historic/cultural resources of the rural area. Points in subsections (c) through(e) are in addition to any points accumulated from subsection (a) or (b), and shall be calculated as follows:

(a) If any part of the property is listed in the National Register of Historic Places, or is designated a local historic landmark (H-1), it would receive three (3) points, or if the property is determined eligible for the National Register it would receive two (2) points.

(b) If any part of the property is located in a National Register Historic District, or is located in a locally designated historic district, it would receive two (2) additional points.

(c) If the property includes stone fences including, but not limited to, those stone fences documented in The Stone Fences of Fayette County (1990), the property would receive two (2) additional points. A minimum of one hundred (100) linear feet of stone fence is necessary.

(d) If any part of the property is designated as a national historic landmark, it would receive two (2) additional points.

(e) If the property contains any registered or significant archeological sites, it would receive two (2) additional points.

(13) **Scenic resources (11 possible maximum points).** The purpose of this criterion is to protect the scenic resources of the rural area. Points in subsections (d) through (f) are in addition to any points accumulated from subsections (a), (b) or (c).

(a) If the property is located on one (1) of the scenic rural roads identified in rural service area land management plan, the property would receive two (2) points; or

(b) If the property is located on a local/state designated scenic or historic byway or highway, it would receive three (3) points, or;

(c) If the property is located on a federally designated scenic or historic byway or highway, it would receive five (5) points.

(d) If the property is adjacent to I-64 or I-75 and/or is part of the scenic viewshed visible from I-64 or I-75, it would receive two (2) additional points.

(e) If the property is part of the scenic viewshed visible from publicly owned land such as parks, nature preserves, sanctuaries, historic sites, the property would receive two (2) additional points.

(f) If the property contains other scenic features, such as tree-lined canopy, or significant viewsheds, it would receive two (2) additional points. The scenic features of the property must be documented and independently verified.

(14) **Elimination of undeveloped nonconforming tracts (10 possible points).** The purpose of this criterion is to encourage consolidation/elimination of nonconforming tracts of less than twenty (20) acres. Such tracts may be part of a platted property or part of a larger parcel.

For each nonconforming tract of less than twenty (20) acres which is consolidated/eliminated, add one (1) point up to maximum of 10 points.

(15) **Urban service area boundary (Subtract 15 total possible points).** The following point reductions shall be applied except for (a) rare cases of overwhelming importance as a community icon; (b) location of the site within one (1) of the five (5) designated focus areas; or (c) location of the site within a wellhead protection area. The rural land board shall define what is a community icon, recognizing that community icons will change over time. A community icon should be a recognized symbol of Lexington-Fayette County, including, but not limited to, National Register properties and local, state or federal landmarks. The rural land board shall retain the discretion to determine whether a particular parcel is a community icon.

(a) If the property is contiguous to the existing urban service area boundary, subtract fifteen (15) points unless the property is important as a community icon, within a well head protection area or is located in one (1) of the designated focus areas.

(b) If the property is within one-half (½) mile of the existing urban service area boundary, subtract ten (10) points unless the property is important as a community icon, within a wellhead protection area or is located in one (1) of the designated focus areas.

(c) If the property is within one (1) mile of existing urban service area boundary, subtract five (5) points unless the property is important as a community icon, within a wellhead protection area or is located in one (1) of the designated focus areas.

(16) **Urban development (subtract 30 total possible points).** Any points from subsections (c) through (e) are in addition to any points accumulated in subsection (a) or (b):

(a) If the property is located within sewerability categories I, II or III as shown in the rural service area land management plan, deduct twenty (20) points, unless the property is within a designated focus area, is considered a community icon, or is within a wellhead protection area.

(b) If the property is located within sewerability category IV as shown in the rural service area land management plan, deduct fifteen (15) points, unless the property is within a designated focus area, is considered a community icon, or is within a wellhead protection area.

(c) If the property is located within sewerability categories I, II, III or IV as defined above and adjacent to or within 1 mile of an interstate interchange, deduct ten (10) points, unless the property is within a designated focus area, is considered a community icon, or is within a wellhead protection area.

(d) If the property is located within sewerability categories I, II, III or IV as defined above and adjacent to or within one-half (½) mile of a federal highway, deduct eight (8) points, unless the property is within a designated focus area, is considered a community icon, is within a wellhead protection area or located on a state designated scenic byway.

(e) If the property is located within sewerability categories I, II, III or IV as defined above and adjacent to or within one-half (½) mile of a roadway with a functional classification of an arterial highway, deduct six (6) points, unless the property is within a designated focus area, is considered a community icon, is within a wellhead protection area or located on a state designated scenic byway.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-11. Conservation easement; evaluation by board.

(1) A member of the rural land staff shall view each parcel of eligible land and a written report shall be made to the rural land board prioritizing the applications according to the selection criteria established pursuant to section 26-10.

(2) The rural land board members, as well as the members of any standing or ad hoc committees appointed by the board, may also view each parcel of eligible land.

(3) The rural land board may by majority vote of those voting members present determine to hear appeals from those landowners who are dissatisfied either with determinations of the rural land staff as to their eligibility pursuant to section 26-9(2) or as to the evaluation and scoring of their application pursuant to section 26-10. The board shall determine by majority vote of those voting members present (a) how appeals will be heard, unless it has adopted a specific bylaw or regulation to govern those proceedings, and (b) whether remedial action will be taken.

(4) After consideration of the written report of the rural land staff, as well as the inspections of the parcels of land and the determinations made on appeals, if any, the rural land board shall upon a vote of seven (7) voting members determine with which landowners the rural land staff shall begin negotiations for purchase of a conservation easement. This determination shall be made in accordance with the goal of purchasing conservation easements from as many rural landowners as possible in order to accumulate a critical mass of land to be retained in the future for agricultural, rural and natural lands preservation and management purposes, without overlooking the future urban needs of the community. The board shall not be required to purchase conservation easements in the exact order of priority of applications as determined by the selection criteria established pursuant to section 26-10, so long as it proceeds in compliance with this section, pursues the purchase of highest priority conservation easements first, gives due consideration to each application, and gives consideration to all of the goals of the rural service area land management plan.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-12. Conservation easements; negotiation.

(1) If the rural land board determines to authorize the rural land staff to begin negotiations for purchase of a conservation easement from a particular landowner, the staff shall submit a written offer to purchase to the landowner. The offer shall be accompanied by a proposed deed of easement, whereby the conservation easement would be conveyed to the board or to the urban county government, as determined by the landowner.

(2) Within a time period specified by the rural land staff, the landowner and staff must come to an agreement regarding the terms of the deed of easement. At a minimum, the deed of easement shall:

(a) Convey a perpetual non-possessory interest in the parcel of land, which shall be consistent with the purposes of this chapter;

(b) Require the preservation of historic/cultural resources on the parcel of land if the application received points pursuant to section 26-10(12);

(c) Require the preservation of scenic resources on the parcel of land if the application received points pursuant to section 26-10(13);

(d) Provide that the landowner shall be liable for the costs of any successful enforcement action brought in the event of breach of any of the terms of the deed of easement and that a lien shall be filed against the parcel of property if the costs are not paid;

(e) Require the landowner to maintain a land conservation plan and/or forest stewardship plan, approved by the local soil conservation district, and to implement the plan according to the approved schedule; and

(f) Require the landowner to permit inspection of the parcel of land and/or structures which are subject to the conservation easement by the rural land staff at reasonable times.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-13. Conservation easements; appraisal.

(1) If the rural land staff and the landowner reach an agreement as to the terms of the proposed deed of easement, the staff shall secure an appraisal to determine the conservation easement value. The cost of the appraisal shall be paid for from funds held by the rural land board and the methodology shall be determined by the board in accordance with the following:

(a) The appraisal shall be conducted by a licensed real estate appraiser who is qualified to appraise property for easement purchase. The appraisal shall to the extent possible be based on an analysis of comparable sales.

(b) The appraisal shall include, at a minimum, a legal description of the appraised parcel of land, description of improvements, photos of the parcel of land, sketch of the subject parcel of land, pertinent data for each comparable sale, whether the parcel of land has public or private land use restrictions, any attributes which limit the development of the parcel of land and a description of the area or neighborhood in which the parcel of land is located.

(c) The appraisal shall contain an analysis of the highest and best use of the parcel of land, the valuation methodology used by the appraiser to determine value, the market value, and the conservation easement value of the parcel of land. The value of any buildings or other improvements shall appear separately in the appraisal report.

(2) The rural land staff shall send a copy of the appraisal to the landowner with a letter advising that within thirty (30) days the landowner must:

(a) Signify agreement with the conservation easement value determined by the rural land board appraisal;

(b) Withdraw his or its application; or

(c) The letter shall also advise the landowner of the additional points which may be secured pursuant to section 26-14(1), if he or it timely notifies the rural land staff that he or it will sell the conservation easement for less than the conservation easement value, as determined by the rural land board appraisal.

(Ord. No. 4-2000, § 1, 1-13-00; Ord. No.17-2019, § 11, 3-21-2019)

Sec. 26-14. Conservation easements; purchase.

(1) After each parcel of land has been appraised, a landowner who is willing to sell a conservation easement for less than the appraised value shall be awarded not to exceed ten (10) additional points which shall be calculated as follows:

10-24% of appraised value	10 points
25-49% of appraised value	6 points
50% of appraised value	4 points

These points shall be in addition to those calculated pursuant to section 26-10 and may be considered by the rural land board in determining from which landowners to purchase conservation easements in the event funds are not sufficient within the current fiscal year to make purchases from all landowners with which it has begun negotiations pursuant to section 26-11(4).

(2) After receipt of all information relating to an application, the rural land board may, upon a vote of seven (7) voting members authorize its chair to enter into a contract of sale with a landowner for purchase of a conservation easement on a parcel of land at a specified price. In making this decision, the board may consider the application, the report of the rural land staff, any inspection of the parcel of land by its members, appraisals made both at the expense of the board and at the expense of the landowner, and any additional points awarded pursuant to subsection (1) of this section. In no case shall the board pay more than fair market value for a conservation easement.

(3) Any contract of sale entered into by the rural land board shall be subject to the ability of the landowner to provide good title to the parcel of land, free of encumbrances such as liens, mortgages and other encumbrances which would adversely affect the rural land board's interest in the parcel of land. This provision shall be satisfied if the lien or, mortgagor or other holder of an encumbrance subordinates its interests to the terms of the conservation easement.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-15. conservation easements; recording.

(1) The purchase price shall be paid for from funds held by the rural land board. Prior to closing, a title search shall be completed by the government's department of law which determines that the landowner has clear, marketable, fee simple title to the parcel of land. The landowner shall execute a deed which shall be recorded by the department of law.

(2) A conservation easement may also be acquired by an exchange of the interest which the government owns in other than eligible lands for eligible lands, upon approval by the urban county council.

(3) Within ten (10) working days of recording the conservation easement, the rural land staff shall notify the divisions of planning, building inspection, computer services, engineering and historic preservation; the department of finance; and other appropriate government offices, of the conservation easement acquisition.

(4) Any applications which fulfill the criteria set forth in this chapter and in the regulations adopted by the rural land board, but which are not offered a contract to purchase because available funds are not sufficient within the current fiscal year, shall be considered in the next application cycle, provided that the landowner updates the information on the application. These applications shall not be given any preference or priority at that time, but will be considered under the terms and conditions of this chapter along with all other applications submitted at that time. However, payment of a new application fee shall not be required.

(Ord. No. 4-2000, § 1, 1-13-00)

Article IV

Miscellaneous

Sec. 26-16. Donations.

(1) The provisions of this chapter shall not apply to a donation of any interest in land to the rural land board or the government by a gift or a bequest, except in the case of section 26-17 and this section.

(2) An application shall be required to be filed containing only materials specified under section 26-9(1)(a), (b) and (k).

(3) The rural land staff will review the application and issue a recommendation to the rural land board.

(4) The rural land board shall decide whether to accept the offer by vote of a simple majority of those voting members present. If accepted, the rural land staff shall notify the landowner of the acceptance.

(5) The deed shall be executed as specified under section 26-15(1) except for the payment of the purchase price. Upon recording, the rural land staff will provide notice as specified under section 26-15(3).

(6) The rural land staff shall provide as much assistance and advice as prudent regarding donation of interests in land, but shall not be permitted to offer individual tax advice. The staff shall maintain professionally prepared resource and reference materials and standard deed restriction and easement documents to assist landowners wishing to donate conservation easements or other interests in land.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-17. Conservation easements; enforcement.

(1) The rural land staff, under the administrative supervision of the chief administrative officer, shall administer and enforce this chapter. The rural land staff shall promptly investigate all complaints of violation of conservation easements. Additionally, the rural land staff shall use its best efforts to prevent violations by inspecting the land and structures to which each conservation easement applies at least once annually in order to ascertain whether the landowner is complying with all of the conditions of the deed of conservation easement and this chapter. In the case of any investigation or inspection, the rural land staff shall record all findings and actions in the official records which shall be available in the office of administrative services. If the rural land staff finds that the provisions of any conservation easement are being or have been violated, an order may be issued on behalf of the rural land board to require that the landowner take the action necessary to correct the violation.

(2) If an order of the rural land board is disregarded, the department of law may seek by appropriate proceedings an injunction against any threatened construction or other development or activity on the parcel of land which would violate the conservation easement and shall seek a mandatory injunction requiring the removal of any structure erected in violation of a conservation easement and the restoration of the land and structures to their original character insofar as possible. The department of law shall also seek to recover the costs of any successful enforcement proceeding and damages, if appropriate, and pursuant to the terms of the conservation easement record a lien against the property until paid.

(3) From and after the time when a conservation easement has been acquired by the rural land board or the government, whether by purchase or donation, no building permit shall be issued for any structure nor any certificate of occupancy for any use which would violate the terms of the conservation easement.

(4) Those deeds of scenic easement of record in Deed Book 1161, page 610; Deed Book 1265, page 821; Deed Book 1285, page 782; and Deed Book 1426, page 756, shall also be enforced pursuant to the terms and conditions of subsections (1) through (4) of this section.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-18. Conservation easements; release.

(1) All conservation easements or other interests in land which are purchased pursuant to this chapter shall be perpetual, unless released by the rural land board pursuant to the provisions of this section.

(2) At any time fifteen (15) years or more after a conservation easement has been purchased on a parcel of land, the then current landowner may file a written request with the rural land staff for release of any part of the parcel of land which has been included within the urban service area boundary, as determined by the then most recent comprehensive plan. The rural land board shall approve the request and authorize the chair to execute a release of the conservation easement in recordable form, upon the following conditions:

(a) The landowner conveys to the rural land board or the urban county government a conservation easement of equal or greater Fayette County acreage and of an equal or greater numerical score determined pursuant to section 26-10; or at the option of the board, upon a vote of seven (7) voting members thereof, the landowner pays to the board a sum determined by appraisal to be equal to the then current fair market value of the conservation easement being released;

(b) The landowner conveys to the urban county government, for use as a public park, twenty (20) percent of the useable acreage, i.e., land exclusive of greenways and floodplains, of the parcel of land upon which the conservation easement is released;

(c) The landowner pays to the rural land board a sum equal to the costs incurred by the board pursuant to subsection (a) of this section, including, but not limited to, survey and engineering fees, title search and title insurance fees, appraisal costs and recording fees; and

(d) The landowner pays to the rural land board a sum equal to the amount, if any, by which the actual sum paid by the board for the original conservation easement exceeds the actual sum paid by the landowner for the new conservation easement, in the event the landowner conveys to the board a new conservation easement.

(3) At any time twenty-five (25) years or more after a conservation easement has been purchased on a parcel of land, the then current landowner may file a written request with the rural land staff asking for review of his or its request for release of any part of the parcel of land which is within the rural service area boundary, as determined by the then most recent comprehensive plan. A request pursuant to this subsection shall be considered for the same parcel of land not more often than once every three (3) years. Upon receipt of a timely request, an investigation shall be made by the rural land staff to assist the rural land board in determining both the viability of farming on the subject parcel of land and whether it has become impossible to fulfill any of the conservation purposes of the easement. In deciding whether to approve the request, the rural land board shall also consider whether the termination of the easement would have an adverse impact upon other properties for which a conservation easement or other interests in land designed to preserve and manage agricultural, rural and natural lands has been purchased or donated, or upon other farmland. The rural land board may, upon a vote of seven (7) voting members, approve the request and authorize the chair to execute a release of the conservation easement in recordable form, upon the following conditions:

(a) The rural land board determines that conditions on or surrounding the parcel of land have changed so much that both farming is no longer viable and it has become impossible to fulfill any of the conservation purposes of the easement;

(b) The landowner conveys to the rural land board or the urban county government a conservation easement of equal or greater Fayette County acreage and of an equal or greater numerical score determined pursuant to section 26-10; or, at the option of the board, the landowner pays to the board a sum determined by appraisal to be equal to the then current fair market value of the conservation easement being released;

(c) The landowner pays to the rural land board a sum equal to the costs incurred by the board pursuant to subsection (b) of this section, including, but not limited to, survey and engineering fees, title search and title insurance fees, appraisal costs and recording fees; and

(d) The landowner pays to the rural land board a sum equal to the amount, if any, by which the actual sum paid by the board for the original conservation easement exceeds the actual sum paid by the landowner for the new conservation easement, in the event the landowner conveys to the board a new conservation easement.

(4) The rural land board shall place the proceeds realized from subsections (2) or (3) of this section in an account dedicated to the purchase of conservation easements and shall use the proceeds for the purchase of conservation easements consistent with the provisions of this chapter.

(5) If the rural land board receives any appropriations, bequests or donations of funds to purchase interests in land, which may by the terms of the appropriation, bequest or donation not be used for purchase of interests in land that are subject to release pursuant to the provisions of this section, the board may only use those funds for parcels of land for which no negative points are subtracted under any of the criteria established at section 26-10(15) and (16). The provisions of this section shall not apply to donations of easements.

(Ord. No. 4-2000, § 1, 1-13-00)

Sec. 26-19. Planning commission duties.

(1) During every five-year update of the comprehensive plan, and at any other time that the planning commission reviews the location of the urban and rural service area boundaries, the planning commission shall consider the following matters with regard to the inclusion within the urban service area boundary of any property for which a conservation easement or other interests in land designed to preserve and manage agricultural, rural and natural lands has been purchased or donated:

(a) Whether the inclusion of the property in the urban service area is consistent with the goals of the rural service area land management plan;

(b) Whether the inclusion of the property in the urban service area is in the public interest because development of the property is necessary to accommodate growth and to encourage development in a more contiguous pattern than might otherwise occur; and

(c) Whether inclusion of the property in the urban service area is likely to have an adverse impact upon other properties from which a conservation easement has been purchased under the program or upon surrounding farmland.

(2) In reviewing these issues, the planning commission shall consult with and receive recommendations from the rural land board and other entities holding interests in land designed to preserve and manage agricultural, rural and natural lands.

(Ord. No. 4-2000, § 1, 1-13-00)

Chapter 27

Conservation Easements; Small Farm Conservation Easement Program

Article I. In General

Section 27-1. Definitions.

Article II. Rural Land Board

Section 27-2. Incorporation of Chapter 26, Article II.

Section 27-3. Board; authorization.

Section 27-4. Board; officers; quorum; staff.

Article III. Small Farm Conservation Easements; Small Farm Conservation Easement Program

Section 27-5. Small farm conservation easements; minimum criteria.

Section 27-6. Small farm conservation easements; application procedures and preliminary review.

Section 27-7. Small farm conservation easements; evaluation by staff.

Section 27-8. Conservation easement; evaluation by Board; negotiation; appraisal; recording.

Section 27-9. Conservation easements; purchase.

Article IV. Miscellaneous

Section 27-10. Donations; enforcement.

Section 27-11. Conservation easements; release.

Article I

In General

Sec. 27-1. Definitions.

As used in this chapter, the following terms shall have the meaning indicated:

Small farm shall mean an active farm that is at least ten (10) but less than twenty (20) acres.

The terms and definitions of Chapter 26 of the Code of Ordinances, Article I are hereby incorporated by reference.

(Ord. No. 004-2025, § 1, 1-23-25)

Article II

Rural Land Board

Sec. 27-2. Incorporation of Chapter 26, Article II.

The provisions of Chapter 26 of the Code of Ordinances, Article II are hereby incorporated by reference.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-3. Board; authorization.

The Rural Land Management Board as described in Chapter 26, Article II is hereby authorized to implement the Small Farm Conservation Easement Program.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-4. Board; officers; quorum; staff.

(1) The officers of the Rural Land Board shall be as provided in Chapter 26, Article II, of the Code of Ordinances.

(2) The quorum, meeting requirements, voting requirements for action, and staff for the Rural Land Board shall be as provided in Chapter 26, Article II of the Code of Ordinances, with the following exceptions for the Small Farm Conservation Easement Program:

It shall take a vote of eight (8) voting members to:

i. Propose to the urban county council that Section 27-7, relating to criteria to be used to evaluate application for consideration of conservation easements, be changed or amended;

ii. Approve, pursuant to Section 27-11(1), the purchase of conservation easements;

iii. Approve, pursuant to Section 27-11(2)(a), the acceptance of payment for release of a conservation easement which has been included within the urban service area boundary.

(Ord. No. 004-2025, § 1, 1-23-25)

Article III

Small Farm Conservation Easements; Small Farm Conservation Easement Program

Sec. 27-5. Small farm conservation easements; minimum criteria.

(1) The Rural Land Management Board being charged with, as provided in Section 26-8 of the Code of Ordinances, administering any program funded for the purpose of acquiring conservation easements or other interests in land designed to conserve and manage agricultural, rural and natural lands, shall administer the Small Farm Conservation Easement Program.

(2) In order for a small farm conservation easement to be considered for purchase by the Rural Land Management Board, it must meet the following minimum criteria:

(a) The applicant or applicants must have good, marketable, fee simple title to the parcel of land upon which the conservation easement is proposed to be imposed;

(b) The parcel of land upon which the conservation easement is proposed to be imposed must be located within the agricultural and rural land category or the natural areas category land use categories as determined by the Rural Land Management Plan;

(c) The parcel of land in question shall:

i. Be at least (10), but less than twenty (20), acres in size; and

ii. Be an active farm as defined in Section 26-1.

(d) All landowners of the parcel shall agree for the duration of the conservation easement to maintain a conservation plan created by the USDA Natural Resources Conservation Service (NRCS) and/or a forest stewardship plan created by the Kentucky Division of Forestry if more than fifty (50) percent forested, and shall implement the plan according to the approved schedule.

(e) Applicant shall demonstrate to the satisfaction of the rural land staff that the parcel is engaged in agricultural activities.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-6. Small farm conservation easements; application procedures and preliminary review.

(1) In order for a small farm conservation easement to be considered for purchase by the Rural Land Management Board, a completed application shall be submitted by the landowner. The landowner or a duly authorized representative of the landowner may apply. All landowners shall sign the application. A separate application shall be required for each parcel of land offered for acquisition. The Board shall by regulation establish policies and procedures for the rural land staff to follow in assisting landowners with the application process. The following information shall be included in a completed application:

(a) Adequate identification by deed reference of the parcel of land to be considered for purchase.

(b) A map of the property at a scale of at least 1″ = 600′ showing the land area to be considered for purchase, as well as any contiguous acreage under the same ownership to be excluded, or a copy of a recorded plat of record, if any.

(c) A United States Department of Agriculture (USDA) Natural Resources Conservation Services Soil Map and conservation plan and/or forest stewardship plan, if any, for the parcel under consideration.

(d) A full description of the agricultural activity carried out on the property, including, as applicable, type and quality of crops, number of livestock, and acreage of land leased or used by others for agricultural production.

(e) A statement by the landowner of any contingencies which the landowner wishes to make the Rural Land Board aware of such as death, health, or retirement of the owner, financial stress, estate settlement, or other circumstances which may affect the property in the future.

(f) A statement by the landowner agreeing to allow inspection and appraisal of the parcel of land.

(g) A list of any and all liens and encumbrances on the parcel of land and a letter from the holder of each evidencing willingness to subordinate his or its interests to the conservation easement.

(h) Existence of any surface or mineral leases or easements.

(i) All other information requested on the approved application form.

(2) A member of the rural land staff shall review the application to determine if it is complete. If the application is complete, a member of the rural land staff shall make a preliminary evaluation of whether the parcel meets the minimum criteria established in Section 27-5. If it is determined by the rural land staff that the parcel of

land is eligible for the Small Farm Conservation Easement Program, the staff shall notify the landowner in writing that the conservation easement will be considered for purchase or that, for reasons set forth in writing, the application is being rejected.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-7. Small farm conservation easements; evaluation by staff.

(1) If the application is complete and the minimum criteria established in Section 27-5(2) is met, the Rural Land Board may purchase a conservation easement for the parcel.

(2) All applications shall be evaluated and scored by the rural land staff using the evaluation criteria established below in Section 27-7(3).

(3) For purposes of this section, less than one-half (1/2) acre shall be rounded down and one-half (1/2) acre or more shall be rounded up. This evaluation and scoring shall be done in accordance with the following criteria:

(a) **Length of public road frontage (five (5) possible points).** The purpose of this criterion is to encourage the conservation of parcels with significant road frontage. These points shall be calculated as follows:

1,001 feet+	5 points
501 feet-1000 feet	3 points
350 feet-500 feet	1 point

(b) **Proximity (fifteen (15) possible points).** The purpose of this criterion is to encourage the protection of large contiguous blocks of rural land. Distances shall be measured from the parcel's boundary lines and the points from Part B (part of "Batch application") are in addition to any points from Part A (proximity to another property protected with conservation easement). These points shall be calculated as follows:

Adjacent to property with an existing agricultural easement	15 points
Within 1/2 mile	10 points
Within 1 mile	5 points
More than 1 mile	0 points

(c) **Quality of soils (thirty (30) possible points).** The purpose of this criterion is to examine the quality of soils on the property for agriculture. Soil information will be provided by the landowner in the

application and verified by the rural land staff with the assistance of the Natural Resources Conservation Service (NRCS). The NRCS maps will be the basis to decide this question. These points shall be calculated as follows:

At least 80% prime farmland	30 points
At least 70% prime farmland	25 points
At least 60% prime farmland	20 points
At least 50% prime farmland	15 points
At least 50% statewide important	10 points
At least 25% prime farmland & less than 50% statewide important	5 points

(d) **Agricultural improvements (five (5) possible points).** The purpose of this criterion is to evaluate the owner's long term commitment to agriculture. It should be noted that the type and amount of on-farm investments will vary depending on the type of agriculture practiced. Each parcel shall be evaluated based on the type of agriculture involved on that particular parcel. There shall be no preference for one (1) type of agricultural operation over another. Factors to be considered would include the presence of substantial and well-maintained on-farm investments such as barns, other agricultural buildings and equipment, fencing, waterways or other conservation measures, and similar items. These points shall be calculated as follows:

High amount of on-farm investment (multiple permanent agricultural and agricultural related structures & equipment)	5 points
Moderate amount of on-farm investment (at least some agricultural structures & equipment)	2 points
No on-farm investment (zero (0) improvements or equipment)	0 points

(e) **Environmentally sensitive areas (five (5) possible points).** The purpose of this criterion is to protect environmentally sensitive areas. If the parcel includes environmentally sensitive areas (ESA) as determined by the rural service area land management plan, it will receive up to five (5) points. These points shall be calculated as follows:

At least 50% environmentally sensitive areas	5 points
Some, but under 50% environmentally sensitive areas	2 points
No environmentally sensitive areas	0 points

(f) **Designated rural greenways (five (5) possible points).** The purpose of this criterion is to protect designated rural greenways. If any part of the parcel is located within one (1) of the rural greenways, as determined by the rural service area land management plan, it will receive five (5) points.

(g) **Designated focus area (ten (10) possible points).** The purpose of this criterion is to protect the designated focus areas, as determined by the rural service area land management plan. If any part of the parcel is located within one (1) of the focus areas, the application receives ten (10) points.

(h) **Natural protection areas (five (5) possible points).** The purpose of this criterion is to protect the special natural protection areas. These points shall be calculated as follows:

Parcel is included in "A" list of special natural protection areas in the rural service area land management plan and includes rare or unusual flora or fauna, special indigenous plant sites, wildlife habitat or ensures biodiversity	5 points
Alternatively, applicants will be eligible to demonstrate the parcel contains special natural protection areas not identified in the rural service area land management plan. The landowner who indicates on his or its application that the property includes rare or unusual flora or fauna, special indigenous plant sites, wildlife habitat or provides wildlife ecosystem linkages necessary to ensure biodiversity will need to provide background information relating to the existence of these resources on the property. The existence of these items should be independently verified by the rural land staff or an independent non-profit conservation organization such as the Nature Conservancy.	2 points

(i) **Linkages (four (4) possible points).** The purpose of this criterion is to protect linkages within the rural areas. This criterion examines whether the parcel is located near or has the ability to be linked to parks, nature preserves, nature sanctuaries, historic sites or other lands that have been specifically designated for long term natural resource use, conservation or preservation purposes. Distance is measured from parcel boundaries. These points shall be calculated as follows:

Contiguous or provide direct linkage	4 points
Within 1/2 mile or provide a buffer	2 points
Within 1 mile	2 points

(j) **Historic cultural resources (eleven (11) possible points).** The purpose of this criterion is to protect the historic/cultural resources of the rural area. Points in subsections (iii) are in addition to any points accumulated from subsection (i) or (ii), and shall be calculated as follows:

(i) If any part of the property is listed in the National Register of Historic Places, is located in a National Register Historic District, is located in a locally designated historic district, or is designated a local historic landmark (H-1), it would receive three (3) points, or if the property is determined eligible for the National Register it would receive two (2) points.

(ii) If the property includes stone fences including, but not limited to, those stone fences documented in The Stone Fences of Fayette County (1990), the property would receive two (2) additional points. A minimum of one hundred (100) linear feet of stone fence is necessary.

(iii) If the property contains any registered or significant archeological sites, it would receive two (2) additional points.

(k) **Scenic resources (eleven (11) possible maximum points).** The purpose of this criterion is to protect the scenic resources of the rural area. Points in subsections (iv) through (vi) are in addition to any points accumulated from subsections (i), (ii) or (iii).

(i) If the property is located on one (1) of the scenic rural roads identified in rural service area land management plan, the property would receive two (2) points;

(ii) If the property is located on a local/state designated scenic or historic byway or highway, it would receive three (3) points;

(iii) If the property is located on a federally designated scenic or historic byway or highway, it would receive five (5) points;

(iv) If the property is adjacent to I-64 or I-75 and/or is part of the scenic viewshed visible from I-64 or I-75, it would receive two (2) additional points;

(v) If the property is part of the scenic viewshed visible from publicly owned land such as parks, nature preserves, sanctuaries, historic sites, the property would receive two (2) additional points; or

(vi) If the property contains other scenic features, such as tree-lined canopy, or significant viewsheds, it would receive two (2) additional points. The scenic features of the property must be documented and independently verified.

(l) **Consolidation of small tracts.** The purpose of this criterion is to encourage consolidation of nonconforming tracts of less than ten (10) acres to achieve up to, but not including, 19.99 total acres. Such tracts may be part of a platted property or part of a larger parcel.

For each nonconforming tract of less than ten (10) acres which is consolidated, add one (1) point up to a maximum of five (5) points.

(m) **Batch application.** The purpose of this criterion is to encourage landowners of contiguous parcels to apply to the program as a joint batch of applications. A "batch" of applications is defined as two (2) or

more applications submitted by two (2) or more property owners of contiguous parcels. Each application submitted as a "batch" application will be individually evaluated and the batch will be given five (5) additional points for being part of a batch application.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-8. Conservation easement; evaluation by Board; negotiation; appraisal; recording.

The evaluation of applications and the negotiation, appraisal, and recording of conservation easements shall be processed as provided in Sections 26-11, 26-12, 26-13, and 26-15 of the Code of Ordinances.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-9. Conservation easements; purchase.

(1) After receipt of all information relating to an application, the Rural Land Management Board may, upon a vote of eight (8) voting members authorize its chair to enter into a contract of sale with a landowner for purchase of a conservation easement on a parcel of land at a specified price. In making this decision, the Board may consider the application, the report of the rural land staff, any inspection of the parcel of land by its members, and appraisals made at the expense of the Board. In no case shall the Board pay more than fair market value for a conservation easement.

(2) Any contract of sale entered into by the Rural Land Management Board shall be subject to the ability of the landowner to provide good title to the parcel of land, free of encumbrances such as liens, mortgages and other encumbrances which would adversely affect the Rural Land Board's interest in the parcel of land. This provision shall be satisfied if the lien or, mortgagor or other holder of an encumbrance subordinates its interests to the terms of the conservation easement.

(Ord. No. 004-2025, § 1, 1-23-25)

Article IV

Miscellaneous

Sec. 27-10. Donations; enforcement.

The Rural Land Management Board shall accept the donation of an interest in land, including a conservation easement, and enforce or release the provisions of a conservation easement only pursuant to the process established in Sections 26-16 and 26-17 of the Code of Ordinances.

(Ord. No. 004-2025, § 1, 1-23-25)

Sec. 27-11. Conservation easements; release.

(1) All conservation easements or other interests in land which are purchased pursuant to this chapter shall be perpetual, unless released by the Rural Land Management Board pursuant to the provisions of this section.

(2) At any time after any part of the parcel of land has been included within the urban service area boundary, as determined by the then most recent comprehensive plan, the then current landowner may file a written request with the rural land staff for release of that part of the parcel of land which has been included within the urban service area boundary. The Rural Land Management Board shall approve the request and authorize the chair to execute a release of the conservation easement in recordable form, upon the following conditions:

   (a) The landowner conveys to the Rural Land Management Board or the urban county government a conservation easement of equal or greater Fayette County acreage and of an equal or greater numerical score determined pursuant to Section 27-7; or at the option of the Board, upon a vote of eight (8) voting members thereof, the landowner pays to the Board a sum determined by appraisal to be equal to the then current fair market value of the conservation easement being released; and

   (b) The landowner pays to the Rural Land Management Board a sum equal to the costs incurred by the Board pursuant to subsection (a) of this section, including, but not limited to, survey and engineering fees, title search and title insurance fees, appraisal costs and recording fees; and

   (c) The landowner pays to the Rural Land Management Board a sum equal to the amount, if any, by which the actual sum paid by the Board for the original conservation easement exceeds the actual sum paid by the landowner for the new conservation easement, in the event the landowner conveys to the Board a new conservation easement.

(3) A request pursuant to this subsection shall be considered for the same parcel of land not more often than once every three (3) years.

(4) The Rural Land Management Board shall place the proceeds realized from subsections (2) or (3) of this section in an account dedicated to the purchase of conservation easements and shall use the proceeds for the purchase of conservation easements consistent with the provisions of this chapter.

(Ord. No. 004-2025, § 1, 1-23-25)

Appendix A

Rules and Procedures of the Lexington-Fayette Urban County Council

Chapter I. Organization of the Council

Section 1. Members of Council

1.101. Vice-mayor.
1.102. Council Member.
1.103. Absence from Meetings.
1.104. Reserved.
1.105. Government Resource Utilization.
1.106. Correspondence and Files.

Section 2. Appointed Staff

1.201. Council Administrator.
1.202. Council Core Staff.
1.203. Council Legislative Aides.
1.204. Citizens' Advocate.
1.205. Council Clerk.
1.206. Staff Policies.

Chapter II. Legislation

Section 1. Legislative Authority

2.101. Manner of Legislation.
2.102. Preparation of Legislation.
2.103. Introduction of Legislation.

Section 2. Legislative Process and Workflow

2.201. Workflow Description and Visual Aids.

Chapter III. Procedures

Section 1. Meetings

3.101. Meeting Schedule.
3.102. Regular Meetings.
3.103. Special Meetings.
3.104. Work Session.
3.105. Executive Sessions.

3.106. Public Comment During Meeting. Public comment process:
3.107. Distribution of Informational Material by Members of Public During Meetings.
3.108. Public Hearings and Forums.

Section 2. Presiding Officer

3.201. Presiding Officer.

Section 3. Rules of Debate

3.301. Recognition.
3.302. Decorum.
3.303. Time Limit.
3.304. Limit of Debate.

Section 4. Motions

3.401. Motions: How Made, Withdrawn.
3.402. Motions Taking Precedence.
3.403. Motions to Amend.
3.404. Motions to Adjourn or Recess.
3.405. Motions to Discharge or Refer.
3.406. Motions not Debatable.
3.407. Reconsideration and Rescinding.

Section 5. Voting

3.501. Official Action.
3.502. Majority Action.
3.503. Procedural Action.
3.504. Explanation of Vote.
3.505. Voting Required Unless Excused.

Section 6. Budget Amendments

3.601. Budget Amendments.

Chapter IV. Committees

Section 1. General Rules

4.101. Appointment of Committees.
4.102. Standing Committees.
4.103. Special Committees.
4.104. Subcommittees of Standing Committees.
4.105. Committee of the Whole.
4.106. Investigative Committees (Section 4.08 of Charter).
4.107. Confirmation Committees.

4.108. Oversight Committees.
4.109. Duties and Responsibilities of Committee Chair.

Section 2. Committee Rules and Procedures

4.201. Quorum.
4.202. Meetings.
4.203. Attendance.
4.204. Reference of Matters to Committee.
4.205. Reports.
4.206. Presentation to Committee.

Chapter V. Parliamentary Procedure and Application of Rules

Section 1. Parliamentary Procedure and Application of Rules

5.101. Parliamentary Authority.
5.102. Effect of Rules on Legislation.
5.103. Suspension of Rules.
5.104. Amendment of Rules.

Supplement A. Role of Citizen's Advocate

Section 1. Guidelines for the Office of Citizens' Advocate

A.101. Charter.
A.102. Investigations.
A.103. Disclosures and Recommendations.

Supplement B. Council Guidelines for Use of Other LFUCG Departments

Section 1. Guidelines for the Use of Law Department Personnel

B.101. Guidelines for the Use of Law Department Personnel.

Section 2. Guidelines for Use of Lex TV Services

B.201. Guidelines for Use of the Government Access Cable Channel, Web Stream, and Online Video Archives.

Supplement C. Neighborhood Development Funds and Capital Projects Policy

Section 1. Rules and Procedures for Neighborhood Development Funds

C.101. General.

C.102. NDF Application Process.

Section 2. Council Capital Project Expenditure Policy

C.201. Council Capital Project Expenditure Policy.

Supplement D. Council Best Practices

Section 1. Reserved

Section 2. Taking and Vacating Office

D.201. Taking Office.

D.202. Vacating Office.

Section 3. Additional Reference Documents

D.301. Additional Reference Documents.

Section 4. Council Brand Standards

D.401. Brand Standards.

Purpose. The Lexington-Fayette Urban County Council Rules and Procedures provide instruction and direction on a wide variety of areas necessary to administer the work of the Lexington-Fayette Urban County Council. The Lexington Fayette Urban County Government Council is committed to governance that values diversity, inclusion and equity. Without diversity, we limit our talents, resources and opportunities to thrive as a community. Collectively, we commit to increasing our own education, the education of our city employees, and members of boards and commissions on the value and power of diversity and inclusion. We will continue to develop ordinances, policies and procedures that are mindful and inclusive of our diverse community.

Editor's note(s)—This appendix is derived from § 1 of Res. No. 55-79, adopted and effective Mar. 6, 1979. This appendix was repealed, reorganized, revised, and re-enacted following a comprehensive review of the Rules and Procedures and the Lexington-Fayette Urban County Council by amendatory resolution effective November 2, 2023.

Editor's note(s)—This appendix is derived from § 1 of Res. No. 55-79, adopted and effective Mar. 6, 1979. Amendatory legislation has been included and is indicated in history notes following the amended sections. Absence of a history note indicates the section is derived unamended from Res. No. 55-79. Nonsubstantive stylistic changes to bring the text into conformity with the Code of Ordinances have been made. Additions made by the editor for purposes of explanation or clarity are included in brackets [ ].

Chapter I

Organization of the Council

Section 1

Members of Council

1.101. Vice-mayor.

1. **Term of office:** The vice mayor shall be the at-large member of the council who received the highest number of votes in the last preceding general election of the merged government at which at-large council members were elected. In the event the at-large member receiving the highest number of votes in the general election should be or become unwilling, unqualified or unable to serve, the at-large member who received the next highest number of votes and who is willing and qualified to serve shall become vice mayor. In the event of a tie between at-large members as to the highest number of votes received in the general election, the vice mayor shall be chosen by the majority vote of the council from among the tied at-large members of the council at a special meeting of the council members elected in the general election of the merged government at which at-large council members were elected. The vice mayor shall serve for a term of four (4) years and shall assume office on the first Monday in January following their election.

2. **Method of election:** The election of vice mayor, if necessary, may be by roll call or written ballot, conducted by the council clerk.

3. **Legislative duties of the vice mayor:** The legislative duties of the vice mayor shall be as follows:

    a. Serve as the presiding officer of the council in the absence of the mayor. When serving as presiding officer, the vice mayor shall retain their eligibility to vote on all matters.

    b. **Appoint all committees.** Council members will serve a term of two years on the committees to which they are appointed.

    c. **Appoint a parliamentarian.** The parliamentarian will serve a term of two years.

    d. Authorize and refer items to committee.

4. **Administrative duties of the vice mayor:** The administrative duties of the vice mayor shall be as follows:

    a. Supervision of the council administrator.

    b. Overseeing the office space of the council. (Res. No. 599-2023, § 2, 11-2-23)

1.102. Council Member.

1. **Term of office:** Pursuant to the Charter, the size of the council shall be set at fifteen (15) members, including twelve (12) members elected from single-member districts and three (3) members elected at-large. Council members elected from single-member districts shall serve for a term of two (2) years beginning on the first Monday in January following their election. In no case shall any member elected from a single-member district serve more than six (6) consecutive terms as a district council member. At-large council members shall serve a term of four (4) years beginning on the first Monday in the January following their election. In no case shall an at-large council member serve more than three (3) consecutive terms as an at-large council member. (Charter Section 4.01)

2. **Powers of the Urban County Council:** Pursuant to the Charter, all legislative powers of the merged government are vested in the Council, and the Council shall have the power to act legislatively with respect to all matters which are within the powers of the merged government. (Charter Section 4.08) The term legislative power is to be construed broadly and shall include the power to:

    a. Review the budgets of, and appropriate money to, the merged government and such independent agencies as provided for in the Charter (Charter Section 4.08);

    b. Levy taxes, subject to the limitations of the Charter and the laws of the Commonwealth of Kentucky (Charter Section4.08);

    c. Adopt ordinances and resolutions, and to override a veto of the mayor of any ordinance or resolution upon its subsequent return to the council by the mayor upon a roll call vote of the three-fifths (3/5) of all members of the council, subject to the limitations of the Charter and the laws of the Commonwealth of Kentucky (Charter Sections 4.08 and 5.05); and

    d. Make investigations into the affairs of the merged government and the conduct of any department, office or agency of the merged government (Charter Section 4.08).

(Res. No. 599-2023, § 2, 11-2-23)

1.103. Absence from Meetings.

Any member who is unable to attend a council meeting, work session, or a committee meeting (including zone change hearings, confirmation hearings, committee of the whole, etc.) shall notify all council members and staff as soon as possible via email using the language below:

In accordance with Section 1.103 of the Rules and Procedures of the Urban County Council, this email is to inform you that council member (NAME) will be absent from the (NAME OF MEETING) on (DATE OF MEETING).

(Res. No. 599-2023, § 2, 11-2-23)

1.104. Reserved.

1.105. Government Resource Utilization.

1. **Travel and expenses:** Council members shall abide by LFUCG travel and expense procedures; CAO Policy 4R.

2. **Approval of vouchers:** A travel voucher shall be prepared in conformity with LFUCG procedures.

3. **Council office space:** Only council business shall be conducted in council offices and conference rooms.

4. **Purchasing policy:** The following guidelines are for all purchases made by the urban county council, council legislative aides and council staff and are in addition to LFUCG's procurement card policies.

    a. **Appropriate purchases.**

        i. All purchases shall be tax exempt.

        ii. 71214-Prof. Services-Neighborhood Development Funds: may only be used for NDF purposes; funds from other budget lines may be moved into this line; funds may not be removed from this budget line once added for any non-NDF purpose.

        iii. 72203-Cell Phones: to be used for cell phone/data services (if a council member or office chooses to have an LFUCG issued cellular device).

        iv. 74102-Conferences and Other Trainings: to be used for any out of town conferences or training provided for the council member or their legislative aide.

        v. 74201-Business Travel: to be used for in-town travel/events (i.e., Commerce Lexington dinner, banquets, etc.).

        vi. 75101-Operating Supplies and Expenses: to be used for general office supplies (i.e., specialty paper, mailings, toners, etc.).

        vii. 75102-Food and Household Items: to be used to purchase food for meetings or refreshments for neighborhood events.

        viii. 75801-Equipment Under $5,000: to be used for the purchase of office equipment as needed (i.e., iPads, Laptops, monitors, etc.).

    b. **Prohibited purchases.**

        i. Personal charges are strictly prohibited.

        ii. Alcohol.

        iii. Cash advances.

iv. Flowers.

v. Gifts.

vi. Comprehensive list can be found on page 11 of LFUCG's Procurement Card Manual.

c. **Documentation.**

i. The Lexington-Fayette Urban County Government's record retention policy requires that records of all procurement card transactions be kept on file for three (3) fiscal years.

ii. Documentation shall support the propriety of the transaction and contain the following information:

1. Supplier name.

2. Detail listing of what was purchased, including item description, quantity and price.

3. Total dollar amount of the purchase.

4. Transaction date.

5. Purpose/explanation for purchase.

iii. Examples of acceptable supporting documentation include:

1. Original sales receipt.

2. Original packing slip.

3. Original cash register receipt.

4. Copy of order form, registration, or application.

5. Email confirmation of Internet order.

d. A monthly procurement card transaction log shall be maintained by each council member office and include:

i. Respective monthly receipts.

ii. A new receipt file should be set up and maintained each month.

iii. Card users receive paper bank statements listing all transactions made by their card for that month - all receipts should be matched to the transaction log and attached to the bank statement.

iv. This process is required for audit purposes and cardholders are subject to audit at any time without notice.

v. Submit form with receipts for council record that includes: date of purchase, category of purchase, reason for purchase (include event, date, time, location, etc.).

e. **Training/assignment of cards.**

i. All council members and legislative aides shall complete the pro-card training prior to card issuance.

ii. Pro-cards shall be in the name of the legislative aide.

iii. Council member offices can opt-out of having a pro-card and can make purchases through the council office.

f. **Annual audit.**

i. LFUCG Division of Internal Audit shall conduct an annual audit of council office expenditures.

g. Any non-consumables purchased by council offices are the property of LFUCG.

(Res. No. 599-2023, § 2, 11-2-23)

1.106. Correspondence and Files.

Official stationery, in both physical and electronic format, shall not be used for the personal correspondence of any council member. Campaign logos are not permitted in official stationery.

Council members are responsible for ordering and maintaining letterhead/stationery for their individual office correspondence. Details on the LFUCG official brand standards and examples of official correspondence formatting is found in Section D.401.

(Res. No. 599-2023, § 2, 11-2-23)

Section 2

Appointed Staff

1.201. Council Administrator.

The council administrator shall be a full-time temporary position in the unclassified civil service system. The council administrator shall serve a term of four (4) years corresponding with the terms of at-large council members. The council may reappoint the council administrator for additional four-year terms corresponding with the terms of the at-large council members. The term of the appointment for the council administrator shall terminate on December 31, 2026. The appointment, dismissal prior to the expiration of the four-year term, or discipline of the council administrator shall be by a majority vote of the urban county council with the advice and monitoring of the division of human resources.

The council administrator, under the supervision of the vice mayor, shall perform the duties imposed upon the council administrator by section 1.201 of the Council Rules.

The core staff shall be under the general direction and supervision of the council administrator, who shall be responsible to the council as a committee of the whole.

The council administrator shall be responsible for:

a. Interviews and recommendations for hiring and discharging the core staff and otherwise dealing with employees of the core staff, subject to direction from the council as a committee of the whole.

b. Chairing all regularly scheduled council staff meetings.

c. Attending all regularly scheduled council meetings and related council committee meetings and any other meetings as deemed necessary by the council as a committee of the whole council, such as neighborhood meetings or residents groups.

d. Supervising and participating in analysis regarding budgetary impact, policies and procedures, capital improvements, general services to residents and other similar activities of the council office.

e. Advising and briefing council members regarding questions asked by council members; studying and reviewing projects from various departments and making recommendations outlining alternatives to council regarding such.

f. Receiving a variety of research data and compiling information to be communicated to council members.

g. Supervising and preparing special projects upon request of the committee of the whole council, individual council members, individual standing committees and individual ad hoc committees.

h. Meeting with the mayor, commissioners and division directors to obtain information concerning government operations.

i. Working with the department of law and the city lobbyist to coordinate annual updates concerning existing and proposed state laws and their application to the urban county government.

j. Under the direction of the council as a committee of the whole council, preparing the annual budget for the council office and the council budget.

k. Exercising general administrative authority over core staff, including, but not be limited to, time records, payroll, approval of leave requests and compensatory time accruals, reporting leave usages and other employment related processes.

l. Assuring preparation of all work session and council committee agendas, together with pertinent information.

m. With the approval of the council as a committee of the whole and coordinating with CAO policies where necessary, preparing standard operating procedures to address work flow between council members, core staff and aides to council, and monitoring same; and establishing and maintaining a repository for general council research.

n. Training of council members (including newly elected), council aides and core staff.

o. Sending meeting notices for Council meetings and work sessions.

(Res. No. 599-2023, § 2, 11-2-23)

1.202. Council Core Staff.

The core staff positions of the urban county council shall consist of one (1) position of council administrator and such other positions as deemed necessary by the council to support its full council, committee and representative duties and responsibilities. The core staff shall serve a term of four (4) years corresponding with the terms of at-large council members. The council may reappoint any person occupying a core staff position for additional four-year terms corresponding with the terms of the at-large council members. The term of the appointment for the core staff shall terminate on December 31, 2026. The core staff shall handle all general and centralized research, filing, records, budget analysis, and payroll, and all other matters for the legislative branch except those matters handled by the aides to council, the council clerk's office, and the citizens' advocate office. The core staff shall provide, maintain, and update, as necessary, the files of the council committees and shall monitor and store all official council work session and committee records, as appropriate, and research and utilize the best available technology, such as electronic imaging/archiving, to the extent feasible to maximize storage capacity and accessibility of the records to the public.

(Res. No. 599-2023, § 2, 11-2-23)

1.203. Council Legislative Aides.

In addition to the core staff positions, each council member may appoint one (1) full-time aide to council, or two (2) part-time aides to council, when such positions have been created and a full-time position has been abolished, or may agree with another council member to appoint one (1) full-time aide to be shared by both council members. Aides to council shall perform only government-related work duties prescribed by the appointing council member(s) within the parameters of Article 16 of the Charter of the Lexington-Fayette Urban County Government and chapter 25 of the Lexington-Fayette Urban County Government Code of Ordinances. Aides to council shall serve at the will of the council member(s) appointing them. All council legislative aide appointments must be ratified by the council. Aides to council shall provide all necessary administrative and clerical assistance to their council member(s), including analytical and research support functions. Aides shall attend staff meetings and follow all LFUCG employee policies (open records, record retention, etc.). Each council member shall be responsible for interviewing and hiring their aide(s). Council members are responsible for approving time and attendance

for their aide. In the event that council members agree to share a single aide to council, all decisions regarding the employment and discipline of the employee must be unanimous. If the decision to dismiss is not unanimous, the aide to council shall become the aide to council of the council member who has not agreed to their dismissal.

(Res. No. 599-2023, § 2, 11-2-23)

1.204. Citizens' Advocate.

Citizens' advocate: The council shall appoint a citizens' advocate pursuant to section 4.11 of the Charter of the Lexington Fayette Urban County Government.

a. The citizens' advocate shall be appointed by the council from a list of candidates recommended by an "ad hoc" residents' committee established for that purpose. Said committee shall be appointed by the council and composed of resident representatives from each of the twelve (12) council districts. The citizens' advocate may be removed without cause by a three-fifths (3/5) vote of the entire council during their first year of service. After one (1) year of service, the citizens' advocate may be removed without cause by a three-fifths (3/5) vote of the entire council, provided that they shall be granted six (6) months' notice of the council's intention to remove them, or in the alternative they shall be granted six (6) months' severance pay. After one (1) year of service a citizens' advocate may be removed at any time for sufficient cause or willful neglect of duty by a three-fifths (3/5) vote of the council in accordance with the procedure established in Charter sections 4.11 and 5.09. The citizens' advocate shall be provided support staff as authorized by council.

b. The citizens' advocate shall be responsible for interviews and recommendations for the hiring and discharging of employees in the office of the citizens' advocate.

c. The citizens' advocate office, under the supervision of the citizens' advocate, shall perform the duties imposed upon the citizens' advocate by section 4.11 of the Charter and by the guidelines promulgated by council (Supplement A, section 1).

(Res. No. 599-2023, § 2, 11-2-23)

1.205. Council Clerk.

The county clerk shall be responsible for the keeping of all official council records and shall provide the council with a council clerk and such support help as needed for this purpose and performance of such other duties as the council may designate. (Charter section 4.10)

The council clerk shall have the responsibility to carry out those duties stated in Section2-5 of the Code of Ordinances. In addition thereto, the clerk shall:

1. Prepare and coordinate the docket and staff all official meetings (council meetings and zone change hearings) of the urban county council.

2. Be responsible for the publication of all necessary public notices related to meetings in item 1.

3. Prepare, maintain and attest to all official council records.
4. Serve as custodian of official records of the urban county council.
5. Store all official council records utilizing the best available technology, such as electronic imaging/ archiving, to the extent feasible, to maximize storage capacity and accessibility of the records to the public, in accordance with Kentucky Revised Statutes.

(Res. No. 599-2023, § 2, 11-2-23)

1.206. Staff Policies.

1. **Personal interest:** All council officers, core staff and aides shall comply with the code of ethics in article 16 of the Charter and with the Ethics Act, Chapter 25 of the Code of Ordinances. In addition, thereto, no council officer, core staff or aide shall lobby any council member concerning any contract or matter pending before the council and no core staff or aide shall engage in or be asked to engage in any political activity while on duty;
2. **Travel and expenses:** All employees and appointees of the council office shall abide by LFUCG travel and expense procedures; CAO Policy 4R.
3. **Approval of vouchers:** A travel voucher shall be prepared in conformity with LFUCG procedures.

(Res. No. 599-2023, § 2, 11-2-23)

Chapter II

Legislation

Section 1

Legislative Authority

2.101. Manner of Legislation.

Pursuant to Charter section 4.07, the council exercises its legislative authority by both ordinances and resolutions, but is not required to make any distinction in the formalities observed in the adoption of each. Traditionally, Kentucky courts have said that a resolution is thought of as ministerial and temporary in character,

whereas an ordinance prescribes a permanent rule of conduct for government. Accordingly, the department of law drafts all urban county government legislation in the form of resolutions unless the legislation is to be codified in

the Code of Ordinances, is appropriating funds or is specifically required by law to be an ordinance. Aside from the foregoing technical distinction in the definitions of ordinances and resolutions, there is no practical difference in the effect of the respective acts.

(Res. No. 599-2023, § 2, 11-2-23)

2.102. Preparation of Legislation.

1. **Responsibility:** Draft ordinances or resolutions will usually be prepared by the department of law upon the request of the mayor, the chief administrative officer, any council member, a member of any board, agency or commission, or a department commissioner. (See 8.101)

2. **General Form:** All draft ordinances and resolutions shall be typewritten on paper of eight and one-half (8½) inches by fourteen (14) inches. For all ordinances or resolutions, the ordaining or resolving clause shall be as follows:

    a. **For ordinances:** "BE IT ORDAINED by the Council of the Lexington-Fayette Urban County Government:"

    b. **For resolutions:** "BE IT RESOLVED by the Council of the Lexington-Fayette Urban County Government:"

3. **Language:** In preparing ordinances and resolutions for introduction, the following rules regarding language shall be followed:

    a. Legislation proposing to amend the Code of Ordinances shall be prepared in accordance with the provisions of section 1-6 of the Code.

    b. Each ordinance or resolution shall have a title, which shall clearly and distinctly state its general subject matter. If the title of the ordinance or resolution is to serve as a synopsis of the contents to be read in lieu of reading the ordinance or resolution itself, it shall be so certified by an attorney licensed to practice law in the Commonwealth of Kentucky on the reverse side of the ordinance or resolution. (KRS 67A.070(3)).

    c. Each section of an ordinance or resolution shall be numbered. The effect of catchlines of sections of the Code of Ordinances shall be as set out in section 1-3 of the Code.

4. **Numbering:** All draft ordinances and resolutions, not prepared for direct placement on the docket of a formal council meeting, shall have the word "draft" typed in the upper right-hand corner of the first page, along with the date of its release by the department of law.

(Res. No. 599-2023, § 2, 11-2-23)

2.103. Introduction of Legislation.

1. **Introducers:** All ordinances and resolutions shall be introduced by the mayor, or by other officers or employees via the administrative review procedure, which requires the knowledge and consent of the mayor. See rule 3.104 and 2.201. Council members may introduce ordinances and resolutions at a meeting of the urban county council.

2. **Time and manner of introduction:** All informational materials which the introducer intends to provide to the council relating to any item on the work session agenda shall be received by the council administrator no later than close of business on the Tuesday preceding the work session at which the introducer seeks to have it presented. If this requirement is not met, the council shall defer action on the item to a later work session or refer it to committee unless, by majority vote of those present, the item is determined to be urgent or to relate to an emergency, thereby requiring discussion and review at that time.

3. **Introduction into council:** The council shall only consider in regular, public meeting those ordinances and resolutions approved for action at a prior work session. The only exceptions to this shall be in any case where the mayor pursuant to Charter section 4.07 determines to introduce, present or otherwise insert into the record of the council any ordinance or resolution and in any case where the council, by majority vote of those present, determines to "walk on" to the agenda of any regular, public meeting any ordinance or resolution. All ordinances and resolutions must be read on at least two (2) separate days, except as otherwise provided by law. See rule 3.501. A council member shall not be required to introduce legislation using the legislative review process, but may do so at their discretion.

(Res. No. 599-2023, § 2, 11-2-23)

Section 2. Legislative Process and Workflow

2.201

Workflow Description and Visual Aids.

1. There are several ways legislative items make it through the urban county council's approval process. Legislative items are all processed at work session but each have their own workflow to come before the council at work session.

    a. Administrative workflow (Figure 1.): Administrative requests are files that come from the administration. Files originating from various divisions are processed through a review and approval sequence using a legislative management software. The sequence includes division directors and/or commissioners, the chief administrative officer, certain divisions (to review content), and the council administrator. The office of the mayor (or appointee) prepares a list of items for consideration at the work session. The council administrator prepares the work session agenda and packet for distribution.

b. Council workflow (Figure 2.): Council standing committee items are legislative items the council has discussed in one of their standing committees. These items are referred to committee as outlined in Section 4.204 by the vice mayor or council members for review and discussion. Summaries of the committee meetings are provided by the committee chair at work session, during which any motions (action items) from the committee are brought before the full council for consideration and potentially placed on a docket.

c. Required business of government workflow (Figure 3.): These legislative items, including items previously referred to the docket by the council, zoning amendments, acceptance or rejection of bids, communications from the mayor (for information only), and personnel matters are files that come from the administration as routine business of government. They are processed using a legislative management software, but each file type has its own approval sequence. Files of this nature are directed to the work copy docket. The council clerk prepares the work copy docket with the approved files and distributes it. The council reviews and approves the work copy docket at work session.

2. The legislative workflows outlined above come before the council for review at work session through various parts of the agenda. All items approved at work session are moved to the following council meeting docket, where they receive two (2) separate readings for final approval. (Figure 4.)

3. It should be noted that there are exceptions to these work flows, specifically for emergency items needing approval on a short deadline. A council member may move to walk these items on at a work session or council meeting for approval.

4. The following figures are subject to change based on the adopted council calendar, particularly around holidays and longer breaks of meetings in the calendar.

Figure 1. Administrative Request Workflow



* Step 3. Approval sequence includes approval from the following divisions: Grants & Special Programs, Human Resources, Purchasing, Budgeting, Law, Council Administrator

Figure 2. Council Standing Committee Workflow

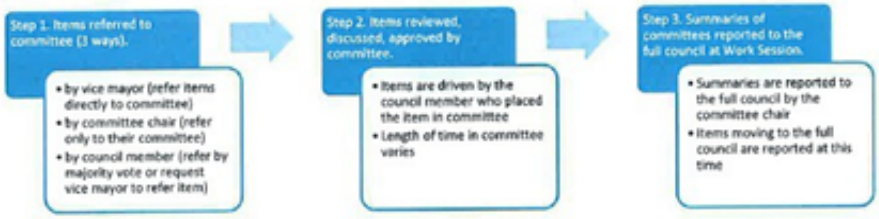
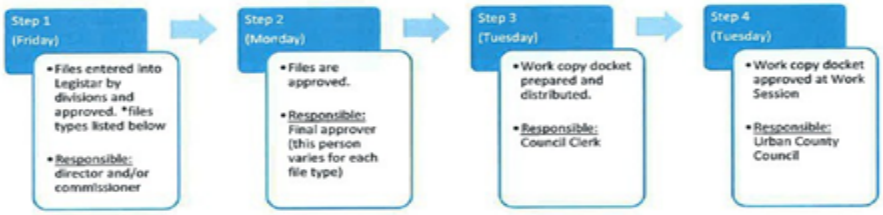
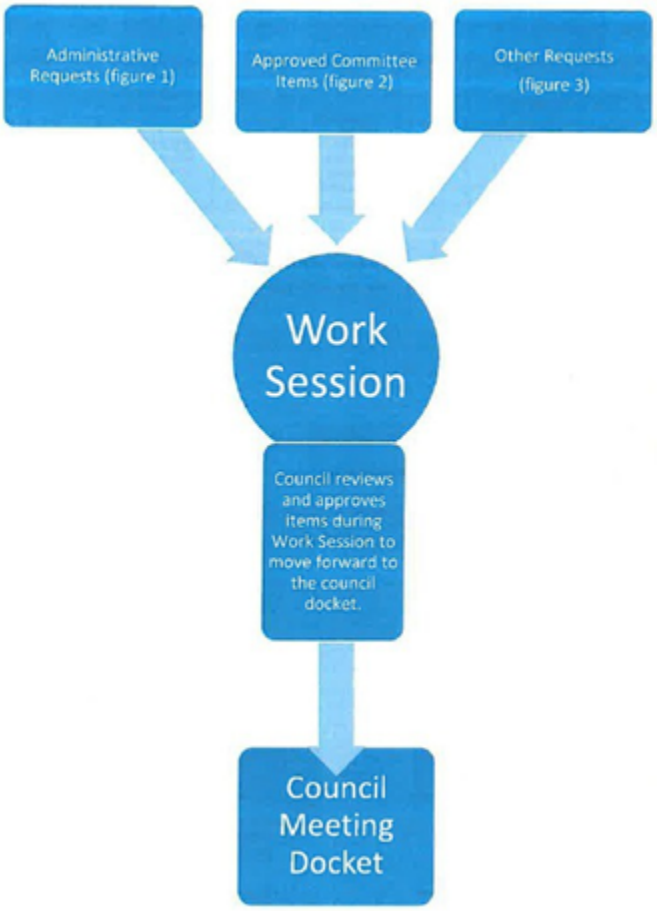


Figure 3. Other Request, Work Copy Docket Workflow



*Step 1. File types include: items previously referred to the docket by the council, zoning amendments, acceptance or rejection of bids, communications from the mayor (for information only), and personnel matters.

Figure 4. Overall Work Flow, For All Legislative Requests



(Res. No. 599-2023, § 2, 11-2-23)

Chapter III

Procedures

Section 1

Meetings

3.101. Meeting Schedule.

The urban county council shall meet in regular, public meetings at least twice a month. The regular meetings of the council shall be held on the dates and times specified in a schedule of meetings adopted annually by the council by ordinance. All council meetings shall be held in the council chambers on the second floor of the Lexington-Fayette Government Center, and shall be open to the public (Code Section 2-1).

(Res. No. 599-2023, § 2, 11-2-23)

3.102. Regular Meetings.

1. **Call of council; quorum.** The presiding officer shall take the chair at the hour designated for convening the urban county council for any regular public meeting or special meeting, shall then call the council to order and determine the presence of a quorum. A quorum of all regular public meetings, and special meetings, of the urban county council shall consist of not fewer than ten (10) of the fifteen (15) members of the council (Charter section 4.07). If the presiding officer determines that a quorum is not present, the presiding officer shall recess the urban county council for a maximum of thirty (30) minutes, or until the chair determines that a quorum is present, whichever occurs first. At the end of the thirty (30) minutes, if a quorum is not present, the urban county council shall not meet until its next regular public meeting, special meeting, or work session. If during any regular public meeting, or special meeting, it is determined that a quorum of ten (10) council members is not present, the urban county council shall recess for up to a maximum of fifteen (15) minutes, after which time, if no quorum is present, the council shall adjourn until its next scheduled meeting. When the call is ordered, the council clerk shall call the roll of the council members, rotating the call alphabetically at each meeting so that a different council member shall be called first each meeting.

2. **Order of business.** The following order of business shall apply for regular public meetings of the urban county council:

   I. Invocation.

   II. Roll call.

   III. Minutes of previous meeting.

IV. Mayoral Proclamation. Up to two proclamations per council meeting. Council members can submit recommendations to the mayor three weeks prior to the council meeting they want the proclamation to occur. The award language must be written and submitted with the proclamation request. Groups or individuals may be recognized; such recognition/award process shall be noted in the records of the council clerk.

V. Public comment - docket items only.

VI. Ordinances:

1. Second reading;

2. First reading.

VII. Resolutions:

1. Second reading;

2. First reading.

VIII. Communications from the mayor.

IX. Communications from the mayor (for information only).

X. Public hearing (public hearings may be scheduled for an appointed time during an urban county council regular public meeting, and the regular order of business may be delayed to allow for the public hearing).

XI. Fire/police discipline - YES or NO.

XII. Comments or announcements by council members.

XIII. Public comment - issues not on the docket.

XIV. Adjournment.

(Res. No. 599-2023, § 2, 11-2-23; Res. No. 644-2024, § 1, 12-5-24)

3.103. Special Meetings.

1. Except as provided in subsection (5) of this rule, special meetings shall be held in accordance with the provisions of subsections (2), (3), and (4) of this rule.

2. The presiding officer or a majority of the members of the council or council committee or subcommittee may call a special meeting.

3. The council clerk shall provide notice of the special meeting if the meeting is held pursuant to rule 3.102. The council administrator shall provide the notice if the meeting is a work session held pursuant to rule 3.104; a committee or subcommittee meeting held pursuant to rules 4.101 through 4.206; or a public meeting held pursuant to rule 3.108.

   The notice shall consist of the date, time, and place of the special meeting and the agenda. Discussions and action at the meeting shall be limited to items listed on the agenda in the notice.

4. As soon as possible, written or electronic notice shall be delivered to every member of the body as well as each media organization that requested to receive notice of special meetings. Notice shall also be posted in a conspicuous place in the building where the special meeting will take place and in a conspicuous place in the Lexington-Fayette Government Center at least twenty-four (24) hours before the special meeting. The notice shall be calculated so that it shall be received at least twenty-four (24) hours before the special meeting.

5. In the case of an emergency which prevents compliance with subsections (3) and (4) of this section, this subsection shall govern conduct of a special meeting. The special meeting shall be called pursuant to subsection (2) of this section. The body shall make a reasonable effort, under emergency circumstances, to notify the members of the agency, media organizations which have requested to receive notice of special meetings pursuant to subsection (4) of this section, and the public of the emergency meeting. At the beginning of the emergency meeting, the person chairing the meeting shall briefly describe for the record the emergency circumstances preventing compliance with subsections (3) and (4) of this section. These comments shall appear in the minutes. Discussions and action at the emergency meeting shall be limited to the emergency for which the meeting is called.

6. Reserved.

(Res. No. 599-2023, § 2, 11-2-23)

3.104. Work Session.

1) The urban county council shall meet at the dates and times specified in a schedule of meetings adopted annually by the council by ordinance, in the council chamber on the second floor of the Lexington-Fayette Government Center, for purposes of conducting a "work session." Action taken by the urban county council at a work session is procedural in nature (See 2.201). A quorum for work sessions shall consist of not fewer than eight (8) of the fifteen (15) members of the council. The following order of business shall apply for work sessions of the urban county council;

   I. Public comment-agenda items only.

   II. *Requested rezonings/docket approval. (No item shall be placed on the docket which has not been approved at work session, either as part of the work docket or as a separate item at work session, except in case of emergency and except as limited by section 4.07 of the Charter).

III. Approval of summary.

IV. *Budget amendments.

V. Budget adjustments (for information only).

VI. New business.

VII. Communications from the Mayor.

a. Appointments.

b. Donations.

c. Procurement Reports.

1. Price Contracts.

2. Fixed price bid recommendations (unilateral contract or purchase order).

3. Sole source procurement recommendations (unilateral contract or purchase order).

VIII. Continuing business/presentations/employee recognition. Continuing business includes requests for neighborhood development funds, council capital projects, and council committee summaries. Up to three (3) presentations are permitted per work session and each presentation shall not exceed fifteen (15) minutes; presentations may include but are not limited to presentations pursuant to legal requirements, presentations constituting official business (which, for the purposes of this section, includes but is not limited to, LFUCG department and division updates, LFUCG program updates, requested and/or required annual updates, and presentations involving budgetary or fiscal matters), proclamations, and LFUCG employee recognition, with priority given to presentations pursuant to legal requirements and presentations constituting official business.

IX. Council reports.

X. Public comment-issues not on agenda.

XI. Adjournment.

2) The work session agenda shall be composed of items referred from the following sources:

a. Council members;

b. Council committees; and

c. Mayor.

3) The work session agenda, which shall also include items deferred from previous work sessions, shall be prepared and delivered on the Friday preceding the scheduled work session.

4) At work session, the council will take one (1) of the following steps after discussion of each agenda item:

   a. Refer it to a council committee;

   b. Refer it to the administration for action, report or a recommendation;

   c. Place it on the docket of an official council meeting;

   d. Remove, postpone, or defeat; or

   e. No action; received as information.

5) At the work session preceding an official council meeting, the council shall also consider, in addition to its work session agenda, a tentative docket for the upcoming meeting. This "work copy" docket is prepared by the council clerk and shall include the following:

   a. Items previously referred to the docket by the council;

   b. Zoning amendments;

   c. Acceptance or rejection of bids;

   d. Communications from the mayor (for information only); and

   e. Personnel matters.

6) In the case of a requested rezoning, the council shall during work session decide whether to follow the planning commission's recommendation without a hearing; to review the planning commission record and (i) base its decision thereupon; or, (ii) hold its own hearing and base its decision both upon its and the planning commission record. In cases where more than one (1) zone change is placed on the work docket and public hearings are scheduled, the zone change applicant who filed the earliest with the division of planning shall be given preference in selecting a public hearing date, unless the planning commission hears the cases in an order different from that based on the time and date of filing the zone change request. In such cases the order in which the planning commission decides the zone change requests shall prevail over applicants who filed earliest.

7) In cases where the council decides to hold its own public hearing and base its decision both upon its and the planning commission record, the council shall endeavor to schedule the hearing for a time at which at least thirteen (13) council members have indicated that they can be in attendance; provided, however, that since Charter section 4.07 states that the required quorum for all official meetings of the urban county council is only ten (10) members, the council may consequently choose to proceed with any scheduled hearing on the hearing date notwithstanding that less than thirteen (13) members are in attendance so long as at least

ten (10) members are present. At the scheduled time of the hearing, the council may alternately determine to postpone the hearing to a reasonable time thereafter for the purpose of securing the attendance of at least thirteen (13) members.

(Res. No. 599-2023, § 2, 11-2-23; Res. No. 271-2024, § 1, 5-16-24; Res. No. 310-2024, § 1, 6-27-24)

3.105. Executive Sessions.

Executive or closed sessions may be held upon a majority vote of a quorum of the council pursuant to the limitations set forth in KRS 61.805 et seq. (Res. No. 599-2023, § 2, 11-2-23)

3.106. Public Comment During Meeting. Public comment process:

1. **Meetings:** Public comment is encouraged and is listed as an agenda item at every regular council meeting and council work session, for items on the agenda and general comments.

2. **Sign-In:** Residents wishing to speak during public comment should sign themselves in prior to the start of the meeting at which they want to speak. There are two (2) digital sign-in sheets outside of the council chamber for electronic sign-in which will be available for sign-in thirty (30) minutes prior to the start of the meeting and thirty (30) minutes after the start of a council work session or regular council meeting.

3. **How-To:** When the opportunity for public comment is afforded by council, it is a time for residents to address the council with their own spoken comments. When called to speak, individuals should start by stating their name and council district. At work sessions, there is an agenda item for public comment for issues on the agenda, and public comment about items on the agenda should be offered at that time. Public comment for issues not on the agenda is allowed at the end of the meeting. At council meetings, public comment will be at the end of the agenda. Public comment does not include the privilege of making presentations to council, multimedia or otherwise, including on personal devices by the speaker.

4. **Time:** Each speaker is allowed three (3) minutes. Members of the public who have signed up to speak may yield their three (3) minutes, when present, to another member. One speaker is allowed up to a total of nine (9) minutes, including time that has been yielded.

5. **Materials:** Public comment does not include a privilege on the part of the speaker to make presentations to council, i.e. PowerPoint presentations, multimedia presentations, or other similar presentations. If a speaker would like to distribute materials to council, they should be placed in the tray marked "materials for council" on the public comment table outside of the council chamber. Materials will be distributed to council by a council staff member. No USB devices or other portable digital media will be accepted.

Public participation:

1. **Dialogue:** Public comment at regular council meetings and work sessions is a time for the mayor and council members to listen to residents and receive exclusively verbal feedback for informational purposes only.

Public comment is not a time for council members to engage in a dialogue with residents, nor is it a time for residents to make PowerPoint presentations or multimedia presentations of any kind to the council, or for the playing of multimedia of any kind, including on personal devices by the speaker.

2. **Political Purposes:** The public comment period will not be used to make political endorsements or for political campaign purposes.

3. **Decorum:** Speakers shall exercise decorum during debate, conduct themselves in a courteous manner, and refrain from using unbecoming, derogatory, or abusive language and making personal attacks.

4. **Disruptions:** Disruptions in support or opposition to a speaker or idea, such as clapping, cheering, booing, or hissing are not permitted in the council chamber.

5. **Signs & Posters:** No signs or posters that disrupt camera angles, the view of the audience, or inhibit the function of the meeting are allowed.

6. **Security:** For security reasons, no person, except the mayor, mayor's staff, council members, aides, council staff, or anyone relevant to the meeting, shall be permitted beyond the podium or designated staff areas at any time.

7. **Removal:** Any person who engages in or makes threats of physical violence shall be immediately removed from the meeting.

Any failure to adhere to these guidelines by any member of the public may result in loss of the public comment privilege at the meeting and/or removal from the meeting, as appropriate, at the discretion of the presiding officer.

These guidelines are provided for the orderly and civil conduct of council meetings. These guidelines apply to both the public comment period and legislative public hearings before the Urban County Council unless otherwise provided.

(Res. No. 599-2023, § 2, 11-2-23; Res. No. 328-2024, § 1, 6-27-24)

3.107. Distribution of Informational Material by Members of Public During Meetings.

Public comment does not include a privilege on the part of the speaker to make presentations to council, i.e. PowerPoint presentations, multimedia presentations, or other similar presentations. If a speaker would like to distribute materials to council, the speaker shall place those materials in the tray marked "materials for council", located on the table outside of the council chamber for distribution to council by a council staff member. No USB devices or other portable digital media will be accepted.

(Res. No. 599-2023, § 2, 11-2-23; Res. No. 328-2024, § 2, 6-27-24)

3.108. Public Hearings and Forums.

1. **Public hearings:** Public hearings may be scheduled by the council as required by law to receive resident comment and testimony on items under consideration by the council. Public hearings usually have formal procedures determined by the nature of the action, for example, hearings on zone changes, etc. The council clerk is responsible for providing public notification of public hearings.

2. **Public forum:** Public forums are requested by council for the purpose of providing a public venue for comments on issues. Procedures for conducting public forums are determined by the presiding officer in accordance with council rules and Robert's Rules of Order newly revised. The council administrator shall provide notice of the date, time and place of any public forum requested by council. The council administrator is responsible for providing public notification of public forums.

(Res. No. 599-2023, § 2, 11-2-23)

Section 2

Presiding Officer

3.201. Presiding Officer.

The presiding officer of the council shall be the chief executive officer of the merged government, to be known as the "mayor." As presiding officer, the mayor shall have a vote on all matters, substantive and procedural, only in the case of a tie vote among the elected members of the council. However, when voting on an ordinance or resolution and there is a tie vote among the elected members of the council, with one (1) or more members abstaining, the mayor may cast the tie-breaking vote only if those abstaining would be in a position to assist in making the decision, i.e., only if the total number of elected council members voting affirmatively and abstaining equals eight (8) or more (Example: A vote of 6-6-1 could not be broken by the mayor's vote, but a vote of 6-6-2 could be). In no case shall the mayor, as presiding officer, be denied the right of introducing, presenting or otherwise inserting into the record of the council any resolution, recommendation, or proposed ordinance. (Charter section 4.07) In the absence of the mayor, the presiding officer of the council shall be the vice mayor. The powers of the vice mayor as presiding officer of the council shall be the same as those prescribed for the mayor, except that the vice mayor shall be entitled to vote on all matters, substantive and procedural, when serving as presiding officer of the council. (Charter Section 4.07) In the absence of the mayor and the vice mayor, the next highest vote-getter among the council members at-large shall preside until the arrival of the mayor or vice mayor. While serving as the presiding officer, the council member at-large shall be entitled to vote on all matters, substantive and procedural. In no case shall the position of chair of the presiding council member at-large extend beyond adjournment of the meeting. The rules contained in this section shall govern all regular public meetings, special meetings and work sessions of the urban county council.

(Res. No. 599-2023, § 2, 11-2-2023)

Section 3

Rules of Debate

3.301. Recognition.

Any council member wishing to address the council shall request recognition to speak by signing in to their computer work station. The chair shall recognize all members requesting recognition unless a motion taking precedence is offered.

(Res. No. 599-2023, § 2, 11-2-23)

3.302. Decorum.

Meetings of the council shall be conducted in an orderly manner to ensure that the deliberative process of the council is retained at all times. The presiding officer shall be responsible for maintaining the order and decorum of meetings.

No council member shall speak on any question or discuss any matter, nor interrupt another, nor make a motion without recognition from the presiding officer. No council member shall be interrupted by another without the consent of the council member who has the floor, unless it be to call them to order. Every council member shall exercise decorum during debate, conduct themselves in a courteous manner, confine their remarks to the question, and refrain from using unbecoming, derogatory, or abusive language, and shall also refrain from making personal attacks or accusations.

If any person breaches the rules of decorum in a manner that disturbs, disrupts or otherwise impedes the orderly conduct of the meeting, the presiding officer can order that person to cease the offending conduct. If any person fails to cease the behavior, the presiding officer can request the removal of that individual from the chambers.

(Res. No. 599-2023, § 2, 11-2-23)

3.303. Time Limit.

No council member shall speak more than twice, nor more than five (5) minutes on each occasion, upon any one (1) question in debate during the same regular public meeting, special meeting, or work session, without leave of the council, except in explanation, unless he or she is the mover, proposer, or introducer of the matter pending, in which case, he or she shall be permitted to speak in reply, but not until every other member desiring to speak shall have spoken. A council member's time begins as soon as they are called upon by the presiding officer.

(Res. No. 599-2023, § 2, 11-2-23)

3.304. Limit of Debate.

Debates shall be limited to that time during which a question is on the floor, with all members in attendance having an opportunity to speak. When a motion calling for the vote on the previous question is properly offered and voted on, the question under debate shall be voted on.

(Res. No. 599-2023, § 2, 11-2-23)

Section 4

Motions

3.401. Motions: How Made, Withdrawn.

1. Every motion shall be made orally unless the presiding officer requests that it be reduced to writing. Except as provided below, every motion must have a mover and a second. When a motion is made and seconded, it shall be stated by the presiding officer and the mover shall have the floor. Prior to the motion being stated, the mover may withdraw the motion with no further action necessary. Once the motion has been stated, it shall be debated and disposed of by vote of the council. However, the mover may withdraw a motion after the motion has been stated by majority vote if done before the motion has been amended or before a vote thereon has commenced.
2. The following do not require a second and shall be decided by the chair:
    a. To raise a question of privilege;
    b. To call for the orders of the day;
    c. To raise a parliamentary inquiry;
    d. To move for a division of the assembly;
    e. To raise a request for information; or
    f. To raise a point of order.

(Res. No. 599-2023, § 2, 11-2-23)

3.402. Motions Taking Precedence.

When a question is under debate, no motion shall be considered except incidental motions or one of the following, which motions shall take precedence in the order stated:

1. To adjourn.
2. To recess.

3. To raise a question of privilege.
4. To call for orders of the day.
5. To lay the question on the table.
6. For the previous question (call for the question) (requires 2/3 vote).
7. To limit or extend debate (requires 2/3 vote).
8. To postpone to a certain time.
9. To commit or refer to committee.
10. To amend.
11. To postpone indefinitely.

(Res. No. 599-2023, § 2, 11-2-23)

3.403. Motions to Amend.

When a question is under consideration, a motion to amend and a motion to amend that amendment shall be in order, but no further motion to amend shall be in order until the disposition of that motion.

(Res. No. 599-2023, § 2, 11-2-23)

3.404. Motions to Adjourn or Recess.

A motion to adjourn or recess shall be in order, except as follows:

1. When a council member is speaking.
2. When an item of business is pending and a previous such motion was defeated during such pendency.
3. When a roll call vote is in progress.

(Res. No. 599-2023, § 2, 11-2-23)

3.405. Motions to Discharge or Refer.

1. The council may refer any item to a committee or specific administrator by a majority vote.
2. The council may discharge any item to the floor which has been referred to a council committee for discussion. This motion requires a two-thirds (2/3) vote if notice of the motion to be proposed has not been given at the preceding meeting or in the call of the meeting.

(Res. No. 599-2023, § 2, 11-2-23)

3.406. Motions not Debatable.

The following motions are not debatable:

1. To adjourn or recess.
2. To lay the question on the table or to take from the table.
3. To dispense with reading of minutes.
4. For the previous question (call for the question).
5. To withdraw a motion.
6. To raise a question of privilege.
7. To call for the orders of the day.
8. To limit or extend debate.
9. To raise a point of order.
10. To divide the question.
11. To raise a request for information.
12. To suspend the rules.
13. To move for a division of the assembly.

(Res. No. 599-2023, § 2, 11-2-23)

3.407. Reconsideration and Rescinding.

1. The provision of this rule shall apply to action taken by the council at regular, public meetings held pursuant to rule 3.102, special meetings held pursuant to rule 3.103, and work sessions held pursuant to rule 3.104. It shall also apply to action taken by any seated committee or subcommittee of the council to consider again any matter which has been previously decided within the term of that committee or subcommittee.
2. Any matter which has been previously decided, within the term of any seated council, shall not be considered again without a motion to reconsider; to rescind; or to amend. However, once an ordinance amending the zone map atlas is voted on, the council shall not reconsider the matter unless ordered to do so by a court of competent jurisdiction.
    a. **Reconsider.** The motion to reconsider is made only by one who voted on the prevailing side. Anyone can second the motion to reconsider. This motion can be made only on the day the vote was taken. If the motion is carried, the original motion is again open to discussion and vote. No question can be twice reconsidered unless it was materially amended after its first reconsideration.

b. **Rescind:** The motion to rescind may be made and seconded by any member of the body, and can be made at any time. However, the motion to rescind requires a two-thirds (2/3) vote if notice of the motion to be proposed has not been given at the preceding meeting or in the call of the meeting. If the motion is carried, the matter previously decided shall be cancelled.

c. **Amend something previously adopted:** The motion to amend something previously adopted may be made and seconded by any member of the body, and can be made at any time. However, the motion to amend something previously adopted requires a two-thirds (2/3) vote if notice of the motion to be proposed has not been given at the preceding meeting or in the call of the meeting. If the motion is carried, the previously-adopted motion, as amended, stands.

3. A motion to reconsider, rescind, or amend something previously adopted is not in order if action has already been taken which cannot be undone or changed.

(Res. No. 599-2023, § 2, 11-2-23)

Section 5

Voting

3.501. Official Action.

Official action of the council shall be by the adoption of ordinances and resolutions only. No ordinance or resolution shall be passed until it has been read on at least two (2) separate days; except that the council may, by two-thirds (2/3) vote of the members, vote to suspend the rules and proceed with the second reading, except in matters pertaining to appropriations, taxation or finance.

When a motion for second reading is made, the mover shall state why it is necessary for the matter to receive a second reading.

An ordinance or resolution may be amended at second reading by a vote of the majority of members in attendance; provided however, that a material change to an ordinance or resolution would require a new first reading. Requirements for reading ordinances or resolutions may be satisfied by public reading of the title and of a certified synopsis of the contents prepared by an attorney licensed to practice law in the Commonwealth of Kentucky. (Charter sections 4.07 and KRS 67A.070(3)).

(Res. No. 599-2023, § 2, 11-2-23)

3.502. Majority Action.

All ordinances or resolutions, except as otherwise provided in the Urban County Charter, shall be passed only by vote of a majority of all council members. However, when the planning commission recommends that an amendment be made to the map of the zoning ordinance, at least eight (8) council members must vote against the mea-

sure to disapprove it. In addition, when the planning commission adopts findings of fact to support approval or disapproval of zone map amendments of the zoning ordinance or makes recommendations as to regulations for the subdivision of land, at least eight (8) council members must vote against the findings of fact or recommended subdivision regulations to disapprove or amend them. Voting on ordinances and resolutions shall be by rotational roll call vote, and the ayes and nays shall be recorded in the official record of the council which shall be maintained in the office of the council clerk. (Charter section 4.07, KRS 100.211(1) and KRS 100.273(1)).

(Res. No. 599-2023, § 2, 11-2-23)

3.503. Procedural Action.

Procedural action by the council shall be by a vote of a majority of all council members in attendance. Except when adopting findings of fact in zoning hearings, procedural action shall be by voice vote, unless a member of the council or the chair requests a show of hands or a roll call vote. In zoning hearings, action on findings of fact shall be by roll call vote. When a show of hands vote is conducted, the presiding officer shall announce the vote, and the vote shall be recorded.

(Res. No. 599-2023, § 2, 11-2-23)

3.504. Explanation of Vote.

It shall not be in order for council members to explain their votes during the call of the roll or at the time of a voice or hand vote, as explanation at this time is considered debate. When the procedure for voting is by roll call vote, or show of hands vote, a member of the council has the right to change their vote up to the time the result of the vote is announced.

(Res. No. 599-2023, § 2, 11-2-23)

3.505. Voting Required Unless Excused.

It is the duty of each council member present at any meeting of the council to vote on each question put up for vote by stating "yea" (yes), "nay" (no), or "abstain," except that no council member shall be permitted to vote on any question immediately concerning their private interests. Any council member who has a private interest in any matter pending before the council shall disclose such private interest on the records of the council and shall recuse themselves from participating in any decision or vote relating thereto. A council member may recuse themselves and disclose their interests orally to the council while in formal meeting or work session or in writing to the council clerk. A recused member may remain for quorum purposes only, but shall not participate in any discussion or vote on the subject. (Charter sections 116.02 and 16.03 and Code sections 25-5 and 25-6.)

Every council member who is present when a question is put, unless they are excused as provided in this rule shall give their vote in the negative or affirmative. A council member may only change their vote during the meeting in which the vote was cast if the change does not change the outcome. Otherwise, a motion to reconsider, rescind, or

to amend something previously adopted would be necessary. Any council member who abstains from giving their vote shall be considered as acquiescing in the action of the majority of those who do vote. Such abstentions shall be counted with the majority.

(Res. No. 599-2023, § 2, 11-2-23)

Section 6

Budget Amendments

3.601. Budget Amendments.

1. Prior to the presentation of the final audit report in any given fiscal year, council shall not approve any budget amendment which reduces the budgeted fund balance in the current fiscal year unless the following conditions are met:

    a. A certification is given by the chief administrative officer that an emergency exists. The certification shall set out the reason(s) an emergency situation exists;

    b. The budget amendment request involves personnel actions which do not affect the fund balance; or

    c. The budget amendment request involves a reappropriation of funds.

2. Any budget amendment request which does not meet the criteria set out above and which will result in a reduction of the budgeted fund balance shall be presented to the council with additional justification for the request.

(Res. No. 599-2023, § 2, 11-2-23)

Chapter IV

Committees

Section 1

General Rules

4.101. Appointment of Committees.

Except in the case of ex officio members, the vice mayor shall appoint the members of the standing committees of the council and such special committees as may be established by the vice mayor or by majority vote of the council. All appointments to the standing committees shall be made for a term of two (2) years, to coincide with the terms

of district council members. Appointments to special committees shall be made for the term of the committee. Except as otherwise provided herein, each standing committee shall elect its own chair, who shall appoint a vice-chair. In the event of a tie vote when electing a chair, and the committee is unable to break the tie after two (2) rounds of voting, the election of the chair shall be made by the full council by vote. The vice mayor shall serve as the chair of the committee until the full council vote is completed. In the event the chair is no longer able or willing to fulfill their role, the vice-chair will assume the role of chair and appoint a new vice-chair. The vice mayor shall designate the chair of any special committee. Ad hoc committees are a form of special committee and are subject to the same appointment and chair designation procedures as provided in this section for special committees.

(Res. No. 599-2023, § 2, 11-2-23)

4.102. Standing Committees.

As soon as possible after the election of council members, the vice mayor shall make appointments to the standing committees, as required by these rules. The standing committees shall be as follows:

1. Social services and public safety committee, to which shall be referred matters relating to the department of social services and its divisions, the department of public safety and its divisions, any related partner agencies, and matters relating to capital improvement projects.

2. General government and planning committee, to which shall be referred matters relating to the department of general services and its divisions, the division of planning, the department of law, any matter relating to the general administration of government and the divisions under the chief administrative officer, any related partner agencies, and any other matters relating to capital improvement projects.

3. Environmental quality and public works committee to which shall be referred matters relating to the department of environmental quality and public works and its divisions, including capital improvement projects and any related partner agencies.

4. Budget, finance and economic development committee, to which shall be referred matters relating to the department of finance and its divisions, and any related partner agencies, including capital projects, the urban county courts and constitutional officers, fiscal operations of the government, revenues and expenditures of the government, and organization changes which affect the fiscal operations of the government (consideration limited to operational aspects only) and to which shall be referred matters relating to economic development and related partner agencies. Additionally, this committee shall review the final audit report and management letter of the accounting firm recommended by the mayor and selected by the council to conduct the annual financial audit of the urban county government and shall report its findings concerning the same to the mayor and council for appropriate action.

The social services and public safety committee, general government and planning committee, environmental quality and public works committee, and budget, finance and economic development committee shall each consist of ten (10) council members and each council member shall serve on two (2) of these four

(4) committees. The budget, finance and economic development committee shall be comprised of the vice mayor, two (2) additional at-large council members, chairs of the remaining standing committees, and additional council members as needed to reach ten (10) total members.

The chair and vice-chair of each standing committee shall attend parliamentarian training, as organized by the council administrator, before the first committee meeting of their term. Parliamentary training shall be completed each term.

(Res. No. 599-2023, § 2, 11-2-23)

4.103. Special Committees.

Special or ad hoc committees may be appointed or created by the mayor or vice mayor or may be created by a majority vote of council for any specific purpose proper for council consideration. The chair of a special or ad hoc committee may appoint one (1) or more members of the committee to examine particular issues within the committee's jurisdiction. Non-council members may be appointed to serve on special or ad hoc committees when assistance of others is required. When such committee is created, its task and a time frame will be established. Upon making its final report to the body that created it, such a special or ad hoc committee shall be dissolved.

Special or ad hoc committees shall adopt a schedule of meetings at their first meeting, and amend the schedule of meetings in order to add additional meetings. Notification of special meetings is required as outlined in section 3.103.

(Res. No. 599-2023, § 2, 11-2-23)

4.104. Subcommittees of Standing Committees.

The chair of a standing committee may appoint one (1) or more subcommittees, consisting of one (1) or more members of the committee, to examine particular issues within the committee's jurisdiction. Subcommittees must consist of members of the committee, except when otherwise authorized by the council in cases where the committee is appointed to take action that requires the assistance of others. Subcommittees of standing committees shall be staffed by the council's core staff. The final report from the subcommittee shall be made to the committee that created it and shall have the effect of dissolving the subcommittee.

Subcommittees shall adopt a schedule of meetings at their first meeting, and amend the schedule of meetings in order to add special meetings. Notification of special meetings is required as outlined in section 3.103.

(Res. No. 599-2023, § 2, 11-2-23)

4.105. Committee of the Whole.

The council may resolve itself into a committee of the whole council. The vice mayor shall be chair of the committee of the whole council, but may designate another member to preside or act as chair at such times and for such periods as they may desire. In the absence of the vice mayor, the committee of the whole council shall be chaired by the at-large member present who received the second highest number of votes in the previous general election

when at-large elections were held. If no at-large member is present, the committee of the whole shall elect one of its members to serve as chair. The committee of the whole shall be charged with handling personnel matters relating to the council office staff. A quorum for the committee of the whole shall be eight (8). The budget, finance and economic development committee shall resolve itself into the committee of the whole during the review of the mayor's proposed budget and return to the original budget, finance and economic development committee structure upon adoption of the budget. If the vice mayor is absent, the current chair of the budget, finance and economic development committee shall preside.

1. Prior to the mayor's annual budget address, the chair of the budget, finance and economic development committee will assign council members to various link committees. The five (5) link committees (each made up of three (3) council members), are tasked with reviewing a section of the mayor's proposed budget. The chair of the budget, finance and economic development committee shall assign a chair for each link.

2. The link committees shall adopt a meeting schedule to meet with commissioners and division directors to review and discuss budget requests. These meetings shall be scheduled to avoid overlap so that the chief administrative officer (CAO), commissioner of finance and their staff, and the council core staff may attend.

3. The chair of the link committee shall report the committee findings and recommendations to the full council during a committee of the whole budget meeting (section 4.105). The chair of the budget, finance and economic development committee may determine the best process and order for the committees to report their findings.

4. In the event that a link makes a recommendation that requires additional funding, it shall be the responsibility of the link committee to locate the source of the funds to cover the additional expense. The full council shall vote to approve or deny any recommendation brought forward by the link committee as well as the recommended funding source.

(Res. No. 599-2023, § 2, 11-2-23)

4.106. Investigative Committees (Section 4.08 of Charter).

Council committees created under this section of the Charter will be assigned specific areas of investigation and a date set for the delivery of a final report. These committees will be dissolved when tasks are completed and recommendations are returned to council.

(Res. No. 599-2023, § 2, 11-2-23)

4.107. Confirmation Committees.

A committee of the whole shall convene under this section subject to the following:

1. **Department commissioners:**

a. The council shall not exercise the confirmation power granted in section 5.04 of the Charter until it conducts a minimum of one (1) hearing to determine the qualifications and suitability of any department commissioner recommended by the mayor for confirmation.

b. Any hearing(s) held pursuant to subsection (1) shall commence within ten (10) working days of receipt of notice from the mayor recommending confirmation of a department commissioner and shall conclude within twenty-five (25) working days of receipt of notice as provided herein. Confirmation shall require a vote of a majority of the council at a regular or special meeting of the council.

c. All meetings held pursuant to subsection (1) shall be conducted in accordance with the provisions of section 4.105 of these rules and procedures.

d. Nothing in this section is to be construed as an infringement by the council upon the appointive powers of the mayor pursuant to section 5.04 of the Charter.

2. **Other appointments:**

a. Pursuant to Chapter 25 of the Code of Ordinances, a confirmation hearing shall be held for all individuals appointed to any of the agencies listed in Section 25-4(1), which shall not include individuals appointed to special purpose governmental entities, as defined in KRS Chapter 65A.

i. With the exception of special purpose governmental entities, for agencies listed in Section 25-4(1), when a vacancy exists due to death, resignation or removal, the office of the mayor shall notify the urban county council within seven (7) days of said vacancy.

ii. When a vacancy exists on the board of adjustment, planning commission or the ethics commission, council members are encouraged to submit nominations for consideration within seven (7) days from receipt of the notice from the office of the mayor.

iii. The office of the mayor shall, ninety (90) days prior to the expiration of the term of any member of the board of adjustment or planning commission, notify the urban county council of the term expiration date. Council members are encouraged to submit nominations for consideration within seven (7) days from receipt of the notice from the office of the mayor.

b. Prior to the confirmation hearing, the office of the mayor shall provide the council administrator with the following documents:

i. Application, which shall be delivered to the council administrator no later than five (5) days prior to a scheduled confirmation hearing;

ii. Resume, which shall be delivered to the council administrator no later than five (5) days prior to a scheduled confirmation hearing; and

iii. Statement of financial interest, which shall be delivered to the council administrator no later than five (5) days prior to a scheduled confirmation hearing.

3. All appointees to the boards, agencies and commissions covered by the provisions of article 7 of the Charter who have served two (2) consecutive full terms shall not be eligible to succeed themselves until the lapse of twelve (12) months from the end of said terms. However, such limitations shall not apply to the following:

    a. Appointees serving initial staggered terms that are shorter in length than a full term.

    b. Appointees serving a portion of a term after being appointed to fill a vacancy.

    c. Ex officio members.

    d. Members of bodies created solely by administrative action of the mayor.

    e. Members of agencies whose appointments do not require council confirmation such as, but not limited to, the library board of trustees.

    f. The membership of boards, agencies and commissions which cannot as a matter of law be limited as to the number of terms served.

    g. Members of the planning commission and board of adjustment; provided however, that said members shall be eligible to serve three (3) consecutive full four-year terms after which said members shall not be eligible to succeed themselves until the lapse of twelve (12) months from the end of said terms.

4. Because the planning commission, the board of adjustment and the ethics commission are subject to the Ethics Act, no member appointed to one of these agencies shall be confirmed until a confirmation hearing has been conducted by the urban county council.

(Res. No. 599-2023, § 2, 11-2-23)

4.108. Oversight Committees.

1. Oversight committees may be appointed or created by the mayor or vice mayor or may be created by a majority vote of council to examine specific governmental operations or functions proper for council oversight. Non-council members may be appointed to serve on an oversight committee when assistance of others is required. Only council members shall be voting members of an oversight committee. A quorum of an oversight committee shall be a majority of its voting members. When an oversight committee is created, it shall be given a task, which shall include its mission and purpose, and a time frame for its existence. For any oversight committee already in existence, its task and time frame shall be established within thirty (30) days of adoption of this rule.

2. Prior to making appointments to any oversight committee created by council or the vice mayor and whose members are appointed by the vice mayor, the vice mayor shall consider recommendations from the council and the mayor. The provisions of rule 4.101 notwithstanding, members shall serve for the life of the committee or one (1) year from the date of appointment, whichever is shorter. Members may be reappointed

to the committee. The membership roster of every oversight committee shall be updated and circulated to every council member and the mayor at least once a year. The roster shall be made available to the public at all times.

3. Each oversight committee shall establish a schedule of regular meetings stating the time and place of each meeting and shall make an agenda for each meeting available to the public prior to the meeting. Minutes of oversight committee meetings shall be taken and shall be made available to the public and circulated to every council member no later than immediately following the next meeting of the committee. Recommendations for ordinance amendments, resolutions, or policy changes shall be presented at work session by the chair of the oversight committee.

(Res. No. 599-2023, § 2, 11-2-23)

4.109. Duties and Responsibilities of Committee Chair.

1. Committee chairs are responsible for working with the core staff member assigned to their committee to perform the following tasks:

    a. Set committee agenda, in consultation with the core staff member assigned to the committee, at least one month in advance of the meeting date, in order to allow staff to work with department/division personnel to gather presentation materials by the required deadline (one week prior to meeting where item is to be heard);

    b. Review summaries and recommend edits as necessary;

    c. Approve committee packet no later than close of business on the Thursday prior to the meeting, in order to meet the Friday distribution deadline. In the event that the chair is unavailable to approve the packet (or is unresponsive to requests), the vice chair may approve materials for distribution;

    d. Manage meeting flow: recognize committee members and non-members to speak, keep debate within the rules of order in accordance with Robert's Rules of Order and Council Rules and Procedures, maintain and preserve decorum during the meeting;

    e. Restate and put to vote all action before the committee and announce the mover, seconder and the result of the vote;

    f. Provide a committee report out summary at the council work session, typically at the next meeting after the committee approves the summary. Exceptions to this may be made via motion in committee to report out on a different schedule;

    g. The chair may call a special meeting of their committee to consider items referred to it, in compliance with rule 3.103 Special Meetings and KRS 61.823.

2. The chair of a committee is a voting member of the committee and may make or second motions at a meeting of the committee.

3. Committee chairs should be attentive and responsive to the staff member assigned to their committee in order to meet required deadlines.

4. Committee chairs should not attempt to prevent items from being presented once referred or change presentation materials submitted for items on the agenda.

5. In absence of the chair, the vice-chair will adhere to the above responsibilities and serve as chair of the committee as needed. (Res. No. 599-2023, § 2, 11-2-23)

Section 2

Committee Rules and Procedures

4.201. Quorum.

A quorum of any standing committee shall be a majority of that committee, except that in the absence of the necessary number of committee members, any council member present but not a committee member may help constitute the quorum. If more than one (1) council member who is not on the committee is present and council members not on the committee are needed to constitute a quorum, the chair shall only recognize the number of council members not on the committee as are deemed necessary to constitute the quorum. If a quorum is not present, the standing committee shall take one of the following procedural actions: 1) take measures to obtain a quorum including recessing for a specified period of time; 2) fix the time which to adjourn; or 3) adjourn. If it is determined that a quorum is not present, the chair of the standing committee shall recess for up to a maximum of fifteen (15) minutes, after which time, if no quorum is present, the committee shall adjourn until its next scheduled meeting.

(Res. No. 599-2023, § 2, 11-2-23)

4.202. Meetings.

Standing committees may schedule at least one (1) regular meeting each month. A schedule of meetings, including the dates and times of standing committees, shall be adopted annually by the council by ordinance. All standing committee meetings shall be held in the council chambers on the second floor of the Lexington-Fayette Government Center, and shall be open to the public. Any standing or special committee or subcommittee may call special meetings in compliance with rule 3.103 and KRS 61.823.

(Res. No. 599-2023, § 2, 11-2-23)

4.203. Attendance.

Each council member is expected to attend every regular or special meeting of each standing or special committee to which they are appointed, unless they have notified all council members and staff of a pending absence following the procedure listed in rule 1.103. Every council member may attend any meeting of any committee of which

they are not a member and participate in discussion and offer comment, but may vote only: when their attendance is necessary to constitute a quorum. However, any time a noncommittee member is counted as part of the quorum for a committee meeting, they shall be permitted to vote, make motions and otherwise actively participate during the remainder of that meeting notwithstanding the subsequent arrival of a committee member or members.

(Res. No. 599-2023, § 2, 11-2-23)

4.204. Reference of Matters to Committee.

The vice mayor may refer any item directly to committee. The chair of a standing committee may refer any item to their standing committee. Any council member may request the vice mayor to refer items to committee. Otherwise, items shall be referred to committee by a majority vote. This notwithstanding, the council may at any time consider and act on any matter referred to committee. All items which are sent directly to committee through the vice mayor should be included as information in the packet and notice given at work session. Once a council member refers an item to committee, the council member should follow-up with council core staff.

(Res. No. 599-2023, § 2, 11-2-23)

4.205. Reports.

Any permanent or standing committee of the urban county council to which a proposal has been referred shall report to the urban county council upon each such proposal, either with or without a recommendation unless the urban county council shall withdraw the proposal or reassign it. After any hearing by the committee upon a proposal, the chairperson of the committee shall submit a formal report of the committee's action, in writing, to the council. The report shall include any recommendations supported by a majority of the committee and may, upon request of any member of the council, include a minority position. A summary of the report may include these action items with brief remarks on items discussed. Copies of all committee reports shall remain on file in the council office. The committee report of action may be part of the committee minutes or summary, copies of which shall be distributed to all council members and filed in the council office. (See 2.201).

(Res. No. 599-2023, § 2, 11-2-23)

4.206. Presentation to Committee.

Any person making a presentation to a committee of the urban county council shall provide the council administrator, or staff assigned to the committee, with an electronic copy of the presentation by the close of business the Tuesday prior to the scheduled meeting date. Failure to provide the requested materials may result in postponement of the presentation.

(Res. No. 599-2023, § 2, 11-2-23)

Chapter V

Parliamentary Procedure and Application of Rules

Section 1

Parliamentary Procedure and Application of Rules

5.101. Parliamentary Authority.

Questions of parliamentary procedure not covered by these rules shall be governed by Robert's Rules of Order Newly Revised. The parliamentarian of the council shall advise the presiding officer with respect to parliamentary procedure and the proper application of these rules to the business of the council. The parliamentarian of the council shall attend parliamentary training as organized by the council administrator prior to being appointed parliamentarian of the council. This training shall be renewed for each appointment term.

(Res. No. 599-2023, § 2, 11-2-23)

5.102. Effect of Rules on Legislation.

No ordinance, resolution, or action duly passed, adopted, or taken by the council shall be held to be invalid because of failure of the council to comply with or abide by any one (1) or more of the provisions of these rules if such ordinance, resolution or action would otherwise be valid under the Charter or ordinances of the urban county government or laws of this state.

(Res. No. 599-2023, § 2, 11-2-23)

5.103. Suspension of Rules.

These procedural rules may be suspended by a two-thirds vote of the council members in attendance at any regular public meeting, special meeting, or work session. If a rule is suspended, a majority of the members present shall decide the procedure to follow in lieu of the suspended rule.

(Res. No. 599-2023, § 2, 11-2-23)

5.104. Amendment of Rules.

No permanent change shall be made to these rules without notice specifying the purpose and wording of the change given prior to the consideration of the change and the adoption of the permanent change by a majority of all council members through an amending resolution.

(Res. No. 599-2023, § 2, 11-2-23)

Supplement A

Role of Citizen's Advocate

Section 1

Guidelines for the Office of Citizens' Advocate

A.101. Charter.

WHEREAS, section 4.11 of the Charter, Lexington-Fayette Urban County Government, sets forth that the urban county council shall appoint a citizens' advocate to provide the residents of Fayette County with an independent agent through whom they can seek redress of their grievances; and

WHEREAS, it is the intent of this Charter provision that the citizens' advocate function as an ombudsman so that a resident of Fayette County aggrieved by the action or inaction of an official, agent or employee of the urban county government may be able to state their grievance to an official functionary empowered to investigate and express recommendation; and

WHEREAS, an integral function of the office of the citizens' advocate is to inform the urban county council of the activities of the citizens' advocate; and

WHEREAS, the citizens' advocate must necessarily deal with executive and administrative personnel within the urban county government in the performance of their duties; and

WHEREAS, it is advantageous to establish a procedure within the urban county government for response to requests from the office of the citizens' advocate, in order to maximize efficiency and speed the resolution of grievances, and to prevent disruption of governmental service; and

WHEREAS, it is necessary and proper to enumerate and clarify the duties of the citizens' advocate to effect the primary purpose of the office of the citizens' advocate: the remedy of residents' grievances.

(Res. No. 599-2023, § 2, 11-2-23)

A.102. Investigations.

1. As used in this section, the term "complainant" shall mean any person, including an officer or employee of the urban county government, who has lodged a complaint with the citizens' advocate, whether on behalf of themselves, or any other person.
2. The citizens' advocate shall handle all complaints as promptly and efficiently as possible, by observing the following minimum procedures with respect to the complainant:

a. The citizens' advocate shall solicit information from the complainant as to which department, office, officer or employee of the urban county government they feel is responsible for the problem. If it appears to the citizens' advocate that such department, office, officer or employee may in fact be responsible for the problem, the citizens' advocate shall request information from the supervisor in question pursuant to the procedure contained in A.102(3).

b. The citizens' advocate shall make the initial inquiry or commence the necessary research on each complaint no later than the next working day following its receipt, unless the work load of their office is such that this is impossible. In the latter case, the citizens' advocate shall begin work on the request as soon as their schedule makes it possible to do so.

c. The citizens' advocate shall attend all meetings of urban county government bodies, boards, agencies and commissions, committees thereof, and staff meetings, as may be required to make investigations, disclosures or recommendations concerning resident complaints.

d. In all cases, the citizens' advocate shall advise the complainant concerning the disposition of the problem as soon as the matter is resolved. In no case shall the citizens' advocate fail to make at least a status report on the matter to the complainant within fifteen (15) days of receipt of their complaint. The citizens' advocate shall continue to make status reports to the complainant at least every fifteen (15) days thereafter, until the matter is resolved.

e. In formulating recommended policies pursuant to sectionA.103(1)(g), the citizens' advocate shall consult and work with those complainants who have made related complaints. The citizens' advocate shall advise those complainants of any subsequent recommendations they shall make to the urban county government.

3. The citizens' advocate shall consult with experts in the field of data collection and utilization and develop a flexible, administrative procedure to be followed by all urban county government executive and administrative personnel, for the handling of responses to requests from the office of the citizens' advocate. This administrative procedure shall reflect the following:

a. All requests from the citizens' advocate shall be directed to the supervisor of the department or office out of which the matter arises or their designee. Supervisor shall mean the mayor, in the case of the office of the mayor; the chief administrative officer, in the case of the office of administrative services; department commissioners, in the case of urban county government departments; and the highest ranking official or employee, in the case of any other government office or agency.

b. In the absence of prior authority to do so by their supervisor, employees of the urban county government shall not, during working hours, deviate from their normal routine to respond to requests from the office of the citizens' advocate. However, it shall be the responsibility of each supervisor to make full and adequate provision for responding to all requests of the citizens' advocate.

c. The procedure shall permit executive and administrative personnel in the urban county government a reasonable time to investigate and respond to complaints of a grievance nature.

d. The citizens' advocate should attempt to resolve residents' complaints of a grievance nature by exhaustion of the administrative procedure established herein prior to public disclosure of abuses or irregularities on the part of the urban county government, its officers, agents or employees.

e. This procedure may be modified or altered on a case-by-case basis by the urban county council to ensure the reasonable resolution of resident complaints of a grievance nature.

4. The citizens' advocate shall not:

a. Have the power, for or on behalf of their office, to initiate lawsuits against the urban county government.

b. Spend funds for legal services to represent residents or the office of the citizens' advocate unless specifically authorized to do so by the urban county council.

c. Represent any resident, including officers or employees of the urban county government, in any type of legal or administrative proceedings. They may, as in the case of any other resident, investigate a complaint by an urban county government officer or employee.

5. The jurisdiction of the office of the citizens' advocate in investigating complaints is limited to complaints by residents of Fayette County and complaints concerning the actions of the urban county government, its officers, agents or employees.

(Res. No. 599-2023, § 2, 11-2-23)

A.103. Disclosures and Recommendations.

1. The citizens' advocate shall prepare and present to urban county council written reports on a quarterly basis. The quarterly report shall be delivered to the office of the urban county council no later than fifteen (15) days after the end of each quarter. It shall contain the following information for the immediately preceding reporting period:

a. The total number of resident contacts received by the office of the citizens' advocate.

b. The number of resident contacts broken down into: requests for information; requests for assistance; complaints expressing a grievance against the urban county government, its officers, agents or employees; and inquiries not-within the scope of the office of the citizens' advocate which are referred outside the urban county government.

c. The total number of resident complaints expressing a grievance against the urban county government, its officers, agents or employees which have not been resolved and are in a "pending" status.

d. A summary of all resident contacts which were not fully satisfied within fifteen (15) working days of receipt including both those which have been satisfied and those which have not been satisfied by the date of the report. For those which are satisfied by that time, the report should include a brief statement as to the nature of the solution. For those which are not satisfied by that time, the report should include a recommendation to the urban county council for the disposition of such complaints.

e. Identification of trends in resident contacts in each category noted in subsection (b) above.

f. Disclosure of any abuses or irregularities on the part of the urban county government, its officers, agents or employees.

g. Recommended substantive or procedural policies as may be required to reduce or eliminate problems of resident access to departments, divisions, agencies and officers of the urban county government. The report should also discuss any general questions the citizens' advocate has concerning the responsibilities of each.

2. The citizens' advocate shall prepare and present to the urban county council in work session an annual written report. The annual report shall be delivered to the office of the urban county council no later than January 31, following the end of the year for which the report is given. It shall contain a summary of trends and profiles in community needs and problems as evidenced by the data collected by the office of the citizens' advocate through the year.

3. The citizens' advocate shall develop adequate data gathering processes, including standardized reporting forms, so that their office will be able to present the data it has collected in a manner that will enable the urban county council to recognize trends and profiles of community needs and problems. They shall furthermore consult with the substantive or procedural policies which may reduce or eliminate the problems of resident access to the departments, divisions, agencies, officers and employees of the urban county government.

4. The citizens' advocate shall inform the urban county council of any problems encountered in investigating any complaints of abuse or irregularity on the part of the urban county governments, its officers, agents or employees.

(Res. No. 599-2023, § 2, 11-2-23)

Supplement B

Council Guidelines for Use of Other LFUCG Departments

Section 1

Guidelines for the Use of Law Department Personnel

B.101. Guidelines for the Use of Law Department Personnel.

1. The managing attorneys, under administrative direction of the commissioner of law are responsible for the department of law's preparation of ordinances, resolutions and legal advice. In the performance of these functions, the managing attorneys shall serve as liaison between the council and the department of law.

2. All requests for ordinances, resolutions and legal advice shall be made in writing to the commissioner of law. However, in the following circumstances only; such requests may be made orally:

    a. Simple or routine matters that can be readily handled off-hand, such as photocopying of documents, location of a particular statute, etc.;

    b. Emergencies; or

    c. When time requirements make it impracticable, such as during a council meeting, etc.

    When oral requests are made, they should, if possible, be directed to the commissioner of law or managing attorneys. In their absence, requests should be made to the senior staff attorney present at the time the matter arises.

3. Every written request should contain the following information:

    a. Whether an ordinance, resolution and/or legal advice is sought;

    b. The factual situation, if any, which has given rise to the request;

    c. Whether the attorney assigned to work on the request should contact the council member before beginning work; and

    d. The deadline for completing the project.

4. In the event of delays or questions concerning projects underway in the department of law, council members should consult either the commissioner of law or managing attorneys.

5. All ordinances and resolutions will usually be prepared by the department of law upon the written request of any council member. All ordinances and resolutions not prepared by the department of law shall be timely submitted to said department for review before delivery to the council clerk for first reading.

6. The managing attorneys on a rotational basis, shall be present at all official meetings of the council. In the case of work sessions or committee or subcommittee meetings, an attorney will be present if either (a) their attendance is requested or (b) a project on which they have worked is scheduled for discussion.

(Res. No. 599-2023, § 2, 11-2-23)

Section 2

Guidelines for Use of Lex TV Services

B.201. Guidelines for Use of the Government Access Cable Channel, Web Stream, and Online Video Archives.

1. The government access channel, web stream, and LFUCG internet video archives (all hereinafter referred to as "Lex TV Services") are available to all divisions of the urban county government and its satellite agencies. The priorities for programming will be first with the divisions of the urban county government followed by the satellite agencies and constitutional offices of Fayette County. Accommodations for programming and approval for services will be made by the video production supervisor.

2. Meetings of the council held in the council chamber will be televised and web streamed simultaneously unless otherwise requested by the vice mayor or their designee.

3. All televised/web streamed urban county government meetings will be broadcast in an impartial manner. All meetings will be covered in their entirety.

4. Each council member will be allotted one program of up to fifteen minutes in length per month, disseminated on all Lex TV services. Multiple programs may be produced during a one-month period, but only one may be disseminated via Lex TV services during a thirty (30) day period. The thirty (30) day period begins when a new program is first disseminated via any Lex TV service. Any public rebuttal will be directed to the public access channel or the public comment portion of a council meeting.

5. Each council member will be allotted one special program per calendar year. A special program is defined as a live or live-to-tape program or news conferences and is limited to a maximum of five (5) hours of set up and program time combined. Special programs may be at a remote location outside the government center. In order for a program to be televised and web streamed live, it must take place in a location with existing infrastructure allowing for a live telecast. Request for special programs will require a minimum of a thirty-day notice to the video production supervisor and will be honored based on availability of staff and equipment.

If the special program takes place outside of normal business hours, program production availability may be subject to available overtime funds and availability of staff. The program may run periodically for up to ninety (90) days within a twelve (12) month period.

6. Council members involved in a primary election or general election are prohibited thirty (30) days prior to the election from appearing on the Lex TV services in any way other than the participation in meetings of the council and urban county government news conferences. All existing videos on any online video archive services will remain public.

7. Constitutional officers of Fayette County will be afforded time on the Lex TV services to fulfill their official duties. Requests for time on the Lex TV services will be honored at the approval of the video production supervisor and determined by the workload of the staff and availability of equipment. The administrative and legislative branches of the urban county government will have priority in the use of the Lex TV services. Elected constitutional officers are restricted from using the Lex TV services for a period of thirty (30) days prior to any primary election or general election with the exception of LFUCG emergency news conferences. All existing videos on any online video archive services will remain public.

8. The mayor of the urban county government will be granted time on the Lex TV services as necessary to fulfill the duties of their office. Appearances on the Lex TV services other than in urban county government meetings or news conferences will be restricted for a period of thirty (30) days prior to a primary election or general election. All existing videos on any online video archive services will remain public.

9. Regarding digital materials for council comment or reports during official meetings:

    a. All images must be sent to Lex TV three (3) hours prior to the start of the meeting.

    b. All materials must be numbered in the order the council member wishes to present them.

    c. All materials should be emailed to gtv3@lexingtonky.gov

10. Lex TV does not loan out production equipment.

11. These guidelines are subject to review and changes by request of the chief administrative officer and approval by the urban county council. (Res. No. 599-2023, § 2, 11-2-23)

Supplement C

Neighborhood Development Funds and Capital Projects Policy

Section 1

Rules and Procedures for Neighborhood Development Funds

C.101. General.

1. The urban county council may allocate neighborhood development funds (NDF), on recommendation of any member, to incorporated non-profit organizations for any lawful public purpose in the best interest of and for the use and benefit of the community.

2. A council member may choose to donate NDF funds as a single allocation directly from their NDF balance, or solicit the entire council for donations via a group request also known as a "pass around."

3. Monthly NDF process timeline: NDF funds will be approved by council at the last work session of the month. NDF requests shall be submitted to the council administrator ten (10) days prior to the last work session of the month.

4. The following entities are eligible to receive NDF allocations if they are incorporated non-profit organizations, in good standing with the Secretary of State:

    a. Neighborhood associations;

    b. Parent-teacher organizations;

    c. Public purpose civic organizations;

    d. Urban County Government operating divisions for special projects;

    e. Other incorporated non-profit public purpose groups.

5. The following entities are not eligible to receive direct NDF allocations:

    a. Fayette County school system;

    b. Established religious organizations (general "public purpose" uses may be considered in consultation with the department of law);

    c. Any for-profit organization.

6. No council member shall make an NDF contribution, or vote on resolutions related to NDF allocations, within 30 days prior to any election in which they are on the ballot.

7. In an election year, any council member leaving office, or facing opposition may utilize up to fifty percent (50%) of their overall budget, including NDF funds. The remaining fifty percent (50%) will be replenished after the election for use by the successful candidate.

(Res. No. 599-2023, § 2, 11-2-23)

C.102. NDF Application Process.

1. Council member(s) receive(s) a request from an organization.
2. Entities can apply to receive an NDF by submitting a form which requires the following information:
    a. Entity's correct address.
    b. Entity's contact information.
    c. The sponsoring council member's name and district.
    d. Proof of good standing with the Secretary of State.
    e. Justification for the intended use of funds. This should also include any supporting documents such as quotes, invoices, bids, etc.
3. Each council member receives an email as requests are submitted for sponsorship. The legislative aide then confirms the accuracy of entity's submitted information. The legislative aide will prepare all requests for their council member's review. Once the council member selects which submissions they would like to fund, those applications and an internal NDF request form will be submitted as a hard copy and via email to the council administrator no later than ten (10) days prior to the last work session of the month. They will specify if it is intended to be a single allocation or pass around. If it is a pass around, a packet will be shared with the full council.
4. The council will vote during a work session to approve the NDF list and refer it to the docket. The council administrator will process NDF requests after second reading (or process a budget amendment in the event that the recipient is a division of the LFUCG).
5. The council administrator prepares a legal agreement in consultation with the Department of Law that outlines the intended use of the funds and required documentation. This agreement must be signed and returned to the council administrator prior to the issuance of the NDF check. If the agreement is not signed and returned in thirty (30) days, the funds will be forfeited and the entity will be ineligible for funds for one (1) year. A copy of the fully executed agreement is kept in the council clerk's office and a copy is returned to the organization for their records. The council clerk obtains a signature from the mayor and places the LFUCG seal on all copies. The council clerk then retains a copy for their file and routes the additional copy to the council administrator to be sent to the organization along with the check.

6. Once approved at the work session, the NDF process could take up to four (4) to six (6) weeks and is tracked by the council administrator. The expense is reflected in individual council members' cost centers under NDF account number 71214. The council budget analyst, or the council staff member responsible for performing budgetary analysis, sends a monthly cost center report to the council member and their legislative aide. These reports may be pulled at any time during the month by the legislative aide in PeopleSoft Financials. The legislative aide is responsible for monitoring the cost center report for accuracy, balance tracking and communicating status to their council member. Due to processing time, an NDF expense may not show up in the PeopleSoft reports right away. It is recommended that legislative aides reference the NDF file for status updates and contact the council administrator for questions regarding current balances.

7. Once the entity receives the NDF check, they have six months to submit all relevant receipts and financial documentation to the sponsoring council member office. Failure to provide documentation will make the entity ineligible to receive funds for one (1) year. Failure to deposit the check within sixty (60) days will make the entity ineligible to receive funds for one (1) year. The council member office will provide a financial summary of each NDF recipient to the council administrator within fourteen (14) days of receiving documentation from the entity.

(Res. No. 599-2023, § 2, 11-2-23)

Section 2

Council Capital Project Expenditure Policy

C.201. Council Capital Project Expenditure Policy.

In fiscal years in which funds are available and funds have been appropriated to the council office budget for council members to support capital projects, the following policy shall be used to govern the expenditure of said funds.

1. **Appropriation of funds:**

   In fiscal years in which funds are available, the council may appropriate funds to the council office budget for projects. Each council member shall be allotted one-fifteenth (1/15) of the total funds appropriated.

   No council member running for election may make a project expenditure within thirty (30) days prior to any election; however, this provision shall not apply to council members who are unopposed.

   In an election year, any council member leaving office, or facing opposition may only utilize up to fifty (50) percent of their overall budget, including funds for capital expenditure projects. The remaining fifty (50) percent will be replenished after the election for use by the successful candidate.

   Once approved, all projects managed by Urban County Government departments or divisions must be encumbered within twelve (12) months of receiving council capital project funds. All council capital project

funds provided to not-for-profit entities must be spent within twelve (12) months of receipt. If a not-for-profit entity is overcompensated for a project, the not-for-profit entity must return any and all excess funds to the Urban County Government when the project is complete.

2. **Definition of appropriate expenditures:**

In order to qualify for project expenditure, funds used to support Urban County Government projects or not-for-profit projects must be one-time expenditures (not recurring or ongoing expenses). Funds must also be used for projects based in Lexington-Fayette County.

The following entities are not eligible to receive Council Capital Project funds:

a. Fayette County school system;

b. Established religious organizations (general "public purpose" uses may be considered in consultation with the department of law); or

c. Any for-profit organization

3. **Definition of capital project:**

A capital project is a long-term, capital-intensive investment to build upon, add to, or improve a capital asset. A capital asset is an item, object, thing, or real estate property owned by the City or not-for-profit entity and includes, but is not limited to, City-owned or not-for-profit-owned buildings, parks and open spaces, vehicles, equipment, structures, or part thereof.

4. **Matching funds:**

It is within the discretion of the council member making the project expenditure allocation to determine whether to require the entity receiving the allocation to provide matching dollars to support its capital project.

A council member soliciting project expenditures from other council members shall indicate whether a match will be required. Project fund allocations specifying matching dollars may be made at a ratio stipulated by the council member initiating the request.

5. **Allowable project expenditures:**

Allowable project expenditures include internal governmental projects and expenditures provided to incorporated not-for-profit entities, in good standing with the Secretary of State, that serve the general public. Funds from the council project expenditure account shall be allocated to a department or division of the Lexington-Fayette Urban County Government, or a not-for-profit entity. In all such instances the capital asset must be a depreciable item, object, thing, or real estate property owned by the government or not-for-profit entity used for public purposes and includes, but is not limited to, buildings, vehicles, equipment, structures, or part thereof.

6. **Project Submission Process for Internal Governmental Projects:**

The process for appropriating funds to another department or division of the Lexington-Fayette Urban County Government is as follows:

a. A council member may receive a request from a department or division of the government for a project expenditure appropriation or a council member may, on their own, initiate a project expenditure allocation to a particular department or division.

b. At least eight (8) days prior to the work session in which the proposed project expenditure allocations are presented, the following information shall be provided to the council administrator or designee:

i. Department or division receiving the allocation;

ii. Description of the project;

iii. Amount of funds to be allocated;

iv. Accounting string for transfer of funds;

v. Project commencement date;

vi. Project completion date.

c. The council administrator or their designee will be responsible for preparing a budget amendment to transfer the funds from the council office to the department or division.

d. The commissioner and/or division director of the department and/or division receiving the funds shall be responsible for ensuring that the project is completed on time and provide updates to council related to any timeline changes.

7. **Project Submission Process for Not-for-Profit Entities:**

The process for appropriating funds to a not-for-profit entity is as follows:

a. A council member may receive a request from a not-for-profit entity for a project expenditure appropriation or a council member may, on their own, initiate a project expenditure allocation to a particular not-for-profit entity.

b. At least eight (8) days prior to the work session in which the proposed project expenditure allocations are presented, the following information shall be provided to the council administrator:

i. Not-for-profit receiving the allocation;

ii. Proof of good standing with the Kentucky Secretary of State;

iii. Description of the project;

iv. Supporting documentation including quotes, invoices and bids;

v. The total cost of the project;

vi. Amount of funds to be allocated by the Urban County Government;

vii. Accounting string;

viii. Project commencement date;

ix. Project completion date.

c. The council will vote during a work session to approve the council capital project list and refer it to the docket. The council administrator or their designee will process the project list after second reading.

d. The council administrator or their designee prepares a legal agreement in consultation with the Department of Law that outlines the intended use of the funds and required documentation. This agreement must be signed and returned within thirty (30) days to the council administrator or their designee prior to the issuance of the check.

A copy of the fully executed agreement is kept in the council clerk's office and a copy is returned to the organization for their records. The council clerk obtains a signature from the mayor and places the LFUCG seal on all copies. The council clerk then retains a copy for their file and routes the additional copy to the council administrator to be sent to the organization along with the check.

e. Once the check for capital project funds is sent to the not-for-profit entity, it will have sixty (60) days to deposit the funds, and twelve (12) months to spend the funds. The entity must submit all relevant receipts and financial documentation to the sponsoring council member's office. Failure to deposit the funds within the allotted timeframe or failure to provide documentation will make the entity ineligible to receive funds for one (1) year.

f. Should the not-for-profit entity be overcompensated for the project described, the entity must return any and all excess funds to the Urban County Government upon completion of the project.

(Res. No. 599-2023, § 2, 11-2-23; Res. No.436-2024, § 1, 8-29-24)

Supplement D

Council Best Practices

Section 1

Reserved

Section 2

Taking and Vacating Office

D.201. Taking Office.

Incoming council members will have access to their new office by the first day of their term. Offices are assigned by the Vice Mayor. It is encouraged that the incoming council member and the outgoing council member communicate to transition the office.

(Res. No. 599-2023, § 2, 11-2-23)

D.202. Vacating Office.

Council members must vacate their office and return all credentials to the council administrator no later than the last date of employment. Upon vacating office, all previous council members must remove all reference to their official title from their social media accounts if they have not transitioned the account to their successor. All items purchased with government funds are the property of LFUCG and must be left in the vacating council member's office or returned to the council administrator. It is encouraged that the incoming council member and the outgoing council member communicate to transition the office.

(Res. No. 599-2023, § 2, 11-2-23)

Section 3

Additional Reference Documents

D.301. Additional Reference Documents.

Additional reference documents can be found with the council administrator or with council files. Example documents include election rules, general legislative aide job description, etc.

(Res. No. 599-2023, § 2, 11-2-23)

Section 4

Council Brand Standards

D.401. Brand Standards.

Each council office has the opportunity to purchase council district branded items, which will be taken out of their office budget. Council members are allowed to use LFUCG branding but must adhere to LFUCG's branding guidelines because of a formal contract with Visitlex. The full policy regarding the City brand and logo standards are found in CAO Policy 57. The full branding guide can be found on the webpage for the Public Information Office on the city's website. The branding guide contains information regarding the formatting of business cards, letterheads/stationary, email signatures, and presentations/PowerPoints.

(Res. No. 599-2023, § 2, 11-2-23)

Code Comparative Table—Code of Ordinances

This table gives the location within this Code of those ordinances adopted since the 1959 Code, commencing with Supplement No. 3 to the 1959 Code, which are included herein. Ordinances adopted prior to such supplement were incorporated into the 1959 Code, as supplemented. This table contains some ordinances which precede 1959, but which were not included in the original 1959 Code for various reasons. Ordinances adopted since Supplement No. 3 to the 1959 Code, and not listed herein, have been omitted as repealed, superseded or not of a general and permanent nature.

Ord./Res. Number	Adoption Date	Section	Section this Code
3738	2-6-58	1	6-16
		2	6-25
		3	6-29
		4	6-34
		5	6-38(b)
4305	11-9-61	1	5-4.2
4338	1-4-62	1	Ch. 20 (note)
4355	2-1-62	1	18-166
4360	2-8-62	1—4	8-28.1
4364	2-23-62	1—4	6-23(1)—(4)
		5	6-23(7)
		6	6-23(9)
		7, 8	6-32(1), (2)
		9	6-32(4)
		10, 11	6-32(6), (7)
		12	6-32(9)
		13	6-32(11)
		14	6-46
4370	3-8-62	1	8-28.1(a)
4374	3-8-62	1	6-104

Ord./Res. Number	Adoption Date	Section	Section this Code
4376	3-8-62	1	Ch. 20 (note)
4377	3-8-62	1—3	5A-1—5A-3
4490	8-16-62	1—5	6-23(1)—(5)
		6—8	6-23(7)—(9)
		9	6-25
		10, 11	6-32(1), (2)
		12, 13	6-32(4), (5)
		14—18	6-32(7)—(11)
		19	6-33
4512	9-13-62	1	6-23(3)
		2, 3	6-23(10), (11)
		4	6-32(7)
4580	12-20-62	1	6-25
4589	1-17-63	1	8-28.1(d)
4590	1-17-63	1	6-23(10)
		2	6-32(6)
4598	1-31-63	1	6-23(11)
		2	6-32(7)
4509	3-7-63	1	6-32(6)
4635	4-18-63	1	6-23(1)
		2	6-23(8)
		3	6-32(1)
		4, 5	6-32(9), (10)
Res. No. 1468	4-25-63	1, 2	2-14
4642	5-9-63	1	16-43
4658	5-23-63	1	Ch. 20 (note)
4665	6-13-63	1	18-44
Res. No. 1484	6-20-63	1—19	2-25—2-43

Ord./Res. Number	Adoption Date	Section	Section this Code
4671	6-27-63	1	6-23(11)
		2	6-32(4)
		3	6-32(7)
4697	8-3-63	1, 2	18-57
4708	8-15-63	1	6-23(5)
		3	6-32(7)
4718	8-22-63	1	16-42
4731	9-5-63	1	Ch. 20 (note)
4742	9-19-63	1	5-1
4753	10-3-63	1	18-155
4763	10-17-63	1	6-23(8)
		2	6-32(10)
4814	12-26-63	1	6-23
		2—5	6-25—6-28
		6	6-30
		7	6-32
4822	1-2-64	1	8-12
4878	4-9-64	1	6-32(2)
		2	6-32(6)
4888	4-23-64	1, 2	5-4.1
4889	4-23-64	1	5-4.2
Res. No. 1566	4-30-64	1	12-2.1
4903	5-7-64	1, 2	6-32(10), (11)
4928	6-11-64	1	6-23
		2, 3	6-32(5), (6)
4939	6-25-64	1	14-16
4973	7-30-64	1	16-20.4
Res. No. 1601	8-29-64	1	12-2.1 (note)

Ord./Res. Number	Adoption Date	Section	Section this Code
5022	10-1-64	1	Ch. 20 (note)
2069	12-10-64	1	14-37
5075	12-17-64	1, 2	6-23(1), (5)
		3—5	6-32(4), (8), (11)
5076	12-17-64	1	16-16
5081	12-29-64	1, 2	1-11
5087	12-29-64	1	6-23(3)
		2	6-32(11)
5102	1-21-65	1	7-17
5122	3-11-65	1	6-23(5)
		2	6-25
		3	6-27
		4	6-32(11)
		5	6-34 (note)
		6	6-46
5152	4-15-65	1—3	13-55.1
5200	6-3-65	1	5-10
5298	8-26-65	1	8-6
5312	9-23-65	1	6-38
5313	9-23-65	1	6-49
5314	9-23-65	1	6-53
5349	10-28-65	1	20-1—20-144
5350	10-28-65	1	6-25
5369	11-18-65	1	20-47
5387	12-9-65	1	4-19(a)
		2	4-20
		3	4-19(b)
		4, 5	4-21, 4-22

Ord./Res. Number	Adoption Date	Section	Section this Code
5402	12-23-65	1	5-4.1
5417	1-6-66	1	6-32(10)
5444	2-3-66	1	5-29
5446	2-3-66	1	20-48, 20-49
			20-51, 20-52
5457	2-17-66	1	20-46
5458	2-17-66	1	20-95(f)
5459	2-17-66	1	20-51(a)
5462	2-17-66	1	20-127, 20-130, 20-131
5463	2-17-66	1	6-34
5464	2-17-66	1	2-1
5476	3-10-66	1	6-23
5477	3-10-66	1	6-32
5508	4-7-66	1	20-18(a)
5509	4-7-66	1	20-69(e)
5519	4-14-66	1	6-49
5529	5-5-66	1	6-32(10)
5567	6-9-66	1	5-1
Res. No. 1793	6-9-66	1	2-56—2-64
Res. No. 1797	6-27-66	1	2-56 (note)
5609	8-11-66	1	6-32(1), (8), (10)
5610	8-11-66	1	14-37
5614	8-11-66	10, 11	17A-9
		20—22	17A-20—17A-22
		30—34	17A-30—17A-34
		40—44	17A-40—17A-44
		50—55	17A-57—17A-62
		60—64	17A-75—17A-77

Ord./Res. Number	Adoption Date	Section	Section this Code
		70—73	17A-1—17A-4
		74—76	17A-6—17A-8
		80, 81	17A-5
5668	10-27-66	1	6-23(2)
		2	6-32(1)
5671	10-27-66	1(1)—(21)	2-25
5690	12-8-66	2	6-7
		3	6-30
		4	6-34
40-67	3-9-67	1	6-32(1), (2), (4)—(11)
41-67	3-9-67	1	6-23
65-67	3-23-67	1	6-25
66-67	3-23-67	1	6-32(4), (5), (10)
74-67	4-13-67	1	3-25
86-67	4-20-67	1	6-42(a)
87-67	4-20-67	1	5-5(H)(3)(h)
131-67	5-25-67	1	6-32(1), (2), (4), (6), (10)
132-67	5-25-67	1	6-23(1), (3)
187-67	8-3-67	1	8-7(2)
189-67	8-3-67	1	6-30(d)
190-67	8-3-67	1 Rpld.	12-1—12-13
		2	12-1—12-12
207-67	8-17-67	1	6-30(d)
254-67	10-13-67	1	18-44
		2	18-166
255-67	10-13-67	1	18-78(4)
270-67	10-13-67	1	16-22
279-67	10-19-67	1	6-32(10)

Ord./Res. Number	Adoption Date	Section	Section this Code
339-67	12-28-67	1	6-32(1), (5), (6)
44-68	2-29-68	1	16-20.3(c)
52-68	3-7-68	1	6-32(1), (2), (4)—(12)
		2	6-25, 6-36, 6-38
79-68	4-11-68	1	18-63
105-68	5-2-68	1	3-20, 3-21
106-68	5-2-68	1	2-1
168-68	7-11-68	1	17A-32(b)
		2	17A-34(c)
172-68	7-11-68	1	6-28
191-68	7-25-68	1	14-16(a), (b)
216-68	8-29-68	1—5	5A-11—5A-15
279-68	10-24-68	1	6-25
280-68	10-24-68	1	6-32
281-68	10-24-68	1	6-23
299-68	10-31-68	1	6-36
300-68	10-31-68	1	6-30
319-68	11-21-68	1	6-32(2), (6), (8)—(10)
320-68	12-5-68	1	6-32(5), (7)
16-69	1-30-69	1	14-49
54-69	3-13-69	1—3	6-55—6-57
60-69	3-27-69	1	6-32
106-69	4-24-69	1	6-69, 6-97(b)
149-69	6-12-69	1—4	18-29
159-69	7-10-69	1	16-7
289-69	11-20-69	1	6-25
297-69	11-28-69	1	6-32
298-69	12-11-69	1	18-44

Ord./Res. Number	Adoption Date	Section	Section this Code
11-70	1-15-70	1	8-28
13-70	1-15-70	1	6-32
17-70	1-29-70	1	6-32(10)
18-70	1-29-70	1	8-21.1
28-70	2-19-70	1	5-1
46-70	3-19-70	1	14-13
48-70	3-26-70	1	18-114
50-70	3-26-70	1	6-32(1)
82-70	4-23-70	1—4	18A-1—18A-4
89-70	5-7-70	1	13-44—13-46
			13-48, 13-61
94-70	5-14-70	1	6-32(5)
97-70	5-14-70	1	8-1
		2	8-2(a), (d)
		3	8-5(a)
		4	8-10
113-70	5-28-70	1, 2	18-111.1
125-70	6-11-70	1	6-32(1)
134-70	6-25-70	1	6-32(6)
147-70	7-2-70	1	6-40
149-70	7-9-70	1	5-29(b)
		2	5-29(j)
156-70	7-9-70	1	2-5
		2	7-1, 7-14
168-70	7-16-70	1	6-32(1), (6)
172-70	7-23-70	1	6-7
176-70	7-30-70	1	5-29(j)
181-70	8-6-70	1	6-32(7)

Ord./Res. Number	Adoption Date	Section	Section this Code
190-70	8-13-70	1	8-37
191-70	8-13-70	1	18-133(b), (c)
195-70	8-13-70	1	6-46
196-70	8-13-70	1	6-32(3), (4a), (10)
204-70	8-27-70	1	6-16
205-70	8-27-70	1	6-46
206-70	8-27-70	1	6-32(10)
207-70	8-27-70	1	16-43(i)
214-70	9-17-70	1	14-24
218-70	9-24-70	1—5	13-62
227-70	10-8-70	1	6-32(1)
228-70	10-8-70	1	6-32(4)
229-70	10-8-70	1	6-32(6)
230-70	10-8-70	1	6-32(7)
231-70	10-8-70	1, 2	6-32(9), (9a)
241-70	10-22-70	1	13-48
244-70	10-29-70	1	6-32(7)
249-70	11-5-70	1	6-32(1)
260-70	11-19-70	1	6-32(10), (11)
276-70	12-17-70	1	16-7(c)
280-70	12-17-70	1	6-32(10)
281-70	12-17-70	1	6-32(11)
284-70	12-24-70	2—5	18A-11—18A-14
289-70	12-24-70	1—3	16-43 (note)
293-70	12-31-70	1	16-16(a)
5-71	1-14-71	1	6-32(11)
6-71	1-14-71	1	6-32(10)
11-71	1-21-71	1, 2	6-32(4), (4b)

Ord./Res. Number	Adoption Date	Section	Section this Code
12-71	1-21-71	1	6-46
18-71	1-28-71	1	8-29, 8-30
19-71	2-4-71	1	13-54
20-71	2-4-71	1	12-3, 12-6
21-71	2-11-71	1	6-32(9a), (11)
22-71	2-11-71	1—5	16-43 (note)
30-71	3-4-71	1	6-46
31-71	3-4-71	1	6-32(1)
36-71	3-18-71	1	6-32(6)
44-71	3-25-71	1	6-32(6), (7)
52-71	3-25-71	1	16-43
61-71	4-15-71	1	17-8(b)
63-71	4-22-71	1	6-32(6), (7)
65-71	4-22-71	1	13-44—13-46
			13-48, 13-61
74-71	5-6-71	1	13-44—13-48, 13-61
79-71	5-13-71	1	6-32(9a)
84-71	5-20-71	1	6-32(6)
94-71	6-10-71	1	6-32(1)
100-71	6-24-71	1	13-7
101-71	6-24-71	1	6-32(9)(a)
108-71	7-1-71	1	6-32(1)
109-71	7-1-71	1	6-46
110-71	7-1-71	1	5-30
111-71	7-1-71	1	2-8
113-71	7-8-71	1	6-36(a)(1)
114-71	7-8-71	1	6-32(4)
115-71	7-8-71	1	6-32(10)

Ord./Res. Number	Adoption Date	Section	Section this Code
120-71	7-15-71	1	8-28.1(d)
123-71	7-22-71	1	6-32(4a)
124-71	7-22-71	1	6-32(1)
125-71	7-22-71	1	6-32(5)
134-71	8-5-71	1	6-32(1)
135-71	8-5-71	1	6-32(6)
141-71	8-19-71	1	6-32(4b)
142-71	8-19-71	1	6-46
145-71	8-26-71	1—7	13-62
155-71	9-9-71	1	18-156
159-71	9-9-71	1—3	17-38.4
172-71	9-30-71	1	1-9, 1-10, 2-8, 2-9
183-71	11-4-71	1	5-4.1
192-71	11-20-71	1	6-46
226-71	12-30-71	1	6-11(a)
2-72	1-6-72	1	6-32(11)
3-72	1-6-72	1	6-46
23-72	2-3-72	1	6-23
		2	6-46
24-72	2-3-72	1	6-32(1), (3)—(7), (9)
26-72	2-10-72	1	6-32(1), (5), (7), (8)
27-72	2-10-72	1	6-23(5)
32-72	2-24-72	1	2-5
		2	7-1, 7-14
33-72	2-24-72	1	18-166
42-72	3-2-72	1	5-30
44-72	3-16-72	1	7-14
51-72	3-30-72	1	16-23—16-26

Ord./Res. Number	Adoption Date	Section	Section this Code
63-72	4-13-72	1	6-49
78-72	4-27-72	1	13-13
87-72	5-11-72	1	6-32(7)
99-782	5-25-72	1	13-4
106-72	6-1-72	1	6-32(10)
122-72	6-15-72	1	6-25
126-72	6-22-72	1	2-1
128-72	6-22-72	1	6-23(1), 6-32(4)
129-72	6-22-72	1	6-38(a)
		2	18-63
139-72	6-29-72	1	6-32(11)
140-72	7-6-72	1	6-32(5)—(7)
152-72	7-27-72	1	6-32(6), (6a)
153-72	7-27-72	1	6-23(5)
174-72	8-31-72	1—5	8-21.2
176-72	9-7-72	1, 2	8-26.1
179-72	9-7-72	1	8-21
189-72	9-14-72	1 Rpld.	6-42(b)
190-72	9-14-72	1	8-5(a)
201-72	9-21-72	1	6-23(1)
		2	6-32(1)
205-72	9-28-72	1	6-49(b)
		2	6-66
209-72	10-5-72	1	6-32(1)
211-72	10-5-72	1	6-32(2)
228-72	10-26-72	1—6	8-27.1
230-72	10-26-72	1	8-6
231-72	10-26-72	1	6-42

Ord./Res. Number	Adoption Date	Section	Section this Code
239-72	11-2-72	1 Rpld.	8-21.1
250-72	11-30-72	1 Rpld.	8-21
253-72	11-30-72	1—7	2-86—2-92
260-72	12-7-72	1	2-86(b)
272-72	12-21-72	1	6-32(1),
			(4)—(6a), (7)
273-72	12-21-72	1	6-23(1), (3), (5)
7-73	1-4-73	1, 2	6-25.1
39-73	2-15-73	1	16-2
		2	16-18
		3, 4	16-20(a), (c)
		5	16-20.1
		6	16-20.2(a)
		7	16-20.3(e)
		8	16-20.3(i), (j)
		9	16-20.4(g)
		10—12	16-22(c), (d), (h)
		13	16-23
46-73	3-1-73	1	6-32(4), (6)
69-73	3-22-73	1	6-32(1)
72-73	3-29-73	1	6-32(2)
73-73	3-29-73	1	6-27(a)
95-73	4-12-73	1	18-155
117-73	4-26-73	1	9-2
120-73	5-3-73	1	6-23(3)
144-73	5-17-73	1	8-2(a)
148-73	5-24-73	1	6-23(1)
		2	6-32(1)

Ord./Res. Number	Adoption Date	Section	Section this Code
156-73	6-14-73	1	6-32(5)
163-73	6-28-73	1	6-25
165-73	6-28-73	1, 2	16-1, 16-2
		3	16-10
		4	16-12
		5	16-17(g)
178-73	7-12-73	1	6-32(1), (10), (11)
179-73	7-12-73	1	6-32(4)
182-73	7-19-73	1	6-25.1(a)
199-73	8-9-73	1	2-5
		2	7-14
		3	2-14
219-73	9-13-73	1	118-144—18-144.7
			18-148, 18-156
240-73	10-4-73	1—5	6-18—6-22
		6—9	6-26—6-28
245-73	10-4-73	1	6-23
255-73	10-25-73	1	6-32
271-73	11-15-73	1	8-7(1), (2)
277-73	12-6-73	1	6-32(k)
295-73	12-20-73	1	16-43.1
305-73	12-27-73	1	6-47(6)
		2	6-52(c)
		3	6-53
		4	6-59
		5	6-65
		6, 7	6-69.2, 6-69.3
		8	6-47(10)

Ord./Res. Number	Adoption Date	Section	Section this Code
		9	6-49
316-73	12-27-73	1	6-32(a)
1-74	1-3-74	1, 2	2-1
21-74	2-21-74	1	6-32(n)
26-74	3-7-74	1	6-14.1
32-74	3-21-74	1	6-32(k)
33-74	3-21-74	1	6-23(k), (l)
34-74	3-21-74	1—3	5-42(a)—(c)
36-74	3-21-74	1	5-42(d)
		2, 3	5-55, 5-56
		4	5-59
		5, 6	5-57, 5-58
		7—12	5-61—5-66
		13	5-60
		14	5-67
		15	5-43
		16	5-41
		17	5-44
38-74	3-21-74	1—5	14-59
48-74	3-28-74	1, 2	6-23(h), (o)
49-74	3-28-74	1	6-32(f)—(h), (j)
		2	6-32(r)
52-74	3-28-74	1	6-23(n)
		2	6-32(q)
55-74	4-4-74	1	6-23(b)
		2	6-32(s)
56-74	4-11-74	1	6-27.1
58-74	4-18-74	1	4-13—4-22

Ord./Res. Number	Adoption Date	Section	Section this Code
59-74	4-18-74	1	6-32(s)
61-74	4-18-74	1	6-32(d)
66-74	4-25-74	1	17-146.1
85-74	5-23-74	1	6-32(n)
89-74	5-30-74	1	1-1
94-74	6-6-74	1	6-23(h)
		2	6-32(k)
95-74	6-6-74	1	6-32(n)
101-74	6-13-74	1	18-167
103-74	6-13-74	1	6-23(m)
		2	6-32(t)
110-74	6-20-74	1	6-25.2
111-74	6-20-74	1, 2	5-4.2
117-74	7-11-74	1	6-32(a)
120-74	7-11-74	1	6-23(k), (l)
		2	6-32(j)
123-74	7-18-74	1	13-6
124-74	7-18-74	1	13-44
130-74	7-18-74	1	6-23(b)
		2—4	6-32(a), (c), (j)
		5 Rpld.	6-32(s)
137-74	7-25-74	1	6-23(b)
		2	6-32(b), (g), (q), (t)
142-74	8-1-74	1	6-23(m)
		2	6-32(u)
145-74	8-8-74	1	6-32(j)
147-74	8-8-74	1	6-32(p)
153-74	8-15-74	1	6-25

Ord./Res. Number	Adoption Date	Section	Section this Code
		2, 3	6-25.2, 6-25.3
154-74	8-22-74	1, 2	5-4.2
158-74	8-22-74	1	2-15
161-74	8-22-74	1	6-23(r)
162-74	8-22-74	1	14-60
165-74	8-29-74	1, 2	6-14.2
178-74	9-12-74	1	6-23(n)
		2	6-32(q)
184-74	9-26-74	1—7	2-96—2-102
189-74	9-26-74	1	6-23(b)
		2	6-32(d), (t)
205-74	10-17-74	1	6-7.1
206-74	10-17-74	1	2-86—2-90
207-74	10-17-74	1	14-8
		2, 3	14-16, 14-17
		4	14-33
		5 Rpld.	14-7, 14-58
214-74	11-7-74	1—3	18-45—18-45.2
215-74	11-7-74	1	9-2.1
217-74	11-14-74	1	6-32(l)
226-74	11-21-74	1—4	2-116—2-119
227-74	11-21-74	1—7	2-106—2-112
230-74	12-5-74	1	6-23(a)—(c),
			(e), (f),
			6-32(a),
			(f), (q)
		2	6-32(v)
232-74	12-5-74	1	6-23(i), 6-32(p)

Ord./Res. Number	Adoption Date	Section	Section this Code
239-74	12-12-74	1	6-23(o)
		2	6-32(w)
246-74	12-19-74	1, 2	2-16
6-75	1-2-75	1—3	6-25—6-25.2
14-75	1-16-75	1	6-23(j),
			6-32(i), (o)
15-75	1-16-75	1, 2	5-76, 5-77
30-75	1-23-75	1	6-44.1
33-75	1-30-75	1	6-32(n)
43-75	2-13-75	1	6-32(a)
48-75	2-20-75	1—4	16-51—16-54
50-75	2-20-75	1	16-43.2
58-75	3-6-75	1	6-23(b)
		2	6-32(x)
62-75	3-6-75	1	6-23(i), 6-32(a), (l)
72-75	3-20-75	1	6-23(i), 6-32(l)
92-75	4-10-75	1	5-66(a)
95-75	4-10-75	1	6-32(a)
100-75	4-24-75	1	6-23(j)
		2	6-32(o)
103-75	4-24-75	1	8-7(1), (2)
113-75	5-1-75	1	6-23(h)
		2, 3	6-32(h), (q)
123-75	5-15-75	1, 2	6-32(a), (o)
131-75	5-29-75	1	17-146.1(b)
141-75	6-5-75	1	6-23(b)
		2	6-32(x)
175-75	7-3-75	1	6-23(a), 6-32(r)

Ord./Res. Number	Adoption Date	Section	Section this Code
183-75	7-10-75	1	6-32(k)
189-75	7-10-75	1—3	5-1
190-75	7-10-75	1, 2	6-23(d), (j)
		3	6-32(o)
193-75	7-17-75	1	6-7.1
199-75	7-17-75	1	6-32(a)
203-75	7-24-75	1	14-61
209-75	7-31-75	1	6-69.3
215-75	7-31-75	1, 2	2-9.1
219-75	8-7-75	1	2A-1
		2—8	2A-16—2A-21
220-75	8-7-75	1	6-32(i)
221-75	8-7-75	1	6-23(b), (k), (l)
227-75	8-21-75	1	14-5
228-75	8-28-75	1	6-32(f)
245-75	9-18-75	1	6-32(d)
261-75	10-2-75	1	6-38(a)
264-75	10-2-75	1	6-23(b), (o)
265-75	10-2-75	1	6-23(b)
275-75	10-16-75	1	6-5
276-75	10-16-75	1—3	6-25—6-25.2
278-75	10-16-75	1	6-7.1
283-75	10-23-75	Rpld	6-23, 6-32
		1 Added	6-23
286-75	10-23-75	1	6-22.1
301-75	11-20-75	1—3	6-23
310-75	12-11-75	1, 2	6-23
314-75	12-18-75	1	7-13

Ord./Res. Number	Adoption Date	Section	Section this Code
323-75	12-30-75	1, 2	6-23
4-76	1-15-76	1—3	14-62
		4 Rpld.	14-43, 14-53
		5	14-62
25-76	2-19-76	1—3	6-23
46-76	3-18-76	1	14-19
63-76	4-15-76	1	6-42.1
64-76	4-15-76	1	8-25.1
65-76	4-15-76	1	6-3
66-76	4-22-76	1	6-5
73-76	4-22-76	1 Rpld.	6-25.1
		2	6-25.2
74-76	4-22-76	1, 2	6-23
75-76	4-22-76	1	6-11
76-76	4-22-76	1	6-7
77-76	4-22-76	1	6-12
79-76	4-29-76	1, 2	6-23
81-76	4-29-76	1	6-25.1
89-76	5-13-76	1—9	2-125—2-133
101-76	5-13-76	1	6-23
125-76	6-24-76	1	6-25
		2	6-25.2
132-76	7-1-76	1—8	16-65—16-72
133-76	7-1-76	1—4	16-78—16-81
143-76	7-15-76	1—3	6-23
146-76	7-22-76	1	18-123
149-76	7-29-76	1	6-23
155-76	7-29-76	1, 2	6-23

Ord./Res. Number	Adoption Date	Section	Section this Code
177-76	9-2-76	1, 2	6-23
183-76	9-9-76	1, 2	6-23
184-76	9-9-76	1	12-5, 12-7—12-9
185-76	9-9-76	1, 2	6-23
186-76	9-9-76	1 Rpld.	16-18
		2, 3	16-19, 16-20
		4—6 Rnbd.	16-20.2—16-20.4
			as 16-21—16-23
		Amd.	16-21—16-23
		7	16-2
		8 Rnbd.	16-21,
			16-23—16-26
			as 16-24
		Amd.	16-24
		9 Rnbd.	16-22, 16-23
			as 16-25
		Amd.	16-25
		10 Rnbd.	16-20.1,
			16-21—16-26
			as 16-26
		Amd.	16-26
		11	16-27
		12 Rnbd.	16-22, 16-23
			as 16-28
		Amd.	16-28
		13 Rnbd.	16-28 as 16-29
		Amd.	16-29
188-76	9-9-76	1	2-141

Ord./Res. Number	Adoption Date	Section	Section this Code
189-76	9-16-76	1	2-1(a)
190-76	9-16-76	1	6-46
193-76	9-23-76	1	6-4
198-76	10-7-76	1	6-23
201-76	10-21-76	1	6-23
202-76	10-21-76	1—7	6-23
204-76	10-21-76	1	6-47(8), (10)
209-76	11-4-76	1	8-27.1
210-76	11-4-76	1	6-36
211-76	11-4-76	1	6-25.1(b)
225-76	11-4-76	1	6-23
226-76	11-4-76	1, 2	2-146, 2-147
227-76	11-4-76	1	6-23
249-76	12-2-76	1	6-46
259-76	12-16-76	1	6-38(a)
261-76	12-16-76	1	2-6
263-76	12-16-76	1	6-46
265-76	12-16-76	1	16-5(a)
268-76	12-29-76	1	6-46
271-76	12-29-76	1—7	16-91—16-97
274-76	12-29-76	1	5-4.1
276-76	12-29-76	1	6-23
277-76	12-29-76	1	6-46
29-77	2-10-77	1	6-23
38-77	2-24-77	1	16-23(j)
63-77	3-8-77	1	13-6(d)
64-77	3-8-77	1	8-25.1(F)(2)(e),
			(G)(2)(e)

Ord./Res. Number	Adoption Date	Section	Section this Code
65-77	3-Ch. 20 (note) 8-77	1	6-7.1
		2	6-11(5)
66-77	3-8-77	1	6-23
69-77	3-8-77	1	6-46
78-77	4-7-77	1	18-113.1
79-77	4-7-77	1	16-91(5)
80-77	4-7-77	1	6-23
87-77	4-7-77	1	6-23
88-77	4-7-77	1	6-25.2
90-77	4-21-77	1	6-22.1
91-77	4-21-77	1	6-23
92-77	4-21-77	1	6-25
		2	6-25.2
93-77	4-21-77	1	6-25
		2	6-25.2
94-77	4-21-77	1	6-25
		2	6-25.2
95-77	4-21-77	1	6-28
96-77	4-21-77	1	6-46
107-77	4-21-77	1, 2	6-23
108-77	4-21-77	1	4-21
109-77	4-21-77	1	6-30(e), (f)
113-77	5-5-77	1	8-12
129-77	5-19-77	1	10-14.1
143-77	5-19-77	1	6-23
156-77	6-2-77	1	6-12.1
157-77	6-2-77	1	6-27.1(b)
166-77	6-16-77	1	6-46.1

Ord./Res. Number	Adoption Date	Section	Section this Code
168-77	6-30-77	1	4-21(c)
169-77	6-30-77	1	6-37
185-77	6-30-77	1	6-23
195-77	6-30-77	1, 2	6-23
196-77	6-30-77	1	6-23
197-77	6-30-77	1	6-23
198-77	6-30-77	1	6-23
199-77	6-30-77	1, 2	6-23
207-77	7-14-77	1	6-46.1
208-77	7-14-77	1	8-28
209-77	7-14-77	1—3	8-29—8-31
215-77	7-14-77	1	6-23
217-77	7-28-77	1, 2	6-23
225-77	8-11-77	1, 2	6-23
227-77	8-11-77	1	6-23
228-77	8-11-77	1, 2	6-23
231-77	8-25-77	1—3	6-23
235-77	8-25-77	1	14-55.1
236-77	8-25-77	1	6-23
237-77	8-25-77	1	6-23
238-77	8-25-77	1	6-23
239-77	8-25-77	1	6-23
240-77	8-25-77	1	6-23
241-77	9-8-77	1	6-23
242-77	9-8-77	1—3	6-23
245-77	9-8-77	1	6-46
246-77	9-8-77	1, 2	6-23
251-77	9-13-77	1	16-91(5)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2, 3	16-91(8), (9)
		4	16-92
		5	16-93(b)
		6	16-94
		7	16-96.1
252-77	9-22-77	1	8-27.1(E)(25)(d)
263-77	10-6-77	1	8-28(f)
270-77	10-20-77	1	6-23
271-77	10-20-77	1	6-23
272-77	10-20-77	1	6-23
273-77	10-20-77	1	6-46
274-77	10-20-77	1, 2	6-46.1
281-77	11-3-77	1	6-23
282-77	11-3-77	1	6-23
285-77	11-3-77	1	14-23.1
287-77	11-17-77	1	6-23
290-77	11-17-77	1	6-23
297-77	12-1-77	1, 2	6-23
298-77	12-1-77	1, 2	6-23
299-77	12-1-77	1	6-23
300-77	12-1-77	1, 2	6-23
301-77	12-1-77	1	6-23
303-77	12-1-77	1	6-46.2
314-77	12-15-77	1	6-46
318-77	12-15-77	1	6-23
322-77	12-22-77	1, 2	8-27.1(E), (F)
333-77	12-22-77	1, 2	6-23
334-77	12-22-77	1	6-23

Ord./Res. Number	Adoption Date	Section	Section this Code
335-77	12-22-77	1, 2	6-23
336-77	12-22-77	1	6-46
3-78	1-31-78	1	6-46(121.20),
			(121.30)
4-78	1-31-78	1	6-23(570.20)—
			(570.80)
5-78	1-31-78	1	6-23(260.20)
6-78	1-31-78	1	6-23(221.20)
11-78	1-31-78	1	6-23(331.80),
			(332.10),
			(620.20),
			(620.30)
19-78	2-9-78	1	6-23(740.80)
20-78	2-9-78	1	6-23(331.70),
			(331.90)
21-78	2-9-78		6-23(760.370),
			(760.400)
28-78	2-9-78	1	6-23(550.85),
			(550.260)
37-78	2-23-78	1	6-23(550.205)
39-78	2-23-78	1 Rpld.	6-23(123.70)
		3	6-23(123.45)
40-78	2-23-78	1	6-23(152.40)
51-78	3-16-78	1 Rpld.	6-23(124.20)
		2	6-23(124.30)
52-78	3-16-78	1 Rpld.	6-23(334.140),
			(334.150)
		2	6-23(126.35),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(126.50), (334.15)
		3	6-23(334.30),
			(334.70),
			(334.100),
			(334.110),
			(334.120)
		4 Rpld.	6-46(334.10)
		5	6-46(334.15)
		6	6-46(334.20),
			(630.10)
68-78	3-23-78	1 Rpld.	6-46(122.20)
		2	6-46(121.15)
69-78	3-23-78	1	6-23(550.220),
			(550.280),
			(720.75)
70-78	3-23-78	1	6-23.1
72-78	3-23-78	1 Rpld.	6-46(147.10),
			(147.20)
77-78	4-6-78	1	6-12.1
81-78	4-6-78	1	4-17
		2	4-19
		3 Rpld.	4-20
90-78	4-20-78	1	13-65
93-78	4-20-78	1	6-23(111.20)
94-78	4-20-78	1	6-46(111.25)
103-78	5-4-78	1 Rpld.	6-23(332.70)
		2	6-23(332.98)
106-78	6-4-78	1	6-46(760.20),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(760.30)
107-78	5-4-78	1	6-46(141.10),
			(144.10),
			(151.10),
			(151.20),
			(151.30),
			(151.40)
108-78	5-4-78	1	6-23(160.250)
109-78	5-4-78	1	6-23(280.50)
111-78A	5-18-78	1	16-47
131-78	6-15-78	1	6-45.1
132-78	6-15-78	1 Rpld.	18A-11—18A-14
		2	18A-1—18A-23
133-78	6-15-78	1	16-91(5)
134-78	6-15-78	1	3-5.1
135-78	6-15-78	1	18-46
139-78	6-29-78	1	21-1—21-51
140-78	6-29-78	1	6-25
		2	6-25.2(a)
148-78	6-29-78	1	6-23(320.40)
153-78	6-29-78	1	16-94
158-78	7-11-78	1	12-7(8)
159-78	7-11-78	1	16-28
172-78	7-27-78	1	18A-15—18A-24
186-78	8-10-78	1 Rpld.	6-34
187-78	8-10-78	1	21-5(125.55)
		Rpld.	21-5(125.70)
188-78	8-10-78	1	21-5(630.10)

Ord./Res. Number	Adoption Date	Section	Section this Code
189-78	8-10-78	1 Rpld.	21-5(332.30)
		2	21-5(280.30)
190-78	8-10-78	1	21-5(550.150)
		2	21-5(550.220)
		3	21-5(550.290)
191-78	8-10-78	1	21-5(240.30),
			(320.40),
			(320.50),
			(331.100),
			(331.120),
			(650.30),
			(650.50),
			(650.80),
			(650.90)
192-78	8-10-78	1	21-5(620.25)
193-78	8-10-78	1	21-5(740.30)
		2	21-5(740.75)
194-78	8-10-78	1	21-5(351.110),
			(351.125),
			(351.130)
195-78	8-10-78	1 Rpld.	6-46(148.60)
		2	6-46(148)
198-78	8-24-78	1 Rpld.	21-5(210.10)
		2	21-5(570.90)
199-78	8-24-78	1	21-5(720.50)
		2	21-5(720.80)
212-78	9-7-78	1	14-10
213-78	9-7-78	1	9-2

Ord./Res. Number	Adoption Date	Section	Section this Code
		2 Rpld.	9-2.1
217-78	9-7-78	1	6-46(148.40)
228-78	9-21-78	1	21-5(250.80),
			(250.90)
229-78	9-21-78	1	21-5(123.140)
		2 Rpld.	21-5(210.50)
230-78	9-21-78	1	21-5(550.130)
231-78	9-21-78	2	21-5(810.40),
			(810.50)
232-78	9-21-78	2	21-5(123.95)
		Rpld.	21-5(123.110)
233-78	9-21-78	1	21-5(310.05),
			(310.08), (310.10)
234-78	9-21-78	1	6-23(550.20),
			(550.60), (550.80)
235-78	9-21-78	1	18-113.2
		2	18-166
249-78	10-5-78	1	6-46(334.20)
250-78	10-5-78	1	21-5(570.100),
			(570.105),
			(570.110),
			(570.120)
251-78	10-5-78	1	21-5(332.55),
			(332.90), (550.270)
252-78	10-5-78	1	21-5(310.30)
253-78	10-5-78	1	21-27
254-78	10-5-78	1	6-46(122.40),
			(760.40)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2 Rpld.	6-46(121.30)
262-78	10-19-78	1	6-46(550.10)
		2	8-28(a)
263-78	10-19-78	1	16-29
		2 Rnbd.	16-29 as 16-30
			16-30(e)
264-78	10-19-78	1	17-38
268-78	11-2-78	1	16-17
274-78	11-7-78	1	18B-1—18B-8
276-78	11-16-78	1	9-2
277-78	11-16-78	1, 2	9-18, 9-19
278-78	11-16-78	1	5-29
289-78	11-30-78	1	16-43.2
297-78	11-30-78	1	21-5(122.20)
298-78	11-30-78	1	21-5(620.45)
		2 Rpld.	21-5(620.70)
300-78	11-30-78	2	21-5(334.60),
			(334.70)
304-78	11-30-78	1	18-47
318-78	12-14-78	1	6-25.1
339-78	12-21-78	1	21-36
340-78	12-21-78	3	21-5(650.30),
			(650.40), (650.70),
			(650.90)
341-78	12-21-78	1	6-46(550.20)
1-79	1-11-79	1 Rpld.	17-34
		2	17B-1—17B-11
23-79	1-25-79	1	12-2

Ord./Res. Number	Adoption Date	Section	Section this Code
		2, 3	12-7(9), (10)
29-79	2-8-79	1	6-23(570.110)
30-79	2-8-79	1	21-5(260.270)
31-79	2-8-79	1	21-5(331.150)
60-79	3-22-79	1	2-1
67-79	4-5-79	1	21-5(320.50),
			(320.60), (320.70),
			(321.30), (321.40),
			(321.50)
68-79	4-5-79	1	21-5(610.05)
69-79	4-5-79	3	21-5(760.210),
			(760.278),
			(760.290),
			(760.340),
			(760.390),
			(760.400)
70-79	4-5-79	1	21-5(340.45),
			(340.100)
71-79	4-5-79	1	21-5(320.20),
			(320.30), (321.10),
			(340.30)
72-79	4-5-79	1	21-5(332.48)
73-79	4-5-79	1	21-5(332.60),
			(332.80)
74-79	4-5-79	2	21-5(760.315),
			(760.400)
75-79	4-5-79	1	21-29.1
76-79	4-5-79	1	6-46

Ord./Res. Number	Adoption Date	Section	Section this Code
77-79	4-5-79	1	6-46(148.40)
		2	6-46(148.45)
78-79	4-5-79	1 Rpld.	12-1—12-8
		2	12-1
88-79	4-19-79	1	5-42
94-79	4-19-79	1	2-150—2-156
100-79	5-3-79	1	21-5(340.210),
			(340.240),
			(550.70)
103.79	5-3-79	1	4-23
118-79	5-17-79	1	21-5(340.100)
123-79	5-17-79	2	21-5(123.75)
		3 Rpld.	21-5(760.100),
			(760.240),
			(760.300),
			(760.430)
		4	21-5(760.50),
			(760.55),
			(760.100),
			(760.118),
			(760.155),
			(760.210),
			(706.270),
			(760.315),
			(760.360),
			(760.370),
			(760.390),
			(760.400),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(760.420)
126-79	5-31-79	1 Rpld.	6-46(760.10),
			(760.20),
			(760.40)
134-79	5-31-79	1 Rpld.	3-2—3-19,
			3-22—3-25
		2	3-2—3-19,
			3-22—3-25
135-79	5-31-79	1	13-12,
			13-14,
			13-15
139-79	5-31-79	1	21-5(124.25)
140-79	5-31-79	1	21-5(550.180)
142-79	5-31-79	1	21-5(760.360),
			(760.400)
156-79	6-28-79	1	6-25
		2	21-25
		3	6-25.2(a)
157-79	6-28-79	1	21-29(b)
158-79	6-28-79	1	13-6(e)
163-79	6-28-79	1	21-5(720.63)
		2 Rpld.	21-5(720.75)
175-79	7-12-79	1	19-10(f)
176-79	7-12-79	1 Rpld.	17-31(b)
		2	16-25
177-79	7-12-79	1	16-28
179-79	7-12-79	1	10-14.1
181-79	7-26-79	1	21-5(123.130)

Ord./Res. Number	Adoption Date	Section	Section this Code
183-79	7-26-79	1	13-13
		2 Rpld.	17-29
192-79	8-2-79	1	2-13.2
197-79	8-2-79	1	21-5(760.100),
			(760-390)
204-79	8-30-79	1	6-7.1
207-79	9-6-79	1	21-5(351.110),
			(351.125),
			(351.130)
210-79	9-6-79	1	21-36(a), (b)
218-79	9-6-79	1	21-5(720.40),
			(720.50),
			(720.80)
222-79	9-20-79	1	21-5(570.125),
			(570.140)
223-79	9-20-79	1	21-5(351.95)
224-79	9-20-79	1	21-5(332.10)
225-79	9-20-79	1	21-5(620.15)
226-79	9-20-79	1	221-5(740.40)
227-79	9-20-79	1	21-5(332.20)
		2 Rpld.	21-5(332.45)
228-79	9-20-79	1	21-5(331.110),
			(331.140)
229-79	9-20-79	1	21-5(331.110),
			(331.150)
230-79	9-20-79	1	21-5(760.280)
231-79	9-20-79	1	21-5(331.40),
			(331.60),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(331.90),
			(331.150)
240-79	10-4-79	1	14-52.1
245-79	10-18-79	1 Rpld.	14-41
248-79	10-18-79	1	2-125—2-134
		2	6-46(121.15)
251-79	10-18-79	1	18-47(a)
264-79	11-1-79	1	21-5(760.230)
265-79	11-1-79	1	21-5(123.90),
			(123.93)
		2 Rpld.	21-5(123.120)
268-79	11-1-79	1	6-38.1
269-79	11-1-79	1	6-23
270-79	11-1-79	1	6-46(111.30),
			(121.15),
			(121.20),
			(121.30),
			(121.40),
			(122.30),
			(122.40),
			(122.50)
271-79	11-1-79	1	21-5
273-79	11-1-79	1, 2	21-29.1, 21-29.2
277-79	11-15-79	1	2-45
279-79	11-15-79	4	6-46(650.05),
			(650.06)
281-79	11-15-79	1	6-46(620.10),
			(620.20)

Ord./Res. Number	Adoption Date	Section	Section this Code
285-79	11-29-79	1	2-6.1
303-79	12-13-79	1—7	14-63—15-69
313-79	12-20-79	1	21-5(351.110),
			(351.125),
			(351.130)
314-79	12-20-79	1	21-5(351.60),
			(351.65),
			(351.90)
315-79	12-20-79	1	21-5(720.70)
316-79	12-20-79	1 Rpld.	21-5(121.20)
317-79	12-20-79	1	6-46(121.15),
			(121.18),
			(121.20),
			(121.40)
318-79	12-20-79	1	21-5(760.290),
			(760.315)
6-80	2-7-80	1	21-5(152.40)
8-80	2-7-80	1	5-1
		2 Rpld.	5-6—5-10,
			5-42
10-80	2-21-80	1	21-5(360.25)
17-80	3-4-80	1	6-46(351.10)
		2	21-5(320.35),
			(320.40),
			(332.55),
			(620.70)
35-80	4-3-80	1	14-10(a)
40-80	4-3-80	1	13-12

Ord./Res. Number	Adoption Date	Section	Section this Code
41-80	4-3-80	1	6-23(550.40)
45-80	5-1-80	4	6-46(720.10)
46-80	5-1-80	1	6-46(810.20)
57-80	5-29-80	1	16-5(a)(2)
62-80	5-29-80	2	2-46
66-80	6-12-80	1	2-167
67-80	6-12-80	1	18-166
80-80	6-24-80	1, 2	13-45, 13-46
85-80	6-24-80	2	21-25
92-80	7-10-80	1	21-5(250.20),
			(250.30),
			(250.40),
			(250.50),
			(250.60),
			(250.80)
93-80	7-10-80	1	21-5(111.20)
95-80	7-10-80	1	21-29.1(f)
		2	21-29.2(b)
99-80	7-24-80	1	13-19
106-80	8-1-80	1	16-25
107-80	8-1-80	1	21-5(590.15),
			(290.18),
			(590.25)
		2	21-5(590.20),
			(590.35)
		3 Rpld.	21-5(590.30)
113-80	8-1-80	1	2-45
119-80	8-1-80	1	21-5(310.20)

Ord./Res. Number	Adoption Date	Section	Section this Code
120-80	8-1-80	1	21-5(121.10)
121-80	8-1-80	1	21-5(122.10)
122-80	8-28-80	1 Rpld.	14-59
		2	16-26(c)
134-80	9-4-80	1	21-5(351.50),
			(351.65),
			351.110
			(351.125)
		2 Rpld.	21-5(351.90),
			(351.130)
		3	21-5(312)
137-80	9-18-80	1	16-26(a)
146-80	10-2-80	1	21-5(720.35)
		2	21-5(720.60)
147-80	10-2-80	1	21-5(351.55)
		2 Rpld.	21-5(351.120)
162-80	10-30-80	1(a)	21-5(810.10)—
			(810.60)
		(b)	21-5(810.55)
174-80	11-13-80	1	14-60.5
177-80	11-13-80	1	16-43.2(q)
		Rnbd.	16-43.2(g)—(i) as
			(h)—(j)
180-80	11-25-80	1	21-42.1
		2	6-38.2
181-80	11-25-80	1 Rpld.	21-5(760.90),
			(760.220)
		2	21-5(760.40),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(760.80),
			(760.110),
			(760.170),
			(760.250)
183-80	11-25-80	1	21-5(331.110),
			(331-150)
184-80	11-25-80	1 Rpld.	21-5(210.45)
		2	21-5(260.65)
185-80	11-25-80	1	21-5(760.50)
200-80	12-11-80	1(2)	2-12.1
		(3)	2-11, 2-11.1,
			2-11.2, 2-11.3
		(5)	2-13, 2-13.1
		2(1)	6-46
		(2)	21-5(125), (250),
			(250.10), (310),
			(351), (352), (710)
207-80	12-30-80	1 Rpld.	21-5(210.30)
		2	21-5(320.45)
209-80	12-23-80	1	2-189—2-197
219-80	12-23-80	1	4-19
300-80(Res.)	10-16-80	1	2-178
		2	Ch. 2, Art. XIII
			(note)
10-81	2-5-81	1	21-5(331.120),
			(332.90),
			(332.100),
			(332.105),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(340.220)
11-81	2-5-81	1 Rpld.	21-5(760.30)
		2	21-5(710.05)
13-81	2-5-81	1	21-29.3
		3a	21-5
		3b	6-23
14-81	2-5-81	1	14-60.5
19-81	2-5-81	1	13-1(14)
		2	13-76—13-78
22-81	2-19-81	1	21-5(312.10),
			(312.20), (312.30)
32-81	2-19-81	1	21-5(121.10),
			(280.45), (310.20),
			(810.55)
		2	6-46(121.40),
			(122.50), (148.80),
			(149.40), (151.30)
		3	6-23(550.190)
33-81	2-19-81	1	21-5(320.40)
		2	6-46(320.10)
36-81	2-19-81	1	13-13
		2	13-75, 13-77
		3	13-79
39-81	2-19-81	1	16-51—16-55
44-81	3-5-81	1	21-5(331.30)
		2	21-5(320.55)
53-81	3-19-81	1	13-1(14)
56-81	3-19-81	1	21-5(126.50),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(332.60), (332.80),
			(334.90),
			(760.278),
			(760.360)
67-81	4-16-81	1 Rpld.	21-5(122.10)
		2	6-46(122.60)
84-81	5-28-81	1	7-19
86-81	5-28-81	1	21-5(331.70),
			(331-90)
87-81	5-28-81	1 Rpld.	6-23(570.50)
		2	6-23(570.60)
110-81	7-2-81	1, 2	6-69.2, 6-69.3
		3	6-53
			6-54
113-81	7-2-81	1	21-5(260.20), (360.28),
114-81	7-2-81	1	(360.60), (550.150)
118-81	7-2-81	1	6-42.2
119-81	7-2-81	1	6-25.2(a)
		2	21-25
129-81	7-9-81	1—3	21-5
		4, 5	6-46
130-81	7-9-81	1	21-5
131-81	7-9-81	1	6-46
		2	6-23
132-81	7-9-81	1	21-5(220.40), (330.150),
			(370.80), (370.120),
			(590.40), (590.50),
			(760.350)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(20.30), (330.25),
			(330.105), (760.360)
		3 Rpld.	330.140
133-81	7-9-81	1	6-25.2(a)
		2	21-25
136-81	7-9-81	1	6-36
137-81	7-9-81	1	6-46(010.50)
138-81	7-9-81	1	6-46(010.40)
139-81	7-9-81	2, 3	16-41, 16-42
		2	16-44
		5	16-46
		6 Rpld.	16-45
		7	16-41 (note)
141-81	8-20-81	1	21-5(550.50)
155-81	9-3-81	1	14-33
156-81	9-17-81	1	6-36
157-81	9-17-81	2	16-41, 16-42,
			16-44, 16-46
162-81	9-17-81	3	21-5(360.250),
			(390.10), (390.20)
		4	21-5(260.20), (330.110),
			(330.125), (360.60),
			(550.90), (760.210)
		6	21-5(330.180)
		Rpld.	21-5(330.150)
		7	21-5(760.270)
		Rpld.	21-5(760.360)
167-81	10-1-81	1	21-5(550.90)

Ord./Res. Number	Adoption Date	Section	Section this Code
168-81	10-1-81	1	6-46(180.40)
169-81	10-1-81	1	21-5(720.60)
		2	6-46(720.20)
170-81	10-1-81	1	6-23(550.100)
171-81	10-1-81	1	14-14.1
172-81	10-1-81	1	14-33
178-81	10-15-81	1	6-59
189-81	10-29-81	1	6-46(090.10), (620.15)
190-81	10-29-81	1	21-5(340.150), (760.210)
196-81	12-10-81	1	6-46
		2	6-38.1
212-81	11-24-81	1	21-40
		2	6-10
218-81	11-24-81	1 Rpld.	6-46(550.20)
		2	21-5(165.10)
220-81	12-10-81	1	16-23(j)
225-81	12-15-81	1 Rpld.	21-5(380.75), (550.130)
		2	21-5(380.55), (720.38)
		3	21-5(320.50), (330.125),
			(330.150), (360.35),
			(550.110), (570.30),
			(650.40), (650.70),
			(650.85), (720.10),
			(720.30), (720.40)
246-81	12-15-81	1	6-46(180.40), (180.45),
			(190.30), (650.5)
		2	6-23(550.60)
2-82	1-14-82	1	2-6.2

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	2-6.2 (note)
7-82	2-11-82	1 Rpld.	21-5(390.10)
		2	21-5(390.20)
9-82	2-11-82	1	2-126, 2-127
15-82	2-25-82	1 Rpld.	21-5(040), (040.20)
		2	21-5(030.10)
		3 Rpld.	6-46(030.18),
			(040), (040.10),
			(040.30), (040.35),
			(040.40), (040.50),
			(040.60)
		4	6-46(030.25),
			(030.35),
			(030.45),
			(030.50), (030.55),
			(030.65),
			(030.70), (030.80)
		5	6-46(030.15),
			(030.20), (030.30),
			(030.40)
17-82	2-25-82	1	21-5(350.95)
18-82	2-25-82	2	2-45(c)(1)
24-82	3-11-82	1	21-5(740.10),
			(740.25),
			(740.30), (740.40)
26-82	3-25-82	1 Rpld.	21-5(740.55)
		2	21-5(740.45)
27-82	3-25-82	1 Rpld.	6-23(550.105)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	6-23(550.90)
28-82	3-25-82	1	6-46(030.90)
29-82	3-25-82	1	17-153
31-82	3-30-82	1	6-46(650.3),
			(650.6)
			6-46(650.4),
			(650.18)
33-82	3-30-82	1 Rnbd.	13-75—13-79 as
			13-66—13-70
36-82	4-8-82	1	16-82
37-82	4-8-82	1	21-5(260.50)
41-82	4-8-82	1	2-131(b)
42-82	4-8-82	1	2-190
44-82	4-8-82	1	2-141(l)
45-82	4-8-82	1	21-5(550.55)
46-82	4-22-82	1	21-5(360.60)
47-82	4-22-82	1	21-5(050.35)
51-82	5--82	1	21-29.3(b)
		2	21-29.3(g)
		7 Rpld.	21-5(390.10)
60-82	5-6-82	1	21-5(260.25)
		2	21-5(260.30),
			(260.50)
61-82	5-6-82	1	16-23(j)
		2	16-23(k), (l)
63-82	5-6-82	1	7-16
68-82	5-18-82	1	16-42
		2	16-46

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	16-44
76-82	5-18-82	1 Rpld.	21-5(090.50),
			(090.70)
		2	21-5(090.40)
77-82	5-18-82	1	2-14
80-82	6-3-82	1 Rpld.	21-5(260.60).
			(260.80)
		2	21-5(260.48),
			(260.55)
94-82	6-17-82	1	18-46
95-82	6-17-82	1	9-2
96-82	6-17-82	1	21-5(650.88)
		2	21-5(650.90)
97-82	6-17-82	1	6-46(810.20)
106-82	7-1-82	1	6-25.2(a)
		2	21-25
113-82	7-1-82	1	2-200—2-205
115-82	7-1-82	1	14-70—14-80
118-82	7-15-82	1	6-46(810.30)
121-82	7-15-82	1	8-25.1
123-82	7-29-82		Char. App. A (note)
124-82	7-29-82	1 Rpld.	6-46(030.30),
			(370.10), (650.5),
			(720.10)
		2	6-46(101.45),
			(030.100), (120.10),
			(380.25), (710.20)
		3	6-46(380.20),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(650.06)
125-82	7-29-82	1	6-23(550.100)
126-82	7-29-82	1 Rpld.	21-5(b)(030.10),
			(210.20), (250.30),
			(310.20), (630.30)
		2	21-5(b)(010.05),
			(140.10)—(140.30),
			(350.55), (350.160),
			(360.28), (550.25),
			(550.52), (620.80)
		3	21-5(b)(350.95),
			(360.60), (370.140),
			(380.140), (550.90),
			(760.210)
131-82	7-29-82	2 Rpld.	21-5(b)(720.10)—
			(720.90)
		3	21-5(b)(030.20),
			(080.60)—(080.80),
			(080.110), (080.120),
			(080.140)—
			(080.160), (590.90),
			(590.120)
		4	21-5(b)(080.20)—
			(080.50), (080.90),
			(080.100), (080.130),
			(590.20)—(590.80),
			(590.100), (590.110)
		5 Rpld.	6-46(720.20)

Ord./Res. Number	Adoption Date	Section	Section this Code
		6	6-46(080.10)
132-82	7-29-82	1	21-5(b)(120.30)
		2 Rpld.	6-46(120.10)
		3	6-46(101.25),
			(010.30), (010.50),
			(020.10)
		4	6-46(101.60)
134-82	7-29-82	1	2-170—2-172
		2 Rpld.	2-167
135-82	7-29-82	1	23-1—23-49
		5	22-53
		6	18-2.1
		7	14-19.1—14-19.3
		8	Ch. 8 (note)
137-82	8-24-82	1	21-5(b)(250.60),
			(280.10)
		2	21-5(b)(250.55)
139-82	8-24-82	1	22-53(6)
151-82	8-26-82	1	21-5(b)(030.10)
		2 Rpld.	21-5(b)(710.10)
		3	6-46(030.18),
			(030.30)
		4 Rpld.	6-46(710.20)
156-82	9-9-82	1	7-25—7-29
159-82	9-9-82	1	17B-2, 17B-3, 17B-5,
			17B-6
160-82	9-9-82	1	21-5(b)(010.10),
			(010.20)

Ord./Res. Number	Adoption Date	Section	Section this Code
161-82	9-9-82	1	21-5(b)(710.20)
		3 Rpld.	6-46(030.65)
		4	6-46(030.80)
162-82	9-9-82	1	21-5(b)(060.70)
164-82	9-9-82	1	14-74
167-82	9-23-82	1	21-37(d)
168-82	9-23-82	1	21-5(b)(320.05)
		2	21-5(b)(320.10)
170-82	9-23-82	1	2-216, 2-217
171-82	9-23-82	1	7-30—7-38
172-82	9-23-82	1	12-1
177-82	10-7-82	1 Rpld.	21-5(b)(050.10),
			(050.20), (050.50)
		2	21-5(b)(050.30),
			(060.30), (060.60)
		3	21-5(b)(060.25),
			(060.35), (060.45)
178-82	10-7-82	1	6-46(180.20),
			(180.40)
		2 Rpld.	6-46(180.30)
184-82	10-7-82	1	21-38
		2	6-38
		3	23-34(3)
188-82	10-21-82	1	21-5(b)(550.70)
		2	23-5(b)(550.100)
199-82	11-4-82	1	12-13—12-53
200-82	11-4-82	1 Rpld.	21-5(b)(140.20)
		2	21-5(b)(140.05)

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	21-5(b)(140.30)
207-82	11-18-82	1	18-112(d)
208-82	11-18-82	1	21-5(b)(080.120)
209-82	11-18-82	1	6-46(030.50)
214-82	11-18-82	1	2-243—2-245
218-82	12-2-82	1	2-153
219-82	12-2-82	1	16-6(h)
221-82	12-2-82	1 Rpld.	21-5(b)(550.53)
		2	21-5(b)(550.65)
232-82	12-16-82	1	21-5(b)(350.100)
238-82	12-16-82	1	21-5(b)(060.55)
		2	21-5(b)(060.60),
			(210.40), (550.70),
			(550.120)
239-82	12-16-82	1	23-21(f)
242-82	12-16-82	1	21-5(b)(070.40)
244-82	12-16-82	1 Rpld.	21-5(b)(350.55)
		2	21-5(b)(350.45)
		3	21-5(b)(340.170),
			(340.190), (390.20)
1-83	1-13-83	1	6-46(620.010),
			(620.020)
2-83	1-13-83	1	2-228—2-232
6-83	1-27-83	1	16-5(a)
8-83	1-27-83	1	21-5(b)(760.145)
		2 Rpld.	21-5(b)(620.90),
			(760.170)
		3	21-5(b)(160.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(090.40), (260.50),
			(620.80)
12-83	2-10-83	1	2-230
13-83	2-10-83	1	21-5(b)(060.45)
15-83	2-10-83	1	18-122
16-83	2-10-83	1 Rpld.	21-5(b)(350.65)
		2	21-5(b)(370.55),
			(370.105)
		3	21-5(b)(350.119)
17-83	2-10-83	1 Rpld.	6-46(180.75)
		2	6-46(180.70),
			(180.80), (190.40),
			(650.18)
19-83	2-10-83	1	23-21(b)(2)
21-83	2-24-83	1	21-5(b)(350.115)
23-83	2-24-83	1	14-72(7)(i)
		2	14-8
		3	18-39
		4 Rpld.	17-20, 18-40
28-83	3-10-83	1	21-5(350.10),
			(350.115), (550.110)
		2 Rpld.	23-5(550.220)
30-83	3-10-83	1	21-6(a)(4)
31-83	3-10-83	1	21-37(d)
		2	6-12(d)
32-83	3-10-83	1	21-30(a)
		2	23-33(a)
		3	6-28(a)

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	21-26.1
		5	23-29
34-83	3-10-83	1	18-64
37-83	3-10-83	1	21-5(350.115)
40-83	3-24-83	1	6-12
41-83	3-24-83	1	2-96—2-101
42-83	3-24-83	1	21-37
45-83	3-24-83	1	21-5(350.115)
46-83	3-24-83	1	16-66(e)
52-83	4-7-83	1	13-1(15)—(20)
56-83	4-7-83	1	6-34
		2	21-28
		3	23-31
57-83	4-7-83	1 Rpld.	21-5(250.50)
		2	21-5(250.40)
58-83	4-7-83	1	21-5(330.100),
			(330.110)
61-83	4-21-83	1	7-35(7), (8)
		2—4	7-37(c)—(e)
		5, 6	7-38(b), (c)
63-83	4-27-83	1 Rpld.	21-5(140.5),
			(140.10), (140.30)
64-83	4-21-83	1	21-42
		2	6-38.3
65-83	4-21-83	1 Rpld.	14-33
66-83	5-5-83	2	21-5(220.60),
			(260.20),
		3 Rpld.	21-5(240.10)—

Ord./Res. Number	Adoption Date	Section	Section this Code
			(240.30),
70-83	5-5-83	1	13-6(c)
		2	13-13
		3	14-10(f)(3)
		4	15-7—15-9
		5	18-166(b)
		6 Rpld.	18-35
71-83	5-5-83	1	21-5(350.115)
76-83	5-19-83	1	13-13
79-83	6-2-83	1	21-5(210.40)
81-83	6-2-83	1	21-5(350.100),
			(350.115)
82-83	6-2-83	1 Rpld.	21-5(060.20)
		2	21-5(060.45),
			(060.70)
96-83	6-16-83	1	23-13
97-83	6-16-83	1	23-18(b)(3)
		2	23-18(c)
		3	23-18(e)
98-83	6-16-83	1 Rpld.	21-5(080.20),
			(220.30)
		2	21-5(050.35),
			(220.10), (350.115)
		3	21-5(210.20)
100-83	6-16-83	1	21-5(320.05)
104-83	6-30-83	1	16-23(j)
109-83	6-30-83	4	6-46(650.005)
110-83	6-30-83	1 Rpld.	6-46(030.45)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	6-46(030.40)
116-83	6-30-83	1	23-28(b)
		2	21-25
		3	22-53(6)
121-83	7-14-83	1	21-45(h)
		2	23-44(h)
126-83	7-21-83	1	16-1—16-69
		Rpld	16-1—16-97
139-83	7-21-83	1	21-5(090.35),
			(810.58)
		2 Rpld.	21-5(080.150),
			(280.50), (760.380)
		3	21-5(080.80),
			(080.110), (250.90),
			(340.40), (340.250),
			(380.140)
		4 Rpld.	6-46(010.40),
			(810.30)
		5	6-46(380.20)
		6	6-46(230.10)
		7	23-5(570.110)
140-83	7-21-83	1 Rpld.	6-12(d), 21-37(d)
		2	21-37(f)
		3	6-12(f)
142-83	8-25-83	1	21-5(350.115)
143-83	8-25-83	1	13-1(21), (22)
		2	13-13(a)
		3	13-75

Ord./Res. Number	Adoption Date	Section	Section this Code
144-83	8-25-83	1	18C-1—18C-27
145-83	8-25-83	2 Rpld.	21-5(140.10),
			(140.30)
		3	21-5(230.10),
			(230.20)
150-83	8-30-83	1	5-78—5-84
151-83	8-30-83	1	21-5(340.165)
		2	21-5(340.120),
			(340.140),
			(340.170),
			(340.180)
154-83	9-8-83	1	18-148(c)
159-83	9-22-83	1 Rpld.	21-5(210.10)
		2	21-5(220.20)
160-83	9-22-83	1	21-5(320.100)
161-83	9-22-83	1	16-43.3
164-83	9-22-83	1	2-1(b)
		2	13-4
		3 Rpld.	13-26
166-83	9-22-83	1	21-5(760.360)
179-83	10-6-83	1	21-5(350.115)
180-83	10-6-83	1	21-5(340.150),
			(340.205)
181-83	10-6-83	1	21-5(350.115),
			(380.140)
182-83	10-6-83	1	23-31
183-83	10-6-83	1	14-81
188-83	10-6-83	1 Rpld.	18-113.2

Ord./Res. Number	Adoption Date	Section	Section this Code
190-83	10-6-83	1	2-26—2-32
		2 Rpld.	2-25, 2-45
196-83	10-20-83	1	2-46(c)
197-83	10-20-83	1	21-5(080.10),
			(080.30),
			(080.40),
			(080.50),
			(080.60),
			(080.70),
			(080.90),
			(080.100),
			(080.110)
198-83	10-20-83	1	15-1.1
202-83	11-3-83	1	13-65.1
203-83	11-3-83	1	21-5(110.20)
205-83	11-3-83	1 Rpld.	23-5(550.90)
		2	23-5(550.50),
			(550.60),
			(550.100)
		3 Rpld.	21-5(550.65)
		4	21-5(550.70),
			(550.90),
			(550.110)
212-83	11-17-83	1	21-5(350.115),
			(570.30)
214-83	11-17-83	1 Rpld.	18-113.1
216-83	11-17-83	1, 3	23-28(b)
218-83	11-17-83	1	21-5(080.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(080.30),
			(080.40),
			(080.50),
			(080.60),
			(080.70),
			(080.90),
			(080.100),
			(080.110)
221-83	11-17-83	1	2-170
230-83	11-22-83	1	22-1—22-52,
			22-56—22-58
		4	22-53
		5 Rpld.	6-1—6-46.2
240-83	12-15-83	1	5-20
		2	5-24
241-83	12-15-83	1	12-29
		2	12-43
242-83	12-15-83	1, 2	16-56, 16-57
		3	16-61
244-83	12-15-83	1 Rpld.	21-5(320.10),
			(320.20),
			(320.80),
			(340.110)
		2	21-5(320.58),
			(340.65)
		4	21-5(320.05),
			(320.30),
			(320.40),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(320.45),
			(320.55),
			(320.70),
			(340.40)
258-83	12-15-83	1 Rpld.	21-5(390.20)
		2	21-5(090.60)
260-83	12-15-83	1	5-4.3
		3	5-4.3 (note)
266-83	12-20-83	1, 3	22-5(760.10)
270-83	12-20-83	1	14-10(f)
272-83	12-20-83	4	22-5(650.5)
273-83	12-20-83	1	5-29.1
		3	5-29.1 (note)
1-84	1-12-84	1	23-21(c)
4-84	1-26-84	1	22-5(550.7),
			(650.2)
6-84	1-26-84	1	21-5(650.90)
7-84	1-26-84	1	21-5(370.140)
16-84	2-9-84	1 Rnbd	16-43.3 as
			16-60.1
		2	16-60.1(e)
22-84	2-23-84	1	21-5(570.15)
30-84	3-8-84	1 Rpld.	23-5(550.110)
		2	21-5(550.65)
31-84	3-8-84	1	22-5(030.45)
34-84	3-8-84	1	17B-1(2), (3)
		2	17B-2(6)
		3	17B-6

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	17B-8
		5	17B-10
44-84	4-5-84	1	22-5(550.20)
46-84	4-5-84	1	21-5(360.45),
			(360.55),
			(360.85),
			(360.125)
		2	21-5(360.20),
			(360.25),
			(360.30),
			(360.35),
			(360.40),
			(360.50),
			(360.60),
			(360.90),
			(360.120)
		5	21-5(340.30)
49-84	4-19-84	1	5-31
63-84	5-3-84	1	21-5(220.60)
64-84	5-3-84	2	21-5(440),
			(730), (750),
			(760.240)
		3	21-5
		6	22-5(710.10)
		7 Rpld.	22-5(380.15),
			(380.20), (380.25),
			(740.10)
		8	22-5(440.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(750.15), (750.20),
			(750.25)
		12	2-11.1
		13, 14	2-13, 2-13.1
77-84	5-31-84	1 Rpld.	21-5(080.120),
			(760.80)
		2	21-5(080.85),
			(550.15), (760.45)
		3	23-5(550.50)
87-84	6-28-84	1	21-5(310.10)
98-84	6-28-84	1	5A-14
		2	12-54
		3	13-44
		4	13-61
		5	21-51
		6 Rpld.	12-13—12-53,
			13-56—13-60,
			14-40
		7 Rpld.	13-45—13-49,
			13-61
		8	13-45 (note),
			13-61 (note)
103-84	6-28-84	1	21-25
		2	22-5(030.15),
			(030.100), (164.10),
			(169-10)—(169.40),
			(210.10), (310.10),
			(610.10), (710.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(810.10)
		3	22-53(2)
		4	23-28(b)
109-84	7-12-84	1	2-246—2-248
110-84	7-12-84	1	13-73(3)
		2	13-72.1
111-84	7-12-84	2	22-5(030.30)
112-84	7-12-84	1	16-60(g)
113-84	7-12-84	1	14-63
		2 Rpld.	14-64—14-66
114-84	7-12-84	1	16-35(b)
115-84	7-12-84	1	12-1.1—12-1.3
119-84	7-12-84	1	21-5(570.40)
		2	23-5(570.80)
		3	22-5(010.55)
123-84	7-26-84	1	21-5(050.10),
			(340.185), (360.65)
		2 Rpld.	21-5(050.35),
			(340.205), (360.28),
			(360.125)
		3	21-5(050.30),
			(330.100), (360.100),
			(360.120)
131-84	8-2-84	1	21-5(230.15)
		2	21-5(230.20)
		3 Rpld.	22-5(230.10)
139-84	8-2-84	1	21-5(060.20)
		2 Rpld.	21-5(060.25),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(060.45), (060.50)
		3	21-5(060.30),
			(060.35), (060.40),
			(060.60)
140-84	8-2-84	1	14-60
141-84	8-2-84	1 Rpld.	21-5(010.20)
		2	22-5(010.57)
142-84	8-2-84	1	21-5(370.10)
143-84	8-2-84	1	22-5(090.5)
150-84	9-6-84	1	21-5(070.30),
			(330.30), (350.30),
			(750.20)
153-84	9-6-84	1	22-5(169.20),
			(169.30), (169.40)
		2	22-5(169.45)
164-84	9-20-84	1	16-1(34)—(102),
			16-2,
			16-36—16-71
165-84	9-20-84	1 Rpld.	22-5(030.35)
		2	22-5(030.40)
170-84	10-4-84	1	22-5(310.10)
183-84	10-18-84	1 Rpld.	21-5(070.20)
		2 Added	21-5(070.35),
			(340.63)
184-84	10-18-84	1	22-5(810.10)
186-84	10-18-84	1	21-5(750.140)
		2	22-5(550.7)
		3	21-5(350.30)

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	21-5(070.30)
187-84	10-18-84	1	23-22
193-84	11-1-84	1 Rpld.	21-5(710.20),
			(030.70)
		2 Added	21-5(030.30)
		3	21-5(030.80)
195-84	11-1-84	1	22-59
		2	22-47
		3	22-51
		4	22-53
		5, 6	22-57, 22-58
197-84	11-1-84	1	2-24
198-84	11-1-84	1	23-18(b)(1)
		2	23-5(550.20)
		3	23-30
199-84	11-1-84	1 Rpld.	22-5(650.3),
			(650.4), (650.6),
			(650.18)
		2	23-5(570.70),
			(570.110)
205-84	11-1-84	1	16-34.1
		2	16-35(b)
		3	14-10(f)(5)
206-84	11-1-84	1	18C-28—18C-31
211-84	11-15-84	1 Rpld.	21-5(320.65)
		2	21-5(320.55)
228-84	12-13-84	1 Rpld.	22-5(010.50)
		2	22-5(010.45)

Ord./Res. Number	Adoption Date	Section	Section this Code
229-84	12-13-84	1	21-5(730.140)
451-84(Res.)	11-1-84	2	App. A, § 4.104
1-85	1-10-85	1	21-5(650.115)
9-85	1-24-85	1	21-5(350.30),
			(350.40)
15-85	1-24-85	1 Rpld.	21-5(310.10)
		2 Added	22-5(320.10),
			(320.30)
17-85	2-7-85	1	4-24—4-34
		2	13-13(b)
		3	14-10(f)(3), (4)
21-85	2-7-85	1	23-5(570.110)
		3 Rpld.	21-5(570.70)
		4	21-5(570.35)
28-85	2-21-85	1	21-5(080.80)
		2	22-5(080.5)
30-85	2-21-85	1	21-5(250.40)
		2	21-5(810.50)
		3 Rpld.	21-5(810.40)
		4	21-5(250.50), (710.10)
		5	21-5(310.30)
		7	21-5(590.10)
		9	22-5(320.5),
			(320.20), (320.40)
31-85	2-21-85	1	14-82
32-85	2-21-85	1	23-6(a)(6)
38-85	2-21-85	1	22-5(030.35)
40-85	2-21-85	1	2-250—2-256

Ord./Res. Number	Adoption Date	Section	Section this Code
50-85	3-7-85	2 Rpld.	21-5(230.10),
			(230.15), (230.20)
		3 Added	21-5(480.10),
			(480.15), (480.20)
52-85	3-7-85	2	22-5(750.20)
65-85	4-4-85	1	3-13.1
71-85	4-4-85	1	21-5(590.80),
			(590.90),
73-85	4-16-85	1 Rpld.	21-5(730.105)
		2 Added	21-5(730.95)
85-85	5-2-85	1 Rpld.	21-5(760.250)
		2 Added	21-5(760.155)
		3	21-5(550.100),
			(550.110)
87-85	5-2-85	1	18-1
		2	18-129
96-85	5-16-85	1 Rpld.	21-5(330.170)
		2 Added	21-5(330.140)
		3	21-5(330.105)
97-85	5-16-85	1	21-37.1
		2	23-38(c)
102-85	5-30-85	1	2-190
		2	4-34
		3	6-49(a)
		4	7-1
		5, 6	7-3, 7-4
		7	13-15
		8	14-69(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
		9	15-9
		10	15-8(4)
		11	18-29(b)
		12	22-18(2)
		13 Rpld.	2-15, 7-2
107-85	5-30-85	1	21-5(060.35)
111-85	6-13-85	1	21-5(750.130),
			(750.150)
115-85	6-27-85	1	21-38(a)
		2	23-34(4)
116-85	6-27-85	1	13-65
136-85	7-11-85	1	21-5(730.80),
			(730.120)
137-85	7-11-85	1	2-267—2-273
138-85	7-11-85	1	21-5(340.180),
			(340.220)
150-85	7-25-85	1	21-5(330.60),
			(330.180)
151-85	7-25-85	1	2-284—2-287
154-85	7-25-85	1	23-5(550.100)
		2	23-5(550.90)
157-85	7-25-85	1	18-124.1
159-85	7-30-85	1 Rpld.	21-5(280.80)
		2	21-5(280.60)
		3	21-5(250.80),
			(280.50), (280.70)
167-85	8-27-85	1	5-4.3(4)(b)
		2	5-4.4

Ord./Res. Number	Adoption Date	Section	Section this Code
179-85	8-27-85	1 Rpld.	21-5(570.15),
			(750.120)
		2	21-5(570.33),
			(750.90)
		3	21-5(210.20)
185-85	9-5-85	1	21-5(350.60),
			(350.100), (350.115)
187-85	9-19-85	1 Rpld.	21-5(320.50)
		2	21-5(320.55)
188-85	9-19-85	1	23-5(570.110)
		2	21-5(570.40)
196-85	10-3-85	1 Rpld.	21-5(330.90)
		2	21-5(730.70)
197-85	10-3-85	1	23-5(570.110)
199-85	10-3-85	1	14-62(b)(21)
202-85	10-8-85	1	18A-20
209-85	10-17-85	1	13-1
		2, 3	13-72, 13-73
		4—8	13-73.1—13-73.5
		9, 10	13-74, 13-75
		11 Rpld.	13-72.1
219-85	11-7-85	1 Rpld.	22-5(030.50)
		2	22-5(030.43)
		3	22-5(030.25),
			(030.40), (030.70),
			(030.80)
220-85	11-7-85	1	22-5 (note)
221-85	11-7-85	1	22-5(550.5)

Ord./Res. Number	Adoption Date	Section	Section this Code
236-85	11-12-85	1	23-5(550.50),
			(550.60)
238-85	11-12-85	1	21-6(c)
		2	22-6(3)
		3	14-57.1
249-85	12-5-85	1	23-5(550.40)
257-85	12-19-85	1 Rpld.	21-5(590.60)
		2	21-5(590.50)
258-85	12-19-85	1	21-5(590.70),
			(590.90)
261-85	12-19-85	1	16A-1—16A-1-27
274-85	12-19-85	1	22-5(810.15)
275-85	12-19-85	1	21-5(060.80)
		2	21-5(060.20),
			(060.30)
276-85	12-19-85	1	21-15(710.20)
		2	23-5(550.100)
279-85	12-19-85	1	21-25, 23-28(b)
		2	22-5(110.10),
			(164.10),
			(169.10)—
			(160.45), (210.10),
			(310.10), (610.10),
			(710.10), (810.10)
		3	22-53(2)
		4	23-28(b)
		6	22-5(310.10)
280-85	12-19-85	1	22-5(2), (010.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(010.20), (010.30)
		2	22-43(2)
282-85	12-19-85	1	22-5(180.48)
		2	22-5(180.70)
284-85	12-19-85	1 Rpld.	21-5(320.58),
			(360.65)
		2	21-5(320.54),
			(360.55), (570.90)
		3 Rpld.	23-5(570.40)
		4	23-5(570.60)
285-85	12-19-85	1	2-253
			VI
2-86	1-9-86	1	21-5(080.80)
		2	22-5(080.5)
8-86	1-23-86	1 Rpld.	21-5(090.35)
		2	21-5(570.20)
		3 Added	21-5(090.36)
10-86	1-23-86	1 Rpld.	21-5(610.30)
		2	21-5(750.90)
12-86	1-23-86	1	21-5(360.55)
13-86	2-6-86	1 Rpld.	21-5(080.100),
			(080.160)
		2 Added	21-5(080.95),
			(080.150),
			(080.155)
		3	21-5(080.130)
18-86	2-20-86	1	13-1
		2	13-13

Ord./Res. Number	Adoption Date	Section	Section this Code
19-86	2-20-86	1 Rpld.	23-5(550.190)
		2 Added	23-5(550.195)
20-86	2-20-86	1 Added	21-5(550.56)
		2	21-5(320.30),
			(320.25), (550.80),
			(550.105)
22-86	2-20-86	1, 2	18A-7, 18A-8
29-86	3-6-86	1	23-30 (note)
		2	23-30(b)
30-86	3-6-86	1	22-5(510.5)
31-86	3-6-86	1 Rpld.	22-5(090.5)
		2 Added	21-5(090.25)
32-86	3-6-86	1	18-47(b)
		2	18-112(a)
		3	18-112 (note)
35-86	3-18-86	1	16-48(c)
		2, 3	16-59, 16-60
		4	16-59.1
44-86	3-20-86	1 Rpld.	21-5(080.100),
			(080.160)
46-86	3-20-86	1	23-5(550.60),
			(550.80)
47-86	4-3-86	1	21-5(310.45),
			(570.31)
		2	21-5(570.60),
			(590.70), (590.90)
48-86	4-3-86	1, 2	16A-7(1), (2)
		3, 4	16A-8(1), (2)

Ord./Res. Number	Adoption Date	Section	Section this Code
54-86	4-17-86	1 Rpld.	22-5(760.10)
		2 Added	21-5(760.152)
55-86	4-17-86	1	9-2(b)
56-86	4-17-86	1	21-5(550.80),
			(550.105)
60-86	4-17-86	1 Rpld.	21-5(030.30)
		2	22-5(030.40),
			(030.70)
64-86	5-1-86	2	2-172(a), (b)
66-86	5-1-86	1	5-29(11)
69-86	5-1-86	1	23-35(e)
70-86	5-1-86	1	18-113.3
81-86	5-29-86	1	2-250—2-256
118-86	7-10-86	1	21-5(570.32)
119-86	7-10-86	1	21-5(210.40)
124-86	7-10-86	1	23-35(d)
127-86	7-17-86	5	3-9.1, 3-12,
139-86	7-24-86	4	21-5(750.100)
		5	22-5(750.20)
142-86	7-24-86	1	21-5(340.110)
		2	21-5(340.65),
			(340.80), (340.120),
			(340.170), (340.247),
			(350.90), (650.88),
			(650.90)
		3	22-5(650.20)
		4	23-5(570.110)
143-86	7-24-86	1	23-5(550.100)

Ord./Res. Number	Adoption Date	Section	Section this Code
144-86	7-24-86	1 Rpld.	21-5(250.50)
		2	21-5(250.40)
148-86	7-24-86	1	21-5(550.70),
			(550.120)
153-86	7-24-86	1 Rpld.	21-5(350.150)
		2	21-5(350.145)
		4	22-5(2)(030.26)
160-86	7-24-86	1	7-13
161-86	7-24-86	1 Rpld.	21-29.1(f),
			21-29.2(b)
		2	21-29.1 (note)
		3	21-29.2 (note)
162-86	7-24-86	1, 2	22-5(730.50)
163-86	7-24-86	1	23-43(a)(8)(vii)
164-86	7-24-86	1	4-14
166-86	8-21-86	1	21-5(440.70),
			(590.70)
		2 Rnbd	21-5(210.40) as
			(210.45)
167-86	8-28-86	1	23-30(b)
177-86	8-28-86	1	22-5(510.30)
185-86	9-4-86	1	22-5(030.26)
186-86	9-4-86	1	21-5(760.147)
		2	22-5(320.30)
193-86	9-18-86	1—4	16-62(d)—(g)
195-86	9-18-86	1	21-5(b)(570.40)
196-86	9-18-86	1	23-5(b)(550.100)
209-86	10-2-86	1	18-129(1)(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
214-86	10-7-86	1	21-25
		2	22-5(2)(110.10),
			(164.10), (169.10),
			(169.20), (169.30),
			(169.40), (169.45),
			(210.10), (310.10),
			(610.10), (710.10),
			(810.10)
		3	22-53(2)
		4	23-28(b)
		6	21-31
		8	21-15(a)
		9	21-16(b)
		10	21-26.1
		11	21-30(a)
		12	22-27(1)
		13	23-29(c), (d)
		14	23-33(a)
225-86	10-21-86	1, 2	21-40, 21-41
229-86	10-21-86	1	21-5(b)(650.75)
238-86	11-13-86	1	21-37(f)
241-86	11-13-86	1	22-5(2)(590.50)
247-86	11-20-86	1	23-18(g)
248-86	11-20-86	1	21-5(b)(550.20)
		2	21-59(b)(550.75)
249-86	11-20-86	1	18-166(f), (g)
257-86	12-11-86	1	21-5(b)(480.20)
		2	21-5(b)(480.16),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(480.25), (480.30)
258-86	12-11-86	1	22-5(2)(320.5)
		2	22-5(2)(040.70),
			(080.7)
		3	22-5(2)(169.30)
		4	22-5(2)(169.20)
		5 Rpld.	22-5(2)(040.20),
			(040.60), (040.70)
		6 Rpld.	22-5(2)(169.40),
			(169.45)
260-86	12-11-86	1 Rpld.	22-5(2)(010.30),
			(010.45)
		Added	22-5(2)(010.31),
			(010.50)
261-86	12-16-86	1	22-5(2)(710.80)
263-86	12-18-86	1 Rpld.	21-5(b)(730.70),
			(760.240)
		2 Added	21-5(b)(730.53),
			(760.235)
264-86	12-18-86	1	21-5(b)(480.20)
265-86	12-18-86	1	21-5(b)(060.40),
			(060.80)
267-86	12-18-86	1	16-15(b), (j), (l)
281-86	12-18-86	1	21-31
1-87	1-8-87	1	21-5(b)(550.30)
		2	21-5(b)(550.22),
			(550.23)
4-87	1-8-87	1	3-9.3, 3-13.1, 3-21

Ord./Res. Number	Adoption Date	Section	Section this Code
5-87	1-8-87	1	3-21
6-87	1-8-87	1	3-9.2, 3-13(5)
10-87	1-22-87	1	22-5(2)(040.80)—
			(040.82)
12-87	1-22-87	1	2-3.1
13-87	1-22-87	1	16A-9(3)
		2	16A-25
15-87	2-5-87	1	21-5(b)(480.20)
23-87	2-19-87	1	21-5(b)(360.100)
		2	21-5(b)(360.75)
31-87	3-5-87	1	23-20(b)(3)
32-87	3-5-87	1	21-5(b)(650.50),
			(650.70), (650.85)
34-87	3-5-87	1	18-123
39-87	3-19-87	1	21-5(b)(760.330)
		2	21-5(b)(760.233)
50-87	4-2-87	1	14-10(f)(2)
51-87	4-2-87	1	3-23.1
		2	3-25
62-87	4-16-87	1	18-62, 18-63,
			18-65, 18-166(g)
		2	18-65.1
64-87	4-16-87	1 Rpld.	22-5(2)(320.40)
		2 Added	22-5(2)(310.50)
67-87	4-16-87	1	21-5(b)(810.30),
			(810.50)
		2	21-5(b)(810.40)
74-87	4-30-87	1	17B-6

Ord./Res. Number	Adoption Date	Section	Section this Code
75-87	4-30-87	1	18-113.4
82-87	5-5-87	1	21-26.1
88-87	5-14-87	1	21-5(b)(760.310),
			(760.370)
89-87	5-14-87	1	2-247(1)
96-87	5-28-87	1	16-72
115-87	6-11-87	1	12-1
122-87	6-25-87	1	2-3.1(6)
		2	14-82(2)
		3	16-66
		4	18-44
		5	18-167
		6	21-37.1(1)(c)
129-87	6-25-87	1	21-5(b)(310.30)
		2	21-5(b)(310.20)
133-87	6-30-87	1	21-25
		2	22-5(2)(040.80)—
			(040.82), (164.10),
			(169.30), (210.10)
		3	22-53(2)
		4	23-28(b)
144-87	6-30-87	1 Rpld.	22-5(2)(810.15)
		2	21-5(b)(650.145),
			(810.58)
146-87	6-30-87	2 Rpld.	21-5(b)(650.115)
		3 Added	21-5(b)(570.10),
			(570.11), (650.145)
		4	21-5(b)(550.100),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(550.105)
154-87	7-9-87	1	9-20
155-87	7-9-87	1	2-10.1, 2-10.2
			Ch. 9 (note), 9-2(c),
			9-3(e), 9-4(e),
			9-8, 9-11, 9-14(a),
			9-15, 9-17(a),
			9-18(b)(7)(v),
			(c)—(i), 9-19
			12-1(c)
			13-65
			14-49
			Ch. 23 (note)
			23-1—23-8,
			23-11(d), 23-12(a),
			23-15(a), 23-16(c),
			23-18(b)(2)(iii)b,
			(g), 23-20,
			23-22(a), 23-23(a),
			23-24(a), 23-25(a),
			23-26(a),
			23-27—23-31,
			23-33—23-42,
			23-44—23-49
161-87	7-16-87	1 Rpld.	21-5(b)(330.30),
			(330.50)
		2 Added	21-5(b)(330.90),
			(330.160),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(330.190),
			(590.60)
		3	21-5(b)(250.55),
			(330.40), (330.100),
			(330.110),
			(330.125),
			(330.150),
			(330.180)
162-87	7-16-87	1	21-5(b)(090.38),
			(730.135)
		2	22-5(2)(090.10)
		3	22-5(2)(090.5),
			(090.20)
165-87	7-16-87	1	24-1
166-87	7-16-87	1	22-5(2)(040.80)—
			(040.82)
167-87	7-16-87	1	16-33(d), (g)
168-87	7-16-87	1	21-5(b)(350.55)
		2	21-5(b)(340.65),
			(340.90)
		3	22-5(2)(169.20)
170-87	7-16-87	1	21-5(b)(250.60)
173-87	7-16-87	1	16-4.1
		2 Rpld.	16-12
		3	16-1(3)
182-87	7-16-87	1	22-5(2)(169.10),
			(169.20), (310.10),
			(610.10), (710.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(810.10)
183-87	7-16-87	1	21-29.1(a)(1), (2)
		2	21-5(b)(760.233)
204-87	8-27-87	1	2-7
205-87	8-27-87	1	5-66(f)
217-87	9-3-87	1	5-76
244-87	10-15-87	1	17-5
251-87	10-29-87	1	21-5, 22-5
259-87	11-12-87	1 Rpld.	4-13
		2	4-14
269-87	11-19-87	1	14-43
274-87	11-19-87	1	21-5
		2	22-5
279-87	12-10-87	1	21-5(2)(360.25)
281-87	12-10-87	1 Rpld.	4—15
282-87	12-10-87	1	4-19
303-87	12-15-87	1	2-290—2-293
307-87	12-15-87	1	21-5(2)(730.140)
316-87	12-17-87	1	21-5(2)(730.140),
			(730.150)
317-87	12-17-87	1	23-18(h), (i)
3-88	1-14-88	1	21-5(2)(060.30),
			(060.35), (060.70)
10-88	1-28-88	1	21-5(2)(760.150)
		2 Rpld.	21-5(2)(730.150)
		3	21-5(2)(730.99),
			(760.135)
14-88	1-28-88	1	2-295—2-299

Ord./Res. Number	Adoption Date	Section	Section this Code
15-88	1-28-88	2 Rpld.	2-150—2-156
20-88	2-11-88	1	21-5(2)(340.75)
32-88	2-25-88	1	21-5(2)(350.115), (350.130)
33-88	2-25-88	1	22-5(2)(470.010), (470.020)
34-88	2-25-88	1	23-18(h)
35-88	2-25-88	1	21-5(2)(480.20)
43-88	3-10-88	1	22-5(2)(180.045), (750.15),
			(750.020)
44-88	3-10-88	1	13-64
48-88	3-10-88	1	23-5(b)(570.30), (570.60),
			(570.110)
54-88	3-24-88	1	21-5(2)(080.10)
55-88	3-24-88	1	22-5(2)(040.70)
		3	21-5(2)(350.60)
59-88	4-7-88	1, 2	21-5(2)(340.25), (340.52),
			(340.54), (340.63)
60-88	4-7-88	1 Rpld.	21-5(2)(730.060),
			(060.060)
		2 Added	21-5(2)(750.55),
			(060.050), (730.047)
		3	21-5(2)(750.60), (750.80)
62-88	4-7-88	1	21-5(2)(440.25), (440.30)
		3, 4	21-5(2)(440.28), (480.30)
		5	22-5(2)(450.010)—
			(450.030)
71-88	4-21-88	1	21-5(2)(750.60), (750.80)
73-88	4-21-88	1	21-5(2)(310.25)
		2	21-5(2)(760.100)

Ord./Res. Number	Adoption Date	Section	Section this Code
74-88	4-21-88	1	3-23.2
		2	3.25
75-88	4-21-88	1	23-34
		2	21-33
76-88	4-21-88	1 Rpld.	23-20(b)(1)(v)
		2	23-20(h)
		3, 4	23-21(b)(4), (d)
		5	23-30(b)(3)
77-88	4-21-88	1	21-5(2)(340.105)
86-88	5-5-88	1	21-38(c)
89-88	5-5-88	1	16-13
90-88	5-5-88	1	21-5(2)(440.23)
91-88	5-5-88	1	22-5(2)(040.70)
103-88	5-19-88	1	14-52.1
105-88	5-19-88	1	21-6(a)
114-88	6-2-88	1	21-5(2)(750.080)
115-88	6-2-88	1	22-5(2)(080.001)
116-88	6-2-88	1	21-17(d)
121-88	6-2-88	1	15-1.2
127-88	6-16-88	1 Rpld.	21-5(2)(340.200)
		2	21-5(2)(340.187)
		3	21-5(2)(310.060),
			(590.070), (710.020)
		4 Rpld.	22-5(2)(040.081),
			(040.082)
		5 Added	22-5(2)(040.045),
			(040.060)
		6	22-5(2)(040.080)

Ord./Res. Number	Adoption Date	Section	Section this Code
131-88	6-16-88	2	21-5(2)(740.10)
132-88	6-16-88	1	2-99
135-88	6-28-88	1	11-9
136-88	6-30-88	2	21-5(2)(510.05), (510.07),
			(510.10), (510.15), (510.30)
		3 Rpld.	22-5(2)(510.005),
			(510.030)
144-88	6-30-88	2	21-5(2)(750.10)
146-88	6-30-88	1	18-113.4(2)
147-88	6-30-88	1	21-5(2)(740.020)
156-88	7-7-88	1	21-5(2)(350.100), (350.115)
160-88	7-7-88	2 Rpld.	21-5(2)(350.105),
			(350.095), (750.05),
			(750.100), (750.105),
			(750.130)—(750—150),
			(59.020), (590.090),
			(810.010)—(810.058),
			(810.065), (080.010),
			(080.030)—(080.085),
			(080.095), (080.110)
		3 Rpld.	22-5(2)(080.001),
			(080.005), (080.007),
			(080.010), (750.015)—
			(750.025), (810.010),
			(810.020), (450.010)—
			(450.030)
		4 Added	21-5(2)(740.030)—
			(740.130), (820.020)—

Ord./Res. Number	Adoption Date	Section	Section this Code
			(820.040), (740.010)—
			(840.110), (410.010)—
			(410.055), (410.058),
			(410.065)
		5 Added	21-5(2)(410.010),
			(410.020), (740.015),
			(740.020), (740.025),
			(810.001), (830.010)
			—(830.030), (840.005),
			(840.007), (840.010)
		6	21-5(2)(590.120),
			(330.125), (330.180),
			(350.145), (590.120),
			(750.090)
161-88	7-7-88	1	21-32(e), (f)
162-88	7-7-88	1	21-5(2)(760.160)
166-88	7-7-88	1 Rpld.	21-5(2)(220.065)
		2 Added	21-5(2)(220.050)
167-88	7-14-88	1 Rpld.	22-5(2)(090.5)
		2 Added	21-5(2)(090.39)
169-88	7-14-88	1	2-6.1(d)
		2 Rpld.	2-86—2-90
		3	13-6(e)
170-88	7-14-88	1	22-54
171-88	7-14-88	1	14-62.1
177-88	7-14-88	1	9-3(b)
178-88	7-14-88	1	21-5(2)(820.30)
		2	23-5(2)(570.110)

Ord./Res. Number	Adoption Date	Section	Section this Code
187-88	8-25-88	1	23-18(a)
190-88	8-25-88	1	21-5(2)(750.40),
			(760.290), (760.300)
		2	21-5(2)(740.15),
			(810.20)
		3	21-5(2)(810.10)
		4	21-5(2)(220.60)
		5 Rpld.	21-5(2)(750.90)
194-88	8-25-88	1, 2	18-63, 18-64
195-88	8-25-88	1	22-5(2)(169.10)
197-88	8-25-88	1 Rpld.	21-5(2)(340.110),
			(350.45)
		2	21-5(2)(340.65),
			(360.50), (480.15),
			(480.20)
		3 Added	21-5(2)(350.35),
			(480.12), (480.17)
		4 Added	21-5(2)(820.10)
198-88	9-6-88	1	14-62
199-88	9-8-88	1	21-1—24-43
		2	24-50
		3 Rpld.	21-5(2)(165.30)
		4	21-5(2)(165.10),
			(165.20)
204-88	9-8-88	1	3-23.3
		2	3-25(f)
205-88	9-8-88	1	16-33(a), (b), (d)
206-88	9-8-88	1 Rpld.	22-5(2)(710.80)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2 Added	22-5(2)(610.40)
		3 Rpld.	21-5(2)(090.60)
		4	21-5(2)(740.120)
210-88	9-8-88	1	22-5(2)(010.60)
220-88	9-22-88	1	21-5(2)(730.40)
		2 Rpld.	22-5(2)(730.50)
225-88	9-22-88	1	21-5(2)(750.100)
		2	21-5(2)(360.120)
233-88	10-6-88	1, 2	21-5(2)(750.80)
		3	22-5(2)(169.10)
234-88	10-6-88	1	21-5(2)(360.120)
240-88	10-20-88	1	2-46
241-88	10-20-88	1 Rpld.	18-71
242-88	10-20-88	1	5-29(11)
243-88	10-20-88	1	2-3.1
246-88	10-20-88	1 Rpld.	21-5(2)(650.145)
		2	21-5(2)(650.140)
247-88	10-20-88	1	5-55—5-75
256-88	11-3-88	1	3-23.3
258-88	11-3-88	1	24-4(165.270)
260-88	11-3-88	1 Rpld.	22-5(2)(470.10),
			(470.20)
		2 Added	22-5(2)(750.10),
			(750.20)
263-88	11-17-88	1	21-5(2)(330.60),
			(330.125), (740.30),
			(740.60)
264-88	11-17-88	1	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	22-5
		3	23-5
		4	24-4
		5	21-25
		6	22-53(2)
		7	23-28(b)
		8	22-33
265-88	11-17-88	1, 2	21-29.1, 21-29.2
		3	21-29.3(h)
		4	21-26.1(b)(6)
		5	21-30(a)
		6	23-36
		7	24-15
		8	24-25
281-88	12-1-88	1	2-251(3)
282-88	12-1-88	1 Rpld.	21-5(2)(480.20)
283-88	12-1-88	1	21-5(2)(350.145),
			(350.160),
			(650.120),
			(760.290)
			650.135
284-88	12-1-88	1	21-5(2)(760.280)
293-88	12-15-88	1	23-30(b)(3)
295-88	12-15-88	1	21-5(2)(740.30),
			(740.60),
			(760.195),
			(760.290)
296-88	12-15-88	1	24-5(1)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	24-39(4)
314-88	12-15-88	1	16-63(c)
315-88	12-15-88	1	21-5(2)(090.40)
323-88	12-15-88	1	14-19
3-89	1-12-89	1	21-5(2)(060.70),
			(060.80)
9-89	1-26-89	1	21-5(2)(310.20),
			(550.62),
			(550.100),
			(570.20),
			(730.40)
		2 Rpld.	21.5(2)(310.25)
10-89	1-2-89	1	22-5(2)(030.70),
			(030.80),
			(040.80)
11-89	1-26-89	1 Rpld.	22-5(2)(590.50)
19-89	1-26-89	1	22-5(2)(030.18)
20-89	1-26-89	1	2-307—2-310
22-89	2-9-89	1	2-251(1), (2)
23-89	2-23-89	1	21-5(2)(210.40)
27-89	2-23-89	1 Rpld.	21-5(2)(310.40)
28-89	2-23-89	1	21-5(2)(590.40)
29-89	2-23-89	1	22-5(2)(030.80)
		2 Added	22-5(2)(030.42)
30-89	2-23-89	1	2-311—2-314
37-89	2-23-89	1 Rpld.	21-5(2)(730.47),
			(730.50),
			(730.69),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(730.80)
		2 Added	21-5(2)(730.15),
			(730.25),
			(730.25),
			(730.48),
			(730.75),
			(730.105),
			(730.115)
		3	21-5(2)(730.20),
			(730.30),
			(730.40),
			(730.45),
			(730.53),
			(730.55),
			(730.95),
			(730.100),
			(730.110),
			(730.120),
			(730.135),
			(730.140)
38-89	2-23-89	1	21-5(2)(760.286)
39-89	2-23-89	1	21-5(2)(620.10)
40-89	2-23-89	1	21-27(b)
41-89	2-23-89	1 Rpld.	21-5(2)(650.160)
		2	21-5(2)(650.140),
			(740.40)
45-89	3-7-89	1	6-49(a)
46-89	3-7-89	1, 2	18-63, 18-64

Ord./Res. Number	Adoption Date	Section	Section this Code
49-89	3-23-89	1	23-30(b)(4)
56-89	4-6-89	1	21-5(2)(360.85),
			(360.120)
59-89	4-6-89	1 Rpld.	21-5(2)(410.50)
		2	21-5(2)(410.30)
63-89	4-20-89	1, 2	17-148, 17-149
		3	17-152
65-89	4-20-89	1	23-5(b)(570.30),
			(570.60)
		2	23-30(b)(3)
67-89	4-20-89	1 Rpld.	21-5(2)(260.90)
		2	21-5(2)(260.70)
68-89	4-20-89	1	21-5(2)(410.40)
70-89	4-20-89	1 Rpld.	21-5(2)(570.35)
		2 Added	21-5(2)(570.55)
77-89	5-4-89	1 Rpld.	21-5(2)(350.135)
		2	21-5(2)(350.101)
79-89	5-4-89	1 Added	21-5(2)(340.10)
83-89	5-18-89	1	21-5(2)(820.40)
		2 Rpld.	22-5(2)(180.80)
		3	22-5(2)(180.70)
84-89	5-18-89	1	16A-9(4)
		2	16A-25
85-89	5-18-89	1 Rpld.	21-5(2)(840.120)
		2	21-5(2)(840.130)
		3 Rpld.	22-5(2)(830.30),
			(840.10)
97-89	6-1-89	1	21-5(2)(090.15),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(090.34)
		2	21-5(2)(090.38)
107-89	6-15-89	1	21-5(2)(550.10),
			(620.80)
		2 Rpld.	21-5(2)(740.80),
			(620.70)
		3	21-5(2)(740.45)
108-89	6-15-89	1	22-5(2)(650.3),
			(030.44)
		2 Rpld.	22-5(2)(030.30)
109-89	6-15-89	1	22-5(2)(169.10),
			(169.20), (169.30)
		2	24-4(165.10)
110-89	6-15-89	1	21-38(c)
127-89	6-29-89	1	21-5(2)(260.48),
			(260.35)
130-89	7-6-89	1	21-5(2)(750.55)
131-89	7-6-89	1	21-5(2)(510.3)
		2	21-3(2)(510.15),
			(060.70)
137-89	7-6-89	1, 2	21-5(2)(640.10)—
			(640.140)
		3 Rpld.	21-5(2)(650.80)
		4	21-5(2)(650.30),
			(650.85), (650.135),
			(650.140)
		5 Rpld.	22-5(2)(650.03)
		3	22-5(2)(640.10)

Ord./Res. Number	Adoption Date	Section	Section this Code
		9	21-5(2)(640.140),
			(340.100),
			(640.050),
			(640.120)
		10	21-5(2)(640.40)
		11	21-5(2)(640.50),
			(640.120)
		12	21-5(2)(640.50),
			(640.120)
138-89	7-6-89	1 Rpld.	21-5(2)(510.5),
			(510.7), (510.10),
			(510.15), (510.30)
		2 Added	21-5(2)(520.05)—
			(520.40)
139-89	7-6-89	1	23-5(550.100)
146-89	7-13-89	1	21-5(2)(340.10),
			(340.110)
151-89	8-24-89	1	22-5(2)(010.35)
152-89	8-24-89	1	21-5(2)(165.10)
		2	21-4(165.130)
165-89	8-31-89	1	16-1(42)—(102)
		2	16-1(103), (104)
		3	16-42
		4, 5	16-43(2), (3), (13)
		6, 7	16-45(a)(3), (4), (f)
		8, 9	16-46(a),
			(d)—(g), (h), (i)
		10	16-48(c)

Ord./Res. Number	Adoption Date	Section	Section this Code
		11	16-50(b)
		12	1-51(a)
166-89	8-31-89	1	16-15(j)
167-89	8-31-89	1	21-5(2)(320.100)
		3	22-5(2)(190.30)
		4	21-5(2)(260.50),
			(260.35)
168-89	8-31-89	1	21-5(2)(650.25)
		2 Rpld.	22-5(2)(740.15)
		3	22-5(2)(740.20),
			(740.25)
169-89	8-31-89	1	21-5(2)(750.50),
			(750.25)
		2	21-5(2)(750.80)
176-89	9-7-89	1	21-5(2)(320.55)
177-89	9-7-89	1	13-8
181-89	9-21-89	1	22-5(2)(030.42)
		2	22-5(2)(030.50)
187-89	10-5-89	1	21-5(2)(760.310),
			(760.330),
			(760.235),
			(760.233)
192-89	11-2-89	1	21-5(2)(550.073)
208-89	11-16-89	1	21-5(2)(740.043)
214-89	11-16-89	1	24-4(165.160)
223-89	11-30-89	1	21-5(060.70)
226-89	11-30-89	1, 2	18-63, 18-64
227-89	11-30-89	1 Rpld.	2-125—2-135

Ord./Res. Number	Adoption Date	Section	Section this Code
230-89	12-7-89	1	21-5(2)(750.080),
			(750.55),
			(760.280),
			(760.190)
231-89	12-7-89	1—3	17-2—17-4
238-89	12-14-89	1	22-5(2)(030.10)
		2	22-40(2)
239-89	12-14-89	1	22-5(2)(010.10),
			(010.20)
		2	22-43(2)
240-89	12-14-89	1	18-124
251-89	12-14-89	1	2-13.1
		2	14-10(f)(1)
		3, 4	16-1, 16-2
		5	16-29
		6	16-30(d)
		7	16-31
		8	16-33
		9	16-34.2
		10	16-35
254-89	12-14-89	1	14-10(f)(2)
255-89	12-14-89	1 Rpld.	2-5(2)(030.25)
			(030.45)
		2	22-5(2)(030.51)
		3	22-5(2)(030.20)
			(030.40)
259-89	12-19-89	1	22-5(2)(510.010)
264-89	12-19-89	1	23-28(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	23-29(b)
		3	23-32(b)
		4	23-35
9-90	1-25-90	1	22-5(2)(169.030)
11-90	1-25-90	1	18-23.1
12-90	1-25-90	1	21-5(2)(740.030),
			(750.080),
			(750.055)
15-90	1-25-90	1	22-5(2)(010.260),
			(010.57)
16-90	1-25-90	1	21-5(2)(260.22)
17-90	2-8-90	1	23-18(b)(1)(iv)
18-90	2-8-90	1	2-315—2-318
22-90	2-8-90	1	22-5(2)(550.15)
23-90	2-8-90	3—5	5A-1—5A-3
31-90	2-22-90	1 Rpld.	22-5(2)(030.43)
		2	22-5(2)(030.40)
33-90	2-22-90	1, 2	18-63, 18-64
36-90	2-22-90	1	23-21(b)(2)—(4)
38-90	3-8-90	1	21-5(2)(220.70)
		2	21-5(2)(220.55)
41-90	3-8-90	1	22-5(2)(030.40)
		2	22-5(2)(030.35)
45-90	3-22-90	1 Rpld.	22-5(2)(750.10),
			(750.20)
		2	21-5(2)(750.45)
		3	21-5(2)(750.80)
46-90	3-22-90	1	21-5(2)(550.100),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(550.110)
54-90	4-5-90	1	21-5(2)(550.100)
56-90	4-5-90	1	23-6(a)(9)
57-90	4-5-90	1	18-114.1
64-90	4-5-90	1	21-5(2)(550.100),
			(550.110)
65-90	4-5-90	3 Rpld.	23-5(b)(550.20)
		3	23-21
		5	23-30(b)(3), (4)
66-90	4-5-90	1	21-5(2)(340.110),
			(340.120),
		2	22-5(2)(030.85)
69-90	4-12-90	1 Rpld.	21-5(2)(050.10)
		2	22-5(2)(710.20)
72-90	5-3-90	1	5A-2
75-90	5-3-90	1	21-5(2)(760.185)
77-90	5-3-90	1 Rpld.	21-5(2)(760.160)
		2	21-5(2)(340.103)
		3	21-5(2)(750.20),
			(760.110)
		4	22-5(2)(750.20)
82-90	5-17-90	2 Rpld.	21-5(2)(050.30),
			(050.40)
		3	21-5(2)(710.15),
			(710.25)
84-90	5-17-90	1 Rpld.	21-5(2)(550.57)
		2	21-5(2)(550.62)
85-90	5-17-90	1	2-320—2-322,

Ord./Res. Number	Adoption Date	Section	Section this Code
			2-324
100-90	5-31-90	1	21-5(2)(740.110),
			(740.130)
101-90	5-31-90	1	18-114.1(2)
107-90	5-31-90	1	21-5(2)(590.30)
114-90	6-14-90	1	16-15(j)
119-90	6-14-90	1, 2	16-65.1, 16-65.2
		3	16-64(d), (e)
		4	13-12(c)
121-90	6-14-90	1	21-5(2)(350.145),
			(650.60), (650.70)
		2	22-5(2)(350.20)
124-90	6-14-90	1	6-69.4
		2	6-69.4 (note)
128-90	6-28-90	1	21-5(2)(060.30),
			(060.35), (550.62),
			(550.100)
134-90	6-28-90	1	21-5(2)(740.80)
		2	21-5(2)(730.100)
		3	21-5(2)(220.40)
		5	22-5(2)(740.25)
135-90	6-28-90	2 Added	21-5(2)(Div. 530)
		3 Rpld.	21-5(2)(510.3)
		4 Added	21-5(2)(530.10)
		5 Added	21-5(2)(530.50)
136-90	6-28-90	1	21-5(2)(550.70),
			(55.100)
		2	23-5(b)(550.80)

Ord./Res. Number	Adoption Date	Section	Section this Code
139-90	6-28-90	1	21-25
		2	22-5(2)(030.18),
			(110.10), (164.10),
			(210.10), (310.10),
			(410.10), (510.10),
			(610.10), (710.10),
			(810.1)
		3	22-53(2)
		4	23-28(b)
		5	24-4(165.20)
142-90	7-5-90	1	22-5(2)(410.30)
146-90	7-5-90	1 Rpld.	21-5(2)(330.105)
		2	21-5(2)(330.60),
			(760.50), (760.320)
147-90	7-5-90	1	13-1—13-15
		2	Ch. 13, Art. I
			(note)
150-90	7-10-90	1	21-5(2)(590.70),
			(760.180)
		2	24-4(165.200),
			(165.260)
152-90	7-10-90	1 Added	21-5(2)(Div. 480)
		2 Rpld.	21-5(2)(480.12),
			(480.15)—(480.17),
			(480.25), (480.28)
		3 Added	21-5(2)(480.50),
			(480.70), (480.90),
			(480.100),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(480.120),
			(480.130)
		4 Amd	21-5(2)(480.10),
			(480.30)
		6 Added	21-5(2)(480.20),
			(480.40)
		7 Amd	21-5(2)(480.50),
			(480.70), (480.130)
		8 Added	21-5(2)(480.60),
			(480.80), (480.110)
153-90	7-12-90	1	16A-9(3)
158-90	7-12-90	1	21-33(c)
161-90	7-12-90	1 Rpld.	21-5(2)(570.10),
			(570.11), (760.30)
		2	21-5(2)(570.15)
		3	21-5(2)(570.90),
			(760.20)
162-90	7-12-90	1 Rpld.	21-5(2)(820.20)
		2 Added	21-5(2)(830.20)
164-90	8-23-90	1	23-5(b)(570.70),
			(570.80)
		2	21-5(2)(550.100),
			(550.110)
173-90	9-4-90	1	21-5(2)(250.30),
			(520.25)
174-90	9-4-90	1	21-5(2)(760.215)
175-90	9-4-90	2 Added	22-5(2)(Div. 450)
		3 Added	22-5(2)(450.10)

Ord./Res. Number	Adoption Date	Section	Section this Code
176-90	9-4-90	1	21-5(2)(060.35),
			(060.40)
		3	21-5(2)(640.50),
			(640.120)
181-90	9-4-90	1	22-5(2)(169.15)
183-90	9-4-90	1	22-5(2)(310.10)
185-90	9-4-90	1	5-29
189-90	9-11-90	1	21-5(2)(550.100),
			(550.110)
199-90	9-20-90	1	21-5(2)(750.80)
		2	21-5(2)(750.76)
203-90	9-20-90	1	22-54
209-90	10-4-90	1	21-5(2)(360.57)
		2	21-5(2)(360.80)
		4	22-5(2)(810.10)
216-90	10-18-90	1	14-72(7)(i)
217-90	10-18-90	1 Rpld.	21-5(2)(360.35)
		2 Amd	21-5(2)(360.25)
		3 Rpld.	21-5(2)(330.190)
		4 Added	21-5(2)(330.175)
224-90	10-18-90	1	21-5(2)(570.35)
230-90	11-1-90	1	21-5(2)(740.100)
			(740.110),
			(740.120),
			(740.130)
231-90	11-1-90	1	22-5(2)(410.15)
235-90	11-1-90	1 Rpld.	21-5(2)(570.60)
		2 Added	21-5(2)(570.37),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(570.38)
237-90	11-1-90	1	22-5(2)(830.30)
238-90	11-15-90	1	2-3.1
240-90	11-15-90	1 Rpld.	23-5(2)(570.30)
		2	23-5(2)(570.60)
241-90	11-15-90	1	24-4(165.160),
			(165.200)
243-90	11-15-90	1	21-5(2)(710.17)
		3 Rpld.	21-5(2)(550.80)
		4	21-5(2)(330.50),
			(330.60), (550.62)
245-90	11-15-90	1	24-4(165.200)
		2	22-5(2)(310.40)
252-90	11-29-90	1	17-162—17-165
256-90	11-29-90	1 Rpld.	21-5(2)(060.55)
		2 Added	21-5(2)(060.60)
		3 Amd	21-5(2)(570.90),
			(570.100),
			(740.60),
			(740.70)
257-90	11-29-90	1	21-5(2)(620.60),
			(620.80)
		2	21-5(2)(620.55),
			(620.70)
260-90	11-29-90	2	22-5(2)(040)
262-90	12-6-90	1	23-22
263-90	12-6-90	1	21-35
264-90	12-6-90	1	2-326—2-334

Ord./Res. Number	Adoption Date	Section	Section this Code
279-90	12-13-90	1	21-5(2)(350.100),
			(350.115)
		2	22-5(2)(810.20)
280-90	12-13-90	1	21-5(2)(740.80),
			(740.110),
			(750.50),
			(750.55), (750.80)
286-90	12-18-90	1	16-1
		2	16-3(c)
		3	16-4(c)
		4	16-10(a)
		5	16-13
		6	16-18(i)
5-91	1-24-91	1	14-72(5)
		2	14-72(6)—(9)
		3	14-72(10)
		4	14-78
6-91	1-24-91	1	24-4(165.20)
		2	24-4(165.40),
			(165.100)
7-91	1-24-91	1 Rpld.	21-5(2)(840.150)
		2	21-5(2)(840.140)
11-91	2-7-91	1	22-5(2)(740.20)
12-91	2-7-91	1 Rpld.	22-5(2)(030.50)
		2 Rpld.	21-5(2)(620.20),
			(650.10), (650.25),
			(650.35), (650.75)
		3	21-5(2)(610.10)—

Ord./Res. Number	Adoption Date	Section	Section this Code
			(610.40), (640.15),
			(650.10), (650.15),
			(650.25)
		4	21-5(2)(650.30),
			(650.40), (650.88),
			(650.90)
		5 Rpld.	22-5(2)(180.10),
			(180.20), (180.40),
			(180.45), (180.48),
			(180.50), (180.70),
			(650.5), (650.10),
			(650.15), (650.20)
15-91	2-7-91	1	21-5(2)(330.50),
			(330.60)
22-91	2-21-91	1	21-33(a)
		2	21-33(f)
		3	21-34(f)
24-91	2-21-91	1	9-1—9-4, 9-7,
			9-10, 9-11,
			9-15—9-17,
			9-21, 9-22
		2 Rpld.	9-12, 9-18
26-91	2-21-91	1	22-5(2)(040.80)
27-91	2-21-91	1	23-18(b)(2)(iii)a
28-91	2-21-91	1	22-5(2)(610.30),
			(650.75)
		2	2-5(2)(650.40)
		3	23-5(b)(550.60)

Ord./Res. Number	Adoption Date	Section	Section this Code
33-91	2-21-91	1	12-1(b)(viii)
		2	12-1(d)
36-91	3-7-91	1 Rpld.	21-5(2)(030.10)
		2 Rpld.	22-5(2)(030.15)
		3	22-5(2)(030.46),
			(030.60)
40-91	3-7-91	1	21-5(2)(750.100)
44-91	3-7-91	1	21-5(2)(480.50),
			(480.70),
			(760.110),
			(760.195)
		3	22-5(2)(750.20)
47-91	3-28-91	1	23-21(c)(1)(ii)
48-91	3-28-91	1	21-5(2)(340.110)
50-91	3-28-91	1	21-5(2)(410.30),
			(410.40), (570.50),
			(570.90)
51-91	3-28-91	1	21-29.3(g)
55-91	3-28-91	1 Rpld.	21-5(2)(650.20)
		2	21-5(2)(260.15),
			(260.27)
		3	21-5(2)(740.95)
		4	21-5(2)(730.40),
			(750.53), (730.100),
			(740.100)
59-91	4-4-91	1	9-21
60-91	4-4-91	1	2-3.1
61-91	4 4-91	1	21-5(2)(260.50)

Ord./Res. Number	Adoption Date	Section	Section this Code
62-91	4-4-91	1	24-4(165.10)
63-91	4-4-91	1	21-39(b)
64-91	4-4-91	1	23-18(a)
		2	23-18(e)
65-91	4-4-91	1	21-5(2)(550.62),
			(550.110)
77-91	4-18-91	1	2-345—2-350
78-91	4-18-91	1	21-39(b)
79-91	4-18-91	1	21-5(2)(760.100)
		2	21-5(2)(760.80)
		3 Rpld.	21-5(2)(480.120)
		4	21-5(2)(480.85)
		7 Rpld.	21-5(2)(340.245)
		8	21-5(2)(820.20)
		9	21-5(2)(340.110),
			(340.140),
			(340.190),
			(340.220),
			(340.240),
			(340.250), (820.30)
85-91	5-2-91	1 Rpld.	21-5(2)(340.130),
			(340.230)
		2 Added	21-5(2)(340.167),
			(740.43)
		3 Amd	21-5(2)(340.63),
			(740.60)
86-91	5-2-91	1	21-32(e), (f)
87-91	5-2-91	1	2-361—2-366

Ord./Res. Number	Adoption Date	Section	Section this Code
90-91	5-2-91	1	21-5(2)(320.35),
			(320.40)
96-91	5-16-91	1	21-5(2)(760.290),
			(760.300)
97-91	5-16-91	1	2-377
101-91	5-30-91	1	21-5(2)(340.180),
			(340.240)
		2	21-5(2)(060.65)
		3	21-5(2)(060.70),
			(340.70), (340.80)
109-91	6-13-91	1 Rpld.	22-5(2)(410.30)
		2 Added	22-5(2)(410.25)
		3 Amd	21-5(2)(410.58)
		4 Added	21-5(2)(410.70)
112-91	6-13-91	1	21-25
		2	21-5(2)(030.18),
			(110.10), (164.10),
			(210.10), (310.10),
			(410.10), (410.25),
			(450.10), (510.10),
			(610.10), (710.10),
			(810.1)
		3	22-53(2)
		4	23-28(b)
115-91	7-2-91	1	12-9
116-91	7-2-91	1	16-33(h)
117-91	7-2-91	1 Rpld.	18-94
118-91	7-2-91	1	21-5(2)(610.50)

Ord./Res. Number	Adoption Date	Section	Section this Code
122-91	7-2-91	1	4-23.1
132-91	7-2-91	1	18-137
135-91	7-2-91	1	21-25
		2	22-5(2)(030.18),
			(110.10), (164.10),
			(210.10), (310.10),
			(410.10), (410.25),
			(450.10), (510.10),
			(610.10), (710.10),
			(810.1)
		3	22-53(2)
		4	23-28(b)
		11	22-5(2)(410.25)
139-91	7-11-91	1	21-5(2)(340.90),
			(340.170),
			(340.180),
			(340.247),
			(650.135),
			(740.60), (740.100),
			(740.110)
		2	22-5(2)(440.10)
140-91	7-11-91	1, 2	21-34(1), (2)
142-91	7-11-91	1	22-5(2)(710.30),
			(710.40)
144-91	7-11-91	1	21-5(2)(060.30),
			(480.130)
		2	21-5(2)(480.120)
		3	21-5(2)(260.20),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(260.50)
		4	21-5(2)(260.13)
145-91	7-11-91	1	22-5(2)(163.40),
			(450.20)
147-91	7-11-91	1	23-35(a), (b)
150-91	7-11-91	Rpld.	21-5(2)(Div. 060),
			(Div. 480)
		2 Added	21-5(2)(Div. 460),
			(Div. 470)
154-91	7-18-91	1	16-15(j)
155-91	7-18-91	1	21-5(2)(470.135)
		2	21-5(2)(340.180),
			(470.140)
156-91	7-18-91	1	23-5(b)(550.80)
		2	22-5(2)(169.15)
167-91	7-18-91	1	16-15(l)
169-91	7-18-91	1 Rpld.	21-5(2)(470.110)
		2 Added	21-5(2)(470.45)
		3 Amd	21-5(2)(470.60)
170-91	7-18-91	1	21-5(2)(340.100),
			(340.160)
		3 Rpld.	23-5(b)(550.160),
			(550.195)
172-91	7-18-91	1	21-29.1(a)(7)
173-91	7-18-91	1	2-362
177-91	8-22-91	1	21-5(2)(250.50)
		2	21-5(2)(250.55)
181-91	8-29-91	1	5-76, 5-77

Ord./Res. Number	Adoption Date	Section	Section this Code
182-91	8-29-91	1	12-1
183-91	8-29-91	1	16-60(9)
184-91	8-29-91	1 Rpld.	21-5(2)(470.100)
		2 Added	21-5(2)(470.85)
185-91	8-29-91	1	21-5(2)(260.10)
186-91	8-29-91	1 Rpld.	21-5(2)(460.60)
		2	21-5(2)(460.50)
		3 Rpld.	21-5(2)(340.190)
		4	21-5(2)(320.35),
			(320.40), (340.140)
		5 Rpld.	22-5(2)(320.10)
199-91	9-5-91	1 Rpld.	21-5(2)(740.15)
		2	21-5(2)(740.20)
200-91	9-5-91	1	16-31(c)
201-91	9-5-91	1	1-12.1
		2	14-10(f)(4)
207-91	10-8-91	1	13-1
		2	13-13
208-91	10-8-91	1	21-5(2)(320.45)
209-91	10-8-91	1	21-5(2)(460.60)
219-91	10-17-91	1	5-55—5-75
222-91	10-17-91	1	2-12
223-91	10-17-91	1 Rpld.	21-5(2)(340.52),
			(340.54)
		2 Added	21-5(2)(340.15),
			(340.45), (340.53),
			(340.95)
		3 Amd	21-5(2)(340.20),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(340.40), (340.65)
225-91	10-17-91	1	24-1(3), (6)
		2	24-3
		3	24-4(165.250)
		4	24-9(2)(e)
		5	24-10(1)
		6	24-11(2)
		7	24-12(1)
		8	24-15
		9	24-19
		10	24-20(2)
		11	24-21(2)
		12	24-22
		13	24-23(2)
		14	24-25(2)(b)
		15	24-29(3)
		16	24-30
		17	24-36(5)
		18	24-38(2), (3)
		19	24-40(1)
		20	24-43(2)
230-91	11-14-91	1	18-47(b)(2)
233-91	11-14-91	1	16-1(d)(51), (52)
234-91	11-14-91	1	13-13
		2, 3	16-43(15), (16)
		4	16-43.1
		5	16-43(7)(h)
		6	16-45(g)

Ord./Res. Number	Adoption Date	Section	Section this Code
		7	16-46(a)
		8 Rpld.	16-46(i)
		9	16-46.1
		10	16-49(a)
		11	16-50(a)
238-91	11-21-91	1	21-5(2)(260.24)
		2	21-5(2)(260.20)
239-91	11-21-91	1 Rpld.	21-5(2)(760.40)
		2	21-5(2)(470.100)
		3	21-5(2)(710.40)
241-91	11-21-91	1 Rpld.	21-5(2)(330.130)
		2 Rpld.	21-5(2)(550.5)
		3 Added	21-5(2)(550.5)
		4	21-5(2)(330.90),
			(640.80),
			(640.100),
			(750.50), (750.80)
242-91	11-21-91	1 Rpld.	21-5(2)(730.35)
		2 Added	21-5(730.23)
243-91	11-21-91	1	13-3
		2	13-14, 13-14.1
248-91	12-5-91	1	23-43(a)(1)
		2, 3	23-43(a)(2), (3)
		4	23-43(a)(8)
249-91	12-5-91	1	21-39(b)
250-91	12-5-91	1	21-5(2)(360.115)
		2	21-5(2)(360.120)
251-91	12-12-91	1	21-5(2)(550.100)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(2)(550.80)
		3	21-5(2)(550.90)
		4	21-5(2)(550.60)
252-91	12-12-91	1	8-1—8-13
253-91	12-12-91	1	21-5(2)(350.115)
		2	21-5(2)(310.70)
254-91	12-12-91	1	21-5(2)(840.110)
		2	22-5(2)(810.15)
265-91	12-12-91	1 Rpld.	22-5(2)(010.50)
		2	22-5(2)(010.31)
271-91	12-12-91	1	21-5(2)(550.62),
			(550.100)
		2	21-5(2)(750.10)
9-92	1-23-92	1	21-5(2)(840.110)
		3	22-5(2)(010.3)
13-92	1-23-92	1	23-18(a)(1)
		2	23-18(b)(1)
		3	23-21(c)(1)
		4	23-21(c)(1)(i)b
		5, 6	23-21(c)(1)(iv)
15-92	2-6-92	1	5-57
16-92	2-6-92	1	21-5(2)(820.30)
		2	21-5(2)(820.25),
			(820.35)
17-92	2-6-92	1	21-5(2)(550.80),
			(550.100)
		2	21-5(2)(550.60),
			(550.90)

Ord./Res. Number	Adoption Date	Section	Section this Code
21-92	2-6-92	1	23-21(c)(1)(ii)d
22-92	2-20-92	1	21-5(2)(360.25),
			(470.7)
24-92	2-20-92	1	21-5(2)(360.25),
			(360.55), (360.60)
32-92	3-3-92	1	21-5(2)(280.50),
			(750.45), (750.70)
33-92	3-3-92	1	21-5(2)(310.80)
		2	21-5(2)(310.70)
		3	21-5(2)(310.40)
35-92	3-19-92	1	21-5(2)(210.10)
		2 Rpld.	21-5(2)(210.45)
36-92	3-19-92	1 Rpld.	22-5(2)(030.44),
			(310.20)
		2	22-5(2)(030.40)
		3	21-5(2)(310.20)
40-92	4-2-92	1	21-5(2)(640.12),
			(640.25)
41-92	4-2-92	1	21-5(2)(550.80),
			(550.100)
		2 Rpld.	21-5(2)(760.155)
		3	21-5(2)(760.50)
		4	21-5(2)(760.142)
42-92	4-2-92	1	21-5(2)(470.135),
			(470.140)
44-92	4-2-92	1	21-5(2)(320.90),
			(320.100)
45-92	4-2-92	1	21-5(2)(260.29)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(2)(220.10),
			(260.20), (260.35)
46-92	4-2-92	1	16A-9(5)
48-92	4-2-92	1	21-5(2)(550.100),
			(550.110)
49-92	4-2-92	1	14-46
50-92	4-28-92	1	16-59
52-92	4-30-92	1	21-5(2)(440.40),
			(440.60)
58-92	5-14-92	1	22-5(2)(550.10)
59-92	5-14-92	1	22-5(2)(550.15)
68-92	5-14-92	1	21-5(2)(330.80),
			(330.100)
83-92	5-28-92	1	21-5(2)(650.10)
84-92	5-28-92	1	24-36
85-92	5-28-92	1	21-5(2)(610.10)
		2	22-5(2)(610.20)
88-92	6-11-92	1	18-66
90-92	6-25-92	1	6-49(a)
		2	6-52(a)
		3	6-53(b)
		4	6-56(a)
		5	6-66
		6	6-69(a)
		7	6-69.2.1
		8	6-69.3
91-92	6-25-92	1 Rpld.	21-5(2)(820.30)
		2	21-5(2)(820.35)

Ord./Res. Number	Adoption Date	Section	Section this Code
92-92	6-25-92	1	21-6(a)(4)
98-92	6-25-92	1	21-5(2)(360.110)
119-92	7-2-92	1	21-5(2)(440.73)
		2	21-5(2)(440.75)
124-92	7-9-92	1	21-32(g)
126-92	7-9-92	1 Rpld.	21-5(2)(640.25)
		2	22-5(2)(640.25)
131-92	7-9-92	1	18D-1—18D-25
135-92	7-9-92	1 Rpld.	21-5(2)(310.40),
			(310.70), (310.80)
		2	21-5(2)(350.35),
			(350.100),
			(350.115)
136-92	7-9-92	1	23-21(c)
144-92	8-27-92	1	18A-14(a)
145-92	8-27-92	1	16-15(m), (n)
146-92	8-27-92	1	21-5(2)(470.135)
		2	21-5(2)(470.70)
147-92	8-27-92	1, 2	21-5(2)(120.30)
148-92	8-27-92	1	21-5(2)(340.150)
		2	21-5(2)(340.90)
149-92	8-27-92	1	21-5(2)(340.105)
		2	21-5(2)(310.40)
150-92	8-27-92	1	21-5(2)(340.240)
		2	21-5(2)(340.185)
151-92	8-27-92	1	24-29
153-92	8-27-92	1	12-2
154-92	8-27-92	1	23-21(c)

Ord./Res. Number	Adoption Date	Section	Section this Code
156-92	9-3-92	1	2-3.1(1)
157-92	9-3-92	1 Rpld.	21-5(2)(550.120)
		2	21-5(2)(340.63),
			(340.220),
			(550.070)
158-92	9-3-92	1 Rpld.	21-5(2)(340.187)
		2	21-5(2)(340.168)
		4	21-5(2)(750.40),
			(750.60)
166-92	9-17-92	1, 2	2-31, 2-32
178-92	10-1-92	1	2-378—2-380
183-92	10-15-92	1—8 Rpld.	18-144—18-144.7
185-92	10-15-92	1	21-5(2)(460.30),
			(460.40)
186-92	10-15-92	1	22-5(2)(210.60)
		2	22-55
187-92	10-15-92	1	21-5(2)(470.135)
		3	21-5(2)(340.220)
192-92	10-29-92	1	2-5, 2-10.1, 2-107,
			2-291, 7-32, 17B-6,
			18-112
		3	2-141(1)(i)
		4	2-312(1)
		5	14-52.1(c)
		6	14-70(4), (5)
		7	16-59.1(b)
		8	22-43(1)
		Rpld	2-3

Ord./Res. Number	Adoption Date	Section	Section this Code
197-92	10-29-92	1	6-49(a)
199-92	11-12-92	1	21-39(b)
200-92	12-10-92	1	2-22(a)
201-92	11-12-92	1 Rpld.	21-5(2)(730.120)
		2	21-5(2)(320.55),
			(320.70), (730.105)
209-92	11-19-92	1	21-5(2)(350.91)
		2 Rpld.	22-5(2)(640.25)
		3	22-5(2)(640.05),
			(640.06), (640.60)
		4	22-5(2)(640.10)
211-92	12-3-92	1	16-33(a)
212-92	12-3-92	1	22-5(2)(620.25)
213-92	12-3-92	1	22-5(2)(320.30),
			(320.35)
		2	21-5(2)(320.35),
			(320.55)
214-92	12-3-92	1	18-71.1
216-92	12-3-92	1	21-37.1(1)(c)
217-92	12-9-92	1	7-13(1)
230-92	12-10-92	1	21-5(2)(350.45)
		2	21-5(2)(640.80)
237-92	12-15-92	1	21-5(2)(410.30),
			(410.40)
238-92	12-15-92	1	21-5(2)(470.75)
1-93	1-14-93	1	22-5(2)(710.40)
		2	21-5(2)(350.91)
2-93	1-14-93	1	16-43(7)

Ord./Res. Number	Adoption Date	Section	Section this Code
3-93	1-28-93	1	24-50(1)
8-93	1-28-93	3 Rpld.	21-5(2)(Div. 440)
		4 Added	21-5(2)(850.10)—
			(850.120)
		5 Amd	21-5(2)(820.10),
			(840.10),
			(840.30)—(840.50)
		6 Amd	22-5(2)(810.01)
		7 Rpld.	22-5(2)(440.10)
		8 Added	22-5(2)(850.10)
9-93	1-28-93	1	21-29.3(d)
11-93	1-28-93	1	21-5(2)(710.20)
12-93	1-28-93	1 Rpld.	22-5(2)(030.60)
		2	22-5(2)(030.40)
16-93	2-11-93	1	21-5(2)(730.100),
			(730.140),
17-93	2-11-93	1	21-5(2)(840.95)
18-93	2-11-93	1	22-54(2)(d)
23-93	2-11-93	1 Rpld.	21-5(2)(070.40)
		2 Amd	21-5(2)(070.50)
24-93	2-11-93	1	22-5(2)(210.10)
28-93	3-2-93	1	22-5(2)(650.75),
			(650.90)
29-93	3-2-93	1	21-5(2)(20.20)
30-93	3-2-93	1	21-5(2)(840.70)
31-93	3-11-93	1	4-12.2
32-93	3-11-93	1	4-12.3
		2, 3	4-12.3 (note)

Ord./Res. Number	Adoption Date	Section	Section this Code
36-93	3-11-93	1	21-5(2)(340.145)
		2	21-5(2)(340.120)
37-93	3-11-93	1	21-5(2)(640.45)
39-93	3-11-93	1	4-23.1
40-93	3-11-93	1	14-10(f)(4)
41-93	3-11-93	1	21-5(2)(750.30)
42-93	3-11-93	1	23-5(b)(550.40),
			(550.50)
45-93	3-25-93	1	21-37(d)
47-93	3-25-93	1	22-5(2)(310.15)
49-93	3-25-93	1 Rpld.	21-5(2)(350.90)
		Amd	21-5(2)(320.75),
			(320.95), (350.130)
50-93	4-6-93	1	6-59
56-93	4-6-93	1	21-5(2)(760.200),
			(760.290)
57-93	4-22-93	1	4-12.3 (note)
58-93	4-22-93	1	14-10(f)(4)
59-93	4-22-93	1 Rpld.	21-5(2)(650.10),
			(650.150)
		2 Added	21-5(2)(640.95)
		3 Amd	21-5(2)(650.150)
		4 Rpld.	22-5(2)(650.110)
		5 Added	22-5(2)(640.70)
61-93	4-22-93	1	10-14.1(a)
		2	10-14.1(f)
		3	10-14.1(h)
63-93	4-22-93	1	22-5(2)(410.20)

Ord./Res. Number	Adoption Date	Section	Section this Code
68-93	5-6-93	1	18-47(b)(1), (2)
		1 Added	21-5(2)(070.40)
		2 Amd	21-5(2)(070.50)
		3 Rpld.	22-5(2)(070.42)
		4 Amd	22-5(2)(030.18)
74-93	5-6-93	1	9-2
79-93	5-6-93	1	12-1
83-93	5-6-93	1 Added	21-5(2)(740.98)
		2	21-5(2)(740.10)
		3	21-5(2)(740.95),
			(740.100)
		4	21-5(2)(730.95),
			(730.100)
		5	21-5(2)(730.95),
			(730.100)
84-93	5-6-93	1	14-85—14-94
87-93	5-20-93	1	21-5(4)(640.70)
		2	21-5(2)(520.20)
88-93	5-20-93	1 Rpld.	21-5(2)(090.37)
		2	21-5(2)(090.36)
89-93	5-20-93	1 Rpld.	22-5(2)(650.90)
		2	22-5(2)(650.100)
93-93	5-20-93	1	2-345(a)
		2	2-346
		3—6	2-348—2-351
97-93	6-3-93	1	21-5(2)(730.40),
			(730.53)
99-93	6-17-93	1	2-315(3)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	2-317
100-93	6-17-93	1	3-23.3
101-93	6-17-93	1	4-14
115-93	6-17-93	1	2-190
116-93	6-17-93	1	21-12(e)
117-93	6-17-93	1 Amd	21-5(2)(520.10)
		2 Added	21-5(2)(640.25)
		3 Rpld.	22-5(2)(640.06)
118-93	6-17-93	1 Rpld.	21-5(2)(570.32)
		2 Added	21-5(2)(570.25)
		3 Amd	21-5(2)(750.60),
			(750.80)
122-93	6-17-93	1	16-1(f)
		2—4	16-73—16-75
123-93	6-17-93	1	4-12.3 (note)
128-93	7-1-93	1	21-5(2)(090.40)
		2	21-5(2)(710.40)
		4	21-5(2)(340.220),
			(340.240)
129-93	7-1-93	1	21-5(2)(740.110)
131-93	7-1-93	1	22-5(2)(040.70)
133-93	7-8-93	1	2-362
134-93	7-8-93	1 Rpld.	21-5(2)(650.25)
		2	21-5(2)(650.30)
		3	21-5(2)(070.30)
135-93	7-8-93		23-18(b)(3)
		2	23-18(c)
137-93	7-8-93	1	21-5(2)(470.125)

Ord./Res. Number	Adoption Date	Section	Section this Code
138-93	7-8-93	1 Rpld.	21-5(2)(090.34),
			(760.040)
		2	21-5(2)(090.20),
			(650.40), (650.70),
			(760.195)
139-93	7-8-93	1	2-327
140-93	7-8-93	1 Rpld.	21-5(2)(360.30),
			(360.90), (360.120)
		2 Rpld.	21-5(2)(360.80)
		3 Added	21-5(2)(360.12),
			(360.15), (360.58),
			(360.107),
			(360.112)
		4 Added	21-5(2)(360.53)
		4 Amd	21-5(2)(360.10),
			(360.40), (360.45),
			(360.55), (360.57),
			(360.75), (360.85)
141-93	7-8-93	2	22-5(2)(710.10)
151-93	8-26-93	1	21-5(2)(210.10)
155-93	8-26-93	1 Rpld.	24-4(165.80)
		2 Added	24-4(165.35),
			(165-55)
		3 Amd	24-4(165.130)
161-93	8-26-93	1	13-67(c)
170-93	9-9-93	1 Rpld.	21-5(2)(740.70)
177-93	9-23-93	1	4-12.3(a)
186-93	10-7-93	1	22-5(2)(320.30)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(2)(320.55)
187-93	10-7-93	1, 2	2-378, 2-379
191-93	10-7-93	1	21-5(2)(350.100),
			(350.115)
		2 Rpld.	22-5(2)(410.25)
		3	21-5(2)(410.58)
193-93	10-21-93	1	13-53(a)
200-93	10-21-93	1 Rpld.	21-5(2)(760.100)
		2	21-5(2)(760.80)
210-93	11-4-93	1	21-5(2)(340.10)
215-93	11-18-93	1	21-5(2)(360.95),
			(730.65)
		2 Rpld.	21-5(2)(360.100)
		3	21-5(2)(360.53),
			(360.60), (730.95)
227-93	12-2-93	1	23-5(b)(550.60)
231-93	12-9-93	1	21-2(e)
		2	22-3
		3	23-3(c)
233-93	12-9-93	1 Rpld.	21-5(2)(470.90),
			(650.15)
		2	21-5(2)(250.90),
			(320.55),
			(330.180),
			(470.60), (590.70),
			(730.100)
		3 Rpld.	22-5(2)(610.20)
		4	22-5(2)(630.10),

Ord./Res. Number	Adoption Date	Section	Section this Code
			(740.25)
236-93	12-9-93	1, 2	13-4
238-93	12-9-93	2 Rpld.	24-1—24-43
		3	21-5(2)(540.10)—
			(540.270)
		4	Ch. 24, Art.
			I (note)
		7	21-6(d)
		8	21-26
240-93	12-9-93	1 Rpld.	21-5(2)(360.20)
		2 Added	21-5(2)(360.18)
253-93	12-9-93	1 Rpld.	22-5(2)(470.15)
		2 Added	21-5(2)(470.50)
256-93	12-9-93	1	6-56(a)
5-94	1-27-94	1 Rpld.	21-5(2)(350.130)
		2	21-5(2)(350.109)
6-94	1-27-94	1 Added	21-5(2)(340.244)
		2	21-5(2)(340.240)
7-94	1-27-94	1	21-5(2)(590.70),
			(590.80)
8-94	1-27-94	2	22-5(2)(710.10)
13-94	1-27-94	1 Added	21-5(2)(320.42),
			(340.52)
			21-5(2)(320.55),
			(340.170)
18-94	1-27-94	1	21-35
		2	21-37(e)
22-94	2-24-94	1	2-251

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	2-256
27-94	2-24-94	1 Rpld.	21-5(2)(640.60)
		2 Added	21-5(2)(640.47)
		4	21-5(2)(460.30),
			(460.50)
28-94	2-24-94	1	22-5(2)(540.30)
36-94	2-24-94	1 Rpld.	21-5(2)(330.170)
		2	21-5(2)(330.90)
33-94	3-10-94	1	16-42(4)
35-94	3-10-94	1	21-5(2)(260.30),
			(260.70)
		3	22-5(2)(540.40)
43-94	3-24-94	1	21-5(2)(730.40),
			(730.53),
		2	21-5(2)(730.95),
			(730.110)
44-94	3-24-94	1 Rpld.	22-5(2)(320.20),
			(320.35)
		2	21-5(2)(320.30),
			(320.40), (320.55),
			(320.70)
47-94	3-24-94	1	22-5(2)(710.10)
		3	21-5(2)(760.145)
50-94	4-7-94	1	21-5(2)(280.30)
		2	22-5(2)(040.35),
			(040.68)
		3	22-5(2)(040.40),
			(040.80)

Ord./Res. Number	Adoption Date	Section	Section this Code
54-94	4-7-94	1 Rpld	22-5(2)(030.46)
		2	22-5(2)(210.10)
		3	22-5(2)(030.40)
58-94	4-14-94	1	2-381—2-386
61-94	4-14-94	1	23-6(a)(6)
66-94	5-5-94	1	12-1
67-94	5-5-94	1	13-44
70-94	5-5-94	1 Rpld	17B-1—17B-11
		Added	17B-1-17B-10,17B-12
71-94	5-19-94	1	14-10(f)
72-94	5-19-94	1, 2	21-5, 22-5
73-94	5-19-94	1, 2	22-5(2)(710.020)
74-94	5-19-94	2 Rpld	21-5(a)(650.88,650.090, 165.010,165.020)
		3 Added	21-5(2)(540.033,540.145, 540.280)
		4 Amd	21-5(2)(540.120,540.150, 540.190,650.030, 650.135)
		6 Rpld	22-5(2)(540.120,540.150, 540.190,650.030, 650.135)
76-94	5-19-94	1 Rpld	21-5(2)(360.105)
		2 Added	21-5(2)(360.090)
		3 Amd	21-5(2)(360.060,360.055)
78-94	5-19-94	1	13-1
79-94	5-19-94	1	21-5(2)(350.091)
80-94	5-19-95	1	21-5(2)(460.040, 460.050)
94-94	6-2-94	1	16-621(d)
105-94	6-16-94	1	13-6
106-94	6-16-94	1	13-44
107-94	6-16-94	1 Rpld	21-5(2)(330.025)
		2 Amd	21-5(2)(320.045, 740.130)
108-94	6-16-94	1	13-7

Ord./Res. Number	Adoption Date	Section	Section this Code
113-94	6-30-94	1 Rpld	22-5(2)(320.030)
		2 Amd	21-52 (320.055)
115-94	6-30-94	1 Rpld	18-23.1
116-94	6-30-94	1	21-5(2) (340.150, 340.180)
117-94	6-30-94	1	23-94
129-94	7-7-94	1	18-47(b)(1)
		2	18-47(b)(3)
137-94	7-7-94	1 Rpld	21-5(2)(220.050)
		2 Added	21-5(2) (220.045,540.135, 540.175)
		3 Amd	21-5(2) (340.160,340.220, 540.140,540.220)
141-94	7-14-94	1 Rpld	21-5(2)(550.050)
		2 Amd	21-5(2)(550.015)
147-94	7-14-94	1	4-11.1
149-94	8-18-94	1	5-65
150-94	8-18-94	1	22-5(2)(650.100)
		2 Added	22-5(2)(610.070)
163-94	8-25-94	1	21-5(2)(730.140)
		2 Added	21-5(2)(730.085)
		3	21-5(2)(630.020)
		4 Added	21-5(2)(760.245)
		5	21-5(2)(550.090,550.110)
164-94	8-25-94	1	2-172
165-94	8-25-94	1	14-10(f)
166-94	8-25-94	1	18-123
167-94	8-25-94	1 Rpld	22-5(2)(550.020,710.030)
		2 Added	21-5(2)(550.120)
		3	21-5(2)(710.040)
		4 Rpld	21-5(2)(530.010,530.050)

Ord./Res. Number	Adoption Date	Section	Section this Code
168-94	8-25-94	1 Added	22-5(2)(164.050)
		2	22-5(2)(740.020)
173-94	8-25-94	1	22-5(2)(169.020)
174-94	8-25-94	1	2-362(b)
		2	2-364
175-94	9-8-94	1	4-11.1(note)
182-94	9-22-94	1 Added	22-5(2)(030.046)
		2	22-5(2)(650.020)
		3 Added	22-5(2)(650.015)
191-94	9-22-94	1	21-5(2)(360.055,360.060)
193-94	9-22-94	1	23-18(b)(3)
		2	23-18(d)
199-94	10-6-94	1	2-31
		2	2-32
200-94	10-6-94	1 Added	21-11(b)(3)
207-94	10-20-94	1	13-65
209-94	10-20-94	1	21-5(2)(840.085,840.110)
212-94	10-20-94	1 Added	21-52
		2 Added	22-34
		3 Added	23-50
214-94	11-3-94	3 Rpld	21-5(2)(630.020)
		4 Added	21-5(2)(620.053)
		5 Rpld	22-5(2)(630.010)
		6 Added	22-5(2)(620.030)
215-94	11-3-94	1 Added	23-35(e)
220-94	11-3-94	1	21-5(2)(550.061)
224-94	11-17-94	1 Added	14-83
225-94	11-17-94	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(2)(460.010,460.020, 460.030,460.040, 460.050)
		3	22-5(2)(450.010)
		4	21-5(2)
		5	21-5(2)(540.190)
227-94	11-17-94	1	21-5(2)(460.100)
		2	21-5(2)(460.090)
		4	21-5(2)(540.130,540.160, 540.190,540.250)
228-94	11-17-94	1 Rpld	21-5(2)(350.091)
		2 Added	21-5(2)(350.015,350.025)
		3 Added	21-5(2)(350.050,350.053)
		4	21-5(2)(350.093,350.115)
229-94	11-17-94	1	21-25
		2	22-5(2)(030.18,110.10, 210.10,310.10, 310.15,410.10, 450.10,510.10, 610.10,710.10, 810.01)
		3	22-53(2)
		4	23-28(b)
231-94	11-17-94	1	21-5(2)(250.020,250.040)
234-94	11-1-94	1 Rpld	2-311—2-314
235-94	12-1-94	1	7-16
240-94	12-8-94	1	5-57
		2	5-57(note)
241-94	12-8-94	1	5-61
248-94	12-8-94	1 Added	2-23
255-94	12-13-94	1 Added	25-1—25-30
258-94	12-13-94	1	21-5(2)(540.120,540.150)
259-94	12-13-94	1	21-5(2)(590.080)
263-94	12-13-94	1	21-5(2)(550.070)
		2	23-5(b)(550.100)
1-95	1-12-95	1 Added	16-12

Ord./Res. Number	Adoption Date	Section	Section this Code
4-95	1-12-95	1 Rpld	23-5(b)(570.20)
		2	23-5(b)(570.60)
		3	23-17
9-95	1-26-95	1	21-5(2)(350.115)
		2 Added	21-5(2)(350.165)
11-95	1-26-95	1	2-23(7)(a)
13-95	1-26-95	1	22-5(2)(310.10)
16-95	1-26-95	1	23-5(b)(550.40),(550.50)
17-95	1-26-95	1	23-5(b)(550.80)
21-95	2-9-95	1 Rpld	2-116—2-119
22-95	2-9-95	1 Rpld	21-5(2)(320.65)
		2 Added	21-5(2)(320.60),(350.70)
		3	21-5(2)(350.101),(460.30),(460.40)
26-95	2-9-95	1 Rpld	21-5(2)(310.40)
		2	21-5(2)(310.30)
36-95	2-23-95	1	21-5(2)(550.70)
		2	23-5(b)(550.100)
37-95	2-23-95	1 Added	7-17
40-95	2-23-95	1	2-350(b)
41-95	2-23-95	1	21-5(2)(550.62),(550.100)
		3 Rpld	21-5(2)(250.30),(250.50)
		4	21-5(2)(250.20),(250.40), (250.55)
44-95	3-9-95	1 Rpld	21-5(2)(730.110)
		2	21-5(2)(730.100)
49-95	3-9-95	1	21-5(2)(540.190)
		2	22-5(2)(740.20)
50-95	3-9-95	1	21-5(2)(640.100)
		2 Rpld	22-5(2)(640.60)

Ord./Res. Number	Adoption Date	Section	Section this Code
		3 Added	22-5(2)(640.50)
52-95	3-9-95	5 Added	21-5(2)(260.5)
56-95	3-23-95	1 Added	12-1(b)(PM-108.2)
		Amd	12-1(b)(PM-109.5),(PM-110.3)
57-95	3-23-95	1 Added	13-63
59-95	3-23-95	1	21-6(a)
60-95	3-23-95	1	23-18(b)(2)
61-95	4-6-95	1 Added	21-5(2)(640.75)
		2	21-5(2)(460.20),(460.30), (640.80)
64-95	4-6-95	1 Added	12-3
		2	12-1(PM-111.2),(PM-111.2.1)
66-95	4-6-95	1 Rpld	14-37, 14-38
		Added	14-37
71-95	4-6-95	2 Rpld	21-5(2)(540.50),(540.90), (540.120),(540.130), (540.140),(540.160)
		3 Added	21-5(2)(540.31),(540.32), (540.38),(540.39), (540.98),(540.99)
		4	23-5(b)(550.100),(550.110)
		6	23-28(b)
		7	23-29(b)
75-95	4-27-95	1	25-20(2)
76-95	4-27-95	1	14-62(a)
81-95	4-27-95	2	21-5(2)(350.10),(350.20)
87-95	5-4-95	1 Rpld	21-5(2)(540.32),(540.33), (540.38),(540.40), (540.70),(540.98), (540.200),(540.250), (540.280)
		2 Added	21-5(2)(540.34)
		3	21-5(2)(540.20),(540.30), (540.31),(540.39), (540.99),(540.145), (540.190),(540.210)
88-95	5-4-95	1 Rpld	21-5(2)(540.60)
		2	21-5(2)(460.30)

Ord./Res. Number	Adoption Date	Section	Section this Code
89-95	5-4-95	1	21-5(2)(350.115),(350.165)
90-95	5-4-95	1	21-10(c)
		2	22-10
		3	23-18(b)(2)(iii)a.3
		4	23-18(b)(2)(iii)b.4
91-95	5-4-95	1	23-18(c)
		2	23-18(d)
		3	23-18(g)
98-95	5-4-95	1	22-54(2)(a)
102-95	5-18-95	1	21-5(2)(640.120)
		2	23-5(b)(550.80)
104-95	5-18-95	1	5-29
119-95	6-1-95	1	2-1(a)
122-95	6-15-95	1 Rpld	21-5(2)(330.20),(350.15), (350.45),(740.20)
		2 Added	21-5(2)(330.15),(740.15)
		3	21-5(2)(350.20),(350.25), (350.35)
123-95	6-15-95	1	22-5(2)(30.25)
		2 Added	22-5(2)(30.23)
138-95	6-20-95	2	16-16
		3 Added	16-16.1
		4 Added	16-16.2
		5 Added	16-16.3
144-95	6-29-95	1 Rpld	21-5(2)(540.50),(540.90), (540.120),(540.130), (540.150),(540.160)
145-95	6-29-95	1 Rpld	21-5(2)(740.40)
		2	21-5(2)(740.95)
		3 Addedv	21-5(2)(820.37), (820.50)
146-95	6-29-95	1	21-5(2)(590.30),(590.40), (590.50),(590.60)
148-95	6-29-95	1 Rpld	21-5(2)(260.40)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2 Added	21-5(2)(260.26)
		3	22-5(2)(740.20)
		4	23-5(b)(550.100)
149-95	6-29-95	1 Rpld	21-5(2)(220.60)
		2 Added	21-5(2)(220.50)
		4	22-5(2)(850.10)
		5	21-5(2)(850.90)
152-95	6-29-95	1	21-25
		2	22-5(2)(30.18),(30.23), (110.10),(164.10), (169.10),(210.10), (310.10),(310.15), (410.10),(450.10), (510.10),(610.10), (710.10),(710.20), (810.01)
		3	22-53(2)
		4	23-28(b)
154-95	7-6-95	1 Rpld	21-5(2)(570.15),(570.25), (760.235)
		2 Added	21-5(2)(570.16),(570.18), (760.170)
155-95	7-6-95	1 Rpld	22-5(2)(810.10)
		2 Added	21-5(2)(810.15)
156-95	7-6-95	1 Rpld	21-5(2)(730.23)
		2 Added	21-5(2)(730.12)
157-95	7-6-95	2	23-28(b)
159-95	7-6-95	1 Rpld	21-5(2)(550.22),(550.23), (550.60),(550.90), (570.35),(570.40)
		2 Added	21-5(2)(550.13),(550.17), (550.35),(550.40), (570.19),(570.36)
160-95	7-6-95	1	22-5(2)(169.20)
		2	21-5(2)(250.40),(250.55)
		3 Added	21-5(2)(250.30)
161-95	7-6-95	1 Rpld	22-5(2)(30.85),(30.90)
		2	22-5(2)(30.55),(30.70)
		3 Added	22-5(2)(30.60)
166-95	7-13-95	1 Added	22-5(2)(410.15)

Ord./Res. Number	Adoption Date	Section	Section this Code
167-95	7-13-95	1 Added	7-5.1
168-95	7-13-95	1 Rpld	21-5(2)(350.160)
		2 Added	21-5(2)(350.120)
		3	21-5(2)(320.55), (320.70),(350.145)
169-95	7-13-95	1 Added	21-5(2)(640.60)
		2	21-5(2)(640.80)
		3	21-5(2)(550.70)
		4	23-5(b)(550.100)
175-95	7-13-95	1	21-5(2)(340.240),(340.244)
178-95	8-24-95	1	5-29.1
179-95	8-24-95	1, 2	21-5(2)
182-95	8-31-95	1	13-4
188-95	8-31-95	1	16-16.1
		2	16-16.2(a)
189-95	8-31-95	1, 2, 4	21-5(2)
190-95	8-31-95	1, 2	21-5(2)
		3	23-5(b)
195-95	9-7-95	1—3	22-5(2)
196-95	9-7-95	1—3, 6—8	21-5(2)
198-95	9-7-95	1	17-8
		2	17-10
		3	17-15
		4	17-21
		5	17-22
		6	17-26
		7	17-39
		8	17-127
		9	12-137

Ord./Res. Number	Adoption Date	Section	Section this Code
		10	17-139
		11	17-142
199-95	9-7-95	1—3	21-5(2)
201-95	9-7-95	1	16-15
208-95	9-21-95	1—4	21-5(2)
209-95	9-21-95	1	22-5(2)
210-95	9-21-95	1	23-35(a), (b)
212-95	9-21-95	1 Added	16-16.3
		Rnbd	16-16.3
		as	16-16.4
219-95	10-5-95	1—3, 5	21-5(2)
220-95	10-5-95	1, 2	23-5(b)
222-95	10-19-95	1	22-5(2)
230-95	10-19-95	1	5-67(2)
231-95	10-19-95	1, 2	21-5(2)
237-95	11-2-95	1, 2	22-5(2)
242-95	11-2-95	1	21-5(2)
244-95	11-2-95	1	14-94
245-95	11-2-95	1	21-5(2)
250-95	11-16-95	1, 2	21-5(2)
251-95	11-16-95	1	21-5(2)
266-95	11-30-95	1	21-5(2)
267-95	11-30-95	1	23-38(b)
		2	23-29
268-95	11-30-95	1 Dltd	16-1(c)(1)-(5)
		Dltd	16-29—16-34
		Dltd	16-34.2
		1, 2 Added	12-4—12-8.2

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	16-1
		4	16-34.1
		5	16-35
		6	14-10(f)
269-95	11-30-95	2	21-52(b)
		3	22-34(b)
		4	23-50(b)
270-95	12-7-95	1	4-14(b)
282-95	12-7-95	1	4-12.1
291-95	12-7-95	1	3-9.2(2)
293-95	12-7-95	1	21-5(2)
		2	23-5(2)
296-95	12-14-95	1, 2	21-5(2)
298-95	12-14-95	2	21-5(2)
299-95	12-14-95	1, 2	21-5(2)
1-96	1-11-96	1 Added	14-13
2-96	1-11-96	1 Added	16-16.2(f)
3-96	1-11-96	1	17-2
		2 Added	17-2.1
		3	17-3
		4	17-4
4-96	1-11-96	1 Rpld	12-1(PM-304.2—304.2.13)
		2	14-10(f)(2), (6)
14-96	1-25-96	1, 2	21-5
15-96	1-25-96	1, 2	21-5(2)
		4	23-5(b)
19-96	2-8-96	1, 2	21-5(2)
20-96	2-8-96	1, 2	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
22-96	2-8-96	1, 2	21-5(2)
24-96	2-8-96	1, 2	21-5(2)
26-96	2-22-96	1	12-1
27-96	2-22-96	1	12-3
		2	12-1
31-96	2-22-96	1—3, 5	21-5(2)
		7, 8	22-5(2)
36-96	3-7-96	1—3, 5—7	21-5(2)
42-96	3-26-96	1, 2, 4, 5, 7	21-5(2)
43-96	3-26-96	1	22-5(2)
48-96	4-4-96	1	2-387—2-390
49-96	4-4-96	1	25-17(2)(e)
51-96	4-4-96	1	2-391—2-395
54-96	4-4-96	1, 2	21-5(2)
55-96	4-18-96	1	13-67(a)
57-96	4-18-96	2	21-5(2)
61-96	5-2-96	1	21-5(2)
63-96	5-2-96	1	6-56(a)
64-96	5-2-96	1	14-38
		2	13-13
65-96	5-2-96	1	23-21(e)
68-96	5-2-96	1—3	22-5(2)
		4	21-5(2)
73-96	5-16-96	1	17-2.1
		2	17-3
74-96	5-16-96	1—3	22-5(2)
89-96	5-30-96	2	21-52(b)
		3	22-34(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	23-50(b)
90-96	5-30-96	1	23-20
		2	23-30(b)(4)a
95-96	6-13-96	1	23-5(b)
97-96	6-13-96	1 Added	22-53.2
		2	22-53
		3 Added	22-53.1
		4	22-6
		5	23-6
		6	23-13(a), (c)
		7	23-16
		8	23-18
101-96	6-27-96	1	2-172(c)
102-96	6-27-96	1, 2	21-5(2)
115-96	6-27-96	1 Added	17-29
		2 Added	17-29.1
		3 Added	17-29.2
		4 Added	17-29.3
		5 Added	17-29.4
		6 Added	17-29.5
116-96	6-27-96	1 Added	21-1(7)
		Rnbd	21-1(7) as (8)
		2	21-5(2)
		3	21-15(a)
		4	21-16(b)
		5	21-23((d), (e)
		6	21-25
		7	21-26(a)

Ord./Res. Number	Adoption Date	Section	Section this Code
		8	21-26.1
		9 Added	21-27(c)
		10	21-29
		11	21-30
		12	21-31
		13	21-36(c)
		14 Added	22-1(6)
		Rnbd	22-1(6) as (7)
		15	22-5(2)
		16	22-20(4), (5)
		17	22-22
		18	22-23
		19	22-26
		20	22-27
		21 Added	23-1(8)
		Rnbd	23-1(8)—(11) as (9)—(12)
		22	23-5(b)
		23	23-26(d), (e)
		24	23-28
		25	23-29
		26	23-30(b)
		27 Added	23-31(8)
		28	23-32
		29	23-33
		30 Rpld	21-29.1—21-29.3,22-33, 23-36
121-96	6-27-96	1 Rpld	18-76
122-96	6-27-96	2	22-5(2)
		3, 4	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
123-96	6-27-96	1—3	21-5(2)
		4—6	22-5(2)
124-96	7-11-96	1 Added	14-19.4
125-96	7-11-96	1	21-5(2)
126-96	7-11-96	1	21-32(e), (f)
135-96	7-18-96	1	21-11(a)
		2	21-12(b), (d)
		3	21-13(a), (c)—(e)
		4	21-14(b)
		5	21-15(c)
137-96	7-18-96	1	21-5(2)
144-96	7-18-96	1	22-5(2)
145-96	7-18-96	1	21-5(2)
146-96	7-18-96	1	21-5(2)
147-96	7-18-96	2 Added	21-27(c)
148-96	7-18-96	1—3	21-5(2)
151-96	8-22-96	1	22-5(2)
		2	22-5(2)
152-96	8-22-96	1	23-6(a)
		2	23-18(a)
		3	23-18(b)(1)
		4	23-18(b)(4)
		5	23-18(b)(3)
		6	23-18(c)
162-96	8-29-96	1	21-5(2)
168-96	8-29-96	1	22-53
169-96	8-29-96	1	23-5(b)
174-96	9-5-96	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(2)
		3	21-5(2)
175-96	9-5-96	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
		4	22-5(2)
		5	22-5(2)
		6	23-5(b)
177-96	9-5-96	1	21-5(2)
179-96	9-19-96	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
		4	22-5(2)
189-96	10-3-96	1	22-5(2)
198-96	10-3-96	1 Added	16-61.1
199-96	10-3-96	1	5-29.1
203-96	10-17-96	1	21-5(2)
218-96	10-31-96	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
219-96	10-31-96	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
220-96	10-31-96	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
		4	22-5(2)
		5	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
221-96	11-14-96	1	17-148
		2	17-152
		3	17-163—17-165
		4	14-10(f)(6)
225-96	11-14-96	1	22-5(2)
229-96	11-21-96	1	21-5(2)
		2	22-5(2)
233-96	11-21-96	1	4-12.3(a)
		2	4-12.3(d)
		3 Rpld	4-12.3(f)
		4 Rnbd	4-12.3(g) as (f)
		Amd	4-12.3(f)
		5	4-21
234-96	11-21-96	1	21-5(2)
		2	23-5(b)
235-96	11-21-96	1	6-56(a)
245-96	12-12-96	1 Added	13-76—13-82
248-96	12-12-96	1	5-20
		2	5-24
		3	5-27
254-96	12-12-96	1	21-5(2)
260-96	12-12-96	1	21-5(2)
		2	22-5(2)
		3	22-5(2)
2-97	1-9-97	1 Added	23-17(d)
4-97	1-23-97	1, 2	21-5(2)
9-97	1-23-97	1	Ord. 218-96
		2	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	21-5(2)
		4	21-5(2)
		5	22-5(2)
		6	22-5(2)
10-97	1-23-97	1, 3—5	21-5(2)
13-97	1-23-97	1	22-5(2)
16-97	2-6-97	1	23-5(b)
		2	21-5(2)
20-97	2-20-97	1, 2	21-5(2)
21-97	2-20-97	1, 2	21-5(2)
23-97	2-20-97	1	21-5(2)
		2	23-5(b)
		3	22-53.2(2)
24-97	2-20-97	1	23-5(b)
34-97	3-6-97	1, 2	21-5(2)
		4	22-5(2)
35-97	3-6-97	1, 2	22-5(2)
36-97	3-6-97	1, 2	21-5(2)
39-97	3-20-97	1—4	21-5(2)
43-97	3-20-97	1	16-1(a)(8)—(15)
		2 Added	16-1(a)(16), (17)
		3	16-3(a), (b)
		4	16-16.1
44-97	3-20-97	1	16-16.2
45-97	3-20-97	1	21-5(2)
46-97	3-20-97	1	22-5(2)
52-97	4-3-97	1	16-58
53-97	4-3-97	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	22-5(2)
54-97	4-3-97	1	21-5(2)
56-97	4-3-97	1	14-13
		2—4 Added	14-13.1—14-13.3
		5	13-13
57-97	4-3-97	1	21-5(2)
58-97	4-3-97	1—5	21-5(2)
59-97	4-3-97	1	22-5(2)
68-97	4-17-97	1	21-5(2)
73-97	5-1-97	1	22-5(2)
		2	22-5(2)
79-97	5-29-97	1 Rnbd	3-25
		as	3-26
		2 Added	3-25
		3	3-26
80-97	5-29-97	1, 2	21-5(2)
		3, 4	22-5(2)
83-97	5-29-97	1	12-7
		2	12-8.2
		3 Added	12-8.3
		4—7 Added	12-13—12-16
84-97	5-29-97	1	21-5(2)
85-97	5-29-97	1, 2	22-5(2)
89-97	6-3-97	1 Rpld	13-76—13-82
93-97	6-12-97	1	21-5(2)
		2	22-5(2)
94-97	6-12-97	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
95-97	6-12-97	1, 2	22-5
		3	22-43(2)
96-97	6-12-97	1	22-5(2)
105-97	6-12-97	1	21-5(2)
		3	22-5(2)
110-97	6-12-97	1, 2	21-5(2)
		3	22-5(2)
		4	23-5(b)
112-97	6-12-97	1	22-5(2)
		2	22-40(2)
125-97	6-26-97	1	21-5(2)
		2	22-5(2)
127-97	6-26-97	1	12-1
128-97	6-26-97	1	21-5(2)
133-97	6-26-97	1	22-5(2)
137-97	6-26-97	1	21-5(2)
138-97	6-26-97	1	21-34(b)
		2	21-34(g)
139-97	6-26-97	1 Added	21-37.2
		2	23-34(5)
140-97	7-1-97	1	21-5(2)
		2	22-5(2)
141-97	7-1-97	1—4	21-5(2)
148-97	7-10-97	1	21-5(2)
150-97	7-10-97	1	21-5(2)
		3, 4	22-5(2)
151-97	7-10-97	1, 2	21-5(2)
152-97	7-10-97	1—4	14-13—14-13.3

Ord./Res. Number	Adoption Date	Section	Section this Code
		5 Added	14-13.4
156-97	7-10-97	1	21-5(2)
		2	23-5(b)
157-97	7-10-97	1	21-5(2)
173-97	8-28-97	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
174-97	8-28-97	1	21-5(2)
176-97	9-4-97	1	22-5(2)
184-97	9-18-97	1	21-5(2)
		2	21-5(2)
		3	22-5(2)
		4	22-5(2)
185-97	9-18-97	1	21-5(2)
		2	21-5(2)
186-97	9-18-97	1	22-5(2)
		2	22-5(2)
		3	21-5(2)
192-97	10-2-97	1	21-5(2)
		2	21-5(2)
193-97	10-2-97	1	22-5(2)
		2	22-5(2)
		3	22-5(2)
200-97	10-2-97	1	21-5(2)
		2	21-5(2)
201-97	10-2-97	1	21-5(2)
		2	22-5(2)
205-97	10-16-97	1	14-85

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	14-86
		3	14-87
		4 Added	14-87.1
		5	14-89
		6	14-90
		7	14-91
		8	14-92
		9	14-93
		10 Added	14-94
		11 Added	14-94.1
		12 Added	14-94.2
		13 Rnbd	14-94 as 14-95
		14	13-13
209-97	10-16-97	1	12-1.2
215-97	10-16-97	1	22-5(2)
219-97	10-30-97	1	21-5(2)
		2	21-5(2)
225-97	10-30-97	1	13-1
		2	13-2
		3	13-6
		4 Added	13-7.1
229-97	11-13-97	1 Added	21-27(d)
235-97	11-13-97	1	23-5(b)
239-97	11-20-97	1	21-5(2)
241-97	11-20-97	1	14-13
		2	14-13.1
		3	14-13.2
		4	14-13.3

Ord./Res. Number	Adoption Date	Section	Section this Code
246-97	11-20-97	1 Added	3-21.1
		2	3-22(a)
247-97	12-4-97	1	3-25
248-97	12-4-97	1	21-5(2)
		2	21-5(2)
252-97	12-11-97	1	18-124
253-97	12-11-97	1 Added	22-55.1
262-97	12-11-97	1	6-65
263-97	12-11-97	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
264-97	12-11-97	1	21-5(2)
		2	23-5(b)
265-97	12-11-97	1	21-5(2)
		2	21-5(2)
266-97	12-11-97	1	21-5(2)
267-97	12-11-97	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
268-97	12-11-97	1	22-5(2)
274-97	12-11-97	1	21-5(2)
		2	22-5(2)
		3	22-5(2)
9-98	1-8-98	1	21-5(2)
		2	22-5(2)
10-98	1-8-98	1	22-5(2)
19-98	1-22-98	1	6-69.3(d)
20-98	1-22-98	1	17-162(a)

Ord./Res. Number	Adoption Date	Section	Section this Code
21-98	1-22-98	1	21-32(g)
24-98	1-22-98	1	21-5
		2	21-5(2)
		3	23-5(b)
28-98	1-22-98	1	21-5
31-98	2-10-98	1	21-5(2)
32-98	2-10-98	1	22-5(2)
35-98	2-10-98	1	21-5(2)
41-98	2-19-98	1	23-5(b)
		2	21-5(2)
43-98	2-19-98	1	25-5(4)
44-98	2-19-98	1	13-65
45-98	2-19-98	1	14-63
46-98	2-19-98	1	21-5(2)
52-98	3-5-98	1	21-5(2)
		2	21-5(2)
60-98	3-5-98	1	21-15(a)
		2	21-16(b)
		3	21-26.1(a)
		4	21-30(a)
		5	22-27
62-98	3-19-98	1	12-1(b)
67-98	3-19-98	1	21-5(2)
		2	21-5(2)
		4	21-5(2)
68-98	3-19-98	1	21-5(2)
69-98	3-19-98	1	23-35(d)
70-98	3-19-98	1	16-16.3(a)(4)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	16-16.3(b)
73-98	3-19-98	1	13-65
74-98	3-19-98	1	21-5(2)
		2	21-5(2)
75-98	3-19-98	1	22-5(2)
76-98	3-19-98	1	22-5(2)
85-98	4-2-98	1	21-5(2)
89-98	4-16-98	1	18-129
94-98	4-16-98	1	22-5(2)
		2	22-5(2)
95-98	4-16-98	1	22-5(2)
		2	22-5(2)
		3	21-5(2)
		4	21-5(2)
96-98	4-16-98	1	22-5(2)
		2	21-5(2)
104-98	4-30-98	1	21-5(2)
		2	21-5(2)
		3	21-5(2)
		4	22-5(2)
105-98	4-30-98	1	22-5(2)
106-98	4-30-98	1	23-5(b)
112-98	4-30-98	5	21-5(2)
		6	22-5(2)
		7	21-5(2)
		8	22-5(2)
		9	21-5(2)
113-98	4-30-98	1	22-55.1

Ord./Res. Number	Adoption Date	Section	Section this Code
121-98	5-7-98	1	21-5(2)
		2	21-5(2)
123-98	5-7-98	1—3	21-5(2)
126-98	5-7-98	1	21-5(2)
127-98	5-7-98	1	23-20(b)
		2	23-21(e)
133-98	5-28-98	1	21-5(2)
		2	21-5(2)
		3	22-5(2)
134-98	5-28-98	1, 2	21-5(2)
145-98	5-28-98	1	21-5(2)
151-98	6-11-98	1, 2	21-5(2)
		3	22-5(2)
		4	21-5(2)
152-98	6-11-98	1	21-32(a)
160-98	6-11-98	1	22-5(2)
		2	21-5(2)
161-98	6-25-98	1	2-23(6)(d)
162-98	6-25-98	1—3	22-5(2)
166-98	6-25-98	1	16-15(h)
168-98	6-25-98	1, 2	21-5(2)
178-98	6-25-98	1	4-11.1
190-98	7-2-98	1 Added	2A-3
191-98	7-2-98	1	21-25
		2	22-22
		3	23-28
195-98	7-2-98	1	21-5(2)
196-98	7-2-98	12	16-1(a)(2)16-1(a)(8)—(17)

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	16-1(a)(18)
197-98	7-2-98	1—3	22-5(2)
198-98	7-9-98	1, 2	21-5(2)
200-98	7-9-98	1	22-5(2)
201-98	7-9-98	1	21-5(2)
202-98	7-9-98	1	21-5(2)
207-98	7-9-98	1	22-5(2)
		2, 3	21-5(2)
208-98	7-9-98	1	21-5(2)
		2	23-5(b)
209-98	7-9-98	2	22-53.2
212-98	7-14-98	1	13-13(b)
		2—12 Added	15-10—15-10.10
215-98	7-14-98	1	22-5(2)
216-98	7-14-98	2, 3	22-5(2)
228-98	8-27-98	1 Added	7-17(d)
229-98	8-27-98	1	21-5(2)
230-98	8-27-98	2	21-5(2)
231-98	8-27-98	1	21-5(2)
232-98	8-27-98	2	21-5(a)
233-98	8-27-98	2	3-26
245-98	9-3-98	1	18-1(35)
246-98	9-3-98	1	21-5(2)
247-98	9-3-98	1	22-5(2)
253-98	9-17-98	1	22-5(2)
265-98	10-1-98	1	21-5(2)
266-98	10-1-98	1	21-5(2)
268-98	10-1-98	2	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
269-98	10-1-98	1 Added	2-396—2-402
279-98	10-15-98	1	15-10.1
285-98	10-15-98	1	21-5(2)
		2	22-5(2)
288-98	10-15-98	2	21-5(2)
		4	22-5(2)
289-98	10-15-98	1	23-5(b)
304-98	10-29-98	1	14-89
		2	14-93(5)
		3	18-112(c)
305-98	10-29-98	1—3	21-5(2)
		4—6	22-5(2)
311-98	11-12-98	1—5	21-5(2)
314-98	11-12-98	1	5-76
318-98	11-19-98	1, 2	18-66, 18-67
		3	18-70
319-98	11-19-98	1—3	21-5(2)
320-98	11-19-98	1, 2	21-5(2)
322-98	11-19-98	1, 2	21-5(2)
		4, 5	22-5(2)
326-98	12-3-98	1	7-10
327-98	12-3-98	2	21-5(2)
332-98	12-10-98	2 Added	12-60—12-70
333-98	12-10-98	1	21-5(2)
334-98	12-10-98	1	22-5(2)
335-98	12-10-98	1	12-3
346-98	12-10-98	1	22-5(2)
357-98	12-10-98	1, 2	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
10-99	1-28-99	1	4-2—4-8
		2	4-9
11-99	1-28-99	1	6-64
12-99	1-28-99	1	13-63
13-99	1-28-99	1	14-10(6)
14-99	1-28-99	1, 2	16-1(a)(8)—(a)(18)
		3	16-3(a)
		4	16-4.1
		5, 6	16-5, 16-6
		7	16-8(b), (c)
		8, 9	16-9, 16-10
		10	16-11(a), (b)
		11	16-14
		12	16-16.4
15-99	1-28-99	1, 2	22-5(2)
		3	21-5(2)
16-99	1-28-99	1	23-16(b)
		2	23-20
		3 Added	23-20(j)
		4	23-21(c)(3)
22-99	1-28-99	1	21-5(2)
		2	23-5(b)
23-99	1-28-99	1, 3	21-5(2)
24-99	2-11-99	1 Added	22-52.1
28-99	2-11-99	1, 2	21-5(2)
29-99	2-11-99	1	21-5(2)
		2	23-5(b)
31-99	2-25-99	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
32-99	2-25-99	1—3	21-5(2)
38-99	2-25-99	1	21-5(2)
47-99	3-2-99	1	14-13(a)
		2	14-13.1(a)
		3—5	14-13.2—14-13.4
52-99	3-11-99	1	21-5(2)
53-99	3-11-99	1	21-5(2)
55-99	3-11-99	1, 2	22-5(2)
56-99	3-11-99	1	22-53(b)
58-99	3-25-99	1	5-73
59-99	3-25-99	1—3	21-5(2)
60-99	3-25-99	1	21-5(2)
61-99	3-25-99	1	21-5(2)
62-99	3-25-99	1	22-5(2)
63-99	3-25-99	1	22-49
		2, 3	22-5(2)
64-99	3-25-99	1	25-19(5)
67-99	3-25-99	2	22-5(2)
71-99	3-25-99	1	21-5(2)
73-99	3-25-99	1	25-20(4), (9)
		2	25-25(6), (7)
74-99	3-25-99	1, 2	21-5(2)
75-99	4-15-99	1	21-29(a)
		2	22-26(1)
		3	23-32(a)
76-99	4-15-99	1, 2, 4	21-5(2)
77-99	4-15-99	1, 2 Added	4-12.4, 4-12.5
		3	14-10(f)(4)

Ord./Res. Number	Adoption Date	Section	Section this Code
78-99	4-15-99	1	14-87.1
82-99	4-15-99	1	21-5(2)
95-99	4-22-99	1	22-5(2)
99-99	4-22-99	1	7-25(c)
		2	7-27(1), (2)
		3	7-28(1), (2), (6), (7), (8)
100-99	4-22-99	1	21-5(2)
		2	22-5(2)
101-99	4-22-99	1	21-5(2)
117-99	4-22-99	1	14-22.1
118-99	4-22-99	1	21-5(2)
119-99	4-22-99	1	22-54(2)(a)
123-99	5-6-99	1, 2	22-5(2)
		4	21-5(2)
125-99	5-6-99	1	21-5(2)
128-99	5-11-99	1	21-5(2)
129-99	5-11-99	1	21-26
		2	21-5(2)
130-99	5-11-99	1—3	21-5(2)
		4	22-5(2)
134-99	5-11-99	1	21-5(2)
147-99	6-17-99	1	2-346
		2	2-347
		3	2-349
148-99	6-17-99	1	14-2
149-99	6-17-99	1	21-5(2)
		2	22-5(2)
150-99	6-17-99	1—3	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
169-99	6-22-99	1	16-43(7)
170-99	6-22-99	1	21-5(2)
171-99	6-22-99	1	21-25
		2	22-22
		3	23-28
		4	22-53(2)
172-99	6-22-99	1	22-5(2)
173-99	6-22-99	1 Added	23-36
175-99	6-29-99	1	13-1
183-99	7-1-99	1	21-5(2)
		2	22-5(2)
185-99	7-8-99	1	17-147
		2	17-148
		3	17-152
198-99	7-8-99	1 Added	6-69.5
		2 Added	23-36.5
199-99	7-8-99	1	21-5(2)
		2	23-5(b)
201-99	7-8-99	1 Added	2-33
214-99	7-8-99	1—3	21-5(2)
		5—8	22-5(2)
217-99	8-19-99	1 Added	6-69.6
		2 Added	23-36.6
218-99	8-19-99	1—3,	21-5(2)
		6, 7	
238-99	8-26-99	1, 2	13-6(d), (e)
239-99	8-26-99	1—3	21-5(2)
		4	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
240-99	8-26-99	1	21-5(2)
241-99	8-26-99	1	21-5(2)
		2	23-5(2)
242-99	8-26-99	1	21-5(2)
243-99	8-26-99	1	21-5(2)
244-99	8-26-99	1	22-5(2)
245-99	8-26-99	1	22-5(2)
466-99 (Res.)	9-9-99	1	App A., § 4.104
258-99	9-9-99	1	21-5(2)
259-99	9-9-99	1	21-5(2)
260-99	9-23-99	1	14-13(a)(11)—(23)
		2	14-13.5
		3	14-13.6
		4	14-13.7
		5	13-13(b)
261-99	9-23-99	1	21-5(2)
262-99	9-23-99	1	21-5(2)
267-99	9-23-99	2	22-5(2)
268-99	9-23-99	1	21-5(2)
273-99	9-23-99	1	6-65(b)
275-99	9-23-99	2 Added	1-12
283-99	10-7-99	1	21-5(2)
284-99	10-7-99	1	23-5(b)
286-99	10-21-99	1, 2	21-5(2)
		4	22-5(2)
287-99	10-21-99	1	23-5(b)
289-99	10-21-99	1 Added	2-421—2-427
298-99	10-21-99	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	23-5(b)
304-99	11-4-99	1, 2	22-5(2)
305-99	11-4-99	1, 2	22-5(2)
		3	22-23(3)
311-99	11-4-99	1	13-1(31)
		2	13-1(40), (41)
		3	13-1(42)
		4	13-67(a), (b)
		5	13-69
		6	13-52
312-99	11-4-99	1	21-5(2)
		2	22-5(2)
320-99	11-18-99	1, 2	12-4(c), (d)
321-99	11-18-99	1, 2	21-5(2)
331-99	12-7-99	1, 2	21-5(2)
332-99	12-7-99	1	21-5(2)
333-99	12-7-99	2, 3	2-10, 2-10.1
		4	2-363(b)
		5	21-6(d)
		6	21-11(b)(3)
		7	21-27(c)
		8—10	21-5(2)
		12	21-5(2)
		13	21-5(2), 22-5(2)
334-99	12-7-99	1, 2	22-5(2)
339-99	12-7-99	1—4	12-1—12-1.3
		5	12-5
		6	12-6(c)

Ord./Res. Number	Adoption Date	Section	Section this Code
		7	12-6.1
		8—12	12-7—12-8.3
		13	12-10
		14	12-13(a)
		15	12-14(a)
		16 Rpld	12-9, 12-11, 12-12
340-99	12-7-99	1—3	21-5(2)
341-99	12-7-99	1—3	22-5(2)
350-99	12-9-99	1, 2	18-30, 18-31
351-99	12-9-99	1, 2	21-5(2)
		4	22-5(2)
352-99	12-9-99	1—3	21-5(2)
		10	22-5(2)
353-99	12-9-99	1	22-5(2)
4-2000	1-13-00	1 Added	26-1—26-19
8-2000	1-27-00	1, 2	21-5(2)
9-2000	1-27-00	1	21-5(2)
		2	22-5(2)
10-2000	1-27-00	1, 2	21-5(2)
11-2000	1-27-00	1	21-5(2)
12-2000	1-27-00	1	21-5(2)
13-2000	1-27-00	1	21-5(2)
14-2000	1-27-00	1	21-5(2)
15-2000	1-27-00	1	21-5(2)
16-2000	1-27-00	1, 2	22-5(2)
17-2000	1-27-00	1	22-5(2)
18-2000	1-27-00	1, 2	22-5(2)
		1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
24-2000	1-27-00	1	23-5(b)
25-2000	1-27-00	1 Added	25-5.1
		2	25-7
		3	25-20
27-2000	1-27-00	1	23-5(b)
28-2000	2-10-00	1 Added	12-71—12-76
29-2000	2-10-00	1, 2	21-5(2)
35-2000	2-10-00	1 Added	5-85—5-103
36-2000	2-10-00	1	21-5(2)
41-2000	2-24-00	1—3	21-5(2)
42-2000	2-24-00	1	21-5(2)
		2, 3	23-5(b)
43-2000	2-24-00	1, 2	21-5(2)
		3	22-5(b)
49-2000	2-24-00	1	21-5(2)
		2	23-5(b)
52-2000	3-9-00	1, 2	21-5(2)
53-2000	3-9-00	1, 2	21-5(2)
54-2000	3-9-00	1	21-5(2)
55-2000	3-9-00	1	22-5(2)
		2	23-35
58-2000	3-9-00	1	5-29
60-2000	3-9-00	1	13-1(25)
		2	13-1(26)—(44)
61-2000	3-9-00	1, 2	21-5(2)
62-2000	3-9-00	1	22-5(2)
		2	21-5(2)
63-2000	3-9-00	1—7 Added	Ord. adopting republication of 1999

Ord./Res. Number	Adoption Date	Section	Section this Code
69-2000	3-23-00	1	21-5(2)
		2—4	22-5(2)
70-2000	3-23-00	1	21-5(2)
78-2000	3-23-00	1 Added	12-81—12-93
79-2000	3-23-00	1 Rpld	2-228—2-232
80-2000	3-23-00	1	23-5(b)
		2	21-5(2)
85-2000	4-13-00	1	21-5(2)
86-2000	4-13-00	1	3-5
		2	3-9
		3	3-12
		4	3-13
		5	3-13.1
		6	3-14
		7	3-16
		8	3-17(a), (c)
		9—13	3-19—3-23
		14	3-23.1(1), (4)
		15	3-25
		16	14-22
		17	14-39
94-2000	4-13-00	1	10-14.1(a)
111-2000	4-20-00	1	13-8
112-2000	4-20-00	1	14-10(f)(1)
		2	14-10(f)(7)
113-2000	4-20-00	1, 2	17B-2, 17B-3
		3, 4	17B-5, 17B-6
114-2000	4-20-00	1, 2	18-166(a), (b)

Ord./Res. Number	Adoption Date	Section	Section this Code
		3, 4	18-166(g), (h)
115-2000	4-20-00	1—3	21-5(2)
116-2000	4-20-00	1	21-5(2)
		2	23-5(b)
121-2000	4-20-00	1, 2, 4	21-5(2)
122-2000	4-20-00	1	21-5(2)
		3, 4	22-5(2)
124-2000	5-4-00	1	21-5(2)
		3	22-5(2)
128-2000	5-4-00	1	13-4
132-2000	5-18-00	1	21-5(2)
134-2000	5-18-00	1	21-5(2)
		2	23-5(b)
135-2000	5-18-00	1	21-5(2)
136-2000	5-18-00	1, 2	21-5(2)
148-2000	6-1-00	1	16-1(c)
		2	16-43(2)
		3	16-44
		4	16-50(c)
151-2000	6-1-00	1	14-62(c)(1)
152-2000	6-1-00	1, 2	21-5(2)
158-2000	6-1-00	1	10-14.1(a)
163-2000	6-15-00	1	14-60(d)
		2	14-10(f)(8)
164-2000	6-15-00	1	17-148(a)
		2	17-152(b)
176-2000	6-29-00	1	18-166(h)
177-2000	6-29-00	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
178-2000	6-29-00	1	21-5(2)
187-2000	6-29-00	1	4-11.1(b)
188-2000	6-29-00	1	21-5(2)
189-2000	6-29-00	1	21-5(2)
190-2000	6-29-00	1	21-27(e)
		2	22-24
191-2000	6-29-00	1	23-35(a), (b)
192-2000	6-29-00	1	23-36
194-2000	6-29-00	1	21-5(2)
195-2000	6-29-00	1	21-27(d)
		2	22-24
196-2000	6-29-00	1	22-5(2)
197-2000	6-29-00	1	22-5(2)
198-2000	6-29-00	1	22-5(2)
199-2000	6-29-00	1	22-5(2)
200-2000	6-29-00	1	22-5(2)
201-2000	6-29-00	1	22-5(2)
202-2000	6-29-00	1	21-5(2)
203-2000	6-29-00	1	21-25
		2	22-22
		3	23-28
		4	22-53.2(c)
		6	21-29(a)
		7	22-26(1)
		8	23-32(a)
204-2000	6-29-00	1	21-5(2)
207-2000	7-6-00	1	22-5(2)
213-2000	7-6-00	1, 2	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	21-5(2)
		5	23-5(b)
219-2000	7-6-00	1	22-5(2)
221-2000	7-13-00	1	11-9
222-2000	7-13-00	1, 2	23-5(b)
241-2000	7-13-00	1	14-38
242-2000	7-13-00	1	21-5(2)
		2, 3	22-5(2)
243-2000	7-13-00	1, 2	21-5(2)
244-2000	7-13-00	1—3	21-5(2)
245-2000	7-13-00	1, 2	22-5(2)
247-2000	7-13-00	1, 2	23-5(b)
248-2000	7-13-00	1, 2	22-5(2)
249-2000	7-13-00	1	23-5(b)
250-2000	7-13-00	1, 2	21-5(2)
256-2000	8-31-00	1	21-5(2)
257-2000	8-31-00	1	21-5(2)
258-2000	8-31-00	1, 2	21-5(2)
		3	22-5(2)
259-2000	8-31-00	1	23-5(b)
267-2000	8-31-00	1, 2	23-5(b)
268-2000	9-14-00	1	2-172(b)
269-2000	9-14-00	1, 4	21-5(2)
		3	22-5(2)
270-2000	9-14-00	1	22-5(2)
		2, 3	21-5(2)
271-2000	9-14-00	1	22-5(2)
278-2000	9-14-00	1	5-90(a)(3)

Ord./Res. Number	Adoption Date	Section	Section this Code
279-2000	9-14-00	1, 2	21-5(2)
280-2000	9-14-00	1, 2	21-5(2)
281-2000	9-14-00	1	21-25
		2	22-22
		3	23-28
282-2000	9-14-00	1	22-5(2)
288-2000	9-14-00	1, 2	21-5(2)
293-2000	9-28-00	1—3	14-70—14-72
		4	14-80
294-2000	9-28-00	1	21-5(2)
295-2000	9-28-00	1, 2	21-5(2)
		3	22-5(2)
296-2000	9-28-00	1	22-53.1
		2	23-11(a)
303-2000	10-12-00	1—3	21-5(2)
307-2000	10-12-00	1—3	21-5(2)
308-2000	10-12-00	1—3	21-5(2)
		4—6	22-5(2)
309-2000	10-12-00	1, 2	22-5(2)
310-2000	10-12-00	1, 2	22-5(2)
312-2000	10-26-00	1, 2	21-5(2)
316-2000	10-26-00	1	4-21(a)
317-2000	10-26-00	1 Added	16-76—16-82
318-2000	10-26-00	1	21-5(2)
328-2000	11-9-00	1, 2, 4	21-5(2)
329-2000	11-9-00	1	21-32(e), (f)
335-2000	11-9-00	1	13-1
336-2000	11-9-00	1	13-4(d)

Ord./Res. Number	Adoption Date	Section	Section this Code
337-2000	11-9-00	1	13-13(b)
338-2000	11-9-00	1	22-5(2)
346-2000	11-16-00	1	7-16
347-2000	11-16-00	1	21-5(2)
348-2000	11-16-00	1, 2, 4, 5	21-5(2)
361-2000	12-5-00	1, 4	21-5(2)
		2, 3	22-5(2)
362-2000	12-5-00	1, 2	21-5(2)
363-2000	12-5-00	1—3	21-5(2)
		4	22-5(2)
364-2000	12-5-00	1, 2	21-5(2)
366-2000	12-5-00	1	6-69.6
		2	23-36.6
372-2000	12-14-00	1	13-64
		2	13-65(a)
373-2000	12-14-00	1	21-5(2)
		2	22-5(2)
374-2000	12-14-00	1, 2	21-5(2)
375-2000	12-14-00	1, 2	21-5(2)
376-2000	12-14-00	1, 2	22-5(2)
396-2000	12-14-00	1, 2	21-5(2)
397-2000	12-14-00	1	22-53.1(c)(4)
		2 Dltd	22-53.1(d)
		3 Rnbd	22-53.1(e)
		as	22-53.1(d)
		4	22-53.1(f)
		Rnbd	22-53.1(f)
		as	22-53.1(e)

Ord./Res. Number	Adoption Date	Section	Section this Code
		5 Rnbd	22-53.1(g)
		as	22-53.1(f)
		6	22-53.1(h)
		Rnbd	22-53.1(h)
		as	22-53.1(g)
		7 Rnbd	22-53.1(i)
		as	22-53.1(h)
398-2000	12-14-00	1, 2	23-5(b)
4-2001	1-11-01	1	23-36.5
		2	23-36.6
16-2001	2-8-01	1	21-5(2)
17-2001	2-8-01	1	21-5(2)
23-2001	2-8-01	1	16-59
		2	16-59.1(b)
		3	16-60
25-2001	2-8-01	1	22-5(2)
26-2001	2-22-01	1—4	21-5(2)
30-2001	2-22-01	1	22-5(2)
31-2001	2-22-01	1, 3	21-5(2)
32-2001	2-22-01	1—5	21-5(2)
33-2001	2-22-01	1	21-33(a)
		2	21-34(a)
		3	23-34(1)
		4	23-34(2)
36-2001	2-22-01	1	23-5(b)
		2, 3	21-5(2)
39-2001	3-8-01	1—3	21-5(2)
		4	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
40-2001	3-8-01	2—4	21-5(2)
		5	22-5(2)
		6	21-5(2)
41-2001	3-8-01	1	22-59
44-2001	3-8-01	1	21-5(2)
		2	22-5(2)
		3	21-5(2)
45-2001	3-8-01	1—3	21-5(2)
53-2001	3-22-01	1	21-5(2)
54-2001	3-22-01	1, 2	21-5(2)
58-2001	3-22-01	1, 2	21-5(2)
59-2001	3-22-01	1	2-141(1)
67-2001	4-5-01	1—5	21-5(2)
70-2001	4-5-01	1, 2	21-5(2)
71-2001	4-5-01	1	22-5(2)
		2	21-5(2)
72-2001	4-5-01	1	21-5(2)
87-2001	4-19-01	1	22-49(3)
		2	25-20(2)(d)
		3	2-141(2)(i)c.
		4	16-59(d)
		5	16-60(c)
		6	13-13(b)
88-2001	4-19-01	1	25-20(2)(e)
93-2001	5-3-01	1, 2	21-5(2)
97-2001	5-3-01	1	16-4(b)(iii)
		2	16-4.1(c)
		3	16-4.1(e)

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	16-4.1(f)
		5	16-6
		6	16-8
		7	16-9
		8	16-10
		9	16-15.1
		10	16-16.4
		11	16-16.5
98-2001	5-3-01	1, 2	21-5(2)
99-2001	5-3-01	1, 2	21-5(2)
		3—6	22-5(2)
106-2001	5-3-01	1	6-65(b)
107-2001	5-3-01	1	22-5(2)
		2	21-5(2)
		3, 4	23-5(b)
112-2001	5-24-01	1	16-3(d)
		2	16-13(a), (b)
113-2001	5-24-01	1	22-5(2)
		2	21-5(2)
117-2001	5-24-01	1, 2	22-5(2)
131-2001	5-29-01	1	21-5(2)
		2	22-5(2)
132-2001	5-29-01	1	21-37(g)
		2	21-37(d)(2)
133-2001	5-29-01	1	21-38(b)
151-2001	5-29-01	1	22-5(2)
157-2001	6-28-01	1 Added	24-51
162-2001	6-28-01	1 Added	17-29.6—17-29.10

Ord./Res. Number	Adoption Date	Section	Section this Code
163-2001	6-28-01	1, 2	21-5(2)
		3	22-5(2)
164-2001	6-28-01	1, 2	21-5(2)
165-2001	6-28-01	1, 2	21-5(2)
170-2001	6-28-01	1	23-36
172-2001	7-5-01	1, 3	22-5(2)
		2	21-5(2)
173-2001	7-5-01	1, 2	22-5(2)
174-2001	7-5-01	1	5-30
		2	14-10(f)(4)
		3	14-10(f)
		4	16-1(c)(11)—(c)(66)
		5	16-1(c)(67)—(c)(69)
		6	16-40
		7 Added	16-40.1
		8	16-41
		9	16-42(4)
		10—12	16-52—16-54
		13 Added	16-74.1
		14	16-75
		15	17-1
		16 Added	17-1.1
		17	17-9(a), (b)
		18	17-10
		19	17-11
		20	17-13
		21	17-15
		22 Rpld	17-16

Ord./Res. Number	Adoption Date	Section	Section this Code
		23	17-21(b)
		24	17-22(a)
		25	17-24
		26	17-147
		27	17-150
		28	17-155(3)
		29	17-156(2), (3), (5), (8)
183-2001	7-12-01	1, 2	21-5(2)
184-2001	7-12-01	1	22-5(2)
220-2001	8-30-01	1	21-5(2)
221-2001	8-30-01	1	21-5(2)
		2—4	22-5(2)
222-2001	8-30-01	1	21-8
223-2001	8-30-01	1, 2	22-5(2)
229-2001	9-13-01	1	22-5(2)
		2	21-5(2)
234-2001	9-13-01	1	2-248
235-2001	9-13-01	1	21-5(2)
		2	22-5(2)
236-2001	9-13-01	1, 2	22-5(2)
245-2001	9-27-01	1—3, 5	21-5(2)
254-2001	9-27-01	1	22-5(2)
255-2001	9-27-01	1	21-5(2)
256-2001	10-11-01	1	5-59
		2	5-61
		3	5-65(2)
		4 Added	5-69.1
		5	5-66

Ord./Res. Number	Adoption Date	Section	Section this Code
		6	5-76
257-2001	10-11-01	1	21-5(2)
258-2001	10-11-01	1, 2	21-5(2)
264-2001	10-11-01	1, 2	21-5(2)
		3, 4	22-5(2)
265-2001	10-25-01	1	21-5(2)
266-2001	10-25-01	1	23-5(b)
273-2001	10-25-01	1—3	23-5(b)
277-2001	11-8-01	1, 2	21-5(2)
278-2001	11-8-01	1	16-44(b)
		2	16-44(e), (f), (g)
279-2001	11-8-01	1	21-5(2)
		2	23-5(b)
285-2001	11-8-01	1	21-5(2)
		2	23-5(b)
289-2001	11-8-01	1	22-5(2)
304-2001	12-6-01	1 Added	4-1.1
305-2001	12-6-01	1	22-5(2)
		2	21-5(2)
306-2001	12 -6-01	2	22-5(2)
		3	22-53.2(2)
307-2001	12-6-01	1	23-9(j)
312-2001	12-13-01	1 Added	2-428—2-433
313-2001	12-13-01	1	2-243(2)
		2	2-244
314-2001	12-13-01	1	3-21
315-2001	12-13-01	1 Added	14-96
317-2001	12-13-01	1, 2	23-5(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
326-2001	12-13-01	1	2-1
327-2001	12-13-01	1	14-10(f)(7)
328-2001	12-13-01	1	17B-2(a)—(f)
		2	17B-3(a), (c), (d), (f)
		3	17B-5
		4	17B-6(a), (b)
329-2001	12-13-01	1, 2	21-5(2)
339-2001	12-13-01	1	21-5(2)
340-2001	12-13-01	1, 2	22-5(2)
13-2002	1-24-02	1	3-21
14-2002	1-24-02	1, 3	21-5(2)
15-2002	1-24-02	1	22-5(2)
		2	21-5(2)
18-2002	1-24-02	1	23-17
19-2002	1-24-02	1	21-5(2)
20-2002	1-24-02	1	22-5(2)
21-2002	1-24-02	1	22-5(2)
22-2002	1-24-02	1, 2	23-5(b)
24-2002	1-24-02	1, 2	23-5(b)
25-2002	1-24-02	1, 2	23-5(b)
26-2002	1-24-02	1, 2	23-5(b)
29-2002	2-13-02	1	6-49(a)
32-2002	2-7-02	1, 2	22-5(2)
35-2002	2-21-02	1, 2	21-5(2)
36-2002	2-21-02	1	21-5(2)
37-2002	2-21-02	1, 2	21-5(2)
38-2002	2-21-02	1	22-5(2)
39-2002	2-21-02	1, 2	23-5(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
44-2002	3-7-02	1, 2	21-5(2)
47-2002	3-7-02	1	22-5(2)
48-2002	3-7-02	1	22-5(2)
		2	21-5(2)
50-2002	3-7-02	1, 2	18-114(a), (c)
51-2002	3-21-02	1	22-5(2)
52-2002	3-21-02	1	22-5(2)
		2	21-5(2)
54-2002	3-21-02	1	21-5(2)
		2	22-5(2)
55-2002	3-21-02	1, 2	22-5(2)
56-2002	3-21-02	1	22-5(2)
63-2002	3-21-02	1—9 Added	2-441—2-449
64-2002	4-9-02	1	21-5(2)
65-2002	4-9-02	1	22-5(2)
76-2002	4-11-02	1	21-5(2)
77-2002	4-11-02	1	22-5(2)
78-2002	4-11-02	1, 2	13-64, 13-65
83-2002	4-25-02	1	2-392(a)
84-2002	4-25-02	1	22-5(2)
85-2002	4-25-02	1, 2	22-5(2)
86-2002	4-25-02	1	21-5(2)
108-2002	5-16-02	1	21-5(2)
114-2002	5-16-02	1	22-5(2)
117-2002	5-30-02	1	21-5(2)
		2	22-5(2)
118-2002	5-30-02	1	22-5(2)
124-2002	5-30-02	1, 2	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
127-2002	5-30-02	1	21-5(2)
		2	22-5(2)
128-2002	5-30-02	1	21-5(2)
139-2002	6-13-02	1, 2	21-5(2)
		3, 4	22-5(2)
140-2002	6-13-02	1, 2	21-5(2)
149-2002	6-27-02	1, 2	21-5(2)
155-2002	6-27-01	4—6, 9, 10	21-5(2)
156-2002	6-27-02	1	22-5(2)
		2	22-52(2)
160-2002	6-27-02	1	21-25
		2	22-22
		3	23-28
		4	22-53.2(2)
		6	22-5(2)
		7	21-29(a)
		8	22-26(1)
		9	23-32(a)
162-2002	6-27-02	1	21-5(2)
		2	23-5(b)
163-2002	6-27-02	1, 2	21-5(2)
164-2002	6-27-02	1, 2	23-5(b)
166-2002	7-11-02	1 Added	17C-1—17C-28
171-2002	7-11-02	1	22-5(b)
		2	21-5(2)
196-2002	7-16-02	1, 2	23-5(b)
201-2002	7-16-02	1, 2	21-5(2)
202-2002	7-16-02	1	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
203-2002	7-16-02	1 Added	2-451—2-455
212-2002	8-29-02	1 Added	5-32
213-2002	8-29-02	1, 2	15-1.1(1), (2)
214-2002	8-29-02	1, 2	21-5(2)
215-2002	8-29-02	1	21-5(2)
216-2002	8-29-02	1	21-5(2)
217-2002	8-29-02	1, 2	21-5(2)
218-2002	8-29-02	1, 2	22-5(2)
219-2002	8-29-02	1	22-5(2)
220-2002	8-29-02	1, 2	23-5(b)
230-2002	8-29-02	1	21-5(2)
233-2002	9-12-02	1	2-451(a)
234-2002	9-12-02	1, 2	21-5(2)
		5	22-5(2)
238-2002	9-26-02	1	14-10(f)(5)
249-2002	10-10-02	1	22-5(2)
		2	21-5(2)
250-2002	10-10-02	1	23-36(b)
257-2002	10-10-02	1 Added	7-20
258-2002	10-10-02	1	18C-29
259-2002	10-10-02	1—3	21-5(2)
260-2002	10-10-02	1—3	23-5(b)
264-2002	10-10-02	1	21-5(2)
		2	23-5(b)
267-2002	10-24-02	1	23-5(b)
273-2002	10-24-02	1	22-5(2)
287-2002	11-12-02	1	5-86
		3	5-90

Ord./Res. Number	Adoption Date	Section	Section this Code
		4	5-91
		5	5-93(c)
		6	5-94
		7	5-95(c)
		8	5-98
		9	5-99
288-2002	11-12-02	1	21-5(2)
289-2002	11-12-02	1	21-5(2)
290-2002	11-12-02	1	21-5(2)
291-2002	11-12-02	1	22-5(2)
293-2002	11-12-02	1	5-58
295-2002	11-21-02	1	2-327
296-2002	11-21-02	1	7-20(2)(b), (c)
297-2002	11-21-02	1, 2	21-5(2)
298-2002	11-21-02	1, 2	21-5(2)
		3, 4	23-5(b)
299-2002	11-21-02	1	21-32(c)
300-2002	11-21-02	1	22-5(2)
301-2002	11-21-02	1	23-9(j)
313-2002	12-5-02	1 Added	2-335—2-340
314-2002	12-5-02	1 Added	2-456
315-2002	12-5-02	1, 2	21-5(2)
		3, 4	22-5(2)
316-2002	12-5-02	1	21-5(2)
		2, 3	22-5(2)
317-2002	12-5-02	1, 3, 6, 7	21-5(2)
		2	22-5(2)
319-2002	12-5-02	1	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	21-5(2)
329-2002	12-5-02	1	17-2(e)—(g)
		2	17-3(a), (b)
		3	17-4(a)—(c), (e), (f)
		4	14-10(f)(8)
330-2002	12-5-02	1—5	23-5(b)
		6, 7	21-5(2)
331-2002	12-5-02	1	22-5(2)
334-2002	12-12-02	1	22-5(2)
335-2002	12-12-02	1	21-5(2)
348-2002	12-12-02	1 Dltd	18A-1—18A-24
		Added	18A-1—18A-25
349-2002	12-12-02	1	21-5(2)
362-2002	12-12-02	1	21-5(2)
		2	22-5(2)
363-2002	12-12-02	1	22-5(2)
364-2002	12-12-02	1—3	21-5(2)
366-2002	12-12-02	1	21-5(2)
367-2002	12-12-02	1 Added	23-36.7
2-2003	1-16-03	1	21-5(2)
14-2003	1-23-03	1, 2	22-5(2)
15-2003	1-23-03	2, 3	22-5(2)
16-2003	1-23-03	1	21-5(2)
		2	23-5(b)
17-2003	1-23-03	1	21-5(2)
18-2003	1-23-03	1, 2	22-5(2)
19-2003	1-23-03	1—3	22-5(2)
23-2003	1-23-03	1	23-5(b)

Ord./Res. Number	Adoption Date	Section	Section this Code
26-2003	2-6-03	1—3	21-5(2)
27-2003	2-6-03	1	22-5(2)
30-2003	2-6-03	1	2-422
		2	2-243
31-2003	2-6-03	1	22-5(2)
		2, 3	23-5(b)
32-3003	2-6-03	1—3	23-5(b)
37-2003	2-20-03	1	22-5(2)
		2	21-5(2)
52-2003	3-6-03	1	21-5(2)
56-2003	3-6-03	1, 2	21-5(2)
58-2003	3-20-03	1—3	22-5(2)
60-2003	3-20-03	1	5-56(1)
61-2003	3-20-03	1	21-5(2)
73-2006	4-24-03	3	5-1
80-2003	4-24-03	1	2-3.1
81-2003	4-24-03	1, 2	21-5(2)
82-2003	4-24-03	1	21-27
		2	22-24
89-2003	4-24-03	1, 2	22-5(2)
92-2003	4-24-03	1	22-5(2)
		2	21-5(2)
124-2003	5-29-03	1	14-93(10)
156-2003	6-26-03	1	22-5(2)
157-2003	6-26-03	1	14-62(c)(10)
		2	14-62(d)
158-2003	6-26-03	1, 2	22-5(2)
		3	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
166-2003	6-26-03	1	21-25
		2	22-5
		3	22-22
		4	2-53.2
		5	23-28
167-2003	6-26-03	1—3	21-5(2)
		4—6	22-5(2)
168-2003	6-26-03	1	23-36(b)
170-2003	7-1-03	1	13-63(a)
171-2003	7-1-03	2 Added	14-97—14-104
183-2003	7-1-03	1, 3	21-5(2)
		2, 4	22-5(2)
187-2003	7-10-03	1 Rpld	5-56—5-66, 5-68—5-71
		2	5-67
188-2003	7-10-03	1	18-112(b)
		2	18-114(c)
		3 Dltd	18-114(d)
		4	18-160(a)
		5	18-167
		6 Added	18-168—18-183
189-2003	7-10-03	1—3	21-5(2)
190-2003	7-10-03	1, 4	21-5(2)
		3	22-5(2)
194-2003	7-10-03	1	14-88(1)
		2	14-90
		3	14-91(4)
		4	14-92(4)
		5	14-93

Ord./Res. Number	Adoption Date	Section	Section this Code
		6	14-94
		7	14-94.1
		8	14-94.2
195-2003	7-10-2003	1	21-5(2)
		2	22-5(2)
197-2003	7-10-03	1, 2	21-5(2)
		3, 4	22-5(2)
204-2003	8-21-03	1	2-247
205-2003	8-21-03	1	22-5(2)
209-2003	8-28-03	1	14-88(1)
		2	14-90
		3	14-91(4)
		4	14-92(1)
		5	14-93
		6	14-94
		7	14-94.1
		8	14-94.2
210-2003	8-28-03	1	22-5(2)
226-2003	9-11-03	1	22-5(2)
		2, 3	21-5(2)
227-2003	9-11-03	1, 2	21-5(2)
		3	22-5(2)
230-2003	9-25-03	4—6	21-5(2)
231-2003	9-25-03	1	21-29
		2	22-26
		3	23-32
236-2003	9-25-03	1	14-10(f)
247-2003	10-9-03	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	22-5(2)
248-2003	10-9-03	1, 2	23-5(b)
255-2003	10-23-03	1, 2	21-5(2)
261-2003	10-23-03	1, 2	23-5(b)
		3, 4	21-5(2)
271-2003	11-6-03	1—3	21-5(2)
		4, 5	22-5(2)
278-2003	11-20-03	1 Added	3-27
		2, 3	3-26
279-2003	11-20-03	1, 2	21-5(2)
282-2003	12-4-03	1	16-1(a)(2)
		2, 3 Added	16-3.1, 16-3.2
		4	16-4.1
		5—10	16-8
		11-14	16-10
		15	16-16.4(b)
		16	16-16.5
		17	16-78(k)
		18, 19	16-79
		20	16-80
		21, 22	16-81
		23	14-10
283-2003	12-4-03	1, 2	21-5(2)
284-2003	12-4-03	1	22-5(2)
285-2003	12-4-03	1—5	22-53
		6	22-53.1
		7	23-12
		8	23-14

Ord./Res. Number	Adoption Date	Section	Section this Code
		9	23-16
293-2003	12-4-03	1, 2	21-5(2)
		3	22-5(2)
294-2003	12-4-03	2	21-5(2)
		2	22-5(2)
304-2003	12-4-03	1	21-25
		2	22-5
		3	22-22
		4	22-53.2(2)
		5	23-28
305-2003	12-9-03	1	22-5(2)
310-2003	12-9-03	1	21-5(2)
314-2003	12-9-03	1	21-5(2)
13-2004	1-22-04	2, 3	21-5
14-2004	1-22-04	1	21-5
		2	22-5
15-2004	1-22-04	1	21-5
16-2004	1-22-04	1	22-5
26-2004	2-5-04	1—3	3-12—3-13.1
30-2004	2-19-04	1	22-5
36-2004	2-19-04	1, 2	16-43
39-2004	2-19-04	1	23-5
51-2004	3-18-04	1 Added	2-116—2-121
53-2004	3-18-03	1	5-29
54-2004	3-18-04	1	21-5
55-2004	3-18-04	1	22-5
62-2004	4-8-04	1	5-32
64-2004	4-8-04	1	22-5

Ord./Res. Number	Adoption Date	Section	Section this Code
68-2004	4-8-04	1	21-13
72-2004	4-22-04	1	23-30
79-2004	4-22-04	1	17B-7
91-2004	5-13-04	1	21-5
95-2004	5-13-04	1	3-21
		2	3-9.3
96-2004	5-13-04	1	18-122
97-2004	5-13-04	1 Rpld	17-19
99-2004	5-13-04	1, 2	14-52.1
122-2004	5-25-04	1	23-20
128-2004	6-10-04	1	21-5
129-2004	6-10-04	1, 2	22-5
157-2004	7-1-04	1	21-27
158-2004	7-1-04	1	22-5
		2	21-5
172-2004	7-1-04	1	23-28
173-2004	7-1-04	1	21-25
		2	22-22
		3	22-5
		4	22-53.2
174-2004	2-25-04	1	23-5
177-2004	7-8-04	1 Added	2-86—2-96
178-2004	7-8-04	3, 4, 6, 7	21-5
		5, 8	22-5
191-2004	7-8-04	2, 3	21-5
192-2004	7-8-04	1, 2	21-5
193-2004	7-8-04	1—3	21-5
194-2004	7-8-04	1, 3	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
195-2004	7-8-04	1	22-5
209-2004	8-26-04	1 Added	2-228—2-234
210-2004	8-26-04	1	2-335
219-2004	8-26-04	1	22-53.1
223-2004	9-9-04	1 Rpld	12-3
224-2004	9-9-04	1	21-5
227-2004	9-9-04	1	23-17
		2	23-26
		3	23-29
		4, 5	23-32, 23-33
233-2004	9-23-04	1	21-5
		2	22-5
234-2004	9-23-04	1	22-5
237-2004	9-23-04	1	21-5
238-2004	9-23-04	1, 2	21-5
244-2004	9-23-04	1	23-28
245-2004	9-23-04	1	23-20
246-2004	9-28-04	1, 2	13-1
		3—10 Added	13-20—13-20.7
249-2004	10-7-04	1	22-5
250-2004	10-7-04	1, 2	22-5
252-2004	10-7-04	1, 2	21-5
253-2004	10-7-04	1, 2	23-5
254-2004	10-7-04	1	10-7-04
255-2004	10-21-04	1, 2	21-5
256-2004	10-21-04	1—3	21-5
		4, 5	22-5
260-2004	10-21-04	1—3	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
269-2004	11-4-04	1	14-10
		2	14-60
		3	16-48
		4	16-50
		5—8	16-73—16-76
		9 Added	16-76.1
		10	17-78
		11, 12	16-80, 16-81
		13 Added	16-83
273-2004	11-4-04	1	22-5
		2	21-5
274-2005	11-4-04	1	23-5
		2, 3	21-5
275-2004	11-4-04	1, 2	21-5
282-2004	11-4-04	1	21-5
296-2004	12-2-04	1, 2	16-4, 16-4.1
		3	16-6
		4	16-8
		5	16-10
297-2004	12-2-04	1—3, 5, 6	21-5
298-2004	12-2-04	1	22-5
303-2004	12-2-04	1	4-12.4
304-2004	12-2-04	1	9-20
		2	14-10
305-2004	12-2-04	1	22-5
		2	21-5
320-2004	12-9-04	1	21-5
6-2005	1-13-05	1	18-122

Ord./Res. Number	Adoption Date	Section	Section this Code
7-2005	1-13-05	1	21-5
8-2005	1-13-05	1	21-5
		2	22-5
9-2005	1-13-05	1	21-5
11-2005	1-13-05	1	23-5
25-2005	1-20-05	1 Added	21-36.1
30-2005	2-10-05	1	17B-1—17B-3
			17B-5, 17B-6
			17B-8
38-2005	2-24-05	1	21-5
40-2005	2-24-05	1, 2	21-5
41-2005	2-24-05	1, 2	21-5
45-2005	2-24-05	1, 2	21-5
46-2005	2-24-05	1	21-5
47-2005	2-24-05	1	21-5
48-2005	2-24-05	1	21-5
49-2005	2-24-05	1, 2, 4, 5	21-5
50-2005	2-24-05	1, 2	21-5
51-2005	2-24-05	1	21-5
52-2005	2-24-05	1	21-5
		2	22-5
53-2005	2-24-05	1	22-5
		2	21-5
54-2005	2-24-05	1, 2	23-5
55-2005	3-10-05	1	13-1
		2—4	13-71—13-72.1
		5—9 Added	13-72.2—13-72.6
		10—17	13-73—13-75

Ord./Res. Number	Adoption Date	Section	Section this Code
63-2005	3-10-05	1, 2	21-5
64-2005	3-10-05	1	21-5
71-2005	3-24-05	1	18-155
82-2005	4-14-05	1, 2	22-5
83-2005	4-14-05	1	21-5
84-2005	4-14-05	1—9	21-5
		10	22-5
85-2005	4-14-05	1	22-5
90-2005	4-21-05	1	4-9
		2	4-11.1
		3—5	4-12.34-12.5
		6	4-14
		7	4-16
		8	4-19
		9	4-21
		10, 11 Added	4-21.1, 4-21.2
		12	4-22
		13	4-29
		14	4-33
		15	4-23
		16	4-10
91-2005	4-21-05	1, 2	21-5
92-2005	4-21-05	1	21-5
96-2005	4-21-05	1, 2	21-5
97-2005	4-21-05	1	21-5
98-2005	4-21-05	1, 2	21-5
99-2005	4-21-05	1, 2	21-5
100-2005	4-21-05	1, 2	22-5

Ord./Res. Number	Adoption Date	Section	Section this Code
101-2005	4-21-05	1	22-5
110-2005	5-5-05	1	17B-7
111-2005	5-5-05	1	14-10
113-2005	5-5-05	1	21-5
121-2005	5-19-05	1	14-10
		2	18-112
122-2005	5-19-05	1, 2	21-5
123-2005	5-19-05	1, 2	21-5
126-2005	5-19-05	1, 2	18C-29
130-2005	6-9-05	1	9-20
131-2005	6-9-05	1	22-5
134-2005	6-9-05	1	17C-3
		2	17C-7
		3	17C-9
		4, 5	17C-14, 17C-15
		6—8	17C-21—17C-23
		9	17C-27
		10—14	17-7—17-11
		15	17-13
		16	17-15
135-2005	6-9-05	1, 2	21-5
151-2005	6-23-05	1 Added	5-29.2
152-2005	6-23-05	1	13-52
		2, 3	13-54, 13-55
153-2005	6-23-05	1, 2	23-5
166-2005	6-23-05	1, 2	22-5
175-2005	7-7-05	1, 2	21-5
176-2005	7-7-05	1	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
181-2005	7-7-05	1	23-5
194-2005	7-12-05	1	21-5
		2	22-5
195-2005	7-12-05	1	21-25
		2	22-22
		3, 6	22-5
		4	22-53.2
		5	23-28
197-2005	7-12-05	1	2-251
198-2005	7-12-05	1, 2	21-5
199-2005	7-12-05	1	21-5
		2	23-5
200-2005	7-12-05	1, 2	21-5
201-2005	7-12-05	1, 2	21-5
203-2005	7-12-05	1	21-5
204-2005	7-12-05	1	21-5
		2	22-5
205-2005	7-12-05	1, 2, 6, 7, 9, 10	21-5
		11, 12	22-5
206-2005	7-12-05	1	22-5
207-2005	7-12-05	1, 2	23-5
238-2005	8-25-05	1, 2	23-5
239-2005	8-25-05	1	21-5
240-2005	8-25-05	1	21-5
241-2005	8-25-05	1, 2, 4, 5, 7, 8	21-5
242-2005	8-25-05	1	21-35
244-2005	8-25-05	1, 2	14-46

Ord./Res. Number	Adoption Date	Section	Section this Code
248-2005	9-8-05	1	22-5
		2	21-5
249-2005	9-8-05	1, 2	21-5
250-2005	9-8-05	1	21-5
259-2005	9-22-05	1, 2	21-5
260-2005	9-22-05	1, 2	21-5
261-2005	9-22-05	1, 2	21-5
262-2005	9-22-05	1	22-5
269-2005	9-22-05	1	22-5
		2	21-5
270-2005	9-22-05	1. 2	21-5
282-2005	10-6-05	1 Added	3-28
		2	3-26
291-2005	10-20-05	1	22-5
		2	21-5
308-2005	11-17-05	1 Dltd	18C-1—18C-31
		Added	18C-1—18C-15
		2 Rpld	18D-1—18D-24
320-2005	12-1-05	1	22-5
		2	21-5
321-2005	12-1-05	1	22-5
		2	21-5
326-2005	12-1-05	1	23-18
329-2005	12-13-05	1	2-178
		Added	2-179—2-185
		2, 3	18-2, 18-2.1
		4	18-4
		5	14-10

Ord./Res. Number	Adoption Date	Section	Section this Code
		6	18-60—18-65
		7	18-112
		8	18-113.3
		9, 10	18-114, 18-114.1
		11	18-122
		12	18-129
		13	18-160
		14	18-163
		15	18-170
		16	18-174
		17	18-183
330-2005	12-13-05	1	2-201
331-2005	12-13-05	1	18A-1
		2	18A-3
340-2005	12-13-05	2—4	21-5
341-2005	12-13-05	1, 2	21-5
		3—5	22-5
342-2005	12-13-05	1	22-5
343-2005	12-13-05	1	21-5
344-2005	12-13-05	1, 2	21-5
345-2005	12-13-05	1, 2	22-5
349-2005	12-13-05	1	14-10
8-2006	1-12-06	1	15-1.1
35-2006	2-9-06	1	14-10
40-2006	2-9-06	1	21-5
45-2006	2-23-06	1	21-5
46-2006	2-23-06	1	21-5
47-2006	2-23-06	1, 2	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
48-2006	2-23-06	1, 2	21-5
60-2006	3-9-06	1 Added	14-58
63-2006	3-9-06	1—3	2-381—2-383
64-2006	3-9-06	1	23-5
68-2006	3-23-06	3—5	21-5
69-2006	3-23-06	1, 2	22-5
70-2006	3-23-06	1, 2	21-34
		3—6	21-39
73-2006	3-23-06	1	23-5
79-2006	4-13-06	1,13-4	13-6
80-2006	4-13-06	1, 2	21-5
89-2006	4-13-06	1—5	22-53.1
102-2006	4-20-06	1, 2	21-5
138-2006	6-8-06	1	22-5
139-2006	6-8-06	1—3	21-5
		7, 8	22-5
150-2006	6-22-06	1, 2	21-5
151-2006	6-22-06	1	21-5
152-2006	6-22-06	1, 3	21-5
173-2006	6-22-06	1, 2	22-5
188-2006	6-22-06	1, 2	21-5
189-2006	6-22-06	1—3, 5, 6, 8, 9	21-5
190-2006	6-22-06	1	21-37.2
198-2006	7-6-06	1	23-5
202-2006	7-6-06	1—4, 6, 9, 12, 14	21-5
203-2006	6-6-06	1	21-25
		2	22-22

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	22-5
		4	22-53.2
		6	23-28
222-2006	7-11-06	1	22-5
223-2006	7-11-06	1, 21-5	
224-2006	7-11-06	1	21-5
229-2006	8-24-06	1, 3	2-87
		2	2-89
230-2006	8-24-06	1—3	21-5
231-2006	8-24-06	1	21-5
232-2006	8-24-06	1, 2	21-5
233-2006	8-24-06	1	21-5
234-2006	8-24-06	1	21-5
235-2006	8-24-06	1	22-5
236-2006	8-24-06	1, 2	22-5
249-2006	9-14-06	1, 2	21-5
274-2006	9-28-06	1, 2	21-5
275-2006	9-28-06	1, 2	21-5
284-2006	10-5-06	1, 2, 4, 5, 7	21-5
		12, 13	22-5
285-2006	10-5-06	1—3, 5, 6, 8, 9	21-5
295-2006	10-19-06	1, 2	21-5
299-2006	10-19-06	1	21-25
		2	22-22
302-2006	10-19-06	1	23-5
309-2006	11-2-06	1	21-5
316-2006	11-2-06	1	21-5
317-2006	11-2-06	1	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
323-2006	11-16-06	1	21-5
324-2006	11-16-06	1	21-5
			22-5
350-2006	12-7-06	1, 2	21-5
351-2006	12-7-06	1, 2	21-5
352-2006	12-7-06	1	21-5
353-2006	12-7-06	1, 3, 5	21-5
354-2006	12-7-06	1, 2	21-5
355-2006	12-7-06	1, 2	22-5
356-2006	12-7-06	1	22-5
357-2006	12-7-06	1	22-5
364-2006	12-7-06	1 Added	2-457—2-463
365-2006	12-7-06	1, 2	14-10
366-2006	12-7-06	1, 2	22-5
		3	21-5
374-2006	12-12-06	1, 2	17-2
		3	17-2.1
		4	17-4
		5—12 Added	17-4.1—17-4.8
		13	14-10
375-2006	12-12-06	1	21-5
376-2006	12-12-06	1, 2	22-5
390-2006	12-12-06	1, 2	21-5
391-2006	12-12-06	1	22-5
392-2006	12-12-06	1	21-5
393-2006	12-12-06	1	21-5
394-2006	12-12-06	1, 2	21-5
403-2006	12-14-06	2—4	22-5

Ord./Res. Number	Adoption Date	Section	Section this Code
		5	22-45
8-2007	1-25-07	1, 2	21-5
9-2007	1-25-07	1	21-5
10-2007	1-25-07	1, 2	21-5
11-2007	1-25-07	1	21-5
12-2007	1-25-07	1, 2	22-5
26-2007	2-8-07	1 Added	16-44.1
27-2007	2-8-07	1	22-5
32-2007	2-8-07	1	3-9.2
42-2007	2-22-07	1, 3, 4	22-5
		2	21-5
47-2007	3-8-07	1, 2	21-5
48-2007	3-8-07	1	21-5
49-2007	3-8-07	1, 2	21-5
		3, 4	22-5
51-2007	3-8-07	1	21-5
53-2007	3-22-07	1—3	2-336—2-338
54-2007	3-8-07	1	21-5
55-2007	3-22-07	1	21-5
56-2007	3-22-07	1, 2	21-5
60-2007	3-22-07	1	21-5
65-2007	4-12-07	1, 2	21-5
66-2007	4-12-07	1, 2	21-5
68-2007	4-12-07	2	22-45
71-2007	4-12-07	1	14-10
73-2007	4-19-07	1	21-5
74-2007	4-19-07	1, 2	21-5
82-2007	4-19-07	1	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
83-2007	4-19-07	1, 2, 4, 5	21-5
84-2007	4-19-07	1, 2	21-5
85-2007	4-19-07	1, 2	21-5
86-2007	4-19-07	1, 2	21-5
87-2007	4-19-07	1	21-5
98-2007	5-24-07	1—3	21-5
102-2007	5-24-07	1, 2, 4	21-5
108-2007	6-7-07	1	21-5
122-2007	6-7-07	1	21-40
132-2007	6-21-07	3, 4	16-11, 16-15
		9, 11, 12	21-5
		10, 13	22-5
134-2007	6-21-07	1	16A-5
		2	16A-24
135-2007	6-21-07	1	21-5
136-2007	6-21-07	1	21-5
137-2007	6-21-07	1, 2	21-5
		3	22-5
138-2007	6-21-07	1	21-27
148-2007	6-21-07	1	21-5
153-2007	6-26-07	18—20	21-5
		21—24	22-5
133-2007	6-21-07	2	22-5
156-2007	7-5-07	1, 2	14-5
161-2007	7-5-07	1, 2	21-5
162-2007	7-5-07	1	21-5
163-2007	7-5-07	1	21-5
166-2007	7-5-07	1	21-25

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	2-22
		3	22-5
		4	22-53.2
		6	23-28
167-2007	7-5-07	1, 2	2-200, 2-201
		3	2-203
		3	2-205
175-2007	7-10-07	1	21-5
176-2007	7-10-07	1	21-5
177-2007	7-10-07	1	22-5
179-2007	8-16-07	1, 3	21-5
180-2007	8-16-07	1, 2	22-5
181-2007	8-16-07	1	22-5
182-2007	8-16-07	1	21-5
	8-21-07(Memo)		23-5(Note)
186-2007	8-23-07	1—3	21-5
200-2007	9-13-07	1 Dltd	9-3.1—3-9.3
		2	3-21
201-2007	9-13-07	1	21-38
204-2007	9-13-07	1	21-5
205-2007	9-13-07	1	21-5
206-2007	9-13-07	1	21-5
211-2007	9-27-07	1, 2	21-5
212-2007	9-27-07	1	22-5
213-2007	9-27-07	1	22-5
		2	21-5
215-2007	9-27-07	1	21-5
216-2007	9-27-07	1, 2	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
230-2007	10-4-07	1	22-5
231-2007	10-4-07	1	21-5
223-2007	10-4-07	1	13-44
224-2007	10-4-07	1	21-5
225-2007	10-4-07	1, 2	21-5
		3, 4	22-5
241-2007	11-1-07	1	21-5
242-2007	11-1-07	1	21-5
247-2007	11-1-07	1 Added	17B-13
		2	14-10
		3	16-76
248-2007	11-1-07	1	21-5
249-2007	11-1-07	1, 2	21-5
250-2007	11-1-07	1	22-5
254-2007	11-15-07	1, 2	21-5
255-2007	11-15-07	1, 2	21-5
256-2007	11-15-07	1	21-5
260-2007	11-15-07	1, 2	21-5
263-2007	11-15-07	1	2-87
267-2007	12-6-07	1, 2	13-1, 13-2
		3—6	13-4—13-7
		7 Added	13-7.2
		8	13-8
		9—11 Added	13-8.1—13-8.4
		12	13-9
		13, 14	13-11, 13-12
		15 Added	13-15.1
268-2007	12-6-07	1	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
269-2007	12-6-07	1	21-5
270-2007	12-6-07	1, 2	21-5
271-2007	12-6-07	1	22-5
272-2007	12-6-07	1, 2	26-1
279-2007	12-6-07	1 Added	2-18
282-2007	12-11-07	1	21-5
290-2007	12-11-07	1	4-12.4
291-2007	12-11-07	1	4-19
292-2007	12-11-07	1—3	21-5
293-2007	12-11-07	1, 2	21-5
294-2007	12-11-07	1, 2	22-5
3-2008	1-10-08	1	21-5
4-2008	1-10-08	1, 2	21-5
5-2008	1-10-08	1, 2, 4	21-5
14-2008	1-24-08	1, 2	21-5
15-2008	1-24-08	1	21-5
16-2008	1-24-08	1	22-5
			21-5
17-2008	1-24-08	1	22-5
18-2008	1-24-08	1, 2	21-5
23-2008	2-7-08	1	21-5
24-2008	2-7-08	1	22-5
		2	21-5
25-2008	2-7-08	1, 2	21-5
26-2008	2-7-08	2—5	23-5
27-2008	2-7-08	1	21-5
28-2008	2-7-08	1	22-5
34-2008	2-21-08	1	16-48

Ord./Res. Number	Adoption Date	Section	Section this Code
		2 Added	16-57.1
		3—5	16-59—16-60
36-2008	2-21-08	1	21-5
37-2008	2-21-08	1—3	21-5
38-2008	2-21-08	1, 2	21-5
46-2008	3-6-08	1, 2	21-5
47-2008	3-6-08	1	22-5
48-2008	3-6-08	1	22-5
52-2008	3-6-08	2	13-15.1
53-2008	3-6-08	1, 2	21-5
54-2008	3-6-08	1	21-5
66-2008	4-10-08	2	21-5
68-2008	4-10-08	1	23-5
71-2008	4-10-08	1 Rpld	10-14.1
76-2008	4-24-08	1, 2	21-5
81-2008	4-24-08	1	21-5
		2	22-5
82-2008	4-24-08	1, 2	22-5
83-2008	4-24-08	1	5-1
84-2008	4-24-08	1, 2	16-59, 16-59.1
90-2008	5-8-08	1 Added	17-29.1(c)
		2	17-29.3(b)
		3	17-29.5
100-2008	5-8-08	1, 2	21-5(2)
101-2008	5-8-08	1, 2, 7, 8	21-5(2)
107-2008	5-22-08	1 Rpld	12-1.1—12-1.3,
			2-267—2-273, 2-377
122-2008	6-12-08	1	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
123-2008	6-12-08	1	21-5
127-2008	6-12-08	1, 2	13-64, 13-65
128-2008	6-12-08	1	13-63(a)
131-2008	6-12-08	2	16-48(a)(2)
		4, 6, 7	21-5(2)
		5, 8	22-5(2)
132-2008	6-12-08	1, 2	21-5(2)
133-2008	6-12-08	1	21-5(2)
		4, 5, 13	22-5(2)
134-2008	6-12-08	1 Added	16-6.1
143-2008	6-26-08	1, 2	21-5(2)
144-2008	6-26-08	1	21-5(2)
145-2008	6-26-08	1	23-5
147-2008	6-26-08	1—4 Added	14-3.1—14-3.4
148-2008	6-26-08	1, 2	22-5(2)
160-2008	6-26-08	1, 2	13-5, 13-9
170-2008	7-3-08	1	21-5(2)
171-2008	7-3-08	1	22-5(2)
180-2008	7-8-08	1	21-25
		2	22-22
		3	22-5(2)
		4	22-53.2(2)
		5	21-29(d), 22-26(5)
		6	23-28
181-2008	7-8-08	1 Rpld	2-246—2-248
183-2008	7-8-08	6—8	21-5
		9—11	22-5
187-2008	7-8-08	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
197-2008	8-21-08	1	21-5(2)
198-2008	8-21-08	1, 2	21-5(2)
199-2008	8-21-08	1, 2, 5	21-5
		3	22-5
200-2008	8-21-08	1	22-5(2)
217-2008	9-18-08	1	21-5(2)
218-2008	9-18-08	1, 2	21-5(2)
219-2008	9-18-08	1	21-5(2)
		6	22-5(2)
230-2008	10-23-08	1, 2	21-5(2)
231-2008	10-23-08	1	21-5(2)
232-2008	10-23-08	1, 2	21-5(2)
233-2008	10-23-08	1	21-5(2)
237-2008	10-23-08	1, 2	21-5(2)
238-2008	10-23-08	1	21-5(2)
245-2008	11-6-08	1, 2	22-5(2)
247-2008	11-6-08	2—7	14-97—14-102
		8	14-104
253-2008	11-20-08	1 Added	5-104—5-107
254-2008	11-20-08	1, 2	22-5(2)
273-2008	12-9-08	1	6-64
277-2008	12-9-08	1, 2	21-5(2)
278-2008	12-9-08	1	21-5(2)
279-2008	12-9-08	1, 2	21-5(2)
280-2008	12-9-08	1	21-37.1
		2	21-38(a)—(c)
285-2008	12-9-08	1	4-21(c)
4-2009	1-22-09	1, 2	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		3, 4	22-5(2)
5-2009	1-22-09	2, 3	21-5(2)
		4 Added	21-53
6-2009	1-22-09	1	21-5(2)
7-2009	1-22-09	1	21-5(2)
14-2009	2-12-09	1—3	21-5
16-2009	2-12-09	1, 2	21-5
17-2009	2-12-09	1	23-5
25-2009	2-26-09	1	21-5
		2	22-5
26-2009	2-26-09	1, 2	21-5
		3, 4	22-5
31-2009	2-26-09	1	21-5
32-2009	3-12-09	1	21-5
36-2009	3-26-09	1	16-1
		2 Added	16-84—16-88
39-2009	3-26-09	1	22-53.1
44-2009	4-9-09	1	22-5
46-2009	4-9-09	1	21-5
69-2009	5-7-09	1, 2	21-33, 21-34
		3	21-37.1
		4	21-38
70-2009	5-7-09	1	22-59
71-2009	5-7-09	1	21-5
73-2009	5-14-09	1, 2 Added	16-401—16-410
		3	16-63
93-2009	6-11-09	1	21-14
		2	22-6

Ord./Res. Number	Adoption Date	Section	Section this Code
94-2009	6-11-09	1	22-5
95-2009	6-25-09	1	4-21
96-2009	6-25-09	1	21-5
107-2009	6-25-09	1	21-5
108-2009	6-25-09	1	4-2
		2	4-12.2
		3, 4	4-12.5
		4	4-19
109-2009	6-25-09	1	7-17
110-2009	6-25-09	1—9 Added	15-1.3
134-2009	7-2-09	1, 2	21-5
137-2009	7-2-09	1 Added	2-464—2-472
138-2009	7-7-09	1 Added	7-39—7-43
		2	12-82
139-2009	7-7-09	1—3	18C-2—18C-4
		4 Rpld	18C-8
		5	18C-9
140-2009	7-7-09	1, 2	21-5
141-2009	7-7-09	1	21-25
		2	22-22
		3	22-5
		4	22-53.2
		5	21-29
			22-26
		6	23-28
142-2009	7-7-09	1—7	16-1
		2 Added	16-89-16-98
143-2009	7-7-09	1, 2	16-1

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	16-2
		4 Rpld	16-3.1, 16-3.2
		5	16-4
		6	16-4.1
		7	16-8
		8	16-10
		9 Rpld	16-18—16-28
		10, 11 Added	16-18, 16-19
		12	16-40
		13	16-44
		14	16-44.1
		15	16-46
		16	16-49
		17 Rpld	16-73—16-75
		18 Rnbd	16-74.1
		As	16-94.1
		19 Added	16-200—16-213
		20	5-88
		21	5-90
		22	5-98
144-2009	7-7-09	1	14-40
157-2009	8-13-09	1	21-5
168-2009	8-27-09	1	21-5
		2	22-5
169-2009	8-27-09	1, 2	21-5
		3, 4	22-5
170-2009	8-27-09	1	21-5
		3	22-5

Ord./Res. Number	Adoption Date	Section	Section this Code
171-2009	8-27-09	1	21-5
179-2009	8-27-09	1	14-83
181-2009	8-27-09	1	25-20
184-2009	9-3-09	1	5-76
186-2009	9-3-09	1	18A-1
		2	18A-15
189-2009	9-3-09	1	21-5
190-2009	9-3-09	1	21-5
197-2009	9-3-09	1	11-15
		2	11-18
		3, 4	11-20, 11-21
		5	11-29
198-2009	9-17-09	1 Added	5-29.3
201-2009	9-17-09	1	22-5
213-2009	10-1-09	1	5-29
		2	5-29.3
214-2009	10-1-09	1	21-5
215-2009	10-1-09	1	22-5
216-2009	10-1-09	1	22-5
217-2009	10-1-09	1	21-5
218-2009	10-1-09	1, 2	21-5
228-2009	11-5-09	1	21-5
229-2009	11-5-09	1, 2	12-82, 12-83
		3	12-86
		4, 5	12-89, 12-90
230-2009	11-5-09	1	2-468
231-2009	11-5-09	1 Added	10-33.1
232-2009	11-5-09	1	4-2

Ord./Res. Number	Adoption Date	Section	Section this Code
234-2009	11-5-09	1, 2	22-5
236-2009	11-5-09	1 Added	2-267—2-270
255-2009	12-8-09	1, 2	21-5
256-2009	12-8-09	1, 2	21-5
258-2009	12-8-09	1	22-5
259-2009	12-8-09	1, 2	21-5
261-2009	12-8-09	1	22-5
263-2009	12-8-09	1, 2	21-5
268-2009	12-8-09	1	14-10
271-2009	12-8-09	1 Added	2-19
8-2010	1-14-10	1	17-2
		2—5	17-2.1
		6, 7	17-3, 17-4
		8	17-4.3
		9	17-4.5
13-2010	1-28-10	1—3	12-1
		4	12-7
		5, 6	12-8.2, 12-8.3
14-2010	1-28-10	1, 2	21-5
20-2010	1-28-10	1	22-5
22-2010	1-28-10	1 Added	2-150—2-152
28-2010	2-11-10	1	22-5
29-2010	2-25-10	1	21-5
31-2010	2-25-10	1	22-5
40-2010	3-11-10	1	21-5
45-2010	3-11-10	1	15-1.3
48-2010	3-25-10	1—6	17-29—17-29.5
49-2010	3-25-10	1	21-5

Ord./Res. Number	Adoption Date	Section	Section this Code
54-2010	4-8-10	1	21-5
62-2010	4-22-10	1	21-5
71-2010	4-22-10	1	21-5
72-2010	4-22-10	1	16-43
73-2010	4-22-10	1	23-18
74-2010	4-22-10	1	22-53.1
79-2010	5-6-10	1	21-5
98-2010	6-10-10	1	17-29
104-2010	6-10-10	1 Rpld	2-284—2-287
105-2010	6-10-10	1, 2	21-5
106-2010	6-10-10	1	21-5
109-2010	6-24-10	1	2-200
110-2010	6-24-10	1	4-23
111-2010	6-24-10	1—3 Added	18-119.1
120-2010	7-1-10	1	16-4
		2	16-4.1
		3	16-6
		4	16-8
		5	16-10
121-2010	7-1-10	1	15-1
123-2010	7-1-10	1	21-5
126-2010	7-1-10	1	22-5
127-2010	7-6-10	1—3	16-90
128-2010	7-6-10	1	21-5
		2	22-5
129-2010	7-6-10	1	21-6
130-2010	7-6-10	1	21-5
131-2010	7-6-10	1, 2	12-1

Ord./Res. Number	Adoption Date	Section	Section this Code
137-2010	8-19-10	1, 2	21-5
147-2010	8-26-10	1	23-5
151-2010	8-26-10	1	16-1
		2 Added	16-99—16-105
		3	16-207
		4 Rnbd	14-60
		as	16-106
		5 Added	16-107, 16-108
160-2010	9-23-10	1	21-27
162-2010	9-23-10	1, 2	18-65.1
163-2010	9-23-10	1	22-5
170-2010	10-14-10	1, 2	13-5, 13-6
		3	13-9
174-2010	10-21-10	1 Rpld	16-16.4, 16-16.5
181-2010	10-21-10	1, 2	21-5
182-2010	10-21-10	1	21-5
183-2010	10-21-10	1	22-5
194-2010	11-18-10	1 Rpld	5-31
		2	17B-8
202-2010	11-18-10	1	5-32
204-2010	11-18-10	1—3	21-5
		4	22-5
213-2010	12-9-10	1	21-5
		2	22-5
227-2010	12-9-10	1	21-14
		2	22-13
		3	22-53.1
		4	23-18

Ord./Res. Number	Adoption Date	Section	Section this Code
9-2011	1-27-11	1, 2	22-5
14-2011	2-3-11	1	21-5
		2	22-5
17-2011	2-17-11	1	23-5
23-2011	3-3-11	1—3	22-5
30-2011	3-17-11	1	22-5
31-2011	3-17-11	1	22-5
32-2011	3-17-11	1	2-151(b)
43-2011	4-14-11	1	22-5
61-2011	5-12-11	1—3	2-442—2-444
		4	2-447
66-2011	6-9-11	1, 2	21-5
69-2011	6-23-11	8, 14—16	21-5
		17—19	22-5
70-2011	6-23-11	1	2-4.1
			2-12.1
77-2011	6-23-11	1—9 Added	2B-1—2B-9
		10	12-16(b)
		11	13-73.5
		12	16-8(h)
		13	16-50
		14	16-76
		15	16-76.1
		16 Rpld	16-77
		17 Rnbd	16-78
		as	16-77
		18 Rpld	16-79—16-82
		19 Rnbd	16-83

Ord./Res. Number	Adoption Date	Section	Section this Code
		as	16-78
		20	16-202(b)
		21	16-206(c), (f)
		22	17-4.1
		23	17-4.2
		24 Rpld	17-4.3
		25 Rnbd	17-4.4
		as	17-4.3
		26Rpld	17-4.5—17-4.7
80-2011	6-23-11	1	4-12.5(d)(7)
81-2011	6-23-11	1	2-382
82-2011	6-23-11	1	18-129(2)
89-2011	7-7-11	1—9	Ch. 2, Art. XIV(tit.)
			2-189—2-197
92-2011	7-12-11	2, 3	21-5
95-2011	7-12-11	1, 2	22-5
96-2011	7-12-11	1, 2	21-5
107-2011	8-25-11	1, 2	22-5
118-2011	9-15-11	1, 2	21-5(2)
		3—5	22-5(2)
119-2011	9-15-11	1	23-5(b)
124-2011	9-29-11	1	21-5(2)
		2, 3	22-5(2)
125-2011	9-29-11	1, 2	21-5(2)
		3, 4	22-5(2)
126-2011	9-29-11	1—3	21-5(2)
		4, 5	22-5(2)
127-2011	9-29-11	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		2	22-5(2)
129-2011	10-13-11	1	14-10
131-2011	10-13-11	1	21-5(2)
		2	22-5(2)
139-2011	11-3-11	1	17-148(a)
		2	17-152(b)
141-2011	11-3-11	1—9 Added	9A-1—9A-9
142-2011	11-3-11	1	4-12.3(e)
		2	4-21(d)
		3	4-21.1
146-2011	11-17-11	1	21-5(2)
150-2011	12-1-11	1	21-5(2)
		2	22-5(2)
157-2011	12-6-11	1	21-5(2)
159-2011	12-6-11	1	16-15(f)
160-2011	12-6-11	1 Added	14-10(f)(11)
163-2011	12-6-11	1, 2	21-5(2)
		3	22-5(2)
134-2011	10-27-11	1, 2	22-5(2)
135-2011	10-27-11	1	2-87
8-2012	1-26-12	1	21-5(2)
9-2012	1-26-12	1, 2	21-5(2)
10-2012	1-26-12	1	7-17(b)
13-2012	1-26-12	1 Added	16-111—16-115
15-2012	2-16-12	1	22-5(2)
18-2012	2-16-12	1	2-421(b)
		2, 3	2-422, 2-423
		4	2-427

Ord./Res. Number	Adoption Date	Section	Section this Code
21-2012	2-23-12	1	22-5(2)
25-2012	3-8-12	1, 2	21-5(2)
		3, 4	22-5(2)
		5, 6	23-5(b)
26-2012	3-8-12	1—3	23-18
28-2012	3-8-12	1	2-268
35-2012	3-22-12	1—10	16-60(a)
32-2012	3-22-12	1 Added	16-6.2
33-2012	3-22-12	1	21-5(2)
36-2012	3-22-12	1	21-5(2)
37-2012	3-22-12	3, 4	21-5(2)
		5, 6	22-5(2)
40-2012	4-12-12	1, 2	21-5(2)
41-2012	4-12-12	1	23-5(b)
42-2012	4-12-12	1	22-5(2)
45-2012	4-26-12	1	23-18
46-2012	4-26-12	1	23-5(b)
48-2012	4-26-12	1	Ch. 16, Art. XI(note)
50-2012	4-26-12	1—5	18A-1—18A-5
		6—9	18A-7—18A-11
		10—15	18A-13—18A-18
		16, 17	18A-20, 18A-21
		18	18A-24
		19 Rnbd	18A-25
		as	18A-26
		20 Added	18A-25
53-2012	4-26-12	1 Added	18-184—18-190
57-2012	5-10-12	1 Added	18-40

Ord./Res. Number	Adoption Date	Section	Section this Code
58-2012	5-17-12	2—7 Added	13-54.1—13-54.6
59-2012	5-17-12	1, 2	21-5(2)
60-2012	5-17-12	1	23-5(a)
61-2012	5-17-12	1	21-5(2)
63-2012	5-17-12	1 Added	4-10.1
66-2012	5-17-12	1	2-87
68-2012	6-7-12	1	21-5(2)
69-2012	6-7-12	1	21-5(2)
73-2012	6-21-12	1	2-180
79-2012	6-21-12	1	13-13(b)
81-2012	7-5-12	1	24-51
85-2012	7-5-12	1	16-16.2(c)
		2 Added	16-16.4
		3 Added	16-59(b)(3)
		4	16-63
		5, 6	16-64(a), (c)
		7 Added	16-64.1
		8	16-404(4)
		9 Added	16-404.1
		10	16-408(2)
88-2012	7-10-12	1	2-243(2)
		2	2-244
89-2012	7-10-12	1	21-5(2)
90-2012	7-10-12	1	21-5(2)
91-2012	7-10-12	1	21-25
		2	22-22
		3	22-5(2)
		4	22-53.2(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
		6	23-28(a)
95-2012	7-10-12	1—3	21-5(2)
96-2012	7-10-12	1, 2	21-5(2)
		3	22-5(2)
101-2012	8-30-12	1, 2	21-5(2)
102-2012	8-30-12	1	22-53.2(2)
103-2012	8-30-12	1—3	21-5(2)
104-2012	8-30-12	1, 2	21-5(2)
105-2012	8-30-12	1	22-53.2(2)
106-2012	8-30-12	1	21-5(2)
		2	22-5(2)
108-2012	8-30-12	1	21-5(2)
97-2012	8-16-12	1	22-5(2)
115-2012	9-13-12	1	22-5(2)
118-2012	9-13-12	1, 2	9A-2, 9A-3
		3 Dltd	9A-4
		4 Rnbd	9A-5
		as	9A-4
		5 Rnbd	9A-6
		as	9A-5
		6 Rnbd	9A-8
		as	9A-7
		7 Rnbd	9A-9
		as	9A-8
120-2012	9-27-12	1	22-5(2)
127-2012	10-11-12	1—6	8-4
		7—10	8-5
		11—16	8-6

Ord./Res. Number	Adoption Date	Section	Section this Code
		17—20	8-7
		21, 22	8-8
		23, 24	8-9
130-2012	10-25-12	1	16-1(c)(51), (52)
		2	16-45(f)
		3	16-46(a)(6)
		4	16-46(g)
		5 Added	16-46(h)
		6 Added	16-46.2
131-2012	10-25-12	1	21-39(d)
132-2012	10-25-12	1	21-5(2)
133-2012	10-25-12	1	21-5(2)
134-2012	10-25-12	1	21-5(2)
135-2012	10-25-12	1	22-5(2)
141-2012	11-15-12	1, 2	22-5(2)
143-2012	11-15-12	1, 2	22-5(2)
145-2012	11-15-12	1	2-465
146-2012	11-15-12	1 Added	14-105
		2	14-10(f)(4), (9)
		3	16-76
149-2012	11-29-12	1, 2	21-5(2)
150-2012	11-29-12	1	21-5(2)
151-2012	11-29-12	1	2-458
157-2012	12-6-12	1 Rpld	13-13(b)(11)
		2 Rnbd	13-13(b)(12)—(32)
		as	13-13(b)(11)—(31)
159-2012	12-6-12	1	2-201
160-2012	12-6-12	1 Added	2-3.2

Ord./Res. Number	Adoption Date	Section	Section this Code
162-2012	12-6-12	1	14-72(8)
		2 Added	14-72(11)
166-2012	12-11-12	1	22-5(2)
167-2012	12-11-12	1, 2	21-5(2)
168-2012	12-11-12	1—3	21-5(2)
7-2013	1-31-13	1	21-5(2)
		2	22-5(2)
10-2013	1-31-13	1	14-85
		2, 3	14-87, 14-88
		4 Added	14-89.1
		5—8	14-90—14-93
11-2013	2-12-13	1, 2	21-5(2)
14-2013	2-28-13	1	21-5(2)
15-2013	2-28-13	1	22-5(2)
17-2013	2-28-13	1 Added	15-11—15-11.4
22-2013	3-7-13	1	22-5(2)
23-2013	3-7-13	1	16A-1
		2—5	16A-4—16A-7
		6—8 Dltd	16A-8—16A-10
		9 Rnbd	16A-11
		as	16A-8
		10 Rnbd	16A-12
		as	16A-9
		11 Dltd	16A-13
		12 Rnbd	16A-14
		as	16A-10
		13—15 Dltd	16A-15—16A-17
		16 Rnbd	16A-18

Ord./Res. Number	Adoption Date	Section	Section this Code
		as	16A-11
		17 Rnbd	16A-19
		as	16A-12
		18, 19 Dltd	16A-20, 16A-21
		20 Rnbd	16A-22
		as	16A-13
		21 Rnbd	16A-23
		as	16A-14
		22 Rnbd	16A-24
		as	16A-15
		23Rnbd	16A-25
		as	16A-16
		24 Dltd	16A-26
		25 Rnbd	16A-27
		as	16A-17
24-2013	3-7-13	1, 2	12-60, 12-61
		3	12-63
25-2013	3-7-13	1, 2	21-5(2)
26-2013	3-7-13	1	22-5(2)
41-2013	4-25-13	1, 2	21-5(2)
42-2013	4-25-13	1, 2	21-5(2)
43-2013	4-25-13	1—3	22-5(2)
44-2013	4-25-13	1, 2	21-5(2)
45-2013	4-25-13	1	21-5(2)
		2—4	22-5(2)
30-2013	3-21-13	1	21-5(2)
		2	22-5(2)
33-2013	3-21-13	1, 2	22-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
49-2013	5-2-13	1	16-16.1
59-2013	6-6-13	1	21-5(2)
61-2013	6-6-13	1, 2	21-5(2)
63-2013	6-6-13	1 Added	16-301—16-307
		2	5-30
65-2013	6-6-13	1, 2 Added	15-11.5, 15-11.6
72-2013	6-20-13	1	16-13(a)
74-2013	7-2-13	1	12-5(c)
77-2013	7-9-13	1	21-25
		2	22-22
		3	22-5(2)
		4	22-53.2(2)
		6	23-28(a)
78-2013	7-9-13	1, 2	21-5(2)
79-2013	7-9-13	1	21-5(2)
		2	22-5(2)
		3	23-5(b)
80-2013	7-9-13	1, 2	21-5(2)
83-2013	7-9-13	1	22-5(2)
84-2013	7-9-13	1	16-16.2(c)(1)
		2	16-64(c)(1)
		3	16-404(4)(a)
85-2013	7-9-13	1, 2	3-12, 3-13
		3 Rpld	3-13.1
87-2013	8-15-13	1, 2	21-5(2)
92-2013	8-29-13	1, 2	21-5(2)
93-2013	8-29-13	1, 2	22-5(2)
94-2013	8-29-13	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
106-2013	9-12-13	1—3 Added	15-12—15-14
113-2013	9-26-13	1, 2	21-5(2)
114-2013	9-26-13	1	21-5(2)
117-2013	9-26-13	1	16-16.2(c)(1)
		2	16-64(c)(1)
		3	16-404(4)(a)
120-2013	10-10-13	1, 2	21-5(2)
121-2013	10-10-13	1	22-5(2)
122-2013	10-10-13	1	22-5(2)
125-2013	10-24-13	1	21-5(2)
126-2013	10-24-13	1	23-5(b)
127-2013	10-24-13	1, 2	21-5(2)
132-2013	11-7-13	1	22-5(2)
133-2013	11-7-13	1	21-5(2)
134-2013	11-7-13	1	22-5(2)
		2	21-5(2)
135-2013	11-7-13	1	21-5(2)
137-2013	11-21-13	1	21-5(2)
139-2013	11-21-13	1	18C-13(1)
		2	18C-13(3)
140-2013	11-21-13	1	16-14
151-2013	12-5-13	1 Added	6-53(b)(4)
156-2013	12-10-13	1, 2	21-5(2)
157-2013	12-10-13	1	21-5(2)
158-2013	12-10-13	1	21-5(2)
		2	22-5(2)
159-2013	12-10-13	1	21-5(2)
06-2014	1-30-14	1	18A-11

Ord./Res. Number	Adoption Date	Section	Section this Code
07-2014	1-30-14	1—3	21-5(2)
9-2014	1-30-14	1	22-5(2)
13-2014	2-20-14	1 Added	18-166(i)
14-2014	2-20-14	1	18-113.4(2)
15-2014	2-20-14	1	23-5(2)
16-2014	2-20-14	1	21-5(2)
17-2014	2-20-14	1, 2	21-5(2)
19-2014	3-6-14	1, 2	21-5(2)
22-2014	3-6-14	1	21-5(2)
27-2014	3-20-14	1	21-5(2)
32-2014	4-10-14	1, 2	21-5(2)
33-2014	4-10-14	1	23-5(2)
34-2014	4-10-14	1 Added	1-13
40-2014	4-24-14	1	2-465
41-2014	4-24-14	1, 2	21-5(2)
48-2014	5-8-14	1	21-5(2)
		2	22-5(2)
55-2014	5-22-14	1, 2	21-5(2)
56-2014	5-22-14	1	21-5(2)
57-2014	5-22-14	1, 2	21-5(2)
		3	22-5(2)
58-2014	5-22-14	1	18-113.4
62-2014	6-5-14	2, 3	22-5
69-2014	6-19-14	1, 2	2-250, 2-251
		3	2-253
		4	2-256
77-2014	7-1-14	1—3	2-229—2-231
78-2014	7-1-14	1	5-107

Ord./Res. Number	Adoption Date	Section	Section this Code
79-2014	7-1-14	1 Added	5-108—5-111
80-2014	7-1-14	1	21-25
		2	22-22
		3	22-5(2)
		5	23-28
81-2014	7-1-14	1	2-151(a)
82-2014	7-8-14	1, 4	21-5(2)
		2	23-5(b)
		3	22-5(2)
83-2014	7-8-14	1, 2	21-5(2)
86-2014	7-8-14	1	22-5(2)
87-2014	7-8-14	1	21-5(2)
		2, 3	22-5(2)
89-2014	8-28-14	1	21-5(2)
90-2014	8-28-14	1	21-5(2)
		2	22-5(2)
91-2014	8-28-14	1	21-5(2)
		2	22-5(2)
92-2014	8-28-14	1	21-5(2)
93-2014	8-28-14	1	21-5(2)
101-2014	9-11-14	1 Added	2-473—2-483
102-2014	9-11-14	1 Added	2-484—2-494
104-2014	9-11-14	1	7-40
106-2014	9-11-14	1	22-5(2)
107-2014	9-11-14	1 Dltd	3-21(e)
		2 Rnbd	3-21(f)—(i)
		as	3-21-(e)—(h)
108-2014	9-11-14	1	21-5(2)

Ord./Res. Number	Adoption Date	Section	Section this Code
110-2014	9-11-14	1	21-5(2)
111-2014	9-11-14	1	22-5(2)
		2	21-5(2)
117-2014	9-25-14	2—5	21-15—21-18
		6, 7	21-26, 21-26.1
		8	21-30
		9	22-23
		10	22-27
120-2014	9-25-14	3 Dltd	21-4, 21-5
		Dltd	21-25
		Dltd	22-4, 22-5
		Dltd	22-22
122-2014	9-25-14	1	23-6(a)(6)
		2	23-13(a)
		3	23-18(c)
130-2014	10-9-14	1	2-458
		2	2-460
		3	2-462
135-2014	11-13-14	1	22-24
136-2014	11-13-14	2	14-97
153-2014	12-4-14	1	2-465
17-2015	3-17-15	1	9-11
18-2015	3-17-15	1	9-13
19-2015	3-17-15	1	9-3(a)
20-2015	3-17-15	1 Rpld	9-21
			9-22
22-2015	3-17-15	1	16-48
		2	16-57.1

Ord./Res. Number	Adoption Date	Section	Section this Code
		3	16-59
		4	16-60
38-2015	4-30-15	1	16-104(a)
		2	16-104(b)
		3	16-104(d)(1)
39-2015	4-30-15	1	5-32
40-2015	4-30-15	1	2-464
54-2015	5-7-15	1	14-97
		2	14-98
60-2015	6-11-15	1	14-98
61-2015	6-11-15	1 Added	2-495—2-501
62-2015	6-11-15	1	25-4(1)
83-2015	7-7-15	1	21-37.2
84-2015	7-7-15	1	12-63(b)
117-2015	10-22-15	1	2-19(1)
118-2015	10-22-15	1	7-39
		2	12-81(a)
130-2015	11-19-15	1 Added	13A-1—13A-6
133-2015	12-3-15	1 Added	21-33(g), (h)
69-2015	6-18-15	1	23-18(c)
72-2015	6-18-15	1	16-59(a)(2)
75-2015	6-18-15	3	22-53.2
			23-28(a)
2-2016	1-14-16	1	2A-18
23-2016	2-18-16	1	2-457
		2	463
24-2016	2-18-16	1	14-10(f)
25-2016	2-18-16	1	18-113.4

Ord./Res. Number	Adoption Date	Section	Section this Code
28-2016	3-3-16	1 Rpld	18A-1—18A-26
32-2016	3-3-16	1—3	12-71—12-73
43-2016	4-7-16	1 Added	10-14.1
94-2016	5-26-16	1 Added	2-172(c)
		2 Rnbd	2-172(c)—(g)
		as	2-172(d)—(h)
113-2016	6-16-16	1	13A-4
		2	2-30
125-2016	6-23-16	3	23-28(a)
			23-32
156-2016	9-15-16	1	16-43(7)
159-2016	9-15-16	1 Added	16-2.1
		2	16-201(a)
		3	14-10(f)(5)
179-2016	10-27-16	1 Added	12-8.4
217-2016	12-6-16	1 Added	16-1(f)(70)
		2	16-85
		3—5	16-101(c),(g),(h)
		6, 7	16-102(g),(i)
		8	16-103(b)
		9	16-104(d)(2)
220-2016	12-6-16	1	12-1(a)
		2—6	12-1(b)
		7 Rpld	12-2, 12-4—12-6
			12-8, 12-8.3, 12-14—12-16
			12-68—12-70
		8 Added	12-2
		9 Rnbd	12-7

Ord./Res. Number	Adoption Date	Section	Section this Code
		as	12-3
		10 Rnbd	12-8.1
		as	12-4
		11 Rnbd	12-8.2
		as	12-5
		12 Rnbd	12-13
		as	12-6
		13	12-60
		14—16	12-62—12-64
		17	14-10
221-2016	12-6-16	1	2B-1
		2 Added	2B-2
		3—10 Rnbd	2B-2—2B9
		as	2B-3—2B-10
		11—13	13-73.2—13-73.4
		14	16-34.1
		15	16-50
		16	16-76.1
		17	16-77
		18	16-202
		19, 20	16-205, 16-206
		21—24	17-4—17-4.3
		25	17-48
		26	17B-13
14-2017	2-9-17	1	21-37(h)
25-2017	3-2-17	1 Added	14-106
		2	14-10(f)(4)
31-2017	3-2-17	1, 2	18-113.4

Ord./Res. Number	Adoption Date	Section	Section this Code
43-2017	4-13-17	1	14-37
56-2017	4-27-17	1	2B-9(a)
		2	10-14.1(e)(8)
		3—5	14-105
		6	16-8(e), (g)
		7	17-148(b)
		8	17-152(c)
80-2017	5-25-17	1	4-2
		2	4-9
		3	4-12.2
		4	4-14
		5	4-19
81-2017	5-25-17	2	18-1(19)
		3 Added	18-94
		5	18-164
		6	18-166
92-2017	5-25-17	1—4	17-2—17-4
98-2017	6-15-17	1	5-76
99-2017	6-15-17	1	6-49
114-2017	7-6-17	3	23-28(a)
118-2017	7-11-17	1	4-14(b), (c)
		2	4-21(c)
122-2017	7-11-17	1	23-5
140-2017	9-28-17	1	25-2
		2	25-4
		3	25-5
		4 Added	25-5.2
		5	25-14

Ord./Res. Number	Adoption Date	Section	Section this Code
		6	25-17
		7	25-18
		8	25-25
		9	25-30
143-2017	10-12-17	1	2B-6(b), (e)
144-2017	10-12-17	2	17C-7(b)(4)
		3	17C-9(a)
		4, 5	17C-22(c), (d)
150-2017	10-12-17	1	2-87(a)
		2	2-89(b)
153-2017	10-12-17	1, 2	2-430, 2-431
154-2017	10-26-17	1	4-12.4(g)
156-2017	10-26-17	1 Added	2-506—2-512
165-2017	11-16-17	1, 2	12-1, 12-2
		3	12-5
		4	12-8.4
193-2017	12-7-17	1	3-21(c)(2)
15-2018	3-8-18	1	16-6.2(b)
		2	16-11(a)
		3	16-10(c)
16-2018	3-22-18	1 Added	5-31
38-2018	6-21-18	3	23-28
42-2018	7-3-18	1	2-172(i)
		2 Added	13-76
54-2018	8-30-18	1	2-452
		2	2-454
59-2018	9-13-18	1	2-507
60-2018	9-13-18	1	14-40(f)(4)

Ord./Res. Number	Adoption Date	Section	Section this Code
61-2018	9-13-18	1	18-129(4)
72-2018	10-11-18	1	2-453(a)
79-2018	10-25-18	1	18C-13(3)
80-2018	11-1-18	1	14-62(c)(1)
87-2018	11-1-18	1 Added	2-513—2-518
100-2018	12-6-18	1	12-1(b)
15-2019	3-21-19	1	25-17(2)(j)
17-2019	3-21-19	1	26-1(7)
		2—7	26-3
		8	26-5(2)
		9	26-7(2)
		10	26-8(2)(d)
		11	26-13(2)(c)
18-2019	3-21-19	1	17C-3
		2	17C-7(c)
		3	17C-19(e)
		4 Added	17C-19.2
		5	17C-20
		6	17C-21(1)
		7	17C-22(b)
		8 Added	17C-29
23-2019	4-11-19	1	2-507(b)
24-2019	4-11-19	1—3	2-452—2-454
27-2019	4-25-19	1	5-29.3
34-2019	6-6-19	1	16-48(c)
		2	16-57.1
		3	16-59
		4	16-60(a)

Ord./Res. Number	Adoption Date	Section	Section this Code
40-2019	6-20-19	1—5	5-29
		6	5-29.2
		7 Added	5-29.4
42-2019	6-20-19	1	18-148
		2	18-25
		3—19 Added	17D-1—17D-16
44-2019	7-2-19	1	5-29(2)
51-2019	7-9-19	1	2-250, 2-251
			2-253
			2-256
68-2019	9-12-19	1	2-465
86-2019	10-24-19	1	2-151(a)
91-2019	11-14-19	1	2-460
94-2019	11-14-19	2	17-3(c)
		3 Rpld	17-4.2
		Added	17-4.2
		4 Rpld	17-4.3
97-2019	11-21-19	1, 2	17-164, 17-165
100-2019	12-3-19	1	2-483(F)
101-2019	12-3-19	1	6-53(b)(5)
106-2019	12-5-19	1	21-27(d)
014-2020	2-20-20	1	21-27(d)
022-2020	3-5-20	1, 2	2-32, 2-33
50-2020	6-11-20	1—8 Added	3-29
056-2020	7-7-20	1	16-48(c)
64-2020	7-9-20	1, 2	21-32(e), (f)
79-2020	8-27-20	1 Added	21-34.2

Ord./Res. Number	Adoption Date	Section	Section this Code
95-2020	9-24-20	1	2-141(1)
101-2020	10-22-20	1 Rpld	2-150—2-153
		2	14-105(e)(2)
105-2020	11-12-20	2—4	2-200—2-203
		5	2-205
109-2020	11-19-20	1, 2	2-479, 2-480
		3	2-483
110-2020	11-19-20	1	2-516
016-2021	3-18-21	1	2-490(6)
030-2021	4-22-21	1	2-496
031-2021	4-22-21	1	21-37.1(b)
32-2021	5-6-21	1—6 Added	14-107—14-112
		7	2-30
051-2021	6-24-21	1, 2	5-29
056-2021	6-24-21	1 Added	23-51
063-2021	7-6-21	1 Added	2-519—2-526
090-2021	9-16-21	1	21-14(a)
		2	22-13
093-2021	9-30-21	1	12-2(c)(4)
106-2021	10-28-21	1	21-38
107-2021	10-28-21	1	21-27(f)
108-2021	10-28-21	1	21-27(h)
110-2021	10-28-21	4	23-28(a)
128-2021	12-2-21	1	6-53(b)(6)
135-2021	12-7-21	2—5	17-29—17-29.4
		6 Added	17-29.45
		7	17-29.5
139-2021	12-7-21	2	14-89

Ord./Res. Number	Adoption Date	Section	Section this Code
		3—5	14-90, 14-91
142-2021	12-7-21	1	22-53.2
027-2022	3-17-22	1	22-53.1(c)
039-2022	5-5-22	1—4 Added	12-11—12-14
057-2022	6-23-22	1	2-451
		2 Added	2-451.1
		3	2-452
		4, 5	2-454, 2-455
		6 Added	2-455.1
		7 Rpld	2-228—2-234
058-2022	6-23-22	4	23-88
059-2022	7-5-22	1—3	21-1—22-3
		4—16	21-6—21-18
		17	21-23
		18—23	21-26—21-30
		24—27	21-32—21-35
		28—35	21-37—21-42
		36	21-45
		37	21-52
060-2022	7-5-22	1—3	22-1—22-3
		4, 5	22-6, 22-7
		6	22-9
		7	22-16
		8—10	22-18—22-20
		11—20	22-23—22-32
		21	22-34
		22—35	22-40—22-52.1
		36—44	22-53.1—22-59

Ord./Res. Number	Adoption Date	Section	Section this Code
088-2022	8-30-22	1	6-49(a)
089-2022	8-30-22	1	6-53(b)(7)
101-2022	9-22-22	1—3	12-1—12-3
		4	17-162(a)
107-2022	9-22-22	1	21-37(h)
110-2022	9-22-22	1 Added	7-6
118-2022	10-27-22	1	17-29(5)
		2	17-29.2(a)(7)
		3	17-29.5(a)
124-2022	11-3-22	1 Added	7-44—7-48
128-2022	11-17-22	1 Added	21-37.3
132-2022	12-1-22	1	2-172
140-2022	12-6-22	1	22-52.1
		2	22-55.1
144-2022	12-6-22	3(Att.)	23-28
146-2022	12-6-22	1	2-3.2
012-2023	2-9-23	2—4	2-457—2-459
		5	2-463
022-2023	3-23-23	1 Added	2-527—2-534
028-2023	3-23-23	2 Added	2-483.5
		3	2-479, 2-480
030-2023	3-23-23	1—4	21-33
044-2023	4-27-23	1—7	17B-1—17B-7
		8, 9	17B-9, 17B-10
		12 Rnbd	17B-13
		as	17B-12
		13	16-76
049-2023	5-11-23	1 Added	2-31.1

Ord./Res. Number	Adoption Date	Section	Section this Code
059-2023	6-15-23	1	16-307
063-2023	6-15-23	4	23-28
		5	22-53.2
065-2023	6-29-23	1, 2	5-104, 5-105
		3	5-107
066-2023	6-29-23	1—3	5-108—5-110
067-2023	6-29-23	1	16-16.3
		2	16-59.1
		3	16-405.1
080-2023	7-11-23	1	13-13
		2	13-76
		3—8 Added	13-77—13-82
104-2023	9-28-23	1	3-23.2
110-2023	9-28-23	1	21-35
119-2023	10-12-23	1	22-53.1
599-2023(Res.)	11-2-23	1 Rpld	App. A
		2 Added	App. A
139-2023	12-5-23	1	6-53
142-2023	12-5-23	1	21-32
143-2023	12-5-23	1, 2	3-21
011-2024	1-23-24	1	4-14
016-2024	2-1-24	1, 2	2-519, 5-526
024-2024	2-15-24	1 Added	2-31.2
025-2024	3-7-24	1—3	2-96, 2-97, 2-99
049-2024	5-16-24	1	7-45
050-2024	5-16-24	1	7-6
271-2024(Res.)	5-16-24	1	App. A, 3.104
310-2024(Res.)	6-27-24	1	App. A, 3.104

Ord./Res. Number	Adoption Date	Section	Section this Code
328-2024(Res.)	6-27-24	1	App. A, 3.106
			App. A, 3.107
062-2024	6-27-24	1	13-13
		2 Added	13-83—13-92
064-2024	6-27-24	1 Added	4-13
		2 Added	4-13.1
065-2024	6-27-24	1	23-30
067-2024	7-2-24	1	16-203
068-2024	7-2-24	1	17B-1
		2	17B-2
		3	17B-3
		4	17B-4
		5	17B-6
		6 Rpld	17B-11
		7	17B-12
070-2024	7-2-24	3	23-28
077-2024	7-9-24	1 Added	21-37.4
080-2024	7-9-24	1 Rpld	2-300—2-305
		3	15-1.2
		4	17-29.4
		5	17-29.6
		6	17-29.8
		7	13-6
086-2024	8-29-24	1	21-37
089-2024	8-29-24	1	22-53.2
436-2024(Res.)	8-29-24	1	App. A, C.201
100-2024	9-12-24	1	2-205
114-2024	11-14-24	1	6-53

Ord./Res. Number	Adoption Date	Section	Section this Code
115-2024	11-14-24	1—4	21-37.3
120-2024	11-14-24	2 Added	8A-1
		3 Added	8A-2
		4 Added	8A-3
		5 Added	8A-4
		6	14-10
138-2024	12-5-24	1	13-76
		2	13-77
		3	13-79
644-2024(Res.)	12-5-24	1	App. A, 3.102
002-2025	1-23-25	1—4	13-77
		2	13-79
		3	13-80
		4	13-81
004-2025	1-23-25	1 Added	27-1—27-11
020-2025	3-20-25	1	2-465
025-2025	4-24-25	1—5 Added	12-55
028-2025	5-8-25	1, 2	5-76
029-2025	5-8-25	1	22-53.1
034-2025	5-29-25	1 Rpld	2-311—2-314
035-2025	5-29-25	1	26-4
044-2025	6-26-25	1	21-34
045-2025	6-26-25	3	23-28
		6	22-53.2
048-2025	6-26-25	1	16-1
		2	16-4
		3—7	16-4.1

Ord./Res. Number	Adoption Date	Section	Section this Code
		8	16-11
		9	16-14